The Origin and Development of the Moral Ideas

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Preface

THE frequent references made in the present work, on my own authority, to customs and ideas prevalent among the natives of Morocco, require a word of explanation. Seeing the close connection between moral opinions and magic and religious beliefs, I thought it might be useful for me to acquire first-hand knowledge of the folk-lore of some non-European people, and for various reasons I chose Morocco as my field of research. During the four years I spent there, largely among its country population, I have not only collected anthropological data, but tried to make myself familiar with the native way of thinking; and I venture to believe that this has helped me to understand various customs occurring at a stage of civilisation different from our own. I purpose before long to publish the detailed results of my studies in a special monograph on the popular religion and magics of the Moors.

For these researches I have derived much material support from the University of Helsingfors. I am also indebted to the Russian Minister at Tangier, M. B. de Bacheracht, for his kindness in helping me on several occasions when I was dependent on the Sultan's Government. All the time I have had the valuable assistance of my Moorish friend Shereef [(]Abd-es-Salâm el-Ba[k.][k.]âli, to whom credit {vi} is due for the kind reception I invariably received from peasants and mountaineers, not generally noted for friendliness towards Europeans.

I beg to express my best thanks to Mr. Stephen Gwynn for revising the first thirteen chapters, and to Mr. H. C. Minchin for revising the remaining portion of the book. To their suggestions I am indebted for the improvement of many phrases and expressions. I have likewise to thank my friend Mr. Alex. F. Shand for kindly reading the proofs of the earlier chapters and giving me the benefit of his opinion.

Throughout the work the reader will easily find how much I owe to British science and thought--a debt which is greater than I can ever express.

January, 1906.

Preface to the Second Edition

THE present edition is only a reprint of the first, with a few inaccurate expressions corrected.

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Introductory

THE main object of this book will perhaps be best explained by a few words concerning its origin.

Its author was once discussing with some friends the point how far a bad man ought to be treated with kindness. The opinions were divided, and, in spite of much deliberation, unanimity could not be attained. It seemed strange that the disagreement should be so radical, and the question arose, Whence this diversity of opinion? Is it

due to defective knowledge, or has it a merely sentimental origin? And the problem gradually expanded. Why do the moral ideas in general differ so greatly? And, on the other hand, why is there in many cases such a wide agreement? Nay, why are there any moral ideas at all?

Since then many years have passed, spent by the author in trying to find an answer to these questions. The present work is the result of his researches and thoughts.

The first part of it will comprise a study of the moral concepts: right, wrong, duty, justice, virtue, merit, &c. Such a study will be found to require an examination into the moral emotions, their nature and origin, as also into the relations between these emotions and the various {2} moral concepts. There will then be a discussion of the phenomena to which such concepts are applied--the subjects of moral judgments. The general character of these phenomena will be scrutinised, and an answer sought to the question why facts of a certain type are matters of moral concern, while other facts are not. finally, the most important of these phenomena will be classified, and the moral ideas relating to each class will be stated, and, so far as possible, explained.

An investigation of this kind cannot be confined to feelings and ideas prevalent in any particular society or at any particular stage of civilisation. Its subject-matter is the moral consciousness of mankind at large. It consequently involves the survey of an unusually rich and varied field of research--psychological, ethnographical, historical, juridical, theological. In the present state of our knowledge, when monographs on most of the subjects involved are wanting, I presume that such an undertaking is, strictly speaking, too big for any man; at any rate it is so for the writer of this book. Nothing like completeness can be aimed at. Hypotheses of varying degrees of probability must only too often be resorted to. Even the certainty of the statements on which conclusions are based is not always beyond a doubt. But though fully conscious of the many defects of his attempt, the author nevertheless ventures to think himself justified in placing it before the public. It seems to him that one of the most important objects of human speculation cannot be left in its present state of obscurity; that at least a glimpse of light must be thrown upon it by researches which have extended over some fifteen years; and that the main principles underlying the various customs of mankind may be arrived at even without subjecting these customs to such a full and minute treatment as would be required of an anthropological monograph.

Possibly this essay, in spite of its theoretical character, may even be of some practical use. Though rooted in the emotional side of our nature, our moral {3} opinions are in a large measure amenable to reason. Now in every society the traditional notions as to what is good or bad, obligatory or indifferent, are commonly accepted by the majority of people without further reflection. By tracing them to their source it will be found that not a few of these notions have their origin in sentimental likings and antipathies, to which a scrutinising and enlightened judge can attach little importance; whilst, on the other hand, he must account blamable many an act and omission which public opinion, out of thoughtlessness, treats with indifference. It will, moreover, appear that a moral estimate often survives the cause from which it sprang. And no unprejudiced person can help changing his views if he be persuaded that they have no foundation in existing facts.

Chapter I — The Emotional Origin of Moral Judgments

THAT the moral concepts are ultimately based on emotions either of indignation or approval, is a fact which a certain school of thinkers have in vain attempted to deny. The terms which embody these concepts must originally have been used--indeed they still constantly are so used--as direct expressions of such emotions with reference to the phenomena which evoked them. Men pronounced certain acts to be good or bad on account of the emotions those acts aroused in their minds, just as they called sunshine warm and ice cold on account of certain sensations which they experienced, and as they named a thing pleasant or painful because they felt pleasure or pain. But to attribute a quality to a thing is never the same as merely to state the existence of a particular sensation or feeling in the mind which perceives it. Such an attribution must mean that the thing, under certain circumstances, makes a certain impression on the mind. By calling an object warm or pleasant, a person asserts that it is apt to produce in him a sensation of heat or a feeling of pleasure. Similarly, to name an act good or bad, ultimately implies that it is apt to give rise to an emotion of approval or disapproval in him who pronounces the judgment. Whilst not affirming the actual existence of any specific emotion in the mind of the person judging or of anybody else, the predicate of a moral judgment attributes to the subject a tendency to arouse an emotion. The moral {5} concepts, then, are essentially generalisations of tendencies in certain phenomena to call forth moral emotions.

However, as is frequently the case with general terms, these concepts are mentioned without any distinct idea of their contents. The relation in which many of them stand to the moral emotions is complicated; the use of them is often vague; and ethical theorisers, instead of subjecting them to a careful analysis, have done their best to increase the confusion by adapting the meaning of the terms to fit their theories. Very commonly, in the definition of the goodness or badness of acts, reference is made, not to their tendencies to evoke emotions of approval or indignation, but to the causes of these tendencies, that is, to those qualities in the acts which call forth moral emotions. Thus, because good acts generally produce pleasure and bad acts pain, goodness and badness have been identified with the tendencies of acts to produce pleasure or pain. The following statement of Sir James Stephen is a clearly expressed instance of this confusion, so common among utilitarians:--"Speaking generally, the acts which are called right do promote, or are supposed to promote general happiness, and the acts which are called wrong do diminish, or are supposed to diminish it. I say, therefore, that this is what the words 'right' and 'wrong' mean, just as the words 'up' and 'down' mean that which points from or towards the earth's centre of gravity, though they are used by millions who have not the least notion of the fact that such is their meaning, and though they were used for centuries and millenniums before any one was or even could be aware of it."[1] So, too, Bentham maintained that words like "ought," "right," and "wrong," have no meaning unless interpreted in accordance with the principle of utility;[2] and James Mill was of opinion that "the very morality" of the act lies, not in the sentiments raised in the breast of him who perceives or contemplates it, but in "the consequences of the act, good or evil, and their being {6} within the intention of the agent."[3] He adds that a rational assertor of the principle of utility approves of an action "because it is good," and calls it good "because it conduces to happiness."[4] This, however, is to invert the sequence of the facts, since, properly speaking, an act is

called good because it is approved of, and is approved of by an utilitarian in so far as it conduces to happiness.

[Footnote 1: Stephen, Liberty, Equality, Fraternity, p. 338.]

[Footnote 2: Bentham, Principles of Morals and Legislation, p. 4.]

[Footnote 3: James Mill, Fragment on Mackintosh, pp. 5, 376.]

[Footnote 4: Ibid. p. 368.]

Such confusion of terms cannot affect the real meaning of the moral concepts. It is true that he who holds that "actions are right in proportion as they tend to promote happiness, wrong as they tend to produce the reverse of happiness,"[5] may, by a merely intellectual process, pass judgment on the moral character of particular acts; but, if he is an utilitarian from conviction, his first principle, at least, has an emotional origin. The case is similar with many of the moral judgments ordinarily passed by men. They are applications of some accepted general rule: conformity or non-conformity to the rule decides the rightness or wrongness of the act judged of. But whether the rule be the result of a person's independent deductions, or be based upon authority, human or divine, the fact that his moral consciousness recognises it as valid implies that it has an emotional sanction in his own mind.

[Footnote 5: Stuart Mill, Utilitarianism, p. 9 sq.]

Whilst the import of the predicate of a moral judgment may thus in every case be traced back to an emotion in him who pronounces the judgment, it is generally assumed to possess the character of universality or "objectivity" as well. The statement that an act is good or bad does not merely refer to an individual emotion; as will be shown subsequently, it always has reference to an emotion of a more public character. Very often it even implies some vague assumption that the act must be recognised as good or bad by everybody who possesses a sufficient knowledge of the case and of all attendant circumstances, and who has a "sufficiently developed" {7} moral consciousness. We are not willing to admit that our moral convictions are a mere matter of taste, and we are inclined to regard convictions differing from our own as errors. This characteristic of our moral judgments has been adduced as an argument against the emotionalist theory of moral origins, and has led to the belief that the moral concepts represent qualities which are discerned by reason.

Cudworth, Clarke, Price, and Reid are names which recall to our mind a theory according to which the morality of actions is perceived by the intellect, just as are number, diversity, causation, proportion. "Morality is eternal and immutable," says Richard Price. "Right and wrong, it appears, denote what actions are. Now whatever any thing is, that it is, not by will, or degree, or power, but by nature and necessity. Whatever a triangle or circle is, that it is unchangeably and eternally. . . . The same is to be said of right and wrong, of moral good and evil, as far as they express real characters of actions. They must immutably and necessarily belong to those actions of which they are truly affirmed."[6] And as having a real existence outside the mind, they can only be discerned by the understanding. It is true that this discernment is accompanied with an emotion: "Some impressions of pleasure or pain, satisfaction or disgust, generally attend our perceptions of virtue and vice. But these are merely their effects and concomitants, and not the perceptions themselves, which ought no more to be confounded with them, than a particular truth (like that for which Pythagoras offered a hecatomb) ought to be confounded with the pleasure that may attend the discovery of it."[7]

[Footnote 6: Price, Review of the Principal Questions in Morals, pp. 63, 74 sq.]

[Footnote 7: Ibid. p. 63.]

According to another doctrine, the moral predicates, though not regarded as expressions of "theoretical" truth, nevertheless derive all their import from reason from "practical" or "moral" reason, as it is variously {8} called. Thus Professor Sidgwick holds that the fundamental notions represented by the word "ought" or "right," which moral judgments contain expressly or by implication, are essentially different from all notions representing facts of physical or psychical experience, and he refers such judgments to the "reason," understood as a faculty of cognition. By this he implies "that what ought to be is a possible object of knowledge, i.e., that what I judge ought to be, must, unless I am in error, be similarly judged by all rational beings who judge truly of the matter." The moral judgments contain moral truths, and "cannot legitimately be interpreted as judgments respecting the present or future existence of human feelings or any facts of the sensible world."[8]

[Footnote 8: Sidgwick, Methods of Ethics, pp. 25, 33 sq.]

Yet our tendency to objectivise the moral judgments is no sufficient ground for referring them to the province of reason. If, in this respect, there is a difference between these judgments and others that are rooted in the subjective sphere of experience, it is, largely, a difference in degree rather than in kind. The aesthetic judgments, which indisputably have an emotional origin, also lay claim to a certain amount of "objectivity." By saying of a piece of music that it is beautiful, we do not merely mean that it gives ourselves aesthetic enjoyment, but we make a latent assumption that it must have a similar effect upon everybody who is sufficiently musical to appreciate it. This objectivity ascribed to judgments which have a merely subjective origin springs in the first place from the similarity of the mental constitution of men, and, generally speaking, the tendency to regard them as objective is greater in proportion as the impressions vary less in each particular case. If "there is no disputing of tastes," that is because taste is so extremely variable; and yet even in this instance we recognise a certain "objective" standard by speaking of a "bad" and a "good" taste. On the other hand, if the appearance of objectivity in the moral judgments is so illusive as to {9} make it seem necessary to refer them to reason, that is partly on account of the comparatively uniform nature of the moral consciousness.

Society is the school in which men learn to distinguish between right and wrong. The headmaster is Custom, and the lessons are the same for all. The first moral judgments were pronounced by public opinion; public indignation and public approval are the prototypes of the moral emotions. As regards questions of morality, there was, in early society, practically no difference of opinion; hence a character of universality, or objectivity, was from the very beginning attached to all moral judgments. And when, with advancing civilisation, this unanimity was to some extent disturbed by individuals venturing to dissent from the opinions of the majority, the disagreement was largely due to facts which in no way affected the moral principle, but had reference only to its application.

Most people follow a very simple method in judging of an act. Particular modes of conduct have their traditional labels, many of which are learnt with language itself; and the moral judgment commonly consists simply in labelling the act according to certain obvious characteristics which it presents in common with others belonging to the same group. But a conscientious and intelligent judge proceeds in a different manner. He carefully examines all the details connected with the act, the external and internal conditions under which it was performed, its consequences, its motive; and, since the moral estimate in a large measure depends upon the regard paid to these circumstances, his judgment may differ greatly from that of the man in the street, even though the

moral standard which they apply be exactly the same. But to acquire a full insight into all the details which are apt to influence the moral value of an act is in many cases anything but easy, and this naturally increases the disagreement. There is thus in every advanced society a diversity of opinion regarding the moral value of certain modes of conduct which results from circumstances of a purely {10} intellectual character--from the knowledge or ignorance of positive facts,--and involves no discord in principle.

Now it has been assumed by the advocates of various ethical theories that all the differences of moral ideas originate in this way, and that there is some ultimate standard which must be recognised as authoritative by everybody who understands it rightly. According to Bentham, the rectitude of utilitarianism has been contested only by those who have not known their own meaning:--"When a man attempts to combat the principle of utility . . . his arguments, if they prove anything, prove not that the principle is wrong, but that, according to the applications he supposes to be made of it, it is misapplied."[9] Mr. Spencer, to whom good conduct is that "which conduces to life in each and all," believes that he has the support of "the true moral consciousness," or "moral consciousness proper," which, whether in harmony or in conflict with the "pro-ethical" sentiment, is vaguely or distinctly recognised as the rightful ruler.[10] Samuel Clarke, the intuitionist, again, is of opinion that if a man endowed with reason denies the eternal and necessary moral differences of things, it is the very same "as if a man that has the use of his sight, should at the same time that he beholds the sun, deny that there is any such thing as light in the world; or as if a man that understands Geometry or Arithmetick, should deny the most obvious and known proportions of lines or numbers."[11] In short, all disagreement as to questions of morals is attributed to ignorance or misunderstanding.

[Footnote 9: Bentham, Principles of Morals and Legislation, p. 4 sq.]

[Footnote 10: Spencer, Principles of Ethics, i. 45, 337 sq.]

[Footnote 11: Clarke, Discourse concerning the Unchangeable Obligations of Natural Religion, p. 179.]

The influence of intellectual considerations upon moral judgments is certainly immense. We shall find that the evolution of the moral consciousness to a large extent consists in its development from the unreflecting to the reflecting, from the unenlightened to the enlightened. All higher emotions are determined by cognitions, they arise {11} from "the presentation of determinate objective conditions";[12] and moral enlightenment implies a true and comprehensive presentation of those objective conditions by which the moral emotions, according to their very nature, are determined. Morality may thus in a much higher degree than, for instance, beauty be a subject of instruction and of profitable discussion, in which persuasion is carried by the representation of existing data. But although in this way many differences may be accorded, there are points in which unanimity cannot be reached even by the most accurate presentation of facts or the subtlest process of reasoning.

[Footnote 12: Marshall, Pain, Pleasure, and Aesthetics, p. 83.]

Whilst certain phenomena will almost of necessity arouse similar moral emotions in every mind which perceives them clearly, there are others with which the case is different. The emotional constitution of man does not present the same uniformity as the human intellect. Certain cognitions inspire fear in nearly every breast; but there are brave men and cowards in the world, independently of the accuracy with which they realise impending danger. Some cases of suffering can hardly fail to awaken compassion in the most pitiless heart; but the sympathetic dispositions of men vary greatly, both in regard to the beings with whose sufferings they are ready to sympathise, and with

reference to the intensity of the emotion. The same holds good for the moral emotions. The existing diversity of opinion as to the rights of different classes of men and of the lower animals, which springs from emotional differences, may no doubt be modified by a clearer insight into certain facts, but no perfect agreement can be expected as long as the conditions under which the emotional dispositions are formed remain unchanged. Whilst an enlightened mind must recognise the complete or relative irresponsibility of an animal, a child, or a madman, and must be influenced in its moral judgment by the motives of an act--no intellectual enlightenment, no scrutiny of facts, can decide how far the interests of the {12} lower animals should be regarded when conflicting with those of men, or how far a person is bound, or allowed, to promote the welfare of his nation, or his own welfare, at the cost of that of other nations or other individuals. Professor Sidgwick's well-known moral axiom, "I ought not to prefer my own lesser good to the greater good of another,"[13] would, if explained to a Fuegian or a Hottentot, be regarded by him, not as self-evident, but as simply absurd; nor can it claim general acceptance even among ourselves. Who is that "Another" to whose greater good I ought not to prefer my own lesser good? A fellow-countryman, a savage, a criminal, a bird, a fish--all without distinction? It will, perhaps, be argued that on this, and on all other points of morals, there would be general agreement, if only the moral consciousness of men were sufficiently developed.[14] But then, when speaking of a "sufficiently developed" moral consciousness (beyond insistence upon a full insight into the governing facts of each case), we practically mean nothing else than agreement with our own moral convictions. The expression is faulty and deceptive, because, if intended to mean anything more, it presupposes an objectivity of the moral judgments which they do not possess, and at the same time seems to be proving what it presupposes. We may speak of an intellect as sufficiently developed to grasp a certain truth, because truth is objective; but it is not proved to be objective by the fact that it is recognised as true by a "sufficiently developed" intellect. The objectivity of truth lies in the recognition of facts as true by all who understand them fully, whilst the appeal to a sufficient knowledge assumes their objectivity. To the verdict of a perfect intellect, that is, an intellect which knows everything existing, all would submit; but we can form no idea of a moral consciousness which could lay claim to a similar authority. If the believers in an all-good {13} God, who has revealed his will to mankind, maintain that they in this revelation possess a perfect moral standard, and that, consequently, what is in accordance with such a standard must be objectively right, it may be asked what they mean by an "all-good" God. And in their attempt to answer this question, they would inevitably have to assume the objectivity they wanted to prove.

[Footnote 13: Sidgwick, op. cit. p. 383.]

[Footnote 14: This, in fact, was the explanation given by Professor Sidgwick himself in a conversation which I had with him regarding his moral axioms.]

The error we commit by attributing objectivity to moral estimates becomes particularly conspicuous when we consider that these estimates have not only a certain quality, but a certain quantity. There are different degrees of badness and goodness, a duty may be more or less stringent, a merit may be smaller or greater.[15] These quantitative differences are due to the emotional origin of all moral concepts. Emotions vary in intensity almost indefinitely, and the moral emotions form no exception to this rule. Indeed, it may be fairly doubted whether the same mode of conduct ever arouses exactly the same degree of indignation or approval in any two individuals. Many of these differences are of course too subtle to be manifested in the moral judgment; but very frequently the intensity of the emotion is indicated by special words, or by the way

in which the judgment is pronounced. It should be noticed, however, that the quantity of the estimate expressed in a moral predicate is not identical with the intensity of the moral emotion which a certain mode of conduct arouses on a special occasion. We are liable to feel more indignant if an injury is committed before our eyes than if we read of it in a newspaper, and yet we admit that the degree of wrongness is in both cases the same. The quantity of moral estimates is determined by the intensity of the emotions which their objects tend to evoke under exactly similar external circumstances.

[Footnote 15: It will be shown in a following chapter why there are no degrees of rightness. This concept implies accordance with the moral law. The adjective "right" means that duty is fulfilled.]

{14} Besides the relative uniformity of moral opinions, there is another circumstance which tempts us to objectivise moral judgments, namely, the authority which, rightly or wrongly, is ascribed to moral rules. From our earliest childhood we are taught that certain acts are right and that others are wrong. Owing to their exceptional importance for human welfare, the facts of the moral consciousness are emphasised in a much higher degree than any other subjective facts. We are allowed to have our private opinions about the beauty of things, but we are not so readily allowed to have our private opinions about right and wrong. The moral rules which are prevalent in the society to which we belong are supported by appeals not only to human, but to divine, authority, and to call in question their validity is to rebel against religion as well as against public opinion. Thus the belief in a moral order of the world has taken hardly less firm hold of the human mind than the belief in a natural order of things. And the moral law has retained its authoritativeness even when the appeal to an external authority has been regarded as inadequate. It filled Kant with the same awe as the star-spangled firmament. According to Butler, conscience is "a faculty in kind and in nature supreme over all others, and which bears its own authority of being so."[16] Its supremacy is said to be "felt and tacitly acknowledged by the worst no less than by the best of men."[17] Adam Smith calls the moral faculties the "vicegerents of God within us," who "never fail to punish the violation of them by the torments of inward shame and self-condemnation; and, on the contrary, always reward obedience with tranquillity of mind, with contentment, and self-satisfaction."[18] Even Hutcheson, who raises the question why the moral sense should not vary in different men as the palate does, considers it {15} "to be naturally destined to command all the other powers."[19]

[Footnote 16: Butler, 'Sermon II.--Upon Human Nature,' in Analogy of Religion, &c. p. 403.]

[Footnote 17: Dugald Stewart, Philosophy of the Active and Moral Powers of Man, i. 302.]

[Footnote 18: Adam Smith, Theory of Moral Sentiments, p. 235.]

[Footnote 19: Hutcheson, System of Moral Philosophy, i. 61.]

Authority is an ambiguous word. It may indicate knowledge of truth, and it may indicate a rightful power to command obedience. The authoritativeness attributed to the moral law has often reference to both kinds of authority. The moral lawgiver lays down his rules in order that they should be obeyed, and they are authoritative in so far as they have to be obeyed. But he is also believed to know what is right and wrong, and his commands are regarded as expressions of moral truths. As we have seen, however, this latter kind of authority involves a false assumption as to the nature of the moral predicates, and it cannot be justly inferred from the power to command. Again, if the notion of an external lawgiver be put aside, the moral law does not generally seem to possess supreme authority in either sense of the word. It does not command obedience

in any exceptional degree; few laws are broken more frequently. Nor can the regard for it be called the mainspring of action; it is only one spring out of many, and variable like all others. In some instances it is the ruling power in a man's life, in others it is a voice calling in the desert; and the majority of people seem to be more afraid of the blame or ridicule of their fellowmen, or of the penalties with which the law threatens them, than of "the vicegerents of God" in their own hearts. That mankind prefer the possession of virtue to all other enjoyments, and look upon vice as worse than any other misery,[20] is unfortunately an imagination of some moralists who confound men as they are with men as they ought to be.

[Footnote 20: Idem, Inquiry into the Original of our Ideas of Beauty and Virtue, p. 248.]

It is said that the authority of the moral law asserts itself every time the law is broken, that virtue bears in itself its own reward, and vice its own punishment. But, to be sure, conscience is a very unjust retributer. The more a person habituates himself to virtue the more he {16} sharpens its sting, the deeper he sinks in vice the more he blunts it. Whilst the best men have the most sensitive consciences, the worst have hardly any conscience at all. It is argued that the habitual sinner has rid himself of remorse at a great cost;[21] but it may be fairly doubted whether the loss is an adequate penalty for his wickedness. We are reminded that men are rewarded for good and punished for bad acts by the moral feelings of their neighbours. But public opinion and law judge of detected acts only. Their judgment is seldom based upon an exhaustive examination of the case. They often apply a standard which is itself open to criticism. And the feelings with which men regard their fellow-creatures, and which are some of the main sources of human happiness and suffering, have often very little to do with morality. A person is respected or praised, blamed or despised, on other grounds than his character. Nay, the admiration which men feel for genius, courage, pluck, strength, or accidental success, is often superior in intensity to the admiration they feel for virtue.

[Footnote 21: Ziegler, Social Ethics, p. 103.]

In spite of all this, however, the supreme authority assigned to the moral law is not altogether an illusion. It really exists in the minds of the best, and is nominally acknowledged by the many. By this I do not refer to the universal admission that the moral law, whether obeyed or not, ought under all circumstances to be obeyed; for this is the same as to say that what ought to be ought to be. But it is recognised, in theory at least, that morality, either alone or in connection with religion, possesses a higher value than anything else; that rightness and goodness are preferable to all other kinds of mental superiority, as well as of physical excellence. If this theory is not more commonly acted upon, that is due to its being, in most people, much less the outcome of their own feelings than of instruction from the outside. It is ultimately traceable to some great teacher whose own mind was ruled by the ideal of moral perfection, and whose {17} words became sacred on account of his supreme wisdom, like Confucius or Buddha, [22] or on religious grounds, like Jesus. The authority of the moral law is thus only an expression of a strongly developed, overruling moral consciousness. It can hardly, as Mr. Sidgwick maintains, be said to "depend upon" the conception of the objectivity of duty.[23] On the contrary, it must be regarded as a cause of this conception--not only, as has already been pointed out, where it is traceable to some external authority, but where it results from the strength of the individual's own moral emotions. As clearness and distinctness of the conception of an object easily produces the belief in its truth, so the intensity of a moral emotion makes him who feels it disposed to objectivise the moral estimate to which it gives rise, in other words, to assign to it universal validity.

The enthusiast is more likely than anybody else to regard his judgments as true, and so is the moral enthusiast with reference to his moral judgments. The intensity of his emotions makes him the victim of an illusion.

[Footnote 22: "Besides the ideal king, the personification of Power and Justice, another ideal has played an important part in the formation of early Buddhist ideas regarding their Master. . . . It was the ideal of a perfectly Wise Man, the personification of Wisdom, the Buddha" (Rhys Davids, Hibbert Lectures on Some Points in the History of Buddhism, p. 141).]

[Footnote 23: Sidgwick, op. cit. p. 104.]

The presumed objectivity of moral judgments thus being a chimera, there can be no moral truth in the sense in which this term is generally understood. The ultimate reason for this is, that the moral concepts are based upon emotions, and that the contents of an emotion fall entirely outside the category of truth. But it may be true or not that we have a certain emotion, it may be true or not that a given mode of conduct has a tendency to evoke in us moral indignation or moral approval. Hence a moral judgment is true or false according as its subject has or has not that tendency which the predicate attributes to it. If I say that it is wrong to resist evil, and yet resistance to evil has no tendency whatever to call {18} forth in me an emotion of moral disapproval, then my judgment is false.

If there are no general moral truths, the object of scientific ethics cannot be to fix rules for human conduct, the aim of all science being the discovery of some truth. It has been said by Bentham and others that moral principles cannot be proved because they are first principles which are used to prove everything else.[24] But the real reason for their being inaccessible to demonstration is that, owing to their very nature, they can never be true. If the word "Ethics," then, is to be used as the name for a science, the object of that science can only be to study the moral consciousness as a fact.[25]

[Footnote 24: Bentham, Principles of Morals and Legislation, p. 4. Cf. Höffding, Etik, p. 43.]

[Footnote 25: Cf. Simmel, Einleitung in die Moralwissenschaft, i. p. iii. sq.; Westermarck, 'Normative und psychologische Ethik,' in Dritter Internationaler Congress für Psychologie in München, p. 428 sq.]

Ethical subjectivism is commonly held to be a dangerous doctrine, destructive to morality, opening the door to all sorts of libertinism. If that which appears to each man as right or good, stands for that which is right or good; if he is allowed to make his own law, or to make no law at all; then, it is said, everybody has the natural right to follow his caprice and inclinations, and to hinder him from doing so is an infringement on his rights, a constraint with which no one is bound to comply provided that he has the power to evade it. This inference was long ago drawn from the teaching of the Sophists, [26] and it will no doubt be still repeated as an argument against any theorist who dares to assert that nothing can be said to be truly right or wrong.

[Footnote 26: Zeller, History of Greek Philosophy, ii. 475.]

To this argument may, first, be objected that a scientific theory is not invalidated by the mere fact that it is likely to cause mischief. The unfortunate circumstance that there do exist dangerous things in the world, proves that something may be dangerous and yet true. Another question is whether any scientific truth really is mischievous {19} on the whole, although it may cause much discomfort to certain people. I venture to believe that this, at any rate, is not the case with that form of ethical subjectivism which I am here advocating. The charge brought against the Sophists does not at all apply to it. I do not even subscribe to that beautiful modern sophism which admits

every man's conscience to be an infallible guide. If we had to recognise, or rather if we did recognise, as right everything which is held to be right by anybody, savage or Christian, criminal or saint, morality would really suffer a serious loss. But we do not, and we cannot, do so. My moral judgments are my own judgments; they spring from my own moral consciousness; they judge of the conduct of other men not from their point of view but from mine, not with primary reference to their opinions about right and wrong, but with reference to my own. Most of us indeed admit that, when judging of an act, we also ought to take into consideration the moral conviction of the agent, and the agreement or disagreement between his doing and his idea of what he ought to do. But although we hold it to be wrong of a person to act against his conscience, we may at the same time blame him for having such a conscience as he has. Ethical subjectivism covers all such cases. It certainly does not allow everybody to follow his own inclinations; nor does it lend sanction to arbitrariness and caprice. Our moral consciousness belongs to our mental constitution, which we cannot change as we please. We approve and we disapprove because we cannot do otherwise. Can we help feeling pain when the fire burns us? Can we help sympathising with our friends? Are these phenomena less necessary or less powerful in their consequences, because they fall within the subjective sphere of experience? So, too, why should the moral law command less obedience because it forms part of our own nature?

Far from being a danger, ethical subjectivism seems to me more likely to be an acquisition for moral practice. {20} Could it be brought home to people that there is no absolute standard in morality, they would perhaps be somewhat more tolerant in their judgments, and more apt to listen to the voice of reason. If the right has an objective existence, the moral consciousness has certainly been playing at blindman's buff ever since it was born, and will continue to do so until the extinction of the human race. But who does admit this? The popular mind is always inclined to believe that it possesses the knowledge of what is right and wrong, and to regard public opinion as the reliable guide of conduct. We have, indeed, no reason to regret that there are men who rebel against the established rules of morality; it is more deplorable that the rebels are so few, and that, consequently, the old rules change so slowly. Far above the vulgar idea that the right is a settled something to which everybody has to adjust his opinions, rises the conviction that it has its existence in each individual mind, capable of any expansion, proclaiming its own right to exist, and, if need be, venturing to make a stand against the whole world. Such a conviction makes for progress.

Chapter II — The Nature of the Moral Emotions

IN the preceding chapter it was asserted, in general terms, that the moral concepts are based on emotions, and the leading arguments to the contrary were met. We shall now proceed to examine the nature of the moral emotions.

These emotions are of two kinds: disapproval, or indignation, and approval. They have in common characteristics which make them moral emotions, in distinction from others of a non-moral character, but at the same time both of them belong to a wider class of emotions, which I call retributive emotions. Again, they differ from each other in points which make each of them allied to certain non-moral retributive emotions, disapproval to anger and revenge, and approval to that kind of retributive kindly emotion which in its most developed form is gratitude. They may thus, on the one hand,

be regarded as two distinct divisions of the moral emotions, whilst, on the other hand, disapproval, like anger and revenge, forms a sub-species of resentment, and approval, like gratitude, forms a sub-species of retributive kindly emotion. The following diagram will help to elucidate the matter:--

Retributive Emotions. | ---------- | | Resentment. Retributive Kindly Emotion. | | ---------- ---------- | | | | Anger and Moral Moral Non-moral retributive Revenge. disapproval. approval Kindly Emotion, | | including Gratitude. ---------- | Moral Emotions.

{22} That moral disapproval is a kind of resentment and akin to anger and revenge, and that moral approval is a kind of retributive kindly emotion and akin to gratitude, are, of course, statements which call for proof. An analysis of all these emotions, and a detailed study of the causes which evoke them, will, I hope, bear out the correctness of my classification. In this connection only the analysis can be attempted. The study of causes will be involved in the treatment of the subjects of moral judgments.

Resentment may be described as an aggressive attitude of mind towards a cause of pain. Anger is sudden resentment, in which the hostile reaction against the cause of pain is unrestrained by deliberation. Revenge, on the other hand, is a more deliberate form of non-moral resentment, in which the hostile reaction is more or less restrained by reason and calculation.[1] It is impossible, however, to draw any distinct limit between these two types of resentment, as also to discern where an actual desire to inflict pain comes in. In its primitive form, anger, even when directed against a living being, contains a vehement impulse to remove the cause of pain without any real desire to produce suffering.[2] Anger is strikingly shown by many fish, and notoriously by sticklebacks when their territory is invaded by other sticklebacks. In such circumstances of provocation the whole animal changes colour, and, darting at the trespasser, shows rage and fury in every movement;[3] but we can hardly believe that any idea of inflicting pain is present to its mind. As we proceed still lower down the scale of animal life we find the conative element itself gradually dwindle away until nothing is left but mere reflex action.

[Footnote 1: Cf. Ribot, Psychology of the Emotions, p. 220 sqq.]

[Footnote 2: There are some good remarks on this in Mr. Hiram Stanley's Studies in the Evolutionary Psychology of Feeling, p. 138 sq.]

[Footnote 3: Romanes, Animal Intelligence, p. 246 sqq.]

That the fury of an injured animal turns against the real or assumed cause of its injury is a matter of notoriety, and everybody knows that the same is the case with the {23} anger of a child. No doubt, as Professor Sully observes, "hitting out right and left, throwing things down on the floor and breaking them, howling, wild agitated movements of the arms and whole body, these are the outward vents which the gust of childish fury is apt to take."[4] But, on the other hand, we know well enough that Darwin's little boy, who became a great adept at throwing books and sticks at any one who offended him,[5] was in this respect no exceptional child. Towards the age of one year, according to M. Perez, children "will beat people, animals, and inanimate objects if they are angry with them; they will throw their toys, their food, their plate, anything, in short, that is at hand, at the people who have displeased them."[6] That a similar discrimination characterises the resentment of a savage is a fact upon which it is necessary to dwell at some length for the reason that it has been disputed, and because there are some seeming anomalies which require an explanation.

[Footnote 4: Sully, Studies in Childhood, p. 232 sq.]

[Footnote 5: Darwin, 'Biographical Sketch of an Infant,' in Mind, ii. 288.]

[Footnote 6: Perez, first Three Years of Childhood, p. 66 sq.]

In a comprehensive work,[7] Dr. Steinmetz has made the feeling of revenge the object of a detailed investigation, which cannot be left unnoticed. The ultimate conclusions at which he has arrived are these: Revenge is essentially rooted in the feeling of power and superiority. It arises consequently upon the experience of injury, and its aim is to enhance the "self-feeling" which has been lowered or degraded by the injury suffered. It answers this purpose best if it is directed against the aggressor himself, but it is not essential to it that it should take any determinate direction, for, per se, and originally, it is "undirected."[8]

[Footnote 7: Ethnologische Studien zur ersten Entwicklung der Strafe.]

[Footnote 8: Strictly speaking, this theory is not new. Dr. Paul Rée, in his book Die Entstehung des Gewissens, has pronounced revenge to be a reaction against the feeling of inferiority which the aggressor impresses upon his victim. The injured man, he says (ibid. p. 40) is naturally reluctant to feel himself inferior to another man, and consequently strives, by avenging the aggression, to show himself equal or even superior to the aggressor. A similar view was previously expressed by Schopenhauer (Parerga und Paralipomena, ii. 475 sq.). But Dr. Steinmetz has elaborated his theory with an independence and fulness which make any question of priority quite insignificant.]

{24} We are told, in fact, that the first stage through which revenge passed within the human race was characterised by a total, or almost total, want of discrimination. The aim of the offended man was merely to raise his injured "self-feeling" by inflicting pain upon somebody else, and his savage desire was satisfied whether the man on whom he wreaked his wrath was guilty or innocent.[9] No doubt, there were from the outset instances in which the offender himself was purposely made the victim, especially if he was a fellow-tribesman; but it was not really due to the feeling of revenge if the suffering was inflicted upon him, in preference to others. Even primitive man must have found out that vengeance directed against the actual culprit, besides being a strong deterrent to others, was a capital means of making a dangerous person harmless. However, Dr. Steinmetz adds, these advantages should not be overestimated, as even indiscriminate revenge has a deterring influence on the malefactor.[10] In early times, then, vengeance, according to Dr. Steinmetz, was in the main "undirected."

[Footnote 9: Steinmetz, op. cit. i. 355, 356, 359, 561.]

[Footnote 10: Ibid. i. 362.]

At the next stage it becomes, he says, somewhat less indiscriminate. A proper victim is sought for even in cases of what we should call natural death, which the savage generally attributes to the ill-will of some foe skilled in sorcery;[11] though indeed Dr. Steinmetz doubts whether in such cases the unfortunate sufferer is really supposed to have committed the deed imputed to him.[12] At all events, a need is felt of choosing somebody for a victim, and "undirected" vengeance gradually gives way to "directed" vengeance. A rude specimen of this is the blood-feud, in which the individual culprit is left out of consideration, but war is carried on against the group of which he is a member, either his family or his tribe. And {25} from this system of joint responsibility we finally come, by slow degrees, says Dr. Steinmetz, to the modern conception, according to which punishment should be inflicted upon the criminal and nobody else.[13] Dr. Steinmetz believes that the vis agens in this long process of evolution lies in the intellectual development of the human race: man found out more and more distinctly that the best means of restraining wrongs was to punish a certain person, namely, the wrong-doer.[14] On this utilitarian calculation our author lays much stress in the latter part of his investigation; whereas in another place he observes that a revenge which is

directed against the offender is particularly apt to remove the feeling of inferiority, by effectually humiliating the hitherto triumphant foe.[15]

[Footnote 11: Ibid. i. 356 sq.]

[Footnote 12: Ibid. i. 359 sq.]

[Footnote 13: Steinmetz, op. cit. i. 361.]

[Footnote 14: Ibid. i. 358, 359, 361 sq.]

[Footnote 15: Ibid. i. 111.]

In this historical account the main points of interest are the initial stage of "undirected" vengeance, and the way in which such vengeance gradually became discriminate. If, in primitive times, a man did not care in the least on whom he retaliated an injury, then of course the direction of his vengeance could not be essential to the revenge itself, but would be merely a later appendix to it. The question is, what evidence can Dr. Steinmetz adduce to support his theory? Of primitive man we have no direct experience; no savage people now existing is a faithful representative of him, either physically or mentally. Yet however greatly the human race has changed, primitive man is not altogether dead. Traits of his character still linger in his descendants; and of primitive revenge, we are told, there are sufficient survivals left.[16]

[Footnote 16: Ibid. i. 364.]

Under the heading "Perfectly Undirected Revenge," Dr. Steinmetz sets out several alleged cases of such so-called survivals[17] 1. An Indian of the Omaha tribe, who was kicked out of a trading establishment which he had been forbidden to enter, declared in a rage that he would revenge himself for an injury so gross, and, "seeking some object to destroy, he encountered a {26} sow and pigs, and appeased his rage by putting them all to death." 2. The people of that same tribe believe that if a man who has been struck by lightning is not buried in the proper way, and in the place where he has been killed, his spirit will not rest in peace, but will walk about till another person is slain by lightning and laid beside him. 3. At the burial of a Loucheux Indian, the relatives sometimes will cut and lacerate their bodies, or, as sometimes happens, will, "in a fit of revenge against fate," stab some poor, friendless person who may be sojourning among them. 4. The Navahoes, when jealous of their wives, are apt to wreak their spleen and ill-will upon the first person whom they chance to meet. 5. The Great Eskimo, as it is reported, once after a severe epidemic swore to kill all white people who might venture into their country. 6. The Australian father, whose little child happens to hurt itself, attacks his innocent neighbours, believing that he thus distributes the pain among them and consequently lessens the suffering of the child. 7. The Brazilian Tupis ate the vermin which molested them, for the sake of revenge; and if one of them struck his foot against a stone, he raged over it and bit it, whilst, if he were wounded with an arrow, he plucked it out and gnawed the shaft. 8. The Dacotahs avenge theft by stealing the property of the thief or of somebody else. 9. Among the Tshatrali (Pamir), if a man is robbed of his meat by a neighbour's dog, he will, in a fit of rage, not only kill the offending dog, but will, in addition, kick his own. 10. In New Guinea the bearers of evil tidings sometimes get knocked on the head during the first outburst of indignation evoked by their news. 11. Some natives of Motu, who had rescued two shipwrecked crews and safely brought them to their home in Port Moresby, were attacked there by the very friends of those they had saved, the reason for this being that the Port Moresby people were angry at the loss of the canoes, and could not bear that the Motuans were happy while they themselves were in trouble. 12. Another story from New Guinea tells us of a man who killed some innocent persons, because he had been disappointed in his plans and deprived of valuable property. 13. Among the Maoris it sometimes happened

that the friends of a murdered man killed the first man who came in their way, whether enemy or friend. 14. Among the same people, chiefs who had suffered some loss often used to rob their subjects of property in order to make good the damage. 15. If the son of a Maori is hurt, his maternal relatives, to whose tribe he is considered to belong, come to pillage his father's house or village. 16. If {27} a tree falls on a Kuki his fellows chop it up, and if one of that tribe kills himself by falling from a tree the tree from which he fell is promptly cut down. 17. In some parts of Daghestan, when the cause of a death is unknown, the relatives of the deceased declare some person chosen at random to have murdered him, and retaliate his death upon that person.

[Footnote 17: Ibid. i. 318 sqq.]

I have been obliged to enumerate all these cases for the reason that a theory cannot be satisfactorily refuted unless on its own ground. I may confess at once that I scarcely ever saw an hypothesis vindicated by the aid of more futile evidence. The cases 7 and 16 illustrate just the reverse of "undirected" revenge, and, when we take into consideration the animistic beliefs of savages, present little to astonish us. In case 17 the guilt is certainly imputed to somebody at random, but only when the culprit is unknown. Cases 1, 4, 10 and 12 and perhaps also 11, imply that revenge is taken upon an innocent party in a fit of passion; in cases 1 and 12 the offender himself cannot be got at, in case 10 the man who is knocked on the head appears for the moment as the immediate cause of the grief or indignation evoked, while case 11 exhibits envy combined with extreme ingratitude. In case 9 the anger is chiefly directed against the "guilty" dog, and against the "innocent" one evidently by an association of ideas. Cases 8 and 14 illustrate indemnification for loss of property, and in case 8 the thief himself is specifically mentioned first. In case 15 the revenging attack is made upon the property of those people among whom the child lives, and who may be considered responsible for the loss its maternal clan sustains by the injury. Case 6 merely shows the attempt of a superstitious father to lessen the suffering of his child. As regards case 5, Petitot, who has recorded it, says expressly that the white people were supposed to have caused the epidemic by displeasing the god Tornrark.[18] Case 2 points to a superstitious belief which is interesting enough in itself, but which, so far as I can see, is without any bearing whatever on the point we are discussing. Case 3 looks like a death-offering. The stabbing of an innocent person is mentioned in connection with, or rather as an alternative to, the self-laceration of the mourners, which last has probably a sacrificial character. Moreover, there is in this case no question of a culprit. In case 13, finally, the idea of sacrifice is very conspicuous. Dr. Steinmetz has borrowed his statement from Waitz, whose account is incomplete. Dieffenbach, the original authority, says that the custom in question was called by the Maori taua tapu, i.e., sacred fight, {28} or taua toto, i.e., fight for blood. He describes it as follows:--"If blood has been shed, a party sally forth and kill the first person they fall in with, whether an enemy or belonging to their own tribe; even a brother is sacrificed. If they do not fall in with anybody, the tohunga (that is, the priest) pulls up some grass, throws it into a river, and repeats some incantation. After this ceremony, the killing of a bird, or any living thing that comes in their way, is regarded as sufficient, provided that blood is actually shed. All who participate in such an excursion are tapu, and are not allowed either to smoke or to eat anything but indigenous food."[19] It seems probable that this ceremony was undertaken in order to appease the enraged spirit of the dead,[20] and at the same time it may have been intended to refresh the spirit with blood.[21] The question, however, is, Why was not his death avenged upon the actual culprit? To this Dr. Steinmetz would answer that the deceased was thought to be indiscriminate in his craving for vengeance.[22] But so far

as the resentment of the dead is concerned, the "sacred fight" of the Maoris only seems to illustrate the impulsive character of anger. From Dieffenbach's description of it, it is obvious that the friends of the slain man considered it to be a matter of paramount importance that blood should be shed immediately. If no human being came in their way, an animal was killed, but then an incantation was uttered beforehand. I presume that the reason for this was the terror which the supposed wrath of the dead man's spirit struck into the living, combined perhaps with the idea that it was in immediate need of fresh blood. The Maoris considered all spirits of the dead to be maliciously inclined towards them,[23] and the ghost of a person who had died a violent death was certainly looked upon as especially dangerous. The craving for instantaneous shedding of blood is even more conspicuous in another case which may be appropriately mentioned in this connection. The Aetas of the Philippine Islands, we are told, "do not always {29} wait for the death of the afflicted before they bury him. Immediately after the body has been deposited in the grave, it becomes necessary, according to their usages, that his death should be avenged. The hunters of the tribe go out with their lances and arrows to kill the first living creature they meet with, whether a man, a stag, a wild hog, or a buffalo."[24] Dr. Steinmetz himself quotes some other instances from the same group of islands, in which, when a man dies, his nearest kinsmen go out to requite his death by the death of the first man who comes in their way.[25] It is worth noticing that the Philippine Islanders have the very worst opinion of their ghosts, and believe that these are particularly bloodthirsty soon after death.[26]

[Footnote 18: Petitot, Les Grands Esqimaux, p. 207 sq.]

[Footnote 19: Dieffenbach, Travels in New Zealand, ii. 127.]

[Footnote 20: Cf. ibid. ii. 129.]

[Footnote 21: The latter object is suggested by some funeral ceremonies which will be noticed in a following chapter. Among the Dyaks, "a father who lost his child would go out and kill the first man he met, as a funeral ceremony," believing that he thus provided the deceased with a slave to accompany him to the habitation of souls (Tylor, Primitive Culture, i. 459). Among the Garos, it was formerly the practice, "whenever the death of a great man amongst them occurred, to send out a party of assassins to murder and bring back the head of the first Bengali they met. The victims so immolated would, it was supposed, be acceptable to their gods" (Dalton, Descriptive Ethnology of Bengal, p. 68).]

[Footnote 22: Cf. Steinmetz, op. cit. i. 343.]

[Footnote 23: Taylor, Te Ika a Maui, p. 221.]

[Footnote 24: Earl, Papuans, p. 132.]

[Footnote 25: Steinmetz, op. cit. i. 335 sq.]

[Footnote 26: Blumentritt, 'Der Ahnencultus der Malaien des Philippinen-Archipels' in Mittheilungen der Geogr. Gesellsch. in Wien, xxv. 166 sqq. De Mas, Informe sobre el estado de las Islas filipinas en 1842, Orijen, &c. p. 15.]

Dr. Steinmetz also refers to some statements according to which, among certain Australian tribes, the relatives of a person who dies avenge his death by killing an innocent man.[27] But in these cases the avenged death, though "natural" according to our terminology, is, in the belief of the savages, caused by sorcery, and the revenge is not so indiscriminate as Dr. Steinmetz seems to assume. Among the Wellington tribe, as appears from a statement which he quotes himself, it is the sorcerer's life that must be taken for satisfaction.[28] In New South Wales, after the dead man has been interrogated as to the cause of his death, his kinsmen are resolute in taking vengeance, if they "imagine that they have got sure indications of the perpetrator of the wrong."[29]

Among the Central Australian natives, "not infrequently the dying man will whisper in the ear of a Railtchawa, or medicine man, the name of the man whose magic is killing him," and if this be not done, "there is no difficulty, by some other method, of fixing sooner or later on the guilty party"; but only after the culprit has been revealed by the medicine man is it decided by a council of the old men whether an avenging party is to be arranged or not.[30] Among the aborigines of West Australia, the survivors are "pretty busy in seeking out" the sorcerer who is supposed to have caused the death of their friend.[31]

[Footnote 27: Steinmetz, op. cit. i. 337 sq.]

[Footnote 28: Hale, U.S. Exploring Expedition Vol. VI.--Ethnography and Philology, p. 115; quoted by Steinmetz, op. cit. i. 337.]

[Footnote 29: Fraser, Aborigines of New South Wales, p. 86.]

[Footnote 30: Spencer and Gillen, Native Tribes of Central Australia, p. 476 sq.]

[Footnote 31: Calvert, Aborigines of Western Australia, p. 20 sq.]

{30} To sum up: all the facts which Dr. Steinmetz has adduced as evidence for his hypothesis of an original stage of "undirected" revenge only show that, under certain circumstances, either in a fit of passion, or when the actual offender is unknown or out of reach, revenge may be taken on an innocent being, wholly unconnected with the inflicter of the injury which it is sought to revenge. There is such an intimate connection between the experience of injury and the hostile reaction by which the injured individual gives vent to his passion, that the reaction does not fail to appear even when it misses its aim. Anger, as Seneca said, "does not rage merely against its object, but against every obstacle which it encounters on its way."[32] Many infants, when angry and powerless to hurt others, "strike their heads against doors, posts, walls of houses, and sometimes on the floor."[33] Well known are the "amucks" of the Malays, in which "the desperado assails indiscriminately friend and foe," and, with dishevelled hair and frantic look, murders or wounds all whom he meets without distinction.[34] But all this is not revenge; it is sudden anger or blind rage. Nor is it revenge in the true sense of the word if a person who has been humiliated by his superior retaliates on those under him. It is only the outburst of a wounded "self-feeling," which, when not directed against its proper object, can afford no adequate consolation to a revengeful man.

[Footnote 32: Seneca, De ira, iii. 1.]

[Footnote 33: Stanley Hall, 'A Study of Anger,' in American Jour. of Psychology, x. 554.]

[Footnote 34: Crawfurd, History of the Indian Archipelago, i. 67. Cf. Ellis, 'The Amok of the Malays,' in Jour. of Mental Science, xxxix. 325 sqq. In the Andaman Islands, it is not uncommon for a man "to vent his ill-temper, or show his resentment at any act, by destroying his own property as well as that of his neighbours" (Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 111). Among the Kar Nicobarese, when a quarrel takes place, in serious cases, a man will probably burn his own house down (Kloss, In the Andamans and Nicobars, p. 310). But in these instances it is not certain whether the offended party destroys his own property in blind rage, or with some definite object in view.]

In the institution of the blood-feud some sort of collective responsibility is usually involved.[35] If the {31} offender is of another family than his victim, some of his relatives may have to expiate his deed.[36] If he belongs to another clan, the whole clan may be held responsible for it.[37] And if he is a member of another tribe, the vengeance may be wreaked upon his fellow-tribesmen indiscriminately.[38]

[Footnote 35: Cf. Post, Anfänge des Staats- und Rechtsleben, p. 180; Rée, op. cit. p. 49 sq.; Steinmetz, op. cit. i. ch. vi.]

[Footnote 36: Besides the authorities quoted infra, see Leuschner, in Steinmetz, Rechtsverhältnisse von eingeborenen Völkern in Afrika und Ozeanien, (Bakwiri); ibid. p. 49 (Banaka and Bapuku); Rautanen, ibid. p. 341 (Ondonga); Walter, ibid. p. 390 (natives of Nossi-Bé and Mayotte, near Madagascar); von Langsdorf, Voyages and Travels, i. 132 (Nukahivans); Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 473 (Timorese); Foreman, Philippine Islands, p. 213 (Igorrotes of Luzon); Kovalewsky, in Jour. Anthr. Inst. xxv. 113 (people of Daghestan); Idem, Coutume contemporaine et loi ancienne, p. 248 sq. (Ossetes); Merzbacher, Aus den Hochregionen des Kaukasus, ii. 51 (Khevsurs).]

[Footnote 37: Bridges, in A Voice for South America, xiii. 207 (Fuegians). Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 369. Ridley, in Jour. Anthr. Inst. ii. 268 (Kamilaroi in Australia). Godwin-Austen, ibid. ii. 394 (Garo Hill tribes).]

[Footnote 38: von Martins, Beiträge zur Ethnographie Amerika's, i. 127 sqq. (Brazilian Indians). Crawfurd, op. cit. iii. 124 (natives of Celebes). Kohler, in Zeitschr. f. vgl. Rechtswiss. vii. 383 (Goajiros of Columbia). Ibid. vii. 376 (Papuans of New Guinea). Curr, The Australian Race, i. 70. Scaramucci and Giglioli, 'Notizie sui Danakil,' in Archivio per l'antropologia e la etnologia, xiv. 39. Leuschner, in Steinmetz, Rechtsverhältnisse, p. 23 (Bakwiri). Ibid. p. 49 (Banaka and Bapuku).]

"Among the Fuegians," says Mr. Bridges, "etiquette and custom require that all the relatives of a murdered person should . . . visit their displeasure upon every connection of the manslayers, each personally." The avengers of blood would by no means be satisfied with a party of natives if they should actually deliver up into their hands a manslayer, or kill him themselves, "but would yet exact from all the murderer's friends tribute or infliction of injuries with sticks or stones."[39] Among the Indians of British Columbia and Vancouver Island, "grudges are handed down from father to son for generations, and friendly relations are never free from the risk of being interrupted."[40] Among the Greenlanders, the revenge for a murder generally "costs the executioner himself, his children, cousins, or other relatives their lives; or if these are inaccessible, some other acquaintance in the neighbourhood."[41] Among the Maoris, blood-revenge might be taken on any relative of the homicide, "no matter how distant."[42] In Tana, {32} revenge "is often sought in the death of the brother, or some other near relative of the culprit."[43] Among the Kabyles, "la vengeance peut porter sur chacun des membres de la famille du meurtrier, quel qu'il soit."[44] The Bedouins, according to Burckhardt, "claim the blood not only from the actual homicide, but from all his relations; and it is these claims that constitute the right of thár, or the blood-revenge."[45] Among the people of Ibrim, in Nubia, on the other hand, the same traveller observes, "it is not considered as sufficient to retaliate upon any person within the fifth degree of consanguinity, as among the Bedouins of Arabia; only the brother, son, or first cousin can supply the place of the murderer."[46] Traces of collective responsibility in connection with blood-revenge are found among the Hebrews.[47] It has prevailed, or still prevails, among the Japanese[48] and Coreans,[49] the Persians[50] and Hindus,[51] the ancient Greeks[52] and Teutons.[53] It was a rule among the Welsh[54] and the Scotch in former days,[55] and is so still in Corsica,[56] Albania,[57] and among some of the Southern Slavs.[58] In Montenegro, if a homicide who cannot be caught himself has no relatives, revenge is sometimes taken on some inhabitant of the village or district to which he belongs, or even on a person who only is of the same religion and nationality as the murderer.[59] In Albania, under similar circumstances, the victim may be a person

who has had nothing else to do with the offender than that he has perhaps once been speaking to him.[60]

[Footnote 39: Bridges, in South American Missionary Magazine, xiii. 151 sqq.]

[Footnote 40: Macfie, Vancouver Island and British Columbia, p. 470.]

[Footnote 41: Cranz, History of Greenland, i. 178.]

[Footnote 42: Shortland, Traditions and Superstitions of the New Zealanders, p. 213 sq. Cf. ibid. p. 218 sq.]

[Footnote 43: Turner, Samoa, p. 317.]

[Footnote 44: Hanoteau and Letourneux, La Kabylie, iii. 61.]

[Footnote 45: Burckhardt, Notes on the Bedouins and Wahábys, p. 85. See, also, Layard, Discoveries in the Ruins of Nineveh and Babylon, p. 306; Lane, Manners and Customs of the Modern Egyptians, i. 133.]

[Footnote 46: Burckhardt, Travels in Nubia, p. 128.]

[Footnote 47: 2 Samuel, xiv. 7. Cf. ibid. xxi.]

[Footnote 48: Dautremer, 'The Vendetta or Legal Revenge in Japan,' in Trans. Asiatic Soc. Japan, xiii. 84.]

[Footnote 49: Griffis, Corea, p. 227.]

[Footnote 50: Spiegel, Erânische Alterthumskunde, iii. 687. Polak, Persien, ii. 96.]

[Footnote 51: Dubois, Description of the Character, Manners, and Customs of the People of India, p. 195.]

[Footnote 52: Leist, Alt-arisches Jus Gentium, p. 424.]

[Footnote 53: Gotlands-Lagen, 13.]

[Footnote 54: Walter, Das alte Wales, p. 138.]

[Footnote 55: Mackintosh, History of Civilisation in Scotland, ii. 279.]

[Footnote 56: Gregorovius, Wanderings in Corsica, i. 179.]

[Footnote 57: Gop[vc]evi['c], **Oberalbanien und seine Liga, p. 324 sqq.]

[Footnote 58: Miklosich, 'Die Blutrache bei den Slaven,' in Denkschriften der kaiserl. Akademie d. Wissensch. Philos.-histor. Classe, Vienna, xxxvi. 131, 146 sq. Krauss, Sitte und Brauch der Südslaven, p. 39.]

[Footnote 59: Lago, Memorie sulla Dalmazia, ii. 90.]

[Footnote 60: Gop[vc]evi['c], op. cit. p. 325.]

There is no difficulty in explaining these facts. The following statement made by Mr. Romilly with reference {33} to the Solomon Islanders has, undoubtedly, a much wider application:--"In the cases which call for punishment, the difficulties in the way of capturing the actual culprits are greater than any one, who has not been engaged in this disagreeable work, can imagine."[61] Though it may happen that a manslayer is abandoned by his own people,[62] the system of blood-revenge more often seems to imply, not only that all the members of a group are engaged, more or less effectually, in the act of revenge, but that they mutually protect each other against the avengers. A homicide frequently provokes a war,[63] in which family stands against family, clan against clan, or tribe against tribe. In such cases the whole group take upon themselves the deed of the perpetrator, and any of his fellows, because standing up for him, becomes a proper object of revenge. The guilt extends itself, as it were, in the eyes of the offended party. So, also, any person who lives on friendly terms with the offender, or is supposed to sympathise with him, is liable to arouse a feeling of resentment, and may consequently, in extreme cases, have to expiate his crime. Moreover, because of the close relationship which exists between the members of the sam__e group, the actual culprit will be mortified by any successful attack that the avengers make on his people, and, if he be dead, its painful and humiliating effects may still be supposed to reach

his spirit. "When the offender himself is beyond the reach of direct attack," says Mr. Wilkins, "it is not beneath a Bengali's view to try to wound him through his children or other members of his family."[64] Among the South Slavonians, in a similar case, the avengers of blood first attempt to kill the father, brother, {34} or grown-up son of the murderer, "so as to inflict upon him a very heavy and painful loss"; and only when this has been tried in vain, are more distant relatives attacked.[65] The Bedouins of the Euphrates even prefer killing the chief man among the murderer's relations within the second degree to taking his own life, on the principle, "You have killed my cousin, I will kill yours."[66] And the Californian Nishinam "consider that the keenest and most bitter revenge which a man can take is, not to slay the murderer himself, but his dearest friend."[67] In these instances vengeance is exacted with reference rather to the loss suffered by the survivors than to the injury committed against the murdered man, the culprit being subjected to a deprivation similar to that which he has inflicted himself. So, also, among the Marea, if a commoner is slain by a nobleman, his death is not avenged directly on the slayer, but on some commoner who is subservient to him.[68] If, again, among the Quianganes of Luzon, a noble is killed by a plebeian, another nobleman, of the kin of the murderer, must be killed, while the murderer himself is ignored.[69] If, among the Igorrotes, a man slays a woman of another house, her nearest kinsman endeavours to slay a woman belonging to the household of the homicide, but to the guilty man himself he does nothing.[70] In all these cases the culprit is not lost sight of; vengeance is invariably wreaked upon somebody connected with him. But any consideration of guilt or innocence is overshadowed by the blind subordination to that powerful rule which requires strict equivalence between injury and punishment--an eye for an eye and a tooth for a tooth--and which, when strained to the utmost, cannot allow the life of a man to be sacrificed for that of a woman, or the life of a nobleman to be {35} sacrificed for that of a commoner, or the life of a commoner to expiate the death of a noble. This rule, as we shall see later on, is not suggested by revenge itself, but is due to the influence of other factors which intermingle with this feeling, and help, with it, to determine the action.

[Footnote 61: Romilly, Western Pacific and New Guinea, p. 81. Cf. Friedrichs, 'Mensch und Person,' in Das Ausland, 1891, p. 299.]

[Footnote 62: See, e.g., Scott Robertson, The Káfirs of the Hindu-Kush, p. 440.]

[Footnote 63: Dr. Post's statement (Die Geschlechtsgenossenschaft der Urzeit, p. 156) that the blood-revenge "characterisirt sich . . . ganz und gar als ein Privatkrieg zwischen zwei Geschlechtsgenossenschaften," however, is not quite correct in this unqualified form, as may be seen, e.g., from von Martius's description of the blood-revenge of the Brazilian Indians, op. cit. i. 127 sqq.]

[Footnote 64: Wilkins, Modern Hinduism, p. 411.]

[Footnote 65: Krauss, op. cit. p. 39.]

[Footnote 66: Blunt, Bedouin Tribes of the Euphrates, ii. 206 sq.]

[Footnote 67: Powers, Tribes of California, p. 320.]

[Footnote 68: Munzinger, Ostafrikanische Studien, p. 243.]

[Footnote 69: Blumentritt, quoted by Spencer, Principles of Ethics, i. 370 sq.]

[Footnote 70: Jagor, Travels in the Philippines, p. 213.]

Nevertheless, the strong tendency to discrimination which characterises resentment, is not wholly lost even behind the veil of common responsibility. Mr. Howitt has come to the conclusion that, among the Australian Kurnai, if a homicide has been committed by an alien tribe, the feud "cannot be satisfied but by the death of the offender," although it is carried on, not against him alone, but against the whole group of which he is a member.

[71] It is only "if they fail to secure the guilty person" that the natives of Western Victoria consider it their duty to kill one of his nearest relatives.[72] Concerning the West Australian aborigines, Sir George Grey observes, "The first great principle with regard to punishments is, that all the relations of a culprit, in the event of his not being found, are implicated in his guilt; if, therefore, the principal cannot be caught, his brother or father will answer nearly as well, and failing these, any other male or female relative, who may fall into the hands of the avenging party."[73] Among the Papuans of the Tami Islands, revenge may be taken on some other member of the murderer's family only if it is absolutely impossible to catch the guilty person himself.[74] That the blood-revenge is in the first place directed against the malefactor, and against some relative of his only if he cannot be found out, is expressly stated with reference to various peoples in different parts of the world;[75] and it is {36} probable that much more to the same effect might have been discovered, if the observers of savage life had paid more attention to this particular aspect of the matter. Among the Fuegians, the most serious riots take place when a manslayer, whom some one wishes to punish, takes refuge with his relations or friends.[76] Von Martius remarks of the Brazilian Indians in general that, even when an intertribal war ensues from the committing of homicide, the nearest relations of the killed person endeavour, if possible, to destroy the culprit himself and his family.[77] With reference to the Creek Indians, Mr. Hawkins says that though, if a murderer flies and cannot be caught, they will take revenge upon some innocent individual belonging to his family, they are "generally earnest of themselves, in their endeavours to put the guilty to death."[78] The same is decidedly the case in those parts of Morocco where the blood-feud still prevails.

[Footnote 71: Fison and Howitt, Kamilaroi and Kurnai, p. 221.]

[Footnote 72: Dawson, Australian Aborigines, p. 71.]

[Footnote 73: Grey, Journals of Expeditions, ii. 239.]

[Footnote 74: Bamler, quoted by Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 380.]

[Footnote 75: Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 434 (natives of Wetter). Chalmers, Pioneering in New Guinea, p. 179. Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 446 (some Marshall Islanders). Merker, quoted by Kohler, ibid. xv. 53 sq. (Wadshagga). Brett, Indian Tribes of Guiana, p. 357. Bernau, Missionary Labours in British Guiana, p. 57. Dall, Alaska, p. 416. Boas, 'The Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 582. Jacob, Leben der vorislâmischen Beduinen, p. 144. Kovalewsky, Coutume contemporaine, p. 248 (Ossetes). Popovi['c], Recht und Gericht in Montenegro, p. 69; Lago, op. cit. ii. 90 (Montenegrines). Miklosich, loc. cit. p. 131 (Slavs). Wilda, Strafrecht der Germanen, p. 173 sq. (ancient Teutons).]

[Footnote 76: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 375.]

[Footnote 77: von Martius, op. cit. i. 128.]

[Footnote 78: Hawkins, in Trans. American Ethn. Soc. iii. 67.]

Not only has Dr. Steinmetz failed to prove his hypothesis that revenge was originally "undirected," but this hypothesis is quite opposed to all the most probable ideas we can form with regard to the revenge of early man. For my own part I am convinced that we may obtain a good deal of knowledge about the primitive condition of the human race, but not by studying modern savages only. I have dealt with this question at some length in another place,[79] and wish now merely to point out that those general physical and psychical qualities which are not only common to all races of mankind, but which are shared by them with the animals most allied to man, may be assumed to have been present also in the earlier stages of {37} human development. Now, concerning revenge among animals, more especially among monkeys, many anecdotes have been told by

trustworthy authorities, and in every case the revenge has been clearly directed against the offender.

[Footnote 79: History of Human Marriage, p. 3 sqq.]

On the authority of a zoologist "whose scrupulous accuracy was known to many persons," Darwin relates the following story:--"At the Cape of Good Hope an officer had often plagued a certain baboon, and the animal, seeing him approaching one Sunday for parade, poured water into a hole and hastily made some thick mud, which he skilfully dashed over the officer as he passed by, to the amusement of many bystanders. For long afterwards the baboon rejoiced and triumphed whenever he saw his victim."[80] Prof. Romanes considers this to be a good instance of "what may be called brooding resentment deliberately preparing a satisfactory revenge."[81] This, I think, is to put into the statement somewhat more than it really contains; but at all events it records a case of revenge, in the sense in which Dr. Steinmetz uses the word. The same may be said of other instances mentioned by so accurate observers as Brehm and Rengger in their descriptions of African and American monkeys, and of various examples of resentment in elephants and even in camels.[82] According to Palgrave, the camel possesses the passion of revenge, and in carrying it out "shows an unexpected degree of far-thoughted malice, united meanwhile with all the cold stupidity of his usual character." The following instance, which occurred in a small Arabian town, deserves to be quoted, since it seems to have escaped the notice of the students of animal psychology. "A lad of about fourteen had conducted a large camel, laden with wood, from that very village to another at half an hour's distance or so. As the {38} animal loitered or turned out of the way, its conductor struck it repeatedly, and harder than it seems to have thought he had a right to do. But not finding the occasion favourable for taking immediate quits, it 'bode its time'; nor was that time long in coming. A few days later the same lad had to re-conduct the beast, but unladen, to his own village. When they were about half way on the road, and at some distance from any habitation, the camel suddenly stopped, looked deliberately round in every direction, to assure itself that no one was within sight, and, finding the road far and near clear of passers-by, made a step forward, seized the unlucky boy's head in its monstrous mouth, and lifting him up in the air flung him down again on the earth with the upper part of his skull completely torn off, and his brains scattered on the ground."[83] We are also told that elephants, though very sensitive to insults, are never provoked, even under the most painful or distracting circumstances, to hurt those from whom they have received no harm.[84] Sometimes animals show a remarkable degree of discrimination in finding out the proper object for their resentment. It is hardly surprising to read that a baboon, which was molested in its cage with a stick, tried to seize, not the stick, but the hand of its tormentor.[85] More interesting is the "revenge" which an elephant at Versailles inflicted upon a certain artist who had employed his servant to tease the animal by making a feint of throwing apples into its mouth:--"This conduct enraged the elephant; and, as if it knew that the painter was the cause of this teasing impertinence, instead of attacking the servant, it eyed the master, and squirted at him from its trunk such a quantity of water as spoiled the paper on which he was drawing."[86]

[Footnote 80: Darwin, Descent of Man, p. 69.]

[Footnote 81: Romanes, Animal Intelligence, p. 478.]

[Footnote 82: Brehm, Thierleben, i. 156. Idem, From North Pole to Equator, p. 305. Rengger (Naturgeschichte der Säugethiere von Paraguay, p. 52) gives the following information about the Cay:--"Fürchtet er . . . seinen Gegner, so nimmt er seine Zuflucht zur Verstellung, und sucht sich erst dann an ihm zu rächen, wenn er ihn unvermuthet

überfallen kann. So hatte ich einen Cay, welcher mehrere Personen die ihn oft auf eine grobe Art geneckt hatten, in einem Augenblicke lass, wo sie im besten Vernehmen mit ihm zu sein glaubten. Nach verübter That kletterte er schnell auf einen hohen Balken, wo man ihm nicht beikommen konnte, und grinste schadenfroh den Gegenstand seiner Rache an." See, moreover, Watson, The Reasoning Power in Animals, especially pp. 20, 21, 24, 156 sq.; Romanes, op. cit. p. 387 sqq.; but also Morgan, Animal Life and Intelligence, p. 401 sq.]

[Footnote 83: Palgrave, Narrative of a Year's Journey through Central and Eastern Arabia, i. 40.]

[Footnote 84: Watson, op. cit. p. 26 sq.]

[Footnote 85: Aas, Sjaeleliv og intelligens hos Dyr, i. 72.]

[Footnote 86: Smellie, Philosophy of Natural History, i. 448.]

I find it inconceivable that anybody, in the face of such facts, could still believe that the revenge of early man was at first essentially indiscriminating, and became gradually discriminating from considerations of social expediency. But by this I certainly do not mean to deny that violation of the "self-feeling" is an extremely common and powerful incentive to resentment. It is so {39} among savage[87] and civilised men alike; even dogs and monkeys get angry when laughed at. Nothing more easily rouses in us anger and a desire for retaliation, nothing is more difficult to forgive, than an act which indicates contempt, or disregard of our feelings. Long after the bodily pain of a blow has ceased, the mental suffering caused by the insult remains and calls for vengeance. This is an old truth often told. According to Seneca, "the greater part of the things which enrage us are insults, not injuries."[88] Plutarch observes that, though different persons fall into anger for different reasons, yet in nearly all of them is to be found the idea of their being despised or neglected.[89] "Contempt," says Bacon, "is that which putteth an edge upon anger, as much, or more, than the hurt itself."[90] But, indeed, there is no need to resort to different principles in order to explain the resentment excited by different kinds of pain. In all cases revenge implies, primordially and essentially, a desire to cause pain or destruction in return for hurt suffered, whether the hurt be bodily or mental; and, if to this impulse is added a desire to enhance the wounded "self-feeling," that does not interfere with the true nature of the primary feeling of revenge. There are genuine specimens of resentment without the co-operation of self-regarding pride;[91] and, on the other hand, the reaction of the wounded "self-feeling" is not necessarily, in the first place, concerned with the infliction of pain. If a person has written a bad book which is severely criticised, he may desire to repair his reputation by writing a better book, not by humiliating his critics; and if he attempts the latter rather than the former, he does so, not merely in order to enhance his "self-feeling," {40} but because he is driven on by revenge. Dr. Boas tells us that the British Columbia Indian, when his feelings are hurt, sits down or lies down sullenly for days without partaking of food, and that, "when he rises his first thought is, not how to take revenge, but to show that he is superior to his adversary.[92]

[Footnote 87: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 270 (Hudson Bay Indians). Georgi, Russia, iii. 205 (Aleuts). Sarasin, Ergebnisse naturwiss. Forschungen auf Ceylon, iii. 537 (Veddahs). von Wrede, Reise in [H.]adhramaut, p. 157 (Bedouins). Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 211.]

[Footnote 88: Seneca, De ira, iii. 28.]

[Footnote 89: Plutarch, De cohibenda ira, 12.]

[Footnote 90: Bacon, 'Essay LVII. Of Anger,' in Essays, p. 514.]

[Footnote 91: Bain, Emotions and the Will, p. 177.]

[Footnote 92: Boas, First General Report on the Indians of British Columbia, read at the Newcastle-upon-Tyne meeting of the British Association, 1889, p. 19.]

In the feeling of gratification which results from successful resentment, the pleasure of power or superiority also may form a very important element, but it is never the exclusive element.[93] As the satisfaction of every desire is accompanied by pleasure, so the satisfaction of the desire involved in resentment gives a pleasure by itself. The angry or revengeful man who succeeds in what he aims at, delights in the pain he inflicts for the very reason that he desired to inflict it.

[Footnote 93: Cf. Ribot, op. cit. p. 221 sq.]

Revenge thus only forms a link in a chain of emotional phenomena, for which "non-moral resentment" may be used as a common name. In this long chain there is no missing link. Anger without any definite desire to cause suffering, anger with such a desire, more deliberate resentment--all these phenomena are so inseparably connected with each other that no one can say where one passes into another. Their common characteristic is that they are mental states marked by an aggressive attitude towards the cause of pain.

As to their origin, the evolutionist can hardly entertain a doubt. Resentment, like protective reflex action, out of which it has gradually developed, is a means of protection for the animal. Its intrinsic object is to remove a cause of pain, or, what is the same, a cause of danger. Two different attitudes may be taken by an animal towards another which has made it feel pain: it may either shun or attack its enemy. In the former case its action is prompted by fear, in the latter by anger, and it depends on the circumstances which of these emotions is the actual {41} determinant. Both of them are of supreme importance for the preservation of the species, and may consequently be regarded as elements in the animal's mental constitution which have been acquired by means of natural selection in the struggle for existence. We have already noted that, originally, the impulse of attacking the enemy could hardly have been guided by a representation of the enemy as suffering. But, as a successful attack is necessarily accompanied by such suffering, the desire to produce it naturally, with the increase of intelligence, entered as an important element in resentment. The need for protection thus lies at the foundation of resentment in all its forms.

This view is not new. More than one hundred and fifty years before Darwin, Shaftesbury wrote of resentment in these words:--"Notwithstanding its immediate aim be indeed the ill or punishment of another, yet it is plainly of the sort of those [affections] which tend to the advantage and interest of the self-system, the animal himself; and is withal in other respects contributing to the good and interest of the species."[94] A similar opinion is expressed by Butler, according to whom the reason and end for which man was made liable to anger is, that he might be better qualified to prevent and resist violence and opposition, while deliberate resentment "is to be considered as a weapon, put into our hands by nature, against injury, injustice, and cruelty."[95] Adam Smith, also, believes that resentment has "been given us by nature for defence, and for defence only," as being "the safeguard of justice and the security of innocence."[96] Exactly the same view is taken by several modern evolutionists as regards the "end" of resentment, though they, of course, do not rest contented with saying that this feeling has been given us by nature, but try to explain in what way it has developed. "Among members of the same species," says Mr. Herbert Spencer, "those individuals which have not, in any considerable degree, resented aggressions, must have ever tended to disappear, and to have left behind those which have with some effect made counter-aggressions."[97] Mr.

{42} Hiram Stanley, too, quoting Junker's statement regarding the pigmies of Africa, that "they are much feared for their revengeful spirit,"[98] observes that, "other things being equal, the most revengeful are the most successful in the struggle for self-conservation and self-furtherance."[99] This evolutionist theory of revenge has been criticised by Dr. Steinmetz, but in my opinion with no success. He remarks that the feeling of revenge could not have been of any use to the animal, even though the act of vengeance might have been useful.[100] But this way of reasoning, according to which the whole mental life would be excluded from the influence of natural selection, is based on a false conception of the relation between mind and body, and, ultimately, on a wrong idea of cause and effect.

[Footnote 94: Shaftesbury, 'Inquiry concerning Virtue or Merit,' ii. 2. 2, in Characteristicks, ii. 145.]

[Footnote 95: Butler, 'Sermon VIII.--Upon Resentment,' op. cit. p. 457.]

[Footnote 96: Adam Smith, Theory of Moral Sentiments, p. 113.]

[Footnote 97: Spencer, Principles of Ethics, i. 361.]

[Footnote 98: Junker, Travels in Africa during the Years 1882-1886, p. 85.]

[Footnote 99: Hiram Stanley, op. cit. p. 180. Cf. also Guyau, Esquisse d'une Morale sans obligation ni sanction, p. 162 sq.]

[Footnote 100: Steinmetz, Ethnol. Studien, &c. i. 135.]

From non-moral resentment we shall pass to the emotion of moral indignation. That this is closely connected with anger is indicated by language itself: we may feel indignant on other than moral grounds, and we may feel "righteous anger." The relationship between these emotions is also conspicuous in their outward expressions, which, when the emotion is strong enough, present similar characteristics. When possessed with strong moral indignation, a person looks as if he were angry,[101] and so he really is, in the wider sense of the term. This relationship has not seldom been recognised by moralists, though it has more often been forgotten. Some two thousand years ago Polybius wrote:--"If a man has been rescued or helped in an hour of danger, and, instead of showing gratitude to his preserver, seeks to do him harm, it is clearly probable that the rest will be displeased and offended with him when they know it, sympathising with their neighbour and imagining themselves in his case. Hence arises a notion in every breast of the meaning and theory of duty, which is in fact the beginning and end of justice."[102] Hartley regarded resentment and gratitude {43} as "intimately connected with the moral sense."[103] Adam Smith made the resentment of "the impartial spectator" a corner-stone of his theory of the moral sentiments.[104] Butler found the essential difference between sudden and deliberate anger to consist in this, that the "natural proper end" of the latter is "to remedy or prevent only that harm which implies, or is supposed to imply, injury or moral wrong."[105] And to Stuart Mill, the sentiment of justice, at least, appeared to be derived from "the animal desire to repel or retaliate a hurt or damage to oneself, or to those with whom one sympathises."[106]

[Footnote 101: Notice, for instance, Michelangelo's Moses.]

[Footnote 102: Polybius, Historiae, vi. 6.]

[Footnote 103: Hartley, Observations on Man, i. 520.]

[Footnote 104: Adam Smith, op. cit. passim.]

[Footnote 105: Butler, op. cit. p. 458.]

[Footnote 106: Stuart Mill, Utilitarianism, p. 79.]

Moral indignation, or disapproval, like non-moral resentment, is a reactionary attitude of mind directed towards the cause of inflicted pain. In a subsequent chapter we shall see that both are in a similar way determined by the answer given to the question,

What is the cause of the pain?--a fact which, whilst strongly confirming their affinity, throws light upon some of the chief characteristics of the moral consciousness. Nay, moral indignation resembles non-moral resentment even in this respect that, in various cases, the aggressive reaction turns against innocent persons who did not commit the injury which gave rise to it. The collective responsibility assumed in certain types of blood-revenge is an evidence of this in so far as such revenge is not merely a matter of individual practice, but has the sanction of custom. And even punishment, which, in the strict sense of the term, is a more definite expression of public, or moral, indignation than the custom of private retaliation, is often similarly indiscriminate.

Like revenge, and for similar reasons, punishment sometimes falls on a relative of the culprit in cases when he himself cannot be caught. In Fiji, says Mr. Williams, "the virtue of vicarious suffering is recognised." It once happened that a warrior left his charged musket so {44} carelessly that it went off and killed and wounded some individuals, whereupon he fled himself. His case was judged worthy of death by the chiefs of the tribe, and the offender's aged father was in consequence seized and strangled.[107]

[Footnote 107: Williams and Calvert, Fiji, p. 24.]

In other cases an innocent person is killed for the offence of another, not because the offender cannot be seized, but with a view to inflicting on him a loss, according to the rule of like for like. The punishment, then, is meant for the culprit, though the chief sufferer is somebody else. According to the Laws of [Hv]ammurabi, "if a builder has built a house for a man and has not made strong his work, and the house he built has fallen, and he has caused the death of the owner, that builder shall be put to death." But "if he has caused the son of the owner of the house to die, one shall put to death the son of that builder."[108] Similarly, "if a man has struck a gentleman's daughter and caused her to drop what is in her womb, he shall pay ten shekels of silver for what was in her womb." But "if that woman has died, one shall put to death his daughter."[109] The following custom which Mr. Gason reports, as existing among the Australian Dieyerie, in case a man should unintentionally kill another in a fight, is probably based on a similar principle:--"Should the offender have an elder brother, then he must die in his place; or, should he have no elder brother, then his father must be his substitute; but in case he has no male relative to suffer for him, then he himself must die."[110]

[Footnote 108: Laws of [Hv]ammurabi, 229 sq.]

[Footnote 109: Ibid. 209 sq.]

[Footnote 110: Gason, 'Manners and Customs of the Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 265.]

This extreme disregard of the suffering of guiltless persons is probably not so much due to downright callousness as to a strong feeling of family solidarity. The same feeling is very obvious in those numerous instances in which both the criminal himself and members of his family are implicated in the punishment.

{45} Among the Atkha Aleuts, the punishment for certain offences was sometimes carried so far as to include the wife of the offender.[111] Among the E[(w]e-speaking peoples of the Slave Coast, "a person found guilty of having procured, or endeavoured to procure, the death of another through the agency of the gods Huntin and Loko, is put to death, and his family is generally enslaved as well."[112] Among the Matabele, if a person is declared by the witch-doctor to have caused injury to somebody else by making charms, he "is immediately put to death, his wife and the whole of his family sharing his fate."[113] Among the Shilluks of the White Nile, "murder is punished with death to the criminal and the forfeiture of wives and children to the Sultan, who retains them in bondage."[114] Among the Kafirs, in cases of trespasses against the king, the

sentence falls not only on the individual, but on his whole house.[115] In Madagascar, the code of native laws, up to recent time, reduced for many offences the culprit's wife and children to slavery.[116] In some parts of the Malay Archipelago, according to Crawfurd, a father and child are considered almost inseparable, hence when the one is punished the other seldom escapes.[117] In Bali, the law prescribes that for certain kinds of sorcery the offender shall be put to death. It adds, "If the matter be very clearly made out, let the punishment of death be extended to his father and his mother, to his children and to his grand-children; let none of them live; let none connected with one so guilty remain on the face of the land, and let their goods be in like manner confiscated."[118]

[Footnote 111: Petroff, 'Report on Alaska,' in Tenth Census of the United States, p. 158.]

[Footnote 112: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 225.]

[Footnote 113: Decle, Three Years in Savage Africa, p. 153.]

[Footnote 114: Petherick, Travels in Central Africa, ii. 3.]

[Footnote 115: Ratzel, History of Mankind, ii. 445.]

[Footnote 116: Sibree, The Great African Island, p. 181. Ellis, History of Madagascar, i. 174, 175, 193.]

[Footnote 117: Crawfurd, op. cit. i. 82.]

[Footnote 118: Ibid. iii. 138.]

The Chinese doctrine of responsibility is to a great extent based upon family solidarity; in great crimes all the male relatives of the offender are held responsible for his deed. Every male relative, of whatever degree, who may be dwelling under the roof of a man guilty of treason, is doomed to death, with the exception of young boys, who are allowed their lives, but on the condition that they are made eunuchs for service in the imperial palace.[119] In ancient Mexico, traitors and conspirators were not only themselves killed, but their children and relatives {46} were made slaves to the fourth generation.[120] According to an Athenian law, a man who committed sacrilege or betrayed his country was banished with all his children.[121] Aristotle mentions a case of sacrilege in which "the bones of the guilty dead were disentombed and cast beyond the borders of Attica; the living clan were condemned to perpetual exile, and the city was subsequently purified."[122] The Macedonian law involved in punishment the kindred of conspirators against the monarch.[123] Dionysius of Halicarnassus states that some of the Greeks "think it reasonable to put to death the sons of tyrants together with their fathers, whereas others punish them with perpetual banishment"; and he contrasts this with the Roman principle that "the sons shall be exempted from all punishment, whose fathers are offenders, whether they happen to be the sons of tyrants, of parricides, or of traitors."[124] But after the end of the Marsic, and civil wars, this rule was transgressed; [125] and later on Arcadius, though expressly ordaining that the punishment of the crime shall extend to the criminal alone,[126] took a different view of the punishment for treason. By a special extension of his imperial clemency, he allows the sons of the criminal to live, although in strict justice, being tainted with hereditary guilt, they ought to suffer the punishment of their father. But they shall be incapable of inheritance; they shall be abandoned to the extreme of poverty and perpetual indigence; they shall be excluded from all honours and from the participation of religious rites; the infamy of their father shall ever attend them, and such shall be the misery of their condition, that life shall be a punishment and death a comfort.[127] Among the Anglo-Saxons, before the time of Cnut, the child, even the infant in the cradle, was liable to be sold into slavery for the payment of penalties incurred by the father, being "held by the covetous to be

equally guilty as if it had discretion."[128] Even later, the child of an outlaw, following the condition of the father, also became an outlaw; and this grievance was only partly remedied by Edward the Confessor, who relieved from the consequences of the father's outlawry such children as were born before he was {47} outlawed, but not such as were born afterwards.[129] During the Middle Ages it was the invariable rule to confiscate the entire property of an impenitent heretic, a rule which was justified on the ground that his crime is so great that something of his impurity falls upon all related to him.[130] The Pope Alexander IV. also excluded the descendants of an heretic to the second generation from all offices in the Church.[131] Owing to religious influence, illegitimate children were not only deprived of the title to inheritance, but they were treated by some law-books as almost rightless beings, on a par with robbers and thieves.[132] If a person committed suicide, his goods were confiscated, and, according to a French mediæval law, his wife was besides deprived of her own private property.[133] Even in the latter half of the eighteenth century, in France, in the case of an attempt made against the life of the king, the whole family of the criminal was banished.[134] Nay, in various European countries, up to quite recent times--in England till 1870--forfeiture of property has been the punishment prescribed for certain crimes, including suicide;[135] which means, if not actually the imposition of penalties on the survivors in a case where the culprit himself is out of reach, at least a gross disregard of their ordinary rights of property. It is hardly necessary to point out how often, in the very society in which we live, "social punishments" are inflicted upon children for their father's wrongs.

[Footnote 119: Douglas, Society in China, p. 71 sq. Ta Tsing Leu Lee, sec. ccliv. p. 270.]

[Footnote 120: Bancroft, Native Races of the Pacific States, ii. 459.]

[Footnote 121: Meursius, Themis Attica, ii. 2, in Gronovius, Thesaurus Graecarum Antiquitatum, v. 1968.]

[Footnote 122: Aristotle, De republica Atheniensium 1. Cf. ibid. 20.]

[Footnote 123: Curtius Rufus, De gestis Alexandri Magni, vi. 11. 20.]

[Footnote 124: Dionysius of Halicarnassus, Antiquitates Romanae, viii. 80.]

[Footnote 125: Ibid. viii. 80.]

[Footnote 126: Codex Iustinianus, ix. 47. 22.]

[Footnote 127: Ibid. ix. 8. 5.]

[Footnote 128: Laws of Cnut, ii. 77. Cf. Lappenberg, History of England under the Anglo-Saxon Kings, ii. 414; Wilda, op. cit. p. 906.]

[Footnote 129: Leges Edwardi Confessoris, 19.]

[Footnote 130: Lecky, History of Rationalism in Europe, ii. 36, n. 1. Eicken, Geschichte und System der mittelalterlichen Weltanschauung, p. 572 sq. Paramo, De origine et progressu Sancti Inquisitionis p. 587 sq.]

[Footnote 131: Eicken, op. cit. p. 573.]

[Footnote 132: Ibid. p. 573.]

[Footnote 133: Du Boys, Histoire du droit criminel des peuples modernes, ii. 236.]

[Footnote 134: Hertz, Voltaire und die französische Strafrechtspflege im achtzehnten Jahrhundert, p. 27.]

[Footnote 135: Stephen, History of the Criminal Law of England, i. 487 sq.; iii. 105.]

For the explanation of these facts we have to remember what has been said before about collective responsibility in the case of revenge. Speaking of the Chinese doctrine of family solidarity, Dr. de Groot observes that, "under the influence of this doctrine, families, not men individually, came to be regarded, from the Government's point of view, as the smallest particles, the molecules of the nation, each individual being swallowed up in the circle of his kinsfolk."[136] Such a doctrine assumes that the other

members of the family-group are, in a way, accessories {48} to any crime committed by a fellow-member. "Human nature," says Lord Kames, "is not so perverse, as without veil or disguise to punish a person acknowledged to be innocent. An irregular bias of imagination, which extends the qualities of the principal to its accessories, paves the way to that unjust practice. This bias, strengthened by indignation against an atrocious criminal, leads the mind hastily to conclude, that all his connections are partakers of his guilt."[137] Among the ancients we also meet with a strong belief that, according to the course of nature, wicked fathers have wicked sons. "That which is begot," says Plutarch, "is not, like some production of art unlike the begetter, for it proceeds from him, and is not merely produced by him, so that it appropriately receives his share, whether that be honour or punishment."[138] To destroy, or to make harmless, the family of an offender may be, not only an act of retaliation, but a precaution; according to an old Greek adage, "a man is a fool if he kills the father and leaves the sons alive."[139] This especially holds good for treason, which generally suggests accomplices; and of all crimes for which penalties are imposed upon other individuals besides the culprit, treason is probably the most common. This crime is also particularly apt to evoke the hatred of those who have the power to punish, hence the punishment of it, being closely allied to an act of revenge, is often inflicted without due discrimination. Moreover, by being extended to the criminal's family, the punishment falls more heavily upon himself as well. Again, in case the crime is of a sacrilegious character, it is supposed to pollute everybody connected with the criminal, and even the whole community where he dwells.

[Footnote 136: de Groot, Religious System of China (vol. ii. book) i. 539.]

[Footnote 137: Kames, Sketches of the History of Man, iv. 148.]

[Footnote 138: Plutarch, De sera numinis vindicta, 16. Cf. Dionysius of Halicarnassus, op. cit. viii. 80.]

[Footnote 139: Schmidt, Ethik der alten Griechen, ii. 126.]

In their administration of justice, gods are still more indiscriminate than men. They hold the individual responsible for the whole to which he belongs. They {49} punish the community for the sins of one of its members. They visit the iniquity of the fathers and forefathers upon the children and descendants.

The Sibuyaus, a tribe belonging to the Sea Dyaks, "are of opinion that an unmarried girl proving with child must be offensive to the superior powers, who, instead of always chastising the individual, punish the tribe by misfortunes happening to its members. They, therefore, on the discovery of the pregnancy fine the lovers, and sacrifice a pig to propitiate offended Heaven, and to avert that sickness or those misfortunes that might otherwise follow; and they inflict heavy mulcts for every one who may have suffered from any severe accident, or who may have been drowned within a month before the religious atonement was made."[140] According to Chinese beliefs, whole kingdoms are punished for the conduct of their rulers by spirits who act as avengers with orders or approval from the Tao, or Heaven.[141] Prevalent opinion in China, continuously inspired anew by literature of all times and ages, further admits that spiritual vengeance may come down upon the culprit's offspring in the form of disease or death.[142] When a maimed or deformed child is born the Japanese say that its parents or ancestors must have committed some great sin.[143] The Vedic people ask Varuna to forgive the wrongs committed by their fathers.[144] Says the poet:--"What we ourselves have sinned in mercy pardon; my own misdeeds do thou, O god, take from me, and for another's sin let me not suffer."[145] According to the ancient Greek theory of divine retribution, the community has to suffer for the sins of some of its members, children for the sins of their fathers.[146] Hesiod says that often a whole town is punished with famine,

pestilence, barrenness of its women, or loss of its army or vessels for the misdeeds of a single individual.[147] Cr[oe]sus atoned by the forfeiture of his kingdom for the crime of Gyges, his fifth ancestor, who had murdered his master and usurped his throne.[148] Cytissorus brought down the anger of gods upon his descendants by {50} rescuing Athamas, whom the Achaians intended to offer up as an expiatory sacrifice on behalf of their country.[149] When hearing of the death of his wife, Theseus exclaims, "This must be a heaven-sent calamity in consequence of the sins of an ancestor, which from some remote source I am bringing on myself."[150] According to Hebrew notions, sin affects the nation through the individual and entails guilt on succeeding generations.[151] The anger of the Lord is kindled against the children of Israel on account of Achan's sin.[152] The sin of the sons of Eli is visited on his whole house from generation to generation.[153] Because Saul has slain the Gibeonites, the Lord sends, in the days of David, a three years' famine, which ceases only when seven of Saul's sons are hanged.[154] The sins of Manasseh are expiated even by the better generation under Josiah.[155] The notion of a jealous God who visits the iniquity of the fathers upon the children unto the third and fourth generation of them that hate Him,[156] is also frequently met with in the Old Testament Apocrypha. "The inheritance of sinners' children shall perish, and their posterity shall have a perpetual reproach."[157] "The seed of an unrighteous bed shall be rooted out."[158] The same idea has survived among Christian peoples. It was referred to in Canon Law as a principle to be imitated by human justice,[159] and by Innocent III. in justification of a bull which authorised the confiscation of the goods of heretics.[160] Up to quite recent times it was a common belief in Scotland that the punishment of the cruelty, oppression, or misconduct of an individual descended as a curse on his children to the third and fourth generation. It was not confined to the common people; "all ranks were influenced by it; and many believed that if the curse did not fall upon the first or second generation it would inevitably descend upon the succeeding."[161] In the dogma that the whole human race is condemned on {51} account of the sin of its first parents, the doctrine of collective responsibility has reached its pitch.

[Footnote 140: St. John, Life in the Forests of the Far East, i. 63.]

[Footnote 141: de Groot, op. cit. (vol. iv. book) ii. 432, 435. Davis, China, ii. 34 sq.]

[Footnote 142: de Groot, op. cit. (vol. iv. book) ii. 452.]

[Footnote 143: Griffis, Mikado's Empire, p. 472.]

[Footnote 144: Rig-Veda, vii. 86. 5. Cf. Atharva-Veda, v. 30. 4; x. 3. 8.]

[Footnote 145: Rig-Veda, ii. 28. 9. Cf. ibid. vi. 51. 7; vii. 52. 2.]

[Footnote 146: Nägelsbach, Nachhomerische Theologie des griechischen Volksglaubens, p. 34 sq. Schmidt, op. cit. i. 67 sqq. Farnell, Cults of the Greek States, i. 76 sq.]

[Footnote 147: Hesiod, Opera et dies, 240 sqq.]

[Footnote 148: Herodotus, i. 91.]

[Footnote 149: Ibid. vii. 197.]

[Footnote 150: Euripides, Hippolytus, 831 sq.]

[Footnote 151: Oehler, Theology of the Old Testament, i. 236. Dorner, System of Christian Doctrine, ii. 325. Montefiore, Hibbert Lectures, p. 103. Robertson Smith, Religion of the Semites, p. 421. Schultz, Old Testament Theology, ii. 308. Bernard, 'Sin,' in Hastings, Dictionary of the Bible, iv. 530, 534.]

[Footnote 152: Joshua, vii. 1.]

[Footnote 153: 1 Samuel, ii. 27 sqq.]

[Footnote 154: 2 Samuel, xxi. 1 sqq.]

[Footnote 155: Deuteronomy, i. 37; iii. 26; iv. 21. 2 Kings, xxiii. 26; xxiv. 3. Jeremiah, xv. 4 sqq.]

[Footnote 156: Exodus, xx. 5; xxiv. 7, Numbers, xiv. 18. Deuteronomy, v. 9. Cf. Leviticus, xxvi. 39.]

[Footnote 157: Ecclesiasticus, xli. 6. Cf. ibid. xvi. 4; xli. 5, 7 sqq.]

[Footnote 158: Wisdom of Solomon, iii. 16. Cf. ibid. iii. 12, 13, 17 sqq.]

[Footnote 159: Eicken, op. cit. p. 572.]

[Footnote 160: Lecky, History of Rationalism in Europe, ii. 37 n.]

[Footnote 161: Stewart, Sketches of the Character, &c., of the Highlanders of Scotland, p. 127.]

Men originally attribute to their gods mental qualities similar to their own, and imagine them to be no less fierce and vindictive than they are themselves. Thus the retribution of a god is, in many cases, nothing but an outburst of sudden anger, or an act of private revenge, and as such particularly liable to comprise, not only the offender himself, but those connected with him. Plutarch even argued that the punishments inflicted by gods on cities for ill-deeds committed by their former inhabitants allowed of a just defence, on the ground that a city is "one continuous entity, a sort of creature that never changes from age, or becomes different by time, but is ever sympathetic with and conformable to itself," and therefore "answerable for whatever it does or has done for the public weal, as long as the community by its union and federal bonds preserves its unity."[162] He further observes that a bad man is not bad only when he breaks out into crime, but has the seeds of vice in his nature, and that the deity, knowing the nature and disposition of every man, prefers stifling crime in embryo to waiting till it becomes ripe.[163]

[Footnote 162: Plutarch, De sera numinis vindicta, 15.]

[Footnote 163: Ibid. 20.]

But there are yet special reasons for extending the retribution of a god beyond the limits of individual guilt. Whilst the resentment of a man is a matter of experience, that of a god is a matter of inference. That some particular case of suffering is a divine punishment, is inferred either from its own peculiar character, suggesting the direct interference of a god, or from the assumption that a certain act, on account of its offensiveness, cannot be left unpunished. Now experience shows that, in many instances, the sinner himself escapes all punishment, leading a happy life till his death; hence the conclusion is near at hand that any grave misfortune which befalls his descendants, is the delayed retribution of the offended {52} god.[164] Such a conclusion is quite in harmony with the common notions of divine power. It especially forces itself upon a mind which has no idea of a hell with post mortem punishments for the wicked. And, where the spirit of a man after his death is believed to be still ardently concerned for the welfare of his family,[165] the affliction of his descendants naturally appears as a punishment inflicted upon himself. As Dr. de Groot observes, the doctrine of the Chinese, that spiritual vengeance may descend on the offender's offspring, tallies perfectly with their conception "that the severest punishment which may be inflicted on one, both in his present life and the next, is decline or extermination of his male issue, leaving nobody to support him in his old age, nobody to protect him after his death from misery and hunger by caring for his corpse and grave, and sacrificing to his manes."[166]

[Footnote 164: Cf. Isocrates, Oratio de pace, 120; Cicero, De natura Deorum, iii. 38; Nägelsbach, op. cit. p. 33 sq.]

[Footnote 165: Cf. Schmidt, op. cit. i. 71 sq. (ancient Greeks).]

[Footnote 166: de Groot, op. cit. (vol. iv. book) ii. 452.]

The retributive sufferings which innocent persons have to undergo in consequence of the sins of the guilty, are not always supposed to be inflicted upon them directly, as a result of divine resentment. They are often attributed to infection. Sin is looked upon in the light of a contagious matter which may be transmitted from parents to children, or be communicated by contact.

This idea is well illustrated by the funeral ceremonies of the Tahitians. "When the house for the dead had been erected, and the corpse placed upon the platform or bier, the priest ordered a hole to be dug in the earth or floor near the foot of the platform. Over this he prayed to the god by whom it was supposed the spirit of the deceased had been required. The purport of his prayer was that all the dead man's sins, and especially that for which his soul had been called to the po, might be deposited there, that they might not attach in any degree to the survivors, and that the anger of the god might be appeased." All who were employed in embalming the dead were also, during the process, carefully avoided by every person, {53} as the guilt of the crime for which the deceased had died was believed to contaminate such as came in contact with the corpse; and as soon as the ceremony of depositing the sins in the hole was over, all who had touched the body or the garments of the deceased, which were buried or destroyed, fled precipitately into the sea to cleanse themselves from the pollution.[167] In one part of New Zealand "a service was performed over an individual, by which all the sins of the tribe were supposed to be transferred to him, a fern stalk was previously tied to his person, with which he jumped into the river and there unbinding, allowed it to float away to the sea, bearing their sins with it."[168] The Iroquois White Dog Feast, which was held every year in January, February, or early in March,[169] implied, according to most authorities, a ceremony of sin-transference.[170] The following description of it is given by Mrs. Jemison, a white woman who was captured by the Indians in the year 1755:--Two white dogs, without spot or blemish, are strangled and hung near the door of the council-house. On the fourth or fifth day the "committee," consisting of from ten to twenty active men who have been appointed to superintend the festivities, "collect the evil spirit, or drive it off entirely, for the present, and also concentrate within themselves all the sins of their tribe, however numerous or heinous. On the eighth or ninth day, the committee having received all the sin, as before observed, into their own bodies, they take down the dogs, and after having transfused the whole of it into one of their own number, he, by a peculiar sleight of hand, or kind of magic, works it all out of himself into the dogs. The dogs, thus loaded with all the sins of the people, are placed upon a pile of wood that is directly set on fire. Here they are burnt, together with the sins with which they were loaded."[171] Among the Badágas of India, at a burial, "an elder, standing by the corpse, offers up a prayer that the dead may not go to hell, that the sins committed on earth may be forgiven, and that the sins may be borne by a calf, which is let loose in the jungle and used thenceforth for no manner of work."[172] At Utch-Kurgan, in Turkestan, Mr. Schuyler saw an old man, constantly {54} engaged in prayer, who was said to be an iskatchi, that is, "a person who gets his living by taking on himself the sins of the dead, and thenceforth devoting his life to prayer for their souls."[173]

[Footnote 167: Ellis, Polynesian Researches, i. 401 sqq.]

[Footnote 168: Taylor, Te Ika a Maui, p. 101.]

[Footnote 169: Beauchamp, 'Iroquois White Dog Feast,' in American Antiquarian, vii. 236 sq. Hale, 'Iroquois Sacrifice of the White Dog,' ibid. vii. 7.]

[Footnote 170: Beauchamp, loc. cit. p. 237 sq.]

[Footnote 171: Seaver, Narrative of the Life of Mrs. Mary Jemison, p. 158 sqq. Cf. Mr. Clark's description, quoted by Beauchamp, loc. cit. p. 238.]

[Footnote 172: Thurston, 'Badágas of the Nilgiris,' in the Madras Government Museum's Bulletin, ii. 4. Cf. Metz, Tribes inhabiting the Neilgherry Hills, p. 78; Graul, Reise nach Ostindien, iii. 296 sqq.]

[Footnote 173: Schuyler, Turkistan, ii. 28.]

In ancient Peru, an Inca, after confession of guilt, bathed in a neighbouring river, and repeated this formula:--"O thou River, receive the sins I have this day confessed unto the Sun, carry them down to the sea, and let them never more appear."[174] According to Vedic beliefs, sin is a contamination which may be inherited, or contracted in various ways,[175] and of which the sinner tries to rid himself by transferring it to some enemy, [176] or by invoking the gods of water or fire.[177] It is washed out by Varuna, in his capacity of a water-god,[178] and by Trita, another water-god,[179] and even by "the Waters" in general, as appears from the prayer addressed to them:--"O Waters, carry off whatever sin is in me and untruth."[180] For a similar reason, as it seems, water became in the later, Brahmanic age, the "essence (sap) of immortality"[181] and the belief in its purifying power still survives in modern India. No sin is too heinous to be removed, no character too black to be washed clean, by the waters of Ganges.[182] At sacred places of pilgrimage on the banks of rivers, the Hindus perform special religious shavings for the purpose of purifying soul and body from pollution; and persons who have committed great crimes or are troubled by uneasy consciences, travel hundreds of miles to such holy places where "they may be released from every sin by first being relieved of every hair and then plunging into the sacred stream."[183] So, also, according to Hindu beliefs, contact with cows purifies, and, as in the Parsi ritual, the dung and urine of cows have the power of preventing or cleansing away not only material, but moral defilements.[184] In post-Homeric Greece, individuals and a whole people were cleansed from their sins by water or some other material means of purification.[185] Plutarch, after observing {55} that "there are other properties that have connection and communication, and that transfer themselves from one thing to another with incredible quickness and over immense distances," asks whether it is "more wonderful that Athens should have been smitten with a plague which started in Arabia, than that, when the Delphians and Sybarites became wicked, vengeance should have fallen on their descendants."[186] The Hebrews annually laid the sins of the people upon the head of a goat, and sent it away into the wilderness;[187] and they cleansed every impurity with consecrated water or the sprinkling of blood.[188] To this day, the Jews in Morocco, on their New-Year's day, go to the sea-shore, or to some spring, and remove their sins by throwing stones into the water. The words of the Psalmist, "wash me thoroughly from mine iniquity, and cleanse me from my sin,"[189] were not altogether a figure of speech; nor is Christian baptism originally a mere symbol. Its result is forgiveness of sins;[190] by the water, as a medium of the Holy Ghost, "the stains of sin are washed away."[191] That sin is contagious has been expressly stated by Christian writers. Novatian says that "the one is defiled by the sin of the other, and the idolatry of the transgressor passes over to him who does not transgress."[192]

[Footnote 174: Tylor, Primitive Culture, ii. 435.]

[Footnote 175: Atharva-Veda, v. 30. 4; x. 3. 8; vii. 64. i. sq. Cf. Oldenberg, Religion des Veda, p. 290.]

[Footnote 176: Rig-Veda, x. 36. 9; x. 37. 12.]

[Footnote 177: Ibid. x. 164. 3. Atharva-Veda, vii. 64. 2. Cf. Kaegi, Rig-Veda, p. 157; Oldenberg, op. cit. pp. 291-298, 319 sqq.]

[Footnote 178: Cf. Hopkins, Religions of India pp. 65 n. 1, 66.]

[Footnote 179: Atharva-Veda, vi. 113. 1 sqq.]

[Footnote 180: Rig-Veda, i. 23. 22. Sin is also looked upon as a galling chain from the captivity of which release is besought (ibid. i. 24. 9, 13 sq.; ii. 27. 16; ii. 28. 5; v. 85. 8; vi. 74. 3; &c.).]

[Footnote 181: Hopkins, op. cit. p. 196.]

[Footnote 182: Monier Williams, Br[=a]hmanism and Hind[=u]uism, p. 347.]

[Footnote 183: Ibid. p. 375.]

[Footnote 184: Barth, Religions of India, p. 264. Laws of Manu, iii. 206; v. 105, 121, 124; xi. 110, 203, 213.]

[Footnote 185: Stengel, Die griechischen Kultusaltertümer, p. 138 sqq.]

[Footnote 186: Plutarch, De sera numinis vindicta, 14.]

[Footnote 187: Leviticus, xvi.]

[Footnote 188: Numbers, viii. 7; xix. 4-9, 13 sqq.; xxxi. 23. Leviticus, xvi. 14 sqq.]

[Footnote 189: Psalms, li. 2.]

[Footnote 190: Harnack, op. cit. ii. 140 sqq.]

[Footnote 191: Catechism of the Council of Trent, ii. 2. 10, p. 162.]

[Footnote 192: Quoted by Harnack, op. cit. ii. 119.]

In this materialistic conception of sin there is an obvious confusion between cause and effect, between the sin and its punishment. Sin is looked upon as a substance charged with injurious energy, which will sooner or later discharge itself to the discomfort or destruction of anybody who is infected with it. The sick Chinese says of his disease, "it is my sin," instead of saying, "it is the punishment of my sin."[193] Both in Hebrew and in the Vedic language the word for sin is used in a similar way.[194] "In the consciousness of the pious Israelite," Professor Schultz observes, "sin, guilt, and punishment, are ideas so directly connected that the words for them are interchangeable."[195] {56} The prophets frequently and emphatically declare that there is in sin itself a power which must destroy the sinner.[196] So, too, as M. Bergaigne points out, there is in the Vedic notion of sin, "la croyance à une sorte de vertu propre du péché, grâce à laquelle il produit de lui-même son effet nécessaire, à savoir le châtiment du pécheur."[197] Sins are thus treated like diseases, or the germs of diseases, of which patients likewise try to rid themselves by washing or burning, or which are described in the very language often applied to sins as fetters which hold them chained.[198] All kinds of evil are in this way materialised. The Shamanistic peoples of Siberia, says Georgi, "hold evil to be a self-existing substance which they call by an infinitude of particular names."[199] According to Moorish ideas, l-bas, or "misfortune," is a kind of infection, which may be contracted by contact and removed by water or fire; hence in all parts of Morocco water- and fire-ceremonies are performed annually, either on the [(]âshur-eve or at midsummer, l-[(]an[s.]ara, for the purpose of purifying men, animals, and fruit-trees.[200] And just as the Moors, on these {57} occasions, rid themselves of l-bas, so, in modern Greece, the women make a fire on Midsummer Eve, and jump over it, crying, "I leave my sins."[201]

[Footnote 193: Edkins, Religion in China, p. 134.]

[Footnote 194: Holzman, 'Sünde und Sühne in den Rigvedahymnen und den Psalmen,' in Zeitschr. f. Völkerpsychologie, xv. 9.]

[Footnote 195: Schultz, op. cit. ii. 306. Cf. Curtiss, Primitive Semitic Religion To-day, p. 124 sqq.]

[Footnote 196: Ibid. ii. 308 sq.]

[Footnote 197: Bergaigne, Religion védique, iii. 163. Cf. Rig-Veda, x. 132. 5.]

[Footnote 198: Oldenberg, op. cit. p. 288.]

[Footnote 199: Georgi, Russia, iii. 257.]

[Footnote 200: The various methods of transferring or expelling evil, which abundantly illustrate the materialistic notions held about it, have been treated by Dr. Frazer with unrivalled learning (The Golden Bough), iii. 1 sqq. I have little doubt that the fire- and water-ceremonies, once practised all over Europe on a certain day every year, belong to the same group of rites. "The best general explanation of these European fire-festivals," says Dr. Frazer (ibid. iii. 300), "seems to be the one given by Mannhardt, namely, that they are sun-charms or magical ceremonies intended to ensure a proper supply of sunshine for men, animals, and plants." But it should be noticed that in Europe, as in Morocco, a purificatory purpose is expressly ascribed to them by the very persons by whom they are practised (see Frazer, op. cit. iii. 238 sqq.), that they alternate with lustration by water (see Grimm, Teutonic Mythology, ii. 588 sqq.). On the other hand, in Dr. Frazer's exhaustive description of these ceremonies I fail to discover a single fact which would make Mannhardt's hypothesis at all probable. Dr. Frazer says (op. cit. iii. 301), "The custom of rolling a burning wheel down a hillside, which is often observed at these times, seems a very natural imitation of the sun's course in the sky." To me it appears as a method of distributing the purificatory energy over the fields or vineyards. Notice, for instance, the following statements:--In the Rhon Mountains, Bavaria, "a wheel wrapt in combustibles, was kindled and rolled down the hill; and the young people rushed about the fields with their burning torches and brooms. . . . In neighbouring villages of Hesse . . . it is thought that wherever the burning wheels roll, the fields will be safe from hail and storm" (ibid. iii. 243 sq.). At Volkmarsen, in Hesse, "in some places tar-barrels or wheels wrapt in straw used to be set on fire, and then sent rolling down the hillside. In others the boys light torches and whisps of straw at the bonfires and rush about brandishing them in their hands" (ibid. iii. 254). In Münsterland, "boys with blazing bundles of straw run over the fields to make them fruitful" (ibid. iii. 255). Dr. Frazer says (ibid. iii. 301), "The custom of throwing blazing discs, shaped liked suns, into the air is probably also a piece of imitative magic." But why should it not, in conformity with other practices, be regarded as a means of purifying the air? According to old writers, the object of Midsummer fires was to disperse the aerial dragons (ibid. iii. 267). It would carry me too far from my subject to enter into further details. I have dealt with the matter in my article 'Midsummer Customs in Morocco.' in Folk-Lore, xvi. 27-47.]

[Footnote 201: Grimm, Teutonic Mythology, ii. 623.]

Closely connected with the primitive conception of sin, is that of a curse. In fact, the injurious energy attributed to a sinful act, is in many cases obviously due to the curse of a god. The curse is looked upon as a baneful substance, as a miasma which injures or destroys anybody to whom it cleaves. The curse of Moses was said to lie on mount Ebal, ready to descend with punishments whenever there was an occasion for it.[202] The Arabs, when being cursed, sometimes lay themselves down on the ground so that the curse, instead of hitting them, may fly over their bodies.[203] According to Teutonic notions, curses alight, settle, cling, they take flight, and turn home as birds to their nests.[204] It is the vulgar opinion in Ireland "that a curse once uttered must alight on something: it will float in the air seven years, and may descend any moment on the party it was aimed at; if his guardian angel but forsake him, it takes forthwith the shape of some misfortune, sickness or temptation, and strikes his devoted head."[205] We shall later on see that curses are communicated through material media. In some parts of Morocco, if a man is not powerful enough to avenge an infringement on his

marriage-bed, he leaves seven tufts of hair on his head and goes to another tribe to ask for help. This is l-[(]âr, a conditional curse, which is first seated in the tufts, and {58} from there transferred to those whom he invokes. Similarly, a person under the vow of blood-revenge lets his hair grow until he has fulfilled his vow. The oath clings to his hair, and will fall upon his head if he violates it.[206]

[Footnote 202: Deuteronomy, xi. 29.]

[Footnote 203: Goldziher, Abhandlungen zur arabischen Philologie, i. 29. Wellhausen, Reste arabischen Heidentums, p. 139, n. 4.]

[Footnote 204: Grimm, op. cit. iv. 1690.]

[Footnote 205: Ibid. iii. 1227. Wood-Martin, Traces of the Elder Faiths of Ireland ii, 57 sq.]

[Footnote 206: The same practice prevailed among the ancient Arabs (Wellhausen, op. cit. p. 122), and some other cases are recorded by Dr. Frazer (op. cit. i. 370 sq.). I cannot accept Wellhausen's explanation (op. cit. p. 124) that the hair is allowed to grow for the purpose of being sacrificed when the vow is fulfilled.]

Generally, a curse follows the course which is indicated by the curser. But it does not do so in every case, and it has a tendency to spread. In ancient India[207] and among the Arabs[208] and Hebrews,[209] there was a belief that a curse, especially if it was undeserved, might fall back on the head of him who uttered it. The same belief prevailed, or still prevails, among the Irish;[210] so, also, according to an English proverb, "curses, like chickens, come home to roost." According to Plato, the curse of a father or mother taints everything with which it comes in contact. Any one who is found guilty of assaulting a parent, shall be for ever banished from the city into the country, and shall abstain from the temples; and "if any freeman eat or drink, or have any other sort of intercourse with him, or only meeting him have voluntarily touched him, he shall not enter into any temple, nor into the agora, nor into the city, until he is purified; for he should consider that he has become tainted by a curse."[211] Plutarch asks whether Jupiter's priest was forbidden to swear for the reason that "the peril of perjury would reach in common to the whole commonwealth, if a wicked, godless, and forsworn person should have the charge and superintendence of the prayers, vows, and sacrifices made on behalf of the city."[212] The Romans believed that certain horrid imprecations had such power, that not only the object of them never escaped their influence, but that the person who used them also was sure {59} to be unhappy.[213] Among the Arinzes, an oath is reckoned a terrible thing:--"They do not suffer a person, who has been under the necessity of expurgating himself in so dreadful a manner, to remain among them: he is sent into exile."[214] According to Bedouin notions, a solemn oath should only be taken at a certain distance from the camp, "because the magical nature of the oath might prove pernicious to the general body of Arabs, were it to take place in their vicinity."[215] "To take an oath of any sort," says Burckhardt, "is always a matter of great concern among the Bedouins. It seems as if they attached to an oath consequences of a supernatural kind. . . . A Bedouin, even in defence of his own right, will seldom be persuaded to take a solemn oath before a kadhy, or before the tomb of a sheikh or saint, as they are sometimes required to do; and would rather forfeit a small sum than expose himself to the dreaded consequences of an oath."[216] Exactly the same holds good for the Moors. The conditional self-curse is supposed in some degree to pollute the swearer even though the condition referred to in the oath be only imaginary, in other words, though he do not perjure himself. This, I think, is the reason why, among the Berbers in the South of Morocco, persons who have been wrongly accused of a crime, sometimes entirely undress themselves in the sanctuary where they

are going to swear. They believe that, if they do so, the saint will punish the accuser; and I conclude that at the bottom of this belief there is a vague idea that the absence of all clothes will prevent the oath from clinging to themselves. They say that it is bad not only to swear, but even to be present when an oath is taken by somebody else. And at Demnat, in the Great Atlas, I was told that when a person has made oath at a shrine, he avoids going back to his house the same way as he came, since otherwise, at least if he {60} has sworn false, his family as well as himself would have to suffer.

[Footnote 207: Atharva-Veda, ii. 7. 5.]

[Footnote 208: Goldziher, Abhandlungen, i. 38 sq.]

[Footnote 209: Ecclesiasticus, xxi. 27.]

[Footnote 210: Wood-Martin, op. cit. ii. 57 sq.]

[Footnote 211: Plato, Leges, ix. 881.]

[Footnote 212: Plutarch, Questiones Romanae, 44.]

[Footnote 213: Idem, Vita Cassi, 16.]

[Footnote 214: Georgi, op. cit. iii. 54 sq.]

[Footnote 215: Burckhardt, Bedouins and Wahábys, p. 73.]

[Footnote 216: Ibid. p. 165.]

If a curse is infectious, it is naturally liable to contaminate those who derive their origin from the infected individual. The house of Glaucus was utterly extirpated from Sparta, in accordance with the words of the oracle, "There is a nameless son of the Oath-god who has neither hands nor feet; he pursues swiftly, until, having seized, he destroys the whole race, and all the house."[217] So, too, the Erinyes visited the sins of the fathers even on the children and grandchildren;[218] and the Erinyes were originally only personifications of curses.[219] It is said in the Ecclesiasticus:--"A man that useth much swearing shall be filled with iniquity, and the plague shall never depart from his house. . . . If he swear in vain, he shall not be innocent, but his house shall be full of calamities."[220] Casalis remarks of the Basutos, that "the dreadful consequences that the curse of Noah has had for Ham and his descendants appear quite natural to these people."[221] The Dharkâr and Majhwâr in Mirzapur, believe that a person who forswears himself will lose his property and his children;[222] but as we do not know the contents of the oath, it is possible that the destruction of the latter is not ascribed to mere contagion, but is expressly imprecated on them by the swearer.[223] Among the Rejangs of Sumatra, {61} "any accident that happens to a man, who has been known to take a false oath, or to his children or grandchildren, is carefully recorded in memory, and attributed to this sole cause."[224] Among the Karens the following story is told:--"Anciently there was a man who had ten children, and he cursed one of his brethren, who had done him no injury; but the curse did the man no harm, and he did not die. Then the curse returned to the man who sent it, and all his ten children died."[225] The Moors are fond of cursing each other's father or mother, or grandfather, or grandfather's father, such a curse being understood to involve their descendants as well. The Rev. R. Taylor says of the Maoris, "To bid you go and cook your father would be a great curse, but to tell a person to go and cook his great-grandfather would be far worse, because it included every individual who has sprung from him."[226]

[Footnote 217: Herodotus, vi. 86. Cf. Hesiod, Opera et dies, 282 sqq.]

[Footnote 218: Aeschylus, Eumenides, 934 sqq.]

[Footnote 219: Aeschylus (Eumenides, 416 sq.) expressly designates the Erinyes by the title of "curses" ([Greek: a)rai\]), and Pausanias derives the name Erinys from an Arcadian word signifying a fit of anger. Cf. von Lasaulx, 'Der fluch bei Griechen und Römern,' in Verzeichnis der Vorlesungen an der Julius-Maximilians-Universitaet zu

Würzburg im Sommer-Semester 1843, p. 8; Müller, Dissertations on the Eumenides of Aeschylus, p. 155 sqq.; Rohde, 'Paralipomena,' in Rheinisches Museum für Philologie, 1895, p. 16 sq.]

[Footnote 220: Ecclesiasticus, xxiii. 11. Cf. ibid. xli. 5 sqq.; Wisdom of Solomon, iii. 12 sq., xii. 11.]

[Footnote 221: Casalis, Basutos, p. 305.]

[Footnote 222: Crooke, Tribes and Castes of the North-Western Provinces and Oudh, ii. 287; iii. 444. Cf. ibid. i. 132.]

[Footnote 223: Among these tribes it is usual to swear by "putting a bamboo on the head," or "touching a broad-sword, touching the feet of a Brâhman, holding a cow's tail, touching Ganges water." But among many of the other tribes described by Mr. Crooke, persons swear on the heads of their children (ibid. i. 11, 130, 172; ii. 96, 138, 339, 357; iii. 40, 113, 251, 262; iv. 35), or with a son or grandson in the arms (ibid. ii. 428), and in such cases the death of the child would naturally be expected to follow perjury as a direct result of it. Among the Kol, the usual form of an oath is, "May my children die if I lie" (ibid. iii. 313).]

[Footnote 224: Marsden, History of Sumatra, p. 240.]

[Footnote 225: Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 137.]

[Footnote 226: Taylor, Te Ika a Maui, p. 208.]

Thus, from the conception that sins and curses are contagious it follows that an innocent person may have to suffer for the sin of another. His suffering does not necessarily relieve the sinner from punishment; sin, like an infectious disease, may spread without vacating the seat of infection. But, as we have seen, it may also be transferred, and sin-transference involves vicarious suffering. At the same time, this kind of vicarious suffering must not be confounded with vicarious expiatory sacrifice. As a general rule, the scapegoat is driven or cast away, not killed. The exceptions to this rule seem to be due to two different causes. On the one hand, the scapegoat may be chased to death, or perhaps be pushed over a precipice,[227] for the sake of ridding the community as {62} effectively as possible of the evils loaded on the victim. Thus the Bhotiyás of Juhár take a dog, make him drunk, "and having fed him with sweetmeats, lead him round the village and let him loose. They then chase and kill him with sticks and stones, and believe that by so doing no disease or misfortune will visit the village during the year."[228] On the other hand, the transference of evil may be combined with a sacrifice. But of such a combination only a few instances are recorded, and most of them are ambiguous. Considering further that in these cases, or at least in the best known of them, the act of transference takes place after the victim has been killed, it seems to me extremely probable that we have here to do with a fusion of two distinct rites into one, and that the victim is not offered up as a sacrifice in its capacity of a scapegoat, but, once sacrificed, has been made use of as a conductor for all the evils with which the people are beset.

[Footnote 227: According to the Mishna, the Hebrew scapegoat was not allowed to go free in the wilderness, but was killed by being pushed over a precipice (Robertson Smith, Religion of the Semites, p. 418). See also the ambiguous passage in Servius, In Virgilii Aeneidos, iii. 57.]

[Footnote 228: Atkinson, 'Notes on the History of Religion in the Himálaya of the N.W. Provinces,' in Jour. Asiatic Soc. Bengal, liii. pt. i. 62.]

In his list of scapegoats, Dr. Frazer refers to a case of human sacrifice witnessed by the Rev. J. C. Taylor at Onitsha, on the Niger.[229] A young woman was drawn, with her face to the earth, from the king's house to the river. As the people drew her along, they

cried, "Wickedness! Wickedness!" so as to notify to the passers-by to screen themselves from witnessing the dismal scene. The sacrifice was to take away the iniquities of the land. The body was dragged along in a merciless manner "as if the weight of all their wickedness were thus carried away"; and it was finally drowned in the river. Our informant also heard that there was a man killed, as a sacrifice for the sins of the king. "Thus two human beings were offered as sacrifices, to propitiate their heathen deities, thinking that they would thus atone for the individual sins of those who had broken God's laws during the past year. . . . Those who had fallen into gross sins during the past year--such as incendiarisms, thefts, fornications, adulteries, witchcrafts, incests, slanders, &c.--were expected to pay in twenty-eight ngugus, or £2 0s. 7½d., as a fine; and this money was taken into the interior, to purchase two sickly persons, to be {63} offered as a sacrifice for all these abominable crimes--one for the land, and one for the river."[230] As will be seen in a following chapter, human sacrifices to rivers are very common in the Niger country. In the cases mentioned by the English missionary, the idea of vicarious expiation is obvious. But I find no evidence of actual sin-transference.

[Footnote 229: Frazer, op. cit. iii. 109 sq.]

[Footnote 230: Crowther and Taylor, Gospel on the Banks of the Niger, p. 344 sq.]

Dr. Frazer further mentions a custom which, according to Strabo, prevailed among the Albanians of the Eastern Caucasus.[231] In the temple of the Moon they kept a number of sacred slaves, of whom many were inspired and prophesied. When one of these men exhibited more than usual symptoms of inspiration or insanity, the high priest had him bound with a sacred chain and maintained him in luxury for a year. At the end of the year he was anointed with unguents and led forth to be sacrificed. A man thrust a sacred spear into his side, piercing his heart. From the manner in which the victim fell, omens were drawn as to the welfare of the commonwealth. Then the body was carried to a certain spot where all the people stood upon it as a purificatory ceremony.[232] Dr. Frazer maintains that "the last circumstance clearly indicates that the sins of the people were transferred to the victim, just as the Jewish priest transferred the sins of the people to the scapegoat by laying his hand on the animal's head."[233] So it may be, although, in my opinion, the purificatory ceremony described by Strabo also allows of another interpretation. The victim was evidently held to be saturated with magic energy; this is commonly the case with men, or animals, or even inanimate things, that are offered in sacrifice, and in the present instance the man was regarded as holy already, long before he was slain. To stand on the corpse, then, might have been regarded as purifying in consequence of the benign virtue inherent in it, just as, according to Muhammedan notions, contact with a saint cures disease, not by transferring it to the saint, but by annihilating it or expelling it from the body of the patient. But whether the ceremony in question involved the idea of sin-transference or not, there is no indication that the sacrifice of the slave was of an expiatory character. The same may be said both of the Egyptian sacrifice of a bull, mentioned by Herodotus, and of the white dog sacrifice performed by the Iroquois. The Egyptians first invoked the god and slew the bull. They then cut off his head and flayed the body. Next {64} they took the head, and heaped imprecations on it, praying that, if any evil was impending either over those who sacrificed or over the land of Egypt, it might be made to fall upon that head. And finally, they either sold the head to Greek traders or threw it into the river[234]--which shows that the real scapegoat, the head, was not regarded as a sacrifice to the god. Among the Iroquois, also, the victims were slain before the sins of the people were transferred to them. According to Hale's and Morgan's accounts of this rite, which have reference to different tribes of the Iroquois, no mention of sin-

transference is made in the hymn which accompanied the sacrifice.[235] Only blessings were invoked. This was the beginning of the chant:--"Now we are about to offer this victim adorned for the sacrifice, in hope that the act will be pleasing and acceptable to the All-Ruler, and that he will so adorn his children, the red men, with his blessings, when they appear before him."[236] Mr. Morgan even denies that the burning of the dog had the slightest connection with the sins of the people, and states that "in the religious system of the Iroquois, there is no recognition of the doctrine of atonement for sin, or of the absolution or forgiveness of sins."[237]

[Footnote 231: Frazer, op. cit. iii. 112 sq.]

[Footnote 232: Strabo, xi. 4. 7.]

[Footnote 233: Frazer, op. cit. iii. 113.]

[Footnote 234: Herodotus, ii. 39.]

[Footnote 235: Hale, in American Antiquarian, vii. 10 sqq. Morgan, League of the Iroquois, p. 217 sq.]

[Footnote 236: Hale, loc. cit. p. 10.]

[Footnote 237: Morgan, op. cit. p. 216.]

I think we can see the reason why, in some cases, a sacrificial victim is used as scapegoat. The transference of sins or evils is not looked upon as a mere "natural" process, it can hardly be accomplished without the aid of mysterious, magic energy. Among the Berbers of Ait Zel[t.]n, in Southern Morocco, sick people used to visit a miracle-working wild olive-tree, growing in the immediate vicinity of the supposed grave of Sîdi Butlîla. They there relieve themselves of their complaints by tying a woollen string to one of its branches; in case of headache the patient previously winds the string three times round the top of his head, whilst, in case of fever, he spits on the string, and, when tying it to the tree, says, "I left my fever in thee, O wild olive-tree." He believes that he may thus transfer his disease to this tree because there is baraka, "benign virtue," in it; he would not expect to be cured {65} by tying the string to any ordinary tree. This illustrates a principle of probably world-wide application. In Morocco, and, I presume, in other countries where disease-transference is believed in, rags tied to a tree are a sure indication that the tree is regarded as holy. Similarly I venture to believe that the transference of sins and evils to a scapegoat is generally supposed to require magic aid of some kind or other. Among the Hebrews, it took place on the Day of Atonement only, and the act was performed by the high-priest.[238] Among the Iroquois, it was by "a kind of magic" that the sins of the people were worked into the white dogs;[239] and that the animals themselves were held to be charged with supernatural energy, appears from the fact that, according to one account, the ashes of the pyre on which one of them was burnt were "gathered up, carried through the village, and sprinkled at the door of every house."[240] Considering, then, that sacrificial victims, owing to their close contact with the deities to whom they are offered, are held more or less sacred, the idea of employing them as scapegoats is certainly near at hand. But this does not make the sacrifice expiatory. In fact, I know of no instance of an expiatory sacrifice being connected with a ceremony of sin-transference. Hence the materialistic conception of sin hardly helps to explain the belief that the sins of a person may be atoned by another person being offered as a sacrifice to the offended god.

[Footnote 238: Leviticus, xvi. 21.]

[Footnote 239: Seaver, op. cit. p. 160.]

[Footnote 240: Beauchamp, loc. cit. p. 239.]

A sacrifice is expiatory if its object is to avert the supposed anger or indignation of a superhuman being from those on whose behalf it is offered. In various cases the

offended god is thought to be appeased only by the death of a man. But it is not always necessary that the victim should be the actual offender. The death of a substitute may expiate his guilt. The expiatory sacrifice may be vicarious.

We shall see, in a subsequent chapter, that, as a general {66} rule, human victims are sacrificed for the purpose of saving the lives of the sacrificers: before the beginning of a battle or during a siege, previously to a dangerous sea-expedition, during epidemics, famines, or on other similar occasions, when murderous designs are attributed to some superhuman being on whose will the lives of men are supposed to depend. But these sacrifices are not always expiatory in nature. A god may desire to cause the death of men not only because he is offended, but because he delights in human flesh, or because he wants human attendants, or--no one knows exactly why. It is impossible to find out in each particular case whether the sacrifice is meant to be an expiation or not; it is not certain that the sacrificers know it themselves. Yet in many instances there can be no doubt that its object is to serve as a vicarious atonement.

In Eastern Central Africa, "if a freeman were to set fire to the grass or reeds beside a lake, and cause a great conflagration close to the chosen abode of the deity, he is liable to be offered up to the god that is thus annoyed," but if he be the owner of many slaves he can easily redeem himself by offering one of them in his place.[241] The Ojibways, it is said, were once visited with an epidemic, which they regarded as a divine punishment sent them on account of their wickedness; and when all other efforts failed, "it was decided that the most beautiful girl of the tribe should enter a canoe, push into the channel just above the Sault, and throw away her paddle."[242] In B[oe]otia, a drunken man having killed a priest of Dionysus Aegobolus, and a pestilence having broken out immediately after, the calamity was regarded as a judgment on the people for the sacrilege, and the oracle of Delphi ordered them to expiate it by sacrificing to the god a blooming boy.[243] In his work on the Jews, Philo of Byblus states that "it was the custom among the ancients in cases of great dangers, that the rulers of a city or a nation, in order to avert universal destruction, should give the dearest of their children to be killed as a ransom offered to avenging demons."[244] The idea that sins could be expiated by the death of one who {67} had not deserved it, was familiar to the Hebrews. It was said that "the death of the righteous makes atonement."[245] The passage in Isaiah liii. 12 was interpreted of Moses, who "poured out his soul unto death[246] and was numbered with the transgressors (the generation that died in the wilderness) and bare the sin of many "that he might atone for the sin of the golden calf. [247] Ezekiel suffered "that he might wipe out the transgressions of Israel."[248] And of the Maccabaean martyrs it is said, "Having become as it were a vicarious expiation for the sins of the nation, and through the blood of those godly men and their atoning death, divine providence saved Israel which had before been evil entreated."[249] In these cases, of course, there was no sacrifice in the proper sense of the term, but they obviously illustrate the same characteristic of the divine mind. In fact, the death of Christ, by which he atoned and obliterated the sins of all ages, was conceived as a sacrifice, or spoken of in sacrificial figures.[250]

[Footnote 241: Macdonald, Africana, i. 96 sq.]

[Footnote 242: Dorman, Origin of Primitive Superstitions, p. 208.]

[Footnote 243: Pausanias, ix. 8. 2.]

[Footnote 244: Eusebius, Praeparatio Evangelica, i. 10. 40 (Migne, Patrologia, Ser. Gr. xxi. 85).]

[Footnote 245: Moore, in Cheyne and Black, Encyclopaedia Biblica, iv. 4226.]

[Footnote 246: Exodus, xxxii. 32.]

[Footnote 247: S[=o][t.][=a]h, 14 A, quoted by Moore, loc. cit. col. 4226.]

[Footnote 248: Sanhedrin, 39 A, quoted ibid. col. 4226.]

[Footnote 249: 4 Maccabaeans, xvii. 22, quoted ibid. col. 4232.]

[Footnote 250: See Moore, loc. cit. col. 4229 sqq.]

It is said that, according to early ideas, "it did not essentially concern divine justice that the punishment of faults committed should fall precisely on the guilty; what did concern it was that it should fall on some one, that it should have its accomplishment."[251] Men, we are told, could not fail to discern that a transgression produces suffering as its consequence, and, seeing this, they "associate suffering with the expiation of sin, and, in atoning for their transgressions, they mark their contrition by the suffering which they inflict vicariously on the victim. They argue thus: 'I have broken a law of God. God exacts pain as a consequence of such a breach. I will therefore slay this lamb, and its sufferings shall make the atonement requisite.'"[252] But, so far as I can see, this interpretation of the idea of vicarious expiation is not supported by facts. The victim whose suffering or death is calculated to appease the wrathful god is not anybody {68} at random, whosoever he may be. He is a representative of the community which has incurred the anger of the god, and is accepted as a substitute on the principle of social solidarity. So, also, according to the Western Church, Christ discharged the punishment due to the sins of mankind and propitiated the justice of his Father, in his capacity of a man, as a representative of the human race; whereas in the East, where it was maintained that the deity suffered (though he suffered through the human nature which he had made his own), the idea of substitution could hardly take root, since, as Harnack remarks, "the dying God-man really represented no one."[253] The Greek Church regarded the death of Christ as a ransom for mankind paid to the devil, and this doctrine was also accepted by the most important of the Western Fathers, although it flatly contradicted their own theory of atonement.[254] There can be no doubt that expiatory sacrifices are frequently offered as ransoms, in other words, that the god or demon is supposed to be appeased, not by the suffering of the victim, but by the gift. Among men it often occurs that the offended party is induced by some material compensation to desist from avenging the injury--in many societies such placability is even prescribed by custom,--and something similar is naturally believed to be the case with gods. From this point of view, of course, it is not necessary that the victim should be a person who is connected with the offender by ties of social solidarity, although he may still be regarded as in a way a substitute. He may be an alien or a slave; or animals or inanimate things may be offered to expiate the sins of men. Among the Dacotahs, "for the expiation of sins or crimes a sacrifice is made of some kind of an animal."[255] Of the Melanesian sacrifices, says Dr. Codrington, "some are propitiatory, substituting an animal for the person who has offended."[256] The Shánárs of Tinnevelly offer up a {69} goat, a sheep, or a fowl, in order "to appease the angry demon, and induce him to remove the evil he has inflicted, or abstain from the infliction he may meditate."[257] It would be almost absurd to suppose that in similar cases the suffering or death of the animal is looked upon in the light of a vicarious punishment. Of the Hebrew sin-offering, Professor Kuenen aptly remarks:--[258]"According to the Israelite's notion, Yahveh in his clemency permits the soul of the animal sacrificed to take the place of that of the sacrificer. No transfer of guilt to the animal sacrificed takes place: the blood of the latter is clean and remains so, as is evident from the very fact that this blood is put upon the altar; it is a token of mercy on Yahveh's part that he accepts it. . . . Nor can it be asserted that the animal sacrificed undergoes the punishment in the place of the transgressor: this is said nowhere, and therefore, in any case, gives another,

more sharply defined idea than that which the Israelite must have formed for himself; moreover, it is irreconcilable with the rule that the indigent may bring the tenth part of an ephah of fine flour as a sin-offering."[259] It should also be noticed that a purifying effect was ascribed to contact with the victim's blood: the high priest should put or sprinkle some blood upon the altar "and cleanse it, and hallow it from the uncleanness of the children of Israel."[260]

[Footnote 251: Réville, Prolegomena of the History of Religions, p. 135.]

[Footnote 252: Baring-Gould, Origin and Development of Religious Belief, i. 387 sq.]

[Footnote 253: Harnack, op. cit. iii. 312 sqq.]

[Footnote 254: Ibid. iii. 307, 315 n. 2.]

[Footnote 255: Schoolcraft, Indian Tribes of the United States, ii. 196.]

[Footnote 256: Codrington, Melanesians, p. 127.]

[Footnote 257: Percival, Land of the Veda, p. 309 sq. Cf. Caldwell, Tinnevelly Shánárs, p. 37.]

[Footnote 258: Kuenen, Religion of Israel, ii. 266 sq.]

[Footnote 259: Leviticus, v. 11 sqq.]

[Footnote 260: Ibid. xvi. 18 sq.]

To sum up:--The fact that punishments for offences are frequently inflicted, or are supposed to be inflicted, by men or gods upon individuals who have not committed those offences, is explicable from circumstances which in no way clash with our thesis that moral indignation is, in its essence, directed towards the assumed cause of inflicted pain. In many cases the victim, in accordance with the doctrine of collective responsibility, is punished because he is considered to be involved in the guilt--even when he is really innocent--or because he is regarded as a fair {70} representative of an offending community. In other cases, he is supposed to be polluted by a sin or a curse, owing to the contagious nature of sins and curses. The principle of social solidarity also accounts for the efficacy ascribed to vicarious expiatory sacrifices; but in many instances expiatory sacrifices only have the character of a ransom or bribe.

And whilst thus our thesis as to the true direction of moral indignation is not in the least invalidated by facts, apparently, but only apparently, contradictory, it is, on the other hand, strongly supported by the protest which the moral consciousness, when sufficiently guided by discrimination and sympathy, enters against the infliction of penal suffering upon the guiltless. Such a protest is heard from various quarters, both with reference to human justice and with reference to the resentment of gods.

Confucius taught that the vices of a father should not discredit a virtuous son.[261] Plato lays down the rule that "the disgrace and punishment of the father is not to be visited on the children"; on the contrary, he says, if the children of a criminal who has been punished capitally avoid the wrongs of their father, they shall have glory, and honourable mention shall be made of them, "as having nobly and manfully escaped out of evil into good."[262] According to Roman law, "crimen vel poena paterna nullam maculam filio infligere potest."[263] "Nothing," says Seneca, "is more unjust than that any one should inherit the quarrels of his father."[264] The Deuteronomist enjoins, "The fathers shall not be put to death for the children, neither shall the children be put to death for the fathers: every man shall be put to death for his own {71} sin."[265] Lawgivers have been anxious to restrict the blood-feud to the actual culprit. The Koran forbids the avenger of blood to kill any other person than the manslayer himself.[266] In England, according to a law of Edmund, the feud was not to be prosecuted against the kindred of the slayer, unless they made his misdeed their own by harbouring him.[267] So, also, in Sweden, in the thirteenth century, the blood feud was limited by law

to the guilty individual;[268] and we meet with a similar restriction in Slavonic law-books.[269]

[Footnote 261: Lun Yü, vi. 4. Cf. Thâi-Shang 4.]

[Footnote 262: Plato, Leges, ix. 854 sqq. Plato makes an exception for those whose fathers, grandfathers, and great-grandfathers have successively undergone the penalty of death: "Such persons the city shall send away with all their possessions to the city and country of their ancestors, retaining only and wholly their appointed lot" (ibid. ix. 856). But this enactment had no doubt a purely utilitarian foundation, the offspring of a thoroughly wicked family being considered a danger to the city.]

[Footnote 263: Digesta, xlviii. 19. 26. Cf. ibid. xlviii. 19. 20.]

[Footnote 264: Seneca, De ira, ii. 34. Cf. Cicero, De officiis, i. 25.]

[Footnote 265: Deuteronomy, xxiv. 16. Cf. 2 Kings xiv. 6.]

[Footnote 266: Koran, xvii. 35.]

[Footnote 267: Laws of Edmund, ii. 1.]

[Footnote 268: Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 103, 334, 335, 399. Wilda, op. cit. p. 174.]

[Footnote 269: Kovalewsky, Coutume contemporaine, p. 248. In Montenegro it was enjoined by Daniel I. (Post, Anfänge des Staats- und Rechtsleben, p. 181).]

Passing to the vengeance of gods: according to the Atharva-Veda, Agni, who forgives sin committed through folly and averts Varuna's wrath, also frees from the consequence of a sin committed by a man's father or mother.[270] Theognis asks, "How, O king of immortals, is it just that whoso is aloof from unrighteous deeds, holding no transgression, nor sinful oath, but being righteous, should suffer what is not just?"[271] According to Bion, the deity, in punishing the children of the wicked for their fathers' crimes, is more ridiculous than a doctor administering a potion to a son or grandson for a father's or grandfather's disease.[272] The early Greek notion of an inherited curse was modified into the belief that the curse works through generations because the descendants each commit new acts of guilt.[273] The persons who prohibited the sons of such as had been proscribed by Sylla, from standing candidates for their fathers' honours, and from being admitted into the senate, were supposed to have been punished by the gods for this injustice:--"In process of time," says Dionysius of Halicarnassus, "a blameless punishment, the avenger of their crimes, pursued {72} them, by which they themselves were brought down from the greatest height of glory, to the lowest degree of obscurity; and none, even, of their race are now left, but women."[274] Among the Hebrews, Jeremiah and Ezekiel broke with the old notion of divine vengeance. The law of individual responsibility, which had already previously been laid down as a principle of human justice, was to be extended to the sphere of religion.[275] "Every one shall die for his own iniquity: every man that eateth the sour grape, his teeth shall be set on edge."[276] "The soul that sinneth, it shall die. The son shall not bear the iniquity of the father, neither shall the father bear the iniquity of the son: the righteousness of the righteous shall be upon him, and the wickedness of the wicked shall be upon him."[277]

[Footnote 270: Atharva-Veda, v. 30. 4. Cf. Macdonell, Vedic Mythology, p. 98.]

[Footnote 271: Theognis, 743 sqq.]

[Footnote 272: Plutarch, De sera numinis vindicta 19. Cf. ibid. 12; Cicero, De natura Deorum, iii. 38.]

[Footnote 273: Farnell, op. cit. i. 77. Maine, Ancient Law, p. 127.]

[Footnote 274: Dionysius of Halicarnassus, op. cit. viii. 80.]

[Footnote 275: Cf. Montefiore, op. cit. p. 220; Kuenen, op. cit. ii. 35 sq.]

[Footnote 276: Jeremiah, xxxi. 30.]

[Footnote 277: Ezekiel, xviii. 20. For Talmudic views, see Deutsch, Literary Remains, p. 52.]

Chapter III

THE NATURE OF THE MORAL EMOTIONS (continued)

IT was said in the last chapter that moral disapproval is a sub-species of resentment, and that resentment is, in its essence, an aggressive attitude of mind towards an assumed cause of pain. It was shown that, in the course of mental evolution, the true direction of the hostile reaction involved in moral disapproval has become more apparent. We shall now see that, at the same time, its aggressive character has become more disguised.

This is evidenced by the changed opinion about anger and revenge which we meet at the higher stages of moral development. Retaliation is condemned, and forgiveness of injuries is laid down as a duty.

The rule that a person should be forbearing and kind to his enemy has no place in early ethics.

"Let those that speak evil of us perish. Let the enemy be clubbed, swept away, utterly destroyed, piled in heaps. Let their teeth be broken. May they fall headlong into a pit. Let us live, and let our enemies perish." Such were the requests which generally concluded the prayers of the Fijians.[1] A savage would find nothing objectionable in them. On the contrary, he regards revenge as a duty,[2] and forgiveness of enemies as a sign of weakness, or cowardice, or want of honour.[3] Nor {74} is this opinion restricted to the savage world. In the Old Testament the spirit of vindictiveness pervades both the men and their god. The last thing with which David on his death-bed charged Solomon was to destroy an enemy whom he himself had spared.[4] Sirach counts among the nine causes of a man's happiness to see the fall of his enemy.[5] The enemies of Yahveh can expect no mercy from him, but utter destruction is their lot.[6] To do good to a friend and to do harm to an enemy was a maxim of the ancient Scandinavians.[7] It was taken for a matter of course by popular opinion in Greece[8] and Rome. According to Aristotle, "it belongs to the courageous man never to be worsted"; to take revenge on a foe rather than to be reconciled is just, and therefore honourable.[9] Cicero defines a good man as a person "who serves whom he can, and injures none except when provoked by injury."[10] Except in domestic life and in the case of friends, Professor Seeley observes, "people not only did not forgive their enemies, but did not wish to do so, nor think better of themselves for having done so. That man considered himself fortunate who on his deathbed could say, in reviewing his past life, that no one had done more good to his friends or more mischief to his enemies. This was the celebrated felicity of Sulla; this the crown of Xenophon's panegyric on Cyrus the Younger."[11]

[Footnote 1: Fison, quoted by Codrington, Melanesians, p. 147, n. 1.]

[Footnote 2: See infra, on Blood-revenge.]

[Footnote 3: Cf. Domenech, Great Deserts of North America, ii. 97, 338, 438 (Dacotahs); Boas, first General Report on the Indians of British Columbia, p. 38; Baker, Albert N'yanza i. 240 sq. (Latukas).]

[Footnote 4: 1 Kings, ii. 8 sq.]

[Footnote 5: Ecclesiasticus, xxv. 7.]

[Footnote 6: Cf. Montefiore, Hibbert Lectures, p. 40.]

[Footnote 7: Maurer, Bekehrung des Norwegischen Stammes, ii. 154 sq.]

[Footnote 8: Maury, Histoire des religions de la Grèce antique, i. 383. Schmidt, Ethik der alten Griechen, ii. 309 sqq.]

[Footnote 9: Aristotle, Rhetorica, i. 9. 24. Cf. Aeschylus, Choeophori, 309 sqq.; Plato, Meno, p. 71; Xenophon, Memorabilia, ii. 6. 35.]

[Footnote 10: Cicero, De officiis, iii. 19. iii. 19. Cf. ibid. ii. 14; but cf. also ibid. i. 25, where it is said that nothing is more worthy of a great and a good man than placability and moderation.]

[Footnote 11: Seeley, Ecce Homo, p. 273.]

But side by side with the doctrine of resentment, we meet, among peoples of culture, the doctrine of forgiveness.

"Recompense injury with kindness," says Lao-Tsze.[12] According to Mencius, "a benevolent man does not lay up anger, nor cherish resentment against his brother, but only regards him with affection and love."[13] In the laws of Manu the following rule is laid down for the twice-born man:--"Against an angry man let him not in return show anger, let him bless {75} when he is cursed."[14] It is said in the Buddhistic Dhammapada: "Hatred does not cease by hatred at any time; hatred ceases by love, this is an old rule . . . . Among men who hate us we dwell free from hatred. . . . Let a man overcome anger by love, let him overcome evil by good; let him overcome the greedy by liberality, the liar by truth."[15] According to one of the Pahlavi texts, we ought not to indulge in wrathfulness; wrath is one of the fiends besetting man, and "goodness is little in the mind of a man of wrath."[16]

[Footnote 12: Tâo Teh King, ii. 63. 1. According to Thâi-Shang, 4, a bad man "broods over resentment without ceasing."]

[Footnote 13: Mencius, v. 1. 3. 2.]

[Footnote 14: Laws of Manu, vi. 48. Cf. ibid. viii. 313; Monier-Williams, Indian Wisdom, pp. 444, 446; Muir, Additional Moral and Religious Passages, rendered from the Sanskrit, p. 30.]

[Footnote 15: Dhammapada, i. 5; xv. 197; xvii. 223. Cf. J[=a]taka Tales, i. 22; Oldenberg, Buddha, p. 298.]

[Footnote 16: Dînâ-î-Maînôg-î Khirad, ii. 16; xli. 11; xxxix. 26.]

In Leviticus hatred is condemned:--"Thou shalt not hate thy brother in thine heart. . . . Thou shalt not avenge, nor bear any grudge against the children of thy people."[17] Sirach, whom I have already quoted, says in another passage, "Forgive thy neighbour the hurt that he has done unto thee, so shall thy sins also be forgiven when thou prayest."[18] According to the Talmud, "whosoever does not persecute them that persecute him, whosoever takes an offence in silence, he who does good because of love, he who is cheerful under his sufferings they are the friends of God, and of them the Scripture says, And they shall shine forth as does the sun at noon-day."[19] The Koran, whilst repeating the old rule, "an eye for an eye and a tooth for a tooth,"[20] at the same time teaches that Paradise is "for those who repress their rage, and those who pardon men; God loves the kind."[21] Muhammedan tradition puts the following words in the mouth of the Prophet:--"Say not, if people do good to us, we will do good to them, and if people oppress us, we will oppress them: but resolve that if people do good to you, you will do good to them, and if they oppress you, oppress them not again."[22] Professor Goldziher emphasises Muhammed's opposition to the traditional rule of the Arabs that an enemy is a proper object of hatred;[23] and Syed Ameer Ali has collected various passages from the writings of Muhammedan scholars, which prove that, {76} in spite of what has often been said to the contrary, forgiveness of injuries is by no

means foreign to the spirit of Islam.[24] Thus the author of the Kashshâf prescribes, "Seek again him who drives you away; give to him who takes away from you; pardon him who injures you: for God loveth that you should cast into the depth of your souls the roots of His perfections."[25] That "the sandal-tree perfumes the axe that fells it," is a saying in everyday use among the Muhammedans of India.[26] And Lane often heard Egyptians forgivingly say, on receiving a blow from an equal, "God bless thee," "God requite thee good," "Beat me again."[27]

[Footnote 17: Leviticus, xix. 17 sq. Cf. Exodus, xxiii. 4.]

[Footnote 18: Ecclesiasticus, xxviii. 2. Cf. ibid. x, 6; Proverbs, xxv. 21.]

[Footnote 19: Deutsch, Literary Remains, p. 58. Cf. Katz, Der wahre Talmudjude, p. 11, sq.]

[Footnote 20: Koran, ii. 190: "Whoso transgresses against you, transgress against him like as he transgressed against you."]

[Footnote 21: Ibid. iii. 125. Cf. ibid. xxiii. 98; xxiv. 22; xli. 34.]

[Footnote 22: Lane-Poole, Speeches and Table-Talk of Mohammad, p. 147.]

[Footnote 23: Goldziher, Mohammedanische Studien, i. 15 sq.]

[Footnote 24: Ameer Ali, Ethics of Islam, p. 26 sqq.]

[Footnote 25: Ibid. p. 7. Idem, Life and Teachings of Mohammed, p. 280.]

[Footnote 26: Poole, Studies in Mohammedanism, p. 226.]

[Footnote 27: Lane, Modern Egyptians, p. 314 sq.]

The principles of forgiveness had also advocates in Greece and Rome. In one of the Platonic dialogues, Socrates says, "We ought not to retaliate or render evil for evil to any one, whatever evil we may have suffered from him"; though he wisely adds that "this opinion has never been held, and never will be held, by any considerable number of persons."[28] The Stoics strongly condemned anger as unnatural and unreasonable. "Mankind is born for mutual assistance, anger for mutual ruin."[29] "Anger is a crime of the mind; . . . it often is even more criminal than the faults with which it is angry."[30] He is the best and purest "who pardons others as if he sinned himself daily, but avoids sinning as if he never pardoned."[31] "If any one is angry with you, meet his anger by returning benefits for it."[32] "The cynic loves those who beat him."[33]

[Footnote 28: Plato, Crito, p. 49.]

[Footnote 29: Seneca, De ira, i. 5.]

[Footnote 30: Ibid. i. 16; ii. 6.]

[Footnote 31: Pliny, Epistolæ, ix. 22 (viii. 22).]

[Footnote 32: Seneca, op. cit. ii. 34.]

[Footnote 33: Epictetus, Dissertationes, iii. 22, 54.]

Forgiveness of enemies is thus by no means an exclusively Christian tenet, although it has never before or after been inculcated with the same emphasis as it was by Jesus. "Love your enemies; bless them that curse you, do good to them that hate you, and pray for them which despitefully use you, and persecute you."[34] When St. Peter asked, "Lord, how oft shall my brother sin against me, and I forgive him? till seven times?" Jesus replied, "I say not unto thee, Until seven times: but, Until seventy times seven,"[35]--that is, as often as he repeats the offence. It would seem that Jesus by these sentences expressly forbade men to avenge themselves, or even {77} to feel resentment on their own behalf; and so also he was understood by St. Paul.[36]

[Footnote 34: St. Matthew, v. 44. Cf. ibid. v. 39 sq.; vi. 14 sq.; St. Luke, vi. 27 sqq.; xvii. 3 sq.; St. Mark, xi. 25 sq.]

[Footnote 35: St. Matthew, xviii. 21 sq.]

[Footnote 36: Romans, xii. 19 sqq.; 1 Thessalonians, v. 14 sq.; Colossians, iii. 12 sq.]

The rule of retaliation and the rule of forgiveness, however, are not so radically opposed to each other as they appear to be. What the latter condemns is, in reality, not every kind of resentment, but non-moral resentment; not impartial indignation, but personal hatred. It prohibits revenge, but not punishment. According to the Laws of Manu, crime was so indispensably to be followed by punishment, that if the king pardoned a thief or a perpetrator of violence, instead of slaying or striking him, the guilt fell on the king;[37] and if Lao-tsze was an enemy to the infliction of any kind of suffering, it was because he held that in a well-governed State the necessity for punishment could not arise, as crime would cease to exist.[38] The Chinese book, Merits and Errors Scrutinised, which regards it as a merit to refrain from avenging an injury, adds that, "if a man should omit to avenge the injuries of his parents, it would become an error."[39] Jesus was certainly not free from righteous indignation. It does not appear that he ever forgave the legalists who sinned against the kingdom of God, and he told his disciples that, if a brother who had trespassed against his brother neglected to hear the church, he should be looked upon as a heathen and a publican.[40] Christian writers have laid much stress upon the circumstance that Jesus enjoined men to forgive their own enemies, but not to abstain from resenting injuries done to others. According to Thomas Aquinas, "the good bear with the wicked to this extent, that, so far as it is proper to do so, they patiently endure at their hands the injuries done to themselves; but they do not bear with them to the extent of enduring the injuries done to God and their neighbours. For Chrysostom says, 'For it {78} is praiseworthy to be patient under one's own wrongs, but the height of impiety to dissemble injuries done to God.'"[41] Practically, at least, Christianity has not altered the validity of the Aristotelian rule that anger admits not only of an excess, but of a defect, and that we ought to feel angry at certain things.[42] As Plutarch says, we even think those worthy of hatred who are not vexed at hateful individuals; and we can sympathise with the man who, hearing somebody praise Charillus, king of Sparta, for his gentleness, replied, "How can Charillus be good, who is not harsh even to the bad?"[43] Moreover, the belief in a transcendental retributive justice, in an ultimate punishment of badness, which we meet with in Taouism,[44] Brahmanism, Buddhism,[45] Christianity,[46] side by side with the doctrine of forgiveness, is based upon the demand that wrong should be resented.

[Footnote 37: Laws of Manu, viii. 316, 346 sq. Cf. Gautama, xii. 45; Âpastamba, i. 9. 25. 5.]

[Footnote 38: Douglas, Confucianism and Taouism, p. 204.]

[Footnote 39: 'Merits and Errors scrutinised,' in Indo-Chinese Gleaner, iii. 153.]

[Footnote 40: St. Matthew, xviii. 15 sqq.]

[Footnote 41: Thomas Aquinas, Summa Theologia, ii.-ii. 108. 1. 2. Cf. Lactantius, De ira Dei, 17.]

[Footnote 42: Aristotle, Ethica Nicomachea, ii. 7. 10; iii. 1. 24; iv. 5. 3 sqq.]

[Footnote 43: Plutarch, De invidia et odio, 5.]

[Footnote 44: Douglas, op. cit. p. 257.]

[Footnote 45: Dhammapada, i. 15, 17; x. 137 sqq.]

[Footnote 46: Cf. Romans, xii. 19: "Vengeance is mine; I will repay, saith the Lord."]

It is easy to see why enlightened and sympathetic minds disapprove of resentment and retaliation springing from personal motives. Such resentment is apt to be partial. It is too often directed against persons whom impartial reflection finds to be no proper objects of indignation, and still more frequently it is unduly excessive. As Butler ays, "we are in such a peculiar situation, with respect to injuries done to ourselves, that we can scarce any more see them as they really are, than our eye can see itself."[47] "As

bodies seem greater in a mist, so do little matters in a rage"; hence the old rule that we ought not to punish whilst angry.[48] The more the moral consciousness is influenced by sympathy, the more severely it condemns any retributive infliction of pain which it regards as undeserved; and it seems to be in the first place with a {79} view to preventing such injustice that teachers of morality have enjoined upon men to love their enemies. It would, indeed, be absurd to blame a person for expressing moral indignation at an act simply because he himself happens to be the offended party; practically we allow him to be even more indignant than the impartial spectator would be, whereas excessive placability often meets with censure. Like Aristotle, we maintain that "to submit to insult, or to overlook an insult offered to our friends, shows a slavish spirit"[49]; and we agree with the Confucian maxims, that injuries should be recompensed, not with kindness, but with justice, and that nobody but he who deserves it should be an object of hatred.[50]

[Footnote 47: Butler, 'Sermon IX.--Upon Forgiveness of Injuries,' in Analogy of Religion, &c., p. 469.]

[Footnote 48: Plutarch, De cohibenda ira, 11. Montaigne, Essais, ii. 31 (Oeuvres, p. 396).]

[Footnote 49: Aristotle, Ethica Nicomachea, 5. 6.]

[Footnote 50: Lun Yü xiv. 36. 3; xvii. 9. 1, 5; xvii. 24. 1. Douglas, Confucianism and Taouism, p. 9. Cf. Chung Yung, x. 3; xxxi. 1; xxxiii. 4.]

At the same time, the injunctions of moralists that unjust resentment should be suppressed, are far from introducing any absolutely new element into the estimation of conduct. They only represent a higher stage of a process of moral development the early phases of which are found already in primitive societies. Even the savage who enjoins revenge as a duty, regards revenge under certain circumstances as wrong.[51] The restraining rule of like for like, as we shall see, is an instance of this.

[Footnote 51: Concerning the Dacotahs, Prescott observes, "There are cases where the Indians say retaliation is wrong, and they try to prevent it" (Schoolcraft, Indian Tribes, ii. 197).]

The aggressive character of moral disapproval has become more disguised, not only by the more scrutinising attitude towards the resentment and retaliation which distinguishes the moral consciousness of a higher type, but by the different way in which the aggressiveness displays itself. The infliction of suffering merely for the sake of retribution is condemned, and the rule is laid down that we should hate, not the sinner, but only the sin.

Punishment, which expresses more or less faithfully the moral indignation of the society which inflicts it, is externally similar to an act of revenge; it causes, or is intended {80} to cause, pain in return for inflicted pain. For ages it was looked upon as a matter of course that if a person had committed an offence he should have to suffer for it. This is still the notion of the multitude, as also of a host of theorisers, who, by calling punishment an expiation, or a reparation, or a restoration of the disturbed equilibrium of justice, only endeavour to give a philosophical sanction to a very simple fact, the true nature of which they too often have failed to grasp. The infliction of pain, however, is not an act which the moral consciousness regards with indifference, even in the case of a criminal; and to many enlightened minds with keen sympathy for human suffering, it has appeared both unreasonable and cruel that the State should wilfully torment him to no purpose. But whilst retributive punishment has been condemned, punishment itself has been defended; it is only looked upon in a different light, not as an end by itself, but as a means of attaining an end. It is to be inflicted, not because wrong has been done,

but in order that wrong be not done. Its object is held to be, either to deter from crime, or to reform the criminal, or by means of elimination or seclusion, to make it physically impossible for him to commit fresh crimes.

These views were expressed already in Greek and Roman antiquity.[52] According to Plato, a reasonable man punishes for the sake of deterring from wickedness, or with a view to correcting the offender.[53] Aristotle looks upon punishment as a moral medicine.[54] Seneca maintains that the law, in punishing wrong, aims at three ends: "either that it may correct him whom it punishes, or that his punishment may render other men better, or that, by bad men being put out of the way, the rest may live without fear."[55] In modern times all these theories have had, and still have, their numerous adherents. According to Hugo Grotius, "men are so bound together by their common {81} nature, that they ought not to do each other harm, except for the sake of some good to be attained"; hence "man is not rightly punished by man merely for the sake of punishing"; advantage alone makes punishment right--"either the advantage of the offender, or of him who suffers by the offence, or of persons in general."[56] For a long time the view taken by Hobbes, that "the aym of Punishment is not a revenge, but terrour,"[57] remained the leading doctrine on the subject, among philosophers, as well as legislators. It was shared by Montesquieu,[58] Beccaria,[59] and filangieri,[60] by Anselm von Feuerbach[61] and Schopenhauer,[62] and, in the main, by Bentham.[63] During the nineteenth century the principle of determent was largely superseded by the principle of reformation; whilst certain contemporary criminologists--like some previous ones[64]--are of opinion that punishment should aim to repress crime by an "absolute" or "relative elimination" of the criminal, that is, in extreme cases by killing him, but generally by incarcerating him in a criminal lunatic asylum, or by banishing him for ever or for a certain period, or by interdicting him from a particular neighbourhood.[65]

[Footnote 52: Cf. Laistner, Das Recht in der Strafe, p. 9 sqq.; Thonissen, Le droit pénal de la république Athénienne, p. 418 sqq.]

[Footnote 53: Plato, Protagoras, p. 324. Idem, Politicus, p. 293. Idem, Gorgias, p. 479. Idem, Leges, ix. 854; xi. 934; xii. 944.]

[Footnote 54: Aristotle, Ethica Nicomachea, ii. 3. 4.]

[Footnote 55: Seneca, De clementia, i. 22. Cf. Idem, De ira, i. 19.]

[Footnote 56: Grotius, De iure belli et pacis, ii. 20. 4 sqq.]

[Footnote 57: Hobbes, Leviathan, ii. 28, p. 243.]

[Footnote 58: Montesquieu, Lettres Persanes, 81.]

[Footnote 59: Beccaria, Dei delitti e delle pene, passim.]

[Footnote 60: filangieri, La scienza della legislazione, iii. 2. 27, vol. iv. 13 sq.]

[Footnote 61: von Feuerbach-Mittermaier, Lehrbuch des gemeinen in Deutschland gültigen Peinlichen Rechts, p. 38 sqq.]

[Footnote 62: Schopenhauer, Die Welt als Wille und Vorstellung, ii. 683 sqq.]

[Footnote 63: Bentham, Principles of Morals and Legislation, p. 170 sq. n. 1: ". . . Example is the most important end of all." Idem, Rationale of Punishment, p. 19 sqq.]

[Footnote 64: See von Feuerbach-Mittermaier, op. cit. p. 40.]

[Footnote 65: Garofalo, Criminologie, p. 251 sqq. Ferri, Criminal Sociology, p. 204 sqq.]

The advocates of these various theories are unanimous in condemning retributive punishment as wrong. Without the grounds of social defence, says M. Guyau, "the punishment would be as blameworthy as the crime, and . . . the lawgivers and the judges, by deliberately condemning the guilty to punishment, would become their fellows."[66]

For my own part I believe, on the contrary, that those who would venture to carry out all the consequences to which the theories of social defence or of reformation might lead, would be regarded even as more criminal than those they punished, not only by the {82} opponents, but probably by the very supporters of the theories in question. A brief statement of some of those consequences will, I hope, suffice to prove that punishment can hardly be guided exclusively by utilitarian considerations, but requires the sanction of the retributive emotion of moral disapproval.

[Footnote 66: Guyau, Esquisse d'une morale sans obligation ni sanction, p. 148.]

The principle of repressing crime by eliminating the criminal may at once be put aside, because it has no reference to the punishment of criminals, although it contains a suggestion--and a most excellent one indeed--as to the proper mode of treating them. Their exclusion from the company of their fellow-men--not to speak of their elimination by death--certainly entails suffering, but, according to the principle with which we are dealing, this suffering is not intended. On the other hand, punishment, in the ordinary sense of the word, always involves an express intention to inflict pain, whatever be the object for which pain is inflicted. We do not punish an ill-natured dog when we tie him up so as to prevent him from doing harm, nor do we punish a lunatic by confining him in a madhouse.

According to the principle of determent, the infliction of suffering in consequence of an offence is justified as a means of increasing public safety. The offender is sacrificed for the common weal. But why the offender only? It is quite probable that a more effective way of deterring from crime would be to punish his children as well; and if the notion of justice derived all its import from the result achieved by the punishment, there would be nothing unjust in doing so. The only objection which, from this point of view, might ever be raised against the practice of visiting the wrongs of the fathers upon the children, is that it is needlessly severe; the innocence of the children could count for nothing. Nor do I see why the law should not allow our own judges now and then to follow the example of their Egyptian colleague who in an intricate lawsuit caused a person avowedly innocent to be bastinadoed with the hope that whoever was the real {83} culprit might be induced to confess out of compassion.[67] Moreover, if the object of punishment is merely preventive, the heaviest punishment should be threatened where the strongest motive is needed to restrain. Consequently, an injury committed under great temptation, or in a passion, should be punished with particular severity; whereas a crime like parricide might be treated with more indulgence than other kinds of homicide, owing to the restraining influence of filial affection. Could the moral consciousness approve of this?

[Footnote 67: Burckhardt, Arabic Proverbs, p. 103 sq.]

Again, if punishment were to be regulated by the principle of reforming the criminal, the result would in some cases be very astonishing. There is no more incorrigible set of offenders than habitual vagrants and drunkards, whereas experience has shown that the most easily reformed of all offenders is often some person who has committed a serious crime. According to the reformation theory, the latter should soon be set free, whilst the petty offender might have to be shut up for all his life. Nay more, if the criminal proves absolutely incorrigible, and not the slightest hope of his reformation is left, there would no longer be any reason for punishing him at all.[68] The reformationist may also be asked why he does not try some more humane method of improving people's characters than by the infliction of suffering.

[Footnote 68: Cf. Morrison, Crime and its Causes, p. 203; Durkheim, Division du travail social, p. 94.]

It may seem strange that theories which are open to such objections should have been able to attract so many intelligent partisans. These theories must at least possess a certain plausibility. If punishment on the one hand springs from moral indignation, and on the other hand is frequently interpreted as a means either of deterring from crime or of reforming the criminal, there must obviously be some connection between these ends and the retributive aim of moral resentment. There must be certain facts which, to some extent, fill up the gap between the theory of retribution and the other theories of punishment.

{84} The doctrine of determent regards punishment as a means of preventing crime. A crime always involves the infliction of pain; and the one thing which men try to prevent for its own sake is pain. The one thing which arouses resentment is likewise pain. There must consequently be a general coincidence between the acts which people resent and the acts which the law would punish if it were framed on the principle of determent. But the resemblance between the desire to deter and resentment is greater still. Resentment is not only aroused by pain, but is a hostile attitude towards its cause, and its intrinsic object is to remove this cause, that is, to prevent pain. An act of moral resentment is therefore apt to resemble a punishment inflicted with a view to deterring from crime, provided that the punishment is directed against the cause of crime--the criminal himself--and is not unduly severe.

The doctrine of reformation aims at the removal of a criminal disposition of mind by improving the offender. Moral resentment likewise aims at the removal of a volitional cause of pain, by bringing about repentance in the offender. That repentance ought to be followed by forgiveness, partial or total, is a widely recognised moral claim.

According to the Chinese Penal Code, whoever, having committed an injury which can be repaired by restitution or compensation, surrenders himself voluntarily, and acknowledges his guilt to a magistrate, before it is otherwise discovered, shall be freely pardoned, though all claims upon his property shall be duly liquidated.[69] In Madagascar, according to a law made in 1828, "all the fines shall be reduced one-half, according to the nature of the fines, if the persons guilty accuse themselves."[70] According to Zoroastrianism, one element of atonement consists in repentance, as manifested by avowal of the guilt and by the recital of a formula, the Patet.[71] It is said in the Laws of Manu:--"In proportion as a man who has done wrong, himself {85} confesses it, even so far he is freed from guilt, as a snake from its slough. . . . He who has committed a sin and has repented, is freed from that sin, but he is purified only by the resolution of ceasing to sin and thinking 'I will do so no more.'"[72] According to the Rig-Veda, Varuna inflicts terrible punishments on the hardened criminal, but is merciful to him who repents; to Varuna the cry of anguish from remorse ascends, and before him the sinner comes to discharge himself of the burden of his guilt by confession.[73] So, also, Zeus pardons the repentant.[74] The main doctrine of Judaism on the subject of atonement is comprised in the single word Repentance. No teachers, says Mr. Montefiore, "exalted the place and power of repentance more than the Rabbis. There was no sin for which in their eyes a true repentance could not obtain forgiveness from God."[75] According to the Talmud, a space of only two fingers' breadth lies between Hell and Heaven: the sinner has only to repent sincerely, and the gates to everlasting bliss will spring open.[76] Jesus commanded his disciples to forgive injuries if followed by repentance:--"If thy brother trespass against thee, rebuke him; and if he repent, forgive him. And if he trespass against thee seven times in a day, and seven times in a day turn again to thee, saying, I repent; thou shalt forgive him."[77]

[Footnote 69: Ta Tsing Leu Lee, sec. xxv. p. 27 sq.]

[Footnote 70: Ellis, History of Madagascar, i. 386.]

[Footnote 71: Darmesteter, in Sacred Books of the East, iv. p. lxxxvi.]

[Footnote 72: Laws of Manu, xi. 229, 231. Cf. ibid. xi. 228, 230.]

[Footnote 73: Rig-Veda, i. 25. 1 sq.; ii. 28. 5 sqq.; v. 85. 7 sq.; vii. 87. 7, 88. 6 sq., 89. 1 sqq. Barth, Religions of India, p. 17.]

[Footnote 74: Ilias, ix. 502 sqq.]

[Footnote 75: Montefiore, op. cit. pp. 524, 335 n.]

[Footnote 76: Deutsch, Literary Remains, p. 53. Cf. ibid. p. 56; Katz, Der wahre Talmudjude, p. 87 sq.; Kohler, 'Atonement,' in Jewish Encyclopedia, ii. 279; Moore, 'Sacrifice' in Cheyne and Black, Encyclopædia Biblica, iv. 4224 sq.]

[Footnote 77: St. Luke, xvii. 3 sq.]

But repentance not only blunts the edge of moral indignation and recommends the offender to the mercy of men and gods: it is the sole ground on which pardon can be given by a scrupulous judge. When sufficiently guided by deliberation and left to itself, without being unduly checked by other emotions, the feeling of moral resentment is apt to last as long as its cause remains unaltered, that is until the will of the offender has ceased to be offensive; and it ceases to be offensive only when he acknowledges his guilt and repents. It is true that the mere performance of certain ceremonies is frequently supposed to relieve the performer of his sins,[78] and that the {86} same end is thought to be attained by pleasing God in some way or other, by sacrifice, or alms-giving, or the like. Men even lay claim to divine forgiveness as a right belonging to them in virtue of some meritorious deeds of theirs, according to the doctrine of opera supererogativa--a doctrine which, in substance, is not restricted to Roman Catholicism, but is found, in a more or less developed form, in Judaism,[79] Muhammedanism,[80] Brahmanism, [81] and degenerated Buddhism.[82] But all such ideas are objectionable to the moral consciousness of a higher type. They are based on the crude notion that sin is a material substance which may be removed by material means; or on the belief that an offender may compound with the deity for sinning against him, in the same way as he pacifies his injured neighbour, by bribery or flattery; or on the assumptions that by a good or meritorious deed a man has done more than his duty, that a good deed stands in the same relation to a bad deed as a claim to a debt, that the claim is made on the same person to whom the debt is due, namely, God--even though it beinclinedinclined only by his mercy--and that the debt consequently may be compensated by the claim in the same way as the payment of a certain sum may compensate for a loss inflicted. This doctrine attaches badness and goodness to external acts rather than to mental facts. Reparation implies compensation for a loss. The loss may be compensated by the bestowal of a corresponding advantage; but no reparation can be given for badness. Badness can only be forgiven, and moral forgiveness can be granted only on condition that the agent's mind has undergone a radical alteration for the better, that the badness of the will has given way to repentance.[83] Hence the Reformation {87} proscribed offerings for the redemption of sins, together with the trade in indulgences; and we meet with an analogous movement in other comparatively advanced forms of religion. In reformed Brahmanism, repentance is declared to be the only means of redeeming trespasses.[84] The idea expressed in the Psalms, that God delights not in burnt offerings, but that the sacrifices of God are a broken and a contrite heart,[85] became the prevailing opinion among the Rabbis, most of whom regarded repentance as the conditio sine quâ non of expiation and the forgiveness of sins.[86] Let us also remember that he who commanded his followers to forgive a brother for his sin, at the same time pronounced the qualification: "if he repent."[87]

[Footnote 78: Supra, p. 53 sqq. Heriot, Travels through the Canadas, p. 378 (ancient Mexicans). Adair, History of the American Indians, p. 150. Krasheninnikoff, History of Kamchatka, p. 178. Williams and Calvert, Fiji, p. 24.]

[Footnote 79: Montefiore, op. cit. p. 525 sqq.]

[Footnote 80: Koran, xi. 116. Sell, Faith of Islám, p. 220 sq. According to Muhammadanism, however, it is only "little sins" that are forgiven if some good actions are done, whereas "great sins" can only be forgiven after due repentance (ibid. p. 214).]

[Footnote 81: Wheeler, History of India, ii. 475.]

[Footnote 82: Indo-Chinese Gleaner, iii. 150, 161, 164. Davis, China, ii. 48.]

[Footnote 83: This point was certainly not overlooked by the Catholic moralists, but even the most ardent apology cannot explain away the idea of reparation in the Catholic doctrine of the justification of man (cf. Manzoni, Osservazioni sulla Morale Cattolica, p. 100). Penance consists of contrition, confession, and satisfaction, and contrition itself is chiefly "a willingness to compensate" (Catechism of the Council of Trent, ii. 5. 22).]

[Footnote 84: Goblet d'Alviella, Hibbert Lectures on the Origin and Growth of the Conception of God, p. 263.]

[Footnote 85: Psalms, li. 16 sq.]

[Footnote 86: Moore, loc. cit. col. 4225.]

[Footnote 87: Cf. Martineau, Types of Ethical Theory, ii. 203.]

That moral indignation is appeased by repentance, and that repentance is the only proper ground for forgiveness, is thus due, not to the specifically moral character of such indignation, but to its being a form of resentment. This is confirmed by the fact that an angry and revengeful man is apt to be in a similar way influenced by the sincere apologies of the offender. As Aristotle said, men are placable in regard to those who acknowledge and repent their guilt: "there is proof of this in the case of chastising servants; for we chastise more violently those who contradict us, and deny their guilt; but towards such as acknowledge themselves to be justly punished, we cease from our wrath."[88] To take an instance from the savage world. The Caroline Islander, according to Mr. Christian, "is inclined to be revengeful, and will bide his time patiently until his opportunity comes. Yet he is not implacable, and counts reconciliation a noble and a princely thing. There is a form of etiquette to be observed on {88} these occasions--a present (katom) is made, an apology offered--a piece of sugar-cane accepted by the aggrieved party--honour is satisfied and the matter ends."[89] In the case of revenge, external satisfaction or material compensation is often allowed to take the place of genuine repentance, and the humiliation of the adversary may be sufficient to quiet the angry passion. But the revenge felt by a reflecting mind is not so readily satisfied. It wants to remove the cause which aroused it. The object which resentment is chiefly intent upon, Adam Smith observes, "is not so much to make our enemy feel pain in his turn, as to make him conscious that he feels it upon account of his past conduct, to make him repent of that conduct, and to make him sensible, that the person whom he injured did not deserve to be treated in that manner."[90] The delight of revenge, says Bacon, "seemeth to be not so much in doing the hurt, as in making the party repent."[91]

[Footnote 88: Aristotle, Rhetorica, ii. 3. 5.]

[Footnote 89: Christian, Caroline Islands, p. 72.]

[Footnote 90: Adam Smith, Theory of Moral Sentiments, p. 138 sq.]

[Footnote 91: Bacon, 'Essay IV. Of Revenge,' in Essays, p. 45. Cf. Montaigne, Essais, ii. 27 (Oeuvres, p. 384).]

We can now see the origin of the idea that the true end of punishment is the reformation of the criminal. This idea merely emphasises the most humane element in

resentment, the demand that the offender's will shall cease to be offensive. The principle of reformation has thus itself a retributive origin. This explains the fact, otherwise inexplicable, that the amendment which it has in view is to be effected by the infliction of pain. It also accounts for the inconsistent attitude of the reformationist towards incorrigible offenders, already commented upon. Resentment gives way to forgiveness only in the case of repentance, not in the case of incorrigibility. Hence, not even the reformationist regards incorrigibility as a legitimate ground for exempting a person from punishment, although this flatly contradicts his theory about the true aim of all punishment.

Thus the theories both of determent and of reformation are ultimately offspring of the same emotion that first {89} induced men to inflict punishment on their fellow-creatures. It escaped the advocates of these theories that they themselves were under the influence of the very principle they fought against, because they failed to grasp its true import. Rightly understood, resentment is preventive in its nature, and, when sufficiently deliberate, regards the infliction of suffering as a means rather than as an end. It not only gives rise to punishment, but readily suggests, as a proper end of punishment, either determent or amendment or both. But, first of all, moral resentment wants to raise a protest against wrong. And the immediate aim of punishment has always been to give expression to the righteous indignation of the society which inflicts it.

Now it may be thought that men have no right to give vent to their moral resentment in a way which hurts their neighbours unless some benefit may be expected from it. In the case of many other emotions, we hold that the conative element in the emotion ought not to be allowed to develop into a distinct volition or act; and it would seem that a similar view might be taken with reference to the aggressiveness inherent in moral disapproval. It is a notion of this kind that lies at the bottom of the utilitarian theories of punishment. They are protests against purposeless infliction of pain, against crude ideas of retributive justice, against theories hardly in advance of the low feelings of the popular mind. Therefore, they mark a stage of higher refinement in the evolution of the moral consciousness; and if the principles of determent and reformation are open to objections which will be shared by almost everyone, that is due to other circumstances than their demand that punishment should serve a useful end. As we have seen, they ignore the fact that a punishment, in order to be recognised as just, must not transgress the limits set down by moral disapproval, that it must not be inflicted on innocent persons, that it must be proportioned to the guilt, that offenders who are amenable to discipline must not be treated more severely {90} than incorrigible criminals. These theories also seem to exaggerate the deterring or reforming influence which punishments exercise upon criminals,[92] whilst, in another respect, they take too narrow a view of its social usefulness. Whether its voice inspire fear or not, whether it wake up a sleeping conscience or not, punishment, at all events, tells people in plain terms what, in the opinion of the society, they ought not to do. It gives the multitude a severe lesson in public morality; and it is difficult to see how quite the same effect could be attained by any other method. Retaliation is such a spontaneous expression of indignation, that people would hardly realise the offensiveness of an act which evokes no signs of resentment. Of course, punishment, in the legal sense of the term, is only one form--the most concrete form--of public retaliation; it is, indeed, probable that public opinion exercises a greater influence on men than punishment would do without its aid. [93] But punishment, in combination with public opinion, has no doubt to some extent an educating, and not merely a deterring, influence upon the members of a society. As Sir James Stephen observes, "the sentence of the law is to the moral sentiment

of the public in relation to any offence what a seal is to hot wax. It converts into a permanent final judgment what might otherwise be a transient sentiment."[94] finally, it must not be overlooked that the infliction of punishment upon the perpetrator of a grave offence gratifies a strong general desire, and, even though the pain which always accompanies an unsatisfied desire would by itself afford no sufficient justification for subjecting the offence to such intense {91} suffering, other more serious consequences might easily result from leaving him unpunished. The public indignation might find a vent in some less regular and less discriminating mode of retaliation, like lynching; or, on the other hand, by remaining unsatisfied, the desire might dwindle away from want of nourishment, and the moral standard suffer a corresponding loss.

[Footnote 92: On the limited efficiency of punishment as a deterrent, see Ferri, op. cit. p. 82 sq. On the moral insensibility of the instinctive and habitual criminal, and absence of remorse, see Havelock Ellis, The Criminal, p. 124 sqq.]

[Footnote 93: Cf. Locke, Essay concerning Human Understanding, ii. 28. 12 (Philosophical Works, p. 283); Shaftesbury, 'Inquiry concerning Virtue and Merit,' i. 3. 3, in Characteristicks, ii. 64.]

[Footnote 94: Stephen, History of the Criminal Law of England, ii. 81. Cf. Shaftesbury, op. cit. ii. 64: "As to punishments and rewards, their efficacy is not so much from the fear or expectation which they raise, as from a natural esteem of virtue, and detestation of villainy, which is awaken'd and excited by these publick expressions of the approbation and hatred of mankind in each case."]

However, it is not to be believed that, in practice, the infliction of punishment is, or ever will be, regulated merely by considerations of social utility, even within the limits of what is recognised as legitimate by the moral sentiment. The retributive desire is so strong, and appears so natural, that we can neither help obeying it, nor seriously disapprove of its being obeyed. The theory that we have a right to punish an offender only in so far as, by doing so, we promote the general happiness, really serves in the main as a justification for gratifying such a desire, rather than as a foundation for penal practice. Moreover, this theory refers, and pretends to refer, only to outward behaviour--to punishment, not to the emotion from which punishment springs. It condemns the retributive act, not the retributive desire.

But at the same time the aggressive element in the emotion itself has undergone a change, which tends to conceal its true nature by partly leading it into a new channel, or, rather, by narrowing the channel in which it discharges itself. Resentment is directed against the cause of the offence by which it was aroused--broadly speaking, the offender. But when duly reflecting upon the matter, we cannot fail to admit that the real cause was not the offender as a whole, but his will. Deliberate and discriminating resentment is therefore apt to turn against the will rather than against the willer; as we have seen, it is desirous to inflict pain on the offender chiefly as a means of removing the cause of pain suffered, i.e., the existence of the bad will. If this is the case with deliberate resentment in general, it must particularly be the case with moral indignation, which is more likely to be {92} influenced by sympathy, and hence more discriminate, than non-moral resentment. This fact gives rise to the moral commandment that we should hate, not the sinner, but the sin. The hostile reaction should be focussed on the will of the offender, and his sensibility should be regarded merely as an instrument through which the will is worked upon. But there is little hope that such a demand can ever be strictly enforced. Professor Sidgwick justly remarks that, though moralists try to distinguish between anger directed "against the act" and anger directed "against the agent," it may be fairly doubted whether it is within the capacity of ordinary human

nature to maintain this distinction in practice.[95] The will which offends, and the sensibility which suffers, cannot seriously be looked upon as two different entities the one of which should not be punished for the fault of the other. The person himself is held responsible for the offence. The hostile reaction turns against his will because only by acting upon the will can the cause of pain be removed. But since the remotest ages the aggressive attitude towards this cause has been connected with an instinctive desire to produce counter-pain; and, though we may recognise that such a desire, or rather the volition into which it tends to develop, may be morally justifiable only if it is intended to remove the cause of pain, we can hardly help being indulgent to the gratification of a human instinct which seems to be well nigh ineradicable. It is the instinctive desire to inflict counter-pain that gives to moral indignation its most important characteristic. Without it, moral condemnation and the ideas of right and wrong would never have come into existence. Without it, we should no more condemn a bad man than a poisonous plant. The reason why moral judgments are passed on volitional beings, or their acts, is not merely that they are volitional, but that they are sensitive as well; and however much we try to concentrate our indignation on the act, it derives its peculiar flavour from being directed {93} against a sensitive agent. I have heard persons of a highly sympathetic cast of mind assert that a wrong act awakens in them only sorrow, not indignation; but though sorrow be the predominant element in their state of mind, I believe that, on a close inspection, they would find there another emotion as well, one in which there is immanent an element of hostility, however slight. It is true that the intensity of moral indignation cannot always be measured by the actual desire to cause pain to the offender; but its intensity seems nevertheless to be connected with the amount of suffering which the indignant man is willing to let the offender undergo in consequence of the offence. Which of us could ever, quite apart from any utilitarian considerations, feel the same sympathy with a person who suffers on account of his badness as with one who suffers innocently? It is one of the most interesting facts related to the moral consciousness of a higher type, that it in vain condemns the gratification of the very desire from which it sprang. It is like a man of low extraction, who, in spite of all acquired refinement, bears his origin stamped on his face.

[Footnote 95: Sidgwick, Methods of Ethics, p. 364.]

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Whilst resentment is a hostile attitude of mind towards a cause of pain, retributive kindly emotion is a friendly attitude of mind towards a cause of pleasure. Just as in the lower forms of anger there is hardly any definite desire to produce suffering, only a vehement desire to remove the cause of pain, so in the lower form of retributive kindly emotion there is hardly any definite desire to produce pleasure, only a friendly endeavour to retain the cause of the pleasure experienced. When the emotion contains a definite desire to give pleasure in return for pleasure received, and at the same time is felt by the favoured party in his capacity of being himself the object of the benefit, it is called gratitude. We often find intermingled with gratitude a feeling of indebtedness; he upon whom a benefit has been conferred feels himself as a debtor, and regards the benefactor as his creditor. This feeling has {94} even been represented as essential to, or as a condition of, gratitude;[96] but it is not implied in what I here understand by gratitude. It is one thing to be grateful, and another thing to feel that it is one's duty to be grateful. A depression of the "self-feeling," a feeling of humiliation, also frequently accompanies gratitude as a motive for requiting the benefit; but it is certainly not an element in gratitude itself.

[Footnote 96: Horwicz, Psychologische Analysen, ii. 333: "Ohne dieses Gefühl des Verbundenseins . . . . kann keine Dankbarkeit auskommen." Cf. Milton, Paradise Lost, iv. 52 sqq.]

Retributive kindly emotion is a much less frequent phenomenon in the animal kingdom than is the emotion of resentment. In many animal species not even the germ of it is found, and where it occurs it is generally restricted within narrow limits. Anybody may provoke an animal's anger, but only towards certain individuals it is apt to feel retributive kindliness. The limits for this emotion are marked off by the conditions under which altruistic sentiments in general tend to arise--a subject which will be discussed in another connection. Indeed, social affection is itself essentially retributive. Gregarious animals take pleasure in each other's company, and with this pleasure is intimately associated kindly feeling towards its cause, the companion himself. Social affection presupposes reciprocity; it is not only a friendly sentiment towards another individual, but towards an individual who is conceived of as a friend.

The intrinsic object of retributive kindliness being to retain a cause of pleasure, we may assume that the definite desire to produce pleasure in return for pleasure received is due to the fact that such a desire materially promotes the object in question--exactly in the same way as the definite desire to inflict pain in return for pain inflicted has become an element in resentment because such a desire promotes the intrinsic object of resentment, the removal of the cause of pain. And as natural selection accounts for the origin of resentment, so it also accounts for the {95} origin of retributive kindly emotion. Both of these emotions are useful states of mind; by resentment evils are averted, by retributive kindliness benefits are secured. That there is such a wide difference in their prevalence is explicable from the simple facts that gregariousness--which is the root of social affection, and, largely at least, a condition of the rise of retributive kindly emotions--is an advantage only to some species, not to all, and that even gregarious animals have many enemies, but few friends.

In some cases the friendly reaction in retributive kindliness is directed towards individuals who have in no way been the cause of the pleasure which gave rise to the emotion. So intimate is the connection between the stimulus and the reaction, that he who is made happy often feels a general desire to make others happy.[97] But such an indiscriminate reaction is only an offset of the emotion with which we are here concerned. Moreover, retributive kindly emotion often confers benefits upon somebody nearly related to the benefactor, if he himself be out of reach, or in addition to benefits conferred on him. But in such cases the gratitude towards the benefactor is the real motive.

[Footnote 97: That a happy man wants to see glad faces around him, is also due to another cause, which has been pointed out by Dr. Hirn (Origins of Art, p. 83): from their expression he wants to derive further nourishment and increase for his own feeling.]

That moral approval--by which I understand that emotion of which moral praise or reward is the outward manifestation--is a kind of retributive kindly emotion and as such allied to gratitude, will probably be admitted without much hesitation.[98] Its friendly character is not, like the hostile character of moral disapproval, disguised by any apparently contradictory facts. To confer a benefit upon a person is not generally regarded as wrong, unless, indeed, it involves an encroachment on somebody's rights or is contrary to the feeling of justice. And that moral approval sometimes bestows its favours upon undeserving {96} individuals for the merits of others, can no more invalidate the fact that it is essentially directed towards the cause of pleasure, than the occasional infliction of punishments upon innocent individuals invalidates the fact that

moral disapproval is essentially directed against the cause of pain. Unmerited rewards are explicable on grounds analogous to those to which we have traced unmerited punishments.

[Footnote 98: The relationship between gratitude and moral approval has been recognised by Hartley (Observations on Man, i. 520) and Adam Smith (Theory of Moral Sentiments, passim).]

The doctrine of family solidarity leads, not only to common responsibility for crimes, but to common enjoyment of merits.

In Madagascar, exemption from punishment was claimed by the descendants of persons who had rendered any particular service to the sovereign or the State, as also by other branches of the family, on the same plea.[99] According to Chinese ideas, the virtuous conduct of any individual will result, not only in prosperity to himself, but in a certain quantity of happiness to his posterity, unless indeed the personal wickedness of some of the descendants neutralise the benefits which would otherwise accrue from the virtue of the ancestor;[100] and, conversely, the Chinese Government confers titles of nobility upon the dead parents of a distinguished son.[101] The idea that the dead share in punya or pâpa, that is, the merit or demerit of the living, and that the happiness of a man in the next life depends on the good works of his descendants, was early familiar to the civilised natives of India; almost all legal deeds of gift contain the formula that the gift is made "for the increase of the punya of the donor and that of his father and mother."[102]

[Footnote 99: Ellis, History of Madagascar, 376.]

[Footnote 100: Giles, Strange Stories from a Chinese Studio, i. 426, n. 3; ii. 384, n. 63. Doolittle, Social Life of the Chinese, ii. 398.]

[Footnote 101: Giles, op. cit. i. 305, n. 6. Wells Williams, Middle Kingdom, i. 422.]

[Footnote 102: Barth, Religions of India, p. 52, n. 4.]

But the vicarious efficacy of good deeds is not necessarily restricted to the members of the same family.

In a hymn of the Rig-Veda we find the idea that the merits or the pious may benefit their neighbours.[103] According to one of the Pahlavi texts, persons who are wholly unable to perform good works are supposed to be entitled to a share of any supererogatory good works performed by others.[104] The Chinese believe that {97} whole kingdoms are blessed by benevolent spirits for the virtuous conduct of their rulers.[105] Yahveh promised not to destroy Sodom for the sake of ten righteous, provided that so many righteous could be found in the town.[106] The doctrine of vicarious reward or satisfaction through good works is, in fact, more prevalent than the doctrine of vicarious punishment. Jewish theology has a great deal more to say about the acceptance of the merits of the righteous on behalf of the wicked, than about atonement through sacrifice.[107] The Muhammedans, who know nothing of vicarious suffering as a means of expiation, confer merits upon their dead by reciting chapters of the Koran and almsgiving, and some of them allow the pilgrimage to Mecca to be done by proxy.[108] Christian theology itself maintains that salvation depends on the merit of the passion of Christ; and from early times the merits of martyrs and saints were believed to benefit other members of the Church.[109]

[Footnote 103: Rig-Veda, vii. 35. 4.]

[Footnote 104: Dînâ-î-Maînôg-î Khirad xv. 3.]

[Footnote 105: de Groot, Religious System of China (vol. iv. book) ii. 435.]

[Footnote 106: Genesis, xviii. 32.]

[Footnote 107: Robertson Smith, Religion of the Semites, p. 424, n. 1.]

[Footnote 108: Lane, Modern Egyptians, pp. 247, 248, 532. Sell, op. cit. pp. 242, 278, 287, 288, 298. Cf. Wallin, Fórsta Resa från Cairo till Arabiska öknen, p. 103.]

[Footnote 109: Harnack, History of Dogma, ii. 133, n. 3.]

For the explanation of these and similar facts various circumstances have to be considered. Good deeds may be so pleasing to a god as to induce him to forgive the sins of the wicked in accordance with the rule that anger yields to joy. There is solidarity not only between members of the same family, but between members of the same social unit; hence the virtues of individuals may benefit the whole community to which they belong. The Catholic theologian argues that, since we are all regenerated unto Christ by being washed in the same baptism, made partakers of the same sacraments, and, especially, of the same meat and drink, the body and blood of Christ, we are all members of the same body. "As, then, the foot does not perform its functions solely for itself, but also for the benefit of the eyes; and as the eyes exercise their sight, not for their own, but for the common benefit of all the members; so should works of satisfaction be deemed common to all the members of the {98} Church."[110] Moreover, virtues, like sins, are believed to be in a material way transferable. In Upper Bavaria, when a dead person is laid out, a cake of flour is placed on his breast in order to absorb the virtues of the deceased, whereupon the cake is eaten by the nearest relatives.[111] And we are told that, in a certain district in the north of England, if a child is brought to the font at the same time as a body is committed to the ground, whatever was "good" in the deceased person is supposed to be transferred to the little child, since God does not allow any "goodness" to be buried and lost to the world, and such "goodness" is most likely to enter a little child coming to the sacrament of Baptism.[112] A blessing, also, no less than a curse, is looked upon in the light of material energy; goodness is not required for the acquisition of it, mere contact will do. Blessings are hereditary:--"The just man walketh in his integrity: his children are blessed after him."[113]

[Footnote 110: Catechism of the Council of Trent, ii. 5. 72.]

[Footnote 111: Am Urquell, ii. 101.]

[Footnote 112: Peacock, 'Executed Criminals and Folk-Medicine,' in Folk-Lore, vii. 280.]

[Footnote 113: Proverbs, xx. 7.]

It is no doubt more becoming for a god to pardon the sinner on account of the merits of the virtuous, than to punish the innocent for the sins of the wicked. It shows that his compassion overcomes his wrath; and the mercy of the deity is, among all divine attributes, that on which the higher monotheistic religions lay most stress. Allah said, "Whoso doth one good act, for him are ten rewards, and I also give more to whomsoever I will; and whoso doth ill, its retaliation is equal to it, or else I forgive him."[114] Nevertheless, the moral consciousness of a higher type can hardly approve that the wicked should be pardoned for the sake of the virtuous, or that the reward for an act should be bestowed upon anybody else than the agent. The doctrine of vicarious merit or recompense is not just; it involves that badness is unduly ignored; it is based on crude ideas of goodness and merit. The theory of opera supererogativa, as we have seen, attaches badness {99} and goodness to external acts rather than to mental facts, and assumes that reparation can be given for badness, whereas the scrutinising moral judge only forgives badness in case it is superseded by repentance. If thus a bad act cannot be compensated by a good one, even though both be performed by one and the same person, it can still less be compensated by the good act of another man. From various quarters we hear protests against the notion of vicarious merit--protests which emphasise the true direction of moral reward. Ezekiel, who reproved the old idea that the children's teeth

are set on edge because the fathers have eaten sour grapes, also taught that a wicked son is to reap no benefit from the blessings bestowed upon a righteous father.[115] "Fear the day," says the Koran, "wherein no soul shall pay any recompense for another soul."[116] The Buddhistic Dhammapada contains the following passage, which sums up our whole argument:--"By oneself the evil is done, by oneself one suffers; by oneself evil is left undone, by oneself one is purified. The pure and the impure stand and fall by themselves, no one can purify another."[117]

[Footnote 114: Lane-Poole, Speeches and Table-Talk of Mohammad, p. 147.]

[Footnote 115: Ezekiel, xviii. 5 sqq.]

[Footnote 116: Koran, ii. 44.]

[Footnote 117: Dhammapada, xii. 165.]

Chapter IV

THE NATURE OF THE MORAL EMOTIONS (concluded)

WE have seen that moral disapproval is a form of resentment, and that moral approval is a form of retributive kindly emotion. It still remains for us to examine in what respects these emotions differ from kindred non-moral emotions--disapproval from anger and revenge, approval from gratitude--in other words, what characterises them as specifically moral emotions.

It is a common opinion, held by all who regard the intellect as the source of moral concepts, that moral emotions only arise in consequence of moral judgments, and that, in each case, the character of the emotion is determined by the predicate of the judgment. We are told that, when the intellectual process is completed, when the act in question is definitely classed under such or such a moral category, then, and only then, there follows instantaneously a feeling of either approbation or disapprobation as the case may be.[1] When we hear of a murder, for instance, we must discern the wrongness of the act before we can feel moral indignation at it.

[Footnote 1: Fleming, Manual of Moral Philosophy, p. 97 sqq. Fowler, Principles of Morals, ii. 198 sqq.]

It is true that a moral judgment may be followed by a moral emotion, that the finding out the tendency of a certain mode of conduct to evoke indignation or approval is apt to call forth such an emotion, if there was none before, or otherwise to increase the one existing. It is, moreover, true that the predicate of a moral judgment, as {101} well as the generalisation leading up to such a predicate, may give a specific colouring to the approval or disapproval which it produces, quite apart from the general characteristics belonging to that emotion in its capacity of a moral emotion; the concepts of duty and justice, for instance, no doubt have a peculiar flavour of their own. But for all this, moral emotions cannot be described as resentment or retributive kindliness called forth by moral judgments. Such a definition would be a meaningless play with words. Whatever emotions may follow moral judgments, such judgments could never have been pronounced unless there had been moral emotions antecedent to them. Their predicates, as was pointed out above, are essentially based on generalisations of tendencies in certain phenomena to arouse moral emotions; hence the criterion of a moral emotion can in no case depend upon its proceeding from a moral judgment. But at the same time moral judgments, being definite expressions of moral emotions, naturally help us to discover the true nature of these emotions.

The predicate of a moral judgment always involves a notion of disinterestedness. When pronouncing an act to be good or bad, I mean that it is so, quite independently of any reference it might have to my own interests. A moral judgment may certainly have a selfish motive; but then it, nevertheless, pretends to be disinterested, which shows that disinterestedness is a characteristic of moral concepts as such. This is admitted even by the egoistic hedonist, who maintains that we approve and condemn acts from self-love. According to Helvetius, it is the love of consideration that a virtuous man takes to be in him the love of virtue; and yet everybody pretends to love virtue for its own sake, "this phrase is in every one's mouth and in no one's heart."[2]

[Footnote 2: Helvetius, De l'Homme, i. 263.]

If the moral concepts are essentially generalisations of tendencies in certain phenomena to call forth moral emotions, and, at the same time, contain the notion of {102} disinterestedness, we must conclude that the emotions from which they spring are felt disinterestedly. Of this fact we find an echo--more or less faithful--in the maxims of various ethical theorisers, as well as practical moralists. We find it in the utilitarian demand that, in regard to his own happiness and that of others, an agent should be "as strictly impartial as a disinterested and benevolent spectator";[3] in the "rule of righteousness" laid down by Samuel Clarke, that "We so deal with every man, as in like circumstances we could reasonably expect he should with us";[4] in Kant's formula, "Act only on that maxim which thou canst at the same time will to become a universal law";[5] in Professor Sidgwick's so-called axiom, "I ought not to prefer my own lesser good to the greater good of another";[6] in the biblical sayings, "Thou shalt love thy neighbour as thyself,"[7] and, "Whatsoever ye would that men should do to you, do ye even so to them."[8] The same fact is expressed in the Indian Mahabharata, where it is said:--"Let no man do to another that which would be repugnant to himself; this is the sum of righteousness; the rest is according to inclination. In refusing, in bestowing, in regard to pleasure and to pain, to what is agreeable and disagreeable, a man obtains the proper rule by regarding the case as like his own."[9] Similar words are ascribed to Confucius.[10] When Tsze-kung asked if there is any one word which may serve as a rule of practice for all one's life, the Master answered, "Is not Reciprocity such a word? What you do not want done to yourself, do not do to {103} others." And in another utterance Confucius showed that the rule had for him not only a negative, but a positive form. He said that, in the way of the superior man, there are four things to none of which he himself had as yet attained; to serve his father as he would require his son to serve him, to serve his prince as he would require his minister to serve him, to serve his elder brother as he would require his younger brother to serve him, and to set the example in behaving to a friend as he would require the friend to behave to him.[11]

[Footnote 3: Stuart Mill, Utilitarianism, p. 24.]

[Footnote 4: Clarke, Discourse concerning the Unchangeable Obligations of Natural Religion, p. 201.]

[Footnote 5: Kant, Grundlegung zur Metaphysik der Sitten, sec. 2 (Sämmtliche Werke, iv. 269).]

[Footnote 6: Sidgwick, Methods of Ethics, p. 383. However, as we have seen above, this so-called "axiom" is not a correct representation of the disinterestedness of moral emotions.]

[Footnote 7: Leviticus, xix. 18. St. Matthew, xxii. 39.]

[Footnote 8: St. Matthew, vii. 12. Cf. St. Luke, vi. 31.]

[Footnote 9: Mahabharata, xiii. 5571 sq., in Muir, Religious and Moral Sentiments, rendered from Sanskrit Writers, p. 107. Cf. Panchatantra, iii. (Benfey's translation, ii. 235).]

[Footnote 10: Lun Yü, xv. 23. Cf. ibid. xii. 2; Chung Yung, xiii. 3.]

[Footnote 11: Chung Yung, xiii. 4.]

This "golden rule" is not, as has been sometimes argued, a rule of retaliation.[12] It does not say, "Do to others what they wish to do to you"; it says, "Do to others what you wish, or require, them to do to you." It brings home to us the fact that moral rules are general rules, which ought to be obeyed irrespectively of any selfish considerations. If formulated as an injunction that we should treat our neighbour in the same manner as we consider that he, under exactly similar circumstances, ought to treat us, it is simply identical with the sentence, "Do your duty," with emphasis laid on the disinterestedness which is involved in the very conception of duty. So far, St. Augustine was right in saying that "Do as thou wouldst be done by" is a sentence which all nations under heaven are agreed upon.[13]

[Footnote 12: Letourneau, L'évolution religieuse dans les diverses races humaines, p. 553.]

[Footnote 13: St. Augustine, quoted by Lilly, Right and Wrong, p. 106.]

Disinterestedness, however, is not the only characteristic by which moral indignation and approval are distinguished from other, non-moral, kinds of resentment or retributive kindly emotion. It is, indeed, itself a form of a more comprehensive quality which characterises moral emotions--apparent impartiality. If I pronounce an act done to a friend or to an enemy to be either good or bad, that implies that I assume it to be so independently of the fact that the person to whom the act is done is my friend or my enemy. Conversely, if I pronounce an {104} act done by a friend or by an enemy to be good or bad, that implies that I assume the act to be either good or bad independently of my friendly or hostile feelings towards the agent. All this means that resentment and retributive kindly emotion are moral emotions in so far as they are assumed by those who feel them to be uninfluenced by the particular relationship in which they stand, both to those who are immediately affected by the acts in question, and to those who perform those acts. A moral emotion, then, is tested by an imaginary change of the relationship between him who approves or disapproves of the mode of conduct by which the emotion was evoked and the parties immediately concerned, whilst the relationship between the parties themselves is left unaltered. At the same time it is not necessary that the moral emotion should be really impartial. It is sufficient that it is tacitly assumed to be so, nay, even that it is not knowingly partial. In attributing different rights to different individuals, or classes of individuals, we are often, in reality, influenced by the relationship in which we stand to them, by personal sympathies and antipathies; and yet those rights may be moral rights, in the strict sense of the term, not mere preferences, namely, if we assume that any impartial judge would recognise our attribution of rights as just, or even if we are unaware of its partiality. Similarly, when the savage censures a homicide committed upon a member of his own tribe, but praises one committed upon a member of another tribe, his censure and praise are certainly influenced by his relations to the victim, or to the agent, or to both. He does not reason thus: it is blamable to kill a member of one's own tribe, and it is praiseworthy to kill a member of a foreign tribe--whether the tribe be mine or not. Nevertheless, his blame and his praise must be regarded as expressions of moral emotions.

Finally, a moral emotion has a certain flavour of generality. We have previously noticed that a moral judgment very frequently implies some vague assumption {105}

that it must be shared by everybody who possesses both a sufficient knowledge of the case and a "sufficiently developed" moral consciousness. We have seen, however, that this assumption is illusory. It cannot, consequently, be regarded as a conditio sine quâ non for a moral judgment, unless, indeed, it be maintained that such a judgment, owing to its very nature, is necessarily a chimera--an opinion which, to my mind, would be simply absurd. But, though moral judgments cannot lay claim to universality or "objectivity," it does not follow that they are merely individual estimates. Even he who fully sees their limitations must admit that, when he pronounces an act to be good or bad, he gives expression to something more than a personal opinion, that his judgment has reference, not only to his own feelings, but to the feelings of others as well. And this is true even though he be aware that his own conviction is not shared by those around him, nor by anybody else. He then feels that it would be shared if other people knew the act and all its attendant circumstances as well as he does himself, and if, at the same time, their emotions were as refined as are his own. This feeling gives to his approval or indignation a touch of generality, which belongs to public approval and public indignation, but which is never found in any merely individual emotion of gratitude or revenge.

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The analysis of the moral emotions which has been attempted in this and the two preceding chapters, holds good, not only for such emotions as we feel on account of the conduct of others, but for such emotions as we feel on account of our own conduct as well. Moral self-condemnation is a hostile attitude of mind towards one's self as the cause of pain, moral self-approval is a kindly attitude of mind towards one's self as a cause of pleasure. Genuine remorse, though focussed on the will of the person who feels it, involves, vaguely or distinctly, some desire to suffer. The repentant man wants to think of the wrong he has committed, he wants clearly to realise {106} its wickedness; and he wants to do this, not merely because he desires to become a better man, but because it gives him some relief to feel the sting in his heart. If punished for his deed, he willingly submits to the punishment. The Philippine Islander, says Mr. Foreman, if he recognises a fault by his own conscience, will receive a flogging without resentment or complaint, although, "if he is not so convinced of the misdeed, he will await his chance to give vent to his rancour."[14] We may feel actual hatred towards ourselves, we may desire to inflict bodily suffering upon ourselves as a punishment for what we have done;[15] nay, there are instances of criminals, guilty of capital offences, having given themselves up to the authorities in order to appease their consciences by suffering the penalty of the law.[16] Yet the desire to punish ourselves has a natural antagonist in our general aversion to pain, and this often blunts the sting of the conscience. Suicide prompted by remorse, which sometimes occurs even among savages,[17] is to be regarded rather as a method of putting an end to agonies, than as a kind of self-execution; and behind the self-torments of the sinner frequently lurks the hopeful prospect of heavenly bliss. Self-approval, again, is not merely joy at one's own conduct, but is a kindly emotion, a friendly attitude towards one's self. Such an attitude, for instance, lies at the bottom of the feeling that one's own conduct merits praise or reward.

[Footnote 14: Foreman, Philippine Islands, p. 185. Cf. Hinde, The Last of the Masai, p. 34; Zöller, Das Togoland, p. 37.]

[Footnote 15: Cf. Jodl, Lehrbuch der Psychologie, p. 675.]

[Footnote 16: von Feuerbach, Aktenmässige Darstellung merkwürdiger Verbrechen, i. 249; ii. 473, 479 sq. von Lasaulx, Sühnopfer der Griechen und Römer, p. 6.]

[Footnote 17: See infra, on Suicide.]

Not every form of self-reproach or of self-approval is a moral emotion--no more than is every form of resentment or retributive kindly emotion towards other persons. We may be angry with ourselves on account of some act of ours which is injurious to our own interests. He who has lost at play may be as vexed at himself as he who has {107} cheated at play, and the egoist may bitterly reproach himself for having yielded to a momentary impulse of benevolence, or even to conscience itself. In order to be moral emotions, our self-condemnation and self-approval must present the same characteristics as make resentment and retributive kindliness moral emotions when they are felt with reference to the conduct of other people. A person does not feel remorse when he reproaches himself from an egoistic motive, or when he afterwards regrets that he has sacrificed the interests of his children to the impartial claim of justice. Nor does a person feel moral self-approval when he is pleased with himself for having committed an act which he recognises as selfish or unjust. And besides being disinterested and apparently impartial, remorse and moral self-approval have a flavour of generality. As Professor Baldwin remarks, moral approval or disapproval, not only of other people, but of one's self, "is never at its best except when it is accompanied, in the consciousness which has it, with the knowledge or belief that it is also socially shared."[18] Indeed, almost inseparable from the moral judgments which we pass on our own conduct seems to be the image of an impartial outsider who acts as our judge.

[Footnote 18: Baldwin, Social and Ethical Interpretation in Mental Development, p. 314.]

Chapter V — The Origin of the Moral Emotions

WE have found that resentment and retributive kindly emotion are easily explicable from their usefulness, both of them having a tendency to promote the interests of the individuals who feel them. This explanation also holds good for the moral emotions, in so far as they are retributive emotions: it accounts for the hostile attitude of moral disapproval towards the cause of pain, and for the friendly attitude of moral approval towards the cause of pleasure. But it still remains for us to discover the origin of those elements in the moral emotions by which they are distinguished from other, non-moral, retributive emotions. First, how shall we explain their disinterestedness?

We have to distinguish between different classes of conditions under which disinterested retributive emotions arise. In the first place, we may feel disinterested resentment, or disinterested retributive kindly emotion, on account of an injury inflicted, or a benefit conferred, upon another person with whose pain, or pleasure, we sympathise, and in whose welfare we take a kindly interest. Our retributive emotions are, of course, always reactions against pain, or pleasure, felt by ourselves; this holds true for the moral emotions as well as for revenge and gratitude. The question to be answered, then, is, Why should we, quite disinterestedly, feel pain calling forth indignation because our neighbour is hurt, and pleasure calling forth approval because he is benefited?

{109} That a certain act causes pleasure or pain to the by-stander is partly due to the close association which exists between these feelings and their outward expressions. The sight of a happy face tends to produce some degree of pleasure in him who sees it; the sight of the bodily signs of suffering tends to produce a feeling of pain. In either case the feeling of the spectator is the result of a process of reproduction, the perception of

the physical manifestation of the feeling recalling the feeling itself on account of the established association between them.

[Footnote 1: Adam Smith, Theory of Moral Sentiments, p. 7.]

But the sympathetic feeling which results from association alone is not what is generally understood by sympathy. Arising merely from the habitual connection of certain cognitions with certain feelings in the experience of the spectator, it is, strictly speaking, not at all concerned with the feelings of the other person. It is not a reflex of what he feels--which, indeed, is a matter of complete indifference--and the activity which it calls forth is thoroughly selfish. If it is a feeling of pain, the spectator naturally, for his own sake, tries to get rid of it; but this {110} may be done by turning the back upon the sufferer, and looking out for some diversion. The sympathetic feeling which springs from association alone, may also produce a benevolent or hostile reaction against its immediate cause: the smiling face often evokes a kindly feeling towards the smiler, and "the sight of suffering often directs irritation against the sufferer."[2] In such cases it is the other person himself, rather than his benefactor or his tormentor, that is regarded as cause by the sympathiser. When based on association alone, the sympathetic feeling thus lacks the most vital characteristic of sympathy, in the popular sense of the term: it lacks kindliness.[3]

[Footnote 2: Leslie Stephen, Science of Ethics, p. 243.]

[Footnote 3: The difference between sympathy and kindly ("tender") emotion has been commented upon by Professor Ribot (Psychology of the Emotions, p. 233), and by Mr. Shand, in his excellent chapter on the 'Sources of Tender Emotion,' in Stout's Groundwork of Psychology, p. 198 sqq.]

Sympathy, in the ordinary use of the word, requires the co-operation of the altruistic sentiment or affection--a disposition of mind which is particularly apt to display itself as kindly emotion towards other beings. This sentiment,[4] only, induces us to take a kindly interest in the feelings of our neighbours. It involves a tendency, or willingness, and, when strongly developed, gives rise to an eager desire, to sympathise with their pains and pleasures. Under its influence, our sympathetic feeling is no longer a mere matter of association; we take an active part in its production, we direct our attention to any circumstance which we believe may affect the feelings of the person whom we love, to any external manifestation of his emotions. We are anxious to find out his joys and sorrows, so as to be able to rejoice with him and to suffer with him, and, especially, when he stands in need of it, to console or to help him. For the altruistic sentiment is not merely willingness to sympathise; it is above all a conative {111} disposition to do good. The latter aptitude must be regarded rather as the cause than as the result of the former; affection is not, as Adam Smith maintained,[5] merely habitual sympathy, or its necessary consequence. It is true that sympathetic pain, unaided by kindliness, may induce a person to relieve the suffering of his neighbour, instead of shutting his eyes to it; but then he does so, not out of regard to the feelings of the sufferer, but simply to free himself of a painful cognition. Nor must it be supposed that the altruistic sentiment prompts to assistance only by strengthening the sympathetic feeling. The sight of the wounded traveller may have caused no less pain to the Pharisee than to the good Samaritan; yet it would have been impossible for the Samaritan to dismiss his pain by going away, since he felt a desire to assist the wounded, and his desire would have been left ungratified if he had not stopped by the wayside. To the egoist, the relief offered to the sufferer is a means of suppressing the sympathetic pain; to the altruist, the sympathetic pain is, so to say, a means of giving relief. The altruist wants to know, to feel the pain of his neighbour, because he desires to help him. Why are the most

kind-hearted people often the most cheerful, if not because they think of alleviating the misery of their fellow-creatures, instead of indulging in the sympathetic pain which it evokes?

[Footnote 4: I use the word "sentiment" in the sense proposed by Mr. Shand, in his article, 'Character and the Emotions,' in Mind, N.S. v. 203 sqq., and adopted by Professor Stout, op. cit. p. 221 sqq. Sentiments cannot be actually felt at any one moment; "they are complex mental dispositions, and may, as divers occasions arise, give birth to the whole gamut of the emotions" (ibid. p. 223 sq.).]

[Footnote 5: Adam Smith, op. cit. p. 323.]

It is obvious, then, that sympathy aided by the altruistic sentiment--sympathy in the common sense--tends to produce disinterested retributive emotions. When we to some extent identify, as it were, our feelings with those of our neighbour, we naturally look upon any person who causes him pleasure or pain as the cause of our sympathetic pleasure or pain, and are apt to experience towards that person a retributive emotion similar in kind, if not always in degree, to the emotion which we feel when we are ourselves benefited or injured. In all animal species which possess altruistic sentiments in some form or other, we may be sure to find sympathetic resentment as their accompaniment. {112} A mammalian mother is as hostile to the enemy of her young as to her own enemy. Among social animals whose gregarious instinct has developed into social affection,[6] sympathetic resentment is felt towards the enemy of any member of the group; they mutually defend each other, and this undoubtedly involves some degree of sympathetic anger. With reference to animals in confinement and domesticated animals, many striking instances of this emotion might be quoted, even in cases when injuries have been inflicted on members of different species to which they have become attached. Professor Romanes' terrier, "whenever or wherever he saw a man striking a dog, whether in the house, or outside, near at hand or at a distance, ... used to rush in to interfere, snarling and snapping in a most threatening way."[7] Darwin makes mention of a little American monkey in the Zoological Gardens of London which, when seeing a great baboon attack his friend, the keeper, rushed to the rescue and by screams and bites so distracted the baboon, that the man was able to escape.[8] The dog who flies at any one who strikes, or even touches, his master, is a very familiar instance of sympathetic resentment. The Rev. Charles Williams mentions a dog at Liverpool who saved a cat from the hands of some young ruffians who were maltreating it: he rushed in among the boys, barked furiously at them, terrified them into flight, and carried the cat off in his mouth, bleeding and almost senseless, to his kennel, where he laid it on the straw, and nursed it.[9] In man, sympathetic resentment begins at an early age. Professor Sully mentions a little boy under four who was indignant at any picture where an animal suffered.[10]

[Footnote 6: The connection between social affection and the gregarious instinct will be discussed in a subsequent chapter.]

[Footnote 7: Romanes, Animal Intelligence, p. 440.]

[Footnote 8: Darwin, Descent of Man, p. 103. Cf. Fisher, in Revue Scientifique, xxxiii. 618. A curious instance of a terrier "avenging" the death of another terrier, his inseparable friend, is mentioned by Captain Medwin (Angler in Wales, ii. 162-164, 197, 216 sq.).]

[Footnote 9: Williams, Dogs and their Ways, p. 43.]

[Footnote 10: Sully, Studies of Childhood, p. 250.]

The altruistic sentiments of mankind will be treated at {113} length in subsequent chapters. We shall find reason to believe that not only maternal, but to some extent,

paternal and conjugal affection, prevailed in the human race from ancient times, and that social affection arose in those days when the conditions of life became favourable to an expansion of the early family, when the chief obstacle to a gregarious life--scarcity of food--was overcome, and sociality, being an advantage to man, became his habit. There are still savages who live in families rather than in tribes, but we know of no people among whom social organisation outside the family is totally wanting. Later discoveries only tend to confirm Darwin's statement that, though single families or only two or three together, roam the solitudes of some savage lands, they always hold friendly relations with other families inhabiting the same district; such families occasionally meeting in council and uniting for their common defence.[11] But as a general rule, to which there are few exceptions, the lower races live in communities larger than family groups, and all the members of the community are united with one another by common interests and common feelings. Of the harmony, mutual good-will, and sense of solidarity, which under normal conditions prevail in these societies, much evidence will be adduced in following pages. Mr. Melville's remark with reference to some Marquesas cannibals may be quoted as to some extent typical. "With them," he says, "there hardly appeared to be any difference of opinion upon any subject whatever. . . . They showed this spirit of unanimity in every action of life: everything was done in concert and good fellowship."[12] When a member of the group is hurt, the feeling of unanimity takes the form of public resentment. As Robertson observed long ago, "in small communities, every man is touched with the injury or affront offered to the body of which he is a member, as if it were a personal attack upon his own honour or safety. The desire of revenge is communicated from breast to breast, {114} and soon kindles into rage."[13] Speaking of some Australian savages, Mr. Fison remarks:--"To the savage, the whole gens is the individual, and he is full of regard for it. Strike the gens anywhere, and every member of it considers himself struck, and the whole body corporate rises up in arms against the striker."[14] Nobody will deny that there is a disinterested element in this public resentment, even though every member of the group consider the enemy of any other member to be actually his own enemy as well, and, partly, hate him as such.

[Footnote 11: Darwin, op. cit. p. 108.]

[Footnote 12: Melville, Typee, p. 297 sq.]

[Footnote 13: Robertson, History of America, i. 350. Cf. Clifford's theory of the "tribal self" (Lectures and Essays, p. 290 sqq.). He says (ibid. p. 291), "The savage is not only hurt when anybody treads on his foot, but when anybody treads on his tribe."]

[Footnote 14: Fison and Howitt, Kamilaroi and Kurnai, p. 170.]

Our explanation of what has here been called "sympathetic resentment," however, is not yet complete. This emotion, as we have seen, may be a reaction against sympathetic pain; but it may also be directly produced by the cognition of the signs of anger. In the former case it is, strictly speaking, independent of the emotion of the injured individual; we may feel resentment on his behalf though he himself feels none. In the latter case it is a reflected emotion, felt independently of the cause of the original emotion of which it is a reflection--as when the yells and shrieks of a street dog-fight are heard, and dogs from all sides rush to the spot, each dog being apparently ready to bite any of the others. In the former case, it is, by the medium of sympathetic pain, closely connected with the inflicted injury; in the latter case it may even be the reflection of an emotion which is itself sympathetic, and the origin of which is perhaps out of sight. In an infuriated crowd the one gets angry because the other is angry, and very often the question, Why? is hardly asked. This form of sympathetic resentment is of considerable importance both as an originator and as a communicator of moral ideas. To teach that a certain act

is wrong is to teach that it is an object, and a proper object, of moral indignation, and the aim of the instructor {115} is to inspire a similar indignation in the mind of the pupil. An intelligent teacher tries to attain this end by representing the act in such a light as to evoke disapproval independently of any appeal to authority; but, unfortunately, in many cases where the duties of current morality are to be enjoined, he cannot do so--for a very obvious reason. Of various acts which, though inoffensive by themselves, are considered wrong, he can say little more than that they are forbidden by God and man; and if, nevertheless, such acts are not only professed, but actually felt, to be wrong, that is due to the fact that men are inclined to sympathise with the resentment of persons for whom they feel regard. It is this fact that accounts for the connection between the punishment of an act and the consequent idea that it deserves to be punished. We shall see that the punishment which society inflicts is, as a rule, an expression of its moral indignation; but there are instances in which the order is reversed, and in which human, or, as it may be supposed, divine, punishment or anger is the cause, and moral disapproval the effect. Children, as everybody knows, grow up with their ideas of right and wrong graduated, to a great extent, according to the temper of the father or mother; [15] and men are not seldom, as Hobbes said, "like little children, that have no other rule of good and evill manners, but the correction they receive from their Parents, and Masters."[16] The case is the same with any outbreak of public resentment, with any punishment inflicted by society at large. However selfish it may be in its origin, to whatever extent it may spring from personal motives, it always has a tendency to become in some degree disinterested, each individual not only being angry on his own behalf, but at the same time reflecting the anger of everybody else.

[Footnote 15: Cf. Baring-Gould, Origin and Developwent of Religious Belief, i. 212.]

[Footnote 16: Hobbes, Leviathan, i. 2, p. 76.]

Any means of expressing resentment may serve as a communicator of the emotion. Besides punishment, language deserves special mention. Moral disapproval may {116} be evoked by the very sounds of certain words, like "murder," "theft," "cowardice," and others, which not merely indicate the commission of certain acts, but also express the opprobrium attached to them. By being called a "liar," a person is more disgraced than by any plain statement of his untruthfulness; and by the use of some strong word the orator raises the indignation of a sympathetic audience to its pitch.

All the cases of disinterested resentment which we have hitherto considered fall under the heading of sympathetic resentment. But there are other cases into which sympathy does not enter at all. Resentment is not always caused by the infliction of an injury; it may be called forth by any feeling of pain traceable to a living being as its direct or indirect cause. Quite apart from our sympathy with the sufferings of others, there are many cases in which we feel hostile towards a person on account of some act of his which in no way interferes with our interests, which conflicts with no self-regarding feeling of ours. There are in the human mind what Professor Bain calls "disinterested antipathies," sentimental aversions "of which our fellow-beings are the subjects, and on account of which we overlook our own interest quite as much as in displaying our sympathies and affections."[17] Differences of taste, habit, and opinion, are particularly apt to create similar dislikes, which, as will be seen, have played a very prominent part in the moulding of the moral consciousness. When a certain act, though harmless by itself (apart from the painful impression it makes upon the spectator), fills us with disgust or horror, we may feel no less inclined to inflict harm upon the agent, than if he had committed an offence against person, property, or good name. And here, again, our resentment is sympathetically increased by our observing a similar disgust in

others. We are easily affected by the aversions and likings of our neighbours. As Tucker said, "we grow to love things we perceive {117} them fond of, and contract aversions from their dislikes."[18]

[Footnote 17: Bain, Emotions and the Will, p. 268.]

[Footnote 18: Tucker, Light of Nature Pursued, i. 154.]

Having thus found the origin of disinterested retributive emotions, we have at the same time partly explained the origin of the moral emotions. But, as we have seen, disinterestedness is not the sole characteristic by which moral indignation and approval are distinguished from other retributive emotions: a moral emotion is assumed to be impartial, or, at least, is not knowingly partial, and it is coloured by the feeling of being publicly shared. However, the real problem which we have now to solve is not how retributive emotions may become apparently impartial and be coloured by a feeling of generality, but why disinterestedness, apparent impartiality, and the flavour of generality have become characteristics by which so-called moral emotions are distinguished from other retributive emotions. The solution of this problem lies in the fact that society is the birthplace of the moral consciousness; that the first moral judgments expressed, not the private emotions of isolated individuals, but emotions which were {118} felt by the society at large; that tribal custom was the earliest rule of duty.

Customs have been defined as public habits, as the habits of a certain circle, a racial or national community, a rank or class of society. But whilst being a habit, custom is at the same time something else as well. It not merely involves a frequent repetition of a certain mode of conduct, it is also a rule of conduct. As Cicero observes, the customs of a people "are precepts in themselves."[19] We say that "custom commands," or "custom demands," and speak of it as "strict" and "inexorable"; and even when custom simply allows the commission of a certain class of actions, it implicitly lays down the rule that such actions are not to be interfered with.

[Footnote 19: Cicero, De Officiis, i. 41.]

The rule of custom is conceived of as a moral rule, which decides what is right and wrong.[20] "Les loix de la conscience," says Montaigne, "que nous disons naistre de nature, naissent de la coustume."[21] Mr. Howitt once said to a young Australian native with whom he was speaking about the food prohibited during initiation, "But if you were hungry and caught a female opossum, you might eat it if the old men were not there." The youth replied, "I could not do that; it would not be right"; and he could give no other reason than that it would be wrong to disregard the customs of his people.[22] Mr. Bernau says of the British Guiana Indians:--"Their moral sense of good and evil is entirely regulated by the customs and practices inherited from their forefathers. What their predecessors believed and did must have been right, and they deem it the height of presumption to suppose that any could think and act otherwise."[23] The moral evil of the pagan Greenlanders "was all that was contrary to laws and customs, as {119} regulated by the angakoks," and when the Danish missionaries tried to make them acquainted with their own moral conceptions, the result was that they "conceived the idea of virtue and sin as what was pleasing or displeasing to Europeans, as according or disaccording with their customs and laws."[24] "The Africans, like most heathens," Mr. Rowley observes, "do not regard sin, according to their idea of sin, as an offence against God, but simply as a transgression of the laws and customs of their country."[25] The Ba-Ronga call derogations of universally recognised custom yila, prohibited, tabooed.[26] The Bedouins of the Euphrates "make no appeal to conscience or the will of God in their distinctions between right and wrong, but appeal only to custom."[27] According to the laws of Manu, the custom handed down in regular succession since time immemorial

"is called the conduct of virtuous men."[28] The Greek idea of the customary, [Greek: to\ no/mimon], shows the close connection between morality and custom; and so do the words [Greek: e)/thos, ê)/thos], and [Greek: e)thika/], the Latin mos and moralis, the German Sitte and Sittlichkeit.[29] Moreover, in early society, customs are not only moral rules, but the only moral rules ever thought of. The savage strictly complies with the Hegelian command that no man must have a private conscience. The following statement, which refers to the Tinnevelly Shanars, may be quoted as a typical example:--"Solitary individuals amongst them rarely adopt any new opinions, or any new course of procedure. They follow the multitude to do evil, and they follow the multitude to do good. They think in herds."[30]

[Footnote 20: Cf. Austin, Lectures on Jurisprudence, i. 104; Tönnies, 'Philosophical Terminology,' in Mind, N.S., viii. 304. Von Jhering (Zweck im Recht, ii. 23) defines the German Sitte as "die im Leben des Volks sich bildende verpflichtende Gewohnheit"; and a similar view is expressed by Wundt (Ethik, p. 128 sq.).]

[Footnote 21: Montaigne, Essais, i. 22 ([OE]uvres, p. 48).]

[Footnote 22: Fison and Howitt, op. cit. p. 256 sq.]

[Footnote 23: Bernau, Missionary Labours in British Guiana, p. 60.]

[Footnote 24: Rink, Greenland, p. 201 sq.]

[Footnote 25: Rowley, Religion of the Africans, p. 44.]

[Footnote 26: Junod, Ba-Ronga, p. 477.]

[Footnote 27: Blunt, Bedouin Tribes of the Euphrates, ii. 224.]

[Footnote 28: Laws of Manu, ii. 18.]

[Footnote 29: For the history of these words, see Wundt, op. cit. p. 19 sqq. For other instances illustrating the moral character of custom, see Maclean, Compendium of Kafir Law and Customs, p. 34 (Amaxosa); Macpherson, Memorials of Service in India, p. 94 (Kandhs); Kubary, Ethnographische Beiträge zur Kenntniss der Karolinischen Inselgruppe, i. 73 (Pelew Islanders); Smith, Chinese Characteristics, p. 119.]

[Footnote 30: Caldwell, Tinnevelly Shanars, p. 69.]

Disobedience to custom evokes public indignation. In {120} the lower stages of civilisation, especially, custom is a tyrant who binds man in iron fetters, and who threatens the transgressor, not only with general disgrace, but often with bodily suffering. "To believe that man in a savage state is endowed with freedom either of thought or action," says Sir G. Grey, "is erroneous in the highest degree";[31] and this statement is corroborated by an array of facts from all quarters of the savage world.[32] Now, as the rule of custom is a moral rule, the indignation aroused by its transgression is naturally a moral emotion. Moreover, where all the duties incumbent on a man are expressed in the customs of the society to which he belongs, it is obvious that the characteristics of moral indignation are to be sought for in its connection with custom. The most salient feature of custom is its generality. Its transgression calls forth public indignation; hence the flavour of generality which characterises moral disapproval. Custom is fixed once for all, and takes no notice of the preferences of individuals. By recognising the validity of a custom, I implicitly admit that the custom is equally binding for me and for you and for all the other members of the society. This involves disinterestedness; I admit that a breach of the custom is equally wrong whether I myself am immediately concerned in the act or not. It also involves apparent impartiality; I assume that my condemnation of the act is independent of the relationship in which the parties concerned in it stand to me personally, or, at least, I am not aware that my condemnation is influenced by any {121} such relationship. And this holds good whatever be the origin of the custom. Though customs are very frequently rooted in public sympathetic resentment or in

public disinterested aversions, they may have a selfish and partial origin as well. At first the leading men of the society may have prohibited certain acts because they found them disadvantageous to themselves, or to those with whom they particularly sympathised. Where custom is an oppressor of women, this oppression may certainly be traced back to the selfishness of men. Where custom sanctions slavery, it is certainly not impartial to the slaves. Yet in the one case as in the other, I assume custom to be in the right, irrespectively of my own station, and I even expect the women and slaves themselves to be of the same opinion. Such an expectation is by no means a chimera. Under normal social conditions, largely owing to men's tendency to share sympathetically the resentment of their superiors, the customs of a society are willingly submitted to, and recognised as right, by the large majority of its members, whatever may be their station. Among the Rejangs of Sumatra, says Marsden, "a man without property, family, or connections, never, in the partiality of self-love, considers his own life as being of equal value with that of a man of substance."[33] However selfish, however partial a certain rule may be, it becomes a true custom, a moral rule, as soon as the selfishness or the partiality of its makers is lost sight of.

[Footnote 31: Grey, Journals of Expeditions in North-West and Western Australia, ii. 217.]

[Footnote 32: Tylor, 'Primitive Society,' in Contemporary Review, xxi. 706. Idem, Anthropology, p. 408 sq. Avebury, Origin of Civilisation, p. 466 sqq. Eyre, Journals of Expeditions into Central Australia, ii. 384, 385, 388. Curr, The Australian Race, i. 51. Mathew, 'Australian Aborigines,' in Jour. and Proceed. Roy. Soc. N.S. Wales, xxiii. 398. Idem, Eaglehawk and Crow, p. 93. Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, pp. 35, 136 sq. Hawtrey, 'Lengua Indians of the Paraguayan Chaco,' in Jour. Anthr. Inst. xxxi. 292. Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 427 sq. (Point Barrow Eskimo). Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grönland, x. 85. Nansen, First Crossing of Greenland, ii. 295. Johnston, British Central Africa, p. 452. New, Life, Wanderings, and Labours in Eastern Africa, p. 110 (Wanika). Scott Robertson, Káfirs of the Hindu-Kush, p. 183 sq.]

[Footnote 33: Marsden, History of Sumatra, p. 247.]

It will perhaps be argued that, by deriving the characteristics of moral indignation from its connection with custom, we implicitly contradict our initial assumption that moral emotions lie at the bottom of all moral judgments. But it is not so. Custom is a moral rule only on account of the indignation called forth by its transgression. In its ethical aspect it is nothing but a generalisation of emotional tendencies, applied to certain modes of conduct, and transmitted from generation to generation. Public indignation lies at the bottom of it. In its capacity {122} of a rule of duty, custom, mos, is derived from the emotion to which it gave its name.

As public indignation is the prototype of moral disapproval, so public approval, expressed in public praise, is the prototype of moral approval. Like public indignation, public approval is characterised by a flavour of generality, by disinterestedness, by apparent impartiality. But of these two emotions public indignation, being at the root of custom and leading to the infliction of punishment, is by far the more impressive. Hence it is not surprising that the term "moral" is etymologically connected with mos, which always implies the existence of a social rule the transgression of which evokes public indignation. Only by analogy it has come to be applied to the emotion of approval as well.

Though taking their place in the system of human emotions as public emotions felt by the society at large, moral disapproval and approval have not always remained inseparably connected with the feelings of any special society. The unanimity of opinion which originally characterised the members of the same social unit was disturbed by its advancement in civilisation. Individuals arose who found fault with the moral ideas prevalent in the community to which they belonged, criticising those ideas on the basis of their own individual feelings. Such rebels are certainly no less justified in speaking in the name of morality true and proper, than is society itself. The emotions from which their opposition against public opinion springs may be, in nature, exactly similar to the approval or disapproval felt by the society at large, though they are called forth by different facts or, otherwise, differ from these emotions in degree. They may present the same disinterestedness and apparent impartiality--indeed, dissent from the established moral ideas largely rises from the conviction that the apparent impartiality of public feelings is an illusion. As will be seen, the evolution of the moral consciousness involves a progress in impartiality and justice; it tends towards an equalisation {123} of rights, towards an expansion of the circle within which the same moral rules are held applicable; and this process is in no small degree effected by the efforts made by high-minded individuals to raise public opinion to their own standard of right. Nay, as we have already noticed, individual moral feelings do not even lack that flavour of generality which characterises the resentment and approval felt unanimously by a body of men. Though, perhaps, persecuted by his own people as an outcast, the moral dissenter does not regard himself as the advocate of a mere private opinion.[34] Even when standing alone, he feels that his conviction is shared at least by an ideal society, by all those who see the matter as clearly as he does himself, and who are animated with equally wide sympathies, an equally broad sense of justice. Thus the moral emotions remain to the last public emotions--if not in reality, then as an ideal.

[Footnote 34: Cf. Pollock, Essays in Jurisprudence and Ethics, p. 309.]

The fact that the earliest moral emotions were public emotions implies that the original form of the moral consciousness cannot, as is often asserted, have been the individual's own conscience. Dr. Martineau's observation, that the inner springs of other men's actions may be read off only by inference from our own experience, by no means warrants his conclusion that the moral consciousness is at its origin engaged in self-estimation, instead of circuitously reaching this end through a prior critique upon our fellow-men.[35] The moral element which may be contained in the emotion of self-reproach or self-approval, is generally to such an extent mixed up with other and non-moral elements, that it can be disentangled only by a careful process of abstraction, guided by the feelings of other people with reference to our conduct or by our own feelings with reference to the conduct of others. The moral emotion of remorse presupposes some notion of right and wrong, and the application of this notion to one's own conduct. Hence it could never have {124} been distinguished as a special form of, or element in, the wider emotion of self-reproach, unless the idea of morality had been previously derived from another source. The similarity between regret and remorse is so close, that in certain European languages there is only one word for both.[36]

[Footnote 35: Martineau, Types of Ethical Theory, ii. 29 sqq.]

[Footnote 36: As, in Swedish, the word ånger.]

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From what has been said above it is obvious that moral resentment is of extreme antiquity in the human race, nay, that the germ of it is found even in the lower animal world, among social animals capable of feeling sympathetic resentment. The origin of

custom as a moral rule no doubt lies in a very remote period of human history. We have no knowledge of a savage people without customs, and, as will be seen subsequently, savages often express their indignation in a very unmistakable manner when their customs are transgressed. Various data prove that the lower races have some feeling of justice, the flower of all moral feelings. And the supposition that remorse is unknown among them,[37] is not only unfounded, but contradicted by facts. Indeed, genuine remorse is so hidden an emotion even among ourselves, that it cannot be expected to be very conspicuous among savages. As we have seen, it requires a certain power of abstraction, as well as great impartiality of feeling, and must therefore be sought for at the highest reaches of the moral consciousness rather than at its lowest degrees. But to suppose that savages are entirely without a conscience is quite contrary to what we may infer from the great regard in which they hold their customs, as also contrary to the direct statements of travellers who have taken some pains to examine the matter. The answer given by the young Australian when asked by Mr. Howitt whether he might not eat a female opossum if the old men were not present,[38] certainly indicates conscientious respect for a moral rule, and is, as Mr. Fison observes, "a striking instance of that 'moral {125} feeling' which Sir John Lubbock denies to savages."[39] Dr. Hübbe-Schleiden asserts that, among the people whom he had in his service, he found the Negroes, in their sense of duty, not inferior, but rather superior to the Europeans.[40] Mr. New says of the Wanika:--"Conscience lives in them as the vicegerent of Almighty God, and is ever excusing or else accusing them. It may be blunted, hardened, resisted, and largely suppressed, but there it is."[41] M. Arbousset once desired some Bechuanas to tell him whether the blacks had a conscience. "Yes, all have one," they said in reply. "And what does it say to them?" "It is quiet when they do well and torments them when they sin." "What do you call sin?" "The theft, which is committed trembling, and the murder from which a man purifies and re-purifies himself, but which always leaves remorse."[42] Mr. Washington Matthews refers to a passage in a Navaho story which "shows us that he who composed this tale knew what the pangs of remorse might be, even for an act not criminal, as we consider it, but merely ungenerous and unfilial."[43]

[Footnote 37: Avebury, Origin of Civilisation, pp. 421, 426.]

[Footnote 38: See supra, p. 118.]

[Footnote 39: Fison and Howitt, op. cit. p. 257 n.]

[Footnote 40: Hübbe-Schleiden, Ethiopien, p. 184 sq.]

[Footnote 41: New, op. cit. p. 96.]

[Footnote 42: Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of the Cape of Good Hope, p. 322.]

[Footnote 43: Matthews, 'Study of Ethics among the Lower Races,' in Journal of American Folk-Lore, xii. 7.]

A different opinion as to the existence of moral feelings among savages has been expressed by Lord Avebury. To him even modern savages seem to be "almost entirely wanting in moral feeling"; and he says that he has "been forced to this conclusion, not only by the direct statements of travelers but by the general tenor of their remarks, and especially by the remarkable absence of repentance and remorse among the lower races of men."[44] The importance of the subject renders {126} it necessary to scrutinise the facts which Lord Avebury has adduced in support of his conclusion.

[Footnote 44: Avebury, op. cit. pp. 414, 426. Lord Avebury quotes Burton's statement that in Eastern Africa, as also among the Yoruba negroes, conscience does not exist, and that "repentance" expresses regret for missed opportunities of mortal crime. Speaking of the stage of savagery represented by the Bakaïri, Dr. von den Steinen likewise

observes (Unter den Naturvölkern Zentral-Brasiliens, p. 351), "Goodness and badness exist only in the crude sense of doing to others what is agreeable or disagreeable, but the moral consciousness, and the ideal initiative, influenced neither by prospect of reward nor fear of punishment, are entirely lacking." Lippert maintains (Kulturgeschichte der Menschheit, i. 27) "dass sich das Gewissen beim Naturmenschen nicht als 'Selbsttadel,' sondern nur als Furcht zeigt."]

Mr. Neighbors states that, among the Comanches of Texas, "no individual action is considered a crime, but every man acts for himself according to his own judgment, unless some superior power--for instance, that of a popular chief--should exercise authority over him." Another writer says, "The Redskin has no moral sense whatever." Among the Basutos, according to Casalis, morality "depends so entirely upon social order that all political disorganisation is immediately followed by a state of degeneracy, which the re-establishment of order alone can rectify." Similar accounts are given as regards Central Africa and some other places. Thus at Jenna, and in the surrounding districts, "whenever a town is deprived of its chief, the inhabitants acknowledge no law--anarchy, troubles, and confusion immediately prevail, and till a successor is appointed all labour is at an end." The Damaras "seem to have no perceptible notion of right or wrong." The Tasmanians were "without any moral views and impressions." Eyre says of the Australians that they have "no moral sense of what is just and equitable in the abstract"; and a missionary had very great difficulty in conveying to those natives any idea of sin. The Kacharis had "in their own language no words for sin, for piety, for prayer, for repentance"; and of another of the aboriginal tribes of India Mr. Campbell remarks that they "are . . . said to be without moral sense." Lord Avebury in this connection even quotes a statement to the effect that the expressions which the Tonga Islanders have for ideas like vice and injustice "are equally applicable to other things." The South American Indians of the Gran Chaco are said by the missionaries to "make no distinction between right and wrong, and have therefore neither fear nor hope of any present or future punishment or reward, nor any mysterious terror of some supernatural power." Finally, Lord Avebury observes that religion, except in the more advanced races, has no moral aspect or influence, that the deities are almost invariably regarded as evil, and that the belief in a future state is not at first associated with reward or punishment.[45]

[Footnote 45: Avebury, op. cit. p. 417 sqq.]

Many of the facts referred to by Lord Avebury do not at all presuppose the absence of moral feelings. It is difficult to see why the malevolence of gods should prevent men from having notions of right and wrong, and we know from the Old Testament itself that there may be a moral law without Paradise {127} and Hell. The statement concerning the Comanches only implies that, among them, individual freedom is great; whilst the social disorder which prevails among various peoples at times of political disorganisation indicates that the cohesiveness of the political aggregate is weak, as well as a certain discrepancy between moral ideas and moral practice. In Morocco, also, the death of a Sultan is immediately followed by almost perfect anarchy, and yet the people recognise both the moral tenets of the Koran and the still more stringent tenets of their ancient customs. As to the Basutos, Casalis expressly states that they have the idea of moral evil, and represent it in their language by words which mean ugliness, or damage, or debt, or incapacity;[46] and M. Arbousset once heard a Basuto say, on an unjust judgment being pronounced, "The judge is powerful, therefore we must be silent; if he were weak, we should all cry out about his injustice."[47] Moreover, a people may be unconscious of what is just "in the abstract," and of moral "notions," in the strict

sense of the term, and at the same time, in concrete cases, distinguish between right and wrong, just and unjust. Of the Western Australians, Mr. Chauncy expressly says that they have a keen sense of justice, and mentions an instance of it;[48] whilst our latest authorities on the Central Australians observe that, though their moral code differs radically from ours, "it cannot be denied that their conduct is governed by it, and that any known breaches are dealt with both surely and severely."[49] As regards the Tonga Islanders, Mariner states that "their ideas of honour and justice do not very much differ from ours except in degree, they considering some things more honourable than we should, and others much less so"; and in another place he says that "the notions of the Tonga people, in respect to honour and justice . . . are tolerably well defined, steady and universal," though not always acted upon.[50] The statement that the American Indians have "no moral sense whatever," sounds very strange when compared with what is known about their social and moral life; Buchanan, for instance, asserts that they "have a strong innate sense of justice."[51] Of course, there may be diversity of opinion as to what constitutes the "moral sense"; if the conception of sin or other theological notions are regarded as essential to it, it is probably {128} wanting in a large portion of mankind, and not only in the least civilised. When missionaries or travellers deny to certain savages moral feelings and ideas, they seem chiefly to mean feelings or ideas similar to their own.

[Footnote 46: Casalis, Basutos, p. 304.]

[Footnote 47: Arbousset and Daumas, op. cit. p. 389.]

[Footnote 48: Brough Smyth, Aborigines of Victoria, ii. 228.]

[Footnote 49: Spencer and Gillen, Native Tribes of Central Australia, p. 46.]

[Footnote 50: Mariner, Natives of the Tonga Islands, ii. 159, 163.]

[Footnote 51: Buchanan, Sketches of the History, &c., of the North American Indians, p. 158.]

Of many savage and barbarous peoples it is directly affirmed that they have a sense of justice. Mr. Man says concerning the Andaman Islanders, "Certain traits which have been noticeable in their dealings with us would give colour to the belief that they are not altogether lacking in the sense of honour, and have some faint idea of the meaning of justice."[52] Colonel Dalton states that, among the Korwás on the highlands of Sirgúja, when several persons are implicated in one offence, he has found them "most anxious that to each should be ascribed his fair share of it, and no more, the oldest of the party invariably taking on himself the chief responsibility as leader or instigator, and doing his utmost to exculpate as unaccountable agents the young members of the gang."[53] The Aleuts, according to Veniaminof, are "naturally inclined to be just," and feel deeply undeserved injuries.[54] Kolben, who is nowadays recognised as a good authority, [55] wrote of the Hottentots, "The strictness and celerity of the Hottentot justice are things in which they outshine all Christendom."[56] Missionaries have wondered that, among the Zulus, "in the absence for ages of all revealed truth and all proper religious instruction, there should still remain so much of mental integrity, so much ability to discern truth and justice, and withal so much regard for these principles in their daily intercourse with one another."[57] Zöller ascribes to the Negro a well-developed feeling of justice. "No European," he says, "at least no European child, could discriminate so keenly between just and unjust punishment."[58] Mr. Hinde observes:--"One of the most marked characteristics of black people is their keen perception of justice. They do not resent merited punishment where it is coupled with justice upon other matters. The Masai have their sense of justice particularly strongly developed."[59] Dieffenbach writes of the Maoris, "There is a high natural sense of justice amongst them; {129} and it

is from us that they have learnt that many forbidden things can be done with impunity, if they can only be kept secret."[60] Justice is a virtue which always commands respect among the Bedouins, and "injustice on the part of those in power is almost impossible. Public opinion at once asserts itself; and the Sheykh, who should attempt to override the law, would speedily find himself deserted."[61]

[Footnote 52: Man, in Jour. Anthr. Inst. xii. 92.]

[Footnote 53: Dalton, Descriptive Ethnology of Bengal, p. 230.]

[Footnote 54: Veniaminof, quoted by Dall, Alaska, p. 398.]

[Footnote 55: Theophilus Hahn remarks (The Supreme Being of the Khoi-Khoi, p. 40) that Kolben's reports have been doubted by European writers without any good reason.]

[Footnote 56: Kolben, Present State of the Cape of Good Hope, i. 301. Cf. ibid. i. 339.]

[Footnote 57: Quoted by Tyler, Forty Years among the Zulus, p. 197.]

[Footnote 58: Zöller, Kamerun, ii. 92. Cf. Idem, Das Togoland, p. 37.]

[Footnote 59: Hinde, The Last of the Masai, p. 34. Cf. Foreman, Philippine Islands, p. 185.]

[Footnote 60: Dieffenbach, Travels in New Zealand, ii. 106.]

[Footnote 61: Blunt, Bedouin Tribes of the Euphrates, ii. 224 sqq.]

Much less conspicuous than the emotion of public resentment is the emotion of public approval. These public emotions are largely of a sympathetic character, and, whilst a tendency to sympathetic resentment is always involved in the sentiment of social affection, a tendency to sympathetic retributive kindly emotion is not. Among the lower animals this latter emotion seems hardly to occur at all, and in men it is often deplorably defective. Resentment towards an enemy is itself, as a rule, a much stronger emotion than retributive kindly emotion towards a friend. And, as for the sympathetic forms of these emotions, it is not surprising that the altruistic sentiment is more readily moved by the sight of pain than by the sight of pleasure,[62] considering that its fundamental object is to be a means of protection for the species. Moreover, sympathetic retributive kindliness has powerful rivals in the feelings of jealousy and envy, which tend to make the individual hostile both towards him who is the object of a benefit and towards him who bestows it. As an ancient writer observes, "many suffer with their friends when the friends are in distress, but are envious of them when they prosper."[63] But though these circumstances are a hindrance to the rise of retributive kindly emotions of a sympathetic kind, they do not prevent public approval in a case when the whole society profits by a benefit, nor have they any bearing on those disinterested instinctive likings of which I have spoken above. I think, then, we may {130} safely conclude that public praise and moral approval occurred, to some degree, even in the infancy of human society. It will appear from numerous facts recorded in following chapters, that the moral consciousness of modern savages contains not only condemnation, but praise.

[Footnote 62: Cf. Jodl, Lehrbuch der Psychologie, p. 686.]

[Footnote 63: Schmidt, Ethik der alten Griechen, i. 259.]

Chapter VI — Analysis of the Principal Moral Concepts

WE have assumed that the moral concepts are essentially generalisations of tendencies in certain phenomena to call forth moral emotions. We have further assumed that there

are two kinds of moral emotions: indignation and approval. If these assumptions hold good, either indignation or approval must be at the bottom of every moral concept. That such is really the case will, I think, become evident from the present chapter, in which the principal of those concepts will be analysed.

Our analysis will be concerned with moral concepts formed by the civilised mind. Whilst the most representative of English terms for moral estimates have equivalents in the other European languages, I do not take upon myself to decide to what extent they have equivalents in non-European tongues. That all existing peoples, even the very lowest, have moral emotions is as certain as that they have customs, and there can be no doubt that they give expression to those emotions in their speech. But it is another question how far their emotions have led to such generalisations as are implied in moral concepts. Concerning the Fuegians M. Hyades observes, "Les idées abstraites sont chez eux à peu près nulles. Il est difficile de définir exactement ce qu'ils appellent un homme bon et un homme méchant; mais à coup sûr ils n'ont pas la notion de ce qui est bon ou mauvais, abstraction faite de l'individu ou de l'objet auquel ils appliqueraient l'un ou l'autre {132} de ces attributs."[1] The language of the Californian Karok, though rich in its vocabulary, is said to possess no equivalent for "virtue."[2] In the aboriginal tongues of the highlanders of Central India "there seem to be no expressions for abstract ideas, the few such which they possess being derived from the Hindí. . . . . The nomenclature of religious ceremony, of moral qualities, and of nearly all the arts of life they possess, are all Hindí."[3] On a strict examination of the language of the Tonga Islanders, Mariner could discover "no words essentially expressive of some of the higher qualities of human merit, as virtue, justice, humanity; nor of the contrary, as vice, injustice, cruelty, &c. They have indeed expressions for these ideas," he adds, but these expressions "are equally applicable to other things. To express a virtuous or good man, they would say, tangata lillé, a good man, or tangata loto lillé, a man with a good mind; but the word lillé, good (unlike our word virtuous), is equally applicable to an axe, canoe, or anything else."[4] Of the Australian natives about Botany Bay and Port Jackson Collins wrote, "That they have ideas of a distinction between good and bad is evident from their having terms in their language significant of these qualities." A fish of which they never ate, was wee-re, or bad, whereas the kangaroo was bood-yer-re, or good; and these expressions were used not only for qualities which they perceived by their senses, but for all kinds of badness and goodness, and were the only terms they had for wrong and right. "Their enemies were wee-re; their friends bood-yer-re. On our speaking of cannibalism, they expressed great horror at the mention, and said it was wee-re. On seeing any of our people punished or reproved for ill-treating them, they expressed their approbation, and said it was bood-yer-re, it was right."[5]

[Footnote 1: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 251.]

[Footnote 2: Powers, Tribes of California, p. 22.]

[Footnote 3: Forsyth, Highlands of Central India, p. 139.]

[Footnote 4: Mariner, Natives of the Tonga Islands, ii. 147 sq.]

[Footnote 5: Collins, English Colony in New South Wales, i. 548 sq.]

{133} Considering, moreover, that even the European languages make use of such general terms as "good" and "bad" for the purpose of expressing moral qualities, it seems likely that, originally, moral concepts were not clearly differentiated from other more comprehensive generalisations, and that they assumed a more definite shape only by slow degrees. At the same time we must not expect to find the beginning of this process reflected in the vocabularies of languages. There is every reason to believe that a savage practically distinguishes between the "badness" of a man and the "badness"

of a piece of food, although he may form no clear idea of the distinction. As Professor Wundt observes, "the phenomena of language do not admit of direct translation back again into ethical processes: the ideas themselves are different from their vehicles of expression, and here as everywhere the external mark is later than the internal act for which it stands."[6] Language is a rough generaliser; even superficial resemblance between different phenomena often suffices to establish linguistic identity between them. Compare the rightness of a line with the rightness of conduct, the wrongness of an opinion with the wrongness of an act. And notice the different significations given to the verb "ought" in the following sentences:--"They ought to be in town by this time, as the train left Paris last night"; "If you wish to be healthy you ought to rise early"; "You ought always to speak the truth." Though it may be shown that in these statements the predicate "ought" signifies something which they all have in common--the reference to a rule,[7]--we must by no means assume that this constitutes the essence of the moral "ought," or gives us the clue to its origin.

[Footnote 6: Wundt, Ethik, p. 36 (English translation, p. 44).]

[Footnote 7: Cf. Stephen, Liberty, Equality, Fraternity, p. 343 sq.]

Discarding all questions of etymology as irrelevant to our subject,[8] we shall, in our analysis of moral concepts, {134} endeavour to fix the true import of each concept by examining how, and under what circumstances, the term expressing it is generally applied. We shall restrict ourselves to the principal, typical terms which are used as predicates in moral judgments. If we succeed in proving that they are all fundamentally derived from either moral indignation or moral approval, there can be no reasonable doubt as to the origin of the rest.

[Footnote 8: The attempt to apply the philological method to an examination of moral concepts has, in my opinion, proved a failure--which may be seen from Mr. Baynes' book on The Idea of God and the Moral Sense in the Light of Language.]

The tendency in a phenomenon to arouse moral indignation is directly expressed by the term bad, and a disposition of mind which is characterised by some special kind of badness is called vice. Closely allied to the term "bad" is the term wrong. But there is a difference in the use of these words. Whilst "bad" may be applied both to a person's character and to his conduct, only his conduct may be said to be "wrong." The reason for this is that the concept of moral wrongness is modelled on the idea of a moral law, the breach of which is regarded as "wrong." And, by laying down a moral law, we only enjoin a certain mode of conduct; we do not command a person to have a certain character.

The moral law is expressed by the term ought, a term which, in modern ethics, generally occupies a central position among moral predicates. The notion which it embodies is frequently looked upon as ultimate and incapable of analysis--"too elementary" (to quote Professor Sidgwick) "to admit of any formal definition."[9] This view, I think, instead of simplifying the matter, has been one of the chief causes of the prevailing confusion in ethical thought.

[Footnote 9: Sidgwick, Methods of Ethics, p. 33.]

Far from being a simple notion, "ought" appears to me clearly decomposable, even though it have a special flavour of its own. First of all, it expresses a conation. When I feel that I ought to do a thing, I experience an impulse to do it, even though some opposite impulse may finally determine my action. And when I say to another man, "You ought to do this, or that," there is certainly implied {135} a purpose to influence his action in a certain direction. In the notion of duty, the ethical import of which is identical with that of "ought," this conative element is not so obvious.

Closely connected with the conative nature of "ought" is the imperative character it is apt to assume. But, though frequently used imperatively, "ought" is not necessarily and essentially imperative. Even if the "ought" which I address to myself, in a figurative sense, may be styled a command, it is hardly appropriate to speak of a present command with reference to past actions. The common phrase, "You ought to have done this, or that," cannot be called a command.

The conation expressed in "ought" is determined by the idea that the mode of conduct which ought to be performed is not, or will possibly not be, performed. It is also this idea of its not being performed that determines the emotion which gives to "ought" the character of a moral predicate. The doing of what ought not to be done, or the omission of what ought not to be omitted, is apt to call forth moral indignation--this is the most essential fact involved in the notion of "ought." Every "ought"-judgment contains implicitly a negation. Nobody would ever have dreamt of laying down a moral rule if the idea of its transgression had not presented itself to his mind. We may reverse the words of the Apostle,[10] and say that where no transgression is, there is no law. When Solon was asked why he had specified no punishment for one who had murdered a father, he replied that he supposed it could not occur to any man to commit such a crime.[11] Similarly, the modern Shintoist concludes that the primæval Japanese were pure and holy from the fact that they are represented as a people who had no moral commandments.[12] It is this prohibitive character of "ought" that has imparted to duty that idea of antagonism to inclination which has found its most famous expression {136} in the Kantian ethics, and which made Bentham look upon the word itself as having in it "something disagreeable and repulsive."[13] It is the intrinsic connection between "ought" and "wrong" that has given to duty the most prominent place in ethical speculation whenever moral pessimism has been predominant. Whilst the ancient Greeks, with whom happiness was the state of nature, never spoke of duty, but held virtue to be the Supreme Good, Christianity, on the other hand, which looked upon man as a being born and bred in sin, regarded morals pre-eminently as the science of duty. Then, again, in modern times, Kant's categorical imperative came as a reaction against that moral optimism which once more had given the preference to virtue, considering everything in the world or in humanity as beautiful and good from the very beginning.[14] It is also worth noting that the feeling of self-complacency connected with the consciousness of having acted in accordance with the law of duty, has no distinctively expressive name in ordinary language, while the opposite feeling is known by so familiar and distinctive a term as "remorse." This is not, as has been said,[15] "a significant indication of the moral condition of mankind," but a significant indication of the true import of the notion of duty itself.

[Footnote 10: Romans, iv. 15.]

[Footnote 11: Diogenes Laërtius, Solon, 10. Cicero, Pro S. Roscio Amerino, 25.]

[Footnote 12: Griffis, Religions of Japan, p. 72.]

[Footnote 13: Bentham, Deontoiogy, i. 10.]

[Footnote 14: Ziegler, Social Ethics, pp. 22, 75 sq.]

[Footnote 15: Murray, Introduction to Ethics, p. 108.]

It is not, then, in the emotion of approval that we must seek for the origin of this concept. We may undoubtedly applaud him who is faithful to his duty, but the idea of duty involves no applause. There is no contradiction in the omission of an act being disapproved of and the performance of it being praised. "Ought" and "duty" express only the tendency of an omission to call forth disapproval, and say nothing about the consequences of the act's performance. The conscientious man refuses the homage paid

to him, by saying, "I have only done my duty." Duty is a "stern {137} lawgiver," who threatens with punishment, but promises no reward.[16]

[Footnote 16: The intrinsic connection between duty and disapproval has previously been noticed by Stuart Mill (in a note to James Mill's Analysis of the Human Mind, ii. 325), according to whom "no case can be pointed out in which we consider anything as a duty, and any act or omission as immoral or wrong, without regarding the person who commits the wrong and violates the duty as a fit object of punishment." Cf. also Bain, Emotions and the Will, ch. 15, and Gizycki, Introduction to the Study of Ethics, English adaptation by Stanton Coit, p. 102 sq.]

The ideas of "ought" and "duty" thus spring from the same source as the ideas of "bad" and "wrong." To say that a man ought to do a thing is, so far as the morality of his action is concerned, the very same thing as to say that it is bad, or wrong, of him not to do it--in other words, that the not-doing of it has a tendency to call forth moral disapproval.

"Wrong" is popularly regarded as the opposite of right, and they are really contradictories, but only within the sphere of positive moral valuation. We do not call the actions of irresponsible beings, like animals or infants, "right," although they are not wrong; nor do we pronounce morally indifferent actions of responsible beings to be "right," unless we wish thereby especially to mark their moral value as not being wrong. An act which is permissible is of course not wrong, and so far it may be said to be right; but it would be more accurate to say that people have a right to do it. The adjective "right," in its strict sense, refers to cases from which the indifferent is excluded. A right action is, on a given occasion, the right action, and other alternatives are wrong. "Right" is thus closely related to "ought," but at the same time "right" and "obligatory" are not identical. I cannot quite subscribe to the view of Professor Sidgwick, that "in the recognition of conduct as 'right' is involved an authoritative prescription to do it."[17] What is right is in accordance with the moral law; the adjective "right" means that duty is fulfilled. It is true that the super-obligatory also is right. But "right" takes no notice of the super-obligatory as distinct from the obligatory, and what goes {138} beyond duty always involves the fulfilment of some duty. It may be admitted to be "not only right," but not to be more right. Right has no comparative. A duty is either fulfilled or not, and unless it be perfectly fulfilled the conduct is wrong. There are degrees of wrongness and of goodness, as the moral indignation and the moral approval may be stronger or weaker, but there are no degrees of rightness.

[Footnote 17: Sidgwick, op. cit. p. 106.]

The fact that the right action is a duty fulfilled accounts for the erroneous opinion so generally held by ethical writers that "right" is intrinsically connected with moral approval.[18] The choice of the right alternative may give us satisfaction and call forth in us an emotion of approval. This emotion may be the motive for our pointing out the rightness of the act, and the judgment in which we do so may even intrinsically contain applause. The manner in which the judgment "That is right," is pronounced, often shows that it is meant to be an expression of praise. But this does not imply that the concept "right" by itself has reference to moral approval and involves praise. It only means that in one word is expressed a certain concept--the concept that a duty is fulfilled--plus an emotion of approval. That "right" per se involves no praise is obvious from the fact that we regard it as perfectly right to pay a debt and to keep a promise, or to abstain from killing, robbing, or lying, although such acts or omissions generally have no tendency whatever to evoke in us an emotion of moral approval.

[Footnote 18: Hutcheson, Essay on the Nature and Conduct of the Passions and Affections, with Illustrations on the Moral Sense, p. 279. Clifford, Lectures and Essays, pp. 294, 304 sq. Fowler and Wilson, Principles of Morals, ii. 199. Alexander, Moral Order and Progress, p. 399.]

The concept of "right," then, as implying that the opposite mode of conduct would have been wrong, ultimately derives its moral significance from moral disapproval. This may seem strange considering that "right" is commonly looked upon as positive and "wrong" as its negation. But we must remember that language and popular conceptions in these matters start {139} from the notion of a moral rule or command. It is a matter of paramount importance that such modes of conduct as are apt to arouse moral indignation should be avoided. People try to prevent them by prohibitions and injunctions, often emphasised by threats of penalties for the transgressors. The whole moral and social discipline is based upon commands; customs are rules of conduct, and so are laws. It is natural, then, that the notion of a command should figure uppermost in popular conceptions of morality. Obedience to the command is right, a breach of it is wrong. But the fact which gives birth to the command itself is the indignation called forth by the act which the command forbids, or by the omission of that which it enjoins.

I have spoken here of "right" as an adjective. Used as a substantive, to denote a right, it also, in whatever sense it be used, expresses a concept which is rooted in the emotion of moral disapproval. To have a right to do a thing is to be allowed to do it, either by positive law, in the case of a legal right, or by the moral law, in the case of a moral right; in other words, to have a moral right to do a thing means that it is not wrong to do it. But generally the concept of "a right" means something more than this. From the fact that an act is allowable, that it is not wrong, it follows, as a rule, that it ought not to be prevented, that no hindrance ought to be put in the way of its performance; and this character of inviolability is largely included in the very concepts of rights. That a man has a right to live does not merely mean that he commits no wrong by supporting his life, but it chiefly means that it would be wrong of other people to prevent him from living, that it is their duty not to kill him, or even, as the case may be, that it is their duty to help him to live. And in order to constitute a right in him, the duty in question must be a duty to him. That a right belonging to A is not merely a duty incumbent on B, but a duty to A incumbent on B, will become evident from an example. To kill another {140} person's slave may be condemned as an injury done to the slave himself, in which case it is a duty to the slave not to kill him; or to kill another person's slave may be condemned on account of the loss it causes to the master, in which case it is deemed a duty to the master not to kill the slave. In the latter case we can hardly say that the duty of not killing the slave constitutes a right to live in the slave--it only constitutes a right in the master to retain his slave alive, not to be deprived of him by an act causing his death.

So commonly does the conception of a right belonging to a person contain the idea of a duty which other persons owe him, that it seems necessary to point out the existence of rights in which no such idea is involved. A man's right to defend his country, for instance, does not intrinsically imply that it is wrong of the enemy to disable him from doing so. But, on the other hand, there are rights which are nothing else than duties towards those who have the rights. A right is not always a person's right to a certain activity, or to abstaining from a certain activity; it may have exclusive reference to other people's acts or omissions. That a man has the right to be rewarded by his country only means that his country is under an obligation to reward him. That a father has a right to be obeyed by his children only means that it is a duty incumbent on his children to obey

him. That a person has the right of bodily integrity only means that it is wrong to inflict on him a bodily injury. These rights may, no doubt, if violated, give rise to certain rights of activity: a man may have a right to claim the reward which is due to him, a father to exact from his children the obedience which they owe him, a person who is wronged to defend himself. But the rights of claiming a reward, of exacting obedience, of resisting wrong, are certainly not identical with the rights of being rewarded, of being obeyed, of not being wronged.

It is commonly said that rights have their corresponding duties. But if this expression is to be used, it must be {141} remembered that the duty which "corresponds" to a right, as a matter of fact, is either included in that right or simply identical with it. The identity between the right and the duty, then, consists in this, that the notion of a right belonging to a person is identical with the notion of a duty towards him. Rights and duties are not identical in the sense that it is always a duty to insist on a right, though this has been urged.[19] If anybody prevents me from making use of my right it may no doubt be deemed a duty on my part not to tolerate the wrong committed against me, but nothing of the kind is involved in the concept of a right. And the same may be said with reference to the assertion that a right to do a thing is always, at the same time, a duty to do it--an assertion which is a consequence of the doctrine that there is nothing morally indifferent and nothing that goes beyond duty; in other words, that all conduct of responsible beings is either wrong or obligatory. Even if this doctrine were psychologically correct--which it is not--even if there were a constant coincidence between the acts which a person has a right to perform and acts which it is his duty to perform, that would not constitute identity between the concepts of rights and duties. According to the meaning of a right, A's right may be B's duty towards A, but A's right cannot be A's duty towards B or anybody else.

[Footnote 19: Alexander, op. cit. p. 146 sq.]

Closely connected with the notions of wrongness and rightness are the notions of injustice and justice. Injustice, indeed, is a kind of wrongness. To be unjust is always to be unjust to somebody, and this implies a doing of wrong to somebody, a violation of somebody's right. "Justice," again, is a kind of rightness. It involves the notion that a duty to somebody, a duty corresponding to a right, is fulfilled;[20] we say that justice "demands" that it should be fulfilled. As an act is "right" if its omission {142} is wrong, so an act is "just," in the strict sense of the word, if its omission is unjust. But, like the adjective "right," the adjective "just" is also sometimes used in a wider sense, to denote that something is "not unjust." As non-obligatory acts that are "not wrong" can hardly be denied to be "right," so non-obligatory acts that are "not unjust" can hardly be denied to be "just," although they are not demanded by justice.

[Footnote 20: According to the Institutiones of Justinian (i. 1. 1) "justice is the constant and perpetual will to render to each one his right,"--"justitia est constans et perpetua voluntas jus suum cuique tribuens."]

At the same time, "injustice" and "justice" are not simply other names for violating or respecting rights. Whenever we style an act "unjust," we emphasise that it involves partiality. We do not denominate murder and robbery unjust, but wrong or criminal, because the partiality involved in their commission is quite obscured by their general wrongness or criminality; but we at once admit their gross injustice when we consider that the murderer and robber indulged their own inclinations with utter disregard of their neighbours' rights. And we look upon "unjust" as an exceedingly appropriate term for a judge who condemns an innocent man with the intention to save the culprit, and for an employer who keeps for himself a profit which he ought to share with his

employees. Again, when we style an act "just," in the strict sense of the term, we point out that an undue preference would have been shown to somebody by its omission. It is true that, as Adam Smith observes, "we may often fulfil all the rules of justice by sitting still and doing nothing,"[21] and that the man who barely abstains from violating either the person or the estate or the reputation of his neighbours so far does justice to them; but in such a case we hardly apply the epithet "just," simply because there is no reason for emphasising the partiality involved in the opposite mode of conduct. On the other hand, we say it is just, or, more emphatically, that justice demands, that the innocent should not suffer in the place of the guilty, or that the employer should give his employees all their dues.

[Footnote 21: Adam Smith, Theory of Moral Sentiments, p. 117.]

It is necessary to note that the impartiality which justice {143} demands is impartiality within the recognised order of rights, whether these rights themselves have a partial origin or not. A father is unjust if he gives away property to one of his children in preference to others, in case all of them are recognised to have a right to an equal share in his property, even though it be only a conditional right; and a man is unjust if he keeps for himself a profit to which another man has an equal right. But in a society which regards slavery as a morally permissible institution, a man is not necessarily deemed unjust if he beats a slave in a case where it would have been wrong to beat a freeman. However, in the case of unequal rights, justice admits of no greater difference of treatment than what the difference in rights implies. It may be just to punish a man who by a crime has forfeited that right to be protected from wilfully inflicted pain which every law-abiding citizen possesses, but it is unjust to extend the inequality between his condition and the condition of others beyond the inequality of their rights by inflicting upon him a punishment which is unduly severe.

It is the emphasis laid on the duty of impartiality that gives justice a special prominence in connection with punishments and rewards. A man's rights depend to a great extent upon his actions. Other things being equal, the criminal has not the same rights to inviolability as regards reputation, or freedom, or property, or life, as the innocent man; the miser and egoist have not the same rights as the benefactor and the philanthropist. On these differences in rights due to differences in conduct, the terms "just" and "unjust" lay stress; for in such cases an injustice would have been committed if the rights had been equal. When we say of a criminal that he has been "justly" imprisoned we point out that he was no victim of undue partiality, as he had forfeited the general right to freedom on account of his crime. When we say of a benefactor that he has been "justly" rewarded, we point out that no favour was partially bestowed upon him in preference to others, as he had acquired the special right of being rewarded. But the {144} "justice" of a punishment or a reward, strictly speaking, involves something more than this; as we have seen, what is strictly "just" is always the discharge of a duty corresponding to a right which would have been in a partial manner disregarded by a transgression of the duty. If it is just that a person should be rewarded, he ought to be rewarded, and to fulfil this duty is to do him justice. Again, if it is just that a person should be punished, he ought to be punished, and his not being punished is an injustice to other persons. It is an injustice towards all those whose condemnation of the wrong act finds its recognised expression in the punishment, inasmuch as their rightful claim that the criminal should be punished, their right of resisting wrong, is thereby violated in favour of the wrong-doer. Moreover, his not being punished is an injustice towards other criminals, who have been punished for similar acts, in so far as they have a right to demand that no undue preference should be shown to anybody whose guilt is equal

to theirs. Retributive justice may admit of a certain latitude as to the retribution. It may be a matter of small concern from the community's point of view whether men are fined or imprisoned for the commission of a certain crime. But it may be a demand of justice that, under equal circumstances, all of them should be punished with the same severity, since the crime has equally affected their rights.

The emphasis which "injustice" lays on the partiality of a certain mode of conduct always involves a condemnation of that partiality. Like every other kind of wrongness, "injustice" is thus a concept which is obviously based on the emotion of moral disapproval. And so is the concept of "justice," whether it involves the notion that an injustice would be committed if a certain duty were not fulfilled, or it is simply used to denote that a certain mode of conduct is "not unjust." But there is yet another sense in which the word "just" is applied. It may emphasise the impartiality of an act in a tone of praise. Considering how difficult it is to be perfectly impartial and to give every man his due, especially when one's own interests are {145} concerned, it is only natural that men should be applauded for being just, and consequently that to call a person just should often be to praise him. So, also, "justice" is used as the name for a virtue, "the mistress and queen of all virtues."[22] But all this does not imply that an emotion of moral approval enters into the concept of justice. It only means that one word is used to express a certain concept--a concept which, as we have seen, ultimately derives its import from moral disapproval--plus an emotion of approval. That the concept of justice by itself involves no reference to the emotion of moral approval appears from the fact that it is no praise to say of an act that it is "only just."

[Footnote 22: Cicero, De officiis, iii. 6.]

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From the concepts springing from moral disapproval we pass to those springing from moral approval. Foremost among these ranks the concept good.[23]

[Footnote 23: Professor Bain, who takes a very legal view of the moral consciousness, maintains (Emotions and the Will, p. 292) that "positive good deeds and self-sacrifice . . . transcend the region of morality proper, and occupy a sphere of their own." A similar opinion has been expressed by Prof. Durkheim (Division du travail social), and, more recently, by Dr. Lagerborg, in his interesting essay, 'La nature de la morale' (Revue internationale de Sociologie, xi. 466). Prof. Durkheim argues (p. 30) that it would be "contraire à toute méthode" to include under the same heading acts which are obligatory and acts which are objects of admiration, and at the same time exempt from all regulation. "Si donc, pour rester fidèle à l'usage, on réserve aux premiers la qualification de moraux, on ne saurait la donner également aux seconds." But I fail to see that ordinary usage recognises regulation as the test of morality. On the contrary, terms like "goodness" and "virtue," though having no reference whatever to any moral rule, have always hitherto been applied to qualities avowedly moral.]

Though "good," being affixed to a great variety of objects, takes different shades of meaning in different cases, there is one characteristic common to everything called "good." This is hardly, as Mr. Spencer maintains,[24] its quality of being well adapted to a given end. It is true that the good knife is one which will cut, the good gun one which carries far and true. But I fail to see that "good" in a moral sense involves any idea of an adaptation to a given purpose, and, by calling conduct {146} "good," we certainly do not mean that it "conduces to life in each and all." "Good" simply expresses approval or praise of something on account of some quality which it possesses. A house is praised as "good" because it fulfils the end desired, a wine because it has an agreeable taste, a man on account of his moral worth. "Good," as a moral epithet, involves a praise which

is the outward expression of the emotion of moral approval, and is affixed to a subject of moral valuation on account of its tendency to call forth such an emotion.

[Footnote 24: Spencer, Principles of Ethics, i. 21 sqq.]

"Good" has commonly been identified with "right," but such an identification is incorrect. A father does right in supporting his young children, inasmuch as he, by supporting them, discharges a duty incumbent upon him, but we do not say that he does a good deed by supporting them, or that it is good of him to do so. Nor do we call it good of a man not to kill or rob his neighbours, although his conduct is so far right. The antithesis between right and wrong is, in a certain sense at least, contradictory, the antithesis between good and bad is only contrary. Every act--provided that it falls within the sphere of positive moral valuation--that is not wrong is right, but every act that is not bad is not necessarily good. Just as we may say of a thing that it is "not bad," and yet refuse to call it "good," so we may object to calling the simple discharge of a duty "good," although the opposite mode of conduct would be bad. On the other hand, no confusion of ethical concepts is involved in attributing goodness to the performance of a duty, or, in other words, praising a man for an act the omission of which would have incurred blame. To say of one and the same act that it is right and that it is good, really means that we look upon it from different points of view. Since moral praise expresses a benevolent attitude of mind, it is commendable for a man not to be niggard in his acknowledgment of other people's right conduct; whereas, self-praise being objectionable, only the other point of view is deemed proper when he passes a {147} judgment upon himself. He may say, without incurring censure, "I have done my duty, I have done what is right," but hardly, "I have done a good deed"; and it would be particularly obnoxious to say, "I am a good man." The best man even refuses to be called good by others:--"Why callest thou me good? there is none good but one, that is, God."[25]

[Footnote 25: St. Matthew, xix. 17.]

Whilst "goodness" is the general expression for moral praise, virtue denotes a disposition of mind which is characterised by some special kind of goodness. He who is habitually temperate possesses the virtue of temperance, he who is habitually just the virtue of justice. And even when a man is simply said to be "virtuous," this epithet is given to him, more or less distinctly, with reference to some branch of goodness which constitutes his virtue. A Supreme Being, to whom is attributed perfect goodness, is not called virtuous, but good.

It was the opinion of Aristotle that virtue is imperfect so long as the agent cannot do the virtuous action without a conflict of impulses. Others maintain, on the contrary, that virtue essentially expresses effort, resistance, and conquest. It has been represented as "mediation through pain";[26] according to Kant, it is "the moral disposition in struggle."[27] But I do not see that virtue presupposes struggle, nor that it is lessened by being exercised with little or no effort. A virtue consists in the disposition to will or not to will acts of a certain kind, and is by no means reduced by the fact that no rival impulses make themselves felt. It is true that by struggle and conquest a man may display more virtue, namely, the virtue of self-restraint in addition to the virtue gained by it. The vigorous and successful contest against temptation constitutes a virtue by itself. For instance, the quality of mind which is exhibited in a habitual and victorious effort to conquer strong sexual passions is a virtue distinguishable from that of chastity. But even this virtue of {148} resisting seductive impulses is not greater, ceteris paribus, in proportion as the victory is more difficult. Take two men with equally strong passions and equally exposed to temptations, who earnestly endeavour to lead a chaste life. He

who succeeds with less struggle, thanks to his greater power of will, is surely inferior neither in chastity nor in self-restraint. Suppose, again, that the two men were exposed to different degrees of temptation. He who overcomes the greater temptation displays more self-restraint; yet the other man may possess this virtue in an equal degree, and his chastity is certainly not made greater thereby. He may have more merit, but merit is not necessarily proportionate to virtue.

[Footnote 26: Laurie, Ethica, p. 253 sqq.]

[Footnote 27: Kant, Kritik der praktischen Vernunft, i. 1. 3 (Sämmtliche Werke, v. 89).]

The virtues are broad generalisations of mental dispositions which, on the whole, are regarded as laudable. Owing to their stereotyped character, it easily happens, in individual cases, that the possession of a virtue confers no merit upon the possessor; and, at least from the point of view of the enlightened moral consciousness, a man's virtues are no exact gauge of his moral worth. In order to form a just opinion of the value of a person's character, we must take into account the strength of his instinctive desires and the motives of his conduct. There are virtues that pay no regard to this. A sober man, who has no taste for intoxicants, possesses the virtue of sobriety in no less degree than a man whose sobriety is the result of a difficult conquest over a strong desire. He who is brave with a view to be applauded is not, as regards the virtue of courage, inferior to him who faces dangers merely from a feeling of duty. The only thing that the possession of a virtue presupposes is that it should have been tried and tested. We cannot say that people unacquainted with intoxicants possess the virtue of sobriety, and that a man who never had anything to spend distinguishes himself for frugality. For to attribute a virtue to somebody is always to bestow upon him some degree of praise, and it is no praise, only irony, to say of a man that he "makes a virtue of necessity."

{149} Attempts have been made to reconcile the Aristotelian and the Kantian views of the relation between virtue and effort, by saying that virtue is the harmony won and merit is the winning of it.[28] This presupposes that a man to whom virtue is natural has had his fights. But, surely, it is not always so. Who could affirm that every temperate, or charitable, or just man has acquired the virtue only as a result of inward struggle? There are people to whom some virtues at least are natural from the beginning, and others who acquire them with a minimum of effort.

[Footnote 28: Dewey, Study of Ethics, p. 133 sq. Simmel, Einleitung in die Moralwissenschaft, i. 228. Cf. also Shaftesbury 'Inquiry concerning Virtue and Merit,' i. 2. 4, in Characteristicks, ii. 36 sqq.]

There has been much discussion about the relation between virtue and duty. It has been said that "they are co-extensive, the former describing conduct by the quality of the agent's mind, the latter by the nature of the act performed";[29] that they express the same ideal, virtue subjectively, duty objectively;[30] or that virtue, in its proper sense, is "the quality of character that fits for the discharge of duty," and that it "only lives in the performance of duty."[31] At the same time it is admitted that "the distinctive mark of virtue seems to lie in what is beyond duty," and that "though every virtue is a duty, and every duty a virtue, there are certain actions to which it is more natural to apply the term virtuous."[32] Prof. Sidgwick, again, in his elaborate chapter on 'Virtue and Duty,' remarks that he has "thought it best to employ the terms so that virtuous conduct may include the performance of duty as well as whatever good actions may be commonly thought to go beyond duty; though recognising that virtue in its ordinary use is most conspicuously manifested in the latter."[33]

[Footnote 29: Alexander, op. cit. p. 244.]

[Footnote 30: Grote, Treatise on the Moral Ideals, p. 22. Cf. Seth, Study of Ethical Principles, p. 239.]

[Footnote 31: Muirhead, Elements of Ethics, p. 190 n.*]

[Footnote 32: Alexander, op. cit. p. 243 sq.]

[Footnote 33: Sidgwick, op. cit. p. 221.]

It can be no matter of surprise that those who regard the notion of "duty" as incapable of being analysed, or {150} who fail to recognise its true import, are embarrassed by its relation to virtue. We do not call it a virtue if a man habitually abstains from killing or robbing, or pays his debts, or performs a great number of other duties. We do call chastity and temperance and justice virtues, although we regard it as obligatory on a man to be chaste, temperate, just. We also call hospitality, generosity, and charity virtues in cases where they go beyond the strict limits of duty. "The relation of virtue and duty is complicated," says Professor Alexander.[34] "In its common use each term seems to include something excluded from the other," observes Professor Sidgwick.[35] But, indeed, the relation is not complicated, for there is no other intrinsic relation between them than their common antagonism to "wrong." That something is a duty implies that its non-performance tends to evoke moral indignation, that it is a virtue implies that its performance tends to evoke moral approval. That the virtues actually cover a comparatively large field of the province of duty is simply owing to their being dispositions of mind. We may praise the habits of justice and gratitude, even though we find nothing praiseworthy in an isolated just or grateful act.

[Footnote 34: Alexander, op. cit. p. 244.]

[Footnote 35: Sidgwick, op. cit. p. 219.]

There has been no less confusion with regard to the relation between duty and merit. Like the notions of "good" and "virtue," the "meritorious" derives its origin from the emotion of moral approval; but while the former merely express a tendency to give rise to such an emotion, "meritorious" implies that the object to which it refers merits praise, that it has a just claim to praise, or, in other words, that it ought to be recognised as good. This makes the term "meritorious" more emphatic than the term "good," but at the same time it narrows its province in a peculiar way. Just as the expression that something ought to be done implies the idea of its not being done, so the word "meritorious" suggests the idea of goodness which may fail of due recognition. And as it is meaningless to speak of duty in a case where the {151} opposite mode of conduct is entirely out of the question, so it would be an absurdity to attribute merit to somebody for an act the goodness of which is universally admitted. Thus "meritorious" involves a restriction. It would be almost blasphemous to call the acts of a God conceived to be infinitely good meritorious, since it would suggest a limitation of his goodness.

The emphatic claim to praiseworthiness made by the "meritorious" has rendered it objectionable to a great number of moralists. It has been identified with the "super-obligatory"--a conception which is to many an abomination. From what has been said above, however, it is manifest that they are not identical. As the discharge of a duty may be regarded as a good act, so it may also be regarded as an act which ought to be recognised as good. Practically, no doubt, there is a certain antagonism between duty and merit. We praise, and, especially, we regard as deserving praise, only what is above the average,[36] and we censure what is below it. No merit is conferred upon him who performs a duty which is seldom transgressed, or the transgression of which would actually incur punishment or censure. We do not think that a man ought to be praised for what his own interest prompts him to perform; and, since the transgression of a moral command which is usually obeyed is generally censured or punished, there is

under ordinary circumstances nothing meritorious in performing a duty. But though thus probably most acts which are deemed meritorious fall outside the limits of duty as roughly drawn by the popular mind, we are on the other hand often disposed to attribute merit to a man on account of an act which, from a strict point of view, is his duty, but a duty which most people, under the same circumstances, would have left undischarged. This shows that the antagonism between duty and merit is not absolute. And in the concept of merit per se no such antagonism is involved.

[Footnote 36: Merit, as Professor Alexander puts it (op. cit. p. 196), "expresses the interval which separates the meritorious from the average."]

{152} I confess that I fail to grasp what those writers really mean who identify the "meritorious" with the "super-obligatory," and at the same time deny the existence of any super-obligatory. Do they shut their eyes to the important psychical fact indicated by the term "merit," or do they look upon it as a chimera inconsistent with a sufficiently enlightened moral consciousness? For my own part, I cannot see how the moral consciousness could dispense with the idea that there are actions which merit praise or reward, which ought to be praised or rewarded. The denial of merit can be defended from a purely theological point of view, but then only with regard to man's relation to God. It is obvious that a fallen being who is sinning even when he does his best, could not be recognised as good by God and could have no merit. But it is hardly just, nor is it practically possible, that a man should measure his fellow-man by a superhuman standard of perfection, and try to suppress the natural emotion of moral approval and the claims springing from it, by persuading himself that there is no mortal being who ever does anything which ought to be recognised as good.

Quite distinct from the question of merit, then, is that of the super-obligatory. Can a man do more than his duty, or, in other words, is there anything good which is not at the same time a duty? The answer depends on the contents given to the commandments of duty, hence it may vary without affecting the concept of duty itself. If we consider that there is an obligation on every man to promote the general happiness to the very utmost of his ability, we must also maintain that nobody can ever do anything good beyond his duty. The same is the case if we regard "self-realisation," or a "normal" exercise of his natural functions, as a man's fundamental duty. In all these cases "to aim at acting beyond obligation," as Price puts it,[37] is "the same with aiming at acting contrary to obligation, and doing more than is fit to be done, the same with doing wrong." It can hardly be denied, however, {153} that those who hold similar views have actually two standards of duty, one by which they measure man and his doings in the abstract, with reference to a certain ideal of life which they please to identify with duty, and another by which they are guided in their practical moral judgments upon their own and their neighbours' conduct. The conscientious man is apt to judge himself more severely than he judges others, partly because he knows his own case better than theirs,[38] and partly because he is naturally afraid of being intolerant and unjust. He may indeed be unwilling to admit that he ever can do more than his duty, seeing how difficult it is even to do what he ought to do, and impressed, as he would be, with the feeling of his own shortcomings. Yet I do not see how he could conscientiously deny that he has omitted to do many praiseworthy or heroic deeds without holding himself blamable for such omissions.

[Footnote 37: Price, Review of the Principal Questions in Morals, p. 204 sq.]

[Footnote 38: Cf. Sidgwick, op. cit. p. 221.]

Professor Sidgwick observes that "we should not deny that it is, in some sense, a man's strict duty to do whatever action he judges most excellent, so far as it is in his

power."[39] This, as it seems to me, is not a matter of course, and nothing of the kind is involved in the notion of duty itself. We must not confound the moral law with the moral ideal. Duty is the minimum of morality, the supreme moral ideal of the best man is the maximum of it. Those who sum up the whole of morality in the word "ought" identify the minimum and the maximum, but I fail to see that morality is better for this. Rather it is worse. The recognition of a "super-obligatory" does not lower the moral ideal; on the contrary it raises it, or at any rate makes it more possible to vindicate the moral law and to administer it justly. It is nowadays a recognised principle in legislation that a law loses part of its weight if it cannot be strictly enforced. If the realisation of the highest moral ideal is commanded by a moral law, such a law will always remain a dead letter, and morality will gain nothing. Far above the anxious {154} effort to fulfil the commandments of duty stands the free and lofty aspiration to live up to an ideal, which, unattainable as it may be, threatens neither with blame nor remorse him who fails to reach its summits. Does not experience show that those whose thoughts are constantly occupied with the prescriptions of duty are apt to become hard and intolerant?

[Footnote 39: Ibid. p. 219.]

Those who deny the existence of anything morally "praiseworthy" which is not a duty, are also generally liable to deny the existence of anything morally indifferent in the conduct of responsible beings. The "super-obligatory" and the "indifferent" have this in common, that they are "ultra-obligatory," and the denial of the one as well as of the other is an expression of the same tendency to look upon the moral law as the sole fact of the moral consciousness. Even Utilitarianism cannot consistently admit of anything indifferent within the province of moral valuation, since two opposite modes of conduct can hardly produce absolutely the same sum of happiness. Such a repudiation of the "indifferent" being quite contrary to the morality of common sense, which, after all, no ethical theory can afford to neglect, considerable ingenuity has been wasted on vain attempts to show that the "indifferent" is nothing but a rude popular conception unable to keep its ground against a thoroughgoing examination. Professor Ziegler ironically asks:--"Such outward matters as eating and drinking are surely morally indifferent? And yet is eating and drinking too much, is spending too much time in outdoor exercise, is lounging idly about, morally indifferent? or, on the other hand, is it morally allowable or wholesome to reduce oneself and make oneself weak and ill by fasting, or to become a hypochondriac by continually staying indoors?"[40] This argument, however, involves a confusion of different volitions. The fact that eating or drinking generally, or eating or drinking too much or too little, are no matters of indifference, surely does not prevent {155} eating or drinking on some certain occasion from being indifferent. Mr. Bradley again observes:--"It is right and a duty that the sphere of indifferent detail should exist. It is a duty that I should develop my nature by private choice therein. Therefore, because that is a duty, it is a duty not to make a duty of every detail; and thus in every detail I have done my duty."[41] This statement also shows a curious confusion of entirely different facts. It may be very true that it is a duty to recognise certain actions as indifferent. This is one thing by itself. But it is quite another thing to perform those actions. And if it is a duty to recognise certain actions as indifferent how could it possibly at the same time be held a duty to perform them?

[Footnote 40: Ziegler, op. cit. p. 85.]

[Footnote 41: Bradley, Ethical Studies, p. 195, n. 1.]

It has been maintained that the sphere of the indifferent forms the totality of "ought"; that when the same end may be reached by a variety of means, an action may be indifferent merely in relation to the choice of means, but not so far as regards the

attainment of the end, and hence is only apparently indifferent.[42] "If it is my moral duty to go from one town to another," says Mr. Bradley, "and there are two roads which are equally good, it is indifferent to the proposed moral duty which road I take; it is not indifferent that I do take one or the other; and whichever road I do take, I am doing my duty on it, and hence it is far from indifferent: my walking on road A is a matter of duty in reference to the end, though not a matter of duty if you consider it against walking on road B; and so with B--but I can escape the sphere of duty neither on A nor on B." All this is true, but forms no argument against the "indifferent." The statement, "You ought to go to the town and to take either road A or B," refers to two volitions which are regarded as wrong, namely, the volition not to go to the town at all, and the volition to take any road not A or B; and it {156} refers also to two pairs of volitions in reference to which it indicates that the choice between the volitions constituting each pair is indifferent. You may choose to take road A or not to take it; you may choose to take road B or not to take it. The "indifferent" is always an alternative between contradictories. It can therefore never form part of an "ought"-totality, being itself a totality as complete as possible. This is somewhat disguised by a judgment which makes an obligation of a choice between A and B, but becomes conspicuous if we consider a simple case of indifference. Suppose that it is considered indifferent whether you speak or do not speak on a certain occasion. What is here the "ought" that forms the totality of the indifferent? Would there be any sense in saying that you ought either to speak or not to speak? or is the alternative, speaking--not speaking, only a link in an indefinite chain of alternatives, each of which is by itself indifferent, in a relative sense, but the sum of which forms the "ought"? You may be permitted--it will perhaps be argued--in a given moment to speak or to abstain from speaking, to write or to abstain from writing, to read or to abstain from reading, and so on; but however wide the province of the permissible may be, there must always be a limit inside which you ought to remain. That you do this or that may be a matter of indifference, but only of relative indifference, for it is not indifferent what you do on the whole; hence there is nothing absolutely indifferent. Such an argument, however, involves a misapprehension of the true meaning of the "indifferent." The predicate expressing indifference refers to certain definite volitions and their contradictories, not to the whole of a man's conduct in a certain moment. The whole of a man's conduct is never indifferent. But neither is the whole of a man's conduct ever wrong. In the moment when a murderer kills his victim he is fulfilling an endless number of duties: he abstains from stealing, lying, committing adultery, suicide, and so on. The predicate "wrong" only marks the moral {157} character of a special mode of conduct. Why should not the indifferent be allowed to do the same?

[Footnote 42: Simmel, op. cit. i. 35 sqq. Alexander, op. cit. p. 50 sqq. Murray, op. cit. p. 26 sq. Bradley, op. cit. p. 195 sq.]

It has, finally, been observed that the so-called "indifferent" is something "the morality of which can only be individually determined."[43] This remark calls attention to the fact that no mode of conduct can be regarded as indifferent without a careful consideration of individual circumstances, and that much which is apparently indifferent is not really so. This, however, does not involve an abolition of the indifferent. Such an abolition would be the extreme of moral intolerance. He who tried to put it into practice would be the most insupportable of beings, and to himself life would be unbearable. Fortunately, such a man has never existed. The attempts to make every action, even the most trivial, of responsible beings a matter of moral concern, are only theoretical fancies without practical bearing, a hollow and flattering tribute to the idol of Duty.

[Footnote 43: Martensen, Christian Ethics, p. 415.]

Chapter VII — Customs and Laws As Expressions of Moral Ideas

MORAL ideas are expressed in moral judgments. We have hitherto examined the predicates of such judgments, the import and origin of the moral concepts. Now a much wider field or research remains for us to traverse. We shall direct our attention to the subjects of moral judgments, to the mass of phenomena which, among different peoples and in different ages, have had a tendency to call forth moral blame and moral praise. We shall discuss the general characteristics which all these phenomena have in common. We shall classify the most important of them, and study the moral ideas held with reference to the phenomena of each class separately. And in both cases we shall not only analyse, but try to find an answer to the question, Why?--the ultimate aim of all scientific research. But before entering upon this vast undertaking, we must define the lines on which it is to be conducted. How can we get an insight into the moral ideas of mankind at large?

In answering this question I need not dwell upon such obvious means of information as direct experience, or records of moral maxims and sentiments found in proverbs, literary and philosophical works, and religious codes. The sources which, from an evolutionary point of view, are of the most comprehensive importance for our study, are tribal and national customs and laws. It is to these sources that the present chapter will be devoted.

{159} We have seen that a custom, in the strict sense of the word, is not merely the habit of a certain circle of men, but at the same time involves a moral rule. There is a close connection between these two characteristics of custom: its habitualness and its obligatoriness. Whatever be the foundation for a certain practice, and however trivial it may be, the unreflecting mind has a tendency to disapprove of any deviation from it for the simple reason that such a deviation is unusual. As Abraham Tucker observes, "it is a constant argument among the common people, that a thing must be done, and ought to be done, because it always has been done."[1] Children show respect for the customary, [2] and so do savages. "If you ask a Kaffir why he does so and so, he will answer--'How can I tell? It has always been done by our forefathers.'"[3] The only reason which the Eskimo can give for some of their present customs, to which they adhere from fear of ill report among their people, is that "the old Innuits did so, and therefore they must."[4] In the behaviour of the Aleut, who "is bashful if caught doing anything unusual among his people,"[5] and in the average European's dread of appearing singular, we recognise the influence of the same force of habit.

[Footnote 1: Tucker, Light of Nature, ii. 593. Cf. also Simmel, Einleitung in die Moralwissenschaft, i. 65 sqq.]

[Footnote 2: Sully, Studies of Childhood, p. 280 sq.]

[Footnote 3: Leslie, Among the Zulus and Amatongas, p. 146.]

[Footnote 4: Hall, Arctic Researches, p. 569.]

[Footnote 5: Dall, Alaska, p. 396.]

On the other hand, it should be remembered that not every public habit is a custom, involving an obligation; certain practices, though very general in a society, may even be reprobated by almost every one of its members. The habits of a people must therefore be handled with discretion by the student of moral ideas. Yet when he has no reason to conclude as to some special habit that it is held obligatory, he may, probably always,

be sure that it is either allowed, or, in spite of all assurances of its wickedness, that the disapproval of it is not generally very deep or genuine. In a community where lying is a {160} prevailing vice, truthfulness cannot be regarded as a very sacred duty; and where sexual immorality is widely spread, the public condemnation of it always smacks of hypocrisy. Men's standard of morality is not independent of their practice. The conscience of a community follows the same rule as the conscience of an individual. "Commit a sin twice," says the Talmud, "and you will think it perfectly allowable."[6] Hence for the study of the inmost convictions of a nation, its "bad habits" form a valuable complement to its professed opinions.

[Footnote 6: Deutsch, Literary Remains, p. 58.]

The dictates of custom being dictates of morality, it is obvious that the study of moral ideas will, to a large extent, be a study of customs. But at the same time it should be borne in mind that custom never covers the whole field of morality, and that the uncovered space grows larger in proportion as the moral consciousness develops. Being a rule of duty, custom may only indirectly be an expression of moral approval, by claiming, in certain cases, that goodness should be rewarded. But even when demanding praise, custom is not always a reliable exponent of merit; it includes politeness, and politeness is a great deceiver. Custom may compel us to praise a man for form's sake, when he deserves no praise, and to thank him when he deserves no thanks. Moreover, custom regulates external conduct only. It tolerates all kinds of volitions and opinions if not openly expressed. It does not condemn the heretical mind, but the heretical act. It demands that under certain circumstances certain actions shall be either performed or omitted, and, provided that this demand is fulfilled, it takes no notice of the motive of the agent or omitter. Again, in case the course of conduct prescribed by custom is not observed, the mental facts connected with the transgression, if regarded at all, are dealt with in a rough and ready manner, according to general rules which hardly admit of individualisation. Yet the incongruity between custom and morality which ensues from these circumstances is on {161} the whole more apparent than real. It is rather an incongruity between different moral standards. The unreflecting moral consciousness, like custom, cares comparatively little for the internal aspect of conduct. It does not ask whether a man goes to church on Sunday from a religious motive or from fear of public opinion; it does not ask whether he stays at home from love of ease or from dissent of belief and avoidance of hypocrisy. It is ready to blame as soon as the dictate of custom is disobeyed. The rule of custom is the rule of duty at early stages of development. Only progress in culture lessens its sway.

Finally, the moral ideas which are expressed in the customs of a certain circle of men are not necessarily shared by every one of its members. This may, in the present connection, be considered a matter of slight importance by him who regards morality as "objectively" realised in the customs of a people, and who denies the individual the right to a private conscience. But from the subjective point of view which I am vindicating, individual conviction has a claim to equal consideration with public opinion, nay frequently, to higher respect, representing as it does in many cases a higher morality, a moral standard more purified by reflection and impartiality. At the lower stages of civilisation, however, where a man is led by his feelings more than by his thoughts, such a differentiation of moral ideas hardly occurs. The opinions of the many are the opinions of all, and the customs of a society are recognised as rules of duty by all its members.

In primitive society custom stands for law, and even where social organisation has made some progress it may still remain the sole rule for conduct.[7] The authority of

{162} a chief does not necessarily involve a power to make laws. Even kings who are described as autocrats may be as much tied by custom as is any of their subjects.

[Footnote 7: Cranz, History of Greenland, i. 170. Dall, op. cit. p. 381 (Tuski). Dobrizhoffer, Account of the Abipones, p. 95. Shooter, Kafirs of Natal and the Zulu Country, p. 101 sq. Holden, Past and Future of the Kaffir Races, p. 336. Mungo Park, Travels in the Interior of Africa, p. 16. Scaramucci and Giglioli, 'Notizie sui Danakil,' in Archivio per l'antropologia e la etnologia, xiv. 39. Earl, Papuans, p. 105 (Arru Islanders). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 473 (Timorese). Dalton, Ethnology of Bengal, p. 51 (Manipuris). Rockhill, Land of the Lamas, p. 220 (Eastern Tibetans).]

The Rejangs of Sumatra "do not acknowledge a right in the chiefs to constitute what laws they think proper, or to repeal or alter their ancient usages, of which they are extremely tenacious and jealous." There is no word in their language which signifies law, and the chiefs, in pronouncing their decisions are not heard to say, "So the law directs," but, "Such is the custom."[8] According to Ellis, "the veneration of the Malagasy for the customs derived from tradition, or any accounts of their ancestors . . . influences both their public and private habits; and upon no individual is it more imperative than upon their monarch, who, absolute as he is in other respects, wants either the will or the power to break through the long-established regulations of a superstitious people."[9] The king of Ashanti, although represented as a despotic monarch, is nevertheless under an obligation to observe the national customs which have been handed down to the people from remote antiquity, and a practical disregard of this obligation, in the attempt to change some of the old customs, cost one of the kings his throne.[10] "The Africans," says Mr. Winwood Reade, with special reference to Dahomey, "have sometimes their enlightened kings, as the old barbarians had their sages and their priests. But it is seldom in the power of the heads of a people to alter those customs which have been held sacred from time immemorial."[11] The Basutos, among whom "the chiefs have the right of making laws and publishing regulations required by the necessities of the times," regard such laws, or molaos, as inferior to the mekhoas, "the use and wont," which constitute the real laws of the country.[12] Among the ancient Irish, there was no sovereign authority competent to enact a new law, the function of the king being merely, as chief of the tribal assembly, to see that the proper customs were observed.[13]

[Footnote 8: Marsden, History of Sumatra, p. 217.]

[Footnote 9: Ellis, History of Madagascar, i. 359.]

[Footnote 10: Beecham, Ashantee and the Gold Coast, p. 90 sq. Cf. Stuhlmann, Mit Emin Pascha ins Herz von Afrika, p. 523 (A-l[=u]r).]

[Footnote 11: Reade, Savage Africa, p. 52 sq.]

[Footnote 12: Casalis, Basutos, p. 228.]

[Footnote 13: Ancient Laws of Ireland, iii. p. lxxxvi. sq. Cherry, Growth of Criminal Law, p. 33.]

{163} In competition with law, custom frequently carries the day. In India, especially in the South, "custom has always been to a great extent superior to the written law."[14] In the Ramnad case, the Judicial Committee expressly declared that, "under the Hindu system of law, clear proof of usage will outweigh the written text of the law."[15] It was also a maxim of the Roman jurists that laws may be abrogated by desuetude or contrary usage;[16] and in modern times the same doctrine is acted upon in Scotland.[17] Moreover, when a custom cannot abrogate the law, it may still have a paralysing influence on its execution. According to the laws of European nations, a man who has killed another in a duel is to be treated as a homicide; yet wherever the duel exists as

a custom, the law against it is ineffective. So it is on the Continent, and so it was in England in the eighteenth century, when a well-informed writer could affirm that he had "not found any case of an actual execution in England in consequence of a duel fairly fought."[18] In this instance the ineffectiveness of the law is owing to the fact that the law has not been able to abolish an old custom. But the superiority of custom also shows itself in cases where the law itself is getting antiquated, and a new custom, enforced by public opinion, springs up in opposition to it. Thus, contrary to law and earlier usage, it is nowadays the custom of certain European countries that a sentence of death is not carried into execution. Even "bad habits" tend to weaken the authority of the law. Probably the two most prominent civil vices of the Chinese are bribery and gambling. Against both these vices their penal code speaks with no uncertain sound; and yet, according to {164} Professor Douglas, it is no exaggeration to say that if the law were enforced, it would make a clean sweep of ninety-nine of every hundred officials in the empire.[19] Other illustrations of the same principle may be found much nearer home.

[Footnote 14: Burnell, quoted by Nelson, View of the Hind[=u] Law, p. 136.]

[Footnote 15: Mayne, Treatise on Hindu Law and Usage, p. 41.]

[Footnote 16: Institutiones, i. 2. 11. Digesta, i. 3. 32.]

[Footnote 17: Mackenzie, Studies in Roman Law, p. 54.]

[Footnote 18: Quoted by Bosquett, Treatise on Duelling, p. 80. Cf. A Short Treatise upon the Propriety and Necessity of Duelling, printed at Bath in 1779. In 1808, however, Major Campbell was sentenced to death and executed for killing Captain Boyd in a duel (Storr, 'Duel,' in Encyclopædia Britannica, vii. 514).]

[Footnote 19: Douglas, Society in China, p. 82.]

Custom has proved stronger than law and religion combined. Sir Richard Burton writes of the Bedouins, "Though the revealed law of the Koran, being insufficient for the Desert, is openly disregarded, the immemorial customs of the Kazi al-Arab (the Judge of the Arabs) form a system stringent in the extreme."[20] So, also, the Turkomans are ruled, often tyrannised over, by a mighty sovereign, invisible indeed to themselves, but whose presence is plainly discerned in the word deb--"custom," "usage." Our authority adds:--"It is very remarkable how little the 'Deb' has suffered in its struggle of eight centuries with Mahommedanism. Many usages, which are prohibited to the Islamite, and which the Mollahs make the object of violent attack, exist in all their ancient originality."[21]

[Footnote 20: Burton, Pilgrimage to Al-Madinah and Meccah, ii. 87.]

[Footnote 21: Vámbéry, Travels in Central Asia, p. 310 sqq.]

The laws themselves, in fact, command obedience more as customs than as laws. A rule of conduct which, from one point of view, is a law, is in most cases, from another point of view, a custom; for, as Hegel remarks, "the valid laws of a nation, when written and collected, do not cease to be customs."[22] There are instances of laws that were never published, the knowledge and administration of which belonged to a privileged class, and which nevertheless were respected and obeyed.[23] And among ourselves the ordinary citizen stands in no need of studying the laws under which he lives, custom being generally the safe guiding star of his conduct. Custom, as Bacon said, is "the principal magistrate of man's life,"[24] or, as the ancients put it, "the king of all men."[25]

[Footnote 22: Hegel, Philosophie des Rechts, § 211, p. 199.]

[Footnote 23: Rein, Japan, p. 314.]

[Footnote 24: Bacon, 'Essay xxxix. Of Custom and Education,' in Essays, p. 372.]

[Footnote 25: Herodotus, iii. 38.]

{165} Many laws were customs before they became laws. Ancient customs lie at the foundation of all Aryan law-books. Mr. Mayne is of opinion that Hindu law is based upon customs which existed even prior to and independent of Brahmanism.[26] The Greek word [Greek: no/mos] means both custom and law, and this combination of meanings was not owing to poverty of language, but to the deep-rooted idea of the Greek people that law is, and ought to be, nothing more and nothing less than the outcome of national custom.[27] A great part of the Roman law was founded on the mores majorum; in the Institutes of Justinian, it is expressly said that "long prevailing customs, being sanctioned by the consent of those who use them, assume the nature of Laws."[28] The case was similar with the ancient laws of the Teutons and Irish.[29]

[Footnote 26: Mayne, op. cit. p. 4.]

[Footnote 27: Ziegler, Social Ethics, p. 30. Schmidt, Ethik der alten Griechen, i. 201.]

[Footnote 28: Institutiones, i. 2. 9.]

[Footnote 29: Joyce, Social History of Ancient Ireland, i. 181.]

The transformation of customs into laws was not a mere ceremony. Law, like custom, is a rule of conduct, but, while custom is established by usage and obtains, in a more or less indefinite way, its binding force from public opinion, a law originates in a definite legislative act, being set, as Austin says, by a sovereign person, or a sovereign body of persons, to a person or persons in a state of subjection to its author.[30] By becoming laws, then, the customs were expressly formulated, and were enforced by a more definite sanction. It seems that the process in question arose both from considerations of social utility and from a sense of justice. Cicero observes that it was for the sake of equity that "laws were invented, which perpetually spoke to all men with one and the same voice."[31] From these points of view it was neither necessary nor desirable that more than a limited set of customs should pass into laws. There are customs which are too indefinite to assume the stereotyped shape of law.[32] There are others, the breach {166} of which excites too little public indignation, or which are of too little importance for the public welfare, to be proper objects of legislation. And there are others which may be said to exist unconsciously, that is, which are universally observed as a matter of course, and which, never being transgressed, are never thought of.

[Footnote 30: Austin, Lectures on Jurisprudence, i. 87, 181, &c.]

[Footnote 31: Cicero, De officiis, ii. 12.]

[Footnote 32: Cf. Aristotle, Ethica Nicomachea, v. 10. 6.]

Laws which are based on customs naturally express moral ideas prevalent at the time when they are established. On the other hand, though still in existence, they are not necessarily faithful representatives of the ideas of a later age. Law may be even more conservative than custom. Though the latter exercises a very preservative influence on public opinion, it eo ipso changes when public opinion changes. Even among savages, in spite of their extreme regard for the customs of their ancestors, it is quite possible for changes to be introduced; the traditions of the Central Australian Arunta, for instance, indicate their own recognition of the fact that customs have varied from time to time.[33] But the legal form gives to an ancient custom such a fixity as to enable it to survive, as a law, the change of public opinion and the introduction of a new custom. In all progressive societies, as Sir Henry Maine observes, social necessities and social opinion are always more or less in advance of law. "We may come indefinitely near to the closing of the gap between them, but it has a perpetual tendency to re-open."[34]

[Footnote 33: Spencer and Gillen, Native Tribes of Central Australia, p. 12 sqq.]

[Footnote 34: Maine, Ancient Law, p. 24.]

The moral ideas of a people are less extensively represented in its laws than in its customs. This is a corollary of the fact that there are always a great number of customs which never become laws. Moreover, whilst law, like custom, directly expresses only what is obligatory, it hardly ever deals with merit, even indirectly. The Chinese have a method of rewarding and commemorating meritorious and virtuous subjects by erecting gates in their honour, and conferring upon them marks of public distinction; [35] {167} and the Japanese and Coreans award prizes in the form of money or silver cups or monumental columns to signal exemplars of filial piety, arguing that, if the law punishes crime, it ought also to reward virtue.[36] In Europe we have titles and honours, pensions for distinguished service, and the like; but the distribution of them is not regulated by law, and has often little to do with morality.

[Footnote 35: de Groot, Religious System of China (vol. ii. book) i. 769, 789 sq.]

[Footnote 36: Griffis, Corea, p. 236.]

Law, like custom, only deals with overt acts, or omissions, and cares nothing for the mental side of conduct, unless the law be transgressed. Yet, as will be seen subsequently, though this constitutes an essential difference between law and the enlightened moral consciousness, it throws considerable light on the moral judgments of the unreflecting mind.

Being a general, and at the same time a strictly defined, rule of conduct, a law can even less than a custom make special provision for every case so as to satisfy the demand of justice. This disadvantage, however, was hardly felt in early periods of legislation, when little account was taken of what was behind the overt act; and at later stages of development, the difficulty was overcome by leaving greater discretion to the judge. The history of legal punishments in England, for instance, shows a change from a system which, except in cases of misdemeanour, left no discretion at all to judges, to a system under which unlimited discretion is left to them in all cases except those which are still liable to capital punishment--practically, high treason and murder.[37] The study of law, then, must for our purpose be supplemented by the study of judicial practice.

[Footnote 37: Stephen, History of the Criminal Law of England, ii. 87.]

Laws which represent public opinion are no more than customs safe exponents of the moral ideas held by particular members of the society. But on the other hand, there are cases in which a law, unlike a custom, may express the ideas, or simply the will, of a few, or even of {168} a single individual, that is, of the sovereign power only. It is obvious that laws imposed upon a barbarous people by civilised legislators may differ widely from the people's own ideas of right and wrong. For instance, when studying the moral sentiments of the Teutonic peoples from their early law-books, we must carefully set aside all elements of Roman or Christian origin. At the same time, however, it should be remembered that the moral consciousness of a people may gradually be brought into harmony with a law originally foreign to it. If the law is in advance of public opinion--as Roman law undoubtedly was in Teutonic countries--it may raise the views of the people up to its own standard by awaking in them dormant sentiments, or by teaching them greater discrimination in their judgments. And, as has been already noticed, what is forbidden and punished may, for the very reason that it is so, come to be regarded as wrong and worthy of punishment.

Finally, a law may enjoin or forbid acts which by themselves are regarded as indifferent from a moral point of view. This is, for instance, the case with the laws which require marriages to be celebrated at certain times and places only, and which forbid the cultivation of tobacco in England. Jurists divide crimes into mala in se and mala

quia prohibita. The former would be wrong even if they were not prohibited by law, the latter are wrong only because they are illegal.

A law expresses a rule of duty by making an act or omission which is regarded as wrong a crime, that is, by forbidding it under pain of punishment. Law does not in all cases directly threaten[38] with punishment--I say directly, since all law is coercive, and all coercion at some stage involves the possibility of punishment.[39] Sanctions, or the consequences by which the sovereign political authority threatens to enforce the laws set by it, may {169} have in view either the indemnification of the injured party, or the suffering of the injurer. In the latter case the sanctions are called punishments. But, though highly important, the distinction between indemnification and punishment is not absolute. A person who causes harm to another would hardly have to pay damages unless some kind of guilt or quasi-guilt were imputed to him; and, on the other hand, punishment may actually consist in the damages he has to pay. Moreover, the suffering involved in punishment must be regarded as a kind of indemnification in so far as it is intended to gratify the injured party's craving for revenge. The pleasure of vengeance, says Bentham, "is a gain; it calls to mind Samson's riddle--it is sweet coming out of the terrible, it is honey dropping from the lion's mouth."[40] In cases where the injured party is allowed to decide whether the injurer shall be punished or not, or what punishment (within certain limits) shall be inflicted upon him, it is obvious that punishment is largely looked upon as a means of indemnification. However, the fact that such a privilege is granted to the injured party indicates the existence of some degree of sympathetic resentment in the public. Punishment, in all its forms, is essentially an expression of indignation in the society which inflicts it.[41] Hence it is of extreme importance for the study of moral ideas, and calls for our careful consideration.

[Footnote 38: "Not every sovereign can make sure of enforcing his commands; and sometimes laws are made without even any great intention of enforcing them" (Pollock, Essays in Jurisprudence and Ethics, p. 9 sq.).]

[Footnote 39: Cf. Stephen, op. cit. i. 2.]

[Footnote 40: Bentham, Theory of Legislation, p. 309.]

[Footnote 41: "Die Missbilligung ist das Wesentliche aller Strafe" (von Bar, Die Grundlagen des Strafrechts, p. 4). "La peine consiste dans une réaction passionnelle d'intensité graduée" (Durkheim, Division du travail social, p. 96).]

By punishment I do not understand here every suffering inflicted upon an offender in consequence of his offence, but only such suffering as is inflicted upon him in a definite way by, or in the name of, the society of which he is a permanent or temporary member. This definition holds good whatever may be the opinion about the final object of punishment. Whether its purpose is, or is supposed to be, either reformation, or determent, or retribution, its immediate aim is always to cause suffering. {170} We should not call it punishment if the reformation of the criminal were attempted, say, by means of hypnotism.

It is a common opinion that punishment, in this sense of the word, is a social institution of comparatively modern origin, which has sprung from, and gradually superseded, the earlier custom of individual or family revenge. This opinion may seem plausible to the student of European and Eastern law, but, as we shall see, the early history of civilised races is apt to give a somewhat erroneous idea of the evolution of punishment. Even among savages public indignation frequently assumes that definite shape which constitutes the difference between punishment and mere condemnation.[42]

[Footnote 42: See Steinmetz, Ethnologische Studien zur ersten Entwicklung der Strafe, ii. 327 sqq.; Makarewicz, Évolution de la peine, passim.]

Savage punishment sometimes simply consists in publicly putting the offender to shame.

In Greenland the courts of justice were the public assemblies, which at the same time supplied the national sports and entertainments. Here "nith-songs" were used for settling all sorts of crimes or breaches of public order or custom, with the exception of those which could only be expiated by death; by means of cutting capers and singing, the offender was told of his faults, and the opposite virtues were praised to all who were present.[43] The same institution is found, with only incidental differences, among several other tribes within and beyond the Arctic circle.[44] And, knowing the sensitiveness of these peoples, we may assume that the punishment in question is by no means lenient. In Greenland "it now and then happens that some one or other, wounded, perhaps, by a single word from one of his kinsfolk, runs away to the mountains, and is lost for several days at least."[45] And Adair, speaking of the public jesting by which North American Indians used to punish young people who were guilty of petty crimes, says that "they would sooner die by torture, than renew their shame by repeating the actions."[46]

[Footnote 43: Rink, Eskimo Tribes, p. 24 sq. Idem, Greenland, pp. 141, 150. Cranz, op. cit. i. 165 sq. Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grönland, p. 87.]

[Footnote 44: Kane, Arctic Explorations, ii. 128 sq.]

[Footnote 45: Nansen, Eskimo Life, p. 267 sq.]

[Footnote 46: Adair, History of the American Indians, p. 429 sq.]

{171} In other instances the community as a whole expresses its indignation by inflicting suffering of a more material kind upon the culprit.

In certain Australian tribes, when a native for any transgression incurs the displeasure of his tribe, custom compels him to "stand punishment," as it is called; that is, he stands with a shield at a fair distance, while the whole tribe, either simultaneously or in rapid succession, cast their spears at him. Their expertness generally enables those who are exposed to this trial to escape without serious injury, though instances of a fatal result occasionally occur; however, there is a certain propriety even in this extraordinary punishment, as the accuracy and force with which the weapons are thrown will depend very much on the opinion entertained of the enormity of the offence.[47] Among the North-West-Central Queensland aborigines, though each individual, within certain limits, can do what he pleases, "he has to reckon not only with the particular person injured, or his relatives, but also, in some cases, with the whole camp collectively. Thus the camp as a body, as a camp council, will take upon itself to mete out punishment in crimes of murder, incest, or the promiscuous use of fighting-implements within the precincts of the camping-ground: death, and probably the digging of his own grave, awaits the delinquent in the former case, while 'crippling,' generally with knives, constitutes the penalty for a violation of the latter." Again, if a woman makes herself obnoxious in the camp, especially to the female portion of it, she is liable to be set upon and "hammered" by her fellow-sisters collectively, the men on such occasions not interfering.[48] Among the Bangerang tribe of Victoria, "any one who had suffered a wrong complained of it, if at all, at night aloud to the camp, which was silent and attentive. Then the accused was heard. Afterwards those who chose, men or women, expressed their views on the subject; and if general opinion pronounced the grievance a good one, the accused accepted the penalty sanctioned by custom."[49] Among various tribes in Western Victoria, "should a person, through bad conduct, become a constant anxiety and trouble {172} to the tribe, a consultation is held, and he is put to death."[50]

Among the Mpongwe, if a man murders another, he is put to death, not by the nearest of kin, but by the whole community, being either drowned or burned alive.[51] Among the Hudson Bay Eskimo, "when a person becomes so bad in character that the community will no longer tolerate his presence he is forbidden to enter the huts, partake of food, or hold any intercourse with the rest. Nevertheless, as long as he threatens no one's life, but little attention is paid to him. Should he be guilty of a murder, several men watch their opportunity to surprise him and put him to death, usually by stoning. The executioners make no concealment of their action and are supported by public opinion in the community."[52]

[Footnote 47: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 114. Cf. Eyre, Journals of Expeditions of Discovery into Central Australia, ii. 388; Collins, English Colony in New South Wales, i. 586; Brough Smyth, Aborigines of Victoria, ii. 295.]

[Footnote 48: Roth, Ethnological Studies among the North-West-Central Queensland Aborigines, pp. 139, 141. Curr, The Australian Race, i. 61 sq.]

[Footnote 49: Curr, Squatting in Victoria, p. 245.]

[Footnote 50: Dawson, Australian Aborigines, p. 76.]

[Footnote 51: Burton, Two Trips to Gorilla Land, i. 105.]

[Footnote 52: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 186.]

Among various savage peoples expulsion from the tribe is the punishment of persons whose conduct excites great public indignation, and among others such persons are outlawed.

The Chippewyans, among whom "order is maintained in the tribe solely by public opinion," the chief having no power to punish crimes, occasionally expel from the society individuals whose conduct is exceptionally bad and threatens the general peace.[53] The Salish, or flathead Indians, sometimes punished notorious criminals by expulsion from the tribe or band to which they belonged.[54] Sir E. F. Im Thurn, whilst praising the Indians of Guiana for their admirable morality as long as they remain in a state of nature, adds that there are exceptions to the rule, and that such individuals "are soon killed or driven out from their tribe."[55] Among the Bedouins of the Euphrates, "in extreme cases, and as the utmost penalty of the law, the offender is turned out of the tribe";[56] and the same is the case among the Beni Mzab.[57] In the Scotch Highlands, even to this day, instances are common of public opinion operating as a punishment, to the extent of forcing individuals into exile.[58] There are cases reported from various parts of the savage world of banishment being inflicted as a punishment for sexual {173} offences;[59] and other instances of expulsion are mentioned by Dr. Steinmetz.[60] In some cases, however, expulsion is to be regarded rather as a means of ridding the community from a pollution, than as a punishment in the proper sense of the term.[61]

[Footnote 53: Richardson, Arctic Searching Expedition, ii. 26 sq.]

[Footnote 54: Hale, op. cit. p. 208.]

[Footnote 55: Im Thurn, Among the Indians of Guiana, p. 213.]

[Footnote 56: Blunt, Bedouin Tribes of the Euphrates, ii. 206.]

[Footnote 57: Chavanne, Sahara, p. 315. Tristram, Great Sahara, p. 207.]

[Footnote 58: Stewart, Highlanders of Scotland, p. 380.]

[Footnote 59: Westermarck, History of Human Marriage, p. 61 sqq.]

[Footnote 60: Steinmetz, op. cit. ii. ch. 5.]

[Footnote 61: See infra, on Homicide.]

Nearly related to the punishment of expulsion is that of outlawry. Von Wrede states that the Bedouins of [H.]adhramaut give a respite of three days to the banished man, and that after the lapse of this period every member of the tribe is allowed to kill him.[62] Among the Wyandots the lowest grade of outlawry consists in a declaration that, if the offender shall continue in the commission of crimes similar to that of which he has been guilty, it will be lawful for any person to kill him, whilst outlawry of the highest degree makes it the duty of any member of the tribe who may meet with the offender to kill him.[63] Among the ancient Teutons, also, outlawry was originally a declaration of war by the commonwealth against an offending member, and became only later on a regular means of compelling submission to the authority of the courts.[64]

[Footnote 62: von Wrede, Reise in [H.]adhramaut, p. 51.]

[Footnote 63: Powell, 'Wyandot Government,' in Ann. Rep. Bur. Ethn. i. 68.]

[Footnote 64: Pollock and Maitland, History of English Law before the time of Edward I. i. 49.]

Most generally, however, punishment is inflicted upon the culprit, not by the whole of the community, but by some person or persons invested with judicial authority. Indeed, it is not only civilised races who have judges and courts of justice. Among savages and barbarians justice is very frequently administered by a council of elders or by a chief.[65] Even people of so low a type as the Australian aborigines have their tribunals.

[Footnote 65: Petroff, 'Report on Alaska,' in Tenth Census of the United States, p. 152 (Aleuts). Morgan, League of the Iroquois, p. 330. Powell, in Ann. Rep. Bur. Ethn. i. 63, 66 sq. (Wyandots). Idem, 'Sociology,' in American Anthropologist, N.S. i. 706 (North American tribes). Schoolcraft, Indian Tribes of the United States, i. 277 (Creeks). von Martius, Beiträge zur Ethnographie Amerika's, i. 88 (Brazilian Indians). Cook, Journal of a Voyage round the World, p. 41 (Tahitians). Lister, in Jour. Anthr. Inst. xxi. 54 (Bowditch Islanders). Codrington, Melanesians, p. 345 (Solomon Islanders). Hunt, in Jour. Anthr. Inst. xxviii. 6 (Murray Islanders). Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 448; Senfft, in Steinmetz, Rechtsverhältnisse, p. 448; Kubary, 'Die Ebongruppe im Marshall's Archipel,' in Journal des Museum Godeffroy, i. 37 (Marshall Islanders). Idem, Ethnographische Beiträge zur Kenntniss der Karolinischen Inselgruppe, p. 73 sqq.; Idem, 'Die Palau-Inseln,' in Journal des Museum Godeffroy, iv. 42 (Pelew Islanders). von Kotzebue, Voyage of Discovery, iii. 208 (Caroline Islanders). Worcester, Philippine Islands, p. 107 (Tagbanuas of Palawan). Marsden, History of Sumatra, p. 217 (Rejangs). von Brenner, Besuch bei den Kannibalen Sumatras, p. 211 (Bataks). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 243 (Kubus of Sumatra). Man, Sonthalia, p. 88 sq. Cooper, Mishmee Hills, p. 238. Macpherson, Memorials of Service in India, p. 83 (Kandhs). Stewart, in Jour. As. Soc. Bengal, xxiv. 609, 620 (Nagas, Old Kukis). Dalton, Ethnology of Bengal, p. 45 (Kukis). Forsyth, Highlands of Central India, p. 361 (Bygás). Shortt, in Trans. Ethn. Soc. N.S. vii. 241 (Todas). Batchelor, Ainu and their Folk-Lore, p. 278; von Siebold, Die Aino auf der Insel Yesso, p. 34. From Africa a great number of instances might be quoted, e.g.:--Nachtigal, Sahara und Sudan, i. 449 (Tedâ). Petherick, Egypt, the Soudan, and Central Africa, p. 320 (Nouaer tribes). Beltrame, Il Fiume Bianco, p. 77 (Shilluk). Laing, Travels in the Timannee, &c. Countries, p. 365 (Soolimas). Mungo Park, Travels in the Interior of Africa, p. 15 sq. (Mandingoes). Leuschner, in Steinmetz, Rechtsverhältnisse, p. 22 (Bakwiri). Ibid. p. 47 (Banaka and Bapuku). Tellier, ibid. p. 175 (Kreis Kita, in the French Soudan). Bosman, New Description of the Coast of Guinea, p. 331 (Negroes of Fida). Casati, Ten Years in Equatoria, p. 158, 163 (Akkas, Mambettu). Stuhlmann, Mit Emin Pascha ins Herz von Africa, p. 523 (A-l[=u]r). Emin Pasha in

Central Africa, p. 89 (Wanyoro). Baskerville, in Steinmetz, Rechtsverhältnisse, p. 193 (Waganda). Beverley, ibid. p. 214 (Wagogo). Lang, ibid. p. 253 sqq. (Washambala). Desoignies, ibid. p. 279 sq. (Msalala). Decle, Three Years in Savage Africa, pp. 71, 73, 74, 487 (Barotse, Wakamba). Junod, Les Ba-Ronga, p. 155 sq. Burton, Zanzibar, ii. 94 (Wanika). Holub, Seven Years in South Africa, ii. 319 (Marutse). Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 316 (Herero). Andersson, Lake Ngami, p. 197 (Ovambo). Rautanen, in Steinmetz, Rechtsverhältnisse, p. 340 (Ondonga). Kolben, Present State of the Cape of Good Hope, p. 86, 297 (Hottentots). Kohler, in Zeitschr. f. vergl. Rechtswiss. xv. 333 (Bechuanas). Casalis, Basutos, pp. 224, 226. Maclean, Compendium of Kafir Laws and Customs, pp. 35, 110. Holden, Past and Future of the Kaffir Races, pp. 333, 336. Shooter, Kafirs of Natal, p. 99 sq.]

{174} Speaking of the native tribes of Central Australia, Messrs. Spencer and Gillen observe:--"Should any man break through the strict marriage laws, it is not only an 'impersonal power' which he has to deal with. The head men of the group or groups concerned consult together with the elder men, and, if the offender, after long consultation, be adjudged guilty and the determination be arrived at that he is to be put to death--a by no means purely hypothetical case--then the same elder men make arrangements to carry the sentence out, and a party, which is called an ininja, is organised for the purpose."[66] We hear of similar councils from various parts of the Australian continent. In his description of the aborigines of New South Wales, Dr. Fraser states, "The Australian council of old and experienced men--this aboriginal senate and witenagemot--has the power to decree punishment for tribal offences." The chiefs sit as magistrates to decide all cases which are brought before them, such as the divulging of sacred things, speaking to a mother-in-law, the adultery of a wife; and there is even a {175} tribal executioner. At the same time, many grievances are arranged without the intervention of the chiefs; for instance, if a man has been found stealing from his neighbour, or two men quarrel about a woman, a fight ensues, the one or the other gets his head broken, and there the matter ends.[67] The Narrinyeri have a judgment council of the elders of the clan, called tendi, which is presided over by the chief of the clan; and when any member of the tendi dies, the surviving members select a suitable man from the clan to succeed him. "All offenders are brought to this tribunal for trial. In cases of the slaying by a person or persons of one clan of the member of another clan in time of peace, the fellow-clansmen of the murdered man will send to the friends of the murderer and invite them to bring him to trial before the united tendies. If, after full inquiry, he is found to have committed the crime, he will be punished according to the degree of guilt."[68] Among another Australian tribe, the Gournditch-mara, again, the headman, whose office was hereditary, "settled all quarrels and disputes in the tribe. When he had heard both sides, and had given his decision in a matter, no one ever disputed it."[69]

[Footnote 66: Spencer and Gillen, op. cit. p. 15.]

[Footnote 67: Fraser, Aborigines of New South Wales, p. 39.]

[Footnote 68: Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, p. 34 sq.]

[Footnote 69: Fison and Howitt, Kamilaroi and Narrinyeri, p. 277.]

Among the Australian aborigines, then, we find cases in which punishment is inflicted by the whole community, and other cases in which it is inflicted by a tribunal or a chief. There can be little doubt that the latter system has developed out of the former; there are obvious instances of transition from the one to the other. Among the North-West-Central Queensland natives, for instance, in cases of major offences, such as

murder, incest, or physical violence, the old men are only said to "influence" aboriginal public opinion.[70] It is an inconvenient, and in larger communities a difficult, procedure for the whole group to inflict punishments in common, hence the administration of justice naturally tends to pass into the hands of the leading men or the chief. But the establishment of a judicial authority within the society may also have a different origin. Very frequently judicial organisation {176} seems to have developed, not out of a previous system of lynch-law, but out of a previous system of private revenge.

[Footnote 70: Roth, op. cit. p. 141.]

An act of individual or family revenge is by itself, of course, an expression of private, not of public, feelings--of revenge, not of moral indignation. But the case is different with the custom of revenge. We shall see in a following chapter that blood-revenge is regarded not only as a right, but, very frequently, as a duty incumbent upon the relatives of the slain person. So, also, revenge may be deemed a duty in cases where there is no blood-guiltiness. Among the Australian Geawe-gal tribe, for instance, the offender, according to the magnitude of his offence, was to receive one or more spears from men who were relatives of the deceased person; or the injured man himself, when he had recovered strength, might discharge the spears at the offender. And our authority adds, "Obedience to such laws was never withheld, but would have been enforced, without doubt, if necessary, by the assembled tribe."[71] The obligatory character of revenge implies that its omission is disapproved of. It is of course the man on whom the duty of vengeance is incumbent that is the immediate object of blame, when this duty is omitted; and the blame may partly be due to contempt, especially when there is a suspicion of cowardice. But behind the public censure there is obviously a desire to see the injurer suffer. Instances may be quoted in which the society actually assists the avenger, in some way or other, in attaining his object. Speaking of the Fuegians, M. Hyades observes:--"Nous avons entendu parler d'individus coupables de meurtre sur leur femme, par exemple, et qui, poursuivis par tout un groupe de familles, finissaient, quelquefois un an ou deux après leur crime, par tomber sous les coups des parents de la victime. Il s'agit là plutôt d'un acte de justice que d'une satisfaction de vengeance. Nous devons faire remarquer en outre que, dans ces cas, le meurtrier est abandonné de tous, et qu'il ne peut se soustraire que pendant un temps {177} relativement assez court au châtiment qui le menace."[72] Amongst the Central Eskimo, who have "no punishment for transgressors except the blood vengeance," a man has committed a murder or made himself odious by other outrages, "he may be killed by any one simply as a matter of justice. The man who intends to take revenge on him must ask his countrymen singly if each agrees in the opinion that the offender is a bad man deserving death. If all answer in the affirmative he may kill the man thus condemned, and no one is allowed to revenge the murder."[73] Among the Greenlanders, in cases of extreme atrocity, the men of a village have been known to make common cause against a murderer, and kill him, though it otherwise is the business of the nearest relatives to take revenge.[74] It is also noteworthy that, among the crimes which in savage communities are punished by the community at large, incest is particularly prominent. The chief reason for this I take to be the absence of an individual naturally designated as the avenger.

[Footnote 71: Fison and Howitt, op. cit. p. 282.]

[Footnote 72: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 240 sq.]

[Footnote 73: Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 582.]

[Footnote 74: Nansen, Eskimo Life, p. 163.]

Thus public indignation displays itself not only in punishment, but, to a certain extent, in the custom of revenge. In both cases the society desires that the offender shall

suffer for his deed. Strictly speaking, the relationship between the custom of revenge and punishment is not, as has been often supposed, that between parent and child. It is a collateral relationship. They have a common ancestor, the feeling of public resentment.

But whilst public opinion demands that vengeance shall be exacted for injuries, it is also operative in another way. Though in some cases the resentment may seem to outsiders to be too weak or too much checked by other impulses, it may in other cases appear unduly great. As a matter of fact, we frequently find the practice of revenge being regulated by a rule which requires equivalence between the injury and the suffering inflicted in return for {178} it. Sometimes this rule demands that only one life shall be taken for one;[75] sometimes that a death shall be avenged on a person of the same rank, sex, or age as the deceased;[76] sometimes that a murderer shall die in the same manner as his victim;[77] sometimes that various kinds of injuries shall be retaliated by the infliction of similar injuries on the offender.[78] This strict equivalence is not characteristic of resentment as such.[79] There is undoubtedly a certain proportion between the pain-stimulus and the reaction; other things being equal, resentment increases in intensity along with the pain by which it is excited. The more a person feels offended, the greater is his desire to retaliate by inflicting counter-pain, and the greater is the pain which he desires to inflict. But resentment involves no accurate balancing of suffering against suffering, hence there may be a crying disproportion between the act of revenge and the injury evoking it.[80] As Sir Thomas Browne observes, a revengeful mind "holds no rule in retaliations, requiring too often a head for a tooth, and the supreme revenge for trespasses, which a night's rest should obliterate."[81] If, then, the rule of {179} equivalence is not suggested by resentment itself, this rule must be due to other factors, which intermingle with resentment, and help, with it, to determine the action. One of these factors, I believe, is self-regarding pride, the desire to pull down the humiliating arrogance of the aggressor naturally suggesting the idea of paying him back in his own coin; and it seems probable that the natural disposition to imitate, especially in cases of sudden anger, acts in the same direction. But besides this qualitative equivalence between injury and retaliation, the lex talionis requires, in a rough way, quantitative equivalence, and this demand has no doubt a social origin. If the offender is a person with whose feelings men are ready to sympathise, their sympathy will keep the desire to see him suffer within certain limits; and if, under ordinary circumstances, they tend to sympathise equally with both parties, the injurer and the person injured, and, in consequence, confer upon these equal rights, they will demand a retaliation which is only equal in degree to the offence. By suffering a loss the offender compensates, as it were, for the loss which he has inflicted; and when equal regard is paid to his feelings and to those of his victim, it is deemed just that the loss required of him as a compensation should be equivalent to the loss for which he compensates, anything beyond equivalence being regarded as undeserved suffering. If this explanation is correct, the rule of equivalence must originally have been restricted to offences within the social group; for, according to early custom and law, only members of the same society have equal rights. In speaking of the tit-for-tat system prevalent among the Guiana Indians, Sir E. F. Im Thurn expressly says, "Of course all this refers chiefly to the mutual relations of members of the same tribe."[82] And when we find savages acting according to the same principle in their relations to other tribes, the reason for this may be sought partly in the strong hold which that principle has taken of their minds, and partly in the dangers accompanying intertribal revenge, {180} which make it desirable to restrict it within reasonable limits.

[Footnote 75: Krause, Tlinkit-Indianer, p. 245 sq. Macfie, Vancouver Island and British Columbia, p. 470. Foreman, Philippine Islands, p. 213 (Negrito and Igorrote tribes in the province of La Isabela). Low, Sarawak, p. 212 (Dyaks). von Langsdorf, Voyages and Travels, i. 132 (Nukahivans).]

[Footnote 76: Jagor, Travels in the Philippines, p. 213 (Igorrotes). Blumentritt, quoted by Spencer, Principles of Ethics, i. 370 sq. (Quianganes of Luzon). Munzinger, Ostafrikanische Studien, p. 243 (Marea). Koran, ii. 173.]

[Footnote 77: von Martius, op. cit. i. 129 (Brazilian Indians). Wallace, Travels on the Amazon, p. 499 (Uaupés). Schoolcraft, Indian Tribes of the United States, iii. 246 (Dacotahs). Steller, Kamtschatka, p. 355; Hickson, A Naturalist in North Celebes, p. 198 (Sangirese of Manganitu). Fraser, Journal of a Tour through Part of the Him[=a]l[=a] Mountains, p. 339 (Butias). Ellis, History of Madagascar, i. 371. Munzinger, op. cit. p. 502 (Barea and Kunáma). de Abreu, Canary Islands, p. 27 (aborigines of Ferro).]

[Footnote 78: Im Thurn, op. cit. p. 213 sq. (Guiana Indians). Glimpses of the Eastern Archipelago, p. 86 (Bataks). Arbousset and Daumas, Tour to the North-East of the Colony of Good Hope, p. 67 (Mantetis). Munzinger, op. cit. p. 502 (Barea and Kunáma). Post, Afrikanische Jurisprudenz, p. 27 (various other African peoples), de Abreu, op. cit. p. 71 (aborigines, of Gran Canaria).]

[Footnote 79: Cf. Tissot, Le droit pénal, i. 226; Steinmetz, Ethnol. Studien zur ersten Entwicklung der Strafe, i. 401; Makarewicz, op. cit. p. 13.]

[Footnote 80: von Martius, op. cit. i. 128 (Brazilian aborigines). Calder, in Jour. Anthr. Inst. iii. 21 (Tasmanians). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 473 (Timorese). Sarasin, Forschungen auf Ceylon, iii. 539 (Veddahs). Jacob, Das Leben der vorislâmischen Beduinen, p. 144 sq.]

[Footnote 81: Browne, Christian Morals, iii. 12, p. 94.]

[Footnote 82: Im Thurn, op. cit. p. 214.]

The regulations to which the practice of revenge is subject, help us to understand the transition from revenge to punishment, and the establishment of a special judicial authority. As long as retaliation is in the hands of private individuals, there is no guarantee, on the one hand, that the offender will have to suffer, on the other hand, that the act of retaliation will be sufficiently discriminate.

The injured party may be too weak, or otherwise unable, to avenge himself. His readiest course, then, is to appeal to the chief for help. The chief, on his part, has an interest in interfering--he may of course expect a handsome reward for his assistance, [83]--and, in so far as the community at large wishes that the offender shall suffer, the chief may even be bound to interfere. Thus in the Sandwich Islands, the family or the friends of an injured person--who in cases of assault or murder were by common consent justified in taking revenge--used to appeal to the chief of the district or to the king, when they were too weak to attack the offender themselves.[84] Among the Wanyoro, according to Emin Pasha, should the murderer escape, the nearest relatives of the murdered man apply to the chief of the tribe to procure the punishment of the culprit.[85] The Indians of Brazil, when offended, sometimes bring their cause before the chief; but they do it seldom, since they consider it disgraceful for a man not to be able to avenge himself.[86] The judicial authority granted to the Basuto chief "also insures justice to foreigners, and to individuals who, having no relations, are deprived of their natural defenders and avengers."[87] In ancient Greece, in early times, special care was taken by the State for the protection of the weak and helpless, who otherwise had been unavenged.[88] In the Middle Ages, the {181} poor and the weak were placed under the

King's protection; the intervention of royal justice, as Du Boys observes, "apparaissait comme un bienfait pour les faibles et un secours pour les opprimés."[89]

[Footnote 83: Steinmetz, Rechtsverhältnisse, p. 311. Cf. Brunner, Deutsche Rechtsgeschichte, i. 165.]

[Footnote 84: Ellis, Tour through Hawaii, p. 429.]

[Footnote 85: Emin Pasha in Central Africa, p. 86.]

[Footnote 86: von Martius, op. cit. i. 132.]

[Footnote 87: Casalis, op. cit. p. 226.]

[Footnote 88: Leist, Græco-italische Rechtsgeschichte, p. 372.]

[Footnote 89: **Du Boys, Histoire du droit criminel de l'Espagne, p. 237.]

Whilst resentment on behalf of injuries inflicted upon persons who are unable to avenge themselves has thus, to some extent, contributed towards the establishment of a central judicial and executive authority, the sympathy naturally felt for the object of an improper and immoderate revenge undoubtedly tended to bring about a similar result. The same feeling which checked indiscriminate revenge by establishing the rule of strict equivalence, restricted it once more, and in a more effective way, by referring the case to a judge who was less partial, and more discriminate, than the sufferer himself or his friends. Speaking of the feuds of the Teutons, Kemble remarks, "Setting aside the loss to the whole community which may arise from private feud, the moral sense of men may be shocked by its results: an individual's own estimate of the satisfaction necessary to atone for the injury done to him, may lead to the commission of a wrong on his part, greater than any he hath suffered; nor can the strict rule of 'an eye for an eye, and a tooth for a tooth,' be applied where the exaction of the penalty depends upon the measure of force between appellant and defender."[90] In the Island of Bali the judge steps in between the prosecutor and the person whom he pursues, "so as to restrain the indiscriminate animosity of the one, and to determine the criminality of the other."[91] Crawfurd, in his account of native customs in the Malay Archipelago, says that "the law even expressly interdicts all interference when there appears a character of fairness in the quarrel."[92] A Karen, we are told, always thinks himself right in taking the law into his own hands, this being the custom of the country, and "he is never interfered with, unless he is guilty of some {182} act contrary to Karen ideas of propriety, when the elders and the villagers interfere and exercise a check upon him."[93] Among the Basutos the authority of the chief is stated to be "sufficiently respected to protect criminated persons, until their cases have been lawfully examined."[94] Among the Californian Gallinomero the avenger of blood has his option between money and the murderer's life; "but he does not seem to be allowed to wreak on him a personal and irresponsible vengeance," the chief taking the criminal and executing the punishment.[95]

[Footnote 90: Kemble, Saxons in England, i. 268 sq.]

[Footnote 91: Raffles, History of Java, ii. p. ccxxxvii.]

[Footnote 92: Crawfurd, History of the Indian Archipelago, iii. 120.]

[Footnote 93: Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. li. 145. Cf. MacMahon, Far Cathay and Farther India, p. 188.]

[Footnote 94: Casalis, op. cit. p. 226.]

[Footnote 95: Powers, Tribes of California, p. 177.]

Besides the desire that the offender shall suffer and the desire that his suffering shall correspond to his guilt, there is a third factor of importance which has contributed to the substitution of punishment for revenge and to the rise of a judicial organisation. For every society it is a matter of great consequence that there should be peace between its various members. Though the system of revenge helps to keep down crime,[96] it

also has a tendency to cause disturbance and destruction. Any act of vengeance which goes beyond the limits fixed by custom is apt to call forth retaliation in return. Among the Ossetes, says Baron von Haxthausen, "if the retaliation does not exceed the original injury the affair terminates; but if the wound given is greater than the one received, the feud begins afresh from the other side."[97] The custom of blood-revenge certainly does not imply that the avenger of unjustifiable homicide may himself be a proper object of retaliation;[98] but in the absence of a tribunal it may be {183} no easy thing to decide the question of guilt, and, besides, the dictate of custom may be overruled by passion. As a matter of fact, the blood-feud often consists of a whole series of murders, the revenge itself calling forth a new act of redress, and so on, until the state or hostility may become more or less permanent.[99] In the long run this will prove injurious both to the families implicated in the feud and to society as a whole, and some method of putting a stop to the feud will readily be adopted. One such method is to substitute the payment of blood-money for revenge; another is to submit the cause to an authority invested with judicatory power. Casalis tells us that the Basutos are often heard to say, "If we were to revenge ourselves, the town or community would soon be dispersed"; and he adds that the instinctive fear of the disorders that might arise from the exercise of individual law has induced them to allow the chief of the tribe a certain right over the person of every member of the community.[100]

[Footnote 96: Taylor, Te Ika a Maui, p. 96 (Maori). Im Thurn, op. cit. pp. 213, 330 (Guiana Indians). Burckhardt, Bedouins and Wahábys, p. 84, sq.; Blunt, Bedouins of the Euphrates, ii. 207; Layard, Discoveries in the Ruins of Nineveh and Babylon, p. 305 sq. (Bedouins). Kohl, Reise nach Istrien, i. 409 sq. (Montenegrines). Stephen, History of the Criminal Law of England, i. 60 (Anglo-Saxons). Nordström, Svenska samhällsförfattningens historia, ii. 228 (ancient Scandinavians). Steinmetz, Ethnol. Studien zur ersten Entwicklung der Strafe, ii. 125 sqq.]

[Footnote 97: von Haxthausen, Transcaucasia, p. 411.]

[Footnote 98: Among the aborigines of Western Victoria, when life has been taken for life, the feud is ended (Dawson, op. cit. p. 70). Among the Greenlanders, if the victim of revenge "be a notorious offender, or hated for his bloody deeds, or if he have no relations, the matter rests"; but more frequently the act of vengeance costs the avenger himself his life (Cranz, op. cit. i. 178). Among the Bedouins, "if the family of the man killed should in revenge kill two of the homicide's family, the latter retaliate by the death of one. If one only be killed, the affair rests there and all is quiet; but the quarrel is soon revived by hatred and revenge" (Burckhardt, Bedouins and Wahábys, p. 86). In his book, Das Leben der vorislâmischen Beduinen, Dr. Jacob likewise observes (p. 144):--"Irrtümlich ist die Ansicht, dass Blut immer neues Blut fordere. Was für einen Getödteten ein Anderer erschlagen, so galt die Sache in der Regel damit für erledigt und abgetan." Cf. Achelis, Moderne Völkerkunde, p. 407, n. 1.]

[Footnote 99: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 293. Miklosich. 'Blutrache bei den Slaven,' in Denkschriften d. kaiserl. Akademie d. Wissensch. Phil.-hist. Classe, Vienna, xxxvi. 132; &c.]

[Footnote 100: Casalis, op. cit. p. 225. Cf. Boyle, Adventures among the Dyaks of Borneo, p. 217; Marsden, op. cit. p. 249 sq. (Rejangs).]

As may be expected, it is only by slow degrees that revenge has yielded to punishment, and the private avenger has been succeeded by the judge and the public executioner of his sentence. Among many savages the chief is said to have nothing whatever to do with jurisdiction.[101] Among {184} others he acts merely as an adviser, or is appealed to as an arbiter;[102] or the injured party may choose between avenging

himself and appealing to the chief for redress;[103] or the judicial power with which the chief is invested is stated to be more nominal than real.[104] It is also interesting to note that in several cases the injured party or the accuser acts as executioner, but not as judge.

[Footnote 101: Keating, Expedition to the Source of St. Peter's River, i. 123 (Potawatomis). Richardson, Arctic Searching Expedition, ii. 27 (Chippewyans), Carver, Travels, p. 259 (Naudowessies). Dobrizhoffer, Account of the Abipones, ii. 163; &c.]

[Footnote 102: Lewis and Clarke, Travels to the Source of the Missouri River, p. 306 sq. (Shoshones). Powers, Tribes of California, p. 45 (Karok and Yurok). Dunbar, 'Pawnee Indians' in Magazine of American History, iv. 261. Arbousset and Daumas, op. cit. p. 67 (Mantetis). Ellis, Yoruba-speaking Peoples of the Slave Coast, p. 300 (Tshi- and E[(w]e-speaking peoples of the African West Coast). Burckhardt, Bedouins and Wahábys, pp. 68, 70. Blunt, op. cit. ii. 232 sq. (Bedouins of the Euphrates). von Haxthausen, Transcaucasia, p. 415 (Ossetes).]

[Footnote 103: Ellis, Tour through Hawaii, p. 429. Williams and Calvert, Fiji and the Fijians, p. 23. Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 473 (Timorese).]

[Footnote 104: Falkner, Description of Patagonia, p. 123. Anderson, Lake Ngami, p. 231 (Damaras).]

Thus among some Australian tribes, "a man accused of a serious offence gets a month's citation to appear before the tribunal, on pain of death if he disobeys. If he is found guilty of a private wrong, he is painted white, and made to stand out at fifty paces in front of the accuser and his friends, all fully armed. They throw at him a shower of spears and 'bumarangs,' from which he protects himself with a light shield."[105] Among the Aricara Indians of the Missouri, who, for the most part, punish murder with death, the nearest relative of the murdered man was deputed by the council to act the part of executioner.[106] With reference to the natives of Bali, Raffles says that "in the execution of the punishment awarded by the court there is this peculiarity, that the aggrieved party or his friends are appointed to inflict it."[107] In some parts of Afghanistan, "if the offended party complains to the Sirdar, or if he hears of a murder committed, he first endeavours to bring about a compromise, by offering the Khoon Behau, or price of blood; but if the injured party is inexorable, the Sirdar lays the affair before the King, who orders the Cauzy to try it; and, if the criminal is convicted, gives him up to be executed by the relations of the deceased."[108] Among the peoples round Lake Nyassa and Tanganyika and among the Bantu tribes generally, "when a murderer is caught and proved guilty he is given over {185} to the relatives of the person murdered, who have power to dispose of him as they choose."[109] A similar practice prevails among the Mishmis,[110] Bataks,[111] and Kamchadales.[112] It was also recognised by early Slavonic,[113] Teutonic, and English codes.[114] According to the provisions of a code granted so late as 1231, by the Abbey of St. Bertin to the town of Arques, when a man was convicted of intentional homicide, he was handed over to the family of the murdered person, to be slain by them.[115]

[Footnote 105: Fraser, Aborigines of New South Wales, p. 40 sq.]

[Footnote 106: Bradbury, Travels in the Interior of America, p. 168.]

[Footnote 107: Raffles, op. cit. ii. p. ccxxxvii.]

[Footnote 108: Elphinstone, Kingdom of Caubul, ii. 105 sq.]

[Footnote 109: Macdonald, in Jour. Anthr. Inst. xxii. 108.]

[Footnote 110: Cooper, Mishmee Hills, p. 238.]

[Footnote 111: von Brenner, op. cit. p. 212.]

[Footnote 112: Georgi, Russia, iii. 137.]

[Footnote 113: Macieiowski, Slavische Rechtsgeschichte, ii. 127.]

[Footnote 114: Wilda, Strafrecht der Germanen, p. 167. Lex Salica, 68. Laws of Cnut, i. 53. Leges Henrici I. lxxi. 1.]

[Footnote 115: Leges villæ de Arkes ab abbate S. Bertini concessæ, 28 (d'Achery, Spicilegium, iii. 608).]

But although, in innumerable cases, punishment and judicial organisation have succeeded a previous system of revenge, and thus are products of social development, their existence or non-existence among a certain people is no exact index to the general state of culture which that people has attained. Even among low savages we have noticed instances of punishments which are inflicted by the community as a whole, as also by special judicial authorities. On the other hand, we are taught by the history of European and Oriental nations, that the system of revenge is not inconsistent with a comparatively high degree of culture.[116] We can now see the reason for this apparent anomaly. In a small savage community, all the members of which are closely united with each other, an injury inflicted upon one is readily felt by all. The case may be different in a State consisting of loosely-connected social components, which, though forming a political unity, have little communication between themselves, and take no interest in each other's private dealings. And, whilst in the smaller society public resentment is thus more easily aroused, such a society also stands in more urgent need of internal peace.

[Footnote 116: See infra, on Blood-revenge.]

* * * * *

Our assumption that punishment is, in the main, an expression of public indignation, is opposed to another theory, according to which the chief object of punishment, not only ought to be, but actually is, or has been, {186} to prevent crime by deterring people from committing it. We are even told that punishment, inflicted for such a purpose, is, largely, at the root of the moral consciousness; that punishment is not the result of a sense of justice, but that the sense of justice is a result of punishment; that, by being punished by the State, certain acts gradually came to be regarded as worthy of punishment, in other words, as morally wrong.[117]

[Footnote 117: Rée, Ursprung der moralischen Empfindungen, p. 45 sqq. Idem, Entstehung des Gewissens, p. 190 sqq.]

There are certain facts which seem to support the supposition that punishment has, to a large extent, been intended to act as a deterrent. We find that among various semi-civilised and civilised peoples the criminal law has assumed a severity which far surpasses the rigour of the lex talionis.

Speaking of the Azteks, Mr. Bancroft observes that "the greater part of their code might, like Draco's, have been written in blood--so severe were the penalties inflicted for crimes that were comparatively slight, and so brutal and bloody were the ways of carrying those punishments into execution."[118] The punishment of death was inflicted on the man who dressed himself like a woman, on the woman who dressed herself like a man,[119] on tutors who did not give a good account of the estates of their pupils,[120] on those who carried off, or changed, the boundaries placed in the fields by public authority;[121] and should an adulterer endeavour to save himself by killing the injured husband, his fate was to be roasted alive before a slow fire, his body being basted with salt and water that death might not come to his relief too soon.[122] Nor did the ancient Peruvian code economise human suffering by proportioning penalties to crimes; the punishment most commonly prescribed by it was death.[123] The penal

code of China, though less cruel in various respects than the European legislation of the eighteenth century, awards death for a third and aggravated theft, for defacing the branding inflicted for former offences,[124] and for privately casting copper coin;[125] whilst for the commission of the most heinous crimes {187} the penalty is "to be cut into ten thousand pieces," which appears to amount, at least, to a license to the executioner to aggravate and prolong the sufferings of the criminal by any species of cruelty he may think proper to inflict.[126] In Japan, before the revolution of 1871, "the punishments for crime had been both rigorous and cruel; death was the usual punishment, and death accompanied by tortures was the penalty for aggravated crimes.[127] According to the Mosaic law, death is inflicted for such offences as breach of the Lord's day,[128] going to wizards,[129] eating the fat of a beast of sacrifice,[130] eating blood,[131] approaching unto a woman "as long as she is put apart for her uncleanness,"[132] and various kinds of sexual offences.[133] The laws of Manu provide capital punishment for those who forge royal edicts and corrupt royal ministers;[134] for those who break into a royal store-house, an armoury, or a temple, and those who steal elephants, horses, or chariots;[135] for thieves who are taken with the stolen goods and the implements of burglary;[136] for cut-purses on the third conviction;[137] whilst a wife, who, proud of the greatness of her relatives or her own excellence, violates the duty which she owes to her lord, shall be devoured by dogs in a place frequented by many, and the male offender shall be burnt on a red-hot iron bed.[138]

[Footnote 118: Bancroft, Native Races of the Pacific States, ii. 454.]

[Footnote 119: Clavigero, History of Mexico, i. 358.]

[Footnote 120: Ibid. i. 359.]

[Footnote 121: Ibid. i. 355.]

[Footnote 122: Bancroft, op. cit. ii. 465 sq.]

[Footnote 123: Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, i. 145, 151 sq.]

[Footnote 124: Wells Williams, Middle Kingdom, i. 512.]

[Footnote 125: Ta Tsing Leu Lee, sec. ccclix. p. 397.]

[Footnote 126: Ibid. sec. ccliv. p. 269 n. [dagger]]

[Footnote 127: Reed, Japan, i. 323. Thunberg, Travels, iv. 65.]

[Footnote 128: Exodus, xxxi. 14.]

[Footnote 129: Leviticus, xx. 6.]

[Footnote 130: Ibid. vii. 25.]

[Footnote 131: Ibid. vii. 27.]

[Footnote 132: Ibid. xviii. 19.]

[Footnote 133: Ibid. xviii. 6 sqq.]

[Footnote 134: Laws of Manu, ix. 232.]

[Footnote 135: Ibid. ix. 280.]

[Footnote 136: Ibid. ix. 270.]

[Footnote 137: Ibid. ix. 277.]

[Footnote 138: Ibid. viii. 371 sq.]

Increasing severity has been a characteristic of European legislation up to quite modern times. Towards the end of the thirteenth century, the English law knows some seven crimes which it treats as capital, namely, treason, homicide, arson, rape, robbery, burglary, and grand larceny; but the number of capital offences grew rapidly.[139] From the Restoration to the death of George III.--a period of 160 years--no less than 187 such offences, wholly different in character and degree, were added to the criminal code; and when, in 1837, the punishment of death was removed from about 200 crimes,

it was still left applicable to exactly the same offences as were capital at the end of the thirteenth century.[140] Pocket-picking was punishable with death until the year 1808;[141] horse-stealing, cattle-stealing, {188} sheep-stealing, stealing from a dwelling-house, and forgery, until 1832;[142] letter-stealing and sacrilege, until 1835;[143] rape, until 1841;[144] robbery with violence, arson of dwelling-houses, and sodomy, until 1861.[145] And not only was human life recklessly sacrificed, but the mode of execution was often exceedingly cruel. In the beginning of the fifteenth century, the Peine forte et dure, or pressing to death with every aggravation of torture, was adopted as a manner of punishment suitable to cases where the accused refused to plead.[146] Burning alive of female offenders still occurred in England at the end of the eighteenth century, [147] being considered by the framers of the law as a commutation of the sentence of hanging required by decency.[148] Still more cruel was the punishment inflicted on male traitors: they were first hanged by the neck and cut down before life was extinct, their entrails were taken out and burned before their face, then they were beheaded and quartered, and the quarters were set up in diverse places.[149] This punishment continued to exist in England as late as in the reign of George III., and even then Sir Samuel Romilly, the great agitator against its continuance, brought upon himself the odium of the law officers of the Crown, who declared that he was "breaking down the bulwarks of the Constitution."[150] Such cruelties were not peculiar to the English. On the contrary, as Sir James Stephen observes, though English people, as a rule, have been singularly reckless about taking life, they have usually been averse to the infliction of death by torture.[151] In various parts of the Continent we find such punishments as breaking on the wheel, quartering alive, and tearing with red-hot pincers, in use down to the end of the eighteenth century.

[Footnote 139: Pollock and Maitland, op. cit. ii. 511.]

[Footnote 140: May, Constitutional History of England, ii. 595. Mackenzie, Studies in Roman Law, p. 424 sq.]

[Footnote 141: Pike, History of Crime in England, ii. 450.]

[Footnote 142: Ibid. ii. 451. Stephen, History of the Criminal Law of England, i. 474.]

[Footnote 143: Pike, op. cit. ii. 451. Stephen, op. cit. i. 474.]

[Footnote 144: Stephen, op. cit. i. 475.]

[Footnote 145: Ibid. i. 475.]

[Footnote 146: For the manner in which this torture was inflicted, see Andrews, Old-Time Punishments, p. 203 sq.]

[Footnote 147: Ibid. p. 198. Stephen, op. cit. i. 477.]

[Footnote 148: Andrews, op. cit. p. 192.]

[Footnote 149: Holinshed, Chronicles of England, &c. i. 310. Thomas Smith, Commonwealth of England, p. 198.]

[Footnote 150: Andrews, op. cit. p. 203. An earlier method of punishing traitors was boiling to death, which was adopted by Henry VIII. as a punishment for poisoners as well (Holinshed, op. cit. i. 311).]

[Footnote 151: Stephen, op. cit. i. 478. Cf. Thomas Smith, op. cit. p. 193 sq.]

It is interesting to compare these punishments with those practised among savages. Wanton cruelty is not a general characteristic of their public justice.

{189} Among several uncivilised peoples capital punishment is said to be unknown or almost so.[152] Among others it is restricted to a few particularly atrocious offences. Among the Greenlanders "none are put to death but murderers, and such witches as are thought to have killed some one by their art."[153] The Aleuts punished with death murderers and betrayers of community secrets.[154] In Samoa and New Guinea murder

and adultery are punished capitally;[155] among the Bataks, open robbery and murder, provided that the offender is unable to redeem his life by a sum of money;[156] among the Kukis, only treason or an attempt at violence on the person of the King.[157] Among the Mishmis, adultery committed against the consent of the husband is punished with death, but all other crimes, including murder, are punished by fines; however if the amount is not forthcoming the offender is cut up by the company assembled.[158] In Kar Nicobar the only cause for a "death penalty" that Mr. Distant could discover was madness.[159] Among the Soolimas "murder is the only crime punishable with death."[160] Among the Congo natives "the only capital crimes are stated to be those of poisoning and adultery."[161] Of the kingdom of Fida Bosman writes, "Here are very few capital crimes, which are only murthers, and committing adultery with the King's or his great men's wives."[162] Among the Wanika two crimes are visited with capital punishment--murder and an improper use of sorcery;[163] among the Wagogo[164] and Washambala,[165] witchcraft only. Among the Basutos every murderer is by law liable to death, but the sentence is generally commuted into confiscation; an incorrigible thief sometimes pays with his head, but is generally fined, whereas treason and rebellion against authority are treated with more severity.[166] Among the Kafirs, cases of assault on the persons of wives of the chiefs, {190} and what are deemed aggravated cases of witchcraft, are the only crimes which usually involve the punishment of death, very summarily inflicted; whereas this punishment seldom follows even murder, when committed without the supposed aid of supernatural powers.[167]

[Footnote 152: von Siebold, Ethnol. Studien über die Aino auf Yesso, p. 35; Batchelor, Ainu and their Folk-Lore, p. 284. Dalton, op. cit. p. 115 (Kakhyens). Marsden, op. cit. p. 248 (Rejangs of Sumatra). Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 103 (Serangese). Worcester, op. cit. pp. 413, 492 (Mangyans and Tagbanuas). Kubary, 'Die Palau-Inseln,' in Journal des Museum Godeffroy, iv. 42 (Pelew Islanders). de Abreu, op. cit. p. 152 (Canary Islanders). Frisch, Die Eingeborenen Süd-Afrika's, p. 322 (Hottentots).]

[Footnote 153: Cranz, op. cit. i. 177.]

[Footnote 154: Petroff, loc. cit. p. 152.]

[Footnote 155: Turner, Samoa, p. 178. Chalmers, Pioneering in New Guinea, p. 179.]

[Footnote 156: Marsden, op. cit. p. 389.]

[Footnote 157: Dalton, op. cit. p. 45. Stewart, in Jour. As. Soc. Bengal, xxiv. p. 627.]

[Footnote 158: Griffith, ibid. vi. 332.]

[Footnote 159: Distant, in Jour. Anthr. Inst. iii. 6.]

[Footnote 160: Laing, Travels, p. 365.]

[Footnote 161: Tucker, Expedition to Explore the River Zaire, p. 383.]

[Footnote 162: Bosman, op. cit. p. 331.]

[Footnote 163: New, op. cit. p. 111.]

[Footnote 164: Beverley, in Steinmetz, Rechtsverhältnisse, p. 215.]

[Footnote 165: Lang, ibid. p. 259.]

[Footnote 166: Casalis, op. cit. p. 228.]

[Footnote 167: Maclean, Compendium of Kafir Laws and Customs, p. 35 sq.]

Nor, as it seems, is savage justice fond of torturing its victims before they are killed. The Maoris exclaimed loudly against the English method of executing criminals, first telling them that they are to die, then letting them lie for days and nights in prison, and finally leading them slowly to the gallows. "If a man commits a crime worthy of death," they said, "we shoot him, or chop off his head; but we do not tell him first that we are going to do so."[168] Dr. Codrington gives the following description of the cases

of burning persons alive which have occasionally happened in Pentecost Island:--"In fighting time there, if a great man were very angry with the hostile party, he would burn a wounded enemy. When peace had been made and the chiefs had ordered all to behave well that the country might settle down in quiet, if any one committed such a crime as would break up the peace, such as adultery, they would tie him to a tree, heap firewood round him, and burn him alive, a proof to the opposite party of their detestation of his wickedness. This was not done coolly as a matter of course in the execution of a law, but as a horrible thing to do, and done for the horror of it; a horror renewed in the voice and face of the native who told me of the roaring flames and shrieks of agony."[169] This story is not without interest when compared with the cold-blooded burning of female criminals and women suspected of witchcraft in Christian Europe.

[Footnote 168: Yate, Account of New Zealand, p. 105.]

[Footnote 169: Codrington, op. cit. p. 347.]

There is sufficient evidence to show that the severe punishments adopted by peoples of a higher culture have been regarded by them as beneficial to society. The legislators themselves often refer to the deterrent effects of punishment.

The Peruvian Incas considered that light punishments gave confidence to evil-doers, whilst "through their great care in punishing a man's first delinquency, they avoided the effects of his second and third, and of the host of others that are committed in every commonwealth where no diligence is observed {191} to root up the evil plant at the commencement."[170] According to the Prefatory Edict of the Emperor Kaunghee, published in 1679, the chief ends proposed by the institution of punishments in the Chinese Empire "have been to guard against violence and injury, to repress inordinate desires, and to secure the peace and tranquillity of an honest and unoffending community."[171] In the Laws of Manu punishment is described as a protector of all creatures:--"If the king did not, without tiring, inflict punishment on those worthy to be punished, the stronger would roast the weaker, like fish on a spit; the crow would eat the sacrificial cake and the dog would lick the sacrificial viands, and ownership would not remain with any one, the lower ones would usurp the place of the higher ones. The whole world is kept in order by punishment, for a guiltless man is hard to find; through fear of punishment the whole world yields the enjoyments which it owes."[172] Even the gods, the Dânavas, the Gandharvas, the Râkshasas, the bird and snake deities, give the enjoyments due from them only if they are tormented by the fear of punishment.[173] In mediæval law-books determent is frequently referred to as an object of punishment.[174] And in more modern times, till the end of the eighteenth century at least, the idea that punishment should inspire fear was ever present to the minds of legislators.

[Footnote 170: Garcilasso de la Vega, op. cit. i. 151 sq.]

[Footnote 171: Ta Tsing Leu Lee, p. lxvii.]

[Footnote 172: Laws of Manu, vii. 14, 15, 20-22, 24 sq.]

[Footnote 173: Ibid. vii. 23.]

[Footnote 174: Leges Burgundionum, Leges Gundebati, 52: "Rectius enim paucorum condempnatione multitudo corregitur, quam sub specie incongruae civilitatis intromittatur occasio, quae licentiam tribuat delinquendi." Capitulare Aquisgranense An. 802, 33: "Sed taliter hoc corripiantur, ut caeteri metum habeant talia perpetrandi" (Migne, Patrologiæ cursus, xcvii. 230). Chlotar II. Edictum de Synodo Parisiensi, 24: "In ipsum capitali sententia judicetur, qualiter alii non debeant similia perpetrare" (Migne, op. cit. lxxx. 454). For other instances, see Brunner, Deutsche Rechtsgeschichte, ii. 588, n. 6.]

The same idea is also conspicuous in the practice of punishing criminals in public.[175] A petty thief in the pillory and a scold on the cucking-stool were, in earlier times, spectacles familiar to everybody, whilst persons still living remember seeing offenders publicly whipped in the streets. "A gallows or tree with a man hanging upon it," says Mr. Wright, "was so frequent an object in the country that it seems to have been almost a natural ornament of a landscape, and it is thus introduced by no {192} means uncommonly in mediæval manuscripts."[176] In atrocious cases it was usual for the court to direct the murderer, after execution, to be hung upon a gibbet in chains near the place where the fact was committed, "with the intention of thereby deterring others from capital offences"; and in order that the body might all the longer serve this useful purpose, it was saturated with tar before it was hung in chains.[177] The popularity which mutilation as a punishment enjoyed during the Middle Ages was largely due to the opinion, that "a malefactor miserably living was a more striking example of justice than one put to death at once."[178]

[Footnote 175: Günther, Die Idee der Wiedervergeltung, i. 211 sq. n. 31.]

[Footnote 176: Wright, History of Domestic Manners and Sentiments in England during the Middle Ages, p. 346.]

[Footnote 177: Holinshed, op. cit. i. 311. Blackstone, Commentaries on the Laws of England, iv. 201. Cox, 'Hanging in Chains,' in The Antiquary, xxii. 213 sq.]

[Footnote 178: Strutt, View of the Manners, &c. of the Inhabitants of England, ii. 8.]

We shall now consider whether these facts really contradict our thesis that punishment is essentially an expression of public indignation.

It may, first, be noticed that the punishment actually inflicted on the criminal is in many cases much less severe than the punishment with which the law threatens him. In China the execution of the law is, on the whole, lenient in comparison with its literal and prima facie interpretation.[179] "Many of the laws seem designed to operate chiefly in terrorem, and the penalty is placed higher than the punishment really intended to be inflicted, to the end that the Emperor may have scope for mercy, or, as he says, 'for leniency beyond the bounds of the law.'"[180] In Europe, during the Middle Ages, malefactors frequently received charters of pardon, and in later times it became a favourite theory that it was good policy, in framing penal statutes, to make as many offences as possible capital, and to leave to the Crown to relax the severity of the law. In England, about the beginning of the nineteenth century, the punishment of death was actually inflicted in only a small proportion of the cases in {193} which sentence was passed; indeed, "not one in twenty of the sentences was carried into execution."[181] This discrepancy between law and practice bears witness, not only to the extent to which the minds of legislators were swayed by the idea of inspiring fear, but to the limitation of determent as a penal principle. It has been observed that the excessive severity of laws hinders their execution. "Society revolted against barbarities which the law prescribed. Men wronged by crimes, shrank from the shedding of blood, and forbore to prosecute: juries forgot their oaths and acquitted prisoners, against evidence: judges recommended the guilty to mercy."[182] Yet, in spite of all such deductions, there can be no doubt that the hangman had plenty to do. Hanging persons, says Mr. Andrews, was almost a daily occurrence in the earlier years of the nineteenth century, "for forging notes, passing forged notes, and other crimes which we now almost regard with indifference."[183]

[Footnote 179: Staunton, in his Preface to Ta Tsing Leu Lee, p. xxvii. sq.]

[Footnote 180: Wells Williams, op. cit. i. 392 sq.]

[Footnote 181: Stephen, op. cit. i. 471. May, op. cit. ii. 597.]

[Footnote 182: May, op. cit. ii. 597.]

[Footnote 183: Andrews, op. cit. p. 218. Cf. Olivecrona, Om dödsstraffet, p. x.]

Another circumstance worth mentioning is, that in earlier times the detection of criminals was much rarer and more uncertain than it is now.[184] It has been argued on utilitarian grounds that, "to enable the value of the punishment to outweigh that of the profit of the offence, it must be increased, in point of magnitude, in proportion as it falls short in point of certainty."[185] But the rareness of detection would also for purely emotional reasons tend to increase the severity of the punishment. When one criminal out of ten or twenty is caught, the accumulated indignation of the public turns against him, and he becomes a scapegoat for all the rest.

[Footnote 184: Cf. Morrison, Crime and its Causes, p. 175.]

[Footnote 185: Bentham, Principles of Morals and Legislation, p. 184. Cf. Paley, Moral and Political Philosophy, vi. 9 (Complete Works, ii. 371).]

However, the chief explanation of the great severity of certain criminal codes lies in their connection with despotism or religion or both.[186] An act which is prohibited {194} by law may be punished, not only on account of its intrinsic character, but for the very reason that it is illegal. When the law is, from the outset, an expression of popular feelings, the severity of the penalty with which it threatens the transgressor depends, in the first place, on the public indignation evoked by the act itself, independently of the legal prohibition of it. But the case is different with laws established by despotic rulers or ascribed to divine lawgivers. Such laws have a tendency to treat criminals not only as offenders against the individuals whom they injure or against society at large, but as rebels against their sovereign or their god. Their disobedience to the will of the mighty legislator incurs, or is supposed to incur, his anger, and is, in consequence, severely resented. But however severe they be, the punishments inflicted by the despot on disobedient subjects are not regarded as mere outbursts of personal anger. In the archaic State the king is an object of profound regard, and even of religious veneration. He is looked upon as a sacred being, and his decrees as the embodiment of divine justice. The transgression of any law he makes is, therefore, apt to evoke a feeling of public indignation proportionate to the punishment which he pleases to inflict on the transgressor. Again, as to acts which are supposed to arouse the anger of invisible powers, the people are anxious to punish them with the utmost severity so as to prevent the divine wrath from turning against the community itself. But the fear which, in such cases, lies at the bottom of the punishment, is certainly combined with genuine indignation against the offender, both because he rebels against God and religion, and because he thereby exposes the whole community to supernatural dangers.

[Footnote 186: This has been previously pointed out by Prof. Durkheim, in his interesting essay, 'Deux lois de l'évolution pénale' (L'année sociologique, iv. [1899-1900], p. 64 sqq.), with which I became acquainted only when the present chapter was already in type. Montesquieu observes (De l'esprit des lois, vi. 9 [[OE]uvres, p. 231]), "Il serait aisé de prouver que, dans tous ou presque tous les États d'Europe, les peines ont diminué ou augmenté à mesure qu'on s'est plus approché ou plus éloigné de la liberté."]

{195} Various facts might be quoted in support of this explanation. Whilst the punishments practised among the lower races generally, are not conspicuous for their severity, there are exceptions to this rule among peoples who are governed by despotic rulers.

Under the Ashanti code, even the most trivial offences are punishable with death.[187] In Madagascar, also, "death was formerly inflicted for almost every offence."[188] In Uganda the ordinary punishments were "death by fire, being hacked to pieces by

reed splinters, fine, imprisonment in the stocks mvuba, or in the **slave fork kaligo, also mutilation. It is most common to see people deprived of an eye, or in some cases of both eyes; persons lacking their ears are also frequently met with."[189] Among the Wassukuma, whose chieftains used to have power of life and death over their subjects, a person who was guilty of disobedience to his ruler, or of some action which the ruler considered wicked and punishable, was condemned to death.[190] In the Sandwich Islands, "a chief takes the life of one of his own people for any offence he may commit, and no one thinks he has a right to interfere."[191]

[Footnote 187: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 166.]

[Footnote 188: Ellis, History of Madagascar, i. 374.]

[Footnote 189: Ashe, Two Kings of Uganda, p. 293. Cf. Wilson and Felkin, Uganda and the Egyptian Soudan, i. 201.]

[Footnote 190: Kollmann, Victoria Nyanza, p. 431.]

[Footnote 191: Ellis, Tour through Hawaii, p. 431.]

In the old monarchies of America and Asia there was an obvious connection between the punishments prescribed by their laws and the religious-autocratic form of their governments. According to Garcilasso de la Vega, the Peruvians--among whom the most common punishment was death--maintained "that a culprit was not punished for the delinquencies he had committed, but for having broken the commandment of the Ynca, who was respected as God," and that, viewed in this light, the slightest offence merited to be punished with death.[192] In China the Emperor was regarded as the vicegerent of Heaven especially chosen to govern all nations, and was supreme in everything, holding at once the highest legislative and executive powers, without limit or control.[193] According {196} to ancient Japanese ideas, "the duty of a good Japanese consists in obeying the Mikado, without questioning whether his commands are right or wrong. The Mikado is god and vicar of all the gods, hence government and religion are the same."[194] In Rome the criminal law, which for a long time was characterised by great moderation,[195] gradually grew more severe according as absolutism made progress. Sylla, the dictator, not only put thousands of citizens to death by proscription without any form of trial, but fixed, in the Cornelian criminal code, for heinous offences the punishment called aquæ et ignis interdictio. Under the Emperors some new and cruel capital punishments were introduced, such as burning alive and exposing to wild beasts; whilst at the same time offences such as driving away horses or cattle were made capital.[196] In mediæval and modern Europe the increase of the royal power was accompanied by increasing severity of the penal codes. Every crime came to be regarded as a crime against the King. Indeed, breach of the King's peace became the foundation of the whole Criminal Law of England; the right of pardon, for instance, as a prerogative of the Crown, took its origin in the fact that the King was supposed to be injured by a crime, and could therefore waive his remedy.[197] And the King was not only regarded as the fountain of social justice, but as the earthly representative of the heavenly lawgiver and judge.[198]

[Footnote 192: Garcilasso de la Vega, op. cit. i. 145.]

[Footnote 193: Wells Williams, op. cit. i. 393.]

[Footnote 194: Griffis, Religions of Japan, p. 92. Cf. Idem, Mikado's Empire, p. 100.]

[Footnote 195: Cf. Livy, x. 9; Polybius, vi. 14; Gibbon, History of the Decline and Fall of the Roman Empire, v. 318, 326.]

[Footnote 196: Mackenzie, Studies in Roman Law, pp. 408, 409, 414. Gibbon, op. cit. v. 320. Cf. Mommsen, Römisches Strafrecht, p. 943.]

[Footnote 197: Cherry, Growth of Criminal Law in Ancient Communities, pp. 68, 105.]

[Footnote 198: Henke, Grundriss einer Geschichte des deutschen peinlichen Rechts, ii. 310. Abegg, Die verschiedenen Strafrechtstheorieen, p. 117. Du Boys, Histoire du droit criminel de l'Espagne, p. 323.]

Of the connection between punishment and the belief in supernatural agencies many instances are found already in the savage world.[199] The great severity with which certain {197} infractions of custom are punished has obviously a superstitious origin. In Polynesia, according to Ellis, "the prohibitions and requisitions of the tabu were strictly enforced, and every breach of them punished with death, unless the delinquents had some very powerful friends who were either priests or chiefs.[200] Among the western tribes of Torres Straits, "death was the penalty for infringing the rules connected with the initiation period i.e., for sacrilege."[201] Among the Port Lincoln aborigines the women and children are not allowed to see any of the initiation ceremonies, and "any impertinent curiosity on their part is punishable with death, according to the ancient custom."[202] Among the Masai, who believe that the boiling of milk will cause the cows to run dry, "any one caught doing so can only atone for the sin with a fearfully heavy fine, or, failing that, the insult to the holy cattle will be wiped out in his blood."[203] The penalty of death which is frequently imposed on incest or other sexual offences is largely due to the influence of religious or superstitious beliefs.[204] And in various cases of sacrilege the offender is offered up as a sacrifice to the resentful god.[205]

[Footnote 199: Steinmetz, Ethnol. Studien zur ersten Entwicklung der Strafe, ii. 340 sq. The connection between punishment and religion has been emphasised by Prof. Durkheim (Division du travail social, p. 97 sqq.) and M. Mauss ('La religion et les origines du droit pénal,' in Revue de l'histoire des religions, vols. xxxiv. and xxxv.). But Prof. Durkheim exaggerates the importance of this connection by assuming (p. 97) that "le droit pénal à l'origine était essentiellement religieux."]

[Footnote 200: Ellis, Tour through Hawaii, p. 394. Cf. Olmsted, Incidents of a Whaling Voyage, p. 248 sq.; Mauss, in op. cit. xxxv. 55.]

[Footnote 201: Haddon, 'Ethnography of the Western Tribes of Torres Straits,' in Jour. Anthr. Inst. xix. 335.]

[Footnote 202: Schürmann, 'Aboriginal Tribes of Port Lincoln,' in Woods, Native Tribes of South Australia, p. 234.]

[Footnote 203: Johnston, Kilima-njaro Expedition, p. 425.]

[Footnote 204: See infra, on Sexual Morality.]

[Footnote 205: See infra, on Human Sacrifice.]

According to Hebrew notions, it is man's duty to avenge offences against God; every crime involves a breach of God's law, and is punishable as such, and hardly any punishment is too severe to be inflicted on the ungodly.[206] These ideas were adopted by the Christian Church and by Christian governments.[207] The principle {198} stated in the Laws of Cnut, that "it belongs very rightly to a Christian king that he avenge God's anger very deeply, according as the deed may be,"[208] was acted upon till quite modern times, and largely contributed to the increasing severity of the penal codes. It was therefore one of the most important steps towards a more humane legislation when, in the eighteenth century, this principle was superseded by the contrary doctrine, "Il faut faire honorer la Divinité, et ne la venger jamais."[209]

[Footnote 206: Cf. Robertson Smith, Religion of the Semites, p. 162 sq.]

[Footnote 207: von Eicken, Geschichte und System der mittelalterlichen Weltanschauung, p. 563 sqq. Abegg, op. cit. p. 111 sq. Wilda, Strafrecht der Germanen, p. 530 sq. Günther, op. cit. ii. 12 sqq. Henke, op. cit. ii. 310 sq. Brunner, op. cit. ii. 587.]

[Footnote 208: Laws of Cnut, ii. 40.]

[Footnote 209: Montesquieu, De l'esprit des lois, xii. 4 ([OE]uvres, p. 282).]

From the fact, then, that crimes are punished not only as wrongs against individuals, but as wrongs against the State, and, especially, as wrongs against some despotic or semi-divine lawgiver, or against the Deity, it follows that even seemingly excessive punishments may, to a large extent, be regarded as manifestations of public resentment. This emotion does not necessarily demand like for like. The law of talion presupposes equality of rights; it is not applicable to impersonal offences, nor to offences against kings or gods. And as the demands of public resentment may exceed the lex talionis, so they may on the other hand fall short of it. Moreover, though the degree of punishment on the whole more or less faithfully represents the degree of indignation aroused by any particular crime in comparison with other crimes belonging to the same penal system, we must not take the comparative severity of the criminal laws of different peoples as a safe index to the intensity of their reprobation of crime. As we have seen before, the strength of moral indignation cannot be absolutely measured by the desire to cause pain to the offender. When the emotion of resentment is sufficiently refined, the infliction of suffering is regarded as a means rather than as an end.

By all this I certainly do not mean to deny that punishment, though in the main an expression of public indignation, is also applied as a means of deterring from crime. Criminal law is preventive, its object is to forbid and {199} to warn, and it uses punishment as a threat. But the acts which the law forbids are, as a rule, such as public opinion condemns as wrong, and it is their wrongness that in all ages has been regarded as the justification of the penalties to which they are subject. It is true that there are instances in which the law punishes acts which in themselves are not apt to evoke public resentment, and others in which the severity of the punishment does not exactly correspond with the resentment they evoke. The State may have a right to sacrifice the welfare of individuals in order to attain some desirable end. It may have a right to do so in cases where no crime has been committed, it would therefore seem to be all the more justified in doing so when the evil has been preceded by a warning. And yet, in the case of punishment, it is only within narrow limits that such a right is granted to the State. To punish a person could not simply mean that he has to suffer for the benefit of the society; there is always opprobrium connected with punishment. Hence the scope which justice leaves for determent pure and simple is not wide. Sir James Stephen observes:--"You cannot punish anything which public opinion, as expressed in the common practice of society, does not strenuously and unequivocally condemn. To try to do so is a sure way to produce gross hypocrisy and furious reaction."[210] Experience shows that the fate of all disproportionately severe laws which make too liberal use of punishment as a deterrent is that they come to be little followed in practice and are finally annulled. As Gibbon says, "whenever an offence inspires less horror than the punishment awarded to it, the rigour of penal law is obliged to give way to the common feelings of mankind."

[Footnote 210: Stephen, Liberty, Equality, Fraternity, p. 159. Cf. Mommsen, Römisches Strafrecht, p. 91 sq.]

Numerous data, to be referred to in following chapters, will show how faithfully punishment reflects the emotion of resentment, and how impossible it would be to explain it from considerations of social utility without close reference {200} to the

feeling of justice. Why, for instance, should the attempt to commit a crime, when its failure obviously depends on mere chance, be punished less severely than the accomplished crime, if not because the indignation it arouses is less intense? Would not the same amount of suffering be requisite to deter a person from attempting to murder his neighbour as to deter him from actually committing the murder? And is there any reason to suppose that the unsuccessful offender is less dangerous to society than he who succeeds? All the facts referring to criminal responsibility, as we shall see, suggest resentment, not determent, as the basis of punishment, and so does the gradation of the punishment conformably to the magnitude of the crime.[211] According to the principle of determent, as expressed by Anselm von Feuerbach and others, punishment should be neither more nor less severe than is necessary for the suppression of crime.[212] But if this rule were really acted upon, the penalties imposed, especially on minor offences, which the law has been utterly unable to suppress, would certainly be much less lenient than they actually are. Moreover, if there were no intrinsic connection between punishment and resentment, how could we explain the predilection of early law for the principle of talion--an eye for an eye, a tooth for a tooth, a life for a life--[213] which, as we have seen, so frequently regulates the custom of revenge?

[Footnote 211: Cf. Durkheim, Division du travail social, p. 93 sq.]

[Footnote 212: von Feuerbach, Ueber die Strafe als Sicherungsmittel vor künftigen Beleidigungen des Verbrechers, p. 83. von Gizycki, Introduction to the Study of Ethics, p. 188.]

[Footnote 213: On this subject, see Günther, op. cit. passim.]

The criminal law of a society may thus, on the whole, be taken for a faithful exponent of moral sentiments prevalent in that society at large. The attempt to make law independent of morality, and to allot to it a kingdom of its own, is really, I think, only an excuse for the moral shortcomings which it reveals if scrutinised from the standpoint of a higher morality. Law does not show us the moral consciousness in its refinement. But refinement {201} is a rare thing, and criminal law is in the main on a level with the unreflecting morality of the vulgar mind. Philosophers and theorisers on law would do better service to humanity if they tried to persuade people not only that their moral ideas require improvement, but that their laws, so far as possible, ought to come up to the improved standard, than they do by wasting their ingenuity in sophisms about the sovereignty of Law and its independence of the realm of Justice.

Chapter VIII

THE GENERAL NATURE OF THE SUBJECTS OF ENLIGHTENED MORAL JUDGMENTS

THE subjects of moral judgments call for a very comprehensive investigation, which will occupy the main part of this work. As already said, we shall first discuss the general nature, and afterwards the particular branches, of those phenomena which have a tendency to evoke moral condemnation or moral praise; and in each case our investigation will be both historical and explanatory. The present chapter, however, will be neither the one nor the other. It seems desirable to examine the general nature of the subjects of moral valuation from the standpoint of the enlightened moral consciousness before dealing with the influence which their various elements have come to exercise upon moral judgments in the course of evolution. By doing this, we shall be able, from

the outset, to distinguish between elements which are hardly discernible, or separable, at the lower stages of mental development, as also to fix the terminology which will be used in the future discussion.

Moral judgments are commonly said to be passed upon conduct and character. This is a convenient mode of expression, but the terms need an explanation.

Conduct has been defined sometimes as "acts adjusted to ends,"[1] sometimes as acts that are not only adjusted to ends, but definitely willed.[2] The latter definition is too {203} narrow for our present purpose, because, as will be seen, it excludes from the province of conduct many phenomena with reference to which moral judgments are passed. The same may be said of the former definition also, which, moreover, is unnecessarily wide, including as it does an immense number of phenomena with which moral judgments are never concerned. Though no definition of conduct could be restricted to such phenomena as actually evoke moral emotions, the term "conduct" seems, nevertheless, to suggest at least the possibility of moral valuation, and is therefore hardly applicable to such "acts adjusted to ends" as are performed by obviously irresponsible beings. It may be well first to fix the meaning of the word "act."

[Footnote 1: Spencer, Principles of Ethics, i. 5.]

[Footnote 2: E.g., Mackenzie, Manual of Ethics, p. 85.]

According to Bentham, acts may be distinguished as external, or acts of the body, and internal, or acts of the mind. "Thus, to strike is an external or exterior act: to intend to strike, an internal or interior one."[3] But this application of the word is neither popular nor convenient. The term "act" suggests something besides intention, whilst, at the same time, it suggests something besides muscular contractions. To intend to strike is no act, nor are the movements involved in an epileptic fit acts.

[Footnote 3: Bentham, Principles of Morals and Legislation, p. 73.]

An act comprises an event and its immediate mental cause. The event is generally spoken of as the outward act, but this term seems to be too narrow, since the intentional production of a mental fact--for instance, a sensation, or an idea, or an emotion like joy or sorrow or anger--may be properly styled an act. The objection will perhaps be raised that I confound acts with their consequences, and that what I call the "event" is, as Austin maintains, nothing but bodily movements. But Austin himself admits that he must often speak of "acts" when he means "acts and their consequences," since "most of the names which seem to be names of acts, are names of acts, coupled with certain of their consequences, {204} and it is not in our power to discard these forms of speech."[4] I regard the so-called consequences of acts, in so far as they are intended, as acts by themselves, or as parts of acts.

[Footnote 4: Austin, Lectures on Jurisprudence, i. 427, 432 sq.]

The very expression "outward act" implies that acts also have an inner aspect. Intention, says Butler, "is part of the action itself."[5] By intention I understand a volition or determination to realise the idea of a certain event; hence there can be only one intention in one act. Certain writers distinguish between the immediate and the remote intentions of an act. Suppose that a tyrant, when his enemy jumped into the sea to escape him, saved his victim from drowning with a view to inflicting upon him more exquisite tortures. The immediate intention, it is maintained, was to save the enemy from drowning, the remote intention was to inflict upon him tortures.[6] But I should say that, in this case, we have to distinguish between two acts, of which the first was a means of producing the event belonging to the second, and that, when the former was accomplished, the latter was still only in preparation. A distinction has, moreover, been drawn between the direct and the indirect intention of an act:--"If a Nihilist seeks to

blow up a train containing an Emperor and others, his direct intention may be simply the destruction of the Emperor, but indirectly also he intends the destruction of the others who are in the train, since he is aware that their destruction will be necessarily included along with that of the Emperor."[7] In this case we have two intentions, and, so far as I can see, two acts, provided that the nihilist succeeded in carrying out his intentions, namely (1) the blowing up of the train, and (2) the killing of the emperor; the former of these acts does not even necessarily involve the latter. But I fail to see that there is any intention at all to kill other {205} persons. Professor Sidgwick maintains that it would be thought absurd to say that, in such a case, the nihilist "did not intend" to kill them;[8] but the reason for this is simply the vagueness of language, and a confusion between a psychical fact and the moral estimate of that fact. It might be absurd to bring forward the nihilist's non-intention as an extenuation of his crime; but it would hardly be correct to say that he intended the death of other passengers, besides that of the emperor, when he only intended the destruction of the train, though this intention involved an extreme disregard of the various consequences which were likely to follow. He knowingly exposed the passengers to great danger; but if we speak of an intention on his part to expose them to such a danger, we regard this exposure as an act by itself.

[Footnote 5: Butler, 'Dissertation II. Of the Nature of Virtue,' in Analogy of Religion, &c. p. 336.]

[Footnote 6: Mackenzie, op. cit. p. 60. The example is borrowed from Stuart Mill, Utilitarianism, p. 27 note.]

[Footnote 7: Mackenzie, op. cit. p. 61. Cf. Sidgwick, Methods of Ethics, p. 202, n. 1.]

[Footnote 8: Sidgwick, op. cit. p. 202, n. 1. On the subject of "indirect intention," cf. also Bentham, op. cit. pp. 84, 86.]

A moral judgment may refer to a mere intention, independently of its being realised or not. Moreover, the moral judgments which we pass on acts do not really relate to the event, but to the intention. In this point moralists of all schools seem to agree.[9] Even Stuart Mill, who drew so sharp a distinction between the morality of the act and the moral worth of the agent, admits that "the morality of the action depends entirely upon the intention."[10] The event is of moral importance only in so far as it indicates a decision which is final. From the moral point of view there may be a considerable difference between a resolution to do a certain thing in a distant future and a resolution to do it immediately. However determined a person may be to commit a crime, or to perform a good deed, the idea of the immediacy of the event may, in the last moment, induce him to change his mind. "The road to hell is paved with good intentions." External events are generally the direct causes of our moral emotions; indeed, without the doing of harm and the doing of good, the moral consciousness would never {206} have come into existence. Hence the ineradicable tendency to pass moral judgments upon acts, even though they really relate to the final intentions involved in acts. It would be both inconvenient and useless to deviate, in this respect, from the established application of terms. And no misunderstanding can arise from such application if it be borne in mind that by an "act," as the subject of a moral judgment, is invariably understood the event plus the intention which produced it, and that the very same moral judgment as is passed on acts would also, on due reflection, be recognised as valid with reference to final decisions in cases where accidental circumstances prevented the accomplishment of the act.

[Footnote 9: Sidgwick, op. cit. p. 201.]

[Footnote 10: Stuart Mill, Utilitarianism, p. 27 note. Cf. James Mill, Fragment on Mackintosh, p. 376.]

It is in their capacity of volitions that intentions are subjects of moral judgments. What is perfectly independent of the will is no proper object of moral blame or moral praise. On the other hand, any volition may have a moral value. But, so far as I can see, there are volitions which are not intentions. A person is morally accountable also for his deliberate wishes, and the reason for this is that a deliberate wish is a volition. I am aware that, by calling deliberate wishes "volitions," I offend against the terminology generally adopted by psychologists. However, a deliberate wish is not only from a moral point of view--as being a proper subject of moral valuation--but psychologically as well, so closely akin to a decision, that there must be a common term comprising both. In the realm of conations, deliberate wishes and decisions form together a province by themselves. In contradistinction to mere conative impulses, they are expressions of a person's character, of his will. A deliberate wish may just as well as a decision represent his "true self." It has been argued that a person may will one thing and yet wish the opposite thing. Locke observes:--"A man whom I cannot deny, may oblige me to use persuasions to another, which, at the same time I am speaking, I may wish may not prevail upon him. In this case it is plain the will and desire run counter, I will the action that {207} tends one way, whilst my desire tends another, and that the direct contrary way."[11] Yet in this case I either do not intend to persuade the man, but only to discharge my office by speaking to him words which are apt to have a persuasive effect on him; or, if I do intend to persuade him, I do not in the same moment feel any deliberate wish to the contrary, although I may feel such a wish before or afterwards. We cannot simultaneously have an intention to do a thing and a deliberate wish not to do it.

[Footnote 11: Locke, Essay concerning Human Understanding, ii. 21. 30 (Philosophical Works, p. 219).]

If it is admitted that moral judgments are passed on acts simply in virtue of their volitional character, it seems impossible to deny that such judgments may be passed on the motives of acts as well. By "motive" I understand a conation which "moves" the will, in other words, the conative cause of a volition.[12] The motive itself may be, or may not be, a volition. If it is, it obviously falls within the sphere of moral valuation. The motive of an act may even be an intention, but an intention belonging to another act. When Brutus helped to kill Cæsar in order to save his country, his intention to save his country was the cause, and therefore the motive, of his intention to kill Cæsar. The fact that an intention frequently acts as a motive has led some writers to the conclusion that the motive of an act is a part of the intention. But if the intention of an act is part of the act itself, and a motive is the cause of an intention, the motive of an intention cannot be a part of that intention, since a part cannot be the cause of the whole of which it forms a part.

[Footnote 12: "The term 'motive,'" says Professor Stout (Groundwork of Psychology, p. 233 sq.) "is ambiguous. It may refer to the various conations which come into play in the process of deliberation and tend to influence its result. Or it may refer to the conations which we mentally assign as the ground or reason of our decision when it has been fully formed." Motive, in the former sense of the term, is not implied in what I here understand by motive. On the other hand, it should be observed that there are motives not only for decisions, but for deliberate wishes--another circumstance which shows the affinity between these two classes of mental facts.]

But even motives which, being neither deliberate wishes {208} nor intentions, consist of non-volitional conations, and, therefore, are no proper subjects of moral valuation, may nevertheless indirectly exercise much influence on moral judgments. Suppose that

a person without permission gratifies his hunger with food which is not his own. The motive of his act is a non-volitional conation, an appetite, and has consequently no moral value. Yet it must be taken into account by him who judges upon the act. Other things being equal, the person in question is less guilty in proportion as his hunger is more intense. The moral judgment is modified by the pressure which the non-volitional motive exercises upon the agent's will. The same is the case when the motive of an act is the conative element involved in an emotion. If a person commits a certain crime under the influence of anger, he is not so blamable as if he commits the same crime in cold blood. Thus, also, it is more meritorious to be kind to an enemy from a feeling of duty, than to be kind to a friend from a feeling of love. No man deserves blame or praise for the pressure of a non-volitional conation upon his will, unless, indeed, such a pressure is due to choice, or unless it might have been avoided with due foresight. But a person may deserve blame or praise for not resisting that impulse, or for allowing it to influence his will for evil or good.

It is true that moral judgments are commonly passed on acts without much regard being paid to their motives;[13] but the reason for this is only the superficiality of ordinary moral estimates. Moral indignation and moral approval are, in the first place, aroused by conspicuous facts, and, whilst the intention of an act is expressed in the act itself, its motive is not. But a conscientious judge cannot, like the multitude, be content with judging of the surface only. Stuart Mill, in his famous statement that "the motive has nothing to do with the morality of the action, though much with the worth of the agent,"[14] has drawn a distinction {209} between acts and agents which is foreign to the moral consciousness. It cannot be admitted that "he who saves a fellow creature from drowning does what is morally right, whether his motive be duty, or the hope of being paid for his trouble." He ought, of course, to save the other person from drowning, but at the same time he ought to save him from a better motive than a wish for money. It may be that "he who betrays his friend that trusts him is guilty of a crime, even if his object be to serve another friend to whom he is under greater obligations";[15] but surely his guilt would be greater if he betrayed his friend, say, in order to gain some personal advantage thereby. Intentions and motives are subjects of moral valuation not separately, but as a unity; and the reason for this is that moral judgments are really passed upon men as acting or willing, not upon acts or volitions in the abstract. It is true that our detestation of an act is not always proportionate to our moral condemnation of the agent; people do terrible things in ignorance. But our detestation of an act is, properly speaking, a moral emotion only in so far as it is directed against him who committed the act, in his capacity of a moral agent. We are struck with horror when we hear of a wolf eating a child, but we do not morally condemn the wolf.

[Footnote 13: Cf. James Mill, Fragment on Mackintosh, p. 376; Sidgwick, op. cit. p. 364.]

[Footnote 14: Stuart Mill, Utilitarianism, p. 26.]

[Footnote 15: Ibid. p. 26.]

A volition may have reference not only to the doing of a thing, but to the abstaining from doing a thing. It may form part not only of an act, but of a forbearance. A forbearance is morally equivalent to an act, and the volition involved in it is equivalent to an intention. "Sitting still, or holding one's peace," says Locke, "when walking or speaking are proposed, though mere forbearances, requiring as much the determination of the will, and being as often weighty in their consequences as the contrary actions, may, on that consideration, well enough pass for actions too."[16] Yet it is hardly correct to call them acts. Bentham's division of acts into acts of commission {210} and acts of

omission or forbearance[17] is not to be recommended. A not-doing I do not call an act, and the purpose of not doing I do not call an intention.[18] But the fact remains that a forbearance involves a distinct volition, which, as such, may be the subject of moral judgment no less than the intention involved in an act.

[Footnote 16: Locke, op. cit. ii. 21, 28 (Philosophical Works, p. 218).]

[Footnote 17: Bentham, op. cit. p. 72.]

[Footnote 18: Cf. Clark, Analysis of Criminal Liability, p. 42.]

Willing not to do a thing must be distinguished from not willing to do a thing; forbearances must be distinguished from omissions. An omission--in the restricted sense of the word--is characterised by the absence of volition. It is, as Austin puts it, "the not doing a given act, without adverting (at the time) to the act which is not done."[19] Now moral judgments refer not only to willing, but to not-willing as well, not only to acts and forbearances, but to omissions. It is curious that this important point has been so little noticed by writers on ethics, although it constitutes a distinct and extremely frequent element in our moral judgments. It has been argued that what is condemned in an omission is really a volition, not the absence of a volition; that an omission is bad, not because the person did not do something, but because he did something else, "or was in such a condition that he could not will, and is condemned for the acts which brought him into that condition."[20] In the latter case, of course, the man cannot be condemned for his omission, since he cannot be blamed for not doing what {211} he "could not will"; but to say that an omission is condemned only on account of the performance of some act is undoubtedly a psychological error. If a person forgets to discharge a certain duty incumbent on him, say, to pay a debt, he is censured, not for anything he did, but for what he omitted to do. He is blamed for not doing a thing which he ought to have done, because he did not think of it; he is blamed for his forgetfulness. In other words, his guilt lies in his negligence.

[Footnote 19: Austin, op. cit. i. 438.]

[Footnote 20: Alexander, Moral Order and Progress, p. 34 sq. So, also, Professor Sidgwick maintains (op. cit. p. 60) that "the proper immediate objects of moral approval or disapproval would seem to be always the results of a man's volitions so far as they were intended--i.e., represented in thought as certain or probable consequences of such volitions," and that, in cases of carelessness, moral blame, strictly speaking, attaches to the agent, only "in so far as his carelessness is the result of some wilful neglect of duty." A similar view is taken by the moral philosophy of Roman Catholicism. (Göpfert, Moraltheologie, i. 113). Binding, again, assumes (Die Normen, ii. 105 sqq.) that a person may have a volition without having an idea of what he wills, and that carelessness implies a volition of this kind. Otherwise, he says, the will could not be held responsible for the result. But, as we shall see immediately, the absence of a volition may very well be attributed to a defect of the will, and the will thus be regarded as the cause of an unintended event. To speak of a volition or will to do a thing of which the person who wills it has no idea seems absurd.]

Closely related to negligence is heedlessness, the difference between them being seemingly greater than it really is. Whilst the negligent man omits an act which he ought to have done, because he does not think of it, the heedless man does an act from which he ought to have forborne, because he does not consider its probable or possible consequences.[21] In the latter case there is acting, in the former case there is absence of acting. But in both cases the moral judgment refers to want of attention, in other words, to not-willing. The fault of the negligent man is that he does not think of the act which he ought to perform, the fault of the heedless man is that he does not think of the

probable or possible consequences of the act which he performs. In rashness, again, the party adverts to the mischief which his act may cause, but, from insufficient advertence assumes that it will not ensue; the fault of the rash man is partial want of attention. [22] Negligence, heedlessness, and rashness, are all included under the common term "carelessness."

[Footnote 21: The meaning of the word "negligence," in the common use of language, is very indefinite. It often stands for heedlessness as well, or for carelessness. I use it here in the sense in which it was applied by Austin (op. cit. i. 439 sq.).]

[Footnote 22: Austin, op. cit. i. 440 sq. Clark, op. cit., p. 101.]

Our moral judgments of blame, however, are concerned with not-willing only in so far as this not-willing is attributed to a defect of the will, not to the influence of intellectual or other circumstances for which no man can be held responsible. That power in a person which we call his "will" is regarded by us as a cause, not only of {212} such events as are intended, but of such events as we think that the person "could" have prevented by his will. And just as, in the case of volitions, the guilt of the party is affected by the pressure of non-voluntary motives, so in the case of carelessness mental facts falling outside the sphere of the will must be closely considered by the conscientious judge. But nothing is harder than to apply this rule in practice.

Equally difficult is it, in many cases, to decide whether a person's behaviour is due to want of advertence, or is combined with a knowledge of what his behaviour implies, or of the consequences which may result from it--to decide whether it is due to carelessness, or to something worse than carelessness. For him who refrains from performing an obligatory act, though adverting to it, "negligent" is certainly too mild an epithet, and he who knows that mischief will probably result from his deed is certainly worse than heedless. Yet even in such cases the immediate object of blame may be the absence of a volition--not a want of attention, but a not-willing to do, or a not-willing to refrain from doing, an act in spite of advertence to what the act implies or to its consequences. I may abstain from performing an obligatory act though I think of it, and yet, at the same time, make no resolution not to perform it. So, too, if a man is ruining his family by his drunkenness, he may be aware that he is doing so, and yet he may do it without any volition to that effect. In these cases the moral blame refers neither to negligence or heedlessness, nor to any definite volition, but to disregard of one's duty or of the interests of one's family. At the same time, the transition from conscious omissions into forbearances, and the transition from not-willing to refrain from doing into willing to do, are easy and natural; hence the distinction between willing and not-willing may be of little or no significance from an ethical point of view. For this reason such consequences of an act as are foreseen as certain or probable have commonly been included under the term "intention,"[23] {213} often as a special branch of intention--"oblique," or "indirect," or "virtual" intention;[24] but, as was already noticed, this terminology is hardly appropriate. I shall call such consequences of an act as are foreseen by the agent, and such incidents as are known by him to be involved in his act, "the known concomitants" of the act. When the nihilist blows up the train containing an emperor and others, with a view to killing the emperor, the extreme danger to which he exposes the others is a known concomitant of his act. So, also, in most crimes, the breach of law, as distinct from the act intended, is a known concomitant of the act, inasmuch as the criminal, though aware that his act is illegal, does not perform it for the purpose of violating the law. As Bacon said, "no man doth a wrong for the wrong's sake, but thereby to purchase himself profit, or pleasure, or honour, or the like."[25]

[Footnote 23: Cf. Sidgwick, op. cit. p. 202.]

[Footnote 24: Bentham, op. cit. p. 84. Austin, op. cit. i. 480. Clark, op. cit. pp. 97, 100.]

[Footnote 25: Bacon, 'Essay IV. Of Revenge' in Essays, p. 45. Cf. Grotius, De jus belli et pacis, ii. 20. 29. 1: "Vi quisquam gratis malus est."]

Absence of volitions, like volitions themselves, give rise not only to moral blame, but to moral praise. We may, for instance, applaud a person for abstaining from doing a thing, beneficial to himself but harmful to others, which, in similar circumstances, would have proved too great a temptation to any ordinary man; and it does not necessarily lessen his merit if the opposite alternative did not even occur to his mind, and his abstinence, therefore could not possibly be ascribed to a volition. Very frequently moral praise refers to known concomitants of acts rather than to the acts themselves. The merit of saving another person's life at the risk of losing one's own, really lies in the fact that the knowledge of the danger did not prevent the saver from performing his act; and the merit of the charitable man really depends on the loss which he inflicts upon himself by giving his property to the needy. In these and analogous cases of self-sacrifice for a good end, the merit, strictly speaking, consists in not-willing to {214} avoid a known concomitant of a beneficial act. But there are instances, though much less frequent, in which moral praise is bestowed on a person for not-willing to avoid a known concomitant which is itself beneficial. Thus it may on certain conditions be magnanimous of a person not to refrain from doing a thing, though he knows that his deed will benefit somebody who has injured him, and towards whom the average man in similar circumstances would display resentment.

All these various elements into which the subjects of moral judgments may be resolved, are included in the term "conduct." By a man's conduct in a certain case is understood a volition, or the absence of a volition in him--which is often, but not always or necessarily, expressed in an act, forbearance, or omission--viewed with reference to all such circumstances as may influence its moral character. In order to form an accurate idea of these circumstances, it is necessary to consider not only the case itself, but the man's character, if by character is understood a person's will regarded as a continuous entity.[26] The subject of a moral judgment is, strictly speaking, a person's will conceived as the cause either of volitions or of the absence of volitions; and, since a man's will or character is a continuity, it is necessary that any judgment passed upon him in a particular case, should take notice of his will as a whole, his character. We impute a person's acts to him only in so far as we regard them as a result or manifestation of his character, as directly or indirectly due to his will. Hume observes:--"Actions are, by their very nature, temporary and perishing; and where they proceed not from some cause in the character and disposition of the person who performed them, they can neither redound to his honour, if good; nor infamy, if evil. . . . The person is not answerable for them; and as they proceeded {215} from nothing in him, that is durable and constant, and leave nothing of that nature behind them, it is impossible he can, upon their account, become the object of punishment or vengeance."[27] There is thus an intimate connection between character and conduct as subjects of moral valuation. When judging of a man's conduct in a special instance, we judge of his character, and when judging of his character, we judge of his conduct in general.

[Footnote 26: Cf. Alexander, op. cit. p. 49: "Character is simply that of which individual pieces of conduct are the manifestation." To the word "character" has also been given a broader meaning. According to John Grote (Treatise on the Moral Ideals, p. 442), a person's character "is his habitual way of thinking, feeling, and acting."]

[Footnote 27: Hume, Enquiry concerning Human Understanding, viii. 2 (Philosophical Works, iv. 80). Cf. Idem, Treatise of Human Nature, iii. 2 (ibid. ii. 191). See also

Schopenhauer, Die beiden Grundprobleme der Ethik (Sämmtliche Werke, vol. vii.), pp. 123, 124, 281.]

It will perhaps be remarked that moral judgments are passed not only on conduct and character, but on emotions and opinions; for instance, that resentment in many cases is deemed wrong, and love of an enemy is deemed praiseworthy, and that no punishment has been thought too severe for heretics and unbelievers. But even in such instances the object of blame or praise is really the will. The person who feels resentment is censured because his will has not given a check to that emotion, or because the hostile attitude of mind has led up to a definite volition. Very frequently the irascible impulse in resentment or the friendly impulse in kindly emotion develops into a volition to inflict an injury or to bestow a benefit on its object; and the words resentment and love themselves are often used to denote, not mere emotions, but states of mind characterised by genuine volitions. An emotion, or the absence of an emotion, may also, when viewed as a symptom, give rise to, and be the apparent subject of, a moral judgment. We are apt to blame a person whose feelings are not affected by the news of a misfortune which has befallen his friend, because we regard this as a sign of an uncharitable character. We may be mistaken, of course. The same person might have been the first to try to prevent the misfortune if it had been in his power; but we judge from average cases.

As for opinions and beliefs, it may be said that they involve responsibility in so far as they are supposed to {216} depend on the will. Generally it is not so much the opinion itself but rather the expression, or the outward consequence, of it that calls forth moral indignation; and in any case the blame, strictly speaking, refers either to such acts, or to the cause of the opinion within the will. That a certain belief, or "unbelief," is never as such a proper object of censure is recognised both by Catholic and Protestant theology. Thomas Aquinas points out that the sin of unbelief consists in "contrary opposition to the faith, whereby one stands out against the hearing of the faith, or even despises faith," and that, though such unbelief itself is in the intellect, the cause of it is in the will. And he adds that in those who have heard nothing of the faith, unbelief has not the character of a sin, "but rather of a penalty, inasmuch as such ignorance of divine things is a consequence of the sin of our first parent."[28] Dr. Wardlaw likewise observes:--"The Bible condemns no man for not knowing what he never heard of, or for not believing what he could not know. . . . Ignorance is criminal only when it arises from wilful inattention, or from aversion of heart to truth. Unbelief involves guilt, when it is the effect and manifestation of the same aversion--of a want of will to that which is right and good."[29] To shut one's eyes to truth may be a heinous wrong, but nobody is blamable for seeing nothing with his eyes shut.

[Footnote 28: Thomas Aquinas, Summa Theologica, ii.-ii. 10. 1 sq.]

[Footnote 29: Wardlaw, Sermons on Man's Accountableness for his Belief, &c. p. 38.]

After these preliminary remarks, which refer to the scrutinising and enlightened moral consciousness, we shall proceed to discuss in detail, and from an evolutionary point of view, the various elements of which the subjects of moral judgments consist.

Chapter IX

THE WILL AS THE SUBJECT OF MORAL JUDGMENT AND THE INFLUENCE OF EXTERNAL EVENTS

HOWEVER obvious it may be to the reflecting moral consciousness that the only proper object of moral blame and praise is the will, it would be a hasty conclusion to assume that moral judgments always and necessarily relate to the will. There are numerous facts which tend to show that such judgments are largely influenced by external events involved in, or resulting from, the conduct of men.

Some peoples are said to make no distinction between intentional and accidental injuries. Most statements to this effect refer to revenge or compensation.

Von Martius states that, among the Arawaks, "the blood-revenge is so blind and is practised so extensively, that many times an accidental death leads to the destruction of whole families, both the family of him who killed and of the family of the victim";[1] and, according to Sir E. F. Im Thurn, the smallest injury done by one Guiana Indian to another, even if unintentional, must be atoned by the suffering of a similar injury.[2] Adair, in his work on the North American Indians, says that they pursued the law of retaliation with such a fixed eagerness, that formerly if a little boy shooting birds in the high and thick cornfields unfortunately chanced slightly to wound another with his childish arrow, "the young vindictive fox was excited by custom to watch his ways with the utmost earnestness, till the wound was returned in as equal a manner {218} as could be expected."[3] Among the Ondonga in South Africa,[4] the Nissan Islanders in the Bismarck Archipelago,[5] and certain Marshall Islanders,[6] the custom of blood-revenge makes no distinction between wilful and accidental homicide. Among the Kasias "destruction of human life, whether by accident or design, in open war or secret, is always the cause of feud among the relations of the parties."[7] It seems that the blood-revenge of the early Greeks was equally indiscriminate.[8] As for the blood-feuds of the ancient Teutons, Wilda maintains that, even in prehistoric times, it was hardly conformable to good custom to kill the involuntary manslayer;[9] but there is every reason to believe that custom made no protest against it. According to the myth of Balder, accident was no excuse for shedding blood. Loke gives to Hödur the mistletoe twig, and asks him to do like the rest of the gods, and show Balder honour, by shooting at him with the twig. Hödur throws the mistletoe at Balder, and kills him, not knowing its power. According to our notions, blind Hödur is perfectly innocent of his brother's death; yet the avenger, Vali, by the usual Germanic vow, neither washes nor combs his hair till he has killed Hödur. It is also instructive to note that the narrator of this story finds himself called upon to explain, and, in a manner, to excuse the Asas for not punishing Hödur at once, the place where they were assembled being a sacred place.[10] We find survivals of a similar view in laws of a comparatively recent date. The earliest of the Norman customals declares quite plainly that the man who kills his lord by misadventure must die.[11] And, according to a passage in 'Leges Henrici I.,' in case A by mischance falls from a tree upon B and kills him, then, if B's kinsman must needs have vengeance, he may climb a tree and fall upon A.[12] This provision has been justly represented as a curious instance of a growing appreciation of moral differences, which has not dared to abolish, but has tried to circumvent the ancient rule.[13]

[Footnote 1: von Martius, Beiträge zür Ethnographie Amerika's, i. 693 sq.]

[Footnote 2: Im Thurn, Among the Indians of Guiana, p. 214.]

[Footnote 3: Adair, History of the American Indians, p. 150.]

[Footnote 4: Rautanen, in Steinmetz, Rechtsverhältnisse, p. 341.]

[Footnote 5: Sorge, ibid. p. 418.]

[Footnote 6: Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 443. See also Idem, Shakespeare vor dem Forum der Jurisprudenz, p. 188.]

[Footnote 7: Fisher, in Jour. Asiatic Soc. Bengal, ix. 835.]

[Footnote 8: Rohde, Psyche, pp. 237, 238, 242.]

[Footnote 9: Wilda, Strafrecht der Germanen, p. 174.]

[Footnote 10: Snorri Sturluson, 'Gylfaginning,' 50, in Edda, p. 59. Cf. Brunner, Forschungen zur Geschichte des deutschen und französischen Rechtes, p. 489.]

[Footnote 11: Pollock and Maitland, History of English Law before the Time of Edward I. ii. 482.]

[Footnote 12: Leges Henrici I. xc. 7.]

[Footnote 13: Pollock and Maitland, op. cit. ii. 471.]

{219} Among the Kandhs "similar compensation is made in all cases both of excusable homicide and of manslaughter."[14] And the same is said to be the case among various other savages or barbarians.[15]

[Footnote 14: Macpherson, Memorials of Service in India, p. 82.]

[Footnote 15: Crawfurd, History of the Indian Archipelago, iii. 123. Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 223. Munzinger, Ostafrikanische Studien, p. 502 (Barea and Kunáma).]

However, this want of discrimination between intentional and accidental injuries is not restricted to cases of revenge or compensation. Early punishment is sometimes equally indiscriminate.

Among the Káfirs of the Hindu-Kush, "murder, justifiable homicide, and killing by inadvertence in a quarrel, are all classed as one crime, and punished in the same way. Extenuating circumstances are never considered. The single question asked is, Did the man kill the other? The penalty is an extremely heavy blood-ransom to the family of the slain man, or perpetual exile combined with spoliation of the criminal's property."[16] Parkyns tells us the following story from Abyssinia:--A boy who had climbed a tree, happened to fall down right on the head of his little comrade standing below. The comrade died immediately, and the unlucky climber was in consequence sentenced to be killed in the same way as he had killed the other boy, that is, the dead boy's brother should climb the tree in his turn, and tumble down on the other's head till he killed him.[17] The Cameroon tribes do not recognise the circumstance of accidental death:--"He who kills another accidentally must die. Then, they say, the friends of each are equal mourners."[18] Among the negroes of Accra, according to Monrad, accidental homicide is punished as severely as intentional.[19]

[Footnote 16: Scott Robertson, Káfirs of the Hindu-Kush, p. 440.]

[Footnote 17: Parkyns, Life in Abyssinia, ii. 236 sqq.]

[Footnote 18: Richardson, 'Observations among the Cameroon Tribes of West Central Africa,' in Memoirs of the International Congress of Anthropology, Chicago, p. 203. See also Leuschner, in Steinmetz, Rechtsverhältnisse, p. 24 (Bakwiri); ibid. p. 51 (Banaka and Bapuku).]

[Footnote 19: Monrad, Guinea-Kysten og dens Indbyggere, p. 88.]

Yet it would obviously be a mistake to suppose that, at early stages of civilisation, people generally look only at the harm done, and not in the least at the will of him who did it. Even in the system of private redress we often {220} find a distinction made between intentional or foreseen injuries on the one hand, and unintentional and unforeseen injuries on the other. In many instances, whilst blood-revenge is taken for voluntary homicide, compensation is accepted for accidental infliction of death.[20] And sometimes the chief or the State interferes on behalf of the involuntary manslayer, protecting him from the persecutions of the dead man's family.

[Footnote 20: Cf. Kohler, Shakespeare vor dem Forum der Jurisprudenz, p. 188, n. 1.]

Among the African Wapokomo intention makes a difference in the revenge.[21] Among the Papuans of the Tami Islands blood-revenge is common in the case of murder, but is not exacted in the case of accidental homicide; the involuntary manslayer has only to pay a compensation and to leave the community for a certain length of time.[22] Among the Namaqua Hottentots custom demands that compensation should be accepted for unintentional killing.[23] We meet with the same principle among the Albanians[24] and the Slavs,[25] in the past history of other European peoples,[26] in ancient Yucatan,[27] and in the religious law of Muhammedanism.[28] Among the Kabyles of Algeria, "si les m[oe]urs n'autorisent jamais la famille victime d'un homicide volontaire à amnistier un crime, elles lui permettent presque toujours de pardonner la mort qui ne résulte que d'une maladresse ou d'un accident." They have a special ceremony by which the family of the deceased grant pardon to the involuntary manslayer, but the pardon must be given unanimously. The manslayer then becomes a member of the kharuba, or gens, of the deceased.[29] Among the Omahas, "when one man killed another accidentally, he was rescued by the interposition of the chiefs, and subsequently was punished as if he were a murderer, but only for a year or two."[30] The {221} ancient law of the Hebrews, which recognised the right and duty of private revenge in cases of intentional homicide, laid down special rules for homicide by misfortune. He who killed another unawares and unwittingly might flee to a city of refuge, where he was protected against the avenger of blood as long as he remained there.[31] In ancient Rome the involuntary manslayer seems to have been exposed to the blood-feud until a law attributed to Numa ordained that he should atone for the deed by providing a ram to be sacrificed in his place.[32]

[Footnote 21: Kraft, in Steinmetz, Rechtsverhältnisse, p. 292.]

[Footnote 22: Bamler, quoted by Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 380.]

[Footnote 23: Fritsch, Die Eingeborenen Süd-Afrika's, p. 363.]

[Footnote 24: Gop[vc]evi['c], Oberalbanien und seine Liga, p. 327.]

[Footnote 25: Miklosich, 'Blutrache bei den Slaven,' in Denkschriften der kaiserl. Akademie der Wissensch. Philos.-histor. Classe, Vienna, xxxvi. 131.]

[Footnote 26: Leist, Græco-italische Rechtsgeschichte, p. 324. Ancient Laws of Ireland, iii. p. cxxiv. For the ancient Teutons, see infra, p. 226.]

[Footnote 27: de Landa, Relacion de las cosas de Yucatan, p. 134.]

[Footnote 28: Koran, iv. 94. Cf. Sachau, Muhammedanisches Recht nach Schafiitischer Lehre, p. 761 sq.]

[Footnote 29: Hanoteau and Letourneux, La Kabylie, iii. 68 sq.]

[Footnote 30: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 370.]

[Footnote 31: Deuteronomy, iv. 42. Numbers, xxxv. 11 sqq. Joshua, xx. 3 sqq.]

[Footnote 32: Servius, In Virgilii Bucolica, 43. Cf. von Jhering, Das Schuldmoment im römischen Privatrecht, p. 11.]

Among some peoples who accept compensation even for wilful murder, the blood-price is lower if life is taken unintentionally.[33]

[Footnote 33: Beverley, in Steinmetz, Rechtsverhältnisse, p. 215 (Wagogo). Dareste, Nouvelles études d'histoire du droit, p. 237 (Swanetians of the Caucasus).]

According to Bowdich, "a person accidentally killing another in Ahanta, pays 5 oz. of gold to the family, and defrays the burial customs. In the case of murder, it is 20 oz. of gold and a slave; or, he and his family become the slaves of the family of the deceased."[34] Ancient Irish law imposed an Eric fine for accidental or unintentional homicide, to be paid to the relatives of the dead man, whilst a double fine was due for

homicide where anger was shown, i.e., where probably there was what we should call "malice."[35]

[Footnote 34: Bowdich, Mission from Cape Castle to Ashantee, p. 258, n. [double dagger].]

[Footnote 35: Cherry, Growth of Criminal Law in Ancient Communities, p. 22.]

In the punishments inflicted by many savages, a similar distinction is made between intentional and accidental harm, although, at the same time, some degree of guilt is frequently imputed to persons who, in our opinion, are perfectly innocent.

Speaking of the West Australian aborigines, Sir G. Grey observes:--"If a native is slain by another wilfully, they kill the murderer, or any of his friends they can lay hands on. If a native kills another accidentally, he is punished according to the circumstances of the case." And the punishment may be severe enough. "For instance, if, in inflicting spear wounds as a punishment for some offence, one of the agents should spear the culprit through the thigh, and accidentally so injure the {222} femoral artery that he dies, the man who did so would have to submit to be speared through both thighs himself."[36] In New Guinea, according to Dr. Chalmers, murder is punished capitally, whereas a death caused by accident is expiated by a fine.[37] Among the Mpongwe, "except in the case of a chief or a very rich man, little or no difference is made between wilful murder, justifiable homicide, and accidental manslaughter."[38] Kafir law seems to demand no compensation for what is clearly proved to have been a strictly accidental injury to property, but the case is different in regard to accidental injuries to persons, if the injury be of a serious nature. Thus "it seems to make little or no distinction between wilful murder and any other kind of homicide; unless it be, perhaps, that in purely accidental homicide the full amount of the fine may not be so rigidly insisted upon."[39] Among the A-l[=u]r, in the case of accidental injuries, a compensation is paid to the injured party and a fine to the chief. Whilst the strict punishment for murder is death, the culprit is allowed to redeem himself if it cannot be proved that he committed the deed wilfully.[40] The Masai regard accidental homicide, or injury, as "the will of N'gai," "the Unknown," and "the elders arrange what compensation shall be paid to the injured person (if a male) or to the nearest relative. If a woman is killed by accident, all the killer's property becomes the property of the nearest relative."[41] The Eastern Central Africans, according to the Rev. D. Macdonald, "know the difference between an injury of accident and one of intention."[42] And so do the natives of Nossi-Bé and Mayotte, near Madagascar.[43]

[Footnote 36: Grey, Journals of Expeditions of Discovery in North-West and Western Australia, ii. 238 sq.]

[Footnote 37: Chalmers, Pioneering in New Guinea, p. 179.]

[Footnote 38: Burton, Two Trips to Gorilla Land, i. 105.]

[Footnote 39: Maclean, Compendium of Kafir Laws and Customs, pp. 113, 67, 60.]

[Footnote 40: Stuhlmann, Mit Emin Pascha ins Herz von Afrika, p. 524.]

[Footnote 41: Hinde, The Last of the Masai, p. 108.]

[Footnote 42: Macdonald, Africana, i. 11.]

[Footnote 43: Walter, in Steinmetz, Rechtsverhältnisse, p. 393.]

Nay, there are instances of uncivilised peoples who entirely excuse, or do not punish, a person for an injury which he has inflicted by mere accident, even though they may compel him to pay damages for involuntary destruction of property.

We are told that the Pennsylvania Indians "judge with calmness on all occasions, and decide with precision, or endeavour {223} to do so, between an accident and a wilful act; the first, they say, they are all liable to commit, and therefore it ought not to be

noticed, or punished; the second being a wilful or premeditated act, committed with a bad design, ought on the contrary to receive due punishment,"[44] Among some of the Marshall Islanders unintentional wrongs are punished only if the injured party be a person of note, for instance, a chief, or a member of a chief's family.[45] Among the Papuans of the Tami Islands, "accidental injuries are not punished. Generally the culprit confesses his deed, and makes an apology. If he has caused the destruction of some valuable, he has to repair the loss."[46] Among the Wadshagga there is no punishment for an accidental hurt; but if anybody's property has been damaged thereby, a compensation amounting to one half of the damage may be required.[47] The Hottentots do not nowadays punish accidents, even in the case of homicide.[48] Among the Washambala a person is held responsible only for such injuries as he has inflicted intentionally or caused by carelessness.[49] In some parts of West Africa, if a man, woman, or child, not knowing what he or she does, damages the property of another person, "native justice requires, and contains in itself, that if it can be proved the act was committed in ignorance that was not a culpable ignorance, the doer cannot be punished according to the law."[50]

[Footnote 44: Buchanan, North American Indians, p. 160 sq.]

[Footnote 45: Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 448.]

[Footnote 46: Bamler, quoted by Kohler, ibid. xiv. 381.]

[Footnote 47: Merker, quoted by Kohler, ibid. xv. 64.]

[Footnote 48: Kohler, ibid. xv. 353.]

[Footnote 49: Lang, in Steinmetz, Rechtsverhältnisse, p. 261.]

[Footnote 50: Miss Kingsley, in her Introduction to Dennett's Notes on the Folklore of the Fjort, p. xi.]

These instances of occasional discrimination in savage justice are particularly interesting in the face of the fact that, even among peoples who have attained a higher degree of culture, innocent persons are often punished by law for bringing about events without any fault of theirs.

It is a principle of the Chinese law that "all persons who kill or wound others purely by accident, shall be permitted to redeem themselves from the punishment of killing or wounding in an affray, by the payment in each case of a fine to the family of the person deceased or wounded."[51] But there are exceptions to this rule. Any {224} person who kills his father, mother, paternal grandfather or grandmother, and any wife who kills her husband's father, mother, paternal grandfather or grandmother, "purely by accident, shall still be punished with 100 blows and perpetual banishment to the distance of 3,000 lee. In the case of wounding purely by accident, the persons convicted thereof shall be punished with 100 blows and three years' banishment: in these cases, moreover, the parties shall not be permitted to redeem themselves from punishment by the payment of a fine, as usual in the ordinary cases of accident."[52] Again, slaves who accidentally kill their masters, "shall suffer death, by being strangled at the usual period."[53] It is also a characteristic provision of the Chinese law that an act of grace is necessary for relieving all those from punishment who have offended accidentally and inadvertently.[54]

[Footnote 51: Ta Tsing Leu Lee, sec. ccxcii. p. 314.]

[Footnote 52: Ibid. sec. cccxix. p. 347. Cf. ibid. sec. ccxcii. p. 314.]

[Footnote 53: Ibid. sec. cccxiv. p. 338.]

[Footnote 54: Ibid. sec. xvi. p. 18.]

It is said in the Laws of [Hv]ammurabi:--"If a man has struck a man in a quarrel, and has caused him a wound, that man shall swear 'I did not strike him knowing' and shall

answer for the doctor. If he has died of his blows, he shall swear, and if he be of gentle birth he shall pay half a mina of silver. If he be the son of a poor man, he shall pay one-third of a mina of silver."[55]

[Footnote 55: Laws of [Hv]ammurabi, 206 sqq.]

It has been observed that the purpose of the Hebrew law of sanctuary was not merely to protect the involuntary manslayer from blood-revenge, but at the same time to punish him and compel him to expiate the blood he has shed.[56] If he left the city of refuge before the death of the high-priest, the avenger of blood might kill him without incurring blood-guiltiness; and he was not permitted to purchase an earlier return to his possession with a money ransom.[57]

[Footnote 56: Goitein, Das Vergeltungsprincip im biblischen und talmudischen Strafrecht, p. 25 sq. Keil, Manual of Biblical Archæology, ii. 371.]

[Footnote 57: Numbers, xxxv. 26 sqq.]

According to the Laws of Manu, "he who damages the {225} goods of another, be it intentionally or unintentionally, shall give satisfaction to the owner and pay to the king a fine equal to the damage";[58] and various rites of expiation are prescribed for a person who kills a Brâhmana by accident,[59] whereas the intentional slaying of a Brâhmana is inexpiable.[60]

[Footnote 58: Laws of Manu, viii. 288.]

[Footnote 59: Ibid. xi. 73 sqq.]

[Footnote 60: Ibid. xi. 90. Gautama, xxi. 7. According to some authorities, however, the wilful slaying of a Brâhmana was expiable by a penance of greater severity (Bühler's note, in his translation of the 'Laws of Manu,' Sacred Books of the East, xxv. 449).]

Demosthenes praises the Athenian law for making the penalty of unintentional homicide less than that of intentional. The punishment for murder was death, from which, however, before the sentence was passed, the murderer was at liberty to escape by withdrawing from his country and remaining in perpetual exile. But he who was convicted of involuntary homicide had to leave the country only for some shorter time, until he had appeased the relatives of the deceased.[61] As will be seen subsequently, the real object of this law was not so much to punish the involuntary manslayer, as to save him from being persecuted by the dead man's ghost, and to rid the community of a pollution. However, the Athenian law does not represent the ideas of early times. As Dr. Farnell observes, the constitution and the legend about the foundation of the court at the Palladium, which was established to try cases of unintentional blood-shedding, shows that the ancient practice was susceptible of improvement.[62] Nor does the Roman law, which, in its developed shape, with such a remarkable consistency carried out the Cornelian principle, "in maleficiis voluntas spectatur non exitus,"[63] seem to have been equally discriminate in early times.[64] In the Law of the Twelve Tables there are still some faint traces left of the notion that expiation was required of a person who accidentally shed human blood.[65]

[Footnote 61: Demosthenes, Contra Aristocratem, 71 sq. p. 643 sq.]

[Footnote 62: Aristotle, De republica Atheniensium, 57. Farnell, Cults of the Greek States, i. 304.]

[Footnote 63: Digesta, xlviii. 8. 14.]

[Footnote 64: von Jhering, Das Schuldmoment im römischen Privatrecht, p. 16. Mommsen, Römisches Strafrecht, p. 85.]

[Footnote 65: Mommsen, op. cit. p. 85.]

{226} The principle of ancient Teutonic law was, "Qui inscienter peccat, scienter emendet"--a maxim laid down by the compiler of the so-called 'Laws of Henry I.,'[66] no

doubt translating an old English proverb.[67] In historic times, the law, distinguishing between vili and vadhi, treats intentional homicide as worse than unintentional. In one case there can, in the other there can not, be a legitimate feud; and whilst wilful manslaughter can be expiated only by wíte, as well as wer, the involuntary manslayer has to pay wer to the family of the dead, but no wíte to the authorities.[68] Yet the wer to be paid was not merely compensation for the loss sustained, as Wilda, misled by his enthusiasm for Teutonic law, has erroneously assumed;[69] it was punishment as well.[70] And the character of criminality attached to accidental homicide survived the system of wer. When homicide became a capital offence, homicide by misadventure was included in the law. However, the involuntary manslayer was not executed, but recommended to the "mercy" of the prince. This was the case in England in the later Middle Ages,[71] and in France still more recently.[72] And when the English law was altered, and the involuntary offender no longer was in need of mercy, he nevertheless continued to be treated as a criminal. He was punished with forfeiture of his goods. According to the rigour of the law such a forfeiture might have been exacted even in the year 1828, when the law was finally abolished after having fallen into desuetude in the course of the previous century.[73]

[Footnote 66: Leges Henrici I. xc. 11.]

[Footnote 67: Pollock and Maitland, History of the English Law before the Time of Edward I. i. 54.]

[Footnote 68: Wilda, op. cit. p. 545 sqq., 594. Idem, Deutsche Rechtsgeschichte, i. 165. Pollock and Maitland, op. cit. ii. 471.]

[Footnote 69: Wilda, op. cit. p. 578.]

[Footnote 70: Geyer, Die Lehre von der Nothwehr, p. 87 sq. Trummer Vorträge über Tortur, &c. i. 345. Brunner, Forschungen, p. 505 sq.]

[Footnote 71: Bracton, De Legibus et Consuetudinibus Angliæ, fol. 134, vol. ii. 382 sq.; fol. 104 b, vol. ii, 152 sq. Brunner, Forschungen, p. 494 sqq. Biener, Das englische Geschwornengericht, i. 120, 392. Pollock and Maitland, op. cit. ii. 479.]

[Footnote 72: Beaumanoir, Les coutumes du Beauvoisis, 69, vol. ii. 483. Esmein, Histoire de la procédure criminelle en France, p. 255.]

[Footnote 73: Stephen, History of the Criminal Law of England, iii. 77.]

If men at the earlier stages of civilisation generally {227} attach undue importance to the outward aspect of conduct, the same is still more the case with their gods.

The Tshi-speaking peoples of the Gold Coast believe that the god Sasabonsum "takes delight in destroying all those who have offended him, even though the offence may have been accidental and unintentional"; whereas, among the same people, it is the custom that even deaths resulting from accidents, not to speak of minor injuries, are compensated for by a sum of money.[74] Miss Kingsley says she is unable, from her own experience, to agree with Mr. Dennett's statement with reference to the Fjort, that ignorance would save the man who had eaten prohibited food. From what she knows, Merolla's story is correct: the man, though he eat in ignorance, dies or suffers severely. "It is true," she adds, "that one of the doctrines of African human law is that the person who offends in ignorance, that is not a culpable ignorance, cannot be punished; but this merciful dictum I have never found in spirit law. Therein if you offend, you suffer; unless you can appease the enraged spirit, neither ignorance nor intoxication is a feasible plea in extenuation."[75] The Omahas believe that to eat of the totem, even in ignorance, would cause sickness, not only to the eater, but also to his wife and children.[76]

[Footnote 74: Ellis, Tshi-speaking Peoples of the Gold Coast, pp. 35, 301.]

[Footnote 75: Miss Kingsley, in her Introduction to Dennett's Folklore of the Fjort, p. xxviii.]

[Footnote 76: Frazer, Totemism, p. 16.]

Speaking of the sacred animals of the ancient Egyptians, Herodotus says, "Should any one kill one of these beasts, if wilfully, death is the punishment; if by accident, he pays such fine as the priests choose to impose. But whoever kills an ibis or a hawk, whether wilfully or by accident, must necessarily be put to death."[77] According to the Chinese penal code, "whoever destroys or damages, whether intentionally or inadvertently, the altars, mounds, or terraces consecrated to the sacred and imperial rites, shall suffer 100 blows, and be perpetually banished to distance {228} of 2000 lee."[78] In these cases the punishment inflicted by human hands is obviously a reflection of the supposed anger of superhuman beings.

[Footnote 77: Herodotus, ii. 65. Cf. Pomponius Mela, 9.]

[Footnote 78: Ta Tsing Leu Lee, sec. clviii. p. 172.]

The Shintoist prays for forgiveness of errors which he has committed unknowingly.[79] According to the Vedic hymns, whoever with or without intention offends against the eternal ordinances of Varuna, the All-knowing and Sinless, arouses his anger, and is bound with the bonds of the god--with calamity, sickness, and death.[80] Forgiveness is besought of Varuna for sins that have been committed in unconsciousness;[81] even sleep occasions sin.[82] The singer Vasishtha is filled with pious grief, because daily against his will and without knowledge he offends the god and in ignorance violates his decree.[83] "All sages," say the Laws of Manu, "prescribe a penance for a sin unintentionally committed"; such a sin "is expiated by the recitation of Vedic texts, but that which men in their folly commit intentionally, by various special penances."[84] Among the present Hindus, "even in cases of accidental drinking of spirits through ignorance on the part of any of the three twice-born classes, nothing short of a repetition of the initial sacramentary rites, effecting a complete regeneration, is held sufficient to purge the sin."[85]

[Footnote 79: Selenka, Sonnige Welten, p. 210 sq.]

[Footnote 80: Cf. Kaegi, Rigveda, p. 66 sq.; Oldenberg, Die Religion des Veda, p. 289.]

[Footnote 81: Rig-Veda, v. 85. 8.]

[Footnote 82: Ibid. vii. 86. 6; x. 164. 3.]

[Footnote 83: Ibid. vii. 88. 6. Cf. Kaegi, op. cit. p. 68.]

[Footnote 84: Laws of Manu, xi. 45 sq. Cf. Vasishtha, 20.]

[Footnote 85: Rájendralála Mitra, Indo-Aryans, i. 393.]

In the Greek literature there are several instances of guilt being attached to the accidental transgression of some sacred law, the transgressor being perfectly unaware of the nature of his deed. Oedipus is the most famous example of this. Actaeon is punished for having seen Diana. Pausanias, the Spartan king, made sacrifice to Zeus Phyxius, to atone for the death of the maiden whom he had slain by misfortune.[86]

[Footnote 86: Farnell, op. cit. i. 72.]

The Babylonian psalmist, assuming that one of the {229} gods is angry with him because he is suffering pain, exclaims:--"The sin which I committed I know not. The transgression I committed I know not. The affliction which was my food--I know it not. The evil which trampled me down--I know it not. The lord in the wrath of his heart has regarded me; the god in the fierceness of his heart has punished me."[87] In another psalm it is said:--"He knows not his sin against the god, he knows not his transgression against the god and the goddess. Yet the god has smitten, the goddess has departed from him."[88]

[Footnote 87: Zimmern, Babylonische Busspsalmen, p. 63.]

[Footnote 88: Sayce, Hibbert Lectures on the Religion of the Ancient Babylonians, p. 505. Cf. Mürdter-Delitzsch, Geschichte Babyloniens und Assyriens, p. 38.]

So, also, the Hebrew psalmist cries out, "Who can understand his errors? cleanse thou me from secret faults."[89] Unintentional error, as Mr. Montefiore observes, would be as liable to incur divine punishment as the most voluntary crime, if it infringed the tolerably wide province in which the right or sanctity of Yahveh was involved.[90] Whilst a deliberate moral iniquity was punished under the penal law, a sin committed "through ignorance, in the holy things of the Lord," required a sin- or trespass-offering for its expiation.[91] Speaking of the developed sacrificial system of the Jews, Professor Moore remarks, "The general rule in the Mishna is that any transgression the penalty of which, if wilful, would be that the offender be cut off, requires, if committed in ignorance or through inadvertence, a [h.]a[t.][t.][=a]th [or sin-offering]; the catalogue of these transgressions ranges from incest and idolatry to eating the (internal) fat of animals and imitating the composition of the sacred incense, but does not include the commonest offences against morals."[92] The Rabbis also maintained that a false oath, even if made unconsciously, involves man in sin, and is punished as such.[93] {230} We meet with a similar opinion in mediæval Christianity. The principle laid down by St. Augustine,[94] and adopted by Canon Law,[95] that "ream linguam non facit, nisi mens rea," was not always acted upon. Various penitentials condemned to penance a person who, in giving evidence, swore to the best of his belief, in case his statement afterwards proved untrue.[96] In other cases, also, the Church prescribed penances for mere misfortunes. If a person killed another by pure accident, he had to do penance--in ordinary cases, according to most English penitentials, for one year,[97] according to various continental penitentials, for five[98] or seven[99] years; whereas, according to the Penitential of Pseudo-Theodore, he who accidentally killed his father or mother was to atone his deed with a penance of fifteen years,[100] and he who accidentally killed his son with a penance of twelve.[101] The Scotists even expressly declared that the external deed has a moral value of its own, which increases the goodness or badness of the agent's intention; and though this doctrine was opposed by Thomas Aquinas, Bonaventura, Suarez, and other leading theologians, it was nevertheless admitted by them that, according to the will of God, certain external deeds entail a certain accidental reward, the so-called aureola.[102] In some cases the secular law, also, punishes misadventure on religious grounds. Thus the Salic law treated with great severity any person who accidentally put fire to a church, although it imposed no penalty on other cases of {231} unintentional incendiary;[103] and even to this day the Russian criminal law prescribes penitence for homicide by misadventure, "in order to quiet the conscience of the culprit."[104] According to the Koran, he who kills a believer by mistake shall expiate his deed, not only by paying blood-money to the family of the dead (unless they remit it), but by setting free a believing slave; and as to him who cannot find the means, "let him fast for two consecutive months--a penance this from God."[105]

[Footnote 89: Psalms, xix. 12.]

[Footnote 90: Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 103. Cf. ibid. p. 515 sq.]

[Footnote 91: Leviticus, iv. 22 sqq.; v. 15 sqq. Numbers, xv. 24 sqq.]

[Footnote 92: Moore, 'Sacrifice,' in Cheyne and Black, Encyclopædia Biblica, iv. 4205.]

[Footnote 93: Montefiore, op. cit. p. 558.]

[Footnote 94: St. Augustine, Sermones, clxxx. 2 (Migne, Patrologiæ cursus, xxxviii. 973).]

[Footnote 95: Gratian, Decretum, ii. 22. 2. 3.]

[Footnote 96: P[oe]nitentiale Bedæ, v. 3 (Wasserschleben, Bussordnungen der abendländischen Kirche, p. 226). P[oe]nit. Egberti, vi. 3 (ibid. p. 238). P[oe]nit. Pseudo-Theodori, xxiv. 5 (ibid. p. 593).]

[Footnote 97: P[oe]nit. Theodori, i. 4. 7 (ibid. p. 188). P[oe]nit. Bedæ, iv. 5 (ibid. p. 225). P[oe]nit. Egberti, iv. 11 (ibid. p. 235). According to P[oe]nit. Pseudo-Theodori, xxi. 2 (ibid. p. 586), the penance was to last for five years.]

[Footnote 98: P[oe]nit. Hubertense, 2 (ibid. p. 377). P[oe]nit. Merseburgense, 2 (ibid. p. 391). P[oe]nit. Bobiense, 4 (ibid. p. 408). P[oe]nit. Vindobonense, 2 (ibid. p. 418). P[oe]nit. Cummeani, vi. 2 (ibid. p. 478). P[oe]nit. XXXV. Capitulornm, 1 (ibid. p. 506). P[oe]nit. Vigilanum, 27 (ibid. p. 529).]

[Footnote 99: P[oe]nit. Parisiense, 1 (ibid. p. 412). P[oe]nit. Floriacense, 2 (ibid. p. 424).]

[Footnote 100: P[oe]nit. Pseudo-Theodori, xxi. 18 (ibid. p. 588).]

[Footnote 101: P[oe]nit. Pseudo-Theodori, xxi. 19 (ibid. 588).]

[Footnote 102: Göpfert, Moraltheologie, i. 185.]

[Footnote 103: Lex Salica (Harold's text), 71. Brunner, Forschungen, p. 507, n. 1.]

[Footnote 104: Foinitzki, in Le droit criminel des états européens, edited by von Liszt, p. 531.]

[Footnote 105: Koran, iv. 94.]

How shall we explain all these facts? Do they faithfully represent ideas of moral responsibility? Do they indicate that, at the earlier stages of civilisation, the outward event as such, irrespectively of the will of the agent, is an object of moral blame?

Most of the statements which imply a perfect absence of discrimination between accident and intention, refer to the system of private redress. Under this system a personal injury is regarded as a matter which the injured party or his kin have to settle for themselves. It certainly does not allow them to treat the offender just as they please; as we have seen, it is more or less regulated by custom. But at the same time it makes considerable allowance for the personal feelings of the sufferer, and these feelings are apt to be neither impartial nor sufficiently discriminate. Whether, in a savage community, public opinion prescribes, or merely permits, revenge in cases of accidental injury, is a question which the ordinary observations of travellers leave unanswered. It is important to note that one of the first steps which early custom or law took towards a restriction of the blood-feud was to save the life of the involuntary manslayer. Moreover, in many cases where the system of revenge has been succeeded by punishment, the injured party may still have a voice in the matter. In Abyssinia, for instance, "a life for a life is the sentence passed upon the murderer; but, obtaining {232} the consent of the relatives of the deceased, he is authorised by law to purchase his pardon."[106] According to ancient Swedish law, an injury could not be treated as accidental unless the injured party acknowledged it as such.[107] In England, even in the days of Henry III., the king could not protect the manslayer from the suit of the dead man's kin, although he had granted him pardon on the score of misadventure.[108] Indeed, so recently as 1741, a royal order was made for a hanging in chains "on the petition of the relations of the deceased."[109] And to this day English criminal courts, when dealing with some slight offence, mitigate the punishment "because the prosecutor does not press the case," or even give him leave to settle the matter and withdraw the prosecution.[110]

[Footnote 106: Harris, Highlands of Æthiopia, ii, p. 94.]

[Footnote 107: von Amira, Nordgermanische Obligationenrecht, i. 382.]

[Footnote 108: Three Early Assize Rolls for the County of Northumberland, sæc. XIII, p. 98.]

[Footnote 109: Amos, Ruins of Time, p. 23.]

[Footnote 110: Kenny, Outlines of Criminal Law, p. 23.]

In the case of accidental homicide, deference may also have to be shown for the supposed feelings of the dead man's ghost, which, angry and bloodless, is craving for revenge and thirsting for blood. To leave its desires ungratified would be both dangerous and unmerciful. That this has something to do with the rigid demand of life for life in the case of homicide by misadventure seems all the more likely as in some instances when the involuntary manslayer is pardoned, other blood is to be shed instead of his. Among the Yao and Wayisa, near Lake Nyassa, it is the custom "by way of propitiation to give up a slave or some relative of the criminal's, to 'go along with the one who was slain,' and this seems to be invariably done when one is killed by accident, in which case the slayer may escape, the deputy taking as it were his place."[111] We may assume that a similar idea underlies the ancient Roman law which provided a ram to be sacrificed in the place of the involuntary manslayer.

[Footnote 111: Macdonald, in Jour. Anthr. Inst. xii. 108.]

But the dead man's ghost not only persecutes his own family if **neglectful of their duty, it also attacks the manslayer {233} and cleaves to him like a miasma. The manslayer is consequently regarded as unclean, and has, both for his own sake and for the sake of the community in which he lives, to undergo some ceremony of purification in order to rid himself of the dangerous and infectious pollution. This notion will be illustrated in a following chapter. In the present connection I merely desire to point out that the pollution is there, whether the shedding of blood was intentional or accidental. And, as will be shown, though this state of uncleanness does not intrinsically involve guilt, it easily becomes a cause of moral disapproval, whilst the ceremony of purification is apt to be looked upon in the light of punishment. We shall also find that the notion of a persecuting ghost may be replaced by the notion of an avenging god, it being a fact of common occurrence that the doings or functions of one mysterious being are transferred to another. We shall, finally, see that the infection of uncleanness is shunned by gods even more than it is shunned by men; and this largely helps to explain the attitude of religion towards unintentional and unforeseen shedding of human blood.

There are other, more general reasons for the want of discrimination often displayed by religion in regard to the accidental transgression of a religious law. When a thing is taboo in the strict sense of the word, it is supposed to be charged with mysterious energy which will injure or destroy the person who eats or touches the forbidden thing, whether he does so wilfully or by mistake. As Professor Jevons correctly observes, "the action of taboo is always mechanical; contact with the tabooed object communicates the taboo infection as certainly as contact with water communicates moisture. . . . The intentions of the taboo-breaker have no effect upon the action of the taboo; he may touch in ignorance, or for the benefit of the person he touches, but he is tabooed as surely as if his motive were irreverent or his action hostile."[112] So, also, according to primitive notions, the effect of a curse or an {234} oath is purely mechanical; hence a person who swears falsely in ignorance exposes himself to no less danger than a person who perjures himself knowingly. As regards religious offences in the strictest sense of the term--that is, offences against some god which are supposed to arouse his resentment--it should be remembered that, just as a man who is hurt is unable to judge on the matter as coolly as does the community at large, so a god whose ordinances are transgressed is thought to be less discriminating in his anger than a disinterested human

judge, and, consequently, more apt to be influenced by the external event. And where nearly every calamity is regarded as a divine punishment, a person who is suffering without knowing what sin he has committed, naturally infers that a god is punishing him for some secret fault.

[Footnote 112: Jevons, Introduction to the History of Religion, p. 91.]

Thus it may be that, in the point which we are discussing, as in various other respects, the religious beliefs of a people do not faithfully represent their general notions of moral responsibility. It is profoundly wrong to assume, from the legend of Oedipus and other similar cases, that the ancient Greeks, in general, held a person "equally responsible for an accident which occurs to him, and for an act of which the agent is aware." Even the transgression of a sacred law, when committed in ignorance, seems to have excited pitiful horror rather than moral indignation. Oedipus had killed his father in self-defence, and married his mother, perfectly ignorant of his relation to them. The gods punished the Thebans with pestilence for harbouring such a wretch on their soil. But when "time that sees all, found him out in his unwitting sin," it was not blame, but terror and deep compassion for the unhappy man that, according to the tragedian,[113] spoke from the lips of the people. Moreover, in the latter tragedy Oedipus persistently vindicates his innocence:--"Whatever I have done was done unwittingly"--"Before the law I have no guilt." And, addressing himself to Creon, who has accused him of parricide and incest, he {235} exclaims:--"O shameless soul, where, thinkest thou, falls this thy taunt,--on my age, or on thine own? Bloodshed--incest --misery--all this thy lips have launched against me,--all this that I have borne, woe is me! by no choice of mine: for such was the pleasure of the gods, wroth, haply, with the race from of old. . . Tell me, now, --if, by voice of oracle, some divine doom was coming on my sire, that he should die by a son's hand, how couldst thou justly reproach me therewith, who was then unborn, whom no sire had yet begotten, no mother's womb conceived? And if, when born to woe--as I was born--I met my sire in strife, and slew him, all ignorant what I was doing, and to whom,--how couldst thou justly blame the unknowing deed?[114] Never was a more pathetic appeal made to the court of Justice from the indiscriminate verdict of angry gods.

[Footnote 113: Sophocles, [OE]dipus Tyrannus.]

[Footnote 114: Idem, [OE]dipus Coloneus, 960 sqq. (Jebb's translation, p. 155).]

Whilst the grossest want of discrimination may thus be explained from revengeful feelings and superstitious beliefs, there still remain a multitude of cases which must be regarded as genuine expressions of moral indignation. As to these, it should, first, be remembered that even the reflecting moral consciousness may hold a person blamable for the unintentional and unforeseen infliction of an injury, namely, in cases where it assumes want of proper foresight. Now, as we know, it is often difficult enough to discern whether, or to what extent, an unintended injury is due to carelessness on the part of the agent; sometimes even it is no easy thing to tell whether an injury was intended or not. It is not to be expected, then, that distinctions of so subtle a nature should be properly made by the uncultured mind, and least of all is it to be expected that such distinctions should be embodied in early custom and law, which are based on average cases and allow of no minute individualisation. It has been observed that the roughness of Teutonic justice may be partly explained from the difficulty in getting any proof of intention or of its absence, from the lack of any proper distinctions between {236} misadventure and carelessness, and from the fact that the so-called misadventures of early times covered many a blameworthy act.[115] And all this holds good not merely of the ancient Teutons. It may further be said that the more defective the power of

discrimination, the greater is the tendency to presume guilt. In Morocco a man who runs away after killing another is presumed to have committed the deed intentionally, however innocent he really may be. Among the Teutons the presumption was always against the manslayer; he had to proclaim what he had done, and to prove that the deed was not intended[116]--unless, indeed, the misadventure belonged to a certain type of injuries which by their very nature entailed no guilt. For instance, if a man carried a spear level on his shoulder and another ran upon the point, he was free from blame; whereas, if harm ensued by pure accident from a distinct act, the agent was liable.[117] As von Amira remarks, the Swedish notion of vadhaværk was not a merely negative conception, but implied that there was danger connected with the act.[118]

[Footnote 115: Pollock and Maitland, op. cit. i. 55; ii. 475, 483. von Amira, Nordgermanisches Obligationenrecht, i. 377 sq.]

[Footnote 116: Wilda, op. cit. i. 345. Brunner, Forschungen, p. 500 sq. Pollock and Maitland, op. cit. ii. 471.]

[Footnote 117: Wilda, op. cit. p. 584. Trummer, op. cit. i. 427. Brunner, Forschungen, p. 499 sq. von Amira, 'Recht,' in Paul's Grundriss der germanischen Philologie, ii. pt. ii. 172. Pollock and Maitland, op. cit. i. 53 sq.]

[Footnote 118: von Amira, Nordgermanisches Obligationenrecht, i. 377.]

Where the distinction between guilt and innocence is difficult to draw, it may be wise policy to presume guilt. According to Sir R. Burton, the Mpongwe jurists say that little or no difference is generally made between wilful murder and accidental manslaughter in order that people should be more careful;[119] and a similar idea may lie at the bottom of the Dahoman law which punishes capitally any person whose house takes fire, even if it happens accidentally.[120] But the presumption of guilt is not only, nor in the first place, owing to considerations of social utility, combined with a reckless indifference to undeserved suffering. {237} The unreflecting mind is shocked by the harm done, and cares little for the rest. It does not press the question whether the harm was caused by the agent's will or not. It does not make any serious attempt to separate the external event from the will, and it is inclined to assume that there is a coincidence between the two. This is not altogether bad psychology since, as a rule, men will what they do. "Le fait juge l'homme," says an old French proverb; and in morals, also, "the tree is known by the fruit." However, there are cases of injuries in which not even uncivilised men can fail to discover, at once, the absence of any evil intention. This certainly does not mean that the injurer escapes all censure. Every feeling of pain, sympathetic pain included, which is caused by a living being, has a certain tendency to give rise to an aggressive impulse towards its cause; hence savages, even though they distinguish between intentional and unintentional harm, are inclined to impute some degree of guilt to any person who involuntarily commits a forbidden deed, though he be in reality quite innocent. But the reason for this is only want of due reflection. If it is clearly understood that a certain event is the result of merely external circumstances, that it was neither intended by the agent nor could have been foreseen by him, in other words, that it in no way was caused by his will--then there could be no moral indignation at all. It would be simply absurd to suppose that an outward event as such, assumed to be absolutely unconnected with any defect of will, could ever give rise to moral blame. Such an event could not even call forth a feeling of revenge. Sudden anger itself cools down when it appears that the cause of the inflicted pain was a mere accident. Even a dog, as has been observed, distinguishes between being stumbled over and being kicked.

[Footnote 119: Burton, Two Trips to Gorilla Land, i. 105.]

[Footnote 120: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 224.]

That the indiscriminate attitude of early custom and law towards accidental injuries does not imply any difference in principle between the enlightened and unenlightened moral consciousness as regards the subject of moral valuation, {238} becomes perfectly obvious when we consider what a great influence the outward event exercises upon moral estimates even among ourselves. "The world judges by the event, and not by the design," says Adam Smith. "Everybody agrees to the general maxim, that as the event does not depend on the agent, it ought to have no influence upon our sentiments, with regard to the merit or propriety of his conduct. But when we come to particulars, we find that our sentiments are scarce in any one instance exactly conformable to what this equitable maxim would direct."[121] Even in the criminal laws of civilised nations chance still plays a prominent part. According to the present law of England, though a person is not criminally liable for the involuntary and unforeseen consequences of acts which are themselves permissible, the case is different if he commits an act which is wrong and criminal,[122] or, as it seems, even if he commits an act which is wrong without being forbidden by law.[123] Thus death caused unintentionally is regarded as murder, if it takes place within a year and a day[124] as the result of an unlawful act which amounts to a felony.[125] For instance, a person kills another accidentally by shooting at a domestic fowl with intent to steal it, and he will probably be convicted of murder.[126] Again, a near-sighted man drives at a rapid rate, sitting at the bottom of his cart, and thereby causes the death of a foot-passenger; he is guilty of manslaughter.[127] A man recklessly and wantonly throws a lighted match into a haystack, careless whether it take fire or not, and so burns down the stack; his crime is arson. But if he did not intend to throw the lighted match on the haystack, he would probably not be guilty of any offence at all, "unless death was caused, in which case he would be guilty of manslaughter."[128] Even if the unintended death is to some {239} extent owing to the negligence of the injured party himself, it may be laid to the charge of the injurer. This at all events was the law in Hale's time, "If a man," he says, "receives a wound, which is not in itself mortal, but either for want of helpful applications, or neglect thereof, it turns to a gangrene, or a fever, and that gangrene or fever be the immediate cause of his death, yet, this is murder or manslaughter in him that gave the stroke or wound."[129] So far as I know, the severity of the English law on unintentional homicide--which, in fact, is a survival of ancient Teutonic law[130]--is without a parallel in the European legislation of the present day. Both the French[131] and the German[132] laws are much less severe; and so is the Ottoman Penal Code,[133] and Muhammedan law in general.[134] Yet the unintended deadly consequence of a criminal act always affects the punishment more or less.

[Footnote 121: Adam Smith, Theory of Moral Sentiments, p. 152.]

[Footnote 122: According to Harris (Principles of the Criminal Law, p. 156), the act should be a malum in se, not merely a malum quia prohibitum.]

[Footnote 123: Kenny, op. cit. p. 41.]

[Footnote 124: Stephen, History of the Criminal Law of England, iii. 8.]

[Footnote 125: Ibid. iii. 22.]

[Footnote 126: Ibid. iii. 83.]

[Footnote 127: Harris, op. cit. p. 157.]

[Footnote 128: Stephen, op. cit. ii. 113.]

[Footnote 129: Hale, History of the Pleas of the Crown, i. 428.]

[Footnote 130: Lex Wisigothorum, vi. 5. 6: "Si dum quis calce, vel pugno, aut quacumque percussione injuriam conatur inferre, homicidii extiterit occasio, pro homicidio puniatur."]

[Footnote 131: Code Pénal, art. 309.]

[Footnote 132: Strafgesetzbuch, art. 226.]

[Footnote 133: Ottoman Penal Code, art. 177. Cf. ibid. art. 174.]

[Footnote 134: Sachau, op. cit. p. 761 sq.]

I presume that nobody after due deliberation would maintain that the moral guilt of the offender is enhanced by the death of him whom he involuntarily happened to kill. Sir James Stephen, nevertheless, makes an attempt to defend, from a moral point of view, the severe English law on the subject, which he thinks "is much to be preferred to the law of France." He asks, "Is there anything to choose morally between the man who violently stabs another in the chest with the definite intention of killing him, and a man who stabs another in the chest with no definite intention at all as to the victim's life or death, but with a feeling of indifference whether he lives or dies?"[135] Perhaps not. But I venture to maintain that there is a considerable moral difference between the man who shoots at another with the definite intention of killing him, and the man who, firing at another's chickens, with the intention of stealing them, accidentally kills the owner whom {240} he does not see. It will perhaps be argued that the law has a utilitarian purpose, its object being to make people more careful. But if this were the case one would expect that the law should punish with equal severity acts which involve the same degree of danger, and which result in similar injuries. To fire at a sparrow may be as dangerous to people's lives as to fire at another person's chicken, and, in the latter case, the danger is hardly increased by the intention to steal the chicken. I take the truth to be this. The degree of punishment corresponds to the degree of indignation aroused by the deed. Public imagination is shocked by the actual event. The agent, being guilty either of criminal intention, or of gross disregard of other people's interests, or of criminal heedlessness, is a proper object of punishment. Owing to that want of discrimination which characterises the popular mind, his guilt is exaggerated on account of the grave consequences of his act; and the result is that he is punished not only for the fault of his will, but for his bad luck as well. Sir James Stephen seems to admit this, when saying that the shock which the offence gives to the public feeling requires that the offender should himself suffer "a full equivalent for what he has inflicted," from which "he ought to be excused only on grounds capable of being understood by the commonest and most vulgar minds."[136] Though thoroughly dissenting from the opinion that criminal law should try to gratify the feelings of "the commonest and most vulgar minds," I think that, as a matter of fact, it is not much above their standard of justice, being in the main an expression of public sentiments.

[Footnote 135: Stephen, op. cit. iii. 91 sq.]

[Footnote 136: Ibid. iii. 91.]

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In the cases which we have hitherto considered the external event which a person brings about involuntarily, either makes him liable to punishment though he really is free from guilt, or increases his punishment beyond the limits of his guilt. But the influence of chance also shows {241} itself in the opposite way. A person who is guilty of carelessness generally escapes all punishment if no injurious result follows, and an unsuccessful attempt to commit a criminal act, if punished at all, is, as a rule, punished much less severely than the accomplished act.

The Hottentots nowadays punish attempt, but only leniently.[137] The Wadshagga punish it less severely than the accomplished act.[138] Among some of the Marshall Islanders it is not punished at all.[139] The same holds good of the Ossetes[140] and Swanetians[141] of the Caucasus, as also of ancient Russian law.[142] The Teutons, as

a general rule, had no punishment for him who tried to do harm, but failed; and if they did punish an unsuccessful attempt, the penalty was out of proportion lenient.[143] This feature of ancient Teutonic law has had a lasting effect upon European legislation, largely through the influence it exercised upon the Italian jurists of the Middle Ages, [144] whose theories laid the foundation of modern laws and doctrines on attempt. In conformity with the Roman law, they held attempts to commit crimes to be punishable, and in atrocious cases they even admitted that the attempt might be subject to the same punishment as the accomplished crime. But their general theory was that it should be punished less severely, and that the penalty should be lenient in proportion as the actual deed was remote from the act intended.[145] These views were generally adopted by the later legislation. Among present European lawbooks, the French Code Pénal[146] is almost the only one that punishes an attempt {242} with the same severity as the finished crime.[147] And the French law on the subject is of modern origin; before the year IV. the present rule was applied only to the conatus proximus in a few specified cases of a very heinous character.[148]

[Footnote 137: Kohler, in Zeitschr. f. vergl. Rechtswiss. xv. 353.]

[Footnote 138: Merker, quoted by Kohler, ibid. xv. 63.]

[Footnote 139: Kohler, ibid. xiv. 418.]

[Footnote 140: Kovalewsky, Coutume contemporaine, p. 296 sq.]

[Footnote 141: Dareste, Nouvelles études d'histoire du droit, p. 237.]

[Footnote 142: Kovalewsky, op. cit. pp. 291, 299.]

[Footnote 143: Wilda, op. cit. p. 598 sqq. Zachariä, Die Lehre vom Versuche der Verbrechen, i. 164 sqq.; ii. 130 sq. Brunner, Deutsche Rechtsgeschichte, ii. 558 sqq. Pollock and Maitland, ii. 475, 509.]

[Footnote 144: Seeger, Versuch der Verbrechen in der Wissenschaft des Mittelalters, p. 8.]

[Footnote 145: Zachariä, op. cit. i. 169; ii. 141. von Feuerbach-Mittermaier, Lehrbuch des Peinlichen Rechts, p. 74.]

[Footnote 146: Code Pénal, art. 2: "Toute tentative de crime qui aura été manifestée par un commencement d'exécution, si elle n'a été suspendue ou si elle n'a manqué son effet que par des circonstances indépendantes de la volonté de son auteur, est considérée comme le crime même."]

[Footnote 147: Chauveau and Hélie, Théorie du Code Pénal, i. 347 sq.]

[Footnote 148: Ibid. i. 337 sq.]

[Footnote 149: Digesta, xlviii. 8. 7.]

[Footnote 150: Seeger, Versuch der Verbrechen nach römischcm Recht, pp. 1, 2, 49. Idem, Versuch der Verbrechen in der Wissenschaft des Mittelalters, p. 9. Mommsen, Römisches Strafrecht, p. 97 sq. Apuleius, Florida, iv. 20:--"In maleficiis etiam cogitata scelera non perfecta adhuc vindicantur, cruenta mente, pura manu. Ergo sicut ad poenam sufficit meditari punienda."]

[Footnote 151: Ancient Laws of Ireland, iii. pp. cviii. sq. 139.]

[Footnote 152: Cherry, Growth of Criminal Law in Ancient Communities, p. 32.]

[Footnote 153: Stephen, op. cit. ii. 222 sq. Thomas Smith, Common-wealth of England, p. 194 sq.]

{243} The question, which attempts should be punished, and even the elementary question, what constitutes an attempt, have been answered differently by different jurists and legislators.[154] In England all attempts whatever to commit indictable offences, whether felonies or misdemeanours, are punishable by law.[155] The French[156] and German[157] codes, on the other hand, do not punish, except in a

few particular cases, attempts to commit délits or Verbrechen, that is, what the English jurists would describe as misdemeanours.

[Footnote 154: See Cohn, Zur Lehre vom versuchten und unvollendeten Verbrechen, i. 6 sqq.]

[Footnote 155: Stephen, op. cit. ii. 224.]

[Footnote 156: Code Pénal art. 3.]

[Footnote 157: Strafgesetzbuch, art. 43.]

Again, should a person be punished for attempting to commit a crime in a manner in which success is physically impossible, as if he attempts to steal from a pocket which is empty, or puts into a cup pounded sugar which he believes to be arsenic? This question has given rise to a whole literature. Seneca's statement that "he who mixes a sleeping draught, believing it to be poison, is a poisoner,"[158] seems to have had the support of Roman law.[159] In England, some time ago, the man who attempted to pick an empty pocket, was not held liable for an attempt to steal;[160] but this case has been overruled, and it appears now to be the law that an indictment would lie for such an attempt.[161] According to the French[162] and Italian[163] codes, it would not be punished, according to some German law-books, it would;[164] whilst the Strafgesetzbuch contains no special provisions for attempts of a similar character.

[Footnote 158: Seneca, De beneficiis, v. 13. Cf. Idem, Ad Serenum, 7.]

[Footnote 159: Seeger, Versuch nach römischem Recht, p. 30.]

[Footnote 160: Stephen, op. cit. ii. 225.]

[Footnote 161: Harris, Principles of the Criminal Law, p. 209 n. c.]

[Footnote 162: Stephen, op. cit. ii. 225.]

[Footnote 163: Alimena, in Le droit criminel des états européens, ed. by von Liszt, p. 123.]

[Footnote 164: von Feuerbach-Mittermaier, op. cit. p. 76. Cohn, op. cit. i. 14.]

Finally there are different rules as to the stage at which an attempt begins to be criminal, or as to the distinction between attempts and acts of preparation. The Romans, it is supposed, drew no such distinction.[165] The French law regards as permissible acts of preparation many {244} things which in England would be punished as attempts.[166] In England lighting a match with intent to set fire to a haystack has been held to amount to a criminal attempt to burn it, although the defendant blew out the match on seeing that he was watched. But it was said in the same case that, if he had gone no further than to buy a box of matches for the purpose, he would not have been liable, the act being too remote from the offence to be criminal.[167] "Liability will not begin until the offender has done some act which not only manifests his mens rea but also goes some way towards carrying it out."[168]

[Footnote 165: Seeger, Versuch nach römischem Recht, p. 49.]

[Footnote 166: Chauveau and Hélie, op. cit. i. 357 sqq. Stephen, op. cit. ii. 226.]

[Footnote 167: Holmes, Common Law. p. 67 sq.]

[Footnote 168: Kenny, op. cit. p. 79.]

If we go a step further, we come to designs unaccompanied by any attempt whatever to realise them. The laws of all countries agree as to the principle that an outward event is requisite for the infliction of punishment. "Cogitationis p[oe]nam nemo patitur."[169]

[Footnote 169: Digesta, xlviii. 19. 18.]

This fact again illustrates the influence which external deeds exercise upon the moral feelings of men. In the average man moral emotions are hardly ever called into existence by calm and penetrating reflection. There are certain phenomena which for some reason or other are apt to arouse in him such emotions, but he does not seek for

them. They must force themselves upon his mind, and the more vigorously they do so, the stronger are the emotions they excite. Nothing makes a greater impression on him than facts which are perceptible by the senses. He will admit that an intention, or even a mere wish, to do something wrong is wrong by itself, but an outward event is generally needed for shaking him up. This, I think, is the original reason why persons have not been punished for intentions unaccompanied by external deeds. No doubt, the principle that "the thought of man shall not be tried," is strongly supported by the fact that, as a mediæval writer puts it, "the devil himself knoweth not the thought of man."[170] But considering how ready people {245} have been to presume guilt in cases of unintentional injuries, it seems very incredible that they originally refrained from punishing bare intentions merely on account of insufficient evidence. Indeed, as an exception to the rule, in a few cases when the crime designed is regarded with extreme horror, the very intention may give such a shock to public imagination as to call for punishment.

[Footnote 170: Quoted by Pollock and Maitland, op. cit. ii. 474.]

According to Chinese law, "any person convicted of a design to kill his or her father or mother, grandfather or grandmother, whether by the father's or mother's side; and any woman convicted of a design to kill her husband, husband's father or mother, grandfather or grandmother, shall, whether a blow is, or is not struck in consequence, suffer death by being beheaded."[171] This exceptional law obviously owes its origin to the extreme reverence in which parents and ancestors are held by the Chinese, and to the wife's subjection to her husband. In mediæval laws referring to heresy we have another instance of punishment being inflicted for a mere state of mind without any corresponding act. According to Julius Clarus, this exception to the rule is due to the fact that the crime of heresy itself consists in "sola mentis cogitatione."[172] But the real reason why the law in this case troubled itself about men's thoughts, and even allowed them to be put on their trial for their tacit opinions on bare suspicion, is the detestation in which heresy was held and the extreme attention it attracted. By all this, of course, I do not mean to deny that a judicious and enlightened legislator may find other grounds for taking no notice of mere intentions than their inability to arouse public indignation. I only speak of matters of fact.

[Footnote 171: Ta Tsing Leu Lee, sec. cclxxxiv. p. 305.]

[Footnote 172: Julius Clarus, Practica Criminalis, qu. 91 (Opera omnia, ii. 625).]

Again, as regards acts of preparation and many cases of unsuccessful attempts, it may be said that the agent perhaps would have altered his mind before he came to the point, or that the failure of his attempt was possibly due {246} to a change of intention in the last moment.[173] But there are innumerable cases in which the attempt, with no less certainty than the accomplished crime, displays a criminal intention which is final. And it is particularly instructive to note that, among the very peoples who treat unintentional injuries with the greatest severity, unsuccessful attempts are treated with the greatest leniency. This is well illustrated by a comparison between Teutonic and Roman law; in either case the former chiefly looks at the event, the latter chiefly at the intention of the agent. If there is no punishment for a bare attempt to commit a crime, that is because such an attempt makes no impression on the public. If an attempt is punished more heavily according as it is more advanced, that is because it calls forth greater indignation in proportion as it comes near to the crime intended. And if even the conatus proximus is punished with less severity than the accomplished crime, that is because the indignation it evokes is less. This explanation is corroborated by concessions made by theorisers who have in vain endeavoured to find more rational

grounds for existing laws on attempt. They have ultimately found it necessary to resort to phrases such as "the natural sense of justice," or to appeal to the feelings of the multitude.[174] {247} M. Rossi observes, "Nous pensons que le sens commun et la conscience publique ont constamment tenu le même langage. 'Le délit n'a pas été consommé, donc la punition doit être moindre.' Cette idée de proportion matérielle, ce sentiment de justice, grossière j'en conviens, est naturel à l'homme."[175] This is the view taken by the unreflecting moral consciousness. To him whose feelings are tempered by thought, "a man," as Seneca says, "is no less a brigand, because his sword becomes entangled in his victim's clothes, and misses its mark."[176]

[Footnote 173: As a rule, the man who voluntarily desists from the attempt to commit a crime would not be punished at all (see Seeger, Versuch nach römischem Recht, p. 50; Charles V.'s Peinliche Gerichts Ordnung, art. 178; the French Code Pénal, art. 2; the Italian Codice Penale, art. 61; Finger, Compendium des österreichischen Rechtes--Strafrecht, i. 181; and, for various German laws, Zachariä, op. cit. ii. 311 sq., and Cohn, op. cit. i. 12 sq.), or he would be punished more leniently than if there had been no such desistance (Zachariä, ii. 239, sqq. Cohn, i. 12 sq.). On this subject see also Herzog, Rücktritt vom Versuch und Thätige Reue, passim.]

[Footnote 174: Lelièvre, De conatu delinquendi, p. 361 (quoted by Zachariä, op. cit. ii. 66, n. 2): "Ceterum libenter fateor, me potius sentire aliquam necessitatem paululum levius in perfectum crimen ac in maleficium consummatum animadvertendi, quam reddere posse claram necessitates rationem." Abegg, Die verschiedenen Strafrechtstheorieen, p. 65: "Für uns folgt aber jene nothwendige Beobachtung der concreten Unterschiede, in dem Gebiete der Erscheinung, nach der aus dem Gerechtigkeitsprincipe abgeleiteten Regel, dass Jeder für seine That, und was er verdient habe, leiden solle." Zachariä, op. cit. ii. 51:--"So macht sich in dem natürlichen Gerechtigkeits-Gefühl des Einzelnen und des ganzen Volkes auch von selbst die Unterscheidung zwischen der Strafe des vollendeten und der des blos versuchten Verbrechens geltend. . . . Es kann freilich seyn, dass der grösste Theil der Menschen für ein solches natürliches Gefühl keine Gründe anzugeben vermag; allein das Strafrecht, welches ja gerade auf die grosse Menge zu wirken hat, kann dessenungeachtet solche unwillkürlich im Volke sich geltend machende Ansichten nicht unberücksichtigt lassen." Cf. also Finger, op. cit. i. 177.]

[Footnote 175: Rossi, Traité de droit pénal, ii, 318.]

[Footnote 176: Seneca, Ad Serenum, 7.]

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In the same way as moral indignation, is moral approval influenced by external events. Though we would not praise a person for some deed of his which we clearly recognise to reflect no merit on his will, the benefits which result from a good act easily induce us to exaggerate the goodness of the agent. On the other hand, it is success alone that confers upon a man the full reward which he deserves; good intentions without corresponding deeds meet with little applause even when the failure is due to mere misfortune. "In our real feeling or sentiment," Hume observes, "we cannot help paying a greater regard to one whose station, joined to virtue, renders him really useful to society, than to one who exerts the social virtues only in good intentions and benevolent affections."

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It is thus only from want of due reflection that moral judgments are influenced by outward deeds. Owing to its very nature, the moral consciousness, when sufficiently influenced by thought, regards the will as the only proper object of moral disapproval or moral praise. That moral qualities are internal, is not an invention of any particular

moralist or any particular religion; it has been recognised by thoughtful men in many different countries and different {248} ages. "He that is pure in heart is the truest priest," said Buddha.[177] In the Taouist work, 'Kan ying peen,' it is written:--"If you form in your heart a good intention, although you may not have done any good, the good spirits follow you. If you form in your heart a bad intention, although you may not have done any harm, the evil spirits follow you."[178] According to the Thâi-Shang, mere wishes are sufficient to constitute badness.[179] One of the Pahlavi texts puts the following words into the mouth of the Spirit of Wisdom:--"To be grateful in the world, and to wish happiness for every one; this is greater and better than every good work."[180] God, says the Koran, "will not catch you up for a casual word in your oaths, but He will catch you up for what your hearts have earned."[181] According to the Rabbis, the thought of sin is worse than sin, and an unchaste thought is a "wicked thing."[182] It was an ancient Mexican maxim that "he who looks too curiously on a woman commits adultery with his eyes"[183]--a striking parallel to the passage in St. Matthew v. 28. "Voluntas remuneratur, non opus," says the Canonist. "Licet gladio non occidat, voluntate tamen interficit." "Non ideo minus delinquit, cui sola deest facultas."[184]

[Footnote 177: Hopkins, Religions of India, p. 319.]

[Footnote 178: Douglas, Confucianism and Taouism, p. 270.]

[Footnote 179: Thâi-Shang, 4.]

[Footnote 180: Dînâ-î-Maînôgî Khirad, lxiii. 3 sqq. Cf. ibid. i. 10, where it is said that the good work which a man does unwittingly is little of a good work, though the sin which a man commits unwittingly amounts to a sin in its origin.]

[Footnote 181: Koran, ii. 225. Cf. Ameer Ali, Ethics of Islâm, p. 26.]

[Footnote 182: Schechter, in Montefiore, op. cit. p. 558. Cf. Deutsch, Literary Remains, p. 52.]

[Footnote 183: Sahagun, Historia general de las cosas de Nueva España, vi. 22, vol. ii. 147: "Dice el refran que el que curiosamente mira á la muger adultéra con la vista."]

[Footnote 184: Gratian, Decretum, ii. 33. 3. 25, 30, 29.]

Chapter X — Agents Under Intellectual Disability

WE hold an agent responsible not only for his intention, but for any known concomitant of his act, as also for any such unknown concomitant of it as we attribute to want of due attention. But for anything which he could not be aware of he is not responsible. Hence certain classes of agents--animals, children, idiots, madmen--are totally or partially exempted from moral blame and legal punishment.

Though animals are undoubtedly capable of acting, we do not regard them as proper objects of moral indignation. The reason for this is not merely the very limited scope of their volitions and their inability to foresee consequences of their acts, since these considerations could only restrict their responsibility within correspondingly narrow limits. Their total irresponsibility rests on the presumption that they are incapable of recognising any act of theirs as right or wrong. If the concomitant of an act is imputable to the agent only in so far as he could know it, it is obvious that no act is wrong which the agent could not know to be wrong.

It is a familiar fact that, by discipline, we may teach domesticated animals to live up to a certain standard of behaviour, but this by no means implies that we awake in them moral feelings. When some writers credit dogs and apes with a conscience,[1] we must

remember that an {250} observer's inference is not the same as an observed fact.[2] It seems that the so-called conscience in animals is nothing more than an association in the animal's mind between the performance of a given act and the occurrence of certain consequences, together with a fear of those consequences.[3]

[Footnote 1: Romanes, Mental Evolution in Animals, p. 352. Perty, Seelenleben der Thiere, p. 67. Brehm, From North Pole to Equator, p. 298.]

[Footnote 2: Cf. Lloyd Morgan, Animal Life and Intelligence, p. 399.]

[Footnote 3: Cf. ibid. p. 405.]

The following is one of the most striking instances of what Professor Romanes regards as "conscience" in animals; it refers to a terrier which had never, even in its puppyhood, been known to steal, but on the contrary used to make an excellent guard to protect property from other animals, servants, and so forth, even though these were his best friends. "Nevertheless," says Professor Romanes, "on one occasion he was very hungry, and in the room where I was reading and he was sitting, there was, within easy reach, a savoury mutton chop. I was greatly surprised to see him stealthily remove this chop and take it under a sofa. However, I pretended not to observe what had occurred, and waited to see what would happen next. For fully a quarter of an hour this terrier remained under the sofa without making a sound, but doubtless enduring an agony of contending feelings. Eventually, however, conscience came off victorious, for emerging from his place of concealment and carrying in his mouth the stolen chop, he came across the room and laid the tempting morsel at my feet. The moment he dropped the stolen property he bolted again under the sofa, and from this retreat no coaxing could charm him for several hours afterwards. Moreover, when during that time he was spoken to or patted, he always turned away his head in a ludicrously conscience-stricken manner. Altogether I do not think it would be possible to imagine a more satisfactory exhibition of conscience by an animal than this; for . . . the particular animal in question was never beaten in its life." The author then adds in a note that "mere dread of punishment cannot even be suspected to have been the motive principle of action."[4] It may be so, if by punishment be understood the infliction of physical pain. But it can hardly be doubted that the terrier suspected his master to be displeased with his behaviour, and the dread of displeasure or reproof may certainly have been the sole reason for his bringing back the stolen food. Among {251} "high-life" dogs, as Professor Romanes himself observes, "wounded sensibilities and loss of esteem are capable of producing much keener suffering than is mere physical pain."[5] But fear of the anticipated consequences of an act, even when mixed with shame, is not the same as the moral feeling of remorse. There is no indication that the terrier felt that his act was wrong, in the strict sense of the word.

[Footnote 4: Romanes, 'Conscience in Animals,' in Quarterly Journal of Science, xiii. 156 sq.]

[Footnote 5: Idem, Animal Intelligence, p. 439.]

However, though most of us, on due reflection, would deny that animals are proper objects of moral censure, there is a general tendency to deal with them as if they were. The dog or the horse that obstinately refuses to submit to its master's will arouses a feeling of resentment which almost claims to be righteous; and the shock given to public feeling by some atrocious deed committed by a beast calls for retribution. As Adam Smith observes, "the dog that bites, the ox that gores, are both of them punished. If they have been the causes of the death of any person, neither the public, nor the relations of the slain, can be satisfied, unless they are put to death in their turn: nor is this merely for the security of the living, but, in some measure, to revenge the injury of the dead."[6]

[Footnote 6: Adam Smith, Theory of Moral Sentiments, p. 137.]

If thus our own resentment towards an animal which has caused some injury, when not duly tempered by reason, often comes near actual indignation, it is not surprising to find that, at the lower stages of human civilisation, animals are deliberately treated as responsible agents. The American Indian who eats the vermin which molest him defends his action by arguing that, as the animal has first bitten him, he is only retaliating the injury on the injurer.[7] The custom of blood-revenge is often extended to the animal world. The Kukis, says Mr. Macrae, "are of a most vindictive disposition; blood must always be shed for blood; if a tiger kills {252} any of them, near a Parah [or village], the whole tribe is up in arms, and goes in pursuit of the animal; when if he is killed, the family of the deceased gives a feast of his flesh, in revenge of his having killed their relation. And should the tribe fail to destroy the tiger, in this first general pursuit of him, the family of the deceased must still continue the chase; for until they have killed either this, or some other tiger, and have given a feast of his flesh, they are in disgrace in the Parah, and not associated with by the rest of the inhabitants. In like manner, if a tiger destroys one of a hunting party, or of a party of warriors, on an hostile excursion, neither the one nor the other (whatever their success may have been) can return to the Parah, without being disgraced, unless they kill the tiger."[8] Of the Sea Dyaks we are told that they will not willingly take part in capturing an alligator, unless the alligator has first destroyed one of themselves; "for why, say they, should they commit an act of aggression, when he and his kindred can so easily repay them? But should the alligator take a human life, revenge becomes a sacred duty of the living relatives, who will trap the man-eater in the spirit of an officer of justice pursuing a criminal. . . . The man-eating alligator is supposed to be pursued by a righteous Nemesis; and whenever one is caught, they have a profound conviction that it must be the guilty one, or his accomplice, for no innocent leviathan could be permitted by the fates to be caught by man."[9] So, also, the Malagasy will never kill a crocodile, except in retaliation for one of their friends or neighbours who has been destroyed by a crocodile. "They believe that the wanton destruction of one of these reptiles will be followed by the loss of human life, in accordance with the principle of lex talionis. The inhabitants living in the neighbourhood of the lake Itàsy, to the west of the central province, are accustomed to make a yearly proclamation {253} to the crocodiles, warning them that they shall revenge the death of some of their friends by killing as many voày in return, and warning the well-disposed crocodiles to keep out of the way, as they have no quarrel with them, but only with their evil-minded relatives who have taken human life."[10]

[Footnote 7: Harmon, Journal of Voyages and Travels in the Interior of North America, p. 327. Southey, History of Brazil, i. 223. Cf. Bastian, Der Mensch in der Geschichte, iii. 25.]

[Footnote 8: Macrae, 'Account of the Kookies,' in Asiatick Researches, vii. 189.]

[Footnote 9: Perham, 'Sea Dyak Religion,' in Journal of the Straits Branch of the Royal Asiatic Society, No. 10, p. 221 sq. Cf. Frazer, Golden Bough, ii. 390.]

[Footnote 10: Sibree, The Great African Island, p. 269.]

Animals are not only exposed to the blood-feud, but are often exposed to regular punishment. This is the case among the Mambettu in Central Africa. Casati mentions the following instance:--"A goat was chased and persecuted by a dog, and in the fight for self-defence the latter received a thrust from the goat's horn. The poor dog, which was the valuable property of a powerful man, died shortly after. This serious matter was much discussed and commented upon, and finally referred to the king for judgment. The poor goat was sentenced to be slaughtered before its victim's corpse, its flesh was

served to the Mambettu [that is, people of the superior race], and that of the dog to the Mege [that is, people of the conquered race]."[11] Among the Maori, according to Polack, the crime of impiety is not confined to man only, but even a pig straying over a sacred place incurs the punishment of death.[12] In Muhammedan East Africa, some time ago, a dog was publicly scourged for having entered a mosque.[13] The Bogos kill a bull or cow which causes the death of a man.[14] According to the native code of Malacca, if a buffalo or a head of cattle "be tied in the forest, in a place where people are not in the habit of passing, and there gore anybody to death, it shall be put to death"; but the owner of the animal shall not be held liable.[15] According to Hebrew law, "if an ox gore a man or a woman, that they die: then the ox shall be surely stoned, and his flesh shall not be eaten"; and, in the case of sexual intercourse {254} between a man, or woman, and a beast, not only the human offender, but the beast, is to be put to death.[16] It is prescribed in the Vendîdâd that, if a mad dog which bites without barking, smite a sheep or wound a man, "the dog shall pay for the wound of the wounded as for wilful murder."[17] Plato had undoubtedly borrowed from Attic custom or law the idea which underlies the following regulation in his 'Laws':--"If a beast of burden or other animal cause the death of any one, except in the case of anything of that kind happening to a competitor in the public contests, the kinsman of the deceased shall prosecute the slayer for murder, and the wardens of the country, such, and so many as the kinsman appoint, shall try the cause, and let the beast when condemned be slain by them, and let them cast it beyond the borders."[18] In various European countries animals have been judicially sentenced to death, and publicly executed, in retribution for injuries inflicted by them. Advocates were assigned to defend the accused animals, and the whole proceedings, trial, sentence, and execution, were conducted with all the strictest formalities of justice.[19] These proceedings seem to have been particularly common from the end of the thirteenth till the seventeenth century; the last case in France occurred as late as 1845.[20] Not only domestic animals, but even wild ones, were thus put on trial.[21] "In 1565 the Arlesians asked for the expulsion of the grasshoppers. The case came before the Tribunal de l'Officialité, and Maître Marin was assigned to the insects as counsel. He defended his clients with much zeal. Since the accused had been created, he argued that they were justified in eating what was necessary to them. The opposite counsel cited the serpent in the Garden of Eden, and sundry other animals {255} mentioned in Scripture, as having incurred severe penalties. The grasshoppers got the worst of it, and were ordered to quit the territory, with a threat of anathematisation from the altar, to be repeated till the last of them had obeyed the sentence of the honourable court."[22] From an earlier period we have records of maledictions and excommunications of vermin and obnoxious insects. In 1120, a bishop of Laon is reported to have excommunicated the caterpillars which were ravaging his diocese, with the same formula as that employed the previous year by the Council of Rheims in cursing the priests who persisted in marrying in spite of the canons.[23] Such maledictions and excommunications, however, were probably regarded rather as magical means of expulsion than as punishments.[24] Not long ago, when swarms of locusts ravaged the gardens of Tangier, the Shereef of Wazzan expelled the injurious animals by spitting into the mouth of one of them.

[Footnote 11: Casati, Ten Years in Equatoria, i. 176.]

[Footnote 12: Polack, Manners and Customs of the New Zealanders, i. 240.]

[Footnote 13: von Amira, Thierstrafen und Thierprocesse, p. 30.]

[Footnote 14: Munzinger, Die Sitten und das Recht der Bogos, p. 83.]

[Footnote 15: Newbold, British Settlements in the Straits of Malacca, ii. 257.]

[Footnote 16: Exodus, xxi. 28 sq. Leviticus, xx. 15 sq.]

[Footnote 17: Vendîdâd, xiii. 31. Cf. ibid. xiii. 32 sqq.; Yasts, xxiv. 44.]

[Footnote 18: Plato, Leges, ix. 873.]

[Footnote 19: Chambers, Book of Days, i. 127. Pertile, 'Gli animali in giudizio,' in Atti del R. Instituto Veneto, ser. vi. vol. iv. 139.]

[Footnote 20: von Amira, Thierstrafen, pp. 2, 15, 16, 28 sq. In England such proceedings seem to have hardly occurred at all (ibid. p. 15), but, as we shall see, an animal which caused the death of a man was forfeited as deodand.]

[Footnote 21: See Chambers, op. cit. i. 127 sq.]

[Footnote 22: Marlinengo-Cesaresco, Essays in the Study of Folk-Songs, p. 183 sq.]

[Footnote 23: Desmaze, Les pénalités anciennes, p. 31 sq.]

[Footnote 24: This is the opinion of von Amira, who, however--as it seems to me, without sufficient evidence--suggests that the maledictions did not refer to ordinary animals, but to human souls or devils in disguise (Thierstrafen, p. 16 sqq.).]

It has been suggested that the mediæval practice of punishing animals after human fashion was derived from the Mosaic law.[25] But this hypothesis does not account for the comparatively late appearance of the practice, nor for the fact that, in some cases, other punishments short of death were inflicted upon offending beasts.[26] It seems much more probable that the procedure in question developed out of an ancient European custom, to which it stood in the relationship of punishment to revenge.[27] According to the customs or laws of various so-called Aryan peoples--Greeks,[28] Romans,[29] Teutons,[30] Celts,[31] Slavs,[32]--an {256} animal which did some serious damage, especially if it caused the death of a man, was to be given up to the injured party, or his family, obviously in order that it might be retaliated upon.[33] According to the Welsh Laws, "that is the only case in which the murderer is to be given up for his deed."[34] The fact that afterwards, in the later Middle Ages, this form of reprisal was in certain instances transformed into regular punishment, only implies that the principle according to which punishment succeeded vengeance in the case of human crimes was, by way of analogy, extended to injuries committed by animals.

[Footnote 25: Ibid. pp. 4, 47 sqq.]

[Footnote 26: Pertile, loc. cit. p. 148.]

[Footnote 27: Cf. Brunner, Forschungen zur Geschichte des deutschen und französischen Rechtes, p. 517 sqq.]

[Footnote 28: Plutarch, Vita Solonis, 24. Xenophon, Historiæ Græcæ, ii. 4. 41.]

[Footnote 29: Institutiones, iv. 9. Digesta, ix. 1.]

[Footnote 30: Lex Salica (cod. i.), 36. Lex Ripuariorum, 46. Grimm, Deutsche Rechtsalterthümer, p. 664 sqq. Brunner, Forschungen, p. 513 sqq.]

[Footnote 31: Ancient Laws of Ireland, i. 161; iv. 177, 179, 181. Welsh Laws, iv. i. 17 (Ancient Laws and Institutes of Wales, p. 391).]

[Footnote 32: Macieiowski, Slavische Rechtsgeschichte, iv. 333.]

[Footnote 33: See Lex Wisigothorum, viii. 4. 20; Schwabenspiegel, Landrechtbuch, 204; Dirksen, Civilistische Abhandlungen, i. 104; von Jhering, Geist des römischen Rechts, i. 123; Hepp, Die Zurechnung auf dem Gebiete des Civilrechts, p. 103; Grimm, Deutsche Rechtsalterthümer, p. 664; Brunner, Deutsche Rechtsgeschichte, ii. 556; Idem, Forschungen, p. 513.]

[Footnote 34: Welsh Laws, iv. 1. 17 (Ancient Laws and Institutes of Wales, p. 391).]

There has been considerable diversity of opinion concerning the purpose of inflicting punishments upon animals. Some writers suggest that it was possibly done with a view to deterring other animals from committing similar injuries.[35] According to others,

the animal was executed in order that the hateful act should be forgotten; Gratian, referring to St. Augustine,[36] says, "Non propter culpam, sed propter memoriam facti pecus occiditur, ad quod mulier accesserit."[37] A theory which has gained much adherence explains the punishment as a symbolic act, performed for the purpose of inspiring horror of the crime into the minds of men.[38] M. Thonissen maintains that, at Athens, "on frappait l'animal auteur d'un homicide, afin que le peuple, en voyant périr un être privé de raison, conçut une grande horreur pour l'effusion du sang humain."[39] It has also been supposed that the animal was punished with intention to intimidate those {257} who were responsible for its acts,[40] or that it was killed because it was dangerous.[41] But the true solution of the problem seems simple enough. The animal had to suffer on account of the indignation it aroused. It was regarded as responsible for its deed.[42] In early records the punishment is frequently spoken of as an act of "justice";[43] and the protests of Beaumanoir and others against this opinion[44] only show that it was held in good earnest, if not by all, at least by many. From certain details we can also see how closely the responsibility ascribed to animals resembled the responsibility of men. In some of the texts of the Salic law the animal is spoken of as "auctor criminis."[45] In an ancient Irish law-tract it is said that, when a bee has blinded a person's eye, the whole hive "shall pay the fine," and "the many become accountable for the crime of one, although they all have not attacked."[46] Youth was a ground for acquittal, as appears from a case which occurred at Lavegny in 1457, when a sow and her six young ones were tried on a charge of their having murdered and partly eaten a child: whilst the sow, being found guilty, was condemned to death, the young pigs were acquitted on account of their youth and the bad example of their mother.[47] In Burgundy, a distinction was made between a mischievous dog that entered a room through an open door and one that committed a burglary; the latter was a larron, and was to be punished as such.[48] The repetition of a crime aggravated the punishment; [49] {258} and the animal "principal" was punished more severely than the "accessories. [50]

[Footnote 35: Leibniz, Essais de Theodicée, p. 182 sq. Lessona, quoted by d'Addosio, Bestie delinquenti, p. 145.]

[Footnote 36: St. Augustine, Quæstiones in Leviticum, 74 (ad Lev. xx. 16): "Nam pecora inde credendum est jussa interfici, quia tali flagitio contaminata, indignam refricant facti memoriam" (Migne, Patrologiæ cursus, xxxiv. 709).]

[Footnote 37: Gratian, Decretum, ii. 15. 1. 4. Cf. Mishna, fol. 54, quoted by Rabbinowicz, Législation criminelle du Talmud, p. 116.]

[Footnote 38: Ayrault, Des procès faicts au cadaver, aux cendres, à la mémoire, aux bestes brutes, fol. 24. Ortolan, Éléments du droit pénal, p. 188. Tissot, Le droit pénal, i. 19 sq.]

[Footnote 39: Thonissen, Le droit pénal de la république Athénienne, p. 414.]

[Footnote 40: Du Boys, quoted by d'Addosio, op. cit. p. 139.]

[Footnote 41: Lessona, quoted ibid. p. 145.]

[Footnote 42: Cf. Post, Die Grundlagen des Rechts, p. 359; Friedrichs, 'Mensch und Person,' in Das Ausland, 1891, pp. 300, 315; and, especially, d'Addosio, op. cit. p. 146 sqq.: "Nel medioevo si punì l'animale perchè lo si ritenne in certo modo conscio delle sue azioni, in certo modo libero, in certo modo responsabile."]

[Footnote 43: von Amira. op. cit. p. 9.]

[Footnote 44: Beaumanoir, Les coutumes du Beauvoisis, lxix. 6, vol. ii. 485 sq. Chambers, op. cit. i. 127. Lichtenberg, Vermischte Schriften, iv. 481.]

[Footnote 45: Lex Salica, edited by Hessels, coll. 209-212, 215.]

[Footnote 46: Ancient Laws of Ireland, iv. 179.]

[Footnote 47: Chambers, op. cit. i. 128.]

[Footnote 48: Ancien Coutumier de Bourgogne, 23 (Revue historique de droit français et étranger, iii. 549): "Il deust hauoir faire justice del larron."]

[Footnote 49: Pertile, loc. cit. p. 148: "La Carta de Logu d'Eleonora giudicessa d'Arborea (1395) prescrive: che venendo trovato un asino in danno sui fondi altrui, per la prima volta gli si tagli un orecchio; la seconda, l'altro; e la terza, si confischi la bestia consegnandola alla corte principesca." Cf. Vendîdâd, xiii. 32 sqq.]

[Footnote 50: d'Addosio, op. cit. p. 16.]

Considering the feelings to which even the cultured mind is susceptible with reference to a mischievous beast, it is not difficult to understand the attitude of the ignorant. The savage, not only momentarily, while in a rage, but permanently and in cold blood, obliterates the boundaries between man and beast. He regards all animals as practically on a footing of equality with man. He believes that they are endowed with feelings and intelligence like men, that they are united into families and tribes like men, that they have various languages like human tribes, that they possess souls which survive the death of the bodies just as is the case with human souls. He tells of animals that have been the ancestors of men, of men that have become animals, of marriages that take place between men and beasts. He also believes that he who slays an animal will be exposed to the vengeance either of its disembodied spirit, or of all the other animals of the same species which, quite after human fashion, are bound to resent the injury done to one of their number.[51] Is it not natural, then, that the savage should give like for like? If it is the duty of animals to take vengeance upon men, is it not equally the duty of men to take vengeance upon animals?

[Footnote 51: Tylor, Primitive Culture, i. 467 sqq. Frazer, Golden Bough, ii. 389 sqq. Liebrecht, Zur Volkskunde, p. 17. Achelis, Moderne Völkerkunde, p. 373 sqq. Idem, 'Animal Worship,' in Open Court, xi. 705 sq. Waitz, Anthropologie der Naturvölker, ii. 180 (Negroes). von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 351. Im Thurn, Among the Indians of Guiana, p. 350 sqq. Dorman, Origin of Primitive Superstitions, pp. 223, 253. Lumholtz, Unknown Mexico, i. 331 (Tarahumares). Mooney, 'Myths of the Cherokee,' in Ann. Rep. Bur. Ethn. xix. pp. 250, 261 sq. Nelson, 'Eskimo about Bering Strait,' ibid. xviii. 423. Hose and McDougall, 'Relations between Men and Animals in Sarawak,' in Jour. Anthr. Inst. xxxi. 173 sqq., especially p. 205 sq.]

Nor are these beliefs restricted to savages. Muhammedans maintain, not only that animals will share with men the general resurrection, but that they will be judged according to their works. Their tradition says that God "will raise up animals at the last day to receive {259} reward and to show His perfection and His justice. Then the hornless goat will be revenged on the horned one."[52] We can hardly wonder that the Zoroastrian law inflicted punishments on dogs which hurt men or animals, when we read in the Vendîdâd that a dog has the characters of eight sorts of people.[53] The fable and the Märchen for a long time related in good earnest their stories of animals that behaved exactly like men.[54] Even to this day, in certain districts of Europe, as soon as a peasant is dead, it is customary for his heir to announce the change of ownership to every beast in the stall, and to the bees also;[55] and in some parts of Poland, when the corpse of the rustic proprietor is being carried out, all his cattle are let loose, that they may take leave of their old master.[56] In the Middle Ages animals were sometimes accepted as witnesses; a man who was accused of having committed a murder in his house appeared before the tribunal with his cat, his dog, and his cock, swore in their presence that he was innocent, and was acquitted.[57] It was not only the common

people that ascribed intelligence to beasts. According to Porphyry, all the philosophers who have endeavoured to discover the truth concerning animals have acknowledged that they to a certain extent participate of reason;[58] and the same idea is expressed by Christian writers of a much later date. In the sixteenth century, Benoît wrote that animals often speak.[59] In the middle of the following century, Hieronymus Rorarius published a book entitled 'Quod animalia bruta ratione utantur melius homine.' And about the same time Johann Crell, in his 'Ethica Christiana,' expressed the opinion that animals at all events possess faculties analogous to reason and free-will, that they have something similar to virtues and vices, that they {260} deserve something like rewards and punishments, and are consequently punished by God and man.[60] This, as it seems to me, is the correct explanation of the mediæval practice of punishing animals, even though, in some cases, as M. Ménabréa observes, the obnoxious animal was regarded as an embodiment of some evil spirit and was punished as such.[61] The beast or insect was retaliated upon for the simple reason that it was regarded as a rational being.

[Footnote 52: Koran, vi. 38. Sell, Faith of Islám, p. 223.]

[Footnote 53: Vendîdâd, xiii. 44 sqq.]

[Footnote 54: See Grimm, Reinhart Fuchs, p. i. sqq.]

[Footnote 55: Ralston, Songs of the Russian People, p. 315. Wuttke, Der deutsche Volksaberglaube der Gegenwart, p. 428.]

[Footnote 56: Ralston, op. cit. p. 318.]

[Footnote 57: Michelet, Origines du droit français, pp. 76, 279 sq. Chambers, op. cit. i. 129.]

[Footnote 58: Porphyry, De abstinentia ab esu animalium, iii. 6.]

[Footnote 59: Benoît, quoted by d'Addosio, op. cit. p. 214.]

[Footnote 60: Crell, Ethica Christiana, ii. 1, p. 65 sq.:--"Hinc aliquid etiam virtuti et vitio simile, seu recte et prave factum: quorum illud est, cum bruta naturæ suæ ductum sequuntur, hoc cum a naturali via exorbitant. Unde tandem etiam aliquid **præmio aut p[oe]næ, et huic quidem maxime simile. Unde bestias etiam a Deo punitas, aut p[oe]nas certas lege illis constitutas, cernimus."]

[Footnote 61: Ménabréa, De l'origine de la forme et de l'esprit des jugements rendus au moyen-age contre les animaux, p. 35.]

At the earlier stages of civilisation even inanimate things are treated as if they were responsible agents. The Kukis take revenge not only on a murderous tiger, but on a murderous tree. "If a man should happen to be killed, by an accidental fall from a tree, all his relations assemble, and cut it down; and however large it may be, they reduce it to chips, which they scatter in the winds, for having, as they say, been the cause of the death of their brother."[62] Among the aborigines of Western Victoria, "when the spear or weapon of an enemy has killed a friend, it is always burnt by the relatives of the deceased; but those captured in battle are kept, and used by the conquerors."[63] The North American Redskins, when struck with an arrow in battle, "will tear it from the wound, break and bite it with their teeth, and dash it on the ground."[64] The British Guiana Indian, when hurt either by falling on a rock, or by the rock falling on him, "attributes the blame, by a line of argument still not uncommon in more civilised life, to the rock."[65] The gods of the Vedic age cursed the trees which had injured them.[66] Xerxes commanded {261} that the Hellespont should be stricken with three hundred lashes,[67] and Cyrus "wreaked his vengeance" on the river Gyndes by dispersing it through three hundred and sixty channels.[68] Pausanias relates that when Theagenes had died, one of his enemies went up to his statue every night, and whipped the brass. At last, however, "the statue checked his insolence by falling on him; but the sons of

the deceased prosecuted the statue for murder. The Thasians sank the statue in the sea, herein following the view taken by Draco, who, in the laws touching homicide which he drew up for the Athenians, enacted that even lifeless things should be banished if they fell on anybody and killed him."[69] As Dr. Frazer remarks, the punishment of inanimate objects for having accidentally been the cause of death was probably much older than Draco.[70] At Athens there was a special tribunal for the purpose.[71] Demosthenes states that, if a stone or a piece of wood or iron or any such thing fell and struck a man, and the person who threw the thing was not known, but the people knew, and were in possession of, the object which killed the man, that object was brought to trial at the court of the Prytaneum.[72] Plato lays down the following rule in his 'Laws':--"If any lifeless thing deprive a man of life, except in the case of a thunderbolt or other fatal dart sent from the gods,--whether a man is killed by lifeless objects falling upon him, or by his falling upon them, the nearest of kin shall appoint the nearest neighbour to be a judge, and thereby acquit himself and the whole family of guilt. And he shall cast forth the guilty thing beyond the border."[73] Teutonic law, which still recognised the principle of private revenge, treated the inanimate murderer with less ceremony.[74] According to the Laws of Alfred, when men were at work together in {262} a forest, and by misadventure one let a tree fall on another, which killed him, the tree belonged to the dead man's kinsfolk if they took it away within thirty days.[75] Later on, in England, a thing by which death was caused was "forfeited to God, that is to the King, God's Lieutenant on earth, to be distributed in works of charity for the appeasing of God's wrath."[76] This law remained in force till 1846.[77]

[Footnote 62: Macrae, in Asiatick Researches, vii. 189 sq.]

[Footnote 63: Dawson, Australian Aborigines, p. 53.]

[Footnote 64: Robertson, History of America, i. 351 sq.]

[Footnote 65: Im Thurn, op. cit. p. 354.]

[Footnote 66: Oldenberg, Religion des Veda, p. 518.]

[Footnote 67: Herodotus, vii. 35.]

[Footnote 68: Ibid. i. 190.]

[Footnote 69: Pausanias, vi. 11. 6. Cf. ibid. v. 27. 10.]

[Footnote 70: Frazer, Pausanias, ii. 371.]

[Footnote 71: Aristotle, De republica Atheniensium, 57. Pausanias, i. 28. 10.]

[Footnote 72: Demosthenes, Contra Aristocratem, 76, p. 645.]

[Footnote 73: Plato, Leges, ix. 873 sq.]

[Footnote 74: See Trummer, Vorträge über Tortur, &c. i. 376 sq. Brunner, Forschungen, p. 521 sqq.]

[Footnote 75: Laws of Alfred, ii. 13.]

[Footnote 76: Coke. Third Part of the Institutes of the Laws of England, p. 57.]

[Footnote 77: Stephen, History of the Criminal Law of England, iii. 78. Pollock and Maitland, History of English Law before the Time of Edward I. ii. 473.]

In some of these cases superstitious dread may have been a motive for destroying or banishing the instrument of death. There are facts which prove that such an object is looked upon as a source of danger. According to the Ripuarian law, people are forbidden to make use of a thing which has been "auctor interfectionis";[78] and in Norway, in quite modern times, sickles, axes, and other objects with which men have been killed, have been seen lying about abandoned and unused.[79] Again, among the aborigines of West Australia, if a person has been killed by a thrust of the native wooden spear, ghici, his country-men think that his soul remains in the point of the weapon which caused his death, and they burn it after his burial, so that the soul may depart.[80] But

it is also obvious that an inanimate thing which is the cause of a hurt is apt to evoke a genuine feeling of resentment. We kick the chair over which we stumble, we curse the stone which hurts us; Dr Nansen says that, when he was crossing Greenland, it would have caused him "quite real satisfaction" to destroy a sledge which was **"heavy to draw."[81] When we thus behave as if the offending object were capable of feeling our resentment, we for a moment vaguely believe that it is alive.[82] But our anger very soon passes {263} away when we realise the true nature of its object. The case is different with men at earlier stages of civilisation. They do not suppose that things which hurt them are senseless; on the contrary, they personify such things, not only hastily and momentarily, but deliberately and permanently; hence their resentment lasts. The Guiana Indian, says Sir E. F. Im Thurn, "attributes any calamity which may happen to him to the intention of the immediate instrument of its infliction, and he not unnaturally sees in the action of this instrument evidence of its possession of a spirit."[83] Trees, especially, are very commonly supposed to possess souls similar to those of men, and are treated accordingly.[84] Pausanias writes that "lifeless things are said to have inflicted of their own accord a righteous punishment on men"; and as the best and most famous instance of this he mentions the sword of Cambyses.[85] In England the inanimate murderer was to be given up to the kinsmen of the slain surely not as a compensation for the loss they had suffered, but as an object upon which their vengeance was to be wreaked.[86] It was called la bane, that is, "the slayer"; Bracton also calls it the "malefactor."[87] It did not matter that its owner was recognised as innocent; the punishment was not intended for him.[88] But in some well-defined cases the "slayer" was free from guilt. A ship or other vessel from which a person was drowned by misfortune was not forfeited as deodand in case the accident happened in salt water--as Coke indicates, on account of the great dangers to which the vessel is exposed "upon the raging waves in respect of the wind and tempest."[89] Moreover, if a boy under fourteen fell from a cart, or from a horse, it was {264} no deodand, "because he was not of discretion to look to himself," and so the cart, or horse, could not be regarded as blamable. But if a cart ran over a boy, or a tree fell upon him, or a bull gored him, it was deodand, because, apparently, it went out of its way to kill him.[90] The fact of motion was one of considerable importance in the case of animals and inanimate things, as it was in the case of men. Thus Bracton would distinguish between the horse which throws a man and the horse off which a man tumbles, between the tree that falls and the tree against which a man is thrown; and, as a general rule, a thing was not a deodand unless it could be said "movere ad mortem."[91] If anybody was drowned by falling from a ship under sail, not only the ship itself but the things moving in it were deemed the cause of his death; whereas the merchandise lying at the bottom of the vessel was not presumed to be guilty, and consequently was not forfeited.[92] But if any particular merchandise fell upon a person and caused his death, that merchandise became a deodand, and not the ship.[93] As Mr. Holmes observes, a ship is the most persistent example of motion giving personality to a thing. "She" is still personified not only in common parlance, but in courts of justice. In maritime cases of quite recent date judges of great repute have pronounced the proceeding to be, not against the owner, but "against the vessel for an offence committed by the vessel."[94]

[Footnote 78: Lex Ripuariorum, lxx. 1.]

[Footnote 79: Liebrccht, Zur Volkskund, p. 313.]

[Footnote 80: Salvado, Mémoires historiques sur l'Australie, p. 260 sq.]

[Footnote 81: Nansen, Eskimo Life, p. 213 sq.]

[Footnote 82: Cf. Dugald Stewart, Philosophy of the Active and Moral Powers of Man, i. 125; Hall, 'Study of Anger,' in American Journal of Psychology, x. 506 sq.]

[Footnote 83: Im Thurn, op. cit. p. 354.]

[Footnote 84: See Frazer, Golden Bough, i. 169 sqq.]

[Footnote 85: Pausanias, i. 28. 11.]

[Footnote 86: Pollock and Maitland, ii. 474.]

[Footnote 87: Bracton, De Legibus et Consuetudinibus Angliæ, fol. 116, vol. ii. 236 sq.]

[Footnote 88: Holmes, Common Law, p. 25.]

[Footnote 89: Bracton, op. cit. fol. 122, vol. ii. 286 sq. Coke, op. cit. p. 58. Sir James Stephen supposes (op. cit. iii. 78) that "deodands were not in use at sea, because the local customs of England did not extend to the high seas." But Coke expressly says (p. 58) that there can be no deodand of the ship even "in aqua salsa, being any arm of the sea, though it be in the body of the County."]

[Footnote 90: Coke, op. cit. p. 57. Hale, History of the Pleas of the Crown, i. 422. Stephen, op. cit. iii. 78.]

[Footnote 91: Bracton, op. cit. fol. 136 b, vol. ii, 400 sq. Hale, op. cit. i. 420 sqq. Pollock and Maitland, op. cit. ii. 474, n. 4. Stephen, op. cit. iii. 77. Holmes, op. cit. p. 25 sq.]

[Footnote 92: Britton, i. 2. 14, vol. i. 16.]

[Footnote 93: Hale, op. cit. i. 422.]

[Footnote 94: Holmes, op. cit. p. 29.]

* * * * *

Like the lower animals, human beings in their earliest childhood are incapable of forming notions of right and wrong, hence they are not responsible for any act of theirs. Responsibility commences with the dawn of a moral consciousness, and increases along with the evolution of the intellect. Only by slow degrees the capacity of recognising {265} act as right or wrong develops in the child. It soon learns that certain acts are forbidden, but to know that an act is forbidden is not the same as to recognise it as wrong. Nor does the knowledge of a moral rule involve the ability to apply that rule in particular cases. Nor can the youthful intellect be expected to possess the same degree of foresight as the intellect of a grown-up man. Hence the total or partial irresponsibility of childhood and early youth.

This irresponsibility is admitted by the laws of civilised nations. In England, [95] Scotland,[96] and the United States,[97] children under seven are absolutely exempt from punishment. In other modern countries criminal responsibility does not commence until the age of nine,[98] ten,[99] twelve,[100] or fourteen.[101] In some it is to be decided in each case whether a child is punishable or not.[102] Thus the French Code Pénal provides that a person under eighteen years of age shall not be punished if it be decided that he has acted without discernment (sans discernement) whereas, if he has acted with discernment (avec discernement), his punishment is to be mitigated according to a fixed scale.[103] Most laws set down an intermediate period between that of complete irresponsibility and that of complete responsibility. According to English law there is a presumption that children from seven to fourteen are not possessed of the degree of knowledge essential to criminality, though this presumption may be rebutted by proof to the contrary;[104] and, according to the German Strafgesetzbuch, a person from twelve to eighteen may be acquitted if, when he committed the offence, he did {266} not possess the intelligence requisite to know that it was criminal.[105] Other laws, again, regard a certain age eo ipso as a ground of extenuation, its upper limit being fixed sometimes at sixteen,[106] sometimes at eighteen,[107] sometimes at twenty,[108] sometimes at twenty-one.[109]

[Footnote 95: Stephen, op. cit. ii. 97 sq.]

[Footnote 96: Erskine-Rankine, Principles of the Law of Scotland, p. 546.]

[Footnote 97: Bishop, Commentaries on the Criminal Law, § 368, vol. i. 209.]

[Footnote 98: Italian Codice Penale, art. 53. Spanish Código Penal reformado, art. 8, § 2.]

[Footnote 99: Austrian (Finger, op. cit. i. 110), Dutch (van Hamel, in Législation pénale comparée, edited by von Liszt, p. 444), Portuguese (Tavares de Medeiros, ibid. p. 199), Russian (Foinitzki, ibid. p. 529) law.]

[Footnote 100: German Strafgesetzbuch, art. 55.]

[Footnote 101: Swedish (Uppström, in Législation pénale comparée, p. 483), Finnish (Forsman, ibid. p. 565) law.]

[Footnote 102: French, Belgian, Ottoman law (Rivière, ibid. p. 7).]

[Footnote 103: Code Pénal, art. 66 sqq.]

[Footnote 104: Stephen, op. cit. ii. 98. Kenny, Outlines of Criminal Law, p. 50.]

[Footnote 105: Strafgesetzbuch, art. 56.]

[Footnote 106: Dutch law (van Hamel, loc. cit. p. 444).]

[Footnote 107: Spanish (Código Penal reformado, art. 9, § 2), Swedish (Uppström, loc. cit. p. 484), Finnish (Forsman, loc. cit. p. 566) law.]

[Footnote 108: Austrian law (Finger, op. cit. i. 112).]

[Footnote 109: Italian (Codice Penale, art. 56), Russian (Foinitzki, loc. cit. p. 529), Portuguese (Tavares de Medeiros, loc. cit. p. 199), Brazilian (Codigo Penal dos Estados Unidos do Brazil, art. 42, § 11) law. According to the Ottoman Penal Code, art. 40, "a guilty person who has not arrived at the age of puberty may not be punished with the punishment enacted against the offence of which he has been found guilty."]

Roman law, as it seems, made out a præsumptio juris of general incapacity to commit a crime under puberty, rebuttable by evidence of capacity, at any rate in the age called "next to puberty," the limits of which are not clearly settled.[110] In the Irish Book of Aicill it is said that "the man who incites a fool is he who pays for his crime"; and to this the Commentary adds that a man is a fool till the end of seven years, and a fool of half sense till the end of fourteen[111]--a provision similar to that of Canon Law. [112] According to Muhammedan law, the rule of talion is applicable only to persons of age.[113] In China criminal responsibility is affected not only by youth, but by old age as well. "Offenders whose age is not more than seven nor less than ninety years, shall not suffer punishment in any case, except in that of treason or rebellion." "Any offender whose age is not more than ten nor less than eighty years, . . . shall, when the crime is capital, but not {267} amounting to treason, be recommended to the particular consideration and decision of His Imperial Majesty." And "any offender whose age is not more than fifteen, nor less than seventy years . . . shall be allowed to redeem himself from any punishment less than capital, by the payment of the established fine, except in the case of persons condemned to banishment as accessories to the crimes of treason, rebellion, murder of three or more persons in one family, or homicide by magic or poisoning, upon all of which offenders the laws shall be strictly executed."[114]

[Footnote 110: Clark, Analysis of Criminal Liability, p. 70. von Jhering, Das Schuldmoment im römischen Privatrecht, p. 42 sqq. Mommsen Römisches Strafrecht, p. 75 sq. In the Institutiones (i. 22) puberty is fixed at the completion of the fourteenth year for males, and of the twelfth for females. According to the Law of the Twelve Tables, children were punished for theft, though less severely than adults (Gellius, Noctes Atticæ, xi. 18. 8. Pliny, Historia naturalis, xviii. 3).]

[Footnote 111: Ancient Laws of Ireland, iii. 157.]

[Footnote 112: Katz, Grundriss des kanonischen Strafrechts, p. 8.]

[Footnote 113: Sachau, Muhammedanisches Recht, p. 762. Jaffur Shurreef says (Qanoon-e-Islam, p. 36) that, among the Muhammedans of India, previous to the period of puberty all the good and evil deeds of boys and girls are laid to the charge of their parents.]

[Footnote 114: Ta Tsing Leu Lee, sec. xxii. sq.]

According to early custom, children who have committed an injury are sometimes, [115] but not always,[116] subject to the rule of retaliation. Even in Homeric Greece, manslaughter committed in childhood seems to have been visited with banishment for life.[117] In other cases parents are responsible for the deeds of their children.[118] Among the West African Fjort, for instance, children are not themselves liable for their actions, but the injured party can claim compensation from the parents if he likes to do so.[119] Among the Teutons, "like the master for the slave, the father answered for and made claims on behalf of the child. The ceremony of investing him with arms as a wehrhaft, or weapon-bearing member of the community, was the usual period for the assumption of rights and liabilities; and this customarily (not always) took place at the age of twelve."[120] According to ancient Swedish law, an injury was treated in the same way as if it had been accidental, in case the offender was under the age of fifteen;[121] according to the Icelandic Grágás, in case he was {268} under sixteen.[122] However, as we have seen, accidental injuries had to be paid for. Where offences are dealt with according to the principle of compensation, it is impossible to decide how far parents' liability for their children involves a recognition of the moral irresponsibility of the child, or is simply due to the fact that children, having no property, are themselves unable to compensate. That the latter point of view was largely adopted by early custom and law appears from the fact that, when compensation was succeeded by punishment, the period of irresponsibility was reduced. In England the age-limit of twelve years, which prevailed in Anglo-Norman days, was afterwards disregarded in criminal cases. [123] We read in the Northumberland Assize Roll, A.D. 1279, "Reginald . . . aged four, by misadventure slew Robert . . . aged two; the justice granted that he might have his life and members because of his tender age."[124] A little later we hear that a child under the age of seven shall not suffer judgment in a case of homicide.[125] In 1457, an infant of four was held liable in trespass, though the language of the court shows a disposition to exempt the infant.[126] From the eighteenth century instances are recorded of a girl of thirteen who was burnt for killing her mistress, and of a boy of eight who was hanged for arson.[127] In 1748, a boy of ten, being convicted for the murder of a girl of five, was sentenced to death, and all the judges to whom this case was reported agreed that, "in justice to the publick," the law ought to take its course. The execution, however, was respited, and the boy at last had the benefit of His Majesty's pardon.[128] It appears from these facts, and from others of a similar character referring to continental countries,[129] that there has been a tendency to raise the age {269} at which full legal responsibility commences. And we have reason to hope that legislation has not yet said its last word on the subject.

[Footnote 115: Senfft, in Steinmetz, Rechtsverhältnisse, p. 449 (Marshall Islanders). Miklosich, 'Blutrache bei den Slaven,' in Denkschriften d. kaiserl. Akadamie d. Wissensch. Philos.-hist. Classe, Vienna, xxxvi. 131 (Turks of Daghestan). See also supra, p. 217 sq.]

[Footnote 116: Lang, in Steinmetz, Rechtsverhältnisse, p. 257 (Washambala).]

[Footnote 117: Iliad, xxiii. 85 sqq. Cf. Müller, Dissertations on the Eumenides, p. 95.]

[Footnote 118: Nicole, in Steinmetz, Rechtsverhältnisse p. 132 (Diakité-Sarrakolese). Marx, ibid. p. 357 (Amahlubi).]

[Footnote 119: Dennett, in Jour. African Society, i. 276.]

[Footnote 120: Wigmore, 'Responsibility for Tortious Acts,' in Harvard Law Review, vii. 447.]

[Footnote 121: Wilda, Strafrecht der Germanen, p. 642 sq. Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 73. Cf. von Amira, Nordgermanisches Obligationenrecht, i. 375 sq.]

[Footnote 122: Grágás, Vigsloþi, 32, vol. ii. 63.]

[Footnote 123: Wigmore, loc. cit. p. 447.]

[Footnote 124: Three Early Assize Rolls for the County of Northumberland, p. 323.]

[Footnote 125: Pollock and Maitland, op. cit. ii. 84.]

[Footnote 126: Wigmore, loc. cit. p. 447 sq. n. 7.]

[Footnote 127: Wilson, History of Modern English Law, p. 124.]

[Footnote 128: Foster, Report of Crown Cases, p. 70 sqq.]

[Footnote 129: Trummer, op. cit. i. 428, 432 sqq. (Germany). Jousse, Traité de la justice criminelle de France, ii. 617; Tissot, Droit pénal, i. 30 (France).]

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The principle that intellectual incapacity lessens or excludes responsibility also applies to idiots and madmen. Though idiots are able to acquire some knowledge of general moral rules, the application of those rules is frequently beyond their powers; [130] and their capacity of foreseeing the consequences of their acts is necessarily very restricted. The same to some extent holds good of madmen; but, as will be shown in the next chapter, there is another ground for their irresponsibility besides the derangement of the intellect.

[Footnote 130: von Krafft-Ebing, Lehrbuch der gerichtlichen Psychopathologie, p. 70.]

All modern laws admit that, at least under certain circumstances, idiocy or madness exempts a person from criminal responsibility. According to Roman law, lunatics were even free from the obligation of paying indemnities for losses inflicted by them;[131] and so mild was their lot at Rome, that it became a practice for citizens to shirk their public duties by feigning madness.[132] Even savages recognise that lunatics and maniacs are not responsible for their deeds. The Abipones maintained that it was "wrong and irrational to use arms against those who are not in possession of their senses."[133] Among the North American Potawatomis many "are said to be 'foolish,' and not sensible of crime."[134] The Iroquois are "persuaded that a person who is not in his right senses is not to be reprehended, or at least not to be punished."[135] Hennepin states that "they had one day in the year which might be called the Festival of Fools; for in fact they pretended to be mad, rushing from hut to hut, so that if they ill-treated any one or carried off anything, they would say next day, {270} 'I was mad; I had not my senses about me.' And the others would accept this explanation and exact no vengeance."[136] The Melanesians "are sorry for lunatics and are kind to them, though their remedies are rough"; at Florida, for instance, a man went out of his mind, chased people, stole things and hid them, but "no one blamed him, because they knew that he was possessed by a tindalo ghost."[137] Among the West African Fjort fools and idiots are not responsible personally for their actions.[138] Among the Wadshagga crimes committed by lunatics are judged of more leniently than others.[139] Among the Matabele madmen, being supposed to be possessed of a spirit, "were formerly under the protection of the King."[140] In Eastern Africa the natives say of an idiot or a lunatic,

"He has fiends."[141] El Hajj [()Abdssalam Shabeeny states that in Hausaland "a man guilty of a crime, who in the opinion of the judge is possessed by an evil spirit, is not punished."[142]

[Footnote 131: von Vangerow, Lehrbuch der Pandekten, iii. 36. von Jhering, Das Schuldmoment im römischen Privatrecht, p. 42. Thon, Rechtsnorm und subjectives Recht, p. 106, n. 70.]

[Footnote 132: Digesta, xxvii. 10. 6.]

[Footnote 133: Dobrizhoffer, Account of the Abipones, ii. 234.]

[Footnote 134: Keating, Expedition to the Source of St. Peter's River, i. 127.]

[Footnote 135: Charlevoix, Voyage to North America, ii. 24 sq.]

[Footnote 136: Hennepin, Description de la Louisiane, Les M[oe]urs des Sauvages, p. 71 sq.]

[Footnote 137: Codrington, Melanesians, p. 218.]

[Footnote 138: Dennett, in Jour. African Society, i. 276.]

[Footnote 139: Merker, quoted by Kohler, in Zeitschr. f. vergl. Rechtswiss. xv. 64.]

[Footnote 140: Decle, Three Years in Savage Africa, p. 154.]

[Footnote 141: Burton, Lake Regions of Central Africa, ii. 320.]

[Footnote 142: [()Abdssalam Shabeeny, Account of Timbuctoo and Housa, p. 49.]

The idea that derangement of the mind is due to spiritual possession, often makes the idiot or the insane an object of religious reverence.[143] The Macusis regard lunatics as holy.[144] The Brazilian Paravilhana believe that idiots are inspired.[145] According to Schoolcraft, "regard for lunatics, or the demented members of the human race, is a universal trait among the American tribes."[146] So, also, the African Barolong give a kind of worship to deranged persons, who are said to be under the direct influence of a deity.[147] A certain kind of madness was regarded by the ancient Greeks as a divine gift, and consequently as "superior to a sane mind."[148] Lane states that, among the modern {271} Egyptians, an idiot or a fool is vulgarly regarded "as a being whose mind is in heaven, while his grosser part mingles among ordinary mortals; consequently he is considered an especial favourite of heaven. Whatever enormities a reputed saint may commit (and there are many who are constantly infringing precepts of their religion), such acts do not affect his fame for sanctity; for they are considered as the results of the abstraction of his mind from worldly things--his soul, or reasoning faculties, being wholly absorbed in devotion--so that his passions are left without control. Lunatics who are dangerous to society are kept in confinement, but those who are harmless are generally regarded as saints."[149] The same holds good of Morocco. Lunatics are not even obliged to observe the Ramadan fast, the most imperative of all religious duties; of a person who, instead of abstaining from all food till sunset, was taking his meal in broad daylight in the open street, I heard the people forgivingly say, "The poor fellow does not know what he is doing, his mind is with God."[150]

[Footnote 143: Cf. Tylor, Primitive Culture, ii. 128.]

[Footnote 144: Andree, Ethnographische Parallelen, Neue Folge, p. 3.]

[Footnote 145: von Martius, Beiträge zur Ethnographie Amerika's, i. 633.]

[Footnote 146: Schoolcraft, Indian Tribes of the United States, iv. 49.]

[Footnote 147: Tylor, Primitive Culture, ii. 130.]

[Footnote 148: Plato, Phædrus, p. 244.]

[Footnote 149: Lane, Manners and Customs of the Modern Egyptians, p. 237.]

[Footnote 150: Cf. Gråberg di Hemsö, Specchio geografico, e statistico dell' impero Marocco, p. 182 sq.]

On the other hand there are peoples who treat their lunatics in a very different manner. The tribes of Western Victoria put them to death, "as they have a very great dread of mad people."[151] In Kar Nicobar madness is said to be the only cause for a death "penalty" that seems to exist there, the afflicted individual being garrotted with two pieces of bamboo;[152] but this practice seems to be a method of getting rid of a dangerous individual, rather than a penalty in the proper sense of the word. Among the Washambala a lunatic who commits homicide is killed--as our informant observes, "not really on account of his deed, but in order to prevent him from causing further mischief."[153] Among the Turks of Daghestan, we are told, mad people are subject to the rule of blood-revenge.[154]

[Footnote 151: Dawson, op. cit. p. 61.]

[Footnote 152: Distant, in Jour. Anthr. Inst. iii. 6.]

[Footnote 153: Lang, in Steinmetz, Rechtsverhältnisse, p. 257.]

[Footnote 154: Miklosich, loc. cit. p. 131.]

{272} In China lunatics are held responsible for their acts, although the ordinary penalty applicable is commuted, as for instance, in murder to imprisonment with fetters subject to His Majesty's pleasure. But when a lunatic deliberately kills his parents or grandparents, a representation will not serve; he is to be executed at once on the spot where the murder was committed or on the city execution ground, and the sentence--slicing to pieces--is to be carried out in all its horror though the lunatic be already dead.[155]

[Footnote 155: Alabaster, Commentaries on Chinese Law, pp. 93, 96. Cf. Douglas, Society in China, pp. 72, 122.]

According to ancient Welsh law, no vengeance is to be exercised against an idiot,[156] nor is the king to have any fine for the act of such a person.[157] But, "if idiots kill other persons, let galanas [that is, blood-money] be paid on their behalf, as for other persons; because their kindred ought to prevent them doing wrong."[158] The Swedish provincial laws treated an injury committed by a lunatic in the same manner as an injury by misadventure, provided that the relatives of the injurer had publicly announced his madness, or, according to some laws, had kept him tied in bonds which he had broken; but if they had omitted to do so, the injury was treated as if it had been done wilfully.[159] The Icelandic Grágás even lays down the rule that a madman who has committed homicide shall suffer the same punishment as a sane person guilty of the same crime.[160] In England, in the times of Edward II. and Edward III., proof of madness appears not to have entitled a man to be acquitted, at least in case of murder, but to a special verdict that he committed the offence when mad, and this gave him a right to pardon.[161] Such a right, indeed, implies the admission that lunacy has a claim to forbearance; but from what we know about the treatment of lunatics during the Middle Ages and much later, we cannot be sure that the insane offender escaped {273} all punishment. In a case which occurred in 1315, it was presented that a certain lunatic wounded himself with a knife, and finally died of his wounds; his chattels were confiscated.[162] Lord Bacon says in his 'Maxims of the Law,' "If an infant within years of discretion, or a madman, kill another, he shall not be impeached thereof: but if he put out a man's eye, or do him like corporal hurt, he shall be punished in trespass"; in these latter cases, "the law doth rather consider the damage of the party wronged, than the malice of him that was the wrong-doer."[163] In none of the German town-laws before the beginning of the seventeenth century is there any special provision for the offences of lunatics;[164] and, according to the Statutes of Hamburg of 1605, though a madman who kills a person shall not be punished as an ordinary manslayer, he is

yet to be punished.[165] In Germany recognised idiots and madmen were not seldom punished with great severity, and even with death, in the seventeenth and eighteenth centuries.[166] One of the darkest pages in the history of European civilisation may be filled with a description of the sufferings which were inflicted upon those miserable beings up to quite modern times.[167] Many of them were burnt as witches or heretics, or treated as ordinary criminals. For unruly and crazy people, who nowadays would be comfortably located in an asylum, whipping-posts and stocks were made use of. Shakespeare speaks of madmen as deserving "a dark house and a whip";[168] and Swift observes that original people like Diogenes and others, if they had lived in his day, would have been treated like madmen, that is, would have incurred "manifest danger of phlebotomy, and whips, and chains, and dark chambers, and straw."[169] The writings of {274} Esquirol, the parliamentary debates on the asylums of Bedlam and York, and the reports presented under the auspices of La Rochefoucauld to the National Assembly of 1789, contain a picture unique in its sadness--"a picture of prisons in which lunatics, criminal lunatics, and criminals are huddled together indiscriminately without regard to sex or age, of asylums in which the maniac, to whom motion is an imperious necessity, is chained in the same cell with the victim of melancholia whom his ravings soon goad into furious madness, and of hospitals in which the epileptic, the scrofulous, the paralytic and the insane sleep side by side--a picture of cells, dark, foul, and damp, with starving, diseased, and naked inmates, flogged into submission, or teased into fury for the sport of idle spectators."[170]

[Footnote 156: Dimetian Code, ii. 1. 32 (Ancient Laws and Institutes of Wales, p. 200).]

[Footnote 157: Venedotian Code, ii. 28. 3 (ibid. p. 98).]

[Footnote 158: Welsh Laws, iv. 1. 2 (ibid. p. 389).]

[Footnote 159: von Amira, Nordgermanisches Obligationenrecht, i. 375.]

[Footnote 160: Grágás, Vigsloþi, 33, vol. ii. 64.]

[Footnote 161: Stephen, op. cit. ii. 151.]

[Footnote 162: Wigmore, loc. cit. p. 446.]

[Footnote 163: Bacon, Maxims of the Law, reg. 7 (Works, vii. 347 sq.).]

[Footnote 164: Trummer, op. cit. i. 428.]

[Footnote 165: Ibid. i. 432.]

[Footnote 166: Ibid. i. 438 sqq.]

[Footnote 167: See Tuke, Chapters in the History of the Insane in the British Isles, p. 43 sq.; Maudsley, Responsibility in Mental Disease, p. 10 sq.; Lecky, History of European Morals, ii. 85 sqq.]

[Footnote 168: Shakespeare, As you Like it, iii. 2.]

[Footnote 169: Swift, Tale of a Tub, sec. 9 (Works, x. 163).]

[Footnote 170: Wood-Renton, 'Moral Mania,' in Law Quarterly Review, iii. 340.]

Whatever share indifference to human suffering may have had in all these atrocities and all this misery, it is likely that thoughtlessness, superstition, and ignorance have had a much larger share. We have noticed that, when a certain deed gives a shock to public feelings, the circumstances in which it has been committed are easily lost sight of. Considering that the Chinese punish persons who have killed their father or mother by pure accident, it is not surprising that they punish madmen who kill a parent wilfully. Even a man like Smollett, the well-known writer, thought it would be neither absurd nor unreasonable for the legislature to divest all lunatics of the privilege of insanity in cases of enormity, and to subject them "to the common penalties of the law."[171] Moreover, as we have seen, madness is often attributed to demoniacal possession,[172] and in other cases it is regarded as a divine punishment.[173] From a pagan {275} point of

view this would make the lunatic an object of pity or dread, rather than of indignation; as the Roman legislator said, the insane murderer ought not to be punished, because his insanity itself is a sufficient penalty.[174] But in Christian Europe, where up to quite recent times men were ever ready to punish God's enemies, a lunatic, who was supposed to have the devil in him, or whose affliction was regarded as the visitation of God upon heresy or sin,[175] was a hateful individual and was treated accordingly. Finally, we have to take into account that the sensibility of a lunatic was thought to be inferior to that of a sane person;[176] that the mental characteristics of insanity were little understood; and that, in consequence, many demented persons were treated as if they were sane because they were thought to be sane, and others, though recognised as lunatics, were treated as responsible because they were thought to be responsible. The history of the English law referring to insanity bears sad testimony to the ignorance of which lunatics have been victims in the hands of lawyers.

[Footnote 171: Smollett, quoted by Tuke, op. cit. p. 96.]

[Footnote 172: See also Doughty, Arabia Deserta, i. 258 sq.; Westermarck, 'Nature of the Arab [vG]inn illustrated by the Present Beliefs of the People of Morocco,' in Jour. Anthr. Inst. xxix, 254; Andree, op. cit. p. 2 sq.; Tuke, op. cit. p. 1; Pike, History of Crime in England, i. 39; von Krafft-Ebing, op. cit. p. 5.]

[Footnote 173: Plato, Leges, ix. 854. Esquirol, Des maladies mentales, i. 336.]

[Footnote 174: Digesta, i. 18. 14; xlviii. 9. 9.]

[Footnote 175: Wood-Renton, loc. cit. p. 339.]

[Footnote 176: Ibid. p. 339.]

From the year 1724 there is a dictum of an English judge to the effect that a man who is to be exempted from punishment "must be a man that is totally deprived of his understanding and memory, and doth not know what he is doing, no more than an infant, than a brute, or a wild beast."[177] From the beginning of the nineteenth century, the power of distinguishing right from wrong in the abstract was regarded as the test of responsibility;[178] whilst in the existing doctrine, dating from the trial of M[(]Naughten in 1843, the question of knowledge of right and wrong, instead of being put generally and indefinitely, is put in reference to the particular act at the particular time of committing it.[179] This series of doctrines certainly shows a noteworthy progress {276} in discrimination. But at the same time the answers given by the fourteen English judges to the questions put to them by the House of Lords in consequence of M[(]Naughten's case still display an ignorance which would nowadays be hardly possible. In reply to the question--"If a person under an insane delusion as to existing facts, commits an offence in consequence thereof, is he thereby excused?"--the judges declared that, on the assumption "that he labours under such partial delusion only, and is not in other respects insane, . . . he must be considered in the same situation as to responsibility as if the facts with respect to which the delusion exists were real. For example, if under the influence of his delusion he supposes another man to be in the act of attempting to take away his life, and he kills that man, as he supposes, in self-defence, he would be exempt from punishment. If his delusion was that the deceased had inflicted a serious injury to his character and fortune, and he killed him in revenge for such supposed injury, he would be liable to punishment."[180] The mistake committed in this answer does not lie in the conclusion, but in the premise. "Here," as Professor Maudsley observes, "is an unhesitating assumption that a man, having an insane delusion, has the power to think and act in regard to it reasonably; that, at the time of the offence, he ought to have and to exercise the knowledge and self-control which a sane man would have and exercise, were the facts with respect to which the delusion exists real; that he is, in

fact, bound to be reasonable in his unreason, sane in his insanity."[181] Modern science, however, teaches us another lesson. It has shown that a delusion of the kind suggested never stands alone, but is in all cases the result of a disease of the brain which interferes more or less with every function of the mind, and that few insane persons who do violence can be truly said to have a full knowledge of the nature and quality of their acts at the time they are performing {277} them.[182] A perhaps still greater defect in the doctrine of the fourteen judges is the absence of all reference to the influence of insane impulses; but with this subject we are not concerned at present. In this connection my object has been merely to show that the irresponsibility of the insane, in so far as it depends on intellectual derangement, has been generally recognised in proportion as their intellectual derangement has been recognised, and that the exceptions to this rule are explicable from beliefs which, though materially affecting the treatment of the insane, have no reference to the principle of responsibility itself.

[Footnote 177: Howell, Collection of State Trials, xvi. 765.]

[Footnote 178: Harris, Principles of the Criminal Law, p. 18. Kenny, op. cit. p. 53.]

[Footnote 179: Clark and Finnelly, Reports of Cases decided in the House of Lords, x. 202.]

[Footnote 180: Ibid. x. 211.]

[Footnote 181: Maudsley, op. cit. p. 97.]

[Footnote 182: Griesinger, Mental Pathology and Therapeutics, p. 72 sq. Maudsley, op. cit. p. 96.]

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There are temporary states of mind in which the agent no more knows what he is doing than an idiot or a madman, such as somnambulism, narcosis, fury. For these states, of course, the rule holds good, that nobody is responsible for what he does in ignorance, although he may be responsible for his ignorance. Responsibility in connection with anger and rage will be more appropriately dealt with in another place. I shall here restrict myself to the case of drunkenness.

A person is irresponsible, or only partly responsible, for what he does when drunk, according as he is ignorant of the nature of his act, as also in so far as the intoxicant contributed to the rise of some powerful impulse which determined his will. If he commits an offence in a state of extreme intoxication, he can reasonably be blamed only for what he did when sober. If he made himself drunk for the purpose of committing the offence, then the offence is intended, and he is equally responsible for his act as if he had accomplished it straightway. If he became intoxicated without any fault of his, for instance, if he did not know, and could not know, the intoxicating quality of the liquor which made him drunk, he is free from blame. But in other cases he is guilty of heedlessness, or rashness, or, if he foresaw the danger, of blamable indifference to {278} the probable consequences of his act. This is the clear theory of the question. But we cannot expect to find it accurately expressed in practice.

Very generally drunkenness is recognised as a ground of extenuation. We hear from various sources that the North American Indians were exceedingly merciful to intoxicated offenders. According to Charlevoix, the Iroquois "suffer themselves to be ill used by drunken people, without defending themselves, for fear of hurting them. If you endeavour to shew them the folly of this conduct, they say, 'Why should we hurt them? They know not what they do.'" Even "if a savage kills another belonging to his cabin, if he is drunk (and they often counterfeit drunkenness when they intend to commit such actions),[183] all the consequence is, that they pity and weep for the dead. 'It is a misfortune (they say), the murderer knew not what he did.'"[184] James makes a similar

statement with reference to the Omahas.[185] In his description of the aborigines of Pennsylvania, Blome observes, "It is rare that they fall out, if sober; and if drunk they forgive it, saying, it was the drink, and not the man that abused them."[186] Benjamin Franklin tells us of some Indians who had misbehaved in a state of intoxication, and in consequence sent three of their old men to apologise; "the orator acknowledged the fault, but laid it upon the rum, and then endeavoured to excuse the rum."[187] The detestable deeds which men did under the influence of pulcre, or the native Mexican wine, the Aztecs attributed to the god of wine or to the wine itself, and not in the least to the drunken man. Indeed, if anybody spoke ill of or insulted an intoxicated person, he was liable to be punished for disrespect to the god by which that person was supposed to be possessed. {279} Hence, says Sahagun, it was believed, not without ground, that the Indians made themselves drunk on purpose to commit with impunity crimes for which they would have been punished if they had committed them sober.[188]

[Footnote 183: Cf. Hennepin, op. cit. p. 71.]

[Footnote 184: Charlevoix, op. cit. ii. 23, 25. According to Loskiel (History of the Mission of the United Brethren among the Indians in North America, i. 16), the Iroquois, though they laid all the blame on the rum, punished severely murder committed in drunkenness.]

[Footnote 185: James, Expedition from Pittsburgh to the Rocky Mountains, i. 265.]

[Footnote 186: Blome, in Buchanan, North American Indians, p. 328.]

[Footnote 187: Franklin, Autobiography, ch. ix. (Works, i. 164).]

[Footnote 188: Sahagun, Historia general de las cosas de Nueva España, i. 22, vol. i. 40.]

Among the Karens of India "men are not unfrequently killed in drunken broils; but such cases are not allowed by Karen custom to be a cause of action. No price can be demanded for persons who lose their lives in such circumstances. It is argued there was no malice, no intention to kill; and the person who died was perhaps as much to blame as the man who killed him; and people are not well responsible for what they do in a state of intoxication."[189] Among the Kandhs, "for wounds, however serious, given under circumstances of extreme provocation, or in a drunken squabble, slight compensation is awarded."[190] Among some of the Marshall Islanders blood-revenge is generally not taken for an act of homicide which has been committed in drunkenness, compensation being accepted instead.[191] So, also, according to the ancient law of the East Frisians, a man who has killed another when drunk is allowed "to buy off his neck by a sum of money paid to the king and to the relatives of the slain."[192]

[Footnote 189: Mason, in Jour. As. Soc. Bengal, xxxvii. pt. ii. 146.]

[Footnote 190: Macpherson, Memorials of Service in India, p. 82.]

[Footnote 191: Jung, quoted by Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 446.]

[Footnote 192: Das Ostfriesische Land-Recht, iii. 18.]

Roman law regarded drunkenness as a ground of extenuation;[193] the Jurist Marcian mentions ebrietas as an example of impetus, thereby intimating that a drunken person, when committing a crime, should not be put on the same footing with an offender acting in cold blood, and calculating his act with clear consciousness.[194] In Canon law drunkenness is said to be a ground which deserves the indulgence of a reasonable judge, because whatever is done in that state is done without consciousness on the part of the actor.[195] Indeed, had not God shown {280} indulgence for the offence committed by Lot when drunk?[196] Partly on the authority of Roman law, partly on that of Canon law, the earliest practitioners of the Middle Ages followed the principle that drunkenness is a ground of extenuation; and this doctrine remained

strongly rooted in the later jurisprudence, in which a drunken person was likened to one under the influence of sleep, or drunkenness was regarded as equivalent to insanity. [197] It was not until the sixteenth century that a mere general rule, with regard to drunkenness as a ground of extenuation, was felt to be insufficient. Since the time of Clarus, especially, the opinion began to prevail, that the effect of the highest degree of drunkenness was, indeed, to exempt from the punishment of dolus, but that the offender was still subject to the punishment of culpa, except in two cases, namely, first, when he inebriated himself intentionally, and with a consciousness that he might commit a crime while drunk, in which case the drunkenness was not allowed to be any ground of exculpation at all; and, secondly, when he became intoxicated without any fault on his part, as, for example, in consequence of inebriating substances having been mingled with his wine by his comrades, in which case he was relieved even from the punishment of culpa.[198] These views, in the main, gradually determined the German practice, and similar opinions prevailed in the practice of Italy, Spain, Portugal, and the Netherlands. [199] In the annals of Prussian criminal justice of 1824, a case is reported of a man who was punished with only one year's imprisonment for having killed his little child in a state of drunkenness.[200] In other countries a different principle was acted upon. An ordinance of Francis I. declared that drunkenness should not in any case absolve from the ordinary punishment;[201] and this rule was sanctioned and {281} applied by the later French jurisprudence.[202] In the Code Pénal, the state of drunkenness is not mentioned as a mitigating circumstance; yet the rigour of the law has been tempered by the doctrine that intoxication produces a temporary insanity and that every kind of insanity is a ground of exculpation.[203] In England,[204] Scotland,[205] and the United States,[206] a state of voluntary drunkenness is no excuse for crime. Speaking of a person who commits homicide when drunk, Hale says that "by the laws of England such a person shall have no privilege by this voluntary contracted madness, but shall have the same judgment as if he were in his right senses."[207] However, in a case where the intention with which the act was done is the essence of the offence, the drunkenness of the accused may be taken into account by the jury when considering the motive or intent with which he acted.[208] According to Chinese law, also, intoxication does not affect the question of responsibility.[209]

[Footnote 193: Digesta, xlviii. 19. 11. 2; xlix. 16. 6. 7. Mommsen, Römisches Strafrecht, p. 1043.]

[Footnote 194: Digesta, xlviii. 19. 11. 2.]

[Footnote 195: Gratian, Decretum, ii. 15. 1. 7.]

[Footnote 196: Ibid. ii. 15. 1. 9.]

[Footnote 197: Mittermaier, Effect of Drunkenness on Criminal Responsibility, p. 6.]

[Footnote 198: Clarus, Practica criminalis, qu. lx. nr. 11 (Opera omnia, ii. 462).]

[Footnote 199: Mittermaier, op. cit. p. 7. Du Boys, Histoire du droit criminel de l'Espagne, p. 290. Italian Codice Penale, art. 46 sqq. Spanish Código Penal reformado, art. 9, §6.]

[Footnote 200: Zeitschr. f. die Criminal-Rechts-Pflege in den Preussischen Staaten, edited by Hitzig, iii. 60.]

[Footnote 201: Isambert, Decrusy, and Armet, Recueil général des anciennes lois françaises, xii. 527.]

[Footnote 202: Mittermaier, op. cit. p. 8.]

[Footnote 203: Ibid. p. 12 sq. Rivière, loc. cit. p. 7.]

[Footnote 204: Stephen, History of the Criminal Law of England, ii. 165.]

[Footnote 205: Hume, Commentaries on the Law of Scotland, i. 38. Erskine-Rankine, op. cit. p. 545.]

[Footnote 206: Bishop, op. cit. § 400 sq. vol. i. 231 sqq.]

[Footnote 207: Hale, op. cit. i. 32.]

[Footnote 208: Harris, op. cit. p. 21. Stephen, Digest, art. 32, p. 22.]

[Footnote 209: Giles, Strange Stories from a Chinese Studio, ii. 30, n. 2.]

The great forbearance with which injuries inflicted in a state of intoxication are treated by various peoples at comparatively low stages of civilisation, is no doubt, to some extent, due to lack of foresight. Failing to anticipate the harmful consequences which may follow from drunkenness, they also fail to recognise the culpability of indulging in it. The American Indians are notorious drunkards, and look upon drunkenness as a "delightful frolick."[210] Among the Kandhs drunkenness is likewise universal, and their "orgies are evidently not regarded as displeasing to their gods."[211] The belief that an intoxicated person is possessed with a demon and acts under its influence, also helps {282} to excuse him.[212] On the other hand, where the law makes no difference between an offender who is sober and an offender who is drunk, the culpability of the latter is exaggerated in consequence of the stirring effect which the outward event has upon public feelings. So great is the influence of the event that certain laws, most unreasonably, punish a person both for what he does when drunk and for making himself drunk. Thus Aristotle tells us that legislators affixed double penalties to crimes committed in drunkenness.[213] The same was done by Charles V., in an edict of 1531,[214] and by Francis I. in 1536.[215] Hardly more reasonable is it that the very society which shows no mercy whatever to the intoxicated offender, is most indulgent to the act of intoxication itself when not accompanied by injurious consequences. Of course it may be argued that drunkenness is blamable in proportion as the person who indulges in it might expect it to lead to mischievous results. It has also been said that, if drunkenness were allowed to excuse, the gravest crimes might be committed with impunity by those who either counterfeited the state or actually assumed it. Some people even maintain that inebriation brings out a person's true character. In a Chinese story we read, "Many drunkards will tell you that they cannot remember in the morning the extravagances of the previous night, but I tell you this is all nonsense, and that in nine cases out of ten those extravagances are committed wittingly and with malice prepense."[216] However, with all allowance for such considerations, I venture to believe that in this, as in many other cases where an injury results from want of foresight, the extreme severity of certain laws is largely due to the fact that the legislator has been more concerned with the external deed than with its source.

[Footnote 210: Adair, History of the American Indians, p. 5. Catlin, North American Indians, ii. 251. Colden, in Schoolcraft, Indian Tribes, iii. 191. Prescott, ibid. iii. 242. James, op. cit. i. 265.]

[Footnote 211: Campbell, Wild Tribes of Khondistan, p. 165. Macpherson, op. cit. p. 81 sq.]

[Footnote 212: Cf. Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 424.]

[Footnote 213: Aristotle, Ethica Nicomachea, iii. 5. 8.]

[Footnote 214: Damhouder, Praxis rerum criminalium, lxxxiv. 20, p. 241.]

[Footnote 215: Isambert, Decrusy, and Armet, op. cit. xii. 527.]

[Footnote 216: Giles, op. cit. ii. 30.]

Chapter XI — Motives

NO enlightened and conscientious moral judge can regard his judgment as final, unless he know the motive, or motives, of the volition by which his judgment is occasioned. But in ordinary moral estimates little attention is paid to motives. Men desire that certain acts should be performed, and that certain other acts should be abstained from. The conative causes of acts or forbearances are not equally interesting, and they are often hidden. They are considered only in proportion as the moral judgment is influenced by reflection.

Take, for instance, acts which are performed from a sense of duty. It is commonly said that a person ought to obey his conscience. Yet, in point of fact, by doing so he may expose himself to hardly less censure than does the greatest villain. The reason for this is not far to seek. A man's moral conviction is to some extent an expression of his character, hence he may be justly blamed for having a certain moral conviction. And the blame which he may deserve on that account is easily exaggerated, partly because people are apt to be very intolerant concerning opinions of right and wrong which differ from their own, partly owing to the influence which external events exercise upon their minds.

Somewhat greater discrimination is shown in regard to motives consisting of powerful non-volitional conations which in no way represent the agent's character, but to which {284} he yields reluctantly, or by which he is carried away on the spur of the moment. In many such cases even the law--which regards it as no excuse if a person commits a crime from a feeling of duty[1]--displays more or less indulgence to the perpetrator of a harmful deed.

[Footnote 1: Cf. the case Reg. v. Morby, Law Reports, Cases determined in the Queen's Bench Division, viii. 571 sqq.]

Thus, in the eye of the law, compulsion is oftentimes a ground of extenuation. Strictly speaking, a volition can never be compelled into existence;[2] to act under compulsion really means to act under the influence of some non-voluntary motive, so powerful that every ordinary human will would yield to it. As Aristotle puts it, pardon is given when "a man has done what he ought not to have done through fear of things beyond the power of human nature to endure, and such that no man could undergo them. And yet, perhaps, there are some things which a man must never allow himself to be compelled to do, but must rather choose death by the most exquisite torments."[3] This principle has been in some degree recognised by legislation. In many cases of felony, if a married woman commits the crime in the presence of her husband, the law of England presumes that she acts under his coercion, and therefore excuses her from punishment, unless the presumption of law is rebutted by evidence;[4] but children and servants are not acquitted if committing crimes by the command of a parent or a master.[5] Besides the presumption made in favour of married women, compulsion by threats of injury to person or property is recognised as an excuse for crime only, as it seems, in cases in which the compulsion is applied by a body of rebels or rioters, and in which the offender takes a subordinate part in the offence.[6] In a time of peace, on the other hand, though a man be violently assaulted, and have no other possible {285} means of escaping death but by killing an innocent person, if he commit the act he will be guilty of murder; "for he ought rather to die himself, than kill an innocent."[7] It has even been laid down as a general principle that "the apprehension of personal danger does not furnish any

excuse for assisting in doing any act which is illegal."[8] But the English law relating to duress per minas, and to constraint in general, seems to be harsher both than most modern continental laws[9] and than Roman law.[10] Some of the Italian practitioners were even of opinion that a person who committed homicide by the command of his prince or some other powerful man was exempt from all punishment.[11] According to the Talmud, any offence perpetrated under compulsion or in mortal fear is excusable in the eye of the law, excepting only murder and adultery.[12]

[Footnote 2: Bradley, Ethical Studies, p. 40, n. 1.]

[Footnote 3: Aristotle, Ethica Nicomachea, iii. i. 7 sq.]

[Footnote 4: Hale, History of the Pleas of the Crown, i. 44 sqq. 434. Harris, Principles of the Criminal Law, p. 25. Stephen, History of the Criminal Law of England, ii. 105 sq.]

[Footnote 5: Hale, op. cit. i. 44. Harris, op. cit. p. 26.]

[Footnote 6: Stephen, op. cit. ii. 106.]

[Footnote 7: Hale, op. cit. i. 51. Harris, op. cit. p. 24 sq.]

[Footnote 8: Denman, C. J., in Reg. v. Tyler, reported in Carrington and Payne, Reports of Cases argued and ruled at Nisi Prius, viii. 621.]

[Footnote 9: Code Pénal, art. 64; Chauveau and Hélie, Théorie du Code Pénal, i. 534 sqq. Italian Codice Penale, art. 49. Spanish Código Penal reformado, art. 8, § 9 sqq. Finger, Compendium des österreichischen Rechtes--Das Strafrecht, i. 119. Foinitzki, in Législation pénale comparée, edited by von Liszt, p. 530 (Russian law). Ottoman Penal Code, art. 42.]

[Footnote 10: Mommsen, Römisches Strafrecht, p. 653. Janka, Der strafrechtliche Notstand, p. 48.]

[Footnote 11: Janka, op. cit. p. 60. A different view, however, is expressed by Covarruvias (De matrimoniis, ii. 3. 4. 6 sq. [Opera omnia, i. 139]):--"Metus numquam excusat nec a mortali, nec a veniali crimine. Peccatum maximum malum, nec eo quid grauius."]

[Footnote 12: Benny, Criminal Code of the Jews according to the Talmud Massecheth Synhedrin, p. 125.]

Suppose, again, that the motive of breaking the law is what has been called "compulsion by necessity." The old instance of shipwrecked persons in a boat unable to carry them all is a standing illustration of this principle. Sir James Stephen says, that "should such a case arise, it is impossible to suppose that the survivors would be subjected to legal punishment."[13] Yet, in a very similar case, occurring in the year 1884, they were. Three men and a boy escaped in an open boat from the shipwreck of the yacht Mignonette. After passing eight days without food, and seeing no prospect of relief, the men killed the boy, who was {286} on the verge of death, in order to feed on his body. Four days later they were rescued by a passing ship; and, on their arrival in England, two of the men were tried for the murder of the boy. The defence raised was that the act was necessary for the purpose of self-preservation. But it was held by the Court for Crown Cases Reserved, that such necessity was no justification of the act of causing death when there was a distinct intention to take away the life of another innocent person. However, the sentence of death was afterwards commuted by the Crown to six months' imprisonment.[14] In the same case it was even said that if the boy had had food in his possession, and the others had taken it from him, they would have been guilty of theft.[15] Bacon's proposition that "if a man steal viands to satisfy his present hunger, this is no felony nor larceny,"[16] is not law at the present day.[17] It was expressly contradicted by Hale, who lays down the following rule:--"If a person, being under necessity for want of victuals, or clothes, shall upon that account clandestinely, and animo furandi steal another man's goods, it is felony and a crime by

the laws of England punishable with death; altho the judge, before whom the trial is, in this case (as in other cases of extremity) be by the laws of England intrusted with a power to reprieve the offender before or after judgment, in order to the obtaining the king's mercy."[18] Britton excuses "infants under age, and poor people, who through hunger enter the house of another for victuals under the value of twelve pence."[19] According to the Swedish Westgöta-Lag, a poor man who can find no other means of relieving himself and his family from hunger may thrice with impunity appropriate food belonging to somebody else, but if he does so a fourth time he is punished for theft.[20] The Canonist says, "Necessitas legem non {287} habet"[21]--"Raptorem vel furem non facit necessitas, sed voluntas."[22] This principle has the sanction of the Gospel. Jesus said to the Pharisees, "Have ye not read what David did, when he was an hungered, and they that were with him; How he entered into the house of God, and did eat the shewbread, which was not lawful for him to eat, neither for them which were with him, but only for the priests?"[23]

[Footnote 13: Stephen, op. cit. ii. 108. So, also, according to Bacon's Maxims of the Law, reg. 5 (Works, vii. 344), homicide is in such a case justifiable.]

[Footnote 14: Reg. v. Dudley and Stephens, in Law Reports, Cases determined in the Queen's Bench Division, xiv. 273 sqq.]

[Footnote 15: Ibid. xiv. 276.]

[Footnote 16: Bacon, Maxims of the Law, reg. 5 (Works, vii. 343).]

[Footnote 17: Reg. v. Dudley and Stephens, in Law Reports, Queen's Bench Division, xiv. 286.]

[Footnote 18: Hale, op. cit. i. 54.]

[Footnote 19: Britton, i. 11, vol. i. 42.]

[Footnote 20: Westgöta-Lagen II. þiufua bolker, 14, p. 164 sq.]

[Footnote 21: Gratian, Decretum, iii. 1. 11.]

[Footnote 22: Ibid. iii. 5. 26.]

[Footnote 23: St. Matthew, xii. 1 sqq.]

According to Muhammedan law, the hand is not to be cut off for stealing any article of food that is quickly perishable, because it may have been taken to supply the immediate demands of hunger.[24] We are told that "no Chinese magistrate would be found to pass sentence upon a man who stole food under stress of hunger."[25] In ancient Peru, according to Herrera, "he that robb'd without need was banish'd to the Mountains Andes, never to return without the Inga's leave, and if worth it paid the value of what he had taken. He that for want stole eatables only was reprov'd, and receiv'd no other punishment, but enjoyn'd to work, and threatened, that if he did so again, he should be chastiz'd by carrying a stone on his back, which was very disgraceful."[26] We even hear of savages who regard "compulsion by necessity" as a ground of extenuation. Among the West African Fjort robbery of plantations, committed in a state of great hunger, is exempt from punishment in case there is no deception or secrecy in the matter; however, payment for damage done is expected.[27] Cook says of the Tahitians:--"Those who steal clothes or arms, are commonly put to death, either by hanging or drowning in the sea; but those who steal provisions are bastinadoed. By this practice they wisely vary the punishment of the same crime, when committed from different motives."[28]

[Footnote 24: Lane, Manners and Customs of the Modern Egyptians, p. 121.]

[Footnote 25: Giles, Strange Stories from a Chinese Studio, ii. 217, n. 5.]

[Footnote 26: Herrera, General History of the West Indies, iv. 337.]

[Footnote 27: Dennett, in Jour. African Society, i. 276.]

[Footnote 28: Cook, Journal of a Voyage round the World, p. 41 sq.]

{288} A special kind of self-preservation is self-defence. Here the ground of justification is not merely the motive of the agent, but also the wrongness or criminality of the act which he tries to prevent. Hence the right of inflicting injuries as a necessary means of self-preservation has been more generally recognised in the case of self-defence than in other cases of "compulsion by necessity." "Vim vi repellere" was regarded by the ancients as a natural right,[29] as a law "non scripta, sed nata";[30] and the same view was taken by the Canonist.[31] Even in the savage world self-defence and killing in self-defence are not infrequently justified by custom.[32] But in other instances the influence of the external event makes itself felt also in the case of self-defence. Among the Fjort, though a person who kills another in self-defence is exempt from punishment, he is expected to pay damages.[33] Among the Hottentots self-defence is regarded as a mitigating circumstance, but not as an excuse in the full sense of the word.[34] Among other peoples it is not considered at all.[35] Among the ancient Teutons a person who committed homicide in self-defence had to pay wer;[36] and in Germany such a person seems to have been subject to punishment still in the later Middle Ages.[37] In England, in the thirteenth century, he was considered to deserve royal pardon, but he also needed it.[38]

[Footnote 29: Digesta, xliii. 16. i. 27: "Vim vi repellere licere Cassius scribit idque ius natura comparatur."]

[Footnote 30: Cicero, Pro Milone, 4 (10).]

[Footnote 31: Gratian, Decretum, i. 1. 7.]

[Footnote 32: Merker, quoted by Kohler, in Zeitschr. f. vergl. Rechtswiss. xv. 64 (Wadshagga). Lang, in Steinmetz, Rechtsverhältnisse, p. 257 (Washambala).]

[Footnote 33: Dennett, in Jour. African Society, i. 276.]

[Footnote 34: Kohler, in Zeitschr. f. vergl. Rechtswiss. xv. 353.]

[Footnote 35: Steinmetz, Rechtsverhältnisse, p. 50 (Banaka and Bapuku). Tellier, ibid. p. 176 (Kreis Kita). Marx, ibid. p. 357 (Amahlubi). Senfft, ibid. p. 450 (Marshall Islanders).]

[Footnote 36: Geyer, Lehre von der Nothwehr, p. 88 sqq. Trummer, Vorträge über Tortur, &c. i. 430. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 659. Cf. Leges Henrici I. lxxx. 7; lxxxvii. 6.]

[Footnote 37: Trummer, op. cit. i. 428 sqq. von Feuerbach-Mittermaier, Lehrbuch des Peinlichen Rechts, p. 64. Brunner observes (Deutsche Rechtsgeschichte, ii. 630), "Nicht das Benehmen des Getöteten war die causa des Todschlags, sondern nur die feindselige Absicht des Todschlagers."]

[Footnote 38: Bracton, De Legibus et Consuetudinibus Angliæ, fol. 132 b, vol. ii. 366 sqq. Pollock and Maitland, History of English Law before the Time of Edward I. ii. 574.]

{289} In self-defence there should of course be a proportion between the injury which the aggressor intended to inflict and the injury inflicted on him by the person attacked. The most widely-recognised ground on which life is allowed to be taken in self-defence is danger of death. But it is not the exclusive ground. Among the Wakamba "a thief entering a village at night can be killed"; though, if he is, the incident generally gives rise to a blood-feud between his family and the family of the slayer.[39] In Uganda "there is no penalty for killing a thief who enters an enclosure at night";[40] and among various peoples at higher stages of culture we likewise find the provision that a nocturnal thief or house-breaker may be killed with impunity, though a diurnal thief may not.[41] This law, however, seems to have been due not so much to the fact that by night the proprietor had less chance of recovering his property, as to the greater danger to which he was personally exposed.[42] The Roman Law of the Twelve Tables allows the diurnal

thief also to be killed, in case he defends himself with a weapon;[43] and, as regards the nocturnal thief, Ulpian expressly says that the owner of the property is justified in killing him only if he cannot spare the life of the thief without peril to himself.[44] The same rule was laid down by Bracton[45] and by Grotius. The latter observes, "No one ought to be slain directly for the sake of mere things, which would be done if I were to kill an unarmed flying thief with a missile, and so recover my goods: but if I am myself in danger of life, then I may repel the danger even with danger to the life of another; nor does this cease to hold, however I have come into that danger, whether by trying to retain my property, or to {290} recover it, or to capture the thief; for in all these cases I am acting lawfully according to my right."[46]

[Footnote 39: Decle, Three Years in Savage Africa, p. 488.]

[Footnote 40: Ashe, Two Kings of Uganda, p. 294.]

[Footnote 41: Ta Tsing Leu Lee, sec. cclxxvii. p. 297 (Chinese). Exodus, xxii. 2 sq. Lex Duodecim Tabularum, viii. 11 sq. Plato, Leges, ix. 874. Lex Baiuwariorum, ix. (viii.) 5. Du Boys, Histoire du droit criminel de l'Espagne, p. 288 (Spanish Partidas).]

[Footnote 42: Cf. Gregory IX. Decretales, v. 12. 3; Mishna, fol. 72, quoted by Rabbinowicz, Législation criminelle du Talmud, p. 122.]

[Footnote 43: Lex Duodecim Tabularum, viii. 12. Cicero, Pro Milone, 3 (9).]

[Footnote 44: Digesta, xlviii. 8. 9.]

[Footnote 45: Bracton, op. cit. fol. 144 b, vol. ii. 464 sq.]

[Footnote 46: Grotius, De jure belli et pacis, ii. 1. 12. 1.]

According to the law of England, a woman is justified in killing one who attempts to ravish her; and so also the husband or father may kill a man who attempts a rape on his wife or daughter, if she do not consent.[47] We meet with similar provisions in many other laws, modern and ancient.[48] St. Augustine says that the law allows the killing of a ravisher of chastity, either before or after the act, in the same manner as it permits a person to kill a highwayman who makes an attempt upon his life.[49] According to the Talmud, it is permissible to kill a would-be criminal, in order to prevent the commission of either murder or adultery "to save an innocent man's life, or a woman's honour"; but when the crime has already been accomplished, the criminal cannot be thus disposed of.[50]

[Footnote 47: Harris, op. cit. p. 145.]

[Footnote 48: Erskine-Rankine, Principles of the Law of Scotland, p. 558. Ottoman Penal Code, art. 186. Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 349 (ancient Swedish laws). Plato, Leges, ix. 874.]

[Footnote 49: St. Augustine, De libero arbitrio, i. 5 (Migne, Patrologiæ cursus, xxxii. 1227).]

[Footnote 50: Benny, op. cit. p. 125. Rabbinowicz, op. cit. p. 124.]

Among many peoples who in other cases prohibit self-redress, an adulterer and an adulteress may be put to death by the aggrieved husband, especially if they be caught flagrante delicto. Such a custom prevails in various uncivilised societies where justice is generally administered by a council of elders or the chief.[51] Among the ancient {291} Peruvians "a man killing his wife for adultery was free; but if for any other fault he died for it, unless he were a man in dignity, and then some other penalty was inflicted."[52] According to Chinese penal law, "when a principal or inferior wife is discovered by her husband in the act of adultery, if such husband at the very time that he discovers kills the adulterer, or adulteress, or both, he shall not be punishable."[53] By the law of Nepal, the Parbattia husband retains the privilege of avenging, with his own hand, the violation of his marriage bed, and anyone, save a learned Brahman or a helpless boy,

who instead of using his own sword, should appeal to the courts, would be covered with eternal disgrace.[54] In all purely Moslem nations custom "overwhelms with ignominy the husband or son of an adulteress who survives the discovery of her sin; he is taboo'd by society; he becomes a laughing-stock to the vulgar, and a disgrace to his family and friends."[55] According to the 'Lex Julia de adulteriis,' a Roman father had a right to kill both his married daughter and her accomplice if she was taken in adultery either in his house or in her husband's, provided that both of them were killed, and that it was done at once. The husband, on the other hand, had no such right as to his wife in any case, and no such right as to her accomplice unless he was an infamous person or a slave, taken, not in his father-in-law's house, but in his own.[56] However, it seems that in more ancient times the husband was entitled to kill an adulterous wife;[57] and his right of self-redress in the case of adultery was again somewhat extended by Justinian beyond the very narrow limits set down by the Lex Julia.[58] According to an Athenian law, "if one man shall kill another . . . after catching him with his wife, or with his mother, or with a {292} sister, or with a daughter, or with a concubine whom he keeps to beget free-born children, he shall not go into exile for homicide on such account."[59] Ancient Teutonic law allowed a husband to kill both his unfaithful wife and the adulterer, if he caught them in the act;[60] according to the Laws of Alfred, an adulterer taken flagrante delicto by the woman's lawful husband, father, brother, or son, might be killed without risk of blood-feud.[61] In the thirteenth century, however, there are already signs that, in England, the outraged husband who found his wife in the act of adultery might no longer slay the guilty pair or either of them, although he might emasculate the adulterer.[62] The present law treats the killing of an adulterer taken in the act in the same way as homicide committed in a quarrel; by slaying him, the husband is guilty of manslaughter only, though, if the killing were deliberate and took place in revenge after the fact, the crime would be murder. This seems to be the only case in English law in which provocation, other than by actual blows, is considered sufficient to reduce homicide to manslaughter, if the killing be effected by a deadly weapon.[63] There are corresponding provisions in other modern laws.[64] As a rule, flagrant adultery does not justify homicide, but serves as an extenuating circumstance.[65] But according to the French Code Pénal, "dans le cas d'adultère . . . le meurtre commis par l'époux sur son épouse, ainsi que sur le complice, à l'instant où il les surprend en flagrant délit dans la maison conjugale, est excusable."[66] And in Russia, though the law does not exempt from punishment a {293} husband who thus avenges himself, the jury show great indulgence to him.[67]

[Footnote 51: Dalton, Descriptive Ethnology of Bengal, p. 45; Stewart, in Jour. As. Soc. Bengal, xxiv. 628 (Kukis). Macpherson, Memorials of Service in India, p. 83; Hunter, Annals of Rural Bengal, iii. 76 (Kandhs). Anderson, Mandalay to Momien, p. 140 (Kakhyens). MacMahon, Far Cathay and Farther India, p. 273 (Indo-Burmese border tribes). Crawfurd, History of the Indian Archipelago, iii. 130. von Brenner, Besuch bei den Kannibalen Sumatras, pp. 211, 213. Modigliani, Viaggio a Nías, p. 495. Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 364. Dyveyrier, Exploration du Sahara, p. 429 (Touareg). Barrow, Travels into the Interior of Southern Africa, i. 207 (Kafirs). Among the Gaika tribe of the Kafirs, however, "a man is fined for murder, if he kills an adulterer or adulteress in the act, although he be the husband of the adulteress" (Maclean, Compendium of Kafir Laws and Customs, p. 111). Among the Wakamba, "if a man is caught in adultery at night, the husband has a right to kill him; but if the injured man thus takes the law into his own hands in the daytime, he is dealt with as a murderer" (Decle, op. cit. p. 487).]

[Footnote 52: Herrera, op. cit. iv. 338.]

[Footnote 53: Ta Tsing Leu Lee, sec. cclxxxv. p. 307.]

[Footnote 54: Hodgson, Miscellaneous Essays, ii. 235, 236, 272.]

[Footnote 55: Burton, Sind Revisited, ii. 54 sq.]

[Footnote 56: Digesta, xlviii. 5. 21 sq.]

[Footnote 57: Gellius, Noctes Atticæ, x. 23. 5. Cf. Mommsen, Römisches Strafrecht, p. 625.]

[Footnote 58: Novellæ, cxvii. 15.]

[Footnote 59: Demosthenes, Contra Aristocratem, 53, p. 637.]

[Footnote 60: Wilda, Strafrecht der Germanen, p. 823. Nordström, op. cit. ii. 62 sq. Stemann, op. cit. p. 325.]

[Footnote 61: Laws of Alfred, ii. 42.]

[Footnote 62: Pollock and Maitland, op. cit. ii. 484. The same right is granted by a Spanish mediæval law to a father, or a husband, who finds a man having illegitimate sexual intercourse with his daughter, or wife (Du Boys, Histoire du droit criminel de l'Espagne, p. 93).]

[Footnote 63: Hale, op. cit. i. 486. Harris, op. cit. p. 145. Cherry, Lectures on the Growth of Criminal Law, p. 82 sq.]

[Footnote 64: Italian Codice Penale, art. 377. Spanish Código Penal reformado, art. 438. Ottoman Penal Code, art. 188.]

[Footnote 65: Günther, Idee der Wiedervergeltung, iii. 233 sqq.]

[Footnote 66: Code Pénal, art. 324.]

[Footnote 67: Foinitzki, loc. cit. p. 548.]

Whilst the law referring to self-defence has gradually become more liberal, the law referring to self-redress in the case of adultery has thus, generally speaking, become more severe. The reason for this is obvious. A husband who slays his unfaithful wife or her accomplice does not defend, but avenges himself; and it is to be expected that a society in which punishment has only just succeeded revenge should still admit, or tolerate, revenge in extreme cases. The privilege granted to the outraged husband is not the sole survival of the old system of self-redress lingering on under the new conditions. According to Kafir custom or law, the relatives of a murdered man become liable only to a very light fine if they kill the murderer.[68] The ancient Teutons, at a time when their laws already prohibited private revenge, did not look upon an avenger of blood in the same light as an ordinary manslayer;[69] and even the Church recognised the distinction.[70] Some of the ancient Swedish laws entirely excused homicide committed in revenge immediately after the crime.[71] According to the Östgöta-Lag, an incendiary taken in flagrancy might be at once burnt in the fire,[72] and ancient Norwegian law permitted the slaying of a thief caught in the act.[73] In the Laws of Ine there is an indication that a thief's fate was at the discretion of his captor,[74] and a law of Æthelstan implies that the natural and proper course as to thieves was to kill them.[75] In the Laws of King Wihtræd it is said, "If any one slay a layman while thieving; let him lie without 'wergeld.'"[76] So also, according to Javanese law, if a thief be caught in the act it is lawful to put him to death.[77] For our present {294} purpose it is important to note that all such cases imply a recognition of the principle that an act committed on extreme provocation requires special consideration. To declare that an adulterer or adulteress caught in flagrancy, or a manifest thief, may be slain with impunity, is a concession to human passions, which are naturally more easily aroused by the sight of an act than by the mere knowledge of its commission. It was for a similar reason that the Law of the Twelve Tables punished furtum manifestum much more heavily

than furtum nec manifestum;[78] and that the Laws of Alfred imposed death as the penalty for fighting in the King's hall if the offender was taken in the act, whereas he was allowed to pay for himself if he escaped and was subsequently apprehended.[79]

[Footnote 68: Maclean, op. cit. p. 143. Cf., however, ibid. p. 110.]

[Footnote 69: Wilda, op. cit. p. 562. Stemann, op. cit. p. 582 sq.]

[Footnote 70: Wilda, op. cit. pp. 180, 565. Labbe-Mansi, Sacrorum Conciliorum collectio, xii. 289.]

[Footnote 71: Nordström, op. cit. ii. 414 sq.]

[Footnote 72: Ibid. ii. 416.]

[Footnote 73: Wilda, op. cit. p. 889.]

[Footnote 74: Laws of Ine, 12. Cf. Stephen, op. cit. i. 62.]

[Footnote 75: Laws of Æthelstan, iv. 4.]

[Footnote 76: Laws of Wihtræd, 25.]

[Footnote 77: Crawfurd, op. cit. iii. 115.]

[Footnote 78: Institutiones, iv. 1. 5.]

[Footnote 79: Laws of Alfred, ii. 7.]

The difference between an injury which a person inflicts deliberately, in cold blood, and one which he inflicts in the heat of the moment, under the disturbance of great excitement caused by a wrong done to himself, has been widely recognised. There are instances reported of savages who distinguish between murder and manslaughter. And the laws of all civilised nations agree in regarding, on certain conditions, passion aroused by provocation as a mitigating circumstance at the commission of a crime.

The Australian Narrinyeri, as we have seen, have a tribunal, called tendi, consisting of the elders of the clan, to which all offenders are brought for trial. "In case of the slaying by a person or persons of one clan of the member of another clan in time of peace, the fellow-clansmen of the murdered man will send to the friends of the murderer and invite them to bring him to trial before the united tendies. If, after full inquiry, he is found to have committed the crime, he will be punished according to the degree of guilt. If it were a case of murder, with malice aforethought, he would be handed over to his own clan to be put to death by spearing. If it should be what we call manslaughter, he would receive a good thrashing, or be banished from his clan, or compelled to go to his mother's {295} relations."[80] In the Pelew Islands, if two natives are quarrelling, and the one says to the other, "Your wife is bad," the insulted party is entitled to chastise the provoker with a stone, and is not held liable even if the latter should die in consequence.[81] The Eastern Central Africans "are aware of the difference between murder and homicide," even though the punishment of the two crimes is often the same.[82] Among the Kandhs only slight compensation is awarded "for wounds, however serious, given under circumstances of extreme provocation."[83] "Valdeyak, or manslaughter," says Georgi, "is not capital among the Tungusians, when it has been occasioned by some antecedent quarrel. The slayer is however whipped, and obliged to maintain the family of the deceased: he undergoes no reproaches on account of the affair; but on the contrary is considered as a brave and courageous man for it."[84]

[Footnote 80: Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, p. 34 sq.]

[Footnote 81: Kubary, 'Die Palau-Inseln,' in Journal des Museum Godeffroy, iv. 43 sq.]

[Footnote 82: Macdonald, Africana, i. 172.]

[Footnote 83: Macpherson, op. cit. p. 82.]

[Footnote 84: Georgi, Russia, iii. 83. Cf. also Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 186.]

Among the ancient Peruvians, "when one killed another in a quarrel, the first thing enquired into was, who had been the aggressor; if the dead man, then the punishment was slight, at the will of the Inga; but if the surviver had given the provocation, his penalty was death, or at least perpetual banishment to the Andes, there to work in the Inga's fields of corn, which was like sending him to the galeys. A murderer was immediately publickly put to death, tho' he were a man of quality."[85] Among the Mayas of Yucatan and Nicaragua, in case of great provocation or absence of malice, homicide was atoned by the payment of a fine.[86]

[Footnote 85: Herrera, op. cit. iv. 337 sq.]

[Footnote 86: Bancroft, Native Races of the Pacific States, ii. 658.]

From certain passages in the Mosaic law the conclusion has been drawn that the ancient Hebrews did not consider it obligatory to inflict death upon him who had killed his neighbour in a fit of passion.[87] It is said that a man shall be put to death if he "come presumptuously upon his neighbour, to slay him with guile,"[88] or if he "hate his neighbour, and lie in wait for him, and rise up against him, and smite him mortally that he die."[89] On the other hand, he shall be allowed a resort to a city {296} of refuge if "he lie not in wait,"[90] or if he thrust his neighbour "suddenly without enmity."[91]

[Footnote 87: Goitein, Das Vergeltungsprincip im biblischen und taltmudischen Strafrecht, p. 33 sqq.]

[Footnote 88: Exodus, xxi. 14.]

[Footnote 89: Deuteronomy, xix. 11 sq.]

[Footnote 90: Exodus, xxi. 13.]

[Footnote 91: Numbers, xxxv. 22, 25.]

Professor Leist suggests that in ancient Greece, at a time when blood-revenge was a sacred duty in the case of premeditated murder, homicide committed without premeditation could be forgiven by the avenger of blood.[92] Plato, in his 'Laws,' draws a distinction between him "who treasures up his anger and avenges himself, not immediately and at the moment, but with insidious design, and after an interval," and him "who does not treasure up his anger, and takes vengeance on the instant, and without malice prepense." The deed of the latter, though not involuntary, "approaches to the involuntary," and should therefore be punished less severely than the crime perpetrated by him who has stored up his anger.[93] Aristotle, also, whilst denying that "acts done from anger or from desire are involuntary,"[94] maintains that "assaults committed in anger, are rightly decided not to be of malice aforethought, for they do not originate in the volition of the man who has been angered, but rather in that of the man who so angered him."[95] And he adds that "everyone will admit that he who does a disgraceful act, being at the same time free from desire, or at any rate feeling desire but slightly, is more to be blamed than is he who does such an act under the influence of a strong desire; and that he who, when not in a passion, smites his neighbour, is more to be blamed than is he who does so when in a passion."[96] Cicero likewise points out that "in every species of injustice it is a very material question whether it is committed through some agitation of passion, which commonly is short-lived and temporary, or from deliberate, prepense, malice; for those things which proceed from a short, sudden fit, are of slighter moment than those which are inflicted by forethought and preparation."[97]

[Footnote 92: Leist, Græco-italische Rechtsgeschichte, pp. 325, 352.]

[Footnote 93: Plato, Leges, ix. 867.]

[Footnote 94: Aristotle, Ethica Nicomachea, iii. 1. 21.]

[Footnote 95: Ibid. v. 8. 9.]

[Footnote 96: Ibid. vii. 7. 3.]

[Footnote 97: Cicero, De officiis, i. 8.]

Of ancient Russian law M. Kovalewsky observes, "L'existence d'une excitation violente est prise en considération, par notre antique législation, qui déclare le crime accompli sous leur influence non imputable."[98] According to ancient Irish law, "homicide was divisible into the two classes of simple manslaughter and murder, the difference between which lay in the {297} existence or absence of malice aforethought, the fine in the latter being double what it was in the former case"; and for a wound which was inflicted inadvertently in lawful anger, the payment was made upon a diminished scale.[99] The ancient Teutons, also, held a wrong committed in sudden anger and on provocation to be less criminal than one committed with premeditation in cold blood; [100] this opinion seems partly to be at the bottom of the distinction which they made between open and secret homicide.[101] According to the law of the East Frisians, a man who kills another without premeditation may buy off his neck with money, not so he who commits a murder with malice aforethought.[102] It is curious that Bracton should take no notice of the different grades of evil intention which may accompany voluntary homicide, and that he should omit altogether the question of provocation;[103] Beaumanoir, the French jurist, who lived in the same age, mentions in his 'Coutumes du Beauvoisis' provocation as an extenuating circumstance,[104] and the same view was taken by the Church.[105] Coke, in his Third Institute--which may be regarded as the second source of the criminal law of England, Bracton being the first--gives an account of malice aforethought, and adds, "Some manslaughters be voluntary, and not of malice forethought, upon some sudden falling out. Delinquens per iram provocatus puniri debet mitius."[106] Hume says that in Scotland "the manslayer on suddenty was to have the benefit of the girth or sanctuary: he might flee to the church or other holy place; from which he might indeed be taken for trial, but to be returned thither, safe in life and limb, if his allegation of chaude melle were proved."[107] All modern codes regard provocation under certain circumstances as a mitigating circumstance.[108] According to the criminal law of Montenegro, great provocation may even relieve a homicide of all guilt.[109]

[Footnote 98: Kovalewsky, Coutume contemporaine, p. 291.]

[Footnote 99: Ancient Laws of Ireland, iii. pp. xciii. cx.]

[Footnote 100: Wilda, op. cit. p. 560 sqq., 701. Stemann, op. cit. p. 574. von Amira, in Paul's Grundriss der germanischen Philologie, ii. pt. ii. 174.]

[Footnote 101: Wilda, op. cit. p. 569. von Amira, loc. cit. p. 173.]

[Footnote 102: Das Ostfriesische Land-Recht, iii. 17 sq.]

[Footnote 103: Cf. Stephen, op. cit. iii. 33.]

[Footnote 104: Beaumanoir, Coutumes du Beauvoisis, xxx. 101, vol. i. 454 sq.]

[Footnote 105: Gregory III. Judicia congrua penitentibus, 3 (Labbe-Mansi, op. cit. xii. 289).]

[Footnote 106: Coke, Third Institute, p. 55.]

[Footnote 107: Hume, Commentaries on the Law of Scotland, i. 365.]

[Footnote 108: Günther, op. cit. iii. 256 sqq.]

[Footnote 109: Ibid. iii. 255 sq.]

It has been said that a man who acts under the influence of great passion has not, at the time, a full knowledge of the nature and quality of his act, and that {298} the clemency of the law is "a condescension to the frailty of the human frame, to the furor brevis, which, while the frenzy lasteth, rendereth the man deaf to the voice of reason."[110] But the main cause for passion extenuating his guilt is not the intellectual disability under which he acts, but the fact that he is carried away by an impulse which

is too strong for his will to resist. This is implied in the provision of the law, that "provocation does not extenuate the guilt of homicide unless the person provoked is at the time when he does the act deprived of the power of self-control by the provocation which he has received."[111]

[Footnote 110: Foster, Report of Crown Cases, p. 315.]

[Footnote 111: Stephen, Digest, art. 246, p. 188.]

That anger has been so generally recognised as an extenuation of guilt is largely due to the fact that the person who provokes it is himself blamable; both morality and law take into consideration the degree of provocation to which the agent was exposed. But, at the same time, the pressure of a non-volitional motive on the will may by itself be a sufficient ground for extenuation. In certain cases of mental disease a morbid impulse or idea may take such a despotic possession of the patient as to drive him to the infliction of an injury. He is mad, and yet he may be free from delusion and exhibit no marked derangement of intelligence. He may be possessed with an idea or impulse to kill somebody which he cannot resist. Or he may yield to a morbid impulse to steal or to set fire to houses or other property, without having any ill-feeling against the owner or any purpose to serve by what he does.[112] The deed to which the patient is driven is frequently one which he abhors, as when a mother kills the child which she loves most.[113] In such cases the agent is of course acquitted by the moral judge, and if he is condemned by the law of his country and its guardians, the reason for this can be nothing but ignorance. We must remember that this form of madness was hardly known even to medical {299} men till the end of the 18th century,[114] when Pinel, to his own surprise, discovered that there were "many madmen who at no period gave evidence of any lesion of the understanding, but who were under the dominion of instinctive and abstract fury, as if the affective faculties had alone sustained injury."[115] And there can be no doubt that the fourteen English judges who formulated the law on the criminal responsibility of the insane, made no reference to this manie sans délire simply because they had not sufficient knowledge of the subject with which they had to deal.[116]

[Footnote 112: Maudsley, Responsibility in Mental Disease, p. 133 sqq. von Krafft-Ebing, Lehrbuch der gerichtlichen Psychopathologie, p. 308 sqq.]

[Footnote 113: Gadelius, Om tvångstankar, p. 168 sq. Paulhan, L'activité mentale, p. 374.]

[Footnote 114: Maudsley, op. cit. p. 141.]

[Footnote 115: Pinel, Traité médico-philosophique sur l'aliénation mentale, p. 156: "Je ne fut pas peu surpris de voir plusieurs aliénés qui n'offroient à aucune époque aucune lésion de l'entendement, et qui étoient dominés par une sorte d'instinct de fureur, comme si les facultés affectives seules avoient été lésées."]

* * * * *

That moral judgments are generally passed, in the first instance, with reference to acts immediately intended, and consider motives only in proportion as the judgment is influenced by reflection, holds good, not only of moral blame, but of moral praise. Every religion presents innumerable examples of people who do "good deeds" only in expectation of heavenly reward. This implies the assumption that the Deity judges upon actions without much regard to their motives; for if motives were duly considered, a man could not be held rewardable for an act which he performs solely for his own benefit. We are told that the homage which the Chinese "render the gods and goddesses believed to be concerned in the management of the affairs of this world is exceedingly formal, mechanical, and heartless," and that "there seems to be no special importance attached to purity of heart."[117] According to Caldwell, "the Hindu religionist enjoins the act

alone, and affirms that motives have nothing to do with merit."[118] The argument, "Obey the law because it will {300} profit you to do so," constitutes the fundamental motive of Deuteronomy, as appears from phrases like these: "That it may go well with thee," "That thy days may be prolonged."[119] Speaking of the modern Egyptians, Lane observes that "from their own profession it appears that they are as much excited to the giving of alms by the expectation of enjoying corresponding rewards in heaven as by pity for the distresses of their fellow-creatures, or a disinterested wish to do the will of God."[120] Something similar may be said, not only of the "good deeds" of Muhammedans, but of those of many Christians. Did not Paley expressly define virtue as "the doing good to mankind, in obedience to the will of God, and for the sake of everlasting happiness"?[121]

[Footnote 117: Doolittle, Social Life of the Chinese, ii. 397.]

[Footnote 118: Caldwell, Tinnevelly Shanars, p. 35.]

[Footnote 119: Cf. Montefiore, Hibbert Lectures, p. 531.]

[Footnote 120: Lane, Modern Egyptians, p. 293.]

[Footnote 121: Paley, Principles of Moral and Political Philosophy, i. 7 (Complete Works, ii. 38).]

Such views, however, cannot hold their ground against the verdict of the scrutinising moral consciousness. They have been repeatedly contradicted by the great teachers of morality. Confucius required an inward sincerity in all outward practice, and poured scorn on the pharisaism which contented itself with the cleansing of the outside of the cup and platter.[122] He said that, "in the rites of mourning, exceeding grief with deficient rites is better than little demonstration of grief with superabounding rites; and that in those of sacrifice, exceeding reverence with deficient rites is better than an excess of rites with but little reverence."[123] "Sacrifice is not a thing coming to a man from without; it issues from within him, and has its birth in his heart. When the heart is deeply moved, expression is given to it by ceremonies."[124] The virtuous man offers his sacrifices "without seeking for anything to be gained by them."[125] "The Master said, 'See what a man does. Mark his motives.'"[126] The popular Taouist work, called 'The Book of Secret Blessings,' inculcates the necessity {301} of purifying the heart as a preparation for all right-doing.[127] The religious legislator of Brahmanism, whilst assuming in accordance with the popular view that the fulfilment of religious duty will be always rewarded to some extent, whatever may be the motive, maintains that the man who fulfils his duties without regard to the rewards which follow the fulfilment, will enjoy the highest happiness in this life and eternal happiness hereafter.[128] According to the Buddhistic Dhammapada, "if a man speaks or acts with an evil thought, pain follows him, as the wheel follows the foot of the ox that draws the carriage. . . . If a man speaks or acts with a pure thought, happiness follows him, like a shadow that never leaves him."[129] In his description of the Buddhists of Mongolia, the Rev. James Gilmour observes:--"Mongol priests recognise the power of motive in estimating actions . . . . The attitude of the mind decides the nature of the act. He that offers a cup of cold water only, in a proper spirit, has presented a gift quite as acceptable as the most magnificent of donations."[130] With reference to the Hebrews, Mr. Montefiore says:--"If it were true that the later Judaism of the law laid exclusive stress in its moral teaching upon the mere outward act and not upon the spirit--upon doing rather than being, as we might nowadays express it--we should scarcely find that constant harping upon the heart as the source and seat of good and evil. What more legal book than Chronicles? Yet it is there that we find the earnest supplication for a heart directed towards God. . . . The eudæmonistic motive is strongest in Deuteronomy;

it is weakest with the Rabbis."[131] Few sayings are quoted and applied more frequently in the Rabbinical literature than the adage which closes those tractates of the Mishna which deal with the sacrificial law:--"He that brings few offerings is as he that brings many; let his heart be directed {302} heavenward."[132] The same faults which Jesus chastises in the hypocritical Rabbis of his day are also chastised in the Talmud. It is said, "Before a man prays let him purify his heart,"[133] and, "Sin committed with a good motive is better than a precept fulfilled from a bad motive."[134] Rabbi Elazar says, "No charity is rewarded but according to the degree of benevolence in it, for it is said, 'Sow (a reward) for yourselves in giving alms as charity, you will reap according to the benevolence.'"[135] Nor is the doctrine which requires disinterested motives for the performance of good deeds foreign to Muhammedan moralists. "Whatever we give," says the author of the Akhlâk-i-Jelâli, "should be given in the fulness of zeal and good-will. . . . We should spend it simply to please God, and not mix the act with any meaner motive, lest thereby it be rendered null and void."[136]

[Footnote 122: Cf. Legge, Religions of China, p. 261 sq.; Girard de Rialle, Mythologie comparée, p. 214.]

[Footnote 123: Lî Kî, ii. 1. 2. 27. Cf. Lun Yü, iii. 4. 3.]

[Footnote 124: Lî Kî, xxii. 1.]

[Footnote 125: Ibid. xxii. 2.]

[Footnote 126: Lun Yü, ii. 10. 1 sq.]

[Footnote 127: Douglas, Confucianism and Taouism, p. 272.]

[Footnote 128: Wheeler, History of India, ii. 478.]

[Footnote 129: Dhammapada, 1 sq.]

[Footnote 130: Gilmour, Among the Mongols, p. 239.]

[Footnote 131: Montefiore, op. cit. pp. 483, 533. 1 Chronicles, xxii. 19; xxviii. 9; xxix. 18 sq. 2 Chronicles, xi. 16; xv. 12; xvi. 9.]

[Footnote 132: Montefiore, op. cit. p. 484.]

[Footnote 133: Ibid. p. 174.]

[Footnote 134: Nazir, fol. 23 B, quoted by Hershon, Treasures of the Talmud, p. 74.]

[Footnote 135: Succah, fol. 49 B, ibid. p. 11.]

[Footnote 136: Quoted by Ameer Ali, Ethics of Islâm, p. 38 sq.]

Chapter XII — Forbearances and Carelessness--character

THE observation has often been made that in early moral codes the so-called negative commandments, which tell people what they ought not to do, are much more prominent than the positive commandments, which tell them what they ought to do. The main reason for this is that negative commandments spring from the disapproval or acts, whereas positive commandments spring from the disapproval of forbearances or omissions, and that the indignation of men is much more easily aroused by action than by the absence of it. A person who commits a harmful deed is a more obvious cause of pain than a person who causes harm by doing nothing, and this naturally affects the question of guilt in the eyes of the multitude. A scrutinising judge of course carefully distinguishes between willfulness and negligence, whereas, to his mind, a forbearance is morally equivalent to an act. The unreflecting judge, on the other hand, is much less concerned with the question of wilfulness than with the distinction between acting and not-acting. Even the criminal laws of civilised nations take little cognisance of

forbearances and omissions;[1] and one reason for this is that they evoke little public indignation. Even if it be admitted that the rules of beneficence, so far as details are concerned, must be left in a great measure to {304} the jurisdiction of private ethics, the limits of the law on this head, as Bentham remarks, seem "to be capable of being extended a good deal farther than they seem ever to have been extended hitherto." And he appropriately asks, "In cases where the person is in danger, why should it not be made the duty of every man to save another from mischief, when it can be done without prejudicing himself, as well as to abstain from bringing it on him?"[2]

[Footnote 1: Stephen, History of the Criminal Law of England, ii. 113. Hepp, Zurechnung auf dem Gebiete des Civilrechts, p. 115 (Roman law).]

[Footnote 2: Bentham, Principles of Morals and Legislation, p. 322 sq. To a certain extent, however, this has been admitted by legislators even in the Middle Ages. Frederick II.'s Sicilian Code imposed a penalty on persons who witnessed conflagrations or shipwrecks without helping the victims, and a fine of four augustales on anyone who, hearing the shrieks of an assaulted woman, did not hurry to her rescue (Constitutiones Napolitana sive Siculæ, i. 28, 22 [Lindenbrog, Codex legum antiquarum, pp. 715, 712]). Bracton says (De Legibus et Consuetudinibus Angliæ, fol. 121, vol. ii. 280 sq.) that he who could rescue a man from death and did not do it, ought not to be exempt from punishment. It was a principle of the Canon law that he who does not prevent the infliction of an injury upon his neighbour when it lies in his power to do so, is to be regarded as an accomplice in the offence (Geyer, Lehre von der Nothwehr, p. 74. Gregory IX. Decretales, v. 12, 6. 2: "Qui potuit hominem liberare a morte, et non liberavit, eum occidit").]

The more scrutinising the moral consciousness, the greater the importance which it attaches to positive commandments. This is well illustrated by a comparison between Old and New Testament morality. As Professor Seeley observes,[3] "the old legal formula began 'thou shalt not,' the new begins with 'thou shalt.' The young man who had kept the whole law--that is, who had refrained from a number of actions--is commanded to do something, to sell his goods and feed the poor. Condemnation was passed under the Mosaic law upon him who had sinned, who had done something forbidden--the soul that sinneth shall die; Christ's condemnation is pronounced upon those who had not done good--'I was an hungered and ye gave me no meat.' The sinner whom Christ habitually denounces is he who has done nothing." This characteristic is repeatedly manifested in His parables--as in the case of the priest and Levite who passed by on the other side; in the case of Dives, of whom no ill is recorded except that a beggar lay at his {305} gate full of sores and yet no man gave unto him; in the case of the servant who hid in a napkin the talent committed to him. However, to say that the new morality involved the discovery of "a new continent in the moral globe,"[4] is obviously an exaggeration. The customs of all nations contain not only prohibitions, but positive injunctions as well. To be generous to friends, charitable to the needy, hospitable to strangers, are rules which, as will be seen, may be traced back to the lowest stages of savagery known to us. The difference in question is only one of degree. Of the Bangerang tribe in Victoria Mr. Curr observes:--"Aboriginal restraints were, in the majority of cases, though not altogether, of a negative character; an individual might not do this, and might not eat that, and might not say the other. What he should do under any circumstances, or that he should do anything, were matters with which custom interfered less frequently."[5]

[Footnote 3: Seeley, Ecce Homo, p. 176.]

[Footnote 4: Ibid. p. 179.]

[Footnote 5: Curr, Recollections of Squatting in Victoria, p. 264 sq.]

Whilst the unreflecting mind has a tendency to overlook or underrate the guilt of a person who, whether wilfully or by negligence, causes harm by doing nothing, it is on the other hand, apt to exaggerate the guilt of a person who, not wilfully but out of heedlessness or rashness, causes harm by a positive act. In reality the latter person is blamable not for what he did, but for what he omitted to do, for want of due attention, for not thinking of the probable consequences of his act or for insufficient advertence to them. But the superficial judge largely measures the agent's guilt by the actual harm done, and in many cases even attributes to carelessness what was due to sheer misfortune.

As Sir F. Pollock and Prof. Maitland rightly observe, it is not true that barbarians will not trace the chain of causation beyond its nearest link--that, for example, they will not impute one man's death to another unless that other has struck a blow which laid a corpse at his feet.[6] {306} Among the Wanyoro, should a girl die in childbirth, the seducer is also doomed to die, unless he ransom himself by payment of some cows.[7] Among the Wakamba, if a man is the second time guilty of manslaughter in a state of drunkenness, the elders may either sentence him to death, "or make the seller of drink pay compensation to the family of the victim."[8] According to the native code of Malacca, if vicious buffaloes or cattle "be tied in the highway, where people are in the habit of passing and repassing, and gore or wound any person, the owner shall be fined one tahil and one paha, and pay the expense necessary for the cure of the wounded individual. Should he be gored to death, then the owner shall be fined according to the Diyat, because the owner is criminal in having tied the animal in an improper place."[9] In the Laws of Alfred it is said that, if a man have a spear over his shoulder and anybody stake himself on it, the man with the spear has to pay the wer.[10] According to an ancient custom, in vogue in England as late as the thirteenth century, one who was accused of homicide was, before going to the wager of battle, expected to swear that he had done nothing through which the dead man had become "further from life and nearer to death";[11] and damages which the modern English lawyer would without hesitation describe as "too remote" were not too remote for the author of the so-called 'Laws of Henry I.'[12] "At your request I accompany you when you are about your own affairs; my enemies fall upon and kill me; you must pay for my death.[13] You take me to see a wild beast show or that interesting spectacle a madman; beast or madman kills me; you must pay. You hang up your sword; some one else knocks it down so that it cuts me; you must pay."[14] In all these cases you did something that helped to bring {307} about death or wound, and you are consequently held responsible for the mishap.

[Footnote 6: Pollock and Maitland, History of English Law before the Time of Edward I. ii. 470.]

[Footnote 7: Emin Pasha in Central Africa, p. 83.]

[Footnote 8: Decle, Three Years in Savage Africa, p. 487.]

[Footnote 9: Newbold, British Settlements in the Straits of Malacca, ii. 256 sq.]

[Footnote 10: Laws of Alfred, 36.]

[Footnote 11: Leges Henrici I. xc. 11. Bracton, op. cit. fol. 141 b, vol. ii. 440 sq.]

[Footnote 12: Pollock and Maitland, op. cit. ii. 470 sq.]

[Footnote 13: Leges Henrici I. lxxxviii. 9.]

[Footnote 14: Ibid. xc. 11. Pollock and Maitland, op. cit. ii. 471.]

But though early custom and law may be anxious enough to trace an event to its source, they easily fail to distinguish between external and internal causes, to discover where there is guilt or not, and, in case of carelessness, to determine the magnitude of the offender's guilt. Ancient Teutonic law, as we have seen, distinguished between

vili and vadhi. It punished the involuntary manslayer less heavily than the voluntary one, but it punished him all the same; and whether the unintended deed was combined with heedlessness or was purely accidental was a question with which the law did not at all concern itself.[15] According to the Laws of [Hv]ammurabi, "if the doctor has treated a gentleman for a severe wound with a lancet of bronze, and has caused the gentleman to die, or has opened an abscess of the eye for a gentleman with the bronze lancet and has caused the loss of the gentleman's eye, one shall cut off his hands."[16] In the Mosaic law distinction was made between presence and absence of enmity in the manslayer, but the difference between carelessness and misfortune was not considered,[17] except when the instrument of death was a goring ox.[18] However, in this, as in many other respects, great progress was made by the later legislation of the Jews. The Rabbis took considerable pains to distinguish between purely accidental homicide and homicide due to carelessness; the former they exempted from all punishment, whereas the latter incurred the punishment of confinement to a city of refuge.[19] They even distinguished between cases in which the death was exclusively due to the carelessness of the agent, and cases in which the deceased contributed to it by some blamable act of his own. A father or a teacher {308} who in punishing his son or pupil unintentionally caused his death, and a person who by order of the Sanhedrim inflicted corporal punishment on a culprit and in doing so happened by mistake to kill him--such persons were not confined in a city of refuge, but escaped punishment altogether.[20] Whatever else may be said of these provisions, they certainly show remarkable discernment in a point where legislators of a ruder type have been very indiscriminate. In the oldest English records we see no attempt to distinguish cases in which the dead man himself was reprehensible from others in which no fault could be imputed to him, and we find that many horses and boats bore the guilt which should have been ascribed to beer.[21] When a drunken carter was crushed beneath the wheel of his cart, the cart, the cask of wine which was in it, and the oxen that were drawing it, were all deodand.[22] According to the customary law of the Ossetes, if a stolen gun went off in the hands of the thief who was carrying it away, and killed him, the thief's kin had a just feud against the owner of the gun.[23]

[Footnote 15: Wilda, Strafrecht der Germanen, p. 578. Geyer, op. cit. p. 88. Brunner, Forschungen zur Geschichte des deutschen und französischen Rechtes, p. 499.]

[Footnote 16: Laws of [Hv]ammurabi, 218.]

[Footnote 17: Numbers, xxxv. 16 sqq. Deuteronomy, xix. 4 sqq.]

[Footnote 18: Exodus, xxi. 28-32, 35 sq. Cf. Laws of [Hv]ammurabi, 250 sqq.]

[Footnote 19: Rabbinowicz, Législation criminelle du Talmud, p. 173 sqq.]

[Footnote 20: Ibid. p. 174. Benny, Criminal Code of the Jews according to the Talmud Massecheth Synhedrin, p. 115 sq.]

[Footnote 21: Pollock and Maitland, op. cit. ii. 474, n. 4.]

[Footnote 22: Three Early Assize Rolls for the County of Northumberland, p. 96 sq.]

[Footnote 23: Kovalewsky, Coutume contemporaine, p. 295.]

Modern laws generally hold a person liable for harm caused by him through want of ordinary care and foresight, and it depends on the nature of the case whether he will have to pay damages or to suffer punishment. Yet, as we have previously noticed, his punishment is determined not only by the degree of carelessness of which he was guilty or the danger to which he exposed his fellow-men, but, largely, by the harm resulting; whereas, if nobody happens to be hurt, little notice is taken of his fault. To such an extent are men's judgments in these matters influenced by external facts, that even nowadays many among ourselves will hold a person answerable for all the

damage which directly ensues from an act of his, even though no foresight could have reasonably been expected {309} to look out for it.[24] Not long ago there were plausible, if insufficient, grounds adduced for asserting that in English courts a plea that there was neither negligence nor an intent to do harm was no answer to an action which charged the defendant with having hurt the plaintiff's body.[25] And of late years attacks have been made by continental jurists upon the Roman principle that there is no liability where there is no fault[26]--a principle which, more or less modified, has been adopted by modern laws.[27] Although they take pains to point out the difference between punishment and indemnification, the very language they use indicates the quasi-ethical basis on which their theory rests. It is only just, they say, that he who has caused the evil should compensate for it, since the injured party "is still much more innocent than he." And the "sense of justice" is appealed to for compelling a man who faints in the street and in the fall happens to break some fragile articles to indemnify the owner for his loss.[28] Thus, whilst loss from accident is generally allowed to lie where it falls, an exception is made where the instrument of misfortune is a human being. This is a most unreasonable exception, but one not difficult to explain. People are ready to blame a person who commits a harmful deed, whether he deserves blame or not; at the same time they are apt to overlook the indirect and more remote cause of the harm which lies in the sufferer's own conduct. Hence the liability, if not the guilt, is laid on him who is a cause of pain by doing something, even though it be by merely spasmodic contractions of his muscles; whereas the other party, who only exposed himself to the risk of being hurt, is regarded as the "more innocent."

[Footnote 24: Holmes, Common Law, p. 80.]

[Footnote 25: Stanley v. Powell, in Law Reports, Queen's Bench Division, 1891, i. 86 sqq. Pollock and Maitland, op. cit. ii. 475 sq.]

[Footnote 26: von Jhering, Schuldmoment im römischen Privatrecht, passim, especially pp. 20 sqq., 40 sqq. Hepp, op. cit. p. 106.]

[Footnote 27: Forsman, Bidrag till läran om skadestånd i brottmål, p. 158 sq. Pollock, Law of Torts, p. 129 sqq.]

[Footnote 28: Thon, Rechtsnorm und subjectives Recht, p. 106, n. 71.]

Whilst culpability or quasi-culpability is thus imputed to the innocent committer of a harmful deed, little or no {310} censure is passed on him whose want of foresight or want of self-restraint is productive of suffering, if only the effect is sufficiently remote. This is exemplified by the frivolous leniency with which drunkenness, not long ago, was looked upon in many civilised countries, and by the criminal indifference with which law and public opinion still regard the production of offspring that are almost with certainty doomed to misery on account of the vices, poverty, or bodily infirmities of the parents. To interfere here, it is argued, would be to intrude upon the individual's right of freedom, or to meddle with the affairs of Providence. But men are not, generally, allowed to do mischief simply in order to gratify their own appetites, and Providence might equally well be called in to answer for any other kind of human shortcoming. I presume the true explanation to be, that in this, as in many other kindred cases, the cause and effect are so distant from each other that the near-sighted eye does not distinctly perceive the connection between them. Indeed, there is hardly any other point in which the moral consciousness of civilised men still stands in greater need of intellectual training than in its judgments on cases which display want of care or foresight. And there is no safer measure of the moral enlightenment of a man than the scrupulosity with which he considers the possible consequences of acts, and the number of positive commandments which are contained in his catalogue of duties.

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That moral indignation and moral approval are from the very beginning felt, not with reference to certain modes of conduct per se, but with reference to persons on account of their conduct, is obvious from the intrinsic nature of those emotions. As we noticed before, they derive one of their most essential characteristics from their being directed against sensitive agents. Hence they may as naturally give rise to judgments on human character as to judgments on human conduct. And even when a moral judgment immediately refers to a distinct act, it takes notice of the {311} agent's will as a whole. The forgiveness which follows sincere repentance, and the distinction made between injuries committed deliberately in cold blood and injuries committed in the heat of passion, indicate that men, in their moral judgments, are apt to consider something more than a momentary volition. The same tendency is at the bottom of the common practice of punishing a second and third offence more severely than the first.

Among the Masai, "if a man is convicted of a particular crime several times, or constitutes himself a public nuisance, he is proclaimed an outlaw, his property is confiscated, and he is beaten away from any settlement or village he goes near. Unless an outlaw can find friends among non-Masai tribes, he dies of starvation."[29] Among the Wakamba "a murder is judged by the elders; if it is a man's first offence of that kind he is punished by a fine. . . . But a man convicted for the second time of murder is killed at once, everyone setting on him the moment judgment is delivered. . . . For rape a first offender is flogged, and has to pay a fine of one cow; for the second offence he is killed."[30] Among the Wyandots of North America, "a woman guilty of adultery, for the first offence is punished by having her hair cropped; for repeated offences her left ear is cut off."[31] The laws of the Incas, also, were more lenient to a first offence than to a second;[32] and in the kingdom of Mechoacan, whilst the first theft was not severely punished, the thief who repeated his crime was thrown down a precipice and his carcass was left to the birds of prey.[33] Among the Aleuts, for the first theft "corporal punishment was inflicted; for the second offence of the kind some fingers of the right hand were cut off; for the third, the left hand and sometimes the lips were amputated; and for the fourth offence the punishment was death." Other crimes, again, "were punished at first by reprimand by the chief before the community, and upon repetition the offender was bound and kept in such a condition for some time."[34] The Kamchadales "burn the hands of people who have been frequently caught in theft, but for the first offence the thief must restore what he hath stolen, and live alone {312} in solitude, without expecting any assistance from others."[35] Among the Ainu, "for breaking into the storehouse or dwelling of another, a very sound beating was administered for the first offence; for the second, sometimes the nose was cut off, sometimes the ears, and in some cases both the nose and ears were forfeited. . . . Persons who had committed such a crime twice were driven bag and baggage out of the home and village to which they belonged."[36] Among the Murray Islanders repetition of an offence such as murder or robbery generally incurred a penalty of death, whereas the first offence was punished only by a fine.[37] According to the Javanese Níti Sástra, if a man violates the law, he may for the first transgression be punished by a pecuniary fine, for the second by a punishment affecting his person, but for the third he may be punished with death.[38] The Penal Code of the Chinese prescribes that, for the first offence, individuals convicted of being concerned in a theft shall be branded in the lower part of the left arm with two words signifying thief, that for the second offence they shall be branded again with the same words in the lower part of the right arm, but that for the third offence they shall suffer death by being strangled, after remaining the usual period

in confinement.[39] In Nepal, in the case of theft or petty burglary, for the first offence one hand is cut off, for the second the other hand, whilst the third offence is capital.[40] Herodotus mentions with approval that in ancient Persia not even the king was allowed to put any one to death for a single crime.[41] According to the Vendîdâd, the gravity of a crime does not depend only on the gravity of the deed, but on its frequency as well.[42] In ancient Rome the repetition of a crime aggravated its punishment.[43] According to early English law, the punishment upon a second conviction for nearly every offence was death or mutilation.[44] In modern European legislation, the principle that the criminality of certain crimes is increased by their repetition is generally recognised.

[Footnote 29: Hinde, The Last of the Masai, p. 108.]

[Footnote 30: Decle, op. cit. p. 487.]

[Footnote 31: Powell, 'Wyandot Government,' in Ann. Rep. Bur. Ethn. i. 66.]

[Footnote 32: Herrera, General History of the West Indies, iv. 338 sqq.]

[Footnote 33: Ibid. iii. 255.]

[Footnote 34: Veniaminof, quoted by Petroff, 'Report on Alaska,' in Tenth Census of the United States, p. 152.]

[Footnote 35: Krasheninnikoff, History of Kamschatka, p. 179.]

[Footnote 36: Batchelor, Ainu and their Folk-lore, p. 285.]

[Footnote 37: Hunt, in Jour. Anthr. Inst. xxviii. 6.]

[Footnote 38: Raffles, History of Java, i. 262.]

[Footnote 39: Ta Tsing Leu Lee, sec. cclxix. p. 285.]

[Footnote 40: Hodgson, Miscellaneous Essays, ii. 235.]

[Footnote 41: Herodotus, i. 137.]

[Footnote 42: Vendîdâd, iv. 17 sqq.]

[Footnote 43: Mommsen, Römisches Strafrecht, p. 1044.]

[Footnote 44: Stephen, op. cit. i. 58.]

The more a moral judgment is influenced by reflection, the more it scrutinises the character which manifests itself {313} in that individual piece of conduct by which the judgment is occasioned. But however superficial it be, it always refers to a will conceived of as a continuous entity, to a person regarded as a cause of pleasure or pain. This holds good of savage and civilised men alike. Even tame animals, in response to a hurt or a benefit, behave differently towards different persons according to their previous experience of the agent.

Chapter XIII

WHY MORAL JUDGMENTS ARE PASSED ON CONDUCT AND CHARACTER--MORAL VALUATION AND FREE-WILL

WE have examined the general nature of the subjects of moral judgments from an evolutionary point of view. We have seen that such judgments are essentially passed on conduct and character, and that allowance is made for the various elements of which conduct and character are composed in proportion as the moral judgment is scrutinising and enlightened. But an important question still calls for an answer, the question, Why is this so? We cannot content ourselves with the bare fact that nothing but the will is morally good or bad. We must try to explain it.

After what has been said above the explanation is not far to seek. Moral judgments are passed on conduct and character, because such judgments spring from moral

emotions; because the moral emotions are retributive emotions; because a retributive emotion is a reactive attitude of mind, either kindly or hostile, towards a living being (or something looked upon in the light of a living being), regarded as a cause of pleasure or as a cause of pain; and because a living being is regarded as a true cause of pleasure or pain only in so far as this feeling is assumed to be caused by its will. The correctness of this explanation I consider to be proved by the fact that not only moral emotions, but non-moral retributive emotions as well, are felt with reference to phenomena {315} exactly similar in nature to those on which moral judgments are passed.

Like moral indignation, the emotion of revenge can be felt only towards a sentient being, or towards something which is believed to be sentient. We may be angry with inanimate things for a moment, but such anger cannot last; it disappears as soon as we reflect that the thing in question is incapable of feeling pain. Even a dog which, in playing with another dog, hurts itself, for instance, by running into a tree, changes its angry attitude immediately it notices the real nature of that which caused it pain.[1]

[Footnote 1: Hiram Stanley, Studies in the Evolutionary Psychology of Feeling, p. 154 sq.]

Equivalent to injuries resulting from inanimate things are injuries resulting accidentally from animate beings. If my arm or my foot gives a push to my neighbour, and he is convinced that the push was neither intended nor foreseen nor due to any carelessness whatever on my part, surely he cannot feel angry with me. Why not? Professor Bain answers this question as follows:--"Aware that absolute inviolability is impossible in this world, and that we are all exposed by turns to accidental injuries from our fellows, we have our minds disciplined to let unintended evil go by without satisfaction of inflicting some counter evil upon the offender."[2] Perhaps another answer would be that an accidental injury in no way affects the "self-feeling" of the sufferer. But neither of these explanations goes to the root of the question. Let us once more remember that even a dog distinguishes between being stumbled over and being kicked; and this can neither be the result of discipline, nor have anything to do with the feeling of self-regarding pride.[3] The reason is that the dog scents an enemy in the person who kicks him, but not in the one who stumbles. My neighbour, more clearly still, makes a distinction between a part of my body and myself as a {316} volitional being, and finds that I am no proper object of resentment when the cause of the hurt was merely my arm or my foot. An event is attributed to me as its cause only in proportion as it is considered to have been brought about by my will; and I, regarded as a volitional and sensitive entity, can be a proper object of resentment only as a cause of pain.

[Footnote 2: Bain, Emotions and the Will, p. 185.]

[Footnote 3: The Koussa Kafirs, according to Lichtenstein (Travels in Southern Africa, i. 254), expect a similar discrimination from the elephant; for "if an elephant is killed . . . they seek to exculpate themselves towards the dead animal, by declaring to him solemnly, that the thing happened entirely by accident, not by design."]

We can hardly feel disposed to resent injuries inflicted upon us by animals, little children, or madmen, when we recognise their inability to judge of the nature of their acts. They are not the real causes of the mischief resulting from their deeds, since they neither intended nor foresaw nor could have foreseen it. "Why," says the Stoic, "do you bear with the delirium of a sick man, or the ravings of a madman, or the impudent blows of a child? Because, of course, they evidently do not know what they are doing. . . . . Would anyone think himself to be in his perfect mind if he were to return kicks to a mule or bites to a dog?"[4] Hartley observes, "As we improve in observation and experience, and in the faculty of analysing the actions of animals, we perceive that brutes and

children, and even adults in certain circumstances, have little or no share in the actions referred to them."[5]

[Footnote 4: Seneca, De ira, iii. 26 sq.]

[Footnote 5: Hartley, Observations on Man, i. 493.]

Deliberate resentment considers the motives of acts. Suppose that a man tells us an untruth. Our feelings towards him are not the same if he did it in order to save our life as if he did it for his own benefit. Moreover, our anger abates, or ceases altogether, if we find that he who injured us acted under compulsion, or under the influence or a non-volitional impulse, too strong for any ordinary man to resist. Then, the main cause or the injury was not his will, conceived as a continuous entity. It yielded to the will of somebody else, reluctantly, as it were out of necessity, or to a powerful conation which forms no part of his real self. He was merely an instrument in another's hands, or he was "beside himself," "beyond himself," "out of his {317} mind." When we are angry, says Montaigne, "it is passion that speaks, and not we."[6] The religious psychology of the ancient Greeks ascribed acts committed upon sudden excitement of mind to the Ate which bewilders the mind and betrays the man into deeds which, in his sober senses, he is heartily sorry for. Hence the Ate has in its train the Litae--the humble prayers of repentance, which must make good, before gods and men, whatever has been done amiss.[7] The Vedic singer apologises, "It is not our own will, Varuna, that leads us astray, but some seduction--wine, anger, dice, and our folly."[8] In the Andaman Islands violent outbreaks of ill-temper or resentment are looked upon as the result of a temporary "possession," and the victim is, for the time being, considered unaccountable for his actions.[9] Madness, as we have seen, is frequently attributed to demoniacal possession. In ancient Ireland, again, it was believed to be often brought on by malignant magical agency, usually the work of some druid, hence in the Glosses to the Senchus Mór a madman is repeatedly described as one "upon whom the magic wisp has been thrown."[10] What a person does in madness is not an act committed by him.

"Was 't Hamlet wrong'd Laertes? Never Hamlet: If Hamlet from himself be ta'en away, And when he's not himself does wrong Laertes, Then Hamlet does it not, Hamlet denies it. Who does it, then? His madness: if 't be so, Hamlet is of the faction that is wrong'd; His madness is poor Hamlet's enemy."[11]

[Footnote 6: Montaigne, Essais, ii. 31 ([OE]uvres, p. 396).]

[Footnote 7: Iliad, ix. 505 sqq. Müller, Dissertations on the Eumenides, p. 108.]

[Footnote 8: Rig-Veda, vii. 86. 6.]

[Footnote 9: Man, in Jour. Anthrop. Inst. xii. 111.]

[Footnote 10: Joyce, Social History of Ancient Ireland, i. 224.]

[Footnote 11: Shakespeare, Hamlet, v. 2.]

We resent not only acts and volitions, but also omissions, though generally less severely; and when a hurt is attributed to want of foresight, our resentment is, ceteris paribus, proportionate to the degree of carelessness {318} which we lay to the offender's charge. A person appears to us as the cause of an injury which we think he could have prevented by his will. But a hurt resulting from carelessness is not to the same extent as an intentional injury caused by the will. And the less foresight could have been expected in a given case, the smaller share has the will in the production of the event.

Our resentment is increased by a repetition of the injury, and reaches its height when we find that our adversary nourishes habitual ill-will towards us. On the other hand, as we have noticed in a previous chapter,[12] the injured party is not deaf to the prayer for forgiveness which springs from genuine repentance. Like moral indignation, non-moral resentment takes into consideration the character of the injurer.

[Footnote 12: Supra, ch. iii.]

Passing to the emotion of gratitude, we find a similar resemblance between the phenomena which give rise to this emotion and those which call forth moral approval. We may feel some kind of retributive affection for inanimate objects which have given us pleasure; "a man grows fond of a snuff-box, of a pen-knife, of a staff which he has long made use of, and conceives something like a real love and affection for them."[13] But gratitude, involving a desire to please the benefactor, can reasonably be felt towards such objects only as are themselves capable of feeling pleasure. Moreover, on due deliberation we do not feel grateful to a person who benefits us by pure accident. Since gratitude is directed towards the assumed cause of pleasure, and since a person is regarded as a cause only in his capacity of a volitional being, gratitude presupposes that the pleasure shall be due to his will. For the same reason motives are also taken into consideration by the benefited party. As Hutcheson observes, "bounty from a donor apprehended as morally evil, or extorted by force, or conferred with some view of self-interest, will not procure real good-will; nay, it may raise indignation."[14] {319} Like moral approval, gratitude may be called forth not only by acts and volitions, but by absence of volitions, in so far as this absence is traceable to a good disposition of will. And, like the moral judge, the grateful man is, in his retributive feeling, influenced by the notion he forms of the benefactor's character.

[Footnote 13: Adam Smith, Theory of Moral Sentiments, p. 136.]

[Footnote 14: Hutcheson, Inquiry concerning Moral Good and Evil, p. 157.]

The cognitions by which non-moral resentment and gratitude are determined are thus, as regards their general nature, precisely similar to those which determine moral indignation and approval. Whether moral or non-moral, a retributive emotion is essentially directed towards a sensitive and volitional entity, or self, conceived of as the cause of pleasure or the cause of pain. This solves a problem which necessarily baffles solution in the hands of those who fail to recognise the emotional origin of moral judgments, and which, when considered at all, has, I think, never been fully understood by those who have essayed it. It has been argued, for instance, that moral praise and blame are not applied to inanimate things and those who commit involuntary deeds, because they are administered only "where they are capable of producing some effect";[15] that moral judgment is concerned with the question of compulsion, because "only when a man acts morally of his own free will is society sure of him";[16] that we do not regard a lunatic as responsible, because we know that "his mind is so diseased that it is impossible by moral reprobation alone to change his character so that it maybe subsequently relied upon."[17] The bestowal of moral praise or blame on such or such an object is thus attributed to utilitarian calculation;[18] whereas in reality it is determined by the nature of the moral emotion which lies at the bottom of the judgment. And, as Stuart Mill observes (though he never seems to have realised the full import of his objection), whilst we may administer praise and blame with the express design of influencing conduct, "no anticipation of salutary effects {320} from our feeling will ever avail to give us the feeling itself."[19]

[Footnote 15: James Mill, Fragment on Mackintosh, p. 370.]

[Footnote 16: Ziegler, Social Ethics, p. 56 sq.]

[Footnote 17: Clifford, Lectures and Essays, p. 296.]

[Footnote 18: See also James Mill, op. cit. pp. 261, 262, 375.]

[Footnote 19: Stuart Mill, in a note to James Mill's Analysis of the Phenomena of the Human Mind, ii. 323.]

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The nature of the moral emotions also gives us the key to another important problem--a problem which has called forth endless controversies--namely, the co-existence of moral responsibility with the general law of cause and effect. It has been argued that responsibility, and moral judgments generally, are inconsistent with the notion that the human will is determined by causes; that "either free-will is a fact, or moral judgment a delusion." The argument has been well summed up by Sir Leslie Stephen as follows:--"Moral responsibility, it is said, implies freedom. A man is only responsible for that which he causes. Now the causa causæ is also the causa causati. If I am caused as well as cause, the cause of me is the cause of my conduct; I am only a passive link in the chain which transmits the force. Thus, as each individual is the product of something external to himself, his responsibility is really shifted to that something. The universe or the first cause is alone responsible, and since it is responsible to itself alone, responsibility becomes a mere illusion."[20] We are told that, if determinism were true, human beings would be no more proper subjects of moral valuation than are inanimate things; that the application of moral praise and blame would be "in itself as absurd as to applaud the sunrise or be angry at the rain";[21] that the only admiration which the virtuous man might deserve would be the kind of admiration "which we justly accord to a well-made machine."[22] Nor are these inferences from the doctrine of determinism only weapons forged by its opponents; they are shared by many of its own adherents. Richard Owen and his followers maintained that, since a man's character is made for him, not by him, there is no justice in punishing {321} him for what he cannot help.[23] To Stuart Mill responsibility simply means liability to punishment, inflicted for a utilitarian purpose.[24] So also Prof. Sidgwick--whose attitude towards the free-will theory is that of a sceptic--argues that the common retributive view of punishment, and the ordinary notions of "merit," "demerit," and "responsibility," involve the assumption that the will is free, and that these terms, if used at all, have to be used in new significations. "If the wrong act," he says, "and the bad qualities of character manifested in it, are conceived as the necessary effects of causes antecedent or external to the existence of the agent, the moral responsibility--in the ordinary sense--for the mischief caused by them can no longer rest on him. At the same time, the Determinist can give to the terms 'ill-desert' and 'responsibility' a signification which is not only clear and definite, but, from an utilitarian point of view, the only suitable meaning. In this view, if I affirm that A is responsible for a harmful act, I mean that it is right to punish him for it; primarily, in order that the fear of punishment may prevent him and others from committing similar acts in future."[25]

[Footnote 20: Leslie Stephen, Science of Ethics, p. 285.]

[Footnote 21: Martineau, Types of Ethical Theory, ii. 41 sq.]

[Footnote 22: Balfour, Foundations of Belief, p. 25.]

[Footnote 23: Stuart Mill, Examination of Sir William Hamilton's Philosophy, p. 506.]

[Footnote 24: Ibid. p. 506 sqq.]

[Footnote 25: Sidgwick, Methods of Ethics, p. 71 sq.]

If these conclusions are correct it is obvious that, whether the infliction of punishment be justifiable or not, the feeling of moral indignation or moral approval is, from the deterministic point of view, absurd. And yet, as a matter of fact, these emotions are felt by determinists and libertarians alike. Apparently, they are not in the least affected by the notion that the human will is subject to the general law of cause and effect. Emotions are always determined by specific cognitions, and last only as long as the influence of those cognitions lasts. It makes me sorry to hear that some evil has befallen a friend; but my sorrow disappears at once when I find that the rumour was false. I get

angry with a person who hurts me; but my anger subsides as soon as I recognise that the hurt was purely accidental. My indignation is aroused by an {322} atrocious crime; but it ceases entirely when I hear that the agent was mad. On the other hand, however convinced I am that a person's conduct and character are in every detail a product of causes, that does not prevent me from feeling towards him retributive emotions--either anger or gratitude, or moral resentment or approval. Hence I conclude that a retributive emotion is not essentially determined by the cognition of free-will. I hold that Spinoza is mistaken in his assumption that men feel more love or hatred towards one another than towards anything else, because they think themselves to be free.[26] And I attribute the conception that moral valuation is inconsistent with determinism either to a failure to recognise the emotional origin of moral judgments or to insufficient insight into the true nature of the moral emotions. At the same time it seems easy to explain the fallacy which lies at the bottom of that conception.

[Footnote 26: Spinoza, Ethica, iii. 49, Note.]

We have seen that the object of moral approval and disapproval is the will, and that a person's responsibility is lessened in proportion as his will is exposed to the pressure of non-volitional conations. Full responsibility thus presupposes freedom from such pressure, and, particularly, freedom from external compulsion. Hence the inference that it also presupposes freedom from causation, and that complete determination involves complete irresponsibility. Compulsion is confounded with causation; and this confusion is due to the fact that the cause which determines the will is actually looked upon in the light of a constraining power outside the will.

The popular mind has a strong belief in the law of cause and effect. When reflecting on the matter, it admits that everything which happens in this world has a cause; and if the natural cause is hidden, it readily calls in a supernatural cause to account for the event. Now, in the case of human volitions the chain of causation is often particularly obscure; as Spinoza said, whilst men are conscious of their volitions and desires, they "never even {323} dream, in their ignorance, of the causes which have disposed them so to wish and desire."[27] Hence, when in a philosophic mood, they are liable to attribute their acts to the influence of an external power ruling over human affairs, a god or an all-powerful fate. No doubt, Providence and Fate[28] may effect their purposes without the will of man as their tool; what happens "by chance," being frequently no less wonderful than any decree of a human will, may likewise be traced to a supernatural cause. But, on the other hand, the fact that the deeds of men are generally preceded by volitions, is so obvious that it could not escape even the simplest mind--indeed, so strongly are primitive men impressed by this fact that they are apt to attribute every event to a will. Acknowledging, then, the connection between volition and deed, the fatalist regards the former only as an instrument in the hands of a force outside the agent, which compels his will to execute its plans. Sometimes it reaches its goal in a way quite unforeseen by the agent himself. Muhammed said, "When God hath ordered a creature to die in any particular place, He causeth his wants to direct him to that place";[29] and it is a popular saying throughout Islam that "whenas Destiny descends she blindeth human sight."[30] Sometimes the external power causes its victim to will its decree, by exciting in him some irresistible passion, as when Zeus urged Clytemnestra to the slaughter of Agamemnon; or the volitions of a person are themselves regarded as decreed by that power. In Wärend, in Sweden, when somebody has killed another, as also when the manslayer himself suffers the penalty of death, the women say, full of compassion, "Well, this was his destiny, to be sure," or "Poor fellow, it was a pitiful fate."[31] In one of the Pahlavi texts the following words are put into the mouth of the Spirit of {324}

Wisdom:--"Even with the might and powerfulness of wisdom and knowledge, even then it is not possible to contend with destiny. Because, when predestination as to virtue, or as to the reverse, comes forth, the wise becomes wanting in duty, and the astute in evil becomes intelligent; the faint-hearted becomes braver, and the braver becomes faint-hearted; the diligent becomes lazy, and the lazy acts diligently. Just as is predestined as to the matter, the cause enters into it, and thrusts out everything else."[32]

[Footnote 27: Ibid. pt. i. Appendix.]

[Footnote 28: In a Pahlavi text fate is defined as "that which is ordained from the beginning," and divine providence as that which the sacred beings "also grant otherwise" (Dînâ-î Maînôg-î Khirad, xxiv. 6 sq.).]

[Footnote 29: Lane, Arabian Society in the Middle Ages, p. 6.]

[Footnote 30: Burton, in his translation of the Arabian Nights, i. 62, n. 2.]

[Footnote 31: Hyltén-Cavallius, Wärend och Wirdarne, i. 206.]

[Footnote 32: Dînâ-î Maînôg-î Khirad, xxiii. 3 sqq.]

Nor is it only the popular mind that, when human volitions are concerned, interprets causation as compulsion. Even such philosophers as Hamilton[33] and Mansel[34] seemed quite unable to distinguish between determinism and fatalism. Professor Laurie likewise observes:--"Determinism is the term adopted of late years to veil fatalism and confound issues . . . . Freedom or fate, these are the sole alternatives."[35] Surely, it is those who identify determinism with fatalism that "confound issues." And a similar confusion lurks behind the main argument which has been adduced in support of free-will. It is said that "I ought" implies "I can," and that men are not accountable for what they cannot avoid. This is perfectly true if by "cannot" is meant compulsion, and by "can" freedom from compulsion. But it is certainly not true if "I can" is intended to mean that "I" am a first cause, not determined by anything else.

[Footnote 33: Hamilton, Lectures on Metaphysics, ii. 410 sqq.]

[Footnote 34: Mansel, Prolegomena Logica, p. 329 sqq.]

[Footnote 35: Laurie, Ethica, pp. 307, 319.]

When a person's will is believed to be constrained by a power outside him, he can obviously not be held responsible for what he does under the influence of such constraint. We are responsible only for that which is due to our will. A licentious man who has grown up in a corrupt society is less blamable than an equally licentious man who has always lived under conditions favourable to virtue; and if we hear of a criminal that he was kidnapped as a child by a band of pickpockets and trained to their profession, we {325} no doubt look upon him with some indulgence. In these cases, however, it may be said that, though the person's conduct is largely due to the influence of external circumstances upon his will, this influence was not irresistible, that he might have saved himself with an effort of will, and that consequently he is not wholly irresponsible. But in the case of a restraining destiny no escape is possible; the compulsion is complete. Hence the logical outcome of radical fatalism is a denial of all moral imputability, and a repudiation of all moral judgment.[36]

[Footnote 36: Of the inhabitants of North-Eastern Africa, Munzinger observes (Ostafrikanische Studien, p. 66):--"Seien sie Christen, Heiden, odor Mohammedaner, schreiben sie Leben und Tod, Glück und Unglück, Tugend und Verbrechen der unmittelbaren Hand Gottes zu. Mit dieser blinder Nothwendigkeit entschuldigt sich der Missethäter, tröstet sich der Unglückliche." Cf. also Doughty, Arabia Deserta, i. 155, on the Bedouins. However, men are not philosophers in the ordinary practice of life, hence the fatalist is generally as ready as anybody else to judge on his neighbour's conduct.

According to various ancient writers, the power of destiny is limited so as not to exclude personal responsibility (see Schmidt, Ethik der alten Griechen, i. 59 sq.).]

Not so with determinism. Whilst fatalism presupposes the existence of a person who is constrained by an outward power, determinism regards the person himself as in every respect a product of causes. It does not assume any part of his will to have existed previous to his formation by these causes; his will is not constrained by them, it is made by them. When we say of a person that he is influenced by external circumstances or subdued by fate, we regard him as existing independently of that which influences or subdues him, we attribute to him an innate character which is acted upon from the outside. He would have been different if he had grown up under different conditions of life, or if fate had left him alone. But it would be absolutely meaningless to say that he would be different if the causes to which he owes his existence had been different; for instance, if he were the offspring of different parents. This shows that we distinguish between the original self of a person and the self which is partly innate and partly the product of external circumstances. His innate character belongs to his original {326} self; and, strictly speaking, it is on the innate character only that the scrutinising moral judge, so far as possible, passes his judgment, carefully considering the degree of pressure to which it has been exposed both from the non-voluntary part of the individual himself and from the outside world.[37] According to the fatalist, the innate character is compelled; hence personal responsibility is out of the question. According to the determinist the innate character is caused; but this has nothing whatever to do with the question of responsibility. The moral emotions are no more concerned with the origin of the innate character than the aesthetic emotions are concerned with the origin of the beautiful object. In their capacity of retributive emotions, the moral emotions are essentially directed towards sensitive and volitional entities conceived, not as uncaused themselves, but only as causes of pleasure or pain.

[Footnote 37: That the proper subject of moral judgment is the innate character was emphasised by Schopenhauer in his prize-essays on Die Freiheit des Willens (Sämmtliche Werke, vii. 83 sqq.) and Die Grundlage der Moral (ibid. vii. 273 sqq.). The innate character, he says, that real core of the whole man, contains the germ of all his virtues and vices. And though Schopenhauer be mistaken in his statement that a person's character always remains the same, it seems to me indisputable that the succeeding changes to which it may be subject are imputable to him only in so far as they are caused by his innate character.]

Chapter XIV — Preliminary Remarks--homicide in General

WE have discussed the general nature of those phenomena which have a tendency to evoke moral blame or moral praise. We have seen that moral judgments are passed on conduct and character, and we have seen why this is the case. It now remains for us to examine the particular modes of conduct which are subject to moral valuation, and to consider how these modes of conduct are judged of by different peoples and in different ages.

If carried out in every detail such an investigation could never come to an end. Among other things, it would have to take into account all customs existing among the various races of men, since every custom constitutes a moral rule. And the impossibility

of any such undertaking becomes apparent when we consider the extent to which the conduct of man, and especially of savage man, is hampered by custom. Among the Wanika, for instance, "if a man dares to improve the style of his hut, to make a larger doorway than is customary; if he should wear a finer or different style of dress to that of his fellows, he is instantly fined."[1] If, during the performance of a ceremony, the ancestors of an Australian native were in the habit of painting a white line across the forehead, their descendant must do the same.[2] Dr. Nansen's statement with reference to the Greenlanders, {328} that their communities had originally customs and fixed rules for every possible circumstance,[3] is essentially true of many, if not all, of the lower races.

[Footnote 1: New, Life, Wanderings, and Labours in Eastern Africa, p. 110.]

[Footnote 2: Spencer and Gillen, Native Tribes of Central Australia, p. 11.]

[Footnote 3: Nansen, Eskimo Life, p. 104.]

It is necessary, then, that we should restrict ourselves to the more important modes of conduct with which the moral consciousness of mankind is concerned. These modes of conduct may be conveniently divided into six groups. The first group includes such acts, forbearances, and omissions as directly concern the interests of other men, their life or bodily integrity, their freedom, honour, property, and so forth. The second includes such acts, forbearances, and omissions as chiefly concern a man's own welfare, such as suicide, temperance, asceticism. The third group, which partly coincides with, but partly differs from, both the first and the second, refers to the sexual relations of men. The fourth includes their conduct towards the lower animals; the fifth, their conduct towards dead persons; the sixth, their conduct towards beings, real or imaginary, that they regard as supernatural. We shall examine each of these groups separately, in the above order. And, not being content with a mere description of facts, we shall try to discover the principle which lies at the bottom of the moral judgment in each particular case.

* * * * *

It is commonly maintained that the most sacred duty which we owe our fellow-creatures is to respect their lives. I venture to believe that this holds good not only among civilised nations, but among the lower races as well; and that, if a savage recognises that he has any moral obligations at all to his neighbours, he considers the taking of their lives to be a greater wrong than any other kind of injury inflicted upon them.

Among various uncivilised peoples, however, human life is said to be held very cheap.

The Australian Dieyerie, we are told, would for a mere trifle kill their dearest friend.[4] In Fiji there is an "utter disregard of {329} the value of human life."[5] A Masai will murder his friend or neighbour in a fight over a herd of captured cattle, and "live not a whit the less merrily afterwards."[6] Among the Bachapins, a Bechuana tribe, murder "excites little sensation, excepting in the family of the person who has been murdered; and brings, it is said, no disgrace upon him who has committed it; nor uneasiness, excepting the fear of their revenge."[7] The Oráons of Bengal "are ready to take life on very slight provocation," and Colonel Dalton doubts whether they see any moral guilt in it.[8] Some of the Himalayan mountaineers are reported to put men to death merely for the satisfaction of seeing the blood flow and of marking the last struggles of the victim.[9] Among the Pathans, on the north-western frontier of the Punjab, "there is hardly a man whose hands are unstained," and each person "counts up his murders."[10]

[Footnote 4: Gason, 'Manners and Customs of the Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 258.]

[Footnote 5: Williams and Calvert, Fiji and the Fijians, p. 115.]

[Footnote 6: Johnston, Kilima-njaro Expedition, p. 419.]

[Footnote 7: Burchell, Travels in the Interior of Southern Africa, ii. 554.]

[Footnote 8: Dalton, Descriptive Ethnology of Bengal, p. 256.]

[Footnote 9: Fraser, Journal of a Tour through the Him[=a]l[=a] Mountains, p. 267.]

[Footnote 10: Temple, quoted by Spencer, Principles of Ethics, i. 343. For other instances of the indifference of savages to human life, see Egede, Description of Greenland, p. 123; Cranz, History of Greenland, i. 177; Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddeleser om Grönland, x. 87, 179 sq.; Coxe, Russian Discoveries between Asia and America, p. 257 (Aleuts of Unalaska); Krasheninnikoff, History of Kamtschatka, p. 204; Steller, Beschreibung von dem Lande Kamtschatka, p. 294; Boyle, Adventures among the Dyaks of Borneo, p. 116 (Malays); Powell, Wanderings in a Wild Country, p. 262 (aborigines of New Britain); Scaramucci and Giglioli, 'Notizie sui Danakil,' in Archivio per antropologia e la etnologia, xiv. 26; Wilson and Felkin, Uganda, ii. 310 (Gowane); Schweinfurth, Heart of Africa, i. 286 (Bongo); Arnot, Garenganze, p. 71 (Barotse); Tuckey, Expedition to Explore the River Zaire, p. 383 (Congo natives); Waul, Five Years with the Congo Cannibals, p. 105 (Bolobo).]

On the other hand, there are uncivilised peoples among whom homicide or murder is said to be hardly known.

Among the Omahas, "before liquor was introduced there were no murders, even when men quarrelled."[11] Captain Lyon could learn of no instances of manslaughter having ever occurred among the Eskimo of Igloolik.[12] In Tutuila, of the Samoa group, according to Brenchley, there had been but one case of assassination in the course of twenty years.[13] The Veddahs of Ceylon know of manslaughter only as a punishment.[14] {330} The Bedouin of the Euphrates, says Mr. Blunt, "is essentially humane, and never takes life needlessly. If he has killed a man in war he rather conceals the fact than proclaims it aloud, while murder or even homicide is almost unknown among the tribes."[15] Among the Bakwiri, in Cameroon, Zoller never heard of any person having killed a member of his own community.[16] Murders, says Caillié, "are rare among the Bambaras, and never committed by the Mandingoes."[17] Among the Wanika "wilful cold-blooded murders are almost unknown."[18] Among the Basutos perfect safety is enjoyed "on roads where the traveller might have been robbed a hundred times over without the least hope of aid, and in houses where the doors and windows have neither bolts nor bars," and cases of murder are very rare.[19]

[Footnote 11: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 369.]

[Footnote 12: Lyon, Private Journal, p. 350.]

[Footnote 13: Brenchley, Jottings during the Cruise of H.M.S. "Curaçoa" among the South Sea Islands, p. 58.]

[Footnote 14: Sarasin, Ergebnisse naturwissenschaftlicher Forschungen auf Ceylon, iii. 539. Cf. Tennent, Ceylon, ii. 444. Hartshorne, in Indian Antiquary, viii. p. 320.]

[Footnote 15: Blunt, Bedouin Tribes of the Euphrates, ii. 203. Cf. ibid. ii. 207.]

[Footnote 16: Zöller, Kamerun, i. 188.]

[Footnote 17: Caillié, Travels through Central Africa, i. 353.]

[Footnote 18: New, op. cit. p. 98.]

[Footnote 19: Casalis, Basutos, p. 301. For other instances, see Hall, Arctic Researches, p. 571 (Eskimo); Dobrizhoffer, Account of the Abipones, ii. 148; Turner, Samoa, p. 178; Ellis, Tour through Hawaii, p. 429; Brooke, Ten Years in Saráwak, i. 61 (Sea Dyaks); Low, Sarawak, p. 133; Marsden, History of Sumatra, p. 471 (Poggi Islanders); Steller, De Sangi-Archipel, p. 26; Riedel, De sluik- en kroesharige rassen tusschen

Selebes en Papua, p. 41 (Ambon and Uliase Islanders); von Siebold, Aino auf der Insel Yesso, pp. 11, 35; Munzinger, Ostafrikanische Studien, p. 532 (Barea and Kunáma); Holub, Seven Years in South Africa, ii. 319 (Marutse); Maclean, Compendium of Kafir Laws and Customs, pp. 61, 143 sq.; Shooter, Kafirs of Natal, p. 137.]

In other instances homicide is expressly said to be regarded as wrong.

The Greenlanders described by Dr. Nansen hold it atrocious to kill a fellow-creature, except in some particular cases.[20] The Dacotahs say that it is a great crime to take their fellow's life, unless in revenge, "because all have a right to live."[21] In Tierra del Fuego homicide rarely occurs, as Mr. Bridges remarks, because of an inveterate custom according to which human life is held sacred: "le meurtrier est mis au ban de ses compatriotes; isolé de tous, il est fatalement condamné à périr de faim ou à tomber un jour sous les coups d'un groupe de justiciers improvisés."[22] The Andaman Islanders condemn murder as y[=u]bda, or sin.[23] The natives of Botany Bay, New {331} South Wales, though a trivial offence in their ideas justifies the murder of a man, "highly reprobate the crime when committed without what they esteem a just cause."[24] According to Mr. Curr's experience, the Australian Black undoubtedly feels that murder is wrong, and its committal brings remorse; even after the perpetration of infanticide or massacres, though both are practised without disguise, those engaged in them are subject to remorse and low spirits for some time.[25]

[Footnote 20: Nansen, Eskimo Life, p. 162.]

[Footnote 21: Prescott, in Schoolcraft, Indian Tribes of the United States, ii. 195.]

[Footnote 22: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 374, 243.]

[Footnote 23: Man, in Jour. Anthr. Inst. xii. 112.]

[Footnote 24: Barrington, History of New South Wales, p. 19. Cf. Lumholtz, Among Cannibals, p. 126 (natives of Northern Queensland).]

[Footnote 25: Curr, The Australian Race, i. 100, 43 sq. For other instances, see Keating, Expedition to the Source of St. Peter's River, i. 127 (Potawatomis); Harmon, Journal of Voyages in the Interior of North America, p. 348 (Indians on the east side of the Rocky Mountains); Hall, Arctic Researches, p. 572 (Eskimo); Mariner, Natives of the Tonga Islands, ii. 162; Macdonald, Oceania, p. 208 (Efatese); Yate, Account of New Zealand, p. 145; Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of the Cape of Good Hope, p. 322 (Bechuanas); Fritsch, Die Eingeborenen Süd-Afrikra's, p. 322 (Hottentots).]

It is of particular importance in this connection to note that, in early civilisation, blood-revenge is regarded not as a private matter only, but as a duty, and that, where this custom does not prevail, the community punishes the murderer, frequently with death. We may without hesitation accept Professor Tylor's statement that "no known tribe, however low and ferocious, has ever admitted that men may kill one another indiscriminately."[26] In every society--even where human life is, generally speaking, held in low estimation--custom prohibits homicide within a certain circle of men. But the radius of the circle varies greatly.

[Footnote 26: Tylor, 'Primitive Society,' in Contemporary Review, xxi. 714.]

Savages carefully distinguish between an act of homicide committed within their own community and one where the victim is a stranger. Whilst the former is under ordinary circumstances disapproved of, the latter is in most cases allowed, and often regarded as praiseworthy. It is a very common notion in savage ethics that the chief virtue of a man is to be successful in war and to slay many enemies.

Among the Káfirs of the Hindu-Kush "killing strangers might or might not be considered inexpedient, but it would {332} hardly be considered a crime"; killing fellow-

tribesmen, on the other hand, is looked upon in a very different light.[27] The Koriaks do not regard murder as a great crime, unless it occur within their own tribe.[28] The early Aleuts considered the killing of a companion a crime worthy of death, "but to kill an enemy was quite another thing."[29] To an Aht Indian the murder of a man is no more than the killing of a dog, provided that the victim is not a member of his own tribe.[30] According to Humboldt, the natives of Guiana "detest all who are not of their family, or their tribe; and hunt the Indians of a neighbouring tribe, who live at war with their own, as we hunt game."[31] In the opinion of the Fuegians, "a stranger and an enemy are almost synonymous terms," hence they dare not go where they have no friends, and where they are unknown, as they would most likely be destroyed.[32] The Australian Black nurtures an intense hatred of every male at least of his own race who is a stranger to him, and would never neglect to assassinate such a person at the earliest moment that he could do so without risk to himself.[33] In Melanesia, also, a stranger as such was generally throughout the islands an enemy to be killed.[34]

[Footnote 27: Scott Robertson, Káfirs of the Hindu-Kush, p. 194.]

[Footnote 28: Krasheninnikoff, op. cit. p. 232.]

[Footnote 29: Veniaminof, quoted by Petroff, 'Report on Alaska,' in Tenth Census of the Untied States, p. 155.]

[Footnote 30: Sproat, Scenes and Studies of Savage Life, p. 152.]

[Footnote 31: von Humboldt, Personal Narrative of Travels, v. 422.]

[Footnote 32: Stirling, in South Ammerican Missionary Magazine, iv. 11. Bridges, in A Voice for South America, xiii. 210.]

[Footnote 33: Curr, The Australian Race, i. 64, 85 sq. Mathew, in Jour. & Proceed. Roy. Soc. N. S. Wales, xviii. 398.]

[Footnote 34: Codrington, Melanesians, p. 345.]

In Savage Island the slaying of a member of another tribe--that is, a potential enemy--"was a virtue rather than a crime."[35] To a young Samoan it was the realisation of his highest ambition to be publicly thanked by the chiefs for killing a foe in mortal combat.[36] "According to Fijian beliefs, men who have not slain any enemy are, in the other world, compelled to beat dirt with their clubs--the most degrading punishment the native mind can conceive--because they used their club to so little purpose;[37] and in Futuna it was deemed no less necessary to have poured out blood on the field of battle in order to hold a part in the happy future life.[38] In the Western islands of Torres Straits "it was a meritorious deed to kill foreigners either in fair fight {333} or by treachery, and honour and glory were attached to the bringing home of the skulls of the inhabitants of other islands slain in battle."[39] In the Solomon Islands,[40] New Guinea,[41] and various parts of the Malay Archipelago, he who has collected the greatest number of human heads is honoured by his tribe as the bravest man; and some peoples do not allow a man to marry until he has cut off at least one human head.[42] Among many of the North American Indians, again, he who can boast of the greatest number of scalps is the person most highly esteemed.[43] Among the Seri Indians the highest virtue "is the shedding of alien blood; and their normal impulse on meeting an alien is to kill, unless deterred by fear."[44] Among the Chukchi "it is held criminal to thieve or murder in the family or race to which a person belongs; but these crimes committed elsewhere are not only permitted, but held honourable and glorious."[45] So, too, the Gallas consider it honourable to kill an alien, though criminal to kill a countryman.[46]

[Footnote 35: Thomson, Savage Island, p. 104. See also ibid. p. 94.]

[Footnote 36: Pritchard, Polynesian Reminiscences, p. 57.]

[Footnote 37: Seemann, Viti, p. 401. Cf. Williams and Calvert, op. cit. p. 97 sq.; Erskine, Islands of the Western Pacific, p. 248.]

[Footnote 38: Smith, in Jour. Polynesian Society, i. 39.]

[Footnote 39: Haddon, in Reports of the Cambridge Anthropological Expedition to Torres Straits, v. 277.]

[Footnote 40: Romilly, Western Pacific, p. 73. Penny, Ten Years in Melanesia, p. 46. Codrington, op. cit. p. 345.]

[Footnote 41: Romilly, Western Pacific, p. 76.]

[Footnote 42: Bock, Head-Hunters of Borneo, pp. 216, 221, &c. (Dyaks). Bickmore, Travels in the East Indian Archipelago, p. 205 (Alfura of Ceram). Dalton, op. cit. p. 40 (Nagas of Upper Assam).]

[Footnote 43: The well-known practice of scalping, though very common, was not universal among the North American Indians (see Gibbs, 'Tribes of Western Washington and Northwestern Oregon,' in Contributions to N. American Ethnology, i. 192; Powers, Tribes of California, p. 321).]

[Footnote 44: McGee, 'Seri Indians,' in Ann. Rep. Bur. Ethnol. xvii. 132.]

[Footnote 45: Georgi, Russia, iii. 183.]

[Footnote 46: Macdonald, Africana, i. 229. For other instances, see Harmon, op. cit. p. 301 (Tacullies); Burton, City of the Saints, p. 139 (Dacotahs); Macpherson, Memorials of Service in India, p. 94 (Kandhs); MacMahon, Far Cathay, p. 262 (Indo-Burmese border tribes); Macdonald, Africana, i. 194 sq. (Eastern Central Africans); Johnston, Kilimanjaro Expedition, p. 419 (Masai).]

At the same time there are, among the lower races, various instances in which the rule, "Thou shalt not kill," applies even to foreigners. Hospitality, as will be seen in a subsequent chapter, is a stringent duty in the savage world. Custom requires that the host should entertain and protect a stranger who comes as his guest, and by killing him the host would perpetrate an outrage hardly possible. Moreover, even in the case of intertribal relations, we must not conclude that what is allowed in war is also allowed in times of peace. The prohibition of homicide may extend beyond the tribal border, to {334} members of different tribes who for some reason or other are on friendly terms with each other.[47] We must not suppose that a tribe of savages generally either lives in a state of complete isolation, or is always at odds with its neighbours. In Australia, for instance, one tribe of natives, as a rule, entertains amicable relations with one, two, or more other tribes.[48] Among the Central Australian natives, say Messrs. Spencer and Gillen, "there is no such thing as one tribe being in a constant state of enmity with another"; on the contrary, where two tribes come into contact with one another on the border land of their respective territories, friendly feelings are maintained between the members of the two.[49] Some uncivilised peoples are even said to have no wars. The Veddahs of Ceylon never make war upon each other.[50] According to the reports of the oldest inhabitants of Umnak and Unalaska, the people there had never been engaged in war either among themselves or with their neighbours, except once with the natives of Alaska.[51] To the Greenlanders described by Dr. Nansen war is "incomprehensible and repulsive, a thing for which their language has no word."[52]

[Footnote 47: See, e.g., Scott Robertson, op. cit. p. 194 (Káfirs of the Hindu-Kush).]

[Footnote 48: Curr, The Australian Race, i. 62 sq.]

[Footnote 49: Spencer and Gillen, Native Tribes of Central Australia, p. 32.]

[Footnote 50: Sarasin, op. cit. iii. 488.]

[Footnote 51: Coxe, op. cit. p. 244.]

[Footnote 52: Nansen, Eskimo Life, p. 162.]

That savages to some extent recognise the existence of intertribal rights in times of peace is obvious from certain customs connected with their wars. Some South Sea Islanders and North American Indians consider it necessary for a party which is about to attack another to give notice beforehand of their intention, in order that their opponents may be prepared to meet them.[53] The cessation of hostilities is often accompanied by the conclusion of a special treaty and by ceremonies calculated to make it binding.[54] The Tahitians, for instance, wove a wreath of {335} green boughs furnished by each side, exchanged two young dogs, and, having also made a band of cloth together, offered the wreath and the band to the gods with imprecations on the side which should first violate so solemn a treaty of peace.[55] Nor does savage custom always allow indiscriminate slaughter even in warfare. The inviolability of heralds is not infrequently recognised.[56] Among the aborigines of New South Wales the tribal messenger known to be a herald by the red net which he wears round his forehead, passes in safety between and through hostile tribes;[57] and among the North American Omahas "the bearer of a peace pipe was generally respected by the enemy, just as the bearer of a flag of truce is regarded by the laws of war among the so-called civilised nations."[58] And many uncivilised races have made it a rule in war to spare the weak and helpless.

[Footnote 53: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 72 (Micronesians). Gibbs, loc. cit. p. 190 (Indians of Western Washington and North-Western Oregon).]

[Footnote 54: See Farrer, Military Manners and Customs, p. 162 sq.]

[Footnote 55: Ellis, Polynesian Researches, i. 318.]

[Footnote 56: See Farrer, Militarv Manners and Customs, p. 161.]

[Footnote 57: Fraser, Aborigines of New South Wales, p. 41.]

[Footnote 58: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 368.]

The Samoans considered it cowardly to kill a woman;[59] and even in Fiji the "enlightened party" objected to the killing of women, urging that it is "just as cowardly to kill a woman as a baby."[60] The Abipones, in their wars, "generally spared the unwarlike, and carried away innocent boys and girls unhurt."[61] An old Spanish writer tells us of the Guanches of Gran Canaria that, "in their wars, they held it as base and mean to molest or injure the women and children of the enemy, considering them as weak and helpless, therefore improper objects of their resentment";[62] and similar views prevail among the Berbers (Shlu[h.]) of Southern Morocco, as also among the Algerian Kabyles[63] and the Touareg.[64] Though the Masai and Wa-kikuyu "are eternally at war to the knife with each other, there is a compact between them not to molest the womenfolk of either party."[65] "The Masai," says Mr. Hinde, "never interfere with women in their raids, and the women cheer {336} loudly and encourage their relatives during the fight."[66] Among the Latukas, though women are employed as spies and thus become exceedingly dangerous in war, there is nevertheless a general understanding that no woman shall be killed.[67] The Basutos maintain that respect should be paid during war to women, children, and travellers, as also that those who surrender should be spared and open to ransom; and, though these rules are not invariably respected, the public voice always disapproves of their violation.[68]

[Footnote 59: Turner, Nineteen Years in Polynesia, p. 304.]

[Footnote 60: Seemann, Viti, p. 180.]

[Footnote 61: Dobrizhoffer, op. cit. ii. 141.]

[Footnote 62: Abreu de Galindo, History of the Discovery and Conquest of the Canary Islands, p. 66.]

[Footnote 63: Hanoteau and Letourneux, La Kabylie, ii. 76.]

[Footnote 64: Hourst, Sur le Niger et au pays des Touaregs, p. 223 sq.]

[Footnote 65: Thomson, Through Masai Land, p. 177.]

[Footnote 66: Hinde, The Last of the Masai, p. 6, n.*]

[Footnote 67: Baker, Albert N'yanza, i. 355.]

[Footnote 68: Casalis, op. cit. p. 223 sq. For regard paid to women, old people, and children in war, see also Richardson, Arctic Searching Expedition, i. 367 (Western Eskimo); Catlin, North American Indians, ii. 240; Azara, Voyages, ii. 145 (Payaguas).]

Sometimes custom even requires that the life of the captive shall be spared.

It is against Masai tradition to kill prisoners of war.[69] Among the Kabyles "il faut que l'exaspération des partis soit extrême pour qu'un blessé ou un prisonnier soit mis à mort."[70] The Touareg do not kill their prisoners after a fight.[71] Among the Bedouins of the Euphrates "the person of the enemy is sacred when disarmed or dismounted; and prisoners are neither enslaved nor held to other ransom than their mares."[72] "Captives," says Mr. Dorsey, "were not slain by the Omahas and Ponkas. When peace was declared the captives were sent home, if they wished to go. If not they could remain where they were, and were treated as if they were members of the tribe."[73] Among the Wyandots prisoners of war were frequently adopted into the tribe. "The warrior taking the prisoner has the first right to adopt him. If no one claims the prisoner for this purpose, he is caused to run the gauntlet as a test of his courage. If at his trial he behaves manfully claimants are not wanting, but if he behaves disgracefully he is put to death."[74]

[Footnote 69: Hinde, op. cit. p. 64.]

[Footnote 70: Hanoteau and Letourneux, op. cit. 75.]

[Footnote 71: Hourst, op. cit. p. 207.]

[Footnote 72: Blunt, op. cit. ii. 239.]

[Footnote 73: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 332.]

[Footnote 74: Powell, ibid. i. 68.]

Thus we notice even among uncivilised races very obvious traces of what is called "international law,"[75] if not as a rule, at least as an exception. On the other hand, the {337} readiness with which war is engaged in, not only in self-defence or out of revenge, but for the sake of gain, indicates how little regard is paid to human life outside the tribe. The Kandhs, for instance, maintain "that a state of war may be lawfully presumed against all tribes and nations with whom no express agreement to the contrary exists."[76] And if a few savage peoples live in perpetual peace, it seems that the chief reason for this is not a higher standard of morality, but the absence of all inducements to war.

[Footnote 75: See also Wheeler, The Tribe, and Intertribal Relations in Australia, passim.]

[Footnote 76: Hunter, Annals of Rural Bengal, iii. 75.]

When we from the lower races pass to peoples more advanced in culture, we find that the social unit has grown larger, that the nation has taken the place of the tribe, and that the circle within which homicide is prohibited as a crime of the first order has been extended accordingly. But the old distinction between injuries committed against compatriots and harm done to foreigners remains. Even when the subject is not touched upon in the laws referring to homicide we may, from the general attitude of the people towards members of other nations, infer that public opinion is not very scrupulous as to the taking of their lives. How the Chinese looked upon the "red-haired barbarians," the "foreign devils," is well known from recent history. In former days, Japan's attitude

towards her neighbours and the whole world was that of an enemy and not of a friend.[77] The Vedic hymns are full of imprecations of misfortune upon men of another race.[78] That among the ancient Teutons the lot of a stranger was not an enviable one is testified even by language; the German word elender has acquired its present meaning from the connotation of the older word which meant an "outlandish" man.[79] The stranger as such--unless he belonged to a friendly, neighbouring tribe--had originally no legal rights at all; for his protection he was dependent on individual {338} hospitality, and hospitality was restricted by custom to three days only.[80] According to the Swedish Westgöta-Lag, he who killed a foreigner had to pay no compensation to the dead man's relatives, nor was he outlawed, nor exiled.[81] The Laws of King Ine let us understand in what light a stranger was looked upon:--"If a far-coming man, or a stranger, journey through a wood out of the highway, and neither shout nor blow his horn, he is to be held for a thief, either to be slain or redeemed."[82] However, as commerce increased and the stranger was more often seen in Teutonic lands, royal protection was extended to him; and a consequence of this was that thenceforth he who killed the stranger had to pay a wergeld, part, or the whole, of which went to the king.[83] In Greece, in early times, the "contemptible stranger"[84] had no legal rights, and was protected only in case he was the guest of a citizen;[85] and even later on, at Athens, whilst the intentional killing of a citizen was punished with death and confiscation of the murderer's property, the intentional killing of a non-citizen was punished only with exile.[86] The Latin word hostis was originally used to denote a foreigner;[87] and the saying of Plautus, that a man is a wolf to a man whom he does not know,[88] was probably an echo of an old Roman proverb. Mommsen suggests that in ancient days the Romans did not punish the killing of a foreigner, unless he belonged to an allied nation; but already in the prehistoric period a change was introduced, the foreigner being placed under the protection of the State.[89]

[Footnote 77: Griffis, Religions of Japan, p. 129.]

[Footnote 78: Roth, 'On the Morality of the Veda,' in Jour. American Oriental Society, iii. 338.]

[Footnote 79: Cf. Grimm, Deutsche Rechtsalterthümer, p. 396; Gummere, Germanic Origins, p. 288.]

[Footnote 80: Grimm, op. cit. p. 397 sqq. Brunner, Deutsche Rechtgeschichte, i. 273.]

[Footnote 81: Westgöta-Lagen I. Af mandrapi, v. 4 p. 13.]

[Footnote 82: Laws of Ine, 20. Cf. Laws of Wihtræd, 28.]

[Footnote 83: Brunner, op. cit. i. 273 sq. Gummere, op. cit. p. 288. Pollock and Maitland, History of English Law before the Time of Edward I. i. 52.]

[Footnote 84: Iliad, ix. 648.]

[Footnote 85: Hermann-Blümner, Lehrsbüch der griechischen Privatalterthümer, p. 492. Schmidt, Ethik der alten Griechen, ii. 325.]

[Footnote 86: Meier and Schömann, Der altische Process, p. 379.]

[Footnote 87: Cicero, De officiis, i. 12.]

[Footnote 88: Plautus, Asinaria, ii. 4. 88.]

[Footnote 89: Mommsen, Römisches Strafrecht, p. 622 sqq.]

How little regard is felt for the lives of strangers also appears from the readiness with which war is waged on {339} foreign nations, combined with the estimation in which the successful warrior is held by his countrymen. The ancient Mexicans were never at a loss for an excuse to pick a quarrel with their neighbours, so as to be able to procure victims for sacrifices to their gods.[90] "No profession was held in more esteem amongst them than the profession of arms. The deity of war was the most

revered by them, and regarded as the chief protector of the nation."[91] The Mayas not only wanted to increase their dominions by encroachments upon their neighbours' territory, but undertook raids with no other object than that of obtaining captives for sacrifice.[92] Speaking of the wars of the ancient Egyptians, M. Amélineau observes, "Nous n'avons pas un seul mot dans la littérature égyptienne, même dans les [oe]uvres égypto-chrétiennes, qui nous fasse entendre le plus léger cri de réprobation pour la guerre et ses horreurs."[93] Among the Hebrews the most cruel wars of extermination were expressly sanctioned by their religion. That an idolatrous people had no right to live was taken as a matter of course; but wars were also unscrupulously waged from worldly motives, and in their moral code there is no attempt to distinguish between just and unjust war.[94] Among the Mohammedans it is likewise the unbeliever, not the foreigner as such, that is regarded as the most proper object of slaughter. Although there is no precept in the Koran which, taken with the context, justifies unprovoked war,[95] the saying that "Paradise is under the shadow of swords"[96] is popularly applied to all warfare against infidels. Among the Celts[97] and Teutons a man's highest aspiration was to acquire military glory. The Scandinavians considered it a disgrace for a man to die {340} without having seen human blood flow;[98] even the slaying of a tribesman they often regarded lightly when it had been done openly and bravely. In Greece, in ancient times at least, war was the normal relation between different states, and peace an exception, for which a special treaty was required;[99] while to conquer and enslave barbarians was regarded as a right given to the Greeks by Nature. The whole statecraft of the early Republic of Rome was no doubt based upon similar principles;[100] and in later days, also, the war policy of the Romans was certainly not conducted with that conscientiousness which was insisted upon by some of their writers.

[Footnote 90: Bancroft, Native Races of the Pacific States, ii. 420. Clavigero, History of Mexico, i. 371.]

[Footnote 91: Clavigero, op. cit. i. 363.]

[Footnote 92: Bancroft, op. cit. ii. 740, 745.]

[Footnote 93: Amélineau, L'évolution des idées morales dans l'Égypte ancienne, p. 344.]

[Footnote 94: Cf. Seldeft, De Synedriis et Præfecturis Juridicis veterum Ebræorum, iii. 12, p. 1179 sqq.; Lament, Études sur l'histoire de l'humanité, i. 384 sq.]

[Footnote 95: This was later on admitted by Lane (Modern Egyptians, p. 574), who had previously maintained that the duty of waging holy war is strongly urged in the Koran.]

[Footnote 96: Pool, Studies in Mohammedanism, p. 246.]

[Footnote 97: Logan, The Scottish Gael, i. 101. de Valroger, Les Celtes, p. 186.]

[Footnote 98: Njála, ch. 40, vol. i. 167. Maurer, Rekehrung des Norwegischen Stammes, ii. 172.]

[Footnote 99: Schmidt, Ethik der alten Griechen, ii. 280. Laurent, op. cit. i. 46. Plato, Leges, i. 625. Livy, xxxi. 29: "Cum alienigenis, cum barbaris aeternum omnibus Graecis bellum est."]

[Footnote 100: Cf. Lecky, History of European Morals, ii. 257.]

However, the foreigner is not entirely, or under all circumstances, devoid of rights. Among the nations of archaic civilisation, as among the lower races, hospitality is a duty, and the life of a guest is as sacred as the life of any of the permanent members of the household. In various cases the commencement of international hostilities is preceded by special ceremonies, intended to justify acts which are not considered proper in times of peace. In ancient Mexico it was usual to send a formal challenge

or declaration of war to the enemy, as it was held discreditable to attack a people unprepared for defence;[101] and, according to the fecial law of the Romans, no war was just unless it was undertaken to reclaim property, or unless it was solemnly denounced and proclaimed beforehand.[102] In some cases warfare is condemned, or a distinction is made between just and unjust war with reference to the purpose for which the war is waged. The Chinese philosophers were great advocates of peace.[103] According to Lao-Tsze, a superior man uses weapons "only on the compulsion of necessity";[104] there is no calamity greater {341} than lightly engaging in war,[105] and "he who has killed multitudes of men should weep for them with the bitterest grief."[106] In the Indian poem, Mahabharata, needless warfare is condemned; it is said that the success which is obtained by negotiations is the best, and that the success which is secured by battle is the worst.[107] Among the Hebrews the sect of the Essenes went so far in their reprobation of war that they would not manufacture any martial instruments whatever.[108] Roman historians, even in the case of wars with barbarians, often discuss the sufficiency or insufficiency of the motives "with a conscientious severity a modern historian could hardly surpass."[109] According to Cicero, a war, to be just, ought to be necessary, the sole object of war being to enable us to live undisturbed in peace. There are two modes of settling controversies, he says, one by discussion, the other by a resort to force. The first is proper to man, the second is proper to brutes, and ought never to be adopted except where the first is unavailable.[110] Seneca regards war as a "glorious crime," comparable to murder:--"What is forbidden in private life is commanded by public ordinance. Actions which, committed by stealth, would meet with capital punishment, we praise because committed by soldiers. Men, by nature the mildest species of the animal race, are not ashamed to find delight in mutual slaughter, to wage wars, and to transmit them to be waged by their children, when even dumb animals and wild beasts live at peace with one another."[111] History attests that the Romans, in their intercourse with other nations, did not act upon Cicero's and Seneca's lofty theories of international morality; as Plutarch observes, the two names "peace" and "war" are mostly used only as coins, to procure, not what is just, but what is expedient.[112] Yet there seems to have been a general {342} feeling in Rome that the waging of a war required some justification. In declaring it, the Roman heralds called all the gods to witness that the people against whom it was declared had been unjust and neglectful of its obligations.[113]

[Footnote 101: Clavigero, op. cit. i. 370. Bancroft, op. cit. ii. 420, 421, 423.]

[Footnote 102: Cicero, De officiis, i. 11.]

[Footnote 103: Cf. Lanessan, Morale des philosophes chinois, pp. 54, 107.]

[Footnote 104: Táo Teh King, xxxi. 2.]

[Footnote 105: Ibid. lxix. 2.]

[Footnote 106: Ibid. xxxi. 3.]

[Footnote 107: Mahabharata, Bhisma Parva, iii. 81 (pt. xii. sq. p. 6).]

[Footnote 108: Philo, Quod liber sit quisquis virtuti studet, p. 877.]

[Footnote 109: Lecky, History of European Morals, ii. 258.]

[Footnote 110: Cicero, De officiis, i. 11.]

[Footnote 111: Seneca, Epistulæ, 95.]

[Footnote 112: Plutarch, Vita Pyrrhi, xii. 3, p. 389.]

[Footnote 113: Livy, i. 32.]

Even in war the killing of an enemy is, under certain circumstances, prohibited either by custom or by enlightened moral opinion. Among the ancient Nahuas, who never accepted a ransom for a prisoner of war, the person of an ambassador was at all events

held sacred.[114] In the 'Book of Rewards and Punishments,' which embodies popular Taouism, it is said, "Do not massacre the enemies who yield themselves, nor kill those who offer their submission."[115] The Hebrews, whilst being commanded to "save alive nothing that breatheth" of the cities which the Lord had given them for an inheritance, were to deal differently with cities which were very far off from them: to kill only the men, and to take to themselves the women and the little ones.[116] The Laws of Manu lay down very humane rules for a king who fights with his foes in battle:--"Let him not strike with weapons concealed in wood, nor with such as are barbed, poisoned, or the points of which are blazing with fire. Let him not strike one who in flight has climbed on an eminence, nor a eunuch, nor one who joins the palms of his hands in supplication, nor one who flees with flying hair, nor one who sits down, nor one who says 'I am thine'; nor one who sleeps, nor one who has lost his coat of mail, nor one who is naked, nor one who is disarmed, nor one who looks on without taking part in the fight, nor one who is fighting with another foe; nor one whose weapons are broken, nor one afflicted with sorrow, nor one who has been grievously wounded, nor one who is in fear, nor one who has turned to flight; but in all these cases let him remember the duty of honourable warriors."[117] The Mahabharata contains expressions of {343} similar chivalrous sentiments in regard to enemies. A car-warrior should fight only with a car-warrior, a horse-man with a horse-man, a foot-soldier with a foot-soldier. "Always being led by consideration of fitness, willingness, bravery, and strength, one should strike another after having challenged him. None should strike another who is confiding or who is panic-striken. One fighting with another, one seeking refuge, one retreating, one whose weapon is broken, and one who is not clad in armour should never be struck. Charioteers, animals, men engaged in carrying weapons, those who play on drums and those who blow conchs should never be smitten."[118] Among the Greeks, in the Homeric age, it was evidently regarded as a matter of course that, on the fall of a city, all the men were slain, and the women and children carried off as slaves;[119] but in historic times such a treatment of a vanquished foe grew rarer, and seems, under ordinary circumstances, to have been disapproved of.[120] The rulers of this land, says the messenger in the 'Heraclidæ,' do not approve of slaying enemies who have been taken alive in battle.[121] In Rome the customs of war underwent a similar change. In ancient days the normal fate of a captive was death, in later times he was generally reduced to slavery; but many thousands of captives were condemned to the gladiatorial shows, and the vanquished general was commonly slain in the Mamertine prison.[122] On the other hand, nations or armies that voluntarily submitted to Rome were habitually treated with great leniency. Cicero says:--"When we obtain the victory we must preserve those enemies who behaved without cruelty or inhumanity during the war; for example, our forefathers received, even as members of their state, the Tuscans, the Aequi, the Volscians, the Sabines, and the Hernici, but utterly destroyed Carthage and Numantia. . . . And, while we {344} are bound to exercise consideration toward those whom we have conquered by force, so those should be received into our protection who throw themselves upon the honour of our general, and lay down their arms, even though the battering rams should have struck their walls."[123]

[Footnote 114: Bancroft, op. cit. ii. 426, 412.]

[Footnote 115: Douglas, Confucianism and Taouism, p. 261.]

[Footnote 116: Deuteronomy, xx. 13 sqq.]

[Footnote 117: Laws of Manu, vii. 90 sq.]

[Footnote 118: Mahabharata, Bhisma Parva, i. 27 sqq. (pt. xii. sq. p. 2).]

[Footnote 119: Iliad, ix. 593 sq.]

[Footnote 120: Schmidt, Ethik der alten Griechen, ii. 281 sqq.]
[Footnote 121: Euripides, Heraclidæ, 966.]
[Footnote 122: Laurent, op. cit. iii. 20 sq. Lecky, History of European Morals, ii. 257.]
[Footnote 123: Cicero, De officiis, i. 11.]

Chapter XV

HOMICIDE IN GENERAL (continued)

CHRISTIANITY introduced into Europe a higher regard for human life than was felt anywhere in pagan society. The early Christians condemned homicide of any kind as a heinous sin. And in this, as in all other questions of moral concern, the distinction of nationality or race was utterly ignored by them.

The sanctity which they attached to the life of every human being led to a total condemnation of warfare, sharply contrasting with the prevailing sentiment in the Roman Empire. In accordance with the general spirit of their religion, as also with special passages in the Bible,[1] they considered war unlawful under all circumstances. Justin Martyr quotes the prophecy of Isaiah, that "nation shall not lift up sword against nation, neither shall they learn war any more,"[2] and proceeds to say that the instruction in the word of God which was given by the twelve Apostles "had so good effect that we, who heretofore were continually devouring each other, will not now so much as lift up our hand against our enemies."[3] Lactantius asserts that "to engage in war cannot be lawful for the righteous man, whose warfare is that of righteousness itself."[4] Tertullian asks, "Can it be lawful to {346} handle the sword, when the Lord Himself has declared that he who uses the sword shall perish by it?"[5] And in another passage he states that "the Lord by his disarming of Peter disarmed every soldier from that time forward."[6] Origen calls the Christians the children of peace, who, for the sake of Jesus, never take up the sword against any nation; who fight for their monarch by praying for him, but who take no part in his wars, even though he urge them.[7] It is true that, even in early times, Christian soldiers were not unknown; Tertullian alludes to Christians who were engaged in military pursuits together with their heathen countrymen.[8] But the number of Christians enrolled in the army seems not to have been very considerable before the era of Constantine,[9] and, though they were not cut off from the Church, their profession was looked upon as hardly compatible with their religion. St. Basil says that soldiers, after their term of military service has expired, are to be excluded from the sacrament of the communion for three whole years.[10] And according to one of the canons of the Council of Nice, those Christians who, having abandoned the profession of arms, afterwards returned to it, "as dogs to their vomit," were for some years to occupy in the Church the place of penitents.[11]

[Footnote 1: St. Matthew, v. 9, 39, 44. Romans, xii. 17. Ephesians, vi. 12.]
[Footnote 2: Isaiah, ii. 4.]
[Footnote 3: Justin Martyr, Apologia I. pro Christianis, 39 (Migne, Patrologiæ cursus, Ser. Graeca, vi. 387 sq.).]
[Footnote 4: Lactantius, Divinæ institutiones, vi. ('De vero cultu') 20 (Migne, op. cit. vi. 708).]
[Footnote 5: Tertullian, De corona, 11 (Migne, op. cit. ii. 92).]
[Footnote 6: Tertullian, De idolatria, 19 (Migne, op. cit. i. 691).]

[Footnote 7: Origen, Contra Celsum, v. 33; viii. 73 (Migne, op. cit. Ser. Graeca, xi. 1231 sq., 1627 sq.).]

[Footnote 8: Tertullian, Apologeticus, 42 (Migne, op. cit. i. 491).]

[Footnote 9: Le Blant, Inscriptions chrétiennes de la Gaule, i. 84 sqq.]

[Footnote 10: St. Basil, Epistola CLXXXVIII., ad Amphilochium, can. 13 (Migne, op. cit. Ser. Graeca, xxxii. 681 sq.).]

[Footnote 11: Concilium Nicænum, A.D. 325, can. 12 (Labbe-Mansi, Sacrorum Conciliorum collectio, ii. 674).]

A divine law which prohibited all resistance to enemies could certainly not be accepted by the State, especially at a time when the Empire was seriously threatened by foreign invaders. Christianity could therefore never become a State-religion unless it gave up its attitude towards war. And it gave it up. Already in 314 a Council condemned soldiers who, from religious motives, {347} deserted their colours.[12] The Fathers of the fourth and fifth centuries did not altogether disapprove of war. Chrysostom and Ambrose, though seeing the difficulty of reconciling it with the theory of Christian life which they found in the New Testament, perceived that the use of the sword was necessary to preserve the State.[13] St. Augustine went much farther. He tried to prove that the practice of war was quite compatible with the teachings of Christ. The soldiers mentioned in the New Testament, who were seeking for a knowledge of salvation, were not directed by our Lord to throw aside their arms and renounce their profession, but were advised by him to be content with their wages.[14] St. Peter baptised Cornelius, the centurion, in the name of Christ, without exhorting him to give up the military life, [15] and St. Paul himself took care to have a strong guard of soldiers for his defence. [16] And was not the history of David, the "man after God's own heart," an evidence of those being wrong who say that "no one who wages war can please God"?[17] When Christ declared that "all they that take the sword shall perish with the sword,"[18] He referred to such persons only as arm themselves to shed the blood of others without either command or permission of any superior or lawful authority.[19] A great deal depends on the causes for which men undertake war, and on the authority they have for doing so. Those wars are just which are waged with a view to obtaining redress for wrongs, or to chastising the undue arrogance of another State. The monarch has the power of making war when he thinks it advisable, and, even if he be a sacrilegious {348} king, a Christian may fight under him, provided that what is enjoined upon the soldier personally is not contrary to the precept of God.[20] In short, though peace is our final good, though in the City of God there is peace in eternity,[21] war may sometimes be a necessity in this sinful world.

[Footnote 12: Concilium Arelatense I. A.D. 314, can. 3 (Labbe-Mansi, op. cit. ii. 471). Cf. Le Blant, op. cit. i. p. lxxxii.]

[Footnote 13: Gibb, 'Christian Church and War,' in British Quarterly Review, lxxiii. 83.]

[Footnote 14: St. Augustine, Epist. CXXXVIII., ad Marcellinum, 15 (Migne, op. cit. xxxiii. 531 sq.).]

[Footnote 15: St. Augustine, Epist. CLXXXIX., ad Bonifacium, 4 (Migne, op. cit. xxxiii. 855).]

[Footnote 16: St. Augustine, Epistola XLVII., ad Publicolam, 5 (Migne, op. cit. xxxiii. 187).]

[Footnote 17: St. Augustine, Epist. CLXXXIX., ad Bonifacium, 4 (Migne, op. cit. xxxiii. 855).]

[Footnote 18: St. Matthew, xxvi. 52.]

[Footnote 19: St. Augustine, Contra Faustum Manichæum, xxii. 70 (Migne, op. cit. xlii, 444).]

[Footnote 20: St. Augustine, Contra Faustum Manichæum, xxii. 75 (Migne, op. cit. xlii. 448).]

[Footnote 21: St. Augustine, De civitate Dei, xix. 11.]

By the writings of St. Augustine the theoretical attitude of the Church towards war was definitely settled, and later theologians only reproduced or further elaborated his views. Yet it was not with a perfectly safe conscience that Christianity thus sanctioned the practice of war. There was a feeling that a soldier scarcely could make a good Christian. In the middle of the fifth century, Leo the Pope declared it to be contrary to the rules of the Church that persons after the action of penance--that is, persons then considered to be pre-eminently bound to obey the law of Christ--should revert to the profession of arms.[22] Various Councils forbade the clergy to engage in warfare, [23] and certain canons excluded from ordination all who had served in an army after baptism.[24] Penance was prescribed for those who had shed blood on the battle-field. [25] Thus {349} the ecclesiastical canons made in William the Conqueror's reign by the Norman prelates, and confirmed by the Pope, directed that he who was aware that he had killed a man in a battle should do penance for one year, and that he who had killed several should do a year's penance for each.[26] Occasionally the Church seemed to wake up to the evils of war in a more effective way; there are several notorious instances of wars being forbidden by popes. But in such cases the prohibition was only too often due to the fact that some particular war was disadvantageous to the interests of the Church. And whilst doing comparatively little to discourage wars which did not interfere with her own interests, the Church did all the more to excite war against those who were objects of her hatred.

[Footnote 22: Leo Magnus, Epistola XC., ad Rusticum, inquis. 12 (Migne, op. cit. liv. 1206 sq.).]

[Footnote 23: One of the Apostolic Canons requires that any bishop, priest, or deacon who devotes himself to military service shall be degraded from his ecclesiastical rank (Canones ecclesiastici qui dicuntur Apostolorum, 83 [74] [Bunsen, Analecta Ante-Nicæna, ii. 31]). The Councils of Toulouse, in 633 (ch. 45, in Labbe-Mansi, op. cit. x. 630), and of Meaux, in 845 (can. 37, ibid. xiv. 827), condemned to a similar punishment those of the clergy who ventured to take up arms. Gratian says (Decretum, ii. 23. 8. 4) that the Church refuses to pray for the soul of a priest who died on the battle-field. Notwithstanding the canons of Councils and the decrees of popes, ecclesiastics frequently participated in battles (Nicolaus I. Epistolæ et Decreta, 83 [Migne, op. cit. cxix. 922]. Robertson, History of the Reign of Charles V. i. 330, 385. Ward, Foundation and History of the Law of Nations, i. 365 sq. Buckle, History of Civilisation in England, i. 204; ii. 464. Bethune-Baker, Influence of Christianity on War, p. 52. Dümmler, Geschichte des Ostfränkischen Reichs, ii. 637).]

[Footnote 24: Grotius, De jure belli et pacis, i. 2. 10. 10. Bingham, Antiquities of the Christian Church, iv. 4. 1 (Works, ii. 55).]

[Footnote 25: P[oe]nitentiale Bigotianum, iv. i. 4 (Wasserschleben, Bussordnungen der abendländischen Kirche, p. 453). P[oe]nit. Vigilanum, 27 (ibid. p. 529). P[oe]nit. Pseudo-Theodori, xxi. 15 (ibid. p. 587 sq.). Cf. Mort de Garin le Loherain, p. 213: "Ainz se repent et se claime cheti; Ses pechiés plore au soir et au matin, De ce qu'il a tans homes mors et pris."]

[Footnote 26: Wilkins, Concilia Magnæ Britanniæ et Hiberniæ, i. 366.]

It has been suggested that the transition from the peaceful tenets of the primitive Church to the essentially military Christianity of the crusades, was chiefly due to the terrors and the example of Islam. "The spirit of Muhammedanism," says Mr. Lecky, "slowly passed into Christianity, and transformed it into its image." Until then, "war was rather condoned than consecrated, and, whatever might be the case with a few isolated prelates, the Church did nothing to increase or encourage it."[27] But this view is hardly consistent with facts. Christianity had entered on the war-path already before it came into contact with Muhammedanism. Wars against Arian peoples had been represented as holy wars, for which the combatants would be rewarded by Heaven.[28] The war which Chlodwig made upon the Visigoths was not only undertaken with the approval of the clergy, but it was, as Mr. Greenwood remarks, "properly their war, and Chlodwig undertook it in the capacity of a religious champion in all things but the disinterestedness which ought to distinguish that character." Remigius of Reims assisted him by his countenance and advice, and the {350} Catholic priesthood set every engine of their craft in motion to second and encourage him.[29] In the Church itself there were germs out of which a military spirit would naturally develop itself. The famous dictum, "Nulla salus extra ecclesiam," was promulgated as early as the days of Cyprian. The general view of mediæval orthodoxy was, that those beyond the pale of the Church, heathen and heretics alike, were unalterably doomed to hell, whereas those who would acknowledge her authority, confess their sins, receive the sacrament of baptism, partake of the eucharist and obey the priest, would be infallibly saved. If war was allowed by God, could there be a more proper object for it than the salvation of souls otherwise lost? And for those who refuse to accept the gift of grace offered to them, could there be a juster punishment than death? Moreover, had not the Israelites fought great battles "for the laws and the sanctuary"?[30] Had not the Lord Himself commissioned them to attack, subdue, and destroy his enemies? Had He not commanded them to root out the natives of Canaan, who, because of their abominations, had fallen under God's judgment, and to kill man and beast in the Israelitish cities which had given themselves to idolatry, and to burn all the spoil, with the city itself, as a whole offering to Yahveh?[31] There was no need, then, for the Christians to go to the Muhammedans in order to learn the art of religious war. The Old Testament, the revelation of God, gave better lessons in it than the Koran, and was constantly cited in justification of any cruelty committed in the name of religion.[32]

[Footnote 27: Lecky, History of European Morals, ii. 251 sq.]

[Footnote 28: Gibb, loc. cit. p. 86.]

[Footnote 29: Greenwood, First Book of the History of the Germans, p. 518.]

[Footnote 30: 1 Maccabees, xiii. 3. Thomas Aquinas (Summa theologica, ii-ii. 188. 3) quotes this passage in support of the doctrine, that fighting may be directed to the preservation of divine worship.]

[Footnote 31: Deuteronomy, xiii. 15 sq.]

[Footnote 32: Cf. Constant, De la religion, ii. 229 sq.]

It was thus in perfect consistency with the general teachings of the Church that she regarded an exploit achieved against the infidels as a merit which might obliterate the guilt of the most atrocious crimes. Such a {351} deed was the instrument of pardon to Henry II. for the murder of Becket,[33] and was supposed to be the means of cure to St. Louis in a dangerous illness. Fighting against infidels took rank with fastings, penitential discipline, visits to shrines, and almsgivings, as meriting the divine mercy.[34] He who fell in the battle could be confident that his soul was admitted directly into the joys of Paradise.[35] And this held good not only of wars against Muhammedans.

The massacres of Jews and heretics seemed no less meritorious than the slaughter of the more remote enemies of the Gospel. Nay, even a slight shade of difference from the liturgy of Rome became at last a legitimate cause of war.

[Footnote 33: Lyttelton, History of the Life of King Henry the Second, iii. 96.]

[Footnote 34: Cf. Milman, History of Latin Christianity, iv. 209.]

[Footnote 35: Cf. Laurent, Études sur l'histoire de l'humanité, vii. 257.]

It is true that these views were not shared by all. At the Council of Lyons, in 1274, the opinion was pronounced, and of course eagerly attacked, that it was contrary to the examples of Christ and the Apostles to uphold religion with the sword and to shed the blood of unbelievers.[36] In the following century, Bonet maintained that, according to Scriptures, a Saracen or any other disbeliever could not be compelled by force to accept the Christian faith.[37] Franciscus a Victoria declared that "diversity of religion is not a cause of just war";[38] and a similar opinion was expressed by Soto,[39] Covarruvias a Leyva,[40] and Suarez.[41] According to Balthazar Ayala, the most illustrious Spanish lawyer of the sixteenth century, it does not belong to the Church to punish infidels who {352} have never received the Christian faith, whereas those who, having once received it, afterwards endeavour to prevent the propagation of the Gospel, may, like other heretics, be justly persecuted with the sword.[42] But the majority of jurisconsults, as well as of canonists, were in favour of the orthodox view that unbelief is a legitimate reason for going to war.[43] And this principle was, professedly, acted upon to an extent which made the history of Christianity for many centuries a perpetual crusade, and transformed the Christian Church into a military power even more formidable than Rome under Cæsar and Augustus. Very often religious zeal was a mere pretext for wars which in reality were caused by avarice or desire for power. The aim of the Church was to be the master of the earth rather than the servant of heaven. She preached crusades not only against infidels and heretics, but against any disobedient prince who opposed her boundless pretensions. And she encouraged war when rich spoils were to be expected from the victor, as a thankoffering to God for the victory He had granted, or as an atonement for the excesses which had been committed.

[Footnote 36: Bethune-Baker, op. cit. p. 73.]

[Footnote 37: Bonet, L'arbre des batailles, iv. 2, p. 86: "Selon la sainte Escripture nous ne pouvons et si ne devons contredire ne efforcer ung mescreant à recepvoir ne le saint bapteme ne la sainte foy ainsi les devons laisser en leur franche volonté que Dieu leur a donnée."]

[Footnote 38: Franciscus a Victoria, Relectiones Theologicæ, vi. 10, p. 231: "Caussa iusti belli non est diuersitas religionis." Yet infidels may be constrained to allow the Gospel to be preached (ibid. v. 3. 12, p. 214 sq.).]

[Footnote 39: Soto, De justititia et jure, v. 3. 5, fol. 154.]

[Footnote 40: Covariuvias a Leyva, Regulæ, Pecatum, ii. 10. 2 (Opera omnia, i. 496): "Infidelitas non priuat infideles dominio, quod habent iure humano, vel habuerunt ante legem Euangelicam in prouinciis et regnis, quae obtinent."]

[Footnote 41: Suarez, cited by Nys, Droit de la guerre et les précurseurs de Grotius, p. 98.]

[Footnote 42: Ayala, De iure et officiis bellicis et disciplina militari, i. 2. 29 sq.]

[Footnote 43: Nys, op. cit. p. 89. Idem, in his Introduction to Bonet's L'arbre des batailles, p. xxiv. According to Conradus Brunus (De legationibus, iii. 8, p. 115), for instance, any war waged by Christians against the enemies of the Christian faith is just, as being undertaken for the defence of religion and the glory of God in order to recover the possession of dominions unjustly held by infidels.]

Out of this union between war and Christianity there was born that curious bastard, Chivalry. The secular germ of it existed already in the German forests. According to Tacitus, the young German who aspired to be a warrior was brought into the midst of the assembly of the chiefs, where his father, or some other relative, solemnly equipped him for his future vocation with shield and javelin.[44] Assuming arms was thus made a social distinction, which subsequently derived its name {353} from one of its most essential characteristics, the riding a war-horse. But Chivalry became something quite different from what the word indicates. The Church knew how to lay hold of knighthood for her own purposes. The investiture, which was originally of a purely civil nature, became, even before the time of the crusades, as it were, a sacrament.[45] The priest delivered the sword into the hand of the person who was to be made a knight, with the following words, "Serve Christi, sis miles in nomine Patris, Filii, et Spiritus Sancti, Amen."[46] The sword was said to be made in semblance of the cross so as to signify "how our Lord God vanquished in the cross the death of human lying";[47] and the word "Jesus" was sometimes engraven on its hilt.[48] God Himself had chosen the knight to defeat with arms the miscreants who wished to destroy his Holy Church, in the same way as He had chosen the clergy to maintain the Catholic faith with Scripture and reasons.[49] The knight was to the body politic what the arms are to the human body: the Church was the head, Chivalry the arms, the citizens, merchants, and labourers the inferior members; and the arms were placed in the middle to render them equally capable of defending the inferior members and the head.[50] "The greatest amity that should be in this world," says the author of the 'Ordre of Chyualry,' "ought to be between the knights and clerks."[51] The several gradations of knighthood were regarded as parallel to those of the Church.[52] And after the conquest of the Holy Land the union between the profession of arms and the religion of Christ became still more intimate by the institution of the two military orders of monks, the Knights Templars and Knights of St. John of Jerusalem.

[Footnote 44: Tactitus, Germania, 13. According to Honoré de Sainte Marie (Dissertations historiques et critiques sur la Chevalerie, p. 30 sqq.), Chivalry is of Roman, according to some other writers, of Arabic origin. M. Gautier (La Chevalerie, pp. 14, 16) repudiates these theories, and regards Chivalry as "un usage germain idéalisé par l'Église." See also Rambaud, Histoire de la civilisation française, i. 178 sq.]

[Footnote 45: Scott, 'Essay on Chivalry,' in Miscellaneous Prose Works, vi. 16. Mills, History of Chivalry, i. 10 sq. For a description of the various religious ceremonies accompanying the investiture, see The Book of the Ordre of Chyualry or Knyghthode, fol. 27 b sqq. Cf. also Favyn, Theater of Honour and Knight-Hood, i. 52.]

[Footnote 46: Favyn, op. cit. i. 52.]

[Footnote 47: Ordre of Chyualry, fol. 31 a sq.]

[Footnote 48: Mills, op. cit. i. 71.]

[Footnote 49: Ordre of Chyualry, fol. 11 b.]

[Footnote 50: Le Jouuencel, fol. 94 sqq.]

[Footnote 51: Ordre of Chyualry, fol. 12 a.]

[Footnote 52: Scott, loc. cit. p. 15.]

{354} The duties which a knight took on himself by oath were very extensive, but not very well defined. He should defend the holy Catholic faith, he should defend justice, he should defend women, widows, and orphans, and all those of either sex that were powerless, ill at ease, and groaning under oppression, and injustice.[53] In the name of religion and justice he could thus practically wage war almost at will. Though much real oppression was undoubtedly avenged by these soldiers of the Church, the knight seems

as a rule to have cared little for the cause or necessity of his doing battle. "La guerre est ma patrie, Mon harnois ma maison: Et en toute saison Combatre c'est ma vie," was a saying much in use in the sixteenth century.[54] The general impression which Froissart gives us in his history is, that the age in which he lived was completely given over to fighting, and cared about nothing else whatever.[55] The French knights never spoke of war but as a feast, a game, a pastime. "Let them play their game," they said of the cross-bow men, who were showering down arrows on them; and "to play a great game," jouer gros jeu, was their description of a battle.[56] Previous to the institution of Chivalry there certainly existed much fighting in Christian countries, but knighthood rendered war "a fashionable accomplishment."[57] And so all-absorbing became the passion for it that, as real injuries were not likely to occur every day, artificial grievances were created, and tilts and tournaments were invented in order to keep in action the sons of war when they had no other employments for their courage. Even in these images of war--which were by no means so harmless as they have sometimes been represented to be[58]--the intimate connection {355} between Chivalry and religion displays itself in various ways. Before the tournament began, the coats of arms, helmets, and other objects were carried into a monastery, and after the victory was gained the arms and the horses which had been used in the fight were offered up at the church.[59] The proclamations at the tournaments were generally in the name of God and the Virgin Mary. Before battle the knights confessed, and heard mass; and, when they entered the lists, they held a sort of image with which they made the sign of the cross.[60] Moreover, "as the feasts of the tournaments were accompanied by these acts of devotion, so the feasts of the Church were sometimes adorned with the images of the tournaments."[61] It is true that the Church now and then made attempts to stop these performances.[62] But then she did so avowedly because they prevented many knights from joining the holy wars, or because they swallowed up treasures which might otherwise with advantage have been poured into the Holy Land.[63]

[Footnote 53: Ordre of Chyualry, foll. 11 b, 17 a. Sainte-Palaye, Mémoires sur l'ancienne Chevalerie, i. 75, 129.]

[Footnote 54: De la Nouë, Discours politiques et militaires, p. 215.]

[Footnote 55: See Sir James Stephen's essay on 'Froissart's Chronicles,' in his Horæ Sabbaticæ, i. 22 sqq.]

[Footnote 56: Sainte-Palaye, op. cit. ii. 61.]

[Footnote 57: Millingen, History of Duelling, i. 70.]

[Footnote 58: Sainte-Palaye, op. cit. i. 179; ii. 75. Du Cange, 'Dissertations sur l'histoire de S. Louys,' in Petitot, Collection des Mémoires relatifs à l'histoire de France, iii. 122 sq. Honoré de Sainte Marie, op. cit. p. 186.]

[Footnote 59: Sainte-Palaye, op. cit. i. 151.]

[Footnote 60: Ibid. ii. 57.]

[Footnote 61: Ibid. ii. 57 sq.]

[Footnote 62: Du Cange, loc. cit. p. 124 sqq. Honoré de Sainte Marie, op. cit. p. 186. Sainte-Palaye, op. cit. ii. 75.]

[Footnote 63: Du Cange, loc. cit. p. 125 sq.]

Closely connected with the feudal system was the practice of private war. Though tribunals had been instituted, and even long after the kings' courts had become well-organised and powerful institutions, a nobleman had a right to wage war upon another nobleman from whom he had suffered some gross injury.[64] On such occasions not only the relatives, but the vassals, of the injured man were bound to help him in his quarrel, and the same obligation existed in the case of the aggressor.[65] Only greater

crimes were regarded as legitimate causes of private war,[66] but this rule was not at all strictly observed.[67] As {356} a matter of fact, the barons fled to arms upon every quarrel; he who could raise a small force at once made war upon him who had anything to lose. The nations of Europe were subdivided into innumerable subordinate states, which were almost independent, and declared war and made treaties with all the vigour and all the ceremonies of powerful monarchs. Contemporary historians describe the excesses committed in prosecution of these intestine quarrels in such terms as excite astonishment and horror; and great parts of Europe were in consequence reduced to the condition of a desert, which it ceased to be worth while to cultivate.[68]

[Footnote 64: The right of private war generally supposed nobility of birth and equality of rank in both the contending parties (Beaumanoir, Coutumes du Beauvoisis, lix. 5 sq. vol. ii. 355 sqq.; Robertson, History of the Reign of Charles V. i. 329). But it was also granted to the French communes, and to the free towns in Germany, Italy, and Spain (Du Boys, Histoire du droit criminel des peuples modernes, ii. 348).]

[Footnote 65: Du Cange, loc. cit. pp. 450, 458.]

[Footnote 66: Ibid. p. 445 sq. Arnold, Deutsche Urzeit, p. 341. von Wächter, Beiträge zur deutschen Geschichte, p. 46.]

[Footnote 67: We read of a nobleman who declared war against the city of Frankfort, because a lady residing there had promised to dance with his cousin, but danced with another; and the city was obliged to satisfy the wounded honour of the gentleman (von Wächter, op. cit. p. 57).]

[Footnote 68: Robertson, op. cit. i. 332.]

The Church made some feeble attempts to put an end to this state of things. Thus, about the year 990, ordinances were directed against the practice of private war by several bishops in the south of France, who agreed to exclude him who violated their ordinances from all Christian privileges during his life, and to deny him Christian burial after his death.[69] A little later, men engaged in warfare were exhorted, by sacred relics and by the bodies of saints, to lay down their arms and to swear that they would never again disturb the public peace by their private hostilities.[70] But it is hardly likely that such directions had much effect as long as the bishops and abbots themselves were allowed to wage private war by means of their vidames, and exercised this right scarcely less frequently than the barons.[71] Nor does it seem that {357} the Church brought about any considerable change for the better by establishing the Truce of God, involving obligatory respite from hostilities during the great festivals of the Church, as also from the evening of Wednesday in each week to the morning of Monday in the week ensuing.[72] We are assured by good authorities that the Truce was generally disregarded, though the violator was threatened with the penalty of excommunication. [73] Most barons could probably say with Bertram de Born:--"La paix ne me convient pas; la guerre seule me plaît. Je n'ai égard ni aux lundis, ni aux mardis. Les semaines, les mois, les années, tout m'est égal. En tout temps, je veux perdre quiconque me nuit."[74] The ordinance enjoining the treuga Dei was transgressed even by the popes.[75] It was too unpractical a direction to be obeyed, and was soon given up even in theory by the authorities of the Church. Thomas Aquinas says that, as physicians may lawfully apply remedies to men on feast-days, so just wars may be lawfully prosecuted on such days for the defence of the commonwealth of the faithful, if necessity so requires; "for it would be tempting God for a man to want to keep his hands from war under stress of such necessity."[76] And in support of this opinion he quotes the first Book of the Maccabees, where it is said, "Whosoever shall come to make battle with us on the sabbath day, we will fight against him."[77]

[Footnote 69: 'Charta de Treuga et Pace per Aniciensem Praesulem Widonem in Congregatione quamplurium Episcoporum, Principium, et Nobilium hujus Terrae sancita,' in Dumont, Corps universel diplomatique du droit des gens, i. 41.]

[Footnote 70: Raoul Glaber, Histori sui temporis, iv. 5 (Bouquet, Rerum Gallicarum et Francicarum Scriptores, x. 49). Robertson, op. cit. i. 335.]

[Footnote 71: Brussel, Nouvel examen de l'usage général des fiefs en France, i. 144. How much the prelates were infected by the general spirit of the age, appears from a characteristic story of an archbishop of Cologne who gave to one of his vassals a castle situated on a sterile rock. When the vassal objected that he could not subsist on such a soil, the archbishop answered, "Why do you complain? Four roads unite under the walls of your castle" (Du Boys, Histoire du droit criminel de l'Espagne, p. 504).]

[Footnote 72: Raoul Glaber, op. cit. v. 1 (loc. cit. p. 59). Du Cange, Glossarium ad scriptores mediæ et infimæ Latinitatis, vi. 1267 sq. Henault, Nouvel abrégé chronologique de l'histoire de France, p. 106.]

[Footnote 73: Du Cange, Glossarium, vi. 1272. Nys, Droit de la guerre et les précurseurs de Grotius, p. 114.]

[Footnote 74: Villemain, Cours de littérature française, Littérature du Moyen Age, i. 122 sq.]

[Footnote 75: Belli, De re militari, quoted by Nys, op. cit. p. 115.]

[Footnote 76: Thomas Aquinas, op. cit. ii.-ii. 40. 4.]

[Footnote 77: Maccabees, ii. 41.]

It seems that the main cause of the abolition of private war was not any measure taken by the Church, but the increase of the authority of emperors or kings. In France the right of waging private war was moderated by Louis IX., checked by Philip IV., suppressed by {358} Charles VI.[78] In England, after the Norman Conquest, private wars seem to have occurred more rarely than on the Continent, probably owing to the strength of the royal authority, which made the execution of justice more vigorous and the jurisdiction of the King's court more extensive than was the case in most other countries.[79] In Scotland the practice of private war received its final blow only late in the eighteenth century, when the clans were reduced to order after the rebellion of 1745.[80] Whilst, then, it is impossible to ascribe to the Church any considerable part in the movement which ultimately led to the entire abolition of private war, we have, on the other hand, to take into account the encouragement which the Church gave to the warlike spirit of the time by the establishment of Chivalry[81] and by sanctioning war as a divine institution. War came to be looked upon as a judgment of God and the victory as a sign of his special favour. Before a battle, the service of mass was usually performed by both armies in the presence of each other, and no warrior would fight without secretly breathing a prayer.[82] Pope Adrian IV. says that a war commenced under the auspices of religion cannot but be fortunate;[83] and it was commonly believed that God took no less interest in the battle than did the fighting warriors. Bonet, who wrote in the fourteenth century, puts to himself the question, why there are so many wars in the world, and gives the answer, "que toutes sont pour le pechié du siecle dont nostre seigneur Dieu pour le pugnir permet les guerres, car ainsi le maintient l'escripture."[84]

[Footnote 78: Robertson, op. cit. i. 55, 56, 338 sqq. Hallam, View of the State of Europe during the Middle Ages, i. 207. Brussel, op. cit. i. 142.]

[Footnote 79: Ibid. i. 343 sq. Prof. Freeman (Comparative Politics, p. 328 sq.) mentions as the last instance of private war in England one from the time of Edward IV.]

[Footnote 80: Lawrence, Essays on some Disputed Questions in Modern International Law, p. 254 sq.]

[Footnote 81: I do not understand how M. Gautier can say (op. cit. p. 6) that Chivalry was the most beautiful of those means by which the Church endeavoured to check war.]

[Footnote 82: Mills, History of Chivalry, i. 147.]

[Footnote 83: Laurent, op. cit. vii. 245.]

[Footnote 84: Bonet, op. cit. iv. 54, p. 150.]

Similar opinions have retained their place in the orthodox creeds both of the Catholic and Protestant {359} Churches up to the present day. The attitude adopted by the great Christian congregations towards war has been, and is still, to a considerable degree, that of sympathetic approval. The Catechism of the Council of Trent brings home that there are on record instances of slaughter executed by the special command of God Himself, as when the sons of Levi, who put to death so many thousands in one day, after the slaughter were thus addressed by Moses, "Ye have consecrated your hands this day to the Lord."[85] Even quite modern Catholic writers refer to the canonists who held that a State might lawfully make war upon a heretic people which was spreading heresy, and upon a pagan people which prevented the preaching of the Gospel.[86] Again, when the Protestant Churches became State-Churches, their ministers, considering themselves as in the service of the State, were ready to champion whatever war the Government pleased to undertake. As Mr. Gibb observes, the Protestant minister was as ready with his Thanksgiving Sermon for the victories of a profligate war, as the Catholic priest was with his Te Deum; "indeed, the latter was probably the more independent of the two, because of his allegiance to Rome."[87] The new Confessions of Faith explicitly claimed for the State the right of waging war, and the Anabaptists were condemned because they considered war unlawful for a Christian.[88] Even the necessity of a just cause as a reason for taking part in warfare, which was reasserted at the time of the Reformation, was subsequently allowed to drop out of sight. Mr. Farrer calls attention to the fact that in the 37th article of the English Church, which is to the effect that a Christian at the command of the magistrate may wear weapons and serve in wars, the word justa in the Latin form preceding the word bella has been omitted altogether.[89]

[Footnote 85: Catechism of the Council of Trent, iii. 6. 5.]

[Footnote 86: Adds and Arnold, Catholic Dictionary, p. 944.]

[Footnote 87: Gibb, loc. cit. p. 90.]

[Footnote 88: Augsburg Confession, i. 16. Second Helvetic Confession, xxx. 4.]

[Footnote 89: Farrer, Military Manners and Customs, p. 208.]

{360} Nor did the old opinion that war is a providential institution and a judgment of God die with the Middle Ages. Lord Bacon looks upon wars as "the highest trials of right; when princes and states that acknowledge no superior upon earth shall put themselves upon the justice of God, for the deciding of their controversies by such success as it shall please Him to give on either side."[90] Réal de Curban says that a war is seldom successful unless it be just, hence the victor may presume that God is on his side.[91] According to Jeremy Taylor, "kings are in the place of God, who strikes whole nations, and towns, and villages; and war is the rod of God in the hands of princes."[92] And it is not only looked upon as an instrument of divine justice, but it is also said, generally, "to work out the noble purposes of God."[93] Its tendency, as a theological writer assures us, is "to rectify and exalt the popular conception of God," there being nothing among men "like the smell of gunpowder for making a nation perceive the fragrance of divinity in truth."[94] By war the different countries "have been opened up to the advance of true religion."[95] "No people ever did, or ever could, feel the power of Christian principle growing up like an inspiration through the national manhood, until the worth of it had been thundered on the battle-field."[96] War is, "when God sends

it, a means of grace and of national renovation"; it is "a solemn duty in which usually only the best Christians and most trustworthy men should be commissioned to hold the sword."[97] According to M. Proudhon, it is the most sublime phenomenon of our moral life,[98] a divine revelation more authoritative than the Gospel itself.[99] The warlike people is the religious people;[100] war is the sign of {361} human grandeur, peace a thing for beavers and sheep. "Philanthrope, vous parlez d'abolir la guerre; prenez garde de dégrader le genre humain."[101]

[Footnote 90: Bacon, Letters and Life, i. (Works, viii.), 146.]

[Footnote 91: Réal de Curban, La science du gouvernement, v. 394 sq.]

[Footnote 92: Taylor, Whole Works, xii. 164.]

[Footnote 93: 'The Sword and Christianity,' in Boston Review devoted to Theology and Literature, iii. 261.]

[Footnote 94: Ibid. iii. 259, 257.]

[Footnote 95: Holland, Time of War, p. 14.]

[Footnote 96: Boston Review, iii. 257.]

[Footnote 97: 'Christianity and War,' in Christian Review, xxvi. 604.]

[Footnote 98: Proudhon, La guerre et la paix, ii. 420.]

[Footnote 99: Ibid.i.62; ii. 435.]

[Footnote 100: Ibid. i. 45.]

[Footnote 101: Ibid. i. 43.]

In order to prove the consistency of war with Christianity appeals are still, as in former days, made to the Bible; to the divinely-sanctioned example of the ancient Israelites, to the fact that Jesus never prohibited those around Him from bearing arms, to the instances of the centurions mentioned in the Gospel, to St. Paul's predilection for taking his spiritual metaphors from the profession of the soldier, and so on.[102] According to Canon Mozley, the Christian recognition of the right of war was contained in Christianity's original recognition of nations.[103] "By a fortunate necessity," a universal empire is impossible.[104] Each nation is a centre by itself, and when questions of right and justice arise between these independent centres, they cannot be decided except by mutual agreement or force. The aim of the nation going to war is exactly the same as that of the individual in entering a court, and the Church, which has no authority to decide which is the right side, cannot but stand neutral and contemplate war forensically, as a mode of settling national questions, which is justified by the want of any other mode.[105] A natural justice, Canon Mozley adds, is inherent not only in wars of self-defence; there is an instinctive reaching in nations and masses of people after alteration and readjustment, which has justice in it, and which arises from real needs. The arrangement does not suit as it stands, there is want of adaptation, there is confinement and pressure; there are people kept away from each other that are made to be together, and parts separated that were made to join. All this uneasiness in States naturally leads to war. Moreover, there are wars of progress which, so far as they are really necessary for the due advantage of mankind and {362} growth of society, are approved of by Christianity, though they do not strictly belong to the head of wars undertaken in self-defence.[106] A doctrine which thus, in the name of religion, allows the waging of wars for rectifying the political distribution of nationalities and races, and forwarding the so-called progress of the world, naturally lends itself to the justification of almost any war entered upon by a Christian State.[107] As a matter of fact, it would be impossible to find a single instance of a war waged by a Protestant country, from any motive, to which the bulk of its clergy have not given their sanction and support. The opposition against war has generally come from other quarters.

[Footnote 102: See e.g., Browne, Exposition of the Thirty-Nine Articles, p. 827 sq.; Christian Review, xxvi. 603 sq.; Eclectic Magazine, xiii. 372.]

[Footnote 103: Mozley, 'On War,' in Sermons preached before the University of Oxford, p. 119.]

[Footnote 104: Ibid. p. 112.]

[Footnote 105: Ibid. p. 100 sqq.]

[Footnote 106: Ibid. 104 sq.]

[Footnote 107: On the principle of progress, Canon Mozley himself justifies (ibid. p. 110 sq.) not only the wars undertaken against two Eastern empires which have shut themselves up and excluded themselves from the society of mankind, but "two of the three great European wars of the last dozen years." This was said in 1871.]

There have been, and still are, Christian sects which, on religious grounds, condemn war of any kind. In the fourteenth century the Lollards taught that homicide in war is expressly contrary to the New Testament; they were persecuted partly on that account. [108] Of the same opinion were the Anabaptists of the sixteenth century; and they could claim on their side the words of men like Colet and Erasmus. From the pulpit of St. Paul's Colet thundered that "an unjust peace is better than the justest war," and that, "when men out of hatred and ambition fight with and destroy one another, they fight under the banner, not of Christ, but of the Devil."[109] According to Erasmus "nothing is more impious, more calamitous, more widely pernicious, more inveterate, more base, or in sum more unworthy of a man, not to say of a Christian," than war. It is worse than brutal; to man no wild beast is more destructive than his fellow-man. When brutes fight, they fight with weapons which nature has given them, whereas we arm ourselves for mutual slaughter with weapons which nature never thought of. Neither do beasts break out {363} in hostile rage for trifling causes, but either when hunger drives them to madness, or when they find themselves attacked, or when they are alarmed for the safety of their young. But we, on frivolous pretences, what tragedies do we act on the theatre of war! Under colour of some obsolete and disputable claim to territory; in a childish passion for a mistress; for causes even more ridiculous than these, we kindle the flame of war. Transactions truly hellish, are called holy wars. Bishops and grave divines, decrepit as they are in person, fight from the pulpit the battles of the princes, promising remission of sins to all who will take part in the war of the prince, and exclaiming to the latter that God will fight for him, if he only keeps his mind favourable to the cause of religion. And yet, how could it ever enter into our hearts, that a Christian should imbrue his hands in the blood of a Christian! What is war but murder and theft committed by great numbers on great numbers! Does not the Gospel declare, in decisive words, that we must not revile again those who revile us, that we should do good to those who use us ill, that we should give up the whole of our possessions to those who take a part, that we should pray for those who design to take away our lives? The world has so many learned bishops, so many grey-headed grandees, so many councils and senates, why is not recourse had to their authority, and the childish quarrels of princes settled by their wise and decisive arbitration? "The man who engages in war by choice, that man, whoever he is, is a wicked man; he sins against nature, against God, against man, and is guilty of the most aggravated and complicated impiety."[110] These were the main arguments of reason, humanity, and religion, which Erasmus adduced against war. They could not leave the reformers entirely unaffected. Sir Thomas More charged Luther himself and his disciples with carrying the doctrines of peace to the extreme limits {364} of non-resistance.[111] But, as we have noticed, these peaceful tendencies

only formed a passing phase in the history of Reformation, and were left to the care of sectarians.

[Footnote 108: Perry, History of the English Church, First Period, pp. 455, 467.]

[Footnote 109: Green, History of the English People, ii. 93.]

[Footnote 110: Erasmus, Adagia, iv. 1, col. 893 sqq.]

[Footnote 111: Farrer, Military Manners and Customs, p. 185.]

Among these the Quakers are the most important. By virtue of various passages in the Old and the New Testament,[112] they contend that all warfare, whatever be its peculiar features, circumstances, or pretexts, is wholly at variance with the Christian religion. It is always the duty of Christians to obey their Master's high and holy law--to suffer wrong, to return good for evil, to love their enemies. War is also inconsistent with the Christian principle that human life is sacred, and that death is followed by infinite consequences. Since man is destined for eternity, the future welfare of a single individual is of greater importance than the merely temporal prosperity of a whole nation. When cutting short the days of their neighbour and transmitting him, prepared or unprepared, to the awful realities of an everlasting state, Christians take upon themselves a most unwarrantable responsibility, unless such an action is expressly sanctioned by their divine Master, as was the case among the Israelites. In the New Testament there is no such sanction, hence it must be concluded that, under the Christian dispensation, it is utterly unlawful for one man to kill another, under whatever circumstances of expediency or provocation the deed may be committed. And a Christian who fights by the command of his prince, and in behalf of his country, not only commits sin in his own person, but aids and abets the national transgression.[113]

[Footnote 112: Isaiah, ch. ii. sqq. Micah, iv. 1 sqq. St. Matthew, v. 38 sqq.; xxvi. 52. St. Luke, vi. 27 sqq. St. John, xviii. 36. Romans, xii. 19 sqq. 1 Peter, iii. 9.]

[Footnote 113: Gurney, Views & Practices of the Society of Friends, p. 375 sqq.]

It must be added that views similar to these are also found independently of any particular form of sectarianism. According to Dr. Wayland, all wars, defensive as well as offensive, are contrary to the revealed will of God, aggression from a foreign nation calling not for retaliation and {365} injury, but rather for special kindness and good-will.[114] Theodore Parker, the Congregational minister, looks upon war as a sin, a corrupter of public morals, a practical denial of Christianity, a violation of God's eternal love.[115] W. Stokes, the Baptist, observes that Christianity cannot sanction war, whether offensive or defensive, because war is an "immeasurable evil, by hurling unnumbered myriads of our fellow-men to a premature judgment and endless despair."[116] Moreover, those who compare the state of opinion during the last years with that of former periods, cannot fail to observe a marked progress of a sentiment antagonistic to war in the various sections of the Christian Church.[117] Yet, speaking generally, the orthodox are still of the same opinion as Sir James Turner, who declared that "those who condemn the profession or art of soldiery, smell rank of Anabaptism and Quakery";[118] and war is in our days, as it was in those of Erasmus,[119] so much sanctioned by authority and custom, that it is deemed impious to bear testimony against it. The duties which compulsory military service imposes upon the male population of most Christian countries presuppose that a Christian should have no scruples about taking part in any war waged by the State, and are recognised as binding by the clergy of those countries. With reference to the Church of England, Dr. Thomas Arnold asks, "Did it become a Christian Church to make no other official declaration of its sentiments concerning war, than by saying that Christian men might lawfully engage in it?"[120]

[Footnote 114: Wayland, Elements of Moral Science, pp. 375, 379.]

[Footnote 115: Parker, Sermon of War, p. 23.]

[Footnote 116: Stokes, All War inconsistent with the Christian Religion, p. 41.]

[Footnote 117: Cf. Gibb, loc. cit. p. 81.]

[Footnote 118: Turner, Pallas Armata, p. 369.]

[Footnote 119: Erasmus, op. cit. iv. 1. 1. col. 894.]

[Footnote 120: Arnold, On the Church, p. 136.]

The protest against war which exercised perhaps the widest influence on public opinion came from a school of moralists whose tendencies were not only anti-orthodox, but distinctly hostile to the most essential dogmas of Christian theology. Bayle, in his Dictionary, calls Erasmus' essay {366} against war one of the most beautiful dissertations ever written.[121] He observes that the more we consider the inevitable consequences of war, the more we feel disposed to detest those who are the causes of it.[122] Its usual fruits may, indeed, "make those tremble who undertake or advise it, to prevent evils which, perhaps, may never happen and which, at the worst, would often be much less than those which necessarily follow a rupture."[123] To Voltaire war is an "infernal enterprise," the strangest feature of which is that "every chief of the ruffians has his colours consecrated, and solemnly prays to God before he goes to destroy his neighbour."[124] He asks what the Church has done to suppress this crime. Bourdaloue preached against impurity, but what sermon did he ever direct against the murder, rapine, brigandage, and universal rage, which desolate the world? "Miserable physicians of souls, you declaim for five quarters of an hour against the mere pricks of a pin, and say no word on the curse which tears us into a thousand pieces."[125] Voltaire admits that under certain circumstances war is an inevitable curse, but rebukes Montesquieu for saying that natural defence sometimes involves the necessity of attack, when a nation perceives that a longer peace would place another nation in a position to destroy it.[126] Such a war, he observes, is as illegitimate as possible:--" It is to go and kill your neighbour for fear that your neighbour, who does not attack you, should be in a condition to attack you; that is to say, you must run the risk of ruining your country, in the hope of ruining without reason some other country; this is, to be sure, neither fair nor useful."[127] The chief causes which induce men to massacre in all loyalty thousands of their brothers and to expose their own people to the most terrible misery, are the ambitions and {367} jealousies of princes and their ministers.[128] Similar views are expressed in the great Encyclopédie:--"La guerre est le plus terrible des fléaux qui détruisent l'espèce humaine: elle n'épargne pas même les vainqueurs; la plus heureuse est funeste. . . . Ce ne sont plus aujourd'hui les peuples qui déclarent la guerre, c'est la cupidité des rois qui leur fait prendre les armes; c'est l'indigence qui les met aux mains de leurs sujets."[129]

[Footnote 121: Bayle, Dictionnaire historique et critique, vi. 239, art. Erasme.]

[Footnote 122: Ibid. ii. 463, art. Artaxata.]

[Footnote 123: Ibid. i. 472, art. Alting (Henri).]

[Footnote 124: Voltaire, Dictionnaire philosophique, art. Guerre ([OE]uvres complètes, xl. 562).]

[Footnote 125: Ibid. p. 564.]

[Footnote 126: Montesquieu, De l'esprit des lois, x. 2 ([OE]uvres complètes, p. 256).]

[Footnote 127: Voltaire, loc. cit. p. 565.]

[Footnote 128: Ibid. pp. 466, 564. For Voltaire's condemnation of war, see Morley, Voltaire, p. 311 sq. I have availed myself of Lord Morley's translation of some of the passages quoted.]

[Footnote 129: Encyclopédie méthodique, Art militaire, ii. 618 sq.]

However vehemently Voltaire and the Encyclopedists condemned war, they did not dream of a time when all wars would cease. Other writers were more optimistic. Already in 1713 Abbé Saint-Pierre--whose abbotship involved only a nominal connection with the Church--had published a project of perpetual peace, which was based on the idea of a general confederation of European nations.[130] This project was much laughed at; Voltaire himself calls its author "un homme moitié philosophe, moitié fou." But once called into being, the idea of a perpetual peace and of a European confederation did not die. It was successively conceived by Rousseau,[131] Bentham,[132] and Kant.[133] But on the other hand it met with a formidable enemy in the awakening spirit of nationalism.

[Footnote 130: Saint-Pierre, Projet de Traité pour rendre la paix perpétuelle entre les souverains Chrétiens.]

[Footnote 131: Rousseau, Extrait du Projet de paix perpétuelle, de M. l'Abbé de Saint-Pierre ([OE]uvres complètes, i. 606 sqq.).]

[Footnote 132: Bentham, A Plan for an universal and perpetual Peace (Works, ii. 546 sqq.).]

[Footnote 133: Kant, Zum ewigen Frieden.]

The Napoleonic oppression called forth resistance. Philosophers and poets sounded the war trumpet. The dream of a universal monarchy was looked upon as absurd and hateful, and the individuality of a nation as the only possible security for its virtue.[134] War was no longer attributed to the pretended interests of princes or to the caprices of their advisers. It was praised as a vehicle of the highest right,[135] as a source or national renovation.[136] {368} By war, says Hegel, "finite pursuits are rendered unstable, and the ethical health of peoples is preserved. Just as the movement of the ocean prevents the corruption which would be the result of perpetual calm, so by war people escape the corruption which would be occasioned by a continuous or eternal peace."[137] Similar views have been expressed by later writers. War is glorified as a stimulus to the elevated virtues of courage, disinterestedness, and patriotism.[138] It has done more great things in the world than the love of man, says Nietzsche.[139] It is the mother of art and of all civil virtues, says Mr. Ruskin.[140] Others defend war, not as a positive good, but as a necessary means of deciding the most serious international controversies, denying that arbitration can be a substitute for all kinds of war. Questions which are intimately connected with national passions and national aspirations, and questions which are vital to a nation's safety, will never, they say, be left to arbitration. Each State must be the guardian of its own security, and cannot allow its independence to be calmly discussed and adjudicated upon by an external tribunal.[141] Moreover, arbitration would prove effective only where the contradictory pretensions could be juridically formulated, and these instances are by far the less numerous and the less important.[142] And would it not, in many cases, be impossible to find impartial arbiters? Would not arbitration often be influenced by a calculation of the forces which every power interested could bring into the field, and would not war be resorted to where arbitration failed to reconcile conflicting interests, or where a decision was opposed to a high-spirited people's sense of justice? These and similar arguments are constantly adduced against the idea of a perpetual peace. But at the same time the opponents of war are becoming more numerous {369} and more confident every day. Already after the fall of Napoleon, when there was a universal longing for peace in the civilised world, the first Peace Societies were formed;[143] and the idea of Saint-Pierre, from being the dream of a philosopher, has become the object of a popular movement which is rapidly increasing in importance. There is every reason to believe that, when the present high

tide of nationalism has subsided, and the subject of war and peace is no longer looked upon from an exclusively national point of view, the objections which are now raised against arbitration will at last appear almost as futile as any arguments in favour of private war or blood-revenge. There is an inveterate tendency in the human mind to assume that existing conditions will remain unchanged. But the history of civilisation shows how unfounded any such assumption is with reference to those conditions which determine social relationships and the extent of moral rights and duties.

[Footnote 134: Fichte, Reden an die deutsche Nation. Cf. Idem, Ueber den Begriff des wahrhaften Krieges.]

[Footnote 135: Arndt, quoted by Jähns, Krieg, Frieden und Kultur, p. 302.]

[Footnote 136: Anselm von Feuerbach, Unterdrückung und Wiederbefreiung Europens.]

[Footnote 137: Hegel, Grundlinien der Philosophie des Rechts, § 324, p. 317 (English translation, p. 331).]

[Footnote 138: See, e.g., Mabille, La Guerre, p. 139.]

[Footnote 139: Nietzsche, Also sprach Zarathustra, i. 63.]

[Footnote 140: Ruskin, Crown of Wild Olive, Lecture on War (Works, vi. 99, 105).]

[Footnote 141: Lawrence, op. cit. p. 275 sq. Sidgwick, 'Morality of Strife,' in International Journal of Ethics, i. 13.]

[Footnote 142: Geffken, quoted by Jähns, op. cit. p. 352, n. 2.]

[Footnote 143: Jähns, op. cit. p. 307 sq.]

It is said that, though Christianity has not abolished war, it has nevertheless, even in war, asserted the principle that human life is sacred by prohibiting all needless destruction. The Canon, 'De treuga et pace,' laid down the rule that non-resisting persons should be spared;[144] and Franciscus a Victoria maintained not only that between Christian enemies those who made no resistance could not lawfully be slain,[145] but that even in war against the Turks it was wrong to kill children and women.[146] However, this doctrine of mercy was far in advance of the habits and general opinion of the time.[147] If the simple peasant was often spared, that was largely from motives of prudence,[148] or because the valiant knight considered him unworthy of the lance.[149] As late as the seventeenth century, Grotius was certainly not supported by the spirit of the age when he argued that, "if justice {370} do not require, at least mercy does, that we should not, except for weighty causes tending to the safety of many, undertake anything which may involve innocent persons in destruction";[150] or when he recommended enemies willing to surrender on fair conditions, or unconditionally, to be spared.[151] Afterwards, however, opinion changed rapidly. Pufendorf, in echoing the doctrine of Grotius,[152] spoke to a world which was already convinced; and in the eighteenth century Bynkershoek stands alone in giving to a belligerent unlimited rights of violence.[153] In reference to the assumption that this change of opinion is due to the influence of the Christian religion, it is instructive to note that Grotius, in support of his doctrine, appealed chiefly to pagan authorities, and that even savage peoples, without the aid of Christianity, have arrived at the rule which in war forbids the destruction of helpless persons and captives.

[Footnote 144: Gregory IX. Decretales, i. 34. 2.]

[Footnote 145: Franciscus a Victoria, op. cit. vi. 13, 35, 48; pp. 232, 241, 246 sq.]

[Footnote 146: Ibid. vi. 36, p. 241.]

[Footnote 147: Hall, Treatise on International Law, p. 395, n. 1.]

[Footnote 148: d'Argentré, L'histoire de Bretagne, p. 391.]

[Footnote 149: Mills, op. cit. p. 132.]

[Footnote 150: Grotius, op. cit. iii. 11. 8.]

[Footnote 151: Ibid. iii. 11. 14 sqq.]

[Footnote 152: Pufendorf, De jure naturæ et gentium, viii. 6. 8, p. 885.]

[Footnote 153: van Bynkershoek, Questiones juris publici, i. 1, p. 31: "Omnis enim vis in bello justa est." Hall, Treatise on International Law, p. 395, n. 1.]

The prevailing attitude towards war indicates the survival, in modern civilisation, of the old feeling that the life of a foreigner is not equally sacred with the life of a countryman. In times of peace this feeling is usually suppressed; it appears in no existing law on homicide, nor does it, generally, find expression in public opinion. It dares to disclose itself only in the form of national aggressiveness, under the flag of patriotism, or, perhaps, in the treatment of the aborigines of some distant country. The behaviour of European colonists towards coloured races only too often reminds us of the manner in which savages treat members of a foreign tribe. It was said that the frontier peasants at the Cape found nothing morally wrong in the razzias which they undertook against the Bushmans, without any provocation whatsoever, though they would consider it a heinous sin to do the same to their Christian fellow-men.[154] In Australia {371} there are instances reported of young colonists employing the Sunday in shooting blacks for the sake of sport. "The life of a native," says Mr. Lumholtz, "has but little value, particularly in the northern part of Australia, and once or twice colonists offered to shoot blacks for me so that I might get their skulls. On the borders of civilisation men would think as little of shooting a black man as a dog. The law imposes death by hanging as the penalty for murdering a black man, but people live so far apart in these uncivilised regions that a white man may in fact do what he pleases with the blacks. . . . In the courts the blacks are defenceless, for their testimony is not accepted. The jury is not likely to declare a white man guilty of murdering a black man. On the other hand if a white man happens to be killed by the blacks, a cry is heard throughout the whole colony."[155]

[Footnote 154: Waitz, Introduction to Anthropology, p. 314.]

[Footnote 155: Lumholtz, Among Cannibals, p. 346 sqq. See also Mathew, in Jour. & Proceed. Roy. Soc. N. S. Wales, xxiii. 390; Breton, Excursions in New South Wales, p. 200 sq.; Stokes, Discoveries in Australia, ii. 459 sqq.]

Chapter XVI

HOMICIDE IN GENERAL (concluded)

IN the last two chapters we have only been concerned with the statement of facts; we shall now make an attempt to explain those facts. What is the source of the moral commandment, "Thou shalt not kill"? And what is the cause of its original narrowness and of its subsequent extension?

Mr. Spencer suggests that the taking of life was regarded as a wrong done to the family of the dead man or to the society of which he was a member, before it came to be conceived of as a wrong done to the murdered man himself.[1] But considering the mutual sympathy which prevails in small savage communities, it seems extremely probable that sympathetic resentment felt on account of the injury suffered by the victim has from the beginning been a potent cause of the condemnation of homicide. Savages, no less than civilised mankind, practically regard a man's life as his highest good. Whatever opinions may be held about the existence after death, whatever bless-

ings may be supposed to await the disembodied soul, nobody likes to be hurried into that existence by another's will. According to early beliefs, the soul of a murdered man is furious with the person who slew him, and finds no rest until his death has been avenged.[2] His friends and comrades pity his fate and {373} feel resentment on his behalf; whereas, in a state of culture where sympathy is restricted to a narrow group of people, no such resentment will be felt if the victim is a member of another group. On the contrary, when he is regarded as an actual or potential enemy, or when the slaying of him is taken for a test of courage, the manslayer will be applauded by his own people, and his deed will be styled good or meritorious. In some cases superstition, also, is an encouragement to extra-tribal homicide. The Kukis believe that, in paradise, all the enemies whom a man has killed will be in attendance on him as slaves.[3] A similar belief partly lies at the bottom of the custom of head-hunting;[4] whilst, according to other notions, the soul of the man whose head is procured is transformed into a guardian spirit.[5] A Kayan chief said of the custom in question, "It brings us blessings, plentiful harvests, and keeps off sickness and pains; those who were once our enemies, hereby become our guardians, our friends, our benefactors."[6] Now, progress in civilisation is generally marked by an expansion of the altruistic sentiment; and this largely explains why the prohibition of homicide has come to embrace more and more comprehensive circles of men, and finally, in the most advanced cases, the whole human race.

[Footnote 1: Spencer, Principles of Ethics, ii.]

[Footnote 2: See infra, on Blood-revenge.]

[Footnote 3: Dalton, Descriptive Ethnology of Bengal, p. 46.]

[Footnote 4: Ling Roth, Natives of Sarawak, ii. 141.]

[Footnote 5: Wilken, Het animisme bij de volken van den Indischen Archipel, p. 124.]

[Footnote 6: Furness, Home-Life of Borneo Head-Hunters, p. 59.]

But whilst homicide is censured as a wrong done to the person slain, it is at the same time viewed as an injury inflicted upon the survivors. It deprived his friends of his company, his family and community of a useful member. In Arabia, when a man was killed, his tribesmen, instead of mentioning his name, used to say, "Our blood has been spilt."[7] According to Lafitau, the loss of a single person seemed to the North American Indians a subject or great regret, because it weakened the family.[8] {374} Among the Basutos, again, murder is condemned "as a violation of the sacred rights of a father, who is deprived of the services of his son, or of a widow and orphans, who are left without support."[9] Especially when a person is considered more or less the property of another, the taking of his life is largely looked upon as an offence against the owner. Mr. Warner states of the Kafirs, "All homicide must . . . be atoned for; the principle assumed being, that the persons of individuals are the property of the Chief, and that having been deprived of the life of a subject, he must be compensated for it."[10] We meet with a somewhat similar notion in the history of English legislation. In his book on the Commonwealth of England, Thomas Smith observes, "Attempting to impoison a man, or laying a waite to kill a man, though hee wound him dangerously, yet if death follow not, it is no fellony by the law of England, for the Prince hath lost no man, and life ought to be giuen we say for life only."[11] In the Middle Ages homicide was conceived as a breach of the "King's peace"; and both before and afterwards it has been stigmatised as a disturbance of public tranquillity and an outrage on public safety. In the Anglo-Saxon wer and wite we find a clear distinction between the private and public aspects of homicide.[12]

[Footnote 7: Robertson Smith, Marriage and Kinship in Early Arabia, p. 26.]

[Footnote 8: Lafitau, M[oe]urs des sauvages ameriquains, ii. 163.]

[Footnote 9: Casalis, Basutos, p. 224 sq.]

[Footnote 10: Warner, in Maclean, Compendium of Kafir Laws, p. 60 sq.]

[Footnote 11: Thomas Smith, Common-wealth of England, p. 194 sq.]

[Footnote 12: Cf. Pollock and Maitland, History of English Law before the Time of Edward I. i. 48.]

A manslayer not only causes a loss to the group which he deprives of a member, but he also may give trouble to his own people, who, in consequence, disapprove of his act. Among the Yahgans of Tierra del Fuego, says Mr. Bridges, "many things conspire to make the shedding of blood a fearful thing. A murderer imperils all his friends and connections more or less, and consequently estranges them from himself. This state of things is the greatest safeguard to human life we can conceive."[13] Among the Káfirs of the Hindu-Kush, "the mere killing of an {375} individual is looked upon as a small affair, provided that he does not belong to the tribe, or to another near tribe with which it is at peace, for in the latter case it might result in war."[14]

[Footnote 13: Bridges, in South American Missionary Magazine, xiii. 153.]

[Footnote 14: Scott Robertson, Káfirs of the Hindu-Kush, p. 194.]

We have still to notice the common idea that a manslayer is unclean. The ghost of the victim persecutes him, or actually cleaves to him like a miasma; and he must undergo rites of purification to get rid of the infection. Until this is done, he is among many peoples regarded as a source of danger, and is consequently cut off from free intercourse with his fellows.

Among the Ponka Indians Mr. Dorsey found the belief that a murderer is surrounded by the ghosts, who keep up a constant whistling; that he can never satisfy his hunger, though he eat much food; and that he must not be allowed to roam at large lest high winds arise.[15] Of the warriors among certain North American Indians Adair wrote that, "as they reckon they are become impure by shedding human blood," they hasten to observe a fast of three days.[16] Among the Natchez, according to Charlevoix, "those who for the first time have made a prisoner or taken off a scalp, must, for a month, abstain from seeing their wives, and from eating flesh. They imagine, that if they should fail in this, the souls of those whom they have killed or burnt, would effect their death, or that the first wound they should receive would be mortal; or at least, that they should never gain any advantage over their enemies."[17] The Kafirs and Bechuanas practise various ceremonies of purification after their fights.[18] The Basutos say, "Human blood is heavy, it prevents him who has shed it from running away."[19] They consider it necessary that, on return from battle, "the warriors should rid themselves, as soon as possible, of the blood they have shed, or the shades of their victims would pursue them incessantly and disturb their slumbers"; hence they go in full armour to the nearest stream, and, as a rule, at the moment they enter the water a diviner, placed {376} higher up, throws some purifying substances into the current.[20] Among the Bantu Kavirondo, "when a man has killed an enemy in warfare he shaves his head on his return home, and his friends rub 'medicine' (generally the dung of goats) over his body to prevent the spirit of the deceased from worrying the man by whom he has been slain."[21] Among the Ja-luo, a warrior who has slain an enemy not only shaves his hair, but, after entering the village, prepares a big feast to propitiate the man he has killed so that his ghost may not give trouble.[22] Among the Wagogo of German East Africa, the father of a young warrior who has shed blood gives to his son a goat "to clean his sword."[23] After the slaughter of the Midianites, those Israelites who had killed any one, or touched the slain, had to remain outside the camp for seven days, purifying

themselves and everything in their possession either by water, or fire, or both.[24] So, also, if a person had been slain in the land of Israel, and the perpetrator of the deed could not be detected, the elders of the city which was next unto the slain had to undergo a ceremony of purification in order to rid the city of "the guilt of innocent blood.[25] According to the Laws of Manu, a person who has unintentionally killed a Brâhmana shall make a hut in the forest and dwell in it during twelve years;[26] in order to remove the guilt he shall throw himself thrice headlong into a blazing fire,[27] or walk against the stream along the whole course of the river Sarasvatî,[28] or shave off all his hair.[29] The ancient Greeks believed that one who had suffered a violent end, when newly dead, was angry with the author of his death.[30] The blood-guilty individual, as though infected with a miasma, shunned all contact and conversation with other people, and avoided entering their dwellings.[31] Even the involuntary manslayer had to leave the country for some time; according to Plato's 'Laws,' he "must go out of the way of his victim for the entire period of a year, and not let himself be found in any spot which was familiar to him throughout the country."[32] {377} Nor must he return to his land until sacrifice had been offered and ceremonies of purification performed.[33]

[Footnote 15: Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 420.]

[Footnote 16: Adair, History of the American Indians, p. 388.]

[Footnote 17: Charlevoix, Voyage to North America, ii. 203.]

[Footnote 18: Arbousset and Daumas, Exploratory Tour to the Colony of the Cape of Good Hope, p. 394 sqq. Alberti, De Kaffers aan de Zuidkust van Afrika, p. 104.]

[Footnote 19: Casalis, op. cit. p. 309.]

[Footnote 20: Ibid. p. 258.]

[Footnote 21: Johnston, Uganda Protectorate, ii. 743 sq.]

[Footnote 22: Ibid. ii. 794.]

[Footnote 23: Cole, 'Notes on the Wagogo of German East Africa,' in Jour. Anthr. Inst. xxxii. 321.]

[Footnote 24: Numbers, xxxi. 19 sqq.]

[Footnote 25: Deuteronomy, xxi. 1 sq.]

[Footnote 26: Laws of Manu, xi. 73.]

[Footnote 27: Ibid. xi. 74.]

[Footnote 28: Ibid. xi. 78.]

[Footnote 29: Ibid. xi. 79.]

[Footnote 30: Plato, Leges, ix. 865.]

[Footnote 31: Müller, Dissertations on the Eumenides of Æschylus, p. 103. Aeschylus says (Eumenides, 448 sqq.) it is the custom that a murderer should not speak anything until he has been sprinkled with the spurted blood of a slain sucking-pig. Cf. Apollonius Rhodius, Argonautica, iv. 700 sqq.; Aristotle, De republica Atheniensium, 57.]

[Footnote 32: Plato, Leges, ix. 865.]

[Footnote 33: Demosthenes, Contra Aristocratem, 71 sqq., p. 643 sq. Müller, Dissertations, p. 106 sq. Frazer, Golden Bough, i. 341. On the uncleanness of manslayers see also Tylor, Primitive Culture, ii. 433 sq.; Frazer, op. cit. i. 331 sqq.]

The state of uncleanness incurred by the shedding of human blood does not intrinsically involve moral guilt. As appears from many of the instances just referred to, it results not only from the murder of a tribesman, but from so meritorious a deed as the slaying of a foe. In Nukahiva, for instance, a man who has killed the highest person, or one of the highest, among the enemy, is tabooed for ten days, during which he is not allowed to hold intercourse with his wife nor to meddle with fire; but, at the same time, he is treated with distinction, and presents of pigs are brought to him.[34] On the

other hand, there can be no doubt that in various cases the polluting effect attributed to manslaughter has exercised some influence upon the moral judgment of the act. Whenever the commission of an act of homicide has any tendency at all to call forth moral blame, the disapproval of the deed will easily be enhanced by the spiritual danger attending on it, as also by the inconvenient restrictions laid on the tabooed manslayer and the ceremonies of purification to which he is subject. The deprivations which he has to undergo come to be looked upon in the light of a punishment, and the rights of cleansing as a means of removing guilt. The taboo rules which, among the Omahas, a murderer whose life was spared had to observe for a period varying from two to four years are spoken of by Mr. Dorsey as his "punishment," and this seems also partly to have been the native point of view. The murderer sometimes wandered at night, crying, and lamenting his offence, until, at the end of the designated period, the kindred of his victim heard his crying, and said:--"It is enough. Begone, and walk among the crowd. {378} Put on moccasins and wear a good robe."[35] Moreover, the notion of a persecuting ghost may be replaced by the notion of an avenging god. Confusions are common in the world of mystery; doings or functions attributed to one being are afterwards transferred to another--this is a rule of which many important examples will be given in following chapters. The Jbâla of Northern Morocco do not nowadays believe in ghosts, yet they regard a person who has shed human blood to be in some degree unclean for the rest of his life. Poison oozes out from underneath his nails; hence anybody who drinks the water in which he has washed his hands will fall dangerously ill. The meat of an animal which he has killed is difficult to digest, and so is any food eaten in his company. If he comes to a place where people are digging a well, the water will at once run away. He is said to be mejnûn, haunted by jnûn (jinn), a race of beings entirely distinct from men, living or dead. The Greenlanders believed that an abortion or a child born under concealment was transformed into an evil spirit called ángiaq, for the purpose of avenging the crime.[36] In Eastern Central Africa, "after killing a slave, the master is afraid of Chilope. This means that he will become emaciated, lose his eye-sight, and ultimately die a miserable death. He therefore goes to his chief and gives him a certain fee (in cloth, or slaves, or such legal tenders), and says, 'Get me a charm (luasi), because I have slain a man.' When he has used this charm, which may be either drunk or administered in a bath, the danger passes away."[37] Among the Omahas the ghost of the murdered man was not lost sight of; the murderer "was obliged to pitch his tent about a quarter of a mile from the rest of the tribe when they were going on the hunt lest the ghost of his victim should raise a high wind, which might cause damage." But at the same time his deed was considered offensive to {379} Wakanda; no one wished to eat with him, for they said, "If we eat with whom Wakanda hates, for his crime, Wakanda will hate us."[38] In the Chinese books there are numerous instances of persons haunted by the souls of their victims on their death-bed, and in most of these cases the ghosts state expressly that they are avenging themselves with the special authorisation of Heaven.[39] The Greek belief in the Erinys of a murdered man no doubt originated in the earlier notion of a persecuting ghost, whose anger or curses in later times were personified as an independent spirit.[40] And the transformation went further still: the Erinyes were represented as the ministers of Zeus, who by punishing the murderer carried out his divine will. Zeus was considered the originator of the rites of purification; when visited with madness by the Erinyes, Ixion appealed to Zeus Hikesios, and at the altar of Zeus Meilichios Theseus underwent purification for the shedding of kindred blood.[41] Originally, as it seems, only the murder of a kinsman was an offence against Zeus and under the ban of the Erinyes, but later on

their sphere of action was expanded, and all bloodshed, if the victim had any rights at all within the city, became a sin which needed purification.[42] Uncleanness was thus transformed into spiritual impurity. When the pollution with which a manslayer is tainted is regarded as merely the work of a ghost or of some spirit-substitute who, like the Moorish jnûn, has nothing to do with the administration of justice, it may be devoid of all moral significance in spite of the dread it inspires; but the case is different when it comes to be conceived of as a divine punishment, or as a sin-pollution in the eyes of the supreme god. Such a transformation of ideas could hardly take place {380} unless the act, considered polluting, were by itself apt to evoke moral disapproval. But it is obvious that the gravity of the offence is increased by the religious aspect it assumes.

[Footnote 34: von Langsdorf, Voyages and Travels, i. 133.]

[Footnote 35: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 369.]

[Footnote 36: Rink, Tales and Traditions of the Eskimo, pp. 45, 439 sq.]

[Footnote 37: Macdonald, Africana, i. 168.]

[Footnote 38: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 369.]

[Footnote 39: de Groot, Religious System of China, (vol. iv. book) ii. 441.]

[Footnote 40: See Müller, Dissertations, p. 155 sqq.; Rohde, Psyche, p. 247; Idem, 'Paralipomena,' in Rheinisches Museum für Philologie, 1895, p. 6 sqq.]

[Footnote 41: Farnell, Cults of the Greek States, i. 66 sqq. Rohde, Psyche, p. 249. Idem, in Rheinisches Museum, 1895, p. 18. Stengel, Die griechischen Kultusaltertümer, p. 140.]

[Footnote 42: Farnell, op. cit. i. 68, 71. Rohde, Psyche, p. 247.]

In yet another way the defiling effect attributed to the taking of human life has had an influence on religious and moral ideas. Such defilement is shunned not only by men, but, in a still higher degree, by gods. The shedding of human blood is commonly prohibited in sacred places. "In almost every Indian nation," says Adair, "there are several peaceable towns, which are called 'old-beloved,' 'ancient, holy, or white towns'; they seem to have been formerly 'towns of refuge,' for it is not in the memory of their oldest people, that ever human blood was shed in them; although they often force persons from thence, and put them to death elsewhere."[43] The Aricaras of the Missouri, according to Bradbury, have in the centre of the largest village a sacred lodge called the "medicine lodge," which, "in one particular corresponds with the sanctuary of the Jews, as no blood is on any account whatsoever to be spilled within it, not even that of an enemy."[44] At Athens the prosecution for homicide began with debarring the criminal from all sanctuaries and assemblies consecrated by religious observances.[45] According to Greek ideas, purification was an essential preliminary to an acceptable sacrifice.[46] Hector said, "I shrink from offering a libation of gleaming wine to Zeus with hands unwashed; nor can it be in any way wise that one should pray to the son of Kronos, god of the storm-cloud, all defiled with blood {381} and filth."[47] In many parts of Morocco, a man who has slain another person is never afterwards allowed to kill the sacrificial sheep at the "Great Feast."[48] When David had in his heart to build a temple, God said to him, "Thou shalt not build a house for my name, because thou hast been a man of war, and **hast shed blood."[49] A decree of the penitential discipline of the Christian Church, which was enforced even against emperors and generals, forbade anyone whose hands had been imbrued in blood to approach the altar without a preparatory period of penance.[50]

[Footnote 43: Adair, History of the American Indians, p. 159.]

[Footnote 44: Bradbury, Travels in the Interior of America, p. 165 sq. Our informer adds, "Nor is any one, having taken refuge there, to be forced from it"; but with facts of this kind we are not concerned at present. They belong to the right of sanctuary, in the strict sense of the term, and, as will be seen, this right is based on a different principle,

which prevents even the polluted manslayer, tainted with newly shed blood, from being dragged out of the sanctuary to which he has fled in the capacity of a suppliant.]

[Footnote 45: Aristotle, De republica Atheniensium, 57. Müller, Dissertations, p. 103.]

[Footnote 46: Donaldson, 'Expiatory and Substitutionary Sacrifices of the Greeks,' in Transactions Roy. Soc. Edinburgh, xxvii. 433. Farnell, op. cit. i. 72.]

[Footnote 47: Iliad, vi. 266 sqq. Cf. Vergil, Æneis, ii. 717 sqq.]

[Footnote 48: I found this custom prevalent both among Arab and Berber tribes in different parts of the country; see my article, "The Popular Ritual of the Great Feast in Morocco," in Folk-Lore, xxii. 144.]

[Footnote 49: 1 Chronicles, xxviii. 2 sq.]

[Footnote 50: Lecky, History of European Morals, ii. 39.]

Whilst, from fear of contaminating anything holy, casual restrictions have thus been imposed on all kinds of manslayers, whether murderers or those who have killed an enemy in righteous warfare, more stringent rules have been laid down for persons permanently connected with the religious cult. Adair states that the "holy men" of the North American Indians, like the Jewish priests, were by their function absolutely forbidden to shed human blood, "notwithstanding their propensity thereto, even for small injuries."[51] Herodotus says of the Persian Magi that they "kill animals of all kinds with their own hands, excepting dogs and men."[52] The Druids of Gaul never went to war,[53] probably in order to keep themselves free from blood-pollution;[54] it is true, they sacrificed human victims to their gods, but those they burnt.[55] To the same class of facts belong those decrees of the Christian Church which forbade clergymen taking part in a battle. Moreover, if a Christian priest passed a sentence of death {382} he was punished with degradation and imprisonment for life;[56] nor was he allowed to write or dictate anything with a view to bringing about such a sentence.[57] He must not perform a surgical operation by help of fire or iron.[58] And if he killed a robber in order to save his life, he had to do penance till his death.[59] The hands which had to distribute the blood of the Lamb of God were not to be polluted with the blood of those for whose salvation it was shed.[60]

[Footnote 51: Adair, op. cit. p. 152.]

[Footnote 52: Herodotus, i. 40. The Shluh of Southern Morocco and some other Berber tribes, in the central parts of the same country, consider that not only homicide, but the killing of a dog for ever after prevents a person from performing sacrifice at the "Great Feast"; see Folk-Lore, xxii, 144.]

[Footnote 53: Cæsar, De bello gallico, vi. 14.]

[Footnote 54: d'Arbois de Jubainville, Civilisation des Celtes, p. 254.]

[Footnote 55: Cæsar, De bello gallico, vi. 16.]

[Footnote 56: Gratian, Decretum, ii. 23. 8. 30.]

[Footnote 57: Concilium Lateranense IV., A.D. 1215, ch. 18 (Labbe-Mansi, Sacrorum Conciliorum collectio, xxii. 1007).]

[Footnote 58: Concilium Lateranense IV., A.D. 1215, ch. 18 (Labbe-Mansi, op. cit. xxii. 1007).]

[Footnote 59: Thomassin, Dictionnaire de discipline ecclésiastique, ii. 1074.]

[Footnote 60: Ibid. ii. 1069.]

It cannot be doubted that this horror of blood-pollution had a share in that regard for human life which from the beginning, and especially in early times, was a characteristic of Christianity. But in other respects also, Christian feelings and beliefs had an inherent tendency to evoke such a sentiment. The cosmopolitan spirit of the Christian religion could not allow, in theory at least, that the life of a man was less sacred because

he was a foreigner. The extraordinary importance it attached to this earthly life as a preparation for a life to come naturally increased the guilt of any one who, by cutting it short, not only killed the body, but probably to all eternity injured the soul.[61] In a still higher degree than most other crimes, homicide was regarded as an offence against God, because man had been made in His image.[62] Gratian says that even the slayer of a Jew or a heathen has to undergo a severe penance, "quia imaginem Dei et spem futuræ conversionis exterminat."[63]

[Footnote 61: Concilium Lugdumense I., A.D. 1245, Additio, de Homicidio (Labbe-Mansi, op. cit. xxiii. 670).]

[Footnote 62: von Eicken, Geschichte und System der Mittelalterlichen Weltanschauung, p. 568.]

[Footnote 63: Gratian, Decretum, i. 50. 40.]

Chapter XVII — The Killing of Parents, Sick Persons, Children--feticide

WE have found that among mankind at large there is a moral rule which forbids people to kill members of their own society. We shall now see that the stringency of this rule is subject to variations, depending on the special relationship in which persons stand to one another or on their social status, and that there are cases to which it does not apply at all.

Owing to the regard which children are expected to feel for their parents, parricide is considered the most aggravated form of murder. Nowhere have parents been more venerated by their children than among the nations of archaic culture, and nowhere has parricide been regarded with greater horror. In China it is punished with the most ignominious of all capital punishments, the so-called "cutting into small pieces"; and in some instances, when the crime has occurred in a district, in addition to all punishments inflicted on persons, the wall of the city where the deed was committed is pulled down in parts, or modified in shape, a round corner is substituted for a square one, or a gate removed to a new situation, or even closed up altogether.[1] In Corea the parricide is burned to death.[2] {384} Among the ancient Egyptians, we are told, he was sentenced to be lacerated with sharpened reeds, and after being thrown on thorns he was burned.[3] In Exodus we read of the "smiting" of parents, but parricide is not expressly mentioned, perhaps because the Hebrew legislator, like Solon at Athens,[4] did not think it possible that any one could be guilty of so unnatural a barbarity.[5] Herodotus states that the same notion was held by the ancient Persians, who said that no one ever yet killed his own father or mother, and that all cases of so-called parricide if carefully examined, would be found to have been committed by supposititious children or those born in adultery, it being beyond the bounds of probability that a true father should be murdered by his own son.[6] Plato says in his 'Laws':--"If a man could be slain more than once, most justly would he who in a fit of passion has slain father or mother undergo many deaths. How can he whom, alone of all men, even in defence of his life, and when about to suffer death at the hands of his parents, no law will allow to kill his father or his mother who are the authors of his being, and whom the legislator will command to endure any extremity rather than do this--how can he, I say, lawfully receive any other punishment?"[7] At Athens parricides were the only persons accused of murder who were not allowed the chance of escaping before sentence was passed,

but were instantly arrested.[8] According to Roman Law, a committer of parricidium was not subjected to any of the regular modes of capital punishment, but for "the most execrable of crimes" was provided "the most strange of punishments." The criminal was sewn up in a leathern sack with a cur, a cock, a viper, and an ape, and, when cooped up in this fearful prison, was hurled into the sea, or into {385} some neighbouring river.[9] But by the term parricidium was not understood the murder of a parent only. According to the 'Lex Pompeia de parricidiis,' it included the murder of any of the following persons: an ascendant or descendant in any degree,[10] a brother or sister, an uncle or aunt, a cousin, a husband or wife, a bridegroom or bride, a father- or mother-in-law, a son- or daughter-in-law, a step-parent or step-child, a patron; and Mommsen suggests that in earlier times it had a still wider significance, being applied to intentional homicide in general.[11] But whilst the punishment just referred to was in other cases of parricidium replaced by banishment, it was, during the Empire at least, actually inflicted upon him who murdered an ascendant.[12]

[Footnote 1: Doolittle, Social Life of the Chinese, i. 338 sq. Smith, Chinese Characteristics, p. 229.]

[Footnote 2: Griffis, Corea, p. 236.]

[Footnote 3: Diodorus Siculus, Bibliotheca historica, i. 77. 8.]

[Footnote 4: Diogenes Laërtius, Solon, 10. Cicero, Pro S. Roscio Amerino, 25. Orosius, Historiæ, v. 16.]

[Footnote 5: Exodus, xxi. 15. Cf. Keil, Manual of Biblical Archæology, ii. 376.]

[Footnote 6: Herodotus, i. 137.]

[Footnote 7: Plato, Leges, ix. 869. Cf. ibid. ix. 873.]

[Footnote 8: Müller, Dissertations on the Eumenides of Æschylus, p. 91. Cf. Euripides, Orestes, 442 sqq.]

[Footnote 9: Institutiones, iv. 18. 6.]

[Footnote 10: Unless the descendant was in the potestas of him who committed the deed.]

[Footnote 11: Mommsen, Römisches Strafrecht, pp. 644, 645, 612 sq.]

[Footnote 12: Ibid. p. 645 sq.]

Whilst Christianity generally increased the sanctity of human life, it could add nothing to the horror with which parricide was regarded by the ancients. The Church punished it more severely than ordinary murder,[13] and so did, at least in Latin countries, the secular authorities.[14] In France, even to this day, a person convicted of parricide is "conduit sur le lieu de l'exécution en chemise, nu-pieds, et la tête couverte d'un voile noir";[15] and whilst meurtre is excusable if provoked by grave personal violence or by an attempt to break into a dwelling-house by day, parricide is never excusable under any circumstances.[16]

[Footnote 13: Gregory III., Judicia congrua p[oe]nitentibus, ch. 3 (Labbe-Mansi, Conciliorum collectio, xii. 289). P[oe]nitentiale Bigotianum, iv. 1 (Wasserschleben, Bussordnungen der abendländischen Kirche, p. 453). P[oe]nitent. Pseudo-Theodori, xxi. 18 (ibid. p. 588).]

[Footnote 14: Chauveau and Hélie, Théorie du Code Pénal, iii. 394 (France). Salvioli, Manuale di storia del diritto italiano, p. 570. In Scotland, also, parricide formerly had a place in the list of aggravated murders (Hume, Commentaries on the Law of Scotland, i. 459 sq.; for a sentence passed in 1688, see Pitcairn, Criminal Trials in Scotland, iii. 198); though nowadays it is penalised in the same way as other forms of murder (Erskine, Principles of the Law of Scotland, p. 559). There never was any special punishment for

parricide in English law (Blackstone, Commentaries on the Laws of England, iv. 202. Stephen, History of the Criminal Law of England, iii. 95).]

[Footnote 15: Code Pénal, art. 13.]

[Footnote 16: Ibid. art. 321 sqq.]

{386} As regards the feelings with which ordinary parricide is looked upon by uncivilised peoples, direct information is almost entirely wanting. It is rarely mentioned at all, no doubt because it is very unusual.[17] Among the Kafirs of Natal, though murder is generally punished by a fine, death is inflicted on him who kills a parent.[18] Among the Ossetes a parricide draws upon himself a fearful punishment: he is shut up in his house with all his possessions, surrounded by the populace and burned alive.[19] To judge from the respect which, among the majority of uncivilised peoples, children are considered to owe to their parents, it seems very probable that the murder of a father or a mother is generally condemned by them as a particularly detestable form of homicide. But to this rule there is an important exception. According to a custom prevalent among various savages or barbarians, a parent who is worn out with age or disease is abandoned or killed.

[Footnote 17: Among the Omahas there have been a few cases of parricide caused by drunkenness (Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 369). A Chukchi killed his father for charging him with cowardice and awkwardness (Sarytschew, 'Voyage of Discovery,' in Collection of Modern and Contemporary Voyages, vi. 51). In Lánda "it is no uncommon thing for a son to murder his father in order to step into his shoes" (Emin Pasha in Central Africa, p. 230). See also Wilson and Felkin, Uganda, i. 224.]

[Footnote 18: Shooter, Kafirs of Natal, p. 103.]

[Footnote 19: von Haxthausen, Transcaucasia, p. 415.]

Hearne states that, among the Northern Indians, one half at least of the aged persons of both sexes, when no longer capable of walking, are left alone to starve and perish of want.[20] Among the Californian Gallinomero, when the father can no longer feebly creep to the forest to gather his back-load of fuel or a basket of acorns, and is only a burden to his sons, "the poor old wretch is not infrequently thrown down on his back and securely held while a stick is placed across his throat, and two of them seat themselves on the ends of it until he ceases to breathe."[21] The custom of killing or abandoning old parents has been noticed among several other North {387} American tribes,[22] the natives of Brazil,[23] various South Sea Islanders,[24] a few Australian tribes,[25] and some peoples in Africa[26] and Asia.[27] According to ancient writers, it occurred formerly among many Asiatic[28] and European nations, including the Vedic people[29] and peoples of Teutonic extraction.[30] As late as the fifth or sixth century it was the custom among the Heruli for relatives to kindle a funeral pile for their old folks, although a stranger was employed to give the death wound.[31] And there is an old English tradition of "the Holy Mawle, which they fancy hung behind the church door, which when the father was seaventie, the sonne might fetch to knock his father in the head, as effete and of no more use."[32]

[Footnote 20: Hearne, Journey to the Northern Ocean, p. 346.]

[Footnote 21: Powers, Tribes of California, p. 178.]

[Footnote 22: Nansen, First Crossing of Greenland, ii. 331 (natives on the east coast of Greenland). Seemann, Voyage of "Herald," ii. 66 (Eastern Eskimo). Catlin, North American Indians, i. 217. Lafitau, M[oe]urs des sauvages ameriquains, i. 488 sq. Domenech, Seven Years' Residence in the Great Deserts of North America, ii. 325 (north-western

tribes). Lewis and Clarke, Travels to the Source of the Missouri River, p. 442 (Dacotahs, Assiniboins, the hunting tribes on the Missouri).]

[Footnote 23: von Martius, Beiträge zur Ethnographie Amerika's, i. 126, 127, 393. von Eschwege, Brasilien, i. 231 sq. (Uerequenás). Among the Fuegians the practice in question seems to occur only accidentally (Bridges, in A Voice for South America, xiii. 206).]

[Footnote 24: Codrington, Melanesians, p. 347. Romilly, Western Pacific, p. 70 (Solomon Islanders). Brainne, Nouvelle-Calédonie, p. 255. Turner, Samoa, p. 335 sq. (Efatese). Seemann, Viti, p. 192 sq. Williams and Calvert, Fiji, pp. 116, 157 sq. Angas, Polynesia, p. 342 (natives of Kunaie).]

[Footnote 25: Eyre, Central Australia, ii. 382. Dawson, Australian Aborigines, p. 62 (tribes in Western Victoria).]

[Footnote 26: Arnot, Garenganze, p. 78 n. Andersson, Lake Ngami, p. 197 sq. (Damaras). Kolben, Present Stale of the Cape of Good Hope, i. 322, 334; Hahn, The Supreme Being of the Khoi-Khoi, p. 86 (Hottentots). Lepsius, Letters from Egypt, p. 202 sq. (Negro tribes to the south of Kordofan). Post, Afrikanische Jurisprudenz, i. 298 sq. Sartori, 'Die Sitte der Alten- und Krankentötung,' in Globus, lxvii. 108.]

[Footnote 27: Hooper, Ten Months among the Tents of the Tuski, p. 188 sq.; Dall, Alaska, p. 383 sqq. (Chukchi). Rockhill, Land of the Lamas, p. 81 (Kokonor Tibetans).]

[Footnote 28: Herodotus, i. 216 (Massagetae). Strabo, xi. 8. 6 (Massagetae); xi. 11. 3 (Bactrians); xi. 11. 8 (Caspians).]

[Footnote 29: Zimmer, Altindisches Leben, p. 328.]

[Footnote 30: Grimm, Deutsche Rechtsalterthümer, p. 486 sqq.]

[Footnote 31: Procopius, De bello gothico, ii. 14. Cf. Grimm, Kleinere Schriften, ii. 241.]

[Footnote 32: Thoms, Anecdotes and Traditions, p. 84.]

However cruel this custom may appear to be, something is certainly to be said in its favour. It is particularly common among nomadic hunting tribes, owing to the hardships of life and the inability of decrepit persons to keep up in the march. Mr. Morgan observes that, whilst {388} "among the roving tribes of the wilderness the old and helpless were frequently abandoned and, in some cases, hurried out of existence as an act of greater kindness than desertion," this practice was unknown among the Iroquois, who "resided in permanent villages, which afforded a refuge for the aged."[33] With reference to certain tribes of Western Victoria, Mr. Dawson remarks that the old people are a burden to the tribe, and, should any sudden attack be made by an enemy, the most liable to be captured, in which case they would probably be tortured and put to a lingering death.[34] Moreover, in times when the food-supply is insufficient to support all the members of a community, it is more reasonable that the old and useless should have to perish than the young and vigorous. Hahn was told that, among the Hottentots, aged parents were sometimes abandoned by very poor people who had not food enough to support them.[35] And among peoples who have reached a certain degree of wealth and comfort, the practice of killing the old folks, though no longer justified by necessity, may still go on, partly through survival of a custom inherited from harder times, partly from the humane intent of putting an end to lingering misery.[36] What appears to most of us as an atrocious practice may really be an act of kindness, and is commonly approved of, or even insisted upon, by the old people themselves. Speaking of the ancient Hottentot custom of famishing super-annuated parents in order to cause their death, Kolben remarks:--"If you represent to the Hottentots, as I have done very often, the inhumanity of this custom, they are astonished at the representation,

as proceeding, in their opinion, from an inhumanity of your own. The custom, in their way of thinking, is supported by very pious and very filial considerations. 'Is it not a cruelty.' they ask you, 'to suffer either man or woman to languish any considerable {389} time under a heavy, motionless old age? Can you see a parent or a relative shaking and freezing under a cold, dreary, heavy, useless old age, and not think, in pity to them, of putting an end to their misery by putting, which is the only means, an end to their days?'"[37] When Mr. Hooper, hearing of an old Chukchi woman who was stabbed by her son, made some remarks on the frightful nature of the act, his native companions answered him:--"Why should not the old woman die? Aged and feeble, weary of life, and a burden to herself and others, she no longer desired to cumber the earth, and claimed of him who owned nearest relationship the friendly stroke which should let out her scanty remnant of existence."[38] Catlin tells us that, among the North American tribes who roamed about the prairies, the infirm old people themselves uniformly insisted upon being left behind, saying, "that they are old and of no further use--that they left their fathers in the same manner--that they wish to die, and their children must not mourn for them."[39] In Melanesia, says Dr. Codrington, when sick and aged people were buried alive, it is certain that "there was generally a kindness intended"; they used themselves to beg their friends to put them out of their misery, and it was even considered a disgrace to the family of an aged chief if he was not buried alive.[40] In Fiji, also, it was regarded as a sign of filial affection to put an aged parent to death. In his description of the Fijians Dr. Seemann observes, "In a country where food is abundant, clothing scarcely required, and property as a general rule in the possession of the whole family rather than that of its head, children need not wait for 'dead men's shoes' in order to become well off, and we may, therefore, quite believe them when declaring that it is with aching heart and at the repeated entreaties of their parents that they are induced to commit {390} what we justly consider a crime."[41] The ceremony is not without a touch of tragic grandeur:--"The son will kiss and weep over his aged father as he prepares him for the grave, and will exchange loving farewells with him as he heaps the earth lightly over him."[42] One reason why the old Fijian so eagerly desired to escape extreme infirmity was perhaps "the contempt which attaches to physical weakness among a nation of warriors, and the wrongs and insults which await those who are no longer able to protect themselves"; but another, and as it seems more potent, motive was the belief that persons enter upon the delights of the future life with the same faculties, mental and physical, as they possess at the hour of death, and that the spiritual life thus commences where the corporeal existence terminates. "With these views," "says Dr. Hale, "it is natural that they should desire to pass through this change before their mental and bodily powers are so enfeebled by age as to deprive them of their capacity for enjoyment."[43] Finally, we have to observe that in many cases the old people are not only killed, but eaten, by the nearest relatives, and that the motive, or at least, the sole motive, for this procedure is not hunger or desire for human flesh.[44] It is described as "an act of kindness" or as a "pious ceremony," as a method of preventing the body from being eaten up by worms or injured by enemies.[45] Considering that many cannibals have an aversion to the bodies of men who have died a natural death, it is not unreasonable to suppose that, in some instances, the old person is killed for the purpose of being eaten, and that this is done with a view to benefiting him.[46] But, on the other hand, the "pious ceremony," like so many other funeral customs which are supposed to comfort the dead, may be the survival of a practice which was originally intended to promote the selfish interests of the living.

[Footnote 33: Morgan, League of the Iroqnois, p. 171.]

[Footnote 34: Dawson, op. cit. p. 62.]

[Footnote 35: Hahn, op. cit. p. 86.]

[Footnote 36: Tylor, 'Primitive Society,' in Contemporary Review, xxi. 705. Idem, Anthropology, p. 410 sq.]

[Footnote 37: Kolben, op. cit. i. 322.]

[Footnote 38: Hooper, op. cit. p. 188 sq. Cf. Sarytschew, loc. cit. vi. 50; Dall, op. cit. p. 385; von Wrangell, Expedition to the Polar Sea, p. 122.]

[Footnote 39: Catlin, North American Indians, i. 217.]

[Footnote 40: Codrington, op. cit. p. 347. Turner, Samoa, p. 335 sq. (Efatese).]

[Footnote 41: Seemann, Viti, p. 193.]

[Footnote 42: Fison and Howitt, Kamilaroi and Kurnai, p. 175.]

[Footnote 43: Hale, op. cit. p. 65. Williams and Calvert, op. cit. p. 156. See also Erskine, Islands of the Western Pacific, p. 248.]

[Footnote 44: For instances, see Steinmetz, Endokannibalismus, passim.]

[Footnote 45: Ibid. pp. 3, 5, 17.]

[Footnote 46: Cf. Herodotus' statement regarding the Massagetae, i. 216.]

{391} Closely connected with the custom of doing away with decrepit parents is the habit, prevalent among certain peoples, of abandoning or killing persons suffering from some illness.

"The white man," Mr. Ward observes, "can never, as long as he may live in Africa, conquer his repugnance to the callous indifference to suffering that he meets with everywhere in Arab and Negro. The dying are left by the wayside to die. The weak drop on the caravan road, and the caravan passes on."[47] Among the Kafirs instances are not rare in which the dying are carried to the bush and left to perish, and among some of them epileptics are cast over a precipice, or tied to a tree to be devoured by hyenas.[48] The Hottentots abandon patients suffering from small-pox.[49] The southern Tanàla in Madagascar take a person who becomes insensible during an illness, to the spot in the forest where they throw their dead, and should the unfortunate creature so cast away revive and return to the village, they stone him outright to death.[50] In New Caledonia "il est rare qu'un malade rend naturellement le dernier soupir: quand il n'a plus sa connaissance, souvent même avant son agonie, on lui ferme la bouche et les narines pour l'étouffer, ou bien on le tiraille de tous côtés par les jambes et par les bras."[51] In Kandavu, of the Fiji Group, sick persons were often thrown into a cave, where the dead also were deposited.[52] In Efate, if a person in sickness showed signs of delirium, his grave was dug, and he was buried forthwith, to prevent the disease from spreading to other members of the family.[53] The Alfura "kill their sick when they have no hope of their recovery."[54] Dobrizhoffer says of the Patagonians, "Actuated by an irrational kind of pity, they bury the dying before they expire."[55] In cases of cholera or small-pox epidemics, North American Indians have been known to desert their villages, leaving all their sick behind, of whatever age or sex.[56] According to Dr. Nansen, it is not inconsistent with the moral code of the Greenlanders "to hasten the death of those {392} who are sick and in great suffering, or of those in delirium, of which they have a great horror."[57] Lieutenant Holm states that, in Eastern Greenland, when an individual is seriously ill, he consents, if his relatives request it, to end his sufferings by throwing himself into the sea; whereas it is rare that a sick person is put to death, except in cases of disordered intellect.[58] At Igloolik "a sick woman is frequently built or blocked up in a snow-hut, and not a soul goes near to look in and ascertain whether she be alive or dead."[59]

[Footnote 47: Ward, Five Years with the Congo Cannibals, p. 262.]

[Footnote 48: Shooter, Kafirs of Natal, p. 238 sq. Kidd, The Essential Kafir, p. 247.]

[Footnote 49: Le Vaillant, Travels into the Interior Parts of Africa, ii. 112.]

[Footnote 50: Sibree, The Great African Island, p. 291.]

[Footnote 51: Brainne, op. cit. p. 255.]

[Footnote 52: Williams and Calvert, op. cit. p. 159.]

[Footnote 53: Turner, Samoa, p. 336.]

[Footnote 54: Pfeiffer, A Lady's Second Journey round the World, i. 387.]

[Footnote 55: Dobrizhoffer, Account of the Abipones, ii. 262.]

[Footnote 56: Domenech, op. cit. ii. 326.]

[Footnote 57: Nansen, Eskimo Life, p. 163.]

[Footnote 58: 'East Greenland Eskimo,' in Science, vii. 172.]

[Footnote 59: Lyon, Private Journal, p. 357. For other instances, see Sartori, in Globus, lxvii. nr. 7 sq.; von Martius, op. cit. i. 126, 127, 393 (Brazilian tribes); Steller, Beschreibung von dem Lande Kamtschatka, p. 354; Dawson, op. cit. p. 61, quoted supra, p. 271.]

These and similar facts are largely explained by the pitiful condition of the invalid, the hardships of a wandering life, and the superstitious notions of ignorant men. In some cases the practice of killing a dying person seems to be connected with a belief that the death-blow will save his soul.[60] In 1812, a leper was burnt alive at Katwa, near Calcutta, by his mother and sister, who believed that by their doing so he would gain a pure body in the next birth.[61] By carrying the patient away before he dies, the survivors escape the supposed danger of touching a corpse.[62] In the poorer provinces of the kingdom of Kandy, when a sick person was despaired of, the fear of becoming defiled, or of being obliged to change their habitation, frequently induced those about him to take him into a wood, in spite of his cries and groans, and to leave him there, perhaps in the agonies of death.[63] But the most common motive for abandoning or destroying sick people seems to be fear of infection or of demoniacal possession, which is regarded as the cause of various diseases.[64] Among the North American Indians, we are told, "the custom of abandoning the infirm or sick arose {393} from a superstitious fear of the evil spirits which were supposed to have taken possession of them."[65] In Tahiti, says Ellis, "every disease was supposed to be the effect of direct supernatural agency, and to be inflicted by the gods for some crime against the tabu, of which the sufferers had been guilty, or in consequence of some offering made by an enemy to procure their destruction. Hence, it is probable, in a great measure, resulted their neglect and cruel treatment of their sick."[66]

[Footnote 60: Sartori, loc. cit. p. 127.]

[Footnote 61: Crooke, Popular Religion and Folk-Lore of Northern India, ii. 169.]

[Footnote 62: Shooter, op. cit. 239 (Kafirs of Natal). Kidd, The Essential Kafir, p. 247.]

[Footnote 63: Joinville, 'Religion and Manners of the People of Ceylon,' in Asiatick Researches, vii. 437 sq.]

[Footnote 64: See Sartori, loc. cit. p. 110 sq.; Lippert, Kulturgeschichte der Menschheit, i. 110; ii. 411.]

[Footnote 65: Dorman, Origin of Primitive Superstitions, p. 392.]

[Footnote 66: Ellis, Polynesian Researches, i. 395.]

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Whilst the regard which children owe their parents makes parricide an aggravated form of murder, the paternal power sometimes implies that, under certain circumstances, the father is allowed to kill even his grown-up child. Though the Chinese Penal Code provides a slight punishment for parents who punish disobedient children with death,[67] the crime is practically ignored by the authorities.[68] Among the

Hebrews, in early times, a father might punish his incontinent daughter with death.[69] The Roman house-father had jus vitæ necisque--the power of life and death--over his children. However, this power did not imply that he could kill them without a just cause;[70] already in pagan times a father who killed his son "latronis magis quam patris jure," was punished as a murderer.[71] As Dean Milman observes, long before Christianity entered into Roman legislation, "the life of a child was as sacred as that of the parent; and Constantine, when he branded the murder of a son with the {394} name of parricide, hardly advanced upon the dominant feeling.[72] Nor is there any reason to suppose that, among savages, the father possesses an absolute right of life and death over his children. On the contrary, among many of the lower races the existence of such a right is expressly denied.[73]

[Footnote 67: Ta Tsing Leu Lee, sec. cccxix. p. 347:--"If a father, mother, paternal grandfather or grandmother, chastises a disobedient child or grandchild in a severe and uncustomary manner, so that he or she dies, the party so offending shall be punished with 100 blows.--When any of the aforesaid relations are guilty of killing such disobedient child or grandchild designedly, the punishment shall be extended to 60 blows and one year's banishment."]

[Footnote 68: Douglas, Society in China, p. 78 sq.]

[Footnote 69: Genesis, xxxviii. 24.]

[Footnote 70: Mittermaier, 'Beyträge zur Lehre vom Verbrechen des Kindesmordes,' in Neues Archiv des Criminalrechts, vii. 4. Walter, Geschichte des Römischen Rechts, § 537, vol. ii. 147. von Jhering, Geist des römischen Rechts, ii. 220. Mommsen, Römisches Strafrecht, p. 619.]

[Footnote 71: Digesta, xlviii. 9. 5. Orosius, Historiæ, v. 16. Mommsen, Römisches Strafrecht, p. 618.]

[Footnote 72: Milman, History of Latin Christianity, ii. 25.]

[Footnote 73: Lang, in Steinmetz, Rechtsverhältnisse von eingeborenen Völkern in Afrika und Ozeanien, p. 224 (Washambala). Desoignies, ibid. p. 271 (Msalala). Marx, ibid. p. 349 (Amahlubi). Kohler, 'Recht der Hottentotten,' in Zeitschr. f. vergl. Rechtswiss. xv. 347. Post, Afrikanische Jurisprudenz, i. 52 sq.]

But whilst a father only in rare cases, and then merely as a measure of justice, is allowed to put to death his grown-up child, he very frequently has the right of destroying a new-born infant. Nay, in many instances infanticide is not only permitted, but enjoined by custom.

Among a great number of uncivilised peoples it is usual to kill an infant if it is a bastard,[74] or if its mother dies,[75] or if it is deformed or diseased,[76] or if there is anything unusual or uncanny about it, or if it for some reason or other is regarded as an unlucky child. In some parts of {395} Africa, for instance, a child who is born with teeth,[77] or who cuts the upper front teeth before the under,[78] or whose teeth present some other kind of irregularity,[79] is put to death. Among the natives of the Bondei country a child who is born head first is considered an unlucky child, and is strangled in consequence.[80] The Kamchadales used to destroy children who were born in very stormy weather;[81] and in Madagascar infants born in March or April, or in the last week of a month, or on a Wednesday or a Friday, were exposed or drowned or buried alive.[82] Among various savages it is the custom that, if a woman gives birth to twins, one or both of them are destroyed.[83] They are regarded sometimes as an indication of unfaithfulness on the part of the mother--in accordance with the notion that one man cannot be the father of two children at the same time[84]--sometimes as an evil portent or as the result of the wrath of a fetish.[85] Miss Kingsley observes, "There is

always the sense of there being something uncanny regarding twins in West Africa, and in those tribes where they are not killed they are regarded {396} as requiring great care to prevent them from dying on their own account."[86] The Kafirs believe that unless the father places a lump of earth in the mouth of one of the babies he will lose his strength.[87]

[Footnote 74: Turner, Samoa, p. 304 (Savage Islanders). Elton, in Jour. Anthr. Inst. xvii. 93 (some Solomon Islanders). Munzinger, Ostafrikanische Studien, p. 145 (Beduan). Dyveyrier, Exploration du Sahara, p. 428 (Touareg). Burton, Sindh, p. 244 (Belochis). Haberland, 'Der Kindermord als Volkssitte,' in Globus, xxxvii. 58. The natives of Australia often kill half-caste children (Roth, Ethnological Studies among the North-West-Central Queensland Aborigines, p. 184. Curr, Recollections of Squatting in Victoria, p. 252. Haberland, loc. cit. p. 58).]

[Footnote 75: Collins, English Colony in New South Wales, i. 607 sq. (aborigines of Port Jackson). Dale, 'Natives inhabiting the Bondei Country,' in Jour. Anthr. Inst. xxv. 182. Comte de Cardi, 'Ju-Ju Laws and Customs in the Niger Delta,' ibid. xxix. 58. Nansen, First Crossing of Greenland, ii. 330; Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grönland, x. 91 (Greenlanders). Haberland, loc. cit. p. 28 sq. Ploss, Das Kind, ii. 252, 254, 258 sq. Chamberlain, Child and Childhood in Folk-Thought, p. 110 sq.]

[Footnote 76: Dawson, op. cit. p. 39 (tribes of Western Victoria). Kicherer, quoted by Moffat, Missionary Labours and Scenes in Southern Africa, p. 15 (Bushmans). Shooter, Kafirs of Natal, p. 89. Chapman, Travels in the Interior of South Africa, ii. 285 (Banamjua). Reade, Savage Africa, p. 244 (Equatorial Africans). New, Life, Wanderings, and Labours in Eastern Africa, p. 118; Krapf, Travels, p. 193 sq. (Wanika). Georgi, Russia, iii. 134 (Kamchadales). Sarytschew, loc. cit. vi. 50; von Wrangell, op. cit. p. 122 (Chukchi). Simpson, quoted by Murdoch, 'Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 417 (Eskimo). Powers, Tribes of California, p. 382 (Yokuts). Guinnard, Three Years' Slavery among the Patagonians, p. 144. Haberland, loc. cit. p. 58 sq. Ploss, Das Kind, ii. 252, 254, 255, 258.]

[Footnote 77: Ploss, Das Kind, ii. 257, 259.]

[Footnote 78: Livingstone, Missionary Travels, p. 577. Kingsley, Travels in West Africa, p. 472. Allen and Thomson, Expedition to the River Niger, i. 243 sq. Mockler-Ferryman, British Nigeria, p. 286 (Ibos).]

[Footnote 79: Baumann, Usambara, pp. 131 (Wabondei), 237 (Wapare).]

[Footnote 80: Dale, in Jour. Anthr. Inst. xxv. 183.]

[Footnote 81: Krasheninnikoff, History of Kamschatka, p. 217.]

[Footnote 82: Ploss, Das Kind, ii. 257. Cf. Little, Madagascar, p. 60.]

[Footnote 83: Dawson, op. cit. p. 39 (tribes of Western Victoria). Spencer and Gillen, Native Tribes of Central Australia, p. 52. Idem, Northern Tribes of Central Australia, p. 609. Romilly, Western Pacific, p. 70 (Solomon Islanders). Kolben, op. cit. i. 144 (Hottentots). Shooter, op. cit. p. 88 (Kafirs of Natal). Livingstone, Missionary Travels, p. 577. Decle, Three Years in Savage Africa, p. 160 (Matabele). Chapman, op. cit. ii. 285 (Banamjua). Baumann, Usambara, p. 131 (Wabondei). New, op. cit. pp. 118 (Wanika, formerly), 458 (Wadshagga). Burton, Two Trips to Gorilla Land, i. 84. Kingsley, Travels in West Africa, p. 472 sqq. Schoen and Crowther, Journals, p. 49 (Ibos on the Niger). Comte de Cardi, in Jour. Anthr. Inst. xxix. 57 sq. (Negroes of the Niger Delta). Nyendael, quoted by Ling Roth, Great Benin, p. 35 (people of Arebo). Ploss, Das Kind, ii. 267 sq. (African peoples), 274 (some South American Indians). Schneider, Die Naturvölker, i. 305 sq. (some South American Indians). Krasheninnikoff, op. cit. p. 217 (Kamchadales).]

[Footnote 84: Waitz, Anthropologie der Naturvölker, iii. 394, 480 (South American Indians). Dapper says (Africa, p. 473) that no twins are ever found in the country of Benin, because the people considered it a great dishonour to give birth to twins.]

[Footnote 85: Allen and Thomson, op. cit. i. 243. Baumann, Usambara, p. 131 (Wabondei).]

[Footnote 86: Kingsley, Travels in West Africa, p. 473, According to Nyendael, twin-births are, on the contrary, esteemed good omens in most parts of the Benin territory (Ling Roth, Great Benin, p. 35).]

[Footnote 87: Kidd, The Essential Kafir, p. 202.]

In the instances just referred to, the infant is killed either because, after the death of its mother, there is nobody to nurse it, or on account of the fault of its parents, especially the mother, or because it is held desirable that the sickly or defective should die at once, or out of superstitious fear. However, among many of the lower races, infanticide is not restricted to similar more or less exceptional cases, but is practised on a much larger scale. Custom often decides how many children are to be reared in each family, and not infrequently the majority of infants are destroyed.

Infanticide is common among various tribes in North and South America.[88] Dobrizhoffer says that it was a rare exception among the Abipones to find a woman who had brought up two or three sons, whilst some mothers killed all the children they bore, "no one either preventing or avenging these murders."[89] According to Azara, the Guanas buried alive the majority of their female infants, and the Mbayas suffered only one boy or one girl in a family to live;[90] but the correctness of his statements has been questioned.[91] On the other hand there can be no doubt as to the extreme prevalence of infanticide in the islands of the South Seas. In some of the principal groups of Polynesia it was practised publicly and systematically, without compunction, to an extent almost incredible. During the whole period of his residence in the Society Islands, Ellis does {397} not recollect having met with a single pagan woman who had not imbrued her hands in the blood of her offspring, and he thinks that there, as also in the Sandwich Islands, two-thirds of the children were destroyed by their parents.[92] "No sense of irresolution or horror," he says, "appeared to exist in the bosoms of those parents who deliberately resolved on the deed before the child was born. They often visited the dwellings of the foreigners, and spoke with perfect complacency of their cruel purpose"; and when the missionaries tried to dissuade them from executing their intention, the only answer generally received was that it was the custom of the country.[93] The Line Islanders allowed only four children of a family to get the chance of life; the mother had a right to rear one child, whereas it rested with the husband to decide whether any more should live.[94] In Radack every mother was permitted to bring up three children, but the fourth and every succeeding one she was obliged to bury alive herself, unless she was the wife of a chief.[95] In Vaitupu, of the Ellice Archipelago, also, "infanticide was ordered by law," and only two children were allowed to a family.[96] In New Zealand and the Marquesas infanticide, though not so general, was yet of frequent occurrence and not regarded as a crime.[97] In most of the Melanesian groups it was very common.[98] In the Solomon Islands there still seem to be several places where it is the custom to kill nearly all children soon after they are born, and to buy other children from foreign tribes, good care being taken not to buy them too young.[99] The practice of infanticide occurred at least occasionally in Tasmania,[100] and, as it seems, almost universally in Australia. Mr. Curr supposes that the Australian woman, as a rule, reared only two boys and one girl, the rest of her children being destroyed.[101] "In the laws known to her," says Mr. Brough Smyth, "infanticide is a necessary practice, and

one which, if disregarded, would, under certain circumstances, be disapproved {398} of; and the disapproval would be marked by punishment."[102] Mr. Taplin was assured that, among the Narrinyeri, more than one-half of the children born fell victims to this custom;[103] and in the Dieyerie tribe hardly an old woman, if questioned, but will admit of having destroyed from two to four of her offspring.[104]

[Footnote 88: Bessels, quoted by Murdoch, 'Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 417 (Eskimo of Smith Sound). Nelson, 'Eskimo about Bering Strait,' ibid. xviii. 289. Gibbs, 'Tribes of Western Washington and Northwestern Oregon,' in Contributions to North American Ethnology, i. 198. Powers, op. cit. pp. 177, 184 (Californian tribes). Yarrow, in Ann. Rep. Bur. Ethn. i. 99 (Pimas of Arizona), Hawtrey, in Jour. Anthr. Inst. xxxi. 295 (Lengua Indians of the Paraguayan Chaco).]

[Footnote 89: Dobrizhoffer, op. cit. ii. 98. For another account of the infanticides of the Abipones, see infra, p. 400.]

[Footnote 90: Azara, Voyages dans l'Amérique méridionale, ii. 93, 115.]

[Footnote 91: Wied-Neuwied, Reise nach Brasilien, ii. 39.]

[Footnote 92: Ellis, Polynesian Researches, i. 252. Idem, Tour through Hawaii, p. 325.]

[Footnote 93: Idem, Polynesian Researches, i. 250.]

[Footnote 94: Tutuila, 'Line Islanders,' in Jour. Polynesian Society, i. 267.]

[Footnote 95: von Kotzebue, Voyage of Discovery, iii. 173.]

[Footnote 96: Turner, Samoa, p. 284.]

[Footnote 97: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 15.]

[Footnote 98: Codrington, Melanesians, p. 229. Turner, Samoa, p. 333 (Efatese). Gill, Life in the Southern Isles, p. 213 (islands of Torres Straits). Atkinson, in Folk-Lore, xiv. 248 (New Caledonians).]

[Footnote 99: Romilly, Western Pacific, p. 68 sq. Cf. Guppy, Solomon Islands, p. 42.]

[Footnote 100: Ling Roth, Aborigines of Tasmania, p. 167 sq. Bonwick, Daily Life and Origin of the Tasmanians, p. 85. Brough Smyth, Aborigines of Victoria, ii. 386.]

[Footnote 101: Curr, The Australian Race, i. 70.]

[Footnote 102: Brough Smyth, op. cit. i. p. xxi. Cf. Oberländer, 'Die Eingeborenen der Kolonie Victoria,' in Globus, iv. 279.]

[Footnote 103: Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, p. 13.]

[Footnote 104: Gason, 'Manners and Customs of the Dieyerie Tribe,' ibid. p. 259.]

Among the Todas of India, up to the period of Mr. Sullivan's visit to their hills, about the year 1820, only one female child was allowed to live in each family.[105] With reference to the Kandhs, or Khonds, Macpherson observes, "The practice of female infanticide is, I believe, not wholly unknown amongst any portion of the Khond people, while it exists in some of the tribes of the sect of Boora to such an extent, that no female infant is spared, except when a woman's first child is a female, and that villages containing a hundred houses may be seen without a female child."[106]

[Footnote 105: Metz, Tribes inhabiting the Neilgherry Hills, p. 16.]

[Footnote 106: Macpherson, Memorials of Service in India, p. 132.]

It is said that among the Guanches of the Canary Islands, in ancient times, all children, except the first-born, were killed.[107] The people of Madagascar frequently practised infanticide; but Ellis says that they were much less addicted to it than the South Sea Islanders, a numerous offspring being generally a source of much satisfaction.[108] According to Kolben, infanticide was common among the Hottentots;[109] whereas Sparrman only states that "the Hottentots are accustomed to inter, in case of the mother's death, children at the breast alive,"[110] and Le Vaillant altogether denies

the existence of customary infanticide among them.[111] Among the Swahili, according to Baumann, infanticides are very common and hardly disapproved of.[112] But the peoples of the African continent are not generally addicted to infanticide, except in such special cases as have already come under our notice.

[Footnote 107: Ploss, Das Kind, ii. 259 sq.]

[Footnote 108: Little, Madagascar, p. 60. Ellis, History of Madagascar, i. 155, 160.]

[Footnote 109: Kolben, op. cit. i. 333.]

[Footnote 110: Sparrman, Voyage to the Cape of Good Hope, i. 358 sq.]

[Footnote 111: Le Vaillant, op. cit. ii. 58 sqq.]

[Footnote 112: Baumann, Usambara, p. 42.]

The custom of infanticide, in its extensive form, has been attributed to various motives. Among some peoples mothers are said to kill their new-born infants on account {399} of the trouble of rearing them,[113] or the consequent loss of beauty.[114] Another cause is the long suckling time, generally lasting, among savages, for two, three, four years, or even more, owing to want of soft food and animal milk.[115] When, as is very commonly the case, the husband must not cohabit with his wife during the whole of this period,[116] he is naturally inclined to form other connections, and this seems in some instances to induce the mother to destroy her child.[117] In another respect, also, the long suckling-time is an inducement to infanticide; among certain Australian tribes an infant is killed immediately on birth "when the mother is, or thinks she is, unable to rear it owing to there being a young child whom she is still feeding."[118] Among the Pimas of Arizona, again, infanticide is said to be connected with the custom of destroying all the property of the husband when he dies. "The women of the tribe, well aware that they will be poor should their husbands die, and that then they will have to provide for their children by their own exertions, do not care to have many children, and infanticide, both before and after birth, prevails to a great extent. This is not considered a crime."[119] But there can be little doubt that the wholesale infanticide of many of the lower races is in the main due to the hardships of savage life. The helpless infant may be a great burden to the parents both in times of peace and in times of war. It may prevent the mother from following her husband about on his wanderings in search of food, or otherwise encumber her in her work.[120] Mr. Curr states of the Bangerang tribe of Victoria, with whom he was intimate for ten years, that their habit of killing nearly half {400} of the children born resulted "principally from the difficulty, if not the impossibility, of transporting several children of tender age from place to place on their frequent marches."[121] Concerning the Abipones, Charlevoix observes:--"They seldom rear but one child of each sex, murdering the rest as fast as they come into the world, till the eldest are strong enough to walk alone. They think to justify this cruelty by saying that, as they are almost constantly travelling from one place to another, it is impossible for them to take care of more infants than two at a time; one to be carried by the father, and the other by the mother."[122] Among the Lenguas of the Paraguayan Chaco an interval of seven or eight years is always observable between children of the same family, infants born in this interval being immediately killed. The reasons for this practice, says Mr. Hawtrey, are obvious. "The woman has the hard work of carrying food from garden and field, and all the transport to do; the Lenguas are a nomadic race, and their frequent moves often entail journeys of from ten to twenty miles a day. . . . Travelling with natives under these circumstances, one is forced to the conclusion that it would be impossible for a mother to have more than one young child to carry and to care for."[123] Moreover, a little forethought tells the parents that their child before long will become a consumer of provisions perhaps already too scanty for

the family. Savages often suffer greatly from want of food, and may have to choose between destroying their offspring or famishing themselves. Hence they often have recourse to infanticide as a means of saving their lives; indeed, among several tribes, in case of famine, children are not only killed, but eaten.[124] Urgent want is frequently represented by our authorities as the main cause of infanticide;[125] and {401} their statements are corroborated by the conspicuous prevalence of this custom among poor tribes and in islands whose inhabitants are confined to a narrow territory with limited resources.

[Footnote 113: Ellis, Polynesian Researches, i. 256 (Tahitians). Idem, Tour through Hawaii, p. 327. Polack, Manners and Customs of the New Zealanders, ii. 92. Gason, loc. cit. p. 258 (Dieyerie tribe).]

[Footnote 114: Williams, Missionary Enterprises, p. 565 (Tahitians).]

[Footnote 115: See Westermarck, History of Human Marriage, p. 484.]

[Footnote 116: Ibid. p. 483.]

[Footnote 117: Schneider, Die Naturvölker, i. 297, 307.]

[Footnote 118: Spencer and Gillen, Native Tribes of Central Australia, pp. 51, 264. Idem, Northern Tribes of Central Australia, p. 608. Oberländer, loc. cit. p. 279.]

[Footnote 119: Yarrow, loc. cit. p. 99.]

[Footnote 120: Turner, Nineteen Years in Polynesia, p. 394 (people of Vaté, New Hebrides). Polack, op. cit. ii. 93 (Maoris).]

[Footnote 121: Curr, Squatting in Victoria, p. 252. Oberländer, loc. cit. p. 279. Cf. Fison and Howitt, Kamilaroi and Kurnai, p. 259; Fraser, Aborigines of New South Wales, p. 5.]

[Footnote 122: Charlevoix, History of Paraguay, i. 405.]

[Footnote 123: Hawtrey, in Jour. Anthr. Inst. xxxi. 295.]

[Footnote 124: See Steinmetz, Endokannibalismus, pp. 8, 13, 14, 17.]

[Footnote 125: Nansen, First Crossing of Greenland, ii. 330. Nelson, in Ann. Rep. Bur. Ethn. xviii. 289 (Eskimo about Behring Strait). Brough Smyth, op. cit. i. 53; ii. 386 (aboriginal tribes of Australia and Tasmania), von Kotzebue, op. cit. iii. 173 (natives of Radack). Tutuila, in. Jour. Polynesian Soc. i. 263 (Line Islanders). Campbell, Wild Tribes of Khondistan, p. 140 (Kandbs of Sooradah). Marshall, A Phrenologist amongst the Todas, p. 194. Kolben, op. cit. i. 144 (Hottentots). See also Haberland, loc. cit. p. 26; Dimitroff, Die Geringschätzung des menschlichen Lebens und ihre Ursachen bei den Naturvölkern, p. 162 sqq.; Sutherland, Origin and Growth of the Moral Instinct, i. 115 sqq.]

In the chapter dealing with human sacrifice we shall notice that infanticide is in some cases practised as a sacrificial rite. In other cases infants are killed for medicinal purposes, without being sacrificed to any divine being.[126] Thus in the Luritcha tribe, in Central Australia, "it is not an infrequent custom, when a child is in weak health, to kill a younger and healthy one and then to feed the weakling on its flesh, the idea being that this will give to the weak child the strength of the stronger one."[127] A curious motive for female infanticide is also worth mentioning. That the victims of this practice are most commonly, among several peoples almost exclusively, females,[128] is generally due to the greater usefulness of the men both as food-providers and in war. But the Hakka, a Mongolian tribe in China, often put their girls to a cruel death with a view to inducing thereby the soul to appear the next time in the shape of a boy.[129]

[Footnote 126: See infra, p. 458 sq.]

[Footnote 127: Spencer and Gillen, Native Tribes of Central Australia, p. 475. Cf. ibid. p. 52.]

[Footnote 128: Cf. Haberland, loc. cit. p. 56 sqq.]

[Footnote 129: Hubrig, quoted by Ploss, Das Kind, ii. 263.]

Thus various considerations have led men to destroy their own offspring. Under certain circumstances the advantages, real or imaginary, assumed to result from the deed have been sufficiently great to silence the voice of parental love, which, as will be seen, is to be found even in the bosom of a savage father. The resistance offered by this instinct would be so much the less as the child is killed immediately after its birth, at a period of its life {402} when the father's affection for it is as yet only dawning Even where, at first, infanticide was an exception, practised by a few members of the tribe, any interference from the side of the community may have been prevented by the notion that a person possesses proprietary rights over his offspring; and, once become habitual, infanticide easily grew into a regular custom. In cases where it was found useful to the tribe, it would be enforced as a public duty; and even where there no longer was any need for it, owing to changed conditions of life, the force of habit might still keep the old custom alive.

Though infanticide is thus regarded as allowable, or even obligatory, among many of the lower races, we must not suppose that they universally look upon it in this light. Mr. McLennan grossly exaggerated its prevalence when he asserted that female infanticide is "common among savages everywhere."[130] Among a great number of them it is said to be unheard of or almost so,[131] and to these belong peoples of so low a type as the Andaman Islanders,[132] the Botocudos,[133] and certain Californian tribes.[134] The Veddahs of Ceylon have never been known to practise it.[135] Among the Yahgans of Tierra del Fuego, Mr. Bridges informs me, it occurred only occasionally, and then it was almost always the deed of the mother, who acted from "jealousy, or hatred of her husband, or because of desertion and wretchedness."[136] Mr. Fison, who has lived for a long time among uncivilised races, thinks it will be found that infanticide is far less common among the lower savages than it is among the more advanced tribes.[137] Considering {403} further that the custom of infanticide, being opposed to the instinct of parental love, presupposes a certain amount of reasoning or forethought, it seems probable that, where it occurs, it is not a survival of earliest savagery, but has grown up under specific conditions in later stages of development.[138] It is, for instance, very generally asserted that certain Indians in California never committed infanticide before the arrival of the whites;[139] and Ellis thinks there is every reason to suppose that this custom was practised less extensively by the Polynesians during the early periods of their history than it was afterwards.[140]

[Footnote 130: McLennan, Studies in Ancient History, p. 75.]

[Footnote 131: See Westermarck, History of Human Marriage, p. 312 sq.; and, besides the authorities there referred to, Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 369; Kirke, Twenty-five Years in British Guiana, p. 160; Chalmers, Pioneering in New Guinea, p. 163; Hodgson, Miscellaneous Essays, p. 123 (Bódo and Dhimáls); Baumann, Durch Massailand zur Nilquelle, p. 161 (Masai).]

[Footnote 132: Man, in Jour. Anthr. Inst. xii. 329.]

[Footnote 133: Wied-Neuwied, op. cit. ii. 39. Keane, in Jour. Anthr. Inst. xiii. 206.]

[Footnote 134: Powers, op. cit. pp. 192, 271, 382.]

[Footnote 135: Sarasin, Ergebnisse naturwissenschaftlicher Forschungen auf Ceylon, iii. 469, 539.]

[Footnote 136: Bridges, in a letter dated Downeast, Tierra del Fuego, August 28th, 1888.]

[Footnote 137: Fison and Howitt, Kamilaroi and Kurnai, p. 134 sqq. Cf. Farrer, Primitive Manners and Customs, p. 224; Sutherland, op. cit. i. 114 sq.]

[Footnote 138: Cf. Darwin, Descent of Man, p. 594.]

[Footnote 139: Powers, op. cit. p. 207. Cf. ibid. p. 183.]

[Footnote 140: Ellis, Polynesian Researches, i. 249.]

Where infanticide is not sanctioned by custom, the occasional commission of it has a tendency to call forth disapproval or excite horror. The Blackfeet are said to believe that women who have been guilty of this crime will never reach the happy mountain after death, but are compelled to hover round the seats of their crimes, with branches of trees tied to their legs.[141] Speaking of another North American tribe, the Potawatomis, Keating observes:--"In a few instances, it is said that children born deformed have been destroyed by their mothers, but these instances are rare, and whenever discovered, uniformly bring them into disrepute, and are not unfrequently punished by some of the near relations. Independently of these cases, which are but rare, a few instances of infanticide, by single women, in order to conceal intrigue, have been heard of; but they are always treated with abhorrence."[142] Among the Omahas "parents had no right to put their children to death."[143] The Aleuts believed that a child-murder would bring misfortune on the whole village.[144] The Brazilian Macusis[145] and Botocudos[146] look upon the deed with horror. At Ulea, {404} of the Caroline Islands, "the prince would have the unnatural mother punished with death."[147] So, too, Herr Valdau tells us of a Bakundu woman who, accused of infanticide, was condemned to death.[148] In Ashanti a man is punished for the murder of his child.[149] Among the Gaika tribe, of the Kafirs, the killing of a child after birth is punishable as murder, the fine going to the chief.[150] Nay, even peoples among whom infanticide is habitual seem now and then to have a feeling that the act is not quite correct. Mr. Brough Smyth asserts that the Australian Black is himself ashamed of it;[151] and Mr. Curr has no doubt that he feels, in the commencement of his career at least, that infanticide is wrong, as also that its committal brings remorse.[152]

[Footnote 141: Richardson, in Franklin, Journey to the Shores of the Polar Sea, p. 77.]

[Footnote 142: Keating, op. cit. i. 99.]

[Footnote 143: Dorsey, in Ann. Rep. Bur. Ethn. iii. 268.]

[Footnote 144: Dall, op. cit. p. 399.]

[Footnote 145: Waitz, op. cit. iii. 391.]

[Footnote 146: Wied-Neuwied, op. cit. ii. 39.]

[Footnote 147: von Kotzebue, op. cit. iii. 211.]

[Footnote 148: Valdau, in Ymer, v. 280.]

[Footnote 149: Bowdich, Mission from Cape Coast Castle to Ashantee, p. 258.]

[Footnote 150: Maclean, Compendium of Kafir Laws and Customs, p. 111.]

[Footnote 151: Brough Smyth, op. cit. i. 54.]

[Footnote 152: Curr, The Australian Race, i. 100.]

The custom of infanticide in most cases requires that the child should be killed immediately or soon after its birth. Among certain North American Indians "the right of destroying a child lasted only till it was a month old," after which time the feeling of the tribe was against its death.[153] Ellis says of the Society Islanders:--"The horrid act, if not committed at the time the infant entered the world, was not perpetrated at any subsequent period . . . . If the little stranger was, from irresolution, the mingled emotions that struggled for mastery in its mother's bosom, or any other cause, suffered to live ten minutes or half an hour, it was safe; instead of a monster's grasp, it received a mother's caress and a mother's smile, and was afterwards nursed with solicitude and tenderness."[154] Almost the same is said of other South Sea Islanders[155] and of tribes inhabiting the Australian continent.[156] That the custom of infanticide is generally

{405} restricted to the destruction of new-born babies also appears from various statements as to the parental love of those peoples who are addicted to this practice.[157] In Fiji "such children as are allowed to live are treated with a foolish fondness."[158] Among the Narrinyeri, "only let it be determined that an infant's life shall be saved, and there are no bounds to the fondness and indulgence with which it is treated"; [159] and with reference to other Australian tribes we are told that it is brought up with greater care than generally falls to the lot of children belonging to the poorer classes in Europe.[160] Among the Indians of the Pampas and other Indians of that neighbourhood, who abandon deformed or sickly-looking children to the wild dogs and birds of prey, an infant becomes, from the moment it is considered worthy to live, "the object of the whole love of its parents, who, if necessary, will submit themselves to the greatest privations to satisfy its least wants or exactions."[161] In Madagascar, according to Ellis, "nothing can exceed the affection with which the infant is treated by its parents and other members of the family; the indulgence is more frequently carried to excess than otherwise."[162] From these and similar facts, as also from the general absence of statements to the contrary, I conclude that murders of children who have been allowed to survive their earliest infancy are very rare, though not quite unknown, [163] among the lower races.

[Footnote 153: Schoolcraft, quoted by Sutherland, op. cit. i. 119.]

[Footnote 154: Ellis, Polynesian Researches, i. 255.]

[Footnote 155: Waitz-Gerland, op. cit. vi. 138, 139, 638. Angas, Savage Life and Scenes in Australia and New Zealand, i. 313.]

[Footnote 156: Ploss, Das Kind, ii. 255. Spencer and Gillen, Native Tribes of Central Australia, p. 51. Iidem, Northern Tribes of Central Australia, p. 608.]

[Footnote 157: See infra, p. 529 sqq.; also Haberland, loc. cit. p. 29, and Sutherland, op. cit. i. 115 sqq.]

[Footnote 158: Williams and Calvert, op. cit. p. 142.]

[Footnote 159: Taplin, in Woods, Native Tribes of South Australia, p. 15.]

[Footnote 160: Brough Smyth, op. cit. i. 51. Meyer, 'Manners and Customs of the Aborigines of the Encounter Bay Tribe,' in Woods, Native Tribes of South Australia, p. 186.]

[Footnote 161: Guinnard, op. cit. p. 144.]

[Footnote 162: Ellis, History of Madagascar, i. 161.]

[Footnote 163: Among the Sandwich Islanders "the infant, after living a week, a month, or even a year, was still insecure, as some were destroyed when able to walk" (Ellis, Tour through Hawaii, p. 325). Among the Eskimo about Behring Strait, "girls were often killed when from 4 to 6 years of age" (Nelson, in Ann. Rep. Bur. Ethn. xviii. 289).]

The custom of infanticide prevails, or has prevailed, not only in the savage world, but among semi-civilised and {406} civilised races. In the poorest districts of China female infants are often destroyed by their parents immediately after their birth, chiefly on account of poverty.[164] Though disapproved of by educated Chinese, the practice is treated with forbearance or indifference by the mass of the people, and is acquiesced in by the mandarins.[165] "When seriously appealed to on the subject," says the Rev. J. Doolittle, "though all deprecate it as contrary to the dictates of reason and the instincts of nature, many are ready boldly to apologise for it, and declare it to be necessary, especially in the families of the excessively poor."[166] However, infanticide is neither directly sanctioned by the government, nor agreeable to the general spirit of the laws and institutions of the Empire;[167] and it is prohibited both by Buddhism and Taouism.

[168] According to Dr. de Groot, the belief that the spirits of the dead may, with authorisation of Heaven, take vengeance on the living, has a very salutary effect on female infanticide in China. "The fear that the souls of the murdered little ones may bring misfortune, induces many a father or mother to lay the girls they are unwilling to bring up in the street for adoption into some family, or into a foundling-hospital."[169]

[Footnote 164: Gutzlaff, Sketch of Chinese History, i. 59. Wells Williams, Middle Kingdom, ii. 240 sqq. Douglas, Society in China, p. 354 sqq. Doolittle, Social Life of the Chinese, ii. 206.]

[Footnote 165: Doolittle, op. cit. ii. 203, 208 sq. Wells Williams, op. cit. i. 836; ii. 242. Douglas, Society in China, p. 354. Ploss, Das Kind, ii. 262.]

[Footnote 166: Doolittle, op. cit. ii. 208.]

[Footnote 167: Staunton, in his translation of Ta Tsing Leu Lee, p. 347 n. *]

[Footnote 168: Thâi Shang, 4. Giles, Strange Stories from a Chinese Studio, ii. 377. Douglas, Confucianism and Taouism, p. 267. Indo-Chinese Gleaner, iii. 164.]

[Footnote 169: de Groot, Religions System of China, (vol. iv. book) ii. 457 sqq.]

In ancient times the Semites, or at least some of them, not only practised infanticide, but, under certain circumstances, approved of it or regarded it as a duty. According to an ancient Arabic proverb, it was a generous deed to bury a female child;[170] and we read of [(]O[s.]aim the Fazarite who did not dare to save alive his daughter Lacî[t.]a, without concealing her from the people, although she was his only child.[171] Considering that among the {407} nomads of Arabia, who suffer constantly from hunger during a great part of the year, a daughter is a burden to the poor, we may suppose, with Professor Robertson Smith, that "infanticide was as natural to them as to other savage peoples in the hard struggle for life."[172] It was condemned, however, by the Prophet:--"Slay not your children for fear of poverty: we will provide for them; beware! for to slay them is ever a great sin."[173] In the Mosaic Law, on the other hand, infanticide is never touched upon, and, in all probability, it hardly occurred among the Hebrews in historic times. But we have reason to believe that, at an earlier period, among them as also among other branches of the Semitic race, child-murder was frequently practised as a sacrificial rite.[174]

[Footnote 170: Freytag, Arabum Proverbia, i. 229.]

[Footnote 171: Robertson Smith, Kinship and Marriage in Early Arabia, p. 293.]

[Footnote 172: Ibid. p. 294.]

[Footnote 173: Koran, xvii. 33; also, ibid. vi. 141, 152, and lxxxi. 8 sq.]

[Footnote 174: See infra, on Human Sacrifice.]

The murder of female infants, whether by the direct employment of homicidal means, or by exposure to privation and neglect, has for ages been a common practice, or even a genuine custom, among various Hindu castes.[175] Yet they are well aware that it is prohibited by their sacred books; according to the Laws of Manu, the King shall put to death "those who slay women, infants, or Brâhmanas."[176] Even the Rajputs, who--out of family pride and owing to the expenses connected with the marriage ceremony--were particularly addicted to infanticide, considered that a family in which such a deed had been perpetrated was, in consequence, an object of divine displeasure. On the twelfth day, therefore, the family priest was sent for, and, by suitable gratuities, absolution was obtained. In the room where the infant was born and destroyed, he also prepared and ate some food with which the family provided him; this was considered a hom, or burnt offering, and, by eating it in that place, the priest was supposed to take the whole hutteea, or sin, upon himself, and to cleanse the family from it.[177]

[Footnote 175: Wilkins, Modern Hinduism, 431. Chevers, Manual of Medical Jurisprudence for India, p. 750 sqq.]

[Footnote 176: Laws of Manu, ix. 232.]

[Footnote 177: 'Oude as it was before the Annexation,' in Church Missionary Intelligencer, xi. 81 sq.]

{408} Exposure of new-born children was practised by the people of the Vedic age, [178] as also by other so-called Aryan peoples in ancient times.[179] The Teutonic father had to decide whether the child, whilst still lying on the ground, should be accepted as a member of the family, or whether it should be exposed. If he lifted it up, and some water was poured over it, or a drop of milk or honey passed its lips, it was generally safe. But apart from these restrictions, custom seems to have been in favour of exposure only under certain circumstances, exactly similar to those in which infanticide is practised among many modern savages: if the child was born out of wedlock, or if it was deformed or sickly, or if it was born on an unlucky day, or in case of twins--one of whom was always supposed to be illegitimate--or if the parents were very poor. The exposed infant, however, was not necessarily destined to die, but was, in many cases, adopted by somebody who could afford to rear it.[180]

[Footnote 178: Kaegi, Rigveda, p. 16.]

[Footnote 179: Strieker, 'Ethnographische Notizen über den Kindermord und die künstliche Fruchtabtreibung,' in Archiv für Anthropologie, v. 451 (Celts and Slavs).]

[Footnote 180: Grimm, Deutsche Rechtsalterthümer, p. 455 sq. Wilda, Strafrecht der Germanen, pp. 704, 725. Maurer, Bekehrung des Norwegischen Stammes ii. 181. Weinhold, Altnordisches Leben, p. 261. Nordström, Bidrag till den svenska samhällsförfattningens historia, ii. 44. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 359.]

The exposure of deformed or sickly infants was undoubtedly an ancient custom in Greece; in Sparta, at least, it was enjoined by law. It was also approved of by the most enlightened among the Greek philosophers. Plato condemns all those children who are imperfect in limbs, as also those who are born from depraved citizens, to be buried in some obscure and unknown place; he maintains, moreover, that when both sexes have passed the age assigned for presenting children to the State, no child is to be brought to light, and that any infant which is by accident born alive, shall be done away with. [181] Aristotle not only lays down the law with respect to the exposing or bringing up of children, that "nothing imperfect or maimed shall be brought up," but proposes that {409} the number of children allowed to each marriage shall be regulated by the State, and that, if any woman be pregnant after she has produced the prescribed number, an abortion shall be procured before the fetus has life.[182] These views were in perfect harmony with the general tendency of the Greeks to subordinate the feelings of the individual to the interest of the State. Confined as they were to a very limited territory, they were naturally afraid of being burdened with the maintenance of persons whose lives could be of no use. It is necessary, says Aristotle, to take care that the increase of the people should not exceed a certain number, in order to avoid poverty and its concomitants, sedition and other evils.[183] Yet the exposure of healthy infants, which was frequently practised in Greece, was hardly approved of by public opinion, although tolerated,[184] except at Thebes, where it was a crime punishable with death.[185]

[Footnote 181: Plato, Respublica, v. 460 sq.]

[Footnote 182: Aristotle, Politica, vii. 16, p. 1335.]

[Footnote 183: Ibid. ii. 6, p. 1265.]

[Footnote 184: Schmidt, Ethik der alten Griechen, ii. 138, 463. Hermann-Blumner, Lehrbuch der griechischen Privatalterthümer, p. 77.]

[Footnote 185: Aelian, Varia Historiæ, ii. 7.]

In Rome custom or law enjoined the destruction of deformed infants. According to a law of the Twelve Tables, referred to by Cicero, monstrous abortions were not suffered to live.[186] With reference to a much later period Seneca writes, "We destroy monstrous births, and we also drown our children if they are born weakly or unnaturally formed"; he adds that it is an act of reason thus to separate what is useless from what is sound.[187] But there was no tendency in Rome to encourage infanticide beyond these limits. It has been observed that, whilst the Greek policy was rather to restrain, the Roman policy was always to encourage, population.[188] Being engaged in incessant wars of conquest, Rome was never afraid of being over-populated, but, on the contrary, tried to increase the number of its citizens by according special privileges to the fathers of many children, and exempting poor parents from most {410} of the burden of taxation.[189] The power of life and death which the Roman father possessed over his children undoubtedly involved the legal right of destroying or exposing new-born infants; but it is equally certain that the act was frequently disapproved of.[190] An ancient "law," ascribed to Romulus--which, as Mommsen suggests, could have been merely a priestly direction[191]--enjoined the father to bring up all his sons and at least his eldest daughter, and forbade him to destroy any well-formed child till it had completed its third year, when the affections of the parent might be supposed to be developed.[192] In later times we find the exposure of children condemned by poets, historians, philosophers, jurists. Among nefarious acts committed in sign of grief on the day when Germanicus died, Suetonius mentions the exposure of new-born babes.[193] Epictetus indignantly opposes the saying of Epicurus that men should not rear their children:--"Even a sheep will not desert its young, nor a wolf; and shall a man? 'What! will you have us to be silly creatures, like the sheep?' Yet they desert not their young. 'Or savage, like wolves?' Yet even they desert them not. Come, then, who would obey you if he saw his little child fall on the ground and cry?"[194] Julius Paulus, the jurist, pronounced him who refused nourishment to his child, or exposed it in a public place, to be guilty of murder[195]--a statement which is to be understood, not as a legal prohibition of exposure, but only as the expression of a moral opinion.[196] On the other hand, though the exposure of healthy infants was disapproved of in Pagan Rome, it was not generally regarded as an offence of very great magnitude, especially if the parents were destitute.[197] {411} During the Empire it was practised on an extensive scale, and in the literature of the time it is spoken of with frigid indifference. Since the life of the victim was frequently saved by some benevolent person or with a view to profit,[198] it was not regarded in the same light as downright infanticide, which, in the case of a healthy infant, seems to have been strictly prohibited by custom.[199]

[Footnote 186: Cicero, De legibus, iii. 8.]

[Footnote 187: Seneca, De ira, i. 15.]

[Footnote 188: Lecky, History of European Morals, ii. 27.]

[Footnote 189: Montesquieu, De l'esprit des lois, 20 sqq. ([OE]uvres, p. 398 sqq.). Lecky, History of European Morals, ii. 27.]

[Footnote 190: Denis, Histoire des théories et des idées morales dans l'antiquité, ii. 110.]

[Footnote 191: Mommsen, Römisches Strafrecht, p. 619.]

[Footnote 192: Dionysius of Halicarnassus, Antiquitates Romanæ, ii. 15.]

[Footnote 193: Suetonius, Caligula, 5.]

[Footnote 194: Epictetus, Dissertationes, i. 23.]

[Footnote 195: Digesta, xxv. 3. 4.]

[Footnote 196: Noodt, 'Julius Paulus, sive de partus expositione et nece apud veteres,' in Opera omnia, i. 465 sqq. Walter, Geschichte des Römischen Rechts, § 538, vol. ii. 148 sq. Spangenberg, 'Verbrechen des Kindermords und der Aussetzung der Kinder,' in Neues Archiv des Criminalrechts, iii. 10 sqq. Mommsen, Römisches Strafrecht, p. 620, n. 1.]

[Footnote 197: Quintilian, Declamationes, 506. Plutarch, De amore prolis, 5.]

[Footnote 198: Lecky, History of European Morals, ii. 28. Lallemand, Histoire des enfants abandonnés et délaissés, p. 59.]

[Footnote 199: Mommsen, Römisches Strafrecht, p. 619.]

As is generally the case in the savage world, so among semi-civilised and civilised nations whose customs allow or tolerate infanticide, the child, if not suffered to live, has to be killed in its earliest infancy. Among the Chinese[200] and Rajputs[201] it is destroyed immediately after its birth. In the Scandinavian North the killing or exposure of an infant who had already been sprinkled with water was regarded as murder.[202] At Athens parents were punished for exposing children whom they had once begun to rear.[203]

[Footnote 200: Gutzlaff, op. cit. i. 59.]

[Footnote 201: Church Missionary Intelligencer, xi. 81. Chevers, op. cit. p. 752.]

[Footnote 202: Grimm, Deutsche Rechtsalterthümer, i. 457.]

[Footnote 203: Schoemann, Griechische Alterthümer, i. 503.]

The practice of exposing new-born infants, so common in the Pagan Empire, was vehemently denounced by the early Fathers of the Church.[204] They tried to convince men that, if the abandoned infant died, the unnatural parent was guilty of nothing less than murder, whilst the sinful purposes for which foundlings were often used formed another argument against exposure.[205] The enormity of the crime of causing an infant's death was enhanced by the notion that children who had died unbaptised were doomed to eternal perdition.[206] According to a decree of the Council of Mentz in 852, the penance imposed on the mother was heavier if she killed an unbaptised than if she killed a {412} baptised child.[207] In the year 1556, Henry II. of France made a law which punished as a child-murderer any woman who had concealed her pregnancy and delivery, and whose child was found dead, "privé, tant du saint sacrement de baptesme, que sépulture publique et accoustumée."[208] This statute--to which there is a counterpart in England in the statute 21 Jac. I. c. 27,[209] and in the Scotch law of 1690, c. 21[210]--thus went so far as to constitute a presumptive murder, avowedly under the influence of that Christian dogma to which Mr. Lecky attributes, in the first instance, "the healthy sense of the value and sanctity of infant life which so broadly distinguishes Christian from Pagan societies."[211]

[Footnote 204: See Terme and Monfalcon, Histoire des enfans trouvés, p. 67 sqq.]

[Footnote 205: Justin Martyr, Apologia I. pro Christianis, 29, 27 (Migne, Patrologiæ cursus, Ser. Graeca, vi. 373 sq., 369 sqq.).]

[Footnote 206: Cf. Spangenberg, in Neues Archiv des Criminalrechts, iii. 20; Lecky, History of European Morals, ii. 23.]

[Footnote 207: Canon Hludowici regis, 9 (Pertz, Monum. Germaniæ historica, iii. 413).]

[Footnote 208: Isambert, Decrusy, and Armet, Recueil général des anciennes lois françaises, xiii. 472 sq.]

[Footnote 209: Blackstone, Commentaries on the Laws of England, iv. 198.]

[Footnote 210: Erskine, Principles of the Law of Scotland, p. 560.]

[Footnote 211: Lecky, History of European Morals, ii. 23.]

If the Pagans had been comparatively indifferent to the sufferings of the exposed infant, the Christians became all the more cruel to the unfortunate mother, who, perhaps in a fit of despair, had put to death her new-born child. The Christian emperor Valentinian I. made infanticide a capital offence.[212] According to the Coutume de Loudunois, a mother who killed her child was burned.[213] In Germany and Switzerland she was buried alive with a pale thrust through her body;[214] this punishment was prescribed by the criminal code of Charles V., side by side with drowning.[215] Until the end of the eighteenth, or the beginning of the nineteenth, century, infanticide was a capital crime everywhere in Europe, except in Russia.[216] Then, under the influence of that rationalistic movement which compelled men to rectify so many preconceived opinions,[217] it became manifest that an unmarried woman {413} who destroyed her illegitimate child was not in the same category as an ordinary murderess.[218] It was pointed out that shame and fear, the excitement of mind, and the difficulty in rearing the poor bastard, could induce the unfortunate mother to commit a crime which she herself abhorred. That no notice had been taken of all this, is explicable from the extreme severity with which female unchastity was looked upon by the Church. At present most European lawbooks do not punish infanticide committed by an unmarried woman even nominally with death.[219] In France the law which regards infanticide as an aggravated form of meurtre[220] has become a dead letter;[221] and in England no woman seems for a long time to have been executed for killing her new-born child under the distress of mind and fear of shame caused by child-birth.[222]

[Footnote 212: Codex Theodosianus, ix. 14. 1. Institutiones, ix. 16, 7.]

[Footnote 213: Tissot, Le droit pénal, ii. 40.]

[Footnote 214: Osenbrüggen, Das alamannische Strafrecht im deutschen Mittelalter, p. 229 sq. Idem, Studien zur deutschen und schweizerischen Rechtsgeschichte, p. 358.]

[Footnote 215: Charles V.'s Peinliche Gerichts Ordnung, art. 131.]

[Footnote 216: de Feyfer, Verhandeling over den Kindermoord, p. 225. von Fabrice, Die Lehre von der Kindsabtreibung und vom Kindsmord, p. 251.]

[Footnote 217: Berner, Lehrbuch des Deutschen Strafrechtes, p. 497.]

[Footnote 218: Bentham maintained (Theory of Legislation, p. 264 sq.) that infanticide ought not to be punished as a principal offence. "The offence," he says, "is what is improperly called the death of an infant, who has ceased to be, before knowing what existence is,--a result of a nature not to give the slightest inquietude to the most timid imagination; and which can cause no regrets but to the very person who, through a sentiment of shame and pity, has refused to prolong a life begun under the auspices of misery."]

[Footnote 219: de Feyfer, op. cit. p. 228. For modern legislation on infanticide, see also Spangenberg, in Neues Archiv des Criminalrechts, iii. 360 sqq.; von Fabrice, op. cit. p. 254 sqq.]

[Footnote 220: Code Pénal, art. 300, 302.]

[Footnote 221: Garraud, Traité théoretique et pratique du droit pénal français, iv. 251.]

[Footnote 222: Stephen, History of the Criminal Law of England, iii. 86.]

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Hand in hand with the custom of infanticide goes feticide, which prevails extensively in the savage world.[223] The same considerations as induce savages to kill their new-born infants also induce them to destroy the fetus before it has proceeded into the world

from the mother's body. Besides, women procure abortion with a view to avoiding the disagreeable incidents accompanying the state of pregnancy; or, very frequently, in order to conceal illicit intercourse.[224] Considering that the same degree of sympathy cannot be felt with regard to a child not yet born as with regard to an infant, it is not surprising to find that feticide is practised without objection even by {414} some peoples who never commit infanticide. Thus in Samoa, where the latter practice was perfectly unknown, the destruction of unborn children prevailed to a melancholy extent, and the same was the case in the Mitchell Group.[225] Among the Dacotahs, who only occasionally killed infants, abortion procured by artificial means was not held objectionable.[226] On the other hand there are savages who consider it a crime. Some Indian tribes in North America abhor the practice.[227] The natives of Tenimber and Timorlaut punish it with heavy fines.[228] Regarding the Kafirs, Mr. Warner states that "the procuring of abortion, although universally practised by all classes of females in Kafir society, is nevertheless a crime of considerable magnitude in the eye of the Law; and when brought to the notice of the Chief, a fine of four or five head of cattle is inflicted. The accomplices are equally guilty with the female herself."[229]

[Footnote 223: Ploss, Das Weib, i. 842 sqq.]

[Footnote 224: Ibid. i. 851 sq.]

[Footnote 225: Turner, Samoa, pp. 79, 280.]

[Footnote 226: Schoolcraft, Indian Tribes of the United States, iii. 243. Keating, op. cit. i. 394.]

[Footnote 227: Ploss, Das Weib, i. 848.]

[Footnote 228: Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 302.]

[Footnote 229: Warner, in Maclean, Compendium of Kafir Laws and Customs, p. 62. Cf. Brownlee, ibid. p. 111; Holden, Past and Future of the Kaffir Races, p. 334.]

Passing to more civilised nations, we notice that, among Hindus and Muhammedans, artificial abortion is extremely common and is hardly reprobated by public opinion, whatever religion or law may have to say on the subject.[230] It is especially resorted to by unmarried women as a means of escaping punishment and shame. "In a country like India," says Dr. Chevers, "where true morality is almost unknown, but where the laws of society exercise the most rigorous and vigilant control imaginable over the conduct of females, and where six-sevenths of the widows, whatever their age or position in life may be, are absolutely debarred from re-marriage, and are compelled to rely upon the uncertain support of their relatives, it is scarcely surprising that great crimes should be frequently practised to conceal the results of immorality, and that the procuring of criminal abortion should, especially, be an act of {415} almost daily commission, and should have become a trade among certain of the lower midwives."[231] In Persia every illegitimate pregnancy ends with abortion; the act is done almost publicly, and no obstacle is put in its way.[232] In Turkey, both among the rich and poor, even married women very commonly procure abortion after they have given birth to two children, one of which is a boy; and the authorities regard the practice with indifference.[233] In ancient Greece, as we have seen, feticide was under certain circumstances recommended by Plato and Aristotle, in preference to infanticide. In Rome it was prohibited by Septimius Severus and Antoninus, but the prohibition seems to have referred only to those married women who, by procuring abortion, defrauded their husbands of children.[234] During the Pagan Empire, abortion was extensively practised, either from poverty, or licentiousness, or vanity; and, although severely disapproved of by some, [235] "it was probably regarded by the average Romans of the later days of Paganism

much as Englishmen in the last century regarded convivial excesses, as certainly wrong, but so venial as scarcely to deserve censure."[236] Seneca thinks Helvia worthy of special praise because she had never destroyed her expected child within her womb, "after the fashion of many other women, whose attractions are to be found in their beauty alone."[237] The Romans drew a broad line between feticide and infanticide. An unborn child was not regarded by them as a human being; it was a spes animantis, not an infans.[238] It was said to be merely a part of the mother, as the fruit is a part of the tree till it becomes ripe and falls down.[239]

[Footnote 230: Laws of Manu, v. 90; Vish['n]u Purá['n]a, p. 207 sq.]

[Footnote 231: Chevers, op. cit. p. 712.]

[Footnote 232: Polak, Persien, i. 217.]

[Footnote 233: Ploss, Das Weib, i. 846 sq.]

[Footnote 234: Digesta, xlvii. 11. 4. Cf. Rein, Criminalrecht der Römer, p. 447.]

[Footnote 235: Paulus, quoted in Digesta, xxv. 3, 4.]

[Footnote 236: Lecky, History of European Morals, ii. 21 sq.]

[Footnote 237: Seneca, Ad Helviam, 16.]

[Footnote 238: Spangenberg, 'Verbrechen der Abtreibung der Leibesfrucht,' in Neues Archiv des Criminalrechts, ii. 23.]

[Footnote 239: Ibid. ii. 22.]

Very different opinions were held by the Christians. A sanctity, previously unheard of, was attached to human life from the very beginning. Feticide was regarded as a {416} form of murder. "Prevention of birth," says Tertullian, "is a precipitation of murder; nor does it matter whether one take away a life when formed, or drive it away while forming. He also is a man who is about to be one. Even every fruit already exists in its seed."[240] St. Augustine, again, makes a distinction between an embryo which has already been formed, and an embryo as yet unformed. From the creation of Adam, he says, it appears that the body is made before the soul. Before the embryo has been endowed with a soul it is an embryo informatus, and its artificial abortion is to be punished with a fine only; but the embryo formatus is an animate being, and to destroy it is nothing less than murder, a crime punishable with death.[241] This distinction between an animate and inanimate fetus was embodied both in Canon[242] and Justinian law,[243] and passed subsequently into various lawbooks.[244] And a woman who destroyed her animate embryo was punished with death.[245]

[Footnote 240: Tertullian, Apologeticus, 9 (Migne op. cit. i. 319 sq.).]

[Footnote 241: St. Augustine, Questiones in Exodum, 80; Idem, Questiones Veteris et Novi Testamenti, 23 (Migne, op. cit. xxxiv.-xxxv. 626, 2229).]

[Footnote 242: Gratian, Decretum, ii. 32. 2. 8 sq.]

[Footnote 243: As regards the time from which the fetus was considered to be animate a curious distinction was drawn between the male and the female fetus. The former was regarded as animatus forty days after its conception, the latter eighty days. This theory, however--which was derived, as it seems, either from an absurd misinterpretation of Leviticus, xii. 2-5, or from the views of Aristotle (De animalibus historiæ, vii. 3; cf. Pliny, Historia naturalis, vii. 6)--was not accepted by the glossarist of the Justinian Code, who fixed the animation of the female, as well as of the male, fetus at forty days after its conception; and this view was adopted by later jurists (Spangenberg, in Neues Archiv des Criminalrechts, ii. 37 sqq.).]

[Footnote 244: von Fabrice, op. cit. p. 202 sq. Berner, op. cit. p. 501. Wilda, op. cit. p. 720 sqq.]

[Footnote 245: Fleta, i. 23. 12 (England). Charles V's Peinliche Gerichts Ordnung, art. 133. Spangenberg in Neues Archiv des Criminalrechts, ii. 16.]

The criminality of artificial abortion was increased by the belief that an embryo formatus, being a person endowed with an immortal soul, was in need of baptism for its salvation. In his highly esteemed treatise De fide, written in the sixth century, St. Fulgentius says, "It is to be believed beyond doubt, that not only men who are come to the use of reason, but infants, whether they die in their mother's womb, or after they are born, without baptism, {417} in the name of the Father, Son, and Holy Ghost, are punished with everlasting punishment in eternal fire, because though they have no actual sin of their own, yet they carry along with them the condemnation of original sin from their first conception and birth."[246] And in the Lex Bajuwariorum this doctrine is expressly referred to in a paragraph which prescribes a daily compensation for children killed in the womb on account of the daily suffering of those children in hell.[247] Subsequently, however, St. Fulgentius' dictum was called in question, and no less a person than Thomas Aquinas suggested the possibility of salvation for an infant who died before its birth.[248] Apart from this, the doctrine that the life of an embryo is equally sacred with the life of an infant was so much opposed to popular feelings, that the law concerning feticide had to be altered. Modern legislation, though treating the fetus as a distinct being from the moment of its conception,[249] punishes criminal abortion less severely than infanticide.[250] And the very frequent occurrence of this crime[251] is an evidence of the comparative indifference with which it is practically looked upon by large numbers of people in Christian countries.

[Footnote 246: St. Fulgentius, De fide, 27 (Migne, op. cit. lxv. 701).]

[Footnote 247: Lex Bajuwariorum, viii. 21 (vii. 20).]

[Footnote 248: Lecky, History of the Rise and Influence of the Spirit of Rationalism in Europe, i. 360, n. 2.]

[Footnote 249: Henke, Lehrbuch der gerichtlichen Medicin, 99, p. 75. Berner, op. cit. p. 502.]

[Footnote 250: von Fabrice, op. cit. p. 199. For modern laws referring to criminal abortion, see ibid. p. 206 sqq., and Spangenberg, in Neues Archiv des Criminalrechts, ii. 178 sqq.]

[Footnote 251: See Ploss, Das Weib, i. 848 sqq.; Schmidt's Jahrbücher der in- und ausländischen Gesammten Medicin, xciii. 97.]

Chapter XVIII

THE KILLING OF WOMEN AND OF SLAVES--THE CRIMINALITY OF HOMICIDE INFLUENCED BY DISTINCTIONS OF CLASS.

AMONG many of the lower races a husband is said to possess the power of life and death over his wife; but what this actually means is not always obvious. It is quite probable that, in some cases, the husband may put his wife to death whenever he pleases, without having to fear any disagreeable consequences. In other instances he, by doing so, at all events exposes himself to the vengeance of her family. Among the Bangerang tribe of Victoria, for instance, "he might ill-treat her, give her away, do as he liked with her, or kill her, and no one in the tribe interfered; though, had he proceeded to the last extremity, her death would have been avenged by her brothers or kindred."[1] So, also, among the aborigines of North-West-Central Queensland, "a wife has always

her 'brothers' to look after her interests," and if a man kills his wife he has to deliver up one of his own sisters for his late wife's friends to put to death.[2] We shall see in a subsequent chapter that many statements in which absolute marital power is ascribed to savage husbands are not to be interpreted too literally. I venture to believe that the husband's so-called power of life and death is generally {419} restricted by custom to cases where the wife has committed some offence, and, especially, where she has been guilty of unfaithfulness.

[Footnote 1: Curr, Recollections of Squatting in Victoria, p. 248.]

[Footnote 2: Roth, Ethnological Studies among the North-West-Central Queensland Aborigines, p. 141. Cf. Fison and Howitt, Kamilaroi and Kurnai, p. 281 (Geawe-gal tribe).]

The right of punishing the wife capitally, however, is by no means universally granted to the husband in uncivilised communities. Among the Gaika tribe of the Kafirs, "if he puts her to death, he is punished as a murderer."[3] Among the Bakwiri he has to suffer death himself if he kills his wife; if she is unfaithful to him he is only permitted to beat her.[4] From the information we possess of the lower races it does not seem to be the general rule that husbands punish their adulterous wives with death; but whether they have the right of doing so is a question seldom touched upon by our authorities.[5] We shall see that savage custom often gives to the husband only very limited rights over his wife, and requires that he should treat her with respect.

[Footnote 3: Brownlee, in Maclean, Compendium of Kafir Laws and Customs, p. 117.]

[Footnote 4: Schwarz, quoted by Post, Afrikanische Jurisprudenz, i. 401.]

[Footnote 5: See Steinmetz, Ethnologische Studien zur ersten Entwicklung der Strafe, ii. 303.]

Among various peoples of a higher type the husband has, under certain circumstances, had the right of punishing his wife capitally; but this seems to be nearly all that is involved in that "power of life and death" which he is said to have possessed over her.[6] However, whilst custom or law forbade him to kill his wife without sufficient cause, such a deed was hardly looked upon with the same horror, or treated with the same severity, as the murder of a husband by his wife, owing to the former's superior position in the family. Among the Langobardi, according to the laws of King Rothar, a husband who killed his wife had to pay the same compensation as anybody else would have had to pay for taking her life, but if a wife killed her husband, she was put to death, and her property forfeited {420} to the family of the dead.[7] In Russia, in the seventeenth century, whilst a husband who murdered his wife was, according to law, obnoxious to corporal punishment, a wife who murdered her husband was buried alive, with the head above the ground, and left to perish by hunger.[8] According to English law, a woman who killed her husband was guilty of "petit treason," that is, murder in its most odious degree.[9]

[Footnote 6: Rein, Japan, p. 424. Hommel, Die semitischen Völker und Sprachen, i. 417 (Babylonians). Leist, Altarisches Jus Civile, i. 196, 275 ("Aryan" peoples). Wilda, Strafrecht der Germanen, p. 705; Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 61 sq.; Weinhold, Altnordisches Leben, p. 250; Keyser Efterladte Skrifter, ii. pt. ii. 28 sq. (Teutons).]

[Footnote 7: Edictus Rothari, 200 sqq.]

[Footnote 8: Macieiowski, Slavische Rechtsgeschichte, iv. 292. For a Corsican law concerning matricide, see Cibrario, Economia politica del medio eve, i. 344; and for the punishment inflicted for the same crime on a woman in Nuremberg, in 1487, see Du Boys, Histoire du droit criminel des peuples modernes, ii. 607.]

[Footnote 9: Blackstone, Commentaries on the Laws of England, iv. 203.]

Among many peoples the life of a woman is held cheaper than that of a man, independently of the relationship between the slayer and his victim. In Burma, if a woman was accidentally killed, less compensation had to be paid than for a man. A Burman explained this in the following words:--"A woman is worth less than a man in that way. A maidservant can be hired for less than a manservant, a daughter can claim less than a son. They cannot do so much work; they are not so strong. If they had been worth more, the law would have been the other way; of course they are worth less."[10] Among Muhammedans the price of blood for a woman is half the sum which is the price of blood for a free man.[11] In ancient India the murder of a woman, unless she was with child, was in the eye of the law on a par with the murder of a Sûdra.[12] According to Cambrian law, the galanas, or blood-price, of a woman was half the galanas of her brother.[13] Among the Teutons the wergeld of a woman varied: sometimes it was the same as that for a man, sometimes only half as much, but sometimes twice as much, or, if she was pregnant, {421} even more.[14] These variations depended upon the different points of view from which the offence was looked upon. By herself she was worth less than a man, as a mother she was worth more;[15] and, quite apart from her value, the natural helplessness of her sex tended to aggravate the crime.[16] Among modern savages and barbarians, also, the estimate of a woman's life is in some instances lower than that of a man's,[17] in some equal to it,[18] and in some higher.[19] Among the Gallas the killing of a free man can be atoned for only by one thousand cattle, whereas fifty are deemed sufficient for the killing of a woman.[20] On the other hand, among the Iroquois two hundred yards of wampum were paid for the murder of a woman, and only one hundred for that of a man.[21] Among the Rejangs of Sumatra, whilst the compensation for murder is eighty dollars if the victim was an ordinary man or boy, it is one hundred and fifty dollars if the person murdered was a woman or a girl.[22] Among the Ag[=a]r, a Dinka tribe, the murder of a man must be atoned for by a fine of thirty cows, that of a woman by forty cows.[23] Where wives are purchased, the killing of a woman involves the destruction of valuable property, and is dealt with accordingly.

[Footnote 10: Fielding, The Soul of a People, p. 171.]

[Footnote 11: Lane, Arabian Society in the Middle Ages, p. 18.]

[Footnote 12: Baudhâyana, i. 10. 19. 3. Leist, Alt-arisches Jus Gentium, p. 305 sqq.]

[Footnote 13: Venedotian Code, ii. 1. 16. According to the 'Laws of the Brets and Scots,' the estimate of a married woman is less by a third part than that of her husband, whereas the estimate of an unmarried woman is equal to that of her brother (Innes, Scotland in the Middle Ages, p. 181).]

[Footnote 14: Grimm, Deutsche Rechtsalterthümer, p. 404 sqq.]

[Footnote 15: This point of view is very conspicuous in the Salic Law (Lex Salica [Herold's text], 28).]

[Footnote 16: Wilda, op. cit. p. 571. Keyser, op. cit. ii. pt. ii. 29. Brunner, Deutsche Rechtsgeschichte, ii. 614 sq. Pardessus, Loi Salique, p. 662.]

[Footnote 17: Post, Anfänge des Staats- und Rechtsleben, p. 192. Idem, Studien zur Entwicklungsgeschichte des Familienrechts, p. 119 sq. Gibbs, 'Tribes of Western Washington and North-western Oregon,' in Contributions to North American Ethnology, i. 190. Georgi, Russia, ii. 261; Vámbéry, Türkenvolk, p. 305 (Kirghiz). Decle, Three Years in Savage Africa, p. 487 (Wakamba).]

[Footnote 18: Schoolcraft, Indian Tribes of the United States, i. 277 (Creeks). Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 370. Woodthorpe, in Jour. Anthr. Inst. xxvi. 21 (Shans).]

[Footnote 19: Post, Studien zur Entwicklungsgeschichte des Familienrechts, p. 119 sq.]

[Footnote 20: Paulitschke, Ethnographie Nordost-Afrikas, p. 263.]

[Footnote 21: Loskiel, History of the Mission of the United Brethren among the Indians in North America, i. 16.]

[Footnote 22: Marsden, History of Sumatra, p. 222.]

[Footnote 23: Emin Pasha in Central Africa, p. 338.]

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As a husband often has "the power of life and death" over his wife, so we may expect to find, even more often, {422} that a master has the same power over his slave. The latter, as a rule, can hardly count on the support of his family, and when, as is frequently the case, he is a prisoner of war, the right of killing an enemy easily passes into the right of killing the slave. In the literature dealing with the lower races we repeatedly meet with the statement that the owner may kill his slave at pleasure, or that he is not accountable for killing him.[24] Yet this seems to mean rather that, if he does so, no complaint can be brought against him, or no vengeance taken on him, than that he has an unconditional moral right to put to death a slave whom he no longer cares to keep; we shall see that savage custom very commonly requires that slaves should be treated with kindness by their masters. In many cases the master is expressly denied the right of killing his slave at his own discretion.[25] Among the Bataks, the owner, though allowed to punish his slave, must take care that the latter does not succumb to the punishment.[26] Among the Rejangs, if a man kills his slave, he pays half his price as compensation to the feudal chief of the country.[27] In Madagascar "masters have full power over their slaves, excepting as to life";[28] and the same is said of the Tshi-speaking peoples of the Gold Coast.[29] The Mandingoes allow the owner to do what he likes to a prisoner of war and to a person who has lost his freedom through insolvency, but he is forbidden to kill a house-slave.[30] Among the Barea and Kunáma, by putting {423} to death a slave who is a native of the country, the master even exposes himself to the blood-revenge of the family of the slain.[31]

[Footnote 24: Monrad, Bidrag til en Skildring af Guinea-Kysten, p. 42 (Negroes of Accra). Bowdich, Mission to Ashantee, p. 258 (people of Ashanti). Ward, Five Years with the Congo Cannibals, p. 105 (Bolobo). Macdonald, Africana, i. 168 (Eastern Central Africans). Burton, Zanzibar, ii. 95 (Wanika). Cooper, Mishmee Hills, p. 238. Glimpses of the Eastern Archipelago, p. 106 (Highlanders of Palembang). Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 33 (Maoris). Gibbs, loc. cit. p. 189 (Thlinkets). Steinmetz, Studien, ii. 308 sqq.]

[Footnote 25: Steinmetz, Rechtsverhältnisse von eigeborenen Völkern in Afrika und Ozeanien, p. 43 (Banaka and Bapuku). Mademba, ibid. p. 83 (natives of the Sansanding States). Lang, ibid. p. 241 (Washambala). Desoignies, ibid. p. 278 (Msalala).]

[Footnote 26: Glimpses of the Eastern Archipelago, p. 114.]

[Footnote 27: Marsden, op. cit. p. 222.]

[Footnote 28: Ellis, History of Madagascar, i. 196.]

[Footnote 29: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 291.]

[Footnote 30: Post, Afrikanische Jurisprudenz, i. 95.]

[Footnote 31: Munzinger, Ostafrikanische Studien, p. 484.]

The murder of another person's slave is of course largely regarded as an offence against the property of the owner, but, in many cases at least, it is not exclusively looked upon in this light. Where the master himself is not allowed to kill his slave, the slave possesses the right to live in the full sense of the term. Sometimes there is in this

respect little difference between him and a freeman. Among the Beni Amer, whilst the murder of a slave who has been bought is merely compensated for by the payment of the purchase sum, the murder of a slave who belongs to his master by birth is avenged by his relatives, or, if he has none, by the master himself; should the murderer be too high a person, the matter drops, but there is no question of payment in any case.[32] Where the system of blood-money prevails, the price paid for the life of a slave is less than that paid for the life of a freeman. Among the Kirghiz the former is only half of the latter.[33] In Axim, on the Gold Coast, according to Bosman, the murderer of a slave was usually fined thirty-six crowns, whilst five hundred crowns were demanded for the murder of a free-born negro.[34]

[Footnote 32: Ibid. p. 309.]

[Footnote 33: Georgi, op. cit. ii. 261.]

[Footnote 34: Bosman, New Description of the Coast of Guinea, p. 141 sq.]

The rule that the life of a slave is held in less estimation than the life of a freeman applies to the nations of archaic culture; yet not even the master is among them in all circumstances allowed to put his slave to death. In ancient Mexico the murder of a slave, though committed by the master, was a capital offence.[35] In Corea, a slave may not be killed by his owner before the latter has obtained the permission of the board of punishments, or of the high provincial authorities.[36] According to the {424} Chinese Penal Code, a master who, instead of complaining to a magistrate privately, beats to death a slave who has been guilty of theft, adultery, or any other similar crime, shall be punished with one hundred blows. If he beats to death, or intentionally kills, a slave who has committed no crime, he shall be punished with sixty blows and one year's banishment, and the wife or husband, as also the children, of the deceased slave shall be entitled to their freedom.[37] Again, a freeman who kills another's slave shall be strangled.[38]

[Footnote 35: Bancroft, op. cit. ii. 223.]

[Footnote 36: Rockhill, 'Notes on some of the Laws, Customs, and Superstitions of Korea,' in American Anthropologist, iv. 180. Cf. Griffis, Corea, p. 239.]

[Footnote 37: Ta Tsing Leu Lee, sec. cccxiv. p. 340.]

[Footnote 38: Ibid. sec. cccxiii. p. 336.]

According to Hebrew law, a master who smites his slave so that he dies under his hand, "shall be surely punished"; but if the slave continues to live for a day or two after the assault, the master goes free on the score that the slave is "his money."[39] Muhammed strongly enjoined the duty of kindness to slaves; yet, according to Muhammedan law, the master may even kill his own slave with impunity for any offence, and incurs but a slight punishment--as imprisonment for a period at the discretion of the judge--if he kills him wantonly.[40] The price of blood for a slave is his or her value; but by the [H.]anafee law a man is obnoxious to capital punishment for the murder of another man's slave.[41]

[Footnote 39: Exodus, xxi. 20 sq.]

[Footnote 40: Lane, Manners and Customs of the Modern Egyptians, p. 115. Idem, Arabian Society in the Middle Ages, p. 251.]

[Footnote 41: Idem, Modern Egyptians, p. 119. Idem, Arabian Society, p. 18 sq.]

Among the ancient Teutons the master was irresponsible in the eye of the law as to all dealings between himself and his slave; legally the slave was on a par with the horse and the ox, and to kill him was only to inflict a certain loss upon the owner.[42] In ancient Wales the position of a slave seems to have been very similar; there was no galanas for a bondman, "only payment of his worth to his master, like the worth of

a beast."[43] Among the Greeks, in the Homeric age, the master evidently {425} could punish his slaves with death;[44] but in later times, at least at Athens, he was obliged to hand over to the magistrate any slave of his who deserved capital punishment.[45] What happened to a master who killed his own slave we do not know exactly, but at any rate he had to undergo a ceremony of purification.[46] Plato says in his 'Laws,' that if a person kills the slave of another in anger, he shall pay twice the amount of the loss to his owner.[47] But he adds, "If any one kills a slave who has done no wrong, because he is afraid that he may inform of some base and evil deeds of his own, or for any similar reason, in such a case let him pay the penalty of murder, as he would have done if he had slain a citizen."[48]

[Footnote 42: Grimm, Deutsche Rechtsalterthümer, p. 342 sqq. Brunner, Deutsche Rechtsgeschichte, i. 96. Kemble, Saxons in England, i. 208 sqq. Stemann, op. cit. p. 281 sqq. Keyser, op. cit. ii. pt. i. 289.]

[Footnote 43: Dimetian Code, iii. 3. 8.]

[Footnote 44: Odyssey, iv. 743; xix. 489 sq.]

[Footnote 45: Schmidt, Ethik der alten Griechen, ii. 217. Hermann-Blümner, Lehrbuch der griechischen Privatalterthümer, p. 88, n. 3.]

[Footnote 46: Plato, Leges, ix. 865, 868. Schmidt, op. cit. ii. 217 sq.]

[Footnote 47: Plato, Leges, ix. 868.]

[Footnote 48: Ibid. ix. 872.]

In Rome, in ancient times, the master had by law the absolute power of life and death over his slaves; and he who killed another man's slave was not criminally prosecuted, but had merely to compensate the owner for the destruction of his property.[49] Even during the Empire a slave was counted a thing, not a person; himself incapable of suffering an injuria, he was viewed as a mechanical medium only, through which an insult could be transmitted to his master.[50] Yet this doctrine was not rigidly adhered to. After the publication of the Lex Cornelia, the change was introduced that he who killed a slave belonging to somebody else could be punished for murder;[51] and later on even the master's power of life and death was restricted by law. Claudius declared that sick slaves who had been exposed by their owners in a languishing condition, and afterwards recovered, should be perfectly free and never more return to their former servitude; moreover, "if any one chose to kill at once, rather than expose, a slave, he should be liable for murder."[52] {426} By a constitution of Antoninus Pius he who put his slave to death without a sufficient cause (sine causa) was to be punished equally with him who killed the slave of another.[53] Hadrian even made an attempt to induce slave-owners to hand over to the authorities slaves who had been guilty of some capital crime, instead of themselves inflicting the punishment on the guilty.[54]

[Footnote 49: Mommsen, Römisches Strafrecht, p. 616.]

[Footnote 50: Institutiones, iv. 4. 3.]

[Footnote 51: Gaius, Institutionum juris civilis commentarii, iii. 213. Cf. Mommsen, Römisches Strafrecht, p. 616.]

[Footnote 52: Suetonius, Claudius, 25.]

[Footnote 53: Gaius, op. cit. i. 53. Institutiones, i. 8. 2.]

[Footnote 54: Spartian, Vita Hadriani, 18. Cf. Mommsen, Römisches Strafrecht, p. 617, n. 2.]

Faithful to her principle that human life is sacred, the Church made efforts to secure the life of the slave against the violence of the master; but neither the ecclesiastical nor the secular legislation gave him the same protection as was bestowed upon the free member of the Church and State. Various Councils punished the murder of a slave with

two years' excommunication only, if the slave had been killed "sine conscientia judicis"; [55] and the same punishment was adopted by some Penitentials.[56] Edgar made the penance last three years, whereas, if a freeman was killed, the penance was of seven years' duration.[57] Facts do not justify Mr. Lecky's statement that, "in the penal system of the Church, the distinction between wrongs done to a freeman, and wrongs done to a slave, which lay at the very root of the whole civil legislation, was repudiated."[58]

[Footnote 55: Concilium Agathense, A.D. 506, canon 62 (Labbe-Mansi, Sacrorum Conciliorum collectio, viii. 335). Concilium Epaonense, A.D. 517, canon 34 (ibid. viii. 563). Concilium Wormatiense, A.D. 868, canon 38 (ibid. xv. 876).]

[Footnote 56: P[oe]nitentiale Cummeani, vi. 29 (Wasserschleben, Bussordungen der abendländischen Kirche, p. 480). P[oe]nit. Pseudo-Theodori, xxi. 12 (ibid. p. 587).]

[Footnote 57: Canons enacted under Edgar, Modus imponendi p[oe]nitentiam, 4, 11 (Ancient Laws and Institutes of England, p. 405 sq.).]

[Footnote 58: Lecky, History of European Morals, ii. 66. Mr. Lecky states (ibid. ii. 66 sq.) that the Council of Illiberis excluded for ever from the communion a master who killed his slave. I have only been able to find the following enactment made by a Council held at Illiberis in the beginning of the fourth century:--"Si qua domina furore zeli accensa flagris verberaverit ancillam suam, ita ut in tertium diem animam cum cruciatu effundat; eo quod incertum sit, voluntate, an casu occiderit; si voluntate, post septem annos; si casu, post quinquennii tempora, acta legitima p[oe]nitentia, ad communionem placuit admitti" (Concilium Eliberitanum, ch. 5 [Labbe-Mansi, op. cit. ii. 6]).]

Beyond a law of Constantine, to the effect that a master {427} who put his slave to death in a non-judicial way, was to be punished as a murderer,[59] and a reiteration of some previous enactments, the Christian emperors seem to have done little to guard the life of the slave. Whilst it was provided that any master who applied to his slave certain atrocious tortures with the object of killing him should be deemed a manslayer, it was emphatically said that no charge whatever should be brought against him if the slave died under moderate punishment, or under any punishment not inflicted with the intention of killing him.[60] Arcadius and Honorius even passed a law refusing protection to a slave who should fly to a church for refuge from his master;[61] but this law was, in the West, followed by regulations of an opposite character.[62] The barbarian invasions certainly did not improve the condition of slaves, and in Teutonic countries it was only by slow degrees that the introduction and spread of a higher civilisation exercised its humanising influence on the relation between master and slave. The Visigothic Code prohibited a person from killing any of his slaves who had committed no offence.[63] According to the Capitularia, the master had to pay a penalty for causing the death of a guiltless slave, provided that he died at once; but if he survived the injury only a day or two, the master was not punishable for his deed, because the slave was his pecunia. [64] In a later period any intentional killing of an innocent slave was punished by law, but the law probably remained a dead letter.[65] In the thirteenth century Beaumanoir, the French jurisconsult, could write:--"Plus cortoise est nostre coustume envers les sers que en autre païs, car li segneur poent penre de lor sers, et à mort et à vie, toutes les fois {428} qu'il lor plest, et tant qu'il lor plet."[66] Nay, even in quite modern times, in Christian countries, where negro slavery prevailed as a recognised institution, the life of the slave was only inadequately protected by their laws.

[Footnote 59: Codex Theodosianus, ix. 12. 1.]

[Footnote 60: Ibid. ix. 12. Lecky, History of European Morals, ii. 62 sq.]

[Footnote 61: Codex Theodosianus, ix. 45. 3.]

[Footnote 62: Babington, The Influence of Christianity in promoting the Abolition of Slavery in Europe, p. 37. Biot, De l'abolition de l'esclavage ancien en Occident, p. 239.]

[Footnote 63: Lex Wisigothorum, vi. 5. 12.]

[Footnote 64: Capitularia, vi. 11 (Georgisch, Corpus Juris Germanici antiqui, col. 1513). This law is borrowed from Exodus, xxi. 20 sq.]

[Footnote 65: Grimm, Deutsche Rechtsalterthümer, p. 344 sq. Cf. Potgiesser, **Commentarii juris Germanici de statu servorum veteri perinde atqve novo, ii. 1. 10, 13, 24; iii. 6 (pp. 308, 309, 311, 312, 321, 633 sqq.).]

[Footnote 66: Beaumanoir, Les coutumes du Beauvoisis, xlv. 36, vol. ii. p. 237.]

In most of the British colonies, it was only by force of comparatively recent acts, made for the most part subsequent to the year 1797, that the same punishment was prescribed for the murder of a slave as for the murder of a free person. Prior to this period the former crime was subject only to a small pecuniary penalty, in Barbados not exceeding £15.[67] In the French colonies, according to the Code Noir, a master who killed his slave should be punished "selon l'atrocité des circonstances."[68] In all the North American Slave-States there was a time when the murder of a slave, whether by his master or a third person, was atoned for by a fine. In South Carolina this was the case as late as 1821, and only since then the wilful, malicious, and premeditated killing of a slave, by whomsoever perpetrated, was a capital offence in all the slave-holding States.[69] But this does not mean that no distinction was made between the killing of a slave and the killing of a freeman. In South Carolina, according to an enactment of 1821, he who killed a slave on a sudden heat of passion was punished simply with a fine of five hundred dollars and imprisonment not exceeding six months.[70] In the Statutes of Tennessee the law referring to the wilful murder of a slave contained the provision that it should not be extended to "any person killing any slave in the act of resistance to his lawful owner or master, or any slave dying under moderate correction";[71] and a very similar provision was made by the laws of Georgia.[72] In other words, a correction causing the death of the victim {429} was not necessarily immoderate in the eye of the law. In a still higher degree the life of the slave was endangered by another law, which prevailed universally both in the Slave-States and in the British Colonies. Neither a slave, nor a free negro, nor any descendant of a native of Africa whatever might be the shade of his complexion, could be a witness against a white person, either in a civil or criminal case.[73] This law placed the slave, who was seldom within the view of more than one white man at a time, entirely at the mercy of this individual, and its consequences were obvious. Speaking of slavery in the United States in 1853, Mr. Goodell remarks:--"Upon the most diligent inquiry and public challenge, for fifteen or twenty years past, not one single case has yet been ascertained in which, either during that time or previously, a master killing his slave, or indeed any other white man, has suffered the penalty of death for the murder of a slave." Nevertheless, murders of slaves by white men had been notoriously frequent.[74]

[Footnote 67: Stephen, Slavery of the British West India Colonies delineated, i. 36, 38.]

[Footnote 68: Code Noir, Édit donné au mois de Mars 1724, art. 39, p. 304.]

[Footnote 69: Brevard, Digest of the Public Statute Law of South Carolina, ii. 240 sq. Stroud, Laws relating to Slavery in the United States of America, p. 55 sq.]

[Footnote 70: Stroud, op. cit. p. 64.]

[Footnote 71: Caruthers and Nicholson, Compilation of the Statutes of Tennessee, p. 677.]

[Footnote 72: Prince, Digest of the Laws of the State of Georgia, p. 787.]

[Footnote 73: Brevard, op. cit. ii. 242. Stroud, op. cit. p. 106 sq. Stephen, Slavery of the British West India Colonies, i. 166, 174. In the French Colonies, also, slaves could not be legal witnesses, but their testimony might be heard by the judge, merely to serve as a suggestion, or unauthenticated information, which might throw light on the evidence of other witnesses (Code Noir, Édit du mois de Mars 1685, art. 30, p. 44).]

[Footnote 74: Goodell, American Slave Code in Theory and Practice, p. 209 sq.]

That the life of a slave is held in so little regard is due to that want of sympathy with his fate which accounts also for his unfree condition, and to the proprietary rights over him which, in consequence, have been granted to his master. For similar reasons the killing of a freeman by a slave, especially if the victim be his owner, is commonly punished more severely than if the same act were done by a free person. The less the sympathy felt for an individual, the more intense is the resentment which he excites by offensive behaviour. According to the Chinese Penal Code, a slave who designedly kills, or strikes so as to kill, his master, shall suffer death "by a slow and painful execution."[75] Plato says that, if a slave voluntarily murders a freeman, {430} the public executioner shall lead him in the direction of the sepulchre of the dead man, to a place whence he can see the tomb, and after inflicting upon him as many stripes as the complainant shall order, put the murderer, if he survives the scourging, to death.[76] Though the slave has committed the act in a fit of passion, the relatives of the deceased shall nevertheless be under an obligation to kill him, and this may be done in any manner they please; [77] nay, even in self-defence a slave is not allowed to kill a freeman, any more than a son is allowed to kill his father.[78] At Rome, also, a slave was more heavily punished for the commission of homicide than a freeman.[79] Says the ancient jurist, "Maiores nostri in omni supplicio severius servos quam liberos famosos quam integræ famæ homines punierunt."[80]

[Footnote 75: Ta Tsing Leu Lee, sec. cccxiv. p. 338.]

[Footnote 76: Plato, Leges, ix. 872.]

[Footnote 77: Ibid. ix. 868.]

[Footnote 78: Ibid. ix. 869.]

[Footnote 79: Mommsen, Römisches Strafrecht, p. 631 sq.]

[Footnote 80: Digesta, xlviii. 19. 28. 16.]

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In the estimate of life a distinction is made not only between freemen and slaves, but between different classes of freemen. Among certain peoples a person who kills a chief is punished with death, though murder is not generally a capital offence.[81] Where the system of compensation prevails, the blood-price very frequently varies according to the station or rank of the victim.[82] Among the Rejangs of Sumatra the compensation for the murder of a superior chief is five hundred dollars, for that of an inferior chief two hundred and fifty dollars; for that of a common person, man or boy, eighty dollars; for that of a common person, woman or girl, one hundred and fifty dollars; for the legitimate child or wife of a superior chief, two hundred and fifty dollars.[83] The body of every Ossetian has {431} a settled value in the eyes of the judges, which seems to be fixed by public opinion; thus the father of a family bears a higher value than an unmarried man, and a noble is rated at twice as much as an ordinary freeman.[84] In Eastern Tibet the murderer of a man of the upper class is fined 120 bricks of tea, the murderer of a middle-class man only 80, and so on down through the social scale, the life of a beggar being valued at a nominal amount only; but if the victim was a lama, the murderer has to pay a much higher price, possibly 300 bricks.[85] According to the doctrine of modern Buddhism, "when the life of a man is taken, the demerit

increases in proportion to the merit of the person slain."[86] The laws of the Brets and Scots estimated the life of the king of Scots at a thousand cows; that of an earl's son, or a thane, at a hundred cows; that of a villein, at sixteen cows.[87] A similar system prevailed among the Celtic peoples generally,[88] as also among the Teutons. A man's wergeld, or life-price, varied according to his rank, birth, or office; and so minutely was it graduated, that a great part of many Teutonic laws was taken up by provisions fixing its amount in different cases.[89] In English laws of the Norman age the wer of a villanus is still only reckoned at £4, whilst that of the homo plene nobilis is £25.[90]

[Footnote 81: Woodthorpe, in Jour. Anthr. Inst. xxvi. 21 (Shans). Shooter, Kafirs of Natal, p. 103.]

[Footnote 82: Maclean, Compendium of Kafir Laws and Customs, p. 144. Casalis, Basutos, p. 225. Ellis, Tshi-speaking Peoples of the Gold Coast, p. 301. Munzinger, Ostafrikanische Studien, pp. 242 sq. (Marea), 314 (Beni Amer). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 145 (Lampongers of Sumatra). Modigliani, Viaggio a Nías, p. 494. Richardson, Arctic Searching Expedition, i. 386 (Kutchin). Gibbs, loc. cit. p. 190 (Indians of Western Washington and North-western Oregon). Paget, Hungary and Transylvania, ii. 411 n. (Hungarians).]

[Footnote 83: Crawfurd, History of the Indian Archipelago, iii. 112.]

[Footnote 84: von Haxthausen, Transcaucasia, p. 409. Kovalewsky, Coutume contemporaine, p. 355 sqq.]

[Footnote 85: Rockhill, Land of the Lamas, p. 221.]

[Footnote 86: Hardy, Manual of Budhism, p. 478.]

[Footnote 87: Innes, Scotland in the Middle Ages, p. 180 sq.]

[Footnote 88: Ancient Laws of Ireland, iii. 103, &c. Skene, Celtic Scotland, iii. 152. de Valroger, Les Celtes, p. 471.]

[Footnote 89: Grimm, Deutsche Rechtsalterthümer, pp. 272-275, 289. Brunner, Deutsche Rechtsgeschichte, i. 104, 105, 107, 108, 224, 247 sqq. Kemble, Saxons in England, i. 276 sqq.]

[Footnote 90: Leges Henrici I. lxx. 1; lxxvi. 4. Cf. Laws of William the Conqueror, i. 8.]

The magnitude of the crime, however, may depend not only on the rank of the victim, but on the rank of the manslayer as well.[91] Among the Philippine Islanders, "murder committed by a slave was punished with death--committed by a person of rank, was indemnified by {432} payments to the injured family."[92] In Fijian estimation, says Mr. Williams, offences "are light or grave according to the rank of the offender. Murder by a chief is less heinous than a petty **larceny committed by a man of low rank."[93] Among the E[(w]e-speaking peoples of the Slave Coast, "in cases of murder and manslaughter, if the homicide be of rank superior to the person killed, he pays the compensation demanded by the family of the latter, or, in default of payment, forfeits his own life. If the homicide be of equal rank with the person killed, the family of the deceased have the right to demand his life, though compensation is usually accepted; but when he is lower in rank his life is nearly always forfeited."[94] Very similar rules prevail among the Tshi-speaking peoples of the Gold Coast.[95] Among the Marea, if a nobleman kills another nobleman, the family of the deceased generally take revenge on him; whereas, if a commoner kills a nobleman, he is not only executed himself, but his property is confiscated and his nearest relatives become subject to the murdered man's family.[96] According to the religious law of Brahmanism, the enormity of all crimes depends on the caste of him who commits them, and on the caste of him against whom they are committed.[97] If a Brâhmana slays a Brâhmana, the king shall brand him on

the forehead with a heated iron and banish him from his realm, but if a man of a lower caste murders a Brâhmana, he shall be punished with death and the confiscation of all his property.[98] If such a person slays a man of equal or lower caste, other suitable punishments shall be inflicted upon him.[99] A fine of a thousand cows is the penalty for slaying a Kshatriya, that of a hundred for slaying a Vaisya, and that of ten cows only for slaying a Sûdra.[100] In Rome, also, at a certain period of its history, the {433} offence was magnified in proportion to the insignificance of the offender. During the Republic there was no law sanctioning such a distinction, with reference to crimes committed by free citizens; but from the beginning of the Empire, the citizens were divided into privileged classes and commonalty--uterque ordo and plebs--and, whilst a commoner who was guilty of murder was punished with death, a murderer belonging to the privileged classes was generally punished with deportatio only.[101] In the Middle Ages a similar privilege was granted by Italian and Spanish laws to manslayers of noble birth.[102]

[Footnote 91: These two principles do not always go together. Among the Rejangs the amount of the blood-money is not proportioned to the rank and ability of the murderer, but regulated only by the quality of the person murdered (Marsden, op. cit. p. 246).]

[Footnote 92: Bowring, Visit to the Philippine Islands, p. 123.]

[Footnote 93: Williams and Calvert, Fiji, p. 22.]

[Footnote 94: Ellis, E[(w]e-speaking Peoples, p. 223.]

[Footnote 95: Idem, Tshi-speaking Peoples, p. 301.]

[Footnote 96: Munzinger, Ostafrikanische Studien, p. 242, sq. Cf. ibid. p. 314 (Beni Amer).]

[Footnote 97: Hopkins, Religions of India, p. 263.]

[Footnote 98: Baudháyana, i. 10. 18. 18 sq.]

[Footnote 99: Ibid. i. 10. 18. 20.]

[Footnote 100: Ibid. i. 10. 19. 1 sq.]

[Footnote 101: Mommsen, Römisches Strafrecht, pp. 650, 1032 sqq.]

[Footnote 102: Du Boys, Histoire du droit criminel des peuples modernes, ii. 402. Idem, Histoire du droit criminel de l'Espagne, pp. 357, 359. Cf. ibid. p. 635 sq.]

In a society which is divided into different classes, persons belonging to a higher class are naturally apt to sympathise more with their equals than with their inferiors. An injury inflicted on one of the former tends to arouse in them a higher degree of sympathetic resentment than a similar injury inflicted on one of the latter. So, also, their resentment towards the criminal will, ceteris paribus, be more intense if he is a person of low rank than if he is one of themselves. Where the superior class, as was originally the case everywhere, are the leaders of such a society, their feelings will find expression in its customs and laws, and thus moral distinctions will arise which are readily recognised by the common people also, owing to the admiration with which they look up to those above them. But in a progressive society this state of things will not last. The different classes gradually draw nearer to each other. The once all-powerful class loses much of its exclusiveness, as well as of its importance and influence. Sympathy expands. In consequence, distinctions which were formerly sanctioned by custom and law come to be regarded as unjust prerogatives, worthy only of abolition. And it is at last admitted that each member of the society is born with an equal claim to the most sacred of all human rights, the right to live.

Chapter XIX — Human Sacrifice

IT still remains for us to consider some particular cases in which destruction of human life is sanctioned by custom or law.

Men are killed with a view to gratifying the desires of superhuman beings. We meet with human sacrifice in the past history of every so-called Aryan race.[1] It occurred, at least occasionally, in ancient India, and several of the modern Hindu sects practised it even in the last century.[2] There are numerous indications that it was known among the early Greeks.[3] At certain times it prevailed in the Hellenic cult of Zeus;[4] indeed, in the second century after Christ men seem still to have been sacrificed to Zeus Lycæus in Arcadia.[5] To the historic age likewise belongs the sacrifice of the three Persian prisoners of war whom Themistocles was compelled to slay before the battle of Salamis.[6] In Rome, also, human sacrifices, though {435} exceptional, were not unknown in historic times.[7] Pliny records that in the year 97 B.C. a decree forbidding such sacrifices was passed by the Roman Senate,[8] and afterwards the Emperor Hadrian found it necessary to renew this prohibition.[9] Porphyry asks, "Who does not know that to this day, in the great city of Rome, at the festival of Jupiter Latiaris, they cut the throat of a man?"[10] And Tertullian states that in North Africa, even to the proconsulship of Tiberius, infants were publicly sacrificed to Saturn.[11] Human sacrifices were offered by Celts,[12] Teutons,[13] and Slavs;[14] by the ancient Semites[15] and Egyptians;[16] by the Japanese in early days;[17] and, in the New World, by the Mayas[18] and, to a frightful extent, by the Aztecs. "Scarcely any author," says Prescott in his 'History of the Conquest of Mexico,' "pretends to estimate the yearly sacrifices throughout the empire at less than twenty thousand, and some carry the number as high as fifty thousand."[19] The same practice is imputed by Spanish writers to the Incas of Peru, and probably not without good reason.[20] Before their rule, at all events, it {436} was of frequent occurrence among the Peruvian Indians.[21] It also prevailed, or still prevails, among the Caribs[22] and some North American tribes;[23] in various South Sea islands, especially Tahiti and Fiji;[24] among certain tribes in the Malay Archipelago;[25] among several of the aboriginal tribes of India;[26] and very commonly in Africa.[27]

[Footnote 1: See Hehn, Wanderings of Plants and Animals from their First Home, p. 414 sqq.]

[Footnote 2: Weber, Indische Streifen, i. 54 sqq. Wilson, 'Human Sacrifices in the Ancient Religion of India,' in Works, ii. 247 sqq. Oldenberg, Religion des Veda, p. 363 sqq. Barth, Religions of India, p. 57 sqq. Monier Williams, Br[=a]hmanism and Hind[=u]ism, p. 24. Hopkins, Religions of India, pp. 198, 363. Rájendralála Mitra, Indo-Aryans, ii. 69 sqq. Crooke, Popular Religion and Folk-Lore of Northern India, ii. 167 sqq. Chevers, Manual of Medical Jurisprudence for India, p. 396 sqq.]

[Footnote 3: See Geusius, Victimæ Humanæ, passim; von Lasaulx, Sühnofper der Griechen und Römer, passim; Farnell, Cults, of the Greek States, i. 41 sq.; Stengel, Die griechischen Kultusaltertümer, p. 114 sqq.]

[Footnote 4: Cf. Farnell, op. cit. i. 93; Stengel, op. cit. p. 116.]

[Footnote 5: Pausanias, viii. 38. 7.]

[Footnote 6: Plutarch, Themistocles, 13.]

[Footnote 7: Idem, Questiones Romanæ, 83. See Landau, in Am Ur-Quell, iii. 1892, p. 283 sqq.]

[Footnote 8: Pliny, Historia naturalis, xxx. 3.]

[Footnote 9: Porphyry, De abstinentia ab esu animalium, ii. 56.]

[Footnote 10: Ibid. ii. 56.]

[Footnote 11: Tertullian, Apologeticus, 9 (Migne, Patrologiæ cursus, i. 314).]

[Footnote 12: Cæsar, De bello gallico, vi. 16. Tacitus, Annales, xiv. 30. Diodorus Siculus, Bibliotheca, v. 31, p. 354. Pliny, Historia naturalis, xxx. 4. Strabo, iv. 5, p. 198. Joyce, Social History of Ancient Ireland, i. 281 sqq.]

[Footnote 13: Tacitus, Germania, 9. Adam of Bremen, Gesta Hammaburgensis ecclesiæ pontificum, iv. 27 (Migne, op. cit. cxlvi. 644). Grimm, Teutonic Mythology, i. 44 sqq. Vigfusson and Powell, Corpus Poeticum Boreale, i. 409 sq. Freytag, 'Riesen und Menschenopfer in unsern Sagen und Märchen,' in Am Ur-Quell, i. 1890, pp. 179-183, 197 sqq.]

[Footnote 14: Mone, Geschichte des nordischen Heidenthums, i. 119, quoted by Frazer, Golden Bough, ii. 52. Krauss, in Am Ur-Quell, vi. 1896, p. 137 sqq. (Servians).]

[Footnote 15: Ghillany, Die Menschenopfer der alten Hebräer, passim. Robertson Smith, Religion of the Semites, p. 362 sqq. Wellhausen, Reste arabischen Heidentums, p. 115 sq. von Kremer, Studien zur vergleichenden Culturgeschichte, i. 42 sqq. Chwolsohn, Die Ssabier und der Ssabismus, ii. 147 sqq.]

[Footnote 16: Amélineau, L'évolution des idées morales dans l'Égypte Ancienne, p. 12.]

[Footnote 17: Griffis, Religions of Japan, p. 75. Lippert, Seelencult, p. 79.]

[Footnote 18: Bancroft, Native Races of the Pacific States, ii. 704, 725.]

[Footnote 19: Prescott, History of the Conquest of Mexico, p. 38. Cf. Clavigero, History of Mexico, i. 281; Acosta, Natural and Moral History of the Indies, ii. 346.]

[Footnote 20: Acosta, op. cit. ii. 344. de Molina, 'Fables and Rites of the Yncas,' in Narratives of the Rites and Laws of the Yncas, pp. 55, 56, 59. According to Cieza de Leon (Segunda parte de la Crónica del Perú, p. 100), the practice of human sacrifice has been much exaggerated by Spanish writers, but he does not deny its existence among the Incas; nay, he gives an account of such sacrifices (ibid. p. 109 sqq.). Sir Clements Markham seems to attach undue importance to the statement of Garcilasso de la Vega that human victims were never sacrificed by the Incas (First Part of the Royal Commentaries of the Yncas, i. 130, 131, 139 sqq. n. [dagger]). Cf. Prescott, History of the Conquest of Peru, p. 50 sq. n. 3.]

[Footnote 21: Garcilasso de la Vega, op. cit. i. 50, 130.]

[Footnote 22: Müller, Geschichte der Amerikanischen Urreligionen, p. 212 sq.]

[Footnote 23: Ibid. p. 142. sqq. Réville, Religions des peuples non-civilisés, i. 249 sq. Dorman, Origin of Primitive Superstitions, p. 208 sqq.]

[Footnote 24: Schneider, Naturvölker, i. 191 sq. Fornander, Account of the Polynesian Race, i. 129. Ellis, Polynesian Researches, i. 106, 346-348, 357 (Society Islanders). Williams, Missionary Enterprises in the South Sea Islands, p. 548 sq. (especially the Hervey Islanders and Tahitians). von Kotzebue, Voyage of Discovery, iii. 248 (Sandwich Islanders). Lisiansky, Voyage round the World, pp. 81 sq. (Nukahivans), 120 (Sandwich Islanders). Gill, Myths and Songs from the South Pacific, p. 289 sqq. (Mangaians). Williams and Calvert, Fiji, pp. 188, 195; Wilkes, Narrative of the U.S. Exploring Expedition, iii. 97; Hale, U.S. Exploring Expedition, Vol. VI. Ethnography and Philology, p. 57 (Fijians). Codrington, Melanesians, p. 134 sqq.]

[Footnote 25: Ling Roth, Natives of Sarawak and British North Borneo, ii. 215 sqq. Bock, Head-Hunters of Borneo, p. 218 sq. (Dyaks).]

[Footnote 26: Woodthorpe, in Jour. Anthr. Inst. xxvi. 24 (Shans, &c.). Colquhoun, Amongst the Shans, p. 152 (Steins inhabiting the south-east of Indo-China). Lewin, Wild

Races of South-Eastern India, p. 244 (Pankhos and Bunjogees). Godwin-Austen, in Jour. Anthr. Inst. ii. 394 (Garo hill tribes). Dalton, Descriptive Ethnology of Bengal, pp. 147 (Bhúiyas), 176 (Bhúmij), 281 (Gonds), 285 sqq. (Kandhs). Hislop, Aboriginal Tribes of the Central Provinces, p. 15 sq. (Gonds). Macpherson, Memorials of Service in India, p. 113 sq. Campbell, Wild Tribes of Khondistan, passim (Kandhs).]

[Footnote 27: Schneider, Religion der afrikanischen Naturvölker, p. 118. Reade, Savage Africa, p. 52 (Dahomans, &c.). Ling Roth, Great Benin, p. 63 sqq. Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 117 sqq. Idem, Yoruba-speaking Peoples of the Slave Coast, p. 296. Idem, Tshi-speaking Peoples of the Gold Coast, p. 169 sqq. Cruickshank, Eighteen Years on the Gold Coast, ii. 173. Schoen and Crowther, Expedition up the Niger, p. 48 sq. (Ibos). Arnot Garenganze, p. 75 (Barotse). Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of the Cape of Good Hope, p. 97 (Marimos, a Bechuana tribe). Macdonald, Africana, i. 96 sq. (Eastern Central Africans). Ellis, History of Madagascar, i. 422; Sibree, The Great African Island, p. 303 (Malagasy).]

From this enumeration it appears that the practice of human sacrifice cannot be regarded as a characteristic of savage races. On the contrary, it is found much more {437} frequently among barbarians and semi-civilised peoples than among genuine savages, and at the lowest stages of culture known to us it is hardly heard of. Among some peoples the practice has been noticed to become increasingly prevalent in the course of time. In the Society Islands "human sacrifices, we are informed by the natives, are comparatively of modern institution: they were not admitted until a few generations antecedent to the discovery of the islands**";[28] and in ancient legends there seems to be certain indications that they were once prohibited in Polynesia.[29] In India human sacrifices were apparently much rarer among the Vedic people than among the Brahmanists of a later age.[30] We are told that such sacrifices were adopted by the Aztecs only in the beginning of the fourteenth century, about two hundred years before the conquest, and that, "rare at first, they became more frequent with the wider extent of their empire; till, at length, almost every festival was closed with this cruel abomination."[31] Of the Africans Mr. Winwood Reade remarks, "The more powerful the nation the grander the sacrifice."[32]

[Footnote 28: Ellis, Polynesian Researches, i. 106.]

[Footnote 29: Fornander, op. cit. i. 129.]

[Footnote 30: Wilson, Works, ii. 268 sq.]

[Footnote 31: Prescott, History of the Conquest of Mexico, p. 36.]

[Footnote 32: Reade, Savage Africa, p. 52.]

Men offer up human victims to their gods because they think that the gods are gratified by such offerings. In many cases the gods are supposed to have an appetite for human flesh or blood.[33] The Fijian gods are described as "delighting in human flesh."[34] Among the Ooryahs of India the priest, when offering a human sacrifice to the war-god Manicksoro, said to the god, "The sacrifice we now offer you must eat."[35] Among the Iroquois, when an enemy was tortured at the stake, the savage executioners leaped around him crying, "To thee, Arieskoi, great spirit, we slay this victim, that thou mayest eat his flesh and be moved thereby to give us henceforth luck and {438} victory over our foes."[36] Among the ancient nations of Central America the blood and heart of the human victims offered in sacrifice were counted the peculiar portion of the gods.[37] Thus, in Mexico, the high-priest, after cutting open the victim's breast, tore forth the yet palpitating heart, offered it first to the sun, threw it then at the feet of the idol, and finally burned it; sometimes the heart was placed in the mouth of the idol with a golden spoon, and its lips were anointed with the victim's blood.[38]

[Footnote 33: See Lippert, Seelencult, p. 77 sqq.; Schneider, Naturvölker, i. 190.]

[Footnote 34: Williams and Calvert, op. cit. p. 195.]

[Footnote 35: Campbell, Wild Tribes of Khondistan, p. 211. Cf. Macpherson, Memorials of Service in India, p. 120 (Kandhs).]

[Footnote 36: Müller, Geschichte der Amerikanischen Urreligionen, p. 142.]

[Footnote 37: Bancroft, op. cit. ii. 307, 310, 311, 707 sqq.]

[Footnote 38: Clavigero, op. cit. i. 279.]

But the human victim is not always, as has been erroneously supposed,[39] intended to serve the god as a food-offering. The Tshi-speaking peoples of the Gold Coast, as Major Ellis observes, maintain that their gods require not only food, but attendants; "the ghosts of the human victims sacrificed to them are believed to pass at once into a condition of ghostly servitude to them, just as those sacrificed at the funerals of chiefs are believed to pass into a ghostly attendance."[40] Cieza de Leon mentions the prevalence of a similar belief among the ancient Peruvians. At the hill of Guanacaure, "on certain days they sacrificed men and women, to whom, before they were put to death, the priest addressed a discourse, explaining to them that they were going to serve that god who was being worshipped."[41]

[Footnote 39: Réville, Hibbert Lectures on the Native Religions of Mexico and Peru, p. 75 sq. Idem, Prolegomena of the History of Religions, p. 132. Trumbull, Blood Covenant, p. 189. Steinmetz, Endokannibalismus, p. 60, n. 1. Schrader, Reallexikon der indogermanischen Altertumskunde, p. 603.]

[Footnote 40: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 169.]

[Footnote 41: Cieza de Leon, Segunda parte de Crónica del Perú, p. 109.]

Moreover, an angry god may be appeased simply by the death of him or those who aroused his anger, or of some representative of the offending community, or of somebody belonging to the kin of the offender. Among the E[(w]e-speaking peoples of the Slave Coast, "in the case of human victims the gods are not believed to devour the {439} souls; and as these souls are, by the majority of the natives, believed to proceed to Dead-land like all others, the object of human sacrifice seems to be to gratify or satiate the malignancy of the gods at the expense of chosen individuals, instead of leaving it to chance--the victims are in fact slain for the benefit of the community at large."[42] One reason why the human victims are so frequently criminals, is no doubt the intention of appeasing the god by offering up to him an individual who is hateful to him. The Sandwich Islanders "sacrifice culprits to their gods, as we sacrifice them in Europe to justice."[43] Among the Teutons the execution of a criminal was, in many cases at least, a sacrifice to the god whose peculiar cult had been offended by the crime.[44] Thus the Frisian law describes as an immolation to the god the punishment of one who violates his temple.[45] In ancient Rome the corn thief, if he was an adult, was hanged as an offering to Ceres;[46] and Ovid tells us that a priestess of Vesta who had been false to her vows of chastity was sacrificed by being buried alive in the earth, Vesta and Tellus being the same deity.[47] In consequence of the sacrilege of Menalippus and Comætho, who had polluted a temple of Artemis by their amours, the Pythian priestess ordained that the guilty pair should be sacrificed to the goddess, and that, besides, the people should every year sacrifice to her a youth and a maiden, the fairest of their sex.[48] The Hebrew cherem, or ban, was originally applied to malefactors and other enemies of Yahveh, and sometimes also to their possessions. "Cherem," says Professor Kuenen, "is properly dedication to Yahveh, which in reality amounted to destruction or annihilation. The persons who were {440} 'dedicated,' generally by a solemn vow, to Yahveh, were put to death, frequently by fire, whereby the resemblance to an ordinary

burnt-offering was rendered still more apparent; their dwellings and property were also consumed by fire; their lands were left uncultivated for ever. Such punishments were very common in the ancient world. But in Israel, as elsewhere, they were at the same time religious acts."[49] The sacrifice of offenders has, in fact, survived in the Christian world, since every execution performed for the purpose of appeasing an offended and angry god may be justly called a sacrifice.[50]

[Footnote 42: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 119.]

[Footnote 43: von Kotzebue, op. cit. iii. 248. Cf. Lisiansky, op. cit. 120.]

[Footnote 44: von Amira, in Paul's Grundriss der germanischen Philologie, ii. pt. ii. 177. Brunner, Deutsche Rechtsgeschichte, ii. 587, 684 sq. Vigtusson and Powell, op. cit. i. 410. Gummere, Germanic Origins, p. 463.]

[Footnote 45: Lex Frisionum, Additio sapientium, 12.]

[Footnote 46: Granger, Worship of the Romans, p. 260.]

[Footnote 47: Ovid, Fasti, vi. 457 sq. Cf. Mommsen, Römisches Strafrecht, p. 902.]

[Footnote 48: Pausanias, vii. 19. 4.]

[Footnote 49: Kuenen, Religion of Israel, i. 290 sq.]

[Footnote 50: See supra, p. 197 sq. For various instances of expiatory human sacrifice, involving vicarious atonement, see supra, p. 66 sq.]

It is impossible to discover in every special case in what respect the worshippers believe the offering of a fellow-creature to be gratifying to the deity. Probably they have not always definite views on the subject themselves. They know, or believe, that on some certain occasion, they are in danger of losing their lives; they attribute this to the designs of a supernatural being; and, by sacrificing a man, they hope to gratify that being's craving for human life, and thereby avert the danger from themselves. That this principle mainly underlies the practice of human sacrifice appears from the circumstances in which such sacrifices generally occur.

Human victims are often offered in war, before a battle, or during a siege.

Cæsar wrote of the Gauls, "They who are engaged in battles and dangers, either sacrifice men as victims, or vow that they will sacrifice them . . . ; because they think that unless the life of a man be offered for the life of a man, the mind of the immortal gods cannot be rendered propitious."[51] The Lusitanians sacrificed a man and a horse at the commencement of a military enterprise.[52] Before going to war, or before the beginning of a battle, or during a siege, the Greeks offered a human victim to ensure victory.[53] When hard-pressed in battle, {441} the King of Moab sacrificed his eldest son as a burnt offering on the wall.[54] In times of great calamities, such as war, the Phenicians sacrificed some of their dearest friends, who were selected by votes for this purpose.[55] During a battle with king Gelo of Syracuse, the general Hamilcar sacrificed innumerable human victims, from dawn to sunset;[56] and when Carthage was reduced to the last extremities, the noble families were compelled to give up two hundred of their sons to be offered to Baal.[57] In Hindu scriptures and traditions success in war is promised to him who offers a man in sacrifice.[58] In Jeypore "the blood-red god of battle" is propitiated by human victims. "Thus, on the eve of a battle, or when a new fort, or even an important village is to be built, or when danger of any kind is to be averted, this sanguinary being must be propitiated with human blood."[59] In Great Benin human blood was shed in a case of common danger when an enemy was at the gate of the city.[60] The Yorubas sacrifice men in times of national need.[61] Among the E[(w]e-speaking peoples of the Slave Coast, such sacrifices "are ordinarily only made in time of war, pestilence, or great calamity."[62] The Tahitians offered human sacrifices in seasons of war, or when war was in agitation.[63]

[Footnote 51: Cæsar, De bello gallico, vi. 16.]

[Footnote 52: Livy, Epitome, 49.]

[Footnote 53: Pausanias, iv. 9. 4 sqq.; ix. 17. 1. Plutarch, Themistocles, 13. Idem, Aristides, 9. Idem, Pelopidas, 21 sq. Lycurgus, Oratio in Leocratem, (ch. 24) 99. Apollodorus, Bibliotheca, iii. 15. 4. Porphyry, De abstinentia ab esu animalium, ii. 56. Geusius, op. cit. i. ch. 16 sq. Stengel, op. cit. p. 115 sq.]

[Footnote 54: 2 Kings, iii. 27.]

[Footnote 55: Porphyry, op. cit. ii. 56.]

[Footnote 56: Herodotus, vii. 167.]

[Footnote 57: Diodorus Siculus, xx. 14.]

[Footnote 58: Chevers, op. cit. p. 399.]

[Footnote 59: Campbell, Wild Tribes of Khondistan, p. 52.]

[Footnote 60: Ling Roth, Great Benin, p. 72.]

[Footnote 61: Ellis, Yoruba-speaking People of the Slave Coast, p. 296.]

[Footnote 62: Idem, E[(w]e-speaking Peoples of the Slave Coast, p. 117.]

[Footnote 63: Ellis, Polynesian Researches, i. 276 sqq., 346.]

After a victory, captured enemies are sacrificed to the god to whose assistance the success is ascribed. This sacrifice has been represented as a thank-offering;[64] but, in many cases at least, it seems to be offered either to fulfil a vow previously made, or to induce the god to continue his favours for the future.[65] Among the Kayans of Borneo it is the custom that, when captives are brought to an enemy's country, "one should suffer death, to bring prosperity and abolish the curse of the enemy in their lands."[66]

[Footnote 64: Diodorus Siculus, xx. 65 (Carthaginians). de Molina, loc. cit. p. 59 (Incas); &c.]

[Footnote 65: Ellis, Tshi-speaking Peoples, p. 170. Cruickshank, op. cit. ii. 173. Dubois, Character, Manners, and Customs of the People of India, p. 488. Jordanes, De origine actibusque Getarum, 5 (41). Cf. Jephthah's vow (Judges, xi. 30 sqq.).]

[Footnote 66: Brook, Ten Years in Saráwak, ii. 304 sq.]

Human sacrifices are offered for the purpose of stopping or preventing epidemics.

{442} The Phenicians sacrificed "some of their dearest friends," not only in war, but in times of pestilence.[67] In similar circumstances the ancient Greeks had recourse to human sacrifices.[68] In seasons of great peril, as when a pestilence was raging, the ancient Italians made a vow that they would sacrifice every living being that should be born in the following spring.[69] In West Gothland, in Sweden, the people decreed a human sacrifice to stay the digerdöd, or Plague, hence two beggar children, having just then come in, were buried alive.[70] In Fur, in Denmark, there is a tradition that, for the same purpose, a child was interred alive in the burial ground.[71] Among the Chukchi, in 1814, when a sudden and violent disease had broken out and carried off both men and reindeer, the Shamans, after having had recourse in vain to their usual conjurations, determined that one of the most respected chiefs must be sacrificed to appease the irritated spirits.[72] In Great Benin, "when the doctors declared a man had died owing to Ogiwo, if they think an epidemic imminent, they can tell Overami [the king] that Ogiwo vex. Then he can take a man and a woman, all the town can fire guns and beat drums. The man and woman are brought out, and the head Jujuman can make this prayer: 'Oh, Ogiwo, you are very big man; don't let any sickness come for Ado. Make all farm good, and every woman born man son.'"[73] In the same country twelve men, besides various animals, were offered yearly on the anniversary of the death of Adolo, king Overami's father. King Overami, calling his father loudly by name, spoke as follows: "Oh, Adolo, our father, look after all Ado [that is, Great Benin], don't let any

sickness come to us, look after me and my people, our slaves, cows, goats, and fowls, and everything in the farms."[74]

[Footnote 67: Porphyry, op. cit. ii. 56.]

[Footnote 68: Geusius, op. cit. i. ch. 13. Stengel, op. cit. p. 116. Frazer, Golden Bough, iii. 125 sq.]

[Footnote 69: Festus, De verborum significatione, 'Ver sacrum,' Müller's edition, p. 379. Nonius Marcellus, De proprietate sermonis, 'Versacrum,' p. 522. Servius, In Virgilii Æneidos, vii. 796.]

[Footnote 70: Afzelius, Swenska Folkets Sago-Häfder, iv. 181.]

[Footnote 71: Nyrop, Romanske Mosaiker, p. 69, n. 1.]

[Footnote 72: von Wrangell, Expedition to the Polar Sea, p. 122 sq.]

[Footnote 73: Moor and Roupell, quoted by Read and Dalton, Antiquities from the City of Benin, p. 7; also by Ling Roth, Great Benin, p. 71 sq.]

[Footnote 74: Moor and Roupell, quoted by Ling Roth, op. cit. p. 70 sq.; also by Read and Dalton, op. cit. p. 6.]

The sacrifice of human victims is resorted to as a method of putting an end to a devastating famine.

{443} Instances of this practice are reported to have occurred among the ancient Greeks[75] and Phenicians.[76] In a grievous famine, after other great sacrifices, of oxen and of men, had proved unavailing, the Swedes offered up their own king Dómaldi.[77] Chinese annals tell us that there was a great drought and famine for seven years after the accession of T'ang, the noble and pious man who had overthrown the dynasty of Shang. It was then suggested at last by some one that a human victim should be offered in sacrifice to Heaven, and prayer be made for rain, to which T'ang replied, "If a man must be the victim I will be he."[78] Up to quite recent times, the priests of Lower Bengal have, in seasons of scarcity, offered up children to Siva; in the years 1865 and 1866, for instance, recourse was had to such sacrifices in order to avert famine.[79]

[Footnote 75: Pausanias, vii. 19. 3 sq. Diodorus Siculus, iv. 61. 1 sqq. Geusius, op. cit. i. ch. 14.]

[Footnote 76: Porphyry, op. cit. ii. 56.]

[Footnote 77: Snorri Sturluson, 'Ynglingasaga,' 15, in Heimskringla, i. 30.]

[Footnote 78: Legge, Religions of China, p. 54.]

[Footnote 79: Hunter, Annals of Rural Bengal, i. 128.]

For people subsisting on agriculture a failure of crops means starvation and death, [80] and is, consequently, attributed to the murderous designs of a superhuman being, such as the earth spirit, the morning star, the sun, or the rain-god. By sacrificing to that being a man, they hope to appease its thirst for human blood; and whilst some resort to such a sacrifice only in case of actual famine, others try to prevent famine by making the offering in advance. This I take to be the true explanation of the custom of securing good crops by means of human sacrifice, of which many instances have been produced by Dr. Frazer.[81] There are obvious links between this custom and that of the actual famine-sacrifice. Thus the ancient Peruvians sacrificed children after harvest, when they prepared to make ready the land for the next year, not every year, however, but "only when the weather was not good, and seasonable."[82] In Great Benin, "if there is too much {444} rain, then all the people would come from farm and beg Overami [the king] to make juju, and sacrifice to stop the rain. Accordingly a woman was taken, a prayer made over her, and a message saluting the rain god put in her mouth, then she was clubbed to death and put up in the execution tree so that the rain might see. . . . In the same way if there is too much sun so that there is a danger of the crops spoiling,

Overami can sacrifice to the Sun God."[83] The principle of substitution admits of a considerable latitude in regard to the stage of danger at which the offering is made; the danger may be more imminent, or it may be more remote. This holds good of various kinds of human sacrifice, not only of such sacrifices as are intended to influence the crops. I am unable to subscribe to the hypothesis cautiously set forth by Dr. Frazer, that the human victim who is killed for the purpose of ensuring good crops is regarded as a representative of the corn-spirit and is slain as such. So far as I can see, Dr. Frazer has adduced no satisfactory evidence in support of his supposition; whereas a detailed examination of various cases mentioned by him in connection with it indicates that they are closely related to human sacrifices offered on other occasions, and explicable from the same principle, that of substitution.

[Footnote 80: Cf. Sleeman, Rambles and Recollections, i. 204 sqq.:--"In India, unfavourable seasons produce much more disastrous consequences than in Europe. . . . More than three-fourths of the whole population are engaged in the cultivation of the land, and depend upon its annual returns for subsistence. . . . Tens of thousands die here of starvation, under calamities of season, which in Europe would involve little of suffering to any class."]

[Footnote 81: Frazer, Golden Bough, ii. 238 sqq.]

[Footnote 82: Herrera, op. cit. ii. 111.]

[Footnote 83: Moor and Roupell, quoted by Read and Dalton, op. cit. p. 7; also by Ling Roth, Great Benin, p. 71.]

"The best known case of human sacrifices, systematically offered to ensure good crops," says Dr. Frazer, "is supplied by the Khonds or Kandhs." The victims, or Meriahs, are represented by our authorities[84] as being offered to propitiate the Earth goddess, Tari Pennu or Bera Pennu, but from their treatment both before and after death it appears to Dr. Frazer that the custom cannot be explained as merely a propitiatory sacrifice. The flesh and the ashes of the Meriah, he observes, were believed to possess a magic power of fertilising the land, quite independent of the indirect efficacy which they might have as an offering to secure the goodwill of the deity. For, though a part of the flesh was offered to the Earth Goddess, the rest of it {445} was buried by each householder in his fields, and the ashes of the other parts of the body were scattered over the fields, laid as paste on the granaries, or mixed with the new corn. The same intrinsic power was ascribed to the blood and tears of the Meriah, his blood causing the redness of the turmeric and his tears producing rain; and magic power as an attribute of the victim appears, also in the sovereign virtue believed to reside in anything that came from his person, as his hair or spittle. Considering further that, according to our authorities, the Meriah was regarded as "something more than mortal," or that "a species of reverence, which it is not easy to distinguish from adoration, is paid to him," Dr. Frazer concludes that he may originally have represented the Earth deity or perhaps a deity of vegetation, and that he only in later times came to be regarded rather as a victim offered to a deity than as himself an incarnate deity.[85]

[Footnote 84: Campbell, Wild Tribes of Khondistan. Macpherson, Memorials of Service in India.]

[Footnote 85: Frazer, op. cit. ii. 245 sq.]

The premise on which Dr. Frazer bases his argument appears to me quite untenable. It is an arbitrary supposition that the ascription of a magical power to the Meriah "indicates that he was much more than a mere man sacrificed to propitiate a deity."[86] A sacrifice is very commonly believed to be endowed with such a power, not as an original quality, but in consequence of its contact or communion with the supernatural

being to which it is offered. Just as the Meriah of the Kandhs is taken round the village, from door to door, and some pluck hair from his head, while others beg for a drop of his spittle, so, among the nomadic Arabs of Morocco, at the Muhammedan "Great Feast," a man dressed in the bloody skin of the sheep which has been sacrificed on that occasion, goes from tent to tent, and beats each tent with his stick so as to confer blessings on its inhabitants. For he is now endowed with l-baraka del-[(]id, "the benign virtue of the feast"; and the same power is ascribed to various parts of the sacrificed sheep, which are consequently used for magical purposes. If Dr. Frazer's way of arguing were correct we should have to conclude that the victim was originally the god himself, or a representative of the god, to whom it is now offered in sacrifice. But the absurdity of any such inference becomes apparent at once when we consider that, in Morocco, every offering to a holy person, for instance to a deceased saint, is considered to participate in its sanctity. When the saint has his feast, and animals and other presents are brought to his tomb, it is customary for his descendants--who have a right to the offerings--to distribute {446} some flesh of the slaughtered animals among their friends, thereby conferring l-baraka of the saint upon those who eat it; and even candles which have been offered to the saint are given away for the same purpose, being instinct with his baraka. Of course, what holds good of the Arabs in Morocco does not necessarily hold good of the Kandhs of Bengal; but it should be remembered that Dr. Frazer's argument is founded on the notion that the ascription of a magic power to a victim which is offered in sacrifice to a god indicates that the victim was once regarded as a divine being or as the god himself; and the facts I have recorded certainly prove the arbitrariness of this supposition.

[Footnote 86: Ibid. ii. 246.]

This is by no means the only objection which may be raised against Dr. Frazer's hypothesis. In his description of the rite in question he has emphasised its connection with agriculture to a degree which is far from being justified by the accounts given by our authorities. Mr. Macpherson states that the human sacrifice to Tari Pennu was celebrated as a public oblation by tribes, branches of tribes, or villages, both at social festivals held periodically, and when special occasions demanded exceptional propitiations. It was celebrated "upon the occurrence of an extraordinary number of deaths by disease; or should very many die in childbirth; or should the flocks or herds suffer largely from disease, or from wild beasts; or should the greater crops threaten to fail"; while the occurrence of any marked calamity to the families of the chiefs, whose fortunes were regarded as the principal indication of the disposition of Tari towards their tribes, was held to be a token of wrath which could not be too speedily averted. [87] Moreover, besides these social offerings, the rite was performed by individuals to avert the wrath of Tari from themselves and their families, for instance, if a child, when watching his father's flock, was carried off by a tiger.[88] So, also, Mr. Campbell observes that the human blood was offered to the Earth goddess, "in the hope of thus obtaining abundant crops, averting calamity, and insuring general prosperity";[89] or that it was supposed "that good crops, and safety from all disease and accidents, were ensured by this slaughter."[90] According to another authority, Mr. Russell, the assembled multitude, when dancing round the victim, addressed the earth in the following words, "O God, we offer this sacrifice to you; give us good crops, seasons, and health."[91] Nor was the magic {447} virtue of the Meriah utilised solely for the benefit of the crops. According to one account, part of the flesh was buried near the village idol as an offering to the earth, and part on the boundaries of the village;[92] whilst in the invocation made by the priest, the goddess was represented as saying, "Let each man place a shred

of the flesh in his fields, in his grain-store, and in his yard."[93] The ashes, again, were scattered over the fields, or "laid as paste over the houses and granaries."[94] It is also worth noticing that, among the Kandhs of Maji Deso, the offering was not at all made for the special purpose of obtaining cereal produce, "but for general prosperity, and blessings for themselves and families";[95] and that in the neighbouring principality, Chinna Kimedy, inhabited for the most part by Ooryahs, the sacrifice was not offered to the earth alone, "but to a number of deities, whose power is essential to life and happiness," especially to the god of war, the great god, and the sun god.[96] Now, whilst all these facts are in perfect agreement with the theory of substitution, they certainly do not justify the supposition that the Meriah was the representative of a deity of vegetation.

[Footnote 87: Macpherson, op. cit. p. 113 sq. See, also, ibid. pp. 120, 128 sqq.]

[Footnote 88: Ibid. p. 113 sq.]

[Footnote 89: Campbell, op. cit. p. 51.]

[Footnote 90: Ibid. p. 56. Cf. ibid. p. 73.]

[Footnote 91: Russell, quoted ibid. p. 54.]

[Footnote 92: Russell, quoted ibid. p. 55.]

[Footnote 93: Macpherson, op. cit. p. 122 sq.]

[Footnote 94: Ibid. p. 128.]

[Footnote 95: Campbell, op. cit. p. 181.]

[Footnote 96: Ibid. p. 120. Cf. ibid. p. 197:--Among the Ooryahs human sacrifice is "performed on important occasions, such as going to battle, building a fort in an important village, and to avert any threatened danger."]

The same may be said about other cases mentioned by Dr. Frazer, when more closely examined. "The Indians of Guayaquil, in Ecuador," he says, "used to sacrifice human blood and the hearts of men when they sowed their fields."[97] But our authority, Cieza de Leon, adds that those Indians also offered human victims when their chiefs were sick "to appease the wrath of their gods."[98] "The Pawnees," Dr. Frazer writes, "annually sacrificed a human victim in spring when they sowed their fields. The sacrifice was believed to have been enjoined on them by the Morning Star, or by a certain bird which the Morning Star had sent to them as its messenger . . . . They thought that an omission of this sacrifice would be followed by the total failure of the crops of maize, beans, and pumpkins.[99] James, to whom Dr. Frazer refers, and other authorities say that the human sacrifice was a propitiatory offering made to that star,[100] a planet which especially with the Skidi--the only section {448} of the Pawnees who offered human sacrifices--was an object of superstitious veneration.[101] Sickness, misfortune, and personal mishaps of various kinds were often spoken of as attributable to the incurred ill-will of the heavenly bodies;[102] and the object of the sacrifice to the morning star is expressly said to have been "to avert the evil influences exerted by that planet."[103] According to Mr. Dunbar, whose important[104] article dealing with the subject has escaped Dr. Frazer's notice, "the design of the bloody ordeal was to conciliate that being and secure a good crop. Hence," he continues, "it has been supposed that the morning star was regarded by them as presiding over agriculture, but this was a mistake. They sacrificed to that star because they feared it, imagining that it exerted malign influence if not well disposed. It has also been stated that the sacrifice was made annually. This, too, was an error. It was made only when special occurrences were interpreted as calling for it."[105] At the present day the Indians speak of the sacrifice as having been made to Ti-ra'-wa, the Supreme Being or the deity "who is in and of everything."[106] In the detailed account of the rite, which was given to Mr. Grinnell by an old chief who had himself

witnessed it several times, it is said:--"While the smoke of the blood and the buffalo meat, and of the burning body, ascended to the sky, all the people prayed to Ti-ra'-wa, and walked by the fire and grasped handfuls of the smoke, and passed it over their bodies and over those of their children, and prayed Ti-ra'-wa to take pity on them, and to give them health, and success in war, and plenteous crops . . . . This sacrifice always seemed acceptable to Ti-ra'-wa, and when the Skidi made it they always seemed to have good fortune in war, and good crops, and they were always well."[107] According to this description, then, the human sacrifice of the Pawnees, like that of the Kandhs, was not an exclusively agricultural rite, but was performed for the purpose of averting dangers of various kinds. And this is also suggested by Mr. Dunbar's relation of the last instance of this sacrifice, which occurred in April, 1838. In the previous winter the Skidi, soon after starting on their hunt, had a successful fight with a band of Oglala Dacotahs, and fearing that the Dacotahs would retaliate by coming upon them in overwhelming force, {449} they returned for safety to their village before taking a sufficient number of buffaloes. "With little to eat, they lived miserably, lost many of their ponies from scarcity of forage, and, worst of all, one of the captives proved to have the small-pox, which rapidly spread through the band, and in the spring was communicated to the rest of the tribe. All these accumulated misfortunes the Ski'-di attributed to the anger of the morning star; and accordingly they resolved to propitiate its favour by a repetition of the sacrifice, though in direct violation of a stipulation made two years before that the sacrifice should not occur again."[108]

[Footnote 97: Frazer, op. cit. ii. 238.]

[Footnote 98: Cieza de Leon, La Crónica del Perú [parte primera], ch. 55 (Biblioteca de autores españoles, xxvi. 409).]

[Footnote 99: Frazer, op. cit. ii. 238.]

[Footnote 100: James, Expedition from Pittsburg to the Rocky Mountains, i. 357. Grinnell, Pawnee Hero Stories and Folk-Tales, p. 357. Dunbar, 'Pawnee Indians,' in Magazine of American History, viii. 738.]

[Footnote 101: Dunbar, loc. cit. p. 738.]

[Footnote 102: Ibid. p. 736.]

[Footnote 103: Grinnell, op. cit. p. 357.]

[Footnote 104: Mr. Dunbar is "born and reared among the Pawnees, familiar with them until early manhood, a frequent visitor to the tribe in later years" (Grinnell, op. cit. p. 213).]

[Footnote 105: Dunbar, loc. cit. p. 738 sq.]

[Footnote 106: Grinnell, op. cit. pp. 357, 358, xvii.]

[Footnote 107: Ibid. p. 367.]

[Footnote 108: Dunbar, loc. cit. p. 740.]

Nor is there any reason whatever to suppose that the Brahman boys whom the Gonds of India used to kidnap and keep as victims to be sacrificed on various occasions,[109] were regarded as representatives of a spirit or god. They were offered up to Bhímsen, the chief object of worship among the Gonds, represented by a piece of iron fixed in a stone or in a tree,[110] now "to sanctify a marriage, now to be wedded to the soil, and again to be given away to the evil spirit of the epidemic raging," or "on the eve of a struggle."[111]

[Footnote 109: Frazer, op. cit. ii. 241.]

[Footnote 110: Panjab Notes and Queries, § 550, vol. ii. 90.]

[Footnote 111: Ibid. § 721, vol. ii. 127 sq.]

Dr. Frazer writes:--"At Lagos In Guinea it was the custom annually to impale a young girl alive soon after the spring equinox in order to secure good crops . . . . A similar sacrifice used to be annually offered at Benin."[112] But Dr. Frazer omits an important fact mentioned or alluded to by the two authorities he quotes which gives us the key to the custom, without suggesting that it has anything to do with the corn-spirit. Adams states that the young woman was impaled "to propitiate the favour of the goddess presiding over the rainy season, that she may fill the horn of plenty."[113] And M. Bouche observes, "Au Bénin, on a conservé jusqu'à présent un usage qui régnait jadis à Lagos et ailleurs: celui d'empaler une jeune fille, au commencement de la saison des pluies, afin de rendre les orichas propices aux récoltes."[114] From these statements it appears that the sacrifice was intended to influence the rain, on which the crops essentially depend. That its immediate object was to produce rain is expressly affirmed by Sir R. Burton. At Benin he saw "a young woman lashed to a scaffolding upon the summit of a tall blasted tree and being devoured by the turkey-buzzards. The people declared it to be a 'fetish,' or {450} charm for bringing rain."[115] We have previously noticed that the people of Benin also have recourse to a human sacrifice if there is too much rain, or too much sun, so that the crops are in danger of being spoiled.[116] The theory of substitution accounts for all these cases.

[Footnote 112: Frazer, op. cit. ii. 239.]

[Footnote 113: Adams, Sketches taken during Ten Voyages to Africa, p. 25.]

[Footnote 114: Bouche, Sept ans en Afrique occidentale, p. 132.]

[Footnote 115: Burton, Abeokuta, i. 19 n.*]

[Footnote 116: Supra, p. 443 sq.]

The practice of offering human victims for the purpose of preventing drought and famine by producing rain is apparently not restricted to West Africa. In the beginning of their year, the ancient Mexicans sacrificed many prisoners of war and children who had been purchased for that purpose, to the gods of water, so as to induce them to give the rain necessary for the crops.[117] The Pipiles of Guatemala celebrated every year two festivals which were accompanied by human sacrifices, the one in the beginning of the rainy season, the other in the beginning of the dry season.[118] In India, among the aboriginal tribes to the south-west of Beerbhoom, Sir W. W. Hunter "heard vague reports of human sacrifices in the forests, with a view to procuring the early arrival of the rains."[119] Without venturing to express any definite opinion on a very obscure subject which has already led to so many guesses,[120] I may perhaps be justified in here calling attention to the fact that Zeus Lycæus, in whose cult human sacrifices played a prominent part, was conceived of as a god who sent the rain.[121] It appears from ancient traditions or legends that the idea of procuring rainfall by means of such sacrifices was not unfamiliar to the Greeks. A certain Molpis offered himself to Zeus Ombrios, the rain-god, in time of drought.[122] Pausanias tells us that once, when a drought had for some time afflicted Greece, messengers were sent to Delphi to inquire the cause, and to beg for a riddance of the evil. The Pythian priestess told them to propitiate Zeus, and that Aeacus should be the intercessor; and then Aeacus, by sacrifices and prayers to Panhellenian Zeus, procured rain for Greece.[123] But Diodorus adds that the drought and famine, whilst ceasing in all other parts of the country, still continued in Attica, so that the {451} Athenians once more resorted to the Oracle. The answer was now given them that they had to expiate the murder of Androgeus, and that this should be done in any way his father, Minos, required. The satisfaction demanded by the latter was, that they every nine years should send seven boys and as many girls

to be devoured by the Minotaur, and that this should be done as long as the monster lived. So the **Athenians did, and the calamity ceased.[124]

[Footnote 117: Sahagun, Historia general de las cosas de Nueva España, i. 50. Torquemada, Monarchia Indiana, ii. 251. Clavigero, op. cit. i. 297.]

[Footnote 118: Stoll, Ethnologie der Indianerstämme von Guatemala, p. 46.]

[Footnote 119: Hunter, Annals of Rural Bengal, i. 128.]

[Footnote 120: See Immerwahr, Die Kulte und Mythen Arkadiens, i. 16 sqq. Professor Robertson Smith suggests ('Sacrifice,' in Encyclopædia Britannica, xxi. 136) that the human sacrifices offered to Zeus Lycæus were originally cannibal feasts of a wolf tribe.]

[Footnote 121: Pausanias, viii. 38. 4. Farnell, op. cit. i. 41.]

[Footnote 122: Farnell, op. cit. i. 42.]

[Footnote 123: Pausanias, ii. 29. 7 sq.]

[Footnote 124: Diodorus Siculus, op. cit. iv. 61. 1 sqq.]

As an instance of the close relationship which exists between human sacrifices offered for agricultural purposes and other human sacrifices, the following case may also be mentioned. According to Strachey, the Indians in some part of Virginia had a yearly sacrifice of children. These sacrifices they held so necessary that if they should omit them, they supposed their gods "would let them no deare, turkies, corne, nor fish," and, besides, "would make a great slaughter amongst them."[125]

[Footnote 125: Strachey, History of Travaile into Virginia Britannia, p. 95 sq.]

Men require for their subsistence not only food, but drink. Hence when the earth fails to supply them with water, they are liable to regard it as an attempt against their lives, which can be averted only by the sacrifice of a human substitute.

In India, in former times, human victims were offered to several minor gods "whenever a newly excavated tank failed to produce sufficient water."[126] In Kâthiâwâr, for instance, if a pond had been dug and would not hold water, a man was sacrificed; and the Vadala lake in Bombay "refused to hold water till the local spirit was appeased by the sacrifice of the daughter of the village headman."[127] There is a legend that, when the bed of the Saugor lake remained dry, the builder "was told, in a dream, or by a priest, that it would continue so till he should consent to sacrifice his own daughter, then a girl, and the young lad to whom she had been affianced, to the tutelary god of the place. He accordingly built a little shrine in the centre of the valley, which was to become the bed of the lake, put the two children in, and built up the doorway. He had no sooner done so than the whole of the valley became filled with water."[128] When Colonel Campbell was rescuing Meriahs among the {452} Kandhs, it was believed by some that he was collecting victims for the purpose of sacrificing them on the plains to the water deity, because the water had disappeared from a large tank which he had constructed.[129] According to a story related by Pausanias, the district of Haliartus was originally parched and waterless, hence one of the rulers went to Delphi and inquired how the people should find water in the land. "The Pythian priestess commanded him to slay the first person he should meet on his return to Haliartus. On his arrival he was met by his son Lophis, and, without hesitation, he struck the young man with his sword. The youth had life enough left to run about, and where the blood flowed water gushed from the ground. Therefore the river is called Lophis."[130]

[Footnote 126: Rájendralála Mitra, op. cit. ii. 111.]

[Footnote 127: Crooke, Popular Religion of Northern India, ii. 174.]

[Footnote 128: Sleeman, Rambles, i. 129 sq.]

[Footnote 129: Campbell, Wild Tribes of Khondistan, p. 129.]

[Footnote 130: Pausanias, ix. 33. 4.]

Human sacrifices are offered with a view to averting perils arising from the sea or from rivers.

When the Greeks were afflicted by stress of weather at Aulis, they were bidden to sacrifice Iphigenia, in order to lull the winds.[131] Menelaus was persecuted by the Egyptians for sacrificing two children when he was desirous of sailing away and contrary winds detained him.[132] According to an Athenian writer, the colonists who first went to Lesbos were directed by an oracle to throw a virgin into the sea, as an offering to Poseidon.[133] Sextus Pompeius cast men into the sea as an offering to Neptune.[134] Hamilcar, also, following a custom of his country, threw a company of priests into the sea, as a sacrifice to the sea god.[135] The Saxons, when they were about to leave the coast of Gaul and sail home, sacrificed the tenth part of their captives.[136] The Vikings of Scandinavia, when launching a new ship, seemed to have bound a victim to the rollers on which the vessel slipped into the sea, thus reddening the keel with sacrificial blood.[137] In 1784, at the launching of one of the Bey of Tripoli's cruisers, a black slave was led forward and fastened at the prow of the vessel.[138] The Fijians launched their canoes over the living bodies of slaves as rollers,[139] or, according to {453} another account, when a large canoe was launched, they laid hold of the first person, man or woman, whom they encountered, and carried the victim home for a feast.[140] On the deck of a new boat belonging to the most powerful chief in the group, ten or more men were slaughtered, in order that it might be washed with human blood.[141]

[Footnote 131: Aeschylus, Agamemnon, 215 sq.]

[Footnote 132: Herodotus, ii. 119.]

[Footnote 133: Athenæus, Deipnosophistæ, xi. 15.]

[Footnote 134: Dio Cassius, Historia Romana, xlviii. 48.]

[Footnote 135: Diodorus Siculus, xiii. 86.]

[Footnote 136: Sidonius Apollinaris, Epistulæ, viii. 6. 15.]

[Footnote 137: Vigfusson and Powell, op. cit. i. 410; ii. 349.]

[Footnote 138: Simpson, quoted by Grant Allen, Evolution of the Idea of God, p. 263.]

[Footnote 139: Erskine, Cruise among the Islands of the Western Pacific, p. 249.]

[Footnote 140: Wilkes, U.S. Exploring Expedition, iii. 97. Cf. Williams and Calvert, op. cit. p. 175.]

[Footnote 141: Wilkes, op. cit. iii. 97.]

The Zuñi Indians have a tradition that the waters of their valley once rose in a flood and compelled the inhabitants to flee to a table-land several hundred feet high for safety; and when the waters still rose, threatening to submerge the table-land itself, the priest determined to sacrifice a youth and a maiden to propitiate them.[142] When Seleucus Nicator founded Antioch on the Orontes, the high priest sacrificed a virgin at a place between the town and the river,[143] presumably in order to prevent the town from being flooded by the river. When the converted Franks marched to Italy under their king, Theodebert, to fight against the Goths under Vitigis, and were on the point of crossing the Po, they sacrificed what children and wives of Goths they found, and threw their corpses into the river, according to Procopius, "as the first fruits of the war."[144] At Rome, every year on the Ides of May, the Vestal Virgins threw from the Sublician bridge into the Tiber thirty human effigies formed of rushes; the Romans themselves were of opinion that at an earlier period living men had been hurled into the river, and that it was Hercules who first substituted images of straw.[145] In West Africa human sacrifices are often offered to rivers. Major Ellis states that at each town or considerable village upon the banks of the river Prah sacrifice is held on a day about the middle of October, to Prah. "As loss of life frequently occurs in this river, from persons attempting

to cross it when flooded, from a sudden rise, or from those hundred minor accidents which must always occur in the neighbourhood of a deep and strong stream, the gods of the Prah are considered very malignant. The sacrifice is, in consequence, proportionate. The usual sacrifice in former times was two human adults, one male and one female. They. . . . were decapitated on the bank of the river, and the stool and image of the god washed with their {454} blood. The bodies were then cut into a number of pieces, which were distributed amongst the mangroves, or the sedge bordering the river, for the crocodiles to eat; crocodiles being sacred in Prah."[146] According to M. le Comte de Cardi, all the river-side tribes of the Niger Delta used to propitiate the river deity by the sacrifice of a copper-coloured girl, procured from a tribe of Ibos inhabiting a country away in the hinterland of New Calabar, or in some places an Albino; and it seems that this custom is still practised in the British Protectorate.[147] The Ibos themselves were in the habit of throwing human beings into the river to be eaten by alligators or fishes, or to fasten them to trees or branches, close to the river, where they were left to perish by hunger.[148] In Eastern Central Africa, also, human sacrifices are offered to rivers.[149] And in the East Indies there are various traditions of such sacrifices being made to the divine crocodiles of the sea.[150]

[Footnote 142: Stevenson, 'A Chapter of Zuñi Mythology,' in Memoirs of the International Congress of Anthropology, Chicago, p. 316.]

[Footnote 143: Malala, Chronographia, viii. 255 (200).]

[Footnote 144: Procopius, Bellum Gothicum, ii. 25.]

[Footnote 145: Ovid, Fasti, 621 sq. Dionysius of Halicarnassus, Antiquitates Romanæ, i. 38. Hartland, Legend of Perseus, iii. 78.]

[Footnote 146: Ellis, Tshi-speaking Peoples, p. 64 sq. Cf. Idem, Land of Fetish, p. 122.]

[Footnote 147: Comte de Cardi, 'Ju-ju Laws and Customs in the Niger Delta,' in Jour. Anthr. Inst. xxix. 54. Cf. Mockler-Ferryman, British Nigeria, p. 235.]

[Footnote 148: Schoen and Crowther, op. cit. p. 49.]

[Footnote 149: Macdonald, Africana, i. 96.]

[Footnote 150: Tylor, 'Anniversary Address,' in Jour. Anthr. Inst. xxi. 408. Hartland, op. cit. iii. 70 sq.]

In the cases which we have hitherto considered the offering of human sacrifices is mostly a matter of public concern, a method of ensuring the lives of many by the death of one or a few. But human life is also sacrificed, by way of substitution, for the purpose of preventing the death of some particular individual, especially a chief or a king, from sickness, old age, or other circumstances.

In Guatemala, in the case of a dangerous illness, human sacrifice was resorted to when all other attempts to cure the patient failed. Of the Indians of Guayaquil, Cieza de Leon states:--"When the chiefs were sick, to appease the wrath of their gods, and pray for health, they made . . . . sacrifices of a superstitious nature, killing men (as I was told), and believing that human blood was a grateful offering."[151] Acosta writes:--"They vsed in Peru to sacrifice yong children of foure or six yeares old vnto tenne; and the greatest parte of these sacrifices were for the affaires that did import the Ynca, as in sickness for his health, and when he went to the {455} warres for victory, or when they gave the wreathe to their new Ynca, which is the marke of a King, as heere the Scepter and the Crowne be. In this solemnitie they sacrificed the number of two hundred children, from foure to ten yeares of age . . . . If any Indian qualified or of the common sorte were sicke, and that the Divine told him confidently that he should die, they did then sacrifice his owne sonne to the Sunne or to Virachoca, desiring them to be satisfied with him, and that they would not deprive the father of life."[152]

According to Molina, "the Lord Ynca offered sacrifices [of children] when he began to reign, that the huacas [or idols] might give him health, and preserve his dominions in peace."[153] Herrera tells us that the ancient Peruvians, when any person of note was sick, and the priest predicted his death, sacrificed the patient's son, "desiring the idol to be satisfie'd with him, and not to take away his father's life."[154] Garcilasso de la Vega, again, denies the existence of any such custom in the kingdom of the Incas,[155] but asserts that, before their reign, the Indians of Peru offered up their own children on certain occasions.[156] According to Jerez, some of the Peruvian Indians sacrificed their own children each month, and anointed with the blood the faces of their idols and the doors of their temples.[157] The Tonga Islanders had a ceremony called nawgia, or the ceremony of strangling children as sacrifices to the gods, for the recovery of a sick relative. Our informant says:--"All the bystanders behold the innocent victim with feelings of the greatest pity; but it is proper, they think, to sacrifice a child who is at present of no use to society, and perhaps may not otherwise live to be, with the hope of recovering a sick chief, whom all esteem and whom all think it a most important duty to respect, defend, and preserve, that his life may be of advantage to the country."[158] The Tahitians offered human sacrifices during the illnesses of their rulers.[159] In the Philippines, if a prince was dangerously ill or dying, slaves were slaughtered in order to satisfy the malignant ancestral soul who was supposed to have caused the disease.[160] Among the Dyaks, when a raja "falls sick, or goes on a journey, it is {456} common for him to vow a head to his tribe in case of recovery or of safe return. Should he die, one or two heads are usually offered by the tribe as a kind of sacrifice."[161] Among the Banjârîlu of Southern India, who are great travelling traders, it was formerly the custom "before starting out on a journey to procure a little child, and bury it in the ground up to its shoulders, and then drive their loaded bullocks over the unfortunate victim, and in proportion to the bullocks thoroughly trampling the child to death, so their belief in a successful journey increased."[162] In India human sacrifices were also offered to the goddess Chandiká to save the life of a king.[163] It is probable that the idea of substitution likewise accounts for the sacrifice of a young girl which a certain raja is reported to have offered in 1861, at the shrine of the goddess Durga, in the town of Jaipúr, when he installed himself at his father's decease,[164] and for the sacrifice of a Brahmin which a raja of Ratanpúr had offered up to Deví every year.[165] In Great Benin, once a year, at the end of the rainy season, all the king's beads were brought out by the boys in whose care they were kept. They were put in a heap, and a slave was compelled to kneel down over them. The king cut or struck the head of the slave with a spear so that the blood ran over the beads, and said to them, "Oh, beads, when I put you on, give me wisdom and don't let any juju or bad thing come near me." Then the slave was told, "So you shall tell the head juju when you see him." The slave was led out and beheaded, but his head was brought in again, and the beads were touched with it.[166] Among the ancient Gauls persons who were troubled with unusually severe diseases either sacrificed men or promised that they would make such sacrifices.[167] In the Ynglingasaga we are told that King Aun sacrificed nine sons, one after the other, to Odin for the purpose of obtaining a prolongation of his life.[168] According to Macrobius, the ancient Romans immolated children to the goddess Mania, the mother of the Lares, "to promote the health of the families."[169] Suetonius states that Nero, frightened by the sight of a comet, sacrificed a number of Roman noblemen {457} in order to avert the disaster from himself.[170] Antinous, according to one account, sacrificed himself to prolong the life of Hadrian.[171] The notion that the death of one person may serve as a substitute for the death of another still prevails in the Vatican. When, during Leo

XIII.'s last illness, one of the Cardinals died, it was said that his death had saved the life of the Pope, Heaven being satisfied with one victim. In Morocco, if a son or a daughter dies, it is customary to say to the afflicted parents, "Why are you sorry? Your child took away your misfortune (bas)." A similar custom prevails in Syria and Palestine.[172]

[Footnote 151: Cieza de Leon, La Crónica del Perú [parte primera], ch. 55 (Biblioteca de autores españoles, xxvi. 409).]

[Footnote 152: Acosta, op. cit. ii. 344.]

[Footnote 153: de Molina, loc. cit. p. 55.]

[Footnote 154: Herrera, General History of the West Indies, iv. 347.]

[Footnote 155: Garcilasso de la Vega, op. cit. i. 131.]

[Footnote 156: Ibid. i. 50.]

[Footnote 157: Jerez, 'Conquista del Perú,' in Biblioteca de autores españoles, xxvi. 327.]

[Footnote 158: Mariner, Natives of the Tonga Islands, ii. 220.]

[Footnote 159: Ellis, Polynesian Researches, i. 346.]

[Footnote 160: Blumentritt, quoted by Wilken, 'Ueber das Haaropfer,' in Revue coloniale internationale, 1887, i. 364 sq.]

[Footnote 161: Pfeiffer, A Lady's Second Journey round the World, i. 86.]

[Footnote 162: Cain, 'Bhadrachellam and Rekapalli Taluqas,' in Indian Antiquary, viii. 219.]

[Footnote 163: Crooke, Popular Religion in Northern India, ii. 168.]

[Footnote 164: North Indian Notes and Queries, § 310, vol. i. 40.]

[Footnote 165: Panjab Notes and Queries, § 869, vol. ii. 162.]

[Footnote 166: Moor and Roupell, quoted by Read and Dalton, op. cit. p. 7; also by Ling Roth, Great Benin, p. 71.]

[Footnote 167: Cæsar, De bello gallico, vi. 16.]

[Footnote 168: Snorri Sturluson, 'Ynglingasaga,' 25, in Heimskringla, i. 45 sqq.]

[Footnote 169: Macrobius, Saturnalia, i. 7.]

[Footnote 170: Suetonius, Nero, 36.]

[Footnote 171: Spartian, Vita Hadriani, 14. Aurelius Victor, De Cæsaribus, 14. Dio Cassius, Historia Romana, lxix. 11.]

[Footnote 172: Curtiss, Primitive Semitic Religion To-day, p. 208.]

Men are sacrificed not only to preserve the lives of other men, but to help other men into existence. Barrenness is attributed to some god keeping back the children which would otherwise be born in the due course of nature. And in order to remove this obstacle a human being, generally a child, is sacrificed to serve, as it were, as a substitute. This I take to be the explanation of the practice of offering a human sacrifice with a view to promoting fecundity, a practice which has been particularly common in India.

In the history of ancient Mexico we read of Nezahualcoyotl, prince of the Tezcucans, who had been married some years without being blest with issue. "The priests represented that it was owing to his neglect of the gods of his country, and that his only remedy was to propitiate them by human sacrifice."[173] In Hindu traditions and books a numerous offspring is promised to him who offers a man in sacrifice.[174] In Jainteapore, east of Sylhet, human sacrifices were made to the goddess Kali, in hopes of procuring progeny.[175] Speaking of the Mahadeo sandstone hills which, in the Sathpore range, overlook the Nerbudda to the south, Sir W. H. Sleeman states:--"When a woman is without children she makes votive offerings to all the gods who can, she thinks, assist her; and promises of still greater in case they should grant what she wants.

Smaller promises being found of no avail, she at last promises her first-born, if a {458} male, to the god of destruction, Mahadeo. If she gets a son she conceals from him her vows till he has attained the age of puberty; she then communicates it to him, and enjoins him to fulfil it." From that moment he regards himself as devoted to the god, and, at the annual fair on the Mahadeo hills, throws himself from a perpendicular height of four or five hundred feet, and is dashed to pieces upon the rocks below.[176] In one of the tales of Somadeva an ascetic tells a woman that, if she killed her young son and offered him to the divinity, another son would certainly be born to her.[177] We meet with a similar idea in the story of king Somaka. For some time he did not succeed in getting a single son from any of his one hundred wives. Finally he got a single son; but he wanted more, and asked the family priest whether there was not a ceremony which could help him to a hundred sons. The family priest answered:--"O king! let me set on foot a sacrifice, and thou must sacrifice thy son, Jantu, in it. Then on no distant date, a century of handsome sons will be born to thee. When Jantu's fat will be put into the fire as an offering to the gods, the mothers will take a smell of that smoke, and bring forth a number of sons, valorous and strong. And Jantu also will once more be born as a self-begotten son of thine, in that very mother; and on his back there will appear a mark of gold." The son was sacrificed; the wives smelt the smell of the burnt-offering; all of them became with child; and when ten months had passed one hundred sons were born to Somaka, of whom Jantu was the eldest, being born of his former mother. But the family priest departed this life, and was grilled for a certain period in a terrible hell as a punishment for what he had done.[178]

[Footnote 173: Prescott, History of the Conquest of Mexico, p. 91.]

[Footnote 174: Chevers, op. cit. p. 399.]

[Footnote 175: Macnaghten, quoted ibid. p. 397.]

[Footnote 176: Sleeman, op. cit. i. 132 sq.]

[Footnote 177: Crooke, Popular Religion of Northern India, ii. 173.]

[Footnote 178: Mahabharata, Vana Parva, 127 sq. (pt. vi. p. 188 sq.).]

Among certain peoples it is a regular custom to kill the firstborn child, or the firstborn son.

Among some natives of Australia a mother used to kill and eat her first child, as this was believed to strengthen her for later births.[179] In New South Wales the firstborn of every lubra used to be eaten by the tribe "as part of a religious ceremony."[180] In the realm of Khai-muh, in China, according to {459} a native account, it was customary to kill and devour the eldest son alive.[181] Among certain tribes in British Columbia the first child is often sacrificed to the sun.[182] The Indians of Florida, according to Le Moyne de Morgues, sacrificed the firstborn son to the chief.[183] We are told that, among the people of Senjero in Eastern Africa, many families "must offer up their firstborn sons as sacrifices, because once upon a time, when summer and winter were jumbled together in a bad season, and the fruits of the field would not ripen, the sooth-sayers enjoined it."[184] The heathen Russians often sacrificed their firstborn to the god Perun.[185] The rule laid down in Exodus[186] and Numbers,[187] that all the firstborn of men and of beasts belonged to the Lord, but that the former were to be redeemed, seems to indicate the existence of an earlier custom among the Hebrews of offering up as a sacrifice, not only the firstling of an animal, but the firstborn child. As traces of such a custom may probably be regarded the story of Abraham's surrender of his firstborn son to God and the tradition of the origin of the Passover.[188] Among the Hindus, until the beginning of the last century, many parents sacrificed their firstborn to the river Ganges.[189]

[Footnote 179: Brinton, Religions of Primitive Peoples, p. 17 n.* Cf. von Scherzer, Reise der Oesterreichischen Fregatte Novara um die Erde, iii. 32.]

[Footnote 180: Brough Smyth, Aborigines of Victoria, ii. 311.]

[Footnote 181: de Groot, Religious System of China (vol. ii. book) i. 679.]

[Footnote 182: Boas, in Fifth Report on the North-Western Tribes of Canada, pp. 46, 52.]

[Footnote 183: Bry, Narrative of Le Moyne, Descriptions of the Illustrations, 34, p. 13. Cf. Lafitau, M[oe]urs des sauvages ameriquains, i. 181; Strachey, op. cit. p. 84.]

[Footnote 184: Krapf, Travels, p. 69 sq.]

[Footnote 185: Mone, quoted by Frazer, Golden Bough, ii. 52.]

[Footnote 186: Exodus, xiii. 2, 15.]

[Footnote 187: Numbers, xviii. 15.]

[Footnote 188: See Ghillany, op. cit. p. 494 sqq.; Kuenen, Religion of Israel, ii. 92; Frazer, op. cit. ii. 47 sqq.]

[Footnote 189: Rájendralála Mitra, op. cit. ii. 70, 76.]

In some instances the firstborn seems to be killed, not in sacrifice to a god, but for the purpose of being eaten as a kind of medicine.[190] In other cases the act is a sacrifice in the true sense of the word and, apparently, substitutional in character. Considering that children are occasionally sacrificed to save the lives of their parents, or for the health of the families, or to promote fecundity, it seems probable that the regular sacrifice of the firstborn has similar objects in view. This supposition, indeed, is strongly supported by some statements in which the motive of the act is expressly mentioned.[191] Among the {460} Coast Salish of British Columbia the first child is sacrificed to the sun "to secure health and happiness to the whole family."[192] The same is reported of a neighbouring people, the Kutonaqa. The mother prays to the sun:--"I am with child. When it is born I shall offer it to you. Have pity upon us."[193] Among some tribes of South-Eastern Africa it is a rule that, when a woman's husband has been killed in battle and she marries again, the first child to which she gives birth after her second marriage must be put to death, whether she has it by her first or her second husband. Such a child is called "the child of the assegai," and if it were not killed, death or accident would be sure to befall the second spouse, and the woman herself would be barren.[194] Among some peoples, including the ancient Hindus, we find the belief that the son is in some sense identical with his father, that he is a new birth, a new manifestation of the same person.[195] The new birth might be supposed to endanger the life of the father, just as, according to a notion prevalent among the ancient Teutons[196] and in some parts of Italy,[197] a person would soon die if his name were given to his son or grandson whilst he was still alive. Among the Brazilian Tupis the father was accustomed to take a new name after the birth of each new son;[198] whilst, on killing an enemy, a person used to take the enemy's name so as to annihilate not only his body but also his soul.[199] Among the Kafirs, "if a mother gives birth to twins, one is frequently killed by the father, for the natives think that unless the father places a lump of earth in the mouth of one of the babies he will lose his strength."[200] In some {461} cases the practice of killing the firstborn son might possibly be traced back to a similar belief. But I can quote no fact directly supporting this suggestion.

[Footnote 190: Cf. supra, p. 401.]

[Footnote 191: Cf. Micah, vi. 7: "Shall I give my firstborn for my transgression, the fruit of my body for the sin of my soul?"]

[Footnote 192: Boas, op. cit. p. 46.]

[Footnote 193: Ibid. p. 52.]

[Footnote 194: Macdonald, Light in Africa, p. 156. Frazer, op. cit. ii. 51 sq.]

[Footnote 195: Hartland, op. cit. i. 217 sq. von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 336 sq. Leist, Alt-arisches Jus Gentium, p. 98 sqq. Idem, Alt-arisches Jus Civile, i. 189 sqq. Laws of Manu, ix. 8: "The husband, after conception by his wife, becomes an embryo and is born again of her."]

[Footnote 196: Storm, quoted by Noreen, Spridda Studier, Anara Samlingen, p. 4.]

[Footnote 197: Placucci, Usi e pregiudizj dei contadini della Romagna, p. 23.]

[Footnote 198: von den Steinen, op. cit. p. 337.]

[Footnote 199: Staden, quoted by Andree, Anthropophagie, p. 103.]

[Footnote 200: Kidd, The Essential Kafir, p. 202. I am indebted to Mr. N. W. Thomas for drawing my attention to this statement.]

Human sacrifices are offered in connection with the foundation of buildings. This is a wide-spread custom, which not only occurs among various uncivilised and semi-civilised peoples of the present day, but which is proved to have existed among the so-called Aryan races.[201] In India we find traces of it in traditions and popular beliefs.[202] The Hindu rajas, we are told, used to lay the foundation of public buildings in human blood.[203] When Mr. Grierson wanted to photograph a Bih[=a]r peasant house, the grandmother of the family refused to allow any of the children to appear in the picture, her reason being that the Government was building the bridge across the Gandak and wanted children to bury under the foundations.[204] Among the ancient Romans the old custom survived in the practice of placing statues or images under the foundations of their buildings.[205] In the island of Zacynthus the peasants to this day believe that in order to secure the durability of important buildings, such as bridges and fortresses, it is desirable to kill a man, especially a Muhammedan or a Jew, and bury him on the spot.[206] South Slavonian folk-tales speak of the immuration of a woman or a child as a foundation sacrifice.[207] In Servia no city was thought to be secure unless a human being, or at least the shadow of one, was built into its walls;[208] and the Bulgarians, when {462} going to build, are still said to take a thread and measure the shadow of some casual passer-by, and then bury the measure under the foundation-stone, expecting that the man whose shadow has been thus treated will soon die.[209] A similar custom prevails in Roumania.[210] According to Nennius, when Dinas Emris in Wales was founded by Gortigern, all the materials collected for the fortress were carried away in one night; and materials were thus gathered thrice, and were thrice carried away. When he then asked of his Druids, "Whence this evil?" the Druids told him that it was necessary to find a child whose father was unknown, put him to death, and sprinkle with his blood the ground on which the citadel was to be built.[211] A Scotch legend tells that, when St. Columba first attempted to build a cathedral on Iona, the walls fell down as they were erected; he then received supernatural information that they would never stand unless a human victim was buried alive, and, in consequence, his companion, Oran, was interred at the foundation of the structure.[212] It is reported that, when not long ago the Bridge Gate of Bremen city walls was demolished, the skeleton of a child was found embedded in the groundwork;[213] and when the new bridge at Halle, finished in 1843, was building, "the common people fancied a child was wanted to be walled into the foundations."[214]

[Footnote 201: Sartori, 'Ueber das Bauopfer,' in Zeitschrift für Ethnologie, xxx. 5 sqq. Tylor, Primitive Culture, i. 104 sqq. Baring-Gould, Strange Survivals, p. 4 sqq. Trumbull, Threshold Covenant, p. 46 sqq. Grant Allen, Evolution of the Idea of God, p. 249 sqq. Liebrecht, Zur Volkskunde, p. 284 sqq. Andree, Ethnographische Parallelen, p. 18 sqq. Nyrop, Romanske Mosaiker, p. 63 sqq. Krause, 'Das Bauopfer bei den Südslaven,' in

Mittheilungen der Anthropologischen Gesellschaft in Wien, xvii. 18 sqq. Wuttke, Der deutsche Volksaberglaube der Gegenwart, § 440, p. 300 sq.]

[Footnote 202: Winternitz, 'Bemerkungen über das Bauopfer bei den Indern,' in Mittheil. Anthr. Gesellsch. in Wien, xvii. [37] sqq.]

[Footnote 203: Wheeler, History of India, iv. 278.]

[Footnote 204: Grierson, Bih[=a]r Peasant Life, p. 4.]

[Footnote 205: Coote, 'A Building Superstition,' in Folk-Lore Journal, i. 23.]

[Footnote 206: Schmidt, Volksleben der Neu-Griechen, p. 197.]

[Footnote 207: Krauss, loc. cit. p. 19 sqq.]

[Footnote 208: Ralston, Songs of the Russian People, p. 127.]

[Footnote 209: Ibid. p. 127. Krauss, loc. cit. p. 21.]

[Footnote 210: Folk-Lore Record, iii. 283.]

[Footnote 211: Nennius, Historia Britonum, Irish Version, ch. 18, p. 93.]

[Footnote 212: Gomme, 'Some Traditions and Superstitions connected with Buildings,' in The Antiquary, iii. 11. Carmichael, Carmina Gadelica, ii. 316.]

[Footnote 213: Baring-Gould, Strange Survivals, p. 5.]

[Footnote 214: Grimm, Teutonic Mythology, iii. 1142.]

It seems highly probable that the building-sacrifice, like other kinds of human sacrifice, is based on the idea of substitution. A new house or dwelling-place is commonly regarded as dangerous, a wall or a tower is liable to fall down and cause destruction of life, a bridge may break, or the person who crosses it may tumble into the water and be drowned. In the Babar Islands, before entering a new house, offerings are thrown inside, that the spirit, Orloo, may not make the {463} inmates ill.[215] Before the Sandwich Islanders could occupy their houses "offerings were made to the gods, and presents to the priest, who entered the house, uttered prayers, went through other ceremonies, and slept in it before the owner took possession, in order to prevent evil spirits from resorting to it, and to secure its inmates from the effects of incantation."[216] Among the Kayans of Borneo, on the occasion of the king or principal chief taking possession of a newly-built house, a human victim was killed, and the blood was sprinkled on the pillars and under the house.[217] The Russian peasant believes that the building of a new house "is apt to be followed by the death of the head of the family for which the new dwelling is constructed, or that the member of the family who is the first to enter it will soon die"; and, in accordance with a custom of great antiquity, the oldest member of a migrating household enters the new house first.[218] In German folk-tales "the first to cross the bridge, the first to enter the new building or the country, pays with his life."[219] Even nowadays, in the North of Europe, there is a wide-spread fear of being the first to enter a new building or of going over a newly-built bridge; "if to do this is not everywhere and in all cases thought to entail death, it is considered supremely unlucky."[220] This superstition has been interpreted as a survival of a previous sacrifice;[221] but there can be no doubt, I think, that the foundation sacrifice itself owes its origin to similar notions and fears of supernatural dangers. Uncultured people are commonly afraid of anything new, or of doing an act for the first time;[222] and, apart from this, the erecting of a new building is an intrusion upon {464} the land of the local spirit, and therefore likely to arouse its anger. There are houses which remain haunted by spirits all their time.[223] It is natural, then, that attempts should be made to avert the danger. And, human life being at stake, no preventive could be more effective than the offering up of a human victim.

[Footnote 215: Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 343.]

[Footnote 216: Ellis, Polynesian Researches, iv. 322.]

[Footnote 217: Burns, 'Kayans of the North-West of Borneo,' in Journal of the Indian Archipelago, iii. 145.]

[Footnote 218: Ralston, Songs of the Russian People, p. 126. Cf. Krauss, loc. cit. p. 21 sq. (Southern Slavs).]

[Footnote 219: Grimm, Teutonic Mythology, i. 45, n. 2.]

[Footnote 220: Baring-Gould, Strange Survivals, p. 2. For various instances of similar beliefs, see Sartori, in Zeitschr. f. Ethnol. xxx. 14 sqq.; Crawley, Mystic Rose, p. 25.]

[Footnote 221: Baring-Gould, op. cit. p. 4.]

[Footnote 222: Crawley, op. cit. p. 25.]

[Footnote 223: Westermarck, 'Nature of the Arab [vG]inn, illustrated by the Present Beliefs of the People of Morocco,' in Jour. Anthr. Inst. xxix. 253, 260.]

On the other hand it is maintained that the foundation-sacrifice is partly, if not exclusively, performed for the purpose of converting the soul of the victim into a protecting demon.[224] This opinion, no doubt, has the support of beliefs actually held by some of the peoples who practise the rite. When the gate of the new city of Tavoy, in Tenasserim, was built, Mason was told by an eye-witness that a criminal was put in each post-hole to become a guardian spirit.[225] The Burmese kings used to have victims buried alive at the gates of their capitals, "so that their spirits might watch over the city."[226] Formerly, in Siam, "when a new city gate was being erected, it was customary for a number of officers to lie in wait near the spot, and seize the first four or eight persons who happened to pass by, and who were then buried alive under the gate-posts, to serve as guardian angels."[227] But whatever be the present notions of certain peoples concerning the object of the building-sacrifice, I do not believe that its primary object could have been to procure a spirit-guardian. According to early ideas, the ghost of a murdered man is not a friendly being, and least of all is he kindly disposed towards those who killed him. Several instances are known in which later generations have put upon human sacrifices an interpretation obviously foreign to their original purpose.[228] Thus, according to a North {465} German tradition, a master-builder was immured by a certain knight in the tower which he had built, as a punishment for boasting that he could have built a still finer tower if he had liked to do so.[229] An Indian raja, we are told, was once building a bridge over the river Jargoat Chunâr, and when it fell down several times he was advised to sacrifice a Brahman girl to the local deity; however, "she has now become the Marî or ghost of the place, and is regularly worshipped in time of trouble."[230] Considering that the foundation-sacrifice was offered for the purpose of protecting the living against the attacks of the spirit of the place, it is quite intelligible that the ghost of the victim came in time to be looked upon as a guardian spirit; and it was all the more natural to attribute to the dead the function of a guard in cases where he was buried at the gate. But he was buried there, I presume, simply because that spot was thought to be the most dangerous. The gate of a town corresponds to the entrance of a house, and the threshold has almost universally been regarded as the proper haunt of what the Moors call "the owners of the place."[231]

[Footnote 224: Tylor, Primitive Culture, i. 106. Grant Allen, op. cit. p. 248 sqq. Lippert, Christenthum, Volksglaube und Volksbrauch, p. 456 sq. Idem, Kulturgeschichte der Menschheit, ii. 270. Gaidoz, in Mélusine, iv. 14 sqq. Sartori, in Zeitsthr. f. Ethnol. xxx. 32 sqq.]

[Footnote 225: Tylor, Primitive Culture, i. 107.]

[Footnote 226: Woodthorpe, in Jour. Anthr. Inst. xxvi. 24. See also Shway Yoe, The Burman, i. 286.]

[Footnote 227: Alabaster, Wheel of the Law, p. 212 sq. Cf. Gaidoz, loc. cit. p. 14 sq.]

[Footnote 228: See Nyrop, Romanske Mosaiker, p. 73 sqq.; also infra, p. 465 sq.]

[Footnote 229: Nyrop, op. cit. p. 73.]

[Footnote 230: Crooke, Popular Religion of Northern India, ii. 174.]

[Footnote 231: See Trumbull, Threshold Covenant, passim.]

Whilst the man who is sacrificed is in some cases described as a guardian, he is in other cases regarded as a messenger. The Mayas of Yucatan maintained that the human victims whom they offered in times of distress were sent as messengers to the spirit-world to make known the wants of the people.[232] The same idea prevailed in Great Benin. When the head jujuman had said the prayer in which he asked Ogiwo to let no sickness come for Benin, he thus addressed the slaves who were going to be clubbed to death and tied in the sacrifice-trees:--"So you shall tell Ogiwo. Salute him proper."[233] A message was likewise sent to the head juju with the slave who was sacrificed to it; [234] and a message saluting the rain-god was put in the {466} mouth of the woman who was sacrificed when there was too much rain.[235] Mr. Ling Roth suggests that the main object of the human sacrifices which were offered in Benin "was the sending of prayers, by means of the special messengers, for the welfare of the community, to the spirits of the departed, or to other spirits, such as the spirits of the beads, the Rain-God, Sun-God, the God-Ogiwo"; and he thinks that this explains "a cult of world-wide prevalence."[236] But considering that in Yucatan and Benin, as elsewhere, the human victim was sacrificed for the avowed purpose of averting some mortal danger from the community or the king, I conclude that there, also, the primary object of the rite was to offer a substitute, though this substitute came to be used as a messenger.

[Footnote 232: Dorman, op. cit. p. 213.]

[Footnote 233: Moor and Roupell, quoted by Read and Dalton, op. cit. p. 7; also by Ling Roth, Great Benin, p. 72.]

[Footnote 234: Supra, p. 456.]

[Footnote 235: Supra, p. 444.]

[Footnote 236: Ling Roth, op. cit. p. 72.]

I do not affirm that the practice of human sacrifice is in every case based on the idea of substitution; the notion that a certain god has a desire for such sacrifices may no doubt induce his worshippers to gratify this desire for a variety of purposes. But I think there is sufficient evidence to prove that, when men offer the lives of their fellow-men in sacrifice to their gods, they do so as a rule in the hopes of thereby saving their own. Human sacrifice is essentially a method of life-insurance--absurd, no doubt, according to our ideas, but not an act of wanton cruelty. When practised for the benefit of the community or in a case of national distress, it is hardly more cruel than to advocate the infliction of capital punishment on the ground of social expediency, or to compel thousands of men to suffer death on the battle-field on behalf of their country. The custom of human sacrifice admits that the life of one is taken to save the lives of many, or that an inferior individual is put to death for the purpose of preventing the death of somebody who has a higher right to live. Sometimes the king or chief is sacrificed in times of scarcity or pestilence, but then he is probably held personally responsible for the calamity.[237] Very frequently {467} the victims are prisoners of war or other aliens, or slaves, or criminals, that is, persons whose lives are held in little regard. And in many cases these are the only victims allowed by custom.

[Footnote 237: Frazer, Golden Bough, i. 15 sq.]

This was generally the case among the ancient Teutons,[238] though they sometimes deemed a human sacrifice the more efficacious the more distinguished the victim, and

the nearer his relationship to him who offered the sacrifice.[239] The Gauls, says Cæsar, "consider that the oblation of such as have been taken in theft, or robbery, or any other offence, is more acceptable to the immortal gods; but when a supply of that class is wanting, they have recourse to the oblation of even the innocent."[240] Diodorus Siculus states that the Carthaginians in former times used to sacrifice to Saturn the sons of the most eminent persons, but that, of later times, they secretly bought and bred up children for that purpose.[241] The chief aim of the wars of the ancient Mexicans was to make prisoners for sacrificial purposes; other victims were slaves who were purchased for this object, and many criminals "who were condemned to expiate their crimes by the sacrifice of their lives."[242] The Yucatans sacrificed captives taken in war, and only if such victims were wanting they dedicated their children to the altar "rather than let the gods be deprived of their due."[243] In Guatemala the victims were slaves or captives or, among the Pipiles, illegitimate children from six to twelve years old who belonged to the tribe.[244] In Florida the human victim who was offered up at harvest time was chosen from among the Spaniards wrecked on the coast.[245] Of the Peruvian Indians before the time of the Incas, Garcilasso de la Vega states that, "besides ordinary things such as animals and maize, they sacrificed men and women of all ages, being captives taken in wars which they made against each other."[246] Among the Tshi-speaking peoples of the Gold Coast, "the persons ordinarily sacrificed to the gods are prisoners of war or slaves. When the latter, they are usually aliens, as a protecting god is not so well satisfied with the sacrifice of his own people."[247] In Great Benin, according to Captain Roupell, the people who were kept for sacrifice were bad men, or men with bad sickness, {468} and they were all slaves.[248] In Fiji the victims were generally prisoners of war, but sometimes they were slaves procured by purchase from other tribes.[249] In Nukahiva "the custom of the country requires that the men destined for sacrifice should belong to some neighbouring nation, and accordingly they are generally stolen."[250] In Tahiti "the unhappy wretches selected were either captives taken in war, or individuals who had rendered themselves obnoxious to the chiefs or the priests.**"[251] The Muruts of Borneo "never sacrifice one of their own people, but either capture an individual of a hostile tribe, or send to a friendly tribe to purchase a slave for the purpose."[252] It is said to be contrary to the Káyán custom to sell or sacrifice one of their own nation.[253] The G[=a]ro hill tribes "generally select their victims out of the Bengali villages in the plains."[254] The Kandhs considered that the victim must be a stranger. "If we spill our own blood," they said, "we shall have no descendants";[255] and even the children of Meriahs, who were reared for sacrificial purposes, were never offered up in the village of their birth.[256]

[Footnote 238: Grimm, Teutonic Mythology, i. 45.]

[Footnote 239: Holtzmann, Deutsche Mythologie, p. 232.]

[Footnote 240: Cæsar, De bello gallico, vi. 16.]

[Footnote 241: Diodorus Siculus, xx. 14.]

[Footnote 242: Clavigero, op. cit. i. 282.]

[Footnote 243: Bancroft, op. cit. ii. 704.]

[Footnote 244: Stoll, op. cit. p. 40.]

[Footnote 245: Bry, op. cit. p. 11.]

[Footnote 246: Garcilasso de la Vega, op. cit. i. 50.]

[Footnote 247: Ellis, Tshi-speaking Peoples, p. 170.]

[Footnote 248: Ling Roth, Great Benin, p. 70.]

[Footnote 249: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 57. Cf. Wilkes, op. cit. iii. 97.]

[Footnote 250: Lisiansky, op. cit. p. 81 sq.]

[Footnote 251: Ellis, Polynesian Researches, i. 346.]

[Footnote 252: Denison, quoted by Ling Roth, Natives of Sarawak, ii. 216.]

[Footnote 253: Burns, in Jour. of Indian Archipelago, iii. 145.]

[Footnote 254: Godwin-Austen, in Jour. Anthr. Inst. ii. 394.]

[Footnote 255: Macpherson, Memorials of Service in India, p. 121.]

[Footnote 256: Campbell, Wild Tribes of Khondistan, p. 53.]

We find that various peoples who at a certain period have been addicted to the practice of human sacrifice, have afterwards, at a more advanced stage of civilisation, voluntarily given it up. The cause of this is partly an increase, or expansion, of the sympathetic sentiment, partly a change of ideas. With the growth of enlightenment men would lose faith in this childish method of substitution, and consequently find it not only useless, but objectionable; and any sentimental disinclination to the practice would by itself, in the course of time, lead to the belief that the deity no longer cares for it, or is averse to it. Brahmanism gradually abolished the immolation of human victims, incompatible as it was with the precept of ahimsâ, or respect for everything that has life; "the liberation of the victim, or the substitution in its stead and place of a {469} figure made of flour paste, both of which were at first matter of sufferance, became at length matter of requirement."[257] According to the Mahabharata, the priest who performs a human sacrifice is cast into hell.[258] In Greece, in the historic age, the practice was held in horror at least by all the better minds, though it was regarded as necessary on certain occasions.[259] It was strongly condemned by enlightened Romans. Cicero speaks of it as a "monstrous and barbarous practice" still disgracing Gaul in his day; [260] and Pliny, referring to the steps taken by Tiberius to stop it, declares it impossible to estimate the debt of the world to the Romans for their efforts to put it down.[261]

[Footnote 257: Barth, Religions of India, p. 97.]

[Footnote 258: Supra, p. 458.]

[Footnote 259: Stengel, op. cit. p. 117. Cf. Donaldson, loc. cit. p. 464.]

[Footnote 260: Cicero, Pro Fonteio, 10 (21).]

[Footnote 261: Pliny, Historia naturalis, xxx. 4 (1).]

The growing reluctance to offer human sacrifice led to various practices intended to replace it.[262] Speaking of the Italian custom of dedicating as a sacrifice to the gods every creature that should be born in the following spring, Festus adds that, since it seemed cruel to kill innocent boys and girls, they were kept till they had grown up, then veiled and driven beyond the boundaries.[263] Among various peoples human effigies or animals were offered instead of men.

[Footnote 262: Cf. Krause, 'Die Ablösung der Menschenopfer,' in Kosmos, 1878, iii. 76 sqq.]

[Footnote 263: Festus, op. cit. 'Ver sacrum,' p. 379.]

Among the Malays of the Malay Peninsula dough models of human beings, actually called "the substitutes," are offered up to the spirits on the sacrificial trays; and in the same sense are the directions of magicians, that "if the spirit craves a human victim a cock may be substituted."[264] We are told that, in Egypt, King Amosis ordered three waxen images to be burned in the temple of Heliopolis in lieu of the three men who in earlier times used to be sacrificed there.[265] The Romans offered dolls;[266] and in old Hindu families belonging to the sect of the Vámácháris a practice still obtains of sacrificing an effigy {470} instead of a living man.[267] In India, Greece, and Rome, animals, also, were substituted for human victims.[268] Of a similar substitution there is probably a trace in the Biblical story of Isaac being exchanged for a ram, and in the

paschal sacrifice.[269] On the Gold Coast the human victim who was formerly sacrificed to the god of the Prah is nowadays replaced by a bullock which is specially reserved and fattened for the purpose.[270]

[Footnote 264: Skeat, Malay Magic, p. 72.]

[Footnote 265: Porphyry, op. cit. ii. 55.]

[Footnote 266: Leist, Græco-italische Rechtsgeschichte, p. 272 sqq.]

[Footnote 267: Rájendralála Mitra, op. cit. ii. 109 sq.]

[Footnote 268: Leist, Græco-italische Rechtsgeschichte, p. 267 sqq. Frazer, Golden Bough, ii. 38, n. 2. Pausanias, ix. 8. 2. For various modifications of human sacrifice in India, see Wilson, Works, ii. 267 sq.; Crooke, Popular Religion of Northern India, ii. 175 sq.]

[Footnote 269: See supra, p. 458.]

[Footnote 270: Ellis, Tshi-speaking Peoples, p. 66.]

In other cases human sacrifices have been succeeded by practices involving the effusion of human blood without loss of life. We are told that, in Laconia, Lycurgus established the scourging of lads at the altar of Artemis Orthia, in place of the sacrifice of men, which had previously been offered to her;[271] and Euripides represents Athena as ordaining that, when the people celebrate the festival of Artemis the Taurian goddess, the priest, to compensate her for the sacrifice of Orestes, "must hold his knife to a human throat, and blood must flow to satisfy the sacred claims of the goddess, that she may have her honours."[272] There are also many instances of bleeding or mutilation practised for the same purpose as human sacrifice, probably according to the principle of pars pro toto, though it is impossible to decide whether they really are survivals of an earlier sacrifice.

[Footnote 271: Pausanias, ix. 16. 10.]

[Footnote 272: Euripides, Iphigenia in Tauris, 1458 sqq.]

Besides the ceremony of nawgia, already described,[273] the Tonga Islanders had another ceremony called tootoo-nima, or cutting off a portion of the little finger, as a sacrifice to the gods, for the recovery of a superior relation who was ill; and so commonly was this done that, in Mariner's days, there was scarcely a person living in the Tonga Islands who had not lost one or both little fingers, or at least a considerable portion of them.[274] In Chinese literature there are frequently mentioned instances of persons cutting off flesh from their bodies to cure parents or paternal grandparents dangerously ill. In most cases {471} it remains unmentioned how the flesh was prepared; but it is sometimes stated that porridge or broth was made of it, or that it was mixed with medicine. Dr. de Groot maintains that it was in the first place the ascription of therapeutic virtues to parts of the human body that prompted such filial self-mutilation. But he adds that "often also we read of thigh-cutters invoking Heaven beforehand, solemnly asking this highest power to accept their own bodies as a substitute for the patients' lives they wanted to save; their mutilation thus assuming the character of self-immolation."[275] According to the testimony of a native writer, there is scarcely a respectable house in all Bengal, the mistress of which has not at one time or other shed her blood, under the notion of satisfying the goddess Chandiká by the operation. "Whenever her husband or a son is dangerously ill, a vow is made that on the recovery of the patient, the goddess would be regaled with human blood. . . . The lady performs certain ceremonies, and then bares her breast in the presence of the goddess, and with a nail-cutter (naruna) draws a few drops of blood from between her breasts and offers them to the divinity."[276] Garcilasso de la Vega states that, whilst some of the Peruvian Indians before the time of the Incas sacrificed men, there were others who, though

they mixed human blood in their sacrifices, did not obtain it by killing anyone, but by bleeding the arms and legs, according to the importance of the sacrifice, and, in the most solemn cases, by bleeding the root of the nose where it is joined by the eyebrows.[277]

[Footnote 273: Supra, p. 455.]

[Footnote 274: Mariner, op. cit. ii. 222.]

[Footnote 275: de Groot, Religious System of China, (vol, iv. book) ii. 386 sq.]

[Footnote 276: Rájendralála Mitra, op. cit. i. 111 sq.]

[Footnote 277: Garcilasso de la Vega, op. cit. i. 52.]

There is one form of human sacrifice which has outlived all others, namely, the penal sacrifice of offenders. There can be no moral scruples in regard to a rite which involves a punishment regarded as just. Indeed, this kind of human sacrifice is even found where the offering of animals or lifeless things has fallen out of use or become a mere symbol. For this is the only sacrifice which is intended to propitiate the deity by the mere death of the victim; and gods are believed to be capable of feeling anger and revenge long after they have ceased to have material needs. The last trace of human sacrifice has {472} disappeared only when men no longer punish offenders capitally with a view to appeasing resentful gods.

* * * * *

Human beings are sacrificed not only to gods, but to dead men, in order to serve them as companions or servants, or to vivify their spirits, or to gratify their craving for revenge.

From various quarters of the world we hear of the immolation of men for the service of the dead, the victims generally being slaves, wives, or captives of war, or, sometimes, friends.[278] This rite occurs or has occurred, more or less extensively, in Borneo[279] and the Philippine Islands,[280] in Melanesia and Polynesia,[281] in many different parts of Africa,[282] and among some American tribes.[283] In America, however, it was carried to its height by the more civilised nations of Central America and Mexico, Bogota and Peru.[284] There is evidence to show that the funeral ceremonies {473} of the ancient Egyptians occasionally included human sacrifice at the gate of the tomb, although the practice would seem to have been exceptional, at any rate after Egypt had entered upon her period of greatness.[285] It has been suggested that in China the burial of living persons with the dead dates from the darkest mist of ages, and that the cases on record in the native books are of relatively modern date only because in high antiquity the custom was so common, that it did not occur to the annalists and chroniclers to set down such everyday matters as anything remarkable.[286] In the fourteenth century of our era, the funeral sacrifice of men was abolished, even for emperors and members of the imperial family,[287] but it has assumed a modified shape under which it still maintains itself in China. "Daughters, daughters-in-law, and widows especially imbued with the doctrine that they are the property of their dead parents, parents-in-law, and husbands, and accordingly owe them the highest degree of submissive devotion, often take their lives, in order to follow them into the next world." And though it has been enacted that no official distinctions shall be awarded to such suttees, whereas honours are granted to widowed wives, concubines, and brides who, instead of destroying themselves, simply abjure matrimonial life for good, sutteeism of widows and brides still meets with the same applause as ever, and many a woman is no doubt prevailed upon, or even compelled, by her own relations, to become a suttee.[288] Professor Schrader observes that "it is no longer possible to doubt that ancient Indo-Germanic custom ordained that the wife should die with her husband."[289] It has been argued, it is true, that the burning of widows begins rather late in India;[290] yet,

though the modern ordinance of suttee-burning be a corrupt departure {474} from the early Brahmanic ritual, the practice seems to be, not a new invention by the later Hindu priesthood, but the revival of an ancient rite belonging originally to a period even earlier than the Veda.[291] In the Vedic ritual there are ceremonies which obviously indicate the previous existence of such a rite.[292] From Greece we have the instances of Evadne throwing herself into the funeral pile of her husband,[293] and of the suicide of the three Messenian widows mentioned by Pausanias.[294] Sacrifice of widows occurred, as it seems as a regular custom, among the Scandinavians,[295] Heruli,[296] and Slavonians.[297] "The fact," says Mr. Ralston, "that, in Slavonic lands, a thousand years ago, widows used to destroy themselves in order to accompany their dead husbands to the world of spirits, seems to rest on incontestable evidence"; and if the dead was a man of means and distinction, he was also solaced by the sacrifice of his slaves.[298] Funeral offerings of slaves occurred among the Teutons[299] and the Gauls of Cæsar's time;[300] and in the Iliad we read of twelve captives being laid on the funeral pile of Patroclus.[301]

[Footnote 278: See Tylor, Primitive Culture, i. 458 sqq.; Spencer, Principles of Sociology, i. 203 sqq.; Liebrecht, Zur Volkskunde, p. 380 sq.; Schneider, Naturvölker, i. 202 sqq.; Hehn, op. cit. p. 416 sqq.; Westermarck, History of Human Marriage, p. 125 sq.; Frazer, Pausanias, iii. 199 sq.]

[Footnote 279: Brooke, Ten Years in Saráwak, i. 74. Hose and McDougall, 'Relations between Men and Animals in Sarawak,' in Jour. Anthr. Inst. xxxi. 207 sq. Bock, Head-Hunters of Borneo, pp. 210 n., 219 sq.]

[Footnote 280: Blumentritt, 'Der Ahnencultus und die religiösen Anschauungen der Malaien des Philippinen Archipels,' in Mittheilungen d. Geograph. Gesellsch. in Wien, xxv. 152 sq.]

[Footnote 281: Westermarck, op. cit. p. 125 sq. Brenchley, op. cit. p. 208 (natives of Tana). Williams and Calvert, op. cit. p. 161 sq. (Fijians). Lisiansky, op. cit. p. 81 (Nukahivans). Mariner, op. cit. ii. 220 sq. (Tonga Islanders). Taylor, Te Ika a Maui, p. 218 (Maoris). von Kotzebue, op. cit. iii. 247 (Sandwich Islanders).]

[Footnote 282: Rowley, Africa Unveiled, p. 127. Idem, Religion of the Africans, p. 102 sq. Schneider, Religion der afrikanischen Naturvölker, p. 118 sqq. Westermarck, op. cit. p. 125. Ramseyer and Kühne, Four Years in Ashantee, p. 50. Mockler-Ferryman, British Nigeria, pp. 235, 259 sqq. Burton, Mission to Gelele, ii. 19 sqq. (Dahomans). Idem, Abeokuta, i. 220 sq. Idem, Lake Regions of Central Africa, i. 124 (Wadoe); ii. 25 sq. (Wanyamwezi). Wilson, Western Africa, pp. 203, 219. Ellis, Tshi-speaking Peoples of the Gold Coast, p. 159 sqq. Idem, E[(w]e-speaking Peoples of the Slave Coast, pp. 117, 118, 121 sqq. Nachtigal, Sahara und Sudan, ii. 687 (Somraï and Njillem). Baker, Ismaïlia, p. 317 sq. (Wanyoro). Casati, Ten Years in Equatoria, i. 170 (Mambettu). Callaway, Religious System of the Amazulu, p. 212 sq.]

[Footnote 283: Spencer, Principles of Sociology, i. 204. Dorman, op. cit. p. 210 sqq. Westermarck, op. cit. p. 125. Macfie, Vancouver Island and British Columbia, p. 448. Charlevoix, Voyage to North America, ii. 196 sq. (Natchez). Rochefort, Histoire naturelle et morale des Iles Antilles, p. 568 sq. (Caribs).]

[Footnote 284: Tylor, Primitive Culture, i. 461. Spencer, Principles of Sociology, i. 205. Dorman, op. cit. p. 212 sqq. Acosta, op. cit. ii. 313, 314, 344 (Peruvians).]

[Footnote 285: Wiedemann, Ancient Egyptian Doctrine of the Immortality of the Soul, p. 62 n.]

[Footnote 286: de Groot, op. cit. (vol. ii. book) i. 721.]

[Footnote 287: Ibid. (vol. ii. book) i. 724.]

[Footnote 288: Ibid. (vol. ii. book) i. 735, 754, 748.]

[Footnote 289: Schrader, Prehistoric Antiquities of the Aryan Peoples, p. 391.]

[Footnote 290: Hopkins, op. cit. p. 274.]

[Footnote 291: Tylor, Primitive Culture, i. 465 sqq. Zimmer, Altindisches Leben, p. 331.]

[Footnote 292: Rig-Veda, x. 18. 8 sq. Macdonell, Vedic Mythology, p. 165. Hillebrandt, 'Eine Miscelle aus dem Vedaritual,' in Zeitschr. d. Deutschen Morgenländ. Gesellsch. xl. 711. Oldenberg, Religion des Veda, p. 587.]

[Footnote 293: Euripides, Supplices, 1000 sqq.]

[Footnote 294: Pausanias, iv. 2. 7.]

[Footnote 295: Grimm, Deutsche Rechtsalterthümer, p. 451.]

[Footnote 296: Procopius, op. cit. ii. 14.]

[Footnote 297: Dithmar of Merseburg, Chronicon, viii. 2 (Pertz, Monumenta Germaniæ historica, v. 861). Zimmer, op. cit. p. 330.]

[Footnote 298: Ralston, Songs of the Russian People, p. 327 sq.]

[Footnote 299: Grimm, op. cit. p. 344.]

[Footnote 300: Cæsar, De bello gallico, vi. 19. In the ancient annals of the Irish there is one trace of human sacrifice being offered as a funeral rite (Cusack, History of the Irish Nation, p. 115 n.*).]

[Footnote 301: Iliad, xxiii. 175.]

According to early notions, men require wives and servants not only during their life-time, but after their death. The surviving relatives want to satisfy their needs, out of affection or from fear of withholding from the dead what belongs to them--their wives and their slaves. The destruction of innocent life seems justified by the low social standing of the victims and their subjection to their husbands or masters. However, with advancing civilisation this sacrifice has a tendency to {475} disappear, partly, perhaps, on account of a change of ideas as regards the state after death, but chiefly, I presume, because it becomes revolting to public feelings. It then dwindles into a survival. As a probable instance of this may be mentioned a custom prevalent among the Tacullies of North America: the widow is compelled by the kinsfolk of the deceased to lie on the funeral pile where the body of her husband is placed, whilst the fire is lighting, until the heat becomes intolerable.[302] In ancient Egypt little images of clay, or wood, or stone, or bronze, made in human likeness and inscribed with a certain formula, were placed within the tomb, presumably in the hopes that they would there attain to life and become the useful servants of the dead.[303] So also the Japanese[304] and Chinese, already in early times, placed images in, or at, the tombs of their dead as substitutes for human victims; and these images have always been considered to have no less virtual existence in the next world than living servitors, wives, or concubines. In China the original immolations were, moreover, replaced by the custom of allowing the nearest relatives and slaves of the deceased simply to settle on the tomb, instead of entering it, there to sacrifice to the manes, and by prohibiting widows from remarrying.[305]

[Footnote 302: Wilkes, U.S. Exploring Expedition, iv. 453.]

[Footnote 303: Wiedemann, Ancient Egyptian Doctrine of the Immortality of the Soul, p. 63.]

[Footnote 304: Tylor, Primitive Culture, i. 463.]

[Footnote 305: de Groot, op. cit. (vol. ii. book) i. 794 sqq.]

The practice of sacrificing human beings to the dead is not exclusively based on the idea that they require servants and companions. It is extremely probable that the funeral sacrifice of men and animals in many cases involves an intention to vivify the spirits of the deceased with the warm, red sap of life.[306] This seems to be the meaning

of the Dahoman custom of pouring blood over the graves of the ancestors of the king.[307] So, also, in Ashanti "human sacrifices are frequent and ordinary, to {476} water the graves of the Kings."[308] In the German folk-tale known under the name of 'Faithful John,' the statue said to the King, "If you, with your own hand, cut off the heads of both your children, and sprinkle me with their blood, I shall be brought to life again."[309] According to primitive ideas, blood is life; to receive blood is to receive life; the soul of the dead wants to live, and consequently loves blood. The shades in Hades are eager to drink the blood of Odysseus' sacrifice, that their life may be renewed for a time.[310] And it is all the more important that the soul should get what it desires as it otherwise may come and attack the living. The belief that the bloodless shades leave their graves at night and seek renewed life by drawing the blood of the living, is prevalent in many parts of the world.[311] As late as the eighteenth century this belief caused an epidemic of fear in Hungary, resulting in a general disinterment, and the burning or staking of the suspected bodies.[312] It is also possible that the mutilations and self-bleedings which accompany funerals are partly practised for the purpose of refreshing the departed soul.[313] The Samoans called it "an offering of blood" for the dead when the mourners beat their heads with stones till the blood ran.[314]

[Footnote 306: Cf. Spencer, Principles of Sociology, i. 288 sq.; Rockholz, Deutscher Glaube und Brauch, i. 55; Sepp, Völkerbrauch bei Hochzeit, Geburt und Tod, p. 154; Trumbull, Blood Covenant, p. 110 sqq.]

[Footnote 307: Reade, Savage Africa, p. 51 sq.]

[Footnote 308: Bowdich, Mission from Cape Castle to Ashantee, p. 289.]

[Footnote 309: Grimm, Kinder- und Hausmärchen, p. 29 sq.]

[Footnote 310: Odyssey, xi. 153.]

[Footnote 311: Trumbull, Blood Covenant, p. 114 sq.]

[Footnote 312: Farrer, Primitive Manners and Customs, p. 23 sq.]

[Footnote 313: Cf. Spencer, Principles of Sociology, i. 181 sq.]

[Footnote 314: Turner, Nineteen Years in Polynesia, p. 227.]

Finally, as offenders are sacrificed to gods in order to appease their wrath, so manslayers are in many cases killed in order to satisfy their victims' craving for revenge. In the next chapter we shall see that the execution of blood-revenge largely falls under the heading of "human sacrifice for the dead."

Chapter XX — Blood-revenge and Compensation--the Punishment of Death

ACCORDING to early custom, a person who takes the life of another may himself be killed by the relatives of his victim, or some other member of his family, clan, or tribe may be killed in his stead.[1] The custom of blood-revenge is found among a host of existing savages and barbarians, and has long survived among many peoples who have reached a higher degree of culture.

[Footnote 1: The collective responsibility usually involved in the blood-feud has been discussed supra, p. 30 sqq.]

We meet with blood-revenge in the midst of Japanese civilisation, not as a mere fact, but as a legally permitted custom. The avenger had only to observe certain prescribed formalities and regulations: there was a regular official to whom he must announce his resolve, and he must fix the time within which he would carry it out. The way in which

the enemy was killed was of no importance, except that, even in ancient times, the man who had recourse to assassination was reprehensible.[2] Among the Hebrews blood-revenge continued to exist during the periods of the Judges and Kings, and even later; under the Old Kingdom, says Wellhausen, "the administration of justice was at best but a scanty supplement to the practice of self-help."[3] It is a rule among {478} all the Arabs that whoever sheds the blood of a man owes blood on that account to the family of the slain person.[4] Says the Koran:--"O ye who believe! Retaliation is prescribed for you for the slain."[5] In ancient Eran blood-revenge survived the establishment of tribunals.[6] There is evidence left of its prevalence in early times among the Aryan population of India, though no mention is made in the Sûtras of blood revenge as an existing custom.[7] Among the Greeks it was only in the post-Homeric age that it was given up as a fundamental principle, the avenger being transformed into an accuser.[8] In Gaul and Ireland, though justice was administered by Druids or Brehons, their judgments seem to have been merely awards founded upon a submission to arbitration, the injured person being at liberty to take the law into his own hands and redress himself.[9] In the preface to the Senchus Mór we read that retaliation prevailed in Erin before Patrick, and that Patrick brought forgiveness with him.[10] Among the clans of Scotland, as is well known, the blood-feud has existed up to quite modern times; in the Catholic period even the Church recognised its power by leaving the right hand of male children unchristened, that it might deal the more unhallowed and deadly a blow to the enemy.[11] In England it was at least theoretically possible down to the middle of the tenth century for a manslayer to elect to bear the feud of the kindred of the slain, instead of paying the wer;[12] and long after the Conquest we still meet with a law against the system of {479} private revenge.[13] In Frisland, Lower Saxony, and parts of Switzerland, the blood-feud was practised as late as the sixteenth century.[14] In Italy it prevailed extensively, even among the upper classes, in the sixteenth and seventeenth centuries.[15] In Corsica,[16] Albania,[17] and Montenegro,[18] it exists even to this day.

[Footnote 2: Rein, Japan, p. 326. Dautremer, 'The Vendetta or Legal Revenge in Japan,' in Trans. Asiatic Soc. Japan, xiii. 84 sq.]

[Footnote 3: Wellhausen, Prolegomena to the History of Israel, p. 467.]

[Footnote 4: Burckhardt, Notes on the Bedouins and Wahábys, p. 85.]

[Footnote 5: Koran, ii. 173. Cf. ibid. xvii. 35.]

[Footnote 6: Geiger, Civilization of the Eastern Ir[=a]nians, ii. 31 sqq.]

[Footnote 7: Leist, Alt-arisches Jus Gentium, p. 422.]

[Footnote 8: Idem, Græco-italische Rechtsgeschichte, § 50 sq., especially pp. 375, 381. In Rome blood-revenge appears to have been very early suppressed. There is an echo of it in certain legends, but even in them it is represented as objectionable (Mommsen, History of Rome, i. 190).]

[Footnote 9: Maine, Early History of Institutions, lect. ii. d'Arbois de Jubainville, 'Des attributions judiciaires de l'autorité publique chez les Celtes,' in Revue Celtique, vii. 5. Ancient Laws of Ireland, iii. p. lxxxix.]

[Footnote 10: Skene, Celtic Scotland, iii. 152.]

[Footnote 11: Mackintosh, History of Civilisation in Scotland, ii. 279.]

[Footnote 12: Pollock and Maitland, History of English Law before the Time of Edward I. i. 48.]

[Footnote 13: Cherry, Growth of Criminal Law in Ancient Communities, p. 85.]

[Footnote 14: Günther, Idee der Wiedervergeltung, i. 207 sq. Frauenstädt, Blutrache und Todtschlagsühne im Deutschen Mittelalter, p. 21. Cf. Arnold, Deutsche Urzeit, p. 342.]

[Footnote 15: Simonde de Sismondi, Histoire des républiques italiennes du moyen âge, xvi. 456.]

[Footnote 16: Gregorovius, Wanderings in Corsica, i. 176 sqq.]

[Footnote 17: Gop[vc]evi['c], Oberalbanien und seine Liga, p. 322 sqq.]

[Footnote 18: Kohl, Reise nach Istrien, i. 406 sqq. Popovi['c], Recht und Gericht in Montenegro, p. 69.]

Blood-revenge is regarded not only as a right, but as a duty. We are told that the holiest duty a West Australian native is called on to perform is that of avenging the death of his nearest relation. "Until he has fulfilled this task, he is constantly taunted by the old women; his wives, if he be married, would soon quit him; if he is unmarried, not a single young woman would speak to him; his mother would constantly cry, and lament she should ever have given birth to so degenerate a son; his father would treat him with contempt, and reproaches would constantly be sounded in his ear."[19] Among the tribes of Western Victoria "a man would consider it his bounden duty to kill his most intimate friend for the purpose of avenging a brother's death, and would do so without the slightest hesitation."[20] In his description of the Eskimo about Behring Strait, Mr. Nelson states that blood-revenge is considered a sacred duty among all the Eskimo, a duty incumbent on the nearest male relative; if the son of the murdered man is an infant, it rests with him to seek revenge as soon as he attains puberty.[21] Among the Dacotahs "no one can escape this law of retaliation; public opinion would brand with disgrace whoever fled under such circumstances."[22] The Brazilian aborigines {480} consider it a moral obligation, a matter of conscience, for a son, a brother, or a nephew, to avenge the death of his relative.[23] Speaking of the Guiana Indians, Sir E. F. Im Thurn observes that, "in all primitive societies where there are no written laws and no supreme authority to enforce justice, such vengeance has been held as a sacred duty."[24] Confucius affirmed, in the strongest and most unrestricted terms, the duty of avenging the murder of a father or a brother.[25] In Japan "the man who was weak enough not to try to put to death the murderer of his father or his lord, was obliged to flee into hiding; from that day, he was despised by his own companions."[26] The Lord said to Moses:--"The revenger of blood himself shall slay the murderer; when he meeteth him, he shall slay him."[27] A similar rule, as we have seen, is laid down in the Koran.[28] The idea that blood-revenge is a sacred duty incumbent on the kindred of the deceased was probably held by all so-called Aryan peoples.[29] It still prevails in Albania,[30] Montenegro,[31] and Corsica. "Not to take revenge is considered by the genuine Corsicans as degrading. . . . Any one who shrinks from avenging himself . . . is allowed no rest by his relations, and all his acquaintances upbraid him with pusillanimity."[32]

[Footnote 19: Grey, Journals of Expeditions of Discovery in North-West and Western Australia, ii. 240.]

[Footnote 20: Dawson, Australian Aborigines, p. 71.]

[Footnote 21: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. p. 292 sq.]

[Footnote 22: Domenech, Seven Years' Residence in the Great Deserts of North America, ii. 338.]

[Footnote 23: von Martius, Beiträge zur Ethnographie Amerika's, i. 128.]

[Footnote 24: Im Thurn, Among the Indians of Guiana, p. 329 sq.]

[Footnote 25: Legge, Chinese Classics, i. 111. Douglas, Confucianism and Taouism, p. 145.]

[Footnote 26: Dautremer, loc. cit. p. 83. Cf. Griffis, Corea, p. 227 (Coreans).]

[Footnote 27: Numbers, xxxv. 19.]

[Footnote 28: For modern Arabs, see Burckhardt, Notes on the Bedouins and Wahábys, p. 313 sq.; Blunt, Bedouin Tribes of the Euphrates, ii. 207.]

[Footnote 29: Geiger, op. cit. ii. 32 (Avesta people). Leist, Alt-arisches Jus Gentium, p. 422. Idem, Græco-italische Rechtsgeschichte, p. 323 sqq. de Valroger, op. cit. p. 472 (Celts). Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 229; Stemann, Den Danske Retshistorie indtil Christian V.'s Lov, p. 574; Keyser, Efterladte Skrifter, ii. pt. ii. 95; Rosenberg, Nordboernes Aandsliv, i. 487 (Teutons). Miklosich, 'Die Blutrache bei den Slaven,' in Denkschriften der kaiserl. Akademie d. Wissensch. Philos. histor. Classe, Vienna, xxxvi. 127 sqq. Ewers, Das alteste Recht der Russen, p. 50 sq.]

[Footnote 30: Hahn, Albanesische Studien, i. 176.]

[Footnote 31: Popovi['c], op. cit. p. 69. Kohl, op. cit. i. 409, 413 sqq. Miklosich, loc. cit. p. 145.]

[Footnote 32: Gregorovius, op. cit. i. 180 sq. For other instances of blood-revenge as a duty, see Boas, 'Central Eskimo,' Ann. Rep. Bur. Ethn. vi. 582; Petroff, 'Report on Alaska,' in Tenth Census of the United States, p. 158 (Atkha Aleuts); Kohler, in Zeitschr. f. vergl. Rechtswiss. vii. 376 (Papuans of New Guinea); Modigliani, Viaggio a Nías, p. 471; Bowring, Visit to the Philippine Islands, p. 177; Macpherson, Memorials of Service in India, p. 82 (Kandhs); Radde, Die Chews'uren, p. 115; von Haxthausen, Transcaucasia, p. 406 sqq. (Ossetes); Munzinger, Die Sitten und das Recht der Bogos, p. 87; Mungo Park, Travels in the Interior of Africa, p. 13 (Feloops bordering on the Gambia); Leuschner, in Steinmetz, Rechtsverhältnisse von eingeborenen Völkern in Afrika und Ozeanien, p. 23 (Bakwiri); ibid. p. 49 (Banaka and Bapuku); Nicole, ibid. p. 132 (Diakité-Sarrakolese); Lang, ibid. p. 256 sq. (Washambala); Kraft, ibid. p. 292 (Wapokomo); Viehe, ibid. p. 311 (Ovaherero); Rautanen, ibid. p. 341 (Ondonga); Sorge, ibid. p. 418 (Nissan Islanders in the Bismarck Archipelago).]

{481} The duty of blood-revenge is, in the first place, regarded as a duty to the dead, not merely because he has been deprived of his highest good, his life, but because his spirit is believed to find no rest after death until the injury has been avenged.[33] The disembodied soul carries into its new existence an eager longing for revenge, and, till the crime has been duly expiated, hovers about the earth, molesting the manslayer or trying to compel its own relatives to take vengeance on him.

[Footnote 33: See Kohler, Shakespeare vor dem Forum der Jurisprudenz, p. 131 sq.; Steinmetz, Ethnol. Studien zur ersten Entwicklung der Strafe, i. 291 sqq.; Idem, Rechtsverhältnisse, p. 49 (Banaka and Bapuku); Nicole, ibid. p. 132 (Diakité-Sarrakolese); Lang, ibid. p. 257 (Washambala).]

According to Yakut beliefs, a person who is murdered becomes a yor, that is, his ghost never comes to rest.[34] The Cheremises imagine that the spirits of persons who have died a violent death cause illness, especially fever and ague.[35] The Saoras of India seem to have most fear of the spirits of those who have died violent deaths.[36] The Burmese believe that persons who meet a violent death become "nats "and haunt the place where they were killed.[37] The Hudson Bay Eskimo regard the island of Akpatok as tabooed since the murder of part of the crew of a wrecked vessel, who camped on that island; "not a soul visits that locality lest the ghosts of the victims should appear and supplicate relief from the natives, who have not the proper offerings to make to appease them."[38] The Omahas believe that the spirits of those who have been killed

reappear after death, their errand being "to solicit vengeance on the perpetrators of the deed."[39] According to Genesis, the voice of {482} blood shed cried for vengeance until the murderer was punished.[40] A similar notion prevailed among the Bedouins, hence they thought they might escape the taking of revenge by covering up the blood with earth.[41] One of the most popular ghost stories in folk-tales is that which treats of the ghost of a murdered person flitting about the haunts of the living with no gratification but to terrify them.[42] According to Rohde, this belief was in full force at Athens in the fifth and fourth centuries before Christ.[43] Aeschylus attributes an Erinys to the heinous crime of a man's neglecting his duty as avenger of blood[44]--in other words, the soul of the slain turned its anger against the neglectful relative. Traces of the same belief still survive in various parts of Europe.[45] In Wärend, in Sweden, the people maintain that the unsatisfied ghost of a murdered man visits his relatives at night, and disturbs their rest; and it was an ancient custom among them that, if the murderer was not known, the nearest relation of the dead, before the knell began, went forward to the corpse and asked the dead himself to avenge his murder.[46]

[Footnote 34: Sumner, in Jour. Anthr. Inst. xxxi. 101.]

[Footnote 35: Abercromby, Pre- and Proto-historic Finns, i. 168 sq.]

[Footnote 36: Fawcett, in Jour. Anthrop. Soc. Bombay, i. 59.]

[Footnote 37: Schway Yoe, The Burman, i. 286.]

[Footnote 38: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 186.]

[Footnote 39: James, Expedition from Pittsburgh to the Rocky Mountains, i. 267.]

[Footnote 40: Genesis, iv. 10.]

[Footnote 41: Jacob, Leben der vorislâmischen Beduinen, p. 146. Cf. Schwally, Leben nach dem Tode, p. 52 sq.]

[Footnote 42: See Dyer, The Ghost World, p. 65 sqq.; Andree, Ethnographische Parallelen, p. 80 sqq.]

[Footnote 43: Rohde, Psyche, p. 240. Cf. Idem, 'Paralipomena,' in Rheinisches Museum für Philologie, 1895, p. 19 sq.; Schmidt, Ethik der alten Griechen, ii. 125 sqq.]

[Footnote 44: Aeschylus, Choephori, 283 sqq. Cf. ibid. 400 sqq.; Plato, Leges, ix. 866.]

[Footnote 45: Dyer, op. cit. p. 68 sqq. Thorpe, Northern Mythology, ii. 19 sq.]

[Footnote 46: Hyltén-Cavallius, Wärend och Wirdarne, ii. 274; i. 473.]

From one point of view, blood-revenge is thus a form of human sacrifice. Sometimes it even formally bears a strong resemblance to certain other human sacrifices which are offered to the dead. Among some Queensland tribes, when the assassin has been caught red-handed, the slayer and slain are buried together in the same grave;[47] and among the ancient Teutons the avenger by preference slew the culprit at the feet of the murdered man, or at his tomb.[48] Blood-revenge also resembles other kinds of human sacrifice so far that it serves as a safeguard for the sacrificer--in this case the avenger, who would otherwise expose himself to the persecutions of the revengeful spirit of the dead.

[Footnote 47: Roth, Ethnological Studies among the North-West-Central Queensland Aborigines, p. 165.]

[Footnote 48: Wilda, Strafrecht der Germanen, pp. 170, 692.]

But the practice of blood-revenge is not exclusively {483} based on a desire to avenge the injury done to a fellow-creature and to gratify the angry passion of his soul. The act which caused his death is at the same time an injury inflicted upon the survivors. Hence, in many cases, a murder committed within the family or kin is left unavenged.[49] Among the Iroquois, says Loskiel, any one who has murdered his own relative escapes

without much difficulty, since the family, who alone have a right to take revenge, do not choose to weaken their influence by depriving themselves of another member besides the one whom they have already lost.[50] Again, when the murderer belongs to an extraneous family, the injury inflicted on the relatives of the murdered man suggests not only revenge, but reparation.

[Footnote 49: Steinmetz, Ethnologische Studien zur ersten Entwicklung der Strafe, ii. 159 sqq. Mauss, 'La religion et les origines du droit pénal,' in Revue de l'histoire des religions, xxxv. 44. Kovalewsky, 'Les origines du devoir,' in Revue internationale de Sociologie, ii. 86. Cf. Seebohm, Tribal Custom in Anglo-Saxon Law, pp. 30, 42 (Welsh); Robertson Smith, Religion of the Semites, p. 420; Idem, Marriage and Kinship in early Arabia, p. 25. Among the Jbâla of Northern Morocco blood-revenge is taken for the killing of a cousin, but not for the killing of a brother.]

[Footnote 50: Loskiel, History of the Mission of the United Brethren among the Indians in North America, i. 16.]

The taking of life for life may itself, in a way, serve as compensation. It seems that, in some cases, the blood of the slain homicide is supposed to restore, as it were, to the family of his victim the loss of life which he has caused them.[51] Such an idea probably underlies a custom which Burckhardt heard existed among the Hallenga, who draw their origin from Abyssinia. When the slayer has been seized by the relatives of the deceased, a family feast is proclaimed, at which the murderer is brought into their midst. While his throat is then slowly cut with a razor, the blood is caught in a bowl and handed round amongst the guests, "every one of whom is bound to drink of it at the moment the victim breathes his last."[52] Among various Arabic-speaking tribes in Morocco I have met with a practice which also, possibly, involves a vague idea of restoration. On the perpetration of his deed the avenger {484} licks off the blood from the blade of the dagger with which he killed his victim; and in one instance related to me, he bit off a piece of flesh from the dead body and sucked its blood.[53] Mr. Trumbull even goes so far as to believe that, among the Hebrews, the primal idea of the goel's mission was not to wreak vengeance, but "to restore life for life, or to secure the adjusted equivalent of a lost life."[54] But it is difficult to suppose that the exacting of blood-revenge ever could have been looked upon as an equivalent in the full sense of the term. If the loss of life is to be compensated some other practice must take its place.

[Footnote 51: Cf. Trumbull, Blood Covenant, p. 126 sqq.]

[Footnote 52: Burckhardt, Travels in Nubia, p. 356.]

[Footnote 53: Cf. Goldziher, in Robertson Smith, Kinship and Marriage in Early Arabia, p. 296 n. 1.]

[Footnote 54: Trumbull, Blood Covenant, pp. 260, 263.]

Sometimes the manslayer, instead of being killed, is adopted as a member of the family of his victim.[55] Among the Kabyles of Algeria, for instance, a person who has killed another unintentionally, goes to the parents of the dead and says to them: "If you want to kill me, kill me, here is my winding-sheet. If not, pardon me, and I shall henceforth be one of your children." And from this day the manslayer is considered to belong to the kharouba, or gens, of the deceased.[56] Among the Jbâla of Northern Morocco, again, a homicide sometimes induces the avenger to abstain from his persecutions by giving him his sister or daughter in marriage; and a similar custom has been noticed among the Beni Amer[57] and Bogos.[58] In other cases slaves are given to the relatives of the slain in order to atone for the guilt;[59] but most commonly the compensation consists of cattle, money, or other property.

[Footnote 55: See Steinmetz, Studien, i. 410 sqq., 439 sqq.; Kovalewsky, in Revue Internationale de Sociologie, ii. 87 sq.]

[Footnote 56: Hanoteau and Letourneux, La Kabylie, iii. 68 sq.]

[Footnote 57: Munzinger, Ostafrikanische Studien, p. 322.]

[Footnote 58: Idem, Die Sitten und das Recht der Bogos, p. 83. Cf. Kohler, Nachwort zu Shakespeare vor dem Forum der Jurisprudenz, p. 15 sq.]

[Footnote 59: Squier, 'Archæology and Ethnology of Nicaragua,' in Trans. American Ethn. Soc. iii. pt. i. 129. Idem, Nicaragua, ii. 345 (ancient Nicaraguans). Macdonald, Africana, i. 171 (Eastern Central Africans).]

By giving presents to the relatives of his victim, the offender not only repairs the loss which he has inflicted {485} upon them, but also appeases their wounded feelings.[60] The pleasure of gain tends to suppress their passion, and the loss and humiliation which the adversary suffers by the gift exercise a healing influence on their resentment.[61] Sometimes the present is chiefly intended to serve as an apology. Among the Iroquois, according to Mr. Morgan, the white wampum which the murderer sent to the family of his victim and which, if accepted, for ever wiped out the memory of his deed, "was not in the nature of a compensation for the life of the deceased, but of a regretful confession of the crime, with a petition for forgiveness."[62] Compensation, moreover, has the advantage of saving the injured party the dangers involved in a blood-feud, the uncertainty of the issue, and the serious consequences which may result from the accomplished act of revenge. Whilst the carrying out of the principle of "life for life" often leads to protracted hostilities between the parties, compensation has a tendency to bring about a durable peace. For this reason it is to the interest of society at large to encourage the latter practice; and this encouragement naturally adds to its attractions.

[Footnote 60: Rée, Entstehung des Gewissens, p. 57 sqq. Steinmetz, Studien, i. 472 sq.]

[Footnote 61: Cf. Miklosich, loc. cit. p. 148; Kohl, op. cit. i. 426, 436 (Montenegrines and Albanians).]

[Footnote 62: Morgan, League of the Iroquois, pp. 331, 333. Cf. Turner, Samoa, p. 326 (people of Aneiteum).]

But in spite of its merits, the practice of composition has, in comparison with blood-revenge, various disadvantages. It is not equally calculated to satisfy a revengeful mind. It has to contend with the conservatism of ancient custom. It may be taken as a token of cowardice or weakness, whereas the blood-feud gives to its perpetrator an opportunity to display his courage and skill. It may be considered offensive to the dead kinsman. Finally, if it is to flourish, it presupposes a certain amount of wealth.[63] {486} The importance of these difficulties depends on the circumstances in each special case. Vindictiveness, conservatism, the desire for fighting, and the estimation in which courage and martial ability are held, are naturally subject to variations, and so are people's wealth and their willingness to compensate. The ideas held concerning the spirits of the departed are likewise variable. The readiness with which blood-money was accepted among the Greeks of the Homeric age has been explained by their belief in the disembodied soul's dreamlike existence in Hades, without strong passions and without the power to molest the living; whilst the later custom of demanding life for life has been interpreted as the result of a change of ideas which attributed much greater activity to the dead.[64] In other cases the deceased is supposed to be appeased by a mere ceremony, or by a vicarious sacrifice. The Ossetes believe that he often appears in a dream to some of his descendants, "tantôt pour exiger de lui la vengeance, tantôt pour lui permettre, au contraire, de la remplacer par un simple office des morts . . . . Revêtu d'habits de deuil, les cheveux épars, l'assassin Ossète vient sur la tombe de celui qu'il

a tué, pour accomplir une cérémonie dont le but avéré est de se consacrer lui-même à sa victime. Cette cérémonie est connue sous le nom de kifaeldicïn: le meurtrier se livre spontanément au défunt, qui, en la personne de son descendant, lui pardonne son offense."[65] In Eastern Central Africa, says Mr. Macdonald, "if one man slay another, the friends of the deceased are justified in killing the murderer on the spot. But if they catch him alive they put him in a slave-stick, till compensation be made by a heavy fine of from four to twenty slaves. When the fine is paid the life of the murderer is not demanded, but several of the slaves obtained in compensation are killed, to accompany the deceased."[66] In other instances the dead is perhaps supposed to be appeased by the mere compensation {487} paid to his descendants, or his feelings are simply disregarded when they collide with the interests of the living.[67] Generally speaking, the question whether compensation is to be accepted or not, must be settled by a balancing of advantages and drawbacks.

[Footnote 63: For the influence of wealth on the practice of composition, see Steinmetz, Studien, i. 427 sqq., and Lippert, Kulturgeschichte der Menschheit, ii. 591. Occasionally, however, composition occurs even among such a poor people as the Yahgans of Tierra del Fuego. "Sometimes," says Mr. Bridges (in A Voice for South America, xiii. 207), "the murderer is suffered to live, but he is much beaten and hurt, and has to make many presents to the relatives of the dead."]

[Footnote 64: Schmidt, Ethik der alten Griechen, ii. 125 sqq. Rohde, Psyche, pp. 8 sqq., 238.]

[Footnote 65: Kovalewsky, Coutume contemporaine et loi ancienne, p. 238.]

[Footnote 66: Macdonald, Africana, i. 170 sq.]

[Footnote 67: Cf. Steinmetz, Studien, i. 452.]

We may expect, then, to find the customs regarding blood-revenge and compensation to vary exceedingly among different peoples. Among many the rule of revenge is strictly followed, and compensation never, or rarely, accepted, at least for intentional homicide. This group includes not only tribes who are in a state of savagery, but peoples like the Beni Amer,[68] Marea,[69] Kabyles of Jurjura,[70] and Jbâla of Morocco. Burckhardt says of the Bedouins:--"The stronger and the more independent a tribe is, the more remote from cultivated provinces, and the wealthier its individuals, the less frequently are the rights of the Thar commuted into a fine. Great sheiks, all over the Desert, regard it as a shameful transaction to compromise in any degree for the blood of their relations."[71] Among the mountains of Daghestan[72] and in parts of Albania[73] it is likewise considered disgraceful to accept compensation for the murder of a relative.

[Footnote 68: Munzinger, Ostafrikanische Studien, p. 321 sq.]

[Footnote 69: Ibid. p. 242.]

[Footnote 70: Hanoteau and Letourneux, op. cit. iii. 61 sq.]

[Footnote 71: Burckhardt, Notes on the Bedouins and Wahábys, p. 178, Cf. Burton, Pilgrimage to Al-Madinah and Meccah, ii. 103.]

[Footnote 72: Kovalesky, in Revue internationale de Sociologie, ii. 87.]

[Footnote 73: Hahn, op. cit. i. 178.]

In some instances the acceptance of compensation does not necessarily mean that the family of the slain altogether renounce their right of revenge. Among the Ahts, "though it is usual to accept large presents as expiation for murder, yet, practically, this expiation is not complete, and blood alone effectually atones for blood. An accepted present never quite cancels the obligation to punish in the breast of the offended person or tribe."[74] Among the Somals, "after the equivalent is paid, the {488} murderer or one of his clan, contrary to the spirit of El Islam, is generally killed by the kindred or

tribe of the slain."[75] Among the Berbers (Shlu[h.]) of the province of Sûs, in Southern Morocco, a person who commits homicide immediately flees to another tribe, and places himself under its protection. His relatives then pay ddit, or blood-money, to the family of the victim, but this only prevents the offended party from taking revenge on any of them, and does not entitle the murderer to return; if he appears outside the tribe to whom he has fled for refuge, he is at any time liable to be killed. Among the Ossetes, again, it was formerly "a prevalent custom for a murderer to pay a fixed price for a certain time to the family of the murdered man, say for a year, during which time the blood-revenge remained dormant."[76]

[Footnote 74: Sproat, Scenes and Studies of Savage Life, p. 153.]

[Footnote 75: Burton, First Footsteps in East Africa, p. 87 n. [dagger]. Cf. Paulitschke, Ethnographie Nordost-Afrikas, p. 263.]

[Footnote 76: von Haxthausen, Transcaucasia, p. 405.]

In many instances, on the other hand, custom allows the acceptance of compensation as a perfectly justifiable alternative for blood-revenge, or even regards it as the proper method of settling the case. Among the Indians of Western Washington and North-Western Oregon the principle of life for life, though fully recognised, is sometimes abrogated in favour of material damages.[77] Among the Thlinkets "the murder of a relative can be atoned for by a certain number of blankets."[78] Among the Californian Karok the murder of a man's nearest relative may be compounded for by the payment of money.[79] The Kutchin demand blood-money for a slain kinsman, but avenge his death should such be denied.[80] Among the Kandhs the custom of blood-revenge was modified by the principle of money compensation, the acceptance of such compensation being in no case considered disgraceful.[81] In the Malay Archipelago, whilst the more ferocious tribes {489} insist, in many situations, upon a literal compliance with the law of retaliation, other tribes constantly accept a pecuniary compensation.[82] Among the majority of the Bedawee tribes of Egypt compensation is generally taken in commutation for vengeance;[83] and the same is the case among the Aenezes, though it would reflect shame on the friends of the slain person if they were to make the first overture.[84] Among the Wadshagga, again, the acceptance of blood-money is obligatory.[85] The Vendîdâd forbids the followers of Zoroastrianism to refuse the compensation offered for a deed of bloodshed.[86] Among the Irish the public opinion of the village held that the quarrels between its members should be compromised in a certain manner. However, if the guilty party did not pay the amount awarded, the community did not compel him to do so, and the injured party was then at liberty to avenge his own wrongs by reprisals or levying of private war.[87] Among the Teutons the kindred of the slain might, in early times, choose between taking revenge or accepting compensation, just as they liked; but later on they were expected by public opinion, and finally required by public authority, not to pursue the feud if the proper composition was forthcoming, except in a few extreme cases.[88]

[Footnote 77: Gibbs, 'Tribes of Western Washington and Northwestern Oregon,' in Contributions to North American Ethnology, i. 189.]

[Footnote 78: Petroff, loc. cit. p. 165.]

[Footnote 79: Powers, Tribes of California, p. 21.]

[Footnote 80: Richardson, Arctic Searching Expedition, i. 386.]

[Footnote 81: Hunter, Annals of Rural Bengal, ii. 76. Macpherson, Memorials of Service in India, p. 82.]

[Footnote 82: Crawfurd, History of the Indian Archipelago, iii. 111.]

[Footnote 83: Lane, Manners and Customs of the Modern Egyptians, p. 120.]

[Footnote 84: Burckhardt, Notes on the Bedouins and Wahábys, p. 87.]

[Footnote 85: Merker, quoted by Kohler, in Zeitschr. f. vergl. Rechtswiss. xv. 56.]

[Footnote 86: Geiger, op. cit. ii. 34.]

[Footnote 87: Ancient Laws of Ireland, iii. p. lxxx.]

[Footnote 88: Keyser, op. cit. ii. pt. ii. 95. Pollock and Maitland, op. cit. i. 46 sq. Gotlands-Lagen, 13.]

Thus the exaction of life for life, from being a duty incumbent on the family of the dead, becomes a mere right of which they may or may not avail themselves, as they please, and is at last publicly disapproved of or actually prohibited. Among the circumstances by which this process has been brought about there is still one which calls for special attention, namely, the pressure of some intervening authority, the elders of the tribe,[89] or {490} the chief, inducing the avenger to lay down his weapon and to accept money for blood. I do not say that the practice of compensation has originated in such an intervention; we meet it among peoples who know nothing of courts, judges, or regular arbitrators.[90] But when we hear of chiefs making efforts to check the blood-feud by persuading the injured party to accept remuneration in money or property, it is impossible to doubt that some connection exists between the system of compensation and the judicial power of the chief. Among the Indians of Brazil, when blood is shed, either designedly or accidentally, by one of the same tribe, the chief not seldom insists upon the acceptance of compensation by the family of the deceased.[91] Of the people of Nias, amongst whom the offender may suffer death at the hands of the avenger, we read that even grave cases, when brought before the chief, are often punished by fines only.[92] Among the Dooraunees, in Western Afghanistan, "if the offended party complains to the Sirdar, or if he hears of a murder committed, he first endeavours to bring about a compromise, by offering the Khoon Behau, or of price of blood."[93] The Teutonic nations, as Kemble observes, in the course of time made the State the arbitrator between the parties "by establishing a tariff at which injuries should be rated, and committing to the State the duty of compelling the injured person to receive, and the wrong-doer to pay, the settled amount. It thus engaged to act as a mediator between the conflicting interests, with a view to the maintenance of the general peace."[94]

[Footnote 89: Cf. Vámbéry, Das Türkenvolk, p. 305 sq. (Kirghiz); Munzinger, Ostafrikanische Studien, p. 500 (Barea and Kunáma).]

[Footnote 90: E.g., the Fuegians (Bridges, in South American Missionary Magazine, xiii. 152. Idem, in A Voice for South America, xiii. 207).]

[Footnote 91: von Martius, Beiträge zur Ethnographie Amerika's, i. 130. Idem, in Jour. Roy. Geographical Soc. ii. 199.]

[Footnote 92: Modigliani, Viaggio a Nías, p. 496.]

[Footnote 93: Elphinstone, Kingdom of Caubul, ii. 105 sq.]

[Footnote 94: Kemble, Saxons in England, i. 270.]

We have previously discussed the important measure of substituting punishment for revenge by transferring the judicial and executive power of the avenger to a special authority within the body politic, commissioned with {491} the administration of justice. The system of compensation was only one or the methods adopted by such an authority for the settling of disputes; and, on the whole, it was a sign of weakness. Speaking of the Rejangs of Sumatra, Marsden observes that the practice of expiating murder by the payment of a certain sum of money "had doubtless its source in the imbecility of government, which being unable to enforce the law of retaliation, the most obvious rule of punishment, had recourse to a milder scheme of retribution, as being preferable to absolute indemnity."[95] When the central power of jurisdiction is firmly established,

the rule of life for life regains its sway.[96] Thus, in the mature legislation of semi-civilised and civilised peoples, up to quite recent times, murder has almost invariably been treated as a capital offence--unless, indeed, committed by some person belonging to a specially privileged class, such as the Peruvian Incas,[97] the Brâhmanas of India, [98] or, in England, all who had the benefit of Clergy, that is, every man who knew how to read, with the exception of those who were married to widows.[99] But among many of the lower races, also, manslayers are subject to capital punishment, in the proper sense of the term--to death inflicted, not by an individual avenger, but by the community at large or by some special authority.[100]

[Footnote 95: Marsden, History of Sumatra, p. 246.]

[Footnote 96: Cf. Brunner, Deutsche Rechtsgeschichte, ii. 599 sq. (Teutonic peoples).]

[Footnote 97: Réville, Hibbert Lectures on the Native Religions of Mexico and Peru, p. 151.]

[Footnote 98: Laws of Manu, viii. 380 sq.]

[Footnote 99: Stephen, History of the Criminal Law of England, i. 458 sqq. According to the Cornelian law, a free Roman citizen could not be punished capitally for the commission of murder, but was simply exiled from Italy, whereas a slave was executed for a similar crime (Mommsen, Römisches Strafrecht, p. 631 sq.).]

[Footnote 100: Supra, pp. 171, 172, 189. Veniaminof, quoted by Petroff, loc. cit. p. 152 (Aleuts). Adair, History of the American Indians, p. 150. Morgan, League of the Iroquois, p. 331. Harmon, Journals of Voyages and Travels, p. 348 (Indians on the east side of the Rocky Mountains). Turner, Samoa, pp. 178, 295, 334 (Samoans, natives of Arorae, Efatese). Thomson, in Jour. Anthr. Inst. xxxi. 143 (Savage Islanders). Hickson, A Naturalist in North Celebes, p. 198 (Sangirese, in former days). Abreu de Galindo, History of the Discovery and Conquest of the Canary Islands, p. 27 (aborigines of Ferro). Johnston, Uganda Protectorate, ii. 882 (Mutei). Beltrame, Il Fiume Bianco e i Dénka, p. 77. In all these cases homicide or murder is said to be punished with death; but it may be that, in some of them, our authorities have not sufficiently distinguished between punishment and blood-revenge.]

It is not only by the slaying of a fellow-creature that a person may forfeit his right to live. Among various peoples custom allows, or sometimes even compels, the offended party to kill the offender in cases which involve {492} no blood-guiltiness, especially adultery;[101] and we hear of capital punishment being inflicted not only for homicide, but for treason,[102] incest,[103] adultery,[104] witchcraft,[105] sacrilege,[106] theft, [107] and other offences.[108] We have seen that among semi-civilised and civilised nations, particularly, the punishment of death has been applied to a great variety of offences, many of which appear to us almost venial.[109] And we have discussed both the origin of the idea that justice requires life for life, and the circumstances that have led to the infliction of punishments the severity of which, apparently at least, bears no proportion to the magnitude of the crime.[110]

[Footnote 101: Supra, p. 290 sqq. Infra, on Sexual Morality. Post, Studien zur Entwicklungsgeschichte des Familienrechts, p. 134 sq.]

[Footnote 102: Supra, p. 189.]

[Footnote 103: Infra, on Sexual Morality.]

[Footnote 104: Supra, p. 189. Infra, on Sexual Morality.]

[Footnote 105: Supra, p. 189 sq.]

[Footnote 106: Supra, p. 197.]

[Footnote 107: Infra, on the Right of Property.]

[Footnote 108: Supra, p. 195.]

[Footnote 109: Supra, p. 186 sqq.]

[Footnote 110: Supra, ch. vii.]

But whilst, among peoples of culture, capital punishment has been inflicted far beyond the limits of the lex talionis, we meet, on the other hand, among such peoples with opinions to the effect that it should not be applied even in the most atrocious cases. The old philosopher Lao-tsze, the founder of Taouism, condemned it both as useless and as irreverent. The people, he argued, do not fear death; to what purpose, then, is it to try to frighten them with death? There is only one who presides over the infliction of it. "He who would inflict death in the room of him who presides over it may be described as hewing wood instead of a great carpenter. Seldom is it that he who undertakes the hewing, instead of the great carpenter, does not cut his own hands."[111] Nor does Confucius seem to have been in favour of capital punishment. When Chî {493} K'ang asked his opinion as to the killing of "the unprincipled for the good of the principled," Confucius replied:--"Sir, in carrying on your government, why should you use killing at all? Let your evinced desires be for what is good, and the people will be good."[112] The early Christians generally condemned the punishment of death, as well as all other forms of shedding human blood;[113] but when the Church obtained an ascendency, the condemnation of it was modified into the doctrine that no priest or bishop must take any part in a capital charge.[114] Later on, from the twelfth century at least, the priest might assist at judicial proceedings resulting in a sentence of death, if only he withdrew for the moment, when the sentence was passed.[115] And whilst ostentatiously sticking to the principle, "Ecclesia non sitit sanguinem,"[116] the Church had frequent recourse to the convenient method of punishing heretics by relegating the execution of the sentence to the civil power, with a prayer that the culprit should be punished "as mildly as possible and without the effusion of blood," that is, by the death of fire.[117] In modern times the views of the early Christians regarding capital punishment have been revived by the Quakers;[118] but the powerful movement in favour of its abolition chiefly derives its origin from the writings of Beccaria and the French Encyclopedists.

[Footnote 111: Tâo Teh King, 74.]

[Footnote 112: Lun Yü, xii. 19.]

[Footnote 113: Hetzel, Die Todesstrafe, p. 71 sqq. Günther, Die Idee der Wiedervergeltung, i. 271. Lactantius, Divinæ Institutiones, vi. ('De vero cultu') 20 (Migne, Patrologiæ cursus, vi. 708): ". . . occidere hominem sit semper nefas, quem Deus sanctum animal esse voluit."]

[Footnote 114: Supra, p. 381 sq. Lecky, History of European Morals, ii. 39. Laurent, Études sur l'histoire de l'Humanité, iv. 223; vii. 233.]

[Footnote 115: Gerhohus, De ædificio Dei, 35 (Migne, op. cit. cxciv. 1282).]

[Footnote 116: Katz, Grundriss des kanonischen Strafrechts, p. 54.]

[Footnote 117: Lecky, History of European Morals, ii. 41.]

[Footnote 118: Gurney, Views & Practices of the Society of Friends, pp. 377 n. 1, 389.]

The great motive force of this movement has been sympathy with human suffering and horror of the destruction of human life--feelings which have been able to operate the more freely, the less they have been checked either by the belief in the social expediency of {494} capital punishment, or by the notion of a vindictive god who can be conciliated only by the death of the offender. It has been argued that the punishment of death is no more effective as a deterrent from crime than are certain other punishments. According to Beccaria, it is not the intensity of a pain which produces the greatest effect on the mind of man, but its continuance; hence the execution of a

culprit, occupying a short time only, must be a less deterring example than perpetual slavery, which ought to be the penalty for the greatest crimes.[119] Moreover, the circumstances which unavoidably attend the practical application of the punishment of death are such as excite the sympathy of the public in favour of the perpetrator of the crime and thereby seriously impair the efficacy of the punishment as an example.[120] An execution is regarded as less degrading than many other forms of punishment; when a man dies on the scaffold there is a counterpoise to the disgrace in the admiration excited by his firmness, whereas there is no such counterpoise when a man goes off in the prison van to be immured in a cell.[121] Statistical data prove, it is said, that, where capital punishment has been abolished either for certain crimes or generally, crime has not become more frequent after the abolition, whilst the re-enactment of capital punishment, or greater strictness in its execution, has nowhere diminished the number of offences punishable with death.[122] And the punishment of death is no more required by the dictates of abstract justice than it is requisite for the safety of the community. It is quite an arbitrary assumption, based on the rude theory of talion, that death must be inflicted on him who has caused death; such an assumption can be refuted simply by showing that there are many degrees of homicide.[123] Nay, far from being postulates of the highest justice, laws which {495} prescribe capital punishment may lead to the highest injustice. As Bentham observes, "the punishment of death is not remissible"; error is possible in all judgments, but whilst in every other case of judicial error compensation can be made, death alone admits of no compensation.[124] And not only may the innocent have to suffer an irreparable punishment, but the criminal easily escapes his punishment altogether. Experience shows that the punishment of death has the disadvantage of diminishing the repressive power of the legal menace, because witnesses, judges, and jurymen exert themselves to the utmost in order to avoid arriving at a verdict of guilty in many cases where an execution would be the consequence of such a verdict.[125] Finally, the punishment of death almost entirely misses one of the most essential aims of every legitimate punishment, the reformation of the criminal. Nay, by putting him to a speedy death we actually prevent him from morally reforming himself, and from manifesting the fruits of sincere repentance; and we perhaps deprive him of the opportunity of making good his claim to mercy at the hands of another and a higher Tribunal, on which we are arrogantly encroaching in a matter of which we are wholly unfit to judge.[126]

[Footnote 119: Beccaria, Dei delitti e delle pene, § 16.]

[Footnote 120: Romilly, Punishment of Death, p. 56 sqq.]

[Footnote 121: Ibid. p. 47 sq. Hetzel, op. cit. p. 454 sqq.]

[Footnote 122: Mittermaier, Die Todesstrafe, p. 150 sqq. Olivecrona, Om dödsstraffet, p. 130 sqq.]

[Footnote 123: Mittermaier, op. cit. pp. 62, 133. von Mehring, Frage von der Todesstrafe, p. 19 sqq.]

[Footnote 124: Bentham, Rationale of Punishment, p. 186 sqq. Cf. Hetzel, op. cit. p. 442 sqq.]

[Footnote 125: Bentham, op. cit. p. 191 sq. Mittermaier, op. cit. pp. 98 sqq., 148.]

[Footnote 126: Romilly, op. cit. p. 3 sqq.]

Under the influence of these and similar arguments, but chiefly owing to an increasing reluctance to take human life, the legislation of Europe has, from the end of the eighteenth century, undergone a radical change with reference to the punishment of death. In several European and American States it has been formally abolished, or is nowadays never inflicted,[127] whilst in the rest it is practically restricted to cases of

wilful murder. But it still has as strenuous advocates as ever, and receives much support from popular feelings. It is said that the abolition of capital punishment would remove one of the {496} best safeguards of society; that it definitely prevents the criminal from doing further mischief; that it is a much more effective means of deterring from crime than any other penalty; that its abolition would have the disadvantage of crimes widely differing in their nature being placed on the same footing; that a person criminally disposed, if he knew that he would only be punished with imprisonment for life, would, instead of merely perpetrating robbery, commit murder at the same time, being aware that no higher penalty on that account would be inflicted; and so forth. As usually, religion also is called in to give strength to the argument. Several writers maintain that the statements in the Bible which command capital punishment have an obligatory power on all Christian legislators;[128] we even meet with the assertion that the object of this punishment is not the protection of civil society, but to carry out the justice of God, in whose name "the judge should sentence and the executioner strike."[129] But I venture to believe that the chief motive for retaining the punishment of death in modern legislation is the strong hold which the principle of talion has on the minds of legislators, as well as on the mind of the public. This supposition derives much support from the fact that capital punishment is popular only in the case of murder. "Blood, it is said, will have blood, and the imagination is flattered with the notion of the similarity of the suffering, produced by the punishment, with that inflicted by the criminal."[130]

[Footnote 127: Günther, op. cit. iii. 347 sqq. von Liszt, Lehrbuch des Deutschen Strafrechts, p. 261.]

[Footnote 128: Mittermaier, op. cit. p. 128 sqq.]

[Footnote 129: Clay, The Prison Chaplain, p. 357.]

[Footnote 130: Bentham, Rationale of Punishment, p. 191.]

Chapter XXI — The Duel

WHEN the system of revenge was replaced by the system of punishment, the offended party generally lost the right of killing the offender. But there are noteworthy exceptions to this rule. In a previous chapter we have seen that, among various peoples, in cases involving unusually great provocation, an avenger who slays his adversary is either entirely excused by custom or law, or becomes subject to a comparatively lenient punishment.[1] A few words still remain to be said about the most persistent survival of the custom of exacting vengeance with eventual destruction of life, the modern duel. But in connection with this survival it seems appropriate to discuss the practice of duelling in general, in its capacity of a recognised social institution.

[Footnote 1: Supra, p. 290 sqq.]

Duelling, or the fighting in single combat on previous challenge, is sometimes resorted to as a means of bringing to an end hostilities between different groups of people. Among the aborigines of New South Wales "the war often ends in a single combat between chosen champions."[2] In Western Victoria quarrels between tribes are sometimes settled by duels between the chiefs, and the result is accepted as final. "At other times disputes are decided by combat between equal numbers of warriors, painted {498} with red clay and dressed in war costume; but real fighting seldom takes place, unless the women rouse the anger of the men and urge them to come to blows. Even then it rarely results in a general fight, but comes to single combats between warriors of

each side; who step into the arena, taunt one another, exchange blows with the liangle, and wrestle together. The first wound ends the combat."[3] Among the Thlinkets feuds between clans or families were commonly settled by duels between chosen champions, one from each side.[4] Ancient writers tell us that among the Greeks, Romans, and Teutons, combats were likewise agreed upon to take place between a definite number of warriors, for the sake of ending a war.[5] According to Tacitus, the Germans had the custom of deciding the event of battle by a duel fought between some captive of the enemy and a representative of the home army.[6] In all these cases, as it seems, the duel originates in a desire for a speedy peace.

[Footnote 2: Fraser, Aborigines of New South Wales, p. 40.]

[Footnote 3: Dawson, Australian Aborigines, p. 77.]

[Footnote 4: Holmberg, 'Ethnographische Skizzen über die Völker des russischen Amerika,' in Acta Societatis Scientiarum Fennicæ, iv. 322 sq.]

[Footnote 5: See Grotius, De jure belli et pacis, ii. 20. 43. 1; Grimm, Deutsche Rechtsalterthümer, p. 928.]

[Footnote 6: Tacitus, Germania, 10.]

In other instances duels are fought for the purpose of settling disputes between individuals, either by conferring on the victor the right of possessing the object of the strife, or by gratifying a craving for revenge and wiping off the affront.

Thus, among the pagan Norsemen, any person who confided in his strength and dexterity with his weapons could acquire property by simply challenging its owner to surrender his land or fight for it. The combat was strictly regulated; the person challenged was allowed to strike first, he who retired or who lost his weapon was regarded as vanquished, and he who received the first wound, or who was most seriously wounded, had to pay a fixed sum of money in order to save his life.[7] In the {499} islands outside Kamchatka, if a husband found that a rival had been with his wife, he would admit that the rival had at least an equal claim to her. "Let us try, then," he would say, "which of us has the greater right, and shall have her." After that they would take off their clothes and begin to beat each other's backs with sticks, and he who first fell to the ground unable to bear any more blows, lost his right to the woman.[8] Among the Eskimo about Behring Strait Mr. Nelson was told by an old man that in ancient times, when a husband and a lover quarrelled about a woman, they were disarmed by the neighbours and then settled the trouble with their fists or by wrestling, the victor in the struggle taking the woman.[9] Among the Chippewyans Richardson saw more than once a stronger man assert his right to take the wife of a weaker countryman in consequence of a successful combat. "Any one," he says, "may challenge another to wrestle, and, if he overcomes, may carry off his wife as the prize. . . . The bereaved husband meets his loss with the resignation which custom prescribes in such a case, and seeks his revenge by taking the wife of another man weaker than himself."[10] In the tribes of Western Victoria, described by Mr. Dawson, a young chief who cannot get a wife, and falls in love with one belonging to a chief who has more than two, can, with her consent, challenge the husband to single combat, and, if the husband is defeated, the conqueror makes her his legal wife.[11] "In some points," says Mr. Riedel, "the aboriginal law of retaliation in Australia corresponds with the code of honour, so called, which certain classes in Europe have long maintained. When one blackfellow carries off the {500} wife of another, the injured husband and the betrayer meet in mortal combat; and the spear that spills the life blood repairs the wounded honour of the one, or justifies in the eyes of society the crime of the other."[12] Among the aborigines of Western Australia "duels are common between individuals who have private quarrels

to settle, a certain number of spears being thrown until honour is satisfied."[13] Among the Dieyerie tribe, should anybody accuse another wrongfully, he is challenged to fight by the person he has accused, and this settles the matter.[14] Of the duels fought among the natives of North-West-Central Queensland Dr. Roth gives us an interesting account. Supposing an individual considers himself aggrieved, a duel often takes place at a distance from camp. There is no intention of killing. With two-handed swords, the combatants would only aim at striking each other on the head; with spears, they would only make for the fleshy parts of the thighs; with stone-knives, they would only cut into the shoulders, flanks, and buttocks, producing gashes an inch or more deep, and up to seven or even eight inches long. The lying upon the back on the ground--a posture in which no lawful incisions with a stone-knife can be made--is the sign of defeat, indicating that the combatant has had enough, and gives in. But the matter has not yet come to an end; the duels of these savages are not so defective in point of justice as the modern duels of Europe. "The fight between the two individuals being at length brought to a termination, steps are taken by the old men and elders to inquire into the rights or wrongs of the dispute. If the victor turns out to be the aggrieved party he has to show good cause, as for instance that the man whom he had just taken upon himself to punish had raped his gin, gave him the munguni [or death-bone], or wrought him some similarly flagrant wrong: under such circumstances, no further action is taken by anyone. If, {501} on the other hand, the victor happens to be the aggrieved party only in his own opinion, and not in that of those to whom he is answerable, and who do not believe the grounds on which he commenced the fight to be sufficient, he has to undergo exactly the same mutilations subsequently at the hands of the vanquished as he himself had inflicted." And should one of the combatants be killed in the duel, which may sometimes happen, the survivor, unless he can show that he had sufficient provocation or cause, "will be put to death in similar manner, at the instance of the camp-council, and usually undergo the extra degradation of digging his own as well as his victim's grave."[15] Of the South American Charruas Azara writes:--"Ce sont les parties elles-mêmes qui arrangent leurs différends particuliers: si elles ne sont pas d'accord, elles se chargent à coups de poing, jusqu'à ce qu'une des deux tourne le dos et laisse l'autre, sans reparler de l'affaire. Dans ces duels, ils ne font jamais usage des armes; et je n'ai jamais ouï dire qu'il y ait eu quelqu'un de tué."[16] If an Apache kills another, "the next-of-kin to the defunct individual may kill the murderer--if he can. He has the right to challenge him to single combat, which takes place before all assembled in the camp, and both must abide the result of the conflict. There is no trial, no set council, no regular examination into the crime or its causes; but the ordeal of battle settles the whole matter."[17] Among the Central Eskimo, "strange as it may seem, a murderer will come to visit the relatives of his victim (though he knows that they are allowed to kill him in revenge) and will settle with them. He is kindly welcomed, and sometimes lives quietly for weeks and months. Then he is suddenly challenged to a wrestling match, and if defeated is killed, or if victorious he may kill one of the opposite party, or when hunting, he is {502} suddenly attacked by his companions and slain."[18] Richardson heard that some of the Eskimo "decided their quarrels by alternate blows of the fist, each in turn presenting his head to his opponent."[19] The Tunguses formerly had a duel with arrows called koutschiguera, which was fought "only in the presence of the elders, who marked out the spot, settled the distance of the combatants, and gave the signal for letting fly."[20] The Santals have a tradition that years long since there was a custom amongst them "of deciding their disputes, when the parties were males, by the ordeal of single combat. The bow and arrow or hanger served in lieu of pistol

and sword for these rustic duels. Such affairs of honour were always fatal to one party, but of late times, as equitable remedies have been brought nearer to them, this remnant of a barbarous age has disappeared.**"[21] Mr. Man also heard that the Kols at one time preferred the duel to any other mode of seeking redress for a wrong.[22] The ancient Swedes were even compelled by law to fight duels to repair their wounded honour. The so-called 'Hedna-lag,' a fragment of an old pagan law, prescribes that, if any man says to another, "You are not a man's equal, you have not the heart of a man," and the other replies, "I am a man as good as you," they shall encounter in a place where three roads meet. If he who has suffered the insult does not appear, he shall be held to be what the other one called him, and he shall henceforth be allowed neither to swear nor to give evidence in any case. If, on the other hand, they meet in single combat, and the offended party kills the offender, he shall have to pay no compensation for it; but if the offender kills his opponent, he shall pay half his price.[23]

[Footnote 7: Lea, Superstition and Force, p. 111 sq. Keyser, Efterladte Skrifter, ii. pt. i. 391. Weinhold, Altnordisches Leben, p. 297. von Amira, 'Recht,' in Paul's Grundriss der germanischen Philologie, iii. 217 sq. Arnesen, Historisk Indledning til den gamle og nye Islandske Raettergang, p. 158 sq. Rosenberg, Traek af Livet paa Island i Fristats-Tiden, p. 98 n.]

[Footnote 8: Steller, Beschreibung von dem Lande Kamtschatka, p. 348.]

[Footnote 9: Nelson, 'Eskimo about Behring Strait,' in Ann. Rep. Bur, Ethn. xviii. 292.]

[Footnote 10: Richardson, Arctic Searching Expedition, ii. 24 sq.]

[Footnote 11: Dawson, op. cit. p. 36. For other instances of rights to women being acquired by duels, see Westermarck, History of Human Marriage, p. 159 sqq.; Post, Afrikanische Jurisprudenz, ii. 23 sq. (people of Kordofan).]

[Footnote 12: Riedel, Aborigines of Australia, p. 6.]

[Footnote 13: Calvert, Aborigines of Western Australia, p. 22.]

[Footnote 14: Gason, 'Manners and Customs of the Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 266.]

[Footnote 15: Roth, Ethnological Studies among the North-West-Central Queensland Aborigines, p. 139 sq.]

[Footnote 16: Azara, Voyages dans l'Amérique méridionale, ii. 16.]

[Footnote 17: Cremony, Life among the Apaches, p. 293.]

[Footnote 18: Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 582.]

[Footnote 19: Richardson, Arctic Searching Expedition, i. 367 sq.]

[Footnote 20: Georgi, Russia, iii. 83.]

[Footnote 21: Man, Sonthalia and the Sonthals, p. 90.]

[Footnote 22: Ibid. p. 90.]

[Footnote 23: Leffler, Om den fornsvenska hednalagen, p. 40 sq. (in K. Vitterhets Historie och Antiqvitets Akademiens Månadsblad, 1879, p. 139 sq.). Professor Leffler is inclined to believe that this fragment once formed a part of the older Vestgötalag (op. cit. p. 35, in the Månadsblad, p. 134).]

{503} These customs and rules are due to a variety of circumstances. To recognise the duel as a means of acquiring a right to land or women, is a concession to superior strength in a society where there is no government, or where the government is weak; whilst in the opportunity given to the challenged party to oppose the avenger on equal terms we may trace the interfering influence of public opinion. The duel is also in a higher degree than downright violence calculated to bring about a definite arrangement; and in some cases, as we have seen, it is a mere sham-fight, which may serve as a preventive against the infliction of more serious injuries, by showing which

party is the weaker and, consequently, has to give in. In other cases, again, the challenge is a method of bringing forward an offender who otherwise might be out of reach, and of limiting the fight to the parties themselves, so as to prevent whole families from making war upon each other.[24] Moreover, a duel may be preferable to an ordinary act of revenge as a means of wiping off an affront and of satisfying the claims of honour; it displays more courage, it commands more respect. In several of the cases referred to it is obviously a mitigated form of revenge, a method of settling a point of honour in a comparatively harmless way, and as such it has certain advantages over the practice of compensation; it requires no wealth on the part of the offender, and allows of no doubt as to the courage of the sufferer.[25] The Queensland aborigines are said to be very proud of the wounds they receive in their single combats,[26] and the duelling Eskimo "consider it cowardly to evade a stroke."[27] The duel {504} may, finally, be regarded as the most equitable form of settling disputes in cases where both parties claim to be in the right. Sometimes it is even resorted to as a means of ascertaining the truth, as an ordeal or "judgment of God."

[Footnote 24: Cf. Arnesen, op. cit. pp. 150, 166 sq.]

[Footnote 25: According to Dr. Steinmetz, the origin of the duel is "die Beschränkung des Rachekampfes. . . . Die treibende Kraft, welche zu dieser duellartigen Beschränkung führte, war die Exogamie, die verwandtschaftlichen Beziehungen zwischen Gruppen, der Friedensverlangen erzeugende, erweiterte Verkehr derselben. Negative Bedingungen waren: das Fehlen einer rechtsprechenden centralen Regierungsgewalt, und das nicht Erfülltsein der Entwicklungsbedingungen der Composition, namentlich der Mangel an ökonomischen Gütern, welche die materielle Entschädigung unmöglich machte" (Steinmetz, Studien zur ersten Entwicklung der Strafe, ii. 67, 87).]

[Footnote 26: Roth, op. cit. p. 140.]

[Footnote 27: Richardson, Arctic Searching Expedition, i. 368.]

The wager of battle is well known to every student of mediæval law. Outside Europe we meet with a similar institution in the Malay Archipelago. In his 'History of the Indian Archipelago,' Mr. Crawfurd states:--"The trial by combat or duel, and the appeal to the judgment of God by various descriptions of ordeal, are not unknown. The Malay laws direct that the combat or ordeal shall be had recourse to in the absence of evidence, in the following words: 'If one accuse and another deny, and there be no witnesses on either side, the parties shall either fight or submit to the ordeal of melted tin or boiling oil.'"[28] The natives of the Barito River basin in Borneo have the following ordeal, called the Hagalangang:--"Both parties are placed in boxes at a distance of seven fathoms opposite one another, the boxes being made of nibong laths and so high as to reach a man's breast. Then both receive a sharpened bamboo of a lance's length to throw at each other at a given signal. The wounded person is supposed to be guilty."[29] Among the Teutons the judicial combat seems to have developed out of the ancient practice of settling disputes by private duelling. In a time when the community did its best to suppress acts of revenge, it was no doubt a wise measure to adopt the duel as a form of judicial procedure, investing it with the character of an ordeal.[30] It seems probable that the duel assumed this character already among the pagan Teutons.[31] Like other ordeals it was resorted to in cases where there was some doubt as to the guilt of the accused.[32] To {505} appeal to "the judgment of God" was an expedient substitute for human evidence in a society where nothing was more difficult than to procure reliable witnesses, and where superstition reigned supreme. Speaking of the Franks, M. Esmein observes:--"En dehors du flagrant délit ou de l'aveu de l'accusé, tout était incertitude. . . . Par solidarité forcée, jamais un homme ne témoignera contre un autre

homme du même groupe; il ne témoignera pas non plus par crainte de la vengeance et des représailles contre un homme appartenant à un autre groupe."[33] I shall later on try to prove that the ordeal is not, as it is often supposed to be, primordially based on the belief in an all-knowing, all-powerful, and just god, who protects the innocent and punishes the guilty, but that it largely springs from the same notion as underlies the belief in the efficacy of an oath. The ordeal, then, intrinsically involves an imprecation with reference to the guilt or innocence of a suspected person, and its proper object is to give reality to this imprecation, for the purpose of establishing the validity or invalidity of the suspicion. This also holds good of the judicial combat. The issue of the fight decided the question of guilt because of the imprecation involved in the oath preceding the duel. Before the conflict commenced each party asserted his good cause in the most positive manner, confirmed his assertion by a solemn oath on the Gospels or on a relic of approved sanctity, and called upon God to grant victory to the right. Such an oath was an indispensable preliminary to every combat, and the defeat was thus not merely the loss of the suit, but also a conviction of perjury, to be punished as such.[34] That the real object of the judicial duel was to correct the abuses of compurgation by oath appears from various {506} facts. Gundebald, king of the Burgundians, says expressly, in the preamble to a law by which he authorises the wager of battle, that his reason for doing so is, that his subjects may no longer take oaths upon uncertain matters, or forswear themselves upon certain.[35] Charlemagne urged the use of the duel as greatly preferable to the shameless oaths which were taken with so much facility, and Otho II. ordered its employment in various forms of procedure for the same reason.[36] Witnesses might have to fight as well as principals. A Bavarian law even directed the claimant of an estate to combat not the defendant, but his witness;[37] and in the later Middle Ages, after enlightened legislators had been strenuously and not unsuccessfully endeavouring to limit the abuse of the judicial combat, the challenging of witnesses was still the favourite mode of escaping legal condemnation.[38] Some codes required the witnesses to come into court armed, and to have their weapons blessed on the altar before giving their testimony.[39] The practice of blessing the arms before the duel took place[40] was no doubt intended to enable them the better to carry out the imprecation by saturating them with sanctity, or by increasing their natural sanctity; weapons are commonly regarded with superstitious veneration, hence oaths taken upon them are held to be particularly binding.[41] But though the judicial duel fundamentally derived its efficacy as a means of ascertaining the truth from its connection with an oath, it has, owing to the tendency of magic to fuse into religion, readily come to be regarded as an appeal to the justice of God, just as curses are transformed into {507} prayers and perjury becomes an offence against the Deity.

[Footnote 28: Crawfurd, History of the Indian Archipelago, iii. 92.]

[Footnote 29: Schwaner, Borneo, i. 212.]

[Footnote 30: Dahn observes (Bausteine, ii. 57) that "der Kampf ursprünglich gar kein Gottesurtheil, sondern lediglich eine Verweisung der Parteien auf Selbsthülfe . . . war." Cf. Patetta, Le ordalie, p. 178.]

[Footnote 31: Patetta, op. cit. p. 179.]

[Footnote 32: See Unger, 'Der gerechtliche Zweikampf bei den germanischen Völkern,' in Göttinger Studien, 1847, Zweite Abtheilung, p. 358 sq.]

[Footnote 33: Esmein, Cours élémentaire du droit français, p. 96 sq.]

[Footnote 34: Lex Baiuwariorum, ii. 1. Jourdan, Decrusy, and Isambert, Recueil général des anciennes lois françaises, ii. 840 sqq. Bracton, De Legibus et Consuetudinibus Angliæ, fol. 141 b sq., vol. ii. 438 sqq.: "Sic me Deus adjuvet & haec sancta."

Lea, Superstition and Force, p. 166 sq. Brunner, Deutsche Rechtsgeschichte, ii. 415. von Amira, 'Recht,' in Paul's Grundriss der germanischen Philologie, iii. 218. Unger, loc. cit. p. 386. Tuchmann, in Mélusine, iv. 130.]

[Footnote 35: Leges Burgundionum, Leges Gundebati, 45.]

[Footnote 36: Lea, op. cit. p. 118.]

[Footnote 37: Lex Baiuwariorum, xvii. 2 (xvi. 2).]

[Footnote 38: Beaumanoir, Coutumes du Beauvoisis, lxi. 58, vol. ii. 398. Lea, op. cit. p. 120 sq. Unger, loc. cit. p. 379 sqq.]

[Footnote 39: Lea, op. cit. p. 120.]

[Footnote 40: Esmein, op. cit. p. 95.]

[Footnote 41: For the worship of, and swearing by, weapons, see Du Cange, 'Juramentum super arma,' in Glossarium ad scriptores mediæ et infimæ Latinitatis, iii. 1616 sq.; Grimm, Deutsche Rechtsalterthümer, pp. 165, 166, 896; Pollock, Oxford Lectures, p. 269 sq. n. 1; Joyce Social History of Ancient Ireland, i. 286 sq. In Morocco, also, an oath taken on a weapon is considered a particularly solemn form of swearing.]

In most European countries the judicial duel survived the close of the Middle Ages, but disappeared shortly afterwards.[42] Various circumstances contributed to its decline and final disappearance. From an early period Councils and popes had declared against it,[43] but with little success; many ecclesiastics, indeed, not only connived at the practice, but authorised it, and questions concerning the property of churches and monasteries were decided by combat.[44] There were other more powerful causes at work--the growth of communes, devoted to the arts of peace, seeking their interest in the pursuits of industry and commerce, and enjoying the advantage of settled and permanent tribunals; the revival of Roman law, which began to undermine all the institutions of feudalism;[45] the ascendency of the royal power in its struggle against the nobles; the increase of enlightenment, the decrease of superstition. But though finally banished from the courts of justice, the duel did not die. In the sixteenth century, when the judicial combat faded away, the duel of honour began to flourish.[46] Buckle justly observes that, "as the trial by battle became disused, the people, clinging to their old customs, became more addicted to duelling";[47] hence the judicial duel may be regarded as the direct parent of the modern duel.[48] The Church and the State naturally tried to suppress this sanguinary survival of barbarism. The Council of Trent declared that "the detestable custom of duelling, introduced by the contrivance of the devil, that by the bloody death of the body {508} he may accomplish the ruin of the soul," was to be utterly exterminated from the Christian world, and that not only principals and seconds, but anyone who had given counsel in the case of a duel, or had in any other way persuaded a person thereunto, as also the spectators thereof, should be subjected to excommunication and perpetual malediction.[49] In England, Cromwell's Parliament made a determined effort to check the practice.[50] A Scotch law of 1600 rendered the bare act of engaging in a duel, without license from the king, a capital offence.[51] About the same period the Spanish Cortes passed a law which subjected all parties to a duel to the penalties of treason.[52] In 1602, Henry IV. of France issued an edict condemning to death whoever should give or accept a challenge or act as second;[53] and already several edicts against duelling had been promulgated under Louis XIII.[54] when, in 1626, there was published a new one punishing with death any person who had killed his adversary in a duel, or had been found guilty of sending a challenge a second time.[55] But all these enactments had little or no effect. We are told that in the eight years between 1601 and 1609, two thousand men of noble birth fell in duels in France; and, according to Lord Herbert of Cherbury, who was ambassador at the court of Louis XIII.,

there was scarce a Frenchman worth looking on who had not killed his man in a duel.[56] As Robertson observes, in reference to duelling, "no custom, how absurd soever it may be, if it has subsisted long, or derives its force from the manners and prejudices of the age in which it prevails, was ever abolished by the bare promulgation of laws and statutes."[57] In spite of laws which directly prohibit duelling, or which punish with great severity anyone who kills another in a duel, sometimes even subjecting {509} him to punishment for murder,[58] the duel still prevails in many European countries as a recognised custom, so much supported by public opinion that the laws referring to it are seldom or never applied.

[Footnote 42: Lea, op. cit. p. 199 sqq. In England, however, it was formally abolished by law as late as 1819 (Stephen, History of the Criminal Law of England, i. 249 sq.).]

[Footnote 43: Du Boys, Histoire du droit criminel des peuples modernes, ii. 182. Lea, op. cit. p. 206 sqq.]

[Footnote 44: Robertson, History of the Reign of the Emperor Charles V. i. 357 sq. 'Notitia gurpitionis,' in Bouquet, Recueil des historiens des Gaules et de la France, ix. 729.]

[Footnote 45: Lea, op. cit. pp. 200-205, 211 sq. Unger, loc. cit. p. 392 sqq.]

[Footnote 46: Storr, 'Duel,' in Encyclopædia Britannica, vii. 512.]

[Footnote 47: Buckle, Miscellaneous and Posthumous Works, i. 386. Cf. Bosquett, Treatise on Duelling, p. 79.]

[Footnote 48: Storr, loc. cit. p. 511.]

[Footnote 49: Canons and Decrees of the Council of Trent, Session xxv. 19, p. 274 sq.]

[Footnote 50: Pike, History of Crime in England, ii. 192.]

[Footnote 51: Hume, Commentaries on the Law of Scotland, ii. 281. Erskine, Principles of the Law of Scotland, p. 560.]

[Footnote 52: Truman, Field of Honor, p. 70.]

[Footnote 53: Isambert, Taillandier, and Decrusy, Recueil général des anciennes lois françaises, xv. 351 sq.]

[Footnote 54: Ibid. xvi. 21, 106, 146.]

[Footnote 55: Ibid. xvi. 176, 179.]

[Footnote 56: Storr, loc. cit. p. 512.]

[Footnote 57: Robertson, op. cit. i. 66.]

[Footnote 58: Günther, Die Idee der Wiedervergeltung, iii. 225, n. 467. Stephen, History of the Criminal Law of England, iii. 99 sqq. Gelli, Il duello, p. 21.]

This curious practice of taking the law into one's own hands, which we find existing in the midst of modern civilisation, is explicable, partly from the indifference with which legislators have treated offences against honour,[59] partly from the force of habit. The insulted person, finding no adequate legal remedy for the affront he has suffered, determines to be his own avenger, and challenges the offender to fight. Nor is revenge his only motive. He desires also to wash off the indignity by showing that he respects his honour more than his life. The notion that a challenge to mortal combat effaces the blot which an insult has imprinted upon a man's honour is a survival from a period when the honourable man was above everything a brave man.[60] By displaying courage the offended party demonstrates that he is not worthy of contempt, by showing timidity he condemns himself. So far as justice is concerned, the duel, of course, became an absurdity as soon as it ceased to be looked upon in the light of an ordeal. It compels the insulted person to expose himself to a fresh injury from the side of an impudent offender, it allows the scoundrel to repay the most condign censure with a mortal stroke. But when a man's honour is at stake the voice of justice is easily

silenced, and the pressure of ancient habit is greater than ever. As is usual in similar cases, a variety of more or less futile arguments are adduced to give their support to the survival. Lord Kames maintained that, if two persons agree to decide their quarrel by single combat, the State has nothing to do with it, since they need not make use of the protection which the State offers them.[61] But, as a matter of fact, the {510} duel is not a private affair between two individuals. As Moore observed, "a refusal of the duel is attended with such mortifying circumstances, with such an imputation of meanness and cowardice . . . , with such a studied contempt in public, and exclusion from the polite circle in private, as renders the alternative both cruel and inhuman";[62] and it would seem that the State ought to protect its members against such a compulsion. It is said that the duel "grasps the sword of justice, which the laws have dropped, punishing what no code can chastise--contempt and insult."[63] But we find that in countries where it no longer prevails, laws against insults, courts of honour, and especially more refined ideas as regards honorary satisfaction, have made it as useless as it is absurd, a matter of the past which nobody desires to revive.

[Footnote 59: Cf. Bentham, Theory of Legislation, p. 299 sqq.]

[Footnote 60: That the modern duel is a special development of Chivalry has been pointed out by Buckle (History of Civilization in England, ii. 136 sq.).]

[Footnote 61: Kames, Sketches of the History of Man, i. 415 n.]

[Footnote 62: Moore, Full Inquiry into the Subject of Suicide, ii. 276.]

[Footnote 63: Quoted by Millingen, History of Duelling, i. 300.]

Chapter XXII — Bodily Injuries

CLOSELY related to the right to life is the right to bodily integrity. Indeed, homicide is, generally speaking, the highest form of bodily injury which can, in the nature of things, be inflicted, although there are some forms of ill-treatment which are more terrible than death itself.[1]

[Footnote 1: Cf. Stephen, History of the Criminal Law of England, iii. 11.]

In the case of bodily injuries the magnitude of the offence is, other things being equal, proportionate to the harm inflicted. At the lower stages of civilisation we meet with the principle of an eye for an eye and a tooth for a tooth, or the offender has to pay an adequate compensation for the injury.[2] It is said in the Laws of Manu that, if a blow is struck against men in order to give them pain, the judge shall inflict a fine in proportion to the amount of pain caused.[3] According to Muhammedan law, retaliation for intentional wounds and mutilations is allowed, but a fine may be accepted instead. The fine for depriving a man of any of his five senses, or dangerously wounding him, or grievously disfiguring him for life, or cutting off a member that is single, as the {512} nose, is the whole price of blood; the fine for a member of which there are two and not more, as a hand or a foot, is half the price of blood; the fine for a member of which there are ten, as a finger or a toe, is a tenth of the price of blood.[4] The scale of fines for bodily injuries contained in many of the early Teutonic law-books is minute to a degree.[5] According to various texts of the Salic law, 100 solidi--that is, a moiety of the wergeld--must be paid for depriving a man of a hand, foot, eye, or the nose; the thumb and great toe were valued at 50 solidi; the second finger with which the bow was drawn, at 35.[6] With respect to other acts of violence, the fine varied according to several circumstances, as, whether the blow was given with a stick or with closed fist,

whether the brain was laid bare, whether certain bones were obtruded and how much, whether blood flowed from the wound on the ground, and so forth.[7] In the Anglo-Saxon codes almost every part and particle of the body, every tooth, toe, and nail, had its price. According to the Laws of Aethelbirht, for instance, twenty shillings were paid for striking off a thumb, three for a thumb nail, eight for the forefinger, eleven for the little finger.[8] In early Celtic law different amounts of injury were taxed with a similar affected precision.[9] Nothing can better give us an idea of the business-like manner in which the whole subject was treated than the Irish law against castration. If the injured persons be people to whom the organs extirpated are of no use, "such as a decrepit old man or a man in orders, there is nothing due to them for the loss of them, but body-fine according to the severity of the wound."[10] {513} After this one is almost surprised to read in the ancient laws of Ireland that, when a person had once been maimed, and received part or all of his body-fine, no subsequent wrong-doer could insist that the injured person should be rated as a damaged article.[11]

[Footnote 2: Post, Afrikanische Jurisprudenz, ii. 61 sqq. Munzinger, Ostafrikanische Studien, pp. 208 (Takue), 502 (Barea and Kunáma). Burton, Two Trips to Gorilla Land, i. 105 (Mpongwe). Maclean, Compendium of Kafir Laws and Customs, p. 61 sq. Macpherson, Memorials of Service in India, p. 82 (Kandhs). Earl, Papuans, p. 83 (Papuans of Dory). Kubary, Die socialen Einrichtungen der Pelauer, p. 74 (Pelew Islanders). Petroff, 'Report on Alaska,' in Tenth Census of the United States, p. 105 (Thlinkets).]

[Footnote 3: Laws of Manu, viii. 286.]

[Footnote 4: Lane, Manners and Customs of the Modern Egyptians, p. 120. Sachau, Muhammedanisches Recht, p. 764.]

[Footnote 5: Wilda, Strafrecht der Germanen, p. 729. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 658. Stephen, History of the Criminal Law of England, i. 56. Lappenberg, History of England under the Anglo-Saxon Kings, ii. 422.]

[Footnote 6: Lex Salica, edited by Hessels, coll. 163-167, 170, 172-177, 179.]

[Footnote 7: Ibid. col. 100 sqq.]

[Footnote 8: Laws of Æthelbirht, 54.]

[Footnote 9: Ancient Laws of Ireland, iii. pp. cix., 349. Venedotian Code, iii. 23 (Ancient Laws and Institutes of Wales, p. 151 sqq.). Dimetian Code, ii. 17 (ibid. p. 246 sqq.). Gwentian Code, ii. 6 sq. (ibid. p. 340 sq.).]

[Footnote 10: Ancient Laws of Ireland, iii. 355.]

[Footnote 11: Ibid. iii. pp. cix., cxi., 349, 351.]

However, the degree of the offence depends not only on the suffering inflicted, but on the station of the parties concerned; and in some cases the infliction of pain is held allowable or even a duty.

By using violence against their parents, children grossly offend against the duty of filial regard and submissiveness. It is said in the Laws of [Hv]ammurabi, that a man who has struck his father shall lose his hands.[12] According to Exodus, "he that smiteth his father, or his mother, shall be surely put to death."[13] In Corea the man who strikes his father is beheaded.[14] On the other hand, parents are allowed to inflict corporal punishment on their children; but this is not the case everywhere--indeed, among many of the lower races children are never, or hardly ever, subject to such punishment.[15] Among the Australian Dieyerie the children are never beaten, and should any woman violate this law, she is in turn beaten by her husband.[16] The Efatese, says Mr. Macdonald, "are shocked to see Europeans correcting their children; I never saw an Efatese beating a child."[17] The Eskimo {514} visited by Mr. Hall never inflict physical chastisement upon the children; "if a child does wrong--for instance, if it becomes

enraged, the mother says nothing to it till it becomes calm. Then she talks to it, and with good effect."[18] Among the Tehuelches of Patagonia "the children are indulged in every way, ride the best horses, and are not corrected for any misbehaviour."[19] Among the Gaika tribe of the Kafirs, again, parents may inflict corporal punishment on their children, but are fined for causing permanent injuries to their persons, such as the loss of an eye or a tooth.[20]

[Footnote 12: Laws of [Hv]ammurabi, 195.]

[Footnote 13: Exodus, xxi. 15.]

[Footnote 14: Griffis, Corea, p. 236.]

[Footnote 15: Curr, Recollections of Squatting in Victoria, p. 252 (Bangerang tribe). Angas, Savage Life and Scenes in Australia, i. 94 (tribes of the Lower Murray). Calvert, Aborigines of Western Australia, p. 30 sq. Lumholtz, Among Cannibals, p. 192 sq. (Northern Queensland aborigines). Kubary, 'Die Palau-Inseln in der Südsee,' in Journal des Museum Godeffroy, iv. 56 (Pelew Islanders). Man, Sonthalia and the Sonthals, p. 78. von Siebold, Die Aino auf der Insel Yesso, p. 11. Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 417 (Point Barrow Eskimo). Boas, 'Central Eskimo,' ibid. vi. 566. Richardson, in Franklin, Journey to the Shores of the Polar Sea, p. 68 (Crees). Lumholtz, Unknown Mexico, p. 274 (Tarahumares). Rautanen, in Steinmetz, Rechtsverhältnisse, p. 329 (Ondonga). See also Steinmetz, Ethnologische Studien zur ersten Entwicklung der Strafe, ii. ch. vi. § 2, especially p. 203; Idem, 'Das Verhältnis zwischen Eltern und Kindern bei den Naturvölkern,' in Zeitschrift für Socialwissenschaft, i. 610 sqq.]

[Footnote 16: Gason, 'Manners and Customs of the Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 258.]

[Footnote 17: Macdonald, Oceania, p. 195.]

[Footnote 18: Hall, Arctic Researches, p. 568.]

[Footnote 19: Musters, At Home with the Patagonians, p. 197.]

[Footnote 20: Brownlee, in Maclean, Compendium of Kafir Laws and Customs, p. 118.]

The power which the husband possesses over his wife much more commonly implies the right of inflicting pain on her than of punishing her capitally; but even among savages and barbarians the former right is not universally granted to him. The Pelew Islanders do not allow a husband to beat his wife.[21] Among various Eskimo tribes the women are rarely, if ever, beaten.[22] Among the Central Eskimo the husband "is not allowed to maltreat or punish his wife; if he does, she may leave him at any time, and the wife's mother can always command a divorce."[23] Many, or most, of the North American Indians consider it disgraceful for a husband to beat his wife.[24] Among the Kalmucks a man has no right to raise his hand against a woman.[25] Among the Madis women are never beaten.[26] Among the Ondonga a man is not allowed to chastise his wife.[27] Among the Gaika tribe of the Kafirs "a husband may beat his wife for misconduct; but if he should strike out her eye or a tooth, or otherwise maim her, he is fined at the discretion of the Chief."[28] {515} According to the native code of Malacca, "a man may beat his wife, but not as he would chastise a slave, and not till blood flows"; if he should do so, he is fined.[29] According to Muhammedan law, a husband may chastise an obstinate wife, but he must not cause her great suffering, nor inflict on her a wound.[30] We read in the Laws of Manu:--"A wife, a son, a slave, a pupil, and a younger brother of the full blood, who have committed faults, may be beaten with a rope or a split bamboo, but on the back part of the body only, never on a noble part; he who strikes them otherwise will incur the same guilt as a thief."[31] In Europe the idea

expressed by the ancient Roman that "he who beats his wife or children lays hands on that which is most sacred and holy,"[32] was shared neither by the ancient Teutons[33] nor by mediæval legislators. According to the Jydske Lov, a husband was allowed to chastise his wife with a stick or rod, though not with a weapon; but he had to take care not to break any limb of her body.[34] In the Coutumes du Beauvoisis it is said that a man may beat his wife if she belies or curses him, or disobeys his "reasonable" commands, or for some other similar reason, though he must not kill or maim her.[35] Among Russian and South Slavonian[36] peasants public opinion still permits the husband to inflict corporal punishment on his wife. In Russia "the bridegroom, while he is leading his bride to her future home, gives her from time to time light blows from a whip, saying at each stroke: 'Forget the manners of thine own {516} family, and learn those of mine.' As soon as they have entered their bedroom, the husband says to his wife, 'Take off my boots.' The wife immediately obeys her husband's orders, and, taking them off, finds in one of them a whip, symbol of his authority over her person. This authority implies the right of the husband to control the behaviour of his wife, and to correct her every time he thinks fit, not only by words, but also by blows. The opinion which a Russian writer of the sixteenth century . . . expresses as to the propriety of personal chastisement, and even as to its beneficial effects on the health, is still shared by the country people. . . . The customary Court seems to admit the use of such disciplinary proceedings by not interfering in the personal relations of husband and wife. 'Never judge the quarrel of husband and wife,' is a common saying, scrupulously observed by the village tribunals, which refuse to hear any complaint on the part of the aggrieved woman, at least so long as the punishment has not been of such a nature as to endanger life or limb."[37]

[Footnote 21: Kubary, 'Die Palau-Inseln,' in Jour. des Museum Godeffroy, iv. 43.]

[Footnote 22: King, in Jour. Ethn. Soc. i. 147. Cf. Murdoch, loc. cit. p. 414.]

[Footnote 23: Boas, in Ann. Rep. Bur. Ethn. vi. 579.]

[Footnote 24: Waitz, Anthropologie der Naturvölker, iii. 101. Cf. Powers, Tribes of California, p. 178 (Gallinomero).]

[Footnote 25: Liadov, in Jour. Anthr. Inst. i. 405.]

[Footnote 26: Ratzel, History of Mankind, iii. 40.]

[Footnote 27: Rautanen, in Steinmetz, Rechtsverhältnisse, p. 329.]

[Footnote 28: Brownlee, in Maclean, op. cit. p. 117.]

[Footnote 29: Newbold, British Settlements in the Straits of Malacca, ii. 311 sq.]

[Footnote 30: Sachau, Muhammedanisches Recht, pp. 10, 44, 849.]

[Footnote 31: Laws of Manu, viii. 299 sq.]

[Footnote 32: Plutarch, Cato Major, xx. 3.]

[Footnote 33: Nordström, Bidrag till den svenska samhällsförfattningens historia, ii. 61 sq. Stemann, op. cit. p. 323 sq.]

[Footnote 34: Jydske Lov, ii. 82.]

[Footnote 35: Beaumanoir, Coutumes du Beauvoisis, lvii. 6, vol. ii. p. 333: "Il loist bien à l'homme batre se feme, sans mort et sans mehaing, quant ele le meffet; si comme quant ele est en voie de fere folie de son cors, ou quant ele dement son baron ou maudist, ou quant ele ne veut obeir à ses resnables commandemens que prode feme doit fere: en tel cas et en sanllables est il bien mestiers que li maris soit castierres de se feme resnablement. . . . Li maris le doit castier et repenre selonc toutes les manieres qu'il verra que bon sera por li oster de tel visse, exepté mort ou mehaing."]

[Footnote 36: Krauss, Sitte und Branch der Südslaven, p. 526.]

[Footnote 37: Kovalewsky, Modern Customs and Ancient Laws of Russia, p. 44 sq. Cf. Meiners, Vergleichung des ältern und neuern Russlandes, ii. 167 sq.; Idem, History of the Female Sex, i. 160.]

It seems that, wherever slavery exists, the master has a right to inflict corporal punishment on his slave, even though he be forbidden to deprive him of any of his limbs. According to the Chinese Penal Code, the master, or relations of the master of a guilty slave, may chastise such slave in any degree short of occasioning his death, without being liable to any punishment;[38] whereas "all slaves who are guilty of designedly striking their masters, shall, without making any distinction between principals and accessories, be beheaded."[39] Among the Hebrews, if a man by blows destroyed an eye or a tooth, or any other member belonging to his man-servant or maid-servant, he was bound to let the injured person go free, though full retribution was legally ordained for bodily injuries done to free Israelites.[40] In the North American Slave States and {517} in the colonies of all European Powers the master could inflict any number of blows upon his slave, but if he mutilated him he was fined or subjected to a very moderate term of imprisonment.[41]

[Footnote 38: Ta Tsing Leu Lee, sec. cccxiv. p. 340.]

[Footnote 39: Ibid. sec. cccxiv. p. 338.]

[Footnote 40: Exodus, xxi. sqq.]

[Footnote 41: 'Negro Act' of 1740, § 37, in Brevard, Digest of the Public Statute Law of South Carolina, ii. 241. Stephen, Slavery of the British West India Colonies, i. 36 sq. Edwards, History of the British West Indies, ii. 192.]

The maltreatment of another person's slave has, even by civilised legislators, been regarded as an injury done to the master rather than to the slave. According to Muhammedan law, the fine imposed on a free person for injuring a slave varies according to the value of the slave.[42] In the Institutes of Justinian it is said that, "if a man were to flog another man's slave in a cruel manner, an action would, in this case, lie against him," but that the master has no right of action against a person who has struck the slave with his fist.[43] In the Negro Act of 1740 it was prescribed that, if a slave was beaten by any person who had not sufficient cause or lawful authority for so doing, and if he or she was maimed or disabled by such beating from performing his or her work, the offender should pay to the owner of the slave "the sum of 15 shillings current money per diem, for every day of his lost time, and also the charge of the cure of such slave."[44] But if the beating of the slave caused no loss of service to his master, the offender was not, as a rule, punished by law. A decision of the Supreme Court of Maryland established expressly the law to be, in that State, that trespass would not lie by a master for an assault and battery on his slave, unless it were attended with a loss of service.[45] If, on the other {518} hand, the offender was a slave and his victim a white man, the injury was regarded in a very different light. We read in an act of Georgia passed in 1770:--"If any slave shall presume to strike any white person, such slave . . . shall . . . for the second offence suffer death: But in case any such slave shall grievously wound, maim, or bruise any white person, though it shall be only the first offence, such slave shall suffer death."[46] And to offer violence, to strike, attempt to strike, struggle with, or resist any white person, was, even by the latest meliorating laws issued in the British Colonies, declared to be a crime in a slave which, if the white person had been wounded or hurt, and in some islands even without that condition, should subject the offender to death, dismemberment, or other severe penalties.[47] We read in one of the codes of ancient Wales:--"If a freeman strike a bondman, let him pay him twelve pence. . . . If a bondman strike any freeman, it is just to cut off his right hand, or his

right foot."[48] According to Chinese law, a freeman striking a slave shall "be punished less severely by one degree than in the ordinary cases of the same offence"; whereas "a slave striking a freeman shall, in proportion to the consequences, be punished one degree more severely than is by law provided in similar cases between equals."[49]

[Footnote 42: Lane, Manners and Customs of the Modern Egyptians, p. 120.]

[Footnote 43: Institutiones, iv. 4. 3.]

[Footnote 44: Brevard, op. cit. ii. 231 sq.]

[Footnote 45: Harris and Johnson, Reports of Cases argued and determined in the General Court and Court of Appeals of the State of Maryland, i. 4. Of all the Slave States, so far as I know, Kentucky was the only one where the owner of a slave might bring an action of trespass against anyone who whipped, stroke, or otherwise **abused the slave without the owner's consent, notwithstanding the slave was not so injured that the master lost his services thereby (Morehead and Brown, Digest of the Statute Laws of Kentucky, ii. 1481). In Tennessee, according to an act of 1813, a person was punished if he "wantonly and without sufficient cause" beat or abused the slave of another (Caruthers and Nicholson, Compilation of the Statutes of Tennessee, p. 678).]

[Footnote 46: Prince, Digest of the Laws of the State of Georgia, p. 781.]

[Footnote 47: Stephen, Slavery of the British West India Colonies, i. 188. Edwards, History of the British West Indies, ii. 202 sq.]

[Footnote 48: Gwentian Code, ii. 5. 31 sq. (Ancient Laws and Institutes of Wales, p. 339). For ancient Swedish law on this subject, see Gotlands-Lagen, i. 19. 37.]

[Footnote 49: Ta Tsing Leu Lee, sec. cccxiii. p. 336.]

Very frequently the penalties or fines for bodily injuries are influenced by the class or rank of the parties even when both of them are freemen. Among the Marea, whilst a commoner who wounds another commoner simply pays him compensation for the hurt, a commoner who wounds a nobleman must abandon to him all his property and become his slave.[50] At Zimmé the fines for assaults "vary greatly, according to the rank of the party complaining."[51] {519} Among the Ossetes the limbs of a noble are rated at twice as much as the limbs of an ordinary freeman.[52] The Laws of [Hv]ammurabi contain the following provisions:--"If a man has caused the loss of a gentleman's eye, his eye one shall cause to be lost. If he has shattered a gentleman's limb, one shall shatter his limb. If he has caused a poor man to lose his eye or shattered a poor man's limb, he shall pay one mina of silver. If a man has made the tooth of a man that is his equal to fall out, one shall make his tooth fall out. If he has made the tooth of a poor man to fall out, he shall pay one-third of a mina of silver,"[53] According to the Laws of Manu, if a man of a low caste does hurt to a man of any of the three highest castes, the offending member shall be cut off;[54] and he who intentionally strikes a Brâhmana in anger, even if it were only with a blade of grass, "will be born during twenty-one existences in the wombs of such beings where men are born in punishment of their sins."[55] In early Teutonic and Celtic codes we meet with the principle that the compensation by which a bodily injury is to be atoned for varies according to the rank of the parties concerned.[56]

[Footnote 50: Munzinger, Ostafrikanische Studien, p. 244.]

[Footnote 51: Colquhoun, Amongst the Shans, p. 132.]

[Footnote 52: von Haxthausen, Transcaucasia, p. 409.]

[Footnote 53: Laws of [Hv]ammurabi, 196-198, 200 sq. Cf. ibid. 202 sq.]

[Footnote 54: Laws of Manu, viii. 279.]

[Footnote 55: Ibid. iv. 166. Cf. ibid. iv. 167.]

[Footnote 56: Kemble, Saxons in England, i. 134. Ancient Laws of Ireland, iii. p. cxi. Dimetian Code, ii. 17. 17 (Ancient Laws and Institutes of Wales, p. 248). Gwentian Code, ii. 7. 13 (ibid. 342). de Valroger, Les Celtes, p. 470. Innes, Scotland in the Middle Ages, p. 180.]

We have noticed that men in their estimation of human life, particularly at the earlier stages of culture, discriminate between fellow-tribesmen or compatriots and aliens. A similar distinction is made with reference to other bodily injuries. It reaches its pitch in the sufferings inflicted on vanquished enemies. The treatment to which the Kamchadales subjected their male prisoners of war included "burning, hewing them to pieces, tearing their entrails out when alive, and hanging them by the feet."[57] Some of the Dacotahs, when they had taken a captive, "secured him {520} to a stake and allowed their women to torture him by mutilating him previous to killing him";[58] and of many other North American Indians it is said that they "devote their captives to death, with the most agonising tortures."[59] The wars of the Society Islanders, Ellis observes, were most merciless and destructive; "invention itself was tortured to find out new modes of inflicting suffering."[60] On the other hand, there are not wanting instances of savage warfare being conducted on more humane principles. Dobrizhoffer tells us that "cruelty towards captives and enemies is abhorred by the Abipones, who never torture the dying";[61] and among the Somals no injury is done to enemies who have been severely wounded in the battle.[62] Civilised nations maintain that, in time of war, no greater injuries should be inflicted upon the enemy than are necessary to obtain the end of the war.

[Footnote 57: Krasheninnikoff, History of Kamschatka, p. 200.]

[Footnote 58: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 313.]

[Footnote 59: Adair, History of the American Indians, p. 388.]

[Footnote 60: Ellis, Polynesian Researches, i. 293. Cf. Williams, Narrative of Missionary Enterprises, p. 533 (Samoans); Foreman, Philippine Islands, p. 185; Ellis, Tshi-speaking Peoples of the Gold Coast, p. 172 sq.]

[Footnote 61: Dobrizhoffer, Account of the Abipones, ii. 411.]

[Footnote 62: Paulitschke, Ethnographie Nordost-Afrikas, p. 255.]

The right to bodily integrity is influenced by religious differences as well as national. According to Muhammedan law, the compensation for injuries inflicted on a Jew or a Christian is a third, for those inflicted on a Parsee only a fifteenth, of the sum to be paid for similar injuries done to a Moslem.[63] A mediæval Spanish law prescribes that a Christian who beats a Jew shall pay four maravedis, but that a Jew who beats a Christian shall pay ten.[64]

[Footnote 63: Sachau, op. cit. p. 764.]

[Footnote 64: 'Fuero de Sepulveda,' art. 37 sq., quoted by Du Boys, Histoire du droit criminel de l'Espagne, p. 74.]

The right to bodily integrity may be forfeited by the commission of a crime. As has been already noticed, physical injuries are frequently resented according to the law of like for like;[65] and in other cases, also, the infliction {521} of corporal suffering--by mutilation, scourging, and so forth--is a common penalty. Amputation or mutilation of the offending member has particularly been in vogue among so-called peoples of culture.[66] It is often **mentioned in the Code of [Hv]ammurabi[67] and in the Laws of Manu.[68] It occurred among the Greeks,[69] Romans,[70] and Teutons.[71] Mediæval codes contain numerous instances of it.[72] The Laws of Alfred prescribe that a male theow who commits a rape upon a female theow shall be emasculated;[73] and in a later age Bracton reserves the same punishment for the deflowerer of a virgin, with

the addition that the offender shall also lose his eyes, "on account of his looking at the beauty, for which he coveted possession of the virgin."[74] According to a law of Cnut, an adulteress shall have her nose and ears cut off.[75] Aethelstan enjoined that an illicit coiner should lose his right hand;[76] whereas in later times this punishment was restricted to those who struck anybody in the king's presence or in his court.[77] By the statute law of Scotland the punishment of forgery, or falsifying of writings, was at first the amputation of the hand, afterwards dismembering of it, joined with other pains.[78] In some countries a perjurer lost the offending fingers or his right hand,[79] in others he had his tongue cut {522} off or pierced with a hot iron;[80] and in England, before the Conquest, a man might lose his tongue by bringing a false and scandalous accusation.[81] In the seventeenth century a person in Scotland was sentenced to have his tongue bored because he had libelled the Lord Justice General.[82] In German and Austrian codes we find, even in the eighteenth century, traces of the principle of punishing the offending member;[83] and in France the last survival of it--the amputation of the right hand of a parricide before his execution--disappeared only in 1832.[84] Growing refinement of feeling has made people averse from the use of surgery in the administration of justice; and in most European countries grown-up offenders are no longer liable to corporal punishment of any kind.[85]

[Footnote 65: Supra, p. 178. See also Laws of [Hv]ammurabi, 196, 197, 200; Exodus, xxi. 24 sq.; Leviticus, xxiv. 19 sq.; Deuteronomy, xix. 21; Koran, v. 49; Sachau, op. cit. p. 762 sq. (Muhammedan law); Leist, Alt-arisches Jus Gentium, p. 426 sq. (Greeks); Lex Duodecim Tabularum, viii. 2; Günther, Idee der Wiedervergeltung, p. 186 sqq. (Teutons).]

[Footnote 66: For its occurrence in modern Persia, see Polak, Persien, i. 256, 329 sq.; in Fez, see Leo Africanus, History and Description of Africa, ii. 470. The Koran (v. 42) orders theft to be punished by cutting off the hands of the thief, but this punishment is now seldom practised in Muhammedan countries. Among the lower races I have met only with a few instances of punishing the offending member. In Ashanti intrigue with the female slaves of the royal household is punished by emasculation (Ellis, Tshi-speaking Peoples of the Gold Coast, p. 287); and the Kamchadales burn the hands of people who have been frequently caught in theft (Krasheninnikoff, op. cit. p. 179).]

[Footnote 67: Laws of [Hv]ammurabi, 192, 194, 195, 218, 226, 253.]

[Footnote 68: Laws of Manu, viii. 270-272, 279-283, 322, 334, 374; xi. 105.]

[Footnote 69: Günther, op. cit. i. 94 sqq.]

[Footnote 70: Ibid. i. 155 sqq.]

[Footnote 71: Ibid. i. 195 sqq. Wilda, op. cit. p. 510. Grimm, Deutsche Rechtsalterthümer, p. 740.]

[Footnote 72: Du Boys, Histoire du droit criminel des peuples modernes, ii. 699. Idem, Histoire du droit criminel de l'Espagne, p. 94. Cibrario, Economia politica del medio eve, i. 346 sq.]

[Footnote 73: Laws of Alfred, ii. 25.]

[Footnote 74: Bracton, De Legibus et Consuetudinibus Angliæ, fol. 147, vol. ii. 480 sq.]

[Footnote 75: Laws of Cnut, ii. 54.]

[Footnote 76: Laws of Æthelstan, 14.]

[Footnote 77: Strutt, View of the Manners, Customs, &c., of the Inhabitants of England, iii. 43.]

[Footnote 78: Erskine, Principles of the Law of Scotland, p. 571.]

[Footnote 79: Stemann, op. cit. p. 645. Charles V.'s Peinliche Gerichts Ordnung, art. 107, p. 235. Pollock and Maitland, History of English Law before the Time of Edward I. ii. 453. Günther, op. cit. ii. 57.]

[Footnote 80: Du Boys, Histoire du droit criminel des peuples modernes, ii. 699. Idem, Histoire du droit criminel de l'Espagne, p. 599 sq. Pitcairn, Criminal Trials in Scotland, iii. 539.]

[Footnote 81: Pollock and Maitland, op. cit. ii. 539.]

[Footnote 82: Rogers, Social Life in Scotland, ii. 35.]

[Footnote 83: Günther, op. cit. ii. 55-57, 65; iii. 79.]

[Footnote 84: Chauveau and Hélie, Théorie du Code Pénal, iii. 394.]

[Footnote 85: See von Liszt, Le droit criminel des états européens, passim; Wrede, Die Körperstrafen bei allen Völkern, passim.]

Corporal punishment has generally been, by preference, a punishment for poor and common people or slaves.[86] Blows and abusive language, says Plutarch, seem to be more fitting for slaves than the freeborn.[87] According to the religious law of the Hindus, a Brâhmana shall not suffer corporal punishment for any offence.[88] Among the Hebrews[89] and Muhammedans,[90] among the Romans[91] and in the Middle Ages,[92] the punishment of mutilation could generally be commuted to a fine. For a long period, in {523} Christian Europe, as well as in Pagan Rome during the Empire,[93] the punishment was more savage in proportion as the delinquent was more helpless. "En crimes," says Loysel, "les villains sont plus griévement punis en leurs corps que les nobles. . . . Et où le vilain perdroit la vie, ou un membre de son corps, le noble perdra l'honneur, et réponse en cour."[94] Indeed, whilst the slave incurred the penalty of mutilation for the most trifling offence, the noble might be exempted from corporal punishment of any kind.[95] In a similar manner the social status of a person has influenced his right to bodily integrity with reference to judicial torture. According to the Chinese Penal Code, "it shall not, in any tribunal of government, be permitted to put the question by torture to those who belong to any of the eight privileged classes, in consideration of the respect due to their character."[96] In Rome, under the Republic, torture was exclusively confined to the slaves.[97] In mediæval Christendom it was made use of to an extent and with a cold-blooded ferocity unknown to any heathen nation, and in cases of heresy and treason it was applied to every class of the community.[98] But the tortures inflicted on the nobles and the clergy were lighter than in the case of ordinary laymen, and proof of a more decided character was required to justify their being exposed to torment.[99] "Noble persons and persons of quality," says Dumoulin, "cannot so easily be subjected to torture as persons who are of mean and plebeian rank."[100] Guazzini, an eminent Italian jurisconsult and a recognised expositor of the law of torture in the days of its highest ascendency and ripest maturity, observes that the torment inflicted {524} on a person shall be proportionate to his age, his physical constitution, his mental habits, and his social status;[101] and he adds that bishops and others in high civil dignity are exempt from torture even under strong presumptions of guilt.[102]

[Footnote 86: See, for instance, the Laws of Manu, viii. 267, 279.]

[Footnote 87: Plutarch, De educatione puerorum, 12.]

[Footnote 88: Baudhâyana, i. 10. 18. 17. Institutes of Vishnu, v. 2.]

[Footnote 89: Günther, op. cit. i. 55.]

[Footnote 90: Ibid. i. 74 sq. Lane, Manners and Customs of the Modern Egyptians, p. 120. Sachau, op. cit. p. 764. According to Muhammedan law, it is not obligatory for the injured party to accept compensation in lieu of mutilation.]

[Footnote 91: Günther, op. cit. i. 124 sqq. Mommsen, Römisches Strafrecht, p. 981.]

[Footnote 92: Du Boys, Histoire du droit criminel des peuples modernes, ii. 557 sq. Strutt, op. cit. ii. 8.]

[Footnote 93: Cf. Mackenzie, Studies in Roman Law, p. 414 sq.]

[Footnote 94: Loysel, Institutes coutumières, vi. 2. 31 sq., vol. ii. 219 sq.]

[Footnote 95: Du Boys, Histoire du droit criminel de l'Espagne, p. 469.]

[Footnote 96: Ta Tsing Leu Lee, sec. cccciv. p. 441.]

[Footnote 97: Mommsen, Römisches Strafrecht, p. 405.]

[Footnote 98: Suarez de Paz, Praxis ecclesiastica et secularis, v. 1. 3. 12, fol. 154 b. Cf. Lecky, Rise and Influence of the Spirit of Rationalism in Europe, i. 328.]

[Footnote 99: Lea, Superstition and Force, p. 526 sq.]

[Footnote 100: Dumoulin, quoted by Welling, 'Law of Torture,' in The American Anthropologist, v. 210 sq.]

[Footnote 101: Guazzini, Tractatus ad defensam inquisitorum, xxx. 4. 24, vol. ii. 86.]

[Footnote 102: Ibid. xxx. 17, vol. ii. 102 sq.]

The moral notions regarding the infliction of bodily injuries require little comment. They are based on the principle of sympathetic resentment, modified by the ascription of particular rights to some and particular duties to others, on account of the relation in which the parties stand to each other; and they follow the same rules as the ideas concerning homicide, to the exclusion, of course, of all such considerations as result from fear of the slain man's ghost or from the religious horror of taking life. One point, however, calls for special attention. The forcible interference with another person's body not only causes physical pain but commonly entails disgrace upon the sufferer. This largely accounts for the fact that a person's right to bodily integrity varies so much according to his social standing.[103] Even among the lower races we meet with the notions that an act of bodily violence involves a gross insult, and that corporal punishment disgraces the criminal more than any other form of penalty. According to the Malay Code, "the persons who may be put to death without the previous knowledge of the king or nobles, are an adulterer, a person guilty of treason, a thief who cannot otherwise be apprehended, and a person who offers another a grievous affront, such as a blow over the face."[104] Among the Maoris a blow with the fist would lead to a combat with arms.[105] The Thlinkets consider corporal punishment to {525} be the greatest indignity to which a freeman can be subjected, hence they never inflict it.[106] And civilised nations who are ready to punish certain criminals with death, hold whipping to be a punishment too infamous to be employed.

[Footnote 103: Cf. Dimetian Code, ii. 17. 17 (Ancient Laws and Institutes of Wales, p. 248): "The Law says that the limbs of all persons are of equal worth; if a limb of the king be broken, that it is of the same worth as the limb of the villain: yet, nevertheless, the worth of saraad [or fine for insult] to the king, or to a breyr, is more than the saraad of a villain, if a limb belonging to him be cut." See also Gwentian Code, ii. 7. 12 sq. (ibid. p. 342).]

[Footnote 104: Crawfurd, History of the Indian Archipelago, iii. 105 sq.]

[Footnote 105: Shortland, Traditions and Superstitions of the New Zealanders, p. 227.]

[Footnote 106: Holmberg, 'Ethnograph. Skizzen über die Völker des russischen Amerika,' in Acta Societatis Scientiarum Fennicæ, iv. 321.]

Chapter XXIII — Charity and Generosity

IN previous chapters we have examined the regard for the life and physical well-being of others as displayed in moral ideas concerning homicide and the infliction of bodily harm. We shall now consider the same subject from another point of view, namely, the valuation of such conduct as positively promotes the existence and material comfort of a fellow-creature.

There is one duty so universal and obvious that it is seldom mentioned: the mother's duty to rear her children, provided that they are suffered to live. Another duty--equally primitive, I believe, in the human race--is incumbent on the married man: the protection and support of his family. We hear of this duty from all quarters of the savage world.

Among the North American Indians it was considered disgraceful for a man to have more wives than he was able to maintain.[1] Mr. Powers says that among the Patwin, a Californian tribe which he believes to rank among the lowest in the world, "the sentiment that the men are bound to support the women--that is to furnish the supplies--is stronger even than among us."[2] Among the Iroquois it was the office of the husband "to make a mat, to repair the cabin of his wife, or to construct a new one." The product of his hunting expeditions, {527} during the first year of marriage, belonged of right to his wife, and afterwards he shared it equally with her, whether she remained in the village, or accompanied him to the chase.[3] Among the Botocudos, whose girls are married very young, remaining in the house of the father till the age of puberty, the husband is even then obliged to maintain his wife, though living apart from her.[4] Among the Lengua Indians of the Paraguayan Chaco the child of a woman whose husband deserts her is generally killed at birth, the mother feeling that it is the man's part of married life to provide meat for his offspring.[5] Azara states that, among the Charruas, "du moment où un homme se marie, il forme une famille à part, et travaille pour la nourrir."[6] Of the Fuegians it is said that, "as soon as a youth is able to maintain a wife, by his exertions in fishing or bird-catching, he obtains the consent of her relations."[7] The wretched Rock Veddahs in Ceylon "acknowledge the marital obligation and the duty of supporting their own families."[8] Among the Maldivians, "although a man is allowed four wives at one time, it is only on condition of his being able to support them."[9] The Nairs, we are told, consider it a husband's duty to provide his wife with food, clothing, and ornaments;[10] and almost the same is said by Dr. Schwaner with reference to the tribes of the Barito district, in the south east part of Borneo.[11] Among the cannibals of New Britain the chiefs have to see that the families of the warriors are properly maintained.[12] Concerning the Tonga Islanders Mariner states that "a married woman is one who cohabits with a man, and lives under his roof and protection."[13] Among the Maoris "the mission of woman was to increase and multiply, that of man to defend his home."[14] With reference to the Kurnai in South Australia, Mr. Howitt states that "the man has to provide for his family with the assistance of his wife. His share is to hunt for their support, and to fight for their protection."[15] In Lado, in Africa, the bridegroom has to assure his father-in-law three times that he will {528} protect his wife, calling the people present to witness.[16] Among the Touareg a man who deserts his wife is blamed, as he has taken upon himself the obligation of maintaining her.[17]

[Footnote 1: Waitz, Anthropologie der Naturvölker, iii. 109. Carver, Travels through the Interior Parts of North America, p. 367.]

[Footnote 2: Powers, Tribes of California, p. 222.]

[Footnote 3: Heriot, Travels through the Canadas, p. 338.]

[Footnote 4: von Tschudi, Reisen durch Südamerika, ii. 283.]

[Footnote 5: Hawtrey, in Jour. Anthr. Inst. xxxi. 295.]

[Footnote 6: Azara, Voyages dans l'Amérique méridionale, ii. 22.]

[Footnote 7: King and Fitzroy, Voyages of the "Adventure" and "Beagle," ii. 182.]

[Footnote 8: Tennent, Ceylon, ii. 441.]

[Footnote 9: Rosset, 'Maldive Islands,' in Jour. Anthr. Inst. xvi. 168 sq.]

[Footnote 10: Stewart, 'Notes on Northern Cachar,' in Jour. Asiatic Soc. Bengal, xxiv. 614.]

[Footnote 11: Schwaner, Borneo, i. 199.]

[Footnote 12: Angas, Polynesia, p. 373.]

[Footnote 13: Mariner, Natives of the Tonga Islands, ii. 167.]

[Footnote 14: Johnston, Maoria, p. 28 sq.]

[Footnote 15: Fison and Howitt, Kamilaroi and Kurnai, p. 206.]

[Footnote 16: Wilson and Felkin, Uganda, ii. 90.]

[Footnote 17: Chavanne, Die Sahara, p. 209. Cf. Hanoteau and Letourneux, La Kabylie, ii. 167.]

Among many of the lower races a man is not even permitted to marry until he has given some proof of his ability to support and protect his family.[18] Indeed, so closely is the idea that a man is bound to maintain his family connected with that of marriage and fatherhood, that sometimes even repudiated wives with their children are, at least to a certain extent, supported by their former husbands.[19] And upon the death of a husband, the obligation of maintaining his wife and her children devolves on his heirs, the wide-spread custom of a man marrying the widow of his deceased brother being not only a privilege, but, among several peoples, even a duty.[20]

[Footnote 18: Westermarck, History of Human Marriage, p. 18.]

[Footnote 19: Ibid. p. 19.]

[Footnote 20: Ibid. p. 511 sq.]

Turning to peoples who have reached a higher stage of culture:--Abû Shugâ[(] says that, among Muhammedans, parents are obliged to support their families, "if the children are both poor and under age, or both poor and lastingly infirm, or both poor and insane."[21] But that this duty chiefly devolves on the father is evident from the fact that the mother is even entitled to claim wages for nursing them.[22] Buddhistic law goes so far as to prescribe that the parents shall provide their son with a beautiful wife, and give him a share of the wealth belonging to the family.[23] It has been observed that in the Confucian books there is no mention of any real duties incumbent upon the father towards his children;[24] nor does the Decalogue contain anything on the subject; nor any law of ancient Greece or Rome.[25] But, as has been justly {529} argued, if legal prescriptions are wanting, that is because they are thought to be superfluous, nature itself having sufficiently prepared men for the performance of their duties towards their offspring.[26] So, also, it is regarded as a matter of course that the husband shall support his wife, however great power he may possess over her. Among the Romans manus implied not only the wife's subordination to the husband, but also the husband's obligation to protect the wife.[27]

[Footnote 21: Sachau, Muhammedanisches Recht, p. 18.]

[Footnote 22: Ibid. p. 99 sq.]

[Footnote 23: Hardy, Manual of Budhism, p. 495.]

[Footnote 24: Faber, Digest of the Doctrines of Confucius, p. 82.]

[Footnote 25: Leist, Græco-italische Rechtsgeschichte, p. 13.]

[Footnote 26: Ibid., p. 13. Schmidt, Ethik der alten Griechen, ii. 141. Adam Smith, Theory of Moral Sentiments, p. 199 sq.]

[Footnote 27: Rossbach, Untersuchungen über die römische Ehe, p. 32. Cf. Laws of Manu, ix. 74, 75, 95.]

The parents' duty of taking care of their offspring is, in the first place, based on the sentiment of parental affection. That the maternal sentiment is universal in mankind is a fact too generally admitted to need demonstration; not so the father's love of his children. Savage men are commonly supposed to be very indifferent towards their offspring; but a detailed study of facts leads us to a different conclusion. It appears that, among the lower races, the paternal sentiment is hardly less universal than the maternal, although it is probably never so strong and in many cases distinctly feeble. But more often it displays itself with considerable intensity even among the rudest savages. In the often-quoted case of the Patagonian chief who, in a moment of passion, dashed his little son with the utmost violence against the rocks because he let a basket of eggs which the father handed to him fall down, we have only an instance of savage impetuosity. The same father "would, at any other time, have been the most daring, the most enduring, and the most self-devoted" in the support and defence of his child.[28] Similarly the Central Australian natives, in fits of sudden passion, when hardly knowing what they do, sometimes treat a child with great severity; but as a rule, to which there are very few exceptions, they are kind and considerate to their children, the men as well as the women carrying them when they get tired on the march, {530} and always seeing that they get a good share of any food.[29] All authorities agree that the Australian Black is affectionate to his children.[30] "From observation of various tribes in far distant parts of Australia," says Mr. Howitt, "I can assert confidently that love for their children is a marked feature in the aboriginal character. I cannot recollect having ever seen a parent beat or cruelly use a child; and a short road to the goodwill of the parents is, as amongst us, by noticing and admiring their children. No greater grief could be exhibited, by the fondest parents in the most civilised community at the death of some little child, than that which I have seen exhibited in an Australian native camp, not only by the immediate parents, but by the whole related group."[31] Other representatives of the lowest savagery, as the Veddahs[32] and Fuegians,[33] are likewise described as tender parents. Though few peoples have acquired a worse reputation for cruelty than the Fijians, even the greatest censurer of their character admits that the exhibition of parental love among them "is sometimes such as to be worthy of admiration";[34] whilst, according to another authority, "it is truly touching to see how parents are attached to their children."[35] The Bangala of the Upper Congo, "swayed one moment by a thirst for blood and indulging in the most horrible orgies, . . . may yet the next be found approaching their homes looking forward with {531} the liveliest interest to the caresses of their wives and children."[36] Carver asserts that he never saw among any other people greater proofs of parental or filial tenderness than among the North American Naudowessies.[37] Among the Point Barrow Eskimo "the affection of parents for their children is extreme";[38] and the same seems to be the case among the Eskimo in general.[39] Concerning the Aleuts Veniaminof wrote long ago:--"The children are often well fed and satisfied, while the parents almost perish with hunger. The daintiest morsel, the best dress, is always kept for them."[40] Mr. Hooper, again, found parental love nowhere more strongly exemplified than among the Chukchi; "the natives absolutely doat upon their children."[41] Innumerable facts might indeed be quoted to prove that parental affection is not a late product of civilisation, but a normal feature of the savage mind as it is known to us.[42]

[Footnote 28: King and Fitzroy, op. cit. ii. 155. Cf. ibid. ii. 154; Musters, At Home with the Patagonians, p. 196 sq.]

[Footnote 29: Spencer and Gillen, Native Tribes of Central Australia, p. 50 sq.]

[Footnote 30: Curr, The Australian Race, i. 402; iii. 155. Idem, Recollections of Squatting in Victoria, p. 252. Angas, Savage Life and Scenes in Australia, i. 94. Brough Smyth, Aborigines of Victoria, i. 51; ii. 311. Ridley, Aborigines of Australia, p. 23. Eyre, Journals of Expeditions of Discovery into Central Australia, ii. 214 sq. Sturt, Expedition into Central Australia, ii. 137. Calvert, Aborigines of Western Australia, p. 30 sq. Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, p. 15. Gason, 'Manners and Customs of the Dieyerie Tribe,' ibid. p. 258. Hill and Thornton, Aborigines of New South Wales, pp. 2, 4. Fraser, Aborigines of New South Wales, pp. 2, 44. Lumholtz, Among Cannibals, p. 193.]

[Footnote 31: Fison and Howitt, op. cit. p. 189. Cf. ibid. p. 259.]

[Footnote 32: Bailey, 'Wild Tribes of the Veddahs of Ceylon,' in Trans. Ethn. Soc. N.S. ii. 291. Deschamps, Carnet d'un voyageur au pays des Veddas, p. 380.]

[Footnote 33: King and Fitzroy, op. cit. i. 76; ii. 186. Weddell, Voyage towards the South Pole, p. 156. Pertuiset, Le Trésor des Incas à la Terre de Feu, p. 217.]

[Footnote 34: Williams and Calvert, Fiji and the Fijians, p. 116.]

[Footnote 35: Seemann, Viti, p. 193. Cf. ibid. p. 194.]

[Footnote 36: Ward, Five Years with the Congo Cannibals, p. 141. Cf. ibid. p. 139.]

[Footnote 37: Carver, op. cit. p. 240 sq. Cf. ibid. p. 378 sq.]

[Footnote 38: Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 417.]

[Footnote 39: Hall, Arctic Researches, p. 568. Parry, Second Voyage for the Discovery of a North-West Passage, p. 529. Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 566. Turner, 'Ethnology of the Ungava District,' ibid. xi. 191. Seemann, Voyage of "Herald," ii. 65. Cranz, History of Greenland, i. 174.]

[Footnote 40: Veniaminof, quoted by Dall, Alaska, p. 397. Cf. ibid. p. 393; Petroff, 'Report on Alaska,' in Tenth Census of the United States, p. 158.]

[Footnote 41: Hooper, Ten Months among the Tents of the Tuski, p. 201.]

[Footnote 42: Dobrizhoffer, Account of the Abipones, ii. 214 sq. Wied-Neuwied, Reise nach Brasilien, ii. 40 (Botocudos). Wallace, Travels on the Amazon, p. 518 sq. (Amazon Indians; but on the Brazilian Indians generally, cf. von Martius, in Jour. Roy. Geo. Soc. ii. 198, and Idem, Beiträge zur Ethnographie Amerika's, i. 125). Im Thurn, Among the Indians of Guiana, pp. 213, 219. MacCauley, 'Seminole Indians of Florida,' in Ann. Rep. Bur. Ethn. v. 491. Dunbar, 'Pawnee Indians,' in **Magazine of American History, viii. 745. Catlin, North American Indians, ii. 242. Ten Kate, Reizen en onderzoekingen in Noord-Amerika, p. 364 sq. Sproat, Scenes and Studies of Savage Life, p. 160 (Ahts). Franklin, Journey to the Shores of the Polar Sea, p. 68 (Crees). Elliott, 'Report on the Seal Islands,' in Tenth Census of the United States, p. 238. Krasheninnikoff, History of Kamschatka, p. 232 (Koriaks). Georgi, Russia, i. 25 (Laplanders); iii. 13 (Tunguses), 158 (Kamchadales). Castrén, Nordiska resor och forskningar, ii. 121 (Ostyaks). Prejevalsky, Mongolia, i. 71. Scott Robertson, Káfirs of the Hindu-Kush, p. 189. Blunt, Bedouin Tribes of the Euphrates, ii. 214. Dalton, Desiriptive Ethnology of Bengal, p. 68 (Garos). Marshall, A Phrenologist amongst the Todas, p. 200; Shortt, 'Hill Tribes of the Neilgherries,' in Trans. Ethn. Soc. N.S. vii. 254 (Todas). Kloss, In the Andamans and Nicobars, p. 228 (Nicobarese). Man, Sonthalia and the Sonthals, p. 78. Wallace, Malay Archipelago, p. 450 (Malays). Schwaner, op. cit. i. 162 (Malays of the Barito River Basin in Borneo). Low, Sarawak, p. 148 (Malays). Bock, Head-Hunters of Borneo, p. 210 (Dyaks). Ling

Roth, Natives of Sarawak and British North Borneo, i. 68 (Land Dyaks). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 321 (natives of Timor-laut). Forbes, Insulinde, p. 182 (natives of Ritobel) Seligmann, in Reports of the Cambridge Anthropological Expedition to Torres Straits, v. 199; Haddon, ibid. v. 229, 274 (Western Islands). Romilly, From my Verandah in New Guinea, p. 51. Chalmers, Pioneering in New Guinea, p. 163. Christian, Caroline Islands, p. 72 (Ponapeans). Kubary, 'Die Bewohner der Mortlock Inseln,' in Mittheilungen der Geogr. Gesellsch. in Hamburg, 1878-9, p. 261. Macdonald, Oceana, p. 195 (Efatese). Turner, Samoa, p. 317 (natives of Tana), von Kotzebue, Voyage of Discovery, iii. 165 (Natives of Radack). Mariner, op. cit. ii. 179 (Tongans). Dieffenbach, Travels in New Zealand, ii. 26, 107; Crozet, Voyage to Tasmania, p. 66 (Maoris). Dove, 'Aborigines of Tasmania,' in Tasmanian Journal of Natural Science, i. 252. Reade, Savage Africa, p. 245 (Equatorial Africans). Casati, Ten Years in Equatoria, i. 186 (Central African Negroes). Caillié, Travels through Central Africa, i. 352 (Mandingoes). Holub, Seven Years in South Africa, ii. 296 (Marutse). Livingstone, Missionary Travels, p. 126 (Bechuanas). Johnston, Uganda Protectorate, ii. 539 (Pigmies). Sparrman, Voyage to the Cape of Good Hope, i. 219 (Hottentots). Shaw, 'Betsileo Country and People,' in Antananarivo Annual and Madagascar Magazine, iii. 82. See also supra, p. 405; Steinmetz, 'Verhältnis zwischen Eltern und Kindern bei den Naturvölkern,' in Zeitschrift für Socialwissenschaft, i. 610 sqq.; Idem, Ethnologische Studien zur ersten Entwicklung der Strafe, ii. ch. vi. §2.]

{532} When dealing with the origin of the altruistic sentiment we shall find reason to believe that paternal affection not only prevails among existing men, savage and civilised, but that it belonged to the human race from the very beginning, and that the same was the case with the germ of marital affection, inducing the male to remain with the female till after the birth or the offspring, and to defend and support her during the periods of pregnancy and motherhood. It is true that among several savage peoples conjugal love is said to be unknown; but what is meant by this is, I think, typically expressed in Major Ellis's statement referring to some Gold Coast natives, that among them "love, as understood by the people of Europe, has no existence."[43] The love of a savage is certainly very different from the love of a civilised man; nevertheless we may discover in it traces of the same ingredients. Even rude savages, such as the Bushmans, Fuegians, Andaman Islanders, and Australian aborigines, seem often to be lovingly attached to their wives.[44]

[Footnote 43: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 285. I have dealt with this subject in my History of Human Marriage, p. 356 sqq.]

[Footnote 44: Ibid. p. 358 sq.]

{533} The prevalence of paternal and marital affection accounts for the origin of the family (consisting of parents and children), and for the functions of the man as father and husband. The growing intensity of these sentiments has naturally increased the stability of the family tie; and other factors, of a selfish nature, have contributed towards the same result. From various points of view it is desirable for a man to have children. They are to him objects of pride; when grown-up, they add to his safety and power; they support him when he gets old; they make offerings to his spirit when he is dead. And no less useful is the possession of a wife. When the generative power is no longer restricted to a certain season of the year, she becomes a lasting cause of sensual delight; she is a mother of children; she manages the household; she acts as a carrier, she works in the field.

Every social institution has a tendency to become a matter of moral concern because of the persistence of habit. But the simplest paternal and marital duties have a deeper

foundation than the mere force of the habitual. If a man leaves his wife and children without protection and support, the other members of the community will sympathise with them, and feel resentment towards the neglectful husband and father. He will be looked upon as the cause of their sufferings, because he omitted to do what other men in his position would have done. His conduct will be repulsive to everyone who himself possesses those sentiments of which he proves destitute. He will be held guilty of a breach of contract, since by marrying he took upon himself the burden of maintaining his wife and their common offspring. To thoughtful minds his responsibility towards his children is further increased by the fact that he is the author of their being, and for that reason the source of their misery. Finally, the community as a whole will suffer by his negligence.

The parents' duty of taking care of their offspring lasts until the latter are able to shift for themselves. On the other hand, when the parents, in their turn, get in need of {534} support, their care is to be reciprocated by the children. The practice of killing or abandoning decrepit parents is an exception even in the savage world, and, as we have seen, restricted to extreme cases in which it may be regarded as an act of kindness or of hard necessity. There are always savage peoples among whom aged parents, though suffered to live, are said to be grossly neglected by their children. But, so far as I know, these peoples are not numerous, and can hardly be regarded as representatives of a custom common to any larger ethnic group.

Thus, according to Hearne, "old age is the greatest calamity that can befall a Northern Indian; for when he is past labour, he is neglected, and treated with great disrespect, even by his own children. They not only serve him last at meals, but generally give him the coarsest and worst of the victuals; and such of the skins as they do not chuse to wear, are made up in the clumsiest manner into clothing for their aged parents."[45] Yet among the same people Richardson witnessed "several unquestionable instances of tenderness and affection shown by children to their parents, and of compliance with their whims, much to their own personal inconvenience."[46] In his work on the tribes of California Mr. Powers observes:--"filial piety cannot be said to be a distinguishing quality of the Wailakki, or, in fact, of any Indians. No matter how high may be their station, the aged and decrepit are counted a burden. The old man, hero of a hundred battles, sometime 'lord of the lion heart and eagle eye,' when his fading eyesight no more can guide the winged arrow as of yore, is ignominiously compelled to accompany his sons into the forest, and bear home on his poor old shoulders the game they have killed."[47] But concerning the Indians of Upper California Beechey writes, "When any of their relations are indisposed, the greatest attention is paid to their wants, and it was remarked by Padre Arroyo that filial affection is stronger in these tribes than in any civilised nation on the globe with which he was acquainted."[48] Among the Indians on the east side of the Rocky Mountains, "the aged are commonly treated with much respect, which they consider themselves as entitled to claim"; and they "are not suffered to want any thing which they need, and which {535} it is in the power of their relations to procure for them."[49] The religious teachers of the Iroquois inculcated the duty of protecting aged parents, as divinely enjoined:--"It is the will of the Great Spirit that you reverence the aged, even though they be as helpless as infants."[50] The Aleuts described by Veniaminof considered disregard of one's parents to be the greatest and most dishonourable of crimes; "we should sincerely love them," they said, "do all we could toward their support, remain with them, and care for them until their death."[51] The children of the Central Eskimo are very dutiful, obeying the wishes of their parents and taking care of them in their old age;[52] and statements to the same effect are made

with reference to other Eskimo tribes.[53] Cranz, who did not generally panegyrise the moral qualities of the Greenlanders, wrote that the bonds of filial and parental love seem stronger in them than amongst other nations, and that "ingratitude in up-grown children towards their old decrepit parents, is scarcely exemplified among them."[54] Among the Botocudos Prince Wied-Neuwied saw a young man carrying about his blind father, not leaving him alone for a single moment.[55] Among the Fuegians "grown-up children are expected to support their parents when they become aged; the son generally makes his father, if he is past work, a canoe every season, and if the aged man is a widower he lives entirely under the charge of his eldest son."[56] The Australian natives are much praised for the regard with which they treat their parents and elders. With reference to the Western tribes, Bishop Salvado observes:--"Les fils adultes payent de retour l'affection de leurs parents. S'ils sont vieux, ils réservent pour eux les meilleurs pièces de gibier, ou de tout autre mets, et se chargent de venger leurs offenses."[57] Among the Kukis of India, "when past work, the father and mother are supported by their children."[58] Among the Bódo and Dhimáls "it is {536} deemed shameful to leave old parents entirely alone; and the last of the sons, who by his departure does so, is liable to fine as well as disinheritance."[59] Among the Betsileo of Madagascar "the old are never left destitute or to their own devices. . . . It is by no means uncommon to see the son carrying the aged parent on his back, when necessity or inclination demands locomotion."[60] Among the Mandingoes "the aged who are unable to support themselves are always maintained and treated with respect by their children."[61] That uncivilised races commonly regard it a stringent duty for children to maintain their aged parents and to administer to their wants, is also obvious from statements testifying their filial regard in general terms.[62] On the other hand, the fact that some peoples are said to be deficient in this sentiment, does not imply that they fail to recognise the simple duty of supporting old and helpless parents.

[Footnote 45: Hearne, Journey to the Northern Ocean, p. 345 sq.]

[Footnote 46: Richardson, Arctic Searching Expedition, ii. 17.]

[Footnote 47: Powers, op. cit. p. 118 sq.]

[Footnote 48: Beechey, Voyage to the Pacific and Behring's Strait, ii. 402.]

[Footnote 49: Harmon, Voyages and Travels in the Interior of North America, p. 348.]

[Footnote 50: Morgan, League of the Iroquois, p. 171.]

[Footnote 51: Veniaminof, quoted by Petroff, loc. cit. p. 155.]

[Footnote 52: Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 566.]

[Footnote 53: Murdoch, 'Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 417. Turner, 'Ungava District,' ibid. xi. 191.]

[Footnote 54: Cranz, op. cit. i. 174, 150. Cf. Egede, Description of Greenland, p. 147; Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grönland, x. 93.]

[Footnote 55: Wied-Neuwied, op. cit. ii. 40.]

[Footnote 56: Bridges, 'Manners and Customs of the Firelanders,' in A Voice for South America, xiii. 206.]

[Footnote 57: Salvado, Mémoires historiques sur l'Australie, p. 277. Cf. Curr, The Australian Race, iii. 155; Gason, 'Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 258; Mathew, 'Australian Aborigines,' in Jour. & Proceed. Roy. Soc. N. S. Wales, xxiii. 388.]

[Footnote 58: Lewin, Wild Races of South-Eastern India, p. 256.]

[Footnote 59: Hodgson, Miscellaneous Essays, i. 123.]

[Footnote 60: Shaw, in Antananarivo Annual, iii. 82.]

[Footnote 61: Caillié, op. cit. i. 352.]

[Footnote 62: See infra, on the Subjection of Children.]

At a higher stage of civilisation reverence for parents reaches its pitch, and the duty of maintaining them in their old age is taken for a matter of course. Among the present Hindus "it would certainly be regarded as a most disgraceful thing were a man who could do anything for the support of an aged father or mother to allow the burden of their maintenance to fall on strangers";[63] and it is common for unmarried soldiers to stint themselves almost to starvation point, that they may send home money to their parents.[64] The priesthood of modern Buddhism teach that children shall "respect their parents, and perform all kinds of offices for them, even though they should have servants whom they could command to do all that they require."[65] At ancient Athens, before a man could become a magistrate, evidence was to be produced that he had treated his parents properly; and a person who refused his parents food and dwelling lost his right of speaking in the national assembly.[66] According to {537} the Icelandic Grágás, a man should maintain in the first place his mother, in the second his father, in the third his own children.[67] The Talmud enjoins the duty of maintaining parents; [68] and so does Muhammedan law, "if the parents are both poor and lastingly infirm, or both poor and insane."[69]

[Footnote 63: Wilkins, Modern Hinduism, p. 418.]

[Footnote 64: Monier Williams, Indian Wisdom, p. 440, n. 1.]

[Footnote 65: Hardy, op. cit. p. 494. Cf. ibid. p. 495.]

[Footnote 66: Schmidt, Ethik der alten Griechen, ii. 144.]

[Footnote 67: Grágás, Omaga-balkr, 1, vol. i. 232.]

[Footnote 68: Katz, Der wahre Talmudjude, p. 119.]

[Footnote 69: Sachau, op. cit. p. 17 sq.]

Christianity, as will be shown, in one essential point changed the notions of antiquity regarding children's duties towards their parents: it made these duties subordinate to men's duties towards God. "Verily I say unto you, There is no man that hath left house, or brethren, or sisters, or father, or mother, or wife, or children, or lands, for my sake, and the gospel's, but he shall receive an hundredfold now in this time, houses, and brethren, and sisters, and mothers, and children, and lands, with persecutions; and in the world to come eternal life."[70] There are numerous legends and lives of saints in which the desertion of the nearest relations is recorded as one of the leading features of their sanctity, and as one of their chief titles to honour.[71] Some Catholic writers were of opinion that a man might lawfully abandon his parents, even though they could not be supported without him, and enter religion, committing the care of them to God. But Thomas Aquinas says that this would be tempting God, adding however that he who has already professed religion "ought not, on any plea of supporting his parents, to quit the cloister in which he is buried with Christ, and entangle himself again in worldly business."[72] Yet our duties towards our parents come next to our duties towards God. We ought to aid them when in want, and to supplicate God in their behalf that they may lead prosperous and happy lives.[73]

[Footnote 70: St. Mark, x. 29 sq.]

[Footnote 71: Cf. Farrer, Paganism and Christianity, p. 196.]

[Footnote 72: Thomas Aquinas, Summa Theologica, ii.-ii. 101. 4.]

[Footnote 73: Catechism of the Council of Trent, iii. 5. 10 sq.]

The duty of supporting aged parents has its root in {538} the sentiments of affection, gratitude, and regard, and, to some extent, in superstitious fear. However feeble they be, the parents have in their hands a powerful weapon--the curse; or, when they are

dead, their ghosts may avenge their wrongs on their neglectful children. All these circumstances will be discussed in the chapter dealing with the subjection of children.

We have further to consider the duty of assisting brothers and sisters and more distant relatives. Among the Aleuts, says Veniaminof, a brother "must always aid his brother in war as well as in the chase, and each protect the other; but if anybody, disregarding this natural law, should go to live apart, caring only for himself, such a one should be discarded by his relatives in case of attack by enemies or animals, or in time of storms; and such dishonourable conduct would lead to general contempt."[74] Among the Point Barrow Eskimo "the older children take very good care of the smaller ones";[75] and of the Sia Indians (Pueblos) we are told that "a marked trait is their loving kindness and care for younger brothers and sisters."[76] Dr. Schweinfurth writes:--"Notwithstanding . . . that certain instances may be alleged which seem to demonstrate that the character of the Dinka is unfeeling, these cases never refer to such as are bound by the ties of kindred. Parents do not desert their children, nor are brothers faithless to brothers, but are ever prompt to render whatever aid is possible."[77] I presume that these examples of fraternal relations may, on the whole, be regarded as expressive of universal facts. According to Confucius, the love which brother should bear to brother is second only to that which is due from children to parents.[78]

[Footnote 74: Veniaminof, quoted by Petroff, loc. cit. p. 155.]

[Footnote 75: Murdoch, in Ann. Rep. Bur. Ethn. ix. 417.]

[Footnote 76: Stevenson, 'Sia,' in Ann. Rep. Bur. Ethn. xi. 22.]

[Footnote 77: Schweinfurth, Heart of Africa, i. 169.]

[Footnote 78: Douglas, Confucianism and Taouism, p. 123.]

The duty of assisting more distant relatives is much more variable. It may be said that, as a general rule, among {539} savages and barbarians--with the exception, perhaps, of those who live in small family-groups--as also among the peoples of archaic culture, this duty is more prominent and extends further than amongst ourselves. The blood-tie has much greater strength, related families keep more closely together for mutual protection and aid. The Angmagsaliks of Eastern Greenland, says Lieutenant Holm, consider that the tie of blood imposes mutual assistance as a duty under all circumstances.[79] The Omahas maintain that "generosity cannot be exercised toward kindred, who have a natural right to our assistance."[80] Among the natives of Madagascar "the claims of relationship are distinctly recognised by custom and law. If one branch of a family becomes poor, the members of the same family support him; if he be sold into slavery for debt, they often unite in furnishing the price of his redemption. . . . The laws facilitate and encourage, and sometimes even enforce, such acts of kindness."[81] In his description of the Australian Bangerang, Mr. Curr observes, "Though their ways were different from ours, it always seemed to me that the bonds of friendship between blood relations were stronger, as a rule, with savages than amongst ourselves."[82] Among the Philippine Islanders "families are very united, and claims for help and protection are admitted, however distant the relationship may be."[83] Of the Burmans it is said, "No people can be more careful in preserving and acknowledging the bonds of family relationship to the remotest degrees, and not merely as a matter of form, but as involving the duty of mutual assistance."[84] Among the ancient Hindus, Persians, Greeks, and Romans, persons belonging to the four generations of near relatives--the Sapindas, Syngeneis, Anchisteis, or Propinqui--were expected to assist {540} each other whenever it was needed.[85] The Scandinavians considered him to be a bad man who did not help his kindred against strangers, even though there was enmity between the relatives.[86]

[Footnote 79: Holm, in Meddelelser om Grönland, x. 87.]

[Footnote 80: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 274.]

[Footnote 81: Ellis, History of Madagascar, i. 138. Cf. Sibree, The Great African Island, p. 256 sq.]

[Footnote 82: Curr, Recollections of Squatting in Victoria, p. 274.]

[Footnote 83: Foreman, Philippine Islands, p. 186.]

[Footnote 84: Forbes, British Burma, p. 59.]

[Footnote 85: Leist, Alt-arisches Jus Civile, i. 47 sqq., 231 sqq.]

[Footnote 86: Rosenberg, Nordboernes Aandsliv, i. 488.]

But the duty of helping the needy and protecting those in danger goes beyond the limits of the family and the kin. Uncivilised peoples are, as a rule, described as kind towards members of their own community or tribe. Between themselves charity is enjoined as a duty, and generosity is praised as a virtue. Indeed, their customs regarding mutual aid are often much more stringent than our own. And this applies even to the lowest savages.[87]

[Footnote 87: The prevalence of mutual aid in uncivilised communities has been duly emphasised by Prince Kropotkin, Mutual Aid, p. 76 sqq.]

"La disposition à la générosité," says M. Hyades, "est un trait charactéristique des Fuégiens. Ils aiment à partager ce qu'ils ont avec tous ceux qui les entourent."[88] Captain Weddell likewise speaks of "the philanthropic principle which these people exhibit towards one another."[89] Burchell tells us that the Bushmans, between themselves, "exercise the virtues of hospitality and generosity, often in an extraordinary degree."[90] The Veddahs of Ceylon are friendly towards each other, and ready to help a person in distress.[91] The Andamanese display much mutual affection in their social relations, and frequently make presents of the best that they possess. "Every care and consideration," says Mr. Man, "are paid by all classes to the very young, the weak, the aged, and the helpless, and these, being made special objects of interest and attention, invariably fare better in regard to the comforts and necessaries of daily life than any of the otherwise more fortunate members of the community."[92] The Australian natives are almost universally praised for their friendly behaviour towards persons {541} belonging to their own people.[93] Presents given to one of a group are speedily divided as far as possible among the rest, and when a black man has employment at a station he generally gives away most of his earnings to his comrades in the camp.[94] "Between the males of a tribe," says Mr. Curr, "there always exists a strong feeling of brotherhood, so that, come weal come woe, a man can always calculate on the aid, in danger, of every member of his tribe."[95] Regarding the Central Australian natives, Messrs. Spencer and Gillen observe that their treatment of one another "is marked on the whole by considerable kindness, that is, of course, in the case of members of friendly groups, with every now and then the perpetration of acts of cruelty."[96] Collins says that the aborigines about Botany Bay and Port Jackson "applauded acts of kindness and generosity, for of both these they were capable."[97]

[Footnote 88: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 243.]

[Footnote 89: Weddell, op. cit. p. 168. According to other authorities, the Fuegians, though free from malevolence and cruelty, are not distinguished for active benevolence (Bridges, in A Voice for South America, xiii. 208, 213. Bove, Patagonia, pp. 133, 137. Lovisato, 'Appunti etnografici sulla Terra del Fuoco,' in Cosmos di Guida Cora, viii. 145, 151. Cf. also Hyades and Deniker, op. cit. vii. 238, 240, 243 sq.).]

[Footnote 90: Burchell, Travels in the Interior of Southern Africa, ii. 54.]

[Footnote 91: Sarasin, Ergebnisse naturwissenschaftlicher Forschungen auf Ceylon, iii. 545, 550. Schmidt, Ceylon, p. 276.]

[Footnote 92: Man, in Jour. Anthr. Inst. xii. 93 sq. Cf. Portman, ibid. xxv. 368.]

[Footnote 93: Curr, The Australian Race, i. 49. Hodgson, Reminiscences of Australia, p. 88. Oldfield, 'Aborigines of Australia,' in Trans. Ethn. Soc. N.S. iii. 226. Eyre, op. cit. ii. 385 sq. Brough Smyth, op. cit. ii. 279. Lumholtz, Among Cannibals, p. 176. Mathew, in Jour. & Proceed. Roy. Soc. N.S. Wales, xxiii. 387 sq. Breton, Excursions in New South Wales, p. 218. Fison and Howitt, op. cit. p. 259. Wyatt, 'Manners and Superstitions of the Adelaide and Encounter Bay Aboriginal Tribes,' in Woods, Native Tribes of South Australia, p. 162. Schuermann, 'Aboriginal Tribes of Port Lincoln,' ibid. pp. 243, 244, 247.]

[Footnote 94: Schuermann, loc. cit. p. 244. Ridley, Kámilarói, p. 158. Fison and Howitt, op. cit. p. 256. Lumholtz, Among Cannibals, pp. 199, 343. Stirling, Report of the Horn Expedition to Central Australia. Part IV. Anthropology, p. 36.]

[Footnote 95: Curr, The Australian Race, i. 62.]

[Footnote 96: Spencer and Gillen, Native Tribes of Central Australia, p. 50.]

[Footnote 97: Collins, English Colony in New South Wales, i. 549.]

Passing to savages and barbarians who have reached a somewhat higher level of culture:--We are told by Mr. Catlin, with reference to the North American Indians, that, "to their friends, there are no people on earth that are more kind."[98] According to Adair, "they are very kind and liberal to every one of their own tribe, even to the last morsel of food they enjoy"; Nature's school "teaches them the plain easy rule, 'do to others, as you would be done by.'"[99] Harmon praises the generosity of the Indians:--"They are more ready, in proportion to their means, to assist a neighbour who may be in want, than the inhabitants, generally, of civilised countries. An Indian rarely kills an animal, without sending a part of it to a neighbour if he has one near him."[100] The Naudowessies "supply the deficiency of their friends with any superfluity of their own," and "in dangers they readily give assistance to those of their band {542} who stand in need of it, without any expectation of return."[101] Among the Iroquois "kindness to the orphan, hospitality to all, and a common brotherhood, were among the doctrines held up for acceptance by their religious instructors"; an Iroquois "would surrender his dinner to feed the hungry, vacate his bed to refresh the weary, and give up his apparel to clothe the naked."[102] Among the Omahas grades of merit or bravery were of two sorts: to the first class belonged such as had given to the poor on many occasions, and had invited guests to many feasts. To the second class belonged those who, besides having done these things many times, had killed several of the foe, and had brought home many horses. When a person sees a poor man or woman, they said, he should make presents to the unfortunate being; thus he can gain the goodwill of Wakanda as well as that of his own people.[103] The Ahts of Vancouver Island succour any one in need of help, without looking for any ulterior benefit.[104] The Aleuts were instructed to be kind to others and to refrain from selfishness; it was the custom for the successful hunter or fisher, particularly in times of scarcity, to share his prize with all, not only taking no larger share, but often less than the others.[105] Among the Eskimo about Behring Strait, whenever a successful trader accumulates property and food, and is known to work solely for his own welfare, he becomes an object of enmity and hatred among his fellow-villagers, which ends in one of two ways--the villagers may compel him to make a feast and distribute his goods, or they may kill him and divide his property among themselves.[106] According to the Greenland creed, all those who had striven and suffered for the benefit of their fellow-men should find a happy existence after death in the abodes of the supreme being, Tornarsuk.[107] "The Greenlander," says Dr.

Nansen, "is the most compassionate of creatures with regard to his neighbour. His first social law is to help others."[108] Captain Hall holds an equally favourable opinion of those Eskimo with whom he came in contact. "As between themselves," he says, "there can be no people exceeding them in this virtue kindness of heart. Take, for instance, times of great scarcity of food. If one family happens to have any provisions on {543} hand, these are shared with all their neighbours. If one man is successful in capturing a seal, though his family may need it all to save them from the pangs of hunger, yet the whole of his people about, including the poor, the widow, the fatherless, are at once invited to a seal-feast."[109] They believe that all Innuits who have been good, "that is, who have been kind to the poor and hungry," will after death go to Koodleparmiung, or heaven, whereas those who have been bad, "that is, unkind to one another," will go to Adleparmeun, or hell.[110] Many of the South American peoples are praised for their kind disposition of mind;[111] the Guiana Indians seemed to a Christian missionary to be "generous to a fault."[112] The Caribs had all their interests in common, lived in great harmony, and loved each other heartily.[113]

[Footnote 98: Catlin, North American Indians, ii. 241.]

[Footnote 99: Adair, History of the American Indians, pp. 431, 429.]

[Footnote 100: Harmon, op. cit. p. 349.]

[Footnote 101: Carver, op. cit. p. 247.]

[Footnote 102: Morgan, League of the Iroquois, pp. 172, 329.]

[Footnote 103: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 333, 274. Cf. Idem, 'Siouan Sociology,' ibid. xv. 232 (Kansas).]

[Footnote 104: Sproat, op. cit. p. 166.]

[Footnote 105: Veniaminof, quoted by Petroff, loc. cit. p. 155, and Dall, Alaska, p. 392.]

[Footnote 106: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 305.]

[Footnote 107: Rink, Greenland, p. 141.]

[Footnote 108: Nansen, First Crossing of Greenland, ii. 304. Cf. ibid. ii. 334; Nansen, Eskimo Life, pp. 116, 177; Egede, op. cit. pp. 123, 126 sq.]

[Footnote 109: Hall, Arctic Researches, p. 567.]

[Footnote 110: Ibid. p. 571 sq.]

[Footnote 111: von Martius, Beiträge zur Ethnographie Amerika's, i. 217, 641 (Guarayos, Macusis). Musters, op. cit. p. 195 (Patagonians).]

[Footnote 112: Brett, Indian Tribes of Guiana, p. 276.]

[Footnote 113: de Poircy-Rochefort, Histoire naturelle et morale des Iles Antilles, p. 460.]

Among the Tonga Islanders the sentiment of humanity, or a fellow-feeling for one another, is universally approved. They "are not only not selfish, but admire liberality, and are practically liberal." When any one is about to eat, he always shares what he has with those about him without any hesitation, and not to do so would be considered exceedingly vile and selfish. So, also, "if one chief sees something in the possession of another, which he has a strong desire to have, he has only to ask him for it, and in all probability it is readily and liberally given."[114] Not even the Fijians, who took great pains to instil into the minds of their youth a contempt for compassionate impulses and an admiration for relentless cruelty,[115] were destitute of humanity and friendly feelings.[116] In Aneiteum, of the New Hebrides, the people believed that the sin which would be visited with the severest punishment in the land of the dead was stinginess or niggardliness in giving away food, and that the virtue which received the highest reward was a generous hospitality and a giving liberally at feasts.[117] In Tana,

another island belonging to the same group, "one man has only to ask anything from his neighbours, and he gets it."[118] Of the New Caledonians Mr. Atkinson states that, among themselves, they are "of a generosity that seems to arise mainly from aversion to refuse any request."[119] The Dyaks are described as hospitable, {544} kindly, and humane, "to a degree which well might shame ourselves";[120] whilst the practice of head-hunting is carried on by every tribe at the expense of its neighbour, the members of each community have strong feelings of sympathy for each other.[121] Among the Sea Dyaks, says Grassland, "if any are sick or unable to work, the rest help; and there seems to me a much stronger bond of union amongst them than I have ever seen among the labouring classes in England."[122]

[Footnote 114: Mariner, op. cit. ii. 153, 154, 165.]

[Footnote 115: Erskine, Cruise among the Islands of the Western Pacific, p. 247.]

[Footnote 116: Ibid. pp. 247, 273. Williams and Calvert, op. cit. pp. 93, 115 sq. Seemann, Viti, p. 192.]

[Footnote 117: Inglis, In the New Hebrides, p. 31.]

[Footnote 118: Campbell, A Year in the New Hebrides, p. 169.]

[Footnote 119: Atkinson, in Folk-Lore, xiv. 248.]

[Footnote 120: Boyle, Adventures among the Dyaks of Borneo, p. 215.]

[Footnote 121: Bock, Head-Hunters of Borneo, p. 210 sq. Brooke, Ten Years in Saráwak, i. 57.]

[Footnote 122: Crossland, quoted by Ling Roth, Natives of Sarawak, i. 85.]

The Santals are gentle and very obliging, and sociable to a fault among their own people.[123] The Hos "are charitable to those deserving aid."[124] The Todas believe that, after death, the souls of good people will have enjoyment in heaven, whilst the souls of bad people will suffer punishment; "a good man is, in the Toda estimation, one who is given to deeds of charity, and a bad man one who is uncharitable (this in order of precedence), quarrelsome, thieving, &c."[125] Mr. Batchelor states that "a more kind, gentle, and sympathetic people than the Ainos of Japan would be very difficult to find"; anything given to them they always divide with their friends.[126] The Samoyedes are ready to share their last morsel with their companions; and it is said that nobody can surpass the poor Ostyak in benevolence and other virtues of the heart.[127] "The finest trait in the character of a Bedouin (next to good faith)," Burckhardt observes, "is his kindness, benevolence, and charity. . . . Among themselves, the Bedouins constitute a nation of brothers; often quarrelling, it must be owned, with each other, but ever ready, when at peace, to give mutual assistance."[128] Generosity is a virtue which always commands particular respect in the desert.[129] The Arabs of the Soudan have a saying that "you must always put other people's things on your head, and your own under your arm. Then, if there be danger of the things falling off your head, you must raise your arm, and let fall your own things to save those of others."[130]

[Footnote 123: Man, Sonthalia, p. 19 sq. Hunter, Annals of Rural Bengal, i. 215.]

[Footnote 124: Tickell, 'Memoir on the Hodésum,' in Jour. Asiatic Soc. Bengal, ix. (pt. ii.) 807.]

[Footnote 125: Thurston, 'Todas of the Nilgiris,' in the Madras Government Museum's Bulletin, i. 166 sq.]

[Footnote 126: Batchelor, Ainu of Japan, p. 19. Holland, 'Ainos,' in Jour. Anthr. Inst. iii. 235.]

[Footnote 127: Castrén, op. cit. i. 238; ii. 55.]

[Footnote 128: Burckhardt, Notes on the Bedouins and Wahábys, p. 208.]

[Footnote 129: Wallin, Reseanteckningar från Orienten, iii. 244. Blunt, Bedouin Tribes of the Euphrates, ii. 224.]

[Footnote 130: Richardson, Mission to Central Africa, i. 117.]

{545} The Barea are a benevolent people, kind even to strangers.[131] The Manganja, in the neighbourhood of Lake Nyassa, "are generous in the distribution of food," and even when starving they share the last morsel with their friends.[132] Sir H. Johnston says that he has never met with "a more kindly, sensible, considerate set of beings" than the Wa-taveita.[133] The Eastern Central Africans, the Rev. D. Macdonald observes, "are not mere animals composed of greed and selfishness. They often shew great bravery and devotedness. I can point to one man who saved my life on three separate occasions at the risk of his own."[134] Among the Bechuanas a regard for the poor, for widows, and for orphans, is everywhere considered to be a sacred duty.[135] Among all the virtues the Basutos appreciate none more than kindness. They have a saying that "one link only sounds because of another"--which implies that we cannot do without the help of our fellow-creatures,--and another saying that "one does not skin one's game without showing it to one's friends"--that is, when we have been successful in our undertakings, it becomes us to be generous. If any food is brought to them while they are in each other's society, however small may be the quantity, every one must have a taste.[136] The Kafirs are a kindly race; Lichtenstein says that "whenever anyone kills an ox he must invite all his neighbours to partake of it, and they remain his guests till the whole is eaten."[137] Of the Hottentots Kolben states:--"They are certainly the most friendly, the most liberal, and the most benevolent people to one another that ever appear'd upon earth . . . . They are charmed with opportunities of obliging each other, and one of their greatest pleasures lies in interchanging gifts and good offices."[138] "A Hottentot," says Barrow, "would share his last morsel with his companions."[139] Drury wrote of the people of Madagascar:--"They certainly treat one another with more humanity than we do. Here is no one miserable, if it is in the power of his neighbours to help him. Here is love, tenderness, and generosity which might {546} shame us; and . . . . this is . . . . all over the island."[140] Ellis likewise observes that, in Madagascar, assisting in distress, and lending and borrowing property and money, are carried on much more commonly and freely than amongst neighbours or relatives in England, and that a kindness of heart in these things is always esteemed excellent.[141]

[Footnote 131: Munzinger, Ostafrikanische Studien, p. 534.]

[Footnote 132: Rowley, Africa Unveiled, p. 47.]

[Footnote 133: Johnston, Kilima-njaro Expedition, p. 436.]

[Footnote 134: Macdonald, Africana, i. 270, 266.]

[Footnote 135: Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of the Cape of Good Hope, p. 402.]

[Footnote 136: Casalis, Basutos, pp. 206, 207, 301, 306, 309 sqq.]

[Footnote 137: Leslie, Among the Zulus and Amatongas, p. 203. Lichtenstein, Travels in Southern Africa, i. 272.]

[Footnote 138: Kolben, Present State of the Cape of Good Hope, i. 334 sq. Cf. ibid. i. 167.]

[Footnote 139: Barrow, Travels into the Interior of Southern Africa, i. 151.]

[Footnote 140: Drury, Adventures during Fifteen Years' Captivity on the Island of Madagascar, p. 172 sq.]

[Footnote 141: Ellis, History of Madagascar, i. 139. For other African instances, see Mungo Park, Travels in the Interior of Africa, p. 17 (Mandingoes); Burton, Abeokuta, i. 303 (Yoruba); Idem, Two Trips to Gorilla Land, i. 106 (Mpongwe); Monrad, Guinea-

Kysten og dens Indbyggere, p. 7; Johnston, River Congo, p. 423 (races of the Upper Congo); Wilson and Felkin, op. cit. i. 225 (Waganda).]

Among many savages the old people, in particular, have a claim to support and assistance, not only from their own children or relatives, but from the younger members of the community generally.

Among the Australian natives the old men get the best and largest share of everything, and are allowed to monopolise the youngest and best-looking women, whilst a young man must consider himself fortunate if he can get an old woman for wife.[142] Among the Tonga Islanders "every aged man and woman enjoys the attentions and services of the younger branches of society."[143] In the Kingsmill Islands "generosity, hospitality, and attention to the aged and infirm are virtues highly esteemed and generally practised among all the natives."[144] Among the Kafirs, when persons advanced in years become sick and helpless, "everyone is eager to afford them assistance."[145] In the opinion of the Aleuts, "feeble old men must be respected and attended when they need aid, and the young and strong should give them a share of their booty and help them through all their troubles, endeavouring to obtain in exchange their good advice only."[146]

[Footnote 142: Eyre, op. cit. ii. 385 sq. Mathew, in Jour. & Proceed. Roy. Soc. N.S. Wales, xxiii. 407. Lumholtz, Among Cannibals, p. 163. Cf. Grey, Journals of Two Expeditions of Discovery in North-West and Western Australia, ii. 248; Brough Smyth, op. cit. i. 138; Spencer and Gillen, Native Tribes of Central Australia, p. 51.]

[Footnote 143: Mariner, op. cit. ii. 155.]

[Footnote 144: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 95.]

[Footnote 145: Lichtenstein, op. cit. i. 265.]

[Footnote 146: Veniaminof, quoted by Petroff, loc. cit. p. 155.]

The sick, also, are often very carefully attended to.

Among the coast tribes of British Columbia Mr. Duncan "always found one or two nurses to an invalid, if the case was {547} at all bad; the sympathy of the nurses, too, seemed very great."[147] Beechey says of the wild Indians of Upper California:--"The very great care taken of all those who are affected with any disease ought not to be allowed to escape a remark. When any of their relations are indisposed, the greatest attention is paid to their wants."[148] Keating noticed the kind and humane treatment which the Potawatomis extended even to the idiots.[149] The Koriaks "carefully attend those who are sick."[150] The same is said of the Ainos of Japan,[151] and the Tagbanuas of the Philippine Islands.[152] In Sarawak no relative is abandoned because an injury or illness may have incapacitated him for work.[153] When a Dyak is ill at home, the women nurse the patient in turn.[154] In Samoa "the treatment of the sick was invariably humane."[155] In Tana,[156] Humphrey's Island,[157] Erromanga, [158] and Tasmania,[159] they were likewise kindly attended to; and the same is the case at least among many of the Australian tribes.[160] Concerning the aborigines of Herbert River, in Northern Queensland, Lumholtz writes:--"The natives are very kind and sympathetic towards those who are ill, and they carry them from camp to camp. This is the only noble trait I discovered in the Australian natives."[161] In various parts of Australia the blind, and especially the aged blind, are carefully tended; travellers on the northern coast of the continent have noticed that these are generally the fattest of the company, being supplied with the best of everything.[162] "No trait in the character of the Malagasy," says Ellis, "is more creditable to their humanity, and more gratifying to our benevolent feelings, than the kind, patient, and affectionate manner in which they

attend upon the sick."[163] A similar praise is bestowed upon the {548} Mandingoes[164] and Kafirs.[165] Among the Zulus, says Mr. J. Tyler, "work, however important, is at once suspended that they may help their afflicted friends."[166]

[Footnote 147: Duncan, quoted by Mayne, Four Years in British Columbia, p. 292 sq.]

[Footnote 148: Beechey, op. cit. ii. 402.]

[Footnote 149: Keating, Expedition to the Source of St. Peter's River, i. 100.]

[Footnote 150: Krasheninnikoff, op. cit. p. 233.]

[Footnote 151: von Siebold, Die Aino auf der Insel Yesso, p. 11.]

[Footnote 152: Worcester, Philippine Islands, p. 494.]

[Footnote 153: St. John, Life in the Forests of the Far East, ii. 323.]

[Footnote 154: Bock, Head-Hunters of Borneo, p. 211.]

[Footnote 155: Turner, Samoa, p. 141. Cf. Pritchard, Polynesian Reminiscences, p. 146.]

[Footnote 156: Turner, Samoa, p. 323.]

[Footnote 157: Ibid. p. 276.]

[Footnote 158: Robertson, Erromanga, p. 399.]

[Footnote 159: Ling Roth, Aborigines of Tasmania, p. 47. Bonwick, Daily Life and Origin of the Tasmanians, p. 10.]

[Footnote 160: Brough Smyth, op. cit. ii. 284 (West Australian natives). Schuermann, 'Aboriginal Tribes of Port Lincoln,' in Woods, Native Tribes of South Australia, p. 225.]

[Footnote 161: Lumholtz, Among Cannibals, p. 183.]

[Footnote 162: Ridley, Kámilarói, p. 169. Eyre, op. cit. ii. 382 Barrington, History of New South Wales, p. 23. Stirling, op. cit. p. 36.]

[Footnote 163: Ellis, History of Madagascar, i. 231 sq.]

[Footnote 164: Caillié, op. cit. i. 354.]

[Footnote 165: Lichtenstein, op. cit. i. 266.]

[Footnote 166: Tyler, Forty Years among the Zulus, p. 195.]

Whilst the information which I have been able to gather on the social customs of uncivilised races seems to indicate that, in the majority of cases, mutual kindness and goodwill prevail within their communities, there are not wanting statements of a different character. But these statements are, after all, exceptional, and some of them are either ambiguous or obviously inexact. Only too often travellers represent to us the savage, not as he is in his daily life amidst his own people, but as he behaves towards his enemy, or towards a stranger who enters his country uninvited. As an experienced observer remarks, "the savage, passionate and furious with the feeling of revenge, slaughtering and devouring his enemy and drinking his blood, is no longer the same being as when cultivating his fields in peace; and it would be as unjust to estimate his general character by his actions in these moments of unrestrained passion, as to judge of Europeans by the excesses of an excited soldiery or an infuriated mob."[167] Moreover, many accounts of savages date from a period when they have already been affected by contact with a "higher culture," as we call it, a culture which almost universally has proved to exercise a deteriorating influence on the character of the lower races. Among the North American Indians, for instance, "there was more good-will, hospitality, and charity, practised towards one another" before white people came and resided among them;[168] whereas contact with civilisation has made them "false, suspicious, avaricious and hard-hearted."[169] As has been truly said, "search modern history, and in the North {549} and South and East and West the story is ever the same--we come, we civilise, and we corrupt or exterminate."[170]

[Footnote 167: Dieffenbach, Travels in New Zealand, ii. 130 sq.]

[Footnote 168: Warren, in Schoolcraft, Indian Tribes of the United States, ii. 139.]

[Footnote 169: Domenech, Seven Years' Residence in the Great Deserts of North America, ii. 69.]

[Footnote 170: Boyle, op. cit. p. 108.]

Among the semi-civilised and civilised nations charity has universally been regarded as a duty, and has often been strenuously enjoined by their religions. When Spain and Peru first came into contact, the Americans surpassed the Spaniards in brotherly love and systematic care for the needy. They had a poor-law according to which the blind, lame, aged, and infirm, who could not till their own lands so as to clothe and feed themselves, should receive sustenance from the public stores.[171] The ancient Mexicans, according to Clavigero, seemed to give without reluctance what had cost them the utmost labour to acquire.[172] "The great virtue of the Coreans is their innate respect for and daily practice of the laws of human brotherhood. Mutual assistance and generous hospitality among themselves are distinctive national traits."[173] According to Chinese law, "all poor destitute widowers and widows, the fatherless and childless, the helpless and the infirm, shall receive sufficient maintenance and protection from the magistrates of their native city or district, whenever they have neither relations nor connections upon whom they can depend for support."[174] "Benevolence," said Confucius, "is more to man than either water or fire."[175] To assist the needy, to feed the hungry, to clothe the naked, to succour the sick, to save men in danger--these and similar acts of kindness are, according to Chinese beliefs, merits which will be rewarded by the unseen powers that watch human conduct, whereas the uncharitable and parsimonious are threatened with divine punishments.[176] In a book of Buddhistic-Confucian flavour, {550} as familiar to the youth of Japan as the Sermon on the Mount is to us, it is said, "Above all things, men must practise charity; it is by almsgiving that wisdom is fed."[177] According to the Dhammapada, "the uncharitable do not go to the world of the gods; fools only do not praise liberality; a wise man rejoices in liberality, and through it becomes blessed in the other world."[178] Indeed, in the didactic poetry of Buddhism the virtue of beneficence occupies the most prominent place; without any regard to what is the measure of the real benefit thereby extended to the recipient of the gift, the legends set before us as a duty the most unbounded generosity, pushed even to the extreme of self-destruction.[179] And in its conception of charity and liberality, as in all other points of worldly morality, Buddhism does not differ from the standard recognised in India since ancient times.[180] Already in the Vedic hymns praise is bestowed on those who from their abundance willingly dispense to the needy, on those who do not turn away from the hungry, on those who are kind to the poor.[181] In the Hitopadesa it is said that the good man shows pity even to the worthless, as the moon does not withdraw its light even from a member of the lowest caste.[182] The sacred law-books of India are full of prescriptions enjoining almsgiving as a duty on all twice-born men.[183] "A householder must give as much food as he is able to spare to those who do not cook for themselves, and to all beings one must distribute food without detriment to one's own interest."[184] The student "should always without sloth give alms out of whatever he has for food."[185] The Brâhmana who has completed his studentship should without tiring "perform works of {551} charity with faith."[186] Almsgiving confers merit on the giver, it frees him from guilt, it destroys sin;[187] "for whatever purpose a man bestows any gift, for that purpose he receives in his next birth with due honour its reward."[188] On the other hand, he who cooks for himself alone eats nothing but sin.[189] Speaking of the modern Hindus, Mr. Wilkins observes:--"The charity of the Hindus is great. . . . There is no poor-law in India, no guardians of the

poor, no workhouses, excepting for the Europeans in the Presidency towns. The poor of a family, the halt, the lame, the blind, the weak, the insane, are provided for by their family, if it is at all able to do it; in cases where there are few or no relatives, then the burden is taken up by others. It is a 'work of merit.'"[190]

[Footnote 171: Garcilasso de fa Vega, First Part of the Royal Commentaries of the Yncas, ii. 34.]

[Footnote 172: Clavigero, History of Mexico, i. 81.]

[Footnote 173: Griffis, Corea, p. 288.]

[Footnote 174: Ta Tsing Leu Lee, sec. lxxxix. p. 93. On the charitable institutions of the Chinese, see Staunton, ibid. p. 93 n. *; Smith, Chinese Characteristics, p. 186 sq.]

[Footnote 175: Douglas, Confucianism and Taouism, p. 109.]

[Footnote 176: 'Merits and Errors Scrutinized,' in Indo-Chinese Gleaner, iii. 159, 161 sqq. Thâi Shang, 3. 'Divine Panorama,' in Giles, Strange Stories from a Chinese Studio, ii. 370, 371, 374, 379. Douglas, Confucianism and Taouism, pp. 259, 272 sq. Davis, China, ii. 48. Edkins, Religion in China, p. 89 sq.]

[Footnote 177: Chamberlain, Things Japanese, p. 309.]

[Footnote 178: Dhammapada, 177.]

[Footnote 179: Oldenberg, Buddha, p. 301.]

[Footnote 180: Cf. Kern, Manual of Indian Buddhism, p. 72.]

[Footnote 181: Rig-Veda, x. 117. Kaegi, Rigveda, p. 18.]

[Footnote 182: Hitopadesa, Mitralâbhâ, 63.]

[Footnote 183: Gautama, v. 21; x. 1 sq. Institutes of Vishnu, lix. 28. Baudhâyana, ii. 7. 13. 5. Laws of Manu, ix. 333; x. 75, 79; xi. 1 sqq.]

[Footnote 184: Laws of Manu, iv. 32.]

[Footnote 185: Anugîtâ, 31.]

[Footnote 186: Laws of Manu, iv. 226. Cf. ibid. iv. 227.]

[Footnote 187: Institutes of Vishnu, lix. 15, 30; ch. xc. sqq. Gautama, xix. 11, 16. Vasishtha, xx. 47; xxii. 8. Laws of Manu, iii. 95; iv. 229 sqq.; xi. 228.]

[Footnote 188: Laws of Manu, iv. 234.]

[Footnote 189: Institutes of Vishnu, lxvii. 43. Laws of Manu, iii. 118. Cf. Rig-Veda, x. 117. 6.]

[Footnote 190: Wilkins, Modern Hinduism, p. 416 sq.]

Of the ancient Persians Thucydides said that they preferred giving to receiving.[191] To be charitable towards the poor of their own faith was among them a religious duty of the first order.[192] Zoroaster thus addressed Vîshtâspa:--"Let no thought of Angra Mainyu ever infect thee, so that thou shouldst indulge in evil lusts, make derision and idolatry, and shut to the poor the door of thy house."[193] The holy Sraosha is the protector of the poor.[194] In the Shâyast it is said that the clothing of the soul in the next world is formed out of almsgiving.[195]

[Footnote 191: Thucydides, ii. 97. 4.]

[Footnote 192: See Geiger, Civilization of the Eastern Ir[=a]nians, i. 164 sqq.; Mills, in Sacred Books of the East, xxxi. p. xxii.]

[Footnote 193: Yasts, xxiv. 37.]

[Footnote 194: Ibid. xi. 3.]

[Footnote 195: Shâyast Lâ-Shâyast, xii. 4. Cf. Bundahis, xxx. 28.]

It seems that among the ancient Egyptians charity was considered no less meritorious.[196] "The god," M. Maspero observes, "does not confine his favour to the prosperous and the powerful of this world; he bestows it also upon {552} the poor. His will is that they be fed and clothed, and exempted from tasks beyond their strength;

that they be not oppressed, and that unnecessary tears be spared them."[197] In the memorial inscriptions, where the dead plead their good deeds, charity is often referred to. "I harmed not a child," says one Egyptian, "I injured not a widow; there was neither beggar nor needy in my time; none were hungered, widows were cared for as though their husbands were still alive."[198] In the inscription in honour of a lady who had been charitable to persons of her own sex, whether girls, wives, or widows, it is said, "The god rewarded me for this, rejoicing me with the happiness which he has granted me for walking after his way."[199]

[Footnote 196: Brugsch, History of Egypt under the Pharaohs, i. 29 sq. Tiele, History of the Egyptian Religion, p. 226 sq. Renouf, Hibbert Lectures on the Religion of Egypt, p. 72 sqq. Amélineau, L'évolution des idées morales dans l'Égypt Ancienne, pp. 145, 354.]

[Footnote 197: Maspero, Dawn of Civilization, p. 191. Cf. Schiapparelli, Del sentimento religioso degli antichi egiziani, p. 18; Amélineau, op. cit. p. 268.]

[Footnote 198: Wiedemann, Religion of the Ancient Egyptians, p. 253.]

[Footnote 199: Renouf, op. cit. p. 75.]

Charity was urgently insisted upon by the religious law of the Hebrews.[200] "Thou shalt open thine hand wide unto thy brother, to thy poor, and to thy needy, in thy land"; "for this thing the Lord thy God shall bless thee in all thy works, and in all that thou puttest thine hand unto."[201] Even "if thine enemy be hungry, give him bread to eat; and if he be thirsty, give him water to drink: . . . the Lord shall reward thee."[202] Especially in the Old Testament Apocrypha and in Rabbinical literature almsgiving assumed an excessive prominence--so much so that the word which in the older writings means "righteousness" in general, came to be used for almsgiving in particular.[203] "Shut up alms in thy storehouses: and it shall deliver thee from all affliction."[204] "As water will quench a flaming fire, so alms maketh an atonement for sins."[205] "For alms doth deliver from death, and shall purge away all sin. Those that exercise alms and {553} righteousness shall be filled with life."[206] The charitable man is rewarded with the birth of male issue.[207] Almsgiving is equal in value to all other commandments.[208] He who averts his eyes from charity commits a sin equal to idolatry.[209] To such an extreme was almsgiving carried on by the Jews, that some Rabbis at length decreed that no man should give above a fifth part of his goods in charity.[210]

[Footnote 200: Deuteronomy, xiv. 29; xv. 7 sqq.; xvi. 11, 14. Leviticus, xix. 9 sq.; xxv. 35.]

[Footnote 201: Deuteronomy, xv. 11, 10.]

[Footnote 202: Proverbs, xxv. 21 sq.]

[Footnote 203: Addis, 'Alms,' in Encyclopædia Biblica, i. 118. Cf. Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 484 sq.]

[Footnote 204: Ecclesiasticus, xxix. 12.]

[Footnote 205: Ibid. iii. 30.]

[Footnote 206: Tobit, xii. 9. Cf. ibid. i. 3, 16; ii. 14; iv. 7 sqq.; xii. 8.]

[Footnote 207: Bava Bathra, fol. 10 B, quoted by Hershon, Treasures of the Talmud, p. 24.]

[Footnote 208: Rab Assi, quoted by Kohler, 'Alms,' in Jewish Encyclopedia, i. 435.]

[Footnote 209: Kethuboth, fol. 68 A, quoted by Katz, Der wahre Talmudjude, p. 36.]

[Footnote 210: Katz, op. cit. p. 42.]

Almsgiving, prayer, and fasting were the three cardinal disciplines which the synagogue transmitted to both the Christian Church and the Muhammedan mosque.[211] According to Islam, the duty next in importance to prayer is that of giving alms.[212] Muhammed repeatedly announces that the path which leads to God is the helping of

the orphans and the relieving of the poor.[213] "Ye cannot attain to righteousness until ye expend in alms of what ye love."[214] "Those who expend their wealth by night and day, secretly and openly, they shall have their hire with their lord."[215] It is said that "prayer carries us half-way to God, fasting brings us to the door of His palace, and alms procure us admission."[216] Certain alms, called Zakât, are prescribed by law; it is an indispensable duty for every Muhammedan of full age to bestow in charity about one-fortieth of all such property as has been a year in his possession, provided that he has sufficient for his subsistence and has an income equivalent to about £5 per annum.[217] Other charitable gifts are voluntary, and confer merit upon the giver.

[Footnote 211: Cf. Tobit, xii. 8; Kohler, in Jewish Encyclopedia, i. 435.]

[Footnote 212: See Sale's 'Preliminary Discourse,' in Wherry, Commentary on the Qurán, i. 172; Lane, Manners and Customs of the Modern Egyptians, p. 105.]

[Footnote 213: Koran, ii. 267, 269, 275; viii. 42; ix. 60; xc. 12, 14 sq.; xciii. 6 sqq.; &c.]

[Footnote 214: Ibid. iii. 86.]

[Footnote 215: Ibid. ii. 275]

[Footnote 216: Sell, Faith of Islám, p. 284.]

[Footnote 217: Ibid. p. 283. Palmer, 'Introduction' to his translation of The Qur'án, i. p. lxxiii. Ameer Ali, Life and Teaching of Mohammed, p. 268.]

By Christianity charity of the religious type which we {554} find in the East was introduced into Europe. We have certainly no reason to blame the ancient Greeks and Romans for neglecting their poor. Among them slavery in a great measure replaced pauperism; and what slavery did for the very poor, the Roman system of clientage did for those of a somewhat higher rank.[218] Moreover, the relief of the indigent was an important function of the State.[219] The Areopagus provided public works for the poor.[220] At Rome gratuitous distribution of corn was the rule for many centuries; [221] agrarian laws furnished free homesteads to the landless, on conquered or public territory;[222] since the days of Nerva a systematic support of poor children was enjoined in all the cities of Italy.[223] A few examples of private charity, also, have descended to us already from early times, such as Epaminondas collecting dowers for poor girls,[224] and Cimon feeding and clothing the poor;[225] and from the days of the Pagan Empire there are recorded several cases of individual beneficence. Charitable bequests are alluded to in the burial inscriptions; when some great catastrophe happened, relief was willingly given to the sufferers; private infirmaries were established for slaves.[226] The duty of charity was forcibly enjoined by some of the moralists. The wise man, says Seneca, "will dry the tears of others, but will not mingle his own with them; he will stretch out his hand to the shipwrecked mariner, will offer hospitality to the exile, and alms to the needy."[227] But his alms are not thrown away by chance; his purse will open easily, but never leak. He will choose out the worthiest with the utmost care, and never give without sufficient reason; for unwise gifts must be reckoned among foolish extravagances.[228] So also Cicero, {555} whilst styling beneficence and liberality "virtues that are the most agreeable to the nature of man," is anxious to warn his readers against imprudence in practising them, "lest our kindness should hurt both those whom it is meant to assist, and others."[229]

[Footnote 218: See Lecky, History of European Morals, ii. 73.]

[Footnote 219: Boissier, Religion Romaine, ii. 206.]

[Footnote 220: Farrer, Paganism and Christianity, p. 183.]

[Footnote 221: Naudet, 'Des secours publics chez les Romains,' in Mémoires de l'Académie des inscriptions et belles-lettres, xiii. 43 sq.]

[Footnote 222: Ibid. p. 71 sq.]

[Footnote 223: Aurelius Victor, Epitome, xii. 8.]

[Footnote 224: Cornelius Nepos, Epaminondas, 3.]

[Footnote 225: Plutarch, Cimon, 10.]

[Footnote 226: Lecky, History of European Morals, ii. 77 sq. Boissier, op. cit. ii. 213 sq. Farrer, Paganism and Christianity, p. 182.]

[Footnote 227: Seneca, De clementia, ii. 6.]

[Footnote 228: Idem, De vita beata, 23 sq.]

[Footnote 229: Cicero, De officiis, i. 14 sq.]

In a very different light was charity viewed by the Christians. Unlimited open-handedness became a cardinal virtue. An ideal Christian was he who did what Jesus commanded the young man to do: who went and sold what he had and gave it to the poor.[230] Promiscuous almsgiving was enjoined as a duty:--"Give to him that asketh thee, and from him that would borrow of thee turn not thou away."[231] The discharge of this duty was even more profitable to the giver than to the receiver. There is perhaps no precept in the Gospel to which a promise of recompense is so frequently annexed as to that concerning charity. Eternal life is promised to those who feed the hungry, give drink to the thirsty, take in the stranger, clothe the naked, visit the sick.[232] Charity was regarded as an atonement. "God," says St. Augustine, "is to be propitiated through alms for sins past";[233] and countless times is the thought expressed, that almsgiving is a safe investment of money at good interest with God in heaven.[234] Cyprian, who is the father of the Romish doctrine of good works, establishes an arithmetical relation between the number of alms-offerings and the blotting out of sins.[235] "The food of the needy," says Leo the Great, "is the purchase-money of the kingdom of heaven."[236] "As long as the market lasts," says St. Chrysostom, "let us buy alms, or rather let us purchase salvation through alms."[237] The rich man is only a debtor; all that he possesses beyond {556} what is necessary, belongs to the poor, and ought to be given away.[238] The poor, no longer looked down upon, became instruments of salvation. To them was given the first place in the Church and in the Christian community. St. Chrysostom says of them, "As fountains flow near the place of prayer that the hands that are about to be raised to heaven may be washed, so were the poor placed by our fathers near to the door of the Church, that our hands might be consecrated by benevolence before they are raised to God."[239] Gregory the Great announces, and the Middle Ages re-echo, "The poor are not to be lightly esteemed and despised, but to be honoured as patrons."[240] Thus it happened that even in the darkest periods, when all other Christian virtues were nearly extinct, charity survived unimpaired.[241] Later on Protestantism, by denying the atoning effect of good deeds, deprived charity of a great deal of its religious attraction. And in modern times the enlightened opinion on the subject, recognising the demoralising influence of indiscriminate almsgiving, rather agrees with the principles laid down by Cicero and Seneca, than with the literal interpretation of the injunctions of Christ.

[Footnote 230: Cf. Acts, ii. 45.]

[Footnote 231: St. Matthew, v. 42. Cf. St. Luke, vi. 30.]

[Footnote 232: St. Matthew, xxv. 34 sqq.]

[Footnote 233: St. Augustine, Enchiridion, 70 (Migne, Patrologiæ cursus, xl. 265).]

[Footnote 234: See Uhlhorn, Die christliche Liebesthätigkeit, i. 270.]

[Footnote 235: Cyprian, De opere et eleemosynis, 24 (Migne, op. cit. iv. 620). Cf. Harnack, History of Dogma, ii. 134, n. 2.]

[Footnote 236: Leo Magnus, Sermo X., de Collectis, 5 (Migne, op. cit. liv. 165 sq.).]

[Footnote 237: St. Chrysostom, Homilia VII., de P[oe]nitentia (Migne, op. cit. Ser. Graeca, xlix. sq. 333).]

[Footnote 238: Uhlhorn, op. cit. p. 294 sq.]

[Footnote 239: St. Chrysostom, De verbis Apostoli, Habentes eumdem spiritum, iii. 11 (Migne, op. cit. Ser. Graeca, li. sq. 300).]

[Footnote 240: Quoted by Uhlhorn, op. cit. i. 315.]

[Footnote 241: Cf. Milman, History of Latin Christianity, ix. 33 sq.]

In the course of progressing civilisation the obligation of assisting the needy has been extended to wider and wider circles of men. The charity and generosity which savages require as a duty or praise as a virtue have, broadly speaking, reference only to members of the same community or tribe. Kindness towards foreigners is looked upon in a very different light. "The virtues of the Negroes," Monrad observes, "are entirely restricted to their own tribe. The doing good to a stranger they would generally find ridiculous."[242] To the Greenlander a foreigner, especially if he be of another race, is "an indifferent object, whose welfare he has no interest in furthering."[243] {557} The Bedouin, says Doughty, "has two faces, this of gentle kindness at home, the other of wild misanthropy and his teeth set against the world besides."[244] At higher stages of civilisation the duty of charity embraces a wider group of people, in proportion to the largeness of the social unit or to the scope of the religion by which it is enjoined. But it is still more or less restrained by national or religious boundaries. M. Amélineau observes that the charity referred to on ancient Egyptian papyri is "la charité limitée à ceux de la même nation."[245] According to Zoroastrianism, charity should be restricted to the followers of the true religion; to succour an unbeliever would be like a strengthening of the dominion of Evil.[246] The Zakât, or legal alms of the Muhammedans, must not be given to a non-Muslim, because it is regarded as a fundamental part of worship; [247] similarly the [S.]adaqah, or offering on the feast-day known as [(]Idu'l-Fi[t.]r, is confined to true believers.[248] Nor has Christian charity always been free from religious narrowness. Fleury says that the early Christians, in the care they took of the poor, always preferred Christians before infidels, because "their principal regard was to their spiritual concerns, and to their temporal welfare only in order to their spiritual."[249] The principle of the Church was, "Omnem hominem fidelem judica tuum esse fratrem."[250] In the seventeenth century the Scotch clergy taught that food or shelter must on no occasion be given to a starving man unless his opinions were orthodox.[251] On the other hand, Christianity of a higher type preaches charity towards all men; and so does advanced Judaism and Buddhism. It is said in the Talmud, with reference to the treatment of the poor, that no distinction should be made between such as are Jews and such as are not.[252] In modern times charity now and then {558} steps over the barriers of nationality even when the sufferers belong to distant nations. Whilst our indigent compatriots are generally recognised to have a greater claim on our pity than needy strangers, a great calamity in one country readily calls forth a charitable response in other nations. Mr. Pike believes that the contribution of one hundred thousand pounds sterling which England, in the year 1755, when Lisbon was laid in ruins by an earthquake, sent for the relief of the sufferers, inaugurated this new era of international charitableness. "Compassion." he observes, "was at last shown by Englishmen, not simply for Englishmen and Protestants, but for foreigners professing a different religion; pity, for once, triumphed over intolerance and national prejudice."[253] And in war, in the case of enemies rendered harmless by wounds or disease, the growth of human feeling has passed beyond the simple requirement that they shall not be killed or ill-used, and has cast upon belligerents the duty of tending

them so far as is consistent with the primary duty to their own wounded.[254] However, it must not be imagined that this humane principle, which has only lately been recognised in Europe, is a unique outcome of Christian civilisation at its height. It is said in the Mahabharata that, when a quarrel arises among good men, a wounded enemy is to be cured in the conqueror's own country, or to be conveyed to his home.[255] Strangely enough, even from the savage world we hear of something like an anticipation of the Geneva Convention. Among certain tribes in New South Wales, as soon as the fight is concluded, "both parties seem perfectly reconciled, and jointly assist in tending the wounded men."[256]

[Footnote 242: Monrad, op. cit. p. 4.]

[Footnote 243: Nansen, Eskimo Life, p. 159.]

[Footnote 244: Doughty, Arabia Deserta, i. 368 sq.]

[Footnote 245: Amélineau, op. cit. p. 354.]

[Footnote 246: Geiger, op. cit. i. 165.]

[Footnote 247: Sell, op. cit. p. 284. Cf. Koran, ix. 60.]

[Footnote 248: Sell, op. cit. p. 318.]

[Footnote 249: Fleury, Manners and Behaviour of the Christians, p. 133 sq.]

[Footnote 250: Laurent, Études sur l'histoire del'Humanité, iv. 94.]

[Footnote 251: Buckle, History of Civilization in England, iii. 277.]

[Footnote 252: Gitin, fol. 61 A, quoted by Katz, Der wahre Talmudjude, p. 38. Cf. Chaikin, Apologie des Juifs, p. 10.]

[Footnote 253: Pike, History of Crime in England, ii. 346.]

[Footnote 254: 'Convention signed at Geneva, August 22, 1864, for the Amelioration of the Condition of the Wounded in Armies in the Field,' in Lorimer, Institutes of the Law of Nations, ii. Appendix no. vi. Hall, Treatise on International **Law, p. 399. Heffter, Das Europäische Völkerrecht der Gegenwart, § 126, p. 267, n. 5.]

[Footnote 255: Mahabharata, xii. 3547, quoted by Lorimer, op. cit. ii. 431.]

[Footnote 256: Brough Smyth, op. cit. i. 160.]

{559} The gradual expansion of the duty of charity is due to the fact that this duty, in the first place, is based on the altruistic sentiment, and consequently follows the same general law of development. Many cases referred to above imply that savages are by no means strangers to affection, and that in their communities there is not only mutual assistance, but general kindness of heart. Numerous instances to the same effect might easily be added. When a Fuegian is very ill the near relatives show much grief;[257] and Darwin tells us that the Fuegian boy who was taken on board the Beagle and brought to Europe, used to go to the sea-sick and say, in a plaintive voice, "Poor, poor fellow!"[258] The Veddahs are praised not only for their charitable behaviour towards each other, but for their natural tenderness of heart.[259] The aborigines of Victoria are said to "have the greatest love for their friends and relatives," and to testify the liveliest joy when a companion after a long absence returns to the camp.[260] Forster mentions an instance of affection among the natives of Tana, which, as he says, "strongly proves that the passions and innate quality of human nature are much the same in every climate."[261] Melville declares that, after passing a few weeks in the Typee valley of the Marquesas, he formed a higher estimate of human nature than he ever before entertained.[262] It can hardly be doubted that in every human society there is, normally, some degree of social affection between its members;[263] and it seems that the evolution of this sentiment in mankind has been much more in the direction of greater extensiveness than of greater intensity.

[Footnote 257: Bridges, in A Voice for South America, xiii. 206.]

[Footnote 258: Darwin, Journal of Researches, p. 207.]

[Footnote 259: Sarasin, op. cit. iii. 545, 550.]

[Footnote 260: Brough Smyth, op. cit. i. 138.]

[Footnote 261: Forster, Voyage round the World, ii. 325.]

[Footnote 262: Melville, Typee, p. 297.]

[Footnote 263: See infra, on the Origin and Development of the Altruistic Sentiment.]

Where the members of a group have affection for each other, mutual aid will be regarded as a duty both because it will be practised habitually, and because a {560} failure to afford it will call forth sympathetic resentment on behalf of the sufferer, But we need, here again, to look below the surface. Men may be induced to do good to their fellow-creatures not only by kindly feelings towards them, but by egoistic motives; and such motives, through having a share in making beneficence a tribal habit, at the same time influence the moral estimation in which it is held. The Basutos say that "the knife that is lent does not return alone to its master"--a kindness is never thrown away.[264] Of the Asiniboin, a Siouan tribe, Mr. Dorsey states that "nothing is given except with a view to a gift in return."[265] When the Andaman Islanders make presents of the best that they possess, they tacitly understand that an equivalent should be rendered for every gift.[266] Among the Makololo "the rich show kindness to the poor, in expectation of services."[267] In his description of the Greenlanders, Dr. Nansen observes that all the small communities depend for their existence on the law of mutual assistance, on the principle of common suffering and common enjoyment. "A hard life has taught the Eskimo that even if he is a skilful hunter and can, as a rule, manage to hold his own well enough, there may come times when, without the help of his fellows, he would have to succumb. It is better, therefore, for him to help in his turn."[268] That similar considerations largely lie at the bottom of the custom of mutual aid and charity both in uncivilised and more advanced communities, we may assume from the experience of human nature which we have acquired at home. And such motives must be particularly active in a society the members of which are so dependent on each other's services and return-services, as is generally the case with a horde of savages.

[Footnote 264: Casalis, op. cit. p. 310.]

[Footnote 265: Dorsey, 'Siouan Sociology,' in Ann. Rep. Bur. Ethn. xv. 225 sq.]

[Footnote 266: Man, in Jour. Anthr. Inst. xii. 95.]

[Footnote 267: Livingstone, Missionary Travels, p. 511.]

[Footnote 268: Nansen, First Crossing of Greenland, ii. 304 sq. Cf. Cranz, History of Greenland, i. 173; Parry, op. cit. p. 525.]

Moreover, by niggardliness a person may expose himself {561} to supernatural dangers, whereas liberality may entail supernatural reward. In Morocco nobody would like to eat in the presence of other people without sharing his meal with them; otherwise they might poison his food by looking at it with an evil eye. So also, if anybody shows a great liking for a thing belonging to you, wanting, for instance, to buy your gun or your horse, it is best to let him have it, since otherwise an accident is likely to happen to the object of his desire.[269] But baneful energy, what the Moors call l-bas, is transferable not only by the eye, but by the voice. The poor and the needy have thus in their hands a powerful weapon and means of retaliation, the curse. The ancient Greeks believed that the beggar had his Erinys,[270] his avenging demon, which was obviously only a personification of his curse.[271] It is said in the Proverbs, "He that giveth unto the poor shall not lack: but he that hideth his eyes shall have many a curse."[272] The same idea is expressed in Ecclesiasticus:--"Turn not away thine eye from the needy, and give him none occasion to curse thee: for if he curse thee in the bitterness of his

soul, his prayer shall be heard of him that made him. . . . A prayer out of a poor man's mouth reacheth to the ears of God, and his judgment cometh speedily."[273] According to the Zoroastrian Yasts, the poor man who follows the good law, when wronged and deprived of his rights, invokes Mithra for help, with hands uplifted.[274] Mr. Chapman states that, "though the Damaras are, generally speaking, great gluttons, they would not think of eating in the presence of any of their tribe without sharing their meal with all comers, for fear of being visited by a curse from their 'Omu-kuru' [or deity], and becoming impoverished."[275] There is all reason {562} to suppose that in this case the curse of the deity was originally the curse, or evil wish, of an angry man.

[Footnote 269: Similar beliefs prevail in modern Egypt (Klunzinger, Upper Egypt, p. 391).]

[Footnote 270: Odyssey, xvii. 475.]

[Footnote 271: Supra, p. 60.]

[Footnote 272: Proverbs, xxviii. 27.]

[Footnote 273: Ecclesiasticus, iv. 5 sq.; xxi. 5. Cf. Deuteronomy, xv. 9. Rabbi Johanan says that almsgiving "saves man from sudden, unnatural death" (Kohler, in Jewish Encyclopedia, i. 435). Cf. Proverbs, x. 2.]

[Footnote 274: Yasts, x. 84.]

[Footnote 275: Chapman, Travels in the Interior of South Africa, i. 341.]

A poor man is able not only to punish the uncharitable by means of his curses, but to reward the generous giver by means of his blessings. During my residence among the Andjra tribe in the mountains of Northern Morocco, our village was visited by a band of ambulant scribes who went from house to house, receiving presents and invoking blessings in return. When a goat was given them they asked God to increase the flocks of the giver, when money was given they asked God to increase his money, and so forth. Some of the villagers told me that it was a profitable bargain, since they would be tenfold repaid for their gifts through the blessings of the scribes. A town Moor who starts for a journey to the country generally likes to give a coin to one of the beggars who are sitting near the gate, so as to receive his blessings. It is said in Ecclesiasticus:--"Stretch thine hand unto the poor, that thy blessing may be perfected. A gift hath grace in the sight of every man living."[276] Whilst he that withholdeth corn shall be cursed by the people, "blessing shall be upon the head of him that selleth it."[277] Among the early Christians those who brought gifts for the poor were specially remembered in the prayers of the Church.[278] Of the Nay[=a]dis of Malabar Mr. Iyer says that the purport and object of their prayers are, among other things, "that all the superior castes, who give them alms, may enjoy long life and prosperity."[279] In various cases the nature of the rewards promised for charitable acts suggests that they are due to the blessings of the recipient. According to Vasishtha, "through liberality man obtains all his desires, even longevity."[280] In the Yasts it is said that the children of a charitable man will thrive.[281] According to Talmudic ideas, men acquire wealth for their children by {563} distributing alms among the poor.[282] Considering how widely spread is the belief in the efficacy of curses and blessings, there can be little doubt that charity and generosity are connected with this belief in many cases where no such connection has been noticed by the European visitor.

[Footnote 276: Ecclesiasticus, vii. 32. Cf. Proverbs, xxii. 9.]

[Footnote 277: Proverbs, xi. 26.]

[Footnote 278: Uhlhorn, op. cit. i. 141.]

[Footnote 279: Iyer, in the Madras Government Museum's Bulletin, iv. 72.]

[Footnote 280: Vasishtha, xxix. 1 sq.]

[Footnote 281: Yasts, xxiv. 36.]

[Footnote 282: Kohler, in Jewish Encyclopedia, i. 436. Cf. Proverbs, xxviii. 27.]

The curses and blessings of the poor partly account for the fact that charity has come to be regarded as a religious duty. Originally, it is true, they had not the character of an appeal to a god, but were believed to possess a purely magical power, independent of any superhuman will. This belief is rooted in the close association between the wish, more particularly the spoken wish, and the idea of its fulfilment. The wish is looked upon in the light of energy which may be transferred--by material contact, or by the eye, or by means of speech--to the person concerned, and then becomes a fact. This process, however, is not taken quite as a matter of course; there is always some mystery about it. Hence the words of a holy man, a magician or priest, are considered more efficacious than those of ordinary mortals. The Australian natives believe that the curse of a potent magician will kill at the distance of a hundred miles. Among the Maoris "the anathema of a priest is regarded as a thunderbolt that an enemy cannot escape."[283] Among the Gallas no man will under any circumstances slay either a priest or a wizard, from a dread of his dying curse.[284] Some of the Rabbis maintained that a curse uttered by a scholar is unfailing in its effect, even if undeserved.[285] In Muhammedan countries the curses of saints or shereefs are particularly feared. According to the Laws of Manu, a Brâhmana "may punish his foes by his own power alone," speech being his weapon.[286] But though a curse may derive particular potency from the person who utters it, {564} it is by no means ineffective even in the mouth of an ordinary man.[287] In the Old Testament children are forbidden to curse their parents,[288] subjects their rulers,[289] men their god;[290] and according to Talmudic conceptions, a curse should not be regarded lightly however ignorant be the person who utters it.[291] All that is required is that the words should possess that supernatural quality which alone can bring about the result desired, and this quality may be inherent in the curse quite independently of the person who utters it. It is inherent in certain mystic formulas or spells and in the invocations of some spirit or god. The will of the invoked being is not considered at all; his name is simply brought in to give the curse that mystic efficacy which the plain word lacks. Thus both in the Old Testament[292] and in the Talmud[293] there are traces of the ancient idea that the name of the Lord might be used with advantage in any curse however undeserved. But with the deepening of the religious sentiment this idea had to be given up. A righteous and mighty god cannot agree to be a mere tool in the hand of a wicked curser. Hence the curse comes to be looked upon in the light of a prayer, which is not fulfilled if undeserved; as it is said in the Proverbs, "the curse causeless shall not come."[294] And the same is the case with the blessing. Whilst in ancient days Jacob could take away his brother's blessing by deceit,[295] the efficacy of a blessing was later on limited by moral considerations.[296] The Psalmist declares that only the offspring of the righteous can be blessed;[297] and according to the Apostolic Constitutions, "although a widow who eateth and is filled from the wicked, pray for them, she shall not be heard."[298] {565} On the other hand, curses and blessings, when well deserved, continued to draw down calamity or prosperity upon their objects, by inducing God to put them into effect; this idea prevails both in post-exilic Judaism and in Muhammedanism,[299] and underlies the Christian oath and benediction. The final, but not the original view was that, as an uncharitable man deserves to be punished and a charitable man merits reward, the curses and blessings of the poor will naturally be heard by a righteous God. "The Lord will plead their cause."[300]

[Footnote 283: Polack, Manners and Customs of the New Zealanders, i. 248 sq.]

[Footnote 284: Harris, Highlands of Æthiopia, iii. 50.]

[Footnote 285: Makkoth, fol. 11 A. Berakhoth, fol. 56 A.]

[Footnote 286: Laws of Manu, xi. 32 sq.]

[Footnote 287: Taylor, Te Ika a Maui, p. 204 (Maoris). Wellhausen, Reste arabischen Heidentums, p. 139.]

[Footnote 288: Exodus, xxi. 17. Leviticus, xx. 9. Proverbs, xx. 20; xxx. 11.]

[Footnote 289: Exodus, xxii. 28. Ecclesiastes, x. 20.]

[Footnote 290: Exodus, xxii. 28.]

[Footnote 291: Meghilla, fol. 15 A.]

[Footnote 292: Supra, p. 564.]

[Footnote 293: Makkoth, fol. 11 A. Berakhoth, foll. 19 A, 56 A.]

[Footnote 294: Proverbs, xxvi. 2.]

[Footnote 295: Genesis, xxvii. 23 sqq.]

[Footnote 296: Cf. Cheyne, 'Blessings and Curses,' in Encyclopædia Biblica, i. 592.]

[Footnote 297: Psalms, xxxvii. 26.]

[Footnote 298: Constitutiones Apostolicæ, iv. 6. Cf. Jeremiah, vii. 16.]

[Footnote 299: Cf. Cheyne, in Encyclopædia Biblica, i. 592; Goldziher, Abhandlungen zur arabischen Philologie, i. 29 sqq.]

[Footnote 300: Proverbs, xxii. 23.]

The chief cause, however, of the extraordinary stress which the higher religions put on the duty of charity seems to lie in the connection between almsgiving and sacrifice. When food is offered as a tribute to a god, the god is supposed to enjoy its spiritual part only, whilst the substance of it is left behind and is eaten by the poor. And when the offering is continued in ceremonial survival in spite of the growing conviction that, after all, the deity does not need and cannot profit by it,[301] the poor become the natural heirs of the god, and the almsgiver inherits the merit of the sacrificer. The chief virtue of the act, then, lies in the self-abnegation of the donor, and its efficacy is measured by the "sacrifice" which it costs him.

[Footnote 301: For such a survival, see Tylor, Primitive Culture, ii. 396 sqq.]

Many instances may be quoted of sacrificial food being left for the poor or being distributed among them. At Scillus, where Xenophon had built an altar and a temple to Artemis and a sacrifice was afterwards made every year, the goddess supplied the poor people living there in tents with "barley-meal, bread, wine, sweetmeats, and a share of the victims offered from the sacred pastures, and of those caught in hunting."[302] According to Yasna, sacrifices to Mazda were given to his poor.[303] In ancient Arabia the poor were allowed to partake of the meal-offering {566} which was laid before the god Uqaiçir.[304] In Zinder, in the Soudan, there are some trees, regarded as divine, to which annual offerings of bullocks, sheep, and so forth, are made, "though the poor of the country get the benefit of them."[305] In Morocco even animals which are killed as [(]âr--a sacrifice embodying a conditional curse--on departed saints or living people, with a view to compelling them to grant a request, are commonly eaten by the poor, though nobody else would dare to partake of them.

[Footnote 302: Xenophon, Anabasis, v. 3. 9.]

[Footnote 303: Yasna, xxxiv. 5.]

[Footnote 304: Wellhausen, Reste arabischen Heidentums, p. 64. Robertson Smith, Religion of the Semites, p. 223.]

[Footnote 305: Richardson, Mission to Central Africa, ii. 259.]

In other cases we find that almsgiving is itself regarded as a form of sacrifice, or takes the place of it. In the sacred books of India the two things are repeatedly mentioned side by side. "The householder offers sacrifices, the householder practises austerities, the

householder distributes gifts."[306] Of a Brâhmana who has completed his studentship it is said, "Let him always practise, according to his ability, with a cheerful heart, the duty of liberality, both by sacrifices and by charitable works, if he finds a worthy recipient for his gifts."[307] "In the Krita age the chief virtue is declared to be the performance of austerities, in the Tretâ divine knowledge, in the Dvâpara the performance of sacrifices, in the Kali liberality alone."[308] In the Egyptian 'Book of the Dead' the soul, on approaching to the gods who are in the Tuat, pleads:--"I have done that which man prescribeth and that which pleaseth the gods. I have propitiated the god with that which he loveth. I have given bread to the hungry, water to the thirsty, clothes to the naked, a boat to the shipwrecked. I have made oblations to the gods and funeral offerings to the departed."[309] In the Zoroastrian prayer Ahuna-Vairya, to which great efficacy is ascribed, it is said, "He who relieves the poor makes Ahura king."[310] {567} In the Koran almsgiving is often mentioned in connection with prayer;[311] and the Zakât, or alms prescribed by law, is regarded by the Muhammedans as a fundamental part of their religion, hence infidels, who cannot perform acceptable worship, have nothing to do with these alms.[312] Among the Muhammedans of India it is common for men and women to vow "that when what they desire shall come to pass, they will, in the name of God, the Prophet, his companions, or some wullee, present offerings and oblations." One of these offerings, called "an offering unto God," consists in preparing particular victuals, and in "distributing them among friends and the poor, and giving any sort of grain, a sacrificed sheep, clothes, or ready-money in alms to the indigent."[313] When the destruction of the Temple with its altar filled the Jews with alarm as they thought of their unatoned sins, Johanan ben Zakkai comforted them by saying, "You have another means of atonement, as powerful as the altar, and that is the work of charity, for it is said: 'I desired mercy, and not sacrifice.'"[314] Many other passages show how closely the Jews associated almsgiving with sacrifice. "He that giveth alms sacrificeth praise."[315] "As sin-offering makes atonement for Israel, so alms for the Gentiles."[316] "Almsdeeds are more meritorious than all sacrifices."[317] An orphan is called an "altar to God."[318] And as a sacrificer should be a person of a godly character, so it is better to perish by famine than to receive an oblation from the ungodly.[319] Alms were systematically collected in the synagogues, and officers were appointed to make the collection.[320] So, also, among the early Christians the collection of alms for the relief of the poor was an act of the Church life itself. Almsgiving took place in public worship, nay formed itself a part of worship. {568} Gifts of natural produce, the so-called oblations, were connected with the celebration of the Lord's Supper. They were offered to God as the first-fruits of the creatures (primitiæ creaturarum), and a prayer was said:--"O Lord, accept also the offerings of those who to-day bring an offering, as Thou didst accept the offerings of righteous Abel, the offering of our father Abraham, the incense of Zachariah, the alms of Cornelius, and the two mites of the widow." These oblations were not only used for the Lord's Supper, but they formed the chief means for the relief of the poor. They were regarded as sacrifice in the most special sense; and, as no unclean gift might be laid upon the Lord's altar, profit made from sinful occupations was not accepted as an oblation, neither were the oblations of impenitent sinners.[321] The author of the Epistle to the Hebrews speaks of almsgiving as a sacrifice of thanksgiving which continues after the Jewish altar has been done away with.[322] Like sacrifice, almsgiving is connected with prayer, as a means of making the prayer efficacious and furnishing it with wings; the angel said to Cornelius, "Thy prayers and thine alms are come up for a memorial before God."[323] When the Christians were reproached for having no sacrifices, Justin wrote, "We have been taught that the only

honour that is worthy of Him is not to consume by fire what He has brought into being for our sustenance, but to use it for ourselves and those who need."[324] So, also, Irenæus observes that sacrifices are not abolished in the New Testament, though their form is indeed altered, because they are no longer offered by slaves, but by freemen, of which just the oblations are the proof.[325] And God has enjoined on Christians this sacrifice of oblations, not because He needs them, but "in order that themselves {569} might be neither unfruitful nor ungrateful."[326] St. Augustine says, "The sacrifice of the Christians is the alms bestowed upon the poor."[327]

[Footnote 306: Institutes of Vishnu, lix. 28.]

[Footnote 307: Laws of Manu, iv. 227. Cf. ibid. iv. 226.]

[Footnote 308: Ibid. i. 86.]

[Footnote 309: Book of the Dead, 125, Renouf's translation, p. 217.]

[Footnote 310: Vendîdâd, xix, 2.]

[Footnote 311: Koran, ii. 40, 104; ix. 54.]

[Footnote 312: Sell, op. cit. 284.]

[Footnote 313: Jaffur Shureef, Qanoon-e-Islam, p. 179.]

[Footnote 314: Kohler, in Jewish Encyclopedia, i. 467. Hosea, vi. 6.]

[Footnote 315: Ecclesiasticus, xxxv. 2.]

[Footnote 316: Quoted by Levy, Neuhebräisches und Chaldäisches Wörterbuch, iv. 173.]

[Footnote 317: Quoted ibid. iv. 173.]

[Footnote 318: Constitutiones Apostolicæ, iv. 3.]

[Footnote 319: Ibid. iv. 8.]

[Footnote 320: Addis, in Encyclopædia Biblica, i. 119.]

[Footnote 321: Uhlhorn, op. cit. i. 135 sqq. Harnack, History of Dogma, i. 205.]

[Footnote 322: Hebrews, xiii. 14 sqq. Cf. Addis, in Encyclopædia Biblica, i. 119.]

[Footnote 323: Act, x. 4. Cyprian, De opere et eleemosynis, 4. St. Chrysostom, Homilia VII., de P[oe]nitentia, 6 (Migne, Patrologiæ cursus, Ser. Gr. xlix. sq. 332).]

[Footnote 324: Justin, Apologia I. pro Christianis, 13.]

[Footnote 325: Irenæus, Adversus hæreses, iv. 18. 82.]

[Footnote 326: Ibid. iv. 17. 5.]

[Footnote 327: St. Augustine, Sermo XLII. 1 (Migne, op. cit. xxxviii. 252).]

The objection will perhaps be raised that I have here tried to trace back the most beautiful of all religious virtues to a magical and ritualistic origin without taking into due account the benevolent feelings attributed to the Deity. But in the present connection I have not had to show why charity, like other human duties, has been sanctioned by religious beliefs, but why, in the ethics of the higher religions, it has attained the same supreme importance as is otherwise attached only to devotional exercises. And this is certainly a problem by itself, for which the belief in a benevolent god affords no adequate explanation. That the religious duty of charity is not merely an outcome of the altruistic sentiment is well illustrated by the fact that Zoroastrianism, whilst exalting almsgiving to the rank of a cardinal virtue, at the same time excludes the sick man from the community of the faithful until he has been cured and cleansed according to prescribed rites.[328]

[Footnote 328: Darmesteter, 'Introduction' to the Zend-Avesta, in Sacred Books of the East, iv. p. lxxx.]

Chapter XXIV — Hospitality

WE have seen that in early society regard for the life and physical well-being of a fellow-creature is, generally speaking, restricted to members of the social unit, whereas foreigners are subject to a very different treatment. But to this rule there are remarkable exceptions. Side by side with gross indifference or positive hatred to strangers we find, among the lower races, instances of great kindness displayed even towards persons of a foreign race. The Veddahs are ready to help any stranger in distress who asks for their assistance, and Sinhalese fugitives who have sought refuge in their wilds have always been kindly received.[1] Mr. Moffat was deeply affected by the sympathy which some poor Bushmans showed to him during an illness, although he was an utter stranger to them. Speaking of the mutual affection which the Andaman Islanders display in their social relations, Mr. Man adds that, "in their dealings with strangers, the same characteristic is observable when once a good understanding has been established."[2] We have also to remember the friendly manner in which the aborigines in various parts of the savage world behaved to the earliest European visitors. Nothing could be more courteous than the reception which Cook and his party met with in New Caledonia, where the natives guided and accompanied them on their {571} excursions. Forster says of the Society Islanders, "We should indeed be ungrateful if we did not acknowledge the kindness with which they always treated us."[3] De Clerque observes with reference to the Papuans on the north coast of New Guinea:--"The inhabitants seemed always ready to help. . . . On our visit to the village all the male and female inhabitants with their children flocked around me, and offered me cocoanuts and sugar-cane; which, for the first contact with Europeans, is certainly remarkable."[4] On the arrival of white people in various parts of Australia, the natives were not only inoffensive, but disposed to meet them on terms of amity and kindness.[5] "In a short intercourse," says Eyre, "they are easily made friends. . . . On many occasions where I have met these wanderers in the wild, far removed from the abodes of civilisation, and when I have been accompanied only by a single native boy, I have been received by them in the kindest and most friendly manner, had presents made to me of fish, kangaroo, or fruit, had them accompany me for miles to point out where water was to be procured, and been assisted by them in getting at it."[6] Nor must we forget the kind reception which Australian Blacks have given to men cast upon their mercy,[7] and the tenderness with which the natives of Cooper's Creek wept for the death of Burke and Wills, and comforted King, the survivor.[8] Unfortunately, native races have often received anything but favourable impressions from their earliest interviews with Europeans; and both in Australia and elsewhere prolonged intercourse with white people has, in many instances, induced them to change {572} their friendly behaviour into unkindness or hostility. The Canadian traders, for instance, when they first appeared among the Beaver and Rocky Mountain Indians, were treated by these people with the utmost hospitality and attention; but by their subsequent conduct they taught the natives to withdraw their respect, and sometimes to treat them with indignity.[9] Harmon writes, "I have always experienced the greatest hospitality and kindness among those Indians who have had the least intercourse with white people."[10] Many facts seem to verify the statement made by a missionary who speaks from forty years' experience among the natives of New Guinea and Polynesia, that our conduct towards savages determines their conduct towards us.[11]

[Footnote 1: Sarasin, Ergebnisse naturwissenschaftlicher Forschungen auf Ceylon, iii. 544.]

[Footnote 2: Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 93.]

[Footnote 3: Forster, Voyage Round the World, ii. 157.]

[Footnote 4: De Clerque, in Glimpses of the Eastern Archipelago, p. 14.]

[Footnote 5: Breton, Excursions in New South Wales, p. 218. Curr, The Australian Race, i. 64. Salvado, Mémoires historiques sur l'Australie, p. 340. Ridley, Aborigines of Australia, p. 24. Eyre, Journals of Expeditions of Discovery into Central Australia, ii. 212, 382.]

[Footnote 6: Eyre, op. cit. ii. 211.]

[Footnote 7: Mathew, 'Australian Aborigines,' in Jour. & Proceed. Roy. Soc. N. S. Wales, xxiii. 388. Brough Smyth, Aborigines of Victoria, ii. 229. Ridley, Aborigines of Australia, p. 22.]

[Footnote 8: Jung, 'Aus dem Seelenleben der Australier,' in Mittheilungen des Vereins für Erdkunde zu Leipzig, 1877, p. 11 sq.]

[Footnote 9: Mackenzie, Voyage to the Frozen and Pacific Ocean, p. 149.]

[Footnote 10: Harmon, Journal of Voyages and Travels in the Interior of North America, p. 315.]

[Footnote 11: Murray, Forty Years' Mission Work in Polynesia and New Guinea, p. 499. For other instances of kindness displayed by savages towards white men, see von Kotzebue, Voyage of Discovery into the South Sea, iii. 174 (people of Radack); Yate, Account of New Zealand, p. 102 sq.; Dieffenbach, Travels in New Zealand, ii. 112; Keate, Account of the Pelew Islands, p. 329 sq.; Earl, Papuans, p. 79 (natives of Port Dory, New Guinea); Sarytschew, 'Voyage of ** Discovery to the North-East of Siberia,' in Collection of Modern and Contemporary Voyages and Travels, vi. 78 (Aleuts); King and Fitzroy, Voyages of the "Adventure" and "Beagle," ii. 168, 174 (Patagonians); Wilson and Felkin, Uganda, i. 225.]

The friendly reception which white men have met with in savage countries is closely connected with a custom which, as it seems, prevails universally among the lower races while in their native state,[12] as also among the {573} peoples of culture at the earlier stages of their civilisation[13] {574} --hospitality towards strangers. This custom presents several remarkable characteristics, which, to all appearance, ill agree with their tribal or national exclusiveness generally. The stranger is often welcomed with special marks of honour. The best seat is assigned to him; the best food at the host's disposal is set before {575} him; he takes precedence over all the members of the household; he enjoys extraordinary privileges. M. Hyades says of the Fuegians, "Quelque encombrée que soit une hutte, et si réduite que soit la quantité d'aliments dont on dispose, le nouvel arrivant est toujours assuré d'avoir une place près du foyer et une part de la nourriture."[14] The Mattoal of California, though they are sometimes heartlessly indifferent even to their parents, "will divide the last shred of dried salmon with any casual comer who has not a shadow of claim upon them, except the claim of that exaggerated and supererogatory hospitality that savages use."[15] A Creek Indian would not only receive into his house a traveller or sojourner of whatever nation or colour, but would treat him as a brother or as his own child, divide with him the last grain of corn or piece of flesh, and offer him the most valuable things in his possession.[16] Among the Arawaks, "when a stranger, and particularly an European, enters the house of an Indian, every thing is at his command."[17] Notwithstanding the Karen's suspicious nature, says Mr. Smeaton, his hospitality is unbounded. "He will entertain

every stranger that comes, without asking a question. He feels himself disgraced if he does not receive all comers, and give them the very best cheer he has. The wildest Karen will receive a guest with a grace and dignity and entertain him with a lavish hospitality that would become a duke. Hundreds of their old legends inculcate the duty of receiving strangers without regard to pecuniary circumstances either of host or guest."[18] Among many uncivilised peoples it is customary for a man to offer even his wife, or one of his wives, to the stranger for the time he remains his guest.[19] The Bedouins of Nejd have a {576} saying that "the guest while in the house is its lord";[20] and in the Institutes of Vishnu we read that, as the Brâhmanas are lords over all other castes, and as a husband is lord over his wives, so the guest is the lord of his host.[21]

[Footnote 12: Azara, Voyages dans l'Amérique méridionale, ii. 91 (Guanas). Southey, History of Brazil, i. 247 (Tupis). Davis, El Gringo, p. 421 (Pueblos). Lafitau, M[oe]urs des sauvages amériquains, i. 106; ii. 88. Heriot, Travels through the Canadas, p. 318 sq. Buchanan, North American Indians, p. 6. Perrot, Mémoire sur les m[oe]urs, coustumes et relligion des sauvages de l'Amérique septentrionale, pp. 69, 202. Neighbors, in Schoolcraft, Indian Tribes of the United States, ii. 132 (Comanches). James, Expedition from Pittsburgh to the Rocky Mountains, i. 321 sq. (Omahas). Morgan, League of the Iroquois, p. 327 sqq.; Loskiel, History of the Mission of the United Brethren among the Indians in North America, i. 15; Colden, in Schoolcraft, op. cit. iii. 190 (Iroquois). Powers, Tribes of California, p. 183. Sproat, Scenes and Studies of Savage Life, p. 56 sqq. (Ahts). Boas, 'Report on the Indians of British Columbia,' in the Report read at the Meeting of the British Association, 1889, p. 36. Keating, Expedition to the Source of St. Peter's River, i. 101 (Potawatomis); ii. 167 (Chippewas). Richardson, Arctic Searching Expedition, ii. 18 (Crees and Chippewas). Idem, in Franklin, Journey to the Shores of the Polar Sea, p. 66; Mackenzie, Voyages to the Frozen and Pacific Oceans, p. xcvi. (Crees). Dall, Alaska, p. 397; Sarytschew, loc. cit. vi. 78; Sauer, Billing's Expedition to the Northern Parts of Russia, p. 274 (Aleuts). Lyon, Private Journal, p. 349 sq.; Parry, Second Voyage for the Discovery of a North-West Passage, p. 526 (Eskimo of Igloolik). Egede, Description of Greenland, p. 126; Cranz, History of Greenland, i. 172 sq.; Kane, Arctic Explorations, ii. 122; Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grönland, x. 87, 175 sq. (Greenlanders). Beechey, Voyage to the Pacific and Behring's Strait, ii. 571; Richardson, Arctic Searching Expedition, i. 367; Seemann, Voyage of "Herald," ii. 65 (Western Eskimo). Hooper, Ten Months among the Tents of the Tuski, pp. 160, 193, 194, 208; Nordenskiöld, Vegas färd kring Asien och Europa, ii. 145 (Chukchi). Dall, op. cit. pp. 381 (Tuski), 517 (Kamchadales), 526 (Ainos). Sarytschew, loc. cit. v. 67 (Kamchadales). Dobell, Travels in Kamtschatka and Siberia, i. 63, 82 sq. (Kamchadales); ii. 42 (Jakuts). Sauer, op. cit. p. 124 (Jakuts). Vámbéry, Das Türkenvolk, pp. 159 (Jakuts), 336 (natives of Eastern Turkestan), 411 (Turkomans), 451 (Tshuvashes), 509 (Baskirs), &c. Krasheninnikoff, History of Kamschatka, p. 236 (Kurile Islanders). Georgi, Russia, i. 113 (Mordvins); iii. 111 (Tunguses), 167 (Koriaks); iv. 22 (Kalmucks). Bergmann, Nomadische Streifereien unter den Kalmüken, ii. 281 sqq. Prejevalsky, Mongolia, i. 71 sq. Castrén, Nordiska resor och forskningar, i. 41 (Laplanders), 319 (Ostyaks). Scott Robertson, Káfirs of the Hindu-Kush, p. 187 sq. Fraser, Tour through the Him[=a]l[=a] Mountains, pp. 264 (people of Kunawar), 335 (Butias). Dalton, Descriptive Ethnology of Bengal, pp. 46 (Kukis), 68 (Garos). Hunter, Annals of Rural Bengal, i. 215 (Santals). Tickell, 'Memoir on the Hodésum,' in Jour. Asiatic Soc. Bengal, ix. (pt. ii.) 807 sq. (Hos). Lewin, Wild Races of South-Eastern India, p. 217 (Tipperahs). Colquhoun, Amongst the Shans, pp. 160 sq. (Steins), 371 (Shans). Foreman, Philippine Islands, p. 187. de Crespigny, 'Milanows of Borneo,' in Jour. Anthr. Inst. v, 34. Low, Sarawak, pp. 243 (Hill Dyaks), 336 (Kayans).

Boyle, Adventures among the Dyaks of Borneo, p. 215. Ling Roth, Natives of Sarawak, i. 82 (Sea Dyaks). Marsden, History of Sumatra, p. 208 (natives of the interior of Sumatra). Raffles, History of Java, i. 249; Crawfurd, History of the Indian Archipelago, i. 53 (Javanese). Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 41 (natives of Ambon and Uliase). von Kotzebue, op. cit. iii. 165 (natives of Radack), 215 (Pelew Islanders). Hale, U.S. Exploring Expedition. Vol. VI.--Ethnography and Philology, p. 95 (Kingsmill Islanders). Macdonald, Oceania, p. 195 (Efatese). Erskine, Cruise among the Islands of the Western Pacific, p. 273 sq.; Williams and Calvert, Fiji and the Fijians, p. 110; Anderson, Travel in Fiji and New Caledonia, p. 134 sq. (Fijians). Ellis, Polynesian Researches, i. 95. Idem, Tour through Hawaii, p. 346 sq. Forster, op. cit. ii. 158 (Tahitians) 364 (natives of Tana), 394 (South Sea Islanders generally). Cook, Voyage round the World, p. 40 (Tahitians). Tregear, 'Niue,' in Jour. Polynesian Soc. ii. 13 (Savage Islanders), Turner, Samoa, p. 114; Pritchard, Polynesian Reminiscences, p. 132; Brenchley, Jottings during the Cruise of H.M.S. Curaçoa among the South Sea Islands, p. 76 (Samoans). Mariner, Natives of the Tonga Islands, ii. 154. Yate, op. cit. p. 100; Dieffenbach, op. cit. ii. 107 sq.; Polack, Manners and Customs of the New Zealanders, ii. 155 sq.; Angas, Savage Life and Scenes in Australia and New Zealand, ii. 22 (Maoris). Gason, 'Manners and Customs of the Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 258; Brough Smyth, op. cit. i. 25; Salvado, op. cit. p. 340 (Australian aborigines). Ellis, History of Madagascar, i. 198; Sibree, The Great African Island, pp. 126, 129; Rochon, Voyage to Madagascar, p. 62; Little, Madagascar, p. 61; Shaw, 'Betsileo,' in Antananarivo Annual and Madagascar Magazine, ii. 82. Burchell, Travels in the Interior of Southern Africa, ii. 54 (Bushmans), 345 (Hottentots). Kolben, Present State of the Cape of Good Hope, i. 166, 337; Le Vaillant, Travels from the Cape of Good Hope, ii. 143 sq.; Schinz, Deutsch-Südwest-Afrika, p. 81 (Hottentots). Lichtenstein, Travels in Southern Africa, i. 272; Leslie, Among the Zulus and Amatongas, p. 203 (Kafirs). Casalis, Basutos, pp. 209, 224. Andersson, Lake Ngami, 198 (Ovambo). Macdonald, Africana, i. 27, 263 (Eastern Central Africans). Wilson and Felkin, op. cit. i. 211, 225 (Waganda). Rowley, Africa Unveiled, p. 47 (natives of Manganja, in the neighbourhood of Lake Nyassa). New, Life, Wanderings, and Labours in East Africa, pp. 102 (Wanika), 361 (Taveta). Thomson, Through Masai Land, p. 64 (Wa-kwafi, of the Taveta). Tuckey, Expedition to explore the River Zaire, p. 374 (Congo natives), Bosman, Description of the Coast of Guinea, p. 108. Burton, Two Trips to Gorilla Land, i. 106 (Mpongwe). Idem, Abeokuta, i. 303 (Yoruba). Caillié, Travels through Central Africa, i. 165 (Bagos). Chavanne, Die Sahara, p. 185 (Touareg). Hanoteau and Letourneux, La Kabylie, ii. 45 sqq. Munzinger, Ostafrikanische Studien, p. 534 (Barea). Lobo, Voyage to Abyssinia, p. 82 sq.

For the deteriorating influence which contact with a "higher culture" exercises on savage hospitality, see Nansen, First Crossing of Greenland, ii. 306 sq.; Ellis, Tour through Hawaii, p. 346; von Kotzebue, op. cit. iii. 250 (Hawaiians); Meade, Ride through the Disturbed Districts of New Zealand, p. 164; Dieffenbach, op. cit. ii. 107, 108, 110.]

[Footnote 13: According to a law of the Peruvian Incas, strangers and travellers should be treated as guests, and public houses were provided for them (Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, ii. 34). For Yucatan, see Landa, Relacion de las cosas de Yucatan, p. 134. Though hospitality, according to Mr. Wells Williams (Middle Kingdom, i. 835), is not a trait of the character of the modern Chinese, kindness to strangers and travellers is enjoined in their moral and religious books (Chalmers, 'Chinese Natural Theology,' in China Review, v. 281. Douglas, Confucianism and Taouism, p. 273. Indo-Chinese Gleaner, iii. 160). In Corea it would be a grave and shameful thing to refuse a portion of one's meal with any person, known or

unknown, who presents himself at eating-time (Griffis, Corea, p. 288). For the Hebrews, see Genesis, xviii. 2 sqq., xxiv. 31 sqq.; Leviticus, xix. 9 sq., xxv. 35; Deuteronomy, xiv. 29, xvi. 11, 14; Judges, xix. 17 sqq.; Job, xxxiv. 32; also Bertholet, Die Stellung der Israeliten und der Juden zu den Fremden, p. 22 sqq., and Nowack, Lehrbuch der hebräischen Archäologie, p. 186 sq. For Muhammedans, see Lane, Manners and Customs of the Modern Egyptians, p. 296 sq.; Burckhardt, Notes on the Bedouins and Wahábys, pp. 100-102, 192 sqq.; Wood, Journey to the Source of the River Oxus, p. 148; Hamilton, Researches in Asia Minor, ii. 379. For ancient India, see Leist, Alt-arisches Jus Gentium, pp. 39, 40, 223 sqq. For Greece, see Schmidt, Ethik der alten Griechen, ii. 325 sqq. For Rome, see Leist, Alt-arisches Jus Civile, i. 355 sqq.; von Jhering, Geist des römischen Rechts, i. 227 sq. For ancient Teutons, see Grimm, Deutsche Rechtsalterthümer, p. 399 sq.; Gummere, Germanic Origins, p. 162 sqq.; Keyser, Efterladte Skrifter, ii. pt. ii. 93; Weinhold, Altnordisches Leben, p. 441 sqq.; Gudmundsson and Kålund, 'Sitte,' in Paul's Grundriss der germanischen Philologie, iii. 450 sq. For Slavonians, see Schrader, Reallexikon der indogermanischen Altertumskunde, i. 270; Krauss, Die Südslaven, p. 644 sqq.]

[Footnote 14: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 243.]

[Footnote 15: Powers, op. cit. p. 112.]

[Footnote 16: Bartram, 'Creek and Cherokee Indians,' in Trans. American Ethn. Soc. iii. pt. i. 42.]

[Footnote 17: Hilhouse, in Jour. Roy. Geo. Soc. ii. 230. Idem, Indian Notices, p. 14. Cf. von Martins, Beiträge zur Ethnographie Amerika's, i. 692.]

[Footnote 18: Smeaton, Loyal Karens of Burma, p. 144 sq.]

[Footnote 19: Westermarck, History of Human Marriage, p. 73 sqq.]

[Footnote 20: Palgrave, Journey through Central and Eastern Arabia, i. 345.]

[Footnote 21: Institutes of Vishnu, lxvii. 31. For other instances of the precedence granted to guests, see Man, in Jour. Anthr. Inst. xii. 94, 148 (Andaman Islanders); Buchanan, North American Indians, p. 324 (Indians of Pennsylvania); Lyon, Private Journal, p. 350 (Eskimo of Igloolik); Seemann, Voyage of "Herald," ii. 65 (Western Eskimo); Krasheninnikoff, op. cit. p. 211 (Kamchadales), Georgi, op. cit. iii. 153 sq. (Kamchadales), 183 sq. (Chukchi). Ling Roth, Natives of Sarawak, i. 86 (Sea Dyaks); Mariner, op. cit. ii. 154 (Tonga Islanders); New, op. cit. p. 102 (Wanika); Hanoteau and Letourneux, op. cit. ii. 45 (Kabyles); Wells Williams, op. cit. i. 540 (Chinese): Krauss, op. cit. p. 649 sq. (Southern Slavs).]

Custom may require that hospitality should be shown even to an enemy. Captain Holm tells us of a Greenlander of bad character who, though he had murdered his step-father, was received, and for a long time entertained, when he paid a visit to the nearest kindred of the murdered man; and this, as it seems, was agreeable to old custom.[22] Among the Aeneze Bedouins, says Burckhardt, all means are reckoned lawful to avenge the blood of a slain relative, "provided the homicide be not killed while he is a guest in the tent of a third person, or if he has taken refuge even in the tent of his deadly foe."[23] In Afghanistan "a man's bitterest enemy is safe while he is under his roof."[24] We read in the Hitopadesa:--"On even an enemy arrived at the house becoming hospitality should be bestowed; the tree does not withdraw its sheltering shadow from the wood-cutter. . . . The guest is everyone's superior."[25] The old Norsemen considered it a duty to treat a guest hospitably even though it came out that he had killed the brother of his host.[26] A mediæval {577} knight granted safe conduct through his territories to all who required it, including those who asserted pretensions which, if established, would deprive him of his possessions.[27]

[Footnote 22: Nansen, First Crossing of Greenland, ii. 305 sq.]

[Footnote 23: Burckhardt, Bedouins and Wahábys, p. 87. Cf. Daumas, La vie Arabe, p. 317 (Algerian Arabs).]

[Footnote 24: Elphinstone, Kingdom of Caubul, i. 296.]

[Footnote 25: Hitopadesa, Mitralâbhâ, 60, 62.]

[Footnote 26: Grimm, Deutsche Rechtsalterthümer, p. 400. Weinhold, Altnordisches Leben, p. 441. For other instances of hospitality towards enemies, see James, Expedition to the Rocky Mountains, i. 322 (Omahas); Bartram, in Trans. American Ethn. Soc. iii. pt. i. 42 (Creeks and Cherokees); Lomonaco, 'Sullerazze indigene del Brasile,' in Archivio per l'antropologia e la etnologia, xix. 57 (Tupis); Krauss, op. cit. p. 650 (Montenegrines).]

[Footnote 27: Mills, History of Chivalry, p. 154.]

To protect a guest is looked upon as a most stringent duty under all circumstances. "Le Kabyle qui accorde son ânaïa doit, sous peine d'infamie, y faire honneur, dût-il s'exposer à tous les dangers. . . . La violation de leur ânaïa est la plus grave injure que l'on puisse infliger à des Kabyles. Un homme qui viole, ou, suivant l'expression consacrée, qui brise l'ânaïa de son village ou de sa tribu, est puni de mort et de la confiscation de tous ses biens; sa maison est démolie."[28] Among the Bedouins a breach of the law of dakheel "would be considered a disgrace not only upon the individual but upon his family, and even upon his tribe, which never could be wiped out. No greater insult can be offered to a man, or to his clan, than to say that he has broken the dakheel."[29] Among the Aenezes, according to Burckhardt, "a violation of hospitality, by the betraying of a guest, has not occurred within the memory of man."[30] In Egypt, "most Bedawees will suffer almost any injury to themselves or their families rather than allow their guests to be ill-treated while under their protection."[31] Among the Kandhs, "for the safety of a guest life and honour are pledged; he is to be considered before a child"; in order to save his guest a man is even allowed to speak falsely, which is otherwise condemned by them as a heinous sin.[32] Vámbéry tells us of cases in which the Kara-Kirghiz have preferred being harassed with war by the Chinese to surrendering to them such Chinese fugitives as have sought and received their hospitality.[33] Among the Ossetes the host not only considers himself responsible for the safety of his guest, {578} but "revenges the murder or wounding of the latter as he would that of a kinsman."[34] In Albania it is considered infamous to leave an injury inflicted on a guest unavenged.[35] Among the Takue, though a man would accept compensation for the murder of a relative, he would in all cases exact blood-revenge for the murder of his guest.[36] On the other hand, in Sierra Leone a guest "is scarcely accountable for any faults which he may commit, whether through inadvertency or design, the host being considered as responsible for the actions of 'his stranger.'"[37]

[Footnote 28: Hanoteau and Letourneux, op. cit. ii. 61 sq.]

[Footnote 29: Layard, Discoveries in the Ruins of Nineveh and Babylon, p. 317.]

[Footnote 30: Burckhardt, Bedouins and Wahábys, p. 100. Cf. ibid. p. 192.]

[Footnote 31: Lane, Modern Egyptians, p. 297.]

[Footnote 32: Macpherson, Memorials of Service in India, pp. 65, 94.]

[Footnote 33: Vámbéry, Das Türkenvolk, p. 268. Cf. ibid. p. 411 (Turkomans).]

[Footnote 34: von Haxthausen, Transcaucasia, p. 412.]

[Footnote 35: Gop[vc]evi['c], Oberalbanien und seine Liga, p. 328.]

[Footnote 36: Munzinger, Ostafrikanische Studien, p. 208. Among the Barea and Kunáma a man avenges the death of his guest by killing the guest of the murderer (ibid. p. 477).]

[Footnote 37: Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 214.]

Hospitality is not only regarded as a duty of the first order, but has, in a remarkable degree, been associated with religion. Among the doctrines held up for acceptance by the religious instructors of the Iroquois there was the following precept:--"If a stranger wander about your abode, welcome him to your home, be hospitable towards him, speak to him with kind words, and forget not always to mention the Great Spirit."[38] The natives of Aneiteum, of the New Hebrides, maintained that generous hospitality would receive the highest reward in the Land of the Dead.[39] The Kalmucks believe that want of hospitality will be punished by angry gods.[40] The Kandhs say that the first duty which the gods have imposed upon man is that of hospitality; and "persons guilty of the neglect of established observances are punished by the divine wrath, either during their current lives, or when they afterwards return to animate other bodies," the penalties being death, poverty, disease, the loss of children, or any other form of calamity.[41] In the sacred books of India hospitality is repeatedly spoken of as a most important duty, the discharge of which will be {579} amply rewarded. "The inhospitable man," the Vedic singer tell us, "acquires food in vain. I speak the truth--it verily is his death. . . . He who eats alone is nothing but a sinner."[42] "He who does not feed these five, the gods, his guests, those whom he is bound to maintain, the manes, and himself, lives not, though he breathes."[43] According to the Vishnu Purána, a person who neglects a poor and friendless stranger in want of hospitality, goes to hell.[44] On the other hand, by honouring guests a householder obtains the highest reward.[45] "He who entertains guests for one night obtains earthly happiness, a second night gains the middle air, a third heavenly bliss, a fourth the world of unsurpassable bliss; many nights procure endless worlds. That has been declared in the Veda."[46] It is said in the Mahabharata that "he who gives food freely to a fatigued wayfarer, whom he has never seen before, obtains great virtuous merit."[47] According to Hesiod, Zeus himself is wrath with him who does evil to a suppliant or a guest, and at last, in requital for his deed, lays on him a bitter penalty.[48] Plato says:--"In his relations to strangers, a man should consider that a contract is a most holy thing, and that all concerns and wrongs of strangers are more directly dependent on the protection of God, than wrongs done to citizens. . . . He who is most able is the genius and the god of the stranger, who follows in the train of Zeus, the god of strangers. And for this reason, he who has a spark of caution in him, will do his best to pass through life without sinning against the stranger. And of offences committed, whether against strangers or fellow-country-men, that against suppliants is the greatest."[49] Similar opinions prevailed in ancient Rome. Jus hospitii, whilst {580} forming no part of the civil law, belonged to fas; the stranger, who enjoyed no legal protection, was, as a guest, protected by custom and religion.[50] The dii hospitales and Jupiter were on guard over him;[51] hence the duties towards a guest were even more stringent than those towards a relative.[52] Cæsar[53] and Tacitus[54] attest that the Teutons considered it impious to injure a guest or to exclude any human being from the shelter of their roof. The God of Israel was a preserver of strangers.[55] In the Talmud hospitality is described as "the most important part of divine worship,"[56] as being equivalent to the duty of honouring father and mother,[57] as even more meritorious than frequenting the synagogue.[58] Muhammedanism likewise regards hospitality as a religious duty.[59] "Whoever," said the Prophet, "believes in God and the day of resurrection, must respect his guest."[60] But the idea that a guest enjoys divine protection prevailed among the Arabs long before the times of Muhammed.[61]

The Bedouins say that the guests are "guests of God."[62] The Christian Church, again, regarded hospitality as a duty imposed by Christ.[63]

[Footnote 38: Morgan, League of the Iroquois, p. 172.]

[Footnote 39: Inglis, In the New Hebrides, p. 31.]

[Footnote 40: Bergmann, op. cit. ii. 281 sq.]

[Footnote 41: Macpherson, 'Religious Opinions and Observances of the Khonds,' in Jour. Roy. Asiatic Soc. vii. 196.]

[Footnote 42: Rig-Veda, x. 117. 6.]

[Footnote 43: Laws of Manu, iii. 72. Cf. Institutes of Vishnu, lxvii. 45.]

[Footnote 44: Vish['n]u Purá['n]a, p. 305.]

[Footnote 45: Institutes of Vishnu, lxvii. 28, 32.]

[Footnote 46: Âpastamba, ii. 3. 7. 16.]

[Footnote 47: Mahabharata, Vana Parva, ii. 61, pt. v. p. 5.]

[Footnote 48: Hesiod, Opera et dies, 331 sq. (333 sq.).]

[Footnote 49: Plato, Leges, v. 729 sq.]

[Footnote 50: Servius, In Virgilii Æneidos, iii. 55: "Fas omne; et cognationis, et iuris hospitii." von Jhering, Geist des römischen Rechts, i. 227. Leist, Alt-arisches Jus Civile, i. 103, 358 sq.]

[Footnote 51: Servius, In Virgilii Æneidos, i. 736. Livy, Historiæ Romanæ, xxxix. 51. Tacitus, Annales, xv. 52. Plautus, P[oe]nuli, v. 1. 25.]

[Footnote 52: Gellius, Noctes Atticæ, v. 13. 5: "In officiis apud maiores ita observatum est, primum tutelae, deinde hospiti, deinde clienti, tum cognato, postea affini."]

[Footnote 53: Cæsar, De bello Gallico, vi. 23.]

[Footnote 54: Tacitus, Germania, 21.]

[Footnote 55: Psalms, cxlvi. 9.]

[Footnote 56: Deutsch, Literary Remains, p. 57.]

[Footnote 57: Kiddushin, fol. 39 B, quoted by Hershon, Treasures of the Talmud, p. 145.]

[Footnote 58: Sabbath, fol. 127 A, quoted by Katz, Der wahre Talmudjude, p. 103.]

[Footnote 59: Koran, iv. 40 sqq.]

[Footnote 60: Lane, Arabian Society in the Middle Ages, p. 142.]

[Footnote 61: Wellhausen, Reste arabischen Heidentums, p. 223 sq.]

[Footnote 62: Doughty, Arabia Deserta, i. 228, 504.]

[Footnote 63: Laurent, Études sur l'histoire de l'Humanité, vii. 346.]

That a stranger, who under other circumstances is treated as an inferior being or a foe, liable to be robbed and killed with impunity, should enjoy such extraordinary privileges as a guest, is certainly one of the most curious contrasts which present themselves to a student of the moral ideas of mankind. It may be asked, why should {581} he be received at all? Of course, he stands in need of protection and support, but why should those who do not know him care for that?

One answer is that his helpless condition may excite pity; facts seem to prove that even among savages the altruistic feelings, however narrow, can be stirred by the sight of a suffering and harmless stranger. Another answer is that the host himself may expect to reap benefit from his act. And there can be little doubt that the rules of hospitality are in the main based on egoistic considerations.

It has been justly observed that in uncivilised countries, where there is no public accommodation for travellers, "hospitality is so necessary, and so much required by the mutual convenience of all parties, as to detract greatly from its merit as a moral quality."[64] When the stranger belongs to a community with which a reciprocity of

intercourse prevails, it is prudent to give him a hearty reception; he who is the host to-day may be the guest tomorrow. "If the Red Indians are hospitable," says Domenech, "they also look for their hospitality being returned with the same marks of respect and consideration."[65] Moreover, the stranger is a bearer of news and tidings, and as such may be a welcome guest where communication between different places is slow and rare.[66] During my wanderings in the remote forests of Northern Finland I was constantly welcomed with the phrase, "What news?" But the stranger may be supposed to bring with him something which is valued even more highly, namely, good luck or blessings.

[Footnote 64: Winterbottom, op. cit. i. 214.]

[Footnote 65: Domenech, Seven Years' Residence in the Great Deserts of North America, ii. 319. Cf. Dunbar, 'Pawnee Indians.' in Magazine of American History, viii. 745; Brett, Indian Tribes of Guiana, p. 347; Bernau, Missionary Labours in British Guiana, p. 51; von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 333 sq. (Bakaïri); Georgi, op. cit. iii. 154 (Kamchadales); Smeaton, op. cit. p. 146 (Karens); Ellis, Polynesian Researches, i. 95 (Society Islanders); Pritchard, Polynesian Reminiscences, p. 132, and Brenchley, op. cit. p. 76 (Samoans); Williams and Calvert, op. cit. p. 110, and Anderson, Notes of Travel in Fiji and New Caledonia, p. 135 (Fijians); Chavanne, Die Sahara, p. 393 (Arabs of the Sahara).]

[Footnote 66: Wright, Domestic Manners and Sentiments in England during the Middle Ages, p. 329.]

During the first days of my stay at Demnat, in the Great Atlas, the natives in spite of their hostility towards Europeans, said they were quite pleased with my coming to see them, because I had brought with me rain and an increase of the import of victuals, which just before my arrival had been very scarce. So, too, whilst residing among the Andjra mountaineers in the North of Morocco, I was said to be a person with "propitious ankles," because, since I settled down among them, the village where I stayed was frequently visited by Shereefs--presumed descendants of the Prophet Muhammed--who are always highly valued guests on account of the baraka, or holiness, with which they are supposed in a smaller or greater degree to be endowed. The stranger may be a source of good fortune either involuntarily, as a bearer of luck, or through his good wishes; and there is every reason to hope that he will, if treated hospitably, return the kindness of his host with a blessing. According to the old traveller d'Arvieux, strangers, who come to an Arab village are received by the Sheikh with some such words as these:--"You are welcome; praised be God that you are in good health; your arrival draws down the blessing of heaven upon us; the house and all that is in it is yours, you are masters of it."[67] It is said in one of the sacred books of India that through a Brâhmana guest the people obtain rain, and food through rain, hence they know that "the hospitable reception of a guest is a ceremony averting evil."[68] When we read in the Laws of Manu that "the hospitable reception of guests procures wealth, fame, long life, and heavenly bliss,"[69] it is also reasonable to suppose that this supernatural reward is a result of blessings invoked on the host. In the 'Suppliants' of Aeschylus the Chorus sings:--"Let us utter for the Argives blessings in requital of their blessings. And may Zeus of Strangers watch to their fulfilment the rewards that issue from a stranger's tongue, that {583} they reach their perfect goal."[70] We can now understand the eagerness with which guests are sought for. When a guest enters the hut of a Kalmuck, "the host, the hostess, and everybody in the hut, rejoice at the arrival of the stranger as at an unexpected fortune."[71] Among the Arabs of Sinai, "if a stranger be seen from afar coming towards the camp, he is the guest for that night of the first person who descries him, and who,

whether a grown man or a child, exclaims, 'There comes my guest.' Such a person has a right to entertain the guest that night. Serious quarrels happen on these occasions; and the Arabs often have recourse to their great oath--'By the divorce (from my wife) I swear that I shall entertain the guest'; upon which all opposition ceases."[72] It is also very usual in the East to eat before the gate of the house where travellers pass, and every stranger of respectable appearance is invariably requested to sit down and partake of the repast.[73] Among the Maoris, "no sooner does a stranger appear in sight, than he is welcomed with the usual cry of 'Come hither! come hither!' from numerous voices, and is immediately invited to eat of such provisions as the place affords."[74]

[Footnote 67: d'Arvieux, Travels in Arabia the Desart, p. 131 sq.]

[Footnote 68: Vasishtha, xi. 13.]

[Footnote 69: Laws of Manu, iii. 106.]

[Footnote 70: Aeschylus, Supplices, 632 sqq.]

[Footnote 71: Bergmann, op. cit. ii. 282.]

[Footnote 72: Burckhardt, Bedouin and Wahábys p. 198.]

[Footnote 73: Idem, Arabic Proverbs, p. 218. Chasseb[oe]uf de Volney, Travels through Syria and Egypt, i. 413.]

[Footnote 74: Yate, op. cit. p. 100. Cf. Turner, Nineteen Years in Polynesia, p. 325 (Samoans); Sproat, op. cit. p. 57 (Ahts).]

If efficacy is ascribed to the blessings even of an ordinary man, the blessings of a stranger are naturally supposed to be still more powerful. For the unknown stranger, like everything unknown and everything strange, arouses a feeling of mysterious awe in superstitious minds. The Ainos say, "Do not treat strangers slightingly, for you never know whom you are entertaining."[75] According to the Hitopadesa, "a guest consists of all the deities."[76] It is significant that in the writings of ancient India, Greece, and Rome, guests are mentioned next after gods as due objects of regard.[77] Thus Aeschylus speaks of a man's {584} "impious conduct to a god, or a stranger, or to his parents dear."[78] According to Homeric notions, "the gods, in the likeness of strangers from far countries, put on all manner of shapes, and wander through the cities, beholding the violence and the righteousness of men."[79] The author of the Epistle to the Hebrews writes, "Be not forgetful to entertain strangers: for thereby some have entertained angels unawares."[80]

[Footnote 75: Batchelor, Ainu and their Folk-Lore, p. 259.]

[Footnote 76: Hitopadesa, Mitralâbhâ, 65.]

[Footnote 77: Anugitâ, 3, 31 (Sacred Books of the East, viii. 243, 361). Gellius, Noctes Atticæ, v. 13. 5.]

[Footnote 78: Aeschylus, Eumenides, 270 sq.]

[Footnote 79: Odyssey, xvii. 485 sqq.]

[Footnote 80: Hebrews, xiii. 2.]

The visiting stranger, however, is regarded not only as a potential benefactor, but as a potential source of evil. He may bring with him disease or ill-luck. He is commonly believed to be versed in magic;[81] and the evil wishes and curses of a stranger are greatly feared, owing partly to his quasi-supernatural character, partly to the close contact in which he comes with the host and his belongings.

[Footnote 81: Frazer, Golden Bough, i. 298 sqq.]

In the Mentawey Islands, in the Malay Archipelago, "if a stranger enters a house where there are children, the father or some other member of the family who happens to be present, takes the ornament with which the children decorate their hair, and hands it to the stranger, who holds it in his hands for a while, and then gives it back"; this

is supposed to protect the child from the evil effect which the eye of a stranger might have on it.[82] With reference to the Californian Pomo, Mr. Powers states, "Let a perfect stranger enter a wigwam and offer the lodge-father a string of beads for any object that takes his fancy--merely pointing to it, but uttering no word--and the owner holds himself bound in savage honour to make the exchange, whether it is a fair one or not." When we compare this idea of "savage honour" with certain cases mentioned in the last chapter, we cannot doubt that it is based on superstitious fear; indeed, the next day the former owner of the article "may thrust the stranger through with his spear, or crush his forehead with a pebble from his sling, and the bystanders will look {585} upon it as only the rectification of a bad bargain."[83] Among the African Herero "no curse is regarded as heavier than that which one who has been inhospitably treated would hurl at those who have driven him from the hearth."[84] According to Greek ideas, guests and suppliants had their Erinyes[85] --personifications of their curses; and it would be difficult to attribute any other meaning to "the genius ([Greek: dai/môn]) and the god of the stranger, who follow in the train of Zeus," spoken of by Plato, and to the Roman dii hospitales, in their capacity of avengers of injuries done to guests. Aeschylus represents Apollo as saying, "I shall assist him (Orestes), and rescue my own suppliant; for terrible both among men and gods is the wrath of a refugee, when one abandons him with intent."[86] It is no doubt the same idea that the Chorus in the 'Suppliants' expresses, in a modified form, when singing:--"Grievous is the wrath of Zeus Petitionary. . . . I must needs hold in awe the wrath of Zeus Petitionary, for that is the supremest on earth."[87] Âpastamba's Aphorisms contain a sûtra the object of which is to show the absolute necessity of feeding a guest, owing to the fact that, "if offended, he might burn the house with the flames of his anger";[88] for "a guest comes to the house resembling a burning fire,"[89] "a guest rules over the world of Indra."[90] According to the Institutes of Vishnu, "one who has arrived as a guest and is obliged to turn home disappointed in his expectations, takes away from the man to whose house he has come his religious merit, and throws his own guilt upon him";[91] and the {586} same idea is found in many other ancient books of India.[92] That a dissatisfied guest, or a Brâhmana,[93] thus takes with him the spiritual merit of his churlish host, allows of a quite literal interpretation. In Morocco, a Shereef is generally unwilling to let a stranger kiss his hand, for fear lest the stranger should extract from him his baraka, or holiness; and the Shereefs of Wazzari are reputed to rob other Shereefs, who visit them, of their holiness, should the latter leave behind any remainder of their meals, even though it be only a bone.

[Footnote 82: Rosenberg, Der Malayische Archipel, p. 198.]

[Footnote 83: Powers, op. cit. p. 153. The same privilege as "the perfect stranger" possesses among the Pomo, was granted by the tribes of the Niger Delta to the Ibo girl who was destined to be offered as a sacrifice. She "was allowed to claim any piece of cloth or any ornament she set her eyes upon, and the native to whom it belonged was obliged to present it to her" (Comte de Cardi, 'Ju-ju Laws and Customs,' in Jour. Anthr. Inst. xxix. 54).]

[Footnote 84: Ratzel, History of Mankind, 480.]

[Footnote 85: Plato, Epistolæ, viii. 357. Apollonius Rhodius, Argonautica, iv. 1042 sq.]

[Footnote 86: Aeschylus, Eumenides, 232 sqq.]

[Footnote 87: Idem, Supplices, 349, 489.]

[Footnote 88: Sacred Books of the East ii. 114, n. 3.]

[Footnote 89: Âpastamba, ii. 3. 6. 3.]

[Footnote 90: Laws of Manu, iv. 182.]

[Footnote 91: Institutes of Vishnu, lxvii. 33.]

[Footnote 92: Vasishtha, viii. 6. Laws of Manu, ii. 100. Hitopadesa, Mitralâbhâ, 64.]

[Footnote 93: Vasishtha, viii. 6. Laws of Manu, iii. 100.]

The efficacy of a wish or a curse depends not only upon the potency which it possesses from the beginning, owing to certain qualities in the person from whom it originates, but also on the vehicle by which it is conducted--just as the strength of an electric shock depends both on the original intensity of the current and on the condition of the conductor. As particularly efficient conductors are regarded blood, bodily contact, food, and drink. In Morocco, the duties of a host are closely connected with the institution of l-[(]âr, one of the most sacred customs of that country. If a person desires to compel another to help him, or to forgive him, or, generally, to grant some request, he makes [(]âr on him. He kills a sheep or a goat or only a chicken at the threshold of his house, or at the entrance of his tent; or he grasps with his hands either the person whom he invokes, or that person's child, or the horse which he is riding; or he touches him with his turban or a fold of his dress. In short, he establishes some kind of contact with the other person, to serve as a conductor of his wishes and of his conditional curses. It is universally believed that, if the person so appealed to does not grant the request, his own welfare is at stake, and that the danger is particularly great if an animal has been killed at his door, and he steps over the blood or only catches a glimpse of it. As appears from the expression, "This is [(]âr on you if you do not do this or that," the blood, or {587} the direct bodily contact, is supposed to transfer to the other person a conditional curse:--If you do not help me, then you will die, or your children will die, or some other evil will happen to you. So also the owner of a house or a tent to which a person has fled for refuge must, in his own interest, assist the fugitive, who is in his [(]âr; for, by being in his dwelling, the refugee is in close contact with him and his belongings. Again, the restraint which a common meal lays on those who partake of it is conspicuous in the usual practice of sealing a compact of friendship by eating together at the tomb of some saint. The true meaning of this is made perfectly clear by the phrase that "the food will repay" him who breaks the compact. The sacredness of the place adds to the efficacy of the imprecation, but its vehicle, the real punisher, is the eaten food, because it embodies a conditional curse.

Now the idea underlying these customs is certainly not restricted to Morocco. As will be shown in subsequent chapters, blood is very commonly used as a conductor of conditional curses; for instance, one object of the practice of sacrifice is to transfer an imprecation to the god by means of the blood of the victim. Bodily contact is another common means of communicating curses; and this accounts for many remarkable cases of compulsory hospitality and protection which have been noticed in different quarters of the world. In Fiji "the same native who within a few yards of his house would murder a coming or departing guest for sake of a knife or a hatchet, will defend him at the risk of his own life as soon as he has passed his threshold."[94] In the Pelew Islands "an enemy may not be killed in a house, especially not in the presence of the host."[95] If an Ossetian receives into his house a stranger whom he afterwards discovers to be a man to whom he owes blood-revenge, this makes no difference in his hospitality; but when the guest takes his leave, the {588} host accompanies him to the boundary of the village, and on parting from him exclaims, "Henceforth beware!"[96] Among the Kandhs, if a man can make his way by any means into the house of his enemy he cannot be touched, even though his life has been forfeited to his involuntary host by the law of blood-revenge.[97] In none of these cases is an explanation given of the extraordinary privilege granted to the stranger; but it seems highly probable that it

has the same origin as the exactly similar custom prevalent among the Moors. In other words, as soon as the stranger has come in touch with a person by entering his house, he is thought to be able to transmit to that person and his family and his property any evil wishes he pleases. So, also, in the East any stranger may place himself under the protection of an Arab by merely touching his tent or his tent-ropes,[98] and after this is done "it would be reckoned a disgraceful meanness, an indelible shame, to satisfy even a just vengeance at the expense of hospitality."[99] "Amongst the Shammar," says Layard, "if a man can seize the end of a string or thread, the other end of which is held by his enemy, he immediately becomes his Dakheel [or protégé]. If he touch the canvas of a tent, or can even throw his mace towards it, he is the Dakheel of its owner. If he can spit upon a man or touch any article belonging to him with his teeth, he is Dakhal, unless of course, in case of theft, it be the person who caught him. . . . The Shammar never plunder a caravan within sight of their encampment, for as long as a stranger can see their tents they consider him their Dakheel."[100] But one of the Bedouin tribes described by Lady Anne and Mr. Blunt, whilst ready to rob the stranger who comes to their tents, {589} "count their hospitality as beginning only from the moment of his eating with them."[101] All Bedouins regard the eating of "salt" together as a bond of mutual friendship, and there are tribes who quite in accordance with the Moorish principle, "the food will repay you"--require to renew this bond every twenty-four hours, or after two nights and the day between them, since otherwise, as they say, "the salt is not in their stomachs,"[102] and can therefore no longer punish the person who breaks the contract. The "salt" which gives a claim to protection consists in eating even the smallest portion of food belonging to the protector.[103] The Sultan Saladin did not allow the Crusader Renaud de Chatillon, when brought before him as a prisoner, to quench his thirst in his tent, for, had he drunk water there, the enemy would have been justified in regarding his life as safe.[104] We find a similar custom among the Omaha Indians: "should an enemy appear in the lodge and receive a mouthful of food or water, or put the pipe in his mouth, he cannot be injured by any member of the tribe, as he is bound for the time being by the ties of hospitality, and they are compelled to protect him and send him home in safety."[105] In these and similar cases, where there is no common meal, the guest may nevertheless transmit to his host a curse by the exceedingly close contact established between him and the food or drink or tobacco of the host, according to the principle of pars pro toto. This is an idea very familiar to the primitive mind. It lies, for instance, at the bottom of the common belief that a person may bewitch his enemy by getting hold of some of his spittle or some leavings of his food--a belief which has led to the custom of guests carrying away with them all they are unable to eat of the food which is placed before them, {590} out of dread lest the residue of their meal should be eaten by somebody else.[106] The magic wire may conduct imprecations in either direction. In Morocco, if a person gives to another some food or drink, it is considered dangerous, not only for the recipient to receive it without saying, "In the name of God," but also for the giver to give it without uttering the same formula, by way of precaution.[107]

[Footnote 94: Wilkes, U.S. Exploring Expedition, iii. 77.]

[Footnote 95: Kubary, 'Die Palau-Inseln in der Südsee,' in Journal des Museum Godeffroy, iv. 25.]

[Footnote 96: von Haxthausen, Transcaucasia, p. 412.]

[Footnote 97: Macpherson, Memorials of Service in India, p. 66.]

[Footnote 98: Robertson Smith, Kinship and Marriage in Early Arabia, p. 48. Blunt, Bedouin Tribes of the Euphrates, ii. 211.]

[Footnote 99: Chasseb[oe]uf de Volney, op. cit. i. 412.]

[Footnote 100: Layard, op. cit. p. 317 sq. Burckhardt says (Bedouins and Wahábys, p. 72) that one of the most common oaths in the domestic life of the Bedouins is "to take hold with one hand of the wasat, or middle tent-pole, and to swear 'by the life of this tent and its owners.'"]

[Footnote 101: Blunt, op. cit. ii. 211.]

[Footnote 102: Burton, Pilgrimage to Al-Madinah and Meccah, ii. 112. Doughty, op. cit. i. 228.]

[Footnote 103: Burckhardt, Bedouins and Wahábys, p. 187. Quatremère, 'Mémoire sur les asiles chez les Arabes,' in Mémoires de l'Institut de France, Académie des Inscriptions et Belles-Lettres, xv. pt. ii. 346 sqq.]

[Footnote 104: Quatremère, loc. cit. p. 346.]

[Footnote 105: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 271.]

[Footnote 106: Shortland, Traditions and Superstitions of the New Zealanders, pp. 86, 97. Cf. Ellis, Tour through Hawaii, p. 347; Harmon, op. cit. p. 361 (Indians on the east side of the Rocky Mountains).]

[Footnote 107: Isaac also blessed his son by eating of his food (Genesis, xxvii. 4, 19, 24). The subject of hospitality has been incidentally dealt with by Mr. Crawley in his interesting book, The Mystic Rose (p. 239 sqq.; cf., also, p. 124 sqq.). I must leave the reader to decide how far the theory I am here advocating, which mainly rests upon my researches in Morocco, coincides with his. All through his book Mr. Crawley lays much emphasis on the principle of transference; but, if I understand him rightly, he also regards commensality as involving a supposed "exchange of personality" between the host and the guest, in consequence of which "injury done to B by A is equivalent to injury done by A to himself" (p. 237). To this opinion I cannot subscribe (cf. infra, on the Origin and Development of the Altruistic Sentiment). So far as I can see, the mutual obligations arising from eating together are fundamentally based on the idea that the common meal serves as a conductor of conditional imprecations.]

The stranger thus being looked upon as a more or less dangerous individual, it is natural that those who are exposed to the danger should do what they can to avert it. With this end in view certain ceremonies are often performed immediately on his arrival. Many such reception ceremonies have been described by Dr. Frazer,[108] but I shall add a few others which seem to serve the object of either transferring to the stranger conditional curses or purifying him from dangerous influences. I am told by a native that among some of the nomadic Arabs of Morocco, as soon as a stranger appears in the village, some water, or, if he be a person of distinction, some milk, is presented to him. Should he refuse to partake of it, he is not allowed to go freely about, but has to stay in the village mosque. On asking for an explanation of this custom, I was told that it is a precaution against the stranger; should he steal or otherwise misbehave himself, the drink would cause his knees to swell so that he could not escape. In other words, he has drunk a conditional curse.[109] The {591} Arabs of a tribe in Nejd "welcome" a guest by pouring on his head a cup of melted butter,[110] the South African Herero greet him with a vessel of milk.[111] Sir S. W. Baker describes a reception custom practised by the Arabs on the Abyssinian frontier, which is exactly similar to one form of l-[(]âr of the Moors:--"The usual welcome upon the arrival of a traveller, who is well received in an Arab camp, is the sacrifice of a fat sheep, that should be slaughtered at the door of his hut or tent, so that the blood flows to the threshold."[112] Reception sacrifices also occur among the Shulis,[113] in Liberia,[114] and in Afghanistan.[115] Among the Indians of North America, again, it is a common rule that a dish of food should be

placed before the new-comer immediately on his arrival, that he should taste of it even though he has just arisen from a feast, and that no word should be spoken to him or no question put to him until he has partaken of the food.[116] Among the Omahas "the master of the house is evidently ill at ease, until the food is prepared for eating; he will request his squaws to expedite it, and will even stir the fire himself."[117] Among many peoples it is considered necessary that the host should give food to his guest before he eats himself. This is a rule on which much stress is laid in the literature of ancient India.[118] A Brâhmana never takes food "without having offered it duly to gods and guests."[119] "He who eats before his guest consumes the rood, the prosperity, the issue, the cattle, the merit which his family acquired by sacrifices and charitable works."[120] It is probable that this punishment has something to do {592} with the evil eye of the neglected guest, for the idea of eating the evil wishes of others was evidently quite familiar to the ancient Hindus. It is said in Âpastamba's Aphorisms:--"A guest who is at enmity with his host shall not eat his food, nor shall he eat the food of a host who hates him or accuses him of a crime, or of one who is suspected of a crime. For it is declared in the Veda that he who eats the food of such a person eats his guilt."[121] In Tonga Islands, "at meals strangers or foreigners are always shewn a preference, and females are helped before men of the same rank"--according to our informant, "because they are the weaker sex and require attention."[122] As to the correctness of this explanation, however, I have some doubts; the Moors, also, at their feasts, allow the women to eat first, and one reason they give for this custom is that otherwise the hungry women might injure the men with their evil eyes. In Hawaii the host and his family do not at all partake of the entertainment with which a passing visitor is generally provided on arriving among them;[123] and that their abstinence is due to superstitious fear is all the more probable as, among the same people, it is the custom for the guest invariably to carry away with him all that remains of the entertainment.[124]

[Footnote 108: Frazer, Golden Bough, i. 299 sqq.]

[Footnote 109: Cf. the "trial of jealousy" in Numbers. v. 11 sqq., particularly verse 22: "This water that causeth the curse shall go into thy bowels, to make thy belly to swell, and thy thigh to rot."]

[Footnote 110: Burckhardt, Bedouins and Wahábys, p. 102.]

[Footnote 111: Ratzel, op. cit. ii. 480.]

[Footnote 112: Baker, Nile Tributaries of Abyssinia, p. 94.]

[Footnote 113: Emin Pasha in Central Africa, p. 107.]

[Footnote 114: Trumbull, Threshold Covenant, p. 9.]

[Footnote 115: Frazer, Golden Bough, i. 303.]

[Footnote 116: Lafitau, op. cit. ii. 88. James, Expedition to the Rocky Mountains, i. 321 sq. Morgan, League of the Iroquois, p. 328. Sproat, op. cit. p. 57 (Ahts).]

[Footnote 117: James, op. cit. i. 322.]

[Footnote 118: Gautama, v. 25.]

[Footnote 119: Mahabharata, Shanti Parva, clxxxix. 2 sq., pt. xxviii. sq. p. 281.]

[Footnote 120: Âpastamba, ii. 3. 7. 3.]

[Footnote 121: Ibid. ii. 3. 6. 19 sq. Cf. Proverbs, xxiii. 6: "Eat not the bread of him that hath an evil eye."]

[Footnote 122: Mariner, op. cit. ii. 154.]

[Footnote 123: Ellis, Tour through Hawaii, p. 347.]

[Footnote 124: Ibid. p. 347.]

Among the precautions taken against the visiting stranger kind and respectful treatment is of particularly great importance. No traveller among an Arabic-speaking

people can fail to notice the contrast between the lavish welcome and the plain leave-taking. The profuse greetings mean that the stranger will be treated as a friend and not as an enemy; and it is particularly desirable to secure his good-will in the beginning, since the first glance of an evil eye is always held to be the most dangerous. We can now realise that the extreme regard shown to a guest, and the preference given to him in every matter, must, in a {593} large measure, be due to fear of his anger, as well as to hope of his blessings. Even the peculiar custom which requires a host to lend his wife to a guest becomes more intelligible when we consider the supposed danger of the stranger's evil eye or his curses, as also the benefits which may be supposed to result from his love.[125] And when the guest leaves, it is wise of the host to accept no reward; for there maybe misfortune in the stranger's gift.

[Footnote 125: Egede informs us (op. cit. p. 140) that the native women of Greenland thought themselves fortunate if an Angekokk, or "prophet," honoured them with his caresses; and some husbands even paid him for having intercourse with their wives, since they believed that the child of such a holy man could not but be happier and better than others. Some similar belief may be held in regard to intercourse with a guest, though I can adduce no direct evidence for my supposition. Cf. also the jus primae noctis accorded to priests (Westermarck, History of Human Marriage, p. 76 sq.; cf. ibid. p. 80).]

That hospitality should be free of cost is implied in the very meaning of the word. Wherever the custom of entertaining guests has been preserved pure and genuine, remuneration is neither asked nor expected; indeed, to offer payment would give offence, and to accept it would be disgraceful.[126] Such a custom might no doubt result from absence or scarcity of money, as it cannot be expected that the wandering stranger shall carry with him heavy presents to all his future hosts; and where the intercourse is mutual, the hospitable man may hope one day to be paid back in his own coin. But it seems likely that the custom of not receiving payment from a guest is largely due to that same dread of strangers which underlies many other rules of hospitality. The acceptance of gifts is frequently considered to be connected with some danger. According to rules laid down in the sacred books of India, he who is about to accept gifts, or he who has accepted gifts, must repeatedly recite the four Vedic verses called Taratsamandîs;[127] or all gifts are to be preceded by pouring out {594} water into the extended palm of the recipient's right hand,[128] evidently because the water is supposed to cleanse the gift from the baneful energy with which it may be saturated. On the other hand, "without a full knowledge of the rules prescribed by the sacred law for the acceptance of presents, a wise man should not take anything, even though he may pine with hunger. But an ignorant man who accepts gold, land, a horse, a cow, food, a dress, sesamum-grains, or clarified butter, is reduced to ashes like a piece of wood. . . . Hence an ignorant man should be afraid of accepting any presents; for by reason of a very small gift even a fool sinks into hell as a cow into a morass."[129] Moreover, a gift, to be accepted by a Brâhmana, ought to be given voluntarily, not to be asked for.[130] So, too, Hebrew writers are anxious to inculcate the duty of giving alms with an ungrudging eye, as also of not giving anything before witnesses--the latter, perhaps, with a view to preventing the evil influence which is likely to emanate from an envious spectator.[131] An Atlas Berber, who had probably never before had anything to do with a European, spat on the coin which I gave him for rendering me a service, and my native friends told me that he did so for fear lest the coin, owing to some sorcery on my part, should not only itself return to me, but at the same time take with it all the

money with which it had been in contact in his bag. Of the Annamites it is said that "for fear of bringing ill-luck into the place the people even decline presents."[132]

[Footnote 126: Veniaminof, quoted by Dall, op. cit. p. 397 (Aleuts). Bartram, in Trans. American Ethn. Soc. iii. pt. i. 42. Foreman, Philippine Islands, p. 187 (Tagalogs). Hunter, Annals of Rural Bengal, i. 216. Bogle, Narrative of Mission to Tibet, p. 109 sq. Vámbéry, Das Türkenvolk, p. 614 (Turks in Asia Minor). Robinson, Biblical Researches in Palestine, ii. 18 sq.; Burton, Pilgrimage to Al-Madinah & Meccah, i. 36; Blunt, op. cit. ii. 212; Lane, Modern Egyptians, p. 297 (Bedouins). Krauss, Die Südslaven, p. 648.]

[Footnote 127: Baudhâyana, iv. 2. 4.]

[Footnote 128: Âpastamba, ii. 4. 9. 8. Bühler, in Sacred Books of the East, ii. 122, n. ^8]

[Footnote 129: Laws of Manu, iv. 187, 188, 191.]

[Footnote 130: Ibid. iv. 247 sq.]

[Footnote 131: Tobit, iv. 7. Kohler, in Jewish Encyclopedia, i. 436. Cf. St. Matthew, vi. 1 sqq.; Brandt, Mandäische Schriften, pp. 28, 64: "If you give alms do not do it before witnesses." The Mandæans were also forbidden to eat food prepared by a stranger or to take a meal in his company (Brandt, Mandäische Religion, p. 94).]

[Footnote 132: Ratzel, op. cit. iii. 418.]

The duty of hospitality is probably always limited by time, even though, among some peoples, a guest is said to be entertained as long as he pleases to stay.[133] According {595} to Teutonic custom, a guest might tarry only up to the third day.[134] The Anglo-Saxon rule was, "Two nights a guest, the third night one of the household," that is, a slave.[135] A German proverb says, "Den ersten Tag ein Gast, den zweiten eine Last, den dritten stinkt er fast."[136] So, also, the Southern Slavs declare that "a guest and a fish smell on the third day."[137] Burckhardt states that, among the Bedouins, if the stranger intends to prolong his visit after a lapse of three days and four hours from the time of his arrival, it is expected that he should assist his host in domestic matters; should he decline this, "he may remain, but will be censured by all the Arabs of the camp."[138] The Moors say that "the hospitality of the Prophet lasts for three days"; the first night the guest is entertained most lavishly, for then, but only then, he is "the guest of God." The Prophet laid down the following rule: "Whoever believes in God and the day of resurrection, must respect his guest; and the time of being kind to him is one day and one night; and the period of entertaining him is three days; and after that, if he does it longer, he benefits him more; but it is not right for a guest to stay in the house of the host so long as to incommode him."[139] According to Javanese custom, it is a point of honour to supply a stranger with food and accommodation for a day and a night at least.[140] Among the Kalmucks special honour is paid to a stranger for one day only, whereas, if he remains longer, he is treated without ceremonies.[141] Growing familiarity with the stranger naturally tends to dispel the superstitious dread which he inspired at first, and this, combined with the feeling that it is unfair of him to live at his host's expense longer than necessity requires, seems to account for the {596} rapid decline of his extraordinary privileges and for the short duration of his title to hospitable treatment.

[Footnote 133: Veniaminof, quoted by Dall, op. cit. p. 397 (Aleuts). Morgan, League of the Iroquois, p. 328. Bartram, in Trans. American Ethn. Soc. iii. pt. i. 42 (Creeks and Cherokee Indians).]

[Footnote 134: Grimm, Deutsche Rechtsalterthümer, p. 400. Weinhold, Altnordisches Leben, p. 447.]

[Footnote 135: Quoted in Leges Edwardi Confessoris, 23: "Tuua nicte geste þe þirdde nicte agen hine." Cf. Laws of Cnut, ii. 28; Laws of Hlothhære and Eadric, 15; Leges Henrici I. viii. 5.]

[Footnote 136: Weinhold, op. cit. p. 447.]

[Footnote 137: Krauss, op. cit. p. 658.]

[Footnote 138: Burckhardt, Bedouins and Wahábys, p. 101 sq.]

[Footnote 139: Lane, Arabian Society, p. 142 sq.]

[Footnote 140: Crawfurd, op. cit. i. 53.]

[Footnote 141: Bergmann, op. cit. ii. 285.]

Contrary to what is the case with other duties which men owe to their fellow-creatures, in every progressive society we find hospitality on the wane. In the later days of Greece and Rome it almost dwindled into a survival.[142] In the Middle Ages hospitality was extensively practised by high and low; it was enjoined by the tenets of Chivalry,[143] and the poorer people, also, considered it disgraceful to refuse to share their meals with a needy stranger.[144] However, in the reign of Henry IV., Thomas Occlif complains of the decline of hospitality in England; and in the middle of the Elizabethan age, Archbishop Sandys says that "it is come to pass that hospitality itself is waxen a stranger."[145] The reasons for this decline are not difficult to find. Increasing intercourse between different communities or different countries not only makes hospitality an intolerable burden, but leads to the establishment of inns, and thus hospitality becomes superfluous. It habituates the people to the sight of strangers, and, in consequence, deprives the stranger of that mystery which surrounds the lonely wanderer in an isolated district whose inhabitants have little communication with the outside world. And, finally, increase of intercourse gives rise to laws which make an individual protector needless, by placing the stranger under the protection of the State.

[Footnote 142: Becker-Goll, Charikles, ii. 3 sqq. Idem, Gallus, iii. 28 sqq.]

[Footnote 143: Sainte-Palaye, Mémoires sur l'ancienne chevalerie, i. 310.]

[Footnote 144: Wright, Domestic Manners and Sentiments in England during the Middle Ages, p. 329 sqq.]

[Footnote 145: Sandys, Sermons, p. 401.]

Chapter XXV — The Subjection of Children

FROM the modes of conduct which affect the life or bodily welfare of a fellow-creature we shall pass to those relating to personal freedom. In its absolute form the right of liberty may be granted to a perfect being, but has no existence on earth. Ever since the conduct of men became subject to moral censure, the right of doing what they pleased was eo ipso denied them; and in resisting wrong men have not only in various ways interfered with the liberty of their fellow-creatures, but have considered such interference to be their right or even their duty. As to the question what conduct is wrong opinions have differed, and so also as to the proper means of interference; but with neither of these questions are we concerned at present. Nor shall I deal with the subject of political liberty, nor with such restrictions as people lay on their own freedom by contract. I shall only consider facts bearing upon that state of subjection to which large classes of individuals are doomed by custom or law, on account of their birth or other circumstances beyond their own control--the subjection of children, wives, and slaves to their parents, husbands, or masters.

Among the lower races every family has its head, who exercises more or less authority over its members. In some instances where the maternal system of descent prevails, a man's children are in the power of the head of {598} their mother's family or of their maternal uncle;[1] but this is by no means the rule even among peoples who reckon kinship through females only. The facts which have been adduced as examples of the so-called "mother-right" in most instances imply, chiefly, that children are named after their mothers, not after their fathers, and that property and rank descend exclusively in the female line;[2] and this is certainly very different from a denial of paternal rights.[3] Among those Australian tribes which have the system of maternal descent the father is distinctly said to be the master of his children.[4] In Melanesia, where the clan of the children is determined by that of the mother, she is, to quote Dr. Codrington, "in no way the head of the family. The house of the family is the father's, the garden is his, the rule and government are his."[5] As regards the Iroquois--among whom, at the death of a man, his property is divided between his brothers, sisters, and mother's brothers, whilst the property of a woman is transmitted to her children and sisters[6]--we are told that the mother superintends the children, but that the word of the father is law and must be obeyed by the whole household.[7] Among the Mpongwe, who reckon kinship through the mother, the father has by law unrestricted power over his children.[8] And in Madagascar, where children generally follow the condition of the mother,[9] the commands of a father or an ancestor are, among all the tribes, "held as most sacredly binding upon his descendants."[10] Whatever might have been the case in earlier times, it is a fact beyond dispute that among the great bulk of existing savages children are in the power of {599} their father, though he may to some extent have to share his authority with the mother.

[Footnote 1: Westermarck, History of Human Marriage, p. 40 sq. Grosse, Die Formen der Familie, p. 183 sq. Post, Afrikanische Jurisprudenz, i. 51 sq. Marsden, History of Sumatra, p. 262 sq.]

[Footnote 2: Westermarck, op. cit. p. 97.]

[Footnote 3: See von Dargun, Mutterrecht und Vaterrecht, p. 3 sqq.]

[Footnote 4: Curr, The Australian Race, i. 60, 61, 69.]

[Footnote 5: Codrington, Melanesians, p. 34.]

[Footnote 6: Westermarck, op. cit. p. 110.]

[Footnote 7: Seaver, Narrative of the Life of Mrs. Mary Jemison, p. 165.]

[Footnote 8: Hübbe-Schleiden, Ethiopien, pp. 151, 153.]

[Footnote 9: Westermarck, op. cit. p. 103.]

[Footnote 10: Sibree, The Great African Island, p. 326.]

The extent of the father's power, however, is subject to great variations. Among some savage peoples, as we have seen, he may destroy his new-born child; among others infanticide is prohibited by custom. Among some he may sell his children,[11] among others such a right is expressly denied him.[12] Frequently he gives away his daughter in marriage without consulting her wishes; but in other cases her own consent is required, or she is allowed to choose her husband herself.[13] Marriage by purchase does not imply that "a girl is sold by her father in the same manner, and with the same authority, with which he would dispose of a cow."[14] It seems that the paternal authority is always in some degree limited by public opinion. Among the Káfirs of the Hindu-Kush, for instance, though the head of the house is described as an autocrat in his own family, the son, backed by public opinion, may, and does, openly quarrel with and threaten his father in cases when the father's actions have been of a particularly gross character.[15]

[Footnote 11: Schadenberg, 'Negritos der Philippinen,' in Zeitschr. f. Ethnologie, xii. 137. Post, Afrikanische Jurisprudenz, i. 51 sq. (Bogos, Fantis, Dahomans). Paulitschke, Ethnographie Nordost-Afrikas, p. 189. Leuschner, in Steinmetz, Rechtsverhältnisse, p. 16 sq. (Bakwiri). Among the Banaka and Bapuku, in the Cameroons, the father may give his daughter in payment for a debt, but not his son (ibid. p. 31).]

[Footnote 12: Kraft, in Steinmetz, Rechtsverhältnisse, p. 285 (Wapokomo). Rautanen, ibid. p. 329 (Ondonga).]

[Footnote 13: Westermarck, op. cit. p. 215 sqq.]

[Footnote 14: Leslie, Among the Zulus and Amatongas, p. 194. Westermarck, op. cit. ch. x.]

[Footnote 15: Robertson, Káfirs of the Hindu-Kush, p. 474.]

The essence of dependence lies in obedience and submission. To judge from what is said about children's behaviour towards their parents, the authority of the father must among some savages be practically very slight.

The South American Charruas "ne défendent rien à leurs enfans, et ceux-ci n'ont aucun respect pour leurs pères."[16] Among the Brazilian Indians, according to von Martius, respect and obedience on the part of children towards their parents are unknown.[17] {600} Among the Tarahumares of Mexico "the children grow up entirely independent, and if angry a boy may even strike his father."[18] We are told that among the Aleuts parents "scarcely ever enjoy so much authority as to compel their own children to shew them the least obedience, or to go a single step in their service";[19] but this does not seem to hold good of all of their tribes.[20] Of the Kamchadales Steller states that the children insult their parents with all sorts of bad talk, stand in no fear of them, obey them in nothing, and are consequently never commanded to do anything, nor punished.[21]

[Footnote 16: Azara, Voyages dans l'Amérique méridionale, ii. 23.]

[Footnote 17: von Martius, in Jour. Roy. Geo. Soc. ii. 199. Cf. Southey, History of Brazil, iii. 387 (Guaycurus).]

[Footnote 18: Lumholtz, Unknown Mexico, p. 275.]

[Footnote 19: Georgi, Russia, iii. 212.]

[Footnote 20: Veniaminof, quoted by Petroff, 'Report on Alaska,' in Tenth Census of the United States, pp. 155, 158.]

[Footnote 21: Steller, Beschreibung von dem Lande Kamtschatka, p. 353. Cf. Georgi, op. cit. iii. 158.]

Other savages, again, are by no means deficient in filial piety.[22]

[Footnote 22: Im Thurn, Among the Indians of Guiana, p. 213. Schwaner, Borneo, i. 162 (Malays of the Barito River in Borneo). Worcester, Philippine Islands, p. 481. Lewin, Hill Tracts of Chittagong, p. 102 (Kukis). Vámbéry, Türkenvolk, p. 268 (Kara-Kirghiz). Macpherson, Memorials of Service in India, p. 67; Hunter, Annals of Rural Bengal, iii. 72 (Kandhs). Granville and Roth, in Jour. Anthr. Inst. xxviii. 109 (Jekris of the Warri District of the Niger Coast Protectorate). Stuhlmann, Mit Emin Pascha ins Herz von Afrika, p. 801 (Latuka).]

Among various Eskimo[23] and North American Indian tribes[24] children are described as very obedient to their parents. Parry says of the Eskimo of Winter Island and Igloolik that disobedience is scarcely ever known, and that "a word or even a look from a parent is enough."[25] The Potawatomis hold the violation of the advice and directions of their parents one of the most atrocious crimes.[26] In Tonga "filial duty is a most important duty and appears to be universally felt."[27] One of the chief duties which the Ainos taught their children was obedience to parents.[28] Among the Central

Asiatic Turks a son, whilst young, behaves as if he were his father's slave.[29] Among the {601} Ossetes "the authority of the head of the family, whether grandfather, father, stepfather, uncle, or elder brother, is submitted to unconditionally; the young men never sit in his presence, nor speak with a loud voice, nor contradict him."[30] Among the Barea and Kunáma "a father and a mother are respected to the utmost degree. A son never dares to contradict his parents nor oppose their commands, however unjust they be. The mother particularly is much beloved and tenderly cared for at her old age."[31] Among the Mandingoes children "have a great veneration for their parents," and "would feel extreme reluctance to disobey their father."[32] Of the Bachapins, a Bechuana tribe, it is said that **"filial obedience is strenuously enforced."[33] Among the Kafirs "any one who should fail in respect for his father, or show any neglect of him, would draw on himself the contempt of the whole horde; there have been even instances in which want of filial duty has been punished with infamy and banishment."[34]

[Footnote 23: Hall, Arctic Researches, p. 568. Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 566. Murdoch, 'Ethnol. Results of the Point Barrow Expedition,' ibid. ix. 417. Turner, 'Ethnology of the Ungava District,' ibid. xi. 191 (Koksoagmyut).]

[Footnote 24: Turner, in Ann. Rep. Bur. Ethn. xi. 269 (Hudson Bay Indians). Heriot, Travels through the Canadas, p. 530. Harmon, Journal of Voyages, p. 347 (Indians on the east side of the Rocky Mountains).]

[Footnote 25: Parry, Journal of a Second Voyage for the Discovery of a North-West Passage, p. 530.]

[Footnote 26: Keating, Expedition to the Source of St. Peter's River, i. 127.]

[Footnote 27: Mariner, Natives of the Tonga Islands, ii. 179.]

[Footnote 28: Batchelor, Ainu and their Folk-Lore, p. 254.]

[Footnote 29: Vámbéry, op. cit. p. 226.]

[Footnote 30: von Haxthausen, Transcaucasia, p. 414 sq.]

[Footnote 31: Munzinger, Ostafrikanische Studien, p. 474.]

[Footnote 32: Caillié, Travels through Central Africa, i. 352 sq.]

[Footnote 33: Burchell, Travels in the Interior of Southern Africa, ii. 557.]

[Footnote 34: Lichtenstein, Travels in Southern Africa, i. 265. Alberti, De Kaffers aan de Zuidkust van Afrika, p. 116 sqq. Shooter, Kafirs of Natal, p. 98.]

The period during which the paternal authority lasts varies. The daughter is in her father's power till she marries, and as a rule no longer;[35] but in some instances his authority over her continues even after her marriage.[36] This, we have reason to believe, is particularly the case when the husband, on marrying, does not take his wife to his own home, but goes himself to live with her in the house or community of her father.[37] A father's authority over his son frequently comes to an end as the young man {602} grows up. Among the Fuegians a son becomes independent of his parents at a very early age, being allowed to leave their wigwam if he pleases.[38] Among the Togiagamutes, an Eskimo tribe, "the youth, as soon as he is able to build a kaiak and to support himself, no longer observes any family ties but goes where his fancy takes him."[39] Of the Australian natives it is said that sons become independent when they have gone through the ceremonies by which they attain to the status of manhood;[40] among the Bangerang tribe of Victoria "after his twelfth year or so the boy was very little subject to the father, though parental affection always endured."[41] Among the Bedouins "the young man, as soon as it is in his power, emancipates himself from the father's authority, still paying him some deference as long as he continues in his tent; but whenever he can become master of a tent himself (to obtain which is his constant endeavour), he listens to no advice, nor obeys any earthly command but that of his own

will."[42] That a son is emancipated from the father's power by getting full-grown or by leaving the household is probably the rule among the great majority of the lower races.[43] But here again instances to the contrary are not wanting.[44] In Flores the sons even of rich families are dressed like slaves at public feasts, so long as the father lives, as also at his funeral. This, our authority adds, is apparently the external sign of a strict patria potestas, which remains in force till the funeral; until then the son is the father's slave.[45]

[Footnote 35: See, e.g., Leuschner, in Steinmetz, Rechtsverhältnisse, p. 17 (Bakwiri); Fama Mademba, ibid. p. 65 (natives of the Sansanding States); Nicole, ibid. p. 100 (Diakité); Lang, ibid. p. 224 (Washambala); Kraft, ibid. p. 286 (Wapokomo); Marx, ibid. p. 349 (Amahlubi); Sorge, ibid. p. 404 (Nissan Islanders of the Bismarck Archipelago).]

[Footnote 36: See, e.g., Beverley, in Steinmetz, Rechtsverhältnisse, p. 206. What is said, ibid. p. 31, concerning the Banaka and Bapuku does not seem to agree with the statement p. 30, that the husband is the head of his household and the possessor of his wives.]

[Footnote 37: Cf. Mazzarella, La condizione giuridica del marito nella famiglia matriarcale, passim; infra, on the Subjection of Wives. The point in question, like the whole subject of the father's authority among the lower races, requires much further investigation.]

[Footnote 38: Bove, Patagonia, Terra del Fuoco, p. 133.]

[Footnote 39: Petroff, loc. cit. p. 135.]

[Footnote 40: Curr, The Australian Race, i. 61.]

[Footnote 41: Idem, Recollections of Squatting in Victoria, p. 248.]

[Footnote 42: Burckhardt, Notes on the Bedouins and Wahábys, p. 201.]

[Footnote 43: For other instances, see Munzinger, Die Sitten und das Recht der Bogos, p. 36; Post, Afrikanische Jurisprudenz, i. 51 (Somals); Leuschner, in Steinmetz, Rechtsverhältnisse, p. 17 (Bakwiri); Nicole, ibid. p. 100 (Diakité); Beverley, ibid. p. 206 (Wagogo); Marx, ibid. p. 349 (Amahlubi); Sorge, ibid. p. 404 (Nissan Islanders).]

[Footnote 44: Sarbah, Fanti Customary Laws, p. 5. Stuhlmann, op. cit. p. 801 (Latuka). Steinmetz, Rechtsverhältnisse, p. 31 (Banaka and Bapuku). Fama Mademba, ibid. p. 65 (natives of the Sansanding States). Kraft, ibid. p. 286 (Wapokomo), Abercromby, Pre- and Proto-historic Finns, i. 181 (Mordvins).]

[Footnote 45: von Martens, quoted by Nieboer, Slavery as an Industrial System, p. 26, n. 2.]

{603} However, the expiration of the paternal power, in the proper sense of the term, does not necessarily imply the loss of all authority over the children. The father, at all events, retains the rights incident to his superior age, and among many uncivilised peoples these are great. Old age commands respect and gives authority.

Among the Fuegians "in each family the word of an old man is accepted as law by the young people; they never dispute his authority."[46] The Patagonians "pay respect to old people, taking great care of them."[47] The Caribs "portent un grand respect aus vieillards."[48] The same is the case among many of the North American Indians.[49] Among the Naudowessies, whilst the advice of a father will seldom meet with any extraordinary attention from the young Indians, "they will tremble before a grandfather, and submit to his injunctions with the utmost alacrity. The words of the ancient part of their community are esteemed by the young as oracles."[50] Among the Eskimo about Behring Strait the old men are listened to with respect;[51] and among the Point Barrow Eskimo "respect for the opinions of elders is so great that the people may be said to be practically under what is called 'simple elder rule.'"[52] Among the Veddahs

of Ceylon the oldest man "is regarded with a sort of patriarchal respect when accident or occasion has brought together any others than the members of one family."[53] Among the Jakuts an old man is implicitly obeyed as a father of a family; "a young man ever gives his opinion with the greatest respect and caution; and even when asked, he submits his ideas to the judgment of the old."[54] Regard for the aged is found among the Ainos,[55] Kurilians,[56] Mongols,[57] Ossetes,[58] {604} Kukis,[59] Nicobarese,[60] Negritos of the Philippine Islands,[61] Papuans of New Guinea[62] New Caledonians,[63] Caroline Islanders,[64] Tonga Islanders,[65] and, in a remarkable degree, among the Australian aborigines.[66] "Among the Kurnai," says Mr. Howitt, "age meets with great reverence. . . . It may be stated as a general rule that authority attaches to age. It follows from this that there is no hereditary authority and no hereditary chieftain. The authority which is inherent in age attaches not alone to the man, but also to the woman." And he justly adds that this principle regulating authority seems to be, not peculiar to the Kurnai, but general to the whole Australian race.[67]

[Footnote 46: King and Fitzroy, Voyages of the "Adventure" and "Beagle," ii. 179.]

[Footnote 47: Ibid. ii. 172.]

[Footnote 48: de Poircy-de Rochefort, Histoire des Isles Antilles, p. 461.]

[Footnote 49: Buchanan, North American Indians, p. 7. Prescott, in Schoolcraft, Indian Tribes of the United States, ii. 196.]

[Footnote 50: Carver, Travels through the Interior Parts of North America, p. 243.]

[Footnote 51: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 304.]

[Footnote 52: Murdoch, in Ann. Rep. Bur. Ethn. ix. 427.]

[Footnote 53: Hartshorne, 'Weddas,' in Indian Antiquary, viii. 320. Cf. Deschamps, Carnet d'un voyageur, p. 395.]

[Footnote 54: Sauer, Billings' Expedition to the Northern Parts of Russia, p. 124.]

[Footnote 55: Batchelor, Ainu and their Folk-Lore, p. 254. von Siebold, Ethnol. Studien über die Aino auf der Insel Yesso, p. 25.]

[Footnote 56: Krasheninnikoff, History of Kamschatka, p. 236.]

[Footnote 57: Prejevalsky, Mongolia, i. 71.]

[Footnote 58: von Haxthausen, Transcaucasia, p. 414. Strabo (xi. 4. 8) reports the same of the Albanians of the Eastern Caucasus.]

[Footnote 59: Lewin, Hill Tracts of Chittagong, p. 102.]

[Footnote 60: Kloss, In the Andamans and Nicobars, p. 243.]

[Footnote 61: Schadenberg, in Zeitschr. f. Ethnol. xii. 135. Earl, Papuans, p. 133. Foreman, Philippine Islands, p. 209.]

[Footnote 62: Earl, op. cit. p. 81.]

[Footnote 63: Atkinson, in Folk-Lore, xiv. 248.]

[Footnote 64: Christian, Caroline Islands, p. 72. Angas, Polynesia, p. 382.]

[Footnote 65: Mariner, op. cit. ii. 155.]

[Footnote 66: Roth, North-West-Central Queensland Aborigines, p. 141. Fraser, Aborigines of New South Wales, p. 5. Schuermann, 'Aboriginal Tribes of Port Lincoln,' in Woods, Native Tribes of South Australia, p. 226. Hale U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 113. Mitchell, Expeditions into the Interior of Eastern Australia, ii. 346. Brough Smyth, Aborigines of Victoria, i. 137 sq. See also Steinmetz, Ethnol. Studien zur Entwicklungsgeschichte der Strafe, ii. 26 sqq.]

[Footnote 67: Fison and Howitt, Kamilaroi and Kurnai, p. 211 sq.]

Turning to African peoples: among the Danakil the aged of both sexes, but especially the males, are held in great veneration, and the old men are consulted on every occasion of any importance.[68] "The real religion of the Barea and Kunáma," says Munzinger,

"consists in an extraordinary reverence for old age. Among these peoples only the old, the weak, or the blind command respect."[69] The E[(w]e-speaking peoples on the Slave Coast have a proverb, "Respect the elders, they are our fathers."[70] Winterbottom doubts whether the ancient Lacedæmonians paid greater regard to old age than do the natives of Sierra Leone.[71] Mr. Leighton Wilson says of the Mpongwe:--"There is no part of the world where respect and veneration for age is carried to a greater length than among this people. . . . All the younger members of society are early trained to show the utmost deference to age. They must never come into the presence of aged persons or pass by their dwellings without taking off their hats and assuming a crouching gait. When seated in their presence {605} it must always be at a 'respectful distance'--a distance proportioned to the difference in their ages and position in society. If they come near enough to hand an aged man a lighted pipe or a glass of water, the bearer must always fall upon one knee. Aged persons must always be addressed as 'father' (rera) or 'mother' (ngwe). Any disrespectful deportment or reproachful language toward such persons is regarded as a misdemeanour of no ordinary aggravation. A youthful person carefully avoids communicating any disagreeable intelligence to such persons, and almost always addresses them in terms of flattery and adulation."[72] Among the For tribe of Central Africa "great consideration is shown towards women when they are old, as well as towards aged men."[73] Regard for old age is, in fact, a very general trait of the African character.[74]

[Footnote 68: Scaramucci and Giglioli, 'Notizie sui Danakil,' in Archivio per l'antropologia e la etnologia, xiv. 36.]

[Footnote 69: Munzinger, Ostafrikanische Studien, p. 474.]

[Footnote 70: Ellis, E[(w]e-speaking Peoples, p. 268.]

[Footnote 71: Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 211.]

[Footnote 72: Wilson, Western Africa, p. 392 sq.]

[Footnote 73: Felkin, 'Notes on the For Tribe of Central Africa,' in Proceed. Roy. Soc. Edinburgh, xiii. 224 sq.]

[Footnote 74: Monrad, Bidrag til en Skildring af Guinea-Kysten, p. 37 (Negroes of Accra). Granville and Roth, in Jour. Anthr. Inst. xxviii. 109 (Jekris). Kingsley, Travels in West Africa, p. 460 (Calabar tribes). Caillié, op. cit. i. 352 (Mandingoes). Stuhlmann, op. cit. pp. 789, 801 (Latuka). Casati, Ten Years in Equatoria, i. 186. Chanler, Through Jungle and Desert, p. 246 (Embe). New, Life, Wanderings, and Labours in Eastern Africa, p. 101 (Wanika). Johnston, Kilima-njaro Expedition, p. 419 (Masai). Arnot, Garenganze, p. 78, note. Lichtenstein, op. cit. i. 265; Alberti, op. cit. p. 118; Shooter, op. cit. p. 98 (Kafirs). Schinz, Deutsch-Südwest-Afrika, p. 82 (Hottentots).]

Not only old age, but superiority of age, gives a certain amount of power.

The Australian natives have a well-regulated order of precedence and authority. "When the individual reaches the full development of puberty, he or she undergoes a ceremony which entitles him or her on its successful completion to a certain social rank or status in the community. As life progresses, other and higher ranks are progressively attainable for each sex, until the highest and most honourable grade, that enjoyed by an old man, or an old woman, is reached."[75] All North American Indians "hold that superior age gives authority; and every person is taught from childhood to obey his superiors and to rule over his inferiors. The superiors are those of greater age; the inferiors, those who are younger."[76] The same influence of age makes itself felt in the relations between elder {606} and younger brothers and sisters.[77] Navaho myths indicate that "even among twins, the younger must defer to the elder."[78] The eldest

brother comes next to the father in authority, and, in case of his death, succeeds him as the head of the family. The Aleuts described by Father Veniaminof maintained that "if one had no father he should respect his oldest brother and serve him as he would a father."[79] Among the Kalmucks "the elder brother is the despot of the younger ones, and is even allowed to punish them."[80] In Madagascar so great respect is paid to seniority "that if two slaves who are brothers are going a journey, any burden must be carried by the younger one, so far at least as his strength will allow."[81] In Tonga custom decrees "that all persons shall be in the service of their older and superior relations, if those relations think proper to employ them"; and every chief shows the greatest regard for his eldest sister.[82] Among the Hottentots "the highest oath a man could take and still takes, was to swear by his eldest sister, and if he should abuse this name, the sister will walk into his flock and take his finest cows and sheep, and no law could prevent her from doing so."[83] Among the Point Barrow Eskimo, again, "seniority gives precedence when there are several women in one hut, and the sway of the elder in the direction of everything connected with her duties seems never disputed."[84]

[Footnote 75: Roth, op. cit. p. 169. Cf. ibid. p. 65 sq.; Eyre, Journals of Expeditions of Discovery into Central Australia, ii. 315.]

[Footnote 76: Powell, 'Sociology,' in American Anthropologist, N. S. i. 700. Cf. Idem, in Ann. Rep. Bur. Ethn. iii. p. lviii.]

[Footnote 77: Nachtigal, Sahara und Sudan, i. 450 (Tedâ). Chavanne, Die Sahara, p. 396 (Arabs of the Sahara). Paulitschke, op. cit. p. 192 (Gallas). von Haxthausen, Transcaucasia, p. 415 (Ossetes). Bach, 'Die Wotjaken,' in Acta Societatis Scientiarum Fennicæ, xii. 489 (Votyaks). Sumner, in Jour. Anthr. Inst. xxxi. 75 (Jakuts). Batchelor, Ainu and their Folk-Lore, p. 254.]

[Footnote 78: Matthews, 'Study of Ethics among the Lower Races,' in Journal of American Folk-Lore, xii. 9.]

[Footnote 79: Veniaminof, quoted by Petroff, loc. cit. p. 155.]

[Footnote 80: Bergmann, Nomadische Streifereien unter den Kalmüken, ii. 305.]

[Footnote 81: Sibree, op. cit. p. 182.]

[Footnote 82: Mariner, op. cit. i. 226; ii. 155.]

[Footnote 83: Hahn, The Supreme Being of the Khoi-Khoi, p. 21.]

[Footnote 84: Simpson, quoted by Murdoch, in Ann. Rep. Bur. Ethn. ix. 427.]

It must be added, however, that the reverence for old age may cease when the grey-head gets so old as to be an incumbrance to those around him;[85] and imbecility may put an end to the father's authority over his family.[86] We have previously noticed that parents worn out with age {607} and disease are among some peoples killed or abandoned by their own children.[87]

[Footnote 85: Curr, Squatting in Victoria, pp. 254. 245, 265 sqq.; Eyre, op. cit. ii. 316 (Australian aborigines). Sumner, in Jour. Anthr. Inst. xxxi. 76 (Jakuts). Nansen, Eskimo Life, p. 177 sq. (Greenlanders). Supra, p. 534.]

[Footnote 86: Steinmetz, Rechtsverhältnisse, p. 31 (Banaka and Bapuku).]

[Footnote 87: Supra, p. 386 sq.]

When passing from the savage and barbarous races of men to those next above them in civilisation, we find paternal, or parental, authority and filial reverence at their height. In ancient Mexico "necessitous parents were allowed to dispose of any one of their children, in order to relieve their poverty," whereas a master could not sell a well-behaved slave without his consent.[88] A youth was seldom permitted to choose a wife for himself, but was expected to abide by the selection of his parents;[89] and "children

were bred to stand so much in awe of their parents that even when grown up and married they hardly durst speak before them."[90] So, too, in Nicaragua a father might sell his children as slaves in cases of great necessity,[91] and matches were in the larger part of the country arranged by the parents.[92] In ancient Peru disobedient children were publicly chastised by their own parents;[93] and Inca Pachacutec confirmed the law that sons should obey and serve their fathers until they reached the age of twenty-five, and that none should marry without the consent of the parents and of the parents of the girl.[94]

[Footnote 88: Clavigero, History of Mexico, i. 360.]

[Footnote 89: Westermarck, op. cit. p. 226.]

[Footnote 90: Clavigero, op. cit. i. 331.]

[Footnote 91: Squier, Nicaragua, p. 345.]

[Footnote 92: Bancroft, Native Races of the Pacific States, ii. 667.]

[Footnote 93: Herrera, General History of the West Indies, iv. 339.]

[Footnote 94: Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, ii. 207.]

In China a house-father reigns almost supreme in his family, and, according to ancient Chinese ideas, not even marriage withdraws the son from his power.[95] The law, it is true, prohibits him from killing[96] or selling[97] his children; but it is only in supreme cases that the State interferes between the head of a household and his family belongings, and the sale of children is practically allowed.[98] No person, of whatever age, can act for himself in matrimonial {608} matters during the lifetime or in the neighbourhood of his parents or near senior kinsfolk.[99] The law provides that disobedience to the instructions and commands of parents or paternal grandparents shall be punished with one hundred blows,[100] and that a still greater punishment shall be inflicted on a son accusing his father or mother and on a grandson accusing his paternal grandparent, even though the accusation prove true.[101] Indeed, from earliest youth the Chinese lad is imbued with such respect for his parents that it becomes at last a religious sentiment, and forms, as he gets older, the basis of his only creed--the worship of ancestors.[102] Confucianism itself has been briefly described as "an expansion of the root idea of filial piety."[103] The Master said:--"filial piety is the root of all virtue, and the stem out of which grows all moral teaching. . . . Filial piety is the constant method of Heaven, the righteousness of Earth, and the practical duty of Man. . . . Of all the actions of man there is none greater than filial piety. In filial piety there is nothing greater than the reverential awe of one's father. In the reverential awe shown to one's father there is nothing greater than the making him the correlate of Heaven."[104] But the idea that filial piety is the fundamental duty of man was not originated by Confucius, it had obtained a firm hold of the national mind long before his time.[105] It also prevails in Corea[106] and Japan,[107] where the authority of a house-father is, or, in the case of Japan, until lately has been,[108] as great as in China. "The Japanese maiden, as pure as the purest Christian virgin, will at the command of her father enter the brothel to-morrow, and prostitute herself for life. Not a murmur escapes her lips {609} as she thus filially obeys."[109] In Corea, whilst the first thing inculcated in a child's mind is respect for his father, little respect is felt for the mother; the child soon learns that a mother's authority is next to nothing.[110]

[Footnote 95: de Groot, Religious System of China (vol. ii. book) i. 507.]

[Footnote 96: Supra, p. 393.]

[Footnote 97: Ta Tsing Leu Lee, sec. cclxxv. p. 292.]

[Footnote 98: Douglas, Society in China, p. 78. Staunton, in his translation of Ta Tsing Leu Lee, p. 292 n. * Doolittle, Social Life of the Chinese, ii. 209.]

[Footnote 99: Medhurst, 'Marriage, Affinity, and Inheritance in China,' in Trans. Roy. Asiatic Soc. China Branch, iv. 11.]

[Footnote 100: Ta Tsing Leu Lee, sec. cccxxxviii. p. 374.]

[Footnote 101: Ibid. sec. cccxxxvii. p. 371 sq.]

[Footnote 102: Wells Williams, Middle Kingdom, i. 646.]

[Footnote 103: Griffis, Corea, p. 328 sq.]

[Footnote 104: Hsiáo King, 1, 7, 9 (Sacred Books of the East, iii. 446, 473, 476).]

[Footnote 105: Douglas, Confucianism and Taouism, p. 118.]

[Footnote 106: Griffis, Corea, pp. 236, 259.]

[Footnote 107: Rein, Japan, p. 427. Griffis, Religions of Japan, p. 122 sq.]

[Footnote 108: Griffis, Religions of Japan, p. 148.]

[Footnote 109: Idem, Mikado's Empire, p. 555. Cf. Rein, Japan, p. 427.]

[Footnote 110: Griffis, Corea, p. 259.]

It is the general opinion of Assyriologists that in ancient Chaldæa, at least in the early period of its history, the father had absolute authority over all the members of his household.[111] Anything undertaken by them without his consent was held invalid in the eyes of the law,[112] and a disobedient son might be sold as a slave.[113] According to the Laws of [Hv]ammurabi, a man might give his son or daughter as a hostage for debts;[114] but he could not disown his children at discretion. It is said that if he wishes to cut off his son he must declare his intention to the judge, whereupon "the judge shall enquire into his reasons, and if the son has not committed a heavy crime which cuts off from sonship, the father shall not cut off his son from sonship."[115] Professor Hommel believes that the mother's authority over her children was as great as the father's,[116] whereas Meissner concludes that it was less, from the fact that her children are not seldom found to be at law with her in matters of succession.[117] Among the Hebrews a father might sell his child to relieve his own distress, or offer it to a creditor as a pledge.[118] He had not only unlimited power to marry his daughters, but even to sell them as maids into concubinage, though not to a foreign people.[119] He also chose wives for his sons;[120] and there is no indication that the subjection of sons ceased after a certain age.[121] How important were the duties of the child to the {610} parents is shown in the primitive typical relation of Isaac to Abraham, and may be at once learned from the placing of the law on the subject among the Ten Commandments, and from its position there in the immediate proximity to the commands relating to the duties of man towards God.[122] Philo Judæus observes that it occupies this position because parents are something between divine and human nature, partaking of both--of human nature inasmuch as it is plain that they have been born and that they will die, and of divine nature because they have engendered other beings, and have brought what did not exist into existence. What God is to the world, that parents are to their children; they are "the visible gods."[123] In Muhammedan countries parents have practically great authority over their children. Should a father exceed the bounds of moderation or justice in chastising his son, the idea of prosecuting him would hardly occur to anyone, the injured party being prevented by public opinion, if not by habit and feeling, from appealing against his own father.[124] Disobedience to parents is considered by Moslems as one of the greatest of sins, and is put, in point of heinousness, on a par with idolatry, murder, and desertion in an expedition against infidels. "An undutiful child," says Mr. Lane, "is very seldom heard of among the Egyptians or the Arabs in general. . . . Sons scarcely sit or eat or smoke in the presence of the father, unless bidden

to do so."[125] In Morocco it is curious to see big, grown-up sons sneak away as soon as they hear their father's steps, or to notice their absolute reticence in his presence. Children's deference for their mothers is less formal, but almost equally great.[126]

[Footnote 111: Oppert, in Göttingische gelehrte Anzeigen, 1879, p. 1604 sqq. Hommel, Die semitischen Völker und Sprachen, i. 416. Meissner, Beiträge zum altbabylonischen Privatrecht, p. 14 sq.]

[Footnote 112: Maspero, Dawn of Civilization, p. 134.]

[Footnote 113: Hommel, op. cit. i. 416. Meissner, op. cit. p. 1.]

[Footnote 114: Laws of [Hv]ammurabi, 117.]

[Footnote 115: Ibid. 168.]

[Footnote 116: Hommel, op. cit. i. 416.]

[Footnote 117: Meissner, op. cit. p. 15.]

[Footnote 118: Ewald, Antiquities of Israel, p. 190. Wellhausen, Prolegomena to the History of Israel, p. 465.]

[Footnote 119: Exodus, xxi. 7 sq.]

[Footnote 120: Genesis, xxiv. 4; xxviii. 1 sq. Exodus, xxxiv. 16. Deuteronomy, vii, 3.]

[Footnote 121: Cf. Michaelis, Commentaries on the Laws of Moses, i. 444.]

[Footnote 122: Cf. Ewald, op. cit. p. 188; Gans, Das Erbrecht in weltgeschichtlicher Entwickelung, i. 134.]

[Footnote 123: Philo Judæus, Opera, i. 759 sqq.]

[Footnote 124: Urquhart, Spirit of the East, ii. 440 sq.]

[Footnote 125: Lane, Manners and Customs of the Modern Egyptians, p. 70. Cf. Pool, Studies in Mohammedanism, p. 171.]

[Footnote 126: Cf. Urquhart, op. cit. ii. 265 sq.]

Among the ancient Romans, in relation to the house-father, "all in the household were destitute of legal rights--the wife and the child no less than the bullock or the {611} slave."[127] The father not only had judicial authority over his children--implying the right of inflicting capital punishment on them[128]--but he could sell them at discretion.[129] Even the grown-up son and his children were subject to the house-father's authority,[130] and in marriage without conventio in manum a daughter remained in the power of her father or tutor even after marriage.[131] Filial piety, including reverence not only for the father but for the mother also, was regarded as a most sacred duty.[132] To the ancient Roman the parents were hardly less sacred beings than the gods.[133]

[Footnote 127: Mommsen, History of Rome, i. 74.]

[Footnote 128: Supra, p. 393.]

[Footnote 129: Dionysius of Halicarnassus, Antiquitates Romanæ, ii. 27.]

[Footnote 130: Institutiones, i. 9. 3.]

[Footnote 131: Westermarck, op. cit. p. 230.]

[Footnote 132: Leist, Græco-italische Rechtsgeschichte, p. 11 sqq. Idem, Alt-arisches Jus Gentium, p. 185.]

[Footnote 133: Valerius Maximus, i. 1. 13: "Pari vindicta parentum ac deorum violatio expianda est." Servius, In Virgilii Georgicon, ii. 473: "Sacra deorum sancta apud illos sunt, sancti etiam parentes."]

It has been suggested by Sir Henry Maine and others that the patria potestas of the Romans was a survival of the paternal authority which existed among the primitive Aryans.[134] But no clear evidence of the general prevalence of such unlimited authority among other so-called Aryan peoples has been adduced. The ancient jurist observed, "The power which we have over our children is peculiar to Roman citizens;

for there are no other nations possessing the same power over their children as we have over ours."[135] That among the Greeks and Teutons the father had the right to expose his children in their infancy, to sell them, in case of urgency, as long as they remained in his power,[136] and to give away his daughters in marriage,[137] does not imply the possession of a sovereignty like that which the Roman house-father exercised over his descendants of all ages. In Greece[138] and among all the Teutonic {612} nations[139] the father's authority over his sons came to an end when the son grew up and left his home. But here again we must distinguish between the legal rights of parents and the duties of children. There are numerous passages in the Greek writings which put filial piety on a par with the duties towards the gods.[140]

[Footnote 134: Maine, Ancient Law, p. 138. Fustel de Coulanges, La cité antique, p. 96 sqq. Hearn, Aryan Household, p. 92.]

[Footnote 135: Institutiones, i. 9. 2.]

[Footnote 136: Leist, Græco-italische Rechtsgeschichte, p. 60 sq. Grimm, Deutsche Rechtsalterthümer, p. 461 sq. Brunner, Deutsche Rechtsgeschichte, i. 76. In France the parents' right of selling their children gradually disappeared under the kings of the third race (de Laurière, in Loysel, Institutes coutumières, i. 82).]

[Footnote 137: Westermarck, op. cit. p. 232 sqq.]

[Footnote 138: Leist, Græco-italische Rechtsgeschichte, p. 62 sq. Cauvet, 'De l'organisation de la famille à Athènes,' in Revue de législation, xxiv. 138.]

[Footnote 139: Grimm, Deutsche Rechtsalterthümer, p. 462. Brunner, Deutsche Rechtsgeschichte, i. 75 sq.]

[Footnote 140: Schmidt, Ethik der alten Griechen, ii. 141 sq.]

Nor is there any evidence that the patria potestas of the Roman type ever prevailed in full in India, great though the father's or parent's authority has been, and still is, among the Hindus.[141] Among the Vedic people the father seems to have been the head of the family only as long as he was able to be its protector and maintainer,[142] decrepit parents being even allowed to die of starvation.[143] According to some sacred books from a later age, the father and the mother have power to give, to sell, and to abandon their son, because "man formed of uterine blood and virile seed proceeds from his mother and his father as an effect from its cause"; however, an only son may not be given or received in adoption, nor is a woman allowed to give or receive a son except with her husband's permission.[144] In other books it is said that "the gift or acceptance of a child and the right to sell or buy a child are not recognised,"[145] and that he who casts off his son--unless the son be guilty of a crime causing loss of caste--shall be fined by the king six hundred panas.[146] But whatever be the legal rights of a parent, filial piety is a most stringent duty in the child.[147] A man has three Atigurus, or specially venerable superiors: his father, mother, and spiritual teacher. To them he must always pay obedience. He must do what is agreeable and serviceable to them. He must never do anything without their leave.[148] "By honouring these three all that ought to be done by man is accomplished; {613} that is clearly the highest duty, every other act is a subordinate duty."[149] Similar feelings prevail among the modern Hindus.[150] Sir W. H. Sleeman observes, "There is no part of the world, I believe, where parents are so much reverenced by their sons as they are in India in all classes of society." The duty of daughters is from the day of their marriage transferred entirely to their husbands and their husbands' parents, but between the son and his parents the reciprocity of rights and duties which have bound together the parent and child from infancy follows them to the grave. The sons are often actually tyrannised over by their mothers.[151]

[Footnote 141: Westermarck, op. cit. p. 231 sq.]

[Footnote 142: Rig-Veda, i. 70. 5.]

[Footnote 143: Zimmer, Altindisches Leben, p. 328.]

[Footnote 144: Vasishtha, xv. 1 sqq. Baudhâyana Parisishta, vii. 5. 2 sqq.]

[Footnote 145: Âpastamba, ii. 6. 13. 11.]

[Footnote 146: Laws of Manu, viii. 389. Cf. ibid. xi. 60.]

[Footnote 147: Âpastamba, i. 4. 14. 6. Laws of Manu, ii. 225 sqq.; iv. 162; &c.]

[Footnote 148: Institutes of Vishnu, ch. 31.]

[Footnote 149: Laws of Manu, ii. 237.]

[Footnote 150: Nelson, View of the Hind[=u] Law, p. 56 sq. Ghani, 'Social Life and Morality in India,' in International Journal of Ethics, vii. 312.]

[Footnote 151: Sleeman, Rambles and Recollections of an Indian Official, i. 330 sqq.]

According to ancient Russian laws, fathers had great power over their children;[152] but it is not probable that a son could be sold as a slave.[153] Baron von Haxthausen, who wrote before the Emancipation in 1861, says that "the patriarchal government, feelings, and organisation are in full activity in the life, manners, and customs of the Great Russians. The same unlimited authority which the father exercises over all his children is possessed by the mother over her daughters."[154] It was a common custom for a father to marry his young sons to full-grown women; and in Poland also, according to Nestor, a father used to select a bride for his son.[155] According to Professor Bogi[vs]i['c], the power of the father is not so great among the Southern Slavs as among the Russians;[156] but a son is not permitted to make a proposal of marriage to a girl against the will of his parents, whilst a daughter, of course, enjoys still less freedom of disposing of her own hand.[157] According to a Slavonian maxim, "a father is like an earthly god to his son."[158]

[Footnote 152: Accurse, quoted by de Laurière, in Loysel, op. cit. i. 82.]

[Footnote 153: Macieiowski, Slavische Rechtsgeschichte, iv. 404.]

[Footnote 154: von Haxthausen, Russian Empire, ii. 229 sq.]

[Footnote 155: Westermarck, op. cit. p. 234. Macieiowski, op. cit. ii. 189.]

[Footnote 156: Maine, Early Law and Custom, p. 244, note.]

[Footnote 157: Krauss, Sitte und Brauch der Südslaven, pp. 314, 320.]

[Footnote 158: Maine, Early Law and Custom, p. 243.]

{614} Among this group of peoples, also, we meet with reverence for the elder brother, for persons of a superior age generally, and, especially, for the aged.

Obedience on the part of the younger to the elder brother is strongly inculcated by Confucianism and Taouism.[159] In ancient China the eldest son of the principal wife held so high a position that even his own father had to mourn for him at his death in the selfsame degree in which the son was bound to mourn for his father;[160] and in some provinces of Japan the elder brother or sister did not even go to the funeral of the younger.[161] In Babylonia the elder brother occupied a privileged position in the family in relation to the younger.[162] In one of the Mandæan writings it is said, "Honour your father and your mother and your elder brother as your father."[163] According to the sacred books of the Hindus, "the feet of elder brothers and sisters must be embraced, according to the order of their seniority";[164] "towards a sister of one's father and of one's mother, and towards one's own elder sister, one must behave as towards one's mother," though the mother is more venerable than they.[165]

[Footnote 159: Douglas, Confucianism and Taouism, pp. 123, 124, 259. Griffis, Religions of Japan, p. 125 sq.]

[Footnote 160: de Groot, op. cit. (vol. ii. book) i. 509.]

[Footnote 161: Griffis, Religions of Japan, p. 127.]

[Footnote 162: Hommel, op. cit. i. 417 sq.]

[Footnote 163: Brandt, Mandäische Schriften, p. 64.]

[Footnote 164: Âpastamba, i. 4. 14. 9. Cf. ibid. i. 4. 14. 14; Laws of Manu, ii. 225.]

[Footnote 165: Laws of Manu, ii. 133.]

Again, in ancient Mexico respect was paid not only by children to their parents but by the young to the old.[166] Among the Yucatans "the young reverenced much the aged."[167] In China persons of the lowest class who have attained to an unusual age have not infrequently been distinguished by the Emperor,[168] and even criminals with grey hairs are treated with regard.[169] "Respect for elders," says Mencius, "is the working of righteousness";[170] and it is said in Thâi Shang that the good man "will respect the old and cherish the young."[171] A Japanese proverb runs, "Regard an old man as thy father."[172] We read in Leviticus, "Thou shalt rise up before the hoary head, and honour the face of the old man, and fear thy God."[173] Veneration {615} for the aged is emphatically inculcated by Islam.[174] In the sacred books of India it is represented as a virtue.[175] Herodotus states that the Egyptians resembled the Lacedæmonians in the reverence the young men paid to their elders.[176] Plato says in his 'Laws' that everybody ought to consider that the elder has the precedence of the younger in honour, both among the gods as also among men who would live in security and happiness; wherefore it is a foolish thing and hateful to the gods to see an elder man assaulted by a younger in the city. Everybody ought to regard a person who is twenty years older than himself, whether male or female, as his father or mother, and to abstain from laying hands on any such person "out of reverence to the gods who preside over birth."[177] Regard for old age lies behind such words as presbyter and the Anglo-Saxon ealdormonn; and all travellers among the Southern Slavs have noticed their extraordinary respect for old people.[178]

[Footnote 166: Clavigero, op. cit. i. 8l. Cf. ibid. i. 332.]

[Footnote 167: Landa, Relacion de las cosas de Yucatan, p. 178.]

[Footnote 168: Davis, China, ii. 97.]

[Footnote 169: Wells Williams, Middle Empire, i. 805.]

[Footnote 170: Mencius, vii. 1. 15. 3.]

[Footnote 171: Thâi Shang, 3.]

[Footnote 172: Griffis, Mikado's Empire, p. 505.]

[Footnote 173: Leviticus, xix. 32. Cf. Job, xxxii. 1; Proverbs, xvi. 31, and xx. 29.]

[Footnote 174: Ameer Ali, Ethics of Islâm, p. 27 sq.]

[Footnote 175: Âpastamba, i. 5. 15. Laws of Manu, ii. 121. Dhammapada, 109.]

[Footnote 176: Herodotus, ii. 80.]

[Footnote 177: Plato, Leges, ix. 879. Cf. Idem, Respublica, v. 465.]

[Footnote 178: Maine, Early Law and Custom, p. 243.]

In Europe the paternal authority of the archaic type which we have just considered has gradually yielded to a system under which the father has been divested of the most essential rights he formerly possessed over his children--a system the inmost drift of which is expressed in the words of the French Encyclopedist, "Le pouvoir paternel est plutôt un devoir qu'un pouvoir."[179] Already in pagan times the Roman patria potestas became a shadow of what it had been. Under the Republic the abuses of paternal authority were checked by the censors, and in later times the Emperors reduced the father's power within comparatively narrow limits. Not only was the life of the child practically as sacred as that of the parent long before Christianity became the religion of Rome,[180] but Alexander Severus ordained that heavy punishments should be inflicted on members of a family by the magistrate only. Diocletian and Maximilian took away

the power of selling freeborn children as slaves. The father's privilege of {616} dictating marriage for his sons declined into a conditional veto; and it seems that the daughters also, at length, gained a certain amount of freedom in the choice of a husband.[181]

[Footnote 179: Encyclopédie méthodique, Jurisprudence, vii. 77, art. Puissance paternelle.]

[Footnote 180: Supra, p. 393 sq.]

[Footnote 181: Westermarck, op. cit. p. 236.]

The new religion was anything but unfavourable to this process of emancipation. The ethical precept of filial piety was changed by Christ. His church was a militant church. He had come not to send peace but a sword, "to set a man at variance against his father, and the daughter against her mother."[182] Being chiefly addressed to the young, the new teaching naturally caused much disorder in families. Fathers disinherited their converted sons,[183] and children thought that they owed no duty to their parents where such a duty was opposed to the interests of their souls. According to Gregory the Great, we ought to ignore our parents, hating them and flying from them when they are an obstacle to us in the way of the Lord;[184] and this became the accepted theory of the Church.[185] Nay, it was not only in similar cases of conflict that Christianity exercised a weakening influence on family ties which had previously been regarded with religious veneration. In all circumstances the relationship between child and parent was put in the shade by the relationship between man and God. "Call no man your father upon the earth: for one is your Father, which is in Heaven."[186] "If any man come to me, and hate not his father, and mother, and wife, and children, and brethren, and sisters, yea, and his own life also, he cannot be my disciple."[187] At the same time the fifth commandment, though modified by considerations which would never have occurred to the mind of an orthodox Jew, was left formally intact. Obedience to parents was, in fact, repeatedly enjoined by St. Paul as a Christian duty.[188] It was regarded as a prerequisite {617} for the veneration of God. "If we do not honour and reverence our parents, whom we ought to love next to God, and whom we have almost continually before our eyes, how can we honour or reverence God, the supreme and best of parents, whom we cannot see?"[189]

[Footnote 182: St. Matthew, x. 34 sq. St. Luke, xii. 51 sqq.]

[Footnote 183: Tertullian, Apologeticus, 3 (Migne, Patrologiæ cursus, i. 280 sq.).]

[Footnote 184: St. Gregory the Great, Homiliæ in Evangelia, xxxvii. 2 (Migne, op. cit. lxxvi. 1275).]

[Footnote 185: Thomas Aquinas, Summa theologica, ii.-ii. 101. 4.]

[Footnote 186: St. Matthew, xxiii. 9.]

[Footnote 187: St. Luke, xiv. 26.]

[Footnote 188: Ephesians, vi. 1 sqq. Colossians, iii. 20.]

[Footnote 189: Catechism of the Council of Trent, iii. 5. 1.]

Ancient, deep-rooted ideas die slowly. Whilst among Teutonic peoples the grown-up child is recognised both by custom and law as independent of the parents, and the parental authority over minors is regarded merely in the light of guardianship,[190] the Roman notions of paternal rights and filial duties have to some extent survived in Latin countries, not only through the Middle Ages, but up to the present time. "Above the majesty of the feudal baron," says M. Bernard, "that of the paternal power was held still more sacred and inviolable. However powerful the son might be, he would not have dared to outrage his father, whose authority was in his eyes always confounded with the sovereignty of command."[191] Du Vair remarks, "Nous devons tenir nos pères comme des dieux en terre."[192] Bodin wrote, in the later part of the sixteenth century,

that, though the monarch commands his subjects, the master his disciples, the captain his soldiers, there is none to whom nature has given any command except the father, "who is the true image of the great sovereign God, universal father of all things."[193] According to edicts of Henry III., Louis XIII., and Louis XIV., sons could not marry before the age of thirty, nor daughters before the age of twenty-five, without the consent of the father and mother, on pain of being disinherited.[194] And even now in France considerable power is accorded to parents, not only by custom and public sentiment, but by law. A child cannot quit the paternal residence without the permission of the father before the age of twenty-one, except for enrolment {618} in the army.[195] For grave misconduct by his children the father has strong means of correction.[196] A son under twenty-five and a daughter under twenty-one could not until 1907 marry without parental consent;[197] and even when a man had attained his twenty-fifth year and a woman her twenty-first, both were still bound to ask for it, by a formal notification.[198]

[Footnote 190: Starcke, La famille dans les différentes sociétés, p. 213 sqq.]

[Footnote 191: Bernard, quoted in Spencer's Descriptive Sociology, France, p. 38.]

[Footnote 192: Du Vair, quoted by de Ribbe, Les familles et la société en France avant la Révolution, p. 51.]

[Footnote 193: Bodin, De republica, i. 4, p. 31.]

[Footnote 194: Koenigswarter, Histoire de l'organisation de la famille en France, p. 231.]

[Footnote 195: Code Civil, art. 374.]

[Footnote 196: Ibid. art. 375 sqq.]

[Footnote 197: Ibid. art. 148.]

[Footnote 198: Ibid. art. 151.]

The parental authority depends, in the first place, on the natural superiority of parents over their children when young, and on the helplessness of the latter; and for similar reasons the daughter, though grown-up, still remains in her father's power. Parents are, moreover, considered to possess in some measure proprietary rights over their offspring, being their originators and maintainers;[199] and in various cases, it seems, the father is also regarded as their owner because he is the owner of their mother. Filial duties and parental rights to some extent spring from the children's natural feeling of affection for their parents,[200] particularly for their mother,[201] and from the debt of gratitude which they are considered to owe to those who have brought them into existence and taken care of them whilst young.[202] The authority of parents is much enhanced and extended by the sentiment of filial reverence, as distinct from mere affection. From their infancy children are used to look up to their parents, {619} especially the father, as to beings superior to themselves; and this feeling, which by itself has a tendency to persist, is all the more likely to last even when the parents get old, as it is based not only on superior strength and bodily skill, but on superior knowledge, which remains though the physical power be on the wane. Among savages, in particular, filial regard is largely regard for one's elders or the aged. The old men represent the wisdom of the tribe. "Long life and wisdom," say the Iroquois, "are always connected together."[203] Throughout all West Africa the aged are "the knowing ones."[204] In his work on the Algerian natives M. Villot observes:--"Les vieillards, au milieu des sociétés barbares, représentent la tradition qui tient lieu de patrie; la science des coutumes et usages qui remplacent la loi; la connaissance des généalogies qui fixe les degrés de parenté et sert de base à la détermination des titres de propriété. Pour ces causes, aussi bien qu'en raison de leur faiblesse et de leurs cheveux blancs, le respect pour les vieillards est de règle au milieu des indigènes."[205] Among people who possess

no literature the old men are the sole authorities on religion, as well as on custom. In Australia the deference shown to them is partly due to the superstitious awe of certain mysterious rites which are known to them alone, and to the knowledge of which young persons are only very gradually admitted.[206] Moreover, old age itself inspires a feeling of mysterious awe. The Moors say that, when getting old, a man becomes a saint, and a woman a jinnía, or evil spirit--there is something supernatural in both. Among the East African Embe "it is only by means of the rankest superstition that the old men are able to maintain their supremacy over the hot-blooded youths"; they convince the warriors, by presenting them {620} with some magic emblem, that in the hands of the sages alone rest the fate and fortune of those who fight in a battle. And old women, also, are often believed to possess supernatural power, in which case their influence, in spite of the subservient position of their sex in general, is almost as great as that of a medicine-man.[207] According to the beliefs of the natives of Western Victoria, witches always appear in the form of an old woman.[208] Among the Maoris some of the aged women exercise the greatest influence over their tribes, being supposed to possess the power of witchcraft and sorcery.[209] Among the Abipones, says Charlevoix, "the old women take upon them to be great witches; and it would be no easy matter to convert them."[210] In Arabia, as well as in Morocco, old women are always believed to be skilled in sorcery.[211]

[Footnote 199: Cf. Vasishtha, xv. 1 sq.; Bandháyana Parisishta, vii. 5. 2 sq.]

[Footnote 200: For instances of filial affection among savages see Catlin, North American Indians, ii. 242; Powers, Tribes of California, p. 112 (Mattoal); Selenka, Sonnige Welten, p. 34 (Dyaks); Seemann, Viti, p. 193; Mathew, 'Australian Aborigines,' in Jour. & Proceed. Roy. Soc. N.S. Wales, xxiii. 388.]

[Footnote 201: For instances of great affection for the mother, see Munzinger, Ostafrikanische Studien, p. 474 (Barea and Kunáma); Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 211; Park, Travels in the Interior of Africa, p. 241; New, op. cit. p. 101 (Wanika); François, Nama und Damara, Deutsch-Süd-West-Afrika, p. 251 (Mountain Damaras); Rowley, Africa Unveiled, p. 164; Lane, Manners and Customs of the Modern Egyptians, p. 70 sq.; Urquhart, op. cit. ii. 265 sq. (Turks); Schmidt, Ethik der alten Griechen, ii. 146, 155. It is said in the Talmud that the child loves its mother more than its father, whilst it fears its father more than its mother (Deutsch, Literary Remains, p. 55).]

[Footnote 202: Hsiáo King, 9 (Sacred Books of the East, iii. 479). Laws of Manu, ii. 227. Plato, Leges, iv. 717.]

[Footnote 203: Loskiel, History of the Mission of the United Brethren among the Indians in North America, i. 15.]

[Footnote 204: Kingsley, West African Studies, p. 142.]

[Footnote 205: Villot, M[oe]urs, coutumes et institutions des indigènes de l'Algérie, p. 47.]

[Footnote 206: Schuermann, 'Aboriginal Tribes of Port Lincoln,' in Woods, Native Tribes of South Australia, p. 226. Cf. Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 304.]

[Footnote 207: Chanler, op. cit. pp. 247, 252.]

[Footnote 208: Dawson, Australian Aborigines, p. 52.]

[Footnote 209: Angas, Savage Life and Scenes in Australia and New Zealand, i. 317.]

[Footnote 210: Charlevoix, History of Paraguay, i. 406.]

[Footnote 211: Niebuhr, Travels in Arabia, ii. 216.]

The beliefs held regarding the dead also influence the treatment of the aged whose lives are drawing to an end. Certain African tribes treat their old people with every kindness in order to secure their goodwill after death.[212] A missionary in East Africa heard a negro say with reference to an old man, "We will do what he says, because he is soon going to die."[213] The Omahas "were afraid to abandon their aged on the prairie when away from their permanent villages lest Wakanda should punish them";[214] and in this case it seems that Wakanda, at least originally meant the ghost of the dead. The Niase is an egoist ever in his respect for the old, because he hopes that they will protect and assist him when they are dead.[215] In China the doctrine that ghosts may interfere at any moment with human business and fate, either favourably or unfavourably, "enforces respect for human life and a charitable {621} treatment of the infirm, the aged, and the sick, especially if they stand on the brink of the grave."[216] The regard for the aged and the worship of the dead are often mentioned together in a way which suggests that there exists an intrinsic connection between them. Of the Dacotahs Prescott observes, "Veneration is very great in some Indians for old age, and they all feel it for the dead."[217] The worship of ancestors is a distinguishing characteristic of the religious system of Southern Guinea; the "profound respect for aged persons, by a very natural operation of the mind, is turned into idolatrous regard for them when dead."[218] "The Barotse chiefly worship the souls of their ancestors. . . . Cognate to this worship of ancestors is the great respect displayed for parents and the old--especially the eldest of a family or tribe."[219] Among the Herero "the tomb of a father is the most important of all holy places, the soul of a father the oracle most often consulted."[220] The Aetas of the Philippine Islands "have a profound respect for old-age and for their dead."[221] The Ossetes "show the greatest love and veneration to their parents, to old age generally, and especially to the memory of their ancestors."[222] In cases like these, however, it is impossible accurately to distinguish between cause and effect. Whilst the worship of the dead is, in the first place, due to the mystery of death, it is evident that the regard in which a person is held during his lifetime also influences the veneration which is bestowed on his disembodied soul.

[Footnote 212: Arnot, op. cit. p. 78, note.]

[Footnote 213: Lippert, Kulturgeschichte der Menschheit, i. 229.]

[Footnote 214: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 369. Cf. ibid. p. 275.]

[Footnote 215: Modigliani, Viaggio a Nías, p. 467.]

[Footnote 216: de Groot, op. cit. (vol. iv. book) ii. 450.]

[Footnote 217: Prescott, in Schoolcraft, Indian Tribes of the United States, ii. 196.]

[Footnote 218: Wilson, Western Africa, p. 392 sq.]

[Footnote 219: Decle, Three Years in Savage Africa, p. 74 sq.]

[Footnote 220: François, op. cit. p. 192.]

[Footnote 221: Foreman, op. cit. p. 209.]

[Footnote 222: von Haxthausen, Transcaucasia, p. 414.]

There are thus obvious reasons for the connection between filial submissiveness and religious beliefs; but the chief cause of this connection seems to be the extreme importance frequently attached to the curses and blessings of parents. Among the Nandi in Central Africa, "if a {622} son refuses to obey his father in any serious matter, the father solemnly strikes the son with his fur mantle. This is equivalent to a most serious curse, and is supposed to be fatal to the son unless he obtains forgiveness, which he can only do by sacrificing a goat before his father."[223] Among the Mpongwe "there is nothing which a young person so much deprecates as the curse of an aged person,

and especially that of a revered father."[224] The Barea and Kunáma are convinced that any undertaking which has not the blessing of the old people will fail, that every curse uttered by them must be destructive.[225] Among the Bogos nobody takes an employment or gives it up, nobody engages in a business or contracts a marriage, before he has received the blessing of his father or his master.[226] Among the Herero, "when a chief feels his dissolution approaching, he calls his sons to the bedside, and gives them his benediction."[227] The Moors have a proverb that "if the saints curse you the parents will cure you, but if the parents curse you the saints will not cure you." The ancient Hebrews believed that parents, and especially a father, could by their blessings or curses determine the fate of their children;[228] indeed, we have reason to assume that the reward which in the fifth commandment is held out to respectful children was originally a result of parental blessings. We still meet with the original idea in Ecclesiasticus, where it is said: "Honour thy father and mother both in word and deed, that a blessing may come upon thee from them. For the blessing of the father establisheth the houses of children; but the curse of the mother rooteth out foundations."[229] The same notion that the parents' blessings beget prosperity, and that their curses bring ruin, prevailed in ancient Greece. Plato says {623} in his 'Laws':--"Neither God, nor a man who has understanding, will ever advise any one to neglect his parents. . . . If a man has a father or mother, or their fathers or mothers treasured up in his house stricken in years, let him consider that no statue can be more potent to grant his requests than they are, who are sitting at his hearth, if only he knows how to show true service to them. . . . Oedipus, as tradition says, when dishonoured by his sons, invoked on them curses which every one declares to have been heard and ratified by the gods, and Amyntor in his wrath invoked curses on his son Phoenix, and Theseus upon Hippolytus, and innumerable others have also called down wrath upon their children, whence it is clear that the gods listen to the imprecations of parents; for the curses of parents are, as they ought to be, mighty against their children as no others are. And shall we suppose that the prayers of a father or mother who is specially dishonoured by his or her children, are heard by the gods in accordance with nature; and that if a parent is honoured by them, and in the gladness of his heart earnestly entreats the gods in his prayers to do them good, he is not equally heard, and that they do not minister to his request? . . . Therefore, if a man makes a right use of his father and grandfather and other aged relations, he will have images which above all others will win him the favour of the gods."[230] Originally the efficacy of parents' curses and blessings were ascribed to a magic power immanent in the spoken word itself, and their Erinyes, who were no less terrible than the Erinyes of neglected guests,[231] were only personifications of their curses.[232] But in this, as in other similar cases already noticed, the fulfilment of the curse or the blessing came afterwards to be looked upon as an act of divine justice. According to Plato, "Nemesis, the messenger of justice," watches over unbecoming words uttered {624} to a parent;[233] and Hesiod says that if anybody reproaches an aged father or mother "Zeus himself is wroth, and at last, in requital for wrong deeds, lays on him a bitter penalty."[234] It also seems to be beyond all doubt that the divi parentum of the Romans, like their dii hospitales, were nothing but personified curses. For it is said, "If a son beat his parent and he cry out, the son shall be devoted to the parental gods for destruction."[235] In aristocratic families in Russia children used to stand in mortal fear of their fathers' curses;[236] and the country people still believe that a marriage without the parents' approval will call down the wrath of Heaven on the heads of the young couple.[237] Some of the Southern Slavs maintain that if a son does not fulfil

the last will of his father, the soul of the father will curse him from the grave.[238] The Servians say, "Without reverence for old men, there is no salvation."[239]

[Footnote 223: Johnston, Uganda Protectorate, ii. 879.]

[Footnote 224: Wilson, Western Africa, p. 393.]

[Footnote 225: Munzinger, Ostafrikanische Studien, p. 475.]

[Footnote 226: Idem, Sitten der Bogos, p. 90 sq.]

[Footnote 227: Andersson, Lake Ngami, p. 228.]

[Footnote 228: Genesis, ix. 25 sqq.; xxvii. 4, 19, 23, 25, 27 sqq.; xlviii. 9, 14 sqq.; xlix. 4, 7 sqq. Judges, xvii. 2. Cf. Cheyne, 'Blessings and Cursings,' in Encyclopædia Biblica, i. 592; Nowack, 'Blessing and Cursing,' in Jewish Encyclopedia, iii. 244.]

[Footnote 229: Ecclesiasticus, iii. 8 sq. Cf. ibid. iii. 16.]

[Footnote 230: Plato, Leges, xi. 930 sq. Cf. ibid. iv. 717.]

[Footnote 231: Aeschylus, Eumenides, 545 sqq.]

[Footnote 232: See Iliad, xxi. 412 sq.; Sophocles, [OE]dipus Coloneus, 1299, 1434; von Lasaulx, Der Fluch bei Griechen und Römern, p. 8; Müller, Dissertations on the Eumenides, p. 155 sqq.; Rohde, 'Paralipomena,' in Rheinisches Museum für Philologie, 1895, p. 7.]

[Footnote 233: Plato, Leges, iv. 717.]

[Footnote 234: Hesiod, Opera et dies, 331 sqq. (329 sqq.).]

[Footnote 235: Servius Tullius, in Bruns, Fontes Juris Romani antiqui, p. 14, and Festus, De verborum significatione, ver. Plorare: "Si parentem puer verberit, ast olle plorassit, puer divis parentum sacer esto." Cf. Leist, Alt-arisches Jus Civile, i. 184.]

[Footnote 236: I am indebted to Prince Kropotkin for this statement.]

[Footnote 237: Kovalewsky, Modern Customs and Ancient Laws of Russia, p. 37.]

[Footnote 238: Krauss, op. cit. p. 119.]

[Footnote 239: Maine, Early Law and Custom, p. 243.]

In various instances the rewards or punishments attached to the behaviour of children seem to spring from the belief in parental blessings and curses, although the cause is not expressly mentioned. According to ancient Hindu ideas, a father, mother, and spiritual teacher are equal to the three Vedas, equal to the three gods, Brahman, Vishnu, and Siva.[240] A man who shows no regard for them derives no benefit from any religious observance; whereas, "by honouring his mother, he gains the present world; by honouring his father, the world of gods; and by paying strict obedience to his spiritual teacher, the world of Brahman."[241] As in Greece a person who had assaulted his parent was regarded as polluted by a curse,[242] so according {625} to the sacred law of India, those who quarrel with their father, and those who have forsaken their father, mother, or spiritual teacher, defile a company and must not be entertained at a Srâddha offering.[243] Those who have struck any of these persons cannot be readmitted until they have been purified with water taken from a sacred lake or river.[244] The stain of disobedience towards mother and father is purged away with barley-corns, like food which has been licked at by dogs or pigs, or defiled by crows and impure men.[245] In the Dhammapada it is said that to him who always greets and constantly reveres the aged four things will increase, namely, life, beauty, happiness, and power.[246] The Coreans believe that "the richest rewards on earth and brightest heaven hereafter await the filial child," whereas "curses and disgrace in this life and the hottest hell in the world hereafter are the penalties of the disobedient or neglectful child."[247] It seems to have been a notion of the ancient Egyptians that a son who accepted the word of his father would attain old age on that account.[248] The following is an exhortation which an Aztec gave to his son:--"Guard against imitating the example of those wicked

sons who, like brutes that are deprived of reason, neither reverence their parents, listen to their instruction, nor submit to their correction; because whoever follows their steps will have an unhappy end, will die in a desperate or sudden manner, or will be killed and devoured by wild beasts."[249] And if an Aztec married without the sanction of his parents, the belief was that he would be punished with some misfortune.[250] The Aleuts were of opinion that those who were attentive to feeble old men, expecting in exchange their good advice only, would be long-lived and fortunate in the chase and in war, and would not be neglected when growing old {626} themselves.[251] In the Tonga Islands "disrespect to one's superior relations is little short of sacrilege to the gods," and to pay respect to chiefs is "a superior sacred duty, the non-fulfilment of which it is supposed the gods would punish almost as severely as disrespect to themselves."[252] In the same islands great efficacy is ascribed to curses which are uttered by a superior.[253]

[Footnote 240: Institutes of Vishnu, xxxi. 7. Laws of Manu, ii. 230.]

[Footnote 241: Institutes of Vishnu, xxxi. 9 sq. Cf. Laws of Manu, ii. 233 sq.]

[Footnote 242: Plato, Leges, ix. 881.]

[Footnote 243: Institutes of Vishnu, lxxxii. 28 sqq.]

[Footnote 244: Vasishtha, xv. 19 sq.]

[Footnote 245: Baudháyana, iii. 6. 5. Institutes of Vishnu, xlviii. 20.]

[Footnote 246: Dhammapada, 109.]

[Footnote 247: Griffis, Corea, p. 236.]

[Footnote 248: Precepts of Ptah-Hotep, 39.]

[Footnote 249: Clavigero, op. cit. i. 332. Torquemada, Monarchia Indiana, ii. 493.]

[Footnote 250: Torquemada, op. cit. ii. 415.]

[Footnote 251: Veniaminof, quoted by Petroff, loc. cit. p. 155.]

[Footnote 252: Mariner, op. cit. ii. 237, 155.]

[Footnote 253: Ibid. ii. 238.]

Why are the blessings and curses of parents supposed to possess such an extraordinary power? One reason is no doubt the mystery of old age and the nearness of death. As appears from several of the cases already referred to, it is not parents only but old people generally that are held capable of giving due effect to their good and evil wishes, and this capacity is believed to increase when life is drawing to its close. The Herero "know really no blessing save that conferred by the father on his death-bed."[254] According to old Teutonic ideas, the curse of a dying person was the strongest of all curses.[255] A similar notion prevailed among the ancient Arabs;[256] and among the Hebrews the father's mystic privilege of determining the weal or woe of his children was particularly obvious when his days were manifestly numbered.[257] But, at the same time, parental benedictions and imprecations possess a potency of their own owing to the parents' superior position in the family and the respect in which they are naturally held. The influence which such a superiority has upon the efficacy of curses is well brought out by various facts. According to the Greek notion, the Erinyes avenged wrongs done by younger members of a family to elder ones, even brothers and sisters, but not vice versâ.[258] The Arabs of Morocco say that the curse of a husband is as potent as that of a father. The Tonga Islanders believe {627} that curses have no effect "if the party who curses is considerably lower in rank than the party cursed."[259] Moreover, where the father was invested with sacerdotal functions--as was the case among the ancient nations of culture--his blessings and curses would for that reason also be efficacious in an exceptional degree.[260]

[Footnote 254: Ratzel, History of Mankind, ii. 468.]

[Footnote 255: Grimm, Teutonic Mythology, iv. 1690.]

[Footnote 256: Wellhausen, Reste arabischen Heidentums, pp. 139, 191.]

[Footnote 257: Cheyne, in Encyclopædia Biblica, i. 592.]

[Footnote 258: Iliad, xv. 204: "Thou knowest how the Erinyes do always follow to aid the elder-born." Cf. Müller, Dissertations on the Eumenides, p. 155 sq.]

[Footnote 259: Mariner, op. cit. ii. 238.]

[Footnote 260: Cf. Nowack, in Jewish Encyclopedia, iii. 243 sq.]

However, the facts which we have hitherto considered are hardly sufficient to account for the extraordinary development of the paternal authority in the archaic State. Great though it be, the influence which magic and religious beliefs exercise upon the paternal authority is, as we have just seen, largely of a reactive character. A father's blessings would not be so eagerly sought for, nor would his curses be so greatly feared, if he were a less important personage in the family. So, too, as Sir Henry Maine aptly remarks, the father's power is older than the practice of worshipping him. "Why should the dead father be worshipped more than any other member of the household unless he was the most prominent--it may be said, the most awful--figure in it during his life?"[261] We must assume that there exists some connection between the organisation of the family and the political constitution of the society. At the lower stages of civilisation--though hardly at the very lowest--we frequently find that the clan has attained such an overwhelming importance that only a very limited amount of authority could be claimed by the head of each separate family. But, as will be shown in a following chapter, this was changed when clans and tribes were united into a State. The new State tended to weaken and destroy the clan-system, whereas at the same time the family-tie grew in strength. In early society there seems to be an antagonism between the family and the clan. Where the clan-bond is very strong it encroaches upon the family feeling, and where it is loosened the family gains. Hence Dr. Grosse is probably right in his {628} assumption that the father became a patriarch, in the true sense of the word, only as the inheritor of the authority which formerly belonged to the clan.[262]

[Footnote 261: Maine, Early Law and Custom, p. 76.]

[Footnote 262: Grosse, Die Formen der Familie, p. 219.]

But whilst in its early days the State strengthened the family by weakening the clan, its later development had a different tendency. When national life grew more intense, when members of separate families drew nearer to one another in pursuit of a common goal, the family again lost in importance. It has been observed that in England and America, where political life is most highly developed, children's respect for their parents is at a particularly low ebb.[263] Other factors also, inherent in progressive civilisation, contributed to the downfall of the paternal power--the extinction of ancestor-worship, the decay of certain superstitious beliefs, the declining influence of religion, and last, but not least, the spread of a keener mutual sympathy throughout the State, which could not tolerate that the liberty of children should be sacrificed to the despotic rule of their fathers.

[Footnote 263: Monier Williams, Indian Wisdom, p. 440, n. 1.]

Chapter XXVI — The Subjection of Wives

AMONG the lower races, as a rule, a woman is always more or less in a state of dependence. When she is emancipated by marriage from the power of her father, she

generally passes into the power of her husband. But the authority which the latter possesses over his wife varies extremely among different peoples.

Frequently the wife is said to be the property or slave of her husband. In Fiji "the women are kept in great subjection. . . . Like other property, wives may be sold at pleasure, and the usual price is a musket."[1] "The Carib woman is always in bondage to her male relations. To her father, brother, or husband she is ever a slave, and seldom has any power in the disposal of herself."[2] Many North American Indians are said to treat their wives much as they treat their dogs.[3] Among the Shoshones "the man is the sole proprietor of his wives and daughters, and can barter them away, or dispose of them in any manner he may think proper."[4] Among the East African Wanika a woman "is a toy, a tool, a slave in the very worst sense; indeed she is treated as though she were a {630} mere brute."[5] Many other statements to a similar effect are met with in ethnographical literature.[6]

[Footnote 1: Wilkes, U.S. Exploring Expedition, iii. 332.]

[Footnote 2: Brett, Indian Tribes of Guiana, p. 353.]

[Footnote 3: Harmon, Journal of Voyages in the Interior of North America, p. 344.]

[Footnote 4: Lewis and Clarke, Travels to the Source of the Missouri River, p. 307.]

[Footnote 5: New, Life, Wanderings, and Labourings in Eastern Africa, p. 119.]

[Footnote 6: Gibbs, 'Tribes of Western Washington and Northwestern Oregon,' in Contributions to N. American Ethnology, i. 198. von Martius, Beiträge zur Ethnographie Amerika's, i. 104 (Brazilian Indians). Reade, Savage Africa, p. 548 (Negroes of Equatorial Africa). Proyart, 'History of Loango,' in Pinkerton, Collection of Voyages and Travels, xvi. 570 (Negroes of Loango). Andersson, Notes on Travel in South Africa, p. 236 (Ovambo). Castrén, Nordiska resor och forskningar, i. 310; ii. 56 (Ostyaks). In all these cases women are said to be mere articles of commerce, or slaves, or kept in a state of dependence bordering on slavery. In other instances women are said to be oppressed by their husbands, or treated as inferior beings (Waitz [-Gerland], Anthropologie der Naturvölker, iii. 100 [North American Indians]; vi. 626 [Melanesians]. Bancroft, Native Races of the Pacific States, i. 121 [Hare and Sheep Indians]. Powers, Tribes of California, p. 133 [Yuki]. Tuckey, Expedition to Explore the River Zaire, p. 371 [Negroes]. Ling Roth, Aborigines of Tasmania, p. 54).]

Yet it seems that even in cases where the husband's power over his wife is described as absolute, custom has not left her entirely destitute of rights. Of the Australian aborigines in general it is said that "the husband is the absolute owner of his wife (or wives)";[7] of the natives of Central Australia, that "each father of a family rules absolutely over his own circle";[8] of certain tribes in West Australia, that the state of slavery in which the women are kept is truly deplorable, and that the mere presence of their husbands makes them tremble.[9] But we have reason to believe that there is some exaggeration in these statements, and they certainly do not hold good of the whole Australian race. We have noticed above that custom does not really allow the Australian husband full liberty to kill his wife.[10] For punishing or divorcing her he must sometimes have the consent of the tribe.[11] There are even cases in which a wife whose husband has been unfaithful to her may complain of his conduct to the elders of the tribe, and he may have to suffer for it.[12] In North-West-Central Queensland the women are on one special occasion {631} allowed themselves to inflict punishments upon the men: at a certain stage of the initiation ceremony "each woman can exercise her right of punishing any man who may have ill-treated, abused, or 'hammered' her, and for whom she may have waited months or perhaps years to chastise."[13] Of the natives of Central Australia Messrs. Spencer and Gillen say that "the women are certainly not treated usually with

anything which could be called excessive harshness";[14] and we hear from various authorities that in several Australian tribes married people are often much attached to each other, and continue to be so even when they grow old.[15] Among the aborigines of New South Wales, for instance, "the husbands are as a general rule fond of their wives, and the wives loyal and affectionate to their husbands."[16] Nay, white men who have lived among the blacks assure us that there are henpecked husbands even in the Australian desert.[17]

[Footnote 7: Curr, The Australian Race, i. 109.]

[Footnote 8: Eyre, Expeditions of Discovery into Central Australia, ii. 317.]

[Footnote 9: Salvado, Mémoires historiques sur l'Australie, p. 279. For other similar statements referring to the Australian aborigines, see Nieboer, Slavery as an Industrial System, p. 11.]

[Footnote 10: Supra, p. 418.]

[Footnote 11: Nieboer, op. cit. p. 17.]

[Footnote 12: Ibid. p. 18.]

[Footnote 13: Roth, Ethnol. Studies among the North-West-Central Queensland Aborigines, pp. 141, 176.]

[Footnote 14: Spencer and Gillen, Native Tribes of Central Australia, p. 50.]

[Footnote 15: Westermarck, History of Human Marriage, p. 359. Stirling, Report of the Horn Expedition to Central Australia, Anthropology, p. 36.]

[Footnote 16: Hill and Thornton, Aborigines of New South Wales, p. 7.]

[Footnote 17: Calvert, Aborigines of Western Australia, p. 31.]

Other instances may be added to show that the so-called absolute authority of husbands over their wives is not to be taken too literally. Of the Guiana Indians Sir E. F. Im Thurn observes:--"The woman is held to be as completely the property of the man as his dog. He may even sell her if he chooses."[18] But in another place the same authority admits not only that the women in a quiet way may have a considerable influence with the men, but that, "even if the men were--though this is in fact quite contrary to their nature--inclined to treat them cruelly, public opinion would prevent this."[19] Of the Plains Indians of the United States Colonel Dodge writes:--"The husband owns his wife entirely. He may abuse her, beat her, even kill her without question. She is more absolutely a slave than any negro before the war of rebellion." But {632} on the following page we are told that custom gives to every married woman of the tribes "the absolute right to leave her husband and become the wife of any other man, the sole condition being that the new husband must have the means to pay for her."[20] Among the Chippewyans the women are said to be "as much in the power of the men as any other articles of their property," although, at the same time, "they are always consulted, and possess a very considerable influence in the traffic with Europeans, and other important concerns."[21] Among the Mongols a woman is "entirely dependent on her husband"; yet "in the household the rights of the wife are nearly equal to those of the husband."[22] Dr. Paulitschke tells us that among the Somals, Danakil, and Gallas, a wife has no rights whatever in relation to her husband, being merely a piece of property; but subsequently we learn that she is his equal, and "a mistress of her own will."[23] We must certainly not, like Mr. Spencer, conclude that where women are exchangeable for oxen or other beasts they are "of course" regarded as equally without personal rights.[24] The bride-price is a compensation for the loss sustained in the giving up of the girl, and a remuneration for the expenses incurred in her maintenance till the time of her marriage;[25] it does not eo ipso confer on the husband absolute rights over her. With reference to certain tribes in South-Eastern Africa, the Rev. James Macdonald

observes:--"A man obtains a wife by giving her father a certain number of cattle. This, though often called such, is not purchase in the usual sense of the word. The woman does not become a chattel. She cannot be resold or ill-treated beyond well-defined legal limits. She retains certain rights to property and an interest in the cattle paid for her. They are a guarantee for the husband's good {633} behaviour."[26] There are even peoples among whom the husband's authority hardly exists, although he has had to pay for his wife.[27]

[Footnote 18: Im Thurn, Indians of Guiana, p. 223.]

[Footnote 19: Ibid. p. 215.]

[Footnote 20: Dodge, Our Wild Indians, p. 205 sq.]

[Footnote 21: Mackenzie, Voyages to the Frozen and Pacific Oceans, p. cxxii. sq. Schoolcraft, Archives of Aboriginal Knowledge, v. 176.]

[Footnote 22: Prejevalsky, Mongolia, i. 69 sqq.]

[Footnote 23: Paulitschke, Ethnographie Nordost-Afrikas, pp. 189, 190, 244.]

[Footnote 24: Spencer, Principles of Sociology, i. 750.]

[Footnote 25: Westermarck, History of Human Marriage, p. 402.]

[Footnote 26: Macdonald, Light in Africa, p. 159.]

[Footnote 27: E.g., the Navahos and Pelew Islanders (Westermarck, op. cit. pp. 392, 393, 398 sq. For the position of wives among these peoples, see infra, pp. 638, 643).]

Among many peoples the hardest drudgeries of life are said to be imposed on the women. Among the Kutchin "the women are literally beasts of burden to their lords and masters. All the heavy work is performed by them."[28] The Californian Karok, while on a journey, lays by far the greatest burdens on his wife, whom he regards as a drudge.[29] Among the Kenistenos the life of the women is an uninterrupted succession of toil and pain, hence "they are sometimes known to destroy their female children, to save them from the miseries which they themselves have suffered."[30] "The condition of the women among the Chaymas," says von Humboldt, "like that in all semi-barbarous nations, is a state of privation and suffering. The hardest labour is their share."[31] Among the Australian aborigines "wives have to undergo all the drudgery of the camp and the march, have the poorest food and the hardest work."[32] In Eastern Central Africa "the women hold an inferior position. They are viewed as beasts of burden, which do all the harder work."[33] Among the Kakhyens "the men are averse to labour, but the lot of all women, irrespective of rank, is one of drudgery";[34] and so forth.[35] But it seems that {634} these and similar statements, however correct they be, hardly express the whole truth. In early society each sex has its own pursuits. The man is responsible for the protection of the family, and, ultimately, for its support. His occupations are such as require strength and agility--fighting, hunting, fishing, the construction of implements for the chase and war, and, frequently, the cutting of trees and the building of lodges.[36] The woman may accompany him as a helpmate on his expeditions, sometimes even participating in the battle,[37] and when they travel she generally carries the baggage. But her principal occupations are universally of a domestic kind: she procures wood and water, prepares the food, dresses skins, makes clothes, takes care of the children. She, moreover, supplies the household with vegetable food, gathers roots, berries, acorns, and so forth, and among agricultural peoples very frequently cultivates the soil. Whilst cattle-rearing, having developed out of the chase, is largely a masculine pursuit,[38] agriculture, having developed out of collecting seeds and plants, originally devolves on the women.[39]

[Footnote 28: Hardisty, 'Loucheux Indians,' in Smithsonian Report, 1866, p. 312.]

[Footnote 29: Powers, op. cit. p. 23 sq.]

[Footnote 30: Schoolcraft, Archives of Aboriginal Knowledge, v. 167.]

[Footnote 31: von Humboldt, Personal Narrative of Travels, iii. 238.]

[Footnote 32: Curr, The Australian Race, i. 110.]

[Footnote 33: Macdonald, Africana, i. 35.]

[Footnote 34: Anderson, Mandalay to Momien, p. 137.]

[Footnote 35: For other instances, see Mackenzie, Voyages to the Frozen and Pacific Oceans, p. 147 (Rocky Mountain Indians); Parker, in Schoolcraft, Archives, v. 684 (Comanches); Im Thurn, op. cit. p. 215 (Guiana Indians); Keane, 'Botocudos,' in Jour. Anthr. Inst. xiii. 206; Weddell, Voyage towards the South Pole, p. 156, Darwin, Journal of Researches, p. 216, and Bove, Patagonia, p. 131 (Fuegians); Nieboer, op. cit. p. 13 sqq. (Australian aborigines); Williams and Calvert, Fiji, p. 145; Forster, Voyage round the World, ii. 324 (natives of Tana, of the New Hebrides); Zimmermann, Inseln des indischen und stillen Meeres, ii. 17 (New Caledonians), 105 (New Irelanders); Lewin, Wild Races of South-Eastern India, pp. 192 (Toungtha), 254 sq. (Kukis); Rowney, Wild Tribes of India, p. 214 (most of the wild tribes of India); Reade, op. cit. pp. 51, 259, 545 (various African peoples); Waitz, Anthropologie der Naturvölker, ii. 117 (Negroes); Valdau, 'Om Ba-Kwileh folket,' in Ymer, v. 167, 169.]

[Footnote 36: See Spencer, Principles of Sociology, i. 750 sqq.]

[Footnote 37: For women taking part in battles, see Schoolcraft, Indian Tribes of the United States, i. 236 (Comanches); Powers, op. cit. pp. 246 (Shastika Indians of California), 253 (Modok Indians of California); Waitz [-Gerland], op. cit. iii. 375 (Caribs), vi. 121 (Maoris); Wilkes, op. cit. v. 93 (Kingsmill Islanders); Kotzebue, Voyage of Discovery into the South Sea, iii. 171 (natives of Radack).]

[Footnote 38: Grosse, Die Formen der Familie, p. 92 sqq.]

[Footnote 39: Ibid. p. 159. Hildebrand, Recht und Sitte auf den verschiedenen wirthschaftlichen Kulturstufen, p. 44 sqq. Dargun, 'Ursprung und Entwicklungsgeschichte des Eigenthums,' in Zeitschr. f. vergl. Rechtswiss. v. 39, 110. Bücher, Die Entstehung der Volkswirthschaft, p. 36 sqq. Schurtz, Das afrikanische Gewerbe, p. 7. Ling Roth, 'Origin of Agriculture,' in Jour. Anthr. Inst. xvi. 119 sq. Mason, Woman's Share in Primitive Culture, pp. 15 sqq., 146 sqq., 277 sq. Havelock Ellis, Man and Woman, p. 5. von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 214. von Schuetz-Holzhausen, Der Amazonas, p. 67 (Peruvian Indians). Waitz, op. cit. iii. 376 (Caribs). Prescott, in Schoolcraft, Indian Tribes of the United States, i. 235 (Dacotahs). Colden, ibid. iii. 191; Seaver, Narrative of the Life of Mrs. Mary Jemison, p. 168 (Iroquois). 'Die Baluga-Negritos der Provinz Pampanga (Luzon),' in **Globus, xli. 238. Zöller, Kamerun, iii. 58 (Banaka and Bapuku). Möller, Pagels, and Gleerup, Tre år i Kongo, i. 129, 137 (Kuilu Negroes), 270 (Bakongo). Valdau, in Ymer, v. 165 (Bakwileh). Burrows, 'Natives of the Upper Welle District,' in Jour. Anthr. Inst. xxviii. 41 (Niam-Niam). New, op. cit. pp. 114 (Wanika), 359 (Wataveta). Stuhlmann, Mit Emin Pascha ins Herz von Afrika, p. 182 (Waganda). Pogge, Im Reiche des Muata Jamwo, p. 243 (Kalunda of Mussumba). Decle, Three Years in Savage Africa, pp. 78, 79, 85 (Barotse), 160 (Matabele). von Weber, Vier Jahre in Afrika, ii. 195 (Zulus). There are, however, exceptions to the rule. Among the Creeks and Cherokee Indians not a third part as many women as men are seen at work in their plantations (Bartram, in Trans. American Ethn. Soc. iii. pt i. 31). Among the Wakamba both sexes work in the fields, all heavy work, such as clearing and breaking new ground, being done by men (Decle, op. cit. p. 493). Among various peoples, indeed, such agricultural work as requires considerable strength devolves on the male sex (Hildebrand, op. cit. p. 44 sqq. Havelock Ellis, Man and Woman, p. 5). In the Malay Archipelago the men are chiefly engaged in the field-work (Ratzel, History

of Mankind, i. 441). In the Kingsmill Islands (Wilkes, op. cit. v. 91), Tonga (Cook, Voyage to the Pacific Ocean, i. 390 sqq.), and the Caroline Group (Cantova, quoted ibid. i. 392, note) the soil is cultivated by the men. Among the Gallas, "whilst the women tend the sheep and oxen in the field, and manage the hives of bees, the men plough, sow, and reap" (Harris, Highlands of Aethiopia, iii. 47).]

{635} The various occupations of life are thus divided between the sexes according to rules; and, though the formation of these rules no doubt has been more or less influenced by the egoism of the stronger sex, the essential principle from which they spring lies deeper. They are on the whole in conformity with the indications which nature herself has given. Take, for instance, the apparently cruel custom of using the women as beasts of burden. To the superficial observer, as M. Pinart remarks--with special reference to the Panama Indians,--it may indeed seem strange that the woman should be charged with a heavy load, while the man walking before her carries nothing but his weapons. But a little reflection will make it plain that the man has good reason for keeping himself free and mobile. The little caravan is surrounded with dangers: when traversing a savannah or a forest a hostile Indian may appear at any moment, or a tiger or a snake may lie in wait for the travellers. Hence the man must be on the alert, and ready in an instant to catch his arms to defend himself and his family against the aggressor.[40] Dobrizhoffer writes, "The luggage being all committed to the women, the Abipones travel armed {636} with a spear alone, that they may be disengaged to fight or hunt, if occasion require."[41]

[Footnote 40: Pinart, quoted by Nieboer, op. cit. p. 21.]

[Footnote 41: Dobrizhoffer, Account of the Abipones, ii. 118. Cf. Wied-Neuwied Reise nach Brasilien, ii. 17, 37 (Botocudos); Giddings, Principles of Sociology, p. 266 sq.]

Moreover, whatever may have been the original reason for allotting a certain occupation to the one sex to the exclusion of the other, any such restriction has subsequently been much emphasised by custom, and in many cases by superstition as well.[42] In Africa it is a common belief that the cattle get ill if women have anything to do with them.[43] Hence among most Negro races milking is only permitted to men.[44] In South-Eastern Africa "a woman must not enter the cattle fold."[45] The Bechuanas never allow women to touch their cattle, hence the men have to plough themselves.[46] In North America Indian custom and superstition ordain that the wife must carefully keep away from all that belongs to her husband's sphere of action.[47] On the other hand, among the Dacotahs "the men do not often interfere with the work of the women; neither will they help them if they can avoid it, for fear of being laughed at and called a woman."[48] In Abyssinia "it is infamy for a man to go to market to buy anything. He cannot carry water or bake bread; but he must wash the clothes belonging to both sexes, and, in this function, the women cannot help him."[49] Among the Beni A[h.]sen tribe in Morocco the women of the village where I was staying were quite horrified when one of my native servants set out to fetch water; they would on no account allow him to do what they said was a woman's business. The Greenlander regards it as scandalous for a man to interfere with any occupation which belongs to the women. When he has brought his booty to land, he troubles himself no further about it; "for it would be a stigma on his character, {637} if he so much as drew a seal out of the water."[50] Among the Bakongo a man would be much ridiculed by the women themselves, if he wanted to help them in their work in the field.[51] Sometimes agriculture is supposed to be dependent for success on a magic quality in woman, intimately connected with child-bearing.[52] Some Orinoco Indians said to Father Gumilla:--"When the women plant maize the stalk produces two or three ears; when they set the manioc the plant produces

two or three baskets of root; and thus everything is multiplied. Why? Because women know how to produce children, and know how to plant the corn so as to ensure its germinating. Then, let them plant it; we do not know so much as they do."[53]

[Footnote 42: See Crawley, Mystic Rose, p. 49 sq.]

[Footnote 43: Schurtz, Das afrikanische Gewerbe, p. 10.]

[Footnote 44: Ratzel, op. cit. ii. 419.]

[Footnote 45: Macdonald, Life in Africa, p. 221.]

[Footnote 46: Holub, 'Central South African Tribes,' in Jour. Anthr. Inst. x. 11.]

[Footnote 47: Waitz, op. cit. iii. 100.]

[Footnote 48: Prescott, in Schoolcraft, Indian Tribes of the United States, iii. 235.]

[Footnote 49: Bruce, Travels to Discover the Source of the Nile iv. 474.]

[Footnote 50: Nansen, First Crossing of Greenland, ii. 313. Cranz, History of Greenland, i. 138, 154.]

[Footnote 51: Möller, Pagels, and Gleerup, op. cit. i. 270.]

[Footnote 52: See Payne, History of the New World, ii. 8.]

[Footnote 53: Gumilla, El Orinoco ilustrado, ii. 274 sq.]

It is obvious that this strict division of labour is apt to mislead the travelling stranger. He sees the women hard at work, and the men idly looking on; and it escapes him that the latter will have to be busy in their turn, within their own sphere of action. What is largely due to the force of custom is taken to be sheer tyranny on the part of the men; and the wife is pronounced to be an abject slave of her husband, destitute of all rights. And yet the strong differentiation of work, however burdensome it may be to the wife, is itself a source of rights, giving her authority within the circle which is exclusively her own. Among the Banaka and Bapuku the wife, though said to be her husband's property and slave, is nevertheless an autocrat in her own house, strong enough to bid defiance to her lord and master.[54] Among the North American Indians, Schoolcraft observes, "the lodge itself, with all its arrangements, is the precinct of the rule and government of the wife. . . . The husband has no voice in this matter."[55] Many other statements to a similar effect will be quoted below.

[Footnote 54: Steinmetz, Rechtsverhältnisse, p. 29 sq.]

[Footnote 55: Schoolcraft, Indian in his Wigwam, p. 73.]

{638} We have reason, then, to believe that the authority which savage husbands possess over their wives is not always quite so great as it is said to be. And we must distinctly reject as erroneous the broad statement that the lower races in general hold their women in a state of almost complete subjection.[56] Among many of them the married woman, though in the power of her husband, is known to enjoy a remarkable degree of independence, to be treated by him with consideration, and to exercise no small influence upon him. In several cases she is stated to be his equal, and in a few his superior.

[Footnote 56: Thus Meiners says (History of the Female Sex, i. 2), "Among savage nations, the entrance into the married state is for the female the commencement of the most cruel and abject slavery; for which reason many women dread matrimony more than death." In a recent work on the primitive family an Italian writer regards it as perhaps the most fundamental fact in the family institution that the woman is always and everywhere "sottoposta al più gravoso mundium maritale" (Amadori-Virgilj, L'istituto famigliare nelle società primordiali, p. 138).]

Among many of the South American Indians the women have been noticed to occupy a respected position in the family or community.[57] Thus, among the Goajiros of Colombia, "in a quarrel or drunken brawl, women often save bloodshed by stepping

in and tearing the weapons out of their husband's or brother's hand. Travelling with women is consequently perfectly safe, and in case of danger, if one undertakes to protect a stranger, he may rely upon coming out all right."[58] Among the Tarahumares of Mexico--in spite of their saying that one man is as good as five women--the woman "occupies a comparatively high position in the family, and no bargain is ever concluded until the husband has consulted his wife in the matter."[59] Among the Navahos of New Mexico the women "exert a great deal of influence";[60] they "are very independent of menial duties, and leave their husbands upon the slightest pretext of dislike";[61] "by common consent the house and all the domestic gear belongs entirely to the wife."[62] In {639} his description of North American Indians Mr. Grinnell observes:--"The Indian woman, it is usually thought, is a mere drudge and slave, but, so far as my observations extend, this notion is wholly an erroneous one. It is true that the women were the labourers of the camp; that they did all the hard work, about which there was no excitement . . . . but they were not mere servants. On the contrary, their position was very respectable. They were consulted on many subjects, not only in connection with family affairs, but in more important and general matters. Sometimes women were even admitted to the councils and spoke there, giving their advice. . . . In ordinary family conversation women did not hesitate to interrupt and correct their husbands when the latter made statements with which they did not agree, and the men listened to them with respectful attention, though of course this depended on the standing of the woman, her intelligence, etc."[63] Another competent observer, Ten Kate, strongly protests against the statement that, among the North American Indians, women are treated as beasts of burden, and affirms that their condition, as compared with that of the women of the lower classes in civilised countries, is rather better than worse.[64] Among the Omahas the women had an equal standing in society with the men; both the husband and wife were at the head of the family and the joint owners of the lodge, robes, and so forth, so that the man could not give away anything if his wife was unwilling.[65] Among the Senecas, "usually, the female portion ruled the house, and were doubtless clannish enough about it. The stores were in common; but woe to the luckless husband or lover who was too shiftless to do his share of the providing. No matter how many children, or whatever goods he might have in the house, he might at any time be ordered to pick up his blanket and budge."[66] "From documentary references," says Mr. Mooney, "it is apparent that there existed among the Cherokee a custom analogous to that found among the Iroquois and probably other Eastern tribes, by which the decision of important questions relating to peace and war was left to a vote of the women."[67] Among the Salish, or Flatheads, "although the women are required to do much hard labour, they are {640} by no means treated as slaves, but, on the contrary, have much consideration and authority."[68] Among the Nootkas "wives are consulted in matters of trade, and in fact seem to be nearly on terms of equality with their husbands, except that they are excluded from some public feasts and ceremonies."[69] Among the Indians about Puget Sound, also, women "are always consulted in matters of trade before a bargain is closed," and "acquire great influence in the tribe."[70] The Thlinket woman is not the slave of her husband; she has determinate rights, and her influence is considerable.[71] Among the natives of Cross Cape she even possesses "acknowledged superiority over the other sex."[72] Among the Western Tinneh "the women do only a fair share of the work and have a powerful voice in most affairs."[73] In Kadiak they were held in much respect, and enjoyed great liberties.[74] Among the Kamchadales they had the command of everything, and the husbands were their obedient slaves.[75] Nordenskiöld says of the Chukchi:--"The power of the woman appears to be very great.

In making the more important bargains, even about weapons and hunting implements, she is, as a rule, consulted, and her advice is taken. A number of things which form women's tools she can barter away on her own responsibility, or in any other way employ as she pleases."[76] Mr. Bancroft's statement concerning the Western Eskimo, that "the lot of the women is but little better than slavery,"[77] must be understood as chiefly involving the fact that they have much hard work to do. According to Dr. Seemann they "are treated, although not as equals, at least with more consideration than is customary among barbarous nations"; nay, "it not infrequently happens that the woman is the chief authority of the house," and "the man {641} never makes a bargain without consulting his wife, and if she does not approve, it is rejected."[78] Among the Point Barrow Eskimo "the women appear to stand on a footing of perfect equality with the men both in the family and in the community. The wife is the constant and trusted companion of the man in everything except the hunt, and her opinion is sought in every bargain or other important undertaking."[79] In Greenland, also, though the woman is considered much inferior to the man, she is in no way oppressed,[80] and her husband consults with her on important matters.[81]

[Footnote 57: Waitz, Anthropologie der Naturvölker, iii. 472 (Guaycurus), 530 (Morotocos). von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 332 (Bakaïri).]

[Footnote 58: Simons, 'Exploration of the Goajira Peninsula,' in Proceed. Roy. Geo. Soc. N.S. vii. 792. See also Candelier, Rio-Hacha, p. 256.]

[Footnote 59: Lumholtz, Unknown Mexico, i. 265.]

[Footnote 60: Letherman, in Ann. Rep. Smithsonian Inst. 1855, p. 294.]

[Footnote 61: Eaton, in Schoolcraft, Archives, iv. 217.]

[Footnote 62: Stephen, in American Anthropologist, vi. 354.]

[Footnote 63: Grinnell, Story of the Indian, p. 46. Cf. Waitz, op. cit. iii. 101 sq.]

[Footnote 64: Ten Kate, Reizen en ondersoekingen Noord-Amerika, p. 365. Cf. ibid. 9.]

[Footnote 65: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 266, 366.]

[Footnote 66: Morgan, Houses and House-Life of the American Aborigines, p. 65 sq. See also Dixon, New America, p. 46.]

[Footnote 67: Mooney, 'Myths of the Cherokee,' in Ann. Rep. Bur. Ethn. xix. 489.]

[Footnote 68: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 207.]

[Footnote 69: Bancroft, op. cit. i. 196. Cf. Sproat, Scenes and Studies of Savage Life, pp. 93, 95 (Ahts).]

[Footnote 70: Bancroft, op. cit. i. 218.]

[Footnote 71: Krause, Tlinkit-Indianer, p. 161.]

[Footnote 72: Meares, Voyages to the North-West Coast of America, p. 323.]

[Footnote 73: Dall, Alaska, p. 431.]

[Footnote 74: Holmberg, 'Ethnographische Skizzen über die Völker des russischen Amerika,' in Acta Soc. Scient. Fennicæ, iv. 399.]

[Footnote 75: Steller, Beschreibung von dem Lande Kamtschatka, p. 287.]

[Footnote 76: Nordenskiöld, Vegas färd kring Asien och Europa, ii. 144.]

[Footnote 77: Bancroft, op. cit. i. 65 sq. Mr. Bancroft's authority is probably Armstrong, who says that the women are, to all intents and purposes, the slaves of the men, and do the greater part of the outdoor work, except hunting and fishing; but he adds that they nevertheless enjoy a higher position and more consideration than is usual amongst savages (Armstrong, Personal Narrative of the Discovery of the North-West Passage, p. 195).]

[Footnote 78: Seemann, Narrative of the Voyage of "Herald," ii. 66.]

[Footnote 79: Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 413.]

[Footnote 80: Nansen, First Crossing of Greenland, ii. 312.]

[Footnote 81: Nordenskiöld, Den andra Dicksonska expeditionen till Grönland, p. 509.]

Among the nomadic Tangutans the women's rights in the household seemed to Prejevalsky to be equal to those of the men.[82] Of the Todas of India it is said that their women "hold a position in the family quite unlike what is ordinarily witnessed among Oriental nations. They are treated with respect, and are permitted a remarkable amount of freedom."[83] Among the Kandhs women "are uniformly treated with respect; the mothers of families generally with much honour. Nothing is done either in public or in private affairs without consulting them, and they generally exert upon the councils of their tribes a powerful influence." A wife may quit her husband at any time, except within a year of her marriage, or when she expects offspring, or within a year after the birth of a child, though, when she quits him, he has a right to reclaim immediately from her father the whole sum paid for her.[84] Among the peasants of the North-Western Provinces of India the wife is an influential personage in the household, not a mere drudge. Little is done without her knowledge and advice. If she is badly wronged the tribal council will protect her, and on the whole her position is, perhaps, not worse than that of her sisters in a similar grade of life in other parts of the world.[85] Among the Káttis the men are much under the authority of their wives.[86] Among the Bheels women "have much influence in the society," and married men have always had the credit of allowing their wives to domineer over them.[87] "A Kol or Ho," says Dr. Hayes, "makes a regular companion {642} of his wife. She is consulted in all difficulties, and receives the fullest consideration due to her sex";[88] and Colonel Dalton adds, "As a rule, in no country in the world are wives better treated."[89] The Garos are "kind husbands, and their conduct generally towards the weaker sex is marked by consideration and respect."[90] The Bódo and Dhimáls "use their wives and daughters well, treating them with confidence and kindness."[91] The Santal "treats the female members of his family with respect."[92] Among the Kukis women are generally held in consideration; "their advice is taken, and they have much influence."[93] Mr. Colquhoun observes that among the Indo-Chinese races equality of the sexes prevails, and prevailed long before Buddhism took any hold upon the country.[94]

[Footnote 82: Prejevalsky, Mongolia, ii. 121.]

[Footnote 83: Marshall, A Phrenologist amongst the Todas, p. 43.]

[Footnote 84: Macpherson, Memorials of Service in India, pp. 69, 132 sq.]

[Footnote 85: Crooke, North-Western Provinces of India, p. 230 sq.]

[Footnote 86: Rowney, Wild Tribes of India, p. 47.]

[Footnote 87: Malcolm, Memoir of Central India, ii. 180. Rowney, op. cit. p. 38.]

[Footnote 88: Hayes, quoted by Dalton, Descriptive Ethnology of Bengal, p. 194. Cf. Bradley-Birt, Chota-Nagpore, p. 100 sq.]

[Footnote 89: Dalton, op. cit. p. 194.]

[Footnote 90: Ibid. p. 68.]

[Footnote 91: Hodgson, Miscellaneous Essays, i. 150.]

[Footnote 92: Hunter, Annals of Rural Bengal, i. 217. Cf. Ymer, v. p. xxiv.]

[Footnote 93: Lewin, Wild Races of South-Eastern India, p. 254.]

[Footnote 94: Colquhoun, Amongst the Shans, p. 234. Cf. Fytche, Burma, ii. 72.]

Among the Nicobarese "the position of women is, and always has been, in no way inferior to that of the other sex. They take their full share in the formation of public opinion, discuss publicly with the men matters of general interest to the village, and their opinions receive due attention before a decision is arrived at. In fact, they are consulted on every matter, and the henpecked husband is of no extraordinary rarity in the Nicobars."[95] Mr. Crawfurd thinks that in the Malay Archipelago "the lot of women may, on the whole, be considered as more fortunate than in any other country of the East"; they associate with the men "in all respects on terms of such equality as surprise us in such a condition of society."[96] In Bali they are on a perfect equality with the men.[97] The Dyak shows great respect for his wife, and always asks her opinion;[98] he regards her "not as a slave, but as a companion."[99] Among the Bataks the married women often have a great influence over their families.[100] In Serang they have in all matters equal rights with the men, and are, consequently, treated well.[101] The women of Sulu "have the reputation of ruling their {643} lords, and possess much weight in the government by the influence they exert over their husbands."[102]

[Footnote 95: Kloss, In the Andamans and Nicobars, p. 242.]

[Footnote 96: Crawfurd, History of the Indian Archipelago, i. 73.]

[Footnote 97: Raffles, History of Java, ii. p. ccxxxi.]

[Footnote 98: Bock, Head-Hunters of Borneo, p. 210 sq.]

[Footnote 99: Selenka, Sonnige Welten, p. 33. Cf. Wilkes, op. cit. v. 363.]

[Footnote 100: Steinmetz, Ethnol. Studien zur ersten Entwicklung der Strafe, ii. 299.]

[Footnote 101: Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 97.]

[Footnote 102: Wilkes, op. cit. v. 343.]

In Melanesia the women generally have to work hard, supplying the place of slaves;[103] but at least in various islands their condition is otherwise fairly good. In the Western islands of Torres Straits "the women appear to have had a good deal to say on most questions and were by no means downtrodden or ill-used."[104] In some parts of New Guinea their position is described as one of high esteem.[105] "They have a large voice in domestic affairs, and occasionally lord it over their masters"; and their influence is felt not only in domestic matters, but also in affairs of state.[106] In Erromanga, of the New Hebrides, although the women did all of the hard plantation work, they were on the whole well treated by their husbands.[107] The same is said to be the case in the Solomon Islands;[108] in the eastern part of New Georgia they do not even seem to do much work.[109] In Micronesia the position of woman is decidedly good. In the Marianne Group "the wife is absolute mistress in her house, the husband not daring to dispose of anything without her consent"; nay, the men are said to be actually governed by their wives, "the women assuming those prerogatives which in most other countries are invested in the other sex."[110] In the Pelew Islands the women are in every respect the equals of the men; the oldest man, or Obokul, of a family can do nothing without taking advice with its oldest female members.[111] In the Caroline Group the weaker sex "enjoys a perfect equality in public estimation with the other."[112] Among the Mortlock Islanders the wife is quite independent of her husband.[113] In the Kingsmill Islands very great consideration is awarded to the women: "they seem to have exclusive control over the house," whilst all the hard labour is performed by the {644} men.[114] Among the Line Islanders "no difference is made in the sexes; a woman can vote and speak as well as a man, and in general the women decide the question, unless it is one of war against another island."[115] In many Polynesian islands, also, their position is by no means bad.[116] In Tonga "women have considerable respect shown

to them on account of their sex, independent of the rank they might otherwise hold as nobles"; they are not subjected to hard labour or any very menial work,[117] and their status in society is not inferior to that of men.[118] In Samoa they "are held in much consideration, . . . treated with great attention, and not suffered to do anything but what rightfully belongs to them."[119] In the valley of Typee, in the Marquesas Group, the women are allowed every possible indulgence, the religious restrictions of the taboo alone excepted; they are exempt from toil, and "nowhere are they more sensible of their power."[120] Rochon wrote of the Malagasy:--"Man here never commands as a despot; nor does the woman ever obey as a slave. The balance of power inclines even in favour of the women."[121] At the present day, in Madagascar, the woman "is not scorned as essentially inferior to man," but enters into her husband's cares and joys, and shares his life, much in the same way as a wife does amongst ourselves.[122]

[Footnote 103: Nieboer, op. cit. p. 392 sqq. Waitz-Gerland, op. cit. vi. 626.]

[Footnote 104: Haddon, in Reports of the Cambridge Anthropological Expedition to Torres Straits, v. 229.]

[Footnote 105: Ratzel, op. cit. i. 274.]

[Footnote 106: Pitcairn, Two Years among the Savages of New Guinea, p. 6l. Cf. Bink, in Bulletin Soc. d'Anthrop. de Paris, xi. 392; Hagen, Unter den Papua's, pp. 226, 243.]

[Footnote 107: Robertson, Erromanga, p. 397.]

[Footnote 108: Parkinson, Zur Ethnographie der nordwestlichen Salomo Inseln, p. 4.]

[Footnote 109: Somerville, 'Ethnogr. Notes in New Georgia,' in Jour. Anthr. Inst. xxvi. 405 sq.]

[Footnote 110: Moore, Marriage Customs, p. 187. Waitz, op. cit. v. pt. i. p. 107 sq.]

[Footnote 111: Kubary, Die socialen Einrichtungen der Pelauer, p. 38 sq. Cf. Idem, 'Die Palau-Inseln,' in Journal des Museum Godeffroy, iv. 43; Keate, Account of the Pelew Islands, p. 331.]

[Footnote 112: Hale, op. cit. p. 73.]

[Footnote 113: Kubary, 'Die Bewohner der Mortlock Inseln,' in Mittheilungen der Geograph. Gesellsch. in Hamburg, 1878-9, p. 261.]

[Footnote 114: Wilkes, op. cit. v. 91.]

[Footnote 115: Tutuila, in Jour. Polynesian Soc. i. 269.]

[Footnote 116: See Waitz-Gerland, op. cit. vi. 120 sqq.]

[Footnote 117: Mariner, Natives of the Tonga Islands, ii. 97.]

[Footnote 118: Erskine, Cruise among the Islands of the Western Pacific, p. 158.]

[Footnote 119: Wilkes, op. cit. ii. 148. Cf. Waitz-Gerland, op. cit. vi. 121.]

[Footnote 120: Melville, Typee, p. 299.]

[Footnote 121: Rochon, 'Voyage to Madagascar,' in Pinkerton, Collection of Voyages and Travels, xvi 747. Cf. Waitz, op. cit. ii. 438.]

[Footnote 122: Little, Madagascar, p. 63.]

Turning, finally, to the African continent, we find that among the Negro races the woman, though often heavily burdened and more or less subservient to her husband, is by no means without influence.[123] "When we become more closely acquainted with family conditions," Herr Büttner observes, "we notice that there, as elsewhere, husbands are under petticoat government, and those most of all who like to pose before the outer world as masters of their house. The women, including the aunts, have on all occasions, important and unimportant alike, a weighty {645} word to contribute."[124] The Monbuttu women, according to Dr. Schweinfurth, exhibit towards their husbands the highest degree of independence; "the position in the household occupied by the men was illustrated by the reply which would be made if they were solicited to sell anything

as a curiosity, 'Oh, ask my wife: it is hers.'"[125] Among the Momvus "the women are on a footing of equality with the men, and go hunting with them, and accompany them to the wars, taking their part in the combat."[126] Among the Madi or Moru tribe of Central Africa "women are treated with respect and politeness by the men, who always show them preference, resigning to their use the best places, and paying them such like courtesies." The women associate with the men on equal terms, being consulted and honoured; and any insult to a woman is revenged, nay is frequently the cause of war.[127] In a Hottentot's house the woman is the supreme ruler, and the husband has nothing at all to say. "While in public the men take the prominent part, at home they have not so much power even as to take a mouthful of sour milk out of the tub, without the wife's permission. If a man ever should try to do it, his nearest female relations will put a fine on him, consisting in cows and sheep, which is to be added to the stock of the wife."[128] Among the peoples of Berber race the women exercise considerable influence over the men. Among the Guanches of the Canary Islands they were much respected.[129] Among the Touareg "la femme est l'égale de l'homme, si même, par certains côtés, elle n'est dans une condition meilleure."[130] Among the Beni Amer a husband undertakes nothing before consulting his wife, on whose goodwill he largely depends.[131] Of the Aulâd Solîmân, an Arab tribe in the Sahara, Dr. Nachtigal observes that it was curious to see how powerless those much feared robbers and cut-throats were in their own houses.[132] Both in the Sahara[133] and in the East[134] the Bedouin women {646} enjoy a considerable degree of freedom, and sometimes actually rule over their husbands.

[Footnote 123: Waitz, op. cit. ii. 117. Ratzel, op. cit. ii. 332. Buchner, Kamerun, p. 32 sq. Möller, Pagels, and Gleerup, op. cit. i. 171 (Lukungu). Steinmetz, Rechtsverhältnisse, p. 29 (Banaka and Bapuku). Lang, ibid. p. 225 (Washambala). Burrows, Land of the Pigmies, p. 62 (Niam-Niam). Chanler, Through Jungle and Desert, p. 485 (Wakamba).]

[Footnote 124: Büttner, quoted by Ratzel, op. cit. ii. 334.]

[Footnote 125: Schweinfurth, Heart of Africa, ii. 91.]

[Footnote 126: Burrows, op. cit. p. 128.]

[Footnote 127: Felkin, 'Notes on the Madi or Moru Tribe,' in Proceed. Roy. Soc. Edinburgh, xii. 329.]

[Footnote 128: Hahn, The Supreme Being of the Khoi-Khoi, p. 19.]

[Footnote 129: Bory de St. Vincent, Essais sur les Isles Fortunées, p. 105. Mantegazza, Rio de la Plata e Tenerife p. 630.]

[Footnote 130: Dyveyrier, Exploration du Sahara, p. 339. Cf. Chavanne, Die Sahara, p. 181; Hourst, Sur le Niger et au pays des Touaregs, p. 209.]

[Footnote 131: Munzinger, Ostafrikanische Studien, p. 325.]

[Footnote 132: Nachtigal, Sahara und Sudan, ii. 93.]

[Footnote 133: Chavanne, op. cit. p. 397.]

[Footnote 134: Wallin, Reseanteckningar från Orienten, iii. 151, 152, 269. Blunt, Bedouin Tribes of the Euphrates, ii. 214, 226, 228.]

All these statements certainly do not imply that the husband has no recognised power over his wife, but they prove that his power is by no means unlimited. It is true that many of our authorities speak rather of liberties that the woman takes herself than of privileges granted her by custom; but, as we have seen before, customary rights are always more or less influenced by habitual practice. It should be added that among many savage peoples the husband has a right to divorce his wife only under certain conditions;[135] and among a very considerable number custom or law permits the wife to separate either for some special cause or, simply, at will.[136] In certain parts of

Eastern Central Africa divorce may be effected if the husband neglects to sew his wife's clothes, or if the partners do not please each other.[137] Among the Shans of Burma the woman has a right to turn adrift a husband who takes to drinking or otherwise misconducts himself, and to retain all the goods and money of the partnership.[138] Among the Irulas of the Neilgherries the option of remaining in union, or of separating, rests principally with the woman.[139] Among the Savaras, an aboriginal hill people of the Madras Presidency, "a woman may leave her husband whenever she pleases."[140] This is surely something very different from that absolute dominion which hasty generalisers have attributed to savage husbands in general.

[Footnote 135: Westermarck. op. cit. p. 523 sq.]

[Footnote 136: Ibid. p. 526 sqq.]

[Footnote 137: Macdonald, Africana, i. 140.]

[Footnote 138: Colquhoun, Amongst the Shans, p. 295.]

[Footnote 139: Harkness, Description of a Singular Aboriginal Race inhabiting the Neilgherry Hills, p. 92.]

[Footnote 140: Fawcett, in Jour. Anthrop. Soc. Bombay, i. 28.]

It is often said that a people's civilisation may be measured by the position held by its women. But at least so far as the earlier stages of culture are concerned, this opinion is not supported by facts. Among several of the lowest races, including peoples like the Veddahs, Andaman Islanders, and Bushmans, the female sex is {647} treated with far greater consideration than among many of the higher savages and barbarians. Travellers have not seldom noticed that of two neighbouring tribes the less cultured one sets in this respect an example to the other. "Among the Bushmans," says Dr. Fritsch, "the female sex makes life-companions, among the A-bantu beasts of burden."[141] Lewis and Clarke affirm that the status of woman in a savage tribe has no necessary relation even to its moral qualities in general. "The Indians," they say, "whose treatment of the females is mildest, and who pay most deference to their opinions, are by no means the most distinguished for their virtues. . . . On the other hand, the tribes among whom the women are very much debased, possess the loftiest sense of honour, the greatest liberality, and all the good qualities of which their situation demands the exercise."[142] That the condition of woman, or her relative independence, is no safe gauge of the general culture of a nation, also appears from a comparison between many of the lower races and the peoples of archaic civilisation.

[Footnote 141: Fritsch, Die Eingeborenen Süd-Afrika's, p. 444.]

[Footnote 142: Lewis and Clarke, op. cit. p. 441.]

In China the condition of woman has always been inferior to that of man, and no generous sentiment tending to the amelioration of her social position has ever come from the Chinese sages.[143] Her children must pay her respect, but she in her turn owes to her husband the subjection of a child;[144] a wife is an infinitely less important personage than a mother in the Chinese social scale.[145] The husband has certainly not absolute power over his wife: he may not kill her, nor sell her without her consent,[146] nor even divorce her, except for certain causes specified by law.[147] But these causes are very elastic; {648} it is said that "when a woman has any quality that is not good, it is but just and reasonable to turn her out of doors."[148] And in a book containing the cream of all the moral writings of the Chinese, and intended chiefly for children, we read:--"Brothers are like hands and feet. A wife is like one's clothes. When clothes are worn out, we can substitute those that are new. When hands and feet are cut off, it is difficult to obtain substitutes for them."[149] A woman, on the other hand, cannot obtain legal separation on any account.[150] Confucius says that "man is

the representative of Heaven, and is supreme over all things. Woman yields obedience to the instructions of man, and helps to carry out his principles. On this account she can determine nothing of herself, and is subject to the rule of the three obediences. When young, she must obey her father and elder brother; when married, she must obey her husband; when her husband is dead, she must obey her son."[151] In Japan, also, a woman was formerly, in the eye of the law, a chattel rather than a person. "Having all her life under her father's roof reverenced her superiors, she is expected to bring reverence to her new domicile, but not love. She must always obey but never be jealous. She must not be angry, no matter whom her husband may introduce into his household. She must wait upon him at his meals and must walk behind him, but not with him. When she dies her children go to her funeral, but not her husband."[152] In Japan a man might repudiate his wife for the same reasons as in China,[153] and till the year 1873 a wife could not obtain separation according to law.[154] However, though the Japanese wife is "the first servant of the household," training and public opinion require that she should be treated with respect, if the marriage be blessed {649} with children.[155] She is addressed as "the honourable lady of the house," and her position is said to be higher than in any other Oriental country.[156]

[Footnote 143: Legge, Religions of China, pp. 107, 108, 111.]

[Footnote 144: de Groot, Religious System of China, (vol. ii. Book) i. 550.]

[Footnote 145: Giles, Strange Stories from a Chinese Studio, i. 315, n. 3.]

[Footnote 146: Doolittle, Social Life of the Chinese, ii. 209.]

[Footnote 147: Medhurst, 'Marriage, Affinity, and Inheritance in China,' in Trans. Roy. As. Soc. China Branch, iv. 25 sq. Gray, China, i. 219. Müller, Reise der Fregatte Novara, Ethnographie, p. 164.]

[Footnote 148: Navarette, 'Account of the Empire of China,' in Awnsham and Churchill, Collection of Voyages and Travels, i. 73.]

[Footnote 149: Indo-Chinese Gleaner, i. 164.]

[Footnote 150: Gray, op. cit. i. 219.]

[Footnote 151: Legge, Chinese Classics, i. 103 sq.]

[Footnote 152: Griffis, Religions of Japan, p. 124 sq.]

[Footnote 153: Westermarck, op. cit. p. 525.]

[Footnote 154: Rein, Japan, p. 424 sq.]

[Footnote 155: Ibid. p. 425.]

[Footnote 156: Norman, The Real Japan, p. 184. Griffis, Religions of Japan, p. 318.]

From various quarters of the ancient world we hear of the rule that the husband shall command and the wife obey. The Lord said to the woman, "Thy desire shall be to thy husband, and he shall rule over thee."[157] How great the husband's power was among the Hebrews we do not know exactly. He could divorce his wife if she did not please him because he had "found some uncleanness in her,"[158] whereas a wife could not legally separate from her husband.[159] In later times her condition evidently improved.[160] From the old Jewish point of view it is surely surprising to find Sirach putting the companionship of a wife not only above that of a friend, but even above children.[161] In the Talmud a husband is admonished to love his wife like himself and to honour her more than himself,[162] though he should take care not to be ruled by her; [163] and the wife also is authorised to demand a divorce under certain circumstances, namely, if the husband refuses to perform his conjugal duty, if he continues to lead a disorderly life after marriage, if he proves impotent during ten years, if he suffers from an insupportable disease, or if he leaves the country for ever.[164]

[Footnote 157: **Genesis, iii. 16.]

[Footnote 158: Deuteronomy, xxiv. 1.]

[Footnote 159: Josephus, Antiquitates Romanæ, xv. 7, 10. Keil, Manual of Biblical Archæology, ii. 175.]

[Footnote 160: Cf. Klugmann, Die Frau im Talmud, p. 63 sq.]

[Footnote 161: Ecclesiasticus, xl. 19, 23. Cf. Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 491.]

[Footnote 162: Deutsch, Literary Remains, p. 56.]

[Footnote 163: Beza, fol. 32 B, quoted by Katz, Der wahre Talmudjude, p. 114.]

[Footnote 164: Glasson, Le mariage civil et le divorce, p. 149 sq.]

In the Zoroastrian Yasts a holy woman is defined as one who is "rich in good thoughts, good words, and good deeds, well-principled, and obedient to her husband," whereas the fiendish woman is "ill-principled and disobedient to her husband."[165] According to Brahmanic law, a woman must in childhood be subject to her father, in youth {650} to her husband, when her lord is dead to her sons; "a woman must never be independent."[166] Not even in her own house is she allowed to do anything independently.[167] Him to whom her father may give her, or her brother with the father's permission, she shall obey as long as he lives.[168] She must never do anything that might displease him;[169] even though he be destitute of virtue, or unfaithful to her, "a husband must be constantly worshipped as a god by a faithful wife."[170] A wife who shows disrespect to a husband who is addicted to some evil passion, is a drunkard, or diseased, shall be deserted for three months, and be deprived of her ornaments and furniture.[171] If a wife obeys her husband, she will for that reason alone be exalted in heaven;[172] but by violating her duty towards him, she is disgraced in this world, and after death she enters the womb of a jackal, and is punished with disease for her sin.[173] There is no indication that a woman can obtain legal separation on any account, though she may with impunity "show aversion" towards a mad or outcast husband, a eunuch, one destitute of manly strength, or one afflicted with such diseases as punish crimes.[174] Again, if she is sold or repudiated by her husband, she can never become the legitimate wife of another who may have bought or received her after she was repudiated.[175] But the husband is not allowed to divorce her indiscriminately. A wife who drinks spirituous liquor, is of bad conduct, rebellious, quarrelsome, diseased, mischievous, or wasteful, may at any time be superseded by another wife; a barren one may be superseded in the eighth year; one whose children all die, in the tenth; one who bears daughters only, in the eleventh; whereas a sick wife who is kind to her husband and virtuous in her conduct, may be superseded only with her own consent, and must never be {651} disgraced.[176] The rule, "Let mutual fidelity continue until death," may be considered the summary of the highest law for husband and wife;[177] women must be honoured and adorned by husbands who desire their own welfare.[178] Various passages in the Mahabharata and Ramayana indicate that women in India were subjected to less social restraints in former days than they are at present according to the rules of Brahmanism, and even enjoyed considerable liberty;[179] and the Vedic singers know no more tender relation than that between the husband and his willing, loving wife, who is praised as "his home, the darling abode and bliss in his house."[180] Yet it is noteworthy that goddesses play a very insignificant part in the Veda.[181] In this respect the Pantheon of the Vedic people essentially differs from that of the ancient Egyptians,[182] a difference which may be due to the remarkably high position which woman seems to have occupied in Egypt.[183]

[Footnote 165: Yasts, xxii. 18, 36. Cf. Dînâ-î Maînôg-î Khirad, xxxix. 38 sq.]

[Footnote 166: Laws of Manu, v. 148. Cf. ibid. ix. 2 sq.]

[Footnote 167: Ibid. v. 147.]

[Footnote 168: Ibid. v. 151.]

[Footnote 169: Ibid. v. 156.]

[Footnote 170: Ibid. v. 154.]

[Footnote 171: Ibid. ix. 78.]

[Footnote 172: Ibid. v. 155. Cf. ibid. ix. 29.]

[Footnote 173: Ibid. v. 164; ix. 30.]

[Footnote 174: Ibid. ix. 79.]

[Footnote 175: Ibid. ix. 46. See also the note in Bühler's translation, Sacred Books of the East, xxv. 335.]

[Footnote 176: Laws of Manu, ix. 80 sqq.]

[Footnote 177: Ibid. ix. 101.]

[Footnote 178: Ibid. iii. 55 sqq.]

[Footnote 179: Zimmer, Altindisches Leben, p. 316 sqq. Monier Williams, Indian Wisdom, p. 437 sq.]

[Footnote 180: Kaegi, Rigveda, p. 15.]

[Footnote 181: Macdonell, Vedic Mythology, p. 124 sq.]

[Footnote 182: Maspero, Dawn of Civilisation, p. 101 sq.]

[Footnote 183: Ibid. p. 52. Maspero, Life in Ancient Egypt and Assyria, p. 11. Amélineau L'évolution des idées morales dans l'Égypte Ancienne, p. 68 sqq. Flinders Petrie, Religion and Conscience in Ancient Egypt, p. 131 sq. Brugsch, Aegyptologie, p. 61 sq.]

In Greece, also, a wife appears to have been a more influential and independent personage in ancient times, in Homeric society, than she became afterwards.[184] In the historic age her position was simply that of the domestic drudge; her virtues were reduced to the maintenance of good order in her household and obedience to her husband; her greatest ornament was silence.[185] Aristotle, always a faithful exponent of the most enlightened opinion of his age, gives the following description of what he considers to be the ideal relation of a woman to her husband:--"A good and perfect wife ought to be mistress {652} of everything within the house. . . . But the well-ordered wife will justly consider the behaviour of her husband as a model of her own life, and a law to herself, invested with a divine sanction by means of the marriage tie and the community of life. . . . The wife ought to show herself even more obedient to the rein than if she had entered the house as a purchased slave. For she has been bought at a high price, for the sake of sharing life and bearing children, than which no higher or holier tie can possibly exist."[186] So also, according to Plutarch, the husband ought to rule his wife, but by sympathy and goodwill, as the soul governs the body, not as a master does a chattel.[187] The law invalidated whatever a husband did by the counsel, or at the request, of his wife, whereas the wife, on her part, could transact no business of importance in her own favour, nor by will dispose of more than the value of a bushel of barley.[188] Yet whatever may have been the exact compass of the husband's power in Greece, it was not unlimited. At Athens a woman could demand divorce if she was ill-treated by her husband, in which case she merely had to announce her wishes before the archon.[189]

[Footnote 184: Hermann-Blümner, Lehrbuch der griechischen Privatalterthümer, p. 64 sqq. Mahaffy, Social Life in Greece, p. 53.]

[Footnote 185: Dickinson, Greek View of Life, p. 161. Döllinger, The Gentile and the Jew, ii. 234. 'State of Female Society in Greece,' in Quarterly Review, xxii. 172 sqq.]

[Footnote 186: Aristotle, [OE]conomica, i. 7. Cf. Idem, De animalibus historia, ix. 1. 2 sqq.]

[Footnote 187: Plutarch, Conjugalia præcepta, 33.]

[Footnote 188: Isaeus, Oratio de Aristarchi hereditate, 10, p. 259. Döllinger, op. cit. ii. 234.]

[Footnote 189: Glasson, Le mariage civil et le divorce, p. 152 sq. Meier and Schömann, Der attische Process, p. 512.]

In Rome, in ancient times, the power which the father possessed over his daughter was generally, if not always,[190] by marriage transferred to the husband.[191] When marrying a woman passed in manum viri, as a wife she was filiæ loco, that is, in law she was her husband's daughter.[192] And since the Roman house-father originally had the jus vitæ necisque over his children, the husband naturally had the same power over his wife. But from her being destitute of all legal rights we must not conclude that she was {653} treated with indignity. On the contrary, she generally had a respected and influential position in the family;[193] and though the husband could repudiate her at will, it was said that for five hundred and twenty years a condita urbe there was no such thing as a divorce in Rome.[194] As Mr. Bryce points out, we cannot doubt that the wide power which the law gave to the husband "was in point of fact restrained within narrow limits, not only by affection, but also by the vigilant public opinion of a comparatively small community."[195] Gradually, however, marriage with manus fell into disuse, and was, under the Empire, generally superseded by marriage without manus, a form of wedlock which conferred on the husband hardly any authority at all over his wife. Instead of passing into his power, she remained in the power of her father; and since the tendency of the later law, as we have seen, was to reduce the old patria potestas to a nullity, she became practically independent.[196]

[Footnote 190: Rossbach, Römische Ehe, p. 64. Maine, Ancient Law, p. 155.]

[Footnote 191: Or, properly speaking, to the husband's father, if he was still alive (Rossbach, op. cit. p. 11).]

[Footnote 192: Leist, Alt-arische Juris Civile, i. 175. Maine, op. cit. p. 155.]

[Footnote 193: Rossbach, op. cit. pp. 36, 117.]

[Footnote 194: Valerius Maximus, ii. 1 (De matrimoniorum ritu), Aulus Gellius, Noctes Atticæ, iv. 3. 1.]

[Footnote 195: Bryce, Studies in History and Jurisprudence, ii. 389.]

[Footnote 196: Rossbach, op. cit. pp. 30, 42. Maine, op. cit. p. 155 sq. Friedlaender, Darstellungen aus der Sittengeschichte Roms, i. 252 sqq.]

This remarkable liberty granted to married women, however, was only a passing incident in the history of the family in Europe. From the very first Christianity tended to narrow it. Already the latest Roman law, so far as it is touched by the Constitutions of the Christian Emperors, bears some marks of a reaction against the liberal doctrines of the great Antonine jurisconsults, who assumed the equality of the sexes as a principle of their code of equity.[197] And this tendency was in a formidable degree supported by Teutonic custom and law. Among the Teutons a husband's authority over his wife was the same as a father's over his unmarried daughter.[198] This power, which under certain circumstances gave the husband a right to kill, sell, or repudiate his wife,[199] undoubtedly {654} contained much more than the Church could approve of, and so far she has helped to ameliorate the condition of married women in Teutonic countries. But at the same time the Church is largely responsible for those heavy disabilities with regard to personal liberty, as well as with regard to property, from which they have suffered up to recent times. The systems, says Sir Henry Maine, "which are least

indulgent to married women are invariably those which have followed the Canon Law exclusively, or those which, from the lateness of their contact with European civilisation, have never had their archaisms weeded out."[200]

[Footnote 197: Maine, op. cit. pp. 156, 154.]

[Footnote 198: Brunner, Deutsche Rechtsgeschichte, i. 75. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 323.]

[Footnote 199: Grimm, Deutsche Rechtsalterthümer, p. 450 sq. Brunner, op. cit. i. 75. Schröder, Lehrbuch der deutschen Rechtsgeschichte, p. 303.]

[Footnote 200: Maine, op. cit. p. 159.]

Christianity enjoins a husband to love his wife as his own body,[201] to do honour unto her as unto the weaker vessel.[202] However, "man is not of the woman; but the woman of the man. Neither was the man created for the woman; but the woman for the man. For this cause ought the woman to have power on her head."[203] The husband is the head of the wife, as Christ is the head of the church; hence, "as the church is subject unto Christ, so let the wives be to their own husbands in every thing."[204] It is difficult to exaggerate the influence exercised by a doctrine, so agreeable to the selfishness of men, and so readily lending itself to be used as a sacred weapon against almost any attempt to extend the rights of married women, as was this dictum of St. Paul's. In an essay on the position of women among the early Christians Principal Donaldson writes, "In the first three centuries I have not been able to see that Christianity had any favourable effect on the position of women, but, on the contrary, that it tended to lower their character and contract the range of their activity."[205] And in more modern times Christian orthodoxy has constantly been opposed to the doctrine which once sprang up in pagan {655} Rome and is nowadays supported by a steadily growing number of enlightened men and women, that marriage should be a contract on the footing of perfect equality between husband and wife.

[Footnote 201: Ephesians, v. 28.]

[Footnote 202: 1 Peter, iii. 7.]

[Footnote 203: 1 Corinthians, xi. 8 sqq. Cf. Timothy, ii. 11 sqq.]

[Footnote 204: Ephesians, v. 23 sq.]

[Footnote 205: Donaldson, 'Position of Women among the Early Christians,' in Contemporary Review, lvi. 433.]

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The position of married women among the various peoples on earth depends on such a variety of circumstances that it would be impossible to enumerate them all. We shall here consider only the most important.

A few words must first be said about the hypothesis that the social status of women is connected with the system of tracing descent. Dr. Steinmetz has tried to show that the husband's authority over his wife is, broadly speaking, greater among those peoples who reckon kinship through the father than among those who reckon kinship through the mother only.[206] The cases examined by Dr. Steinmetz, however, are too few to allow of any general conclusions, and the statements concerning the husband's rights are commonly so indefinite and so incomplete that I think the evidence would be difficult to produce, even if the investigation were based on a larger number of facts. Besides, the paternal and maternal systems of descent are often so interwoven with each other among one and the same people, that it may equally well be referred to the one class as to the other[207]--a difficulty which Dr. Steinmetz must surely have felt in his attempt to treat the subject statistically. There is, moreover, the weak point of the statistical method generally, the question of selecting ethnographical units, which I

have discussed in another place.[208] How, for instance, are we to deal with the various tribes of Australia? They can certainly not, all in a lump, be counted as one single unit; among some of them the maternal system prevails, among others the paternal. But then, shall we reckon each tribe as one {656} unit by itself, or, if not, into how many groups shall we divide them? When I compare with each other peoples of the same race, at the same stage of culture, living in the same neighbourhood, under similar conditions of life, but differing from one another in their method of reckoning kinship, I do not find that the prevalence of the one or the other line of descent conspicuously affects the husband's authority. Nothing of the kind has been noticed in Australia, nor, so far as I know, in India, where the paternal system among many of the aboriginal tribes is combined with great, or even extraordinary, rights on the part of the wife. Among the West African Negroes the position of women is, to all appearance, no less honourable in tribes like the Ibos, among whom inheritance runs through males, than in tribes which admit inheritance through females only;[209] and of the Fulah, among whom succession goes from father to son,[210] Mr. Winwood Reade observes that their women are "the most tyrannical wives in Africa," knowing "how to make their husbands kneel before their charms, and how to place their little feet upon them."[211] But we have reason to believe that when the man, on marrying, quits his home and goes to live with his wife in the house or community of her father, his authority over his wife is commonly more or less impaired by the presence of her father or kinsfolk.[212] In Sumatra, in the mode of marriage called ambel anak, he lives with his father-in-law in a state between that of a son and that of a debtor.[213] But it should be noticed that neither his living with the family of his wife, nor even his dependence on her father, necessarily implies a total absence of marital power. Among the Californian Yokuts, though the husband takes up his abode in his {657} wife's or father-in-law's house, he is expressly stated to have the power of life and death over her.[214] So, also, in the Western islands of Torres Straits, though a man after marriage usually left his own people and went to live with those of his wife, he had complete control over her. "In spite of the wife having asked her husband to marry her, he could kill her should she cause trouble in the house, and that without any penal consequence to himself. The payment of a husband to his wife's father gave him all rights over her, and at the same time annulled those of her father or her family."[215]

[Footnote 206: Steinmetz, Ethnologische Studien zur ersten Entwicklung der Strafe, ii. ch. 7.]

[Footnote 207: Cf. Westermarck, op. cit. p. 99 sqq.]

[Footnote 208: Idem, 'Méthode pour la recherche des institutions préhistoriques à propos d'un ouvrage du professeur Kohler,' in Revue Internationale de Sociologie, v. 451.]

[Footnote 209: Ratzel, op. cit. iii. 124.]

[Footnote 210: Waitz, op. cit. ii, 469.]

[Footnote 211: Reade, Savage Africa, p. 452.]

[Footnote 212: See Mazzarella, La condizione giuridica del marito nella famiglia matriarcale, passim; Grosse, Die Formen der Familie, p. 76; Wilkes, U.S. Exploring Expedition, iv. 447 (Spokane Indians). It seems, however, that Dr. Mazzarella in several cases infers the husband's complete subjection to his father-in-law from statements in which such a subjection is not really implied.]

[Footnote 213: Marsden, History of Sumatra, p. 262.]

[Footnote 214: Powers, Tribes of California, p. 382.]

[Footnote 215: Haddon, Head-Hunters, p. 160 sq.]

In the first place, wives' subjection to their husbands is due to the men's instinctive desire to exert power and to the natural inferiority of women in such qualities of body and mind as are essential for personal independence. Generally speaking, the men are their superiors in strength and courage. They are therefore not only the protectors of their wives, but also their masters.

In the sexual impulse itself there are elements which lead to domination on the part of the man and to submission on the part of the woman. In courtship, animal and human alike, the male plays the more active, the female the more passive part. During the season of love the males even of the most timid animal species engage in desperate combats with each other for the possession of the female, and there can be no doubt that our primeval human ancestors had, in the same way, to fight for their wives; even now this kind of courtship is far from being unknown among savages.[216] Moreover, the male pursues and tries to capture the female, and she, after some resistance, finally surrenders herself to him. The sexual impulse of the male is thus connected with a desire to win the female, and the sexual impulse of the female with a desire to be pursued and won by the male. In the female sex there is consequently an instinctive appreciation of manly strength and courage; this is found in most {658} women, and especially in the women of savage races, who, like the females of the lower Vertebrates, commonly give the preference to "the most vigorous, defiant, and mettlesome male."[217] And woman enjoys the display of manly force even when it turns against herself. It is said that among the Slavs of the lower class the wives feel hurt if they are not beaten by their husbands; that the peasant women in some parts of Hungary do not think they are loved by their husbands until they have received the first box on the ear; that among the Italian Camorrists a wife who is not beaten by her husband regards him as a fool.[218] Dr. Havelock Ellis believes that the majority of women would probably be prepared to echo the remark made by a woman in front of Rubens's 'Rape of the Sabines,' "I think the Sabine women enjoyed being carried off like that."[219] The same judicious student of the psychology of sex observes:--"While in men it is possible to trace a tendency to inflict pain, or the simulacrum of pain, on the women they love, it is still easier to trace in women a delight in experiencing physical pain when inflicted by a lover, and an eagerness to accept subjection to his will. Such a tendency is certainly normal. To abandon herself to her lover, to be able to rely on his physical strength and mental resourcefulness, to be swept out of herself and beyond the control of her own will, to drift idly in delicious submission to another and stronger will--this is one of the commonest aspirations in a young woman's intimate love-dreams."[220]

[Footnote 216: Westermarck, op. cit. p. 159 sqq.]

[Footnote 217: Westermarck, op. cit. p. 255 sq.]

[Footnote 218: Havelock Ellis, Studies in the Psychology of Sex, 'Analysis of the Sexual Impulse,' &c. p. 66 sq.]

[Footnote 219: Ibid. p. 75.]

[Footnote 220: Ibid. p. 74.]

But although a certain degree of submissiveness comes within the normal limits of female love, though "a woman may desire to be forced, to be roughly forced, to be ravished away beyond her own will." she all the time only desires to be forced towards those things which are essentially agreeable to her.[221] If the man's domination is carried beyond those limits, it is no longer enjoyed by the {659} woman, but is felt as a burden, and may call forth resistance. In extreme cases of oppression, at any rate, the community at large would sympathise with her, and the public resentment against the oppressor would gradually result in customs or laws limiting the husband's rights.

Yet perfect impartiality is hardly to be expected from the community. The men are the leaders of public opinion, and they have a tendency to favour their own sex. On the other hand, the offended woman may count upon the support of her fellow-sisters, and thus the women combined may influence tribal habits and, ultimately, the rules of custom. Among the Papuans of Port Moresby, for instance, "it is a rare occurrence for a man to beat his wife, and he does not like to be reminded of the fact if hasty temper has led him into this mistake. The other women generally make a song about it, and sing it whenever he appears; and as no one is so sensitive of ridicule as a New Guinean savage, he will endure a great deal, even from a shrew wife, before he attempts to lift his hand."[222] Among the West African Fulah, if a man repudiates his wife, the women of the village attack him en masse; "like the members of a priesthood, they hate but protect each other."[223] We have, moreover, to consider that the children's affection and regard for their mother gives her a power which is no less real because it is not definitely expressed in custom or law. In Oriental countries, for example, the mother is always an important personage in the family. Children are afraid of their father but love their mother, and when grown-up would certainly be ready to protect her against a cruel husband.[224]

[Footnote 221: Ibid. p. 85.]

[Footnote 222: Nisbet, A Colonial Tramp, ii. 181 sq.]

[Footnote 223: Reade, Savage Africa, p. 452. See also Möller, Pagels, and Gleerup, op. cit. i. 171 (Lukungu); Munzinger, Ostafrikanische Studien, p. 324 (Beni Amer).]

[Footnote 224: Cf. Burton, Sindh Revisited, i. 293; Urquhart, Spirit of the East, ii. 265 sq.; Doughty, Arabia Deserta, i. 239; Westermarck, 'Position of Woman in Early Civilisation,' in Sociological Papers, [1.] p. 160.]

It has often been said that the position of women and the degree of their dependence among a certain people are largely influenced by economic conditions. Thus Mr. {660} Hale maintains that the condition of women is "a question of physical comfort, and mainly of the abundance or lack of food. . . . When men in their full strength suffer from lack of the necessaries of existence, and are themselves slaves to the rigours of the elements, their better feelings are benumbed or perverted, like those of shipwrecked people famishing on a raft. Under such circumstances the weaker members of the community--women, children, the old, the sick--are naturally the chief sufferers."[225] With reference to the North American Indians the observation has been made that, where the women can aid in procuring subsistence for the tribe, they are treated with more equality, and their importance is proportioned to the share which they take in that labour; whereas in places where subsistence is chiefly procured by the exertions of the men, the women are considered and treated as burdens. Thus, the position of women is exceptionally good in tribes living upon fish and roots, which the women procure with the same expertness as the men, whereas it is among tribes living by the chase, or by other means in which women can be of little service, that we find the sex most oppressed.[226] Dr. Grosse, again, emphasises the low status of women not only among hunters, but among pastoral tribes as well. "The women," he says, "not being permitted to take part in the rearing of cattle, and not being able to take part in war, possess nothing which could command respect with the rude shepherd and robber."[227] Among the lower agricultural tribes, on the other hand, Dr. Grosse adds, the position of the female sex is often higher. The cultivation of the ground mostly devolves on the woman, and among peoples who chiefly subsist by agriculture it is not an occupation which is looked down upon, as it is among nomadic tribes. This gives the woman a {661} certain standing, owing to her importance as a food-provider.[228]

[Footnote 225: Hale, 'Language as a Test of Mental Capacity,' in Jour. Anthr. Inst. xxi. 427.]

[Footnote 226: Lewis and Clarke, Travels to the Source of the Missouri River, p. 441. Waitz, op. cit. iii. 343. Bancroft, Native Races of the Pacific States, i. 242 sq.]

[Footnote 227: Grosse, op. cit. pp. 48, 49, 74, 75, 109 sqq.]

[Footnote 228: Ibid. p. 182.]

In these generalisations there is no doubt a great deal of truth; but they do not hold good universally or without modifications. Among several peoples who subsist chiefly by the chase or the rearing of cattle, the position of women is exceedingly good. To mention only one instance out of many, Professor Vámbéry observes that among the nomadic Kara-Kirghiz the female sex is treated with greater respect than among those Turks who lead a stationary life and practise agriculture.[229] Indeed, the general theory that women are more oppressed in proportion as they are less useful, is open to doubt. Commonly they are said to be oppressed by their savage husbands just by being compelled to work too hard; and that work does not necessarily give authority is obvious from the institution of slavery. But at the same time the notion, prevalent in early civilisation, that the one sex must not in any way interfere with the pursuits of the other sex, may certainly, especially when applied to an occupation of such importance as agriculture, increase the influence of those who are engaged in it. Considering further that the cultivated soil is not infrequently regarded as the property of the women who till it,[230] it is probable that, in certain cases at least, the agricultural habits of a people have had a favourable effect upon the general condition of the female sex, and at the same time on the wife's position in the family.

[Footnote 229: Vámbéry, Das Türkenvolk, p. 268.]

[Footnote 230: Grosse, op. cit. p. 159 sq.]

The status of wives is in various respects connected with the ideas held about the female sex in general. Woman is commonly looked upon as a slight, dainty, and relatively feeble creature, destitute of all nobler qualities.[231] Especially among nations more advanced in culture she is regarded as intellectually and morally vastly inferior to man. In Greece, in the historic age, the latter recognised {662} in her no other end than to minister to his pleasure or to become the mother of his children. There was also a general notion that she was naturally more vicious, more addicted to envy, discontent, evil-speaking, and wantonness, than the man.[232] Plato classes women together with children and servants,[233] and states generally that in all the pursuits of mankind the female sex is inferior to the male.[234] Euripides puts into the mouth of his Medea the remark that "women are impotent for good, but clever contrivers of all evil."[235] According to the Vedic singer, again, "woman's mind is hard to direct aright, and her judgment is small."[236] To the Buddhist, women are of all the snares which the tempter has spread for men the most dangerous; in women are embodied all the powers of infatuation which bind the mind of the world.[237] The Chinese have a saying to the effect that the best girls are not equal to the worst boys.[238] Islam pronounces the general depravity of women to be much greater than that of men.[239] According to Muhammedan tradition, the Prophet said:--"I have not left any calamity more hurtful to man than woman. . . . O assembly of women, give alms, although it be of your gold and silver ornaments; for verily ye are mostly of Hell on the Day of Resurrection."[240] The Hebrews represented woman as the source of evil and death on earth:--"Of the woman came the beginning of sin, and through her we all die."[241] This notion passed into Christianity. Says St. Paul, "Adam was not deceived, but the woman being deceived was in the transgression."[242] Tertullian maintains that a woman should go about in

humble garb, mourning and repentant, in order to expiate that which she derives from Eve, the ignominy {663} of the first sin, and the odium attaching to her as the cause of human perdition. "Do you not know," he exclaims, "that you are each an Eve? The sentence of God on this sex of yours lives in this age; the guilt must of necessity live too. You are the devil's gateway; you are the unsealer of that [forbidden] tree; you are the first deserter of the divine law; you are she who persuaded him whom the devil was not valiant enough to attack. You destroyed so easily God's image, man. On account of your desert--that is, death--even the Son of God had to die."[243] At the Council of Mâcon, towards the end of the sixth century, a bishop even raised the question whether woman really was a human being. He answered the question in the negative; but the majority of the assembly considered it to be proved by Scripture that woman, in spite of all her defects, yet was a member of the human race.[244] However, some of the Fathers of the Church were careful to emphasise that womanhood only belongs to this earthly existence, and that on the day of resurrection all women will appear in the shape of sexless beings.[245]

[Footnote 231: Crawley, The Mystic Rose, p. 204 sq.]

[Footnote 232: Dickinson, op. cit. p. 159. Döllinger, op. cit. ii. 234.]

[Footnote 233: Plato, Respublica, iv. 431.]

[Footnote 234: Ibid. v. 455.]

[Footnote 235: Euripides, Medea, 406 sqq.]

[Footnote 236: Rig-Veda, viii. 33. 17.]

[Footnote 237: Oldenburg, Buddha, p. 165. Cf. Kern, Manual of Indian Buddhism, p. 69.]

[Footnote 238: Smith, Proverbs of the Chinese, p. 265.]

[Footnote 239: Lane, Arabian Society, p. 219. Cf. Doughty, Arabia Deserta, i. 238.]

[Footnote 240: Lane-Poole, Speeches of Mohammad, pp. 161, 163.]

[Footnote 241: Ecclesiasticus, xxv. 24.]

[Footnote 242: 1 Timothy, ii. 14.]

[Footnote 243: Tertullian, De cultu f[oe]minarum, i. 1 (Migne, Patrologiæ cursus, i. 1305). See also Laurent, Études sur l'histoire de l'humanité, iv. 113.]

[Footnote 244: Gregory of Tours, Historia Francorum, viii. 20.]

[Footnote 245: St. Hilar., Commentarius in Matthæum, xxiii. 4 (Migne, op. cit. ix. 1045 sq.). St. Basil, Homilia in Psalmum cxiv. 5 (Migne, op. cit. Ser. Graeca, xxix. 488).]

Progress in civilisation has exercised an unfavourable influence on the position of woman by widening the gulf between the sexes, as the higher culture was almost exclusively the prerogative of the men. Moreover, religion, and especially the great religions in the world, have contributed to the degradation of the female sex by regarding woman as unclean. During menstruation, or when with child, or at child-birth, she is considered to be polluted, to be charged with mysterious baneful energy, which is a danger to all around her.[246] The cause of this notion seems to lie in the {664} superstitious dread of those marvellous processes which then take place, and it reaches its height where there is appearance of blood.[247] On such occasions woman is shunned not only by men, but in an even higher degree by gods, for the obvious reason that contact with the unclean woman would injure or destroy their holiness. Indeed, the danger is considered so great, that many religions regard women as defiled not only temporarily, but permanently, and on that ground exclude them from religious worship.

[Footnote 246: Ploss-Bartels, Das Weib, i. 420 sqq.; ii. 10 sqq., 402 sqq. Frazer, Golden Bough, i. 325 sqq.; iii. 222 sqq. Crawley, op. cit. p. 165 sqq.; Mathew, Eaglehawk and Crow, p. 144 (Australian aborigines), de Rochas, Nouvelle Calédonie, p. 283. Mooney,

'Myths of the Cherokee,' in Ann. Rep. Bur. Ethn. xix. 469. Sumner, in Jour. Anthr. Inst. xxxi. 96 (Jakuts). Georgi, Russia, iii. 25 sq. (Samoyedes), 245, sq. (Shamanists of Siberia generally); &c.]

[Footnote 247: Professor Durkheim maintains ('La prohibition de l'inceste et ses origines,' in L'année sociologique, i. especially p. 48 sqq.) that the origin of the occult powers attributed to the feminine organism is to be found in primitive ideas concerning blood, any kind of blood, not only menstrual, being the object of similar feelings among savages and barbarians. Mr. Crawley justly remarks (op. cit. p. 212) that there is no flux of blood during pregnancy, when woman is regularly taboo; that her hair, nail-parings, and occupations can hardly be avoided from a fear of her blood; and that there is also the female side of the question to be taken into account.]

In the Society Islands a woman was forbidden to touch whatever was presented as an offering to the gods, so as not to pollute it.[248] In Melanesia women are generally excluded from religious rites.[249] Among the Shamanists of Siberia women "are interdicted the worship of the deities, and dare not pass round the common hearth of their habitations, because fire is sacred to the gods."[250] The women of the Voguls are generally prohibited from approaching idols or holy places.[251] A Votyak woman may not be present at the sacrifices made to the lud, or evil spirit.[252] Among the Lapps a woman was not allowed to touch a noaid's, or wizard's, drum; nor, as a rule, to take part in sacrificial rites; nor even to look in the direction of a place where sacrifices were offered.[253] Among the Ainos of Japan, "though a woman may prepare a divine offering, she may not offer it. . . . Accordingly, women are never allowed to pray, or to take any part in any religious {665} exercise."[254] In China women are not allowed to go and worship in the temples.[255]

[Footnote 248: Ellis, Polynesian Researches, i. 129. Cf. Wegener, Geschichte der christlichen Kirche auf dem Gesellschafts-Archipel, p. 181.]

[Footnote 249: Codrington, Melanesians, p. 127.]

[Footnote 250: Georgi, op. cit. iii. 245. Cf. ibid. iii. 25.]

[Footnote 251: Abercromby, Pre- and Proto-historic Finns, i. 181.]

[Footnote 252: Wichmann, Tietoja Votjaakkien Mytologiiasta, p. 17. See also ibid. p. 27.]

[Footnote 253: von Düben, Lappland och Lapparne, p. 276. Friis, Lappisk Mythologi, p. 147.]

[Footnote 254: Howard, op. cit. p. 195.]

[Footnote 255: Indo-Chinese Gleaner, iii. 156.]

In ancient Nicaragua women were held unworthy to perform any duty in connection with the temples, and were immolated outside the temple ground of the large sanctuaries, and even their flesh was unclean food for the high priest, who accordingly ate only the flesh of males.[256] In Mexico, although some women were employed in the immediate service of the temples, they were entirely excluded from the office of sacrificing, and the higher dignities of the priesthood.[257]

[Footnote 256: Bancroft, op. cit. iii. 494.]

[Footnote 257: Clavigero, History of Mexico, i. 274 sq.]

According to the sacred books of India, "women are considered to have no business with the sacred texts";[258] and, being destitute of the knowledge of Vedic texts, they "are as impure as falsehood itself, that is a fixed rule."[259] Although, according to a Vedic ordinance mentioned in the Laws of Manu, husband and wife ought to perform religious rites together,[260] they have, among the present Hindus, no religious life in common; the women are not allowed to repeat the Veda, or to go through the morning

and evening Sandhy[=a] services.[261] If a woman, a dog, or a Sûdra, touch a consecrated image, its godship is destroyed; the ceremonies of deification must therefore be performed afresh, whilst a clay image, if thus defiled, must be thrown away. If women should worship before a consecrated image, they must keep at a respectful distance from the idol.[262]

[Footnote 258: Baudhâyana, i. 5. 11. 7.]

[Footnote 259: Laws of Manu, ix. 18. Cf. ibid. ii. 66; iii. 121.]

[Footnote 260: Ibid. ix. 96.]

[Footnote 261: Monier Williams, Br[=a]hmanism and Hind[=u]ism, p. 398.]

[Footnote 262: Ward, View of the History, &c., of the Hindoos, ii. 13, 36.]

Islam is chiefly a religion for men. Though Muhammed did not forbid women to attend public prayers in a mosque, he pronounced it better for them to pray in private, as the presence of females might inspire in the men a different kind of devotion from that which is requisite in a place dedicated to the worship of God.[263] Women are absolutely excluded from many Muhammedan places of worship, and are frowned upon if they venture to appear in others, at any rate while men are there.[264]

[Footnote 263: Lane, Manners and Customs of the Modern Egyptians, p. 94.]

[Footnote 264: Pool, Studies in Mohammedanism, p. 39 sq.]

In Christian Europe, as ascetic ideas advanced, the women sat or stood in the church apart from the men, and entered by a separate door.[265] They were excluded from sacred functions. {666} In the early Church, it is true, there were "deaconesses" and clerical "widows," but their offices were merely to perform some inferior services of the church;[266] and even these very modest posts were open only to virgins or widows of a considerable age.[267] Whilst a layman could in case of necessity administer baptism, a woman could never, as it seems, perform such an act.[268] Nor was a woman allowed to preach publicly in the church, either by the Apostle's rules or those of succeeding ages;[269] and it was a serious complaint against certain heretics that they allowed such a practice. "The heretic women," Tertullian exclaims, "how wanton are they! they who dare to teach, to dispute, to practise exorcisms, to promise cures, perchance, also, to baptise!"[270] A Council held at Auxerre at the end of the sixth century forbade women to receive the Eucharist into their naked hands;[271] and in various Canons women were enjoined not to come near to the altar while mass was celebrating.[272] To such an extent was this opposition against women carried that the Church of the Middle Ages did not hesitate to provide itself with eunuchs in order to supply cathedral choirs with the soprano tones inhering by nature in women alone.[273]

[Footnote 265: Donaldson, in Contemporary Review, lvi. 438.]

[Footnote 266: Zscharnack, Der Dienst der Frau in den ersten Jahrhunderten der christlichen Kirche, p. 99 sqq. Robinson, Ministry of Deaconesses, passim.]

[Footnote 267: Ibid. pp. 113, 114, 125.]

[Footnote 268: Bingham, Works, iv. 45. Zscharnack, op. cit. p. 93.]

[Footnote 269: Bingham, op. cit. v. 107 sqq. Zscharnack, op. cit. p. 73 sqq.]

[Footnote 270: Tertullian, De præscriptionibus adversus hæreticos, 41 (Migne, op. cit. ii. 56). Cf. Tertullian, De baptismo, 17 (Migne, op. cit. i. 1219).]

[Footnote 271: Concilium Autisiodorense, A.D. 578, can. 36 (Labbe-Mansi, Sacrorum Conciliorum collectio, ix. 915).]

[Footnote 272: Canones Concilii Laodiceni, 44 (Labbe-Mansi, op. cit. ii. 581, 589). 'Epitome canonum, quam Hadrianus I. Carolo Magno obtulit, A.D. DCCLXXIII.,' in Labbe-Mansi, op. cit. xii. 868. Canons enacted under King Edgar, 44 (Ancient Laws and Institutes of England, p. 399).]

[Footnote 273: Cf. Gage, Woman, Church and State, p. 57.]

But the notion that woman is either temporarily or permanently unclean, that she is a mysterious being charged with supernatural energy, is not only a cause of her degradation; it also gives her a secret power over her husband, which may be very considerable. During my stay among the country people of Morocco, Arabs and Berbers alike, I was often struck by the superstitious fear with which the women imbued the men. They are supposed to be much better versed in magic, and have also splendid opportunities to practise it to the detriment {667} of their husbands, as they may easily bewitch the food they prepare for them. For instance, the wife only needs to cut off a little piece of a donkey's ear and put it into the husband's food. What happens? By eating that little piece the husband will, in his relations to his wife, become just like a donkey; he will always listen to what she says, and the wife will become the ruler of the house. I also believe that the men on purpose abstain from teaching the women prayers, so as not to increase their supernatural power.[274] In the Arabian Desert men are likewise afraid of their women "with their sly philters and maleficent drinks."[275] In Dahomey "the husband may not chastise or interfere with his wife whilst the fetish is 'upon' her, and even at other times the use of the rod might be dangerous."[276] Women, and especially old ones, are very frequently regarded as experts in magic. [277] Among the ancient Arabs,[278] Babylonians,[279] and Peruvians,[280] as in Europe during the Middle Ages and later, the witch appeared more frequently than the male sorcerer. So, also, in the Government of Tomsk in Southern Siberia, native sorceresses are much more numerous than wizards;[281] and among the Californian Shastika all, or nearly all, of the {668} shamans are women.[282] The curses of women are greatly feared. In Morocco it is considered even a greater calamity to be cursed by a Shereefa, or female descendant of the Prophet, than to be cursed by a Shereef. According to the Talmud, the anger of a wife destroys the house;[283] but, on the other hand, it is also through woman that God's blessings are vouchsafed to it.[284] We read in the Laws of Manu:--"Women must be honoured and adorned by their fathers, brothers, husbands, and brothers-in-law, who desire their own welfare. Where women are honoured, there the gods are pleased; but where they are not honoured, no sacred rite yields rewards. Where the female relations live in grief, the family soon wholly perishes; but that family where they are not unhappy ever prospers. The houses on which female relations, not being duly honoured, pronounce a curse, perish completely as if destroyed by magic. Hence men who seek their own welfare should always honour women on holidays and festivals with gifts of ornaments, clothes, and dainty food."[285] A Gaelic proverb says, "A wicked woman will get her wish, though her soul may not see salvation."[286] Closely connected with the belief in the magic power of women, and especially, I think, in the great efficacy of their curses, is the custom according to which a woman may serve as an asylum.[287] In various tribes of Morocco, especially among the Berbers and Jbâla, a person who takes refuge with a woman by touching her is safe from his persecutor. Among the Arabs of the plains this custom is dying out, probably owing to their subjection under the Sultan's government; but amongst certain Asiatic Bedouins, the tribe of Shammar, "a woman can protect any number of persons, or even of tents."[288] {669} Among the Circassians "a stranger who intrusts himself to the patronage of a woman, or is able to touch with his mouth the breast of a wife, is spared and protected as a relation of the blood, though he were the enemy, nay even the murderer of a similar relative."[289] The inhabitants of Bareges in Bigorre have, up to recent times, preserved the old custom of pardoning a criminal who has sought refuge with a woman.[290]

[Footnote 274: We are told that among the Ainos of Japan women are forbidden to pray, not only in conformity with ancestral custom, but because the men are afraid of the prayers of the women in general, and of their wives in particular. An old man said to Mr. Batchelor:--"The women as well as the men used to be allowed to worship the gods and take part in all religious exercises; but our wise honoured ancestors forbade them to do so, because it was thought they might use their prayers against the men, and more particularly against their husbands. We therefore think that it is wiser to keep them from praying" (Batchelor, Ainu and their Folk-Lore, p. 550 sq. Howard, op. cit. p. 195). Among the Santals the men are careful not to divulge the names of their household gods to their wives, for fear lest the latter should acquire undue influence with the gods, become witches, and "eat up the family with impunity when the protection of its gods has been withdrawn" (Risley, Tribes and Castes of Bengal, Ethnographic Glossary, ii. 232).]

[Footnote 275: Doughty, Arabia Deserta, ii. 384.]

[Footnote 276: Burton, Mission to Gelele, ii. 155.]

[Footnote 277: Ploss-Bartels, op. cit. ii. 664, 666 sqq. Mason, op. cit. p. 255 sqq. Landtman, Origin of Priesthood, p. 198 sq. Angas, Savage Life and Scenes in Australia and New Zealand, i. 317 (Maoris). Connolly, 'Social Life in Fanti-land,' in Jour. Anthr. Inst. xxvi. 150.]

[Footnote 278: Wellhausen, Reste arabischen Heidentums, p. 159.]

[Footnote 279: Jastrow, Religion of Babylonia, pp. 267, 342.]

[Footnote 280: Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, i. 60.]

[Footnote 281: Kostroff, quoted by Landtman, op. cit. p. 199.]

[Footnote 282: Powers, Tribes of California, p. 246.]

[Footnote 283: Sota, fol. 3 B, quoted by Katz, Der wahre Talmudjude, p. 110 sq.]

[Footnote 284: Baba Meziah, fol. 59 A, quoted ibid. p. 112. Deutsch, Literary Remains, p. 56.]

[Footnote 285: Laws of Manu, iii. 55 sqq.]

[Footnote 286: Carmichael, Carmina Gadelica, ii. 317.]

[Footnote 287: For some instances of this custom see Andree, 'Die Asyle,' in Globus, xxxviii. 302; Bachofen, Das Mutterrecht, p. 420 (Basques).]

[Footnote 288: Layard, Discoveries in the Ruins of Nineveh and Babylon, p. 318.]

[Footnote 289: Pallas, Travels through the Southern Provinces of the Russian Empire, i. 404.]

[Footnote 290: Fischer, Bergreisen, i. 60.]

Yet another factor remains to be mentioned as a cause of the subjection in which married women are held by many peoples of culture. We have noticed that in archaic civilisation the father's power over his children is extreme, that the State whilst weakening or destroying the clan-tie strengthened the family-tie, and that the father was invested with some part of the power which formerly belonged to the clan.[291] This process must also have affected the status of married women. The husband's power over his wife is closely connected with the father's power over his daughter; for, by giving her in marriage, he generally transfers to the husband the authority which he himself previously possessed over her as a paternal right.

[Footnote 291: Supra, ch. xxv. especially p. 627 sq.]

In modern civilisation, on the other hand, we find, hand in hand with the decrease of the father's power, a decrease of the husband's authority over his wife. But the causes of the gradual emancipation of married women are manifold. Life has become

more complicated; the occupations of women have become much more extensive; their influence has expanded correspondingly, from the home and household to public life. Their widened interests have interfered with that submissiveness which is an original characteristic of their sex. Their greater education has made them more respected, and has increased their independence. Finally, the decline of the influence exercised by antiquated religious ideas is removing what has probably been the most persistent cause of the wife's subjection to her husband's rule.

Chapter XXVII — Slavery

SLAVERY is essentially an industrial institution, which implies compulsory labour beyond the limits of family relations. The master has a right to avail himself of the working power of his slave, without previous agreement on the part of the latter. This I take to be the essence of slavery; but connected with such a right there are others which hardly admit of a strict definition, or which belong to the master in some cases though not in all. He is entitled to claim obedience and to enforce this claim with more or less severity, but his authority is not necessarily absolute, and the restrictions imposed on it are not everywhere the same. According to a common definition of slavery, the slave is the property of his master,[1] but this definition is hardly accurate. It is true that even in the case of inanimate property the notion of ownership does not involve that the owner of a thing is always entitled to do with it whatever he likes; a person may own a thing and yet be prohibited by law from destroying it. But it seems that the owner's right over his property, even when not absolute, is at all events exclusive, that is, that nobody but the owner has a right to the disposal of it. Now the master's right of disposing of his slave is not necessarily {671} exclusive; custom or law may grant the latter a certain amount of liberty, and in such a case his condition differs essentially from that of a piece of property. The chief characteristic of slavery is the compulsory nature of the slave's relation to his master. Voluntary slavery, as when a person sells himself as a slave, is only an imitation of slavery true and proper; the person who gives up his liberty confers upon another, by contract, either for a limited period or for ever, the same rights over himself as a master possesses over his slave. If slavery proper could be based upon a contract between the parties concerned, I fail to see how to distinguish between a servant and a slave.

[Footnote 1: Nieboer, Slavery as an Industrial System, p. 4 sqq. Dr. Nieboer himself defines slavery as "the fact, that one man is the property or possession of another beyond the limits of the family proper" (ibid. p. 29).]

Dr. Nieboer has recently with much minuteness examined the distribution of slavery and its causes among savage races. It appears from his work that slavery is unknown in Australia, and in Oceania restricted to certain islands. In the Malay Archipelago, on the other hand, it prevails very extensively. Among the aboriginal tribes of India and the Indo-Chinese Peninsula it is fairly common, whereas no certain traces of it are found among the lower races of Central Asia and Siberia, with the exception of the Kamchadales. In North America it exists along the Pacific Coast from Behring Strait to the northern boundary of California, but beyond this district it seems to be unknown. In Central and South America there are at any rate several scattered cases of it, and if our knowledge of the South American Indians were less fragmentary, many other instances might perhaps be added. In savage Africa there are only one or two districts where no

certain cases of slavery are encountered, whilst large agglomerations of slave-keeping tribes occur on the Coast of Guinea and in the district formed by Lower Guinea and the territories bordering the Congo.[2]

[Footnote 2: Nieboer, op. cit. p. 47 sqq.]

Slaves are kept only where there is employment for them, and where the circumstances are otherwise favourable to the growth of slavery. Its existence or non-existence {672} in a tribe largely depends on the manner in which that tribe lives. Among hunters it hardly occurs at all. Mr. Spencer justly observes that, "in the absence of industrial activity, slaves are almost useless; and, indeed, where game is scarce, are not worth their food."[3] Moreover, they would have to be procured from foreign tribes, and to prevent such slaves from running away would be almost impossible for hunters who roam over vast tracts of land in pursuit of game, especially if the slaves also were engaged in hunting. For a small community of hunters--and their communities generally are small[4]--it might even be dangerous to keep foreign slaves in their midst.[5] Among fishing tribes, on the other hand, slavery is much more common, attaining a special importance among those who live on or near the Pacific Coast of North-Western America. These tribes have an abundance of food, they have fixed habitations, they live in comparatively large groups, and trade and industry, property and wealth, are well developed among them. In consequence, they find the services of slaves useful, and, at the same time, the slaves have little chance of making their escape.[6]

[Footnote 3: Spencer, Principles of Sociology, iii. 459.]

[Footnote 4: Westermarck, History of Human Marriage, p. 43 sqq. Hildebrand, Recht und Sitte, p. 1 sqq.]

[Footnote 5: Nieboer, op. cit., p. 191 sqq.]

[Footnote 6: Ibid. p. 199 sqq.]

Of the pastoral tribes referred to in Dr. Nieboer's list only one half keep slaves, and among some of these slave-keeping is said to be a mere luxury. To pastoral peoples, as such, slave labour is of little moment. Among them subsistence depends much more on capital than on labour, and for the small amount of work which is required free labourers are easily procured. As Dr. Nieboer observes, "among people who live upon the produce of their cattle, a man who owns no cattle, i.e. no capital, has no means of subsistence. Accordingly, among pastoral tribes we find rich and poor men; and the poor often offer themselves as labourers to the rich."[7] Pastoral peoples have thus no strong motives for making slaves, but at the same {673} time "there are no causes preventing them from keeping slaves. These tribes are, so to speak, in a state of equilibrium; a small additional cause on either side turns the balance. One such additional cause is the slave-trade; another is the neighbourhood of inferior races." All those pastoral peoples who keep slaves live in districts where an extensive slave-trade has for a long time been carried on. The slaves are often purchased from slave-traders, and in several cases they belong to an inferior race.[8]

[Footnote 7: See also Hildebrand, op. cit. p. 38 sq.]

[Footnote 8: Nieboer, op. cit. p. 261 sqq.]

Among agricultural peoples slavery prevails more extensively; further, it is more common among such tribes as subsist chiefly by agriculture than among incipient agriculturists, who still depend on hunting or fishing for a large portion of their food. In primitive agricultural communities nobody voluntarily serves another, because subsistence is independent of capital and easy to procure. "All freemen in new countries," says Mr. Bagehot, "must be pretty equal; every one has labour, and every one has land; capital, at least in agricultural countries (for pastoral countries are very different), is of

little use; it cannot hire labour; the labourers go and work for themselves."[9] Hence in such countries, if a man wants another to work for him, he must compel him to do it--that is, he must make him his slave. This holds true of most savage countries, namely, of all those in which there is much more fertile land than is required to be cultivated for the support of the actual population; but it does not hold true of all. Where every piece of land fit for cultivation has been appropriated, a man who owns no land cannot earn his subsistence independently of a landlord; hence free labourers are available, slaves are not wanted, and slavery is not likely to exist. And even where there are no poor persons, but everybody has a share in the resources of the country, the use of slaves cannot be great, since a man who owns a limited capital, or a limited quantity of land, can only employ a limited number of labourers. {674} For instance, the absence of slavery in many Oceanic islands may be accounted for by the fact that all land had been appropriated, which led to a state of things inconsistent with slavery as a social system.[10]

[Footnote 9: Bagehot, Physics and Politics, p. 72.]

[Footnote 10: Nieboer, op. cit. pp. 294-347, 420 sq.]

These are the main conclusions at which Dr. Nieboer has arrived by means of much admirable and painstaking research. Most of them, I think, are undoubtedly correct; yet it seems to me that the influence of economic conditions upon the institution of slavery has perhaps been emphasised too much at the cost of other factors. The prevalence of slavery in a savage tribe and the extent to which it is practised must also depend upon the ability of the tribe to procure slaves from foreign communities and upon its willingness to allow its own members to be kept as slaves within the tribe. It may be very useful for a group of savages to have a certain number of slaves, and yet they may not have them, for the reason that no slaves are to be had. It is only in extraordinary cases that a person is allowed to enslave a member of his own community. Intra-tribal slavery is a question not only of economic but of moral concern, whilst extra-tribal slavery originally depends upon success in war.

We have reason to believe that the earliest source of slavery was war or conquest, and that slavery in many cases was a substitution for putting prisoners of war to death.[11] Savages, who have little mercy on their enemies, naturally make no scruple in reducing them to slavery whenever they find their advantage in doing so. Among existing savages, in fact, prisoners of war are very frequently enslaved.[12] They and their descendants, together {675} with persons kidnapped or purchased from foreign tribes, seem generally to form by far the majority of the slave population in uncivilised countries.

[Footnote 11: Cf. Millar, Origin of the Distinction of Ranks, p. 245; Jacob, Historical Inquiry into the Production and Consumption of the Precious Metals, i. 136; Buckle, Miscellaneous and Posthumous Works, iii. 413; Comte, Cours de philosophie positive, v. 186 sqq.; Cibrario, Della schiavitù e del servaggio, i. 16.]

[Footnote 12: Rink, Eskimo Tribes, p. 28 (Western Eskimo). Petroff, 'Report on Alaska,' in Tenth Census of the United States, pp. 152 (Aleuts), 165 (Thlinkets). Richardson, Arctic Searching Expedition, i. 412 (Kutchin). Gibbs, 'Tribes of Western Washington and Northwestern Oregon,' in Contributions to North American Ethnology, i. 188. von Martius Beiträge zur Ethnographie Amerika's, i. 232 (Guaycurus), 298 (Carajás). Azara, Voyages dans l'Amérique métridionale, ii. 109 sq. (Mbayas). Lewin, Hill Tracts of Chittagong, p. 35. Idem, Wild Races of South-Eastern India, p. 194 (Toungtha). Modigliani, Viaggio a Nías, p. 521. Kohler, 'Recht der Papuas auf Neu-Guinea,' in Zeitschr. f. vergl. Rechtswiss. vii. 370. Williams and Calvert, Fiji, p. 25. Polack, Manners and Customs of

the New Zealanders, ii. 52; Hale, U.S. Exploring Expedition. Vol. VI.--Ethnography and Philology, p. 33 (New Zealanders). Ellis, History of Madagascar, i. 192. Andersson, Lake Ngami, p. 231; Kohler, in Zeitschr. f. vergl. Rechtswiss. xiv. 311 (Herero). Velten, Sitten und Gebräuche der Suaheli, p. 305. Baumann, Usambara, p. 141 (Wabondei). Felkin, 'Notes on the Waganda Tribe,' in Proceed. Roy. Soc. Edinburgh, xiii. 746. Mungo Park, Travels in the Interior of Africa, p. 19 (Mandingoes). Rowley, Africa Unveiled, p. 176. Tuckey, Expedition to Explore the River Zaire, p. 367 (Negroes of Congo). Sarbah, Fanti Customary Laws, p. 6. Burton, Abeokuta, i. 301. Ellis, Tshi-speaking Peoples of the Gold Coast, p. 289. Munzinger, Ostafrikanische Studien, p. 309 sq. (Beni Amer). Mademba, in Steinmetz, Rechtsverhältnisse von eingeborenen Völkern in Afrika und Ozeanien, p. 83 (natives of the Sansanding States). Nicole, ibid. p. 118 sq. (Diakité-Sarracolese). Tellier, ibid. pp. 168, 171 (Kreis Kita of the French Soudan). Beverley, ibid. p. 213 (Wagogo). Lang, ibid. p. 241 (Washambala). Desoignies, ibid. p. 278 (Msalala). Nieboer op. cit. pp. 49, 52, 73-76, 78, 100.]

Whilst little regard is paid to the liberty of strangers, custom everywhere, as a rule, forbids the enslaving of tribesmen. Yet sometimes a father's power over his children,[13] as also a husband's power over his wife,[14] involves the right of selling them as slaves; and among various peoples a person may be reduced to slavery for committing a crime,[15] or for insolvency.[16] Among the tribes of Western {676} Washington and North-Western Oregon, if an Indian has wronged another and failed to make compensation, he may be taken as a slave.[17] The Papuans of Dorey had a law according to which an incendiary with his family became the slave of the late proprietor of the burned house.[18] Among the Line Islanders of Micronesia, if a man of low class stole some food from a person belonging to the "gentry," he became the slave of the latter and lost all his property.[19] Sometimes a man is induced by great poverty to sell himself as a slave.[20] But most intra-tribal slaves are born unfree, being the offspring of parents one or both of whom are slaves.[21]

[Footnote 13: Supra, p. 599.]

[Footnote 14: Supra, p. 629 sq.]

[Footnote 15: Butler, Travels and Adventures in Assam, p. 94 (Kukis). Mason, 'Dwellings, &c., of the Karens,' in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. p. 146 sq.; Smeaton, Loyal Karens of Burma, p. 86. Wilken, 'Het strafrecht bij de volken van het maleische ras,' in Bijdragen tot de taal- land- en volkenkunde van Nederlandsch-Indië, 1883, Land- en volkenkunde, p. 108 sq. Junghuhn, Die Battalander auf Sumatra, ii. 145 sq. (Bataks). Raffles, History of Java, ii. p. ccxxxv. (people of Bali). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 320 (people of Timor-laut). von Rosenberg, Der malayische Archipel, p. 166 (Niase). Hickson, A Naturalist in North Celebes, p. 194 (Sangirese). Post, Afrikanische Jurisprudenz, ii. 87. Paulitschke, Ethnographie Nordost-Afrikas, p. 261. Munzinger, Ostafrikanische Studien, p. 244 sq. (Marca). Petherick, Travels in Central Africa, ii. 3 (Shilluk of the White Nile). Bowdich, Mission to Ashantee, p. 258 n. * (Fantis). Hübbe-Schleiden, Ethiopien, p. 152 (Mpongwe). Burton, Abeokuta, i. 301. Tuckey, op. cit. p. 367 (Negroes of Congo). Mungo Park, op. cit. p. 19 (Mandingoes). Tellier, in Steinmetz, Rechtsverhältnisse, p. 171 (Kreis Kita of the French Soudan). Lang, ibid. p. 241 (Washambala). Dale, 'Customs of the Natives inhabiting the Bondei Country,' in Jour. Anthr. Inst. xxv. 230, Ellis, History of Madagascar, i. 193. Velten, op. cit. p. 305 sq. (Waswahili).]

[Footnote 16: Gibbs, loc. cit. p. 188 (Indians of Western Washington and North-western Oregon), Lewin, Hill Tracts of Chittagong, p. 34. Idem, Wild Races of South-Eastern India, pp. 194 (Khyoungtha), 235 (Mrús). Mason, 'Religion, &c., of the Karens,'

in Jour. Asiatic Soc. Bengal, xxxiv. pt. ii. 216. Blumentritt, 'Die Sitten und Bräuche der alten Tagalen,' in Zeitschr. f. Ethnol. xxv. 13 sqq. Lala, Philippine Islands, p. 111 (natives of Sulu). Low, Sarawak, p. 301. Bock, Head-Hunters of Borneo, p. 210 (Dyak tribes). Junghuhn, op. cit. ii. 151 sq. Raffles, op. cit. i. 353 n. (Javanese); ii. p. ccxxxv. (people of Bali). Nieboer, op. cit. pp. 110, 111, 114, 119 sq. (various peoples in the Malay Archipelago). Munzinger, Ostafrikanische Studien, pp. 207 (Takue), 245 (Marea). Kingsley, West African Studies, p. 370, Hübbe-Schleiden, op. cit. p. 152 (Mpongwe). Burton, Abeokuta, i. 301. Mungo Park, op. cit. p. 19 (Mandingoes). Dale, in Jour. Anthr. Inst. xxv. 230 (Wabondei). Baskerville, in Steinmetz, Rechtsverhältnisse, p. 193 sq. (Waganda), Lang, ibid. p. 240 (Washambala). Walter, ibid. p. 381 (Natives of Nossi-Bé and Mayotte, Madagascar). Post, Afrikanische Jurisprudenz, i. 90 sq. Idem, Grundriss der ethnologischen Jurisprudenz, i. 363 sqq.; ii. 564 sqq. Kohler, Shakespeare vor dem Forum der Jurisprudenz, p. 14 sq.]

[Footnote 17: Gibbs, loc. cit. p. 188.]

[Footnote 18: Earl, Papuans, p. 83.]

[Footnote 19: Tutuila, in Jour. Polynesian Soc. i. 268 sq.]

[Footnote 20: Azara, op. cit. ii. 109 (Mbayas). Hale, op. cit. p. 96 (Kingsmill Islanders). Burton, Abeokuta, i. 301. Andersson, Lake Ngami, p. 231 (Herero). Ellis, History of Madagascar, i. 192 sq.]

[Footnote 21: Cf. Post, Afrikanische Jurisprudenz, i. 89 sq.; Mademba, in Steinmetz, Rechtsverhältnisse, p. 83 (natives of the Sansanding States); Nicole, ibid. p. 119 (Diakité-Sarracolese); Baskerville, ibid. p. 194 (Waganda); Desoignies, ibid. p. 278 (Malala); Dale, in Jour. Anthr. Inst. xxv. 230 (Wabondei); Ellis, History of Madagascar, i. 193.]

In descriptions of slave-holding savages it is often said that a master has absolute power over his slave. But even in such instances, when details are scrutinised, it frequently appears that custom or public opinion does not allow a person to treat his slave just as he pleases. We have noticed above that in many cases the master is expressly denied the right of killing him at his own discretion.[22] More commonly than one would imagine the master has not {677} even an unlimited right to sell his slave. Among some peoples he may sell at will such slaves only as have been captured in war or purchased, not such as have been born in the house.[23] In several instances a slave, and especially a domestic slave, cannot be sold unless he has been guilty of some crime or misdemeanour.[24] Among the Banaka and Bapuku in the Cameroons the master may chastise or send away a slave who has behaved badly, but is not allowed to sell him.[25] There are, moreover, instances in which the master is entitled not to all the services of his slave, but only to a limited portion of them. In some parts of Africa the slave is obliged to work for his master on certain days of the week or a certain number of hours, but has the rest of his time free.[26] In the highlands of Palembang, Sumatra, a slave may carry on trade and hire himself out as a day labourer on his own behalf, and when he works in the field one-half of his harvesting belongs to him and the other half to his master.[27] Where the slave is allowed to possess property of his own he may in some cases,[28] though not in all,[29] buy his freedom; and debtor-slaves are as a rule entitled to regain their liberty by paying off the debt.[30] Many peoples even permit a dissatisfied slave to change his master. Among the Washambala, if a person does not fulfil his duties towards any of his slaves, the latter has a right to complain of him to the chief, and should the accusation prove true the chief buys the slave of his master for an ox and two cows, and keeps {678} him for himself.[31] Among other peoples a slave, in order to get a new master, has only to cause a slight damage to somebody's property, or to commit some other trifling offence, in which case he must be given up

to the person he "injured."[32] It is astonishing to notice how readily, in many African countries, slaves are allowed by custom to rid themselves of tyrannical or neglectful masters.[33] The Barea and Bazes have a law according to which a slave becomes free by simply leaving his lord.[34] Among the Manipuris, in Further India, if a slave flies from one master and selects for himself another, it is presumed that he has been badly treated by the first one, and the fugitive can consequently not be reclaimed.[35]

[Footnote 22: Supra, p. 422 sq.]

[Footnote 23: Post, Afrikanische Jurisprudenz, i. 95 sqq.]

[Footnote 24: Ibid. i. 96 sq. Tellier, in Steinmetz, Rechtsverhältnisse, p. 169 (Kreis Kita). Lang, ibid. p. 241 (Washambala).]

[Footnote 25: Steinmetz, Rechtsvershältnisse, p. 43.]

[Footnote 26: Post, Afrikanische Jurisprudenz, i. 101. Mademba, in Steinmetz, Rechtsverhältnisse, p. 83 (natives of the Sansanding States). Nicole, ibid. p. 118 (Diakité-Sarracolese). Tellier, ibid. p. 169 sqq. (Kreis Kita).]

[Footnote 27: Glimpses of the Eastern Archipelago, p. 106.]

[Footnote 28: Post, Afrikanische Jurisprudenz, i. 111 sq.]

[Footnote 29: Ibid. i. 111 sq. Tellier, in Steinmetz, Rechtsverhältnisse, p. 170 (Kreis Kita), Senfft, ibid. p. 442 (Marshall Islanders).]

[Footnote 30: Post, Grundriss der ethnologischen Jurisprudenz, i. 366. Nieboer, op. cit. pp. 38, 432. Nicole, in Steinmetz, Rechtsverhältnisse, p. 118 (Diakité-Sarracolese). Baskervilie, ibid. p. 194 (Waganda). Lang, ibid. p. 240 sqq. (Washambala).]

[Footnote 31: Lang, in Steinmetz, Rechtsverhältnisse, p. 242.]

[Footnote 32: Post, Afrikanische Jurisprudenz, i. 102 sqq. Idem, Grundriss der ethnologischen Jurisprudenz, i. 377. Steinmetz, Rechtsverhältnisse, p. 168. Pechuel-Loesche, 'Aus dem Leben der Loango-Neger,' in Globus, xxxii. 238.]

[Footnote 33: See also Post, Afrikanische Jurisprudenz, i. 102 sqq.; Munzinger, Ostafrikanische Studien, p. 309 (Beni Amer); Idem, Die Sitten und das Recht der Bogos, p. 43.]

[Footnote 34: Munzinger, Ostafrikanische Studien, p. 484.]

[Footnote 35: Dalton, Descriptive Ethnology of Bengal, p. 51.]

A slave among the lower races can thus by no means be described as a being destitute of all rights. As a rule, it seems, he is treated kindly, very commonly as an inferior member of the family.[36] Among the Aleuts a slave suffering want would bring dishonour upon his master.[37] The South American Mbayás, says Azara, {679} "aiment extraordinairement tous leurs esclaves; jamais ils ne leur commandent d'un ton imperieux; jamais ils ne les reprimandent, ni ne les châtient, ni ne les vendent, quand même ce seraient des prisonniers de guerre. . . . Quel contraste avec le traitement que les européens font éprouver aux africains!"[38] In West Africa "the condition of slavery is not regarded as degrading, and a slave is not considered an inferior being."[39] On the Gold Coast, with the exception of the unpleasant liability of being sent at any moment to serve his master in the other world, the lot of a slave is not generally one of hardship, but is on the whole far better than that of the agricultural labourer in England. The slave is generally considered a member of the family, and if native-born succeeds in some cases in default of an heir to the property of his master.[40] In the Yoruba country it was quite common for a slave to be named by his master in his last will to be the factor or general manager of the estate, and to be left to take care of the entire establishment.[41] Among the Kreis Kita, of the French Soudan, the master calls his domestic slaves his sons, and they call him their father; nay, the natural guardian of an heir who is not yet of age is not his mother, but the eldest domestic slave of the household.[42] Speaking of

the natives in the region of Lake Nyassa, Mr. Macdonald remarks that most Africans like to see their slaves become rich; "Are they not," they say, "our own children?"[43] Among the Wabondei, "if a man buys a slave, he calls his own children and says, 'Behold your brother.' The slave is treated as a son, and is neither beaten nor tied."[44] In Madagascar the slaves "are kindly treated by their masters, they are considered as a kind of inferior members of the family to whom they belong, and many of the slaves have a {680} practical freedom of action to which the free population are quite strangers."[45] The slavery prevalent among the native races of the Malay Archipelago is generally mild. In Borneo, says Mr. Boyle, "we always found a difficulty in distinguishing the servile portion of a household from the freeborn population, and the honours and distinctions open to the latter class are likewise accessible to the former."[46] The slave-debtors of the Dyaks are "just as happy in this state--living in their creditors' houses and working on their farms--as if perfectly free, enjoying all the liberty of their masters."[47] Among the Chittagong Hill tribes the debtor-slaves were treated as members of the creditor's family, and were never exposed to harsh usage.[48] Among the Káfirs of the Hindu-Kush slaves are sometimes chosen among the annually elected magistracy, and Sir Scott Robertson knew of a case in which a master and his slave went through the ceremony of brotherhood together.[49]

[Footnote 36: Ibid. pp. 51 (Manipuris), 58 (Garos). Lewin, Hill Tracts of Chittagong, p. 34 sq. Idem, Wild Races of South-Eastern India, p. 90 (Chittagong Hill tribes). Colquhoun, Amongst the Shans, p. 267. Mouhot, Travels in the Central Parts of Indo-China, i. 250 (Stiêns). Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, pp. 194 (Watubela Islanders), 293 (people of Tenimber and Timor-laut), 434 (people of Wetter). Earl, op. cit. p. 81 (Papuans of Dorey). New, Life, Wanderings, and Labours in Eastern Africa, p. 128 (Wanika). Chanler, Through Jungle and Desert, p. 404 (Eastern Africans). Baumann, Usambara, p. 141 (Wabondei). Felkin, in Proceed. Roy. Soc. Edinburgh, xiii. 746; Baskerville, in Steinmetz, Rechtsverhältnisse, p. 194 (Waganda). Ibid. p. 43 (Banaka and Bapuku). Mademba, ibid. p. 84 (natives of the Sansanding States). Nicole, ibid. p. 118 (Diakité-Sarracolese). Lang, ibid. p. 242 (Washambala). Desoignies, ibid. p. 278 (Msalala). Kraft, ibid. p. 291 (Wapokomo). Reade, Savage Africa, p. 582. Rowley, Africa Unveiled, pp. 174, 176. Steinmetz, Ethnologische Studien zur ersten Entwicklung der Strafe, i. 313. Nieboer, op. cit. pp. 52, 78, 79, 81, 141-143, 305, 439, sq.]

[Footnote 37: Veniaminof, quoted by Petroff, loc. cit. p. 152.]

[Footnote 38: Azara, op. cit. ii. 110.]

[Footnote 39: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 219. See also Wilson, Western Africa, pp. 179, 180, 271 sq.]

[Footnote 40: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 290.]

[Footnote 41: MacGregor, 'Lagos, Abeokuta, and the Alake,' in Jour. African Soc. 1904, p. 473.]

[Footnote 42: Tellier, in Steinmetz, Rechtsverhältnisse, p. 169.]

[Footnote 43: Macdonald, in Jour. Anthr. Inst. xxii. 102.]

[Footnote 44: Dale, ibid. xxv. 230.]

[Footnote 45: Sibree, The Great African Island, p. 181. See also Little, Madagascar, p. 77; Ellis, History of Madagascar, i. 196.]

[Footnote 46: Boyle, Adventures among the Dyaks of Borneo, p. 284.]

[Footnote 47: Low, Sarawak, p. 302. See also St. John, Life in the Forests of the Far East, i. 83; Bock, Head-Hunters of Borneo, p. 210; Kükenthal, Ergebnisse einer zoologischen Forschungsreise in den Molukken und Borneo, i. 276 (Kyans); Crawford, History

of the Indian Archipelago, i. 52; Raffles, op. cit. i. 352; Marsden, History of Sumatra, p. 253; Junghuhn, op. cit. ii. 150 (Bataks).]

[Footnote 48: Lewin, Hill Tracts of Chittagong, p. 34.]

[Footnote 49: Scott Robertson, Káfirs of the Hindu-Kush, p. 100 sq.]

It appears that intra-tribal slaves, especially such as are born in the house, are generally treated better than extra-tribal or purchased slaves,[50] and that slaves are most oppressed by their masters when they belong to a different race.[51] We are told that among the South American Guaycurus the two causes of slavery, captivity and birth, imply a certain difference of caste, which is maintained {681} with great rigour.[52] Mungo Park observes that in Africa the domestic slaves or such as are born in their master's house are treated more leniently than those who are purchased.[53] "I was told," he says, "that the Mandingo master can neither deprive his slave of life, nor sell him to a stranger, without first calling a palaver on his conduct, or, in other words, bringing him to a public trial; but this degree of protection is extended only to the native or domestic slave."[54] Tuckey makes exactly the same observation as regards the natives of Congo.[55] On the Gold Coast slaves are of three kinds--native-born, imported, and prisoners of war; and "a distinction is always made between the first and the two latter, who are treated with far less consideration."[56] Speaking of the Central African tribes generally, Mr. Rowley states that slavery assumes a much severer character among the pastoral than among the agricultural tribes, because the slaves of the former are for the most part captives of war, whereas those of the latter have rarely been acquired by conquest but mostly by inheritance. Among the agricultural tribes, he adds, persons who are in bondage are not called slaves but children, and those to whom they are in bondage are not called masters but fathers.[57] Among the Káfirs of the Hindu-Kush all slaves "are not of the same social position, for the house slave is said to be much higher in grade than the artisan slave. . . . The domestic slaves live with their masters."[58]

[Footnote 50: Munzinger, Ostafrikanische Studien, p. 484 sq. (Barea and Kunáma). New, op. cit. p. 56 (Waswahili). Baumann, Usambara, p. 61 (natives of the Tanga Coast). Sarbah, op. cit. p. 6 sq. (Fantis). Nicole, in Steinmetz, Rechtsverhältnisse p. 118 sq. (Diakité-Sarracolese). Tellier, ibid. p. 169 (Kreis Kita). Beverley, ibid. p. 213 (Wagogo). Sibree, op. cit. p. 256 sq. (natives of Madagascar). Post, Afrikanische Jurisprudenz, i. 88 sq.]

[Footnote 51: Mademba, in Steinmetz, Rechtsverhältnisse, p. 84 (natives of the Sansanding States). Sibree, op. cit. p. 181 (natives of Madagascar).]

[Footnote 52: von Spix and von Martius, Travels in Brazil, ii. 74.]

[Footnote 53: Mungo Park, op. cit. p. 262.]

[Footnote 54: Ibid. p. 19.]

[Footnote 55: Tuckey, op. cit. p. 367.]

[Footnote 56: Ellis, Tshi-speaking Peoples, p. 289.]

[Footnote 57: Rowley, Africa Unveiled, p. 174 sqq.]

[Footnote 58: Scott Robertson, op. cit. p. 99 sq.]

Among the nations of archaic civilisation slavery presents essentially the same characteristics as among the lower races. In ancient Mexico there were various classes of slaves--prisoners of war, criminals condemned to lose their freedom, children sold by their parents, and persons who had sold themselves. The relations between master and slave are represented as friendly.[59] "Slavery {682} in Mexico." says Mr. Bancroft, "was, according to all accounts, a moderate subjection, consisting merely of an obligation to render personal service, nor could that be exacted without allowing the slave a certain

amount of time to labour for his own advantage."[60] Masters could not sell their slaves without their consent, unless they were slaves with a collar, that is, runaway, rebellious, or vicious slaves, who in spite of two or three warnings did not mend their behaviour.[61] Their children were invariably born free;[62] and when their masters died they generally became free themselves.[63]

[Footnote 59: Bancroft, Native Races of the Pacific States, ii. 217, 221.]

[Footnote 60: Bancroft, Native Races of the Pacific States, ii. 220 sq.]

[Footnote 61: Clavigero, History of Mexico, i. 360.]

[Footnote 62: Bancroft, op. cit. ii. 221.]

[Footnote 63: Clavigero, op. cit. i. 360.]

In China the slave class is composed of prisoners of war, of persons who sell themselves or are sold by others, and of the children of slaves;[64] and in former days public slavery was a punishment for crime.[65] It is true that the penal code forbids the sale of free persons; according to the letter of the text even the father of a family must not sell his children,[66] and persons who voluntarily submit themselves to be sold are punished by law.[67] But these regulations are frequently transgressed; in times of distress children are often sold by their parents, and the kidnapping of children is an even more common source from which the supply of slaves is kept up.[68] The master's power over his slave is not quite absolute,[69] but it seems to be fully as great as the father's power over his child.[70] A master who falsely accuses his slave suffers no punishment for it; on the other hand, a slave cannot complain in a court of justice of ill-treatment from his master.[71] Yet the condition of slaves in China is generally easy enough.[72] "In all Chinese families of 'the upper ten {683} thousand,' an intimacy exists between masters and men-servants on the one hand, and mistresses and female servants on the other. Servants not unfrequently make suggestions in reference to the well-being of the family, and in many instances, domestic matters of a grave nature are discussed before them."[73] In Chinese novels the servant is the confidant of his master, and harsh behaviour towards slaves is only attributed to vicious persons;[74] according to the Divine Panorama, he who beats or injures his slave without estimating the punishment by the fault is tormented in hell.[75] Many travellers have pointed out the difference between the comparatively happy condition of slaves in China and the degraded position of the former negro slaves in European colonies and the United States of America.[76] "In China," it is observed, "the identity of blood, colour, race, and habit between master and servant, operates as a restraint on the avarice, vices, and cruelty of the former, which would not be the case if they were of different races as in America."[77]

[Footnote 64: Biot, 'Mémoire sur la condition des esclaves et des serviteurs gagés en Chine,' in Journal Asiatique, ser. iii. vol. iii. 257 sqq.]

[Footnote 65: Ibid. p. 249 sqq.]

[Footnote 66: Supra, p. 607.]

[Footnote 67: Ta Tsing Leu Lee, sec. cclxxv. p. 201.]

[Footnote 68: Biot, loc. cit. p. 260. Giles, Strange Stories from a Chinese Studio, p. 211, n. 8. Gray, China, i. 241, 242, 246.]

[Footnote 69: Supra, p. 424.]

[Footnote 70: Gray, op. cit. i. 243 sqq.]

[Footnote 71: Biot, op. cit. p. 292. Ta Tsing Leu Lee, sec. cccxxxvii. p. 373.]

[Footnote 72: Biot, loc. cit. p. 296 sq. Giles, op. cit. i. 211 sq. n. 8. Gray, op. cit. i. 245. Wells Williams, The Middle Kingdom, i. 413. Douglas, Society in China, p. 349.]

[Footnote 73: Gray, op. cit. i. 247.]

[Footnote 74: Biot, loc. cit. p. 296.]

[Footnote 75: Giles, op. cit. ii. 377.]

[Footnote 76: Biot, loc. cit. p. 297 sq.]

[Footnote 77: Chinese Repository, xviii. 362.]

It has been suggested that in ancient Egypt the aboriginal inhabitants of the country were made slaves by the conquering race. "Si nous consultons les monuments," says M. Amélineau, "nous remarquons dans les peintures qui ornent les parois des tombeaux de Saqqarah une certaine race d'hommes sur laquelle Mariette avait déjà appelé l'attention. . . . Je crois que ce sont là des esclaves, vieux restes des populations primitives soumises par les conquérants nouvellement arrivés dans la vallée du Nil, descendants des premières tribus humaines qui s'étaient installées en Égypt."[78] During the eighteenth and nineteenth dynasties, which form the chief period of Egypt's foreign conquests, mention is frequently made of the employment of prisoners of war as slaves. Every Pharao of these dynasties recounts how he filled the god Amon's storehouses with male and female slaves from his {684} spoil. These slaves are occasionally represented in tombs; thus in the tomb of Rekhmere some slaves who are making bricks and building a wall are designated as "the spoil which his Majesty brought for the construction of the temple of Amon."[79] M. Amélineau believes that slavery was in Egypt milder than in Greece and Rome.[80] According to the Book of the Dead, the pity of the god extends to slaves; not only does he command that no one should ill-treat them himself, but he forbids that their masters should be led to ill-treat them.[81]

[Footnote 78: Amélineau, Essai sur l'évolution des idées morales dans l'Égypt Ancienne, p. 78.]

[Footnote 79: For these statements I am indebted to my friend Dr. Alan Gardiner.]

[Footnote 80: Amélineau, op. cit. p. 349.]

[Footnote 81: Book of the Dead, ch. 125. Cf. Maspero, Dawn of Civilization, p. 191.]

In ancient Chaldæa, beneath the free Semite and Sumerian population, there was a class of slaves largely consisting of captives from foreign races and their descendants, but continually reinforced by individuals of the native race such as foundlings, women sold by their husbands, children sold by their fathers, and probably debtors whom their creditors had deprived of their liberty.[82] Their position was evidently not one of excessive hardship.[83] As a rule, they were permitted to marry and bring up a family; and it seems that masters, when selling their slaves, as much as possible avoided separating parents and children.[84] The master often apprenticed the children of his slaves, and as soon as they knew a trade he set them up in business in his own name, allowing them a share in the profits.[85] A slave could hire himself out for wages, and could himself acquire slaves to work for him.[86] He was even entitled to purchase his freedom.[87] "La loi babylonienne," says M. Oppert, "lassait aux esclaves sur quelques points {685} plus de prérogatives que le Code français n'en accorde à nos épouses."[88]

[Footnote 82: Meissner, Beiträge zur altbabylonischen Privatrecht, p. 6. Oppert, 'La condition des esclaves à Babylone,' in Académie des Inscriptions et Belles-Lettres--Comptes rendus des séances de l'année 1888, ser. iv. vol. xvi. 122. Maspero, op. cit. p. 743.]

[Footnote 83: Meissner, op. cit. p. 7. Oppert, loc. cit. p. 121 sqq.]

[Footnote 84: Oppert, loc. cit. p. 125 sqq.]

[Footnote 85: Kohler and Peiser, Aus dem babylonischen Rechtsleben, ii, 52 sqq.]

[Footnote 86: Oppert, loc. cit. pp. 122, 128.]

[Footnote 87: Meissner, op. cit. p. 7. Oppert, loc. cit. p. 122. Oppert and Ménant, Documents juridiques de l'Assyrie et de la Chaldée, p. 14.]

[Footnote 88: Oppert, loc. cit. p. 121.]

Among the Hebrews the slave class consisted of captives taken in war;[89] of persons bought with money from neighbouring nations or from foreign residents in the land;[90] of children of slaves born in the house;[91] of native Hebrews who had been sold by their fathers,[92] or who either alone or with their wives and children had fallen into slavery in consequence of poverty,[93] or who had been sold by the authorities as slaves on account of theft when unable to pay compensation for the stolen property.[94] To deprive an Israelite of his freedom for any other reason, to steal him, use him as a slave, or sell him, was a crime punishable with death.[95] And even the Israelite who lost his liberty because he had become poor on account of poverty was not to be treated in the same way as the slave of foreign origin. He could not be compelled to serve as a bondservant, only as a hired servant.[96] He should not be ruled over with rigour.[97] He might not only be redeemed at any time by his relatives, but if not redeemed he was bound to receive his freedom without payment in the seventh year, and then the master should not let him go away empty, but furnish him liberally out of his flock, his floor, and his wine-press.[98] Slaves of foreign extraction, on the other hand, were not to be emancipated, but should remain slaves for ever, descending to children and children's children.[99] But in no case had the master absolute power over his slave. Whether the latter was an Israelite or a foreigner, his life, and to some extent his body, were protected by law;[100] and if a slave escaped from a hard master, he {686} should not be given up, but be allowed to live unmolested in the place which he should choose in one of the cities of Israel.[101] From everything that we read about slaves among the Hebrews it appears that they were regarded as inferior members of the family, and that the house-father cared for their well-being hardly less than for that of his own children.[102] In the Talmud masters are repeatedly admonished to treat their slaves with kindness;[103] traffic in human beings is regarded as an occupation which incapacitates the dealer to sit as judge;[104] and emancipation of slaves is practically encouraged in various ways,[105] in spite of the dictum of certain rabbis that he who emancipates his slave transgresses the positive precept of Leviticus xxv. 46, "They shall be your bondmen for ever."[106]

[Footnote 89: Deuteronomy, xx. 14.]

[Footnote 90: Leviticus, xxv. 44 sqq.]

[Footnote 91: Genesis, xiv. 14.]

[Footnote 92: Exodus, xxi. 7.]

[Footnote 93: Ibid. xxi. 2 sq. Leviticus, xxv. 39, 47.]

[Footnote 94: Exodus, xxii. 3.]

[Footnote 95: Ibid. xxi. 16. Deuteronomy, xxiv. 7.]

[Footnote 96: Leviticus, xxv. 39, 40, 53.]

[Footnote 97: Ibid. xxv. 43, 46, 53.]

[Footnote 98: Exodus, xxi. 2. Leviticus, xxv. 40, 41, 48 sqq. Deuteronomy, xv. 12 sqq.]

[Footnote 99: Leviticus, xxv. 44 sqq.]

[Footnote 100: Supra, pp. 424, 516.]

[Footnote 101: Deuteronomy, xxiii. 15 sq.]

[Footnote 102: See Mielziner, Die Verhältnisse der Sklaven bei den alten Hebräern, p. 61 sqq.; André, L'esclavage chez les anciens Hébreux, p. 149 sqq.; Benzinger, 'Slavery,' in Cheyne and Black, Encyclopædia Biblica, iv. 4657 sq.]

[Footnote 103: Katz, Der wahre Talmudjude, p. 59 sqq. See also Ecclesiasticus, xxxiii. 31:--"If thou have a servant, entreat him as a brother: for thou hast need of him as of thine own soul."]

[Footnote 104: Benny, Criminal Code of the Jews according to the Talmud Massecheth Synhedrin, p. 36.]

[Footnote 105: Winter, Die Stellung der Sklaven bei den Juden, p. 41.]

[Footnote 106: Berakhoth, fol. 47 B, quoted by Hershon, Treasures of the Talmud, p. 81. R. Samuel, quoted by André, op. cit. p. 180 sq.]

According to Islam, a Muhammedan who is born free can never become a slave. "The slave," says Mr. Lane, "is either a person taken captive in war or carried off by force from a foreign country, and being at the time of capture an infidel; or the offspring of a female slave by another slave, or by any man who is not her owner, or by her owner if he do not acknowledge himself to be the father."[107] The slave should be treated with kindness; the Prophet said, "A man who behaves ill to his slave will not enter into Paradise."[108] The master should give to his slaves of the food which he eats himself, and of the clothes with which he clothes himself.[109] He should not {687} order them to do anything beyond their power, and in the hot season, during the hottest hours of the day, he should let them rest.[110] He may marry them to whom he will, but he may not separate them when married.[111] He may, generally, give them away or sell them as he pleases, but he must not separate a mother from her child. The Prophet said, "Whoever is the cause of separation between mother and child, by selling or giving, God will separate him from his friends on the day of resurrection."[112] Nor is a master allowed to alienate a female slave who has borne to him a child which he recognises as his own; and at his death the mother is entitled to emancipation.[113] To liberate a slave is regarded as an act highly acceptable to God, and as an expiation for certain sins.[114] These rules, it should be added, are not only recognised in theory, but derive additional support from general usage. In the Muhammedan world the slave generally lives on easy terms with his master. He is often treated as a member of the family, and occasionally exercises much influence upon its affairs.[115] In certain countries at least, it is held disreputable or disgraceful for a person to sell his slave, except perhaps in case of absolute necessity or in consequence of intolerable behaviour on the part of the slave.[116] In Persia custom demands that on certain festive occasions, such as the birth of a child or a wedding, one {688} or several of the slaves of the family should be set free;[117] and both there and in other Muhammedan countries testamentary manumissions are of frequent occurrence.[118] In Morocco a slave is sometimes allowed a certain amount of liberty that he may earn enough to buy his freedom;[119] whilst among the Bedouins of the Arabian Desert described by Burckhardt, slaves are always emancipated after a certain lapse of time.[120] No stigma attaches to the emancipated slave. It has been truly said that in Islam slavery is regarded as an accident, not as a "constitution of nature,"[121] hence the freedman is socially on an equal footing with a free-born citizen. He may without discredit marry his former master's daughter, and become the head of the family. Emancipated slaves have repeatedly risen to the highest offices, they have ruled kingdoms and founded dynasties.[122]

[Footnote 107: Lane, Manners and Customs of the Modern Egyptians, p. 116. Cf. Munzinger, Ostafrikanische Studien, p. 245 sq.; Ameer Ali, Life and Teachings of Mohammed, p. 376 sq.]

[Footnote 108: Lane, Arabian Society in the Middle Ages, p. 255. Lane-Poole, Speeches and Table-Talk of the Prophet Mohammad, p. 163.]

[Footnote 109: Lane, Arabian Society, p. 254. Lane-Poole, Speeches, p. 163.]

[Footnote 110: Lane, Arabian Society, p. 254. Lane-Poole, Speeches, p. 163. Sachau, Muhammedanisches Recht, pp. 18, 102.]

[Footnote 111: Lane, Modern Egyptians, p. 115.]

[Footnote 112: Ibid. p. 115. Lane, Arabian Society, p. 255. Ameer All, Life of Mohammed, p. 374 sq.]

[Footnote 113: Lane, Modern Egyptians, p. 116.]

[Footnote 114: Koran, xxiv. 33. Ameer Ali, Life of Mohammed, pp. 373, 377. Beltrame, Il Sènnaar e lo Sciangàllah, i. 46. Lane, Modern Egyptians, p. 119.]

[Footnote 115: Lane, Arabian Society, p. 253 sqq. Polak, Persien, i. 251, 255. Urquhart, Spirit of the East, ii. 403. Burton, Pilgrimage to Al-Madinah & Mecca, i. 61. Munzinger, Ostafrikanische Studien, p. 155. Beltrame, Il Sènnaar, i. 46 sqq. Loir, 'L'esclavage en Tunisie,' in Revue scientifique, ser. iv. vol. xii. 592 sq. Villot, M[oe]urs, coutumes et institutions des indigènes de l'Algérie, p. 250. Meakin, Moors, p. 133. Chavanne, Die Sahara, p. 389 (Arabs of the Sahara). Pommerol, Among the Women of the Sahara, p. 161 sqq. Dyveyrier, Exploration du Sahara, p. 339. Hourst, Sur le Niger et au pays des Touaregs, p. 206 (Touareg). Hanoteau and Letourneux, La Kabylie, ii. 143. Reade, Savage Africa, p. 582.]

[Footnote 116: Polak, Persien, i. 250. Beltrame, Il Sènnaar, i. 47, 248. Munzinger, Ostafrikanische Studien, p. 155.]

[Footnote 117: Polak, op. cit. i. 250.]

[Footnote 118: Ibid. i. 250. Meakin, op. cit. p. 139.]

[Footnote 119: Meakin, op. cit. p. 139.]

[Footnote 120: Burckhardt, Notes on the Bedouins and Wahábys, p. 202.]

[Footnote 121: Ameer Ali, Life of Mohammed, p. 375.]

[Footnote 122: Ibid. p. 375 sq. Bosworth Smith, Mohammed and Mohammedanism, pp. 206, 211 sq.]

According to the Laws of Manu, the mythical legislator of ancient India, there are slaves of seven kinds, namely, "he who is made a captive under a standard, he who serves for his daily food, he who is born in the house, he who is bought and he who is given, he who is inherited from ancestors, and he who is enslaved by way of punishment."[123] The last mentioned class consists of persons who have lost their freedom because they have been unable to pay a debt or a fine, or because they have left a religious order.[124] The slave is not necessarily a Sûdra, or member of the lowest of the four Indian castes, but Kshatriyas may become the slaves of Brâhmanas and Vaisyas of Brâhmanas and Kshatriyas.[125] On the other hand, the Sûdras as such were not slaves, though it was their duty to serve the other castes; they chose the persons to whom they would offer service, and claimed adequate compensation.[126] {689} The power which a house-holder in India possessed over his slaves is not exactly defined; but he is admonished not to have quarrels with them, and if offended by any of them, to bear it without resentment.[127] In Âpastamba's Aphorisms it is said that a person may at his pleasure stint himself, his wife, or his children, "but by no means a slave who does his work."[128] Elphinstone wrote in 1839 in his 'History of India':--"Domestic slaves are treated exactly like servants, except that they are more regarded as belonging to the family. I doubt if they are ever sold; and they attract little observation, as there is nothing apparent to distinguish them from freemen."[129] The priesthood of modern Buddhism teach that there are five ways in which a master ought to assist his slave:--"He must not appoint the work of children to men, or of men to children, but to each according to his strength; he must give each one his food and wages, according as they are required; when sick, he must free him from work, and provide him with proper medicine; when the master has any agreeable and savoury food, he must not consume the whole himself, but must impart a portion to others, even to his slaves; and if they work properly for a long period, or for a given period, they must be set free."[130]

[Footnote 123: Laws of Manu, viii. 415.]

[Footnote 124: Bühler, in his translation of the Laws of Manu, in Sacred Books of the East, xxv. 326, n. 415.]

[Footnote 125: Ibid. p. 326, n. 415.]

[Footnote 126: Ingram, History of Slavery and Serfdom, p. 272.]

[Footnote 127: Laws of Manu, iv. 180, 185.]

[Footnote 128: Âpastamba, ii. 4. 9. 11.]

[Footnote 129: Elphinstone, History of India, p. 203.]

[Footnote 130: Hardy, Manual of Budhism, p. 500.]

In Greece, especially in earlier times, capture in war, piracy, and kidnapping were common causes of slavery,[131] and the condition was hereditary. Other legitimate sources were exposure of infants, except at Thebes,[132] and sale of children by their parents.[133] At Athens insolvent debtors became the slaves of their creditors up to the time of Solon;[134] and metics--that is, resident aliens--who did not discharge the obligations imposed on them by the State, {690} were sold as slaves, as were also foreigners who had fraudulently possessed themselves of the rights of citizens.[135] At least in a later age the majority of slaves seem to have been of barbarian origin;[136] indeed, after the Peloponnesian war the principle that captives taken in wars between Greek states should be ransomed and not enslaved was commonly recognised, though not always followed in practice.[137] As we have seen, the master had not the power of life and death over his slave.[138] At sanctuaries the latter found a refuge from cruel oppression.[139] If maltreated he could demand to be sold; and he could purchase his liberty with his peculium by agreement with his master.[140] But by manumission he only entered into an intermediate condition between slavery and complete freedom; thus, at Athens the freedman was in relation to the State a metic and in relation to his master a client.[141] Domestic slaves often lived on terms of intimacy with their masters,[142] but as a class slaves were regarded with contempt even by men like Plato and Aristotle. The former, whilst warning his hearers against insolent and unjust behaviour towards slaves, observes that they should be treated with severity, not admonished as if they were freemen, but punished, and only addressed in words of command.[143] Aristotle compares the relation of the master to his slave with that of the soul to the body and of the craftsman to his tool, and adds that there can be friendship between them only in so far as the slave is regarded not as a slave but as a fellow human being.[144] But whilst the state of slavery always entailed disgrace, the question was raised whether the master's power over his slave was based on justice or {691} on force, and in Greece, for the first time, we meet with the opinion that the institution of slavery is contrary to Nature, and that it is the law which, unjustly, makes one man a slave and another free.[145] However, Aristotle was no doubt in general agreement with his age when he declared that the barbarians, on account of their inferiority, are intended by Nature to be the slaves of the Greeks.[146]

[Footnote 131: Wallon, Histoire de l'esclavage dans l'antiquité, i. 161 sqq. Richter, Die Sklaverei im griechischen Altertume, p. 39 sqq.]

[Footnote 132: Aelian, Historia varia, ii. 7.]

[Footnote 133: Wallon. op. cit. i. 159 sq.]

[Footnote 134: Plutarch, Vita Solonis, xiii. 4.]

[Footnote 135: Wallon, op. cit. i. 160 sq. Richter, op. cit. p. 46.]

[Footnote 136: Hermann-Blümner, Lehrbuch der griechischen Privatalterthümer, p. 86. Richter, op. cit. p. 48.]

[Footnote 137: Schmidt, Ethik der alten Griechen, ii. 204, 205, 283. Hermann-Blümner, op. cit. p. 86 sq.]

[Footnote 138: Supra, p. 425.]

[Footnote 139: Wallon, op. cit. i. 310 sq. Schmidt, op. cit. ii. 218 sq. Richter, op. cit. p. 140 sq.]

[Footnote 140: Ingram, op. cit. p. 27 sq. Wallon, op. cit. i. 335 sq. Richter, op. cit. p. 151.]

[Footnote 141: Richter, op. cit. p. 157. Wallon, op. cit. i. 346 sqq.]

[Footnote 142: Schmidt, op. cit. ii. 212. Richter, op. cit. p. 151.]

[Footnote 143: Plato, Leges, vi. 777 sq.]

[Footnote 144: Aristotle, Ethica Nicomachea, viii. 11. 6 sq. Idem, Politica, i. 5, p. 1254.]

[Footnote 145: Idem, Politica, i. 3, p. 1253 b.]

[Footnote 146: Ibid. i. 2, 6, pp. 1252 b, 1255 a. See Euripides, Iphigenia in Aulide, 1400 sq.]

The Roman jurists held up slavery as a mitigation of the horrors of war: the capture and preservation of enemies, they said, was its sole and exclusive origin in the past.[147] But in Rome as elsewhere, when once established, it contained in itself the germ of extension; all the children of a female slave followed the condition of the mother, according to the principle applicable to the offspring of the lower animals--"Partus sequitur ventrem." And sooner or later, when these sources proved insufficient to maintain the supply, a regular commerce in slaves was established, which was based on the systematically prosecuted hunting of men in foreign lands.[148] To a much smaller extent the slave class was recruited by Roman citizens--by children sold by their fathers, by insolvent debtors, or by criminals condemned to servitude as a punishment for some heinous offence.[149] The idea of a Roman becoming the slave of a fellow-citizen was never quite agreeable to the Roman mind. According to an ancient law the debtor, after being made over to the creditor, should be sold abroad or trans Tiberim.[150] Subsequently, in 326 B.C., the creditor's lien was restricted to the goods of his debtor, if the latter was a Roman citizen;[151] and during the Pagan Empire the sale of freeborn {692} children by their fathers was prohibited.[152] The power, originally unlimited, which the master had over his slave was also, in the course of time, subjected to limitations. We have seen that since the days of Claudius and Antoninus Pius legal check was put on the master's right of killing his slave.[153] The Lex Petronia, A.D. 61, forbade masters to compel their slaves to fight with wild beasts.[154] In the time of Nero an official was appointed to hear complaints of the wrongs done by masters to their slaves.[155] Antoninus Pius directed that slaves treated with excessive cruelty, who had taken refuge at an altar or imperial image, should be sold; and this provision was extended to cases in which the master had employed a slave in a way degrading to him or beneath his character.[156] In public auctions of slaves regard was paid to the claims of relationship,[157] and in the interpretation of testaments it was assumed that members of the same family were not to be separated by the division of the succession.[158] In those days when Roman slavery had lost its original patriarchal and, to speak with Mommsen,[159] "in some measure innocent" character, when the victories of Rome and the increasing slave trade had introduced into the city innumerable slaves, when those simpler habits of life which in early times somewhat mitigated the rigour of the law had changed--the lot of the Roman slave was often extremely hard, and numerous acts of shocking cruelty were committed.[160] But we also hear, from the early days of the Empire, that masters who had been cruel to their slaves were pointed at with disgust in all parts of the city, and were hated and loathed.[161] And with a

fervour which can hardly be surpassed Seneca and other Stoics argued that the slave is a being with human dignity and human rights, born of the same race as ourselves, living the same life, {693} and dying the same death--in short, that our slaves "are also men, and friends, and our fellow-servants."[162] Epictetus even went so far as to condemn altogether the keeping of slaves, a radicalism explicable from the history of his own life. "What you avoid suffering yourself," he says, "seek not to impose on others. You avoid slavery, for instance; take care not to enslave. For if you can bear to exact slavery from others, you appear to have been yourself a slave."[163] These teachings could not fail to influence both legislation and public sentiment. Imbued with the Stoic philosophy, the jurists of the classical period declared that all men are originally free by the law of Nature, and that slavery is only "an institution of the Law of Nations, by which one man is made the property of another, in opposition to natural right."[164]

[Footnote 147: Hunter, Exposition of Roman Law, p. 160 sq. Institutiones, i. 3. 3:--"Slaves are called servi, because generals are wont to sell their captives, and so to preserve (servare), and not to destroy them. They are also called mancipia, because they are taken from the enemy with the strong hand (manu capiuntur)."]

[Footnote 148: Mommsen, History of Rome, iii. 305 sq. Wallon, op. cit. ii. 46 sqq. Ingram, op. cit. p. 38.]

[Footnote 149: Wallon, op. cit. ii. 18 sqq. Ingram, op. cit. p. 39. Institutiones, i. 12. 3.]

[Footnote 150: Mackenzie, Studies in Roman Law, p. 94.]

[Footnote 151: Livy, Historiæ Romanæ, viii. 28. Wallon, op. cit. ii. 29, n. 1.]

[Footnote 152: Supra, p. 615.]

[Footnote 153: Supra, p. 425 sq.]

[Footnote 154: Digesta, xlviii. 8. 11. 2.]

[Footnote 155: Seneca, De beneficiis, iii. 22. 3.]

[Footnote 156: Wallon, op. cit. iii. 57 sq. Ingram, p. 63.]

[Footnote 157: Hunter, Exposition of Roman Law, p. 159.]

[Footnote 158: Wallon, op. cit. iii. 53.]

[Footnote 159: Mommsen, History of Rome, iii. 305.]

[Footnote 160: See Lecky, History of Morals, i. 302 sq.]

[Footnote 161: Seneca, De clementia, i. 18. 3.]

[Footnote 162: Idem, Epistolæ, 47. Idem, De beneficiis, iii. 28. Epictetus, Dissertationes, i. 13. See also the collection of statements referring to slavery made by Holland, Reign of the Stoics, p. 186 sqq.]

[Footnote 163: Epictetus, Fragmenta, 42.]

[Footnote 164: Institutiones, i. 3. 2.]

Considering that Christianity has commonly been represented as almost the sole cause of the mitigation and final abolishment of slavery in Europe, it deserves special notice that the chief improvement in the condition of slaves at Rome took place at so early a period that Christianity could have absolutely no share in it. Nay, for about two hundred years after it was made the official religion of the Empire there was an almost complete pause in the legislation on the subject.[165] Under Justinian certain reforms were introduced: --enfranchisement was facilitated in various ways;[166] the rights of Roman citizens were granted to emancipated slaves, who had previously occupied an intermediate position between slavery and perfect freedom;[167] and though the law still refused to recognise the marriages of slaves, Justinian gave them a legal value after emancipation in establishing rights of succession.[168] But the inferior position of the slave was asserted as sternly as ever. He belonged to the {694} "corporeal" property of his master, he was reckoned among things which are tangible by their nature, like land,

raiment, gold, and silver.[169] The constitution of Antoninus Pius restraining excessive severity on the part of masters was enforced, but the motive for this was not evangelic humanity.[170] It is said in the Institutes of Justinian, "This decision is a just one; for it greatly concerns the public weal, that no one be permitted to misuse even his own property."[171]

[Footnote 165: Cf. Lecky, History of European Morals, ii. 64.]

[Footnote 166: Institutiones, i. 5 sqq.]

[Footnote 167: Ibid. i. 5. 3; iii. 7. 4.]

[Footnote 168: Ibid. iii. 7 pr.]

[Footnote 169: Institutiones, ii. 2. 1.]

[Footnote 170: Cf. Milman, History of Latin Christianity, ii. 14.]

[Footnote 171: Institutiones, i. 8. 2.]

It is curious to note that the inconsistency of slavery with the tenet, "Do to others as you would be done by," though emphasised by a pagan philosopher, never seems to have occurred to any of the early Christian writers. Christianity recognised slavery from the beginning. The principle that all men are spiritually equal in Christ does not imply that they should be socially equal in the world. Slavery does not prevent anybody from performing the duties incumbent on a Christian, it does not bar the way to heaven, it is an external affair only, nothing but a name. He only is really a slave who commits sin.[172] Slavery is of course a burden, but a burden which has been laid upon the back of transgression. Man when created by God was free, and nobody was the slave of another until that just man Noah cursed Ham, his offending son; slavery, then, is a punishment sent by Him who best knows how to proportionate punishment to offence.[173] The slave himself ought not to desire to become free,[174] nay, if the master offers him freedom he ought not to accept it.[175] Not one of the Fathers even {695} hints that slavery is unlawful or improper.[176] In the early age martyrs possessed slaves, and so did abbots, bishops, popes, monasteries, and churches;[177] Jews and pagans only were prohibited from acquiring Christian slaves.[178] So little was the abolition of slavery thought of that a Council at Orleans, in the middle of the sixth century, expressly decreed the perpetuity of servitude among the descendants of slaves.[179] On the other hand, the Church showed a zeal to prevent accessions to slavery from capture, but her exertions were restricted to Christian prisoners of war.[180] As late as the nineteenth century the right of enslaving captives was defended by Bishop Bouvier.[181]

[Footnote 172: Gregory Nazianzen, Orationes, xiv. 25 (Migne, Patrologiæ cursus, Ser. Graeca, xxxv. 891 sq.). Idem, Carmina, i. 2. 26. 29 (ibid. xxxvii. 853); i. 2. 33. 133 sqq. (ibid. xxxvii. 937 sq.). St. Chrysostom, In cap. IX. Genes. Homilia XXIX. 7 (ibid. liii. 270). Idem, In Epist. I. ad Cor. Homilia XIX. 5 (ibid. lxi. 158). St. Ambrose, In Epistolam ad Colossenses, 3 (Migne, op. cit. Ser. Lat. xvii. 439).]

[Footnote 173: St. Augustine, De civitate Dei, xix. 15 (Migne, op. cit. xli. 643 sq.).]

[Footnote 174: St. Ignatius, Epistola ad Polycarpum, 4 (Migne, op. cit. Ser. Graeca, v. 723 sq.). St. Augustine, Ennaratio in Psalmum CXXIV. 7 (Migne, op. cit. xxxvii. 1653).]

[Footnote 175: Laurent, Études sur l'histoire de l'humanité, iv. 117.]

[Footnote 176: Cf. Babington, Influence of Christianity in Promoting the Abolition of Slavery in Europe, p. 29.]

[Footnote 177: Ibid. p. 22. Potgiesser, Commentarii juris Germanici de statu servorum, i. 4. 8, p. 176. Muratori, Dissertazioni sopra le antichità italiane, i. 244.]

[Footnote 178: Concilium Toletanum IV. A.D. 633, can. 66 (Labbe-Mansi, Sacrorum Conciliorum collectio, x. 635). Blakey, Temporal Benefits of Christianity, p. 397. Digby,

Mores Catholici, ii. 341. Cibrano, Della schiavitù e del servaggio, i. 272. Rivière, L'Église et l'esclavage, p. 350.]

[Footnote 179: Concilium Aurelianense IV. about A.D. 545, can. 32 (Labbe-Mansi, op. cit. ix. 118 sq.).]

[Footnote 180: Concilium Rhemense, about A.D. 630, can. 22 (Labbe-Mansi, op. cit. x. 597). Gratian, Decretum, ii. 12. 2. 13 sqq. Baronius, Annales Ecclesiastici, A.D. 1263, ch. 74 vol. xxii. 124. Le Blant, Inscriptions chrétiennes de la Gaule, ii. 284 sqq. Babington, op. cit. pp. 51 sqq., 94 sq. Nys, Le droit de la guerre et les précurseurs de Grotius, p. 114.]

[Footnote 181: Bouvier, Institutiones philosophicæ, p. 566.]

The Apostles reminded slaves of their duties towards their masters and masters of their duties towards their slaves.[182] The same was done by Councils and Popes. The Council of Gangra, about the year 324, pronounced its anathema on anyone who should teach a slave to despise his master on pretence of religion;[183] and so much importance was attached to this decree that it was inserted in the epitome of canons which Hadrian I. in 773 presented to Charlemagne in Rome.[184] But there are also many instances in which masters are recommended to show humanity to their slaves.[185] According to Gregory IX. {696} "the slaves who were washed in the fountain of holy baptism should be more liberally treated in consideration of their having received so great a benefit."[186] Slaves who had taken refuge from their masters in churches or monasteries were not to be given up until the master had sworn not to punish the fugitive;[187] or they were never given up, but became slaves to the sanctuary.[188] The Church, as we have seen, protected the life of the slave by excommunicating for a couple of years masters who killed their slaves.[189] She prohibited the sale of Christian slaves to Jews and heathen nations.[190] The Council of Chalons, in the middle of the seventh century, ordered that no Christians should be sold outside the kingdom of Clovis, so that they might not get into captivity or become the slaves of Jewish masters;[191] and some Anglo-Saxon laws similarly forbade the sale of Christians out of the country, and especially into bondage to heathen, "that those souls perish not that Christ bought with his own life."[192] The clergy sometimes remonstrated against slave markets; but their indignation never reached the trade in heathen slaves,[193] nor was the master's right of selling any of his slaves whenever he pleased called in question at all. The assertion made by many writers that the Church exercised an extremely favourable influence upon slavery[194] surely involves a great exaggeration. As late as the thirteenth century the master practically had the power of life and death over his slave.[195] Throughout Christendom the purchase and {697} the sale of men, as property transferred from vendor to buyer, was recognised as a legal transaction of the same validity with the sale of other merchandise, land or cattle.[196] Slaves had a title to nothing but subsistence and clothes from their masters, all the profits of their labour accruing to the latter; and if a master from indulgence gave his slaves any peculium, or fixed allowance for their subsistence, they had no right of property in what they saved out of that, but all that they accumulated belonged to their master.[197] A slave or a freedman was not allowed to bring a criminal charge against a free person, except in the case of a crimen læsæ majestatis,[198] and slaves were incapable of being received as witnesses against freemen.[199] The old distinction between the marriage of the freeman and the concubinage of the slave was long recognised by the Church: slaves could not marry, but had only a right of contubernium, and their unions did not receive the nuptial benediction of a priest.[200] Subsequently, when conjunction between slaves came to be considered a lawful marriage, they were not permitted to marry without the consent of

their master, and such as transgressed this rule were punished very severely, sometimes even with death.[201]

[Footnote 182: Ephesians, vi. 5 sqq. Colossians, iii. 22 sqq.; iv. 1.]

[Footnote 183: Concilium Gangrense, about A.D. 324, can. 3 (Labbe-Mansi, op. cit. ii. 1102, 1106, 1110).]

[Footnote 184: 'Epitome canonum, quam Hadrianus I. Carolo magno obtulit, A.D. DCCLXXIII.' in Labbe-Mansi, op. cit. xii. 863.]

[Footnote 185: Babington, op. cit. p. 58 sqq.]

[Footnote 186: Baronius, Annales Ecclesiastici, A.D. 1238, ch. 62, vol. xxi. 204.]

[Footnote 187: Milman, op. cit. ii. 51. Rivière, op. cit. p. 306. Du Boys, Histoire du droit criminel des peuples modernes, ii. 246, n. 1.]

[Footnote 188: 'Concilium Kingesburiense sub Bertulpho,' in Wilkins, Concilia Magnæ Britanniæ et Hiberniæ, i. 181.]

[Footnote 189: Supra, p. 426.]

[Footnote 190: Concilium Rhemense, about A.D. 630, can. 11 (Labbe-Mansi, op. cit. x. 596). Concilium Liptinense, A.D. 743, can. 3 (ibid. xii. 371). Hefele, Beiträge zur Kirchengeschichte, i. 218. Idem, History of the Councils of the Church, v. 211.]

[Footnote 191: Concilium Cabilonense, about A.D. 650, can. 9 (Labbe-Mansi, op. cit. x. 1191).]

[Footnote 192: Laws of Ethelred, v. 2; vi. 9. Laws of Cnut, ii. 3.]

[Footnote 193: Hüllmann, Stædtewesen des Mittelalters, i. 80 sq. Loring Brace, Gesta Christi, p. 229. Rivière, op. cit. p. 325.]

[Footnote 194: Yanoski, De l'abolition de l'esclavage ancien au moyen age, p. 74 sq. Allard, Les esclaves chrétiens depuis les premiers temps de l'Église, p. 487; &c.]

[Footnote 195: Supra, p. 427 sq.]

[Footnote 196: Potgiesser, op. cit. ii. 4. 5, p. 429. Milman, op. cit. ii. 16.]

[Footnote 197: Potgiesser, op. cit. ii. 10, p. 528 sqq. Du Cange, Glossarium ad scriptores mediæ et infimæ Latinitatis, vi. 451. Robertson, History of the Reign of the Emperor Charles V. i. 274.]

[Footnote 198: Potgiesser, op. cit. iii. 3. 2, p. 612.]

[Footnote 199: Beaumanoir, Coutumes du Beauvoisis, xxxix. 32, vol. ii, 103. Du Cange, op. cit. vi. 452. Potgiesser, op. cit. iii. 3. 1, p. 611.]

[Footnote 200: Potgiesser, op. cit. ii. 2. 10 sq., p. 354 sq.]

[Footnote 201: Ibid. ii. 2. 12, p. 355 sq.]

The gradual disappearance of slavery in Europe during the latter part of the Middle Ages has also commonly been in the main attributed to the influence of the Church.[202] But this opinion is hardly supported by facts. It is true that the Church in some degree encouraged the manumission of slaves. Though slavery was considered a {698} perfectly lawful institution, the enfranchisement of a fellow-Christian was deemed a meritorious act, and was sometimes strongly recommended on Christian principles. At the close of the sixth century it was affirmed that, as Christ had come to break the chain of our servitude and restore our primitive liberty, so it was well for us to imitate Him by making free those whom the law of nations had reduced to slavery;[203] and the same doctrine was again proclaimed at various times down to the sixteenth century.[204] In the Carlovingian period the abbot Smaragdus expressed the opinion that among other good and salutary works each one ought to let slaves go free, considering that not nature but sin had subjected them to their masters.[205] In the latter part of the twelfth century the prelates of France, and in particular the Archbishop of Sens, pretended that it was an obligation of conscience to accord liberty to all Christians, relying on a decree of a

Council held at Rome by Pope Alexander III.[206] And in one of the later compilations of German mediæval law it was said that the Lord Jesus, by his injunction to render unto Cæsar the things which are Cæsar's and unto God the things that are God's, indicated that no man is the property of another, but that every man belongs to God.[207] Slaves were liberated "for God's love," or "for the remedy" or "ransom of the soul."[208] In the formularies of manumission given by the monk Marculfus in the seventh century we read, for instance:--"He that releases his slave who is bound to him, may trust that God will recompense him in the next world";[209] "For the remission of my sins, I absolve thee";[210] "For the glory {699} of God's name and for my eternal retribution," &c.[211] Too much importance, however, has often been attached to these phrases; the most trivial occurrences, such as giving a book to a monastery, are commonly accompanied by similar expressions,[212] and it appears from certain formulas that slaves were not only liberated, but also bought and sold, "in the name of God."[213] Nor can we suppose that it was from religious motives only that manumissions were encouraged by the clergy. It has been pointed out that, "as dying persons were frequently inclined to make considerable donations for pious uses, it was more immediately for the interest of churchmen, that people of inferior condition should be rendered capable of acquiring property, and should have the free disposal of what they had acquired." It also seems that those who obtained their liberty by the influence of the clergy had to reward their benefactors, and that the manumission should for this reason be confirmed by the Church.[214] And whilst the Church favoured liberation of the slaves of laymen, she took care to prevent liberation of her own slaves; like a physician she did not herself swallow the medicine which she prescribed to others. She allowed alienation of such slaves only as showed a disposition to run away.[215] The Council of Agatho, in 506, considered it unfair to enfranchise the slaves of monasteries, seeing that the monks themselves were daily compelled to labour;[216] and, as a matter of fact, the slaves of monasteries were everywhere among the last who were manumitted.[217] In the seventh century a Council at Toledo threatened with damnation any bishop who should liberate a slave belonging to the Church, without giving {700} due compensation from his own property, as it was thought impious to inflict a loss on the Church of Christ;[218] and according to several ecclesiastical regulations no bishop or priest was allowed to manumit a slave in the patrimony of the Church unless he put in his place two slaves of equal value.[219] Nay, the Church was anxious not only to prevent a reduction of her slaves, but to increase their number. She zealously encouraged people to give up themselves and their posterity to be the slaves of churches and monasteries, to enslave their bodies--as some of the charters put it--in order to procure the liberty of their souls.[220] And in the middle of the seventh century a Council decreed that the children of incontinent priests should become the slaves of the churches where their fathers officiated.[221]

[Footnote 202: Clarkson, Essay on Slavery, p. 19, sq. Biot, De l'abolition de l'esclavage ancien en Occident, p. xi. Thérou, Le Christianisme et l'esclavage, p. 147. Martin, Histoire de France jusqu'en 1789, iii. 11, n. 2. Balmes, El Protestantismo comparado con el Catolicismo, i. 285. Blakey, op. cit. p. 170. Yanoski, op. cit. p. 75. Cochin, L'abolition de l'esclavage, ii. 349, 458. Littré, Études sur les Barbares et le Moyen Age, p. 230 sq. Allard, op. cit. p. 490. Tedeschi, La schiavitù, p. 68. Lecky, History of Rationalism in Europe, ii. 216, 236 sqq. Maine, International Law, p. 160. Kidd, Social Evolution, p. 168.]

[Footnote 203: St. Gregory the Great, Epistolæ, vi. 12 (Migne, Patrologiæ cursus, lxxvii. 803 sq.). Gratian, op. cit. ii. 12. 2. 68. Potgiesser, op. cit. iv. 1. 3, p. 666 sq.]

[Footnote 204: Babington, op. cit. p. 180.]

[Footnote 205: Smaragdus, Via Regia, 30 (d'Achery, Spicilegium, i. 253).]

[Footnote 206: de Boulainvilliers, Histoire de l'ancien gouvernement de la France, i. 312.]

[Footnote 207: Speculum Saxonum, iii. 42 (Goldast, Collectio consuetudinum et legum imperialium, p. 158).]

[Footnote 208: Du Cange, op. cit. iv. 460 sqq. Potgiesser, op. cit. iv. 12. 5, p. 751 sqq. Muratori, op. cit. i. 249. Robertson, op. cit. i. 323. Milman, op. cit. ii. 51 sq.]

[Footnote 209: Marculfus, Formulæ, ii. 32 (Migne, op. cit. lxxxvii. 747).]

[Footnote 210: Ibid. ii. 33 (Migne, op. cit. lxxxvii. 748).]

[Footnote 211: Marculfus, Formulæ, ii. 34 (Migne, op. cit. lxxxvii. 748).]

[Footnote 212: Babington, op. cit. p. 61, n. 6.]

[Footnote 213: Formulæ Bignonianæ, 2, 'Venditio de servo' (Baluze, Capitularia regum Francorum, ii. 497):--"Domino magnifico fratri illi emptori, ego in Dei nomine ille venditor."]

[Footnote 214: Millar, Origin of the Distinction of Ranks, p. 274 sq.]

[Footnote 215: Gratian, op. cit. ii. 12. 2. 54.]

[Footnote 216: Concilium Agathense, A.D. 506, can. 56 (Labbe-Mansi, op. cit. viii. 334).]

[Footnote 217: Hallam, View of the State of Europe during the Middle Ages (ed. 1837), i. 221.]

[Footnote 218: Concilium Toletanum IV. A.D. 633, can. 67 (Labbe-Mansi, op. cit. x. 635).]

[Footnote 219: Gratian, op. cit. ii. 12. 2. 58. Potgiesser, op. cit. iv. 2. 4, p. 673.]

[Footnote 220: Du Cange, op. cit. iv. 1286. Potgiesser, op. cit. i. 1. 6 sq., p. 5 sqq. Muratori, op. cit. i. 234 sqq. Robertson, op. cit. i. 326.]

[Footnote 221: Concilium Toletanum IX. A.D. 655, can. 10 (Labbe-Mansi, op. cit. xi. 29).]

The disappearance of mediæval slavery has further, to some extent, been attributed to the efforts of kings to weaken the power of the nobles.[222] Thus Louis X. and Philip the Long of France issued ordinances declaring that, as all men were by nature free, and as their kingdom was called the kingdom of the Franks, they would have the fact to correspond with the name, and emancipated all persons in the royal domains upon paying a just compensation, as an example for other lords to follow.[223] Muratori believes that in Italy the wars during the twelfth and following centuries contributed more than anything else to the decline of slavery, as there was a need of soldiers and soldiers must be freemen.[224] According to others the disappearance of slavery was largely effected by the great famines and epidemics with which Europe was visited during the tenth, eleventh, and twelfth {701} centuries.[225] The number of slaves was also considerably reduced by the ancient usage of enslaving prisoners of war being replaced by the more humane practice of accepting ransom for them, which became the general rule in the later part of the Middle Ages, at least in the case of Christian captives.[226] But it seems that the chief cause of the extinction of slavery in Europe was its transformation into serfdom.

[Footnote 222: Robertson, op. cit. i. 47 sq. Millar, op. cit. p. 276 sqq.]

[Footnote 223: Decrusy, Isambert, and Jourdan, Recueil général des anciennes lois françaises, iii. 102 sqq.]

[Footnote 224: Muratori, op. cit. i. 234 sq. Idem, Rerum Italicarum scriptores, xviii. 268, 292.]

[Footnote 225: Biot, op. cit. p. 318 sqq. Saco, Historia de la esclavitud, iii. 241 sqq.]

[Footnote 226: Ward, Enquiry into the Foundation and History of the Law of Nations in Europe, i. 298 sq. Babington, op. cit. p. 147. Ayala, De jure et officiis bellicis, i. 5. 19. In the sixteenth century the statutes of some Italian towns make mention of the sale of slaves, who probably were Turkish captives (Nys, Le droit de la guerre et les précurseurs de Grotius, p. 140).]

This transformation has been traced to the diminished supply of slaves, which made it the interest of each family to preserve indefinitely its own hereditary slaves, and to keep up their number by the method of propagation. The existence and physical well-being of the slave became consequently an object of greater value to his master, and the latter found it most profitable to attach his slaves to certain pieces of land.[227] Moreover, the cultivation of the ground required that the slaves should have a fixed residence in different parts of the master's estate, and when a slave had thus been for a long time engaged in a particular farm, he was so much the better qualified to continue in the management of it for the future. By degrees he therefore came to be regarded as belonging to the stock upon the ground, and was disposed of as a part of the estate which he had been accustomed to cultivate.[228]

[Footnote 227: Storch, Cours d'économie politique, iv. 260. Ingram, op. cit. p. 72.]

[Footnote 228: Millar, op. cit. p. 263 sqq.]

But serfdom itself was merely a transitory condition destined to lead up to a state of entire liberty. As the proprietor of a large estate could not oversee the behaviour of his villeins, scattered over a wide area of land, the only means of exciting their industry would be to offer them a reward for the work which they performed. Thus, besides the ordinary maintenance allotted {702} to them, they frequently obtained a part of the profits, and became capable of having separate property.[229] In many cases this no doubt enabled the serf to purchase his liberty out of his earnings;[230] whilst in others the master would have an interest in allowing him to pay a fixed rent and to retain the surplus for himself. The landlord was then freed from the hazard of accidental losses, and obtained not only a certain, but frequently an additional, revenue from his land, owing to the greater exertions of cultivators who worked for their own benefit;[231] and at the same time the personal subjection of the peasants naturally came to an end, as it was of no consequence to the landlord how they conducted themselves provided that they punctually paid the rents. Nor was there any reason to insist that they should remain in the farm longer than they pleased; for the profits it afforded made them commonly not more willing to leave it than the proprietor was to put them away.[232] Another factor which led to the disappearance of serfdom was the encouragement which Sovereigns, always jealous of the great lords, gave to the villeins to encroach upon their authority.[233] We have convincing proof that in England, before the end of Edward III.'s reign, the villeins found themselves sufficiently powerful to protect one another, and to withhold their ancient and accustomed services from their lord.[234] In Germany, again, the landlords sometimes furnished their villeins with arms to defend the cause of their master, and this undoubtedly tended to their enfranchisement, as persons who are taught to use and allowed to possess weapons will soon make {703} themselves respected.[235] A great number of villeins also shook off the fetters of their servitude by fleeing for refuge to some chartered town,[236] where they became free at once,[237] or, more commonly, after a certain stipulated period--a year and a day,[238] or more;[239] and it seems, besides, that the rapid disappearance of serfdom in the prospering free towns indirectly, by way of example, promoted the enfranchisement of rural serfs.[240] There are, further, instances of lords liberating their villeins at the intercession of their spiritual confessors, the clergy availing themselves of every

opportunity to lessen the formidable power of their great rivals, the temporal nobility. [241] But the influence which the Church exercised in favour of the enfranchisement of serfs was even less than her share in the abolition of slavery proper.[242] She represented serfdom as a divine institution,[243] as a school of humility, as a road to future glory.[244] She was herself the greatest {704} serf-holder;[245] and so strenuously did she persist in retaining her villeins, that after Voltaire had raised his powerful outcry in favour of liberty and Louis XVI. himself had been induced to abolish "the right of servitude" in consideration of "the love of humanity," the Church still refused to emancipate her serfs.[246] But whilst the cause of freedom owes little to the Christian Church, it owes so much the more to the feelings of humanity and justice in some of her opponents.

[Footnote 229: Millar, op. cit. p. 264. Simonde de Sismondi, Histoire des républiques italiennes du moyen âge, xvi. 365 sq. Guérard, Cartulaire de l'Abbaye de Saint-Père de Chartres, i. p. xli. Dunham, History of the Germanic Empire, i. 230.]

[Footnote 230: See Vinogradoff, Villainage in England, p. 87; Pollock and Maitland, History of English Law before the Time of Edward I. i. 36, 427.]

[Footnote 231: Adam Smith, Wealth of Nations, p. 173. Millar, op. cit. p. 267 sqq. Mill, Principles of Political Economy, i. 309, 311. Dunham, op. cit. i. 228 sq. On the inefficiency of slave labour, see also Storch, op. cit. iv. 275 sqq.]

[Footnote 232: Millar, op. cit. p. 269 sq.]

[Footnote 233: Adam Smith, Wealth of Nations, p. 173.]

[Footnote 234: Eden, State of the Poor, i. 30.]

[Footnote 235: Dunham, op. cit. i. 229.]

[Footnote 236: Guibertus de Novigento, 'De vita sua,' in Bouquet, Rerum Gallicarum et Franciarum scriptores, xii. 257. 'Fragmentum historicum vitam Ludovici VII. summatim complectens,' ibid. xii. 286. Beaumanoir, op. cit. xlv. 36, vol. ii. 237. Eden, op. cit. i. 30. Laurent, op. cit. vii. 531 sq. Saco, op. cit. iii. 252.]

[Footnote 237: Laurent, op. cit. vii. 532.]

[Footnote 238: Glanville, Tractates de Legibus et Consuetudinibus Regni Angliæ, v. 5. Bracton, De Legibus et Consuetudinibus Angliæ, fol. 198 b, vol. iii. 292 sq. Beaumanoir, op. cit. xlv. 36, vol. ii. 237. Pollock and Maitland, op. cit. i. 429, 648 sq. Grimm, Deutsche Rechtsalterthümer, p. 337 sq. Laurent, op. cit. vii. 532.]

[Footnote 239: Laurent, op. cit. vii. 532.]

[Footnote 240: Ibid. vii. 533 sq.]

[Footnote 241: Thomas Smith, Common-wealth of England, p. 250. Eden, op. cit. i. 10. Sugenheim, Geschichte der Aufhebung der Leibeigenschaft und Hörigkeit in Europa, p. 109.]

[Footnote 242: Cf. Rivière, op. cit. p. 511. Babington says (op. cit. p. 148 sq.) that in the five-hundred pages of Wilkins' Concilia, which comprise the ecclesiastical documents of the British churches in the thirteenth century, we only find the following regulations concerning the unfree population:--that neither freemen nor villeins are to be impeded in making their wills when death approaches; that monks are not to alienate their less useful slaves (famulos); that Jews are not allowed to possess Christian slaves.--It was said that "he puts a disgrace on God who raises a villein above his station" (ibid. p. 150).]

[Footnote 243: Adalbero, Carmen ad Rotbertum regem Francorum, 291, 292, 297 sqq. (Bouquet, op. cit. x. 70):--"Thesaurus, vestis, cunctis sunt pascua servi. Nam valet ingenuus sine servis vivere nullus. . . . Triplex ergo Dei domus est, quæ creditur una. Nunc orant alii; pugnant; aliique laborant: Quæ tria sunt simul, et scissuram non patiuntur." St. Bonaventura, quoted by Laurent, op. cit. vii. 522:--"Non solum secundum humanam

institutionem, sed etiam secundum divinam dispensationem, inter Christianos sunt domini et servi."]

[Footnote 244: Laurent, op. cit. vii. 523.]

[Footnote 245: Laurent, op. cit. vii. 524.]

[Footnote 246: Hettner, Geschichte der französischen Literatur im achtzehnten Jahrhundert, p. 169. Babington, op. cit. p. 108. Sugenheim, op. cit. p. 156 sqq. Laurent, op. cit. vii. 537 sq.]

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Not long after serfdom had begun to disappear in the most advanced communities of Christendom a new kind of slavery was established in the colonies of European states. It grew up under circumstances particularly favourable to the employment of slaves. Whether slave labour or free labour is more profitable to the employer depends on the wages of the free labourer, and these again depend on the numbers of the labouring population compared with the capital and the land. In the rich and underpeopled soil of the West Indies and in the Southern States of America the balance of the profits between free and slave labour was on the side of slavery. Hence slavery was introduced there, and flourished, and could be abolished only with the greatest difficulty.[247]

[Footnote 247: Mill, Principles of of Political Economy, i. 311.]

From a moral point of view negro slavery is interesting chiefly because it existed in the midst of a highly developed Christian civilisation, and nevertheless, at least in the British colonies and the United States, was the most brutal form of slavery ever known. It may be worth while to consider more closely some points of the legislation relating to it.

In America, as elsewhere, the state of slavery was hereditary. The child of a female slave was itself a slave and belonged to the owner of its mother even if its father was a freeman, whereas the child of a free woman was {705} free even if its father was a slave.[248] When the slave-trade was prohibited, heredity remained the only legitimate source of slavery; but even then a freeborn negro was far from safe. In the British colonies and in all the Slave States except one, every negro was presumed to be a slave until he could prove the reverse.[249] A man who, within the limits of a slave-holding State, could exhibit a person of African extraction in his custody was exempted from all necessity of making proof how he had obtained him or by what authority he claimed him as a slave. Nay more, through the direct action of Congress it became law that persons known to be free should be sold as slaves in order to cover the costs of imprisonment which they had suffered on account of the false suspicion that they were runaway slaves. This law was repeatedly put into effect. "How many crowned despots," says Professor von Hoist, "can be mentioned in the history of the old world who have done things which compare in accursedness with this law to which the democratic republic gave birth?"[250]

[Footnote 248: Stroud, Laws relating to Slavery in the United States of America, p. 16 sqq. Cobb, Inquiry into the Law of Negro Slavery in the United States of America, p. 68. Stephen, Slavery of the British West India Colonies, i. 122. Code Noir, Édit du mois de Mars 1685, art. 13, p. 35 sq.; Édit donné au mois de Mars 1724, art. 10, p. 288 sq. In Maryland, according to an early enactment, which obtained till the year 1699 or 1700, all the children born of a slave were slaves "as their fathers were" (Stroud, op. cit. p. 14 sqq.). In Cuba the nobler parent determined the rank of the offspring (Newman, Anglo-Saxon Abolition of Negro Slavery, p. 17).]

[Footnote 249: Stephen, op. cit. i. 369 sq. Stroud, op. cit. pp. 125, 126, 130. Cobb, op. cit. p. 67. Wheeler, Treatise on the Law of Slavery, p. 5.]

[Footnote 250: von Holst, Constitutional and Political History of the United States, i. 305.]

Slaves were defined as "chattels personal in the hands of their respective owners or possessors, and their executors, administrators, and assigns, to all intents and purposes whatsoever."[251] In the British colonies and the American Slave States they were at all times liable to be sold or otherwise alienated at the will of their masters, as absolutely as cattle, or any other personal effects. They were {706} also liable to be sold by process of law for satisfaction of the debts of a living, or the debts or bequests of a deceased master, at the suit of creditors or legatees. They were transmitted by inheritance or by will to heirs at law or to legatees, and in the distribution of estates they were distributed like other property.[252] No regard was paid to family ties. Except in Louisiana, where children under ten years of age could not be sold separately from their mothers,[253] no law existed to prevent the violent separation of parents from their children or from each other.[254] And what the law did not prevent, the slave-owners did not omit doing; thus Virginia was known as a breeding place out of which the members of one household were sold into every part of the country.[255] All this, however, holds true of the British colonies and Slave States only. In the Spanish, Portuguese, and French colonies plantation slaves were real estate, attached to the soil they cultivated. They partook therewith of all the restraints upon voluntary alienation to which the possessor of the land was there liable, and they could not be seized or sold by creditors, for satisfaction of the debts of the owner.[256] As regards the sale of members of the same family the Code Noir expressly says, "Ne pourront être saisis et vendus séparément, le mari et la femme, et leurs enfans impubéres, s'ils sont tous sous la puissance du même Maître."[257] A slave could make no contract; he could not even contract marriage, in the juridical sense of the word. The association which took place among slaves and was called marriage was virtually the same as the Roman contubernium, a relation which had no sanctity and to which no civil rights were attached.[258] The master could whenever {707} he liked separate the "husband" and "wife"; he could, if he pleased, commit "adultery" with the "wife," and was the absolute owner of all the children born by her. A slave had "no more legal authority over his child than a cow has over her calf." On the other hand, the common rules of sexual morality were not enforced on the slaves. They were not admonished for incontinence, nor punished for adultery, nor prosecuted for bigamy. Incontinence was rather thought a matter of course in the slave. We are told that even in Puritan New England female slaves in ministers' and magistrates' families bore children, black or yellow, without marriage, that no one inquired who their fathers were, and that nothing more was thought of it than of the breeding of sheep or swine. And concerning the "slave-quarters" connected with the plantations the universal testimony was that the sexes were there "herded together promiscuously, like beasts."[259]

[Footnote 251: Brevard, Digest of the Public Statute Law of South-Carolina, p. 229. Prince, Digest of the Laws of Georgia, p. 777. In the French Code Noir (Édit du mois de Mars 1685, art. 44, p. 49; Édit donné au mois de Mars 1724, art. 40, p. 305) slaves are declared to be "meubles."]

[Footnote 252: Stephen, op. cit. i. 62. Stroud, op. cit. p. 84. Goodell, American Slave Code in Theory and Practice, p. 63 sqq.]

[Footnote 253: Peirce, Taylor, and King, Consolidation and Revision of the Statutes of the State [Louisiana], pp. 523, 550 sq.]

[Footnote 254: Stephen, op. cit. i. 62 sq. Stroud, op. cit. p. 82.]

[Footnote 255: Pearson, National Life and Character, p. 210.]

[Footnote 256: Stephen, op. cit. i. 69.]

[Footnote 257: Code Noir, Édit du mois de Mars 1685, art. 47, p. 51; Édit donné au mois de Mars 1724, art. 43, p. 306.]

[Footnote 258: Cobb, op. cit. p. 240 sqq. Stroud, op. cit. p. 99. Goodell, American Slave Code, p. 105 sqq. Wheeler, op. cit. p. 199. According to the Civil Code of Louisiana, "slaves cannot marry without the consent of their masters, and their marriages do not produce any of the civil effects which result from such contract" (Morgan, Civil Code of Louisiana, art. 182, p. 29).]

[Footnote 259: Goodell, American Slave Code, p. 111. In 1835 the query was presented to a Baptist Association of ministers, "whether, in case of involuntary separation of such a character as to preclude all future intercourse, the parties may be allowed to marry again?" The answer was, "that such separation among persons situated as our slaves are, is civilly a separation by death, and they believe that, in the sight of God, it would be so viewed. To forbid second marriages in such cases would be to expose the parties not only to greater hardships and stronger temptations, but to church censure for acting in obedience to their masters." Incidentally here the fact leaks out that slave cohabitation is enforced by the authority of the masters for the increase of their human chattels (Goodell, Slavery and Anti-Slavery, p. 185).]

Yet though slaves were regarded as chattels, the master could not do with his slave exactly what he pleased. We have noticed that the life of the slave was in some degree, though very insufficiently, protected by law,[260] and that a master who mutilated his slave was subject to a slight penalty.[261] The law also took care to prohibit the master from doing things which were considered injurious to the community or the State. There was a great fear of teaching negroes to read and write. William Knox, in a tract addressed to "the venerable Society for propagation {708} of the Gospel in foreign parts" in the year 1768, remarks that "instruction renders them less fit or less willing to labour," and that, if they were universally taught to read, there would undoubtedly be a general insurrection of the negroes leading to the massacre of their owners.[262] A similar fear underlies the laws on the subject which we meet with in the codes of some of the Slave States. According to the Negro Act of 1740 for South Carolina, any person who instructed a slave in writing was subject to a fine of one hundred pounds;[263] but this enactment was later on considered too liberal. A law of 1834 placed under the ban all efforts to teach the coloured race either reading or writing, and the punishment was no longer a pecuniary fine only, but, besides, imprisonment for six months or a shorter time or, if the offender was a free person of colour, whipping not exceeding fifty lashes. [264] In Georgia a law of 1770, which prohibited the instruction of slaves in reading and writing, was in 1833 followed by an act which extended the prohibition to free persons of colour.[265] In Louisiana the teaching of slaves was punished with imprisonment for not less than one month nor more than twelve months.[266] North Carolina allowed slaves to be made acquainted with arithmetical calculations, but sternly interdicted instruction in reading and writing;[267] whilst Alabama warred with the rudiments of reading, forbidding any coloured persons, bond or free, to be taught not only reading and writing, but spelling.[268] In all these States the prohibitions referred to the master of the slave as well as to other persons. In Virginia, on the other hand, the master might teach his slave whatever he liked, but others might not.[269]

[Footnote 260: Supra, p. 428 sq.]

[Footnote 261: Supra, p. 517.]

[Footnote 262: Knox, Three Tracts respecting the Conversion and Instruction of the Free Indians and Negroe Slaves in the Colonies, p. 15 sq.]

[Footnote 263: Brevard, op. cit. ii. 243.]

[Footnote 264: McCord, Statutes at large of South Carolina, vii. 468.]

[Footnote 265: Prince, op. cit. pp. 785, 658.]

[Footnote 266: Peirce, Taylor, and King, op. cit. p. 552.]

[Footnote 267: Revised Statutes of North Carolina passed by the General Assembly at the Session of 1836-7, xxxiv. 74, cxi. 27, vol. i. 209, 578.]

[Footnote 268: Clay, Digest of the Laws of Alabama, p. 543.]

[Footnote 269: Code of Virginia, cxcviii. 31 sq. Stroud, op. cit. p. 142.]

{709} There is yet another point in which the master's power was restricted in a most unusual way: in many cases he was not allowed to liberate his slave, or formidable obstacles were put in the way of manumission. Thus, in North Carolina a slave could formerly not be enfranchised except for meritorious services;[270] but this enactment was altered by the Revised Statutes of 1836-1837, according to which any emancipation granted to any slave "shall be upon the express condition, that he, she or they will leave the State, within ninety days from the granting thereof, and never will return within the State afterwards."[271] The Civil Code of Louisiana required that a slave, to be emancipated, should have attained the age of thirty years and behaved well at least for four years preceding the emancipation, unless, indeed, the slave had saved the life of his master or of one of his children, in which case he might be set free at any age; [272] and, according to a statute of 1852, the emancipated slave should be sent out of the United States within twelve months after his emancipation.[273] In several other States manumission was likewise hampered by various regulations;[274] and throughout the British West Indies there were restraints on manumission prior to the Emancipation Act.[275] By an act passed in Saint Christopher in the year 1802, a tax of £1,000 was imposed on the manumission of any slave who was not a native of, or had not resided for two years within, the island, whilst natives or residents might be enfranchised at half that price. But the authors of this act went further still. They considered that a master, though unwilling to pay £500 or £1,000 for the legal enfranchisement of a slave, might, during his own life, make him or her practically free by not exercising his own rights as master. Hence {710} they enacted "that if any proprietor of a slave should, by any contract in writing or otherwise, dispense with the slave's service, or should be proved before a justice of peace not to have exercised any right of ownership over such slave, and maintained him or her at his own expense, within a month, the slave should be publicly sold at vendue by the provost marshall; and should become the property of the purchaser, and the purchase-money should be paid into the colonial treasury."[276] In St. Vincents one hundred pounds sterling was required to be paid into the treasury for each slave sought to be manumitted,[277] whilst in Barbados a person minded to manumit a slave should pay £50 to the churchwarden of the parish in which he resided. [278] Very different were the Spanish laws on the subject of manumission. According to a law of 1528 a negro slave who had served a certain length of time was entitled to his liberty upon the payment of a certain sum, not less than twenty marks of gold, the exact amount to be settled by the royal authorities.[279] In 1540 a law was issued to the effect that "if any negro, or negress, or any other persons reputed slaves, should publicly demand their liberty, they should be heard, and justice be done to them, and care be taken that they should not on that account be maltreated by their masters."[280] Nay, a slave who wished to change his master and could prevail on any other person to buy him by appraisement, could demand and compel such a transfer,[281] and a master who treated his slaves inhumanly could be by the judge deprived of them.[282] In most of the British colonies and American Slave States, on the other hand, the slave had no legal right to obtain a change of master when cruel treatment made it necessary for his

relief or preservation.[283] {711} The exceptions to this rule[284] were few and of little practical value.

[Footnote 270: Stroud, op. cit. p. 233.]

[Footnote 271: Revised Statutes of North Carolina, cxi. 58, vol. i. 585.]

[Footnote 272: Morgan, Civil Code of Louisiana, art. 185 sq., p. 30 sqq.]

[Footnote 273: Ibid. Stat. 18th March, 1852, §1, p. 29.]

[Footnote 274: Brevard, op. cit. ii. 255 sq. (South Carolina). Prince, op. cit. p. 787 (Georgia). Stroud, op. cit. p. 231 (Alabama). Alden and van Hoesen, Digest of the Laws of Mississippi, p. 761. Haywood and Cobbs, Statute Laws of the State of Tennessee, i. 327 sq.]

[Footnote 275: Cobb, op. cit. p. 282.]

[Footnote 276: Stephen, op. cit. i. 401 sq.]

[Footnote 277: Cobb, op. cit. p. 282 sq.]

[Footnote 278: Moore, Public Acts passed by the Legislature of Barbados, p. 224 sq.]

[Footnote 279: Helps, Spanish Conquest in America, iv. 373.]

[Footnote 280: Recopilacion de leyes de los reinos de las Indias, vii. 5. 8, vol. ii. 321.]

[Footnote 281: Barre Saint Venant, quoted by Stephen, op. cit. i. 119 sq.]

[Footnote 282: Edwards, History of the British West Indies, iv. 451.]

[Footnote 283: Stephen, op. cit. i. 106. Stroud, op. cit. p. 93.]

[Footnote 284: Morgan, Civil Code of Louisiana, art. 192, p. 33. Morehead and Brown, Digest of the Statute Laws of Kentucky, ii. 1481. Edwards, op. cit. ii. 192 (Jamaica). Stephen, op. cit. i. 106 (some other British colonies). In the French islands a negro who had been cruelly treated, contrary to royal ordinances, was forfeited to the crown, and acquired, if not freedom, at least deliverance from a tyrannical master (Code Noir, Édit du mois de Mars 1685, art. 42, p. 48 sq.; Édit donné au mois de Mars 1724, art. 38, p. 303 sq.); but the Court which adjudged the offence might also decree the sufferer to be manumitted (Stephen, op. cit. i. 119).]

This system of slavery, which at least in the British colonies and the Slave States surpassed in cruelty the slavery of any pagan country ancient or modern, was not only recognised by Christian governments, but was supported by the large bulk of the clergy, Catholic[285] and Protestant alike. In the beginning of the abolitionist movement the Churches acknowledged slavery to be a great evil, but with the making of this acknowledgment they believed that they had done their share, and denied that there was any obligation on them, or even that they had any right, to proceed against the slave-holders. But things did not stop here. The lamentations of resignation were gradually changed into excuses, and the excuses into justifications.[286] The Bible, it was said, contains no prohibition of slavery; on the contrary, slavery is recognised both in the Old and New Testaments. Abraham, the father of the faithful and the friend of God, had slaves; the Hebrews were directed to make slaves of the surrounding nations; St. Paul and St. Peter approved of the {712} relation of master and slave when they gave admonitions to both as to their reciprocal behaviour; the Saviour Himself said nothing in condemnation of slavery, although it existed in great aggravation while He was upon earth. If slavery were sinful, would it have been too much to expect that the Almighty had directed at least one little word against it in the last revelation of His will?[287] Nay, God not only permitted slavery, but absolutely provided for its perpetuity;[288] it is the very legislation of Heaven itself;[289] it is an institution which it is a religious duty to maintain,[290] and which cannot be abolished, because "God is pledged to sustain it."[291] According to some, slavery was founded on the judgment of God on a damned race, the descendants of Ham; according to others, it was only in this

way that the African could be raised to a participation in the blessings of Christianity and civilisation.[292] With the name of "abolitionist" was thus associated the idea of infidelity, and the emancipation movement was branded as an attempt to spread the evils of scepticism through the land.[293] According to Governor Macduffie, of South Carolina, no human institution is more manifestly consistent with the will of God than slavery, and every community ought to punish the interference of abolitionists with death, without the benefit of clergy, "regarding the authors of it as enemies of the human race."[294] It is true that religious arguments were also adduced in favour of abolition. To hold men in bondage was said to be utterly inconsistent with the inalienable rights which the Creator had granted mankind, and still more obviously {713} at variance with the dictates of Christian love.[295] Many clergymen also joined the abolitionists. But it seems that in the middle of the nineteenth century the Quakers and the United Brethren were the only religious bodies that regarded slave-holding and slave-dealing as ecclesiastical offences.[296] The American Churches were justly said to be "the bulwarks of American slavery."[297]

[Footnote 285: The attempts to represent the Roman Catholic clergy as ardent abolitionists (Cochin, L'abolition de l'esclavage, ii. 443; de Locqueneuille, L'esclavage, ses promoteurs et ses adversaires, p. 193) are certainly not justified by facts. Among the Catholics of the United States there were some advocates of emancipation, but their number was not large (Goodell, Slavery and Anti-Slavery, 195 sq.; Parker, Collected Works, vi. 127 sq.). Dr. England, the Catholic bishop of Charleston, South Carolina, undertook in public to prove that the Catholic Church had always been the uncompromising friend of slave-holding (Parker, op. cit. v. 57). In Brazil it was common for clergymen not only to possess slaves, but to buy and sell them with as little scruple as other merchandises (da Fonseca, A esravidão, o clero e o abolicionismo, pp. 28, 33). Bishop Bouvier wrote (op. cit. p. 568):--"Servi autem dominis suis obedire, sortem suam patienter tolerare et officia sibi imposita fideliter exsequi debent, quoadusque libertas ipsis concedatur. Meminerint præsentem vitam esse momentaneam, futuram vero æternam."]

[Footnote 286: von Holst, op. cit. ii. 231 sqq.]

[Footnote 287: Barnes, The Church and Slavery, p. 15. Birney, Letter to the Churches, p. 3 sq. Bledsoe, Essay on Liberty and Slavery, p. 138 sqq. Gerrit Smith, Letter to Rev. James Smylie, p. 3. Cobb, op. cit. p. 54 sqq. Goodell, Slavery and Anti-Slavery, pp. 154-156, 167, 176, 181, 184, 186, &c. Parker, Collected Works, v. 157.]

[Footnote 288: Thornton, quoted by Goodell, Slavery and Anti-Slavery, p. 147. Fisk, quoted ibid. p. 147.]

[Footnote 289: Bledsoe, op. cit. p. 138.]

[Footnote 290: Smylie, quoted by Gerrit Smith, op. cit. p. 3.]

[Footnote 291: Quoted by Goodell, Slavery and Anti-Slavery, p. 347.]

[Footnote 292: Barnes, op. cit. p. 16.]

[Footnote 293: Ibid. p. 18. Newman, Anglo-Saxon Abolition of Negro Slavery, p. 56. Bledsoe, op. cit. p. 223.]

[Footnote 294: Newman, op. cit. p. 53. von Holst, op. cit. ii. 118, n. 1.]

[Footnote 295: Gurney, Views and Practices of the Society of Friends, p. 390. 'Anti-Slavery Declaration of 1833,' quoted by Goodell, Slavery and Anti-Slavery, p. 398. Birney, Second Letter, p. 1.]

[Footnote 296: Parker, op. cit. v. 56.]

[Footnote 297: von Holst, op. cit. ii. 230.]

Nobody would suppose that this attitude towards slavery was due to religious zeal. It was one of those cases, only too frequent in the history of morals, in which religion is called in to lend its sanction to a social institution agreeable to the leaders of religious opinion. Many clergymen and missionaries were themselves slave-holders, [298] the chapel funds largely rested on slave property,[299] and the ministers naturally desired to be on friendly terms with the more important members of their respective congregations, who were commonly owners of slaves. Adam Smith observes that the resolution of the Quakers in Pennsylvania to set at liberty all their slaves, was due to the fact that the principal produce there was corn, the raising of which cannot afford the expense of slave cultivation; had the slaves "made any considerable part of their property, such a resolution could never have been agreed to."[300]

[Footnote 298: Barnes, op. cit. p. 13. Goodell, Slavery and Anti-Slavery, pp. 151, 186 sq.]

[Footnote 299: Newman, op. cit. p. 53.]

[Footnote 300: Adam Smith, Wealth of Nations, p. 172.]

To explain the establishment of colonial slavery, the difficulties in the way of its abolition, and the laws relating to it, it is necessary to consider not only economic conditions and the motive of self-interest, but, as a factor of equal importance, the want of sympathy for, or positive antipathy to, the coloured race. The negro was looked upon almost as an animal, according to some he was a being without a soul.[301] Even when free he was a pariah, subject to special laws and regulations. In the Code of {714} Louisiana it is said:--"Free people of colour ought never to insult or strike white people, nor presume to conceive themselves equal to the whites; but, on the contrary, they ought to yield to them on every occasion, and never speak or answer them but with respect, under the penalty of imprisonment, according to the nature of the offence."[302] The Code Noir prohibited white men and women from marrying negroes, "à peine de punition et d'amende arbitraire";[303] and in the Revised Statutes of North Carolina we read:--"If any white man or woman, being free, shall intermarry with an Indian, negro, mustee or mulatto man or woman, or any person of mixed blood to the third generation, bond or free, he shall, by judgment of the county court, forfeit and pay the sum of one hundred dollars to the use of the county."[304] In Mississippi a free negro or mulatto was legally punished with thirty-nine lashes if he exercised the functions of a minister of the Gospel.[305] Coloured men in the North were excluded from colleges and high schools, from theological seminaries and from respectable churches, as also from the town hall, the ballot, and the cemetery where white people were interred.[306] The Anglo-Saxon aversion to the black race is thus expressed by an English writer:--"We hate slavery, but we hate the negroes still more."[307] Among the Spaniards and Portuguese racial antipathies were not so strong, and their slaves were consequently better treated.[308]

[Footnote 301: von Holst, op. cit. i. 279. Malloch, 'How the Church dealt with Slavery,' in The Month, xxvii. 454.]

[Footnote 302: Quoted by Stroud, op. cit. p. 157.]

[Footnote 303: Code Noir, Édit donné au mois de Mars 1724, art. 6, p. 286.]

[Footnote 304: Revised Statutes of North Carolina, lxxi. 5, vol. i. 386 sq.]

[Footnote 305: Alden and van Hoesen, op. cit. p. 771.]

[Footnote 306: Parker, op. cit. v. 58. Goodell Slavery and Anti-Slavery, p. 200.]

[Footnote 307: Seward, quoted by Newman, Abolition of Negro Slavery, p. 54.]

[Footnote 308: Couty, L'esclavage au Brésil, p. 8 sqq.]

Thus we notice in the opinions regarding slavery throughout the same distinction as in the judgments on other matters of moral concern. A person is, as a rule, allowed

to enslave or to keep as slaves only persons belonging to a different community or a different race from his own, or their descendants. To deprive anybody of his liberty is to inflict an injury on him, and is regarded as {715} wrong whenever the act gives rise to sympathetic resentment, whereas nothing is thought of it where no sympathy is felt for its victim. Thus, whilst slavery grows up only under economic conditions favourable to slave labour, it is always limited by feelings of an altruistic character, and where these feelings are sufficiently broad and powerful it is not tolerated at all. The same factor also influences the condition of the slaves where slavery exists. We have seen that native slaves are better treated than foreign ones and slaves born in the household better than those who have been captured or purchased. The advancement of a nation, again, is frequently attended with greater severity in the treatment of the slaves, because, whilst the simplicity of early ages admits of little distinction between the master and his servants in their employments and manner of living, the introduction of wealth and luxury gradually destroys the equality. Besides, the number of slaves maintained in a wealthy nation makes them formidable both to their owners and to the State, hence it is necessary that they should be strictly watched and kept in the utmost subjection.[309]

[Footnote 309: Millar, op. cit. p. 256 sqq.]

The condition of slaves is in various respects influenced by the selfish considerations of their masters. Stuart Mill observes:--"When, as among the ancients, the slave-market could only be supplied by captives either taken in war, or kidnapped from thinly scattered tribes on the remote confines of the human world, it was generally more profitable to keep up the number by breeding, which necessitates a far better treatment of them, and for this reason, joined with several others, the condition of slaves . . . was probably much less bad in the ancient world, than in the colonies of modern nations."[310] Among the Bedouins, says Burckhardt, "the slaves are treated with kindness, and seldom beaten, as severity might induce them to run away."[311] Superstition may also help to {716} improve the lot of the slave. In West Africa "the authority which a master exercises over a slave is very much modified by his constitutional dread of witchcraft. If he treats his slave unkindly, or inflicts unmerited punishment upon him, he exposes himself to all the machinations of witchcraft which that slave may be able to command."[312] It is said in the Proverbs, "Accuse not a servant unto his master, lest he curse thee, and thou be found guilty."[313] The same danger threatens the cruel master. We read in the Apostolic Constitutions, "Thy man-servant or thy maid-servant who trust in the same God, thou shalt not command with bitterness of spirit; lest they groan against thee, and wrath be upon thee from God."[314]

[Footnote 310: Mill, Principles of Political Economy, i. 307. Cf. supra, p. 701.]

[Footnote 311: Burckhardt, Bedouins and Wahábys, p. 103.]

[Footnote 312: Wilson, Western Africa, p. 271. See also ibid. p. 179; Cruickshank, Eighteen Years on the Gold Coast, ii. 180 sqq.; Du Chaillu, Explorations and Adventures in Equatorial Africa, p. 331; Landtman, Origin of Priesthood, p. 198, n. 2.]

[Footnote 313: Proverbs, xxx. 10.]

[Footnote 314: Constitutiones Apostolicæ, vii. 13.]

End of Vol. I

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THE ORIGIN AND DEVELOPMENT OF THE MORAL IDEAS

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THE ORIGIN AND DEVELOPMENT

Of the — Moral Ideas

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WHILE the text of the first edition has been left almost unchanged, some notes have been added at the end of it.

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The Origin and Development of the Moral Ideas — Chapter XXVIII

The Right of Property

THE right of property implies that a certain person or certain persons are recognised as having a right to the exclusive disposal of a certain thing. The owner is not necessarily allowed to do with his property whatever he likes; but whether absolute or limited, his right to disposal is not shared by anybody else, save under very exceptional circumstances, as in the case of "compulsion by necessity."[1] Property in a thing thus means not only that the owner of it is allowed, at least within certain limits, to use or deal with

it at his discretion, but also that other persons are forbidden to prevent him from using or dealing with it in any manner he is entitled to.

[Footnote 1: Supra, i. 285 sqq.]

The most common offence against property is illicit appropriation of other persons' belongings. Not the mere fact that individuals are in actual possession of certain objects, but the public disapproval of acts by which they are deprived of such possession, shows that they have proprietary rights over those objects. Hence the universal condemnation of what we call theft or robbery proves that the right of property exists among all races of men known to us.

{2} Travellers often accuse savages of thievishness.[2] But then their judgments are commonly based upon the treatment to which they have been subject themselves, and from this no conclusions must be drawn as regards intra-tribal morality. Nor can races who have had much to do with foreigners be taken as fair representatives of savage honesty, as such contact has proved the origin of thievish propensities.[3] In the majority of cases uncivilised peoples seem to respect proprietary rights within their own communities, and not infrequently even in their dealings {3} with strangers. Many of them are expressly said to condemn or abhor theft, at any rate when committed among themselves. And that all of them disapprove of it may be inferred from the universal custom of subjecting a detected thief to punishment or revenge, or, at the very least, of compelling him to restore the stolen property to its owner.

[Footnote 2: Beni, 'Notizie sopra gli indigeni di Mexico,' in Archivio per l'antropologia e la etnologia, xii. 15 (Apaches). Burton, City of the Saints, p. 125 (Dacotahs and Prairie Indians). Powers, Tribes of California, p. 127 (Yuki). Macfie, Vancouver Island and British Columbia, p. 468. Heriot, Travels through the Canadas, p. 22 (Newfoundland Eskimo). Coxe, Russian Discoveries between Asia and America, p. 300 (Kinaighi). Georgi, Russia, iv. 22 (Kalmucks), 133 (Buriats). Scott Robertson, Káfirs of the Hindu-Kush, p. 193 sq. Modigliani, Viaggio a Nías, p. 468. Powell, Wanderings in a Wild Country, p. 23 (South Sea Islanders). Romilly, From my Verandah in New Guinea, p. 50; Comrie, 'Anthropological Notes on New Guinea,' in Jour. Anthr. Inst. vi. 109 sq. de Labillardière, Voyage in Search of La Pérouse, i. 275; Moseley, Notes by a Naturalist on the "Challenger," p. 391 (Admiralty Islanders). Brenchley, Jottings during the Cruise of H.M.S. Curaçoa, p. 58 (natives of Tutuila). Lisiansky, Voyage round the World, p. 88 sq. (Nukahivans). Williams, Missionary Enterprises in the South Sea Islands, p. 126 (natives of Rarotonga). Cooke, Journal of a Voyage round the World, p. 40; Montgomery, Journal of Voyages and Travels by Tyerman and Bennet, ii. 11 (Society Islanders). Barrington, History of New South Wales, p. 22; Breton, Excursions in New South Wales, p. 221; Collins, Account of the English Colony in New South Wales, i. 599 sq.; Hodgson, Reminiscences of Australia, p. 79; Mitchell, Expeditions into the Interior of Eastern Australia, i. 264, 304; Lumholtz, Among Cannibals, p. 71 sq. (Australian tribes). Reade, Savage Africa, p. 579 (West African Negroes). Bosman, Description of the Coast of Guinea, p. 324 sq. (Negroes of Fida and the Gold Coast). Caillié, Travels through Central Africa, i. 353 (Mandingoes). Beltrame, Il Fiume Bianco, p. 83 (Shilluk). Wilson and Felkin, Uganda and the Egyptian Soudan, ii. 310 (Gowane people of Kordofan). Krapf, Travels, Researches and Missionary Labours in Eastern Africa, p. 355 (Wakamba). Burton, Zanzibar, ii. 92 (Wanika). Bonfanti, 'L'incivilimento dei negri nell' Africa intertropicale,' in Archivio per l'antropologia e la etnologia, xv. 133 (Bantu races). Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of the Cape of Good Hope, p. 323 (Bechuanas). Andersson, Lake Ngami, pp. 468 sq. (Bechuanas), 499 (Bayeye). Leslie,

Among the Zulus and Amatongas, p. 256. Fritsch, Die Eingeborenen Süd-Afrika's, pp. 53 (Kafirs), 372, 419 (Hottentots and Bushmans).]

[Footnote 3: Domenech, Great Deserts of North America, ii. 321. Mackenzie, Voyages to the Frozen and Pacific Oceans, p. xcvi. note (Crees). Burton, Highlands of the Brazil, i. 403 sq. Moorcroft and Trebeck, Travels in the Himalayan Provinces, i. 321 (Ladakhis). Anderson, Mandalay to Momien, p. 151 (Kakhyens). Earl, Papuans, p. 80. Tyler, Forty Years among the Zulus, p. 192.]

The Fuegians have shown themselves enterprising thieves on board European vessels visiting their shores;[4] but, when presents were given to them, a traveller noticed that "if any present was designed for one canoe, and it fell near another, it was invariably given to the right owner."[5] The boys are taught by their fathers not to steal;[6] and in case a theft has been committed, "quand le coupable est découvert et chatié, l'opinion publique est satisfaite."[7] In his dealings with the Tehuelches Lieutenant Musters was always treated with fairness, and the greatest care was taken of his belongings, though they were borrowed at times. He gives the following advice to the traveller:--"Never show distrust of the Indians; be as free with your goods and chattels as they are to each other. . . . As you treat them so they will treat you."[8] Among the Abipones doors, locks, and other things with which civilised men protect their possessions from thieves, were as unnecessary as they were unknown; and if children pilfered melons grown in the gardens of the missionaries or chickens reared in their houses, "they falsely imagined that these things were free to all, or might be taken not much against the will of the owner."[9] Among the Brazilian Indians theft and robbery were extremely rare, and are so still in places where strangers have not settled.[10] We are told that the greatest insult which could be offered to an Indian was to accuse him of stealing, and that the wild women preferred the epithet of a prostitute to that of a {4} thief.[11] When detected a thief was not only obliged to restore the property he had stolen, but was punished with stripes and wounds, the chief often acting as executioner.[12] Among the Indians of British Guiana theft and pilfering rarely occur; "if they happen to take anything, they do it before one's eyes, under the notion of having some claim to it, which, when called to an account, they are always prepared to substantiate."[13] If anything is stolen from his house during his absence, the Guiana Indian thinks that the missing article has been carried off by people of some other race than his own.[14] Formerly, when the Caribs lost anything, they used to say, "The Christians have been here."[15] In Hayti the punishment of a thief was to be eaten.[16]

[Footnote 4: Weddell, Voyage towards the South Pole, pp. 151, 154, 182. King and Fitzroy, Voyages of the "Adventure" and "Beagle," i. 128; ii. 188.]

[Footnote 5: Darwin, Journal of Researches, p. 242. See also Snow, 'Wild Tribes of Tierra del Fuego,' in Jour. Ethn. Soc. London, N.S. i. 264.]

[Footnote 6: Bridges, in A Voice for South America, xiii. 204.]

[Footnote 7: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 243.]

[Footnote 8: Musters, At Home with the Patagonians, pp. 195, 197 sq.]

[Footnote 9: Dobrizhoffer, Account of the Abipones, ii. 148 sq.]

[Footnote 10: von Martius, Beiträge zur Ethnographie Amerika's, i. 85, 87 sq. Idem, in Jour. Roy. Geo. Soc. ii. 196. von Spix and von Martius, Travels in Brazil, ii. 242. Southey, History of Brazil, i. 247. von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 332. Burton, Highlands of the Brazil, i. 403 sq.]

[Footnote 11: Burton, Highlands of the Brazil, i. 404.]

[Footnote 12: von Martius, Beiträge, i. 88. Idem, in Jour. Roy. Geo. Soc. ii. 196.]

[Footnote 13: Bernau, Missionary Labours in British Guiana, p. 51.]

[Footnote 14: Brett, Indian Tribes of Guiana, p. 348.]

[Footnote 15: Kames, Sketches of the History of Man, iv. 133 sq.]

[Footnote 16: von Martius, Beiträge, i. 88, n.*]

It is known that many North American tribes had a very high standard of honesty among themselves. Domenech wrote:--"The Indians who do not come in contact with the Palefaces never appropriate what belongs to others; they have no law against theft, as it is a crime unknown among them. They never close their doors."[17] According to Colonel Dodge, theft was the sole unpardonable crime amongst them; a man found guilty of stealing even the most trifling article from a member of his own band was whipped almost to death, deprived of his property, and together with his wives and children driven away from the band to starve or live as best he could.[18] Among the Rocky Mountains Indians visited by Harmon theft was frequently punished with death.[19] Among the Omahas, "when the suspected thief did not confess his offence, some of his property was taken from him until he told the truth. When he restored what he had stolen, one-half of his own property was returned to him, and the rest was given to the man from whom he had stolen. Sometimes all of the policemen whipped the thief. But when the thief fled from the tribe, and remained away for a year or two, the offence was not remembered."[20] Among the Wyandots the punishment for theft is twofold restitution.[21] The Iroquois looked down upon {5} theft with the greatest disdain, although the lash of public indignation was the only penalty attached to it.[22] The Potawatomis considered it one of the most atrocious crimes.[23] Among the Chippewas Keating found a few individuals who were addicted to thieving, but these were held in disrepute.[24] Richardson praises the Chippewyans for their honesty, no precautions for the safety of his and his companions property being required during their stay among them.[25] Mackenzie was struck by the remarkable honesty of the Beaver Indians; "in the whole tribe there were only two women and a man who had been known to have swerved from that virtue, and they were considered as objects of disregard and reprobation."[26] Among the Ahts "larceny of a fellow-tribesman's property is rarely heard of, and the aggravation of taking it from the house or person is almost unknown"; nay, "anything left under an Indian's charge, in reliance on his good faith, is perfectly safe."[27] The Thlinkets generally respect the property of their fellow-tribesmen; but although they admit that theft is wrong they do not regard it as a very serious offence, which disgraces the perpetrator, and if a thief is caught he is only required to return the stolen article or to pay its value.[28] Among the Aleuts "theft was not only a crime but a disgrace"; for the first offence of this kind corporal punishment was inflicted, for the fourth the penalty was death.[29] According to Egede, the Greenlanders had as great an abhorrence of stealing among themselves as any nation upon earth;[30] according to Cranz, they considered such an act "excessively disgraceful."[31] Similar views still prevail among them, as also among other Eskimo tribes.[32] A Greenlander never touches driftwood which another {6} has placed above high-water mark, though it would often be easy to appropriate it without fear of detection.[33] Parry states that, during his stay at Igloolik and Winter Island, a great many instances occurred in which the Eskimo scrupulously returned articles that did not belong to them, even though detection of a theft, or at least of the offender, would have been next to impossible.[34]

[Footnote 17: Domenech, op. cit. ii. 320.]

[Footnote 18: Dodge, Our Wild Indians, pp. 64, 79. Cf. Charlevoix, Journal of a Voyage to North America, ii. 26, 28 (Hurons).]

[Footnote 19: Harmon, Voyages and Travels in the Interior of North America, p. 348.]

[Footnote 20: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 367.]

[Footnote 21: Powell, 'Wyandot Government,' in Ann. Rep. Bur. Ethn. i. 66.]

[Footnote 22: Colden, in Schoolcraft, Indian Tribes of the United States, iii. 191. Morgan, League of the Iroquois, p. 333 sq. Loskiel, History of the Mission of the United Brethren among the Indians, i. 16.]

[Footnote 23: Keating, Expedition to the Source of St. Peter's River, i. 127.]

[Footnote 24: Ibid. ii. 168.]

[Footnote 25: Richardson, Arctic Searching Expedition, ii. 19 sq.]

[Footnote 26: Mackenzie, Voyages to the Frozen and Pacific Oceans, p. 148.]

[Footnote 27: Sproat, Scenes and Studies of Savage Life, p. 159.]

[Footnote 28: Krause, Die Tlinkit-Indianer, p. 167. Holmberg, 'Ethnographische Skizzen über die Völker des russischen Amerika,' in Acta Soc. Scient. Fennicæ, iv. 322. Petroff, Report on Alaska, p. 170. Dall, Alaska, p. 416.]

[Footnote 29: Veniaminof, quoted by Petroff, op. cit. pp. 155, 152.]

[Footnote 30: Egede, Description of Greenland, p. 124. See also Dalager, Grønlandske Relationer, p. 69.]

[Footnote 31: Cranz, History of Greenland, 160.]

[Footnote 32: Nansen, First Crossing of Greenland, ii. 335. Idem, Eskimo Life, p. 158. Rink, Danish Greenland, p. 224. Hall, Arctic Researches, pp. 567, 571. Richardson, Arctic Searching Expedition, i. 352. Parry, Second Voyage for the Discovery of a North-West Passage, p. 522; Lyon, Private Journal, p. 347 (Eskimo of Igloolik). Seemann, Voyage of "Herald," ii. 65 (Western Eskimo). Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 293. Among the Point Barrow Eskimo, however, "men who were said to be thieves did not appear to lose any social consideration" (Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 41).]

[Footnote 33: Nansen, Eskimo Life, p. 162.]

[Footnote 34: Parry, op. cit. p. 521.]

Among the Chukchi it is held criminal to thieve "in the family and race to which a person belongs";[35] and incorrigible thieves are sometimes banished from the village.[36] In Kamchatka, if anybody was found to be a thief he was beaten by the person from whom he had stolen, without being allowed to make resistance, and no one would ever after be friends with him.[37] The three principal precepts of the Ainu are to honour old age, not to steal, not to lie;[38] theft is also uncommon among them, and is severely punished.[39] Among the Kirghiz "whoever commits a robbery on any of the nation must make restitution to nine times the value."[40] Among the Tunguses a thief is punished by a certain number of strokes; he is besidesobliged to restore the things stolen, and remains covered with ignominy all the rest of his life.[41] The Jakuts,[42] Ostyaks,[43] Mordvins[44] Samoyedes,[45] and Lapps,[46] are praised for their honesty, at least among their own people; and so are the Butias,[47] Kukis,[48] Santals,[49] the hill people in the Central Provinces of India,[50] and the Chittagong Hill tribes.[51] The Kurubars of the Dekhan are of such known honesty, that on all occasions they are entrusted with the custody of produce by the farmers, who know that they would rather starve than take one grain of what was given them in {7} charge.[52] "Honest as a Pahari," is a proverbial expression. In fact, among these mountaineers theft is almost unknown, and the men "carry treasures, which to them would be priceless, for days and days, along wild mountain tracks, whence at any moment they might diverge, and never be traced. Even money is safely entrusted to them, and is invariably delivered into the right hands."[53] Harkness says of the Todás:--"I never saw a people, civilised or uncivilised, who seemed to have a more religious respect for the rights of meum

et tuum. This feeling is taught to their children from the tenderest age."[54] Among the Chukmas "theft is unknown."[55] Among the Karens habitual thieves are sold into slavery.[56] Among the Shans theft of valuable property is punishable with death, though it may be expiated by a money payment; but in cases of culprits who cannot pay, or whose relatives cannot pay, death is looked upon as a fitting punishment even for petty thefts.[57] At Zimmé, "if a theft is proved, three times the value of the article is decreed to the owner; and if not paid, the offender, after suffering imprisonment in irons, is made over with his family, to be dealt with as in cases of debt."[58] Among the hill tribes of North Aracan a person who commits theft is bound to return the property or its value and pay a fine not exceeding Rs. 30.[59] Among the Kandhs, on the other hand, the restitution of the property abstracted or the substitution of an equivalent is alone required by ancient usage; but this leniency extends to the first offence only, a repetition of it being followed by expulsion from the community.[60] The Andaman Islanders call theft a y[=u]bda, or sin.[61] Among those Veddahs who live in their natural state, theft and robbery are not known at all.[62] They think it perfectly inconceivable that any person should ever take that which does not belong to him,[63] and death only would, in their opinion, be the punishment for such an offence.[64]

[Footnote 35: Georgi, op. cit. iii. 183.]

[Footnote 36: Dall, op. cit. p. 382.]

[Footnote 37: Steller, Beschreibung von Kamtschatka, p. 356. See also supra, i. 311 sq.]

[Footnote 38: von Siebold, Die Aino auf der Insel Yesso, p. 25.]

[Footnote 39: Ibid. pp. 11, 34 sq. See also supra, i. 312.]

[Footnote 40: Georgi, op. cit. ii. 262.]

[Footnote 41: Ibid. iii. 83 sq. Cf. ibid. iii. 78.]

[Footnote 42: Ibid. ii. 397. Sauer, Expedition to the Northern Parts of Russia, p. 122.]

[Footnote 43: Castrén, Nordiska resor och forskningar, i. 319.]

[Footnote 44: Georgi, op. cit. i. 113.]

[Footnote 45: Ibid. iii. 13. von Struve, in Das Ausland, 1880, p. 796.]

[Footnote 46: Jessen, Afhandling om de Norske Finners og Lappers Hedenske Religion, p. 72. Castrén, op. cit. i. 118 sq.]

[Footnote 47: Fraser, Tour through the Him[=a]l[=a] Mountains, p. 335.]

[Footnote 48: Lewin, Wild Races of South-Eastern India, p. 256. Cf. Butler, Travels in Assam, p. 94.]

[Footnote 49: Man, Sonthalia, p. 20.]

[Footnote 50: Hislop, Papers relating to the Aboriginal Tribes of the Central Provinces, p. 1.]

[Footnote 51: Lewin, Wild Races of South-Eastern India, p. 341.]

[Footnote 52: Buchanan, quoted by Elliot, 'Characteristics of the Population of Central and Southern India,' in Jour. Ethn. Soc. London, N.S. i. 105.]

[Footnote 53: Cumming, In the Himalayas, p. 356.]

[Footnote 54: Harkness, Description of a Singular Aboriginal Race inhabiting the Neilgherry Hills, p. 17 sq.]

[Footnote 55: Lewin, Wild Races of South-Eastern India, p. 188.]

[Footnote 56: Mason, 'Dwellings, &c., of the Karens,' in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. p. 146 sq. Smeaton, Loyal Karens of Burma, p. 86.]

[Footnote 57: Woodthorpe, in Jour. Anthr. Inst. xxvi. 21.]

[Footnote 58: Colquhoun, Amongst the Shans, p. 131.]

[Footnote 59: St. John, in Jour. Anthr. Inst. ii. 241.]

[Footnote 60: Macpherson, Memorials of Service in India, p. 82.]

[Footnote 61: Man, in Jour. Anthr. Inst. xii. 112.]

[Footnote 62: Sarasin, Ergebnisse naturwissenschaftlicher Forschungen auf Ceylon, iii. 548. Deschamps, Carnet d'un voyageur, p. 385. Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 192.]

[Footnote 63: Hartshorne, 'Weddas,' in Indian Antiquary, viii. 320.]

[Footnote 64: Sarasin, op. cit. iii. 549.]

{8} In the Malay Archipelago native custom punishes theft with a fine, most frequently equivalent to twice the value of the stolen article,[65] or with slavery,[66] mutilation,[67] or even death;[68] and in many islands it was lawful to kill a thief caught in the act.[69] Among the Malays of Perak,[70] Dyaks,[71] Kyans,[72] Bataks,[73] and the natives of Ambon and Uliase,[74] theft is said to be unknown or almost so, at least within their own communities.

[Footnote 65: Wilken, 'Het strafrecht bij de volken van het maleische ras,' in Bijdragen tot de taal- land- en volkenkunde van Nederlandsch-Indië, 1883, Land- en volkenkunde, p. 109 sq. Crawfurd, History of the Indian Archipelago, iii. 117. Marsden, History of Sumatra, pp. 221 (Rejangs), 389 (Bataks). von Brenner, Besuch bei den Kannibalen Sumatras, p. 213 (Bataks). Junghuhn, Die Battaländer auf Sumatra, ii. 145 (Bataks), 308 (natives of Passumah in Central Sumatra), 317 (Timorese), 339 (natives of Bali and Lombok). Modigliani, op. cit. p. 496; von Rosenberg, Der malayische Archipel, p. 166 (Niase). Worcester, Philippine Islands, p. 108 (Tagbanuas of Palawan).]

[Footnote 66: Wilken, loc. cit. p. 108 sq. Junghuhn, op. cit. ii. 145 sq. (Bataks). Raffles, History of Java, ii. p. ccxxxv. (people of Bali). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 320 (people of Timor-laut). von Rosenberg, op. cit. p. 166 (Niase).]

[Footnote 67: St. John, Life in the Forests of the Far East, ii. 297 (natives of the kingdom of Borneo, formerly). Low, Sarawak, p. 133. Marsden, op. cit. p. 404 (Achinese of Sumatra). Hickson, A Naturalist in North Celebes, p. 198 (Sangirese). Crawfurd, op. cit. iii. 107, 115. Crawfurd thinks (ibid. iii. 107) that the punishment of mutilation was introduced by Muhammedanism.]

[Footnote 68: Crawfurd, op. cit. iii. 115 (Javanese) Kükenthal, Ergebnisse einer zoologischen Forschungsreise in den Molukken und Borneo, i. 188 (Alfura of Halmahera). Marsden, op. cit. p. 471 (Poggi Islanders). Among the Bataks (von Brenner, op. cit. p. 212) and Achinese of Sumatra (Marsden, op. cit. p. 404) robbery is punished with death.]

[Footnote 69: Wilken, loc. cit. p. 88 sqq. von Rosenberg, op. cit. p. 166; Modigliani, op. cit. p. 496 (Niase).]

[Footnote 70: McNair, Perak and the Malays, p. 204.]

[Footnote 71: Boyle, Adventures among the Dyaks of Borneo, p. 235. Bock, Head-Hunters of Borneo, p. 209. Selenka, Sonnige Welten, p. 19. Ling Roth, Natives of Sarawak, i. 81, 82, 92.]

[Footnote 72: Low, op. cit. p. 336.]

[Footnote 73: Marsden, op. cit. p. 389. Junghuhn, op. cit. ii. 148.]

[Footnote 74: Martin, Reisen in den Molukken, p. 63.]

Many of the South Sea Islanders have been described as honest among themselves, and some of them as honest even towards Europeans.[75] In the opinion of Captain Cook the light-coloured Polynesians have thievish propensities, but the dark-coloured not.[76] In the Tonga Islands theft was considered {9} an act of meanness rather than a crime,[77] whereas in many other islands it was regarded as a very grave offence.[78] Sometimes the delinquent was subject to private retaliation,[79] sometimes to a fine, [80] or blows,[81] or the loss of a finger,[82] or the penalty of death.[83]

[Footnote 75: Earl, Papuans, pp. 49, 80, 105. Seemann, Viti, p. 46 sq.; Anderson, Travel in Fiji, p. 130. Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 73 (Micronesians). Melville, Typee, pp. 294 (Marquesas Islanders), 295 n. 1 (various Polynesians). Williams, Missionary Enterprises in the South Sea Islands, p. 530 (Samoans). von Kotzebue, Voyage of Discovery into the South Sea, iii. 164 (people of Radack), 255 (Sandwich Islanders). Lisiansky, op. cit. p. 125 (Sandwich Islanders). Dieffenbach, Travels in New Zealand, ii. 105; Meade, Ride through the disturbed Districts of New Zealand, p. 162 sq.; Thomson, Story of New Zealand, i. 86; Colenso, Maori Races, p. 43. Bonwick, Daily Life and Origin of the Tasmanians, p. 9.]

[Footnote 76: Seemann, Viti, p. 47.]

[Footnote 77: Mariner, Natives of the Tonga Islands, ii. 162. In Ponapé (Christian, Caroline Islands, p. 72) and among the Maoris (Meade, op. cit. p. 162) thieves are said to be despised.]

[Footnote 78: Earl, op. cit. p. 80 (Papuans of Dorey). Ellis, Tour through Hawaii, p. 429; &c.]

[Footnote 79: Turner, Samoa, pp. 278 (natives of Humphrey's Island), 343 (New Caledonians). Lisiansky, op. cit. p. 80 sq. (Nukahivans). Williams, Missionary Enterprises, p. 127 (natives of Rarotonga). Ellis, Polynesian Researches, iv. 420 (Sandwich Islanders).]

[Footnote 80: Earl, op. cit. p. 83 (Papuans of Dorey). Sorge, in Steinmetz, Rechtsverhältnisse von eingeborenen Völkern in Afrika und Ozeanien, p. 421 (Nissan Islanders of the Bismarck Archipelago). Williams and Calvert, Fiji, p. 22. Turner, Samoa, p. 281 (natives of the Mitchell Group).]

[Footnote 81: Cook, Journal of a Voyage round the World, p. 42 (Tahitians). Yate, Account of New Zealand, p. 104.]

[Footnote 82: Williams and Calvert, Fiji, p. 23.]

[Footnote 83: Gill, Life in the Southern Isles, p. 47. Turner, Samoa, pp. 290 (natives of Hudson's Island), 295 (natives of Arorae), 297 (natives of Nikumau of the Gilbert Group), 300 (natives of Francis Island), 337 (Efatese, of the New Hebrides). Tutuila, in Jour. Polynesian Soc. i. 268 (Line Islanders). Ellis, Polynesian Researches, iv. 421 (Sandwich Islanders). Cook, Journal of a Voyage round the World, p. 41 sq. (Tahitians).]

Among the natives of Herbert River, Northern Queensland, there is "considerable respect for the right of property, and they do not steal from one another to any great extent. . . . If they hunt they will not take another person's game, all the members of the same tribe having apparently full confidence in each other."[84] When a theft does occur, "the thief is challenged by his victim to a duel with wooden swords and shields; and the matter is settled sometimes privately, the relatives of both parties serving as witnesses, sometimes publicly at the borboby, where two hundred to three hundred meet from various tribes to decide all their disputes. The victor in the duel wins in the dispute."[85] So also among the Dieyerie tribe, "should any native steal from another, and the offender be known, he is challenged to fight by the person he has robbed, and this settles the matter."[86] Of the Bangerang tribe of Victoria we are told that, amongst themselves, they were scrupulously honest;[87] and, speaking of West Australian natives, Mr. Chauncy expresses his belief that "the members of a tribe never pilfer from each other."[88] In their relations to Europeans, again, Australian blacks have been sometimes accused of thievishness,[89] sometimes praised for their {10} honesty.[90] From his own observation Mr. Curr has no doubt that they feel that theft is wrong.[91] Of the aborigines of West Australia we are told that they occasionally speared the sheep and robbed the potato gardens of the early settlers simply because they did not understand the settlers' views regarding property, having themselves no separate

property in any living animal except their dogs or in any produce of the soil. But "only entrust a native with property, and he will invariably be faithful to the trust. Lend him your gun to shoot game, and he will bring you the result of his day's sport; send him a long journey with provisions for your shepherd, and he will certainly deliver them safely. Entrust him with a flock of sheep through a rugged country to a distant run, and he and his wife will take them generally more safely than a white man would."[92]

[Footnote 84: Lumholtz, Among Cannibals, p. 147.]

[Footnote 85: Ibid. p. 126.]

[Footnote 86: Gason, in Woods, Native Tribes of South Australia, p. 266.]

[Footnote 87: Curr, Recollections of Squatting in Victoria, p. 298.]

[Footnote 88: Chauncy, in Brough Smyth, Aborigines of Victoria, ii. 278.]

[Footnote 89: Supra, ii. 2, n. 1.]

[Footnote 90: Howitt, in Brought Smyth, op. cit. ii. 306. Fraser, Aborigines of New South Wales, p. 90.]

[Footnote 91: Curr, The Australian Race, i. 100.]

[Footnote 92: Chauncy, in Brough Smyth, op. cit. ii. 278.]

"The Arab," says Burckhardt, "robs his enemies, his friends, and his neighbours, provided that they are not actually in his own tent, where their property is sacred. To rob in the camp, or among friendly tribes, is not reckoned creditable to a man; yet no stain remains upon him for such an action, which, in fact, is of daily occurrence. But the Arab chiefly prides himself on robbing his enemies."[93] This, however, seems to hold true only of Bedouin tribes inhabiting rich pasture plains, who are much exposed to attacks from others, whereas in more sheltered territories a person who "attempts to steal in the tents of his own tribe, is for ever dishonoured among his friends." Thus among the Arabs of Sinai robberies are wholly unknown; any articles of dress or of furniture may be left upon a rock without the least risk of their being taken away.[94] According to Waháby law, a robber is obliged to return the stolen goods or their value, but if the offence is not attended with circumstances of violence he escapes without further punishment, except a fine to the treasury.[95] Among some Bedouins of [H.]adhramaut theft from a tribesman is punished with banishment from the tribe.[96] Lady Anne and Mr. Blunt state that, with regard to honesty, the pure Bedouin stands in marked contrast to his half-bred brethren. Whilst the Kurdish and semi-Kurdish tribes of Upper Mesopotamia make it almost a point of honour to steal, the genuine Arab accounts theft disgraceful, although he holds {11} highway robbery to be a right. In the large tribes persons of known dishonesty are not tolerated.[97]

[Footnote 93: Burckhardt, Notes on the Bedouins and Wahábys, p. 90.]

[Footnote 94: Ibid. p. 184 sq. Wallin, Första resa från Cairo till Arabiska öknen, p. 64.]

[Footnote 95: Burckhardt, op. cit. p. 301.]

[Footnote 96: von Wrede, Reise in [H.]adhramaut, p. 51.]

[Footnote 97: Blunt, Bedouin Tribes of the Euphrates, ii. 204, 225.]

In Africa honesty between members of the same tribe is no uncommon characteristic of the native races, and some of them have displayed the same quality in their dealings with European travellers.[98] Andersson, for instance, tells us that the Ovambo, so far as they came under his observation, were strictly honest and appeared to entertain great horror of theft. "Without permission," he says, "the natives would not even touch anything; and we could leave our camp free from the least apprehension of being plundered. As a proof of their honesty, I may mention, that, when we left the Ovambo country, the servants forgot some trifles; and such was the integrity of the people, that messengers actually came after us a very considerable distance to restore the articles

left behind."[99] A few African peoples are said to look upon petty larceny almost with indifference.[100] Among others thieves are only compelled to restore stolen property, or to return an equivalent for it,[101] but at the same time they are disgraced or laughed at.[102] In Africa, as elsewhere, theft is frequently punished with a fine.[103] Thus {12} among the Bahima,[104] Wadshagga,[105] and Tanala of Madagascar,[106] thieves are made to pay twice the value of the stolen goods; among the Takue,[107] Rendile,[108] and Herero,[109] three times their value; among the Bechuanas double or fourfold.[110] Among the Taveta, if a man commits a theft, he has to refund what he has robbed, and five times the value of the stolen property can be claimed by the person who has suffered the loss.[111] Among the Kafirs, "in cases of cattle stealing, the law allows a fine of ten head, though but one may have been stolen, provided the animal has been slaughtered, or cannot be restored."[112] Among the Masai, according to Herr Merker, the fine for stealing cattle is likewise a tenfold one;[113] whilst, according to another authority, "if a man steals one cow, or more than one cow, all his property is given to the man from whom he has stolen."[114] Among the Basukuma all thieves, it seems, are punished with the confiscation of everything they possess.[115] Other punishments for theft are imprisonment,[116] banishment,[117] slavery,[118] flogging,[119] mutilation, [120] and, especially under aggravating circumstances, death.[121] {13} In some African countries a thief caught in the act may be killed with impunity.[122]

[Footnote 98: St. John, Village Life in Egypt, ii. 198. Tristram, The Great Sahara, p. 193 sq. (Beni Mzab). Nachtigal, Sahara und Sudan, i. 188 (inhabitants of Fezzân). Dyveyrier, Exploration du Sahara, p. 385 (Touareg); cf. Chavanne, Die Sahara, p. 188. Munzinger, Ostafrikanische Studien, p. 531 sq. (Barea and Kunáma). Scaramucci and Giglioli, 'Notizie sui Danakil,' in Archivio per l'antropologia e la etnologia xiv. 25. Baumann, Durch Massailand zur Nilquelle, pp. 165 (Masai), 179 (Wafiomi). Thomson, Through Masai Land, p. 64 (Wakwafi of the Taveta). Baker, Ismailïa, p. 56; Petherick, Travels in Central Africa, ii. 3 (Shilluk). Macdonald, Africana, i. 182 (Eastern Central Africans). Mungo Park, Travels in the Interior of Africa, p. 239; Caillié, Travels through Central Africa to Timbuctoo, i. 353 (Mandingoes). Ward, Five Years with the Congo Cannibals, p. 93; Tuckey, Expedition to explore the River Zaire, p. 374. Johnston, Uganda Protectorate, ii. 590 (Wanyoro). Kolben, Present State of the Cape of Good Hope, i. 326; Hahn, The Supreme Being of the Khoi-Khoi, p. 32 (Hottentots); cf. Fritsch, Die Eingeborenen Süd-Afrika's, p. 307. Tyler, Forty Years among the Zulus, p. 191 sq.]

[Footnote 99: Andersson, Lake Ngami, p. 197. Cf. Idem, Notes on Travel in South Africa, p. 236.]

[Footnote 100: Monrad, Skildring af Guinea-Kysten, p. 6, n.*; Reade, Savage Africa, p. 580 (West African Negroes). Ellis, History of Madagascar, i. 144.]

[Footnote 101: Munzinger, Ostafrikanische Studien, pp. 389 (inhabitants of Saraë), 494 (Barea and Kunáma). Arbousset and Daumas, op. cit. p. 66 (Mantetis). Cunningham, Uganda, p. 293 (Baziba). Rautanen, in Steinmetz, Rechtsverhältnisse, p. 343 (Ondonga). Warner, in Maclean, Compendium of Kafir Laws and Customs, pp. 65, 67. Post, Afrikanische Jurisprudenz, ii. 84.]

[Footnote 102: Munzinger, Ostafrikanische Studien, pp. 386 (inhabitants of Saraë), 531 (Barea and Kunáma). Arbousset and Daumas, op. cit. p. 66 (Mantetis).]

[Footnote 103: Scaramucci and Giglioli, in Archivio per l'antropologia e la etnologia, xiv. 39 (Danakil). Nachtigal, op. cit. i. 449 (Tedâ). Bosman, Description of the Coast of Guinea, p. 142 (Negroes of Axim, on the Gold Coast). Ellis, Tshi-speaking Peoples of the Gold Coast, p. 303. Idem, E[(w]e-speaking Peoples of the Slave Coast, p. 225. Emin Pasha in Central Africa, p. 86 (Wanyoro). Cunningham, Uganda, p. 322 (Manyema). Steinmetz,

Rechtsverhältnisse, p. 52 (Banaka and Bapuku). Beverley, ibid. p. 215 (Wagogo). Lang, ibid. p. 259 (Washambala). Wandrer, ibid. p. 325 (Hottentots). Post, Afrikanische Jurisprudenz, ii. 85 sq.]

[Footnote 104: Cunningham, Uganda, p. 20.]

[Footnote 105: Volkens, Der Kilimandscharo, p. 250.]

[Footnote 106: Richardson, 'Tanala Customs,' in Antananarivo Annual, ii. 95 sq.]

[Footnote 107: Munzinger, Ostafrikanische Studien, p. 208.]

[Footnote 108: Chanler, Through Jungle and Desert, p. 317.]

[Footnote 109: François, Nama und Damara, p. 174.]

[Footnote 110: Holub, Seven Years in South Africa, i. 395. Casalis, Basutos, p. 228.]

[Footnote 111: Hollis, in Jour. African Soc. i. 123.]

[Footnote 112: Dugmore, in Maclean, Compendium of Kafir Laws and Customs, p. 36. Cf. ibid. pp. 112, 143.]

[Footnote 113: Merker, Die Masai, p. 208.]

[Footnote 114: Hinde, The Last of the Masai, p. 107.]

[Footnote 115: Cunningham, Uganda, p. 304.]

[Footnote 116: Mademba, in Steinmetz, Rechtsverhältnisse, p. 90 (inhabitants of the Sansanding States).]

[Footnote 117: Chavanne, Die Sahara, p. 315 (Beni Mzab).]

[Footnote 118: Bowdich, Mission to Ashantee, p. 258, n.* (Fantis). Petherick, op. cit. ii. 3 (Shilluk of the White Nile). Post, Afrikanische Jurisprudenz, ii. 87.]

[Footnote 119: Reade, Savage Africa, p. 261 (West Equatorial Africans). Ellis, Yoruba-speaking Peoples of the Slave Coast, p. 191. Volkens, op. cit. p. 250 (Wadshagga). Velten, Sitten und Gebräuche der Suaheli, p. 363. Campbell, Travels in South Africa, p. 519. Post, Afrikanische Jurisprudenz, ii. 88.]

[Footnote 120: de Abreu, Discovery and Conquest of the Canary Islands, p. 27 (aborigines of Ferro). Ellis, Yoruba-speaking Peoples, p. 191. Beltrame, Il Fiume Bianco, p. 280 (Dinka). Casati, Ten Years in Equatoria, i. 163 (Mambettu and Wanyoro). Wilson and Felkin, Uganda and the Egyptian Soudan, i. 201 (Waganda). Holub, op. cit. i. 395 sq. (Bechuanas). Post, Afrikanische Jurisprudenz, ii. 87 sq.]

[Footnote 121: Ellis, Yoruba-speaking Peoples, p. 191; Burton, Abeokuta, i. 304 (Yoruba). Ellis, Tshi-speaking Peoples, p. 303. Bosman, op. cit. p. 143 (Negroes of Axim). Cunningham, Uganda, pp. 69 (Banabuddu), 102 (Bakoki), 346 (Karamojo). François, op. cit. p. 175 (Herero). Andersson, Lake Ngami, p. 197 (Ovambo). Casalis, op. cit. p. 228 (Basutos). Shooter, Kafirs of Natal, p. 155. Tyler, op. cit. p. 192 (Zulus). Kolben, op. cit. i. 158 (Hottentots). Post, Afrikanische Jurisprudenz, ii. 88 sq.]

[Footnote 122: Hübbe-Schleiden, Ethiopien, p. 143 (Mpongwe). Cunningham, Uganda, p. 333 (Lendu). Burton, Zanzibar, ii. 94 (Wanika). Macdonald, Africana, i. 162, 183 (Eastern Central Africans). Macdonald, 'East Central African Customs,' in Jour. Anthr. Inst. xxii. 109. Supra, i. 289.]

The condemnation of theft, in one and the same people, varies in degree according to a variety of circumstances. It is influenced by the value of the goods stolen, as appears from the different punishments inflicted in cases where the value differs.[123] Thus, when the penalty consists of a fine, its amount is often strictly proportioned to the loss suffered by the owner, the thief being compelled to pay twice, or three, or four, or five, or ten times the worth of the appropriated article.[124] Among the Aztecs a petty thief became the slave of the person from whom he had stolen, whilst theft of a large amount was almost invariably punished with death.[125] According to the Koran, theft is to be punished by cutting off the offender's right hand for the first offence; but a

Sunneh law ordains that this punishment shall not be inflicted if the value of the stolen property is less than a quarter of a deenár.[126] Ancient Scotch law proportioned the punishment of theft to the value of the goods stolen, heightening it gradually from a slight corporal to a capital punishment, if the value {14} amounted to thirty-two pennies Scots, which in the reign of David I. was the price of two sheep.[127] In England a distinction was made between "grand" and "petty larceny," the line between them being drawn at twelve pence, and grand larceny was capital at least as early as the time of Edward I.[128] Among various peoples custom or law punishes with particular severity the stealing of objects of a certain kind, such as cattle, horses, agricultural implements, corn, precious metals, or arms.[129] The Negroes of Axim, says Bosman, "will rather put a man to death for stealing a sheep, than killing a man."[130] The Kalmucks regard horse-stealing as the greatest of all crimes.[131] The ancient Teutons held cattle-lifting and robbery of crops to be particularly disgraceful.[132] According to Roman law, people who stole an ox or horse from the pastures or from a stable, or ten sheep, or four or five swine, might be punished even with death.[133] The natives of Danger Island, in the South Seas, punished with drowning anyone who was caught stealing food, "the most valuable property they knew of."[134] In Tahiti, on the other hand, those who stole clothes or arms were commonly put to death, whereas those who stole provisions were bastinadoed.[135] Among other peoples the appropriation of a small quantity of food belonging to somebody else is not punished at all.[136] The Masai do not punish a person for stealing milk or meat.[137] Among the Bakoki "it was not a crime to steal bananas."[138] In ancient Mexico "every poor traveller was permitted to {15} take of the maize, or the fruit-bearing trees, which were planted by the side of the highway, as much as was sufficient to satisfy immediate hunger."[139] Among the Hebrews a person was allowed to go into his neighbour's vineyard and eat grapes at his own pleasure, or to pluck ears in his field, but the visitor was forbidden to put any grapes in his vessel or to move a sickle into the standing corn.[140] It is said in the Laws of Manu that "a twice-born man, who is travelling and whose provisions are exhausted, shall not be fined, if he takes two stalks of sugar-cane or two esculent roots from the field of another man."[141] According to ancient Swedish laws, a passer-by could take a handful of peas, beans, turnips, and so forth, from another person's field, and a traveller could give to his fatigued horse some hay from any barn he found in the wood.[142] However, whilst the punishment of theft is commonly, to some extent, influenced by the worth or nature of the appropriated property, there are peoples who punish thieves with the same severity whether they have stolen little or much. Among the North American Indians described by Colonel Dodge "the value of the article stolen is not considered. The crime is the theft."[143] Among the Yleou, a Manchurian tribe mentioned by ancient Chinese chroniclers, theft of any kind was punished with death.[144] The Beni Mzab in the Sahara sentence a thief to two years banishment and the payment of fifty francs, independently of the value of the thing he has stolen.[145]

[Footnote 123: Steinmetz, Rechtsverhältnisse, p. 52 (Banaka and Bapuku). Nicole, ibid. p. 133 (Diakité-Sarracolese). Beverley, ibid. p. 215 (Wagogo). Bosman, op. cit. p. 142 (Negroes of Axim). Hinde, op. cit. p. 107 (Masai). Post, Afrikanische Jurisprudenz, ii. 91. Idem, Grundriss der ethnologischen Jurisprudenz, ii. 420. Ta Tsing Leu Lee, sec. cclxix. sqq. p. 284 sqq. (Chinese). Keil, Manual of Biblical Archæology, ii. 366. Laws of Manu, viii. 320 sqq. Wilda, Das Strafrecht der Germanen, p. 870 sqq.; Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 296 sqq.; Stemann, Den danske Retshistorie indtil Christian V.'s Lov, pp. 621, 677 sq.; Brunner, Deutsche Rechtsgeschichte, ii. 639 sqq. (ancient Teutons). Du Boys, Histoire du droit criminel de l'Espagne, p. 721.]

[Footnote 124: Supra, ii. 4, 6-8, 12.]

[Footnote 125: Bancroft, Native Races of the Pacific States, ii. 456.]

[Footnote 126: Koran, v. 42. Lane, Manners and Customs of the Modern Egyptians, p. 120 sq. Idem, Arabian Society in the Middle Ages, p. 20. Sachau, Muhammedanisches Recht, pp. 810, 811, 825 sqq.]

[Footnote 127: Erskine, Principles of the Law of Scotland, p. 568. Innes, Scotland in the Middle Ages, p. 190. Mackintosh, History of Civilisation in Scotland, 231.]

[Footnote 128: Pollock and Maitland, History of English Law before the Time of Edward I. ii. 495 sq. Brunner, Deutsche Rechtsgeschichte, ii. 640. Stephen, History of the Criminal Law of England, iii. 129.]

[Footnote 129: Post, Grundriss der ethnologischen Jurisprudenz, ii. 421 sqq.]

[Footnote 130: Bosman, op. cit. p. 143.]

[Footnote 131: Bergmann, Nomadische Streifereien unter den Kalmüken, ii. 297.]

[Footnote 132: Grimm, Deutsche Rechtsalterthümer, p. 636 sq. Wilda, op. cit. p. 875 sq. Nordström, op. cit. ii. 307. Brunner, Deutsche Rechtsgeschichte, ii. 645 sq.]

[Footnote 133: Digesta, xlvii. 14. 1. pr., 1, 3; xlvii. 14. 3.]

[Footnote 134: Gill, Life in the Southern Isles, p. 47.]

[Footnote 135: Cook, Journal of a Voyage round the World, p. 41 sq.]

[Footnote 136: Supra, i. 286 sq. Post, Grundriss der ethnol. Jurisprudenz, ii. 426. Ellis, History of Madagascar, i. 385.]

[Footnote 137: Hollis, Masai, p. 310.]

[Footnote 138: Cunningham, Uganda, p. 102 sq.]

[Footnote 139: Clavigero, History of Mexico, i. 358.]

[Footnote 140: Deuteronomy, xxiii. 24 sq.]

[Footnote 141: Laws of Manu, viii. 341. Cf. ibid. viii. 339.]

[Footnote 142: Nordström, op. cit. ii. 297.]

[Footnote 143: Dodge, op. cit. p. 64.]

[Footnote 144: Castrén, op. cit. iv. 27.]

[Footnote 145: Chavanne, Die Sahara, p. 315.]

The degree of criminality attached to theft also depends on the place where it is committed. To steal from a house, especially after breaking the door, is frequently regarded as an aggravated form of theft.[146] According to Muhammedan {16} law, the punishment of cutting off the right hand of the thief is inflicted on him only if the stolen property was deposited in a place to which he had not ordinary or easy access; hence a man who steals in the house of a near relative is not subject to this punishment, nor a slave who robs the house of his master.[147] Among some peoples a theft committed by night is punished more heavily than one committed by day.[148]

[Footnote 146: Post, Grundriss der ethnol. Jurisprudenz, ii. 423 sq. von Rosenberg, Der malayische Archipel, p. 166 (Niase). Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 103 (Serangese). Lang, in Steinmetz, Rechtsverhältnisse, p. 259. (Washambala). Wilda, op. cit. p. 878 sq.; Brunner, Deutsche Rechtsgeschichte, ii. 646 (ancient Teutonic law). Digesta, xlvii. 11. 7; xlvii. 18. 2.]

[Footnote 147: Lane, Modern Egyptians, p. 121. Cf. Burckhardt, Bedouins and Wahábys, p. 301.]

[Footnote 148: Wilken, loc. cit. p. 109 (people of Bali). Digesta, xlvii. 17. 1. Lex Saxonum, 32, 34; Wilda, op. cit. p. 877; Grimm, Deutsche Rechtsalterthümer, p. 637; Brunner, Deutsche Rechtsgeschichte, ii. 646 (ancient Teutonic law).]

A distinction is further made between ordinary theft and robbery. The robber is treated sometimes more severely,[149] sometimes more leniently than the thief, and

is not infrequently regarded with admiration. Among the Wanyamwezi thieves are despised, but robbers are honoured, especially by the women, on account of their courage.[150] In Uganda robbery is not thought shameful, although it is rigorously punished.[151] In Sindh no disgrace is attached to larceny when the perpetrators are armed.[152] Among the Ossetes, "where open robbery has been committed outside a village, the court merely requires the stolen article or an equivalent to be restored; but in cases of secret theft, five times the value must be paid. Robbery and theft within the boundaries of a village are rated much higher. A proverb says, 'What a man finds on the high-road is God's gift'; and in fact highway robbery is hardly regarded as a crime."[153] The Kazak Kirghiz go so far as to consider it almost dishonourable for a man never to have taken part in a baranta, or cattle-lifting exploit.[154] According to {17} Bedouin notions, there is a clear distinction between "taking and stealing." To steal is to abstract clandestinely, "whereas to take, in the sense of depriving another of his property, generally implies to take from him openly, by right of superior force."[155] The Arabian robber, says Burckhardt, considers his profession honourable, and "the term haràmy (robber) is one of the most flattering titles that could be conferred on a youthful hero."[156] In ancient Teutonic law theft and robbery were kept apart; the one was the secret, the other the open crime. In most law-books robbery was subject to a milder punishment than theft, and was undoubtedly regarded as far less dishonourable. Indeed, however illegal the mode of acquiring property may have been, publicity was looked upon as a palliation of the offence, if not as a species of justification, even though the injured party was a fellow-countryman.[157] This difference between theft and robbery seems still to have been felt in the thirteenth century, when Bracton had to argue that the robber is a thief.[158] But in later times robbery was regarded by the law of England as an aggravated kind of theft.[159]

[Footnote 149: Ta Tsing Leu Lee, sec. cclxviii. p. 283 (Chinese law). Digesta, xlviii. 19. 28. 10. Erskine, Principles of the Law of Scotland, p. 566. Post, Grundriss der ethnologischen Jurisprudenz, ii. 455 sq.]

[Footnote 150: Reichardt, quoted by Steinmetz, Rechtsverhältnisse, p. 281.]

[Footnote 151: Ashe, Two Kings of Uganda, p. 294.]

[Footnote 152: Burton, Sindh, p. 195.]

[Footnote 153: von Haxthausen, Transcaucasia, p. 411. Cf. Kovalewsky, Coutume contemporaine, p. 342.]

[Footnote 154: Vámbéry, Das Türkenvolk, p. 306. Cf. Georgi, op. cit. ii. 270 sq. (Kirghiz).]

[Footnote 155: Ayrton, in Wallin, Notes taken during a Journey through Part of Northern Arabia, p. 29, n. [double dagger] (in Jour. Roy. Geo. Soc. xx. 317, n. [double dagger]).]

[Footnote 156: Burckhardt, Bedouins and Wahábys, p. 90. Cf. Burton, Pilgrimage to Al-Madinah & Meccah, ii. 101; Blunt, op. cit. ii. 204 sq.]

[Footnote 157: Wilda, op. cit. pp. 860, 911, 914. Grimm, Deutsche Rechtsalterthümer, p. 634 sq. Nordström, op. cit. ii. 314 sq. Maurer, Bekehrung des Norwegischen Stammes, ii. 173 sq. Brunner, Deutsche Rechtsgeschichte, ii. 647 sq. Thrupp, The Anglo-Saxon Home, p. 288. Pollock and Maitland, op. cit. ii. 493 sq.]

[Footnote 158: Bracton, De Legibus et Consuetudinibus Angliæ, fol. 150 b, vol. ii. 508 sqq. Pollock and Maitland, op. cit. ii. 494.]

[Footnote 159: Coke, Third Part of the Institutes of the Laws of England, p. 68. Blackstone, Commentaries on the Laws of England, iv. 252. Stephen, History of the

Criminal Law of England, iii. 149. Pollock and Maitland, op. cit. ii. 493. Cf. Wilda, op. cit. p. 914.]

A line has been drawn between manifest and non-manifest theft. Among many peoples thieves who are caught in the act may be killed with impunity,[160] or are punished much more heavily than other thieves, frequently with death.[161] We also hear that the worst part of the offence {18} consists in being detected, and that a successful thief is admired rather than disapproved of.

[Footnote 160: Supra, i. 293; ii. 8, 13. Brunner, Deutsche Rechtsgeschichte, ii. 642. Post, Grundriss der ethnologischen Jurisprudenz, ii. 441 sq.]

[Footnote 161: Mommsen, Römisches Strafrecht, p. 750 sq. Du Boys, Histoire du droit criminel de l'Espagne, p. 378. Brunner, Deutsche Rechtsgeschichte, ii. 642 sq.; Dareste, Études d'histoire du droit, p. 299 sq. Pollock and Maitland, op. cit. ii. 495 (ancient Teutonic law). Post, Grundriss der ethnologischen Jurisprudenz, ii. 443.]

It is said of the Navahos that "the time is evidently not long gone by when with them, as among the Spartans, adroit theft was deemed honourable."[162] Among the Californian Yuki "thieving is a virtue . . . , provided the thief is sly enough not to get caught."[163] The Ahts "have a tendency to sympathise with some forms of theft, in which dexterity is required."[164] Among the Thlinkets "theft does not seem to be considered a disgrace; the detected thief is at most ashamed of his want of skill."[165] The Chukchi "have but a bad opinion of a young girl who has never acquitted herself cleverly in some theft; and without such testimony of her dexterity and address she will scarcely find a husband."[166] In Mongolia "known thieves are treated as respectable members of society. As long as they manage well and are successful, little or no odium seems to attach to them; and it is no uncommon thing to hear them spoken of in terms of high praise. Success seems to be regarded as a kind of palliation of their crimes."[167] Among the Kukis, according to early notices, the accomplishment most esteemed was dexterity in thieving, whilst the most contemptible person was a thief caught in the act.[168] The Persians say that "it is no shame to steal, only to be found out."[169] The same view seems to be held by the Motu tribe of New Guinea,[170] the natives of Tana (New Hebrides),[171] the Maoris,[172] and several African peoples.[173] In Fiji "success, without discovery, is deemed quite enough to make thieving virtuous, and a participation in the ill-gotten gain honourable."[174] Among the Matabele {19} "the thief is not despised because he has stolen, but because he has allowed himself to be caught, and if his crime remains undetected he is admired by all."[175] Among the aborigines of Palma, in the Canary Islands, "he was esteemed the cleverest fellow who could steal with such address as not to be discovered."[176]

[Footnote 162: Matthews, 'Study of Ethics among the Lower Races,' in Journal of American Folk-Lore, xii. 4.]

[Footnote 163: Powers, Tribes of California, p. 133.]

[Footnote 164: Sproat, op. cit. p. 158 sq.]

[Footnote 165: Krause, op. cit. p. 167.]

[Footnote 166: Georgi, op. cit. iii. 183. Krasheninnikoff, History of Kamschatka, p. 232.]

[Footnote 167: Gilmour, Among the Mongols, p. 291.]

[Footnote 168: Dalton, Descriptive Ethnology of Bengal, p. 45.]

[Footnote 169: Polak, Persien, ii. 81.]

[Footnote 170: Stone, A few Months in New Guinea, p. 95.]

[Footnote 171: Brenchley, op. cit. p. 208.]

[Footnote 172: Shortland, Traditions and Superstitions of the New Zealanders, p. 224. Waitz-Gerland, Anthropologie der Naturvölker, vi. 224. Dieffenbach Travels in New Zealand, ii. 111.]

[Footnote 173: Zöller, Forschungsreisen in der deutschen Colonie Kamerun, ii. 64 (Dualla). Wilson and Felkin, op. cit. i. 224 (Waganda). Leslie, op. cit. p. 256 (Amatongas).]

[Footnote 174: Williams and Calvert, op. cit. p. 110.]

[Footnote 175: Decle, Three Years in Savage Africa, p. 165.]

[Footnote 176: de Abreu, op. cit. p. 138.]

The moral valuation of theft varies according to the social position of the thief and of the person robbed. Among the Marea a nobleman who commits theft is only obliged to restore the appropriated article; but if a commoner steals from another commoner, the whole of his property may be confiscated by the latter's master, and if he steals from a nobleman he becomes the nobleman's serf.[177] Among the Káfirs of the Hindu-Kush the penalty for theft is theoretically a fine of seven or eight times the value of the thing stolen; "but such a punishment in ordinary cases would only be inflicted on a man of inferior mark, unless it were accompanied by circumstances which aggravated the original offence."[178] In Rome, according to an old law, a freeman caught in the act of thieving was scourged and delivered over to the party aggrieved, whereas a slave in similar circumstances was scourged and then hurled from the Tarpeian rock;[179] and according to an enactment of Hadrian, the punishment for stealing an ox or horse from the pastures or from a stable was only relegation if the offender was a person of rank, though ordinary persons might have to suffer death for the same offence.[180] In ancient India, on the other hand, the punishment increased with the rank of the criminal. According to the Laws of Manu, "in a case of theft the guilt of a Sûdra shall be eightfold, that of a Vaisya sixteenfold, that of a Kshatriya two-and-thirtyfold, that of a Brâhmana sixty-fourfold, or quite a hundredfold, or even twice four-and-sixtyfold; each of them knowing the nature {20} of the offence."[181] In other cases, again, the degree of guilt is determined by the station of the person robbed.[182] Among the Gaika tribe of the Kafirs, for instance, the fine by which a theft is punished "is fixed according to the rank of the person against whom the offence is committed, confiscation of property being the general punishment imposed for offences against chiefs."[183] Among many other peoples theft or robbery committed on the property of a chief or king is treated with exceptional severity.[184] Sometimes difference in religion affects the criminality of the thief. According to modern Buddhism, "to take that which belongs to a sceptic is an inferior crime, and the guilt rises in magnitude in proportion to the merit of the individual upon whom the theft is perpetrated. To take that which belongs to the associated priesthood, or to a supreme Buddha, is the highest crime."[185] But the commonest and most important personal distinction influencing the moral valuation of theft and robbery is that between a tribesman or fellow-countryman and a stranger.

[Footnote 177: Munzinger, Ostafrikanische Studien, p. 243 sq.]

[Footnote 178: Scott Robertson, Káfirs of the Hindu-Kush, p. 440.]

[Footnote 179: Mommsen, Römisches Strafrecht, p. 751.]

[Footnote 180: Digesta, xlvii. 14. 1. pr., 3.]

[Footnote 181: Laws of Manu, viii. 337 sq.]

[Footnote 182: Crawfurd, op. cit. iii. 115 (Javanese). Desoignies, in Steinmetz, Rechtsverhältnisse, p. 281 (Msalala). Maclean, Compendium of Kafir Laws and Customs, p. 143.]

[Footnote 183: Brownlee, in Maclean, op. cit. p. 112.]

[Footnote 184: Ellis, Tour through Hawaii, p. 429 sq. Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 225 (Dahomans). Decle, Three Years in Savage Africa, p. 73. Post, Afrikanische Jurisprudenz, ii. 91. Laws of Æthelbirht, 4, 9 (Anglo-Saxons).]

[Footnote 185: Hardy, Manual of Budhism, p. 483.]

Among uncivilised races intra-tribal theft is carefully distinguished from extra-tribal theft. Whilst the former is forbidden, the latter is commonly allowed, and robbery committed on a stranger is an object of praise.[186]

[Footnote 186: Cf. Tylor, 'Primitive Society,' in Contemporary Review, xxi. 715 sq.; Anthropology, p. 413 sq.]

The Tehuelches of Patagonia, "although honest enough as regards each other, will, nevertheless, not scruple to steal from any one not belonging to their party."[187] The Abipones, who never took anything from their own countrymen, "used to rob and murder the Spaniards whilst they thought them their enemies."[188] Among the Mbayás the law, Thou shalt not steal, "applies only to tribesmen and {21} allies, not to strangers and enemies."[189] The high standard of honesty which prevailed among the North American Indians did not refer to foreigners, especially white men, whom they thought it no shame to rob or cheat.[190] "A theft from an individual of another band," says Colonel Dodge, "is no crime. A theft from one of the same band is the greatest of all crimes."[191] Among the Californian Indians, for instance, who are proverbially honest in their own neighbourhood, "a stranger in the gates who seems to be friendless may lose the very blankets off him in the night."[192] Among the Ahts thieving "is a common vice where the property of other tribes, or white men, is concerned."[193] Of the Dacotahs we read that, though the men think it undignified for them to steal even from white people, "they send their wives thus unlawfully to procure what they want."[194] Of the Greenlanders the old missionary Egede writes:--"If they can lay hands upon any thing belonging to us foreigners, they make no great scruple of conscience about it. But, as we now have lived some time in the country amongst them, and are look'd upon as true inhabitants of the land, they at last have forborne to molest us any more that way."[195] Another early authority states, "If they can purloin or even forcibly seize the property of a foreigner, it is a feather in their cap";[196] and, according to Dr. Nansen, it is still held by the Greenlanders "to be far less objectionable to rob Europeans than their own fellow-countrymen."[197] Many travellers have complained of the pilfering tendencies of Eskimo tribes with whom they have come into contact.[198] Richardson believes that, in the opinion of an Eskimo, "to steal boldly and adroitly from a stranger is an act of heroism."[199] Of the Eskimo about Behring Strait Mr. Nelson writes:--"Stealing from people of the same village or tribe is regarded as wrong. . . . To steal from a stranger or from people of another tribe is not considered wrong so long as it does not bring trouble on the community."[200]

[Footnote 187: Musters, op. cit. p. 195.]

[Footnote 188: Dobrizhoffer, op. cit. ii. 148.]

[Footnote 189: Tylor, in Contemporary Review, xxi. 716.]

[Footnote 190: Ibid. p. 716.]

[Footnote 191: Dodge, op. cit. p. 79.]

[Footnote 192: Powers, Tribes of California, p. 410 sq.]

[Footnote 193: Sproat, op. cit. p. 159. Cf. Macfie, Vancouver Island and British Columbia, p. 468.]

[Footnote 194: Eastman, Dacotah, p. xvii.]

[Footnote 195: Egede, op. cit. p. 124 sq.]

[Footnote 196: Cranz, op. cit. i. 175. See also Dalager, op. cit. p. 69.]

[Footnote 197: Nansen, First Crossing of Greenland, ii. 335 sq. Cf. Idem, Eskimo Life, p. 159 sq.]

[Footnote 198: Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 41. Seemann, Voyage of "Herald," ii. 65; Armstrong, Discovery of the North-West Passage, p. 196 (Western Eskimo).]

[Footnote 199: Richardson, Arctic Searching Expedition, i. 352.]

[Footnote 200: Nelson, in Ann. Rep. Bur. Ethn. xviii. 293.]

{22} The Chukchi[201] and Koriaks[202] consider theft reputable or glorious if committed on a stranger, though criminal if committed in their own communities. The hill people of the Central Provinces of India, whilst observant of the rights of property among themselves, do not scruple to plunder those to whom they are under no obligation of fidelity.[203] The Bataks of Sumatra, who hardly ever steal among themselves, are expert at pilfering from strangers when not restrained by the laws of hospitality, and think it no moral offence to do so.[204] Other tribes in the Malay Archipelago likewise hold it allowable to plunder the same stranger or traveller who, when forlorn and destitute, would find a hospitable reception among them.[205] "The strict honesty," says Mr. Melville, "which the inhabitants of nearly all the Polynesian Islands manifest towards each other is in striking contrast with the thieving propensities some of them evince in their intercourse with foreigners. It would almost seem that, according to their peculiar code of morals, the pilfering of a hatchet or a wrought nail from a European is looked upon as a praiseworthy action. Or rather, it may be presumed, that, bearing in mind the wholesale forays made upon them by their nautical visitors, they consider the property of the latter as a fair object of reprisal."[206] In Fiji theft is regarded as no offence at all when practised on a foreigner.[207] The Savage Islanders consider theft from a tribesman a vice, but theft from a member of another tribe a virtue.[208] Of the Sandwich Islanders, again, we are told that they stole from rich strangers on board well loaded ships, whereas Europeans settled among them left their doors and shops unlocked without apprehension.[209] Speaking of the honesty of the Herbert River natives, Northern Queensland, Mr. Lumholtz adds:--"It is, of course, solely among members of the same tribe that there is so great a difference between mine and thine; strange tribes look upon each other as wild beasts."[210] The aborigines of West Australia "would not consider the act of pillaging base when practised on another people, or carried on beyond the limits of their own tribe."[211]

[Footnote 201: Georgi, op. cit. iii. 183.]

[Footnote 202: Ibid. iii. 170. Krasheninnikoff, op. cit. p. 232.]

[Footnote 203: Hislop, op. cit. p. 1.]

[Footnote 204: Marsden, op. cit. p. 389.]

[Footnote 205: Crawfurd, op. cit. i. 72.]

[Footnote 206: Melville, Typee, p. 295, n. 1. See also Williams, Missionary Enterprises, p. 530 (Samoans); Hale, op. cit. p. 73 (Micronesians).]

[Footnote 207: Williams and Calvert, op. cit. p. 110.]

[Footnote 208: Thomson, Savage Island, p. 94.]

[Footnote 209: von Kotzebue, op. cit. iii. 255.]

[Footnote 210: Lumholtz, Among Cannibals, p. 148.]

[Footnote 211: Chauncy, in Brough Smyth, op. cit. ii. 278 sq.]

Among the For tribe of Central Africa "it is not considered {23} right to rob strangers, but the chiefs wink at this offence, and the stranger runs but a poor chance of obtaining justice."[212] Of the Mandingoes Caillié observes that, while they do not steal from each other, "their probity with respect to others is very equivocal and in particular towards

strangers, who would be very imprudent to shew them any thing that might tempt their cupidity."[213] When an Eastern Central African is plundered by a companion, he may be heard exclaiming, "If you had stolen from a white man, then I could have understood it, but to steal from a black man----."[214] Among the Masai the warriors and old men have a profound contempt for a thief, but "cattle-raiding from neighbouring tribes they do not consider stealing."[215] The Wafiomi[216] and Shilluk[217] regard theft or robbery committed on a stranger as a praiseworthy action, though they never or rarely practise it on members of their own people. The Barea and Kunáma[218] and the inhabitants of Saraë[219] consider it honourable for a man to rob an enemy of his tribe. The Kabyles of Djurdjura, who demand strict mutual honesty from members of the same village, see nothing wrong in stealing from a stranger.[220] Among the Bedouins "travellers passing without proper escort from or introduction to the tribes, may expect to lose their beasts, goods, clothes, and all they possess. There is no kind of shame attached to such acts of rapine. . . . By desert law, the act of passing through the desert entails forfeiture of goods to whoever can seize them."[221] Indeed, the Arab is proud of robbing his enemies, and of bringing away by stealth what he could not have taken by open force.[222] The Ossetes "distinguent . . . le vol commis au préjudice d'une personne étrangère à la famille, et le vol commis au préjudice d'un parent. Le premier, à proprement parler, n'est pas un acte criminel; le second, au contraire, est tenu pour un délit."[223]

[Footnote 212: Felkin, 'Notes on the For Tribe of Central Africa,' in Proceed. Roy. Soc. Edinburgh, xiii. 234.]

[Footnote 213: Caillié, op. cit. i. 353. Cf. Mungo Park, op. cit. p. 239 sq.]

[Footnote 214: Macdonald, Africana, i. 182.]

[Footnote 215: Hinde, op. cit. p. 104. Cf. Johnston, Kilima-njaro Expedition, p. 419.]

[Footnote 216: Baumann, Durch Massailand, p. 179.]

[Footnote 217: Petherick, Travels in Central Africa, ii. 3. Beltrame, Il Fiume Bianco, p. 83.]

[Footnote 218: Munzinger, Ostafrikanische Studien, p. 531.]

[Footnote 219: Ibid. p. 386.]

[Footnote 220: Kobelt, Reiseerinnerungen aus Algerien und Tunis, p. 223.]

[Footnote 221: Blunt, op. cit. ii. 204 sq.]

[Footnote 222: Burckhardt, Bedouins and Wahábys, p. 90.]

[Footnote 223: Kovalewsky, Coutume contemporaine, p. 343.]

Similar views prevailed among the ancient Teutons. "Robberies," says Caesar, "which are committed beyond {24} the boundaries of each state bear no infamy, and they avow that these are committed for the purpose of disciplining their youth and of preventing sloth."[224] The same was the case with the Highlanders of Scotland until they were brought into subjection after the rebellion of 1745.[225] "Regarding every Lowlander as an alien, and his cattle as fair spoil of war," says Major-General Stewart, "they considered no law for his protection as binding. . . . Yet, except against the Lowlanders or a hostile clan, these freebooters maintained, in general, the strictest honesty towards one another, and inspired confidence in their integrity. . . . In the interior of their own society all property was safe, without the usual security of bolts, bars, and locks."[226] In the Commentary to the Irish Senchus Mór it is stated that, whilst an ordinary thief loses his full honour-price at once, committing theft in another territory deprives a person of only half his honour-price, until it is committed the third time.[227] Throughout the Middle Ages all Europe seems to have tacitly agreed that foreigners were created for the purpose of being robbed.[228] In the thirteenth century there were still several places

in France in which a stranger who fixed his residence for a year and a day became the serf of the lord of the manor.[229] In England, till upwards of two centuries after the Conquest, foreign merchants were considered only as sojourners coming to a fair or market, and were obliged to employ their landlords as brokers to buy and sell their commodities; and one stranger was often arrested for the debt, or punished for the misdemeanour, of another.[230] In a later age the old habit of oppression was still so strong that, when the State suddenly wanted a sum of money, it seemed quite natural that foreigners should be called upon to {25} provide a part of it.[231] The custom of seizing the goods of persons who had been shipwrecked, and of confiscating them as the property of the lord on whose manor they were thrown, seems to have been universal;[232] and in some European countries the laws even permitted the inhabitants of maritime provinces to reduce to servitude people who were shipwrecked on their coast.[233] The sea laws of Oléron, which probably date from the twelfth century, tell us that in many places shipwrecked sailors meet with people more inhuman, barbarous, and cruel than mad dogs, who slaughter those unhappy mariners in order to obtain possession of their money, clothes, and other property.[234] In the latter part of the Middle Ages attempts were incessantly made by sovereigns and councils to abolish this ancient right, so far as Christian sailors were concerned,[235] whereas the robbing of shipwrecked infidels was not prohibited.[236] But for a long time these endeavours were far from being successful;[237] and it was even argued that, as shipwrecks were punishments sent by God, it was impious to be merciful to the victims.[238]

[Footnote 224: Caesar, De bello Gallico, vi. 23.]

[Footnote 225: Tylor, in Contemporary Review, xxi. 716.]

[Footnote 226: Stewart, Sketches of the Character, &c., of the Highlanders of Scotland, p. 42 sq.]

[Footnote 227: Ancient Laws of Ireland, i. 57.]

[Footnote 228: Cf. Marshall, International Vanities, p. 285.]

[Footnote 229: Beaumanoir, Les coutumes du Beauvoisis, xlv. 19, vol. ii. p. 226.]

[Footnote 230: Chitty, Treatise on the Laws of Commerce and Manufactures, i. 131 Cf. Cibrario, Della economia politica del medio eve, i. 192.]

[Footnote 231: See Marshall, International Vanities, p. 291 sq.]

[Footnote 232: Du Cange, Glossarium ad scriptores mediæ et infimæ Latinitatis, iv. 22 sq. Robertson, History of the Reign of Charles V. i. 395.]

[Footnote 233: Du Cange, op. cit. iv. 23 sq. Cleffelius, Antiquitates Germanorum potissimum septentrionalium, x. 4, p. 362. Dreyer, Specimen juris publici Lubecensis, p. cxcii. Potgiesser, Commentarii juris Germanici de statu servorum, i. i. 17, p. 18 sq.]

[Footnote 234: Ancient Sea-Laws of Oleron, art. 30, p. 11.]

[Footnote 235: Du Cange, op. cit. iv. 24 sqq. Pardessus, Collection de lois maritimes, ii. p. cxv. sqq.; iii. p. clxxix. von Eicken, Geschichte und System der mittelalterlichen Weltanschauung, p. 569 sqq. Constitutiones Neapolitanæ sive Siculæ, i. 28. Concilium Romanum IV. A.D. 1078 (Labbe-Mansi, Sacrorum Conciliorum collectio, xx. 505 sq.).]

[Footnote 236: Laurent, Études sur l'histoire de l'humanité, vii. 323, 413 n. 3. von Eicken, op. cit. p. 570.]

[Footnote 237: Pardessus, op. cit. ii. p. cxv. Laurent, op. cit. vii. 314. Marshall, International Vanities, pp. 287, 295.]

[Footnote 238: von Eicken, op. cit. p. 570 sq.]

The readiness with which wars are waged, and the destruction of property held legitimate in warfare, are other instances of the little regard felt for the proprietary rights of foreigners. Grotius maintained that "such ravage is tolerable as in a short time

reduces the enemy to seek peace";[239] and in the practice of his time devastation was {26} constantly used independently of any immediate military advantage accruing from it.[240] In the eighteenth century the alliance of devastation with strategical objects became more close, but it was still regarded as an independent means of attack by Wolff,[241] Vattel,[242] and others;[243] and even at the beginning of the nineteenth century instances of devastation of a not necessary kind occasionally occurred.[244] In later days opinion has decisively laid down that the measure of permissible devastation is to be found in the strict necessities of war.[245] Yet there is an exception to this rule: during the siege of a fortified town custom still permits the houses of the town itself to be bombarded, with a view to inducing the commandant to surrender on account of the misery suffered by the inhabitants.[246] Under the old customs of war a belligerent possessed a right to seize and appropriate all property belonging to a hostile state or its subjects, of whatever kind it might be and in any place where acts of war were permissible.[247] Subsequently this extreme right has been tempered by usage, and in a few directions it has disappeared.[248] Thus the principle proclaimed, but not always acted on, by the Revolutionary Government of France, that private property should be respected on a hostile as on a friendly soil,[249] is favoured by present opinion and usage,[250] and pillage by the soldiers of an invading army is expressly forbidden.[251] At the same time there is unfortunately no {27} doubt that in all wars pillage does continue with impunity;[252] and we sometimes hear of a captured town being sacked, and the houses of the inhabitants being plundered, on the plea that it was impossible for the general to restrain his soldiers.[253] Moreover, private property taken from the enemy on the field of battle, in the operations of a siege, or in the storming of a place which refuses to capitulate, is usually regarded as legitimate spoils of war.[254] Military contributions and requisitions are levied upon the inhabitants of the hostile territory.[255] And whilst the progress of civilisation has slowly tended to soften the extreme severity of the operations of war by land, it still remains unrelaxed in respect to maritime warfare, the private property of the enemy taken at sea or afloat in port being indiscriminately liable to capture and confiscation. In justification of this it is said that the object of maritime wars is the destruction of the enemy's commerce and navigation, and that this object can only be attained by the seizure of private property.[256]

[Footnote 239: Grotius, De jure belli et pacis, iii. 12. 1. 3.]

[Footnote 240: Hall, Treatise on International Law, p. 533.]

[Footnote 241: Wolff, Jus Gentium, §823, p. 300.]

[Footnote 242: Vattel, Le droit des gens, iii. 9. 167, vol. ii. 76 sq.]

[Footnote 243: Hall, op. cit. p. 533 sq.]

[Footnote 244: Ibid. p. 534 sq.]

[Footnote 245: Ibid. p. 535. Bluntschli, Le droit international, §663, p. 385. Heffter, Das europäische Völkerrecht, §125, p. 262. Wheaton, Elements of International Law, p. 473. Conférence de Bruxelles, art. 13, g. Conférence internationale de la paix, La Haye 1899, 'Règlement concernant les lois et coutumes de la guerre sur terre,' art. 23 g, pt. i. 245.]

[Footnote 246: Hall, op. cit. p. 536 sq.]

[Footnote 247: Grotius, op. cit. iii. 6. 2. Hall, op. cit. pp. 417, 438.]

[Footnote 248: Hall, op. cit. p. 419 sqq.]

[Footnote 249: Bernard, 'Growth of Laws and Usages of War,' in Oxford Essays, 1856, p. 109.]

[Footnote 250: Conférence de Bruxelles, art. 38. Instructions for the Government of Armies of the United States in the Field, art. 37. Conférence de La Haye, 'Règlement

concernant la guerre sur terre,' art. 46, pt. i. 248. Hall, op. cit. p. 441. Geffken, in Heffter, op. cit. §140, p. 297, n. 5.]

[Footnote 251: Conférence de Bruxelles, art. 39. Instructions of the United States, art. 44. Conférence de La Haye, 'Règlement concernant la guerre sur terre,' art. 28, 47, pt. i. 246, 248.]

[Footnote 252: Maine, International Law, p. 199. Halleck, International Law, ii. 73, note.]

[Footnote 253: Halleck, op. cit. ii. 32. If we may believe Garcilasso de la Vega (First Part of the Royal Commentaries of the Yncas, i. 151) the officers of the Incas in ancient Peru were more humane, never allowing the pillage of a captured town.]

[Footnote 254: Halleck, op. cit. ii. 73 sq. Wheaton, op. cit. p. 467.]

[Footnote 255: Wheaton, op. cit. p. 467. Hall, op. cit. p. 427 sqq. Conférence de La Haye, 'Règlement concernant la guerre sur terre,' art. 49, 52, pt. i. 248.]

[Footnote 256: Wheaton, op. cit. p. 483. Twiss, Law of Nations, p. 141. Heffter, op. cit. §137, p. 287. Hall, op. cit. p. 443 sqq.]

Not only does the respect in which the right of property is held vary according to the status of the owner, but in many instances certain persons are deemed incapable of possessing such a right.

The father's power over his children may imply that the latter, even when grown-up, have no property of their own, the father having a right to the disposal of their earnings. This is the case among some African peoples,[257] and the {28} Kandhs of India.[258] In the Laws of Manu, the mythical legislator of the Hindus, it is said, "A wife, a son, and a slave, these three are declared to have no property; the wealth they earn is acquired for him to whom they belong."[259] But according to the standard commentators this only means that the persons mentioned are unable to dispose of their property independently;[260] and it is expressly stipulated that property acquired by learning belongs exclusively to the person to whom it was given, and so also the gift of a friend.[261] In Rome the peculium, or separate property, allowed to a son was originally subject to the authority of the house-father, should he choose to exercise such authority; and it was only by very late legislation that sons were secured the independent holding of their peculium.[262] Even now it is the law in many European countries that, during the minority of a child, the father or mother has the usufruct of its property, with the exception of certain kinds of property expressly specified.[263]

[Footnote 257: Sarbah, Fanti Customary Laws, p. 51. Kraft, in Steinmetz, Rechtsverhältnisse, p. 285 (Wapokomo). Munzinger, Ueber die Sitten und das Recht der Bogos, p. 36. Among the Barea and Kunáma a man's earnings belong to his father until he builds a house for himself, that is, until he marries (Munzinger, Ostafrikanische Studien, p. 477). Among the Basutos parents can deprive their sons of their earnings at pleasure (Endemann, 'Mittheilungen über die Sotho-Neger,' in Zeitschr. f. Ethnol. vi. 39).]

[Footnote 258: Macpherson, Memorials of Service in India, p. 62.]

[Footnote 259: Laws of Manu, viii. 416. See also Nárada, v. 41.]

[Footnote 260: Buehler, in his translation of the Laws of Manu, Sacred Books of the East, xxv. 326, n. 416.]

[Footnote 261: Laws of Manu, ix. 206.]

[Footnote 262: Hunter, Exposition of Roman Law, p. 292 sqq. Maine, Dissertations on Early Law and Custom, p. 252. Girard, Manuel élémentaire de droit romain, pp. 135, 138 sqq.]

[Footnote 263: Bridel, Le droit des femmes et le mariage, p. 156.]

Among some uncivilised peoples women are said to be incapable of holding property;[264] but this is certainly not the rule among savage tribes, not even among the very lowest. When Mr. Snow wished to buy a canoe from some Fuegians, his request was refused on the ground that the object in question belonged to an old woman, who would not part with it;[265] and among the blacks of Australia Mr. Curr has often heard husbands ask permission of their wives to take something out of their bags.[266] There are instances in which the property owned by a {29} woman is by marriage transferred to her husband;[267] but more commonly, it seems, the wife remains mistress of her own property during the existence of the marriage relation.[268] Among many savages considerable proprietary privileges are granted to the female sex. We have seen that the household goods are frequently regarded as the special property of the wife.[269] Among the Navahos of New Mexico everything, except horses and cattle, practically belongs to the married women.[270] Among the Kafirs of Natal, "when a man takes his first wife, all the cows he possesses are regarded as her property," and the husband can, theoretically, neither sell nor otherwise dispose of them without his wife's consent.[271] The Mandans of North America have a custom that all the horses which a young man steals or captures in war belong to his sisters.[272] Among the Koch of India, we are told, "the men are so gallant as to have made over all property to the women."[273] As regards woman's right of ownership, nations of a higher culture compare unfavourably with many savages. In Japan the husband formerly had full rights over the property of his wife.[274] We have already noticed the disabilities in point of ownership to which women were once subject in India; but the development of str[=i]dhana, or peculium of the female members of a family, shows that they gradually became less dependent on their husbands in {30} matters relating to property.[275] Among the ancient Hebrews women appear to have been in every respect regarded as minors so far as proprietary rights were concerned.[276] In Rome a marriage with conventio in manum, which was the regular form of marriage in early times, gave the husband a right to all the property which the wife had when she married, and entitled him to all she might acquire afterwards whether by gift or by her own labour.[277] Later on marriage without manus became the ordinary Roman marriage, and this, together with the downfall of the ancient patria potestas, led to the result that finally all the wife's property was practically under her own control, save when a part of it had been converted by settlement into a fund for contributing to the expenses of the conjugal household.[278] But, as we have noticed in another place, the new religion was not favourable to the remarkable liberty granted to married women during the pagan Empire;[279] and the combined influence of Teutonic custom and Canon law led to those proprietary incapacities of wives which up to quite recent times have disfigured the lawbooks of Christian Europe.[280] In England, before 1857, even a man who had abandoned his wife and left her unaided to support his family might at any time return to appropriate her earnings and to sell everything she had acquired, and he might again and again desert her, and again and again repeat the process of spoliation. In 1870 a law was passed securing to women the legal control of their own earnings, but all other female property, with some insignificant exceptions, was left absolutely unprotected. And it was not until the Married Women's {31} Property Act of 1882 that a full right to their own property was given to English wives.[281]

[Footnote 264: Nassau, Fetichism in West Africa, p. 13 (tribes of the Cameroons). Marshall, A Phrenologist amongst the Todas, p. 206. Waitz, Anthropologie der Naturvölker, iii. 129 (some Indian tribes of North America).]

[Footnote 265: Snow, 'Wild Tribes of Tierra del Fuego,' in Jour. Ethn. Soc. London, N.S. i. 264.]

[Footnote 266: Curr, The Australian Race, i. 66.]

[Footnote 267: Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 142 (Karens). Sumner, in Jour. Anthr. Inst. xxxi. 94 (Jakuts). Post, Studien zur Entwicklungsgeschichte des Familienrechts, p. 291.]

[Footnote 268: von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 330 (Bakaïri). Morgan, League of the Iroquois, p. 326. Lala, Philippine Islands, p. 91. Hagen, Unter den Papua's, pp. 226, 243 (Papuans of Bogadjim, Kaiser Wilhelm Land). Kubary, 'Die Palau-Inseln in der Südsee,' in Jour. des Museum Godeffroy, iv. 54. Ratzel, History of Mankind, i. 279 (various South Sea Islanders). Kingsley, West African Studies, p. 373. Bosman, op. cit. p. 172 (Gold Coast natives). Ellis, Tshi-speaking Peoples of the Gold Coast, p. 298. Sarbah, Fanti Customary Laws, p. 5. Lang, in Steinmetz, Rechtsverhältnisse, p. 223 (Washambala). Burton, Lake Regions of Central Africa, ii. 25 (Wanyamwezi). Post, Entwicklungsgeschichte des Familienrechts, p. 292 sqq.]

[Footnote 269: Supra, i. 637 sqq.]

[Footnote 270: Mindeleff, 'Navaho Houses,' in Ann. Rep. Bur. Ethn. xvii. 485.]

[Footnote 271: Shooter, Kafirs of Natal, p. 84.]

[Footnote 272: Wied-Neuwied, Travels in the Interior of North America, p. 350.]

[Footnote 273: Buchanan, quoted by Hodgson, Miscellaneous Essays, i. 110.]

[Footnote 274: Rein, Japan, p. 424.]

[Footnote 275: Jolly, 'Recht und Sitte,' in Buehler, Grundriss der indo-arischen Philologie, ii. 78, 79, 87 sqq. Kohler, 'Indisches Ehe- und Familienrecht,' in Zeitschr. f. vergl. Rechtswiss. iii. 424 sqq.]

[Footnote 276: Benzinger, 'Law and Justice,' in Cheyne and Black, Encyclopædia Biblica, iii. 2724.]

[Footnote 277: Hunter, Roman Law, p. 295. Maine, Early History of Institutions, p. 312. Bryce, Studies in History and Jurisprudence, ii. 387. Girard, op. cit. p. 163.]

[Footnote 278: Hunter, Roman Law, p. 295 sqq. Maine, Early History of Institutions, p. 317 sqq. Friedlaender, Darstellungen aus der Sittengeschichte Roms, i. 252. Girard, op. cit. p. 164.]

[Footnote 279: Supra, i. 653 sq.]

[Footnote 280: Maine, Ancient Law, p. 157 sqq.]

[Footnote 281: Lecky, Democracy and Liberty, ii. 536 sq. Cleveland, Woman under the English Law, p. 279 sqq. For the laws of other European countries see Bridel, op. cit. p. 61 sqq., and for the history of the subject see Gide. Étude sur la condition de la femme, passim.]

A third class of persons who in many cases are considered incapable of holding property of their own is the slave class.[282] It may indeed be asked whether a slave ever has the right of ownership in the full sense of the term. Yet slaves are frequently said to be owners of property; and though this "ownership" may have originally been a mere privilege granted to them by their masters and subject to withdrawal at the discretion of the latter,[283] it is undoubtedly in several cases a genuine right guaranteed by custom. Among the Káfirs of the Hindu-Kush, if the slaves work for others, they do not hand the wages over to their masters, but keep the pay themselves.[284] In Africa, in particular, it is a common thing for slaves to have private property;[285] in Southern Guinea there are slaves who are wealthier than their masters.[286] In some African countries, as we have seen, the slave is obliged to work for his master only on certain days of the week or a certain number of hours, and has the rest of his time free.[287]

So also in ancient Mexico the slave was allowed a certain amount of time to labour for his own advantage.[288] A Babylonian slave had his peculium, of which, at least under normal circumstances, he was in safe possession.[289] In Rome anything {32} a slave acquired was legally his master's; but he was in practice permitted to enjoy and accumulate chance earnings or savings or a share of what he produced, which was regarded not as his property in the full sense of the term, but as his peculium.[290] In the Middle Ages slaves, and in many instances serfs also, were, strictly speaking, destitute of proprietary rights.[291] In England it was held that whatever was acquired by a villein was acquired by his lord. At the same time his chattels did not eo ipso lapse into the lord's possession, but only if the latter actually seized them; and if he for some reason or other refrained from doing so the villein was practically their owner in respect of all persons but his lord.[292] In the British and French colonies and the American Slave States the negro slaves had no legal rights of property in things real or personal.[293] According to the laws of Georgia, masters must not permit their slaves to labour for their own benefit, at a penalty of thirty dollars for every such weekly offence;[294] and in other States they were expressly forbidden to suffer their slaves to hire out themselves.[295] In some places, however, negro slaves might hold a peculium. In Arkansas a statute was passed granting masters the right of allowing their slaves to do work on their own behalf on Sundays;[296] and in the British colonies Sunday was made a marketing day for the slaves so as to encourage them to labour for themselves. [297] In the Civil Code of Louisiana {33} it is said that the slave "possesses nothing of his own, except his peculium, that is to say, the sum of money, or movable estate, which his master chooses he should possess."[298] The Spanish and Portuguese slave laws were more humane. According to them the money and effects which a slave acquired by his labour at times set apart for his own use or by any other means, were legally his own and could not be seized by the master.[299]

[Footnote 282: Post, Grundriss der ethnol. Jurisprudenz, i. 370, 381. Holmberg, in Acta Soc. Scientiarum Fennicæ, iv. 330 sq. (Thlinkets). Kohler, 'Recht der Marschallinsulaner,' in Zeitschr. f. vergl. Rechtswiss. xiv. 428 sq. Volkens, op. cit. p. 249 (Wadshagga). Lang, in Steinmetz, Rechtsverhältnisse, p. 241 (Washambala).]

[Footnote 283: Nicole, in Steinmetz, Rechtsverhältnisse, p. 119 (Diakité-Sarracolese). Senfft, ibid. p. 442 (Marshall Islanders).]

[Footnote 284: Scott Robertson, op. cit. p. 100.]

[Footnote 285: Kingsley, West African Studies, p. 366. Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 219. Steinmetz, Rechtsverhältnisse, p. 43 (Banaka and Bapuku). Tellier, ibid. pp. 169, 171 (Kreis Kita). Baskerville, ibid. p. 193 (Waganda). Beverley, ibid. p. 213 (Wagogo). Dale, in Jour. Anthr. Inst. xxv. 230 (Wabondei). Munzinger, Die Sitten und das Recht der Bogos, p. 43. Idem, Ostafrikanische Studien, p. 309 sq. (Beni Amer).]

[Footnote 286: Wilson, Western Africa, p. 271.]

[Footnote 287: Supra, i. 677.]

[Footnote 288: Bancroft, op. cit. ii. 221.]

[Footnote 289: Kohler and Peiser, Aus dem babylonischen Rechtsleben, i. i. See also supra, i. 684.]

[Footnote 290: Digesta, xv. 1. 39. Wallon, Histoire de l'esclavage dans l'antiquité, ii. 181 sq. Ingrain, History of Slavery, p. 44. Hunter, Roman Law, pp. 157, 290 sq. Girard, op. cit. p. 95.]

[Footnote 291: Supra, i. 697. Guérard, Cartulaire de l'Abbaye de Saint-Père de Chartres, i. p. xlvii.]

[Footnote 292: Vinogradoff, Villainage in England, p.67 sq. Pollock and Maitland, op. cit. i. 416, 419.]

[Footnote 293: Stephen, Slavery of the British West India Colonies, i. 58. Code Noir, Édit du mois de Mars 1685, art. 28, p. 42 sq.; Édit donné au mois de Mars 1724, art. 22, p. 295 sq. Stroud, Sketch of the Laws relating to Slavery in the several States of the United States of America, p. 74. Goodell, American Slave Code, p. 89 sqq.]

[Footnote 294: Prince, Digest of the Laws of Georgia, p. 788.]

[Footnote 295: Caruthers and Nicholson, Compilation of the Statutes of Tennessee, 675. Alden and van Hoesen, Digest of the Laws of Mississippi, p. 751. Morehead and Brown, Digest of the Statute Laws of Kentucky, ii. 1480 sq.]

[Footnote 296: Ball and Roane, Revised Statutes of Arkansas, xliv. 7. 2. 8, p. 276 sq.]

[Footnote 297: Edwards, History of the British West Indies, ii. 181.]

[Footnote 298: Morgan, Civil Code of Louisiana, art. 175.]

[Footnote 299: Stephen, op. cit. i. 60. Couty, L'esclavage au Brésil, p. 9.]

Among many peoples, finally, we find the theory that nobody but the chief or king has proprietary rights, and that it is only by his sufferance that his subjects hold their possessions.[300] The soil, in particular, is regarded as his.[301] But even autocrats are tied by custom,[302] and in practice the right of ownership is not denied to their subjects.

[Footnote 300: Butler, Travels in Assam, p. 94 (Kukis). Beecham, Ashantee, p. 96. Spencer, Descriptive Sociology, African Races, p. 12 (Abyssinians). Decle, op. cit. p. 70 sqq. (Barotse). Kidd, The Essential Kafir, p. 353. Ellis, History of Madagascar, i. 342. Post, Afrikanische Jurisprudenz, ii. 171. Percy Smith, 'Uea, Western Pacific,' in Jour. Polynesian Soc. i. 112. Tregear, 'Easter Island,' ibid. i. 99. In Samoa it is a maxim that a chief cannot steal; he is merely considered to "take" the thing which he covets (Pritchard, Polynesian Reminiscences, p. 104). In Uea, when a chief enters a house, he enjoys the right to take all in it that he pleases (Percy Smith, in Jour. Polynesian Soc. i. 113). Among the Kafirs no case can be brought against a chief for theft, except if it be committed on the property of a person belonging to another tribe; and even the children of chiefs are permitted to steal from their own people (Brownlee, in Maclean, Compendium of Kafir Laws and Customs, p. 112 sq. Trollope, South Africa, ii. 303. Holden, Past and Future of the Kaffir Races, p. 338).]

[Footnote 301: Waitz, op. cit. iii. 128 (Indian tribes of North America); v. pt. i. 153 (Malays). Ellis, Polynesian Researches, iii. 115 (Sandwich Islanders). Bory de St. Vincent, Essais sur les Isles Fortunées, p. 64 (Guanches). Nicole, in Steinmetz, Rechtsverhältnisse, p. 136 (Diakité-Sarracolese). Baskerville, ibid. p. 201 (Waganda). Beverley, ibid. p. 216 (Wagogo). Lang, ibid. p. 262 (Washambala). Rautanen, ibid. p. 343 (Ondonga). Stuhlmann, Mit Emin Pasha ins Herz von Africa, p. 75 (Wanyamwezi). Post, Afrikanische Jurisprudenz, ii. 170 sq.; Ratzel, op. cit. i. 126; de Laveleye-Bücher, Das Ureigenthum, p. 275 (various African peoples). Kohler, Rechtsvergleichende Studien, p. 235 (Kandian law). Giles, Strange Stories from a Chinese Studio, ii. 369, n. 21 (Chinese).]

[Footnote 302: Supra, i. 162.]

In the next chapter we shall try to explain all these facts:--the existence of proprietary rights, the refusal of such rights to certain classes of persons, the different {34} degrees of condemnation attending theft under different circumstances. But before we can understand the psychological origin of the right of ownership and the regard in which it is held, it is necessary to examine the methods by which it is acquired, the external facts which give to certain individuals a right to the exclusive disposal of certain things.

Chapter XXIX

THE RIGHT OF PROPERTY (concluded)

ACCORDING to an old theory set forth by Roman jurists, and afterwards much emphasised by Grotius,[1] the original mode of acquisition is occupation, that is, a person's taking possession of that which at the moment belongs to nobody (res nullius), with the intention of keeping it as his property. That occupation very largely, though by no means exclusively, is at the bottom of the right of ownership seems obvious enough, and it is only by means of strained constructions that Locke and others have been able to trace the origin of this right to labour alone.[2] The principle of occupation is illustrated by innumerable facts from all quarters of the world--by the hunter's right to the game which he has killed or captured;[3] by the nomad's or settler's right to the previously unoccupied place where {36} he has pitched his tent or built his dwelling;[4] by the agriculturist's right to the land of which he has taken possession by cultivating the soil;[5] by a tribe's or community's right to the territory which it has occupied.[6] Among the Kandhs of India "the right of possession of land is simply founded in the case of tribes upon priority of appropriation, and in the case of individuals upon priority of culture."[7] Among the Herero, "notwithstanding the loose notions generally entertained by them as to meum and tuum, there is an understanding that he who arrives first at any given locality is the master of it as long as he chooses to remain there, and no one will intrude upon him without having previously asked and obtained his permission. The same," our authority adds, "is observed even with regard to strangers."[8] Again, among some of the Australian natives a man who had found a bees' nest and did not wish to rob it for some time, would mark the tree in some way or other, and "it was a crime to rob a nest thus indicated."[9] In Greenland anyone picking up pieces {37} of driftwood or goods lost at sea or on land was considered the rightful owner of them; and to make good his possession he had only to carry them up above high-water mark and put stones upon them, no matter where his homestead might be.[10] But the finder's right to the discovered article is not always restricted to objects which have no owner or the owner of which is unknown: in some instances his occupation of it makes it his property in all circumstances,[11] whilst in other cases he at any rate has a claim to part of its value.[12] Among the Hurons "every thing found, tho' it had been lost but a moment, belonged to the person that found it, provided the loser had not claimed it before."[13] The Kafirs "are not bound by their law to give up anything they may have found, which has been lost by some one else. The loser should have taken better care of his property, is their moral theory."[14] Among the Chippewyans any unsuccessful hunter passing by a trap where a deer is caught may take the animal, if only he leaves the head, skin, and saddle for the owner;[15] and among the Tunguses whoever finds a beast in another man's trap may take half the meat.[16] Among the Maoris boats or canoes which were cast adrift became the property of the captors. "Even a canoe . . . of friends and relatives upsetting off a village, and drifting on shore where a village was, became the property of the people of that village; although it might be that the people in the canoe had all got safely to land or were coming by special invitation to visit that very {38} village."[17] We have previously noticed the customary treatment of shipwrecked mariners in mediæval Europe. And another instance of occupation establishing a right of property in things which already have an owner is conquest or capture made in

war. The Romans regarded spoils taken from an enemy as the most excellent kind of property.[18]

[Footnote 1: Grotius, De jure belli et pacis, ii. 3. 3.]

[Footnote 2: Locke, Treatises of Government, ii. 5. 27 sqq., p. 200 sqq. Thiers, De la propriété, p. 94 sqq. Hume remarks (Treatise of Human Nature, ii. 3 [Philosophical Works, ii. 276, n. 1]):--"There are several kinds of occupation, where we cannot be said to join our labour to the object we acquire; as when we possess a meadow by grazing our cattle upon it."]

[Footnote 3: Curr, Recollections of Squatting in Victoria, p. 265 (Bangerang tribe). Murdoch, 'Ethnol. Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 428 (Point Barrow Eskimo). Ahlqvist, 'Unter Wogulen und Ostjaken,' in Acta Soc. Scientiarum Fennicæ, xiv. 166 (Voguls). Steinmetz, Rechtsverhältnisse, p. 53 (Banaka and Bapuku). Post, Afrikanische Jurisprudenz, ii. 162 sq. Andree, 'Ethnogr. Bemerkungen zu einigen Rechtsgebräuchen,' in Globus, xxxviii. 287. Among some Indian **tribes of North America it was customary for individuals to mark their arrows, in order that the stricken game might fall to the man by whose arrow it had been despatched (Powell, in Ann. Rep. Bur. Ethn. iii. p. lvii.).]

[Footnote 4: von Martius, Von dem Rechtszustande unter den Ureinwohnern Brasiliens, p. 34 (Brazilian aborigines). Dalager, Grønlandske Relationer, p. 15; Nansen, Eskimo Life, p. 109 (Greenlanders). Marsden, History of Sumatra, pp. 68, 244 (Rejangs). Steinmetz, Rechtsverhältnisse, p. 53 (Banaka and Bapuku). Kraft, ibid. p. 293 (Wapokomo). Decle, Three Years in Savage Africa, p. 487 (Wakamba). Robertson Smith, Religion of the Semites, pp. 95, 96, 143 (ancient Semitic custom and Muhammedan law).]

[Footnote 5: Thomson, Savage Island, p. 137. Polack, Manners and Customs of the New Zealanders, ii. 69; Thomson, Story of New Zealand, i. 97. Munzinger, Die Sitten und das Recht der Bogos, p. 69. Cruickshank, Eighteen Years on the Gold Coast, ii. 277. Leuschner, in Steinmetz, Rechtsverhältnisse, p. 24 (Bakwiri). Ibid. p. 53 (Banaka and Bapuku). Tellier, ibid. p. 178 (Kreis Kita). Dale, in Jour. Anthr. Inst. xxv. 230 (Wabondei). Laws of Manu, ix. 44. Wellhausen, Reste arabischen Heidentums, p. 108. Robertson Smith, Religion of the Semites, pp. 95, 96, 143 (ancient Semitic custom and Muhammedan law). Waitz, Anthropologie der Naturvölker, i. 440. Dargun, 'Ursprung und Entwicklungs-Geschichte des Eigenthums,' in Zeitschr. f. vergl. Rechtswiss. v. 71 sqq. Post, Entwicklungsgeschichte des Familienrechts, p. 283 sqq. Idem, Grundriss der ethnol. Jurisprudenz, i. 342 sqq. See also infra, p. 39 sq.]

[Footnote 6: Thomson, Story of New Zealand, i. 96; Polack, op. cit. ii. 71 (Maoris), Mademba, in Steinmetz, Rechtsverhältnisse, p. 90 (natives of the Sansanding States).]

[Footnote 7: Macpherson, Memorials of Service in India, p. 62.]

[Footnote 8: Andersson, Lake Ngami, p. 115. See also Viehe, in Steinmetz, Rechtsverhältnisse, p. 310.

12: Merker, Die Masai, p. 204. Desoignies, in Steinmetz, Rechtsverhältnisse, p. 281 (Msalala). Post, Grundriss der ethnol. Jurisprudenz, ii. 605.]

[Footnote 13: Charlevoix, Voyage to North-America, ii. 26 sq.]

[Footnote 14: Leslie, Among the Zulus and Amatongas, p. 202.]

[Footnote 15: Schoolcraft, Archives of Aboriginal Knowledge, v. 177.]

[Footnote 16: Ratzel, History of Mankind, ii. 226.]

[Footnote 17: Colenso, Maori Races of New Zealand, p. 34. Polack, op. cit. p. 68 sq.]

[Footnote 18: "Maxima sua esse credebant quae ab hostibus cepissent" (quoted by Ahrens, Naturrecht, ii. 137).]

The occupation of a thing may take place in various ways. Hegel says that "taking possession is partly the simple bodily grasp, partly the forming and partly the marking or designating of the object."[19] But there are still other methods of occupation, in which the bodily contact with the object is involuntary, or in which there is no bodily contact at all. Among the Maoris a man acquired a peculiar right to land "by having been born on it (or, in their expressive language, 'where his navel-string was cut'), as his first blood (ever sacred in their eyes) had been shed there";[20] or, generally, "by having had his blood shed upon it"; or "by having had the body, or bones, of his deceased father, or mother, or uterine brother or sister, deposited or resting on it"; or "by having had a near relative killed, or roasted on it, or a portion of his body stuck up or thrown away upon it."[21] Among many peoples an animal belongs entirely or chiefly to the person who first wounded it, {39} however slightly,[22] or who first saw it,[23] even though it was killed by somebody else. Thus among the Greenlanders, if a seal or some other sea-animal escapes with the javelin sticking in it, and is afterwards killed, it belongs to him who threw the first dart;[24] if a bear is killed, it belongs to him who first discovered it;[25] and when a whale is taken, the very spectators have an equal right to it with the harpooners.[26]

[Footnote 19: Hegel, Grundlinien der Philosophie des Rechts, § 54, p. 54; English translation, p. 59.]

[Footnote 20: Of certain tribes of Western Victoria we are likewise told that, "should a child of another family have been born on the estate, it is looked upon as one of the family, and it has an equal right with them to a share of the land, if it has attained the age of six months at the death of the proprietor" (Dawson, Australian Aborigines, p. 7). The Rev. John Bulmer (quoted by Brough Smyth, Aborigines of Victoria, i. 146) testifies the prevalence of such a birth-right among the Murray tribes, and suspects it is common to most of the tribes of Australia:--"The fact that an aboriginal is born in a certain locality constitutes a right to that part, and it would be considered a breach of privilege for any one to hunt over it without his permission. Should another black have been born in the same place, he, with the former, would have a joint right to the land. Otherwise, no native seems to have made a claim to any particular portion of the territory of his tribe." Cf. Schurtz, Die Anfänge des Landbesitzes, in Zeitschr. f. Socialwissenschaft, iii. 357 sqq.]

[Footnote 21: Colenso, op. cit. p. 31. See also Polack, op. cit. ii. 82.]

[Footnote 22: Dalager, op. cit. p. 24 sq. (Greenlanders). Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 582. Dall, Alaska, p. 394 (Aleuts). Ratzel, op. cit. Bourke, Snake-Dance of the Moquis, ii. 227 (Asiatic Hyperboreans). Campbell, Second Journey in the Interior of South Africa, ii. 212 (Bechuanas). Livingstone, Missionary Travels, p. 599 (natives of South Africa), von Heuglin, Reise nach Abessinien, p. 290 sq. (Woitos). Laws of Manu, ix. 44. Post, Afrikanische Jurisprudenz, ii. 163. Idem, Grundriss der ethnol. Jurisprudenz, ii. 707 sq. Andree, in Globus, xxxviii. 287 sq.]

[Footnote 23: Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 582. Ratzel, op. cit. ii. 227 (Asiatic Hyperboreans). See also Semper, Die Palau-Inseln, p. 86.]

[Footnote 24: Dalager, op. cit. p. 24.]

[Footnote 25: Rink, Tales and Traditions of the Eskimo, p. 29.]

[Footnote 26: Dalager, op. cit. p. 25.]

Besides occupation, or the taking possession of a thing, the keeping possession of it may establish a right of ownership. That these principles, though closely connected with each other, are not identical is obvious from two groups of facts. First, a proprietary right which is based on occupation may disappear if the object has ceased to remain in

the possession of the person who had appropriated it. The place occupied by a nomad is his only so long as he continues to stay there;[27] and among agricultural savages the cultivator frequently loses his right to the field when he makes no more use of it[28]--though, on the other hand, instances are not wanting in which cultivation gives proprietary {40} rights of a more lasting nature.[29] Loss of possession may, indeed, annul or weaken ownership gained by any method of acquisition. In the Hindu work Panchatantra it is said that the property in "tanks, wells, ponds, temples, and choultries" will no longer rest with persons who once have left them.[30] Among the natives of the Sansanding States the right to a house is lost by its being abandoned.[31] In Greenland, if a man makes a fox trap and neglects it for some time, another may set it and claim the captured animal.[32] So also the finder's title to the discovered article springs from the fact that the original owner's right has been relaxed by his losing the possession of it. Secondly, the retaining possession of an object for a certain length of time may make it the property of the possessor, even though the occupation of that object conferred on him no such right, nay though the acquisition of it was actually wrongful.[33] According to the Roman Law of the Twelve Tables, commodities which had been uninterruptedly possessed for a certain period--movables for a year, and land or houses for two years--became the property of the person possessing them.[34] This principle, known to the Romans as usucapio, has descended to modern jurisprudence under the name of "prescription." It also prevailed in India since ancient times. The older law-books laid down the rule that, if the owner of a thing is neither an idiot nor a minor and if his chattel is enjoyed {41} by another before his eyes during ten years and he says nothing, it is lost to him, and the adverse possessor shall retain it as his own property;[35] but it seems that later on the period of prescription was extended to thirty years or even more.[36] In this connection it should also be noticed that the division of labour, implying the use of certain articles, often confers proprietary rights to those articles upon the persons who make habitual use of them, as in the case of women becoming the owners of the household goods.[37]

[Footnote 27: Cf. Post, Afrikanische Jurisprudenz, ii. 167.]

[Footnote 28: Morgan, League of the Iroquois, p. 326. Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 366. Bourke, Snake-Dance of the Moquis, p. 261. Shooter, Kafirs of Natal, p. 16; Lichtenstein, Travels in Southern Africa, i. 271 (Kafirs). MacGregor, in Jour. African Soc. 1904, p. 474 (Yoruba). Leuschner, in Steinmetz, Rechtsverhältnisse, p. 25. Lang, ibid. p. 264. (Washambala). Marx, ibid. p. 358 (Amahlubi). Sorge, ibid. p. 422 (Nissan Islanders). Waitz, op. cit. i. 440. Dargun, in Zeitschr. f. vergl. Rechtswiss. v. 71 sqq. Post, Entwicklungsgeschichte des Familienrechts, p. 283 sqq. Idem, Grundriss der ethnol. Jurisprudenz, i. 343 sq. de Laveleye-Bücher, Das Ureigenthum, ch. xiv. p. 270 sqq. Among the Rejangs of Sumatra a planter of fruit-trees or his descendants may claim the ground as long as any of the trees subsist, but when they disappear "the land reverts to the public" (Marsden, op. cit. p. 245).]

[Footnote 29: von Martius, Von dem Rechtszustande unter den Ureinwohnern Brasiliens, p. 35 sq. (Brazilian aborigines). Steinmetz, Rechtsverhältnisse, p. 53 (Banaka and Bapuku). Kohler, 'Banturecht in Ostafrika,' in Zeitschr. f. vergl. Rechtswiss. xv. 48 (natives of Lindi). Trollope, op. cit. ii. 302 (Kafirs). Post, Afrikanische Jurisprudenz, ii. 169. Idem, Entwicklungsgeschichte des Familienrechts, p. 285 sq. Schurtz, in Zeitschrift für Socialwissenschaft, iii. 255. Among the Angami Nagas any member of a village "may choose to leave his fields untilled for one year and cannot be compelled to grow his crops during the next, but after that, if illness or idleness prevent him from overtaking

the work, his village insists on the fields being let" (Prain, 'Angami Nagas,' in Revue coloniale internationale_, v. 484).]

[Footnote 30: Panchatantram, iii. p. 15.]

[Footnote 31: Mademba, in Steinmetz, Rechtsverhältnisse, p. 91.]

[Footnote 32: Dalager, op. cit. p. 27.]

[Footnote 33: See Mill, Principles of Political Economy, i. 272; Thiers, op. cit. p. 108; Waitz-Gerland, op. cit. vi. 228 (Maoris).]

[Footnote 34: Hunter, Roman Law, p. 265 sqq. Maine, Ancient Law, p. 284. Girard, Manuel élémentaire de droit romain, p. 296 sqq. Puchta, Cursus der Institutionen, ii. 202 sqq.]

[Footnote 35: Gautama, xii. 39. Vasishtha, xvi. 16 sq. Laws of Manu, viii. 147 sq. See also Panchatantram, iii. p. 15; Benfey's translation, vol. ii. 233.]

[Footnote 36: Brihaspati, ix. 7. Jolly, 'Recht und Sitte,' in Buehler, Grundriss der indo-arischen Philologie, ii. 92. For the rules of prescription in ancient India see also Jolly, p. 91 sqq., and Kohler, Altindisches Prozessrecht, p. 55 sq.]

[Footnote 37: Supra, i. 637 sqq.]

A further source of ownership lies in the principle that a person has a title to the products of his own labour. Grotius--in criticising the Roman jurist Paulus, who long before Locke had made labour a justification of property,--[38]argues that this is no special mode of acquisition, but that the labourer's claim to what he produces is based on occupation. "Since in the course of nature," Grotius says, "nothing can be made except but of pre-existing matter, if that matter was ours, the ownership continues when it assumes a new form; if the matter was no one's property, this acquisition comes under occupation; if the matter belonged to another, the thing made is not ours alone."[39] This argument contains its own refutation. If a thing which we make of matter belonging to another person is not "ours alone," our partial right to it can be due only to our labour. Again, if we make a thing of materials belonging to ourselves, our right to it is certainly held to be increased by our exertions in producing it. It should, moreover, be remembered that there is ownership in the products not only of manual but of mental labour, and in the latter case the ownership can hardly be considered to be due to occupation at all. We may say with Mr. Spencer that from the beginning things identified as products of a man's labour are recognised as his. Even {42} among the rudest peoples there is property in weapons, implements, dress, decorations, and other things in which the value given by labour bears a specially large proportion to the value of the raw material.[40] If a Greenlander finds a dead seal with a harpoon in it, he keeps the seal, but restores the harpoon to its owner.[41] Among the same people, when somebody has built dams across salmon-rivers to catch the fish, it is not considered proper for strangers to come and meddle with them.[42] In various parts of Africa he who has dug a well has a right to the exclusive disposal of it.[43] In West Africa, according to Miss Kingsley, that which is acquired or made by a man or woman by their personal exertions is regarded as his or her private property.[44] The Moquis of Arizona "are co-operative in all their labours, whether as hunters, herders, or tillers of the soil; but each man gathers the spoils of his individual skill and daring, or the fruits of his own industry."[45] In the Nicobars, whilst everything which the village as a whole makes or purchases is common property, the result of individual work belongs to the individual.[46] In old Hindu law-books the performance of labour is specified as one of the lawful modes of acquiring property.[47] According to Nârada, when the owner of a field is unable to cultivate it, or dead, or gone no one knows whither, any stranger who undertakes its cultivation unchecked by the owner shall be allowed to

keep the produce; and if the owner returns while the stranger is engaged in cultivation, the owner, in order to recover his field, has to pay to the cultivator the whole expense incurred in tilling the waste.[48] Thus, though cultivation does not give a right to the land, it gives a right to the produce {43} of the labour performed. Among uncivilised races we frequently find that the land itself and the crops or trees growing on it have different owners, the latter belonging to the person who planted them.[49]

[Footnote 38: Cf. Girard, op. cit. p. 316.]

[Footnote 39: Grotius, op. cit. ii. 3. 3.]

[Footnote 40: Spencer, Principles of Sociology, ii. 646. Idem, Principles of Ethics, ii. 98. Cf. Waitz, op. cit. i. 440 sq.]

[Footnote 41: Dalager, op. cit. p. 25.]

[Footnote 42: Nansen, First Crossing of Greenland, ii. 299.]

[Footnote 43: Munzinger, Die Sitten und das Recht der Bogos, p. 70. Lang, in Steinmetz, Rechtsverhältnisse, p. 264 (Washambala). von François, Nama und Damara, p. 175 (Herero).]

[Footnote 44: Kingsley, West African Studies, p. 366.]

[Footnote 45: Bourke, Snake-dance of the Moquis, p. 260 sq.]

[Footnote 46: Kloss, In the Andamans and Nicobars, p. 240.]

[Footnote 47: Gautama, x. 42. Laws of Manu, x. 115.]

[Footnote 48: Nârada, xi. 32 sq.]

[Footnote 49: Colenso, op. cit. p. 31 (Maoris). Leuschner, in Steinmetz, Rechtsverhältnisse, p. 25 (Bakwiri). Lang, ibid. p. 264 (Washambala). Munzinger, Die Sitten und das Recht der Bogos, p. 69. Hanoteau and Letourneux, La Kabylie, ii. 230; Kobelt, Reiseerinnerungen aus Algerien und Tunis, p. 293 (Kabyles of Jurjura). Hyde Clarke, in Jour. Anthr. Inst. xix. 199 sqq. Post, Afrikanische Jurisprudenz, ii. 172. Schurtz, in Zeitschr. f. Socialwissenschaft, iii. 250 sq.]

The right of ownership may, further, be established by a transfer of property by its owner, either by way of gift or by sale or exchange or some other form of contract. The conditions necessary for this method of acquisition are, that the owner shall have a right to alienate the article in question, and that the other party shall be capable of owning such property. As has been said before, ownership does not necessarily imply an unrestricted power of disposition. Property in land, for instance, is frequently considered inalienable;[50] and, to take another example, the power of testation, if recognised at all, is often subject to restrictions.[51] The customary law of the Fantis of West Africa does not permit any person to bequeath to an outsider a greater portion of his property than is left for his family.[52] Among the Maoris land obtained by purchase or conquest may be given away or willed by the owner to anybody he thinks fit, but the case is different with patrimony.[53] With regard to the so-called Aryan peoples Sir Henry Maine thinks "it is doubtful whether a true power of testation was known to any original society except the Roman."[54] Even in Rome bequest seems not to have been permitted in pre-historic times, and afterwards a legitima portio was compulsorily reserved for each child.[55] Such is still the law of some continental nations.

[Footnote 50: Post, Entwicklungsgeschichte des Familienrechts, p. 286 sqq. Avebury, Origin of Civilisation, p. 483 sq.]

[Footnote 51: Post, Grundriss der ethnol. Jurisprudenz, ii. 200 sqq. Idem, Afrikanische Jurisprudenz, ii. 19.]

[Footnote 52: Sarbah, op. cit. p. 85.]

[Footnote 53: Polack, op. cit. ii. 69.]

[Footnote 54: Maine, Ancient Law, p. 196. See also Fustel de Coulanges, La cité antique, p. 95.]

[Footnote 55: Fustel de Coulanges, op. cit. p. 96. Hunter, Roman Law, p. 780 sqq. Girard, op. cit. p. 854 sqq.]

{44} Closely connected with the restrictions imposed on a proprietor's power of testation is the rule of inheritance, one of the most common methods of acquiring property. At the earlier stages of civilisation the property of a deceased person is not in every case subject to this rule. Apart from the practice of testation, which, though hardly primitive, is not infrequently found among savages,[56] there are other ways of dealing with it besides inheritance. The private belongings of the dead, or part of them, are destroyed or buried with him, or his dwelling is burned or abandoned;[57] but Dr. Dargun goes too far when saying that among rude savages this custom is generally practised to such an extent as to exclude heirship in property altogether.[58] Nor must we infer the general prevalence of a stage where there were no definite rules of inheritance[59] from the fact that among some North American tribes, when a man dies leaving young children who are unable to defend themselves, grown-up relatives or other persons come in and seize whatever they please.[60] The ordinary custom of savages is that the dead man's property is inherited either by his own children, if kinship is reckoned through the father, or by his sister's children or other relatives on the mother's side, if kinship is reckoned through females only.[61] Sometimes the rules of inheritance make little or no distinction between men and women;[62] sometimes a decided preference is given to the {45} men[;63] sometimes the women inherit nothing;[64] whereas in a few exceptional cases the women are the only inheritors.[65] Among various savages the widow also has a share in the inheritance, or at any rate has the usufruct of property left by her deceased husband.[66] Very frequently the eldest son,[67] or, where the maternal system of descent prevails in {46} full, the eldest uterine brother[68] or the eldest son of the eldest uterine sister,[69] is the chief or even the only heir. But there are also several instances in which this privilege is granted to the youngest son.[70] Thus, among the Hos of India he apparently inherits all the property of his father;[71] among the Limbus of Nepal, though an extra share is set apart for the eldest son, the youngest one is allowed to choose his share first;[72] among the Eskimo of Behring Strait, "if there are several sons the eldest gets the least, the most valuable things being given to the youngest."[73] In Greenland a foster-son inherits all the property of his foster-father, if the latter dies without offspring or if his sons are still young children;[74] and of the West African Fulah we are told that, though they have sons and daughters, the adopted child becomes heir to all that they leave behind.[75] Among the Kukis, in default of legitimate issue, a natural son succeeds to his father's property before all other male relations;[76] among the Bódo and Dhimáls sons by concubinage or adoption get equal shares with sons born in wedlock;[77] the Wanyamwezi of Eastern Africa have the habit of leaving property to their illegitimate children by slave girls or concubines even to the exclusion of their issue by wives.[78] Among other uncivilised peoples, {47} again, slaves cannot inherit at all,[79] and where they are allowed to possess property the master is sometimes the legitimate heir of his slave.[80]

[Footnote 56: Ellis, Polynesian Researches, iii. 115 sq. (Tahitians). Wilkin, in Reports of the Cambridge Expedition to Torres Straits, v. 286 (natives of Mabuiag). Kingsley, West African Studies, p. 373. Lang, in Steinmetz, Rechtsverhältnisse, p. 238 (Washambala). Desoignies, ibid. p. 277 (Msalala). Rautanen, ibid. p. 336 (Ondonga). Dale, in Jour. Anthr. Inst. xxv. 224. Post, Grundriss der ethnol. Jurisprudenz, ii. 199.]

[Footnote 57: See infra, on Regard for the Dead.]

[Footnote 58: Dargun, in Zeitschr. f. vergl. Rechtswiss. v. 99 sqq.]

[Footnote 59: Ibid. p. 102 sq.]

[Footnote 60: Prescott, in Schoolcraft, Indian Tribes of the United States, ii. 194 sq. (Dacotahs). Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 208 (Salish). Dalager, op. cit. p. 30 sq.; Cranz, op. cit. i. 176 (Greenlanders).]

[Footnote 61: See Westermarck, op. cit. p. 97 sqq.]

[Footnote 62: Kloss, op. cit. p. 241 (Nicobarese). Wilkin, in Rep. Cambridge Anthr. Exped. v. 285 sq. (natives of Mabuiag). Wilkes, U.S. Exploring Expedition, v. 85 (Kingsmill Islanders). Senfft, in Steinmetz, Rechtsverhältnisse, p. 441 (Marshall Islanders). Dawson, op. cit. p. 7 (certain tribes of Western Victoria). Post, Afrikanische Jurisprudenz, ii. 14. Idem, Entwicklungsgeschichte des Familienrechts, p. 299. Idem, Grundriss der ethnol. Jurisprudenz, i. 225.]

[Footnote 63: Sarbah, Fanti Customary Laws, p. 87. Post, Afrikanische Jurisprudenz, ii. 13 sq. Idem, Entwicklungsgeschichte des Familienrechts, p. 298 sq. Idem, Grundriss der ethnol. Jurisprudenz, i. 222 sqq. Among several uncivilised peoples landed property descends exclusively (Macpherson, Memorials of Service in India, p. 62 [Kandhs]; Sumner, in Jour. Anthr. Inst. xxxi. 79 [Jakuts]; Curr, The Australian Race, i. 64; Johnston, Uganda Protectorate, ii. 694; Post, Entwicklungsgeschichte des Familienrechts, p. 298 sq.; Idem, Grundriss der ethnol. Jurisprudenz, i. 224) or by preference (Thomson, Story of New Zealand, i. 96; Post, Grundriss der ethnol. Jurisprudenz, i. 224 sq.) to men.]

[Footnote 64: Castrén, Nordiska resor och forskningar, i. 312 (Ostyaks). Marshall, A Phrenologist amongst the Todas, p. 206. Hodgson, Miscellaneous Essays, i. 122 (Bódo and Dhimáls). Hislop, Papers relating to the Aboriginal Tribes of the Central Provinces, p. 12, n. [dagger] (Gonds). Soppitt, Account of the Kuki-Lushai Tribes, p. 16; Stewart, 'Notes on Northern Cachar,' in Jour. Asiatic Soc. Bengal, xxiv. 640 (Kukis). Risley, Census of India, 1901, vol. i. Ethnographic Appendices, pp. 146 (Santals), 156 (Mundas), 209 (most of the Angami Nagas). Fryer, Khyeng People of the Sandoway District, p. 6. Marsden, op. cit. p. 244 (Rejangs). Eyre, Expeditions of Discovery into Central Australia, ii. 297. Munzinger, Die Sitten und das Recht der Bogos, p. 73. Hinde, Last of the Masai, p. 105; Johnston, Uganda Protectorate, ii. 828 (Masai). Dale, in Jour. Anthr. Inst. xxv. 224 (Wabondei). Kingsley, Travels in West Africa, p. 485 (some West African tribes). Nassau, Fetichism in West Africa, p. 13 (natives of the Cameroons). Leuschner, in Steinmetz, Rechtsverhältnisse, p. 20 (Bakwiri). Mademba, ibid. p. 81 (pagan Bambara). Lang, ibid. p. 238 (Washambala). Kraft, ibid. p. 289 (Wapokomo). Rautanen, ibid. p. 335 (Ondonga). Decle, op. cit. p. 486 (Wakamba). Campbell, Travels in South Africa, p. 520 (Kafirs). Post, Afrikanische Jurisprudenz, ii. 5. Idem, Entwicklungsgeschichte des Familienrechts, p. 296 sqq. Idem, Grundriss der ethnol. Jurisprudenz, i. 218 sq.]

[Footnote 65: Hamy, in Bull. Soc. d'Anthr. Paris, ser. ii. vol. xii. (1877), 535 (Penong Piâk of Cambodia). Buchanan, quoted by Hodgson, Miscellaneous Essays, i. 110 (Kócch). Post, Grundriss der ethnol. Jurisprudenz, i. 213.]

[Footnote 66: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 307. Dawson, Australian Aborigines, p. 7 (certain tribes of Western Victoria). Hunt, 'Ethnogr. Notes on the Murray Islands, Torres Straits,' in Jour. Anthr. Inst. xxviii. 7. Grange, 'Journal of an Expedition into the Naga Hills,' in Jour. Asiatic Soc. Bengal, ix. pt. ii. 964. Mason, ibid. xxxvii. pt. ii. 142 (Karens). Post, Entwicklungsgeschichte des Familienrechts, p. 303 sqq.]

[Footnote 67: Dalager, op. cit. pp. 29, 31; Cranz, op. cit. i. 176 (Greenlanders). Risley, op. cit. p. 203 (Limbus of Nepal). Macpherson, op. cit. p. 62 (Kandhs). Soppitt, op. cit. p.

16 (Kukis). Fryer, op. cit. p. 6 (Khyens). Junghuhn, op. cit. ii. 147 (Bataks). Gill, Life in the Southern Isles, p. 46. Polack, op. cit. ii. 69; Colenso, op. cit. p. 33 (Maoris). Munzinger, Die Sitten und das Recht der Bogos, pp. 69, 73 sq. Paulitschke, op. cit. p. 192 (Gallas). Hollis, Masai, p. 309; Hinde, op. cit. pp. 51, 105 (Masai). Volkens, Der Kilimandscharo, p. 253 (Wadshagga). Kingsley, Travels in West Africa, p. 485 (some West African tribes). Bosman, op. cit. pp. 173 (natives of the Gold Coast), 322 (natives of the Slave Coast). Leuschner, in Steinmetz, Rechtsverhältnisse, p. 20 (Bakwiri). Mademba, ibid. p. 81 (pagan Bambara). Desoignies, ibid. p. 276 (Msalala). Marx, ibid. p. 355 (Amahlubi), Chanler, Through Jungle and Desert, p. 316 (Rendile), Post, Afrikanische Jurisprudenz, ii. 12 sqq. Idem, Grundriss der ethnol. Jurisprudenz, i. 217, 218, 220 sq.]

[Footnote 68: Proyart, 'History of Loango,' in Pinkerton, Collection of Voyages and Travels, xvi. 571.]

[Footnote 69: Kingsley, West African Studies, p. 373 sq. (some West African tribes). Sorge, in Steinmetz, Rechtsverhältnisse, p. 413 (Nissan Islanders).]

[Footnote 70: Risley, op. cit. p. 227 (Lusheis). Avebury, Origin of Civilisation, p. 493 sqq. Post, Grundriss, der ethnol. Jurisprudenz, i. 218, 221 sq. Liebrecht, Zur Volkskunde, p. 432.]

[Footnote 71: Tickell, 'Memoir on the Hodésum,' in Jour. Asiatic Soc. Bengal, ix. pt. ii. 794, n.*]

[Footnote 72: Risley, op. cit. p. 203. Cf. Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 142 (Karens).]

[Footnote 73: Nelson, in Ann. Rep. Bur. Ethn. xviii. 307.]

[Footnote 74: Dalager, op. cit. p. 33.]

[Footnote 75: Denham and Clapperton, quoted in Spencer's Descriptive Sociology, African Races, p. 8.]

[Footnote 76: Stewart, in Jour. Asiatic Soc. Bengal, xxiv. 640.]

[Footnote 77: Hodgson, Miscellaneous Essays, i. 122.]

[Footnote 78: Burton, Lake Regions of Central Africa, ii. 23 sq. Cf. Post, Afrikanische Jurisprudenz, ii. 6.]

[Footnote 79: Nicole, in Steinmetz, Rechtsverhältnisse, pp. 115, 119 (Diakité-Sarracolese). Lang, ibid. pp. 238, 242 (Washambala). Kraft, ibid. pp. 289, 291 (Wapokomo). Rautanen, ibid. p. 335 (Ondonga). Post, Grundriss der ethnol. Jurisprudenz, i. 383.]

[Footnote 80: Munzinger, Die Sitten und das Recht der Bogos, p. 73. Steinmetz, Rechtsverhältnisse, p. 43 (Banaka and Bapuku). Mademba, ibid. p. 83 (natives of the Sansanding States). Post, Grundriss der ethnol. Jurisprudenz, i. 383.]

At higher stages of civilisation the rules of inheritance present the same characteristics as among many savages. During historic times, at least, the nations of culture have reckoned kinship through the father, and succession has been agnatic.[81] In China women only inherit in the very last resort, failing all male relatives.[82] Among the Hebrews, in ancient times, only sons, not daughters, still less wives, could inherit;[83] but the later law conferred on daughters the right of heirship in the absence of sons.[84] The Muhammedan law of inheritance in most cases awards to a female a share equal to half that of a male of the same degree of relationship to the deceased;[85] but according to the old law of Medina women could not inherit at all.[86] Of all the ancient nations with whose rules of inheritance we are acquainted, the Romans seem to have been the only one who gave daughters the same right of inheritance as sons.[87] In India women had originally no such right at all, but in this, as in other matters relating to property, their position subsequently improved.[88] In Attic law sons excluded {48} daughters from succession,[89] and the same was the case among the Scandinavian peoples still

in the later Middle Ages.[90] In England women are even to this day postponed to men in the order of succession to real property.[91] Special privileges in the division of the father's property were granted to the eldest son by the Hebrews[92] and Hindus,[93] and traces of primogeniture are met with in ancient Greek legislation.[94] In the history of English law we find not only primogeniture, but ultimogeniture as well.[95] As regards the question of legitimacy, we notice that in China all sons born in the household have an equal share in the inheritance, whether born of the principal wife or a concubine or a domestic slave.[96] Among the Hebrews the sons of concubines had a right of inheritance,[97] but whether on an equality with the other sons we do not know.[98] According to Muhammedan law no distinction in point of inheritance is made between the child of a wife and that borne by a slave to her master, if the master acknowledge the child to be his own.[99] In Hindu legislation the legitimate {49} sons have the nearest right to the inheritance of their father, but a son begotten by a Sûdra on a female slave may, if permitted by his father, take a share of it.[100] The Roman law on the subject may be summed up thus:--With regard to its father a natural child has no right at all, and differs in no respect from a stranger; with regard to its mother it has the same right as a legitimate child.[101] In Teutonic countries the position of illegitimate children as to succession was much more favourable in earlier times than later on when Christianity made its influence felt, depriving them of all title to inheritance.[102] Strangers were formerly unable both to inherit and to transmit property. For a long time it was the custom in Europe to confiscate their effects on their death; and not only persons who were born in a foreign country were subject to this droit d'aubaine, as it was called in France, but in some countries it was applied even to persons who removed from one diocese to another, or from the lands of one baron to another.[103] Indeed, it is only in recent times that foreigners have been placed on a footing of equality with citizens with regard to inheritance. In 1790 the French National Assembly abolished the right of aubaine as being contrary to the principle of a human brotherhood.[104] Later on, when the Code Napoléon was drawn up, a backward step was taken by restricting the abolition of this right to nations who acted with reciprocity; but this limitation only lasted till 1819, when all inequalities were finally removed in France.[105] In England it was not until 1870 that foreigners were authorised to inherit and bequeath like British subjects.[106]

[Footnote 81: See Westermarck, op. cit. p. 104.]

[Footnote 82: Alabaster, 'Law of Inheritance,' in China Review, v. 193. 'Inheritance and "Patria Potestas" in China,' ibid. v. 406.]

[Footnote 83: Genesis, xxxi. 14 sq. Numbers, xxvii. 4. Gans, Das Erbrecht in weltgeschichtlicher Entwickelung, i. 147. Benzinger, 'Law and Justice,' in Cheyne and Black, Encyclopædia Biblica, iii. 2728.]

[Footnote 84: Numbers, xxvii. 8. Gans, op. cit. i. 147. Benzinger, loc. cit. p. 2729. It is only by exceptional favour that the daughters inherit along with the sons (Job, xlii. 15).]

[Footnote 85: Koran, iv. 12, 175. Lane, Manners and Customs of the Modern Egyptians, p. 116 sq. Kohler, Rechtsvergleichende Studien, p. 102 sqq.]

[Footnote 86: Robertson Smith, Kinship and Marriage in Early Arabia, pp. 65, 117.]

[Footnote 87: Gans, op. cit. ii. 367 sq. Gide, Étude sur la condition privée de la femme, p. 102.]

[Footnote 88: Jolly, loc. cit. pp. 83, 86. Kohler, 'Indisches Ehe- und Familienrecht,' in Zeitschr. f. vergl. Rechtswiss. iii. 424 sqq. Leist, Alt-arisches Jus Civile, ii. 48.]

[Footnote 89: Gans, op. cit. i. 338, 341. Gide, op. cit. p. 79.]

[Footnote 90: Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 95, 190. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 311 sq. Keyser, Efterladte Skrifter, ii. pt. i. 330, 339.]

[Footnote 91: Renton, Encyclopædia of the Laws of England, xi. 75.]

[Footnote 92: Deuteronomy, xxi. 17. Gans, op. cit. i. 148. Benzinger, in Cheyne and Black, Encyclopædia Biblica, iii. 2729. Mr. Jacobs suggests (Studies in Biblical Archæology, p. 49 sqq.) that ultimogeniture was once the rule in early Hebrew society, and was succeeded by primogeniture only when the Israelites exchanged their roving life for one in which sons became more stay-at-home.]

[Footnote 93: Âpastamba, ii. 6. 14. 6, 12. Laws of Manu, ix. 114. Jolly, loc. cit. pp. 77, 82. Maine, Dissertations on Early Law and Custom, p. 89 sq. In China, though sons inherit in equal shares, "it is not uncommon for the brothers to temporarily yield up their share to the elder brother, either in whole or in part, for the glory of the House" ('Inheritance and "Patria Potestas" in China,' in China Review, v. 406; cf. Doolittle, Social Life of the Chinese, ii. 224; Davis, China, i. 343).]

[Footnote 94: Fustel de Coulanges, op. cit. p. 99.]

[Footnote 95: Elton, Origins of English History, p. 178 sqq. Pollock and Maitland, History of English Law till the Time of Edward I. ii. 263 sqq. The custom of ultimogeniture has also been traced in Wales, parts of France, Germany, Friesland, Scandinavia, Russia, and Hungary (Elton, op. cit. p. 180 sqq.; Liebrecht, op. cit. p. 431 sq.).]

[Footnote 96: Parker, 'Comparative Chinese Family Law,' in China Review, viii. 79. 'Inheritance and "Patria Potestas" in China,' ibid. v. 406. Medhurst, 'Marriage, Affinity, and Inheritance in China,' in Trans. Roy. Asiatic Soc. China Branch, iv. 31. Simcox, Primitive Civilizations, ii. 351.]

[Footnote 97: Genesis, xxi. 10 sqq.]

[Footnote 98: Benzinger, in Cheyne and Black, Encyclopædia Biblica, iii. 2729.]

[Footnote 99: Lane, Modern Egyptians, p. 118.]

[Footnote 100: Jolly, loc. cit. p. 85. Laws of Manu, ix. 179.]

[Footnote 101: Gide, op. cit. p. 567 sqq.]

[Footnote 102: Nordström, op. cit. ii. 67, 200 sqq. See also Alard, Condition et droits des enfants naturels, pp. 9, 11; supra, i. 47.]

[Footnote 103: Brussel, Nouvel examen de l'usage général des fiefs en France, ii. 944 sqq. de Laurière, Glossaire du droit françois, p. 47 sq. Demangeat, Histoire de la condition civile des étrangers en France, p. 107 sqq.]

[Footnote 104: Demangeat, op. cit. p. 239.]

[Footnote 105: Ibid. p. 250 sqq.]

[Footnote 106: Naturalisation Act, 1870, § 2.]

[Footnote 107: See Post, Grundriss der ethnol. Jurisprudenz, ii. 612; Goos, Forelæsninger over den almindelige Retslære, ii. 159 sqq.]

[Footnote 108: Sarbah, op. cit. p. 48.]

[Footnote 109: Hunter, Roman Law, p. 247 sq.]

[Footnote 110: Cf. Kovalewsky, Tableau des origines et de l'évolution de la famille et de la propriété, p. 51 sqq.]

[Footnote 111: Dr. Dargun (in Zeitschr. f. vergl. Rechtswiss. v. 76, &c.) even goes so far as to say that savages know of no other property but such as belongs to individuals; but this statement is hardly justified by facts.]

* * * * *

From the statement of facts we shall now proceed to an explanation of these facts. First, why do men recognise proprietary rights at all? Why do the moral feelings of

mankind grant to certain persons a right to the exclusive disposal of certain things, in other words, why does the disposal of an object without the consent of the person called its owner give rise to moral disapproval? The "right of property," it is true, is generally used as a term for a legal right. But in this, as in so many other cases, the legal right is essentially a formulated expression of moral feelings.

As Mr. Spencer observes, the desire to appropriate, and to keep that which has been appropriated, lies deep not only in human but in animal nature, being, indeed, a condition of survival.[112] Sticklebacks show obvious signs of anger when their territory is invaded by other sticklebacks.[113] Birds defend their nests against the attacks of intruders.[114] The dog fights for his kennel or for the prey he has caught. A monkey in the Zoological Gardens of London, which made use of a stone to open nuts, always hid it in the straw after using it, and would not allow any other monkey to touch it.[115] We find the same propensity in man from his earliest years. At the age of two, Tiedemann's son did not let his sister sit on his chair or take any of his clothes, though he had no scruples against appropriating things which belonged to her.[116] Owing to this tendency to keep an appropriated object, and to resist its abstraction, it is dangerous for an individual to try to seize anything held by another of about equal strength; {52} and in human societies this naturally led to the habit of leaving each in possession of whatever he had attained, especially in early times when the objects possessed were of little value, and there was no great inequality of wealth.[117] This habit was further strengthened by various circumstances, all of which tended to make interference with other persons' possessions the subject of moral censure. From both prudential and altruistic motives parents taught their children to abstain from such interference, and this, by itself, would readily give rise to the notion of theft as a moral wrong. Society at large also tried to prevent acts of this kind, partly in order to preserve peace and order, partly out of sympathy with the possessor. Resentment is felt not only by him who is deprived of his possession, but by others on his behalf. This is seen even among some of the lower animals. The Pomeranian dogs of German carters watch the goods of their masters;[118] Mr. Romanes's terrier protected meat from other terriers, his offspring, which lived in the same house with him, and with which he was on the very best of terms;[119] Captain Gordon Stables's cat, which had her place on the table at meals, never allowed any unauthorised interference with the viands.[120] In men such sympathetic resentment naturally develops into genuine moral disapproval.

[Footnote 112: Spencer, Principles of Sociology, ii. 644.]

[Footnote 113: Supra, i. 22.]

[Footnote 114: Perty, Das Seelenleben der Thiere, p. 68.]

[Footnote 115: Darwin, Descent of Man, i. 125. See also Fischer, 'Notes sur l'intelligence des singes,' in Revue scientifique, xxxiii. 618.]

[Footnote 116: Compayré, L'évolution intellectuelle et morale de l'enfant, p. 312.]

[Footnote 117: Cf. Spencer, Principles of Sociology, ii. 634, 644; Dargun, in Zeitschr. f. vergl. Rechtswiss. v. 79 sq.; von Martius, Beiträge zur Ethnographie Amerika's, i. 88, 90.]

[Footnote 118: Peschel, Races of Man, p. 240.]

[Footnote 119: Romanes, 'Conscience in Animals,' in Quarterly Journal of Science, xiii. 156, n.*]

[Footnote 120: 'Studies in Animal Life,' in Chambers's Journal, 1884, p. 824.]

All this applies not only to proprietary rights based on occupation, but also to the principle of continued possession as a ground of ownership. Indeed, the longer a person is in possession of a certain object, the more apt are both he and other individuals to resent its alienation; whereas the loss or abandonment of a thing has a tendency to

loosen the connection between the thing and its owner.[121] This is undoubtedly the chief source of the rule of prescription, {53} though there may be other circumstances as well which help to justify it. Thus it has been said that it is necessary to the security of rightful possessors that they should not be molested by charges of wrongful acquisition when by the lapse of time witnesses must have perished or been lost sight of, and the real character of the transaction can no longer be cleared up;[122] whilst another argument adduced in favour of prescription is, that long possession generally implies labour and that labour gives ownership.[123] The reason why property is gained by labour is obvious enough. Not only do exertions in producing an object make the producer desirous to keep it and to have the exclusive disposal of it, but an encroachment upon the fruit of his labour arouses sympathetic resentment in outsiders, who feel that an effort deserves its reward.

[Footnote 121: Cf. Hume, Treatise of Human Nature, ii. 3 (Philosophical Works, ii. 274):--"What has long lain under our eye, and has often been employed to our advantage, that we are always the most unwilling to part with."]

[Footnote 122: Mill, Principles of Political Economy, i. 272.]

[Footnote 123: Thiers, op. cit. p. 103 sqq.]

As the recognition of ownership thus ultimately springs from a desire in the owner to keep and dispose of what he has appropriated or produced, it is evident that, in ordinary circumstances, there would be no moral disapproval of a voluntary transfer of property to another person. But the case is different if such a transfer is injurious to the interests of persons who have a special claim to consideration. Thus testation is frequently held to be inconsistent with the duties which parents owe to their children or other near relatives to one another. The father, though the lord of the family's possessions, may indeed be regarded only as the first magistrate of an association, and in such a case his share in the division naturally devolves on the member of the family who succeeds to his authority.[124] The right of inheritance, then, may be intimately connected with the idea that the heir was, in a manner, joint owner of the deceased person's property already during his lifetime.[125] But there are {54} various other facts which account for the existence of this right. In early civilisation the rule of succession is part of a comprehensive system of rights and duties which unite persons of the same kin. Professor Robertson Smith observes that in ancient Arabia all persons on whom the duty of blood-revenge lay originally had the right of inheritance;[126] and a similar connection between inheritance and blood-revenge is found among other peoples. This system of mutual rights and duties is generally one-sided, it has reference either to paternal or to maternal relatives, but not to both at once. Now, whatever be the reason why the one or the other method of reckoning kinship prevails among a certain people, it is in the present place sufficient to point out the influence which the idea of a common descent exercises upon the right of inheritance owing to its power of knitting together the persons to whom it refers. Besides, the duty connected with this right may also be of such a nature as to require a certain amount of wealth for its performance; among the Hindus, Greeks, and Romans, the right to inherit a dead man's property was exactly co-extensive with the duty of performing his obsequies and offering sacrifices to his spirit.[127] A further cause of children inheriting their father's property may be that they, to some extent, have previously been in joint possession of it; for, as we know, possession readily leads to ownership. They would have an additional claim to succeed to his property when it had been gathered by their labour, as well as his, or when they stood in need of the support which it had been the father's duty to give them had he been alive. Moreover, where a person's children are present on the spot at his death,

they are apt to be the first occupants of his {55} property;[128] and we have noticed the importance of first occupancy as a means of establishing proprietary rights. The influence of these latter considerations, which are independent of the method of tracing descent, is apparent from the fact that among several peoples inheritance runs in the male line even though children take the mother's name and are considered to belong to her clan.[129] It may be added that a reason which modern writers often have assigned for giving the property of a person who dies intestate to his children or other near relatives is the supposition that in so disposing of it the law is only likely to do what the proprietor himself would have done, if he had done anything.[130]

[Footnote 124: Plato, Leges, xi. 923. Maine, Ancient Law, p. 184. Fustel de Coulanges, op. cit. p. 85. Leist, Alt-arisches Jus Civile, ii. 48. Mill, op. cit. i. 274. Kovalewsky, Coutume contemporaine et loi ancienne, p. 198 (Ossetes).]

[Footnote 125: It is interesting to note that in the Chinese penal code stealing from a relative is punished less severely than other cases of theft, and that the mitigation of the punishment is proportionate to the nearness of the relationship (Ta Tsing Leu Lee, sec. cclxxii. p. 287). The reason for this is that, "according to the Chinese patriarchal system, a theft is not in this case a violation of an exclusive right, but only of the qualified interest which each individual has in his share of the family property" (Staunton, ibid. p. 287, n.*).]

[Footnote 126: Robertson Smith, Kinship and Marriage in Early Arabia, pp. 55, 56, 66 sq.]

[Footnote 127: Laws of Manu, ix. 186 sq. Isaeus, Oratio de Philoctemonis hereditate, 51. Cicero, De legibus, ii. 19 sq. Fustel de Coulanges, op. cit. p. 84. Maine, Ancient Law, p. 191 sq.]

[Footnote 128: Cf. Mill, op. cit. i. 274.]

[Footnote 129: Westermarck, History of Human Marriage, pp. 104, 111.]

[Footnote 130: Hume, Treatise of Human Nature, ii. 3 (Philosophical Works, ii. 280). Godwin, Enquiry concerning Political Justice, ii. 438. Mill, op. cit. i. 275.]

In details the rules of succession are influenced by a variety of circumstances. Women may be excluded from inheritance or receive a smaller share than the men because the latter, being the stronger party, appropriate everything or the larger portion of the property for themselves;[131] or because the women are less in need of property, being supported by their male relatives or husbands;[132] or because they are exempt from the heaviest duties connected with kinship, as the duty of blood-revenge;[133] or, as was the case in the feudal system, because a female tenant is naturally unable to attend the lord in his wars;[134] or for the purpose of preventing the estate from passing to another family or tribe.[135] The idea of keeping together the property of the house also largely is at the bottom of the rule of primogeniture. {56} Besides, the eldest son is the most respected among the children, sometimes he is regarded quite as a sacred being.[136] On the death of the head of the family he is generally better suited than anybody else to take his place; and his privileged position with regard to inheritance is justified by the duties connected with it, especially the duty of looking after and supporting the other members of the household.[137] In feudalism, where tenancy implied duties as well as rights, it was also, from the lord's point of view, the simplest arrangement that when a tenant died a single person should fill the vacant place.[138] But there are many other points of view which may determine the rules of succession. It may be thought just that each child should have an equal share in the inheritance, and that something should be given also to the widow, whose maintenance devolved on the husband and who, whilst he was alive, had been in joint possession

of many of his belongings. Or the youngest son may be the chief or the exclusive heir, partly perhaps for the sake of preventing a division of the property, or because the lord would have but one tenant,[139] but partly also because he had remained with his father till his death,[140] or "on the plea of his being less able to help himself on the death of the parents than his elder brethren, who have had their father's assistance in settling themselves in the world during his lifetime."[141] The Wanyamwezi, again, justify the practice of leaving property {57} to their illegitimate children by slave girls or concubines, to the exclusion of their legitimate offspring, "by the fact of the former requiring their assistance more than the latter, who have friends and relatives to aid them."[142] Generally there seems to be a close connection between illegitimate children's right to inheritance and the legal recognition of polygamous practices. This is indicated by a comparison between Oriental and Roman legislation on the subject, and, in Teutonic countries, between ancient custom and the later law, which was influenced by Christianity's horror of sexual acts falling outside the monogamous marriage relation. The privileges which Hindu law grants to the illegitimate children of Sûdras are due to the notion that the marriage of a member of this caste is itself considered to be of so low a nature as to be on a par with irregular connections.[143]

[Footnote 131: Cf. Campbell, Travels in South Africa, p. 520 (Kafirs).]

[Footnote 132: Cf. Cranz, op. cit. i. 176 (Greenlanders); Macpherson, Memorials of Service in India, p. 62 (Kandhs); Hinde, op. cit. p. 51 (Masai); 'Inheritance and "Patria Potestas" in China,' in China Review, v. 406; Jolly, loc. cit. p. 83 (ancient Hindus); Post, Entwicklungsgeschichte des Familienrechts, p. 296 sq.; Idem, Grundriss der ethnol. Jurisprudenz, i. 218 sq.]

[Footnote 133: Cf. Robertson Smith, Kinship and Marriage in Early Arabia, p. 65 sq.; Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 311 sq.]

[Footnote 134: Cf. Cleveland, Woman under the English Law, p. 83.]

[Footnote 135: Shortland, Traditions and Superstitions of the New Zealanders, p. 256. Kingsley, Travels in West Africa, p. 485. Post, Grundriss der ethnol. Jurisprudenz, i. 214. Cf. Numbers, xxxvi. 1 sqq.]

[Footnote 136: Supra, i. 605, 606, 614. Gill, Life in the Southern Isles, p. 46 sq.]

[Footnote 137: Dalager, op. cit. pp. 29, 31; Cranz, op. cit. i. 176 (Greenlanders). Munzinger, Die Sitten und das Recht der Bogos, p. 74. Hinde, op. cit. p. 51 (Masai). Of the B[=a]gdis of Bengal Mr. Risley expressly says (op. cit. p. 183) that the extra share which is given to the eldest son "seems to be intended to enable him to support the female members of the family, who remain under his care."]

[Footnote 138: Pollock and Maitland, op. cit. ii. 274.]

[Footnote 139: Ibid. ii. 280.]

[Footnote 140: Risley, op. cit. p. 227 (Lusheis). Among the Angami Nagas the youngest son nearly always inherits his father's house, because sons, when marrying, leave the paternal mansion and build houses of their own (ibid. p. 209). It has been suggested that the custom of ultimogeniture "would naturally arise during the latter stages of the pastoral period, when the elder sons would in the ordinary course of events have 'set up for themselves' by the time of the father's death" (Jacobs, Studies in Biblical Archæology, p. 47; Gomme, quoted ibid. p. 47, n. 1; Blackstone, Commentaries on the Laws of England, ii. 70 sq.).]

[Footnote 141: Tickell, in Jour. Asiatic Soc. Bengal, ix. pt. ii. 794, n.*]

[Footnote 142: Burton, Lake Regions of Central Africa, ii. 23 sq.]

[Footnote 143: Jolly, loc. cit. p. 85.]

Of the incapacity of children, wives, and slaves to acquire property for themselves little needs to be said, in the present connection, by way of explanation. Their exclusion from the right of independent ownership is an incident of their subjection to their parents, husbands, or masters. But we must remember that, whilst the latter have a right to dispose of the earnings of their subordinates, they also have the duty of supporting them, and that in early civilisation the child and the wife, sometimes even the slave, [144] are practically, as it were, joint owners of goods which in theory belong to the head of the family alone.

[Footnote 144: Volkens, op. cit. p. 249 (Wadshagga).]

We have still to explain the variations of moral judgments with regard to different acts of theft. That the condemnation of the offence varies in degree according to the value of the stolen goods follows from the fact that theft is disapproved of on account of the injury done to the owner. But in many cases, when the injury is very slight, the appropriation of another person's property is {58} justified by the needs of him who took it. And frequently, also, the condemnation of the thief is more concerned with his encroachment upon a neighbour's right than with measuring the exact amount of harm inflicted. Among the Basutos, says Casalis, "the idea of theft is expressed by a generic word which refers to the violation of right, much more than to the damage caused."[145] Burglary is regarded as an aggravated form of theft partly because it adds a fresh offence, the illicit entering into another person's house, to that against property, partly because it proves great premeditation in the offender.[146] Robbery is likewise a double offence, implying, as it does, an act of violence, and may on that account be more severely censured than ordinary theft; but in other cases the courage and strength displayed by the robber is looked upon as a mitigating circumstance, and sometimes substitutes admiration for disapproval, whereas the secret offender is despised as a coward. So, too, the secrecy of nocturnal theft may aggravate the crime, whilst at the same time the difficulty in providing against it may induce society to increase the punishment. But men are apt to admire not only bravery and force, but also dexterity and pluck, hence the appreciation of adroit theft. The same tendency in some measure accounts for the distinction between manifest and non-manifest theft; but here we have in the first place to remember that strong emotions are more easily aroused by the sight of an act than by the mere knowledge of its commission.[147] That the moral valuation of theft varies according to the station of the thief and the person robbed is due to the same causes as are similar variations with regard to other injuries; and so is the distinction between offences against the property of a tribesman or fellow-countryman and offences against the property of a stranger. The theory of the Roman jurists according to which the property of an enemy in war belongs to nobody as long as the hostilities last, and therefore becomes the property of the {59} captor by the right of occupation,[148] is only a play with words intended to give a reasonable justification to a practice which is really due to lack of regard for the feelings of strangers. When men at an early stage of civilisation respect a stranger's property the motive is undoubtedly in the main prudential. Savages may be anxious to prevent theft from a neighbouring tribe in order to avoid disagreeable consequences.[149] And I venture to think that the honesty they often display with regard to objects belonging to strangers who visit them, and especially with regard to things left in their charge,[150] largely springs from superstitious fear. We have noticed before that even the acceptance of gifts is supposed to be connected with supernatural danger, owing to the baneful magic energy with which the gift is suspected to be saturated.[151] Would not the same apply to the illicit appropriation of a stranger's belongings, and especially to trusts, which naturally call

for great precaution on the part of the owner? This leads us to a subject of considerable importance in the history of property, namely, the influence which magic and religious beliefs have exercised on the regard for proprietary rights.

[Footnote 145: Casalis, Basutos, p. 304.]

[Footnote 146: Cf. Wilda, op. cit. p. 878 (ancient Teutons).]

[Footnote 147: Supra, i. 294.]

[Footnote 148: Hunter, Roman Law, p. 257. Puchta, op. cit. ii. 220.]

[Footnote 149: Sproat, Scenes and Studies of Savage Life, p. 159 (Ahts). Scott Robertson, Káfirs of the Hindu-Kush, p. 440.]

[Footnote 150: See, besides statements referred to above, Lumholtz, Unknown Mexico, i. 420, and ii. 477; Nordenskiöld, Vegas färd kring Asien och Europa, ii. 140 sq. (Chukchi); Worcester, Philippine Islands, p. 413 (Mangyans); Colenso, op. cit. p. 43 (Maoris); Macdonald, Light in Africa, p. 212 (Bantu); Campbell, Travels in South Africa, p. 517, and Leslie, Among the Zulus and Amatongas, p. 201 (Kafirs).]

[Footnote 151: Supra, i. 593 sq.]

Theft is not only punished by men, but is supposed to be avenged by supernatural powers. The Alfura of Halmahera are said to be honest only because they fear that they otherwise would be subject to the punishment of spirits.[152] The natives of Efate, in the New Hebrides, maintained that theft was condemned by their gods.[153] In Aneiteum, another island belonging to the same group, thieves were supposed to be punished after death.[154] In Netherland Island they {60} were said to go to a prison of darkness under the earth;[155] according to the beliefs of the Banks Islanders they were excluded from the true Panoi or Paradise.[156] On the Gold Coast, "if a man had property stolen from his house, he might go to the priest of the local deity he was accustomed to worship, state the loss that had befallen him, make an offering of a fowl, rum, and eggs, and ask the priest to supplicate the god to punish the thief."[157] In Southern Guinea fetishes are inaugurated to detect and punish certain kinds of theft, and persons who are cognisant of such crimes and do not give information about them are also liable to be punished by the fetish.[158] The Bechuanas speak of an unknown being, vaguely called by the name of Lord and Master of things (Mongalinto), who punishes theft. One of them said: "When it thunders every one trembles; if there are several together, one asks the other with uneasiness, Is there any one amongst us who devours the wealth of others? All then spit on the ground saying, We do not devour the wealth of others. If a thunderbolt strikes and kills one of them, no one complains, no one weeps; instead of being grieved, all unite in saying that the Lord is delighted (that is to say, he has done right) with killing that man; we also say that the thief eats thunderbolts, that is to say, does things which draw down upon men such judgments."[159]

[Footnote 152: Kükenthal, Forschungsreise in den Molukken, p. 188.]

[Footnote 153: Macdonald, Oceania, p. 208.]

[Footnote 154: Turner, Samoa, p. 326.]

[Footnote 155: Ibid. p. 301.]

[Footnote 156: Codrington, Melanesians, p. 274.]

[Footnote 157: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 75. See also Cruickshank, op. cit. ii. 152, 160, 184; Schultze, Der Fetischismus, p. 91.]

[Footnote 158: Wilson, Western Africa, p. 275.]

[Footnote 159: Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of the Cape of Good Hope, p. 322 sq.]

According to the Zoroastrian Yasts, Rashnu Razista was "the best killer, smiter, destroyer of thieves and bandits."[160] In Greece Zeus [Greek: ktê/sios] was a guardian

of the family property;[161] and according to a Roman tradition the domestic god repulsed the robber and kept off the enemy.[162] The removing of landmarks {61} has frequently been regarded as sacrilegious.[163] It was strictly prohibited by the religious law of the Hebrews.[164] In Greece boundaries were protected by Zeus [Greek: o(/rios]. Plato says in his 'Laws':--"Let no one shift the boundary line either of a fellow-citizen who is a neighbour, or, if he dwells at the extremity of the land, of any stranger who is conterminous with him. . . . Every one should be more willing to move the largest rock which is not a land mark, than the least stone which is the sworn mark of friendship and hatred between neighbours; for Zeus, the god of kindred, is the witness of the citizen, and Zeus, the god of strangers, of the stranger, and when aroused terrible are the wars which they stir up. He who obeys the law will never know the fatal consequences of disobedience, but he who despises the law shall be liable to a double penalty, the first coming from the Gods, and the second from the law."[165] The Romans worshipped Terminus or Jupiter Terminalis as the god of boundaries.[166] According to an old tradition, Numa directed that every one should mark the bounds of his landed property by stones consecrated to Jupiter, that yearly sacrifices should be offered to them at the festival of the Terminalia, and that, "if any person demolished or displaced these bound-stones, he should be looked upon as devoted to this god, to the end that anybody might kill him as a sacrilegious person with impunity and without being defiled with guilt."[167] In the higher religions theft of any kind is frequently condemned as a sin.

[Footnote 160: Yasts, xii. 8.]

[Footnote 161: Aeschylus, Supplices, 445. Farnell, Cults of the Greek States, i. 55.]

[Footnote 162: Ovid, Fasti, v. 141.]

[Footnote 163: Trumbull, The Threshold Covenant, p. 166 sq.]

[Footnote 164: Deuteronomy, xix. 14; xxvii. 17. Proverbs, xxii. 28; xxiii. 10 sq. Hosea, v. 10. Cf. Job, xxiv. 2.]

[Footnote 165: Plato, Leges, viii. 842 sq. Demosthenes, Oratio de Halonneso, 39, p. 86. See also Hermann, Disputatio de terminis eorumque religione apud Græcos, passim.]

[Footnote 166: Ovid, Fasti, ii. 639 sqq. Festus, De verborum significatione 'Termino.' Lactantius, Divinæ Institutiones, i. 10 (Migne, Patrologiæ cursus, vi. 227 sqq.). Pauly, Real-Encyclopädie der classischen Alterthumswissenschaft, vi. pt. ii. 1707 sqq. Fowler, Roman Festivals of the Period of the Republic, p. 324 sqq.]

[Footnote 167: Dionysius of Halicarnassus, Antiquitates Romanæ, ii. 74. Plutarch, Numa, xvi. i. Festus, op. cit. 'Termino.']

This religious sanction given to ownership is no doubt in some measure due to the same circumstances as, in certain cases, make morality in general a matter of divine {62} concern--a subject which will be dealt with in a future chapter. But there are also special reasons which account for it. Partly it has its origin in magic practices, particularly in the curse.

Cursing is a frequent method of punishing criminals who cannot be reached in any other way.[168] In the Book of Judges we read of Micah's mother who had pronounced a curse with reference to the money stolen from her, and afterwards, when her son had confessed his guilt, hastened to render it ineffective by a blessing.[169] In early Arabia the owner of stolen property had recourse to cursing in order to recover what he had lost.[170] In Samoa "the party from whom anything had been stolen, if he knew not the thief, would seek satisfaction in sitting down and deliberately cursing him."[171] The Kamchadales "think they can punish an undiscovered theft by burning the sinews of the stonebuck in a publick meeting with great ceremonies of conjuration, believing that as these sinews are contracted by the fire so the thief will have all his limbs

contracted."[172] Among the Ossetes, if an object has been secretly stolen, its owner secures the assistance of a sorcerer. They proceed together to the house of any person whom they suspect, the sorcerer carrying under his arm a cat, which is regarded as a particularly enchanted animal. He exclaims, "If thou hast stolen the article and dost not restore it to its owner, may this cat torment the souls of thy ancestors!" And such an imprecation is generally followed by a speedy restitution of the stolen property. Again, if their suspicions rest upon no particular individual, they proceed in the same manner from house to house, and the thief then, knowing that his turn must come, frequently confesses his guilt at once.[173] A common mode of detecting the perpetrator of a theft is to compel the suspected individual to make oath, {63} that is to say, to pronounce a conditional curse upon himself.[174]

[Footnote 168: See, e.g., Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 149 (Karens).]

[Footnote 169: Judges, xvii. 2.]

[Footnote 170: Wellhausen, Reste arabischen Heidentums, p. 192.]

[Footnote 171: Turner, Nineteen Years in Polynesia, p. 318.]

[Footnote 172: Krasheninnikoff, History of Kamschatka, p. 179 sq.]

[Footnote 173: von Haxthausen, Transcaucasia, p. 398 sq.]

[Footnote 174: von Struve, in Das Ausland, 1880, p. 796 (Samoyedes). Worcester, Philippine Islands, p. 412 (Mangyans of Mindoro). Turner, Nineteen Years in Polynesia, p. 292 sq. (Samoans). Bosman, op. cit. p. 125 (Negroes of the Gold Coast). Bowdich, Mission to Ashantee, p. 267; &c.]

Cursing is resorted to not only for the purpose of punishing thieves or compelling them to restore what they have stolen, but also as a means of preventing theft. In the South Sea Islands it is a common practice to protect property by making it taboo, and the tabooing of an object is, as Dr. Codrington puts it, "a prohibition with a curse expressed or implied."[175] The curse is then, in many cases, deposited in some article which is attached to the thing or place it is intended to protect. The mark of taboo, in Polynesia called rahui or raui, sometimes consists of a cocoa-nut leaf plaited in a particular way, [176] sometimes of a wooden image of a man or a carved post stuck in the ground, [177] sometimes of a bunch of human hair or a piece of an old mat,[178] and so forth. In Samoa there were various forms of taboo which formed a powerful check on stealing, especially from plantations and fruit-trees, and each was known by a special name indicating the sort of curse which the owner wished would fall on the thief. Thus, if a man desired that a sea-pike should run into the body of the person who attempted to steal, say, his bread-fruits, he would plait some cocoa-nut leaflets in the form of a sea-pike, and suspend it from one or more of the trees which he wanted to protect. This was called the "sea-pike taboo"; and any ordinary thief would be terrified to touch a tree from which this was suspended, believing that, if he did so, a fish of the said description would dart up and mortally wound him the next time he went to the sea. The "white shark taboo" was done by plaiting a cocoa-nut leaf in the form of a shark, and was tantamount to an {64} expressed imprecation that the thief might be devoured by the white shark when he went to fish. The "cross-stick taboo," again, consisted of a stick suspended horizontally from the tree, and meant that any thief touching the tree would have a disease running right across his body and remaining fixed there till he died.[179] Exactly equivalent to the taboo of the Pacific Islanders is the pomali of the natives of Timor; "a few palm leaves stuck outside a garden as a sign of the pomali will preserve its produce from thieves as effectually as the threatening notice of man-traps, spring-guns, or a savage dog, would do with us."[180] Among the Santals, whenever a person

"is desirous of protecting a patch of jungle from the axes of the villagers, or a patch of grass from being grazed over, or a newly sown field from being trespassed upon, he erects a bamboo in his patch of grass or field, to which is affixed a tuft of straw, or in the case of jungle some prominent and lofty tree has the same prohibitory mark attached, which mark is well understood and strictly observed by all parties interested."[181] So also in Madagascar "on rencontre sur les chemins, on voit dans les champs de longs bâtons munis à leur sommet d'un paquet d'herbes et qui sont plantés en terre soit pour interdire le passage du terrain soit pour indiquer que les récoltes sont réservées à l'usage d'individus déterminés."[182] Among the Washambala the owner of a field sometimes puts a stick wound round with a banana leaf on the road to it, believing that anybody who without permission enters the field "will be subject to the curse of this charm."[183] The Wadshagga protect a doorless hut against burglars by placing a banana leaf over the threshold, and any maliciously inclined person who dares to step over it is supposed to get ill or die.[184] The Akka "stick an arrow in a bunch of bananas still on the stalk to mark it as their own {65} when ripe," and then not even the owner of the tree would think of touching the fruit so claimed by others.[185] Of the Barotse we are told that "when they do not want a thing touched they spit on straws and stick them all about the object."[186] When a Balonda has placed a beehive on a tree, he ties a "piece of medicine" round the trunk, and this will prove sufficient protection against thieves.[187] Jacob of Edessa tells us of a Syrian priest who wrote a curse and hung it on a tree, that nobody might eat the fruit.[188] In the early days of Islam a masterful man reserved water for his own use by hanging pieces of fringe of his red blanket on a tree beside it, or by throwing them into the pool;[189] and in modern Palestine nobody dares to touch the piles of stones which are placed on the boundaries of landed property.[190] The old inhabitants of Cumaná on the Caribbean Sea used to mark off their plantations by a single cotton thread, in the belief that anybody tampering with these boundary marks would speedily die.[191] A similar idea seems still to prevail among the Indians of the Amazon. Among the Jurís a traveller noticed that in places where the hedge surrounding a field was broken, it was replaced by a cotton string; and when Brazilian Indians leave their huts they often wind a piece of the same material round the latch of the door.[192] Sometimes they also hang baskets, rags, or flaps of bark on their landmarks.[193] In these and in various other instances just referred to it is not expressly stated that the taboo mark embodies a curse, but their similarity to cases in which it does so is striking enough to {66} preclude much doubt about their real meaning. It is true that an object which is sacred by itself may, on that account, protect everything in its neighbourhood;[194] in Morocco any article deposited in the [h.]orm of a saint is safe, and among pagan Africans the same effect is produced by using fetishes as protectors of fields or houses.[195] But a thing of inherent holiness may also be chosen for taboo purposes for the reason that its sanctity is supposed to give particular efficacy to any curse with which it may be loaded.

[Footnote 175: Codrington, Melanesians, p. 215.]

[Footnote 176: Taylor White, in Jour. Polynesian Soc. i. 275.]

[Footnote 177: Hamilton, Maori Art, p. 102; Thomson, Story of New Zealand, i. 102; Polack, op. cit. ii. 70 (Maoris). Ellis, Polynesian Researches, iii. 116 (Tahitians).]

[Footnote 178: Thomson, op. cit. i. 102 (Maoris). See also Colenso, op. cit. p. 34 (Maoris); Ellis, Polynesian Researches, iii. 201 (Tahitians).]

[Footnote 179: Turner, Nineteen Years in Polynesia, p. 294 sqq.]

[Footnote 180: Wallace, Malay Archipelago, p. 149 sq.]

[Footnote 181: Sherwill, 'Tour through the Rájmahal Hills,' in Jour. Asiatic Soc. Bengal, xx. 568.]

[Footnote 182: van Gennep, Tabou et totémisme à Madagascar, p. 184 sqq.]

[Footnote 183: Lang, in Steinmetz, Rechtverhältnisse, p. 263.]

[Footnote 184: Volkens, op. cit. p. 254.]

[Footnote 185: Junker, Travels in Africa during the Years 1882-1886, p. 86.]

[Footnote 186: Decle, op. cit. p. 77.]

[Footnote 187: Livingstone, Missionary Travels, p. 285.]

[Footnote 188: Robertson Smith, Religion of the Semites, p. 164, n. 1.]

[Footnote 189: Ibid. p. 336, n. 1.]

[Footnote 190: Pierotti, Customs and Traditions of Palestine, p. 95 sq. According to Roman sources (Digesta, xlvii. 11. 9), there was in the province of Arabia an offence called [Greek: skopelismo/s], which consisted in laying stones on an enemy's ground as a threat that if the owner cultivated the land "malo leto periturus esset insidiis eorum, qui scopulos posuissent"; and so great was the fear of such stones that nobody would go near a field where they had been put.]

[Footnote 191: Gomara, Primera parte de la historia general de las Indias, ch. 79 (Biblioteca de autores españoles, xxii. 206).]

[Footnote 192: von Martius, Von dem Rechtszustande unter den Ureinwohnern Brasiliens, p. 37 sq.]

[Footnote 193: Ibid. p. 34.]

[Footnote 194: Cf. van Gennep, op. cit. p. 185 (natives of Madagascar). It was an ancient Roman usage to inter the dead in the field belonging to the family, and in the works of the elder Cato there is a formula according to which the Italian labourer prayed the manes to take good care against thieves (Fustel de Coulanges, op. cit. p. 75). Cicero says (Pro domo, 41) that the house of each citizen was sacred because his household gods were there.]

[Footnote 195: Rowley, Africa Unveiled, p. 174. Bastian, Afrikanische Reisen, p. 78 sq. 3 Nassau, Fetichism in West Africa, p. 85. Cf. Schneider, Die Religion der afrikanischen Naturvölker, p. 230. If we knew the ceremonies with which magicians transform ordinary material objects into fetishes, we might perhaps find that they charge them with curses. Dr. Nassau says (op. cit. p. 85):--"For every human passion or desire of every part of our nature, for our thousand necessities or wishes, a fetich can be made, its operation being directed to the attainment of one specified wish." See also Schultze, Der Fetischismus, p. 109.]

We have previously noticed another method of charging a curse with magic energy, namely, by giving it the form of an appeal to a supernatural being.[196] So also spirits or gods are frequently invoked in curses referring to theft. On the Gold Coast, "when the owner of land sees that some one has been making a clearing on his land, he cuts the young inner branches of the palm tree and hangs them about the place where the trespass has been committed. As he hangs each leaf he says something to the following effect: 'The person who did this and did not make it known to me before he did it, if he comes here to do any other thing, may fetish Katawere (or Tanor or Fofie or other fetish) kill him and all his family.'"[197] In Samoa, in the case of a theft, the suspected persons had to swear before the chiefs, each one invoking the village god to send swift destruction if he had committed the crime; and if all had sworn and the culprit was still undiscovered, the chiefs solemnly made a similar invocation on behalf of the {67} thief.[198] The Hawaiians seem likewise to have appealed to an avenging deity in certain cursing ceremonies, which they performed for the purpose of detecting or punishing

thieves.[199] In ancient Greece it was a custom to dedicate a lost article to a deity, with a curse for those who kept it.[200] Of the Melanesian taboo, again, Dr. Codrington observes that the power at the back of it "is that of the ghost or spirit in whose name, or in reliance upon whom, it is pronounced."[201] In Ceylon, "to prevent fruit being stolen, the people hang up certain grotesque figures around the orchard and dedicate it to the devils, after which none of the native Ceylonese will dare even to touch the fruit on any account. Even the owner will not venture to use it till it be first liberated from the dedication."[202] On the landmarks of the ancient Babylonians, generally consisting of stone pillars in the form of a phallus, imprecations were inscribed with appeals to various deities. One of these boundary stones contains the following curse directed against the violator of its sacredness:--"Upon this man may the great gods Anu, Bêl, Ea, and Nusku, look wrathfully, uproot his foundation, and destroy his offspring"; and similar invocations are then made to many other gods.[203]

[Footnote 196: Supra, i. 564.]

[Footnote 197: Jour. African Soc. 110 xviii. January, 1906, p. 203.]

[Footnote 198: Turner, Samoa, p. 19. Idem, Nineteen Years in Polynesia, p. 292 sq.]

[Footnote 199: Jarves, History of the Hawaiian Islands, p. 20.]

[Footnote 200: Rouse, Greek Votive Offerings, p. 339.]

[Footnote 201: Codrington, op. cit. p. 215.]

[Footnote 202: Percival, Account of the Island of Ceylon, p. 198.]

[Footnote 203: Trumbull, The Threshold Covenant, p. 166 sq. Hilprecht, quoted ibid. p. 167 sqq.]

Now we can understand why gods so frequently take notice of offences against property. They are invoked in curses uttered against thieves; the invocation in a curse easily develops into a genuine prayer, and where this is the case the god is supposed to punish the offender of his own free will. Besides, he may be induced to do so by offerings. And when often appealed to in connection with theft, a supernatural being may finally come to be looked upon as a guardian of property. This, for instance, I take to be the explanation of the belief prevalent among the Berbers {68} of [H.]a[h.]a, in Southern Morocco, that some of the local saints punish thieves who approach their sanctuaries, even though the theft was committed elsewhere; being constantly appealed to in oaths taken by persons suspected of theft, they have become the permanent enemies of thieves. We can, further, understand why in some cases certain offences against property have actually assumed the character of a sacrilege, even apart from such as are committed in the proximity of a supernatural being. Curses are sometimes personified and elevated to the rank of divine agents; this, as we have seen, is the origin of the Erinyes of parents, beggars, and strangers, and of the Roman divi parentum and dii hospitales; and this is also in all probability the origin of the god Terminus.[204] Or the curse may be transformed into an attribute of the chief god, not only because he is frequently appealed to in connection with offences of a certain kind, but also because such a god has a tendency to attract supernatural forces which are in harmony with his general nature. This explains the origin of conceptions such as Zeus [Greek: o(/rios] and Jupiter Terminalis, as well as the extreme severity with which Yahweh treated the removal of landmarks. In all these cases there are indications of a connection between the god and a curse. Apart from other evidence to be found in Semitic antiquities, there is the anathema of Deuteronomy, "Cursed be he that removeth his neighbour's landmark."[205] That the boundary stones dedicated to Zeus [Greek: o(/rios] were originally charged with imprecations appears from a passage in Plato's 'Laws' quoted above,[206] as also from inscriptions made on them.[207] The Etruscans cursed anyone

who should touch or displace a boundary mark:--Such a person shall be condemned by the gods; his house shall disappear; his race shall be extinguished; his limbs shall be covered with ulcers and waste away; his land shall no longer produce {69} fruits; hail, rust, and the fires of the dog-star shall destroy his harvests.[208] Considering the important part played by blood as a conductor of imprecations, it is not improbable that the Roman ceremony of letting the blood of a sacrificial animal flow into the hole where the landmark was to be placed[209] was intended to give efficacy to a curse. In some parts of England a custom of annually "beating the bounds" of a parish has survived up to the present time, and this ceremony was formerly accompanied by religious services, in which a clergyman invoked curses on him who should transgress the bounds of his neighbour, and blessings on him who should regard the landmarks.[210]

[Footnote 204: Cf. Festus, op. cit. 'Termino':--"Numa Pompilius statuit eum, qui terminum exarasset, et ipsum, et boves sacros esse."]

[Footnote 205: Deuteronomy, xxvii. 17. Cf. Genesis, xxxi. 44 sqq.]

[Footnote 206: Plato, Leges, viii. 843: ". . . [Greek: ê)\n smikron li/thon o(ri/zonta philai/n kai\ e)/chthran e)/norkon para\ theô=n.]"]

[Footnote 207: Xenophon, Anabasis, v. 3. 13. Hermann, Disputatio de terminis apud Græcos, p. 11.]

[Footnote 208: Rei agrariæ auctores legesque variæ, edited by G[oe]sius, p. 258 sq.]

[Footnote 209: Siculus Flaccus, 'De conditionibus agrorum,' in Rei agrariæ auctores, p. 5.]

[Footnote 210: Dibbs, 'Beating the Bounds,' in Chambers's Edinburgh Journal, N.S. xx. (1853) 49 sqq. Trumbull, The Threshold Covenant, p. 174 sq.]

The practice of cursing a thief may possibly even be at the bottom of the belief of some savages that such a person will be punished after death. In a following chapter we shall notice instances where the efficacy of a curse is supposed to extend beyond the grave. But we shall also find other reasons for savage doctrines of retribution in the world to come. In the cases referred to above it is not expressly said that the post mortem punishment of the thief is inflicted by a god.

* * * * *

I have here only dealt with rules relating to property which have been recognised by custom or law. But the established principles of ownership have not always been admitted to be just: in the civilised countries of the West they have called forth an opposition which is rapidly gaining in strength. The limited scope of the present work does not allow me to attempt a detailed account of this movement, with its variety of arguments and its multitudinous schemes of reform. The main reasons for complaint are:--first, that our actual law of property does not ensure to every labourer the whole produce of his labour; secondly, that it does not provide for every want {70} a satisfaction proportionate to the available means. However much the opinions of the different schools of socialists may vary, every socialist organisation of property aims either at guaranteeing to the working-classes the entire product of their industry, or at reducing to just proportions individual needs and existing means of satisfaction by recognising the claim of every member of society to the commodities and services necessary to support existence, in preference to the satisfaction of the less pressing wants of others.[211] These aims are greatly hampered by the present system, in which land and capital are the property of private individuals freely struggling for increase of wealth, and especially by the legally recognised existence of unearned income[212]--the "rent" of the Saint-Simonians, the "surplus value" (Mehrwert) of Thompson and Marx,--for which the favoured recipient returns no personal equivalent to society, and which he

is able to pocket because the wage labourer receives in money-wages less than the full value of the produce of his work. We have here a conflict between different principles of acquisition. Both the rule that the owner of a thing also owns what results from it, and the law of inheritance, leading as they do to unearned income, are intruding upon the principle of labour as a source of property. They, moreover, interfere with the right to subsistence, which in some measure, though often insufficiently, is recognised in all human societies;[213] for, as Marx observed, the accumulation of wealth at one pole means the accumulation of misery at the opposite pole.[214] This conflict between different principles or rights, all of which have deep foundations in human nature and the conditions of social life, has been brought about by certain {71} facts inherent in progressive civilisation. In simple societies the unearned income is small, because no fortunes exist, and the wants of those who are incapable of earning their own livelihood are provided for by the system of mutual aid. Progress in culture, on the other hand, has been accompanied by a more unequal distribution of wealth, and also by a decrease of social solidarity as a result of the increase and greater differentiation of the social unit. The unearned income has grown larger, the disproportion between the returns on capital and the reward for labour has in many cases become enormous, and hand in hand with the opulence of some goes the destitution of others. At the same time the injustice of prerogatives based on birth or fortune is keenly felt, the dignity of labour is recognised, and the working-classes are every day becoming more conscious both of their power and their rights. All this has resulted in a strong and wide-spread conviction that the actual law of property greatly differs from the ideal law. But much struggle will no doubt be required to bring them in harmony with one another. The present rights of property are supported not only by personal interests, but also by a deep-rooted feeling, trained in the school of tradition, that it would be iniquitous of the State to interfere with individuals' long-established claims to use at their pleasure the objects of wealth. The new scheme, on the other hand, derives strength from the fact that it aims at rectifying legal rights in accordance with existing needs, and that it lays stress on a method of acquisition which more than any other seems to appeal to the natural sense of justice in man. We are utterly unable to foresee in detail the issue of this struggle. But that the law of property will sooner or later undergo a radical change must be obvious to every one who realises that, though ideas of right and wrong may for some time outlive the conditions from which they sprang, they cannot do so for ever.

[Footnote 211: See Menger, Right to the whole Produce of Labour, p. 5 sqq., Goos, op. cit. ii. 61.]

[Footnote 212: The term "unearned income" (arbeitsloses Einkommen) has been proposed by Menger (op. cit. p. 3).]

[Footnote 213: See supra, ch. xxiii., vol. i. 526 sqq. Among the Eskimo about Behring Strait (Nelson, in Ann. Rep. Bur. Ethn. xviii. 294) and the Greenlanders (Rink, Eskimo Tales, p. 29 sq.), if a man borrows an article from another and fails to return it, the owner is not entitled to claim it back, as they consider that when a person has enough property to enable him to lend some of it he has more than he needs.]

[Footnote 214: Marx, Capital, p. 661.]

Chapter XXX — The Regard For Truth and Good Faith

THE regard for truth implies in the first place that we ought to abstain from lying, that is, a wilful misrepresentation of facts, by word or deed, with the intention of producing a false belief. Closely connected with this duty is that of good faith or fidelity to promises, which requires that we should make facts correspond with our emphatic assertions as to our conduct in the future. Within certain limits these duties seem to be universally recognised, though the censure passed on the transgressor varies extremely in degree. But there are also many cases in which untruthfulness and bad faith are looked upon with indifference, or even held laudable or obligatory.

Various uncivilised races are conspicuous for their great regard for truth; of some savages it is said that not even the most trying circumstances can induce them to tell a lie. Among others, again, falsehood is found to be a prevailing vice and the successful lie a matter of popular admiration.

All authorities agree that the Veddahs of Ceylon are models of veracity. They "are proverbially truthful and honest."[1] They think it perfectly inconceivable that any person should say anything which is not true.[2] Mr. Nevill writes, "I never knew a true Vaedda to tell a lie, and the Sinhalese give them the same character."[3] Messrs. Sarasin had a similar experience:{73}--"The genuine Wood-Wedda always speaks the truth; we never heard a lie from any of them; all their statements are short and true."[4] A Veddah who had committed murder and was tried for it, instead of telling a lie in order to escape punishment, said simply nothing.[5]

[Footnote 1: Bailey, 'Wild Tribes of the Veddahs of Ceylon,' in Trans. Ethn. Soc. N.S. ii. 291.]

[Footnote 2: Hartshorne, in Indian Antiquary, viii. 320.]

[Footnote 3: Nevill, in Taprobanian, i. 193.]

[Footnote 4: Sarasin, Forschungen auf Ceylon, iii. 541. Cf. ibid. iii. 542 sq.; Schmidt, Ceylon, p. 276.]

[Footnote 5: Sarasin, op. cit. iii. 543.]

Other instances of extreme truthfulness are provided by various uncivilised tribes in India. The Saoras of the province of Madras, "like most of the hill people, . . . are not inclined to lying. If one Saora kill another he admits it at once and tells why he killed him."[6] The highlander of Central India is described as "the most truthful of beings, and rarely denies either a money obligation or a crime really chargeable against him."[7] A true Gond "will commit a murder, but he will not tell a lie."[8] The Kandhs, says Macpherson, "are, I believe, inferior in veracity to no people in the world. . . . It is in all cases imperative to tell the truth, except when deception is necessary to save the life of a guest."[9] And to break a solemn pledge of friendship is, in their opinion, one of the greatest sins a man can commit.[10] The Korwás inhabiting the highlands of Sirgúja--though they show great cruelty in committing robberies, putting to death the whole of the party attacked, even when unresisting--"have what one might call the savage virtue of truthfulness to an extraordinary degree, and, rightly accused, will at once confess and give you every required detail of the crime."[11] The Santals are noted for veracity and fidelity to their word even in the most trying circumstances.[12] A Kurubar "always speaks the truth."[13] Among the Hos "a reflection on a man's honesty or veracity may be sufficient to send him to self-destruction."[14] Among the Angami Nagas simple truth is highly regarded; it is rare for a statement to be made on oath,

and rarer still for it to be false.[15] In the Chittagong Hills the Tipperahs are the only people among whom Captain Lewin {74} has met with meanness and lying;[16] and they, too, have previously been said to be, "as a rule, truthful and simple-minded.**"[17] The Karens of Burma have the following traditional precept:--"Do not speak falsehood. What you do not know, do not speak. Liars shall have their tongues cut out."[18] Among the Bannavs of Cambodia "severe penalties, such as slavery or exile, are imposed for lying."[19]

[Footnote 6: Fawcett, Saoras, p. 17.]

[Footnote 7: Forsyth, Highlands of Central India, p. 164. Cf. ibid. p. 361; Sleeman, Rambles and Recollections of an Indian Official, ii. 109; Hislop, Aboriginal Tribes of the Central Provinces, p. 1.]

[Footnote 8: Dalton, Ethnology of Bengal, p. 284. Cf. Forsyth, op. cit. p. 155.]

[Footnote 9: Macpherson, 'Religious Opinions and Observances of the Khonds,' in Jour. Roy. Asiatic Soc. vii. 196.]

[Footnote 10: Macpherson, Memorials of Service in India, p. 94.]

[Footnote 11: Dalton, op. cit. p. 230.]

[Footnote 12: Elliot, 'Characteristics of the Population of Central and Southern India,' in Jour. Ethn. Soc. London, N.S. i. 106 sq.]

[Footnote 13: Ibid. i. 105.]

[Footnote 14: Dalton, op. cit. p. 206. Cf. ibid. p. 204 sq.; Bradley-Birt, Chota Nagpore, p. 103.]

[Footnote 15: Prain, 'Angami Nagas,' in Revue coloniale internationale, v. 490.]

[Footnote 16: Lewin, Wild Races of South-Eastern India, p. 191.]

[Footnote 17: Browne, quoted by Dalton, op. cit. p. 110.]

[Footnote 18: Smeaton, Loyal Karens of India, p. 254.]

[Footnote 19: Comte, quoted by Mouhot, Travels in Indo-China, Cambodia, and Laos, ii. 27. For the truthfulness of the uncivilised races of India see also Sleeman, op. cit. ii. 110 sqq.; Dalton, op. cit. p. 256 (Oraons); Crooke, Tribes and Castes of the North-Western Provinces, ii. 478 (Hâbûra); Fraser, Tour through the Him[=a]l[=a] Mountains, pp. 264 (inhabitants of Kunawur), 335 (Bhoteas); Iyer, in the Madras Government Museum's Bulletin, iv. 73 (Nay[=a]dis of Malabar); Walhouse, 'Account of a Leaf-wearing Tribe on the Western Coast of India,' in Jour. Anthr. Inst. iv. 370 (Koragars).]

The Andaman Islanders call falsehood y[=u]bda, that is, sin or wrong-doing.[20] The natives of Car Nicobar are not only very honest,[21] but "the accusation of untruthfulness brings them up in arms immediately."[22] The Dyaks of Borneo are praised for their honesty and great regard for truth.[23] Mr. Bock states that if they could not satisfactorily reply to his questions they hesitated to answer at all, and that if he did not always get the whole truth he always got at least nothing but the truth from them.[24] Veracity is a characteristic of the Alfura of Halmahera[25] and the Bataks of Sumatra, who only in cases of urgent necessity have recourse to a lie.[26] The Javanese, says Crawfurd, "are honourably distinguished from all the civilised nations of Asia by a regard for truth."[27] "In their intercourse with society," Raffles observes, "they display, in a high degree, the virtues of honesty, plain dealing, and candour. Their ingenuousness is such that, as the first Dutch authorities have acknowledged, prisoners brought to the bar on criminal charges, if really guilty, nine times out of ten confess, without disguise or equivocation, the full extent and exact circumstances of their offences, and communicate, when required, more information on the matter at issue than all the rest of the evidence."[28] Among the natives {75} of the Malay Archipelago there are some further instances of trustworthy and truthful peoples;[29] whereas others are described

as distrustful and regardless of truth.[30] Thus the natives of Timor-laut lie without compunction when they think they can escape detection,[31] and of the Niase it is said that "truth is their bitter enemy."[32]

[Footnote 20: Man, in Jour. Anthr. Inst. xii. 112.]

[Footnote 21: Distant, in Jour. Anthr. Inst. iii. 4.]

[Footnote 22: Kloss, In the Andamans and Nicobars, p. 227 sq.]

[Footnote 23: Ling Roth, Natives of Sarawak, i. 66-68, 82. Boyle, Adventures among the Dyaks of Borneo, p. 215. Selenka, Sonnige Welten, p. 47.]

[Footnote 24: Bock, Head-Hunters of Borneo, p. 209.]

[Footnote 25: Kükenthal, Forschungsreise in den Molukken, p. 188.]

[Footnote 26: Junghuhn, Battaländer auf Sumatra, ii. 239.]

[Footnote 27: Crawfurd, History of the Indian Archipelago, i. 50.]

[Footnote 28: Raffles, History of Java, i. 248.]

[Footnote 29: Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 96 (Serangese). St. John, Life in the Forests of the Far East, ii. 322 (Malays of Sarawak).]

[Footnote 30: Marsden, History of Sumatra, p. 209 (natives of the interior of Sumatra). Riedel, op. cit. p. 314 (natives of the Luang-Sermata group). Steller, De Sangi-Archipel, p. 23.]

[Footnote 31: Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 320.]

[Footnote 32: Modigliani, Viaggio a Nías, p. 467.]

Veracity and probity were conspicuous virtues among various uncivilised peoples belonging to the Russian Empire. Georgi, whose work dates from the eighteenth century, says of the Chuvashes that they "content themselves with a simple affirmation or denial, and always keep their word";[33] of the Barabinzes, that "lying, duplicity, and fraud, are unknown among them";[34] of the Tunguses, that they "always appear to be what they really are," and that "lying seems to them the absurdest thing in the world, which prevents them being either suspicious or necessitated to accompany their affirmations by oaths or solemn protestations";[35] of the Kurilians, that they always speak the truth "with the most scrupulous fidelity."[36] Castrén states that the Zyrians, like the Finnish tribes generally, are trustworthy and honest,[37] and that the Ostyaks have no other oaths but those of purgation. Among them "witnesses never take the oath, but their words are unconditionally believed in, and everybody, with the exception of lunatics, is allowed to give evidence. Children may witness against their parents, brothers against brothers, a husband against his wife, and a wife against her husband."[38]

[Footnote 33: Georgi, Russia, i. 110.]

[Footnote 34: Ibid. ii. 229.]

[Footnote 35: Ibid. iii. 78. Cf. ibid. iii. 109.]

[Footnote 36: Ibid. iii. 192. Cf. Krasheninnikoff, History of Kamschatka, p. 236.]

[Footnote 37: Castrén, Nordiska resor och forskningar, i. 257.]

[Footnote 38: Ibid. i. 309 sq.]

The Aleuts were highly praised by Father Veniaminof for their truthfulness:--"These people detest lying, and never spread false rumours. . . . They are very much offended if any one doubts their word." They "despise hypocrisy in every respect," and "do not flatter nor make empty promises, even in order to escape reproof."[39] The regard in which truth is held by the Eskimo seems to vary among different tribes. Armstrong blames the Western Eskimo for being much {76} addicted to falsehood, and for seldom telling the truth, if there be anything to gain by a lie.[40] The Point Barrow Eskimo "are in the main truthful, though a detected lie is hardly considered more than a good

joke, and considerable trickery is practised in trading."[41] Of the Eskimo at Igloolik, an island near Melville Peninsula, we are told that "their lies consist only of vilifying each other's character, with false accusations of theft or ill behaviour. When asking questions of an individual, it is but rarely that he will either advance or persist in an untruth. . . . Lying among them is almost exclusively confined to the ladies."[42] In his description of the Eskimo on the western side of Davis Strait and in the region of Frobisher Bay, Mr. Hall says that they despise and shun one who will shag-la-voo, that is, "tell a lie," and that they are rarely troubled by any of this class.[43] The Greenlanders are generally truthful towards each other, at least the men.[44] But if he can help it, a Greenlander will not tell a truth which he thinks may be unpleasant to the hearer, as he is anxious to stand on as good a footing as possible with his fellow-men.[45]

[Footnote 39: Veniaminof, quoted by Dall, Alaska, pp. 396, 395.]

[Footnote 40: Armstrong, Discovery of the North-West Passage, p. 196 sq.]

[Footnote 41: Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 41.]

[Footnote 42: Lyon, Private Journal during the Voyage of Discovery under Captain Parry, p. 349.]

[Footnote 43: Hall, Arctic Researches, p. 567.]

[Footnote 44: Dalager, Grønlandske Relationer, p. 69. Cranz, History of Greenland, i. 171, 175. Nansen, Eskimo Life, p. 158.]

[Footnote 45: Nansen, Eskimo Life, p. 101. Idem, First Crossing of Greenland, ii. 334 sq.]

The Thompson River Indians of British Columbia maintain that it is bad to lie, that if you do so people will laugh at you and call you a "liar."[46] Speaking of the Iroquois, Mr. Morgan says that the love of truth was a marked trait of the Indian character. "This inborn sentiment flourished in the period of their highest prosperity, in all the freshness of its primeval purity. On all occasions and at whatever peril, the Iroquois spoke the truth without fear and without hesitation. Dissimulation was not an Indian habit. . . . The Iroquois prided themselves upon their sacred regard for the public faith, and punished the want of it with severity when an occasion presented itself."[47] Loskiel likewise states that they considered lying and cheating heinous and scandalous offences.[48] Among the Chippewas there were a few persons addicted to lying, but these {77} were held in disrepute.[49] The Shoshones, a tribe of the Snake Indians, were frank and communicative in their intercourse with strangers, and perfectly fair in their dealings.[50] The Seminole Indians of Florida are commended for their truthfulness.[51] With special reference to the Navahos, Mr. Matthews observes, "As the result of over thirty years' experience among Indians, I must say that I have not found them less truthful than the average of our own race."[52] Among the Dacotahs lying "is considered very bad"; yet in this respect "every one sees the mote in his brother's eye, but does not discover the beam that is in his own,"[53] want of truthfulness and habitual dishonesty in little things being prevalent traits in their character.[54] So, also, the Thlinkets admit that falsehood is criminal, although they have recourse to it without hesitation whenever it suits their purpose.[55] Of the Chippewyans, again, it is said that they carry the habit of lying to such an extent, even among themselves, that they can scarcely be said to esteem truth a virtue.[56] The Crees are "not very strict in their adherence to truth, being great boasters."[57] Heriot[58] and Adair[59] speak of the treacherous or deceitful disposition of the North American Indians; but the latter adds that, though "privately dishonest," they are "very faithful indeed to their own tribe."

[Footnote 46: Teit, 'Thompson Indians of British Columbia,' in Memoirs of the American Museum of Natural History, Anthropology, i. 366.]

[Footnote 47: Morgan, League of the Iroquois, pp. 335, 338.]

[Footnote 48: Loskiel, History of the Mission of the United Brethren among the Indians in North America, i. 16.]

[Footnote 49: Keating, Expedition to the Source of St. Peter's River, ii. 168.]

[Footnote 50: Lewis and Clarke, Travels to the Source of the Missouri River, p. 306.]

[Footnote 51: Maccauley, 'Seminole Indians of Florida,' in Ann. Rep. Bur. Ethn. v. 491.]

[Footnote 52: Matthews, 'Study of Ethics among the Lower Races,' in Jour. of American Folk-Lore, xii. 5.]

[Footnote 53: Schoolcraft, Indian Tribes of the United States, ii. 196.]

[Footnote 54: Eastman, Dacotah, p. xvii.]

[Footnote 55: Douglas, quoted by Petroff, Report on Alaska, p. 177.]

[Footnote 56: Richardson, Arctic Searching Expedition, ii. 18. Cf. ibid. ii. 19.]

[Footnote 57: Richardson, in Franklin, Journey to the Shores of the Polar Sea, p. 63.]

[Footnote 58: Heriot, Travels through the Canadas, p. 319.]

[Footnote 59: Adair, History of the American Indians, p. 4.]

Of the regard in which truth is held by the Indians of South America the authorities I have consulted have little to say. The Coroados are not deceitful.[60] The Tehuelches of Patagonia nearly always lie in minor affairs, and will invent stories for sheer amusement. "In anything of importance, however, such as guaranteeing the safety of a person, they were very truthful, as long as faith was kept with them. After a time," Lieutenant Musters adds, "when they ascertained that I invariably avoided deviating in any way from the truth, they left off lying to me even in minor matters. This will serve to show that they are not of the treacherous nature assigned to {78} them by some ignorant writers."[61] Among the Fuegians, according to Mr. Bridge, no one can trust another, lying tales of slander are very common, great exaggeration is used, and it is not even considered wrong to tell a lie.[62] Snow, however, speaks of "the honesty they undoubtedly evince in many of their transactions";[63] and Darwin states that the Fuegian boy on board the Beagle "showed, by going into the most violent passion, that he quite understood the reproach of being called a liar, which in truth he was."[64]

[Footnote 60: von Spix and von Martius, Travels in Brazil, ii. 242.]

[Footnote 61: Musters, At Home with the Patagonians, p. 195 sq.]

[Footnote 62: Bridges, in A Voice for South America, xiii. 202 sq. Cf. Hyades and Deniker, Mission scientifique du Cap Horn, vii. 242; King and Fitzroy, Voyages of the "Adventure" and "Beagle," ii. 188.]

[Footnote 63: Snow, Two Years Cruise off Tierra del Fuego, i. 347.]

[Footnote 64: Darwin, Journal of Researches, p. 227.]

Of the Australian aborigines we are told that some tribes and families display on nearly all occasions honesty and truthfulness, whereas others "seem almost destitute of the better qualities."[65] According to Mr. Mathew, they are not wantonly untruthful, although one can rely on them being faithful to a trust only on condition that they are exempt from strong temptation.[66] Mr. Curr admits that under some circumstances they are treacherous, and that it costs them little pain to lie; but from his own observations he has no doubt that the black feels, in the commencement of his career at least, that lying is wrong.[67] Mr. Howitt has found the South Australian Kurnai "to compare not unfavourably with our own people in their narration of occurrences, or as witnesses in courts of justice as to facts. Among them a person known to disregard truth is branded as a liar (jet-bolan)."[68] Among the aborigines of New South Wales people

who cause strife by lying are punished, and "liars are much disliked"; Dr. Fraser was assured by a person who had had much intercourse with them for thirty years that he never knew them to tell a lie.[69] Among the tribes of Western Victoria described by Mr. Dawson liars are detested; should any man, through lying, get others into trouble, he is punished with the boomerang, whilst women and young people, for the same fault, are beaten with a stick.[70] In his description of his expeditions into Central Australia Eyre writes, "In their intercourse with each other I {79} have generally found the natives to speak the truth and act with honesty, and they will usually do the same with Europeans if on friendly terms with them."[71] With regard to West Australian tribes Mr. Chauncy states that they are certainly not remarkable for their treachery, and that he has very seldom known any of them accused of it. He adds that they are "habitually honest among themselves, if not truthful," and that, during his many years' acquaintance with them, he does not remember ever hearing a native utter a falsehood with a definite idea of gaining anything by it. "If questioned on any subject, he would form his reply rather with the view of pleasing the enquirer than of its being true; but this was attributable to his politeness."[72] According to a late Advocate-General of West Australia, "when a native is accused of any crime, he often acknowledges his share in the transaction with perfect candour."[73] Very different from these accounts is Mr. Gason's statement concerning the Dieyerie in South Australia. "A more treacherous race," he says, "I do not believe exists. They imbibe treachery in infancy, and practise it until death, and have no sense of wrong in it. . . . They seem to take a delight in lying, especially if they think it will please you. Should you ask them any question, be prepared for a falsehood, as a matter of course. They not only lie to the white man, but to each other, and do not appear to see any wrong in it."[74] The natives of Botany Bay and Port Jackson in New South Wales are by older writers described as no strangers to falsehood.[75] And speaking of a tribe in North Queensland, Mr. Lumholtz observed that "an Australian native can betray anybody," and that "there is not one among them who will not lie if it is to his advantage."[76]

[Footnote 65: Brough Smyth, Aborigines of Victoria, i. 25.]

[Footnote 66: Mathew, 'Australian Aborigines,' in Jour. and Proceed. Roy. Soc. N.S. Wales, xxiii. 387.]

[Footnote 67: Curr, Australian Race, i. 43, 100.]

[Footnote 68: Fison and Howitt, Kamilaroi and Kurnai, p. 256.]

[Footnote 69: Fraser, Aborigines of New South Wales, pp. 41, 90.]

[Footnote 70: Dawson, Australian Aborigines, p. 76.]

[Footnote 71: Eyre, Expeditions of Discovery into Central Australia, ii. 385.]

[Footnote 72: Chauncy, quoted by Brough Smyth, op. cit. ii. 275, 281. Cf. Oldfield, 'Aborigines of Australia,' in Trans. Ethn. Soc. N.S. iii. 255.]

[Footnote 73: Moore, quoted by Brough Smyth, op. cit. ii. 278.]

[Footnote 74: Gason, 'Dieyerie Tribe of Australian Aborigines,' in Woods, Native Tribes of South Australia, p. 257 sq.]

[Footnote 75: Collins, English Colony in New South Wales, i. 600. Barrington, History of New South Wales, p. 22.]

[Footnote 76: Lumholtz, Among Cannibals, p. 100.]

According to Mr. Hale, the Polynesians are not naturally treacherous, by no means from a horror of deception, but apparently from a mere inaptitude at dissembling; and it is said that the word of a Micronesian may generally be relied upon.[77] To the Tonga Islanders a false accusation appeared more horrible than deliberate murder does to us, and they also put this {80} principle into practice.[78] We are told by Polack that among

the Maoris of New Zealand lying is universally practised by all classes, and that an accomplished liar is accounted a man of consummate ability.[79] But Dieffenbach found that, if treated with honesty, they were always ready to reciprocate such treatment; [80] and, according to another authority, they believed in an evil spirit whom they said was "a liar and the father of lies."[81] The broad statement made by von Jhering, that among the South Sea Islanders lying is regarded as a harmless and innocent play of the imagination,[82] is certainly not correct. The treacherous disposition attributed to the Caroline Islanders[83] and the natives of New Britain[84] does not imply so much as that. The New Caledonians are, comparatively speaking, "not naturally dishonest."[85] The Solomon Islanders are praised as faithful and reliable workmen and servants,[86] though cheating in trade is nowadays very common among some of them.[87] Of the people of Erromanga, in the New Hebrides, the Rev. H. A. Robertson states that "truth, in heathenism, was told only when it suited best, but," he adds, "it is not that natives are always reckless about the truth so much as that they seem utterly incapable of stating anything definitely, or stating a thing just as it really occurred."[88] In the opinion of some authorities, the Fijians are very untruthful and regard adroit lying as an accomplishment.[89] Their propensity to lie, says the missionary Williams, "is so strong that they seem to have no wish to deny its existence, or very little shame when convicted of a falsehood." The universal prevalence of the habit of lying is so thoroughly taken for granted, "that it is common to hear, after the most ordinary statement, the rejoinder, 'That's a lie,' or something to the same effect, at which the accused person does not think of taking offence." But the same writer adds:--"Natives have often told me lies, manifestly without any ill-will, and when it would have been far more to their advantage to have spoken the truth. The Fijians hail as agreeable companions those who are {81} skilful in making tales, but, under some circumstances, strongly condemn the practice of falsehood. . . . On matters most lied about by civilised people, the native is the readiest to speak the truth. Thus, when convicted of some offence, he rarely attempts to deny it, but will generally confess all to any one he esteems. . . . The following incident shows that lying per se is condemned and considered disreputable. A white man, notorious for falsehood, had displeased a powerful chief, and wrote asking me to intercede for him. I did so; when the chief dismissed the case briefly, saying, 'Tell--that no one hates a foreigner; but tell him that every one hates a liar!'"[90] Other writers even deny that the Fijians were habitual liars;[91] and Erskine found that those chiefs with whom he had to deal were so open to appeals to their good faith as to convince him "that they had a due appreciation of the virtue of truth."[92]

[Footnote 77: Hale, U.S. Exploring Expedition, Vol. VI. Ethnography and Philology, pp. 16, 73.]

[Footnote 78: Mariner, Natives of the Tonga Islands, ii. 163 sq.]

[Footnote 79: Polack, Manners and Customs of the New Zealanders, ii. 102 sq. See also Colenso, Maori Races of New Zealand, pp. 44, 46.]

[Footnote 80: Dieffenbach, Travels in New Zealand, ii. 109.]

[Footnote 81: Yate, Account of New Zealand, p. 145.]

[Footnote 82: von Jhering, Der Zweck im Recht, ii. 606.]

[Footnote 83: Angas, Polynesia, p. 386.]

[Footnote 84: Powell, Wanderings in a Wild Country, p. 262.]

[Footnote 85: Anderson, Travel in Fiji and New Caledonia, p. 233.]

[Footnote 86: Parkinson, Zur Ethnographie der nordwestlichen Salomo Inseln, p. 4.]

[Footnote 87: Sommerville, 'Ethnogr. Notes in New Georgia,' in Jour. Anthr. Inst. xxvi. 393.]

[Footnote 88: Robertson, Erromanga, p. 384 sq.]

[Footnote 89: Wilkes, U.S. Exploring Expedition, iii. 76.]

[Footnote 90: Williams and Calvert, Fiji, p. 107 sq.]

[Footnote 91: Erskine, Cruise among the Islands of the Western Pacific, p. 264. Anderson, Travel in Fiji and New Caledonia, p. 130.]

[Footnote 92: Erskine, op. cit. p. 264.]

Nowhere in the savage world is truth held in less estimation than among many of the African races. The Negroes are described as cunning and liars by nature.[93] They "tell a lie more readily than they tell the truth," and falsehood "is not recognised amongst them as a fault."[94] They lie not only for the sake of gaining some advantage by it, or in order to please or amuse, but their lies are often said to be absolutely without purpose.[95] Of the natives of the Gold Coast the old traveller Bosman says, "The Negroes are all, without exception, crafty, villainous and fraudulent, and very seldom to be trusted, being sure to slip no opportunity of cheating an European, nor indeed one another."[96] Among all the Bakalai tribes "lying is thought an enviable accomplishment."[97] The Bakongo, in their answers, "will generally try and tell the questioner what they think will please him most, quite ignoring the truthfulness we consider it necessary to observe in our replies."[98] Miss Kingsley's experience of West African natives is likewise that they "will say 'Yes' to any mortal thing, if they think you want them to."[99] The Wakamba are described as great liars.[100] {82} Among the Waganda "truth is held in very low estimation, and it is never considered wrong to tell lies; indeed, a successful liar is considered a smart, clever fellow, and rather admired."[101] Untruthfulness is said to be "a national characteristic" of the tribes inhabiting the region of Lake Nyassa.[102] From his experience of the Eastern Central Africans, the Rev. D. Macdonald writes: "'Telling lies' is much practised and is seldom considered a fault. . . . The negro often thinks that he is flattered by being accused of falsehood. So, when natives wish to pay a high compliment to a European who has told them an interesting story, they look into his face and say, 'O father, you are a great liar.'"[103] To the Wanika, says Mr. New, lying is "almost as the very breath of their nostrils, and all classes, young and old, male and female, indulge in it. A great deal of their lying is without cause or object; it is lying for lying's sake. You ask a man his name, his tribe, where he lives, or any other simple question of like nature, and the answer he gives you will, as a rule, be the very opposite to the truth; yet he has nothing to evade or gain by so doing. Lying seems to be more natural to him than speaking the truth. He lies when detection is evident, and laughs at it as though he thought it a good joke. He hears himself called a mulongo (liar) a score of times a day, but he notices it not, for there is no opprobrium in the term to him. To hide a fault he lies with the most barefaced audacity and blindest obstinacy. . . . When his object is gain, he will invent falsehoods wholesale. . . . He boasts that ulongo (lying) is his pesa (piece, ha'pence), and holds bare truth to be the most unprofitable commodity in the world. But while he lies causelessly, objectlessly, recklessly in self-defence or for self-interest, he is not a malicious liar. He does not lie with express intent to do others harm; this he would consider immoral, and he has sufficient goodness of heart to avoid indulging therein. . . . I have often been struck with the manner in which he has controlled his tongue when the character and interest of others have been at stake."[104] If a Bantu of South-Eastern Africa "undertakes the charge of any form of property, he accounts for it with as great fidelity as if he were the Keeper of the Great Seal. But, on the other hand, there are many circumstances in which falsehood is not reckoned even a disgrace, and if a man could {83} extricate himself from difficulties by lying and did not do so, he would be simply thought a fool."[105] Andersson speaks

of the "lying habits" of the Herero.[106] Of the Bachapins, a Bechuana tribe, Burchell observes that among their vices a universal disregard for truth and a want of honourable adherence to their promise stand high above the rest, the consequence of this habitual practice of lying being "the absence of shame, even on being detected."[107] Among the Kafirs "deception is a practised art from early childhood; even the children will not answer a plain question."[108] It is considered a smart thing to deceive so long as a person is not found out, but it is awkward to be detected; hence a native father will enjoy seeing his children deceive people cleverly.[109] "In trading with them, you may make up your mind that all they tell you is untrue, and act accordingly. . . . Your own natives, on the other hand, if they like you, will lie for your benefit as strongly as the opposite party against you; and both sides think it all fair trade."[110] And in a Kafir lawsuit "defendant, plaintiff, and witnesses are allowed to tell as many lies as they like, in order to make the best of their case."[111] But we also hear that Kafirs do not tell lies to their chiefs, and that there are many among them who would never deceive a white man whom they are fond of or respect.[112] Among the Bushmans veracity is said to be too often, yet not always, disregarded, "and the neglect of it considered a mere venial offence."[113] "The first version of what a Bushman or any native has to say can never be relied on; whatever you ask him about, he invariably says first, 'I don't know,' and then promises to tell you all he does know. Ask him for news, and he says, 'No; we have got no news,' and shortly afterwards he will tell you news of perhaps great interest."[114] In Madagascar there was no stigma attached to deceit or fraud; they "were rather admired as proofs of superior cunning, as things to be imitated, so far at least as they would not bring the offender within the penalties of the native laws."[115] Ellis says that "the best sign of genius in children is esteemed a quickness to deceive, {84} overreach and cheat. The people delight in fabulous tales, but in none so much or universally as in those that relate instances of successful deceit or fraud. . . . Their constant aim is, in business to swindle, in professed friendship to extort, and in mere conversation to exaggerate and fabricate."[116] These statements refer to the Hovas; but among the Betsileo, inhabiting the same island, lying and cheating are equally rife, and "neither appears to have been thought a sin, so long as it remained undiscovered."[117] At the same time many of the Madagascar proverbs are designed to put down lying, and to show that truth is always best.[118]

[Footnote 93: Baker, Albert N'yanza, i. 289. Burton, Mission to Gelele, ii. 199.]

[Footnote 94: Reade, Savage Africa, p. 580.]

[Footnote 95: Hübbe-Schleiden, Ethiopien, Studien über West-Afrika, p. 186 sq.]

[Footnote 96: Bosman, New Description of the Coast of Guinea, p. 100.]

[Footnote 97: Du Chaillu, Explorations and Adventures in Equatorial Africa, p. 390. Cf. ibid. p. 331.]

[Footnote 98: Ward, Five Years with the Congo Cannibals, p. 47.]

[Footnote 99: Kingsley, Travels in West Africa, p. 525.]

[Footnote 100: Krapf, Travels in Eastern Africa, p. 355.]

[Footnote 101: Wilson and Felkin, Uganda, i. 224. Cf. Felkin, 'Notes on the Waganda Tribe,' in Proceed. Roy. Soc. Edinburgh, xiii. 722; Ashe, Two Kings of Uganda, p. 295.]

[Footnote 102: Macdonald, 'East Central African Customs,' in Jour. Anthr. Inst. xxii. 119.]

[Footnote 103: Macdonald, Africana, i. 262 sq.]

[Footnote 104: New, Life, Wanderings, and Labours in Eastern Africa, p. 96 sqq.]

[Footnote 105: Macdonald, Light in Africa, p. 211.]

[Footnote 106: Andersson, Lake Ngami, p. 217. Cf. ibid. p. 499 (Bayeye).]

[Footnote 107: Burchell, Travels in the Interior of Southern Africa, ii. 553 sq.]
[Footnote 108: Holden, The Past and Future of the Kaffir Races, p. 179.]
[Footnote 109: Kidd, The Essential Kafir, p. 285.]
[Footnote 110: Leslie, Among the Zulus and Amatongas, p. 199. Cf. ibid. p. 202.]
[Footnote 111: Maclean, Compendium of Kafir Laws and Customs, p. 58.]
[Footnote 112: Kidd, The Essential Kafir, p. 286.]
[Footnote 113: Burchell, op. cit. ii. 54.]
[Footnote 114: Chapman, Travels in the Interior of South Africa, i. 76 sq.]
[Footnote 115: Sibree, The Great African Island, p. 338.]
[Footnote 116: Ellis, History of Madagascar, i. 143 sq.]
[Footnote 117: Sibree, op. cit. p. 125. Shaw, 'Betsileo,' in Antananarivo Annual, iii. 79.]
[Footnote 118: Clemes, 'Malagasy Proverbs,' ibid. iv. 29.]

But in Africa, also, there are many peoples who have been described as regardful of truth and hostile to falsehood. Early travellers speak very highly of the sincerity of the Hottentots. Father Tachart says that they have more honesty than is almost anywhere found among Christians;[119] and Kolben agrees with him, asserting that the word of a Hottentot is sacred, and that there is hardly anything upon earth which he looks upon as a fouler crime than breach of engagement.[120] According to Barrow, the Hottentots are perfectly honest and faithful, and, "if accused of crimes of which they have been guilty, they generally divulge the truth."[121] Of the Manansas Dr. Holub states that, so far as his experience goes, they are beyond the average for honesty and fidelity, and are consequently laughed at by the more powerful tribes as "the simpletons of the North."[122] The Bahima in the Uganda Protectorate are usually very honest and truthful, and most of the Nandi think it very wicked to tell a lie.[123] Among the For tribe of Central Africa "lying is held to be a great crime; even the youngest children are severely beaten for it, and any one over fifteen or sixteen who is an habitual liar suffers the loss of one lip as a penalty."[124] Speaking of the natives of Sierra Leone, Winterbottom remarks that, in proportion as we advance into the interior of the country, the people are found to be more devoid of art and more free from suspicion.[125] "Those who have dealings with the Fán universally {85} prefer them in point of honesty and manliness to the Mpongwe and Coast races," and it is an insult to call one of them a liar or coward.[126] Monrad, who wrote in the beginning of the nineteenth century, asserts that among the Negroes of Accra lying is by no means common and that they are as a rule honest towards their own people.[127] According to an early authority, the people of Great Benin were very straightforward and did not cheat each other.[128] Mr. and Mrs. Hinde write that the Masai are as a race truthful, and that a grown-up person among them will not lie; "he may refuse to answer a question, but, once given, his word can be depended on."[129] Dr. Baumann, on the other hand, says that they often lie, but that they regard lying as a great fault.[130] The Guanches of the Canary Islands are stated to have been "slaves to their word."[131] Of the Berbers of Morocco Leo Africanus writes:--"Most honest people they are, and destitute of all fraud and guile. . . . They keep their couenant most faithfully; insomuch that they had rather die than breake promise."[132] M. Dyveyrier found the same virtue among the Touareg, another Berber people:--"La fidélité aux promesses, aux traités, est poussée si loin par les Touareg, qu il est difficile d'obtenir d'eux des engagements. . . . Il est de maxime chez les Touâreg, en matière de contrat, de ne s'engager que pour la moitié de ce qu'on peut tenir, afin de ne pas s'exposer au reproche d'infidélité. . . . Le mensonge, le vol domestique et l'abus de confiance sont inconnus des Touâreg."[133] As regards the truthfulness of the African Arabs opinions vary. Parkyns asks, "Who is more trust-

worthy than the desert Arab?"[134] According to Rohlfs and Chavanne, on the other hand, the Arabs of the Sahara are much addicted to lying;[135] and of the Arabs of Egypt Mr. St. John observes:--"There is no general appreciation of a man's word. . . . 'Liar' is a playful appellative scarcely reproachful; and 'I have told a lie' a confession that may be made without a blush."[136] Herodotus' statement that "the Arabs observe pledges as religiously as any people,"[137] is true of the Bedouins of Arabia in the {86} present day. "No vice or crime is more deservedly stigmatised as infamous among Bedouins than treachery. An individual in the great Arabian Desert will be forgiven if he should kill a stranger on the road, but eternal disgrace would be attached to his name, if it were known that he had robbed his companion, or his protected guest, even of a handkerchief."[138] Wallin affirms that you may put perfect trust in the promise of a Bedouin, as soon as you have eaten salt and bread with him.[139] But whilst faithfulness to a tacit or express promise is thus regarded by him as a sacred duty, lying and cheating are as prevalent in the desert as in the market-towns of Syria.[140] Speaking of the Bedouins of the Euphrates, Mr. Blunt observes:--"Truth, in ordinary matters, is not regarded as a virtue by the Bedouins, nor is lying held shameful. Every man, they say, has a right to conceal his own thought. In matters of importance, the simple affirmation is confirmed by an oath, and then the fact stated may be relied on. There is only one exception to the general rule of lying among them. The Bedouin, if questioned on the breed of his mare, will not give a false answer. He may refuse to say, or he may answer that he does not know; but he will not name another breed than that to which she really belongs. . . . The rule, however, does not hold good on any other point of horse dealing. The age, the qualities, and the ownership of the horse may be all falsely stated."[141]

[Footnote 119: Tachart, quoted by Kolben, Present State of the Cape of Good Hope, i. 167.]

[Footnote 120: Ibid. i. 59.]

[Footnote 121: Barrow, Travels into the Interior of Southern Africa, i. 151 sq.]

[Footnote 122: Holub, Seven Years in South Africa, ii. 209.]

[Footnote 123: Johnston, Uganda Protectorate, ii. 630, 879.]

[Footnote 124: Felkin, in Proceed. Roy. Soc. Edinburgh, xiii. 232.]

[Footnote 125: Winterbottom, Account of the Native Africans in the Neighbourhood of Sierra Leone, i. 206 sq.]

[Footnote 126: Burton, Two Trips to Gorilla Land, i. 225 sq.]

[Footnote 127: Monrad, Guinea-Kysten og dens Indbyggere, p. 6.]

[Footnote 128: Quoted by Ling Roth, Great Benin, p. 45.]

[Footnote 129: Hinde, The Last of the Masai, p. 34.]

[Footnote 130: Baumann, Durch Massailand, p. 165.]

[Footnote 131: Bory de St. Vincent, Essais sur les Isles Fortunées, p. 70.]

[Footnote 132: Leo Africanus, History and Description of Africa, i. 183.]

[Footnote 133: Dyveyrier, Exploration du Sahara, p. 384 sq.]

[Footnote 134: Parkyns, Life in Abyssinia, ii. 182.]

[Footnote 135: Chavanne, Die Sahara, p. 392.]

[Footnote 136: St. John, Adventures in the Lybian Desert, p. 31.]

[Footnote 137: Herodotus, iii. 8.]

[Footnote 138: Burckhardt, Notes on the Bedouins and Wahábys, p. 190 sq.]

[Footnote 139: Wallin, Reseanteckningar från Orienten, iii. 116.]

[Footnote 140: Burckhardt, op. cit. p. 104 sq. Cf. Wallin, op. cit. iv. 89 sq.; Doughty, Arabia Deserta, i. 241.]

[Footnote 141: Blunt, Bedouin Tribes of the Euphrates, ii. 203 sq. Cf. Niebuhr, Travels through Arabia, ii. 302:--"There is no instance of false testimony given in respect to the descent of a horse. Every Arabian is persuaded that himself and his whole family would be ruined, if he should prevaricate in giving his oath in an affair of such consequence."]

Various statements of travellers thus directly contradict the common opinion that want of truthfulness is mostly a characteristic of uncivilised races.[142] And we have much reason to assume that a foreigner visiting a savage tribe is apt rather to underrate than to overestimate its veracity. Mr. Savage Landor gives us a curious insight into an explorer's method of testing it. "If you were to say to an Ainu, 'You are old, are you not?' he would answer {87}'Yes'; but if you asked the same man, 'You are not old, are you?' he would equally answer 'Yes.'" And then comes the conclusion:--"Knowingly speaking the truth is not one of their characteristics; indeed, they do not know the difference between falsehood and truth."[143] It is hardly surprising to hear from other authorities that the Ainu are remarkably honest, and regard veracity as one of the most imperative duties.[144] Speaking of the Uaupés and other Brazilian tribes, Mr. Wallace observes:--"In my communications and inquiries among the Indians on various matters, I have always found the greatest caution necessary, to prevent one's arriving at wrong conclusions. They are always apt to affirm that which they see you wish to believe, and, when they do not at all comprehend your question, will unhesitatingly answer, 'Yes.'"[145] Savages who are inclined to give inaccurate answers to questions made by strangers, may nevertheless be truthful towards each other. As the regard for life and property, so the regard for truth varies according as the person concerned is a foreigner or a tribesman. "Perfidy and faithlessness," says Crawfurd, "are vices of the Indian islanders, and those vices of which they have been most frequently accused by strangers. This sentence against them must, however, be understood with some allowances. In their domestic and social intercourse, they are far from being a deceitful people, but in reality possess more integrity than it is reasonable to look for with so much misgovernment and barbarity. It is in their intercourse with strangers and with enemies that, like other barbarians, the treachery of their character is displayed."[146] The natives of the interior of Sumatra are "dishonest in their dealings with strangers, which they esteem no moral defect."[147] Dalager states that the same Greenlanders who, among themselves, in the sale of an object {88} which, the buyer had not seen, would depreciate it rather than overpraise it--even though the seller was anxious to get rid of it--told frightful lies in their transactions with Danish traders.[148] The Touareg, whilst scrupulously faithful to a promise given to one of their own people, do not regard as binding a promise given to a Christian;[149] and their Arab neighbours say that their word, "like water fallen on the sand, is never to be found again."[150] The Masai, according to Herr Merker, hold any kind of deceit to be allowable in their relations with persons of another race.[151] The Hovas of Madagascar even considered it a duty for anyone speaking with foreigners on political matters to state the exact opposite to the truth, and punished him who did otherwise.[152]

[Footnote 142: Burton, City of the Saints, p. 130. Vierkandt, Naturvölker und Kulturvölker, p. 273. von Jhering, Der Zweck im Recht, ii. 606.]

[Footnote 143: Landor, Alone with the Hairy Ainu, p. 283.]

[Footnote 144: Holland, in Jour. Anthr. Inst. iii. 237. von Siebold, Aino auf der Insel Yesso, p. 25.]

[Footnote 145: Wallace, Travels on the Amazon, p. 494 sq.]

[Footnote 146: Crawfurd, op. cit. i. 71 sq. Cf. Christian, Caroline Islands, p. 71 sq.]

[Footnote 147: Marsden, op. cit. p. 208.]

[Footnote 148: Dalager, op. cit. p. 60 sq.]

[Footnote 149: von Bary, quoted by Chavanne, Die Sahara, p. 186.]

[Footnote 150: Dubois, Timbuctoo, p. 231.]

[Footnote 151: Merker, Die Masai, p. 115.]

[Footnote 152: Ellis, History of Madagascar, i. 144. Professor Stanley Hall observes ('Children's Lies,' in American Journal of Psychology, iii. 62) that "truth for our friends and lies for our enemies is a practical, though not distinctly conscious rule widely current with children."]

In point of truthfulness savages are in many cases superior to nations more advanced in culture. "A Chinese," says Mr. Wells Williams, "requires but little motive to falsify, and he is constantly sharpening his wits to cozen his customer--wheedle him by promises and cheat him in goods or work."[153] His ordinary speech is said to be so full of insincerity that it is very difficult to learn the truth in almost any case.[154] He feels no shame at being detected in a lie, nor does he fear any punishment from his gods for it;[155] if you call him a liar, "you arouse in him no sense of outrage, no sentiment of degradation."[156] Yet the moral teachings of the Chinese inculcate truthfulness as a stringent duty. One of their injunctions is, "Let children always be taught to speak the simple truth."[157] Many sayings may be quoted from Confucius in which sincerity is celebrated as highly and demanded as urgently as it ever was by any {89} Christian moralist. Faithfulness and sincerity, he said, should be held as first principles. Sincerity is the way of Heaven, the end and beginning of things, without which there would be nothing. It is as necessary to truly virtuous conduct as a boat is to a man wishing to cross a river, or as oars are to a boat. The superior man ought to feel shame when his conduct is not in accord with his words.[158] But there are instances in which sincerity has to yield to family duties: a father should conceal the misconduct of his son, and a son that of his father.[159] Moreover, the great moralists themselves did not always act up to their lofty principles. Confucius and Mencius sometimes did not hesitate to tell a lie for the sake of convenience.[160] The former could excuse himself from seeing an unwelcome visitor on the ground that he was sick, when there was nothing the matter with him;[161] and he deliberately broke an oath which he had sworn, because it had been forced from him.[162] In Japan, Burma, and Siam, truth is more respected than in China. "In love of truth," says Professor Rein, "the Japanese, so far as my experience goes, are not inferior to us Europeans." [163] The Burmese, though partial to much exaggeration, are generally truthful.[164] And "the mendacity so characteristic of Orientals is not a national defect among the Siamese. Lying, no doubt, is often resorted to as a protection against injustice and oppression, but the chances are greatly in favour of truth when evidence is sought."[165]

[Footnote 153: Wells Williams, The Middle Kingdom, i. 834.]

[Footnote 154: Smith, Chinese Characteristics, p. 271.]

[Footnote 155: Cooke, China, p. 414. Edkins, Religion in China, p. 122. Bowring, Siam, i. 106. Wells Williams, op. cit. i. 834.]

[Footnote 156: Smith, Chinese Characteristics, p. 271.]

[Footnote 157: Wells Williams, op. cit. i. 522.]

[Footnote 158: Lun Yü, i. 8. 2; vii. 24; ix. 24; xii. 10. 1; xv. 5. 2. Chung Yung, xx. 18. Douglas, Confucianism and Taouism, pp. 103, 114, 146. Legge, Chinese Classics, i. 100.]

[Footnote 159: Lun Yü, xiii. 18. 2.]

[Footnote 160: Legge, Chinese Classics, i. 100. Smith, Chinese Characteristics, p. 267.]

[Footnote 161: Lun Yü, vi. 13.]

[Footnote 162: Lun Yü, xvii. 20.]

[Footnote 163: Rein, Japan, p. 393.]

[Footnote 164: MacMahon, Far Cathay and Farther India, p. 62. Forbes, British Burma, p. 45. Fytche, Burma Past and Present, ii. 67.]

[Footnote 165: Bowring, Siam, i. 105.]

Lying has been called the national vice of the Hindus.[166] "It is not too much to assert that the mass of Bengalis have no notion of truth and falsehood."[167] A gentleman {90} who has been brought into the closest intimacy with natives of all classes, declares "that when a question is asked, the full bearing of which on themselves or those connected with them they cannot see, you may rely upon it that the first answer you receive is false; but that, when they see that the truth cannot injure themselves or any one they care for, they will speak the truth."[168] The testimony of a Hindu is not generally regarded as evidence.[169] Forgery is frequently resorted to, cheating is rife. "In almost all business transactions of the smallest kind a written agreement must be made on both sides, and this must be stamped and registered, because it is believed that a man's word is not binding."[170] Nor is a lie held disreputable, especially if not found out.[171] But in India, as elsewhere, the question whether truth or falsehood is to be spoken depends on the relationship between the speaker and the party addressed. In their relations with each other, says Sir W. H. Sleeman, members of a village community spoke as much truth as those of any other community in the world, but in their relations with the government they told as many lies; "if a man had told a lie to cheat his neighbour, he would have become an object of hatred and contempt--if he had told a lie to save his neighbour's fields from an increase of rent or tax, he would have become an object of esteem and respect."[172] Of the Sûdra inhabitants of Central India Sir John Malcolm likewise observes that "they may be said, in their intercourse with strangers and with officers of government, to evade the truth, and often to assert positive falsehoods"; whereas, "in their intercourse with each other, falsehood is not common, and many (particularly some of the cultivators) are distinguished by their adherence to truth."[173] The ancient Hindus were praised for their veracity and good faith; {91} in his History of India, written in the second century of the Christian era, Arrian states that no Indian was ever known to tell an untruth.[174] In the sacred books of India truthfulness is highly celebrated. "If veracity and a thousand horse-sacrifices are weighed against each other, it is found that truth ranks even higher than a thousand horse-sacrifices."[175] "Verily the gods are the truth, and man is the untruth."[176] "There is one law which the gods do keep, namely, the truth. It is through this that their conquest, their glory is unassailable: and so, forsooth, is his conquest, his glory unassailable whosoever, knowing this, speaks the truth."[177] Attendance on, or the worship of, the sacred fire means speaking the truth:--"Whosoever speaks the truth, acts as if he sprinkled that lighted fire with ghee; for even so does he enkindle it: and ever the more increases his own vital energy, and day by day does he become better. And whosoever speaks the untruth, acts as if he sprinkled that lighted fire with water; for even so does he enfeeble it: and ever the less becomes his own vital energy, and day by day does he become more wicked. Let him, therefore, speak nothing but the truth."[178] Fearful denunciations are particularly pronounced against those who deliver false testimony in a court of justice.[179] By giving false evidence concerning small cattle, a witness commits the sin of killing ten men; by false evidence concerning cows, horses, and men, he commits the sin of killing a hundred, a thousand, and ten thousand men respectively; but by false evidence concerning land, he commits the sin of killing the whole human race.[180] The sin of falsehood thus admits of different degrees according to the magnitude of the injury inflicted by it. Indeed, "in some cases a man

who, though knowing the facts to be different, gives such false evidence from a pious motive, does not lose heaven; such evidence they call the speech of the gods."[181] {92} Moreover, "whenever the death of a Sûdra, of a Vaisya, of a Kshatriya, or of a Brâhmana would be caused by a declaration of the truth, a falsehood may be spoken; for such falsehood is preferable to the truth."[182] According to Buddhist conceptions of lying, "the magnitude of the crime increases in proportion to the value of the article, or the importance of the matter, about which the lie is told."[183] And it is a lesser wrong to lie in self-defence than to lie with a view to procuring an advantage by injuring one's neighbour. Thus, to deny the possession of any article, in order to retain it, is not a lie of a heinous description, whereas to bear false witness in order that the proper owner may be deprived of that which he possesses, is a lie to which a greater degree of culpability is attached.[184] The Buddhist precept of truthfulness is more restricted than that laid down by Brahmanism:--"It is said by the Brahmans that it is not a crime to tell a lie on behalf of the guru, or on account of cattle, or to save the person's own life, or to gain the victory in any contest; but this is contrary to the precept."[185] One of the conditions that make a Buddha is, never, under the influence of desire and other passions, to utter a conscious lie, for the sake of wealth or any other advantage.[186] From the time that Gautama became a Bodhisattva, or claimant for the Buddhaship, through all his births until the attainment of the Buddhaship, he never told a lie; and "it were easier for the sakwala [or system of worlds] to be blown away than for a supreme Buddha to utter an untruth."[187] His followers are not equally scrupulous. The Buddhists of Ceylon, we are told, lie without compunction, and are not ashamed to be detected in a lie.[188] And religious Mongols "do not hesitate to tell lies even when saying their prayers."[189]

[Footnote 166: Caldwell, Tinnevelly Shanars, p. 38. Cf. Kearns, Tribes of South India, pp. 64 (Reddies and Hindus generally), 68 (Reddies and Naickers); Burton, Sindh, pp. 197, 284; Idem, Sind Revisited, i. 314.]

[Footnote 167: Trevelyan, quoted by Wilkins, Modern Hinduism, p. 401.]

[Footnote 168: Wilkins, Modern Hinduism, p. 399 sq.]

[Footnote 169: Percival, Land of the Veda, p. 288.]

[Footnote 170: Wilkins, op. cit. p. 407 sq.]

[Footnote 171: Ibid. p. 400. Caldwell, op. cit. p. 40.]

[Footnote 172: Sleeman, op. cit. ii. 123. Cf. ibid. ii. 118, 129 sq.; Crooke, Tribes and Castes of the North-Western Provinces and Oudh, ii. 478 (Hâbûra).]

[Footnote 173: Malcolm, Memoir of Central India, ii. 171. Cf. Hislop, op. cit. p. 1.]

[Footnote 174: Arrian, Historia Indica, xii. 5.]

[Footnote 175: Institutes of Vishnu, viii. 36.]

[Footnote 176: Satapatha-Brâhmana, i. 1. 1. 4; iii. 3. 2. 2.]

[Footnote 177: Ibid. iii. 4. 2. 8. Cf. ibid. i. 1. 1. 5.]

[Footnote 178: Ibid. ii. 2. 2. 19.]

[Footnote 179: Laws of Manu, viii. 82.]

[Footnote 180: Gautama, xiii. 14 sqq.]

[Footnote 181: Laws of Manu, viii. 103.]

[Footnote 182: Laws of Manu, viii. 104.]

[Footnote 183: Hardy, Manual of Budhism, p. 486.]

[Footnote 184: Ibid. p. 485.]

[Footnote 185: Ibid. p. 486.]

[Footnote 186: Jâtaka Tales, p. 23.]

[Footnote 187: Hardy, op. cit. p. 486.]

[Footnote 188: Knox, quoted by Schmidt, Ceylon, p. 239.]

[Footnote 189: Gilmour, Among the Mongols, p. 259.]

{93} According to Zoroastrianism, truthfulness is a most sacred duty. Lying is a creation of the evil spirits, and the most efficacious weapon against it is the holy religion revealed to man by Zarathustra.[190] In one of the Pahlavi texts it is said that when the Spirit of Wisdom was asked, "Through how many ways and motives and good works do people arrive most at heaven?" he answered thus: "The first good work is liberality, the second truth."[191] Contracts are inviolable, both those which are pledged with hand or pawn, and those by a mere word.[192] It is a duty to keep faith even with an unbeliever:--"Break not the contract, O Spitama, neither the one that thou hadst entered into with one of the unfaithful, nor the one that thou hadst entered into with one of the faithful who is one of thy own faith."[193] Greek historians and cuneiform inscriptions also bear witness to the great detestation in which falsehood was held by the ancient Persians. Herodotus writes:--"Their sons are carefully instructed from their fifth to their twentieth year in three things alone--to ride, to draw the bow, and to speak the truth. . . . The most disgraceful thing in the world, they think, is to tell a lie; the next worse, to owe a debt: because, among other reasons, the debtor is obliged to tell lies."[194] In the inscriptions of Darius lying is taken as representative of all evil. He is favoured by Ormuzd "because he was not a heretic, nor a liar, nor a tyrant." His great fear is lest it may be thought that any part of the record which he has set up has been falsely related; and he even abstains from narrating certain events of his reign "lest to him who may hereafter peruse the tablet, the many deeds that have been done by him may seem to be falsely recorded."[195] Professor Spiegel tries to prove that {94} falsehood, not truthfulness, was a national characteristic of the ancient Eranians, to which their noblest men offered fruitless resistance;[196] but the facts he quotes in support of his opinion refer to their dealings with foreign nations, and have consequently little bearing on the subject. The modern Persians are notorious liars, who do not even claim to be believed, and smile when detected in a lie.[197] The nomad alone is faithful to his word; the expression, "I am a nomad," means, "You may trust me."[198]

[Footnote 190: Bundahis, i. 24; xxviii. 14, 16. Dînâ-î Maînôg-î Khirad, xix. 4, 6; xxx. 5; xxxvi. 29. Darmesteter, in Sacred Books of the East, iv. p. lxii. Spiegel, Erânische Alterthumskunde, iii. 684 sq. Geiger, Civilization of the Eastern Ir[=a]nians, i. 164 sq. Meyer, Geschichte des Alterthums, i. 534, 536.]

[Footnote 191: Dînâ-î Maînôg-î Khirad, xxxvii. 2 sqq.]

[Footnote 192: Vendîdâd, iv. 5 sqq.]

[Footnote 193: Yasts, x. 2.]

[Footnote 194: Herodotus, i. 136, 138. Cf. Stobæus, Florilegium, 44, vol. ii. 227; Xenophon, Cyri Institutio, i. 6. 33.]

[Footnote 195: Rawlinson, in his translation of Herodotus, i. 262 sq. n. 3.]

[Footnote 196: Spiegel, op. cit. iii. 686.]

[Footnote 197: Polak, Persien, i. 10. Wallin, Reseanteckningar från Orienten, iv. 192, 247. Wilson, Persian Life and Customs, p. 229 sqq.]

[Footnote 198: Polak, op. cit. ii. 95.]

Falsehood is a prevailing vice in other Muhammedan countries also. "Constant veracity," says Mr. Lane, "is a virtue extremely rare in modern Egypt"; and a deceitful disposition in commercial transactions is one of the most notorious faults of the Egyptian.[199] Mr. Lane partly ascribes this habit to the influence of Islam, which allows, and even commands, falsehood in certain cases. The common Moslem doctrine is, that a lie is permissible when told in order to save one's own life, or to reconcile persons at variance with each other, or to please or persuade one's wife, or to obtain

any advantage in a war with the enemies of the faith.[200] But in other cases lying was highly reprobated by the Prophet; and that the people have not forgotten its sinfulness appears from the phrase, "No, I beg forgiveness of God, it was so and so," which they seldom omit when retracting an unintentional mis-statement.[201] I think it is erroneous to regard the want of truthfulness among Muhammedan nations as a result of their religion. The Eastern Christians and Buddhists are no less addicted to falsehood than the Muhammedans.[202]

[Footnote 199: Lane, Manners and Customs of the Modern Egyptians, i. 382 sq. Cf. Burckhardt, Arabic Proverbs, p. 100.]

[Footnote 200: Lane, Modern Egyptians, i. 383. Muir, Life of Mahomet, i. p. lxxiii. sq. n. [dagger].]

[Footnote 201: Lane, Modern Egyptians, i. 383 sq.]

[Footnote 202: Vámbéry, Der Islam im neunzehnten Jahrhundert, p. 232.]

The Homeric poems make us acquainted with gods and men who have recourse to fraud and lying whenever it suits their purpose.[203] The great Zeus makes no difficulty {95} in sending a lying dream to Agamemnon. Pallas Athene is guilty of gross deceit and treachery to Hector; she expressly recommends dissimulation, and loves Odysseus on account of his deceitful character.[204] No man deals more in feigned stories than this master of cunning, who makes a boast of his falsehood.[205] In the period which lies between the Homeric age and the Persian wars veracity made perhaps some progress among the Greeks,[206] but it never became one of their national virtues.[207] Yet in the Greek literature deceit is frequently condemned as a vice, and truthfulness praised as a virtue.[208] Achilles expresses his horror of lying.[209] "Not to tell a lie," was one of the maxims of Solon.[210] Pindar strongly censures a character like that of Odysseus,[211] and ends up his eulogy on Psaumis by the assurance that he never would contaminate his speech with a lie.[212] According to Pythagoras, men become like gods when they speak the truth.[213] According to Plato, the habit of lying makes the soul ugly[214]; "truth is the beginning of every good thing, both to gods and men."[215] Yet a distinction should be made between different kinds of untruth. Though the many are too fond of saying that at proper times and places falsehood may often be right,[216] it must be admitted that a lie is in certain cases useful and not hateful, as in dealing with enemies, or when those whom we call our friends in a fit of madness or illusion are going to do some harm.[217] Moreover, the rulers of the State are allowed to lie for the public good, just as physicians make use of medicines; and they will find a considerable dose of falsehood and deceit necessary for this purpose.[218] On the other hand, if the ruler catches anybody besides himself lying in the {96} State, lie will punish him for introducing a practice "which is equally subversive and destructive of ships or State."[219] Next to him who takes a false oath, he who tells a falsehood in the presence of his superiors--elders, parents, or rulers--is most hateful to the gods.[220]

[Footnote 203: Cf. Kames, Sketches of the History of Man, iv. 150 sq.; Mahaffy, Social Life in Greece, p. 26 sqq.]

[Footnote 204: Odyssey, xiii. 331 sq.]

[Footnote 205: Ibid. ix. 19 sq.]

[Footnote 206: Schmidt, Die Ethik der alten Griechen, ii. 413.]

[Footnote 207: Cf. Thucydides, iii. 83.]

[Footnote 208: See Schmidt, op. cit. ii. 403 sqq.]

[Footnote 209: Iliad, ix. 312 sq.]

[Footnote 210: Diogenes Laertius, Vitæ philosophorum, i. 2 (60).]

[Footnote 211: Pindar, Nemea, viii. 26.]

[Footnote 212: Idem, Olympia, iv. 17.]
[Footnote 213: Stobæus, op. cit. xi. 25, vol. i. 312.]
[Footnote 214: Plato, Gorgias, p. 524 sq.]
[Footnote 215: Idem, Leges, v. 730.]
[Footnote 216: Ibid. xi. 916.]
[Footnote 217: Plato, Respublica, ii. 382.]
[Footnote 218: Ibid. iii. 389; v. 459.]
[Footnote 219: Plato, Respublica, iii. 389.]
[Footnote 220: Idem, Leges, xi. 917. Idem, Respublica, iii. 389.]

Not without reason did the Romans of the republican age contrast their own fides with the mendacity of the Greeks and the perfidy of the Ph[oe]nicians. "The goddess of faith (of human and social faith)," says Gibbon, "was worshipped, not only in her temples, but in the lives of the Romans; and if that nation was deficient in the more amiable qualities of benevolence and generosity, they astonished the Greeks by their sincere and simple performance of the most burdensome engagements."[221] Their annals are adorned with signal examples of uprightness, which, though to a great extent fictitious, yet bear testimony to the estimation in which that quality was held.[222] The Greeks had no Regulus who "chose to deliver himself up to a cruel death rather than to falsify his word to the enemy."[223] The basest forms of falsehood were severely punished by law. According to the Twelve Tables, any one who had slandered or libelled another by imputing to him a wrongful or immoral act, was to be scourged to death, [224] and capital punishment was also inflicted on false witnesses[225] and corrupt judges.[226] However, already before the end of the Republic dishonesty, perjuries, and forgeries became common in Rome.[227]

[Footnote 221: Gibbon, History of the Decline and Fall of the Roman Empire, v. 311.]
[Footnote 222: Cf. Inge, Society in Rome under the Cæsars, p. 33 sq.]
[Footnote 223: Cicero, De officiis, i. 13.]
[Footnote 224: Lex Duodecim Tabularum, viii. 1.]
[Footnote 225: Ibid. viii. 23. Aulus Gellius, Noctes Atticæ, xx. i. 53.]
[Footnote 226: Lex Duodecim Tabularum, ix. 3. Aulus Gellius, op. cit. xx. i. 7.]
[Footnote 227: Inge, op. cit. p. 35.]

The ancient Scandinavians considered it disgraceful for a man to tell a lie, to break a promise, or to commit a treacherous act.[228] To kill or rob openly was a pardonable offence, if an offence at all; but he who did it secretly was a nithinger, a "hateful man," unless indeed he afterwards {97} openly declared his deed.[229] In the Irish Senchus Mór it is said that not only false witness, but lying in general, deprives the guilty person of "half his honour-price up to the third time";[230] and, according to the commentary to the Book of Aicill, the double of his own full honour-price is due from each person who commits the crime of secret murder.[231]

[Footnote 228: Maurer, Bekehrung des Norwegischen Stammes, ii. 154, 183 sq. Rosenberg, Nordboernes Aandsliv, i. 487.]

[Footnote 229: Wilda, Strafrecht der Germanen, p. 569. Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 320 sqq. Keyser, Efterladte Skrifter, ii. pt. i. 361. Rosenberg, Nordboernes Aandsliv, i. 487. von Amira, 'Recht,' in Paul's Grundriss der germanischen Philologie, ii. pt. ii. 173.]

[Footnote 230: Ancient Laws of Ireland, i. 57.]
[Footnote 231: Ibid. iii. 99.]

In the Old Testament there are recorded, from the patriarchal age, some cases of lying, which, far from being condemned, in no way prevented the liar being a special

object of divine favour. It must be admitted, however, that undue importance has been attached to some of these acts of falsehood,[232] which were committed among foreigners with a view to escaping an impending danger.[233] For instance, when Isaac, dwelling in Gerar, said of his wife that she was his sister, for fear lest the men of the place should kill him,[234] he did a thing which few conscientious men under similar circumstances would hesitate to do. As for Jacob's long course of double-dealing with his father-in-law, who was equally greedy and unscrupulous, it should be remembered that they were natives of different lands.[235] Again, when Jacob, at the instigation of his mother, grossly deceived his own blind father, the intriguers, as has been pointed out,[236] manifestly felt that the blessing extorted from Isaac ought to descend upon Jacob rather than upon Esau, and inasmuch as the word of the father was held to carry with it divine validity and potency, the securing of it by fair means or foul was deemed an urgent necessity. It is obvious that the ancient Hebrews did not condemn deceit as wrong in the abstract, and that they were very unscrupulous in the use of means. Whenever {98} David was threatened by any danger, he immediately employed a falsehood which served his turn; though not incapable of generosity, he deceived enemies and friends indifferently, and there is probably no record of treachery and lying consistently pursued which surpasses in baseness his affair with his faithful servant Uriah the Hittite.[237] It is true that his conduct towards Uriah was condemned; "the thing that David had done displeased the Lord."[238] But it is significant that Yahveh himself occasionally had recourse to deceit for the purpose of carrying out his plans. In order to ruin Ahab he commissioned a lying spirit to deceive his prophets;[239] and once he threatened to use deception as a means of taking revenge upon idolaters.[240] But to bear false witness against a neighbour was strictly prohibited;[241] the false witness should suffer the punishment which he was minded to bring upon the person whom he calumniated.[242] In Ecclesiasticus lying is severely censured:--"A lie is a foul blot in a man, yet it is continually in the mouth of the untaught. A thief is better than a man that is accustomed to lie: but they both shall have destruction to heritage. The disposition of a liar is dishonourable, and his shame is ever with him."[243] "Lying lips are abomination to the Lord: but they that deal truly are his delight."[244] According to the Talmud, "four shall not enter Paradise: the scoffer, the liar, the hypocrite, and the slanderer."[245] Only for the sake of peace, and especially domestic peace, may a man tell a lie without sinning;[246] but he who changes his word commits as heavy a sin as he who worships idols.[247] The duty of truthfulness was particularly emphasised by the Essenes.[248] He who entered their sect had to pledge himself always to love {99} truth and strive to reclaim all liars.[249] "They are eminent for fidelity," says Josephus. "Whatsoever they say also is firmer than an oath; but swearing is avoided by them, and they esteem it worse than perjury; for they say that he who cannot be believed without [swearing by] God is already condemned."[250]

[Footnote 232: E.g., by McCurdy, 'Moral Evolution of the Old Testament,' in American Journal of Theology, i. 665 sq.; von Jhering, Zweck im Recht, ii. 606 sq.; Spencer, Principles of Ethics, i. 402.]

[Footnote 233: Genesis, xii. 12 sq.; xx. 2.]

[Footnote 234: Ibid. xxvi. 7.]

[Footnote 235: Ibid. ch. xxix. sqq.]

[Footnote 236: McCurdy, loc. cit. p. 666.]

[Footnote 237: Cf. Kuenen, Religion of Israel, i. 327; McCurdy, loc. cit. p. 681.]

[Footnote 238: 2 Samuel, xi. 27; xii. 1 sqq.]

[Footnote 239: 1 Kings, xxii. 20 sqq.]

[Footnote 240: Ezekiel, xiv. 7 sqq. Cf. Spencer, Principles of Ethics, i. 402.]

[Footnote 241: Deuteronomy, v. 20.]

[Footnote 242: Ibid. xix. 1 6 sqq.]

[Footnote 243: Ecclesiasticus, xx. 24 sqq.]

[Footnote 244: Proverbs, xii. 22.]

[Footnote 245: Deutsch, Literary Remains, p. 57.]

[Footnote 246: Hershon, Treasures of the Talmud, p. 69 sq.]

[Footnote 247: Sanhedrin, fol. 92 A, quoted by Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 558.]

[Footnote 248: Philo Judæus, Quod liber sit quisque virtuti studet, p. 877 (Opera, ii. 458).]

[Footnote 249: Josephus, De bello Judaico, ii. 8. 7.]

[Footnote 250: Ibid. ii. 8. 6.]\

"Speak every man truth with his neighbour,"[251] was from early times regarded as one of the most imperative of Christian maxims.[252] According to St. Augustine, a lie is not permissible even when told with a view to saving the life of a neighbour; "since by lying eternal life is lost, never for any man's temporal life must a lie be told."[253] Yet all lies are not equally sinful; the degree of sinfulness depends on the mind of the liar and on the nature of the subject on which the lie is told.[254] This became the authorised doctrine of the Church.[255] Thomas Aquinas says that, although lying is always sinful, it is not a mortal sin if the end intended be not contrary to charity, "as appears in a jocose lie, that is intended to create some slight amusement, and in an officious lie, in which is intended even the advantage of our neighbour."[256] Yet from early times we meet within the Christian Church a much less rigorous doctrine, which soon came to exercise a more powerful influence on the practice and feelings of men than did St. Augustine's uncompromising love of truth. The Greek Fathers maintained that an untruth is not a lie when there is a "just cause" {100} for it; and as a just cause they regarded not only self-defence, but also zeal for God's honour.[257] This zeal, together with an indiscriminate devotion to the Church, led to those "pious frauds," those innumerable falsifications of documents, inventions of legends, and forgeries of every description, which made the Catholic Church a veritable seat of lying, and most seriously impaired the sense of truth in the minds of Christians.[258] By a fiction, Papacy, as a divine institution, was traced back to the age of the Apostles, and in virtue of another fiction Constantine was alleged to have abdicated his imperial authority in Italy in favour of the successor of St. Peter.[259] The Bishop of Rome assumed the privilege of disengaging men from their oaths and promises. An oath which was contrary to the good of the Church was declared not to be binding.[260] The theory was laid down that, as faith was not to be kept with a tyrant, pirate, or robber, who kills the body, it was still less to be kept with an heretic, who kills the soul.[261] Private protestations were thought sufficient to relieve men in conscience from being bound by a solemn treaty or from the duty of speaking the truth; and an equivocation, or play upon words in which one sense is taken by the speaker and another sense intended by him for the hearer, was in some cases held permissible.[262] According to Alfonso de' Liguori--who lived in the eighteenth century and was beatified in the nineteenth, and whose writings were declared by high authority not to contain a word that could be justly found fault with,[263]-- {101} there are three sorts of equivocation which may be employed for a good reason, even with the addition of a solemn oath. We are allowed to use ambiguously words having two senses, as the word volo, which means both to "wish" and to "fly"; sentences bearing two main meanings, as "This book is Peter's," which may mean either that the book belongs to Peter or that

Peter is the author of it; words having two senses, one more common than the other or one literal and the other metaphorical--for instance, if a man is asked about something which it is in his interest to conceal, he may answer, "No, I say," that is "I say the word 'no'"[264] As for mental restrictions, again, such as are "purely mental," and on that account cannot in any manner be discovered by other persons, are not permissible; but we may, for a good reason, make use of a "non-pure mental restriction," which, in the nature of things, is discoverable, although it is not discovered by the person with whom we are dealing.[265] Thus it would be wrong secretly to insert the word "no" in an affirmative oath without any external sign; but it would not be wrong to insert it in a whispering voice or under the cover of a cough. The "good reason" for which equivocations and non-pure mental restrictions may be employed is defined as "any honest object, such as keeping our goods spiritual or temporal."[266] In support of this casuistry it is uniformly said by Catholic apologists that each man has a right to act upon the defensive, that he has a right to keep guard over the knowledge which he possesses in the same way as he may defend his goods; and as for there being any deceit in the matter--why, soldiers use stratagems in war, and opponents use feints in fencing.[267]

[Footnote 251: Ephesians, iv. 25.]

[Footnote 252: Gass, Geschichte der christlichen Ethik, i. 90.]

[Footnote 253: St. Augustine, De mendacio, 6 (Migne, Patrologiæ cursus, xl. 494 sq.).]

[Footnote 254: Idem, Enchiridion, 18 (Migne, op. cit. xl. 240); Idem, De mendacio, 21 (Migne, xl. 516). For St. Augustine's views on lying see also his treatise Contra mendacium, addressed to Consentius (Migne, xl. 517 sqq.), and Bindemann, Der heilige Augustinus, ii. 465 sqq.]

[Footnote 255: Gratian, Decretum, ii. 22. 2. 12, 17. Catechism of the Council of Trent, iii. 9. 23.]

[Footnote 256: Thomas Aquinas, Summa theologica, ii.-ii. **110. 3 sq. St. Augustine says (De mendacio, 2 [Migne, op. cit. xl. 487 sq.]; Quæstiones in Genesim, 145, ad Gen. xliv. 15 [Migne, xxxiv. 587]) that jokes which "bear with them in the tone of voice, and in the very mood of the joker a most evident indication that he means no deceit," are not accounted lies, though the thing he utters be not true. This statement is also incorporated in Gratian's Decretum (ii. 22. 2. 18).]

[Footnote 257: Gass, op. cit. i. 91, 92, 236 sqq. Newman, Apologia pro vita sua, p. 349 sq.]

[Footnote 258: von Mosheim, Institutes of Ecclesiastical History, i. 275. Middleton, Free Inquiry into the Miraculous Powers, which are supposed to have subsisted in the Christian Church, passim. Lecky, Rise, and Influence of Rationalism in Europe, i. 396 sqq. Gass, op. cit. i. 91, 235. von Eicken, System der mittelalterlichen Weltanschauung, pp. 654-656, 663.]

[Footnote 259: von Eicken, op. cit. p. 656. Poole, Illustrations of the History of Medieval Thought, p. 249.]

[Footnote 260: Gregory IX. Decretales, ii. 24. 27.]

[Footnote 261: Simancas, De catholicis institutionibus, xlvi. 52 sq. p. 365 sq.]

[Footnote 262: Alagona, Compendium manualis D. Navarri, xii. 88, p. 94 sq.:--"Fur, qui est furatus aliquid, si interrogetur a judice non competenti, vel non juridice, an sit furatus tale quid, potest secura conscientia respondere simpliciter, non sum furatus, intelligendo intra se in tali die, vel anno." See also Kames, op. cit. iv. 158 sq.]

[Footnote 263: Meyrick, Moral and Devotional Theology of the Church of Rome, i. 3.]

[Footnote 264: Alfonso de' Liguori, Theologia moralis, iii. 151, vol. i. 249.]

[Footnote 265: Ibid. iii. 152, vol. i. 249.]

[Footnote 266: Ibid. iii. 151, vol. i. 249.]

[Footnote 267: Meyrick, op. cit. i. 25]

Adherence to truth and especially perfect fidelity to a promise were strongly insisted upon by the code of Chivalry.[268] However exacting or absurd the vow might {102} be, a knight was compelled to perform it in all the strictness of the letter. A man frequently promised to grant whatever another should ask, and he would have lost the honour of his knighthood if he had declined from his word.[269] We are told by Lancelot du Lac that when King Artus had given his word to a knight to make him a present of his wife, he would neither listen to the lamentations of the unfortunate woman, nor to any representations which could be made him; he replied that a king must not go from his word, and the queen was accordingly delivered to the knight.[270] The knights taken in war were readily allowed liberty for the time they asked, on their word of honour that they would return of their own accord, whenever it should be required.[271] So great, it is said, was the knight's respect for an oath, a promise, or a vow, that when they lay under any of these restrictions, they appeared everywhere with little chains attached to their arms or habits to show all the world that they were slaves to their word; nor were these chains taken off till their promise had been performed, which sometimes extended to a term of four or five years.[272] It cannot be expected, of course, that reality should have always come up to the ideal. In the thirteenth century the Count of Champagne declared that he confided more in the lowest of his subjects than in his knights.[273] Moreover, the knightly duty of sincerity seems to have gone little beyond the formal fulfilment of an engagement. "The age of Chivalry was an age of chicane, and fraud, and trickery, which were not least conspicuous among the knightly classes."[274] It is significant that the English law of the thirteenth century, though quite willing to admit in vague phrase that no one should be suffered to gain anything by fraud, was inclined to hold that a man has himself to thank if he is misled by deceit, the king's court generally providing no remedy for him who to {103} his disadvantage had trusted the word of a liar.[275] Towards the end of the Middle Ages and later, crimes against the Mint and the offence of counterfeiting seals, usually accompanied by that of forging letters or official documents, were extremely common in England;[276] and false weights, false measures, and false pretences of all kinds were ordinary instruments of commerce.[277]

[Footnote 268: Book of the Ordre of Chyualry, foll. 18 b, 31 b, 34 b. Robertson, History of the Reign of Charles V. i. 84. Sainte-Palaye, Mémoires sur l'ancienne chevalerie, i. 76 sq.]

[Footnote 269: Mills, History of Chivalry, p. 152.]

[Footnote 270: Lancelot du Lac, vol. ii. fol. 2 a.]

[Footnote 271: Sainte-Palaye, op. cit. i. 135.]

[Footnote 272: Ibid. i. 236 sq.]

[Footnote 273: Ibid. ii. 47. Cf. Kames, op. cit. iv. 157.]

[Footnote 274: Pike, History of Crime in England, i. 283.]

[Footnote 275: Pollock and Maitland, History of English Law before the Time of Edward I. ii. 535 sq.]

[Footnote 276: Pike, op. cit. i. 265, 269; ii. 392.]

[Footnote 277: Ibid. i. 142; ii. 238.]

In modern times, according to Mr. Pike, the Public Records testify a decrease of deception in England.[278] Commercial honesty has improved, and those mean arts to which, during the reigns of the Tudors, even men in the highest positions frequently had

recourse, have now, at any rate, descended to a lower grade of society.[279] At present, in the civilised countries of the West, opinion as to what the duty of sincerity implies varies not only in different individuals, but among different classes or groups of people, as also among different nations. Duplicity is held more reprehensible in a gentleman than in a shopkeeper or a peasant. The notion which seems to be common in England, that an advocate is over-scrupulous who refuses to say what he knows to be false if he is instructed to say it,[280] appears strange at least to some foreigners;[281] and in certain countries it is commonly regarded as blamable if a person ostensibly professes a religion in which he does not believe, say, by going to church. The Quakers deem all complimentary modes of speech, for instance in addressing people, to be objectionable as being inconsistent with truth.[282] Certain philosophers have expressed the opinion that veracity is an unconditional duty, which is not to be limited by any expediency, but must be respected in all circumstances. According to Kant, it would be a crime to tell a falsehood to a murderer who asked us whether {104} our friend, of whom he was in pursuit, had taken refuge in our house.[283] Fichte maintains that the defence of so-called necessary lies is "the most wicked argument possible amongst men."[284] Dymond says, "If I may tell a falsehood to a robber in order to save my property, I may commit parricide for the same purpose."[285] But this rigorous view is not shared by common sense, nor by orthodox Protestant theology.[286] Jeremy Taylor asks, "Who will not tell a harmless lie to save the life of his friend, of his child, of himself, of a good and brave man?"[287] Where deception is designed to benefit the person deceived, says Professor Sidgwick, "common sense seems to concede that it may sometimes be right: for example, most persons would not hesitate to speak falsely to an invalid, if this seemed the only way of concealing facts that might produce a dangerous shock: nor do I perceive that any one shrinks from telling fictions to children, on matters upon which it is thought well that they should not know the truth."[288] In the case of grown-up people, however, this principle seems to require the modification made by Hutcheson, that there is no wrong in false speech when the party deceived himself does not consider it an injury to be deceived.[289] Otherwise it might easily be supposed to give support to "pious fraud," which in its crudest form is nowadays generally disapproved of, but which in subtle disguise still has many advocates among religious partisans. It is argued that the most important truths of religion cannot be conveyed into the minds of ordinary men, except by being enclosed, as it were, in a shell of fiction, and that by relating such fictions as if they were facts we are really performing an act of substantial veracity.[290] But this argument seems chiefly to have been invented for the {105} purpose of supporting a dilapidated structure of theological teaching, and can hardly be accepted by any person unprejudiced by religious bias. As a means of self-defence deviation from truth has been justified not only in the case of grosser injuries, but in the case of illegitimate curiosity, as it seems unreasonable that a person should be obliged to supply another with information which he has no right to exact.[291] The obligation of keeping a promise, again, is qualified in various ways. Thoughtful persons would commonly admit that such an obligation is relative to the promisee, and may be annulled by him.[292] A promise to do an immoral act is held not to be binding, because the prior obligation not to do the act is paramount.[293] If, before the time comes to fulfil a promise, circumstances have altered so much that the effects of keeping it are quite different from those which were foreseen when it was made, all would agree that the promisee ought to release the promiser; but if he declines to do so, some would say that the latter is in every case bound by his promise, whilst others would maintain that a considerable alteration of circumstances has removed the obligation.[294] How

far promises obtained by force or fraud are binding is a much disputed question. [295] According to Hutcheson, for instance, no regard is due to a promise which has been extorted by unjust violence.[296] Adam Smith, on the other hand, considers that whenever such a promise is violated, though for the most necessary reason, it is always with some degree of dishonour to the person who made it, and that "a brave man ought to die rather than make a promise {106} which he can neither keep without folly nor violate without ignominy."[297]

[Footnote 278: Ibid. i. 264. Cf. ibid. ii. 474.]

[Footnote 279: Ibid. ii. 14 sq.]

[Footnote 280: Sidgwick, Methods of Ethics, p. 316. Paley, Principles of Moral and Political Philosophy, iii. 15 (Complete Works, ii. 117). The same view was expressed by Cicero (De officiis, ii. 14).]

[Footnote 281: See also Dymond, Essays on the Principles of Morals, ii. 5, p. 50 sqq.]

[Footnote 282: Gurney, Views and Practices of the Society of Friends, p. 401.]

[Footnote 283: Kant, 'Ueber ein vermeintes Recht, aus Menschenliebe zu Lügen,' in Sämmtliche Werke, vii. 309.]

[Footnote 284: Fichte, Das System der Sittenlehre, p. 371; English translation, p. 303 sq.]

[Footnote 285: Dymond, op. cit. ii. 6, p. 57.]

[Footnote 286: Reinhard, System der Christlichen Moral, iii. 193 sqq. Martensen, Christian Ethics, 'Individual Ethics,' p. 216 sqq. Newman, Apologia pro vita sua, p. 274.]

[Footnote 287: Taylor, Whole Works, xii. 162.]

[Footnote 288: Sidgwick, op. cit. p. 316.]

[Footnote 289: Hutcheson, System of Moral Philosophy, ii. 32.]

[Footnote 290: Sidgwick, op. cit. p. 316.]

[Footnote 291: Schopenhauer, Die Grundlage der Moral, § 17 (Sämmtliche Werke, vi. 247 sqq.).]

[Footnote 292: Whewell, Elements of Morality, p. 156. Sidgwick, op. cit. p. 305.]

[Footnote 293: Dymond, op. cit. ii. 6, p. 55. Whewell, op. cit. p. 156 sq. Sidgwick, op. cit. p. 305. This is also the opinion of Thomas Aquinas (op. cit. ii.-ii. 110. 3. 5).]

[Footnote 294: Sidgwick, op. cit. p. 306 sq. Thomas Aquinas says (op. cit. ii.-ii. 110. 3. 5) that a person who does not do what he has promised is excused "if the conditions of persons and things are changed."]

[Footnote 295: Dymond, op. cit. ii. 6, p. 55 sq. Whewell, op. cit. pp. 155, 159 sqq. Sidgwick, op. cit. p. 305 sq. Adam Smith, Theory of Moral Sentiments, p. 486 sqq.]

[Footnote 296: Hutcheson, System of Moral Philosophy, ii. 34.]

[Footnote 297: Adam Smith, op. cit. p. 489.]

In point of veracity and good faith the old distinction between duties which we owe to our fellow-countrymen and such as we owe to foreigners is still preserved in various cases. It is particularly conspicuous in the relations between different states, in peace or war. Stratagems and the employment of deceptive means necessary to procure intelligence respecting the enemy or the country are held allowable in warfare, independently of the question whether the war is defensive or aggressive.[298] Deceit has, in fact, often constituted a great share of the glory of the most celebrated commanders; and particularly in the eighteenth century it was a common opinion that successes gained through a spy are more creditable to the skill of a general than successes in regular battles.[299] Lord Wolseley writes:--"As a nation we are bred up to feel it a disgrace even to succeed by falsehood; the word spy conveys something as repulsive as slave; we will keep hammering along with the conviction that honesty is the best policy, and

that truth always wins in the long run. These pretty little sentences do well for a child's copy-book, but the man who acts upon them in war had better sheathe his sword for ever."[300] At the same time, there are some exceptions to the general rule that deceit is permitted against an enemy. Under the customs of war it has been agreed that particular acts and signs shall have a specific meaning in order that belligerents {107} may carry on certain necessary intercourse, and it is forbidden to employ such acts or signs in deceiving an enemy. Thus information must not be surreptitiously obtained under the shelter of a flag of truce; buildings not used as hospitals must not be marked with an hospital flag; and persons not covered by the provisions of the Geneva Convention must not be protected by its cross.[301] A curious arbitrary rule affects one class of stratagems by forbidding certain permitted means of deception from the moment at which they cease to deceive. It is perfectly legitimate to use the distinctive emblems of an enemy in order to escape from him or to draw his forces into action; but it is held that soldiers clothed in the uniforms of their enemy must put on a conspicuous mark by which they can be recognised before attacking, and that a vessel using the enemy's flag must hoist its own flag before firing with shot or shell.[302] Disobedience to this rule is considered to entail grave dishonour; for "in actual battle enemies are bound to combat loyally, and are not free to ensure victory by putting on a mask of friendship."[303] But, as Mr. Hall observes, it is not easy to see why it is more disloyal to wear a disguise when it is obviously useless, than when it serves its purpose.[304] Finally, it is universally agreed that promises given to the enemy ought to be kept;[305] this was admitted even by Machiavelli[306] and Bynkershoek,[307] who did not in general burden belligerents with particularly heavy duties. But the restrictions which "international law" {108} lays on deceit against enemies do not seem to be taken very seriously. Treaties between nations and promises given by one state to another, either in war or peace, are hardly meant to be kept longer than it is convenient to keep them. And when an excuse for the breach of faith is felt necessary, that excuse itself is generally a lie.

[Footnote 298: Conférence de Bruxelles, art. 14. Instructions for the Government of Armies of the United States in the Field, art. 16, 101. Conférence internationale de la paix, La Haye, 1899, 'Règlement concernant les lois de la guerre sur terre,' art. 24, pt. i. p. 245. Roman Catholicism admits the employment of stratagems in wars which are just (Gratian, op. cit. ii. 23. 2. 2; Ayala, De jure et officiis bellicis et disciplina militari, i. 8. 1 sq.; Ferraris, quoted by Adds, Catholic Dictionary, p. 945; Nys, Le droit de la guerre et les précurseurs de Grotius, p. 128 sq.), on the authority of St. Augustine, the great advocate of general truthfulness (Quæstiones in Jesum Nave, 10, ad Jos. viii. 2 [Migne, op. cit. xxxiv. 781]:--"Cum autem justum bellum susceperit, utrum aperta pugna utrum insidiis vincat, nihil ad justitiam interest").]

[Footnote 299: Halleck, International Law, i. 567. Maine, International Law, p. 149 sqq.]

[Footnote 300: Wolseley, Soldier's Pocket-Book for Field Service, p. 169.]

[Footnote 301: Conférence de Bruxelles, art. 13 sq. Instructions for the Government of Armies of the United States in the Field, art. 101, 114, 117. Manual of the Laws of War on Land, prepared by the Institute of International Law, (art. 8 (d). Hall, Treatise on International Law, p. 537 sq.]

[Footnote 302: Hall, op. cit. p. 538 sq. Bluntschli, Droit international, § 565, p. 328 sq.]

[Footnote 303: Bluntschli, op. cit. § 565, p. 329.]

[Footnote 304: Hall, op. cit. p. 539.]

[Footnote 305: Heffter, Das Europäische Völkerrecht der Gegenwart, § 125, p. 262.]

[Footnote 306: Machiavelli, Discorsi, iii. 40 (Opere, iii. 164).]

[Footnote 307: Bynkershoek, Quæstiones juris publici, i. 1, p. 4. The maxim of Canon Law, "Fides servanda hosti" (Gratian, Decretum, ii. 23. i. 3), however, was greatly impaired by the principle, "Juramentum contra utilitatem ecclesiasticam praestitum non tenet" (Gregory IX. Decretales, ii. 24, 27. See Nys, Le droit de la guerre et les précurseurs de Grotius, p. 126 sq.).]

Chapter XXXI

THE REGARD FOR TRUTH AND GOOD FAITH (concluded)

THE condemnation of untruthfulness and bad faith springs from a variety of sources. In the first place, he who tells a lie, or who breaks a promise, generally commits an injury against another person. His act consequently calls forth sympathetic resentment, and becomes an object of moral censure.

Men have a natural disposition to believe what they are told. This disposition is particularly obvious in young children; it is acquired wisdom and experience only that teach incredulity, and, as Adam Smith observes, they very seldom teach it enough.[1] Even people who are themselves pre-eminent liars are often deceived by the falsehoods of others.[2] When detected a deception always implies a conflict between two irreconcilable ideas; and such a conflict gives rise to a feeling of pain,[3] which may call forth resentment against its volitional cause, the deceiver.

[Footnote 1: Reid, Inquiry into the Human Mind, vi. 24, p. 430 sqq. Adam Smith, Theory of Moral Sentiments, p. 494 sq. Dugald Stewart, Philosophy of the Active and Moral Powers of Man, ii. 340 sq.]

[Footnote 2: Burton, Two Trips to Gorilla Land, i. 106 (Mpongwe).]

[Footnote 3: Lehmann, Hovedlovene for det menneskelige Følelseliv, p. 181. Cf. Bain, Emotions and the Will, p. 218.]

But men are not only ready to believe what they are told, they also like to know the truth. Curiosity, or the love of truth, is coeval with the first operations of the intellect; it seems to be an ultimate fact in the human {110} frame.[4] In our endeavour to learn the truth we are frustrated by him who deceives us, and he becomes an object of our resentment.

[Footnote 4: Dugald Stewart, op. cit. ii. 334, 340.]

[Footnote 5: Millingen, History of Duelling, i. 71.]

[Footnote 6: Sainte-Palaye, Mémoires sur l'ancienne chevalerie, i. 78.]

How largely the condemnation of falsehood and bad faith is due to the harm suffered by the victim appears from the fact that a lie or breach of faith is held more condemnable in proportion to the magnitude of the harm caused by it. But even in apparently trifling cases the reflective mind strongly insists upon the necessity of truthfulness and fidelity to a given word. Every lie and every unfulfilled promise has a tendency to lessen mutual confidence, to predispose the perpetrator to commit a similar offence in the future, and to serve as a bad example for others. "The importance of truth," says Bentham, "is so great, that the least violation of its laws, even in frivolous matters, is always attended with a certain degree of danger. The slightest deviation from it is an attack upon the respect we owe to it. It is a first transgression which facilitates a second, and familiarises the odious ideal {111} of falsehood."[7] Contrariwise, as Aristotle observes, he who is truthful in unimportant matters will be all the more so in important ones.[8] Similar considerations, however, require a certain amount of reflection and farsightedness;

hence intellectual development tends to increase the emphasis laid on the duties of sincerity and good faith. At the earlier stages of civilisation it is frequently considered good form to tell an untruth to a person in order to please him, and ill-mannered to contradict him, however much he be mistaken,[9] for the reason that farther consequences are left out of account. The utilitarian basis of the duty of truthfulness also accounts for those extreme cases in which a deception is held permissible or even a duty, when promoting the true interests of the person subject to it.

[Footnote 7: Bentham, Theory of Legislation, p. 260.]

[Footnote 8: Aristotle, Ethica Nicomachea, iv. 7. 8.]

[Footnote 9: Besides statements referred to above, see Dobrizhoffer, Account of the Abipones, ii. 137; Hennepin, New Discovery of a Vast Country in America between New France and New Mexico, ii. 70; Dall, Alaska, p. 398 (Aleuts); Oldfield, in Trans. Ethn. Soc. N.S. iii. 255 (West Australian natives). "The natives of Africa," says Livingstone (Expedition to the Zambesi, p. 309), "have an amiable of desire to please, and often tell what they imagine will be gratifying, rather than the uninteresting naked truth." An English sportsman, after firing at an antelope, inquired of his dark attendant, "Is it wounded?" The answer was, "Yes! the ball went right into his heart." These mortal wounds never proving fatal, he asked a friend, who understood the language, to explain to the man that he preferred the truth in every case. "He is my father," replied the native, "and I thought he would be displeased if I told him that he never hits at all." The wish to please is likewise a fertile source of untruth in children, especially girls (Sully, Studies of Childhood, p. 256).]

The detestation of falsehood is in a very large measure due to the motive which commonly is at the bottom of a lie. It is doubtful whether a lie ever is told simply from love of falsehood.[10] The intention to produce a wrong belief has a deeper motive than the mere desire to produce such a belief; and in most cases this motive is the deceiver's hope of benefiting himself at the expense of the person deceived. A better motive makes the act less detestable, or may even serve as a justification. But the broad doctrine that the end sanctifies the means is generally rejected; and the principle which sometimes allows {112} deceit from a benevolent motive has been restricted within very narrow limits by a higher conception of individual freedom and individual rights. Thus the emancipation of morality from theology has brought discredit on the old theory that religious deception is permissible when it serves the object of saving human souls from eternal perdition. The opinion that no motive whatsoever can justify an act of falsehood has been advocated not only by intuitional moralists, but on utilitarian grounds.[11] But it certainly seems absurd to the common sense of mankind that we should be allowed to save our own life or the life of a fellow-man by killing the person who wants to take it, but not by deceiving him.

[Footnote 10: Dugald Stewart, op. cit. ii. 342.]

[Footnote 11: Macmillan, Promotion of General Happiness, p. 166 sq.]

It is easy to see why falsehood is so frequently held permissible, praiseworthy, or even obligatory, when directed against a stranger. In early society an injury inflicted on a stranger calls forth no sympathetic resentment. On the contrary, being looked upon with suspicion or hated as an enemy, he is considered a proper object of deception. Among the Bushmans "no one dare give any information in the absence of the chief or father of the clan."[12] "A Bedouin," says Burckhardt, "who does not know the person interrogating him, will seldom answer with truth to questions concerning his family or tribe. The children are taught never to answer similar questions, lest the interrogator may be a secret enemy and come for purposes of revenge."[13] Among the Beni Amer

a stranger can never trust a man's word on account of "their contempt for everything foreign."[14] That even civilised nations allow stratagem in warfare is the natural consequence of war itself being allowed; and if good faith is to be preserved between enemies, that is because only thereby useless cruelty can be avoided and an end be put to hostilities.

[Footnote 12: Chapman, Travels in the Interior of South Africa, i. 76.]

[Footnote 13: Burckhardt, Notes on the Bedouins and Wahábys, p. 210.]

[Footnote 14: Munzinger, Ostafrikanische Studien, p. 337.]

However, deceit is not condemned merely because it is {113} an injury to the party deceived and as such apt to arouse sympathetic resentment, but it is an object of disinterested, moral resentment also because it is intrinsically antipathetic. Lying is a cheap and cowardly method of gaining an undue advantage, and is consequently despised where courage is respected.[15] It is the weapon of the weak, the woman, [16] and the slave.[17] Fraud, says Cicero, is the property of a fox, force that of a lion; "both are utterly repugnant to society, but fraud is the more detestable."[18] "To lie is servile," says Plutarch, "and most hateful in all men, hardly to be pardoned even in poor slaves."[19] On account of its cowardliness, lying was incompatible with Teutonic and knightly notions of manly honour; and among ourselves the epithets "liar" and "coward" are equally disgraceful to a man. "All . . . in the rank and station of gentlemen," Sir Walter Scott observes, "are forcibly called upon to remember that they must resent the imputation of a voluntary falsehood as the most gross injury."[20] Fichte asks, "Whence comes that internal shame for one's self which manifests itself even stronger in the case of a lie than in the case of any other violation of conscience?" And his answer is, that the lie is accompanied by cowardice, and that nothing so much dishonours us in our own eyes as want of courage.[21] According to Kant, "a lie is the abandonment, and, as it were, the annihilation, of the dignity of a man."[22]

[Footnote 15: Cf. Schopenhauer, Die Grundlage der Moral, § 17 (Sämmtliche Werke, vi. 250); Grote, Treatise on the Moral Ideals, p. 254.]

[Footnote 16: Women are commonly said to be particularly addicted to falsehood (Schopenhauer, Parerga und Paralipomena, ii. 497 sq. Galton, Inquiries into Human Faculty, p. 56 sq. Krauss, Sitte und Brauch der Südslaven, pp. 508, 514. Maurer, Bekehrung des Norwegischen Stammmes, ii. 159 [ancient Scandinavians]. Döllinger, The Gentile and the Jew, ii. 234 [ancient Greeks]. Lane, Arabian Society in the Middle Ages, p. 219. Le Bon, La civilisation des Arabes, p. 433. Loskiel, History of the Mission of the United Brethren, i. 16 [Iroquois]. Hearne, Journey to the Northern Ocean, p. 307 sq. [Northern Indians]. Lyon, Private Journal, p. 349 [Eskimo of Igloolik]. Dalager, Grønlandske Relationer, p. 69; Cranz, History of Greenland, i. 175).]

[Footnote 17: See infra, p. 129 sq.]

[Footnote 18: Cicero, De officiis, i. 13.]

[Footnote 19: Plutarch, De educatione puerorum, 14.]

[Footnote 20: Scott, 'Essay on Chivalry,' in Miscellaneous Prose Works, vi. 58.]

[Footnote 21: Fichte, Das System der Sittenlehre, p. 370; English translation, p. 302 sq.]

[Footnote 22: Kant, Metaphysische Anfangungsgründe der Tugendlehre, p. 84.]

{114} But a lie may also be judged of from a very different point of view. It may be not only a sign of cowardice, but a sign of cleverness. Hence a successful lie may excite admiration, a disinterested kindly feeling towards the liar, genuine moral approval; whereas to be detected in a lie is considered shameful. And not only is the clever liar an object of admiration, but the person whom he deceives is an object of ridicule. To

the mind of a West African native, Miss Kingsley observes, there is no intrinsic harm in lying, "because a man is a fool who believes another man on an important matter unless he puts on the oath."[23] A Syrian proverb says, "Lying is the salt (goodness) of men, and shameful only to one who believes."[24]

[Footnote 23: Kingsley, West African Studies, p. 414. Cf. Sommerville, 'Ethnogr. Notes in New Georgia,' Jour. Anthr. Inst. xxvi. 394.]

[Footnote 24: Burton and Drake, Unexplored Syria, i. 275. See also Burckhardt, Arabic Proverbs, p. 44 sq.]

The duties of sincerity and good faith are also to some extent, and in certain cases principally, founded on prudential considerations. Although, as the Märchen tells us, it happens every day in the world that the fraudulent is successful,[25] there is a widespread notion that, after all, "honesty is the best policy." "Nothing that is false can be lasting," says Cicero.[26] "The liar is short-lived" (that is, soon detected), say the Arabs.[27] According to a Wolof proverb, "lies, however numerous, will be caught by truth when it rises up."[28] The Basutos have a saying that "cunning devours its master."[29] It has been remarked that "if there were no such thing as honesty, it would be a good speculation to invent it, as a means of making one's fortune."[30]

[Footnote 25: Grimm, Kinder und Hausmärchen, 'Katze und Maus in Gesellschaft,' 'Die drei Spinnerinnen,' 'Das tapfere Schneiderlein,' &c.]

[Footnote 26: Cicero, De officiis, ii. 12.]

[Footnote 27: Burckhardt, Arabic Proverbs, p. 119.]

[Footnote 28: Burton, Wit and Wisdom from West Africa, p. 15.]

[Footnote 29: Casalis, Basutos, p. 307.]

[Footnote 30: Quoted by Bentham, Theory of Legislation, p. 64.]

Moreover, lying is attended not only with social disadvantages, but with supernatural danger. The West African Fjort have a tale about a fisherman who every day used to catch and smuggle into his house great quantities of fish, {115} but denied to his brother and relatives that he had caught anything. All this time the fetish Sunga was watching, and was grieved to hear him lie thus. The fetish punished him by depriving him of the power of speech, that he might lie no more, and so for the future he could only make his wants known by signs.[31] In another instance, the Fjort tell us, the earth-spirit turned into a pillar of clay a woman who said that she had no peas for sale, when she had her basket full of them.[32] The Nandi of the Uganda Protectorate believe that "God punishes lying by striking the untruthful person with lightning."[33] The Dyaks of Borneo think that the lightning god is made angry even by the most nonsensical untruth, such as the statement that a man has a cat for his mother or that vermin can dance.[34] In Aneiteum, of the New Hebrides, the belief prevailed that liars would be punished in the life to come;[35] according to the Banks Islanders, they were excluded from the true Panoi or Paradise after death.[36] We have already noticed the emphasis which some of the higher religions lay on veracity and good faith, and other statements maybe added testifying the interest which gods of a more civilised type take in the fulfilment of these duties. In ancient Egypt Amon Ra, "the chief of all the gods," was invoked as "Lord of Truth";[37] and Ma[=a], or Maat, represented as his daughter, was the goddess of truth and righteousness.[38] In a Babylonian hymn the moon god is appealed to as the guardian of truth.[39] The Vedic gods are described as "true" and "not deceitful," as friends of honesty and righteousness;[40] and Agni was the lord of vows.[41] The {116} Zoroastrian Mithra was a protector of truth, fidelity, and covenants;[42] and Rashnu Razista, "the truest true," was the genius of truth.[43] According to the Iliad, Zeus is "no abettor of falsehoods";[44] according to Plato, a lie is hateful not

only to men but to gods.[45] Among the Romans Jupiter and Dius Fidius were gods of treaties,[46] and Fides was worshipped as the deity of faithfulness.[47] How shall we explain this connection between religious beliefs and the duties of veracity and fidelity to promises?

[Footnote 31: Dennett, Folklore of the Fjort, p. 88 sq.]

[Footnote 32: Ibid. p. 5.]

[Footnote 33: Johnston, Uganda Protectorate, ii. 879.]

[Footnote 34: Selenka, Sonnige Welten, p. 47.]

[Footnote 35: Turner, Samoa, p. 326.]

[Footnote 36: Codrington, Melanesians, p. 274.]

[Footnote 37: Wiedemann, Religion of the Ancient Egyptians, p. 112. Cf. Brugsch, Die Aegyptologie, pp. 49, 91, 92, 97; Amélineau, Essai sur l'évolution des idées morales dans l'Égypte Ancienne, pp. 182, 188, 251.]

[Footnote 38: Wiedemann, 'Ma[=a], déesse de la vérité,' in Annales du Musée Guimet, x. 561 sqq. Amélineau, op. cit. p. 187. Infra, p. 699.]

[Footnote 39: Mürdter-Delitzsch, Geschichte Babyloniens und Assyriens, p. 37.]

[Footnote 40: Bergaigne, La religion védique, iii. 199. Macdonell, Vedic Mythology, p. 18.]

[Footnote 41: Satapatha-Brâhmana, iii. 2. 2. 24.]

[Footnote 42: Darmesteter, Ormazd et Ahriman, p. 78. Geiger, Civilization of the Eastern Ir[=a]nians, pp. lvii., 164. Spiegel, Erânische Alterthumskunde, iii. 685.]

[Footnote 43: Darmesteter, in Sacred Books of the East, xxiii. 168.]

[Footnote 44: Iliad, iv. 235.]

[Footnote 45: Plato, Respublica, ii. 382.]

[Footnote 46: Fowler, Roman Festivals of the Period of the Republic, pp. 141, 229 sq.]

[Footnote 47: Cicero, De officiis, iii. 29. Idem, De natura deorum, ii. 23; iii. 18. Idem, De legibus, ii. 8, 11. Dionysius of Halicarnassus, Antiquitates Romanæ, ii. 75.]

Apart from the circumstances which in some cases make gods vindicators of the moral law in general, as conceived of by their worshippers, there are quite special reasons for their disapproval of insincerity and bad faith. Here again we notice the influence of magic beliefs on the religious sanction of morality.

There is something uncanny in the untrue word itself. As Professor Stanley Hall points out, children not in frequently regard every deviation from the most painfully literal truth as alike heinous, with no perspective or degrees of difference between the most barefaced intended and unintended lies. In some children this fear of telling an untruth becomes so neurotic that to every statement, even to yes or no, a "perhaps" or "I think" is added mentally, whispered, or aloud. One boy had a long period of fear that, like Ananias and Sapphira, he might some moment drop down dead for a chance and perhaps unconscious lie.[48] On the other hand, an acted lie is felt to be much less harmful than a spoken one; to point the wrong way when asked where some one is gone is less objectionable than to speak wrongly, to nod is less sinful than to say yes. Indeed, acted lies are for the most {117} part easily gotten away with, whereas some mysterious baneful energy seems to be attributed to the spoken untruth. That its evil influence is looked upon as quite mechanical appears from the palliatives used for it. Many American children are of opinion that a lie may be reversed by putting the left hand on the right shoulder and that even an oath may be neutralised or taken in an opposite sense by raising the left instead of the right hand.[49] Among children in New York "it was sufficient to cross the fingers, elbows, or legs, though the act might not be noticed by the companion accosted, and under such circumstances no blame attached

to a falsehood."[50] To think "I do not mean it," or to attach to a statement a meaning quite different from the current one, is a form of reservation which is repeatedly found in children.[51] Nor are feelings and ideas of this kind restricted to the young; they are fairly common among grown-up people, and have even found expression in ethical doctrines. They lie at the root of the Jesuit theory of mental reservations. According to Thomas Aquinas, again, though it is wrong to tell a lie for the purpose of delivering another from any danger whatever, it is lawful "to hide the truth prudently under some dissimulation, as Augustine says."[52] It is not uncommonly argued that in defence of a secret we may not "lie," that is, produce directly beliefs contrary to facts; but that we may "turn a question aside," that is, produce indirectly, by natural inference from our answer, a negatively false belief; or that we may "throw the inquirer on a wrong scent," that is, produce similarly a positively false belief.[53] This extreme formalism may no doubt to some extent be traced to the influence of early training. From the day we learned to speak, the duty of telling the truth has been strenuously enjoined upon us, and the word "lie" has been associated with sin of the {118} blackest hue; whereas other forms of falsehood, being less frequent, less obvious, and less easy to define, have also been less emphasised. But after full allowance is made for this influence, the fact still remains that a mystic efficacy is very commonly ascribed to the spoken word. Even among ourselves many persons would not dare to praise their health or fortune for fear lest some evil should result from their speech; and among less civilised peoples much greater significance is given to a word than among us. Herodotus, after mentioning the extreme importance which the ancient Persians attached to the duty of speaking the truth, adds that they held it unlawful even "to talk of anything which it is unlawful to do."[54] I think, then, we may assume that, if for some reason or other, falsehood is stigmatised, the mysterious tendency inherent in the word easily develops into an avenging power which, as often happens in similar cases, is associated with the activity of a god.

[Footnote 48: Stanley Hall, 'Children's Lies,' in American Journal of Psychology, iii. 59 sq.]

[Footnote 49: Stanley Hall, 'Children's Lies,' in American Journal of Psychology, iii. 68 sq.]

[Footnote 50: Bergen and Newell, 'Current Superstitions,' in Journal of American Folk-lore, ii. 111.]

[Footnote 51: Stanley Hall, loc. cit. p. 68.]

[Footnote 52: Thomas Aquinas, Summa theologica, ii.-ii. 110. 3. 4.]

[Footnote 53: See Sidgwick, Methods of Ethics, p. 317.]

[Footnote 54: Herodotus, i. 139.]

The punishing power of a word is particularly conspicuous in the case of an oath. But the evil attending perjury does not come from the lie as such: it is in the first place a result of the curse which constitutes the oath. An oath is essentially a conditional self-imprecation, a curse by which a person calls down upon himself some evil in the event of what he says not being true. The efficacy of the oath is originally entirely magical, it is due to the magic power inherent in the cursing words. In order to charge them with supernatural energy various methods are adopted. Sometimes the person who takes the oath puts himself in contact with some object which represents the state referred to in the oath, so that the oath may absorb, as it were, its quality and communicate it to the perjurer. Thus the Kandhs swear upon the lizard's skin, "whose scaliness they pray may be their lot if forsworn," or upon the earth of an ant-hill, "like which they desire that, if false, they may be reduced to powder."[55] The Tunguses regard it as the most

dreadful {119} of all their oaths when an accused person is compelled to drink some of the blood of a dog which, after its throat has been cut, is impaled near a fire and burnt, or has its flesh scattered about piece-meal, and to swear:--"I speak the truth, and that is as true as it is that I drink this blood. If I lie, let me perish, burn, or be dried up like this dog."[56] In other cases the person who is to swear takes hold of a certain object and calls it to inflict on him some injury if he perjure himself. The Kandhs frequently take oath upon the skin of a tiger, "from which animal destruction to the perjured is invoked."[57] The Angami Nagas, when they swear to keep the peace, or to perform any promise, "place the barrel of a gun, or a spear, between their teeth, signifying by this ceremony that, if they do not act up to their agreement, they are prepared to fall by either of the two weapons."[58] The Chuvashes, again, put a piece of bread and a little salt in the mouth and swear, "May I be in want of these, if I say not true!" or "if I do not keep my word!"[59] Another method of charging an oath with supernatural energy is to touch, or to establish some kind of contact with, a holy object on the occasion when the oath is taken. The Iowa have a mysterious iron or stone, wrapped in seven skins, by which they make men swear to speak the truth.[60] The people of Kesam, in the highlands of Palembang, swear by an old sacred knife,[61] the Bataks of South Tóba on their village idols,[62] the Ostyaks on the nose of a bear, which is regarded by them as an animal endowed with supernatural power.[63] Among the Tunguses a criminal may be compelled to climb one {120} of their sacred mountains, repeating as he mounts, "May I die if I am guilty," or, "May I lose my children and my cattle," or, "I renounce for ever all success in hunting and fishing if I am guilty."[64] In Tibetan law-courts, when the great oath is taken, "it is done by the person placing a holy scripture on his head, and sitting on the reeking hide of an ox and eating part of the ox's heart."[65] Hindus swear on a copy of the Sanskrit haribans, or with Ganges water in their hands, or touch the legs of a Brâhmana in taking an oath.[66] Muhammedans swear on the Koran, as Christians do on the Bible. In Morocco an oath derives efficacy from contact with, or the presence of, any lifeless object, animal, or person endowed with baraka, or holiness, such as a saint-house or a mosque, corn or wool, a flock of sheep or a horse, or a shereef. In mediæval Christendom sacred relics were generally adopted as the most effective means of adding security to oaths, and "so little respect was felt for the simple oath that, ere long, the adjuncts came to be looked upon as the essential feature, and the imprecation itself to be divested of binding force without them."[67]

[Footnote 55: Macpherson, Memorials of Service in India, p. 83.]

[Footnote 56: Georgi, Russia, iii. 86.]

[Footnote 57: Macpherson, op. cit. p. 83. Cf. Hose, 'Natives of Borneo,' in Jour. Anthr. Inst. xxiii. 165 (Kayans).]

[Footnote 58: Butler, Travels in Assam, p. 154. Mac Mahon, Far Cathay, p. 253. Prain, 'Angami Nagas,' in Revue coloniale internationale, v. 490. Cf. Lewin, Wild Races of South-Eastern India, pp. 193 (Toungtha), 244 sq. (Pankhos and Bunjogees); St. John, 'Hill Tribes of North Aracan,' in Jour. Anthr. Inst. ii. 242.]

[Footnote 59: Georgi, op. cit. i. 110.]

[Footnote 60: Hamilton, quoted by Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 427.]

[Footnote 61: Glimpses of the Eastern Archipelago, p. 104.]

[Footnote 62: von Brenner, Besuch bei den Kannibalen Sumatras, p. 213.]

[Footnote 63: Castrén, Nordiska resor och forskningar, i. 307, 309; iv. 123 sq. Cf. Ahlqvist, 'Unter Wogulen und Ostjaken,' in Acta Societatis Scientiarum Fennicæ, xiv. 298.]

[Footnote 64: Georgi, op. cit. iii. 86.]

[Footnote 65: Waddell, Buddhism of Tibet, p. 569, n. 7.]

[Footnote 66: Grierson, Bih[=a]r Peasant Life, p. 401. Sleeman, Rambles and Recollections of an Indian Official, ii. 116.]

[Footnote 67: Lea, Superstition and Force, p. 29. See also Kaufmann, Deutsche Geschichte, ii. 297; Ellinger, Das Verhältniss der öffentlichen Meinung zu Wahrheit und Lüge im 10. 11. und 12. Jahrhundert, pp. 30, 111.]

Finally, as an ordinary curse, so an oath is made efficacious by bringing in the name of a supernatural being, to whom an appeal is made. When the Comanches of Texas make a sacred pledge or promise, "they call upon the great spirit as their father, and the earth as their mother, to testify to the truth of their asseverations."[68] Of the Chukchi we are told that "as often as they would certify the truth of any thing by oath or solemn protestations they take the sun for their guarantee and security."[69] Among the Tunguses an accused person takes a knife in his hand, brandishes it towards the sun, and says, "If I {121} am guilty, may the sun send diseases into my bowels as mortal as a stab with this knife would be!"[70] An Arab from the province of Dukkâla in Morocco presses a dagger against his chest, saying, "By this poison, may God thrust it into my heart if I did so or so!" If a Masai is accused of having done something wrong, he drinks some blood, which is given him by the spokesman, and says, "If I have done this deed may God kill me"; and it is believed that if he has committed the crime he dies, whereas no harm befalls him if he is innocent.[71] Among the Tshi-speaking peoples of the Gold Coast, "to make an oath binding on the person who takes it, it is usual to give him something to eat or to drink which in some way appertains to a deity, who is then invoked to visit a breach of faith with punishment."[72] Among the Shekani and Bakele people of Southern Guinea, when a covenant between different tribes is about to be formed, their great spirit, Mwetyi, "is always invoked as a witness, and is commissioned with the duty of visiting vengeance upon the party who shall violate the engagement."[73] It seems to be a common practice in certain parts of Africa to swear by some fetish.[74] The Efatese, of the New Hebrides, invoked punishment from the gods in their oaths.[75] In Florida, of the Solomon Group, a man will deny an accusation by some tindalo (that is, the disembodied spirit of some man who already in his lifetime was supposed to be endowed with supernatural power), or by the ghostly frigate-bird, or by the ghostly shark.[76] When an ancient Egyptian wished to give assurance of his honesty and good faith, he called Thoth to witness, the advocate in the heavenly court of justice, without whose justification no soul could stand in the day of judgment.[77] The Eranians swore by Mithra,[78] the Greeks by Zeus,[79] the {122} Romans by Jupiter and Dius Fidius.[80] A god is more able than ordinary mortals to master the processes of nature, and he may also better know whether the sworn word be true or false.[81] It is undoubtedly on account of their superior knowledge that sun or moon or light gods are so frequently appealed to in oaths. The Egyptian god Ra is a solar,[82] and Thoth a lunar[83] deity. The Zoroastrian Mithra, who "has a thousand senses, and sees every man that tells a lie,"[84] is closely connected with the sun;[85] and Rashnu Razista, according to M. Darmesteter, is an offshoot either of Mithra or Ahura Mazda himself.[86] Dius Fidius seems originally to have been a spirit of the heaven, and a wielder of the lightning, closely allied to the great Jupiter.[87] Zeus is all-seeing, the infallible spy of both gods and men.[88] Now, even though the oath has the form of an appeal to a god, it may nevertheless be of a chiefly magic character, being an imprecation rather than a prayer. The oaths which the Moors swear by Allah are otherwise exactly similar in nature to those in which he is not mentioned at all. But the more the belief in magic was

shaken, the more the spoken word was divested of that mysterious power which had been attributed to it by minds too apt to confound words with facts, the more prominent became the religious element in the oath. The fulfilment of the self-imprecation was made dependent upon the free will of the deity appealed to, and was regarded as the punishment for an offence committed by the perjurer against the god himself.[89]

[Footnote 68: Neighbors, in Schoolcraft, Indian Tribes of the United States, i. 132.]

[Footnote 69: Georgi, op. cit. iii. 183.]

[Footnote 70: Georgi, op. cit. iii. 85 sq.]

[Footnote 71: Hollis, Masai, p. 345.]

[Footnote 72: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 196.]

[Footnote 73: Wilson, Western Africa, p. 392.]

[Footnote 74: Schultze, Der Fetischismus, p. 111.]

[Footnote 75: Turner, Samoa, p. 334.]

[Footnote 76: Codrington, op. cit. p. 217.]

[Footnote 77: Tiele, History of the Egyptian Religion, p. 229. Amélineau, op. cit. p. 251.]

[Footnote 78: Yasts, x.]

[Footnote 79: Iliad, iii. 276 sqq. Farnell, Cults of the Greek States, i. 70.]

[Footnote 80: von Lasaulx, Der Eid bei den Römern, p. 9.]

[Footnote 81: Cf. James, Expedition from Pittsburg to the Rocky Mountains, i. 267 (Omahas); Tylor, Primitive Culture, ii. 231 (Ostyaks).]

[Footnote 82: Maspero, Dawn of Civilization, p. 87 sq. Wiedemann, Religion of the Ancient Egyptians, p. 14. Erman, Handbook of Egyptian Religion, p. 10.]

[Footnote 83: Maspero, op. cit. p. 145. Erman, op. cit. p. 11.]

[Footnote 84: Yasts, x. 107.]

[Footnote 85: Darmesteter, in Sacred Books of the East, xxiii. 122, n. 4. Meyer, Geschichte des Alterthums, i. 541 sq. Geiger, op. cit. i. p. lvi.]

[Footnote 86: Darmesteter, in Sacred Books of the East, xxiii. 168.]

[Footnote 87: Fowler, Roman Festivals, p. 141.]

[Footnote 88: Cf. Iliad, iii. 277; Ovid, Metamorphoses, iv. 172; Darmesteter, Essais orientaux, p. 107; Usener, Götternamen, p. 177 sqq.]

[Footnote 89: Grotius says (De jure belli et pacis, ii. 13. 12) that even he who swears by false gods is bound, "because, though under false notions, he refers to the general idea of Godhead, and therefore the true God will interpret it as a wrong to himself if perjury be committed."]

{123} Owing to its invocation of supernatural sanction, perjury is considered the most heinous of all acts of falsehood.[90] But it has a tendency to make even the ordinary lie or breach of faith a matter of religious concern. If a god is frequently appealed to in oaths, a general hatred of lying and unfaithfulness may become one of his attributes, as is suggested by various facts quoted above. There is every reason to believe that a god is not, in the first place, appealed to because he is looked upon as a guardian of veracity and good faith, but that he has come to be looked upon as a guardian of these duties because he has been frequently appealed to in connection with them.

[Footnote 90: Among various peoples perjury is punished even by custom or law. Thus among the Gaika tribe of the Kafirs a person may be fined for taking a false oath in a law case (Brownlee, in Maclean, Compendium of Kafir Laws and Customs, p. 124). In Abyssinia a man convicted of perjury "would not only lose his reputation, and be for ever incapacitated from being witness even on the most trivial question, but he would

likewise in all probability be bound and severely fined, and might indeed think himself fortunate if he got off with all his limbs in their proper places, or without his hide being scored" (Parkyns, Life in Abyssinia, ii. 258 sq.). The laws of the Malays punish perjury (Crawfurd, History of the Indian Archipelago, iii. 90). In India, according to the Laws of Manu (viii. 219 sq.), he who broke an agreement after swearing to it was to be banished, imprisoned, and fined. Mediæval law-books punished perjurers with the loss of the right hand, by which the oath was sworn (Wilda, Das Strafrecht der Germanen, p. 983 sq.; Pollock and Maitland, History of English Law before the Time of Edward I. ii. 541). In a Danish law of 1537 it is said that the perjurer shall lose the two offending fingers so as to appease the wrath of God (Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 645). In other cases, again, no civil punishment is affixed to a false oath--for instance, among the Rejangs (Marsden, History of Sumatra, p. 240) and Bataks of Sumatra (Glimpses of the Eastern Archipelago, p. 86), the Ossetes (Kovalewsky, Coutume contemporaine, p. 324), Persians (Polak, Persien, ii. 83), and, as it seems, the ancient Hebrews (Keil, Manual of Biblical Archæology, ii. 348; Greenstone, 'Perjury,' in Jewish Encyclopedia, ix. 640), Greeks (Rohde, Psyche, p. 245, note), and Teutons in early times (Wilda, op. cit. p. 982; Brunner, Deutsche Rechtsgeschichte, ii. 681). Cicero says (De legibus, ii. 9) that "the divine punishment of perjury is destruction, the human punishment infamy"; but though perjury per se was not punished in Rome, the law appears from very early times to have contained provisions for punishing false testimony (Hunter, Roman Law, p. 1063; see also Mommsen, Römisches Strafrecht, p. 681). However, the fact that perjury is not treated as a crime by no means implies that it is not regarded as a sin. The punishment of it is left to the offended deity (Marsden, op. cit. p. 219; Glimpses of the Eastern Archipelago, p. 86; Crawfurd, op. cit. iii. 90 [Javanese]).]

It seems that sometimes the habit of oath-taking has, in another respect also, made it prudential for men to speak the simple truth in all circumstances. Sir W. H. Sleeman {124} observes that among the woods and hills of India the cotton and other trees are supposed by the natives to be occupied by deities who are vested with a local superintendence over the affairs of a district, or perhaps of a single village. "These," he says, "are always in the view of the people, and every man knows that he is every moment liable to be taken to their court, and to be made to invoke their vengeance upon himself or those dear to him, if he has told a falsehood in what he has stated, or tells one in what he is about to state. Men so situated adhere habitually, and I may say religiously, to the truth; and I have had before me hundreds of cases in which a man's property, liberty, or life, has depended upon his telling a lie, and he has refused to tell it to save either."[91] On the other hand, there are peoples among whom a person's word can hardly be trusted unless confirmed by an oath.[92] And one of the arguments adduced by the Quakers against the taking of oaths is that, if on any particular occasion a man swear in addition to his yea or nay, in order to make it more obligatory or convincing, its force becomes comparatively weak at other times when it receives no such confirmation.[93]

[Footnote 91: Sleeman, op. cit. ii. 111 sq.]

[Footnote 92: See, besides supra, Kingsley, West African Studies, p. 414; Chanler, Through Jungle and Desert, p. 186 sq. (Wamsara).]

[Footnote 93: Gurney, Views and Practices of the Society of Friends, p. 327.]

Modes of conduct which are recommended by prudence tend on that account in various ways to be regarded as morally compulsory or praiseworthy. This subject will be discussed in connection with duties and virtues which are called "self-regarding," but in the present place it is necessary to remind ourselves of the share which early

education has in making prudence a matter of moral consideration. Few duties owe so much to the training of parents and teachers as does veracity. Children easily resort to falsehood, in self-defence or otherwise, and truthfulness is therefore enjoined on them with particular emphasis.[94]

[Footnote 94: Cf. Priestley, in 'Essay III.' introductory to Hartley's Theory of the Human Mind, p. xlix. sq.]

{125} The moral ideas referring to truthfulness are, finally, much influenced by the force of habit. Where lying is frequent it is, other things being equal, less strenuously condemned, if condemned at all, than in communities which are strictly truthful. It is natural to speak the truth. Von Jhering's suggestion that man was originally a liar, and that veracity is the result of human progress,[95] is not consistent with facts. Language was not invented to disguise the truth, but to express it. As Hutcheson remarked long ago, "truth is the natural production of the mind when it gets the capacity of communicating it, dissimulation and disguise are plainly artificial effects of design and reflection."[96] It may be doubted whether there are any other mendacious creatures in the world than men.[97] It is said that "lies are told, if not in speech yet in acts, by dogs";[98] but the instances reported of canine deceitfulness[99] are hardly conclusive. As a cautious writer observes, the question is not whether there may be "objective deceitfulness" in the dog's conduct, but whether the motive is deceit: and "the deceitful intent is a piece, not of the observed fact, but of the observer's inference."[100] Nor is the child, strictly speaking, a born liar. M. Compayré even goes so far as to say that, if the child has not been subjected to bad influences, or if a discipline of repression and constraint has not driven him to seek a refuge in dissimulation, he is usually frankness and sincerity itself.[101] Montaigne remarked that the falsehood of a child grows with its growth.[102] According to M. Perez, useful dissimulations are practised by children already at the age of two years, but generally it is only after they are three or four years old that fear of being scolded or punished will lead {126} them into falsehood.[103] We are even told that certain savages are too stupid or too ignorant to tell lies. A Hindu gentleman of the plains, in the valley of the Nerbudda, when asked what made the uncultured people of the woods to the north and south so truthful, replied, "They have not yet learned the value of a lie."[104] But as we know how readily truthful savages become liars when their social conditions change, we may conclude that their veracity was due rather to absence of temptation than to lack of intelligence. In a small community of savages living by themselves, there is no need for lying, nor much opportunity to practise it. There is little scope for those motives which most commonly induce people to practise falsehood--fear and love of gain, combined with a hope of success.[105] Harmony and sympathy generally prevail between the members of the group, and deception is hardly possible since secrets do not exist.

[Footnote 95: von Jhering, Zweck im Recht, ii. 606.]

[Footnote 96: Hutcheson, System of Moral Philosophy, ii. 28. Cf. Reid, op. cit. vi. 24, p. 428 sqq.; Dugald Stewart, op. cit. ii. 333.]

[Footnote 97: Cf. Schopenhauer, Essays, p. 145.]

[Footnote 98: Spencer, Principles of Ethics, i. 405.]

[Footnote 99: Romanes, Animal Intelligence, pp. 443, 444, 451.]

[Footnote 100: Lloyd Morgan, Animal Life and Intelligence, p. 400.]

[Footnote 101: Compayré, L'évolution intellectuelle et morale de l'enfant, p. 309. See also Sully, Studies of Childhood, p. 263 sq.]

[Footnote 102: Montaigne, Essais, i. 9 ([OE]uvres, p. 16).]

[Footnote 103: Perez, First Three Years of Childhood, pp. 87, 89.]

[Footnote 104: Sleeman, op. cit. ii. 110.]

[Footnote 105: Cf. Sarasin, Forschungen auf Ceylon, iii. 543 (Veddahs).]

The case is different when savages come into frequent contact with foreigners. To deceive a stranger is easy, and no scruple is made of doing so. On the contrary, as we have seen, he is regarded as a proper object of deception, and this opinion is only too often justified by his own behaviour. But when commonly practised in relation to strangers, falsehood easily becomes a habit which affects the general conduct of the man. Hamzé, the teacher of the Druses, said, "When a man once gets into the way of speaking falsely, it is to be apprehended that, in spite of himself, and by the mere force of habit, he will get to speak falsely towards the brethren"; hence it is advisable to speak the truth at all times and before all men.[106] There is indeed abundant evidence that intercourse with strangers, and especially with people of a different race, has had a destructive influence on savage veracity.

[Footnote 106: Churchill, Mount Lebanon, iii. 225 sq.]

This has been noticed among many of the uncivilised tribes of India. "Formerly," says Mr. Man, "a Sonthal, as a rule, {127} disdained to tell a falsehood, but the influences of civilisation, transfused through the contagious ethics of his Bengali neighbours, have somewhat impaired his truthfulness. In the last four or five years a great change for the worse has become evident, although even now, as a people, they are glorious exceptions to the prevailing idiosyncrasy of the lower class of natives in Bengal. With the latter, speaking the truth has been always an accident; with the Sonthal it was a characteristic principle."[107] Indeed, the Santals in Singbhúm, who live much to themselves, are still described by Colonel Dalton as "a very simple-minded people, almost incapable of deception."[108] The Tipperah, "where he is brought into contact with, or under the influence of the Bengallee, easily acquires their worst vices and superstitions, losing at the same time the leading characteristic of the primitive man--the love of truth."[109] Other tribes, like the Garos and Bhúmij, have likewise been partly contaminated by their intercourse with Bengalis, and acquired from them a propensity to lie, which, in former days, was altogether foreign to them.[110] The Kakhyens are at the present time lazy, thievish, and untrustworthy, "whether their character has been deteriorated by knavish injustice on the part of Chinese traders, or high-handed extortion and wrong on the part of Burmese."[111] The Ladakhis are, in general, "frank, honest, and moral when not corrupted by communication with the dissolute Kashmiris."[112] Of the Paháriás, who according to an earlier authority would sooner die than lie,[113] it is now reported that "those who have most to do with them say they cannot rely on their word, and that they not only lie without scruple, but are scarcely annoyed at being detected."[114] The Todas, whilst they call falsehood one of the worst vices and have a temple dedicated to Truth, seem nowadays only too often to forget both the temple and its object;[115] and we are told that the dissimulation they practise in their dealings with Europeans has been brought about by the habit of paying them for every insignificant item of information.[116] According to an {128} Indian civil servant quoted by Mr. Spencer, various other hill tribes, originally distinguished by their veracity, have afterwards been rendered less veracious by contact with the whites.[117]

[Footnote 107: Man, Sonthalia, p. 14. Cf. ibid. p. 20.]

[Footnote 108: Dalton, Ethnology of Bengal, op. cit. p. 217.]

[Footnote 109: Lewin, Wild Races of South-Eastern India, p. 216.]

[Footnote 110: Dalton, op. cit. pp. 68, 177.]

[Footnote 111: Anderson, Mandalay to Momien, p. 151.]

[Footnote 112: Moorcroft and Trebeck, Travels in the Himalayan Provinces of Hindustan, i. 321.]

[Footnote 113: Shaw, quoted by Dalton, op. cit. p. 274.]

[Footnote 114: Cumming, In the Himalayas, p. 404 sq.]

[Footnote 115: Harkness, A Singular Aboriginal Race inhabiting the Neilgherry Hills, p. 18.]

[Footnote 116: Metz, Tribes inhabiting the Neilgherry Hills, p. 13.]

[Footnote 117: Spencer, Principles of Sociology, ii. 234. See also Hodgson, Miscellaneous Essays, i. 152. (Bódo and Dhimáls); Dalton, op. cit. p. 206 (Múndas).]

Of the Andaman Islanders Mr. Man observes:--"It has been remarked with regret by all interested in the race, that intercourse with the alien population has, generally speaking, prejudicially affected their morals; and that the candour, veracity, and self-reliance they manifest in their savage and untutored state are, when they become associated with foreigners, to a great extent lost, and habits of untruthfulness, dependence, and sloth engendered."[118] Riedel makes a similar remark with reference to the natives of Ambon and Uliase.[119] Mr. Sommerville believes that the natives of New Georgia, in the Solomon Islands, learned their practice of cheating from European traders.[120]

[Footnote 118: Man, in Jour. Anthr. Inst. xii. 92.]

[Footnote 119: Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 41.]

[Footnote 120: Sommerville, in Jour. Anthr. Inst. xxvi. 394.]

Among the Ostyaks increasing civilisation has proved injurious to their ancient honesty, and those who live in the neighbourhood of towns or large villages have become even more deceitful than the colonists.[121] A similar change has taken place with other tribes belonging to the Russian Empire, for instance the Tunguses[122] and Kamchadales.[123]

[Footnote 121: Castrén, op. cit. ii. 121.]

[Footnote 122: Dall, Alaska, p. 518.]

[Footnote 123: Steller, Beschreibung von dem Lande Kamtschatka, p. 285. Sarytchew, 'Voyage of Discovery to the North-East of Siberia,' in Collection of Modern and Contemporary Voyages, v. 67.]

We hear the same story from America.[124] Among the Omahas "formerly only two or three were notorious liars; but now, there are about twenty who do not lie."[125] The old men of the Ojibwas all agree in saying that before the white man came and resided among them there was less lying than there is now.[126] The Indians of Mexico, Lumholtz writes, "do not tell the truth unless it suits them."[127] But with reference to some of them, the Tarahumares, he adds that, where they have had little or nothing to do with the whites, they are trustworthy, and profit is no inducement to them, as they believe {129} that their gods would be angry with them for charging an undue price.[128]

[Footnote 124: Domenech, Seven Years Residence in the Great Deserts of North America, ii. 69. Cf. Hearne, Journey to the Northern Ocean, pp. 307, 308, 310 (Chippewyans); Morgan, League of the Iroquois, p. 335 sq.]

[Footnote 125: Dorsey, 'Omaha Sociology' in Ann. Rep. Bur. Ethn. iii. 370.]

[Footnote 126: Schoolcraft, Indian Tribes of the United States, ii. 139.]

[Footnote 127: Lumholtz, Unknown Mexico, ii. 477.]

[Footnote 128: Lumholtz, Unknown Mexico, i. 244, 418.]

The deceitfulness of many African peoples is undoubtedly in some degree a result of their intercourse with foreigners. In Sierra Leone, says Winterbottom, the natives on the sea coast, who are chiefly engaged in commerce, "are in general shrewd and artful, sometimes malevolent and perfidious. Their long connection with European slave traders has tutored them in the arts of deceit."[129] The Yorubas, according to Burton, are eminently dishonest only "in and around the cities."[130] Among the Kalunda those who live near the great caravan roads and have had much to do with foreign traders are suspicious and false.[131] And the Hottentots, of whose truthfulness earlier writers spoke very highly, are nowadays said to be addicted to lying.[132]

[Footnote 129: Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 206.]

[Footnote 130: Burton, Abeokuta, i. 303.]

[Footnote 131: Pogge, Im Reiche des Muata Jamwo, p. 236.]

[Footnote 132: Fritsch, Die Eingeborenen Süd-Afrika's, p. 307 sq.]

It has also been noticed that mendacity is favoured among children by much intercourse with strangers, when "first impressions" are consciously made, as also by frequent change of environment, or of school or residence, as such changes give rise to a feeling that "new leaves" can be easily turned.[133]

[Footnote 133: Stanley Hall, in American Journal of Psychology, iii. 70.]

When a social unit is composed of loosely connected sub-groups, the intercourse between members of different sub-groups resembles in many respects that between foreigners. Social incoherence is thus apt to lead to deceitful habits, as was the case in the Middle Ages. The same phenomenon is to be observed in the East; perhaps also among the Desert Arabs and the Fuegians, who live in small parties which only occasionally meet and soon again separate.

Another factor which has favoured deception is social differentiation. The different classes of society have often little sympathy for each other, their interests are not infrequently conflicting, deceit is a means of procuring advantages, and, for the inferior classes especially, a means of self-protection. As Euripides observes, slaves are in {130} the habit of concealing the truth.[134] In Eastern Africa, says Livingstone, falsehood is a vice prevailing among the free, but still more among the slaves; "one can scarcely induce a slave to translate anything truly: he is so intent on thinking of what will please."[135]

[Footnote 134: Euripides, Ph[oe]nissæ, 392. Cf. Burton, Arabian Nights, i. 176, n. 1.]

[Footnote 135: Livingstone, Expedition to the Zambesi, p. 309. See also Polack, Manners and Customs of the New Zealanders, ii. 59.]

Hardly anything has been a greater inducement to falsehood than oppression. Whilst the old Makololo were truthful, this is not the case with their sons, "who, having been brought up among the subjected tribes, have acquired some of the vices peculiar to a menial and degraded race."[136] The Wanyoro, who are described as "splendid liars," exercised deception chiefly to evade the intolerable exactions of their own chiefs, whereas they are fairly truthful in contact with Europeans who attempt to treat them justly.[137] The duplicity and cunning of the Malagasy are "the natural result of centuries of superstition, ignorance, and submission to the rule of tyrannical despots, with whom the spy system has always been a necessity."[138] In Morocco the independent Jbâla, or mountaineers of the North, are more to be trusted than the Arabs of the plains, who have long been suffering from the extortions of rapacious officials. The duplicity of Orientals is very largely due to their despotic form of government.[139] In India, Mr. Percival observes, "despotism in one form or other that has so long prevailed, and the consequent oppression attendant thereon, must have rendered it difficult to make way

without fraud. Deception and arts of cunning, under such circumstances, being the only means at the command of the inferior portions of the community for gaining their ends, and securing the plainest rights, they would resort to them as the only way of avoiding certain ruin."[140] The Chinese habit of lying has {131} been attributed partly to the truckling fear of officers.[141] In China and many other parts of the East, says Sir J. Bowring, "there is a fear of truth as truth, lest its discovery should lead to consequences of which the inquirer never dreams, but which are present to the mind of the person under interrogation."[142]

[Footnote 136: Livingstone, Expedition to the Zambesi, p. 283.]

[Footnote 137: Johnston, Uganda Protectorate, ii. 591.]

[Footnote 138: Little, Madagascar, p. 72.]

[Footnote 139: Vámbéry, Der Islam im neunzehnten Jahrhundert, p. 231.]

[Footnote 140: Percival, Land of the Veda, p. 288. Cf. Malcolm, Memoir of Central India, ii. 171; Hodgson, Miscellaneous Essays, i. 152.]

[Footnote 141: Wells Williams, The Middle Kingdom, i. 835.]

[Footnote 142: Bowring, Siam, i. 105 sq.]

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The regard for truth displays itself not only in the condemnation of falsehood, but in the idea that, under certain circumstances, it is a person's duty to inform others of the truth, although there is no deception in withholding it. This duty is limited by utilitarian considerations, and it is less insisted on than the duty of refraining from falsehood; positive commandments, as we have seen, are generally less stringent than the corresponding negative commandments.[143] But to disclose the truth for the benefit of others, when it is attended with injurious consequences for the person who discloses it, can hardly fail to evoke moral approval, and may be deemed a merit of the highest order.

[Footnote 143: Supra, i. 303 sqq.]

The regard for truth goes a step further still. It may be obligatory or praiseworthy not only to spread the knowledge of truth, but to seek for it. The possession of knowledge, of some kind or other, is universally respected. A Wolof proverb says, "Not to know is bad, not to wish to know is worse."[144] In the moral and religious systems of the East knowledge is one of the chief pursuits of man. Confucius described virtue as consisting of knowledge, magnanimity, and valour.[145] The ancients, he says, "wishing to rectify their hearts, . . . first desired to be sincere in their thoughts. Wishing to be sincere in their thoughts, they first extended to the utmost their knowledge. Such extension of knowledge lay in the investigation of things."[146] Knowledge is to be pursued not for theoretical, but for {132} moral purposes; the Master said, "It is not easy to find a man who has learned for three years without coming to be good."[147] The Hindus maintain that ignorance is the greatest of evils, and that the sole and ultimate object of life should be to give and receive instruction.[148] It is said in the Laws of Manu, "A man is not therefore considered venerable because his head is gray; him who, though young, has learned the Veda, the gods consider to be venerable."[149] According to the Mahabharata, it is by knowledge that a creature is liberated, by knowledge that he becomes the Eternal, Imperceptible, and Undecaying.[150] Buddhism regards sin as folly and delusion as the cause of crime;[151] "the unwise man cannot discover the difference between that which is evil and that which is good, as a child knows not the value of a coin that is placed before him."[152] And the highest of all gifts, the source of abiding salvation, is the knowledge of the identity between the individual and God, in whom and by whom the individual lives, and moves, and has his being.[153] According

to one of the Pahlavi texts, wisdom is better than wealth of any kind;[154] through the power of wisdom it is possible to do every duty and good work;[155] the religion of the Mazda-worshippers is apprehended more fully by means of the most perfect wisdom, and "even the struggle and warfare of Irân with foreigners, and the smiting of Aharman and the demons it is possible to effect through the power of wisdom."[156] A strong dash of intellectualism is a prominent feature in the Rabbinic religion. The highest virtue lies not only in the fulfilment but in the study of the law. There is a special merit bound up in it that will assist man both in this world and in the world to come; and it is said that even a bastard who is learned in {133} the law is more honoured than a high-priest who is not.[157] Among Muhammedans, also, great respect is shown to men of learning.[158] Knowledge, the Prophet said, "lights the way to Heaven"--"He dies not who gives life to learning"--"With knowledge the servant of God rises to the heights of goodness and to a noble position"--"The ink of the scholar is more holy than the blood of the martyr."[159]

[Footnote 144: Burton, Wit and Wisdom from West Africa, p. 6.]

[Footnote 145: Chung Yung, xx. 8. Douglas, Confucianism and Taouism, p. 105.]

[Footnote 146: Tâ Hsio, 4.]

[Footnote 147: Lun Yü, viii. 12. Cf. Faber, Digest of the Doctrines of Confucius, p. 60; de Lanessan, La morale des philosophes chinois, p. 27.]

[Footnote 148: Percival, Land of the Veda, p. 263.]

[Footnote 149: Laws of Manu, ii. 156.]

[Footnote 150: Muir, Original Sanskrit Texts, v. 327.]

[Footnote 151: Rhys Davids, Hibbert Lectures on the History of Buddhism, p. 208.]

[Footnote 152: Hardy, Manual of Budhism, p. 505.]

[Footnote 153: Rhys Davids, op. cit. p. 209.]

[Footnote 154: Dinâ-î Maînôg-î Khirad, xlvii. 6.]

[Footnote 155: Ibid. i. 54.]

[Footnote 156: Ibid. lvii. 15 sq.]

[Footnote 157: Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 495. Deutsch, Literary Remains, p. 35.]

[Footnote 158: Lane, Manners and Customs of the Modern Egyptians, p. 301 sq.]

[Footnote 159: Ameer Ali, Ethics of Islâm, pp. 47, 49.]

In Christianity the knowledge of truth became a necessary requirement of salvation. But here, as in the East, the truth which alone was valued was religious truth. All knowledge that was not useful to salvation was, indeed, despised, and science was regarded not only as valueless, but as sinful.[160] "The wisdom of this world is foolishness with God."[161] If it happened that any one gave himself to letters, or lifted up his mind to the contemplation of the heavenly bodies, he passed instantly for a magician or a heretic.[162] So also every mental disposition which is essential to scientific research was for centuries stigmatised as offensive to the Almighty; it was a sin to doubt the opinions which had been instilled in childhood before they had been examined, to notice any objection to those opinions, to resolve to follow the light of evidence wherever it might lead.[163] Yet we are told, even by highly respectable writers, that the modern world owes its scientific spirit to the extreme importance which Christianity {134} assigned to the possession of truth, of the truth.[164] According to M. Réville, "it was the orthodox intolerance of the Church in the Middle Ages which impressed on Christian society this disposition to seek truth at any price, of which the modern scientific spirit is only the application. The more importance the Church attached to the profession of the truth--to the extent even of considering involuntary error as in the highest degree a

damnable crime--so much the more the sentiment of the immense value of this truth arose in the general persuasion, along with a resolve to conquer it wherever it was felt not to be possessed. How otherwise," M. Réville asks, "can we explain that science was not developed and has not been pursued with constancy, except in the midst of Christian societies?"[165] This statement is characteristic of the common tendency to attribute to the influence of the Christian religion almost anything good which may be found among Christian nations. But, surely, the patient and impartial search after hidden truth, for the sake of truth, which constitutes the essence of scientific research, is not congenial to, but the very opposite of, that ready acceptance of a revealed truth for the sake of eternal salvation, which was insisted upon by the Church. And what about that singular love of abstract knowledge which flourished in ancient Athens, where Aristotle declared it a sacred duty to prefer truth to everything else,[166] and Socrates sacrificed his life on its altar? It seems that the modern scientific spirit is only a revival and development of a mental disposition which was for ages suppressed by the persecuting tendencies of the Church and the extreme contempt for learning displayed by the barbarian invaders and their descendants. Even when they had settled in the countries which they had conquered, the {135} Teutons would not permit their children to be instructed in any science, for fear lest they should become effeminate and averse from war;[167] and long afterwards it was held that a nobleman ought not to know letters, and that to write and read was a shame to gentry.[168]

[Footnote 160: Gibbon, Decline and Fall of the Roman Empire, ii. 185. von Eicken, Geschichte der mittelalterlichen Weltanschauung, pp. 128-130, 589 sqq.]

[Footnote 161: 1 Corinthians, iii. 19. Cf. Lactantius, Divines Institutiones, iii. 3 (Migne, Patrologiæ cursus, vi. 354 sqq.); St. Augustine, De Civitate Dei, viii. 10 (Migne, xli. 234).]

[Footnote 162: Chapelain, De la lecture des vieux romans, p. 20. As late as the middle of the seventeenth century a powerful party was rising in England who said that all learning was unfavourable to religion, and that it was sufficient for everyone to be acquainted with his mother-tongue alone (Twells, Life of Pocock, p. 176). The Duke de Saint Simon, who in 1721 and 1722 was the French ambassador in Madrid, states (Mémoires, xxxv. 209) that in Spain science was a crime, and ignorance and stupidity the chief virtues.]

[Footnote 163: Lecky, Rationalism in Europe, ii. 87 sq.]

[Footnote 164: Ritchie, Natural Rights, p. 172. Cf. Kuenen, Hibbert Lectures on National Religions and Universal Religions, p. 290.]

[Footnote 165: Réville, Prolegomena of the History of Religions, p. 226.]

[Footnote 166: Aristotle, Ethica Nicomachea, i. 6. 1. Prof. Ritchie argues (op. cit. p. 172 sq.) that a devotion to truth as such was in the ancient world known only to a few philosophers. Prof. Fowler is probably more correct in saying (Principles of Morals, ii. 45, 220 sq.; Progressive Morality, p. 114) that it was more common amongst the Greeks than amongst ourselves.]

[Footnote 167: Procopius, De bello Gothorum, i. 2. Robertson, History of the Reign of Charles V. i. 234. Millingen, op. cit. i. 22 sq. n. [dagger]]

[Footnote 168: Alain Chartier, quoted by Sainte-Palaye, op. cit. ii. 104. See also De la Nouë, Discours politiques et militaires, p. 238; Lyttleton, Life of Henry II. ii. 246 sq. The ignorance of the mediæval clergy has been somewhat exaggerated by Robertson (op. cit. pp. 21, 22, 278 sq.). Even in the dark ages it was not a very uncommon thing for the clergy to be able to read and write (Maitland, The Dark Ages, p. 16 sqq.).]

The regard for knowledge springs in the first instance from the love of it. As Aristotle said, "all men are by nature desirous of knowledge."[169] But this feeling is not equally strong, nor equally deep, in all. The curiosity of savages, however great it often may be,[170] has chiefly reference to objects or events which immediately concern their welfare or appear to them alarming, or to trifles which attract attention on account of their novelty. If their curiosity were more penetrating, they would no longer remain savages; an extended desire of knowledge leads to civilisation. But curiosity or love of knowledge, whether in savage or civilised men, is not resolvable merely into views of utility; as Dr. Brown observed, we feel it without reflecting on the pleasure which we are to enjoy or the pain which we are to suffer.[171] When highly developed, it drives men to scientific investigations even though no practical benefits are expected from the results. This devotion to truth for its own sake, pure and disinterested as it is, has a singular tendency to excite regard and admiration in everyone who has come under its influence. From the utilitarian point of view it has been defended on {136} the ground that, on the whole, every truth is in the long run useful and every error harmful, and that we can never exactly tell in advance what benefits may accrue even from a knowledge which is apparently fruitless. But it seems that our love of truth is somewhat apt to mislead our moral judgment. When duly reflecting on the matter, we cannot help making a moral distinction between him who pursues his studies merely from an instinctive craving for knowledge, and him who devotes his life to the search of truth from a conviction that he may thereby promote human welfare.

[Footnote 169: Aristotle, Metaphysica, i. 1. 1, p. 980. Cf. Cicero, De officiis, i. 4.]

[Footnote 170: Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 42 (Eskimo). Krasheninnikoff, History of Kamschatka, p. 177. Anderson, Mandalay to Momien, p. 151 (Kakhyens). Foreman, Philippine Islands, p. 188 (Tagálog natives of the North). Bock, Head Hunters of Borneo, p. 209 (Dyaks). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 320 (natives of Timor-laut). Dieffenbach, Travels in New Zealand, ii. 108.]

[Footnote 171: Dugald Stewart, op. cit. ii. 336. Brown, Lectures on the Philosophy of the Human Mind, lec. 67, p. 451.]

Chapter XXXII

THE RESPECT FOR OTHER MEN'S HONOUR AND SELF-REGARDING PRIDE--POLITENESS

THERE are many acts, forbearances, and omissions, the offensiveness of which mainly or exclusively springs from men's desire to be respected by their fellow-men and their dislike of being looked down upon. Foremost among these are attacks upon people's honour and good name. A man's honour may be defined as the moral worth he possesses in the eyes of the society of which he is a member, and it behoves other persons to acknowledge this worth and, especially, not to detract from it by imputing to him, on insufficient grounds, such behaviour as is generally considered degrading.

The censure to which he is subject or the contempt in which he is held may no doubt affect his welfare in various ways, but it is chiefly painful as a violation of his personal dignity. Hence the duty of respecting a man's honour is on the whole contained in the more comprehensive obligation of showing deference, in words and deeds, for his feeling of self-regarding pride.

This feeling, or at least the germ of it, is found already in some of the lower animals. Among "high-life" dogs, says Professor Romanes, "wounded sensibilities and loss of esteem are capable of producing much keener suffering than is mere physical pain." A reproachful word or look from any of his friends made a {138} Skye terrier miserable for a whole day; and another terrier, who when in good humour used to perform various tricks, was never so pleased as when his joke was duly appreciated, whereas "nothing displeased him so much as being laughed at when he did not intend to be ridiculous."[1] Monkeys also, according to Dr. Brehm, are "very sensitive to every kind of treatment they may receive, to love and dislike, to encouraging praise and chilling blame, to pleasant flattery and wounding ridicule, to caresses and chastisement."[2]

[Footnote 1: Romanes, Animal Intelligence, pp. 439, 444.]

[Footnote 2: Brehm, From North Pole to Equator, p. 299. Cf. ibid. pp. 304-306, Brehm, Thierleben, i. 75, 157; Schultze, Vergleichende Seelenkunde, i. pt. i. 110; Perty, Das Seelenleben der Thiere, p. 66.]

Among the savage races of men, as among civilised peoples, self-regarding pride is universal, and in many of them it is a very conspicuous trait of character.[3] The Veddah of Ceylon, says Mr. Nevill, "is proud in the extreme, and considers himself no man's inferior. Hence he is keenly sensitive to ridicule, contempt, and even patronage. There is nothing he dreads more than being laughed at as a savage, because he dislikes clothes and cultivation."[4] Australian aborigines are described as "extravagantly proud,"[5] as "vain and fond of approbation."[6] In Fiji "anything like a slight deeply offends a native, and is not soon forgotten."[7] The Negroes of Sierra Leone "possess a great share of pride, and are easily affected by an insult: they cannot hear even a harsh expression, or a raised tone of voice, without shewing that {139} they feel it."[8] The Araucanians, inhabiting parts of Chili, "are naturally fond of honourable distinction, and there is nothing they can endure with less patience than contempt or inattention."[9] The North American Indians, says Perrot, "ont généralement touts beaucoup de vaine gloire dans leurs actions bonnes ou mauvaises. . . . L'ambition est en un mot une des plus fortes passions qui les anime."[10] The Indian of British Columbia, for instance, "watches that he may receive his proper share of honour at festivals; he cannot endure to be ridiculed for even the slightest mistake; he carefully guards all his actions, and looks for due honour to be paid to him by friends, strangers, and subordinates. This peculiarity appears most clearly in great festivals."[11] Thus, in numerous instances, "persons who have been hoarding up property for ten, fifteen, or twenty years (at the same time almost starving themselves for want of clothing), have given it all away to make a show for a few hours, and to be thought of consequence."[12] Speaking of the Eskimo about Behring Strait, Mr. Nelson observes, "As with all savages, the Eskimo are extremely sensitive to ridicule and are very quick to take offence at real or seeming slights."[13] Among the Atkha Aleuts it has happened that men have committed suicide from disappointment at the failure of an undertaking, fearing that they would become the laughing-stock of the village.[14] Among many other savages shame or wounded pride is not uncommonly a cause of suicide.[15] The Hos of Chota Nagpore have a saying that for a wife who has been reproved by her husband {140}"nothing remains but the water at the bottom of the well";[16] and in New Zealand native women sometimes killed themselves because they had been rebuked for negligence in cooking or for want of care towards a child.[17]

[Footnote 3: Dieffenbach, Travels in New Zealand, ii. 107; Colenso, Maori Races of New Zealand, p. 56. Crawfurd, History of the Indian Archipelago, i. 54. Raffles, History of Java, i. 249. St. John, Life in the Forests of the Far East, ii. 323 (Malays of

Sarawak). Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 94. Stewart, 'Notes on Northern Cachar,' in Jour. Asiatic Soc. Bengal, xxiv. 609 (Nagas). Bergmann, Nomadische Streifereien unter den Kalmüken, ii. 290, 295, 296, 312. Högström, Beskrifning öfver de til Sveriges Krona lydande Lapmarker, p. 152 (Lapps). Dall, Alaska, p. 392 sq. (Aleuts). Brett, Indian Tribes of Guiana, p. 103.]

[Footnote 4: Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 192. Cf. Sarasin, Ergebnisse naturwissenschaftlicher Forschungen auf Ceylon, iii. 537.]

[Footnote 5: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 109.]

[Footnote 6: Mathew, in Curr, The Australian Race, iii. 155.]

[Footnote 7: Williams and Calvert, Fiji, p. 105. Cf. ibid. p. 103 sq.]

[Footnote 8: Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 211.]

[Footnote 9: Molina, History of Chili, ii. 113.]

[Footnote 10: Perrot, Memoire sur les m[oe]urs, coustumes et relligion des sauvages de l'Amerique septentrionale, p. 76. Cf. Buchanan, Sketches of the History, Manners, and Customs of the North American Indians, p. 165; Matthews, Ethnography and Philology of the Hidatsa Indians, p. 41.]

[Footnote 11: Boas, in Fifth Report on the North-Western Tribes of Canada, p. 19.]

[Footnote 12: Duncan, quoted by Mayne, Four Years in British Columbia, p. 295.]

[Footnote 13: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 300.]

[Footnote 14: Yakof, quoted by Petroff, Report on Alaska, p. 158. Cf. Dall, op. cit. p. 391 (Aleuts).]

[Footnote 15: See infra, on Suicide; Lasch, 'Besitzen die Naturvölker ein persönliches Ehrgefühl?' in Zeitschr. f. Socialwissenschaft, iii. 837 sqq.]

[Footnote 16: Bradley-Birt, Chota Nagpore, p. 104. Cf. Dalton, Descriptive Ethnology of Bengal, p. 206.]

[Footnote 17: Colenso, op. cit. p. 57.]

Like other injuries, an insult not only affects the feelings of the victim, but arouses sympathetic resentment in outsiders, and is consequently disapproved of as wrong. Among the Maoris, if anybody wantonly tried to hurt another's feelings, it was immediately repressed, and "such a person was spoken of as having had no parents, or, as having been born (laid) by a bird."[18] In the Malay Archipelago, "among some of the tribes, abusive language cannot with impunity be used even to a slave. Blows are still more intolerable, and considered such grievous affronts, that, by law, the person who receives them is considered justified in putting the offender to death."[19] The natives of the Tonga Islands hold no bad moral habit to be more "ridiculous, depraved, and unjust, than publishing the faults of one's acquaintances and friends . . . . ; and as to downright calumny or false accusation, it appears to them more horrible than deliberate murder does to us: for it is better, they think, to assassinate a man's person than to attack his reputation."[20] According to the customary laws of the Fantis in West Africa, "where a person has been found guilty of using slanderous words, he is bound to retract his words publicly, in addition to paying a small fine by way of compensation to the aggrieved party. Words imputing witchcraft, adultery, immoral conduct, crime, and all words which sound to the disreputation of a person of whom they are spoken are actionable."[21]

[Footnote 18: Ibid. p. 53.]

[Footnote 19: Crawfurd, op. cit. iii. 119 sq.]

[Footnote 20: Mariner, Natives of the Tonga Islands, ii. 163 sq.]

[Footnote 21: Sarbah, Fanti Customary Laws, p. 94.]

Among the Aztecs of ancient Mexico he who wilfully calumniated another, thereby seriously injuring his {141} reputation, was condemned to have his lips cut off, and sometimes his ears also; whilst in Tezcuco the slanderer suffered death.[22] In the Chinese penal code a special book is provided for the prevention and punishment of opprobrious and insulting language, as "having naturally a tendency to produce quarrels and affrays."[23] Among Arabs all insulting expressions have their respective fines ascertained in the [k.]ady's court.[24] It is said in the Talmud:--"Let the honour of thy neighbour be to thee like thine own. Rather be thrown into a fiery furnace than bring any one to public shame."[25]

[Footnote 22: Bancroft, Native Races of the Pacific States, ii. 463.]

[Footnote 23: Ta Tsing Leu Lee, p. 354 n.*]

[Footnote 24: Burckhardt, Notes on the Bedouins and Wahábys, p. 70 sq.]

[Footnote 25: Deutsch, Literary Remains, p. 57.]

The Roman Law of the Twelve Tables contained provisions against libellers,[26] and throughout the whole history of Roman law an attack upon honour or reputation was deemed a serious crime.[27] As for wrongful prosecution, which may be regarded as an aggravated form of defamation, the law of the later Empire required that any one bringing a criminal charge should bind himself to suffer in case of failure the penalty that he had endeavoured to call down upon his adversary.[28] Among Teutonic peoples defamatory words and libelling were already at an early date punished with a fine.[29] The Salic Law decrees that a person who calls a freeborn man a "fox" or a "hare" or a "dirty fellow," or says that he has thrown away his shield, must pay him three solidi;[30] whilst, according to one text of the same law, it cost 188 solidi (or nearly as much as was paid for the murder of a Frankish freeman)[31] to call a freeborn woman a witch or a harlot, in case the truth of the charge could not be proved.[32] {142} The oldest English laws exacted bót and wíte from persons who attacked others with abusive words.[33] In the thirteenth century, in almost every action before an English local court, the plaintiff claimed compensation not only for the "damage," but also for the "shame" which had been done him.[34] We further find that regular actions for defamation were common in the local courts; whereas in later days the ecclesiastical procedure against defamatory speech seems to have been regarded as the usual, if not the only, engine which could be brought to bear upon cases of libel and slander.[35] In England, as in Rome, there was a strong feeling that men should not make charges which they could not prove: before the Conquest a person might lose his tongue, or have to redeem it with his full wer, if he brought a false and scandalous accusation; and under Edward I. a statute decreed that if the appellee was acquitted his accuser should lie in prison for a year and pay damages by way of recompense for the imprisonment and infamy which he had brought upon the innocent.[36]

[Footnote 26: Lex Duodecim Tabularum, viii. 1.]

[Footnote 27: Digesta, xlvii. 10. 15. 25. Codex Justinianus, ix. 36. Hunter, Exposition of Roman Law, p. 1069 sq. Mommsen, Römisches Strafrecht, p. 794 sq.]

[Footnote 28: Günther, Die Idee der Wiedervergeltung, i. 141 sqq. Mommsen, op. cit. p. 496 sq.]

[Footnote 29: Wilda, Strafrecht der Germanen, p. 776 sqq. Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 293 sqq. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 686 sq. Brunner, Deutsche Rechtsgeschichte, ii. 672 sqq.]

[Footnote 30: Lex Salica, xxx. 4, 5, 2; Hessel's edition, col. 181 sqq.]

[Footnote 31: Ibid. xv. col. 91 sqq.]

[Footnote 32: Ibid. lxvii. 2, col. 403.]

[Footnote 33: Laws of Hlothhaere and Eadric, 11.]

[Footnote 34: Pollock and Maitland, History of English Law till the Time of Edward I. ii. 537.]

[Footnote 35: Ibid. ii. 538. Stephen, History of the Criminal Law of England, ii. 409.]

[Footnote 36: Pollock and Maitland, op. cit. ii. 539.]

The condemnation of an insult is greatly influenced by the status of, or the relations between, the parties concerned. Among the Goajiro Indians of Colombia a poor man may be insulted with impunity, when the same treatment to a rich man would cause certain bloodshed.[37] In Nias an affront is punished with a fine, which varies according to the rank of the parties.[38] The Chinese penal code lays down that a person who is guilty of addressing abusive language to his or her father or mother, or father's parents, or a wife who rails at her husband's parents or grandparents, shall be strangled;[39] and the same punishment is prescribed for a slave who abuses his master.[40] {143} According to the Laws of Manu, a Kshatriya shall be fined one hundred panas for defaming a Brâhmana, a Vaisya shall be fined one hundred and fifty or two hundred panas, and a Sûdra shall suffer corporal punishment; whereas a Brâhmana shall pay only fifty panas for defaming a Kshatriya, twenty-five for defaming a Vaisya, and twelve for defaming a Sûdra.[41] In ancient Teutonic law the fines for insulting behaviour were graduated according to the rank of the person offended.[42] The starting-point of the Roman law was that an injuria--which was pre-eminently an affront to the dignity of the person--could not be done to a slave as such, only to the master through the medium of his slave;[43] and even in later times, in the case of trifling injuries, such as mere verbal insults, the master had no action, unless by leave of the Praetor, or unless the insult were meant for the master himself.[44] These and similar variations spring from the same causes as do corresponding variations in the case of other injuries dealt with above. But there are also special reasons why social superiority or inferiority influences moral opinions concerning offences against persons self-regarding pride. The respect due to a man is closely connected with his station, and in the case of defamation the injury suffered by the loss of honour or reputation is naturally proportionate to the esteem in which the offended party is held. At the same time the harmfulness of an insult also depends upon the reputation of the person who offers it. According to the Gotlands Lag, one of the ancient provincial laws of Sweden, a slave can not only be insulted with impunity, but has himself to pay no fine for insulting another person[45]--obviously because he was too degraded a being to be able to detract from anybody's honour or good name.

[Footnote 37: Simons, 'Exploration of the Goajira Peninsula,' in Proceed. Roy. Geo. Soc. N.S. vii. 786.]

[Footnote 38: von Rosenberg, Der malayische Archipel, p. 167.]

[Footnote 39: Ta Tsing Leu Lee, sec. cccxxix. p. 357.]

[Footnote 40: Ibid. sec. cccxxvii. p. 356.]

[Footnote 41: Laws of Manu, viii. 267 sq. Cf. Gautama, xii. 8 sqq. It is also said that "a once-born man (a Sûdra), who insults a twice-born man with gross invective, shall have his tongue cut out; for he is of low origin" (ibid. viii. 270. See also Institutes of Vishnu, v. 23; Gautama, xii. 1; Âpastamba, ii. 10. 27. 14).]

[Footnote 42: Keyser, Efterladte Skrifter, ii. pt. i. 295.]

[Footnote 43: Hunter, Exposition of Roman Law, p. 164. Mommsen, Römisches Strafrecht, p. 786, n. 3.]

[Footnote 44: Digesta, xlvii. 10. 15. 35. Hunter, op. cit. p. 165.]

[Footnote 45: Gotlands-Lagen, i. 19. 37.]

{144} The condemnation of such conduct as is offensive to other persons' self-regarding pride includes condemnation of pride itself, when displayed in an excessive degree; whereas the opposite disposition--modesty--which implies regard for other people's "self-feeling," is praised as a virtue. The Fijians say of a boasting person, "You are like the kaka (parrot); you only speak to shout your own name."[46] On the other hand, among the Tonga Islanders "a modest opinion of oneself is esteemed a great virtue, and is also put in practice."[47] Confucius taught that humility belongs to the characteristics of a superior man.[48] Such a man, he said, is modest in his speech, though he exceeds in his actions;[49] he has dignified ease without pride, whereas the mean man has pride without a dignified ease;[50] he prefers the concealment of his virtue, when it daily becomes more illustrious, whereas the mean man seeks notoriety when he daily goes more and more to ruin.[51] So also humility has a distinguished place in the teachings of Lao-tsze:--"I have three precious things which I hold fast and prize, namely, compassion, economy, and humility"; "He who knows the glory, and at the same time keeps to shame, will be the whole world's valley . . . , eternal virtue will fill him, and he will return home to Taou."[52] In the Book of the Dead the soul of the ancient Egyptian pleads, "I am not swollen with pride."[53] According to Zoroastrianism, the sin of pride has been created by Ahriman.[54] Overbearingness was censured in ancient Scandinavia, [55] Greece,[56] and Rome. During our prosperity, says Cicero, "we ought with great care to {145} avoid pride and arrogance."[57] The Hebrew prophets condemned not only pride but eminence, because an eminent man is apt to be proud.[58] We read in the Talmud:--"He who humiliates himself will be lifted up; he who raises himself up will be humiliated. Whosoever runs after greatness, greatness runs away from him; he who runs from greatness, greatness follows him."[59] Christianity enjoined humility as a cardinal duty in every man.[60] In the Koran it is said, "God loves not him who is proud, and boastful."[61] Pride has thus come to be stigmatised not only as a vice, but as a sin of great magnitude. One reason for this is that it is regarded as even more offensive to the "self-feeling" of a great god or the Supreme Being than it is to that of a man. But pride must also appear as irreligious arrogance to those who maintain that man is by nature altogether corrupt, and that everything good in him is a gift of God.[62]

[Footnote 46: Williams and Calvert, op. cit. p. 107.]

[Footnote 47: Mariner, op. cit. ii. 164.]

[Footnote 48: Lun Yü, v. 15. Chung Yung, xxvii. 7.]

[Footnote 49: Lun Yü, xiv. 29.]

[Footnote 50: Ibid. xiii. 26. Cf. ibid. xx. 2. 1.]

[Footnote 51: Chung Yung, xxxiii. 1.]

[Footnote 52: Douglas, Confucianism and Taouism, p. 194 sq. Tâo Teh King, xxviii. 1.]

[Footnote 53: Book of the Dead, ch. 125, p. 216. Cf. Amélineau, Essai sur l'évolution des idées morales dans l'Égypt Ancienne, p. 353.]

[Footnote 54: Vendîdâd, i. 11.]

[Footnote 55: Maurer, Die Bekehrung des Norwegischen Stammes zum Christenthume, ii. 150.]

[Footnote 56: Schmidt, Die Ethik der alten Griechen, i. 253. Hermann, Lehrbuch der Griechischen Antiquitäten, ii. pt. i. 34 sq. Blümner, Ueber die Idee des Schicksals in den Tragödien des Aischylos, p. 131.]

[Footnote 57: Cicero, De officiis, i. 26.]

[Footnote 58: Cf. Kuenen, Religion of Israel, i. 62 sq.]

[Footnote 59: Deutsch, Literary Remains, p. 58.]

[Footnote 60: St. Matthew, v. 11, 12, 39; vi. 25, 26, 30 sqq.; xviii. 4; &c.]

[Footnote 61: Koran, iv. 40. Cf. Ameer Ali, Ethics of Islâm, p. 44.]

[Footnote 62: Manzoni, Osservazioni sulla morale cattolica, p. 182 sqq.]

At the same time, whilst pride is held blamable, humility may also go too far to be approved of, and may even be an object of censure. In early ethics, as we have noticed above, revenge is enjoined as a duty and forgiveness of enemies is despised; and this is the case not only among savages.[63] The device of Chivalry was, "It is better to die than to be avenged by shame";[64] and side by side with the nominal acceptance of the Christian doctrine of absolute placability the idea still prevails, in many European countries, that an assault upon honour shall be followed by a challenge to mortal combat. Too great humility is regarded as a sign of weakness, cowardice, hypocrisy, or a defective sense of honour. We are not allowed to be indifferent to the estimation in which we are held by our neighbours. Such indifference springs either from a feeble moral constitution and absence of moral shame, or from {146} a depreciation of other people's opinions in comparison with our own, and this is offensive to their amour-propre. Outward humility may thus suggest inward pride and appear arrogant.

[Footnote 63: Supra, i. 73 sq.]

[Footnote 64: Laurent, Études sur l'histoire de l'Humanité, vii. 184.]

A person's "self-feeling" may be violated in innumerable ways, by words and deeds. Almost any deviation from what is usual may arouse a suspicion of arrogance. This largely accounts for the fact mentioned in a previous chapter that habits have a tendency to become true customs, that is, rules of duty. Transgressions of the established forms of social intercourse are particularly apt to be offensive to people's self-regarding pride. Many of these forms originated in a desire to please, but by becoming habitual they at the same time became obligatory. Politeness is a duty rather than a virtue.

There is probably no people on earth which does not recognise some rules of politeness. Many savages are conspicuous for their civility.[65] It has been observed that Christian missionaries working among uncivilised races often are in manners much inferior to those they are teaching, and thus lower the native standard of refinement.[66] The Samoans, we are told, "are a nation of gentlemen," and contrast most favourably with the generality of Europeans who come amongst them.[67] On their first intercourse with Europeans, the Maoris "always manifest a degree of politeness which would do honour to a more civilised people"; but by continued intercourse they lose a great part of this characteristic.[68] Among the Fijians "the rules of politeness are minute, and receive scrupulous attention. They affect the language, and are seen in forms of salutation, in attention to strangers, at meals, in dress, and, indeed, influence their manners in-doors and {147} out. None but the very lowest are ill-behaved, and their confusion on committing themselves shows that they are not impudently so."[69] The Malagasy "are a very polite people, and look with contempt upon those who neglect the ordinary usages and salutations";[70] "even the most ragged and tattered slave possesses a natural dignity and ease of manner, which contrasts favourably with the rude conduct and boorish manners of the lower class at home."[71] Of the Point Barrow Eskimo Mr. Murdoch observes that "many of them show a grace of manner and a natural delicacy and politeness which is quite surprising"; and he mentions the instance of a young Eskimo being so polite in conversing with an American officer that "he would take pains to mispronounce his words in the same way as the latter did, so as not to hurt his feelings by correcting him bluntly."[72] The forms of Kafir politeness "are very strictly adhered to, and are many."[73] Of the Negroes of Fida Bosman wrote, "They are so civil to each other and the inferior so respectful to the superior, that at first I was very

much surprised at it."[74] Monrad found the Negroes of Accra surpass many civilised people in politeness.[75] So also in Morocco even country-folks are much more civil in their general behaviour than the large majority of Europeans. "The conversations of the Arabs," says d'Arvieux, "are full of civilities; one never hears anything there that they think rude and unbecoming."[76] Politeness is a characteristic of all the great nations of the East. The Chinese have brought the practice of it "to a pitch of perfection which is not only unknown in Western lands, but, previous to experience, is unthought of and almost unimaginable. The rules of ceremony, we are reminded in the Classics, are three {148} hundred, and the rules of behaviour three thousand."[77] In Europe courtesy was recommended as the most amiable of knightly qualities; and from "the wild and overstrained courtesies of Chivalry" has been derived our present system of manners.[78]

[Footnote 65: Waitz-Gerland, Anthropologie der Naturvölker, vi. 143 sqq. (Polynesians). Macdonald, Oceania, p. 195 (Efatese). Cranz, History of Greenland, i. 157. MacGregor, 'Lagos, Abeokuta and the Alake,' in Jour. African Soc. July, 1904, p. 466 (Yorubas).]

[Footnote 66: Brenchley, Jottings during the Cruise of H.M.S. 'Curaçoa' among the South Sea Islands, p. 349.]

[Footnote 67: Hood, Cruise in H.M.S. 'Fawn' in the Western Pacific, p. 59 sq.]

[Footnote 68: Dieffenbach, op. cit. ii. 108 sqq. See also Colenso, op. cit. p. 53 sqq.]

[Footnote 69: Williams and Calvert, op. cit. p. 129. Cf. ibid. pp. 128, 131 sq.; Anderson, Notes of Travel in Fiji, p. 135.]

[Footnote 70: Sibree, The Great African Island, p. 325.]

[Footnote 71: Little, Madagascar, p. 71.]

[Footnote 72: Murdoch, 'Ethn. Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 42.]

[Footnote 73: Leslie, Among the Zulus and Amatongas, p. 203.]

[Footnote 74: Bosman, Description of the Coast of Guinea, p. 317.]

[Footnote 75: Monrad, Skildring af Guinea-Kysten, p. 9.]

[Footnote 76: d'Arvieux, Travels in Arabia the Desart, p. 141.]

[Footnote 77: Smith, Chinese Characteristics, p. 35.]

[Footnote 78: Ordre of Chyualry, fol. 46. Robertson, History of the Reign of Charles V. i. 84. Milman, History of Latin Christianity, iv. 211. Turner, History of England, iii. 473. Mills, History of Chivalry, i. 161 sq. Scott, 'Essay on Chivalry,' in Miscellaneous Prose Works, vi. 58.]

The rules of politeness and good manners refer to all sorts of social intercourse and vary indefinitely in detail. They tell people how to sit or stand in each other's presence, or how to pass through a door; a Zulu would be fined for going out of a hut back first.[79] They prescribe how to behave at a meal; the Indians of British Columbia consider it improper to talk on such an occasion,[80] and it appears that in England also, in the fifteenth century, "people did not hold conversation while eating, but that the talk and mirth began with the liquor."[81] Politeness demands that a person should never interrupt another while speaking;[82] or that he should avoid contradicting a statement;[83] or, not infrequently, that he should rather tell a pleasant untruth than an unpleasant truth.[84] At times it requires the use of certain phrases, words of thanks, flattery, or expressions of self-humiliation. In Chinese there is "a whole vocabulary of words which are indispensable to one who wishes to pose as a 'polite' person, words in which whatever belongs to the speaker is treated with scorn and contempt, and whatever relates to the person addressed is honourable. The 'polite' Chinese will refer

to his wife, if driven to the extremity of referring {149} to her at all, as his 'dull thorn,' or in some similar elegant figure of speech."[85]

[Footnote 79: Tyler, Forty Years among the Zulus, p. 190 sq.]

[Footnote 80: Woldt, Kaptein Jacobsens Reiser til Nordamerikas Nordvestkyst, p. 99.]

[Footnote 81: Wright, Domestic Manners and Sentiments in England during the Middle Ages, p. 396.]

[Footnote 82: Domenech, Seven Years Residence in the Great Deserts of North America, ii. 72. Richardson, Arctic Searching Expedition, i. 385 (Kutchin). Cranz, History of Greenland, i. 157. Dobrizhoffer, Account of the Abipones, ii. 136 sq. d'Arvieux, op. cit. p. 139 sq.; Wallin, Reseanteckningar från Orienten, iii. 259 (Bedouins).]

[Footnote 83: Nansen, First Crossing of Greenland, ii. 334 sq.; Cranz, op. cit. i. 157 (Greenlanders). Dobrizhofifer, op. cit. ii. 137 (Abipones). d'Arvieux, op. cit. p. 141 (Bedouins).]

[Footnote 84: Supra, ii. 111.]

[Footnote 85: Smith, Chinese Characteristics, p. 274.]

Politeness enjoins the performance of certain ceremonies upon persons who meet or part. The custom of salutation is of world-wide prevalence, though there are certain savages who are said to have no greetings except when they have learnt the practice from the whites.[86] As a ceremony prescribed by public opinion it is an obligatory tribute paid to another person's "self-feeling," whatever be the original nature of the act which has been adopted for the purpose. The form of salutation has sometimes been borrowed from questions springing from curiosity or suspicion. Among the Californian Miwok, when anybody meets a stranger he generally salutes him, "Whence do you come? What are you at?"[87] The Abipones "would think it quite contrary to the laws of good-breeding, were they to meet any one and not ask him where he was going";[88] and a similar question is also a very common mode of greeting among the Berbers of Southern Morocco. Very frequently a salutation consists of some phrase which is expressive of goodwill. It may be an inquiry about the other person's health or welfare, as the English "How are you?" "How do you do?" Among the Burmese two relatives or friends who meet begin a conversation by the expressions, "Are you well? I am well," if they have been some time separated; whereas those who are daily accustomed to meet say, "Where are you going?"[89] The Moors ask, "What is your news?" or, "Is nothing wrong?" The ordinary salutation of the Zulus is, "I see you, are you well?" after which the snuffbox, the token of friendship, is passed round.[90] Among several tribes of California, again, a person when greeting another {150} simply utters a word which means "friendship."[91] The goodwill is often directly expressed in the form of a wish, like our "Good day!" "Good night!" Among the Hebrews the salutation at meeting or entering another's house seems at first to have consisted most commonly in an inquiry after mutual welfare,[92] but in later times "Health!" or "Peace to thee!" became the current greeting.[93] According to the Laws of Manu, a Brâhmana should be saluted, "May thou be long-lived, O gentle one!"[94] The Greeks said [Greek: chai=re] ("Be joyful!"); the Romans, Salve! ("Be in health!") especially on meeting, and Vale! ("Be well!") on parting. The good wish may have the form of a prayer. The Moors say, "May God give thee peace!" "May God give thee a good night!" and the English "Good-bye" and the French Adieu are prayers curtailed by the progress of time. But there is no foundation for Professor Wundt's assertion that "the words employed in greeting are one and all prayer formulæ in a more or less rudimentary state."[95] A salutation may, finally, be a verbal profession of subjection, as the Swedish "Ödmjukaste tjänare," that is, (I am your) "most humble servant."

[Footnote 86: Krasheninnikoff, History of Kamschatka, p. 177. Dall, op. cit. p. 397 (Aleuts). Egede, Description of Greenland, p. 125; Rink, Danish Greenland, p. 223; Cranz, op. cit. i. 157 (Greenlanders). Prescott, in Schoolcraft, Indian Tribes of the United States, iii. 244 (Dacotahs). Lewin, Wild Races of South-Eastern India, pp. 230 (Kumi), 256 (Kukis).]

[Footnote 87: Powers, Tribes of California, p. 347.]

[Footnote 88: Dobrizhoffer, op. cit. ii. 138.]

[Footnote 89: Forbes, British Burma, p. 69.]

[Footnote 90: Tyler, op. cit. p. 190.]

[Footnote 91: Powers, op. cit. p. 58.]

[Footnote 92: Genesis, xliii. 27. Exodus, xviii. 7.]

[Footnote 93: Judges, xix. 20. 1 Chronicles, xii. 18. Cf. Keil, Manual of Biblical Archæology, ii. 183.]

[Footnote 94: Laws of Manu, ii. 125.]

[Footnote 95: Wundt, Ethik, p. 179.]

Salutations may consist not only in words spoken, but in conventional gestures, either accompanied by some verbal expression or performed silently.[96] They may be tokens of submission or reverence, as cowering, crouching, and bowing. Or they may originally have been signs of disarming or defencelessness, as uncovering some particular portion of the body. Von Jhering suggests that the offering of the hand belongs to the same group of salutations, its object being to indicate that the other person has nothing to fear;[97] but in many cases at least handshaking seems to have the same origin as other ceremonies consisting {151} in bodily contact. Salutatory gestures may express not only absence of evil intentions but positive friendliness; among respectable Moors it is a common mode of greeting that each party places his right hand on his heart to indicate, as Jackson puts it, "that part to be the residence of the friend."[98] Various forms of salutation by contact, such as clasping, embracing, kissing, and sniffing, are obviously direct expressions of affection;[99] and we can hardly doubt that the joining of hands serves a similar object when we find it combined with other tokens of goodwill. Among some of the Australian natives, friends, on meeting after an absence, "will kiss, shake hands, and sometimes cry over one another."[100] In Morocco equals salute each other by joining their hands with a quick motion, separating them immediately, and kissing each his own hand. The Soolimas, again, place the palms of the right hands together, carry them then to the forehead, and from thence to the left side of the chest. [101] But bodily union is also employed as a method of transferring either blessings or conditional curses, and it seems probable that certain salutatory acts have vaguely or distinctly such transference in view. Among the Masai, who spit on each other both when they meet and when they part, spitting "expresses the greatest goodwill and the best of wishes";[102] and in a previous chapter I have endeavoured to show that the object of certain reception ceremonies is to transfer a conditional curse to the stranger who is received as a guest.[103] On the same principle as underlies these ceremonies, handshaking may be a means of joining in compact, analogous to a common meal[104] and the blood-covenant.[105]

[Footnote 96: See Tylor, 'Salutations,' in Encyclopædia Britannica, xxi. 235 sqq.; Ling Roth, 'Salutations,' in Jour. Anthr. Inst. xix. 166 sqq.]

[Footnote 97: von Jhering, Der Zweck im Recht, ii. 649 sqq.]

[Footnote 98: Jackson, Account of Timbuctoo, &c. p. 235.]

[Footnote 99: See infra, on the Origin and Development of the Altruistic Sentiment.]

[Footnote 100: Hackett, 'Ballardong or Ballerdokking Tribe,' in Curr, The Australian Race, i. 343.]

[Footnote 101: Laing, Travels in the Timannee, Kooranko, and Soolima Countries, p. 368.]

[Footnote 102: Thomson, Through Masai Land, p. 166.]

[Footnote 103: Supra, i. 590 sq.]

[Footnote 104: Supra, i. 587.]

[Footnote 105: See infra, on the Origin and Development of the Altruistic Sentiment.]

Being an homage rendered to other persons self-regarding {152} pride, the rule of politeness is naturally most exacting in relation to superiors. Many of its forms have, in fact, originated in humble or respectful behaviour towards rulers, masters, or elders, and, often in a modified shape, become common between equals after they have lost their original meaning.[106] It has been noticed that the cruelty of despots always engenders politeness, whereas the freest nations are generally the rudest in manners.[107] Politeness is further in a special degree shown by men to women, not only among ourselves, but even among many savages;[108] in this case courtesy is connected with courtship. Strangers or remote acquaintances, also, have particular claims to be treated with civility, whereas politeness is of little moment in the intercourse of friends; it imitates kindness, and is resorted to where the genuine feeling is wanting.[109] And in the capacity of guest, the stranger is often for the time being flattered with exquisite marks of honour, for reasons which have been stated in another connection.

[Footnote 106: See Spencer, Principles of Sociology, ii. 'Ceremonial Institutions,' passim.]

[Footnote 107: Johnston, Uganda, ii. 685.]

[Footnote 108: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur Ethn. iii. 270. Chanler, Through Jungle and Desert, p. 485 (Wakamba). See also supra, i. ch. xxvi.]

[Footnote 109: Cf. Tucker, Light of Nature, ii. 599 sqq.; Joubert, Pensées, i. 243.]

Chapter XXXIII

REGARD FOR OTHER PERSONS' HAPPINESS IN GENERAL--GRATITUDE--PATRIOTISM AND COSMOPOLITANISM

IN previous chapters we have dealt with moral ideas concerning various modes of conduct which have reference to other men's welfare--to their life or bodily comfort, their liberty, property, knowledge of truth, or self-regarding pride. But the list of duties which we owe to our fellow-creatures is as yet by no means complete. Any act, forbearance, or omission, which in some way or other diminishes or increases their happiness may on that account become a subject of moral blame or praise, being apt to call forth sympathetic retributive emotions.

To do good to others is a rule which has been inculcated by all the great teachers of morality. According to Confucius, benevolence is the root of righteousness and a leading characteristic of perfect virtue.[1] In the Taouist 'Book of Secret Blessings' men are enjoined to be compassionate and loving, and to devote their wealth to the good of their fellow-men.[2] The moralists of ancient India teach that we should with our life, means, understanding, and speech, seek to advance the welfare of other creatures in this world; that we should do so without expecting reciprocity; and that we should enjoy the prosperity of others even though ourselves unprosperous.[3] The writers

{154} of classical antiquity repeatedly give expression to the idea that man is not born for himself alone, but should assist his fellow-men to the best of his ability.[4] In the Old Testament we meet with the injunction, "Thou shalt love thy neighbour as thyself"; [5] and this was declared by Christ to be of equal importance with the commandment, "Thou shalt love the Lord thy God."[6]

[Footnote 1: Lun Yü, xvii. 6. Douglas, Confucianism and Taouism, p. 108.]

[Footnote 2: Douglas, op. cit. p. 272 sq.]

[Footnote 3: Muir, Religious and Moral Sentiments rendered from Sanskrit Writers, p. 107 sq. Monier Williams, Indian Wisdom, p. 448.]

[Footnote 4: Schmidt, Die Ethik der alten Griechen, ii. 275 sqq.]

[Footnote 5: Leviticus, xix. 18.]

[Footnote 6: St. Matthew, xxii. 39.]

To a reflecting mind it is obvious that the moral value of beneficence exclusively lies in the benevolent motive, and that there is nothing praiseworthy in promoting the happiness of others from selfish considerations. Confucius taught that self must be conquered before a man can be perfectly virtuous.[7] According to Lao-tsze, self-abnegation is the cardinal rule for both the sovereign and the people.[8] Self-denial is the chief demand of the Gospel, and is emphasised as a supreme duty by Islam.[9] Generally speaking, the merit attached to a good action is proportionate to the self-denial which it costs the agent. This follows from the nature of moral approval in its capacity of a retributive emotion, as is proved by the fact that the degree of gratitude felt towards a benefactor is in a similar way influenced by the deprivation to which he subjects himself. On the other hand, there is considerable variety of opinion, even among ourselves, as to the dictates of duty, in cases where our own interests conflict with those of our fellow-men. To Professor Sidgwick it is a moral axiom that "I ought not to prefer my own lesser good to the greater good of another."[10] According to Hutcheson, we do not condemn those as evil who will not sacrifice their private interest to the advancement of the positive good of others, "unless the private interest be very small, and the publick good very great."[11]

[Footnote 7: Lun Yü, xii. i. 1.]

[Footnote 8: Douglas, Confucianism and Taouism, p. 192.]

[Footnote 9: Ameer Ali, Ethics of Islâm, p. 32.]

[Footnote 10: Sidgwick, Methods of Ethics, p. 383.]

[Footnote 11: Hutcheson, Essay on the Nature and Conduct of the Passions, &c. p. 312.]

The idea that it is bad to cause harm to others and {155} good or obligatory to promote their happiness, is in different ways influenced by the relationship between the parties; and to many cases it does not apply at all. We have previously noticed that according to early ethics an enemy is a proper object of hatred, not of love;[12] and according to more advanced ideas a person who treats us badly has at all events little claim upon our kindness. The very opposite is the case with a benefactor or friend. To requite a benefit, or to be grateful to him who bestows it, is probably everywhere, at least under certain circumstances, regarded as a duty. This is a subject which in the present connection calls for special consideration.

[Footnote 12: Supra, i. p. 73 sq.]

The duty of gratefulness presupposes a disposition for gratitude.[13] According to travellers' accounts, this feeling is lacking in many uncivilised races.[14] Lyon writes of the Eskimo of Igloolik:--"Gratitude is not only rare, but absolutely unknown amongst them, either by action, word, or look, beyond the first outcry of satisfaction. Nursing

their sick, burying the dead, clothing and feeding the whole tribe, furnishing the men with weapons, and the women and children with ornaments, are insufficient to awaken a grateful feeling, and the very people who relieved their distresses when starving are laughed at in time of plenty for the quantity and quality of the food which was bestowed in charity."[15] Various other tribes in {156} North America have been accused of ingratitude;[16] and of some South American savages we are told that they evinced no thankfulness for the presents which were given them.[17] The Fijians are described as utterly indifferent to their benefactors. The Rev. Th. Williams writes:--"If one of them, when sick, obtained medicine from me, he thought me bound to give him food; the reception of food he considered as giving him a claim on me for covering; and, that being secured, he deemed himself at liberty to beg anything he wanted, and abuse me if I refused his unreasonable request."[18] Mr. Lumholtz had a similar experience with regard to the natives of Herbert River, Northern Queensland:--"If you give one thing to a black man, he finds ten other things to ask for, and he is not ashamed to ask for all that you have, and more too. He is never satisfied. Gratitude does not exist in his breast."[19] In several languages there is no word expressive of what we term gratitude or no phrase corresponding to our "thank you";[20] and on this fact much stress has been {157} laid, the deficiency of language being regarded as an indication of a corresponding deficiency in feelings.

[Footnote 13: For the definition of gratitude, see supra, i. 93.]

[Footnote 14: Steller, Beschreibung von Kamischatka, p. 292. Bergmann, Nomadische Streifereien unter den Kalmüken, ii. 310, 316. Foreman, Philippine Islands, p. 183. Modigliani, Viaggio a Nías, p. 467. Selenka, Sonnige Welten, p. 286 (Malays). Marsden, History of Sumatra, p. 207 (Malays of Sumatra). Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 320 (natives of Timor-laut). Mrs. Forbes, Insulinde, p. 178 (natives of Ritabel). Hagen, Unter den Papua's, p. 266 (Papuans of Bogadjim). Romilly, Western Pacific and New Guinea, p. 239. La Pérouse, Voyage round the World, ii. 109 (Samoans). Colenso, Maori Races of New Zealand, p. 48; Dieffenbach, Travels in New Zealand, ii. 110. Ling Roth, Aborigines of Tasmania, p. 63. Gason, 'Manners and Customs of the Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 258. Baker, Albert N'yanza, i. 242 (Latukas), 289 (Negroes), von François, Nama und Damara, p. 191 (Herero).]

[Footnote 15: Lyon, Private Journal during the Voyage of Discovery under Captain Parry, p. 348 sq. See also Parry, Journal of a Second Voyage for the Discovery of a North-West Passage, p. 524 sq.]

[Footnote 16: Cranz, History of Greenland, i. 174. Sarytschew, 'Voyage of Discovery to the North-East of Siberia,' in Collection of Modern Voyages, vi. 78 (Aleuts). Harmon, Voyages and Travels in the Interior of North America, p. 291 (Tacullies). Heriot, Travels through the Canadas, p. 319. Lafitau, M[oe]urs des sauvages ameriquains, i. 106. Burton, City of the Saints, p. 125 (Sioux and prairie tribes generally).]

[Footnote 17: von Spix and von Martius, Travels in Brazil, ii. 228, 241 sq. (Coroados). Stokes, quoted by King and Fitzroy, Voyages of the 'Adventure' and 'Beagle,' i. 77 (Fuegians).]

[Footnote 18: Williams and Calvert, Fiji, p. 111. See also Anderson, Notes of Travel in Fiji and New Caledonia, pp. 124, 131.]

[Footnote 19: Lumholtz, Among Cannibals, p. 100.]

[Footnote 20: Southey, History of Brazil, iii. 399 (Abipones, Guaranies). Hearne, Journey to the Northern Ocean, p. 307 (Northern Indians). Lewin, Wild Races of South-Eastern India, p. 192 (Toungtha). Foreman, op. cit. p. 182 sq. (Bisayans). Modigliani,

Viaggio a Nías, p. 467. Ling Roth, Natives of Sarawak, i. 74 (Dyaks). Chalmers, Pioneering in New Guinea, p. 187; Romilly, Western Pacific and New Guinea, p. 239 sq. (However, Mr Romilly's statement that "in all the known New Guinea languages there is not even a word for 'thank you,'" is not quite correct, as appears from Chalmers op. cit. p. 187.) Wilson, Missionary Voyage to the Southern Pacific Ocean, p. 365; Waitz-Gerland, Anthropologie der Naturvölker, vi. 116 (Tahitians). Colenso, op. cit. p. 48 (Maoris). New, Life and Labours in Eastern Africa, p. 100 (Wanika). von François, op. cit. p. 191 (Herero). In the Vedic language, also, there was no word for "thanks" (Oldenberg, Die Religion des Veda, p. 305); and many Eastern languages of the present day lack an equivalent for "thank you" (Ward, View of the History, &c. of the Hindoos, ii. 81, n. a.; Pool, Studies in Muhammedanism, p. 176; Polak, Persien, i. 9). When one of the missionaries in India was engaged in the translation of the Scriptures into Bengali, he found no common word in that language suitable to express the idea of gratitude (Wilkins, Modern Hinduism, p. 397).]

Here again we must distinguish between a traveller's actual experience and the conclusions which he draws from it; and it seems that in many cases our authorities have been too ready to charge savages with a total lack of grateful feelings, because they have been wanting in gratitude on certain occasions. It is too much to expect that a savage should show himself thankful to any stranger who gives him a present. Speaking of the Ahts of British Columbia, Mr Sproat remarks that the Indian's suspicion prevents a ready gratitude, as he is prone to see, in apparent kindness extended to him, some under-current of selfish motive. "He is accustomed, among his own people, to gifts made for purposes of guile, and also to presents made merely to show the greatness and richness of the giver; but, I imagine," our author adds, "when the Aht ceases to suspect such motives--when he does not detect pride, craft, or carelessness--he is grateful, and probably grateful in proportion to the trouble taken to serve him."[21] As for the ingratitude of the Northern Queensland natives, Mr. Lumholtz himself admits that "they assume that the gift is bestowed out of fear";[22] and of the New Zealanders we are told that their total want of gratitude was particularly due to the fact that "no New Zealander ever did any kindness, or gave anything, to another, without mainly having an eye to himself in the transaction."[23] Moreover, gratitude often requires not only the absence of a selfish motive in the benefactor, but some degree of self-sacrifice. "A person," says Mr. Sproat, "may keep an Indian from starving all the winter through, yet, when summer comes, very likely he will not walk a yard for his preserver without payment. The savage does not, in this instance, {158} recognise any obligation; but thinks that a person who had so much more than he could himself consume might well, and without any claim for after services, part with some of it for the advantage of another in want."[24] Mr. Powers makes a similar observation with reference to the aborigines of California:--"White men," he says, "who have had dealings with Indians, in conversation with me have often bitterly accused them of ingratitude. 'Do everything in your power for an Indian,' they say, 'and he will accept it all as a matter of course; but for the slightest service you require of him he will demand pay.' These men do not enter into the Indian's ideas. This 'ingratitude' is really an unconscious compliment to our power. The savage feels, vaguely, the unapproachable elevation on which the American stands above him. He feels that we had much and he had little, and we took away from him even his little. In his view giving does not impoverish us, nor withholding enrich us. Gratitude is a sentiment not in place between master and slave; it is a sentiment for equals. The Indians are grateful to one another."[25] Nor are men very apt to feel grateful for benefits to which they consider themselves to have a right. Thus, according

to Mr. Howitt, the want of gratitude among the South Australian Kurnai for kindnesses shown them by the whites is due to the principle of community, which is so strong a feature of the domestic and social life of these aborigines. "For a supply of food, or for nursing when sick, the Kurnai would not feel grateful to his family group. There would be a common obligation upon all to share food, and to afford personal aid and succour. This principle would also come into play as regards the simple personal property they possess, and would extend to the before-unknown articles procured from the whites. The food, the clothes, the medical attendance which the Kurnai receive from the whites, they take in the accustomed manner; and, in addition to {159} this, we must remember that the donors are regarded as having unlimited resources. They cannot be supposed by the Kurnai to be doing anything but giving out of their abundance."[26] Mr. Guppy found the same principle at work among the Solomon Islanders:--"Often when during my excursions I have come upon some man who was preparing a meal for himself and his family, I have been surprised at the open-handed way in which he dispensed the food to my party of hungry natives. No gratitude was shown towards the giver, who apparently expected none."[27] It has also been observed that the want of gratitude with which Arabs have often been charged by Europeans has arisen "from the very common practice of hospitality and generosity, and from the prevailing opinion that these virtues are absolute duties which it would be disgraceful and sinful to neglect."[28]

[Footnote 21: Sproat, Scenes and Studies of Savage Life, p. 165 sq.]

[Footnote 22: Lumholtz, Among Cannibals, p. 159.]

[Footnote 23: Colenso, op. cit. p. 48.]

[Footnote 24: Sproat, op. cit. p. 165 sq.]

[Footnote 25: Powers, Tribes of California, p. 411.]

[Footnote 26: Fison and Howitt, Kamilaroi and Kurnai, p. 257.]

[Footnote 27: Guppy, Solomon Islands, p. 127.]

[Footnote 28: Lane, Manners and Customs of the Modern Egyptians, p. 298. See also Burton, Pilgrimage to Al-Madinah and Meccah, i. 51.]

We should further remember that savages often take care not to display their emotions. Among the Melanesians, according to Dr. Codrington, "it is not the custom to say anything by way of thanks; it is rather improper to show emotion when anything is given, or when friends meet again; silence with the eyes cast down is the sign of the inward trembling or shyness which they feel, or think they ought to feel, under these circumstances. There is no lack of a word which may be fairly translated 'thank'; and certainly no one who has given cause for it will say that Melanesians have no gratitude; others probably are ready enough to say it."[29] Of the North American Chippewas Major Strickland writes:--"If an Indian makes a present, it is always expected that one equally valuable should be given in return. No matter what you give them, or how valuable or rich the present, they seldom betray the least emotion or appearance of gratitude, it being considered beneath the dignity of a red man to betray his feelings. For all this seeming indifference, {160} they are in reality as grateful, and, I believe, even more so than our own peasantry."[30] The Aleuts also, although they are chary of expressions of thanks, "do not forget kindness, and endeavour to express their thankfulness by deeds. If anyone assists an Aleut, and afterwards offends him, he does not forget the former favour, and in his mind it often cancels the offence."[31] From the want of a word for a feeling we must not conclude that the feeling itself is wanting. Mr. Sproat observes:--"The Ahts have, it is true, no word for gratitude, but a defect in language does not absolutely imply defect in heart; and the Indian who, in return for a benefit received, says, with glistening eyes, that his heart is good towards his

benefactor, expresses his gratitude quite as well perhaps as the English man who says 'Thank you.'"[32]

[Footnote 29: Codrington, Melanesians, p. 354.]

[Footnote 30: Strickland, Twenty-seven Years in Canada West, ii. 58.]

[Footnote 31: Veniaminof, quoted by Dall, Alaska, p. 395.]

[Footnote 32: Sproat, op. cit. p. 165. See also Ling Roth, Natives of Sarawak, i. 74 (Dyaks).]

It is not surprising, then, that in various cases a people which to one traveller appears to be quite destitute of gratitude is by another described as being by no means lacking in this feeling;[33] and sometimes contradictory statements are made even by the same writer. Thus Mr. Lumholtz, who gives such a gloomy picture of the character of the Northern Queensland natives, nevertheless tells us of a native who, though himself very hungry, threw the animals which the traveller had shot for him to an old man--his wife's uncle--whom they met, in order to give some proof of the gratitude he owed the person from whom he had received his wife;[34] and regarding the Fijians Mr. Williams himself states that thanks for presents "are always expressed aloud, and generally with a kind wish for the giver."[35] As we have noticed before, retributive kindly emotions, of which gratitude is only the most developed form, are commonly found among gregarious animals, social affection being not only a friendly {161} sentiment towards another individual, but towards an individual who is conceived of as a friend.[36] And it is all the more difficult to believe in the absolute want of gratitude in some savage races, as the majority of them--to judge from my collection of facts--are expressly acquitted of such a defect, and several are described as remarkably grateful for benefits bestowed upon them.

[Footnote 33: E.g., the Fuegians, Sioux, Ahts, Aleuts, Kamchadales, Tasmanians, Zulus (see supra and infra).]

[Footnote 34: Lumholtz, Among Cannibals, p. 221.]

[Footnote 35: Williams and Calvert, op. cit. p. 132.]

[Footnote 36: Supra, i. 94.]

The Fuegians use the word chapakouta, which means glad, satisfied, affectionate, grateful, to express thanks.[37] Jemmy Button, the young Fuegian who was brought to England on board the Beagle, gave proofs of sincere gratitude;[38] and Admiral Fitzroy also mentions a Patagonian boy who appeared thankful for kindness shown to him.[39] Of the Mapuchés of Chili Mr. E. R. Smith observes:--"Whatever present is made, or favour conferred, is considered as something to be returned; and the Indian never fails, though months and years may intervene, to repay what he conscientiously thinks an exact equivalent for the thing received."[40] The Botocudos do not readily forget kind treatment;[41] and the Tupis "were a grateful race, and remembered that they had received gifts, after the giver had forgotten it."[42] The Guiana Indians "are grateful for any kindness."[43] The Navahos of New Mexico have a word for thanks, and employ it on all occasions which we would consider appropriate.[44] The Sioux "evinced the warmest gratitude to any who had ever displayed kind feelings towards them."[45] In his 'Voyages from Montreal to the Frozen and Pacific Oceans,' Mackenzie mentions the gratitude shown him by a young Indian whom he had cured of a bad wound. When well enough to engage in a hunting party, the young man brought to his physician the tongue of an elk, and when they parted both he and his relatives expressed the heartiest acknowledgment for the care bestowed on him.[46] If an Aleut receives a gift he accepts it, saying Akh! which means "thanks."[47] Some of the Point Barrow Eskimo visited by Mr. Murdoch "seem to feel truly {162} grateful for the benefits and gifts received,

and endeavoured by their general behaviour, as well as in more substantial ways, to make some adequate return"; whereas others appeared to think only of what they might receive.[48]

[Footnote 37: Hyades and Deniker, Mission scientifique du Cap Horn, vii. 314.]

[Footnote 38: King and Fitzroy, op. cit. ii. 327.]

[Footnote 39: Ibid. ii. 173.]

[Footnote 40: Smith, Araucanians, p. 258.]

[Footnote 41: Wied-Neuwied, Reise nach Brasilien, ii. 16.]

[Footnote 42: Southey, op. cit. i. 247.]

[Footnote 43: Im Thurn, Among the Indians of Guiana, p. 213.]

[Footnote 44: Matthews, 'Study of Ethics among the Lower Races,' in Journal of American Folk-Lore, xii. 9.]

[Footnote 45: Eastman, Dacotah, p. ix.]

[Footnote 46: Mackenzie, Voyages from Montreal to the Frozen and Pacific Oceans, p. 137 sq.]

[Footnote 47: Veniaminof, quoted by Dall, op. cit. p. 395.]

[Footnote 48: Murdoch, 'Ethnol. Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 42. See also Seemann, Voyage of 'Herald,' ii. 67 (Western Eskimo).]

Of the Tunguses it is said, "If you make them a present, they hardly thank you; but though so unpolite, they are exceedingly grateful."[49] The Jakuts never forget a benefit received; "for they not only make restitution, but recommend to their offspring the ties of friendship and gratitude to their benefactors."[50] The Veddah of Ceylon is described as very grateful for attention or assistance.[51] "A little kindly sympathy makes him an attached friend, and for his friend . . . . he will readily give his life."[52] Mr. Bennett once had an interview with two village Veddahs, and on that occasion gave them presents. Two months after a couple of elephant's tusks found their way into his front verandah at night, but the Veddahs who had brought them never gave him an opportunity to reward them. "What a lesson in gratitude and delicacy," he exclaims, "even a Veddah may teach!"[53]

[Footnote 49: Georgi, Russia, iii. 111.]

[Footnote 50: Sauer, Expedition to the Northern Parts of Russia, performed by Billings, p. 124.]

[Footnote 51: Tennent, Ceylon, ii. 445. Sarasin, Forschungen auf Ceylon, iii. 546.]

[Footnote 52: Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 192.]

[Footnote 53: Pridham, Account of Ceylon, i. 460 sq.]

The Alfura of Halmahera,[54] the Bataks of Sumatra,[55] and the Dyaks of Borneo[56] are praised for their grateful disposition of mind. Of the Hill Dyaks Mr. Low observes that gratitude "eminently adorns the character of these simple people, and the smallest benefit conferred upon them calls forth its vigorous and continued exercise."[57] The Motu people of New Guinea are "capable of appreciating kindness,"[58] and have words for expressing thanks.[59] Chamisso speaks highly of the gratitude evinced by the natives of Ulea, Caroline Islands:--"Any thing, a useful instrument, for example, which they have received as a gift from a friend, retains and bears among them as a lasting memorial the name of the friend who bestowed it."[60] When Professor Moseley at Dentrecasteaux Island, of the Admiralty Group, gave a hatchet as pay to his guide, according {163} to promise, the guide seemed grateful, and presented him with his own shell adze in return.[61] Though the Tahitians never return thanks nor seem to have a word in their language expressive of gratitude, they are not devoid of the feeling itself.[62] Backhouse tells us of a Tasmanian native who, having been nursed through

an illness, showed many demonstrations of gratitude; and he adds that this virtue was often exhibited among these people--a statement which is corroborated by the accounts of other travellers.[63] Of the Australian aborigines Mr. Ridley writes:--"I believe they are as a people remarkably susceptible of impressions from kind treatment. They recognised me as one who sought their good, and were evidently pleased and thankful to see that I thought them worth looking after."[64] The Adelaide and Encounter Bay blacks are said to display attachment to persons who are kind to them.[65] Speaking of the Central Australian tribes, Messrs. Spencer and Gillen observe that, though they are not in the habit of showing anything like excessive gratitude on receiving gifts from the white man, they are in reality by no means incapable of that feeling;[66] and other writers report instances of gratitude displayed by natives of West Australia[67] and Queensland.[68]

[Footnote 54: Kükenthal, Forschungsreise in den Molukken und Borneo, i. 188.]

[Footnote 55: Junghuhn, Die Battaländer auf Sumatra, ii. 239.]

[Footnote 56: Ling Roth, Natives of Sarawak, i. 74, 76.]

[Footnote 57: Low, Sarawak, p. 246.]

[Footnote 58: Stone, A Few Months in New Guinea, p. 95.]

[Footnote 59: Chalmers, Pioneering in New Guinea, p. 187.]

[Footnote 60: von Kotzebue, Voyage of Discovery into the South Sea, iii. 214.]

[Footnote 61: Moseley, 'Inhabitants of the Admiralty Islands,' in Jour. Anthr. Inst. vi. 416.]

[Footnote 62: Waitz-Gerland, op. cit. vi. 116.]

[Footnote 63: Ling Roth, Aborigines of Tasmania, pp. 47, 62, 64.]

[Footnote 64: Ridley, Aborigines of Australia, p. 24. See also ibid. p. 20 sqq.]

[Footnote 65: Wyatt, 'Manners and Superstitions of the Adelaide and Encounter Bay Aboriginal Tribes,' in Woods, Native Tribes of South Australia, p. 162.]

[Footnote 66: Spencer and Gillen, Native Tribes of Central Australia, p. 48 sqq.]

[Footnote 67: Salvado, Mémoires historiques sur l'Australie, p. 146.]

[Footnote 68: Fraser, Aborigines of New South Wales, p. 44.]

Concerning the people of Madagascar the missionary Ellis writes:--"Whether the noble and generous feeling of gratitude has much place amongst the Malagasy has been questioned. Though often characterised by extreme apathy, they are certainly susceptible of tenderness of feeling, and their customs furnish various modes of testifying their sense of any acts of kindness shewn them, and their language contains many forms of speech expressive of thankfulness. The following are among those in most general use: 'May you live to grow old--may you live long--may you live sacred--may you see, or obtain, justice from the sovereign.'" Moreover, with all their expressions of thankfulness, considerable action is used: sometimes the two hands are extended open as if to make a present; or the party stoops down to the ground, and clasps the legs, or touches the knee and the feet of the person he is thanking.[69] Ingratitude, {164} again, is expressed by many strong metaphors, such as "son of a thunderbolt," or "offspring of a wild boar."[70] The Bushmans, according to Burchell, are not incapable of gratitude.[71] The statement made by certain travellers or colonists that the Zulus are devoid of this feeling, is contradicted by Mr. Tyler, who asserts that "many instances might be related in which a thankful spirit has been manifested, and gifts bestowed for favours received."[72] The Basutos have words to express gratitude.[73] Among the Bakongo, says Mr. Ward, "evidences of gratitude are rare indeed, although occasionally one meets with this sentiment in odd guises. Once, by a happy chance, I saved a baby's life. The child was brought to me by its mother in convulsions, and I was fortunate

enough to find in my medicine chest a drug that effected an almost immediate cure. Yet the service I rendered to this woman, instead of meeting with any appreciation, only procured for me the whispered reputation of being a witch." But twenty months afterwards, at midnight when all the people were sleeping, the same woman came to Mr. Ward and gave him some fowl's eggs in payment. "I come," she said, "in the darkness that my people may not know, for they would jeer at me if they knew of this gift."[74] A traveller tells us that the inhabitants of Great Benin "if given any trifles expressed their thanks."[75] Writing on the natives of Accra, Monrad states that gratitude is among the virtues of the Negroes, and induces them even to give their lives in return for benefits conferred on them.[76] The Feloops, bordering on the Gambia, "display the utmost gratitude and affection towards their benefactors."[77] As regards the Eastern Central Africans, Mr. Macdonald affirms without any hesitation that they have gratitude, "even though we define gratitude as being much more than an 'acute sense of favours to come.'"[78] The Masai and Wadshagga have "a curious habit of spitting on things or people as a compliment or sign of gratitude"[79]--originally, I presume, with a view to transferring to them a blessing. The Barea are said to be thankful for benefits.[80] According to Palgrave, "gratitude is no {165} less an Arab than a European virtue, whatever the ignorance or the prejudices of some foreigners may have affirmed to the contrary";[81] and Burckhardt says that an Arab never forgets the generosity shown to him even by an enemy.[82]

[Footnote 69: Ellis, History of Madagascar, i. 258. See also Rochon, Voyage to Madagascar, p. 56.]

[Footnote 70: Ellis, op. cit. i. 139 sq.]

[Footnote 71: Burchell, Travels in the Interior of Southern Africa, ii. 68, 86, 447.]

[Footnote 72: Tyler, Forty Years among the Zulus, p. 194.]

[Footnote 73: Casalis, Basutos, p. 306.]

[Footnote 74: Ward, Five Years with the Congo Cannibals, p. 47 sqq.]

[Footnote 75: Punch, quoted by Ling Roth, Great Benin, p. 45.]

[Footnote 76: Monrad, Skildring af Guinea-Kysten, p. 8.]

[Footnote 77: Mungo Park, Travels in the Interior of Africa, p. 14.]

[Footnote 78: Macdonald, Africana, i. 10.]

[Footnote 79: Johnston, Kilima-njaro Expedition, p. 438.]

[Footnote 80: Munzinger, Ostafrikanische Studien, p. 533.]

[Footnote 81: Palgrave, quoted in Spencer's Descriptive Sociology, 'Asiatic Races,' p. 31.]

[Footnote 82: Burckhardt, Notes on the Bedouins and Wahábys, p. 105.]

In other statements gratitude is directly represented as an object of praise, or its absence as an object of disapproval. Among the Atkha Aleuts, according to Father Yakof, gratitude to benefactors was considered a virtue.[83] Among the Omahas, if a man receives a favour and does not manifest his thankfulness, the people exclaim:--"He does not appreciate the gift! He has no manners."[84] The Kamchadales "are not only grateful for favours, but they think it absolutely necessary to make some return for a present."[85] The Chinese say that "kindness is more binding than a loan."[86] According to the 'Divine Panorama,' a well-known Taouist work, those who forget kindness and are guilty of ingratitude shall be tormented after death and "shall not escape one jot of their punishments."[87] In one of the Pahlavi texts gratitude is represented as a means of arriving at heaven, whilst ingratitude is stigmatised as a heinous sin;[88] and according to Ammian ungrateful persons were even punished by law in ancient Persia.[89] The same, we are told, was the case in Macedonia.[90] The duty of gratitude

was strongly inculcated by Greek and Roman moralists.[91] Aristotle observes that we ought, as a general rule, rather to return a kindness to our benefactor than to confer a gratuitous favour upon a brother in arms, just as we ought rather to repay a loan to a creditor than to spend the same sum upon a present to a friend.[92] According to {166} Xenophon the requital of benefits is enjoined by a divine law.[93] "There is no duty more indispensable than that of returning a kindness," says Cicero; "all men detest one forgetful of a benefit."[94] Seneca calls ingratitude a most odious vice, which it is difficult to punish by law, but which we refer for judgment to the gods.[95] The ancient Scandinavians considered it dishonourable for a man to kill even an enemy in blood-revenge if he had received a benefit from him.[96]

[Footnote 83: Yakof, quoted by Petroff, Report on the Population, &c. of Alaska, p. 158.]

[Footnote 84: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 270.]

[Footnote 85: Dobell, Travels in Kamtschatka, i. 75.]

[Footnote 86: Davis, China, ii. 123.]

[Footnote 87: Giles, Strange Stories from a Chinese Studio, ii. 374 sq. See also Thâi-Shang, 4.]

[Footnote 88: Dînâ-î Maînôg-î Khirad, xxxvi. 28; xxxvii. 6; xliii. 9.]

[Footnote 89: Ammianus Marcellinus, xxiii. 6. 81.]

[Footnote 90: Seneca, De beneficiis, iii. 6. 2.]

[Footnote 91: See Schmidt, Die Ethik der alten Griechen, ii. 305 sqq.]

[Footnote 92: Aristotle, Ethica Nicomachea, x. 2. 3.]

[Footnote 93: Xenophon, Memorabilia, iv. 4. 24.]

[Footnote 94: Cicero, De officiis, i. 15 (47); ii. 18 (63).]

[Footnote 95: Seneca, De beneficiis, iii. 6. 1 sq.]

[Footnote 96: Maurer, Die Bekehrung des Norwegischen Stammes, ii. 174.]

We may assume that among beings capable of feeling moral emotions the general disposition to be kind to a benefactor will inevitably lead to the notion that ungrateful behaviour is wrong. Such behaviour is offensive to the benefactor; as Spinoza observes, "he who has conferred a benefit on anyone from motives of love or honour will feel pain, if he sees that the benefit is received without gratitude."[97] This by itself tends to evoke in the bystander sympathetic resentment towards the offender; but his resentment is much increased by the retributive kindliness which he is apt to feel, sympathetically, towards the benefactor. He wants to see the latter's kindness rewarded; and he is shocked by the absence of a similar desire in the very person who may be naturally expected to feel it more strongly than anybody else**.

[Footnote 97: Spinoza, Ethica, iii. 42. A Japanese proverb says that "thankless labour brings fatigue" (Reed, Japan, ii. 109).]

The moral ideas concerning conduct which affects other persons' welfare vary according as the parties are members of the same or different families, or of the same or different communities. For reasons which have been stated in previous chapters parents have in this respect special duties towards their children, and children towards their parents; and a tribesman or a fellow-countryman has claims which are not shared by a foreigner. But there are duties not only to particular individuals, but also to {167} whole social aggregates. Foremost among these is the duty of patriotism.

The duty of patriotism is rooted in the patriotic sentiment, in a person's love of the social body of which he is himself a member, and which is attached to the territory he calls his country. It involves a desire to promote its welfare, a wish that it may prosper for the time being and for all future. This desire is the outcome of a variety of

sentiments: of men's affection for the people among whom they live, of attachment to the places where they have grown up or spent part of their lives, of devotion to their race and language, and to the traditions, customs, laws, and institutions of the society in which they were born and to which they belong.

Genuine patriotism presupposes a power of abstraction which the lower savages can hardly be supposed to possess. But it seems to be far from unknown among uncultured peoples of a higher type. North American Indians are praised for their truly patriotic spirit, for their strong attachment to their tribe and their country.[98] Carver says of the Naudowessies:--"The honour of their tribe, and the welfare of their nation, is the first and most predominant emotion of their hearts; and from hence proceed in a great measure all their virtues and their vices. Actuated by this, they brave every danger, endure the most exquisite torments, and expire triumphing in their fortitude, not as a personal qualification, but as a national characteristic."[99] Patriotism and public spirit were often strongly manifested by the Tahitians.[100] The Maori "loves his country and the rights of his ancestors, and he will fight for his children's land."[101] Of the Guanches of Teneriffe we are told that patriotism was {168} their chief virtue.[102] The same quality distinguishes the Yorubas of West Africa; "no race of men," says Mr. MacGregor, "could be more devoted to their country."[103] Burckhardt writes:--"As to the attachment which a Bedouin entertains for his own tribe, the deep-felt interest he takes in its power and fame, and the sacrifices of every kind he is ready to make for its prosperity--these are feelings rarely operating with equal force in any other nation; and it is with an exulting pride of conscious patriotism, not inferior to any which ennobled the history of Grecian or Helvetian republics, that an Aeneze, should he be suddenly attacked, seizes his lance, and waving it over his head exclaims, 'I am an Aeneze.'"[104]

[Footnote 98: Adair, History of the American Indians, p. 378 sq. Heriot, Travels through the Canadas, p. 317. Loskiel, History of the Mission of the United Brethren among the Indians, i. 17 (Iroquois).]

[Footnote 99: Carver, Travels through the Interior Parts of North America, p. 412.]

[Footnote 100: Ellis, Polynesian Researches, i. 128.]

[Footnote 101: Angas, Savage Life and Scenes in Australia and New Zealand, i. 338. See also Travers, 'Life and Times of Te Rauparaha,' in Trans. and Proceed. New Zealand Institute, v. 22.]

[Footnote 102: Bory de St. Vincent, Essais sur les Isles Fortunées, p. 70.]

[Footnote 103: MacGregor, 'Lagos, Abeokuta, and the Alake,' in Jour. African Soc. 1904, p. 466.]

[Footnote 104: Burckhardt, Notes on the Bedouins and Wahábys, p. 205.]

Many of the elements out of which patriotism proper has grown are clearly distinguishable among savages, even the very lowest. We have previously noticed the savage's attachment to members of his own community or tribe. Combined with this is his love of his native place, and of the mode of life to which he is habituated. There is a touching illustration of this feeling in the behaviour of the wild boy who had been found in the woods near Aveyron--where he had spent most part of his young life in perfect isolation from all human beings--when he, after being removed to Paris, was once taken back to the country, to the vale of Montmorence. Joy was painted in his eyes, in all the motions and postures of his body, at the view of the hills and the woods of the charming valley; he appeared more than ever restless and savage, and "in spite of the most assiduous attention that was paid to his wishes, and the most affectionate regard that was expressed for him, he seemed to be occupied only with an anxious desire of taking his flight."[105] How much greater must not the love of home be in

him who has there his relatives and friends! Mr. Howitt tells us of {169} an Australian native who, on leaving his camp with him for a trip of about a week, burst into tears, saying to himself once and again, "My country, my people, I shall not see them."[106] The Veddahs of Ceylon "would exchange their wild forest life for none other, and it was with the utmost difficulty that they could be induced to quit even for a short time their favourite solitude."[107] The Stiêns of Cambodia are so strongly attached to their forests and mountains that to leave them seems almost like death.[108] Solomon Islanders not seldom die from home-sickness on their way to the Fiji or Queensland plantations.[109] The Hovas of Madagascar, when setting out on a journey, often take with them a small portion of their native earth, on which they gaze during their absence, invoking their god that they may be permitted to return to restore it to the place from which it was taken.[110] Mr. Crawfurd observes that in the Malay Archipelago the attachment to the native spot is strongest with the agricultural tribes;[111] but, though a settled life is naturally most favourable to its development, this feeling is not inconsistent with nomadism. The Nishinam, who are the most nomadic of all the Californian tribes, have very great attachment for the valley or flat which they count their home.[112]

[Footnote 105: Itard, Account of the Discovery and Education of a Savage Man, p. 70 sqq.]

[Footnote 106: Brough Smyth, Aborigines of Victoria, ii. 305.]

[Footnote 107: Hartshorne, 'Weddas,' in Indian Antiquary, viii. 317.]

[Footnote 108: Mouhot, Travels in the Central Parts of Indo-China, i. 243.]

[Footnote 109: Guppy, op. cit. p. 167.]

[Footnote 110: Ellis, History of Madagascar, i. 141.]

[Footnote 111: Crawfurd, History of the Indian Archipelago, i. 84.]

[Footnote 112: Powers, op. cit. p. 318 sq. For other instances of love of home among uncivilised races see von Spix and von Martius, op. cit. ii. 242, note (Coroados); von Kotzebue, op. cit. iii. 45 (Indians of California); Gibbs, Tribes of Western Washington and North-Western Oregon, p. 187; Elliott, Report of the Seal Islands of Alaska, p. 240; Hooper, Ten Months among the Tents of the Tuski, p. 209; von Siebold, Aino auf der Insel Yesso, p. 11; Mallat, Les Philippines, ii. 95 (Negritos); von Brenner, Besuch bei den Kannibalen Sumatras, p. 194 (Bataks); Earl, Papuans, p. 126 (natives of Rotti, near Timor); Ling Roth, Aborigines of Tasmania, p. 46; Dieffenbach, Travels in New Zealand, ii. 174; Cumming, In the Himalayas, p. 404 (Paharis); Lane, Manners and Customs of the Modern Egyptians, p. 302 (Bedawees); Tristram, Great Sahara, p. 193 sq. (Beni M'zab); Burton, Zanzibar, ii. 96 (Wanika); Emin Pasha in Central Africa, p. 315 (Monbuttu); Andersson, Lake Ngami, p. 198 (Ovambo); Rowley, Africa Unveiled, p. 63 sq. (Kroos of the Grain Coast below Liberia); Price, 'Quissama Tribe,' in Jour. Anthr. Inst. i. 187.]

{170} Moreover, as we have noticed above, savages have the greatest regard for their native customs and institutions.[113] Many of them have displayed that love of national independence which gives to patriotism its highest fervour.[114] And among some uncivilised peoples, at least, the force of racial and linguistic unity shows itself even outside the social or political unit. Burckhardt observes that the Bedouins are not only solicitous for the honour of their own respective tribes, but consider the interests of all other tribes as more or less attached to their own, and frequently evince a general esprit de corps, lamenting "the losses of any of their tribes occasioned by attacks from settlers or foreign troops, even though at war with those tribes."[115] A Tongan "loves the island on which he was born, in particular, and all the Tonga islands generally, as being one country, and speaking one language."[116] Travellers have noticed how gratifying it is, when visiting an uncultured people, to know a little of their language;

there is at once a sympathetic link between the native and the stranger.[117] Even the almost inaccessible Berber of the Great Atlas, in spite of his excessive hatred of the European, will at once give you a kindly glance as soon as you, to his astonishment, utter to him a few words in his own tongue.

[Footnote 113: See supra, i. 118 sq.]

[Footnote 114: Cf. Dobrizhoffer, Account of the Abipones, ii. 95, 105; Lomonaco, 'Sulle razze indigene del Brasile,' in Archivio per l'antropologia e la etnologia, xix. 57 (Tupis); Brett, Indian Tribes of Guiana, p. 348; Schoolcraft, Indian Tribes of the United States, iii. 189 (Iroquois); Nansen, Eskimo Life, p. 323 (Greenlanders); Macpherson, Memorials of Service in India, p. 81 (Kandhs); Sarasin, op. cit. iii. 530 (Veddahs); Casati, Ten Years in Equatoria, i. 188, 304 (Negroes of Central Africa); Fritsch, Die Eingeborenen Süd-Afrika's, p. 422 sq. (Bushmans).]

[Footnote 115: Burckhardt, Bedouins and Wahábys, p. 205.]

[Footnote 116: Mariner, Natives of the Tonga Islands, ii. 156.]

[Footnote 117: See Stokes, Discoveries in Australia, ii. 25.]

Like other species of the altruistic sentiment, patriotism is apt to overestimate the qualities of the object for which it is felt; and it does so all the more readily as love of one's country is almost inseparably intermingled with love of one's self. The ordinary, typical patriot has a strong will to believe that his nation is the best. If, as many {171} people nowadays seem to maintain, such a will to believe is an essential characteristic of true patriotism, savages are as good patriots as anybody. In their intercourse with white men they have often with astonishment noticed the arrogant air of superiority adopted by the latter; in their own opinion they are themselves vastly superior to the whites. According to Eskimo beliefs, the first man, though made by the Great Being, was a failure, and was consequently cast aside and called kob-lu-na, which means "white man"; but a second attempt of the Great Being resulted in the formation of a perfect man, and he was called in-nu, the name which the Eskimo give to themselves.[118] Australian natives, on being asked to work, have often replied, "White fellow works, not black fellow; black fellow gentleman."[119] When anything foolish is done, the Chippewas use an expression which means "as stupid as a white man."[120] If a South Sea Islander sees a very awkward person, he says, "How stupid you are; perhaps you are an Englishman."[121] Mr. Williams tells us of a Fijian who, having been to the United States, was ordered by his chiefs to say whether the country of the white man was better than Fiji, and in what respects. He had not, however, gone far in telling the truth, when one cried out, "He is a prating fellow"; another, "He is impudent"; and some said, "Kill him."[122] The Koriaks are more argumentative; in order to prove that the accounts they hear of the advantages of other countries are so many lies, they say to the stranger, "If you could enjoy these advantages at home, what made you take so much trouble to come to us?"[123] But the Koriaks, in their turn are looked down upon by their neighbours, the Chukchi, who call the surrounding peoples old women, only fit to guard their flocks, and to be their attendants.[124] The Ainu despise the Japanese {172} just as much as the Japanese despise them, and are convinced of "the superiority of their own blood and descent over that of all other peoples in the world."[125] Even the miserable Veddah of Ceylon has a very high opinion of himself, and regards his civilised neighbours with contempt.[126] As is often the case with civilised men, savages attribute to their own people all kinds of virtue in perfection. The South American Mbayás, according to Azara, "se croient la nation la plus noble du monde, la plus généreuse, la plus exacte à tenir sa parole avec loyauté, et la plus vaillante."[127] The Eskimo of Norton Sound speak of themselves as yu'-p[)i]k, meaning

fine or complete people, whereas an Indian is termed iñ-k[)i]-l[)i]k, from a word which means "a louse egg."[128] When a Greenlander saw a foreigner of gentle and modest manners, his usual remark was, "He is almost as well-bred as we," or, "He begins to be a man," that is, a Greenlander.[129] The savage regards his people as the people, as the root of all others, and as occupying the middle of the earth. The Hottentots love to call themselves "the men of men."[130] The Indians of the Ungava district, Hudson Bay, give themselves the name nenenot, that is, true or ideal red men.[131] In the language of the Illinois Indians the word illinois means "men"--"as if they looked upon all other Indians as beasts."[132] The aborigines of Hayti believed that their island was the first of all things, that the sun and moon issued from one of its caverns, and men from another.[133] Each Australian tribe, says Mr. Curr, regards its country as the centre of the earth, which in most cases is believed not to extend more than a couple of hundred miles or so in any direction.[134]

[Footnote 118: Hall, Arctic Researches, p. 566 sq.]

[Footnote 119: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 109.]

[Footnote 120: Keating, Expedition to the Source of St. Peter's River, ii. 168. See also Boller, Among the Indians, p. 54 sq.]

[Footnote 121: Williams, Missionary Enterprises in the South Sea Islands, p. 514.]

[Footnote 122: Williams and Calvert, Fiji, p. 105.]

[Footnote 123: Krasheninnikoff, History of Kamschatka, p. 224.]

[Footnote 124: Sauer, op. cit. p. 255.]

[Footnote 125: Batchelor, 'Notes on the Ainu,' in Trans. Asiatic Soc. Japan, x. 211 sq. Howard, Life with Trans-Siberian Savages, p. 182.]

[Footnote 126: Nevill, in Taprobanian, i. 192. Sarasin, op. cit. iii. 530, 534. 553.]

[Footnote 127: Azara, Voyages dans l'Amérique méridionale, ii. 107.]

[Footnote 128: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 306 sq.]

[Footnote 129: Cranz, History of Greenland, i. 126.]

[Footnote 130: Kidd, The Essential Kafir, p. 92.]

[Footnote 131: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 267.]

[Footnote 132: Marquette, Recit des voyages, p. 47 sq.]

[Footnote 133: Brett, Indian Tribes of Guiana, p. 376.]

[Footnote 134: Curr, The Australian Race, i. 50. For other instances of national conceit or pride among savages see Darwin, Journal of Researches, p. 207 (Fuegians); von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 332 (Bakaïri); von Humboldt, Personal Narrative of Travels to the Equinoctial Regions of the New Continent, v. 423, and Brett, op. cit. p. 128 (Guiana Indians); James, Expedition to the Rocky Mountains, i. 320 (Omahas); Murdoch, in Ann. Rep. Bur. Ethn. ix. 42 (Point Barrow Eskimo); Krasheninnikoff, op. cit. p. 180 (Kamchadales); Brough Smyth, op. cit. ii. 284 (Australian natives); Macpherson, op. cit. p. 67 (Kandhs); Munzinger, Ueber die Sitten und das Recht der Bogos, p. 94; Andersson, Lake Ngami, p. 198 (Ovambo).]

{173} We meet with similar feelings and ideas among the nations of archaic culture. The Chinese are taught to think themselves superior to all other peoples. In their writings, ancient and modern, the word "foreigner" is regularly joined with some disrespectful epithet, implying or expressing the ignorance, brutality, obstinacy, or meanness of alien nations, and their obligations to or dependence upon China.[135] To Confucius himself China was "the middle kingdom," "the multitude of great states," "all under

heaven," beyond which were only rude and barbarous tribes.[136] According to Japanese ideas, Nippon was the first country created, and the centre of the world.[137] The ancient Egyptians considered themselves as the peculiar people, specially loved by the gods. They alone were termed "men" (romet); other nations were negroes, Asiatics, or Libyans, but not men; and according to the myth these nations were descended from the enemies of the gods.[138] The national pride of the Assyrians, so often referred to by the Hebrew prophets,[139] is conspicuous everywhere in their cuneiform inscriptions: they are the wise, the brave, the powerful, who, like the deluge, carry away all resistance; their kings are the "matchless, irresistible"; and their gods are much exalted above the gods of all other nations.[140] To the Hebrews their own land was "an exceeding good land," "flowing with milk and honey," "the glory of all lands";[141] and its inhabitants were a holy {174} people which the Lord had chosen "to be a special people unto Himself, above all people that are upon the face of the earth."[142] Concerning the ancient Persians, Herodotus writes:--"They look upon themselves as very greatly superior in all respects to the rest of mankind, regarding others as approaching to excellence in proportion as they dwell nearer to them; whence it comes to pass that those who are the farthest off must be the most degraded of mankind."[143] To this day the monarch of Persia retains the title of "the Centre of the Universe"; and it is not easy to persuade a native of Isfahan that any European capital can be superior to his native city.[144] The Greeks called Delphi--or rather the round stone in the Delphic temple--"the navel" or "middle point of the earth";[145] and they considered the natural relation between themselves and barbarians to be that between master and slave.[146]

[Footnote 135: Philip, Life and Opinions of the Rev. W. Milne, p. 257. Cf. Staunton, in Narrative of the Chinese Embassy to the Khan of the Tourgouth Tartars, p. viii.]

[Footnote 136: Legge, Chinese Classics, i. 107. See also Giles, op. cit. ii. 116, n. 2.]

[Footnote 137: Griffis, Religions of Japan, p. 207.]

[Footnote 138: Erman, Life in Ancient Egypt, p. 32.]

[Footnote 139: Isaiah, x. 7 sqq.; xxxvii. 24 sqq. Ezekiel, xxxi. 10 sq. Zephaniah, ii. 15.]

[Footnote 140: Mürdter-Delitzsch, Geschichte Babyloniens und Assyriens, p. 104.]

[Footnote 141: Numbers, xiii. 27; xiv. 7. Ezekiel, xx. 6, 15.]

[Footnote 142: Deuteronomy, vii. 6.]

[Footnote 143: Herodotus, i. 134.]

[Footnote 144: Rawlinson, in his translation of Herodotus, i. 260 sq. n. 5.]

[Footnote 145: Pindar, Pythia, vi. 3 sq. Idem, Nemea, vii. 33 sq. Aeschylus, Eumenides, 40, 166. Sophocles, [OE]dipus Tyrannus, 480, 898. Livy, xxxviii. 48. Cf. Herodotus' theory of "extremities" (iii. 115 sq.), and Rawlinson's commentary, in his translation of Herodotus, i. 260 sq. n. 6.]

[Footnote 146: Euripides, Iphigenia in Aulide, 1400 sq. Aristotle, Politica, i. 2, 6, pp. 1252 b, 1255 a.]

In the archaic State the national feeling is in some cases greatly strengthened by the religious feeling; whilst in other instances religion inspires devotion to the family, clan, or caste rather than to the nation, or constitutes a tie not only between compatriots but between members of different political communities. The ancestor-worship of the Chinese has hardly been conducive to genuine patriotism. Whatever devotion to the common weal may have prevailed among the Vedic Aryans, it has certainly passed away beneath the influence of Brahmanism, or been narrowed down to the caste, the village, or the family.[147] The Zoroastrian Ahura-Mazda was not a national god, but "the god of the Aryans," that is, of all the peoples who inhabited ancient Iran; and these were constantly at war {175} with one another.[148] Muhammedans, whilst animated

with a common hatred towards the Christians, show little public spirit in relation to their respective countries,[149] composed as they are of a variety of loosely connected, often very heterogeneous elements, ruled over by a monarch whose power is in many districts more nominal than real. In ancient Greece and Rome patriotism no doubt contained a religious element--each state and town had its tutelary gods and heroes, who were considered its proper masters;[150] but in the first place it was free citizens' love of their native institutions, a civic virtue which grew up on the soil of liberty. When the two Spartans who were sent to Xerxes to be put to death were advised by one of his governors to surrender themselves to the king, their answer was, "Had you known what freedom is, you would have bidden us fight for it, not with the spear only, but with the battle-axe."[151] And of the Athenians who lived at the time of the Persian wars, Demosthenes said that they were ready to die for their country rather than to see it enslaved, and that they considered the outrages and insults which befell him who lived in a subjugated city to be more terrible than death.[152] In classical antiquity "the influence of patriotism thrilled through every fibre of moral and intellectual life."[153] In some Greek cities emigration was prohibited by law, at Argos even on penalty of death.[154] Plato, in the Republic, sacrificed the family to the interests of the State. Cicero placed our duty to our country next after our duty to the immortal gods and before our duty to our parents.[155] "Of all connections," he says, "none is more weighty, none is more dear, than that between every individual and his country. Our parents are dear to us; {176} our children, our kinsmen, our friends, are dear to us; but our country comprehends alone all the endearments of us all. What good man would hesitate to die for her if he could do her service?"[156]

[Footnote 147: Wheeler, History of India, ii. 586 sq. See also Leist, Alt-arisches Jus Gentium, p. 529.]

[Footnote 148: Meyer, Geschichte des Alterthums, i. 540. Spiegel, Erânische Alterthumskunde, iii. 687 sqq.]

[Footnote 149: Polak, Persien, i. 12. Urquhart, Spirit of the East, ii. 427, 439 (Turks). Burckhardt, Bedouins and Wahábys, p. 204 sq. (Turks and Arab settlers).]

[Footnote 150: Leist, Alt-arisches Jus Gentium, p. 529. Schmidt, Die Ethik der alten Griechen, ii. 221.]

[Footnote 151: Herodotus, vii. 134 sq.]

[Footnote 152: Demosthenes, De Corona, 205, p. 296.]

[Footnote 153: Lecky, History of European Morals, i. 200.]

[Footnote 154: Plutarch, Lycurgus, xxvii. 5. Ovid, Metamorphoses, xv. 29.]

[Footnote 155: Cicero, De officiis, i. 45 (160). Cf. ibid. iii. 23 (90).]

[Footnote 156: Ibid. i. 17 (57). Cf. Cicero, De legibus, ii. 2, (5).]

The duty of patriotism springs, in the first instance, from the patriotic feeling; when the love of country is common in a nation public resentment is felt towards him who does not act as that sentiment requires him to act. Moreover, lack of patriotism in a person may also be resented by his fellow-countrymen as an injury done to themselves; and as we have seen before, anger, and especially anger felt by a whole community, has a tendency to lead to moral disapproval. For analogous reasons deeds of patriotism are apt to evoke moral praise. However, in benefiting his own people the patriot may cause harm to other people; and where the altruistic sentiment is broad enough to extend beyond the limits of the State and strong enough to make its voice heard even in competition with the love of country and the love of self, his conduct may consequently be an object of reproach. At the lower stages of civilisation the interests of foreigners are not regarded at all, except when sheltered by the rule of hospitality;

but gradually, owing to circumstances which will be discussed in the following chapter, altruism tends to expand, and men are at last considered to have duties to mankind at large. The Chinese moralists inculcated benevolence to all men without making any reference to national distinctions.[157] Mih-tsze, who lived in the interval between Confucius and Mencius, even taught that we ought to love all men equally; but this doctrine called forth protests as abnegating the peculiar devotion due to relatives.[158] In Thâi-Shang it is said that a good man will feel kindly towards every creature, and should not hurt even the insect tribes, grass, and trees.[159] Buddhism {177} enjoins the duty of universal love:--"As a mother, even at the risk of her own life, protects her son, her only son, so let a man cultivate goodwill without measure toward all beings, . . . unhindered love and friendliness toward the whole world, above, below, around."[160] According to the Hindu work Panchatantra it is the thought of little-minded persons to consider whether a man is one of ourselves or an alien, the whole earth being of kin to him who is generously disposed.[161] In Greece and Rome philosophers arose who opposed national narrowness and prejudice. Democritus of Abdera said that every country is accessible to a wise man, and that a good soul's fatherland is the whole earth.[162] The same view was expressed by Theodorus, one of the later Cyrenaics, who denounced devotion to country as ridiculous.[163] The Cynics, in particular, attached slight value to the citizenship of any special state, declaring themselves to be citizens of the world.[164] But, as Zeller observes, in the mouth of the Cynic this doctrine was meant to express not so much the essential oneness of all mankind, as the philosopher's independence of country and home.[165] It was the Stoic philosophy that first gave to the idea of a world-citizenship a definite positive meaning, and raised it to historical importance. The citizen of Alexander's huge empire had in a way become a citizen of the world; and national dislikes were so much more readily overcome as the various nationalities comprised in it were united not only under a common government but also in a common culture.[166] Indeed, the founder of Stoicism was himself only half a Greek. But there is also an obvious connection between the cosmopolitan idea and the Stoic {178} system in general.[167] According to the Stoics, human society has for its basis the identity of reason in individuals; hence we have no ground for limiting this society to a single nation. We are all, says Seneca, members of one great body, the universe; "we are all akin by Nature, who has formed us of the same elements, and placed us here together for the same end."[168] "If our reason is common," says Marcus Aurelius, "there is a common law, as reason commands us what to do and what not to do; and if there is a common law we are fellow-citizens; if this is so, we are members of some political community--the world is in a manner a state."[169] To this great state, which includes all rational beings, the individual states are related as the houses of a city are to the city collectively;[170] and the wise man will esteem it far above any particular community in which the accident of birth has placed him.[171]

[Footnote 157: Lun Yü, xii. 22. Mencius, vii. 1. 45. Douglas, Confucianism and Taouism, pp. 108, 205.]

[Footnote 158: Edkins, Religion in China, p. 119. Legge, Chinese Classics, ii. 476, n. 45. de Groot, Religious System of China, (vol. ii. book) i. 684.]

[Footnote 159: Thâi-Shang, 3.]

[Footnote 160: Quoted by Rhys Davids, Hibbert Lectures on the History of Buddhism, p. 111.]

[Footnote 161: Muir, Religious and Moral Sentiments rendered from Sanskrit Writers, p. 109.]

[Footnote 162: Stobæus, Florilegium, xl. 7, vol. ii. 80. Cf. Natorp, Die Ethika des Demokritos, p. 117, n. 41.]

[Footnote 163: Diogenes Laertius, Vitæ philosophorum, ii. 98 sq.]

[Footnote 164: Ibid. vi. 12, 63, 72, 98. Epictetus, Dissertationes, iii. 24. 66. Stobæus, xlv. 28, vol. ii. 252.]

[Footnote 165: Zeller, Socrates and the Socratic Schools, p. 326 sq. Idem, Stoics, Epicureans, and Sceptics, p. 327.]

[Footnote 166: Cf. Plutarch, De Alexandri Magni fortuna aut virtute, i. 6, p. 329.]

[Footnote 167: See Zeller, Stoics, &c. p. 327 sq.]

[Footnote 168: Seneca, Epistulæ, xcv. 52.]

[Footnote 169: Marcus Aurelius, Commentarii, iv. 4. Cf. ibid. vi. 44, and ix. 9; Cicero, De legibus, i. 7 (23); Epictetus, Dissertationes, i. 13. 3.]

[Footnote 170: Marcus Aurelius, iii. 11.]

[Footnote 171: Seneca, De otio, iv. 1. Idem, Epistulæ, lxviii. 2. Epictetus, Dissertationes, iii. 22. 83 sqq.]

But the Roman ideal of patriotism, with its utter disregard for foreign nations,[172] was not opposed by philosophy alone: it met with an even more formidable antagonist in the new religion. The Christian and the Stoic rejected it on different grounds: whilst the Stoic felt himself as a citizen of the world, the Christian felt himself as a citizen of heaven, to whom this planet was only a place of exile. Christianity was not hostile to the State.[173] At the very time when Nero committed his worst atrocities, St. Paul declared that there is no power but of God, and that whosoever resists the power resists the ordinance of God and shall be condemned;[174] and Tertullian says that all Christians send up their prayers for the life of the emperors, for their ministers, for magistrates, for the good of the {179} State and the peace of the Empire.[175] But the emperor should be obeyed only so long as his commands do not conflict with the law of God--a Christian ought rather to suffer like Daniel in the lions' den than sin against his religion;[176] and nothing is more entirely foreign to him than affairs of State.[177] Indeed, in the whole Roman Empire there were no men who so entirely lacked patriotism as the early Christians. They had no affection for Judea, they soon forgot Galilee, they cared nothing for the glory of Greece and Rome.[178] When the judges asked them which was their country they said in answer, "I am a Christian."[179] And long after Christianity had become the religion of the Empire, St. Augustine declared that it matters not, in respect of this short and transitory life, under whose dominion a mortal man lives, if only he be not compelled to acts of impiety or injustice.[180] Later on, when the Church grew into a political power independent of the State, she became a positive enemy of national interests. In the seventeenth century a Jesuit general called patriotism "a plague and the most certain death of Christian love."[181]

[Footnote 172: Cf. Lactantius, Divinæ Institutiones, vi. ('De vero cultu'), 6 (Migne, Patrologiæ cursus, vi. 655).]

[Footnote 173: St. Matthew, xxii. 21. 1 Peter, ii. 13 sq.]

[Footnote 174: Romans, xiii. 1 sq. See also Titus, iii. 1.]

[Footnote 175: Tertullian, Apologeticus, 39 (Migne, op. cit. i. 468). See also Ludwig, Tertullian's Ethik, p. 98 sq.]

[Footnote 176: Tertullian, De idololatria, 15 (Migne, op. cit. i. 684).]

[Footnote 177: Tertullian, Apologeticus, 38 (Migne, op. cit. i. 465):--"Nec ulla magis res aliena, quam publica."]

[Footnote 178: See Renan, Hibbert Lectures on the Influence of Rome on Christianity, p. 28.]

[Footnote 179: Le Blant, Inscriptions chrétiennes, i. 128.]

[Footnote 180: St. Augustine, De Civitate Dei, v. 17.]

[Footnote 181: von Eicken, Geschichte und System der mittelalterlichen Weltanschauung, p. 809.]

With the fall of the Roman Empire patriotism died out in Europe, and remained extinct for centuries. It was a feeling hardly compatible either with the migratory life of the Teutonic tribes or with the feudal system, which grew up wherever they fixed their residence. The knights, it is true, were not destitute of the natural affection for home. When Aliaumes is mortally wounded by Géri li Sors he exclaims, "Holy Virgin, I shall never more see Saint-Quentin nor Néèle";[182] and the troubadour Bernard de Ventadour touchingly sings, "Quan la doussa aura venta--Deves nostre païs,--M'es veiaire que senta--Odor de {180} Paradis."[183] But to a man of the Middle Ages "his country" meant little more than the neighbourhood in which he lived.[184] Kingdoms existed, but no nations. The first duty of a vassal was to be loyal to his lord;[185] but no national spirit bound together the various barons of one country. A man might be the vassal of the king of France and of the king of England at the same time; and often, from caprice, passion, or sordid interest, the barons sold their services to the enemies of the kingdom. The character of his knighthood was also perpetually pressing the knight to a course of conduct distinct from all national objects.[186] The cause of a distressed lady was in many instances preferable to that of the country to which he belonged --as when the Captal de Bouche, though an English subject, did not hesitate to unite his troops with those of the Compte de Foix to relieve the ladies in a French town, where they were besieged and threatened with violence by the insurgent peasantry.[187] When a knight's duties towards his country are mentioned in the rules of Chivalry they are spoken of as duties towards his lord:--"The wicked knight," it is said, "that aids not his earthly lord and natural country against another prince, is a knight without office."[188] Far from being, as M. Gautier asserts,[189] the object of an express command in the code of Chivalry, true patriotism had there no place at all. It was not known as an ideal, still less did it exist as a reality, among either knights or commoners. As a duke of Orleans could bind himself by a fraternity of arms and alliance to a duke of Lancaster,[190] so English merchants were in the habit of supplying nations at war against England with provisions bought at English fairs, and weapons wrought by English hands.[191] If, as M. Gaston Paris maintains, a {181} deep feeling of national union had inspired the Chanson de Roland,[192] it is a strange, yet undeniable, fact that no distinct trace of this feeling displayed itself in the mediæval history of France before the English wars.

[Footnote 182: Li Romans de Raoul de Cambrai, 210, p. 185.]

[Footnote 183: Quoted by Gautier, La Chevalerie, p. 64.]

[Footnote 184: See Cibrario, Della economia politica del medio eve, i. 263; de Crozals, Histoire de la civilization, ii. 287.]

[Footnote 185: Ordre of Chyualry, foll. 13 b. 32 b.]

[Footnote 186: See Mills, History of Chivalry, i. 140 sq.]

[Footnote 187: Scott, Essay on Chivalry, p. 31.]

[Footnote 188: Ordre of Chyualry, fol. 14 b.]

[Footnote 189: Gautier, op. cit. p. 33.]

[Footnote 190: Sainte-Palaye, Mémoires sur l'ancienne Chevalerie, ii. 72.]

[Footnote 191: Pike, History of Crime in England, i. 264 sq.]

[Footnote 192: Paris, La poésie du moyen age, p. 107. M. Gautier says (op. cit. p. 61) that Roland is "la France faite homme."]

Besides feudalism and the want of political cohesion, there were other factors that contributed to hinder the development of national personality and patriotic devotion. This sentiment presupposes not only that the various parts of which a country is composed shall have a vivid feeling of their unity, but also that they, united, shall feel themselves as a nation clearly distinct from other nations. In the Middle Ages national differences were largely obscured by the preponderance of the Universal Church, by the creation of the Holy Roman Empire, by the prevalence of a common language as the sole vehicle of mental culture, and by the undeveloped state of the vernacular tongues. To make use of the native dialect was a sign of ignorance, and to place worldly interests above the claims of the Church was impious. When Macchiavelli declared that he preferred his country to the safety of his soul, people considered him guilty of blasphemy; and when the Venetians defied the Papal thunders by averring that they were Venetians in the first place, and only Christians in the second, the world heard them with amazement.[193]

[Footnote 193: 'National Personality,' in Edinburgh Review, cxciv. 133.]

In England the national feeling developed earlier than on the Continent, no doubt owing to her insular position and freer institutions; as Montesquieu observes, patriotism thrives best in democracies.[194] At the time of the English Reformation the sense of corporate national life had evidently gained considerable strength, and the love of England has never been expressed in more exquisite form than it was by Shakespeare. At the same time the sense of patriotism was often grossly perverted by religious {182} bigotry and party spirit.[195] Even champions of liberty, like Lord Russell and Algernon Sidney, accepted French gold in the hope of embarrassing the King; and Sidney went so far as to try to instigate De Witt to invade England. Loyalism, in particular, proved a much stronger incentive than love of country. A loyalist like Strafford would have employed half-savage Irish troops against his own countrymen, and the Scotch Jacobites invited a French invasion.

[Footnote 194: Montesquieu, De l'esprit des Lois, iv. 5 ([OE]uvres, p. 206 sq.).]

[Footnote 195: See Edinburgh Review, cxciv. 133, 136 sq.; Pearson, National Life and Character, p. 190.]

In France the development of the national feeling was closely connected with the strengthening of the royal power and its gradual victory over feudalism. The word patrie was for the first time used by Charles VII.'s chronicler, Jean Chartier, and he also condemned as renégats those Frenchmen who, at the end of the hundred years war, fought on the side of the English.[196] But patriotism was for a long time inseparably confounded with loyalty to the sovereign. According to Bossuet "tout l'État est en la personne du prince";[197] and Abbé Coyer observes that Colbert believed royaume and patrie to signify one and the same thing.[198] In the eighteenth century the spirit of rebellion succeeded that of devotion to the king; but the key-note of the great movement which led to the Revolution was the liberty and equality of the individual, not the glory or welfare of the nation. Men were looked upon as members of the human race, rather than as citizens of any particular country. To be a citizen of every nation, and not to belong to one's native country alone, was the dream of French writers in the eighteenth century.[199] "The true sage is a cosmopolitan," says a writer of comedy.[200] Diderot asks which is the greater merit, to enlighten the human race, which remains for ever, or to save one's fatherland, which is {183} perishable.[201] According to Voltaire patriotism is composed of self-love and prejudice,[202] and only too often makes us the enemies of our fellow-men:--"Il est clair qu'un pays ne peut gagner sans qu'un autre perde, et qu'il ne peut vaincre sans faire des malheureux. Telle est donc la condition humaine,

que souhaiter la grandeur de son pays, c'est souhaiter du mal à ses voisins."[203] In Germany, Lessing, Goethe, and Schiller felt themselves as citizens of the world, not of the German Empire, still less as Saxons or Suabians; and Klopstock, with his enthusiasm for German nationality and language, almost appeared eccentric.[204] Lessing writes point-blank:--"The praise of being an ardent patriot is to my mind the very last thing that I should covet; . . . I have no idea at all of love of the Fatherland, and it seems to me at best but an heroical weakness, which I can very readily dispense with."[205]

[Footnote 196: Guibal, Histoire du sentiment national en France pendant la guerre de Cent ans, p. 526 sq.]

[Footnote 197: Legrand, L'idée de patrie, p. 20.]

[Footnote 198: Block, Dictionnaire général de la politique, ii. 518.]

[Footnote 199: Texte, Jean-Jacques Rousseau and the Cosmopolitan Spirit in Literature, p. 79.]

[Footnote 200: Palissot de Montenoy, Les philosophes, iii. 4, p. 75.]

[Footnote 201: Diderot, Essai sur les règnes de Claude et de Néron, ii. 75 ([OE]uvres, vi. 244).]

[Footnote 202: Voltaire, Pensées sur l'administration publique, 14 ([OE]uvres complètes, v. 351).]

[Footnote 203: Idem, Dictionnaire philosophique, art. Patrie ([OE]uvres complètes, viii. 118).]

[Footnote 204: See Strauss, Der alte und der neue Glaube, p. 259 sq.]

[Footnote 205: Lessing, quoted by Ziegler, Social Ethics, p. 121.]

The first French revolution marks the beginning of a new era in the history of patriotism. It inspired the masses with passion for the unity of the fatherland, the Republic "one and indivisible." At the same time it declared all nations to be brothers, and when it made war on foreign nations the object was only to deliver them from their oppressors.[206] But gradually the interest in the affairs of other countries grew more and more selfish, the attempt to emancipate was absorbed in the desire to subjugate; and this awoke throughout Europe a feeling which was destined to become the most powerful force in the history of the nineteenth century, the feeling of nationality. When Napoleon introduced French administration in the countries whose sovereigns he had deposed or degraded, the people resisted the change. The resistance was popular, as the rulers were absent or helpless, and it was national, being directed against foreign institutions. {184} It was stirred by the feeling of national rather than political unity, it was a protest against the dominion of race over race. The national element in this movement had in a manner been anticipated by the French Revolution itself. The French people was regarded by it as an ethnological, not as an historic, unit; descent was put in the place of tradition; the idea of the sovereignty of the people uncontrolled by the past gave birth to the idea of nationality independent of the political influence of history. But, as has been truly remarked, men were made conscious of the national element of the revolution by its conquests, not in its rise.[207]

[Footnote 206: Block, op. cit. ii. 376.]

[Footnote 207: See 'Nationality,' in Home and Foreign Review, i. 6 sqq.]

Ever since, the racial feeling has been the most vigorous force in European patriotism, and has gradually become a true danger to humanity. Beginning as a protest against the dominion of one race over another, this feeling led to a condemnation of every state which included different races, and finally developed into the complete doctrine that state and nationality should so far as possible be coextensive.[208] According to this theory the dominant nationality cannot admit the inferior nationalities dwelling

within the boundaries of the state to an equality with itself, because, if it did, the state would cease to be national, and this would be contrary to the principle of its existence; or the weaker nationalities are compelled to change their language, institutions, and individuality, so as to be absorbed in the dominant race. And not only does the leading nationality assert its superiority in relation to all others within the body politic, but it also wants to assert itself at the expense of foreign nations and races. To the nationalist all this is true patriotism; love of country often stands for a feeling which has been well described as love of more country.[209] But at the same time opposite ideals are at work. The fervour of nineteenth century nationalism has not been able to quench the {185} cosmopolitan spirit. In spite of loud appeals made to racial instincts and the sense of national solidarity, the idea has been gaining ground that the aims of a nation must not conflict with the interests of humanity at large; that our love of country should be controlled by other countries' right to prosper and to develop their own individuality; and that the oppression of weaker nationalities inside the state and aggressiveness towards foreign nations, being mainly the outcome of vainglory and greed, are inconsistent with the aspirations of a good patriot, as well as of a good man.

[Footnote 208: Ibid. p. 13 sq.]

[Footnote 209: Robertson, Patriotism and Empire, p. 138.]

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Our long discussion of moral ideas regarding such modes of conduct as directly concern other men's welfare has at last come to an end. We have seen that they may be ultimately traced to a variety of sources: to the influence of habit or education, to egoistic considerations of some kind or other which have given rise to moral feelings, to notions of social expediency, to disinterested likings or dislikes, and, above all, to sympathetic resentment or sympathetic approval springing from an altruistic disposition of mind. But how to account for this disposition? Our explanation of that group of moral ideas which we have been hitherto investigating is not complete until we have found an answer to this important question. I shall therefore in the next chapter examine the origin and development of the altruistic sentiment.

Chapter XXXIV — The Origin and Development of the Altruistic Sentiment

THERE is one form of the altruistic sentiment which man shares with all mammals and many other animals, namely, maternal affection. As regards its origin various theories have been set forth.

According to Aristotle, parents love their children as being portions of themselves. [1] A similar explanation of maternal affection has been given by some modern writers. [2] Thus Professor Espinas regards this sentiment as modified self-love and love of property. The female, he says, at the moment when she gives birth to little ones resembling herself, has no difficulty in recognising them as the flesh of her flesh; the feeling she experiences towards them is made up of sympathy and pity, but we cannot exclude from it an idea of property which is the most solid support of sympathy. She feels and understands up to a certain point that these young ones which are herself at the same time belong to her; the love of herself, extended to those who have gone out from her, changes egoism into sympathy and the proprietary instinct into an affectionate impulse. [3] This hypothesis, however, seems to me to be very inadequate. It does not explain

why, for instance, a bird takes more care of her eggs than of other matter segregated from {187} her body, which may equally well be regarded as a part of herself. Nor does it account for a foster-mother's affection for her adopted offspring.[4] Of this many instances have been noticed in the lower animals; and among some savage peoples adopted children are said to be treated by their foster-parents with the same affection as if they were their own flesh and blood.[5]

[Footnote 1: Aristotle, Ethica Nicomachea, viii. 12. 2 sq.]

[Footnote 2: Hartley, Observations on Man, i. 496 sq. Fichte, Das System der Sittenlehre, p. 433.]

[Footnote 3: Espinas, Des sociétés animales (2nd ed.), p. 444 sq., quoted by Ribot, Psychology of the Emotions, p. 280.]

[Footnote 4: Cf. Spencer, Principles of Psychology, ii. 624.]

[Footnote 5: Murdoch, 'Ethnol. Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 419 (Point Barrow Eskimo). Thomson, Savage Island, p. 135.]

A very different explanation of maternal love has been given by Professor Bain. He derives parental affection from the "intense pleasure in the embrace of the young." He observes that "such a pleasure once created would associate itself with the prevailing features and aspects of the young, and give to all of these their very great interest. For the sake of the pleasure, the parent discovers the necessity of nourishing the subject of it, and comes to regard the ministering function as a part or condition of the delight."[6] But if the satisfaction in animal contact were at the bottom of the maternal feeling, conjugal affection ought by far to surpass it in intensity; and yet, among the lower races at least, the case is exactly the reverse, conjugal affection being vastly inferior in degree to a mother's love of her child. It may indeed be fairly doubted whether there is any "intense pleasure" at all in embracing a new-born baby--unless it be one's own. It seems much more likely that parents like to touch their children because they love them, than that they love them because they like to touch them. Attraction, showing itself either by elementary movements of approach, or by contact, or by the embrace, is the outward expression of tenderness.[7] Professor Bain himself observes that as anger reaches a satisfying term by knocking some one down, love is completed and satisfied with an embrace.[8] But this by no means implies that the embrace is the cause of love; it {188} only means that love has a tendency to express itself outwardly in an act of embrace.

[Footnote 6: Bain, Emotions and the Will, p. 140.]

[Footnote 7: Ribot, op. cit. p. 234.]

[Footnote 8: Bain, op. cit. p. 126.]

In the opinion of Mr. Spencer, again, parental love is essentially love of the weak or helpless. This instinct, he remarks, is not adequately defined as that which attaches a creature to its young. Though most frequently and most strongly displayed in this relation, the so-called parental feeling is really excitable apart from parenthood; and the common trait of the objects which arouse it is always relative weakness or helplessness.[9] This hypothesis undoubtedly contains part of the truth. That the maternal instinct is in some degree love of the helpless is obvious from the fact that, among those of the lower animals which are not gregarious, mother and young separate as soon as the latter are able to shift for themselves; nay, in many cases they are actually driven away by her. Moreover, in species which are so constituted that the young from the very outset can help themselves there is no maternal love. These facts indicate where we have to look for the source of this sentiment. When the young are born in a state of utter helplessness somebody must take care of them, or the species cannot survive, or, rather, such a species could never have come into existence. The maternal instinct may

thus be assumed to owe its origin to the survival of the fittest, to the natural selection of useful spontaneous variations.

[Footnote 9: Spencer, Principles of Psychology, ii. 623 sq. See also Hartley, op. cit. i. 497.]

This is also recognised by Mr. Spencer;[10] but his theory fails to explain the indisputable fact that there is a difference between maternal love and the mere love of the helpless. Even in a gregarious species mothers make a distinction between their own offspring and other young. During my stay among the mountaineers of Morocco I was often struck by the extreme eagerness with which in the evening, when the flock of ewes and the flock of lambs were reunited, each mother sought for her own lamb, and each lamb for its own mother. A similar {189} discrimination has been noticed even in cases of conscious adoption. Brehm tells us of a female baboon which had so capacious a heart that she not only adopted young monkeys of other species, but stole young dogs and cats which she continually carried about; yet her kindness did not go so far as to share food with her adopted offspring, although she divided everything quite fairly with her own young ones.[11] To account for the maternal sentiment we must therefore assume the existence of some other stimulus besides the signs of helplessness, which produces, or at least strengthens, the instinctive motor response in the mother. This stimulus, so far as I can see, is rooted in the external relationship in which the offspring from the beginning stand to the mother. She is in close proximity to her helpless young from their tenderest age; and she loves them because they are to her a cause of pleasure.

[Footnote 10: Spencer, op. cit. ii. 623.]

[Footnote 11: Darwin, Descent of Man, p. 70.]

In various animal species the young are cared for not only by the mother, but by the father as well. This is the general rule among birds: whilst the hatching of the eggs and the chief part of the rearing-duties belong to the mother, the father acts as a protector, and provides food for the family. Among most of the mammals, on the other hand, the connections between the sexes are restricted to the time of the rut, hence the father may not even see his young. But there are also some mammalian species in which male and female remain together even after the birth of the offspring and the father defends his family against enemies.[12] Among the Quadrumana this seems to be the rule.[13] All the best authorities agree that the Gorilla and the Chimpanzee live in families. When the female is pregnant the male builds a rude nest in a tree, where she is delivered; and he spends the night crouching at the foot of the tree, protecting the female and their young one, which are in the nest above, from the nocturnal attacks of leopards. Passing from the {190} highest monkeys to the savage and barbarous races of men, we meet with the same phenomenon. In the human race the family consisting of father, mother, and offspring is probably a universal institution, whether founded on a monogamous, polygynous, or polyandrous marriage. And, as among the lower animals having the same habit, whilst the immediate care of the children chiefly belongs to the mother, the father is the guardian of the family.[14]

[Footnote 12: Westermarck, History of Human Marriage, p. 11 sq.]

[Footnote 13: Ibid. p. 12 sqq.]

[Footnote 14: Westermarck, History of Human Marriage, p. 14 sqq.]

The stimuli to which the paternal instinct responds are apparently derived from the same circumstances as those which call into activity the maternal instinct, that is, the helplessness and the nearness of the offspring. Wherever this instinct exists, the father is near his young from the beginning, living together with the mother. And here again the sentimental response is in all probability the result of a process of natural selection,

which has preserved a mental disposition necessary for the existence of the species. Among birds paternal care is indispensable. Equal and continual warmth is the first requirement for the development of the embryo and the preservation of the young ones; and for this the mother almost always wants the assistance of the father, who provides her with necessaries, and sometimes relieves her of the brooding. Among mammals, again, whilst the young at their tenderest age can never do without the mother, the father's aid is generally not required. That the Primates form an exception to this rule is probably due to the small number of young, the female bringing forth but one at a time, and besides, among the highest apes and in man, to the long period of infancy. [15] If this is true we may assume that the paternal instinct occurred in primitive man, as it occurs, more or less strongly developed, among the anthropoid apes and among existing savages.

[Footnote 15: See ibid. p. 20 sqq. Fiske, Outlines of Cosmic Philosophy, ii. 342 sq.]

By origin closely allied to the paternal feeling is the attachment between individuals of different sex, which {191} induces male and female to remain with one another beyond the mere act of propagation till after the birth of the offspring. It is obvious that, where the generative power is restricted to a certain season--a peculiarity which primitive man seems to have shared with other mammals[16]--it cannot be the sexual instinct that causes the prolonged union of the sexes, nor can I conceive any other egoistic motive that could account for this habit. Considering that the union lasts till after the birth of the offspring and that it is accompanied with parental care, I conclude that it is for the benefit of the young that male and female continue to live together. The tie which joins them seems therefore, like parental affection, to be an instinct developed through natural selection. The tendency to feel some attachment to a being which has been the cause of pleasure--in this case sexual pleasure--is undoubtedly at the bottom of this instinct. Such a feeling may originally have induced the sexes to remain united and the male to protect the female even after the sexual desire was gratified; and if procuring great advantage to the species in the struggle for existence, conjugal attachment would naturally have developed into a specific characteristic.

[Footnote 16: Westermarck, op. cit. ch. ii.]

We have reason to believe that the germ of this sentiment occurred already in our earliest human ancestors, that marriage, in the natural history sense of the term, is a habit transmitted to man from some ape-like progenitor.[17] In the course of evolution conjugal affection has increased both in intensity and complexity; but advancement in civilisation has not at every step been favourable to its development. When restricted to men only, a higher culture on the contrary tends to alienate husband and wife, as is the case in Eastern countries and as was the case in ancient Greece. Another fact leading to conjugal apathy is the custom which compels the women before marriage to live strictly apart from the men. In China it often happens that the parties have not even seen each {192} other till the wedding day;[18] and in Greece Plato urged in vain that young men and women should be more frequently permitted to meet one another, so that there should be less enmity and indifference in the married life.[19] Conjugal love is both a cause and an effect of monogamy; but, as we shall see subsequently, the course of civilisation does not involve a steady progress towards stricter monogamy. The notions about women also influence the emotions felt towards them; and we have noticed that the great religions of the world have generally held them in little regard. [20] In its fully developed form the passion which unites the sexes is perhaps the most compound of all human feelings. Mr. Spencer thus sums up the masterly analysis he has given of it:--"Round the physical feeling forming the nucleus of the whole, are gathered

the feelings produced by personal beauty, that constituting simple attachment, those of reverence, of love, of approbation, of self-esteem, of property, of love of freedom, of sympathy. These, all greatly exalted, and severally tending to reflect their excitements on one another, unite to form the mental state we call love."[21]

[Footnote 17: Ibid. op. cit. chs. i., iii.]

[Footnote 18: Katscher, Bilder aus dem chinesischen Leben, pp. 71, 84.]

[Footnote 19: Plato, Leges, vi. 771 sq.]

[Footnote 20: Supra, i. 662 sqq.]

[Footnote 21: Spencer, Principles of Psychology, i. 488.]

The duration of conjugal and parental feelings varies extremely. Most birds, with the exception of those belonging to the Gallinaceous family, when pairing do so once for all till either one or the other dies;[22] whereas among the mammals man and possibly some apes[23] are the only species whose conjugal unions last any considerable time after the birth of the offspring. Among many of the lower races of men lifelong marriages seem to be the rule, and among a few separation is said to be entirely unknown; but there is abundant evidence that marriage has, upon the whole, become more durable with advancing civilisation.[24] One cause of this is that conjugal affection has become more lasting. And the greater duration of this sentiment may be explained partly from the refinement {193} of the uniting passion, involving appreciation of mental qualities which last long after youth and beauty have passed away, and partly also from the greater durability of parental feelings, which form a tie not only between parents and children, but between husband and wife.

[Footnote 22: Westermarck, op. cit. p. 11.]

[Footnote 23: Ibid. pp. 13, 14, 535.]

[Footnote 24: Ibid. ch. xxiii.]

The parental feelings originally only last as long as the young are unable to shift for themselves--the paternal feeling possibly less. As Mr. Fiske observes, "where the infancy is very short, the parental feeling, though intense while it lasts, presently disappears, and the offspring cease to be distinguished from strangers of the same species. And in general the duration of the feelings which insure the protection of the offspring is determined by the duration of the infancy."[25] Among certain savages parental love is still said to be restricted to the age of helplessness. We are told that the affection of a Fuegian mother for her child gradually decreases in proportion as the child grows older, and ceases entirely when it reaches the age of seven or eight; thenceforth the parents in no way meddle with the affairs of their son, who may leave them if he likes.[26] When the parental feelings became more complex, through the association of other feelings, as those of property and pride, they naturally tended to extend themselves beyond the limits of infancy and childhood. But the chief cause of this extension seems to lie in the same circumstances as made man a gregarious animal. Where the grown-up children continued to stay with their parents, parental affection naturally tended to be prolonged, not only by the infusion into it of new elements, but by the direct influence of close living together. It was, moreover, extended to more distant descendants. The same stimuli as call forth kindly emotions towards a person's own children evoke similar emotions towards his grand- and great-grandchildren.

[Footnote 25: Fiske, op. cit. ii. 343.]

[Footnote 26: Bove, Patagonia, Terra del Fuoco, p. 133. See also Wied-Neuwied, Reise nach Brasilien, ii. 40 (Botocudos), Im Thurn, Among the Indians of Guiana, p. 219; Scaramucci and Giglioli, 'Notizie sui Danakil,' in Archivio per l'antropologia e la etnologia, xiv. 35.]

{194} It is an old truth that children's love of their parents is generally much weaker than the parents' love of their children. The latter is absolutely necessary for the subsistence of the species, the former is not;[27] though, when a richer food-supply favoured the formation of larger communities, filial attachment must have been of advantage to the race.[28] No individual is born with filial love. However, Aristotle goes too far when saying that, whilst parents love their children from their birth upward, "children do not begin to love their parents until they are of a considerable age, and have got full possession of their wits and faculties."[29] Under normal circumstances the infant from an early age displays some attachment to its parents. Professor Sully tells us of a girl, about seventeen months old, who received her father after a few days absence with special marks of affection, "rushing up to him, smoothing and stroking his face and giving him all the toys in the room."[30] Filial love is retributive; the agreeable feeling produced by benefits received makes the individual look with pleasure and kindliness upon the giver. And here again the affection is strengthened by close living together, as appears from the cooling effect of long separation of children from their parents. But the filial feeling is not affection pure and simple, it is affection mingled with regard for the physical and mental superiority of the parent.[31] As the parental feeling is partly love of the weak and young, so the filial feeling is partly regard for the strong and (comparatively) old.

[Footnote 27: This observation was made already by Hutcheson (Inquiry into the Original of our Ideas of Beauty and Virtue, p. 219) and Adam Smith (Theory of Moral Sentiments, p. 199). The latter wrote, a hundred years before the publication of 'The Origin of Species,' that parental tenderness is a much stronger affection than filial piety, because "the continuance and propagation of the species depend altogether upon the former, and not upon the latter."]

[Footnote 28: Darwin maintains (Descent of Man, p. 105) that the filial affections have been to a large extent gained through natural selection.]

[Footnote 29: Aristotle, Ethica Nicomachea, viii. 12. 2.]

[Footnote 30: Sully, Studies of Childhood, p. 243.]

[Footnote 31: See supra, i. 618 sq.]

Besides parental, conjugal, and filial attachment we find among all existing races of men altruism of the fraternal {195} type, binding together children of the same parents, relatives more remotely allied, and, generally, members of the same social unit. But I am inclined to suppose that man was not originally a gregarious animal, in the proper sense of the word, that he originally lived in families rather than in tribes, and that the tribe arose as the result of increasing food-supply, allowing the formation of larger communities, combined with the advantages which under such circumstances accrued from a gregarious life. The man-like apes are not gregarious; and considering that some of them are reported to be encountered in greater numbers in the season when most fruits come to maturity,[32] we may infer that the solitary life generally led by them is due chiefly to the difficulty they experience in getting food at other times of the year. That our earliest human or half-human ancestors lived on the same kind of food, and required about the same quantities of it as the man-like apes, seems to me a fairly legitimate supposition; and from this I conclude that they were probably not more gregarious than these apes. Subsequently man became carnivorous; but even when getting his living by fishing or hunting, he may still have continued as a rule this solitary kind of life, or gregariousness may have become his habit only in part. "An animal of a predatory kind," Mr. Spencer observes, "which has prey that can be caught and killed without help, profits by living alone: especially if its prey is much scattered,

and is secured by stealthy approach or by lying in ambush. Gregariousness would here be a positive disadvantage. Hence the tendency of large carnivores, and also of small carnivores that have feeble and widely-distributed prey, to lead solitary lives."[33] It is certainly a noteworthy fact that even now there are rude savages who live rather in separate families than in tribes; and that their solitary life is due to want of {196} sufficient food is obvious from several facts which I have stated in full in another place. [34] These facts, as it seems to me, give much support to the supposition that the kind of food man subsisted upon, together with the large quantities of it which he wanted, formed in olden times a hindrance to a true gregarious manner of living, except perhaps in some unusually rich places.

[Footnote 32: Savage, 'Observations on the External Characters and Habits of the Troglodytes Niger, in Boston Journal of Natural History, iv. 384. Cf. von Koppenfels, 'Meine Jagden auf Gorillas,' in Die Gartenlaube, 1877, p. 419.]

[Footnote 33: Spencer, Principles of Psychology, ii. 558.]

[Footnote 34: Westermarck, op. cit. p. 43 sqq.]

But man finally overcame this obstacle. "He has," to quote Darwin, "invented and is able to use various weapons, tools, traps, &c., with which he defends himself, kills or catches prey, and otherwise obtains food. He has made rafts or canoes for fishing or crossing over to neighbouring fertile islands. He has discovered the art of making fire, by which hard and stringy roots can be rendered digestible, and poisonous roots or herbs innocuous."[35] In short, man gradually found out new ways of earning his living and more and more emancipated himself from direct dependence on surrounding nature. The chief obstacle to a gregarious life was by this means surmounted, and the advantages of such a life were considerable. Living together in larger groups, men could resist the dangers of life and defend themselves much better than when solitary--all the more so as the physical strength of man, and especially savage man, is comparatively slight. The extension of the small family group may have taken place in two different ways: either by adhesion, or by natural growth and cohesion. In other words, new elements whether other family groups or single individuals may have united with it from without, or the children, instead of separating from their parents, may have remained with them and increased the group by forming new families themselves. There can be little doubt that the latter was the normal mode of extension. When gregariousness became an advantage to man, he would feel inclined to remain with those with whom he was living even after the family had fulfilled its object--the preservation of {197} the helpless offspring. And he would be induced to do so not only from egoistic considerations, but by an instinct which, owing to its usefulness, would gradually develop, practically within the limits of kinship--the gregarious instinct.

[Footnote 35: Darwin, Descent of Man, p. 48 sq.]

By the gregarious instinct I understand an animal's proneness to live together with other members of its own species, apart from parental, conjugal, and filial attachment. It involves, or leads to, pleasure in the consciousness of their presence. The members of a herd are at ease in each other's company, suffer when they are separated, and rejoice when they are reunited. By actual living together the instinct is individualised,[36] and it is strengthened by habit. The pleasure with which one individual looks upon another is further increased by the solidarity of interests. Not only have they enjoyments in common, but they have the same enemies to resist, the same dangers to encounter, the same difficulties to overcome. Hence acts which are beneficial to the agent are at the same time beneficial to his companions, and the distinction between ego and alter loses much of its importance.

[Footnote 36: In mankind we very early recognise the child's tendency to sympathise with persons who are familiar to it (Compayré, L'évolution intellectuelle et morale de l'enfant, p. 288).]

But the members of the group do not merely take pleasure in each other's company. Associated animals very frequently display a feeling of affection for each other--defend each other, help each other in distress and danger, perform various other services for each other.[37] Considering that the very object of the gregarious instinct is the preservation of the species, I think we are obliged to regard the mutual affection of associated animals as a development of this instinct. With the pleasure they take in each other's company is intimately connected kindliness towards its cause, the companion himself. In this explanation of social affection I believe no further step can be made. Professor Bain asks why a more lively feeling should grow up towards a fellow-being than towards an {198} inanimate source of pleasure; and to account for this he suggests, curiously enough, "the primary and independent pleasure of the animal embrace"[38]--although embrace even as an outward expression of affection plays a very insignificant part in the social relations of gregarious animals. It might as well be asked why there should be a more lively feeling towards a sentient creature which inflicts pain than towards an inanimate cause of pain. Both cases call for a similar explanation. The animal distinguishes between a living being and a lifeless thing, and affection proper, like anger proper, is according to its very nature felt towards the former only. The object of anger is normally an enemy, the object of social affection is normally a friend. Social affection is not only greatly increased by reciprocity of feeling, but could never have come into existence without such reciprocity. The being to which an animal attaches itself is conceived of as kindly disposed towards it; hence among wild animals social affection is found only in connection with the gregarious instinct, which is reciprocal in nature.

[Footnote 37: Darwin, op. cit. p. 100 sqq. Kropotkin, Mutual Aid, ch. i. sq.]

[Footnote 38: Bain, op. cit. p. 132.]

Among men the members of the same social unit are tied to each other with various bonds of a distinctly human character--the same customs, laws, institutions, magic or religious ceremonies and beliefs, or notions of a common descent. As men generally are fond of that to which they are used or which is their own, they are also naturally apt to have likings for other individuals whose habits or ideas are similar to theirs. The intensity and extensiveness of social affection thus in the first place depend upon the coherence and size of the social aggregate, and its development must consequently be studied in connection with the evolution of such aggregates.

This evolution is largely influenced by economic conditions. Savages who know neither cattle-rearing nor agriculture, but subsist on what nature gives them--game, fish, fruit, roots, and so forth--mostly live in single families consisting of parents and children, or in larger {199} family groups including in addition a few other individuals closely allied.[39] But even among these savages the isolation of the families is not complete. Persons of the same stock inhabiting neighbouring districts hold friendly relations with one another, and unite for the purpose of common defence. When the younger branches of a family are obliged to disperse in search of food, at least some of them remain in the neighbourhood of the parent family, preserve their language, and never quite lose the idea of belonging to one and the same social group. And in some cases we find that people in the hunting or fishing stage actually live in larger communities, and have a well-developed social organisation. This is the case with many or most of the Australian aborigines. Though in Australia, also, isolated families are often

met with,[40] the rule seems to be that the blacks live in hordes. Thus the Arunta of Central Australia are distributed in a large number of small local groups, each of which occupies a given area of country and has its own headman.[41] Every family, consisting of a man and one or more wives and children, has a separate lean-to of shrubs;[42] but clusters of these shelters are always found in spots where food is more or less easily obtainable,[43] and the members of each group are bound together by a strong "local feeling."[44] The local influence makes itself felt even outside the horde. "Without belonging to the same group," say Messrs. Spencer and Gillen, "men who inhabit localities close to one another are more closely associated than men living at a distance from one another, and, as a matter of fact, this local bond is strongly marked. . . . Groups which are contiguous locally are constantly meeting to perform ceremonies."[45] At the time when the series of initiation ceremonies called the Engwura are performed, men and women gather together from all parts of the tribe, councils of the elder {200} men are held day by day, the old traditions of the tribe are repeated and discussed, and "it is by means of meetings such as this, that a knowledge of the unwritten history of the tribe and of its leading members is passed on from generation to generation."[46] Nay, even members of different tribes often have friendly intercourse with each other; in Central Australia, when two tribes come into contact with one another on the borderland of their respective territories, the same amicable feelings as prevail within the tribe are maintained between the members of the two.[47] Now it seems extremely probable that Australian blacks are so much more sociable than most other hunting people because the food-supply of their country is naturally more plentiful, or, partly thanks to their boomerangs, more easily attainable. A Central Australian native is, as a general rule, well nourished; "kangaroo, rock-wallabies, emus, and other forms of game are not scarce, and often fall a prey to his spear and boomerang, while smaller animals, such as rats and lizards, are constantly caught without any difficulty by the women."[48] Circumstances of an economic character also account for the gregariousness of the various peoples on the north-west coast of North America who are neither pastoral nor agricultural--the Thlinkets, Haidas, Nootkas, and others. On the shore of the sea or some river they have permanent houses, each of which is inhabited by a number of families;[49] the houses are grouped in villages, some of which are very populous;[50] and though the tribal bond is not conspicuous for its strength, there are councils which discuss and decide all important questions concerning the tribe.[51] The territory inhabited by these peoples, with its bays, sounds, and rivers, supplies them with food in abundance; "its enormous wealth of fish allows its inhabitants to enjoy a pampered existence."[52]

[Footnote 39: Westermarck, op. cit. p. 43 sqq. Hildebrand, Recht und Sitte, p. 1 sqq.]

[Footnote 40: Westermarck, op. cit. p. 45.]

[Footnote 41: Spencer and Gillen, Native Tribes of Central Australia, p. 8 sqq.]

[Footnote 42: Ibid. p. 18.]

[Footnote 43: Ibid. p. 31.]

[Footnote 44: Ibid. p. 544.]

[Footnote 45: Ibid. p. 14.]

[Footnote 46: Spencer and Gillen, Native Tribes of Central Australia, p. 272.]

[Footnote 47: Ibid. p. 32.]

[Footnote 48: Ibid. pp. 7, 44.]

[Footnote 49: Boas, in Fifth Report on the North-Western Tribes of Canada, p. 22.]

[Footnote 50: Krause (Die Tlinkit-Indianer, p. 100) speaks of a Thlinket village which consisted of sixty-five houses and five or six hundred inhabitants.]

[Footnote 51: Boas, loc. cit. p. 36 sq.]

[Footnote 52: Ratzel, History of Mankind, ii. 92.]

{201} To pastoral people sociality, up to a certain degree, is of great importance. They have not only to defend their own persons against their enemies, but they have also to protect valuable property, their cattle. Moreover, they are often anxious to increase their wealth by robbing their neighbours of cattle, and this is best done in company. But at the same time a pastoral community is never large, and, though cohesive so long as it exists, it is liable to break up into sections. The reason for this is that a certain spot can pasture only a limited stock of cattle. The thirteenth chapter of Genesis well illustrates the social difficulties experienced by pastoral peoples. Abraham went up out of Egypt together with his wife and all that he had, and Lot went with him. Abraham was very rich in cattle, and Lot also had flocks, and herds, and tents. But "the land was not able to bear them, that they might dwell together: for their substance was great, so that they could not dwell together"; they were obliged to separate.[53]

[Footnote 53: Genesis, xiii. 1 sqq. See Hildebrand, op. cit. p. 29 sq.; Grosse, Die Formen der Familie, pp. 99, 100, 124 sq.]

The case is different with people subsisting on agriculture. A certain piece of land can support a much larger number of persons when it is cultivated than when it consists merely of pasture ground. Its resources largely depend on the labour bestowed on it, and the more people the more labour. The soil also constitutes a tie which cannot be loosened. It is a kind of property which, unlike cattle, is immovable; hence even where individual ownership in land prevails, the heirs to an estate have to remain together. As a matter of fact, the social union of agricultural communities is very close, and the households are often enormous.[54]

[Footnote 54: See Grosse, op. cit. p. 136 sqq.]

But living together is not the only factor which, among savages, establishes a social unit. Such a unit may be based not only on local proximity, but on marriage or a common descent; it may consist not only of persons who live together in the same district, but of persons who are of the same family, or who are, or consider themselves to be, {202} of the same kin. These different modes of organisation often, in a large measure, coincide. The family is a social unit made up of persons who are either married or related by blood, and at the same time, in normal cases, live together. The tribe is a social unit, though often a very incoherent one,[55] consisting of persons who inhabit the same district and also, at least in many cases, regard themselves as descendants of some common ancestor. The clan, which is essentially a body of kindred having a common name, may likewise on the whole coincide with the population of a certain territory, with the members of one or more hordes or villages. This is the case where the husband takes his wife to his own community and descent is reckoned through the father, or where he goes to live in his wife's community and descent is reckoned through the mother. But frequently the system of maternal descent is combined with the custom of the husband taking his wife to his own home, and this, in connection with the rule of clan-exogamy, occasions a great discrepancy between the horde and the clan. The local group is then by no means a group of clansmen; the children, live in their father's community, but belong to their mother's clan, whilst the next generation of children within the community must belong to another clan.[56]

[Footnote 55: See Cunow, Die Verwandtschafts-Organisationen der Australneger, p. 121, n. 1.]

[Footnote 56: Cf. Giddings, Principles of Sociology, p. 259.]

Kinship certainly gives rise to special rights and duties, but when unsupported by local proximity it loses much of its social force. Among the Australian natives, for instance, the clan rules seem generally to be concerned with little or nothing else than marriage, sexual intercourse, and, perhaps, blood-revenge.[57] "The object of caste" (clan), says Mr. Curr, "is not to create or define a bond of union, but to secure the absence of any blood relationship between {203} persons proposed to marry. So far from being a bond of friendship, no Black ever hesitates to kill one of another tribe because he happens to bear the same caste- (clan-) name as himself."[58] It appears that the system of descent itself is largely influenced by local connections.[59] Sir E. B. Tylor has found by means of his statistical method that the number of coincidences between peoples among whom the husband lives with the wife's family and peoples who reckon kinship through the mother only, is proportionally large, and that the full maternal system never appears among peoples whose exclusive custom is for the husband to take his wife to his own home;[60] and I have myself drawn attention to the fact that where the two customs, the woman receiving her husband in her own hut and the man taking his wife to his, occur side by side among the same people, descent in the former case is traced through the mother, in the latter through the father.[61] Nay, even where kinship constitutes a tie between persons belonging to different local groups, its social force is ultimately derived not merely from the idea of a common origin, but from near relatives' habit of living together. Men became gregarious by remaining in the circle where they were born; if, instead of keeping together with their kindred, they had preferred to isolate themselves or to unite with strangers, there would certainly be no blood-bond at all. The mutual attachment and the social rights and duties which resulted from this gregarious condition were associated with the relation in which members of the group stood to one another--the relation of kinship as expressed by a common name,--and these associations might last even after the local tie was broken. By means of the name former connections were kept up. Even we ourselves are generally more disposed to count kin with distant relatives who have our own surname than with relatives who have a different name; and still greater is the influence which language in this respect exercises on the mind of a savage, {204} to whom a person's name is part of his personality. The derivative origin of the social force in kinship accounts for its formal character, when personal intercourse is wanting; it may enjoin duties, but hardly inspires much affection. If in modern society much less importance is attached to kinship than at earlier stages of civilisation, this is largely due to the fact that relatives, except the nearest, have little communication with each other. And if, as Aristotle observes, friendship between kinsfolk varies according to the degree of relationship, [62] it does so in the first instance on account of the varying intimacy of their mutual intercourse.

[Footnote 57: Cunow, op. cit. pp. 97, 136. Dr. Stirling says (Report of the Horn Expedition to Central Australia, 'Anthropology,' p. 43) that the laws arising out of the "class" (clan) divisions "have extraordinary force and are, in general, implicitly obeyed whether in respect of actual marriage, illicit connections, or social relations"; but I find no further reference to these "social relations."]

[Footnote 58: Curr, The Australian Race, i. 69.]

[Footnote 59: Westermarck, op. cit. p. 107 sqq.]

[Footnote 60: Tylor, 'Method of Investigating the Development of Institutions,' in Jour. Anthr. Inst. xviii. 258.]

[Footnote 61: Westermarck, op. cit. p. 110.]

[Footnote 62: Aristotle, Ethica Nicomachea, viii. 12. 7.]

A very different explanation of the social influence of kinship has been given by Mr. Hartland. He connects it with primitive superstition. A clan, he says, "is regarded as an unity, literally and not metaphorically one body, the individual members of which are as truly portions as the fingers or the legs are portions of the external, visible body of each of them." Now, a severed limb or lock of hair is believed by the savage to remain in some invisible but real union with the body whereof it once, in outward appearance also, formed a part, and any injury done to it is supposed to affect the organism to which it belonged. "The individual member of a clan was in exactly the same position as a lock of hair cut from the head, or an amputated limb. He had no separate significance, no value apart from his kin. . . . Injury inflicted on him was inflicted on, and was felt by, the whole kin, just as an injury inflicted on the severed lock or limb was felt by the bulk."[63] Mr. Hartland insists upon a literal interpretation of his words;[64] and this implies that the members of a clan are in their behaviour influenced by the idea that what happens to one of them reacts upon all.

[Footnote 63: Hartland, Legend of Perseus, ii. 277.]

[Footnote 64: Ibid. ii. 236, 398, 444.]

In support of his theory Mr. Hartland makes reference to the belief of some savages, that charms may be made from dead bodies against the surviving relatives of the deceased,[65] and to certain rites of healing in which, besides the patient himself, "other members of his tribe, presumably kinsmen," take part.[66] But the former belief is a superstition connected with the wonder of death, from which no conclusion must be drawn as {205} to relations between the living; and in the ceremonies of healing the medicine-man plays a much more prominent part than the other bystanders--whose relationship to the patient, besides, is so little marked that Mr. Hartland only presumes them to be kindred. He further observes that in the wide-spread custom of the Couvade we meet with the idea that the child, being a part of the father, is liable to be affected by various acts committed by him.[67] And from Sir J. G. Frazer's 'Golden Bough' might be quoted many instances of a belief in some mysterious bond of sympathy knitting together absent friends and relations--especially at critical times of life--which has, in particular, led to rules regulating the conduct of persons left at home while a party of their friends is out fishing or hunting or on the war path.[68] But all these rules are taboo restrictions of a definite and altogether special kind, generally, it seems, referring to members of the same family, and frequently to wives in their husbands' absence. In order to make his hypothesis acceptable, Mr. Hartland ought to have produced a fair number of facts proving that the members of the same clan really are believed to be connected with each other in such a manner, that whatever affects one of them at the same time in a mysterious way affects the rest. But we look in vain for a single well-established instance of such a belief.

[Footnote 65: Ibid. ii. 437 sq.]

[Footnote 66: Ibid. ii. 432 sqq.]

[Footnote 67: Hartland, Legend of Perseus, ii. 406.]

[Footnote 68: Frazer, Golden Bough, i. 27 sqq. See also Haddon, Magic and Fetishism, p. 11 sq.]

It seems that the importance which savages attach to a common blood has been much exaggerated. Clanship is based on a method of counting descent by means of names, either through the father or through the mother, but not through both at once. This, however, by no means implies that the other line is not recognised as a line of blood-relationship. The paternal system of descent is not necessarily associated with the idea that the mother has no share in parentage, nor is the maternal system neces-

sarily associated with unconsciousness of the child's relation to its father;[69] even the Couvade, which assumes the recognition of a most intimate relationship between the child and its father, has been found to prevail among some peoples who regard the child as a member of the mother's clan.[70] Nay, there are instances in which the clan-bond is obviously {206} not regarded as a blood-bond at all, in the strict sense of the word. Of some tribes in New South Wales Mr. Cameron tells us that, although a daughter belongs not to her father's clan but to that of her mother's brother, they believe that she emanates from her father solely, being only nurtured by her mother;[71] and the Arunta of Central Australia, who have the paternal system of descent, maintain that a child really descends neither from its father nor from its mother, but is the reincarnation of a mythical totem-ancestor.[72] Their theory is "that the child is not the direct result of intercourse, that it may come without this, which merely, as it were, prepares the mother for the reception and birth also of an already-formed spirit child who inhabits one of the local totem centres";[73] and its totem-name, which is derived from the spot where it is supposed to have been conceived,[74] is different from its clan-name. It is useful to scrutinise Mr. Hartland's theory in the light of this class of facts. They evidently prove that clanship and what we are used to call the system of counting "descent," is not necessarily based on the notion of actual blood-relationship, but on kinship as a fact combined with a name; whereas Mr. Hartland's hypothesis presupposes, not that the members of a clan really are, but that they consider themselves to be all of one blood.

[Footnote 69: Mr. Swan informs me that the Waguha of West Tanganyika, among whom children are generally named after their father, recognise the part taken by both parents in generation; and Archdeacon Hodgson writes the same concerning certain other tribes of Eastern Central Africa, who trace descent through the mother.]

[Footnote 70: Ling Roth, 'Signification of Couvade,' in Jour. Anthr. Inst. xxii. 227, 238.]

[Footnote 71: Cameron, 'Notes on some Tribes of New South Wales,' in Jour. Anthr. Inst. xiv. 352.]

[Footnote 72: Spencer and Gillen, Native Tribes of Central Australia, ch. iv. especially pp. 121, 124.]

[Footnote 73: Ibid. p. 265.]

[Footnote 74: Ibid. p. 124 sqq.]

Yet another practice has been adduced as evidence of the supreme importance which the primitive clan is supposed to attach to unity in blood--the so-called blood-covenant. The members of a clan, Mr. Hartland observes, may not be all descended from a common ancestry. Though descent is the normal, the typical cause of kinship and a common blood, kinship may also be acquired. "To acquire kinship, the blood of the candidate for admission into the kin must be mingled with that of the kin. In this way he enters into the brotherhood, is reckoned as of the same stock, obtains the full privileges of a kinsman."[75] As Professor Robertson Smith puts it, "he who has drunk a clansman's blood is no longer a stranger but a brother, and included in the mystic circle of those who have a share in the life-blood that is common to all the clan."[76] Mr. Hartland gives us a short account of the rite:--"It is sufficient that an incision be made in the neophyte's arm and the flowing blood sucked from it by one of the clansmen, upon whom the {207} operation is repeated in turn by the neophyte. Originally, perhaps, the clansmen all assembled and partook of the rite; but if so, the necessity has ceased to be recognised almost everywhere. The form, indeed, has undergone numberless variations. . . . But, whatever may be the exact form adopted, the essence of the rite is the same, and its

range is world-wide." Then there follows a list of peoples from various quarters of the world among whom it is said to prevail.[77]

[Footnote 75: Hartland, op. cit. ii. 237.]

[Footnote 76: Robertson Smith, Religion of the Semites, p. 315.]

[Footnote 77: Hartland, op. cit. 237 sqq.]

From this the reader undoubtedly gets the impression that the mingling of blood is a frequently practised ceremony of adoption, by which a person is admitted into a strange clan. But the facts stated by the chief authorities on the subject, to whom Mr. Hartland refers, prove nothing of the kind. In most cases with which we are acquainted the mingling of blood is a form of covenant between individuals, although an engagement with a chief or king naturally embraces his subjects also; and sometimes the covenanters are tribes or kingdoms. But of the "world-wide" adoption rite there is hardly a single instance which corresponds to Mr. Hartland's description. He admits himself that "in the same measure as the clan relaxed its hold upon the individual members, blood-brotherhood assumed a personal aspect, until, having no longer any social force, it came to be regarded as merely the most solemn and binding form of covenant between man and man."[78] His account of the blood-covenant is, in fact, only an inference based on the assumption that the existing rite is a survival from times when the clan was literally one body and the individual nothing but an amputated limb. But to regard the present blood-covenant as a survival of a previous rite of adoption into the clan is not justified by facts. So far as I know, there is no record of a blood-covenant among savages of the lowest type, unless the aborigines of Australia be included among them; and in Australia it is certainly not a ceremony of adoption. Among the Arunta it is intended to prevent treachery: "if, for example, an Alice Springs party wanted to go on an avenging expedition to the Burt country, and they had with them in camp a man of that locality, he would be forced to drink blood with them, and, having partaken of it, would be bound not to aid his friends by giving them warning of their danger."[79] This instance is instructive. The Australian native is obliged to help those with whom he has drunk blood against his own relatives, nay, against members of his own totem group. So also "the tie {208} of blood-covenanting is reckoned in the East even a closer tie than that of natural descent,"[80] and the same was the case among the ancient Scandinavians.[81] I do not see how Mr. Hartland's theory can account for this.

[Footnote 78: Ibid. ii. 240.]

[Footnote 79: Spencer and Gillen, Native Tribes of Central Australia, p. 461.]

[Footnote 80: Trumbull, Blood Covenant, p. 10.]

[Footnote 81: Maurer, Bekehrung des Norwegischen Stammes, ii. 171.]

Mingling of blood is sometimes supposed to be a direct cause of mutual sympathy and agreement, in accordance with the principle of transmission of properties by contact;[82] even in Europe there are traces of the belief that a few drops of blood transferred from one person to another inspire the recipient with friendly feelings towards him with whose blood he is inoculated.[83] But the genuine blood-covenant imposes duties on both parties, and also contains the potential punishment for their transgression. It involves a promise, and the transference of blood is vaguely or distinctly supposed to convey to the person who drinks it, or who is inoculated with it, a conditional curse which will injure or destroy him should he break his promise. That this is the main idea underlying the blood-covenant appears from the fact that it is regularly accompanied by curses or self-imprecations.[84] In Madagascar, for instance, when two or more persons have agreed on forming the bond of fraternity, a fowl is procured, its head is nearly cut off, and it is left in this state to continue bleeding during

the ceremony. The parties then pronounce a long imprecation and mutual vow over the blood, saying, inter alia "O this miserable fowl weltering in its blood! thy liver do we eat, thy liver do we eat; and should either of us retract from the terms of this oath, let him instantly become a fool, let him instantly become blind, let this covenant prove a curse to him." A small portion of blood is then drawn from each individual and drunk by the covenanting parties with execrations of vengeance on each other in case of either violating the sacred oath.[85] According to another description the parties, after they have drunk each other's blood, drink a mixture from the same bowl, praying that it may turn into {209} poison for him who fails to keep the oath.[86] As we have seen before, blood is commonly regarded as a particularly efficient conductor of curses, and what could in this respect be more excellent than the blood of the very person who utters the curse? But the blood of a victim sacrificed on the occasion may serve the same purpose, or some other suitable vehicle may be chosen to transfer the imprecation. The Masai in the old days "spat at a man with whom they swore eternal friendship";[87] and the meaning of this seems clear when we hear that they spit copiously when cursing, and that "if a man while cursing spits in his enemy's eyes, blindness is supposed to follow."[88] The ancient Arabs, besides swearing alliance and protection by dipping their hands in a pan of blood and tasting the contents, had a covenant known as the [h.]ilf al-fo[d.]ûl, which was made by taking Zemzem water and washing the corners of the Ka[(]ba with it, whereafter it was drunk by the parties concerned.[89] The blood-covenant is essentially based on the same idea as underlies the Moorish custom of sealing a compact of friendship by a common meal at the tomb of some saint, the meaning of which is obvious from the phrase that "the food will repay" him who breaks the compact.[90]

[Footnote 82: Cf. Crawley, Mystic Rose, p. 236 sq.]

[Footnote 83: von Wlislocki, 'Menschenblut im Glauben der Zigeuner,' in Am Ur-Quell, iii. 64. Dörfler, 'Das Blut im magyarischen Volkglauben,' ibid. iii. 269 sq.]

[Footnote 84: Forbes, A Naturalist's Wanderings in the Eastern Archipelago, p. 452 (natives of Timor). Burns, 'Kayans of the North-West of Borneo,' in Jour. of the Indian Archipelago, iii. 146 sq. New, Life, Wanderings, and Labours in Eastern Africa, p. 364 (Taveta). Decle, Three Years in Savage Africa, p. 494 (Wakamba). Trumbull, op. cit. pp. 9, 20, 31, 42, 45-47, 53, 61 sq. For the practice of sealing an agreement by transference of blood accompanied by an oath, see also Partridge, Cross River Natives, p. 191 (pagans of Obubura Hill district in Southern Nigeria).]

[Footnote 85: Ellis, History of Madagascar, 187 sqq.]

[Footnote 86: Dumont d'Urville, Voyage pittoresque autour du monde, i. 81.]

[Footnote 87: Hinde, Last of the Masai, p. 47. See also Johnston, Uganda, ii. 833.]

[Footnote 88: Hinde, op. cit. p. 48.]

[Footnote 89: Robertson Smith, Marriage and Kinship in Early Arabia, p. 56 sqq. Cf. Herodotus, iii. 8.]

[Footnote 90: See supra, i. 587. According to another theory the inoculated blood is regarded as a pledge or deposit, which compels the person from whom it was drawn to be faithful to the person to whom it was transferred. Suppose that two individuals, A and B, become "blood-brothers" by mutual inoculation. Each, then, Mr. Crawley argues (Mystic Rose, p. 236 sq.), has a part of the other in his keeping, each has "given himself away" to the other in a very real sense; and the possibility of mutual treachery or wrong is prevented both by the fact that injury done to B by A is considered equivalent to injury done by A to himself, and also by the belief that if B is wronged he may work vengeance by injuring the part of A which he possesses. To this explanation, however,

serious objections may be raised. The belief in sympathetic magic does not imply that injury done to B by A is eo ipso supposed to affect A himself through that part of him which has been deposited in B; it does not imply that two things which have once been conjoined remain, when quite dissevered from each other, in such a relation that "whatever is done to the one must similarly affect the other" (Frazer, Golden Bough, i. 49), unless there is an intention to this effect in the agent. The severed part then serves as a medium by which magic influence is transferred to the whole. Again, it is difficult to see how B could injure A through the part of him which he possesses when that part has been absorbed into his own system, as must be the case with those few drops of A's blood with which he was inoculated.]

Besides marriage, local proximity, and a common descent, a common worship may tie people together into {210} social union. But among savages a religious community generally coincides with a community of some other kind. There are tutelary gods of families, clans, and tribes;[91] and a purely local group may also form a religious community by itself. Major Ellis observes that with some two or three exceptions all the gods worshipped by the Tshi-speaking tribes on the Gold Coast are exclusively local and have a limited area of worship. If they are nature-gods they are bound up with the natural objects they animate, if they are ghost-gods they are localised by the place of sepulture, and if they are tutelary deities whose origin has been forgotten their position is necessarily fixed by that of the town, village, or family they protect; in any case they are worshipped only by those who live in the neighbourhood, the only exceptions being the sky-god, the earthquake-god, and the goddess of the silkcotton trees, who are worshipped everywhere.[92]

[Footnote 91: See infra, ch. l.]

[Footnote 92: Ellis, Yoruba-speaking Peoples of the Slave Coast, p. 284 sq. For various instances of village gods see Turner, Samoa, p. 18; Crozet, Voyage to Tasmania, &c. p. 45 (Maoris); Christian, Caroline Islands, p. 75 (natives of Ponape); Grierson, Bih[=a]r Peasant Life, p. 403 sqq.]

When the religious community is thus at the same time a family, clan, village, or tribe, it is of course impossible exactly to distinguish the social influence of the common religion from that exercised by marriage, local proximity, or a common descent. It seems, however, that the importance of the religious bond, or at least of the totem bond, has been somewhat exaggerated by a certain school of anthropologists. We are told that in early society "each member of the kin testifies and renews his union with the rest" by taking part in a sacrificial meal in which the totem god is eaten by his worshippers.[93] But no satisfactory evidence has ever been given in support of this theory. Sir J. G. Frazer knows only one certain case of a totem sacrament, namely, that prevalent among the Arunta and some other tribes in Central Australia,[94] who at the time of Intichiuma are in the habit of killing and eating totem animals; and this practice has nothing whatever {211} to do with the mutual relations between kindred. Its object is only to multiply in a magic manner the animals of certain species for the purpose of increasing the food-supply for other totemic groups.[95] In his book on Totemism Frazer writes:--"The totem bond is stronger than the bond of blood or family in the modern sense. This is expressly stated of the clans of western Australia and of north-western America, and is probably true of all societies where totemism exists in full force. Hence in totem tribes every local group, being necessarily composed (owing to exogamy) of members of at least two totem clans, is liable to be dissolved at any moment into its totem elements by the outbreak of a blood feud, in which husband and wife must always (if the feud is between their clans) be arrayed on opposite sides,

and in which the children will be arrayed against either their father or their mother, according as descent is traced through the mother, or through the father."[96] In the two or three cases which Frazer quotes in support of his statement[97] the totemic group is identical with the clan; hence it is impossible to decide whether the strength of the tie which unites its members is due to the totem relationship or to the common descent. But even the combined clan and totem systems seem at most only in exceptional cases to lead to such consequences as are indicated by Frazer's authorities. With reference to the Australian aborigines Mr. Curr observes:--"Of the children of one father being at war with him, or with each other, on the ground of maternal relationship, or any other ground, my inquiries and experience supply no instances. To Captain Grey's statements, indeed, there are several objections."[98]

[Footnote 93: Hartland, op. cit. ii. 236.]

[Footnote 94: Frazer, Golden Bough, i. p. xix. Cf. Idem, Totemism and Exogamy, iv. 230 sqq.]

[Footnote 95: Spencer and Gillen, Native Tribes of Central Australia, ch. vi. Iidem, Northern Tribes of Central Australia, ch. ix. sq.]

[Footnote 96: Frazer, Totemism, p. 57.]

[Footnote 97: Grey, Journals of Expeditions in North-West and Western Australia, ii. 230. Petroff, Report on Alaska, p. 165. Hardisty, 'Loucheux Indians,' in Smithsonian Report, 1866, p. 315.]

[Footnote 98: Curr, The Australian Race, i. 67. In Hardisty's statement, referring to the Loucheux Indians, there is a conspicuous lack of definiteness. He says:--"In war it was not tribe against tribe, but division against division, and as the children were never of the same caste (clan) as the father, the children would, of course, be against the father and the father against the children. . . . This, however, was not likely to occur very often, as the worst of parents would have naturally preferred peace to war with his own children." Petroff's passage concerning the Thlinkets, referred to by Sir J. G. Frazer, simply runs:--"The ties of the totem or clanship are considered far stronger than those of blood relationship."]

{212} Among the Arunta and some other Central Australian tribes we have fortunately an opportunity of studying the social influence of totemism apart from that of clanship, the division into totems being quite independent of the clan system. The whole district of a tribe may be mapped out into a large number of areas of various sizes, each of which centres in one or more spots where, in the dim past, certain mythical ancestors are said to have originated or camped during their wanderings, and where their spirits are still supposed to remain, associated with sacred stones, which the ancestors used to carry about with them. From these spirits have sprung, and still continue to spring, actual men and women, the members of the various totems being their reincarnations. At the spots where they remained, the ancestral spirits enter the bodies of women, and in consequence a child must belong to the totem of the spot at which the mother believes that it was conceived. A result of this is that no one totem is confined to the members of a particular clan or sub-clan,[99] and that though most members of a given horde or local group belong to the same totemic group, there is no absolute coincidence between these two kinds of organisation.[100] How, then, does the fact that two persons belong to the same totem influence their social relationships? "In these tribes," say Messrs. Spencer and Gillen, "there is no such thing as the members of one totem being bound together in such a way that they must combine to fight on behalf of a member of the totem to which they belong. . . . The men to assist a particular man in a quarrel are those of his locality, and not of necessity those of the same totem as himself, indeed the latter

consideration does not enter into account and in this as in other matters we see the strong {213} development of what we have called the 'local influence.' . . . The men who assist him are his brothers, blood and tribal, the sons of his mother's brothers, blood and tribal. That is, if he be a Panunga man he will have the assistance of the Panunga and Ungalla men of his locality, while if it comes to a general fight he will have the help of the whole of his local group. . . . It is only indeed during the performance of certain ceremonies that the existence of a mutual relationship, consequent upon the possession of a common totemic name, stands out at all prominently. In fact, it is perfectly easy to spend a considerable time amongst the Arunta tribe without even being aware that each individual has a totemic name."[101]

[Footnote 99: Spencer and Gillen, Native Tribes of Central Australia, ch. iv.]

[Footnote 100: Ibid. pp. 9, 32, 34.]

[Footnote 101: Spencer and Gillen, Native Tribes of Central Australia, pp. 34, 544.]

When from the savage and barbarous races of men we pass to peoples of a higher culture, as they first appear to us in the light of history, we meet among them social units similar in kind to those prevalent at lower stages of civilisation: the family, clan, village, tribe. We also find among them, side by side with the family consisting of parents and children, a larger family organisation, which, though not unknown among the lower races, assumes particular prominence in the archaic State.

In China the family generally remains undivided till the children of the younger sons are beginning to grow up. Then the younger branches of the family separate, and form their own households. But the new householders continue to take part in the ancestral worship of the old home; and mourning is worn in theory for four generations of ascendants and descendants in the direct line, and for contemporaries descended in the same fifth generation from the "honoured head" of the family.[102] At the same time we find in China at least traces of a clan organisation. Large bodies of persons bear the same surname, and a penalty is inflicted on anyone who marries a person with the same surname as his own, whilst a man is strictly forbidden to nominate as his heir {214} an individual of a different surname.[103] Moreover, there are whole villages composed of relatives all bearing the same ancestral name. "In many cases," says Mr. Doolittle, "for a long period of time no division of inherited property is made in rural districts, the descendants of a common ancestor living or working together, enjoying and sharing the profits of their labours under the general direction and supervision of the head of the clan and the heads of the family branches. . . . There may be only one head of the clan. Under him there are several heads of families."[104]

[Footnote 102: Simcox, Primitive Civilizations, ii. 303, 493, 69.]

[Footnote 103: Medhurst, 'Marriage, Affinity, and Inheritance in China,' in Trans. Roy. Asiatic Soc. China Branch, iv. 21, 22, 29.]

[Footnote 104: Doolittle, Social Life of the Chinese, ii. 225 sqq.]

The "four generations" of the Chinese, comprising those who are regarded as near relatives, have their counterpart in the family organisation of most so-called Aryan peoples. The Roman Propinqui--that is, parents and children, brothers and sisters, uncles and aunts, nephews and nieces, first cousins (consobrini) and second cousins (sobrini)--exactly corresponded to the Anchisteis of the Greeks, the Sapindas of the Hindus,[105] and the "Syngeneis" of the Persians.[106] The persons belonging to these four generations stood in a particularly close relationship to each other. They had mutual rights and duties of various kinds. In early times, if one of them was killed, the survivors had to avenge his death. They were expected to assist each other whenever it was needed, especially before the court. They celebrated in common feasts of rejoicing

and feasts for the dead. They had a common cult and common mourning. In short, they formed an enlarged family unit of which the individual families were merely sub-branches, even though {215} they did not necessarily live in the same house.[107] In India we still meet with a perishable survival of this organisation. "In the Joint Family of the Hindus," says Sir Henry Maine, ". . . . the agnatic group of the Romans absolutely survives--or rather, but for the English law and English courts, it would survive. Here there is a real, thoroughly ascertained common ancestor, a genuine consanguinity, a common fund of property, a common dwelling."[108] The Gwentian, Dimetian, and Venedotian codes likewise represent the homestead and land of the free Welshman as a family holding. "So long as the head of the family lived," says Mr. Seebohm, "all his descendants lived with him, apparently in the same homestead, unless new ones had already been built for them on the family land. In any case, they still formed part of the joint household of which he was the head. When a free tribesman, the head of a household, died, his holding was not broken up. It was held by his heirs for three generations as one joint holding."[109] So also among the subdivisions of ancient Irish society there was one which comprised the "near relatives," the Propinqui of the Romans.[110] Many of the South Slavonians to this day live in house communities each consisting of a body of from ten to sixty members or even more, who are blood-relations to the second or third degree on the male side, and who associate in a common dwelling or group of dwellings, having their land in common, following a common occupation, and being governed by a common chief.[111] Among the Russians, {216} too, there are households of this kind, containing the representatives of three generations; and previous to the emancipation of the serfs in 1861 such households were much more common than they are now.[112] The ancient Teutons are the only "Aryan" race among whom the joint family organisation cannot be proved to have prevailed.[113]

[Footnote 105: Baudhâyana, i. 5. 11. 9:--"The great-grandfather, the grandfather, the father, oneself, the uterine brothers, the son by a wife of equal caste, the grandson, and the great-grandson--these they call Sapindas, but not the great-grandson's son." Laws of Manu, ix. 186:--"To three ancestors water must be offered, to three the funeral cake is given, the fourth descendant is the giver of these oblations, the fifth has no connection with them." Cf. Jolly, 'Recht und Sitte,' in Bühler, Grundriss der indo-arischen Philologie, ii. 85.]

[Footnote 106: Brissonius, De regio Persarum principatu, i. 207, p. 279. Leist, Alt-arisches Jus Civile, i. 47 sqq.]

[Footnote 107: Klenze, 'Die Cognaten und Affinen nach Römischem Rechte in Vergleichung mit andern verwandten Rechten,' in Zeitschr. f. geschichtliche Rechtswiss. vi. 5 sqq. Leist, Alt-arisches Jus Civile, i. 231 sqq. Rivier, Précis du droit de famille romain, p. 34 sqq.]

[Footnote 108: Maine, Dissertations on Early Law and Custom, p. 240.]

[Footnote 109: Seebohm, English Village Community, p. 193. Idem, Tribal System in Wales, p. 89 sqq.]

[Footnote 110: Maine, Early History of Institutions, p. 90 sq. Leist, Alt-arisches Jus Civile, i. Anhang i.]

[Footnote 111: Krauss, Sitte und Brauch der Südslaven, pp. 75, 79 sqq. Maine, Dissertations on Early Law and Custom, p. 241 sqq. Utie[vs]enovi['c], Die Hauskommunionen der Südslaven, p. 20 sqq. Miler, 'Die Hauskommunion der Südslaven,' in Jahrbuch d. internat. Vereinigung f. vergl. Rechtswiss. iii. 199 sqq.]

[Footnote 112: Mackenzie Wallace, Russia, i. 134. von Hellwald, Die menschliche Familie, p. 506 sq. Kovalewsky, Modern Customs and Ancient Laws of Russia, p. 53 sq.]

[Footnote 113: See Leist, Alt-arisches Jus Civile, i. Anhang i.]

Among all these peoples a number of kindred families or joint families were united into a larger social group forming a village community or a cluster of households. The Vedic people called such a body of kindred janman[=a] or simply gr[=a]ma, which means "village";[114] and the same organisation still survives in India, though in a modified form. The type of Indian village communities which has been described by Sir Henry Maine is at once an assemblage of co-proprietors and an organised patriarchal society, providing for the management of the common fund and generally also for internal government, police, the administration of justice, and the apportionment of taxes and public duties. Unlike the joint family, the related families of the village community no longer hold their land as an indistinguishable common fund: they have portioned it out, at most they redistribute it periodically, and are thus on the high road to modern landed proprietorship. And whilst the joint family is a narrow circle of persons actually related to each other, the village community has very generally been adulterated by the admission of strangers, especially purchasers of shares, who have from time to time been engrafted on the original stock of blood-relatives. Yet in all such cases there is the assumption of an original common parentage; hence the Hindu village community of the type indicated, whenever it is not actually an association of kinsmen, is always a body of co-proprietors formed on the model of such an association.[115]

[Footnote 114: Zimmer, Altindisches Leben, p. 159 sq.]

[Footnote 115: Maine, Ancient Law, p. 260 sqq. Idem, Dissertations on Early Law and Custom, p. 240. Elphinstone, History of India, p. 68 sqq. Mr. Baden-Powell (Indian Village Community, p. 3 sqq.) has shown that Sir Henry Maine's general description of Indian village communities holds true only of a certain class of villages in India.]

{217} Corresponding to the Vedic gr[=a]ma there were the Iranian viç, the Greek genos, and the Roman gens; and as among the Vedic people several gr[=a]mas formed a viç and several viçs a jana,[116] so the Iranian viç, the Greek genos, and the Roman gens were, respectively, subdivisions of a zantu, phratria, and curia; and these again were subdivisions of a still more comprehensive unit, a daqyu, phyle, and tribus.[117] The Roman territory was in earliest times divided into a number of clan-districts, each inhabited by a particular gens, which was thus a group associated at once by locality and by a common descent. Whilst each household had its own portion of land, the clan-household or village had a clan-land belonging to it, and this clan-land was managed up to a comparatively late period after the analogy of household-land, that is, on the system of joint-possession, each clan tilling its own land and thereafter distributing the produce among the several households belonging to it. Even the traditions of Roman law furnish the information that wealth consisted at first in cattle and the usufruct of the soil, and that it was not till later that land came to be distributed among the burgesses as their own special property.[118] Still in historical times, if a person left no sons or agnates living at his death, the inheritance escheated to the gentiles, or entire body of Roman citizens bearing the same name with the deceased, whereas no part of it was given to any relative united, however closely, with the dead man through female descent.[119] But as the Hindu village community, so also the Roman gens, though originally a group of blood-relatives inhabiting a common district, was already in early times recruited from men of alien extraction who were assumed to be descended from a common ancestor. And it is difficult to believe {218} that either in Rome or Greece even the fiction of a common origin could be preserved for long when the organisation of the people into gentes, phratries, and tribes was adopted by the State as a system of political division and their numbers were fixed.[120] When the genos and gens first

appear to us in history they were mere dwindling survivals, except in one respect: they remained, as they had been from the outset,[121] religious communities long after they had lost all other practical importance. This was especially the case at Athens, where certain reputed gentes for centuries continued to play a prominent part in the religious cult;[122] and the Romans seem to have preserved their gentilicia sacra still in Cicero's time.[123]

[Footnote 116: Zimmer, op. cit. p. 159 sq.]

[Footnote 117: Leist, Græco-italische Rechtsgeschichte, p. 104 sq.]

[Footnote 118: Mommsen, History of Rome, i. 45, 46, 238.]

[Footnote 119: Maine, Ancient Law, p. 220 sq. Fustel de Coulanges, La Cité antique, p. 126.]

[Footnote 120: Leist, Græco-italische Rechtsgeschichte, p. 150 sqq. It is expressly said that at Athens the members of the same [Greek: ge/nos] were not necessarily regarded as blood-relations (see Bunsen, De jure hereditario Atheniensium, p. 104, n. 28).]

[Footnote 121: Schoemann, Griechische Alterthümer, ii. 548 sqq. Marquardt, Römische Staatsverwaltung, iii. 126, 130. Fustel de Coulanges, op. cit. p. 124 sqq.]

[Footnote 122: Leist, Græco-italische Rechtsgeschichte, p. 159 sq.]

[Footnote 123: Cicero, Pro domo, 13 (34).]

In ancient Wales districts were occupied by tribes under their petty kings or chiefs, and the tribe (cenedl) was a bundle of kindreds "bound together and interlocked by common interests and frequent intermarriages, as well as by the necessity of mutual protection against foreign foes."[124] A group of households, again, corresponding to the Roman gens formed a trev, which was a cluster of scattered households, "not necessarily a village in the modern sense."[125] The same seems to have been the case with the Teutonic vici, spoken of by Tacitus;[126] but that among the Teutons, also, the people of the same neighbourhood were blood-relatives may be directly inferred from a statement made by Cæsar.[127] They were not much addicted to agriculture,[128] and "the dreary world" they inhabited, with its desert aspect, its harsh climate, its lack of cultivation, was not {219} favourable to the formation of permanent large social bodies of great cohesiveness. However, we meet among them social units which Cæsar calls regiones or pagi[129] of which the vici may be assumed to have been subdivisions. Among the highly agricultural Slavonians, on the other hand, we find even in the present time a social organisation very similar to that of the Hindus. The South Slavonians, as we have seen, live in house communities corresponding to the joint families in India. Now, when the members of a house community, or zadruga--as it is often called--become too numerous, a separation takes place, and the emigrants form new households by themselves. A zadruga is thus gradually expanded into a bratstvo, or brotherhood--a group of related house communities which not only feel themselves as branches of the same stock, but still have certain practical interests in common and a common chief. Several bratstva, finally, form a pleme, or tribe.[130] Among the Russians, again, the family, or joint family, has developed into a mir, or village community, composed of an assemblage of separate houses each ruled by its own head, but with a common village chief elected by the heads of the various households. The Russian mir is an institution very similar to the Hindu village community described above. The land belongs to the community, and in earlier days it was probably cultivated in common. At present it is divided between the component families, the lots shifting among them periodically, or perhaps vesting in them as their property, but always subject to a power in the collective body of villagers to veto its sale. Originally the mir was also a group of kindred; but, as in the Hindu village community, the tie of blood has been greatly

weakened by all sorts of fictions and the admission of so many strangers that the tradition of a common origin is dim or lost.[131]

[Footnote 124: Seebohm, English Village Community, p. 190. Idem, Tribal System in Wales, p. 61.]

[Footnote 125: Idem, English Village Community, p. 343.]

[Footnote 126: Tacitus, Germania, 16. Cf. Hildebrand, op. cit. p. 105 sqq.]

[Footnote 127: Cæsar, De bello Gallico, vi. 22:--"Magistratus ac princeps in annos singulos gentibus cognationibusque hominum, qui una coierint, quantum, et quo loco visum est, agri attribuunt."]

[Footnote 128: Ibid. vi. 22.]

[Footnote 129: Cæsar, De bello Gallico, vi. 23.]

[Footnote 130: Krauss, op. cit. pp. 2, 32 sqq. von Hellwald, op. cit. p. 502 sq. Grosse, op. cit. p. 204 sq.]

[Footnote 131: de Laveleye, De la propriété, p. 12 sqq. Maine, Dissertations on Early Law and Custom, p. 261 sq.]

In the social organisation of all these peoples there is {220} thus originally a general congruity between the principle of local proximity and the principle of descent. On the one hand, all freemen, all true members of the society, who belong to the same local group, are at the same time kinsmen; on the other hand, all persons who are united by the tie of a common descent belong to the same or neighbouring local groups. The cause of this congruity is the universal prevalence of the paternal system of descent. Whether the case was different in prehistoric times is an open question. That the ancient Chinese reckoned kinship through the mother, not through the father, has been conjectured on philological grounds,[132] as to the plausibility of which I can express no opinion. Several writers have also endeavoured to prove that the uterine line of descent prevailed among the primitive Aryans, but the evidence is far from being conclusive. I agree with Professor Leist that all so-called survivals of a system of maternal descent in the prehistoric antiquity of the "Aryan" races are doubtful, if not false.[133] As regards the Teutons, much importance has been attributed to the specially close connection which, according to Tacitus, existed between a sister's children and their mother's brothers;[134] but, as Professor Schrader remarks, in spite of the prominent position of the maternal uncle among Teutonic peoples, the patruus distinctly came before the avunculus, the agnates before the cognates, in testamentary succession.[135] The existence of a custom which in some respect recognises uterine relationship does not prove the earlier prevalence of the full maternal system of descent, to the exclusion of the paternal.

[Footnote 132: Puini, quoted by Grosse, op. cit. p. 193.]

[Footnote 133: Leist, Alt-arisches Jus Gentium, p. 58. Idem, Alt-arisches Jus Civile, i. 490.]

[Footnote 134: Tacitus, Germania, 20.]

[Footnote 135: Schrader, Prehistoric Antiquities of the Aryan Peoples, p. 395.]

Progress in civilisation is up to a certain point connected with social expansion. Among savages the largest permanent social unit is generally the tribe, and even the tribal bond is often very loose, if not entirely wanting. It is true that associations of tribes occur even among so {221} low a race as the Australian aborigines, but unaccompanied by any kind of political organisation.[136] At a somewhat higher stage we meet with the famous league of the Iroquois--a federation on republican principles of five distinct tribes, which could point to three centuries of uninterrupted domestic unity and peace[137]--and the kingdoms of various African potentates. Civilisation only

thrives in states. From small beginnings round the lake of Mexico the Aztecs gradually succeeded, through conquest, in forming an empire which covered probably almost sixteen thousand square leagues. However, between the various tribes lay broad belts of uninhabited territory, which enabled them to keep up a shy and exclusive attitude towards each other; and at the time of the Spanish conquest the empire of Mexico was, in fact, little more than "a chain of intimidated Indian tribes, who, kept apart from each other under the influence of mutual timidity, were held down by dread of attacks from an unassailable robber-stronghold in their midst."[138] In South America, in a long course of ages, six nations inhabited the region which extends from the water-parting between the basins of the Huallaga and Ucayali to that between the basins of the Ucayali and Lake Titicaca. When increasing population brought them in contact with each other, a struggle for supremacy ended in the mastery of the fittest--the Incas; and the empire of the latter was subsequently extended by the subjugation of a variety of other nations or tribes.[139] The extent of territory claimed for ancient China by the earliest records is more than double the size of modern France, and, though it was often divided into different states, the great dynasties ruled over the whole of it.[140] The two crowns of Upper and Lower Egypt were united at a {222} very early date; and no less imposing was the great kingdom of Babylon and Assur. We may assume that all these empires were formed by an association, either voluntary or forcible, of different tribes, as was the case with those states with whose origin and early growth we are somewhat better acquainted. As late as the time of the Judges the tribes of Israel either stood each entirely alone or formed smaller groups, and there was no such thing as an Israelitish nation in a political sense until the unity of the people came into being under Samuel and the first kings.[141] The Vedic people consisted of a great number of independent tribes, between which only temporary alliances were made for the sake of defence or attack. But gradually the alliances grew more permanent; war-kings united several tribes, surrounded themselves with a military nobility, and founded great kingdoms. [142] In Greece and Italy the states grew out of forts which had been built on elevated places to serve as common strongholds or places of refuge in case of war. Several tribes united so as to be better able to resist dangerous enemies, and one of the fortified towns in time gained supremacy over all others in the neighbourhood, as Athens did in Attica and Alba Longa in Latium. Similar districts, ruled by a town, were called poleis or civitates.[143] In historical times attempts were made to carry this process further by joining several of the small states under the rule of one. In this Sparta and Athens failed, whereas the efforts of Rome met with unequalled success.

[Footnote 136: Curr, The Australian Race, i. 62 sq.]

[Footnote 137: Morgan, League of the Iroquois, p. 141.]

[Footnote 138: Scheppig, 'Ancient Mexicans,' &c. p. 6, in Spencer's Descriptive Sociology. Prescott, History of the Conquest of Mexico, p. 4. Ratzel, History of Mankind, ii. 199, 202.]

[Footnote 139: Markham, 'Geographical Positions of the Tribes which formed the Empire of the Yncas,' in Jour. Roy. Geo. Soc. xli. 287 sqq.]

[Footnote 140: Simcox, op. cit. ii. 10, 13.]

[Footnote 141: Kuenen, Religion of Israel, i. 133.]

[Footnote 142: Zimmer, Altindisches Leben, pp. 158, 192 sq.]

[Footnote 143: Leist, Græco-italische Rechtsgeschichte, p. 109 sqq.]

The development of the State tended to weaken or destroy the smaller units of which it was composed. The central power, hostile to separatism, naturally endeavoured to appropriate the authority invested in the latter, and in a well-governed state these on

their part had little reason to resist. The main object of the clan, phratry, and tribe was to protect their respective members; hence they became superfluous in the presence of a powerful national {223} government which unselfishly and impartially looked after the interests of its various subjects. Adam Smith contrasts the strong clan-feeling which still in the eighteenth century prevailed among the Scotch Highlanders with the little regard felt for remote relatives by the English, and observes that in countries where the authority of the law is not sufficiently strong to give security to every member of the State the different branches of the same family choose to live in the neighbourhood of one another, their association being frequently necessary for their common defence; whereas in a country like England, where the authority of the law was well established, "the descendants of the same family, having no such motive for keeping together, naturally separate and disperse, as interest or inclination may direct."[144] It seems also probable that the persistency of the village community or the gentile system among the Hindus and Slavs has been largely due to the weakness of the State or to the badness of the government.

[Footnote 144: Smith, Theory of Moral Sentiments, p. 326 sq.]

As the larger units, so the family also was influenced by the rise of the State, but originally in quite the opposite direction. Whilst the former dwindled away, the family grew in importance. Nowhere do we find the family-tie stronger, nowhere does the father or eldest male ascendant possess greater power than in the archaic State. In a previous chapter I have already tried to explain this singular fact. I pointed out that in early society there seems to be a certain antagonism between the family and the clan, that the family was strengthened because the clan was weakened, that the father became a patriarch only as the inheritor of the authority which formerly belonged to the clan. But we have also noticed that at a higher stage the family again lost in importance.[145]

[Footnote 145: Supra, i. 627 sq.]

It seems that the tribes which united into one nation or state were normally, in the first instance, branches of the same stock, living in the same neighbourhood and speaking {224} the same language, though with dialectic differences. Like the smaller units, such a state was no doubt frequently adulterated by the amalgamation of aliens, but here again fictions were substituted for realities, and the foreign extraction was forgotten. The case was different, however, when the commonwealth was formed or aggrandised by the subjugation of a strange race. Instead of being adopted into the circle of the conquerors, the subdued people were treated as their inferiors in blood, civic rights were denied to them, and in many cases they were kept in servitude; thus even here the principle of a common origin as the base of citizenship was preserved, the conquerors being the only citizens in the full sense of the term. But however strong and durable similar barriers may be, they are not imperishable. The different races inhabiting the same country under the same government tend to draw nearer each other, the inferior race is incorporated with the nation, and local proximity instead of descent at last becomes the basis of community in political functions. This change, however, was neither so radical nor so startling as it has been represented to be;[146] fictions on a large scale still formed a bridge between ancient and modern ideas. Sir Henry Maine says that we cannot now hope to understand the good faith of the fiction by which in early times the incoming population were assumed to be descended from the same stock as the people on whom they were engrafted.[147] But is this good faith more astonishing than the readiness with which a common language, in spite of the most obvious facts to the contrary, is even now constantly taken as the sign of a common

origin? Though identity of language, even in the case of whole peoples, proves nothing more than contact or neighbourhood, a person's mother-tongue popularly decides his race, and language and nationality are regarded almost as synonymous. Genealogical fictions, then, are not merely a thing of the past, nor have they ceased to influence political ideas. The modern theory of {225} nationalism vindicates the right of the strongest nationality to absorb the other nationalities living within the same state by a method of compulsory engraftment, and this can be effected only by their accepting its language. But this theory is not so much concerned with language as such, as with language as an emblem of nationality. At the bottom of it is the narrow feeling of racial intolerance, quite ready however to be appeased by a fiction. The doctrine of nationalism is the spectre of the same political principle--the principle of a common descent, either real or fictitious--on which states were founded and governed when civilisation was in its cradle.

[Footnote 146: Maine, Ancient Law, p. 129.]

[Footnote 147: Ibid. p. 131.]

Like the smaller units, the archaic State was not only a political but at the same time a religious community. Over and above all separate cults there was one religion common to all its citizens. In ancient Mexico and Peru it was the religion of the dominant people, the worship of the god of war or of the sun; and the sovereigns themselves were regarded as incarnations or children of this god.[148] In other cases the state religion arose by a fusion of different cults. The gods of the communities which united into a state not only continued to receive the worship of their old believers, but were elevated to the rank of national deities, and formed together a heavenly commonwealth to which the earthly commonwealth jointly paid its homage. In this way, it seems, the Roman,[149] Egyptian,[150] Assyrian, and Babylonian[151] pantheons were recruited; whilst the Greeks went a step further and, already in prehistoric times, constructed a Pan-Hellenic Olympus.[152] Sometimes also, as Professor Robertson Smith points out, different gods were themselves fused into one, as when the mass of the Israelites in their local worship of Yahveh identified him with the Baalim of the Canaanite high places, and carried {226} over into his worship the ritual of the Canaanite shrines, not deeming that in so doing they were less truly Yahveh-worshippers than before.[153]

[Footnote 148: Ratzel, op. cit. ii. 199 sq. Markham, History of Peru, p. 23.]

[Footnote 149: Cf. von Jhering, Geist des römischen Rechts, i. 269.]

[Footnote 150: Wiedemann, Religion of the Ancient Egyptians, p. 148.]

[Footnote 151: Mürdter-Delitzsch, Geschichte Babyloniens und Assyriens, p. 24. Robertson Smith, Religion of the Semites, p. 39.]

[Footnote 152: Cf. Rohde, Psyche, p. 36.]

[Footnote 153: Robertson Smith, op. cit. p. 38.]

Nobody will deny that the common religion added strength to the State, but it seems that its national importance has often been overrated. On the one hand, the political fusion between different communities took place before the religious fusion and was obviously the cause of it; on the other hand, the mere tie of a common religion has never proved sufficient to bind together neighbouring tribes or peoples so as to form one nation. The Greek states had both the same religion and the same language, but nevertheless remained distinct states. Professor Seeley's assertion that "in the East to this day nationality and religion are almost convertible terms,"[154] is very far from the truth. Wallin, who had exceptional opportunities to study the feelings of different Muhammedan nationalities, observes that "every Oriental people has a certain national aversion to every other, and even the inhabitants of one province to those of another.

The Turk does not readily tolerate the Arab, nor the Persian, and these feel similarly towards the Turk; the Arab does not get on well with the Persian, nor the Persian with the Arab; the Syrian does not like the Egyptian, whom he calls inhuman, and the latter does not willingly associate with the Syrian, whom he calls simple-minded and stupid; and the son of the desert condemns both."[155] It sometimes seems as if the national spirit of a people rather influenced its religion than was influenced by it. Patriotism has even succeeded in nationalising the greatest enemy of nationalities, Christianity, and has well nigh revived the old notion of a national god, whose chief business is to look after his own people and, especially, to fight its battles.

[Footnote 154: Seeley, Natural Religion, p. 229.]

[Footnote 155: Wallin, Anteckningar från Orienten, iv. 181 sq.]

It is obvious that the various aspects of social development {227} which we have now considered have exercised much influence upon the altruistic sentiment. The combination of local proximity and political unity, the notion of a common descent, and the fellowship of a common religion, tend to engender friendly feelings between the members of each respective group. Hence, when the political unit grew larger, when the idea of kinship developed into that of racial affinity, and when the same religion became common to all the citizens of the State, or, as happened in several cases, extended beyond the limits of any particular country or nation, the altruistic sentiment underwent a corresponding expansion--unless, of course, it was checked by some rival influence. The increasing coherence of the political aggregate, again, added to the strength of this sentiment; and so did the antagonism towards foreign communities and the natural antipathy or hatred to their members. As people like that to which they are used or which is their own, they dislike that which is strange or unfamiliar. Among ourselves we notice this particularly in children[156] and uneducated persons, whose anger may be aroused by the sight of a black skin or an oriental dress or the sounds of a strange language. Antipathies of this kind have directly influenced the moral valuation of conduct towards foreigners; but at the same time they have also strengthened the feelings of mutual goodwill between tribesmen or compatriots. For likes and dislikes are increased by the contrast; to hate a thing makes us better love its opposite. So also the competition and enmity which prevail between different communities tend within each community to intensify its members' devotion to the common goal and their friendly feelings towards one another.

[Footnote 156: Compayré, op. cit. p. 100:--"Tout ce qui est inattendu, imprévu, est insupportable à l'enfant, et provoque soit la peur, soit plus tard la colère. J'ai vu un de mes fils, à quatre ans et demi, entrer dans de véritables rages, toutes les fois que je lui parlais dans le patois de mon pays."]

But the altruistic sentiment has not necessarily reference only to individuals belonging to the same social unit. {228} Gregarious animals may be kindly disposed to any member of their species which is not an object of their anger or their fear. Savages have shown themselves capable of tender feelings towards suffering and harmless strangers.[157] The sensibility of little children sometimes goes beyond the circle of the family; Madame Manacéine tells us of a girl two years old who, in the Zoological Gardens at St. Petersburg, began to cry bitterly when she saw an elephant walking over the keeper's body, although the other spectators were quietly watching the trick.[158] In mankind altruism has been narrowed by social isolation, by differences in race, language, habits, and customs, by enmity and suspicion. But increased intercourse has gradually led to conditions favourable to its expansion. As Buckle remarks, ignorance is the most powerful of all the causes of national hatred; "when you increase the contact,

you remove the ignorance, and thus you diminish the hatred."[159] People of different nationalities feel that in spite of all dissimilarities between them there is much that they have in common; and frequent intercourse makes the differences less marked, or obliterates many of them altogether. There can be no doubt that this process will go on in the future. And equally certain it is that similar causes will produce similar effects--that altruism will continue to expand, and that the notion of a human brotherhood will receive more support from the actual feelings of mankind than it does at present.

[Footnote 157: See supra, i. 570-572, 581.]

[Footnote 158: Manacéine, Le surmenage mental dans la civilisation moderne, p. 248. See also Compayré, op. cit. p. 323.]

[Footnote 159: Buckle, History of Civilization in England, i. 222.]

Chapter XXXV — Suicide

IN previous chapters we have discussed the moral valuation of acts, forbearances, and omissions, which directly concern the interests of other men; we shall now proceed to consider moral ideas regarding such modes of conduct as chiefly concern a man's own welfare. Among these we notice, in the first place, acts affecting his existence.

Suicide, or intentional self-destruction, has often been represented as a fruit of a higher civilisation; Dr. Steinmetz, on the other hand, in his essay on 'Suicide among Primitive Peoples,' thinks it probable that "there is a greater propensity to suicide among savage than among civilised peoples."[1] The former view is obviously erroneous; the latter probably holds good of certain savages as compared with certain peoples of culture, but cannot claim general validity.

[Footnote 1: Steinmetz, 'Suicide among Primitive Peoples,' in American Anthropologist, vii. 60.]

Among several uncivilised races suicide is said to be unknown.[2] To these belong some of the lower savages--the Yahgans of Tierra del Fuego,[3] the Andaman Islanders, [4] {230} and various Australian tribes;[5] whilst as regards most other tribes at about the same stage of culture information seems to be wanting. Of the natives in Western and Central Australia Sir G. Grey writes, "Whenever I have interrogated them on this point, they have invariably laughed at me, and treated my question as a joke."[6] When a Caroline Islander was told of suicides committed by Europeans, he thought that he had not grasped what was said to him, as he never in his life had heard of anything so ridiculous.[7] The Káfirs of the Hindu-Kush, though they have no intense fear of death, cannot understand suicide; "the idea of a man killing himself strikes them as inexplicable."[8]

[Footnote 2: Paulitschke, Ethnographie Nord-ost-Afrikas, p. 205 (Danakil and Galla). Munzinger, Ostafrikanische Studien, p. 532 (Barea and Kunáma). New, Life, Wanderings, and Labours in Eastern Africa, p. 99 (Wanika). Felkin, 'Notes on the For Tribe of Central Africa,' in Proceed. Roy. Soc. Edinburgh, xiii. 231. Lumholtz (Unknown Mexico, i. 243) thinks it is doubtful whether a pagan Tarahumare ever killed himself.]

[Footnote 3: Bridge, in South American Missionary Magazine, xiii. 211.]

[Footnote 4: Man, Jour. Anthr. Inst. xii. 111.]

[Footnote 5: Grey, Expeditions of Discovery in North-West and Western Australia, ii. 248. Curr, Recollections of Squatting in Victoria, p. 277 (Bangerang). Among the tribes of Western Victoria described by Mr. Dawson (Australian Aborigines, p. 62) suicide is

not unknown, though it is uncommon; "if a native wishes to die, and cannot get any one to kill him, he will sometimes put himself in the way of a venomous snake, that he may be bitten by it."]

[Footnote 6: Grey, op. cit. ii. 248.]

[Footnote 7: von Kotzebue, Voyage of Discovery into the South Sea, iii. 195.]

[Footnote 8: Scott Robertson, Káfirs of the Hindu-Kush, p. 381.]

Among many savages and barbarians suicide is stated to be very rare,[9] or to occur only occasionally;[10] whereas {231} among others it is represented as either common or extremely prevalent.[11] Of the Kamchadales we are told that the least apprehension of danger drives them to despair, and that they fly to suicide as a relief, not only from present, but even from imaginary evil; "not only those who are confined for some offence, but such as are discontented with their lot, prefer a voluntary death to an uneasy life, and the pains of disease."[12] Among the Hos, an Indian hill tribe, suicide is reported to be so frightfully prevalent as to afford no parallel in any known country:--"If a girl appears mortified by anything that has been said, it is not safe to let her go away till she is soothed. A reflection on a man's honesty or veracity may be sufficient to send him to self-destruction. In a recent case, a young woman attempted to poison herself because her uncle would not partake of the food she had cooked for him."[13] Among the Karens of Burma suicide is likewise very common where Christianity has not been introduced. If a man has some incurable or painful disease, he says in a matter-of-fact way that he will hang himself, and he does as he says; if a girl's parents compel her to marry the man she does not love, she hangs herself; wives sometimes hang themselves through jealousy, sometimes because they quarrel with their husbands, and sometimes out of mere {232} chagrin, because they are subject to depreciating comparisons; and it is a favourite threat with a wife or daughter, when not allowed to have her own way, that she will hang herself.[14] Among some uncivilised peoples suicide is frequently practised by women, though rarely by men.[15]

[Footnote 9: Nansen, Eskimo Life, p. 267 (Greenlanders). Murdoch, 'Ethnol. Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 41 (Point Barrow Eskimo), von Siebold, Die Aino auf der Insel Yesso, p. 35. von Stenin, 'Die Kirgisen des Kreises Saissansk im Gebiete von Ssemipalatinsk,' in Globus, lxix. 230. Beltrame, Il Fiume Bianco, p. 51 (Arabs). Felkin, 'Waganda Tribe of Central Africa,' in Proceed. Roy. Soc. Edinburgh, xiii. 723. Schwarz, quoted by Steinmetz, Rechtsverhältnisse, p. 24 (Bakwiri). Ibid. p. 52 (Banaka and Bapuku). Wandrer, ibid. p. 325 (Hottentots). Fritsch, Die Eingeborenen Süd-Afrika's, p. 221 (Bantu race). Sorge, in Steinmetz, Rechtsverhältnisse, p. 421 (Nissan Islanders in the Bismarck Archipelago). Kubary, 'Die Verbrechen und das Strafverfahren auf den Pelau-Inseln,' in Original-Mittheilungen aus der ethnol. Abtheil. d. königl. Museen zu Berlin, i. 78 (Pelew Islanders). Among the Malays suicide is reported to be extremely rare (Brooke, Ten Years in Saráwak, i. 56; Ellis, 'The Amok of the Malays,' in Journal of Mental Science, xxxix. 331); but Dr. Gilmore Ellis has been told by many Malays that they consider Amok a kind of suicide. If a man wishes to die, he "amoks" in the hope of being killed, rather than kills himself, suicide being a most heinous sin according to the ethics of Muhammedanism (ibid. p. 331). In Siam suicide is rare (Bowring, Siam, i. 106). Of the Western Islanders of Torres Straits Dr. Haddon says (in Reports of the Cambridge Anthrop. Expedition to Torres Straits, v. 278) that he does not remember to have heard of a case of suicide in real life, though there are some instances of it in their folk-tales.]

[Footnote 10: Comte, quoted by Mouhot, Travels in the Central Parts of Indo-China, ii. 27 sq. (Bannavs in Cambodia). Kloss, In the Andamans and Nicobars, p. 316 (Nico-

barese). Among the Bakongo cases of suicide occur, "although much less frequently than in civilised countries" (Ward, Five Years with the Congo Cannibals, p. 45).]

[Footnote 11: Veniaminof, quoted by Petroff, Report on Alaska, p. 158 (Atkha Aleuts). Steller, Beschreibung von Kamtschatka, p. 293 sq., Krasheninnikoff, History of Kamschatka, pp. 176, 200. Georgi, Russia, iii. 133 sq. (Kamchadales), 184 (Chukchi), 205 (Aleuts). Brooke, op. cit. i. 55 (Sea Dyaks). Williams and Calvert, Fiji, p. 106. Turner, Samoa, p. 305; Tregear, 'Niue,' in Jour. Polynesian Soc. ii. 14; Thomson, Savage Island, p. 109; Hood, Cruise in the Western Pacific, p. 22 (Savage Islanders). Dieffenbach, Travels in New Zealand, ii. 111 sq.; Collins, English Colony in New South Wales, i. 524 (Maoris). Reade, Savage Africa, p. 553 sq.; Idem, quoted by Darwin, Descent of Man, p. 117, n. 33 (West African Negroes). Monrad, Skildring af Guinea-Kysten, p. 23. Decle, Three Years in Savage Africa, p. 74 (Barotse). In Tana, of the New Hebrides (Gray, in Jour. Anthr. Inst. xxviii. 132) and Nias (Rosenberg, Der malayische Archipel, p. 146) suicides are said to be not infrequent.]

[Footnote 12: Georgi, op. cit. iii. 133 sq. Cf. Krasheninnikoff, op. cit. p. 176.]

[Footnote 13: Tickell, 'Memoir on the Hodésum,' in Jour. Asiatic Soc. Bengal, ix. 807. Dalton, Descriptive Ethnology of Bengal, p. 206.]

[Footnote 14: Mason, 'Dwellings, &c., of the Karens,' in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 141.]

[Footnote 15: Keating, Expedition to the Source of St. Peter's River, i. 394 (Dacotahs); ii. 171 sq. (Chippewas). Bradbury, Travels in the Interior of America, p. 87 (Dacotahs). Brooke Low, quoted by Ling Roth, Natives of Sarawak, i. 117 (Sea Dyaks). Munzinger, Die Sitten und das Recht der Bogos, p. 93.]

The causes which, among savages, lead to suicide are manifold:--disappointed love or jealousy;[16] illness[17] or old age;[18] grief over the death of a child,[19] a husband,[20] or a {233} wife;[21] fear of punishment;[22] slavery[23] or brutal treatment by a husband;[24] remorse,[25] shame or wounded pride, anger or revenge.[26] In various cases an offended person kills himself for the express purpose of taking revenge upon the offender.[27] Thus among the Tshi-speaking peoples of the Gold Coast, "should a person commit suicide, and before so doing attribute the act to the conduct of another person, that other person is required by native law to undergo a like fate. The practice is termed killing oneself upon the head of another, and the person whose conduct is supposed to have driven the suicide to commit the rash act is visited with a death of an exactly similar nature"--unless, indeed, the family of the suicide be pacified with a money compensation.[28] With reference to the Savage Islanders, who especially in heathen {234} times were much addicted to suicide, we are told that, "like angry children, they are tempted to avenge themselves by picturing the trouble that they will bring upon the friends who have offended them."[29] Among the Thlinkets an offended person who is unable to take revenge in any other way commits suicide in order to expose the person who gave the offence to the vengeance of his surviving relatives and friends.[30] Among the Chuvashes it was formerly the custom for enraged persons to hang themselves at the doors of their enemies.[31] A similar method of taking revenge is still not infrequently resorted to by the Votyaks, who believe that the ghost of the deceased will then persecute the offender.[32] Sometimes a suicide has the character of a human sacrifice.[33] In the times of epidemics or great calamities the Chukchi sacrifice their own lives in order to appease evil spirits and the souls of departed relatives.[34] Among some savages it is common for a woman, especially if married to a man of importance, to commit suicide on the death of her husband,[35] or to demand to be

buried with him;[36] and many Brazilian Indians killed themselves on the graves of their chiefs.[37]

[Footnote 16: Lasch, 'Der Selbstmord aus erotischen Motiven bei den primitiven Völkern,' in Zeitschrift für Socialwissenschaft, ii. 579 sqq. Westermarck, History of Human Marriage, p. 503. Keating, op. cit. ii. 172 (Chippewas). Eastman, Dacotah, pp. 89 sqq., 168 sq.; Dodge, Our Wild Indians, p. 321 sq. (Dacotahs). Turner, 'Ethnology of the Ungava District, Hudson Bay Territory,' in Ann. Rep. Bur. Ethn. xi. 187 (Koksoagmyut). Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 141 (Karens). Brooke Low, quoted by Ling Roth, Natives of Sarawak, i. 115 (Sea Dyaks). Kubary, 'Religion der Pelauer,' in Bastian, Allerlei aus Volks- und Menschenkunde, i. 3 (Pelew Islanders). Senfft, in Steinmetz, Rechtsverhältnisse, p. 452 (Marshall Islanders). Codrington, Melanesians, p. 243 sq. (natives of the Banks' Islands and Northern New Hebrides). Waitz, Anthropologie der Naturvölker, vi. 115; Malone, Three Years' Cruise in the Australasian Colonies, p. 72 sq. (Maoris). Reade, Savage Africa, p. 554 (West African Negroes). Munzinger, Die Sitten und das Recht der Bogos, p. 93 sq.]

[Footnote 17: Dodge, op. cit. p. 321 sq. (North American Indians) Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grönland, x. 181 (Angmagsaliks of Eastern Greenland). Georgi, op. cit. iii. 134 (Kamchadales). Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 141 (Karens). Gray, in Jour. Anthr. Inst. xxviii. 132 (natives of Tana, New Hebrides). Sartori, 'Die Sitte der Alten- und Krankentötung,' in Globus, lxvii. 109 sq.]

[Footnote 18: Perrin du Lac, Voyage dans les deux Louisianes, p. 346. Nansen, First Crossing of Greenland, ii. 331; Idem, Eskimo Life, pp. 170, 267 (Greenlanders). Steller, Beschreibung von Kamtschatka, p. 294. Wilkes, U.S. Exploring Expedition, iii. 96; Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 65 (Fijians). Diodorus Siculus, Bibliotheca historica, iii. 33.5 (Troglodytes). Pomponius Mela, De situ orbis, iii. 7 (Seres). Hartknoch, Alt- und Neues Preussen, i. 181 (ancient Prussians). Mareschalcus, Annales Herulorum ac Vandalorum, i. 8 (Monumenta inedita rerum Germanicarum, i. 191); Procopius, De bello Gothico, ii. 14 (Heruli). Maurer, Die Bekehrung des Norwegischen Stammes zum Christenthume, ii. 79, n. 48 (ancient Scandinavians).]

[Footnote 19: Veniaminof, quoted by Petroff, op. cit. p. 158 (Atkha Aleuts). Keating, op. cit. ii. 172 (Chippewas). Colenso, Maori Races, pp. 46, 57; Dieffenbach, op. cit. ii. 112 (Maoris).]

[Footnote 20: Veniaminof, quoted by Petroff, op. cit. p. 158 (Atkha Aleuts). Haddon, in Rep. Cambridge Anthr. Exped. to Torres Straits, v. 17 (Western Islanders, according to a Kauralaig folk-tale). Colenso, op. cit. pp. 46, 57; Dieffenbach, op. cit. ii. 112 (Maoris).]

[Footnote 21: Veniaminof, quoted by Petroff, op. cit. p. 158 (Atkha Aleuts). Fawcett, Saoras, p. 17. Dieffenbach, op. cit. ii. 112 (Maoris).]

[Footnote 22: Steller, Beschreibung von Kamtschatka, p. 293. Dieffenbach, op. cit. ii. 112 (Maoris).]

[Footnote 23: Modigliani, Viaggio a Nías, p. 473. Decle, op. cit. p. 74 (Barotse). Monrad, op. cit. p. 25 (Negroes of Accra). Donne, Biathanatos, p. 56 (American Indians).]

[Footnote 24: Wied-Neuwied, Travels in the Interior of North America, p. 349 (Mandans).]

[Footnote 25: Turner, in Ann. Rep. Bur. Ethn. xi. 187 (Koksoagmyut). Mr. Dawson (Australian Aborigines, p. 62 sq.) tells us of a native of Western Victoria who decided to commit suicide because, being intoxicated, he had killed his wife, and was so sorry for it. He besought the tribe to kill him, and seeing his determination to starve himself

to death, his friends at last sent for the tribal executioner, who pushed a spear through him.]

[Footnote 26: Veniaminof, quoted by Petroff, op. cit. p. 158 (Atkha Aleuts). Keating, op. cit. ii. 171 (Chippewas). Dalton, op. cit. p. 206; Jickell, in Jour. Asiatic Soc. Bengal, ix. 807 (Hos). Colquhoun, Amongst the Shans, p. 76 sq. (Lethtas). Mac Mahon, Far Cathay, p. 241 (Tarus, one of the Chino-Burmese border tribes). Brooke, op. cit. i. 55 (Sea Dyaks). Chalmers, Pioneer Life and Work in New Guinea, p. 227 (a woman at Port Moresby; Mr. Abel [Savage Life in New Guinea, p. 102] speaks of a New Guinea woman who was so annoyed because her old village friends had not visited her during her illness that she attempted to commit suicide). Codrington, op. cit. p. 243 sq. (natives of the Banks' Islands and Northern New Hebrides). Williams and Calvert, op. cit. p. 106 (Fijians). Tregear, in Jour. Polynesian Soc. ii. 14 (Savage Islanders). Dieffenbach, op. cit. ii. 111 sq.; Collins, op. cit. i. 524; Angas, Savage Life in Australia and New Zealand, ii. 45; Colenso, op. cit. p. 56 sq. (Maoris). Ward, Five Years with the Congo Cannibals, p. 45 (Bakongo). Lasch, 'Besitzen die Naturvölker ein persönliches Ehrgefühl?' in Zeitschr. f. Socialwissenschaft, iii. 837 sqq.]

[Footnote 27: See Lasch, 'Rache als Selbstmordmotiv,' in Globus, lxxiv. 37 sqq.; Steinmetz, 'Gli antichi scongiuri giuridici contro i creditori,' in Rivista italiana di sociologia, ii. 49 sqq.]

[Footnote 28: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 302. The same custom is mentioned by Monrad (op. cit. p. 23 sq.), Bowdich (Mission to Ashantee, pp. 256, 257, 259 n. [double dagger]), and Reade (Savage Africa, p. 554).]

[Footnote 29: Thomson, Savage Island, p. 109.]

[Footnote 30: Krause, Die Tlinkit-Indianer, p. 222.]

[Footnote 31: Lebedew, 'Die simbirskischen Tschuwaschen,' in Erman's Archiv für wissenschaftliche Kunde von Russland, ix. 586 n. **]

[Footnote 32: Buch, 'Die Wotjaken,' in Acta Soc. Scient. Fennicæ, xii. 611 sq.]

[Footnote 33: See Lasch, 'Religiöser Selbstmord und seine Beziehung zum Menschenopfer.' in Globus, lxxv. 69 sqq.]

[Footnote 34: Skrzyncki, 'Der Selbstmord bei den Tschuktschen,' in Am Ur-Quell, v. 207 sq.]

[Footnote 35: Ashe, Two Kings of Uganda, p. 342 (Wahuma). Johnston, Uganda Protectorate, ii. 610 (Bairo). Junghuhn, Die Battaländer auf Sumatra, ii. 340 (natives of Bali and Lombok).]

[Footnote 36: Westermarck, History of Human Marriage, p. 125 (Fijians). Codrington, op. cit. p. 289 (natives of Aurora Island, New Hebrides).]

[Footnote 37: Dorman, Origin of Primitive Superstitions, p. 211. Cf. ibid. p. 209. Of the Niger Delta tribes M. le Comte de Cardi writes (in Jour. Anthr. Inst. xxix. 55):--"On the deportation of a king or a chief by the British or other European government for some offence I have seen the wives of the deported man throw themselves into the river and fight like mad women with the people who went to their rescue; I have also seen some of the male retainers both free and slaves of a deported chief attempt their own lives at the moment when the vessel carrying away their chief disappeared from their sight."]

In various other cases, besides the voluntary sacrifices of widows or slaves, the suicides of savages are connected with their notions of a future life.[38] The belief in the new {235} human birth of the departed soul has led West African negroes to take their own lives when in distant slavery, that they may awaken in their native land.[39] Among the Chukchi there are persons who kill themselves for the purpose of effecting

an earlier reunion with their deceased relatives.[40] Among the Samoyedes it happens that a young girl who is sold to an old man strangles herself in the hope of getting a more suitable bridegroom in the other world.[41] We are told that the Kamchadales inflict death on themselves with the utmost coolness because they maintain that "the future life is a continuation of the present, but much better and more perfect, where they expect to have all their desires more completely satisfied than here."[42] The suicides of old people, again, are in some cases due to the belief that a man enters into the other world in the same condition in which he left this one, and that it consequently is best for him to die before he grows too old and feeble.[43]

[Footnote 38: Cf. Steinmetz, in American Anthropologist, vii. 60; Vierkandt, Naturvölker und Kulturvölker, p. 284; Lasch, in Zeitschrift für Socialwissenschaft, ii. 585.]

[Footnote 39: Tylor, Primitive Culture, ii. 5.]

[Footnote 40: Skrzyncki, in Am Ur-Quell, v. 207.]

[Footnote 41: von Struve, 'Die Samojeden im Norden von Sibirien,' in Ausland, 1880, p. 777.]

[Footnote 42: Georgi, op. cit. iii. 265. Cf. Steller, Beschreibung von Kamtschatka, p. 294.]

[Footnote 43: Hale, op. cit. p. 65 (Fijians). Cf. supra, i. 390.]

The notions of savages concerning life after death also influence their moral valuation of suicide. Where men are supposed to require wives not only during their lifetime, but after their death, it may be a praiseworthy thing, or even a duty, for a widow to accompany her husband to the land of souls. According to Fijian beliefs, the woman who at the funeral of her husband met death with the greatest devotedness would become the favourite wife in the abode of spirits, whereas a widow who did not permit herself to be killed was considered an adulteress.[44] Among the Central African Bairo those women who refrained from destroying themselves over their husbands' graves were regarded as outcasts.[45] On the Gold Coast a man of low rank who has married one of the king's sisters is {236} expected to make away with himself when his wife dies, or upon the death of an only male child; and "should he outrage native custom and neglect to do so, a hint is conveyed to him that he will be put to death, which usually produces the desired effect."[46] The customary suicides of the Chukchi are solemnly performed in the presence and with the assistance of relatives and neighbours.[47] The Samoyedes maintain that suicide by strangulation "is pleasing to God, who looks upon it as a voluntary sacrifice, which deserves reward."[48] The opinion of the Kamchadales that it is "allowable and praiseworthy" for a man to take his own life,[49] was probably connected with their optimistic notions about their fate after death. And that the habitual suicides of old persons have the sanction of public opinion is particularly obvious where they may choose between killing themselves and being killed.[50]

[Footnote 44: Westermarck, op. cit. p. 125 sq.]

[Footnote 45: Johnston, Uganda Protectorate, i. 610.]

[Footnote 46: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 287.]

[Footnote 47: Skrzyncki, in Am Ur-Quell, v. 208.]

[Footnote 48: von Struve, in Ausland, 1880, p. 777.]

[Footnote 49: Steller, op. cit. p. 269. Cf. Krasheninnikoff, op. cit. p. 204.]

[Footnote 50: Supra, i. 389 sq. (Fijians). Nansen, First Crossing of Greenland, ii. 331. Steller, op. cit. p. 294 (Kamchadales).]

Whilst in some cases suicide opens the door to a happy land beyond the grave, it in other cases entails consequences of a very different kind. The Omahas believe that a self-murderer ceases to exist.[51] According to the Thompson Indians in British Columbia, "the souls of people who commit suicide do not go to the land of souls. The shamans declare they never saw such people there; and some say that they have looked for the souls of such people, but could not find their tracks. Some shamans say they cannot locate the place where the souls of suicides go, but think they must be lost, because they seem to disappear altogether. Others say that these souls die, and cease to exist. Still others claim that the souls never leave the earth, but wander around aimlessly."[52] So also the Jakuts believe that the ghost of a self-murderer never {237} comes to rest.[53] Sometimes the fate of suicides after death is represented as a punishment which they suffer for their deed. Thus the Dacotahs, among whom women not infrequently put an end to their existence by hanging themselves, are of opinion that suicide is displeasing to the "Father of Life," and will be punished in the land of spirits by the ghost being doomed for ever to drag the tree on which the person hanged herself; hence the women always suspend themselves to as small a tree as can possibly sustain their weight.[54] The Paháriás of the Rájmahal Hills, in India, say that "suicide is a crime in God's eyes," and that "the soul of one who so offends shall not be admitted into heaven, but must hover eternally as a ghost between heaven and earth,"[55] The Kayans of Borneo maintain that self-murderers are sent to a place called Tan Tekkan, where they will be very poor and wretched, subsisting on leaves, roots, or anything they can pick up in the forests, and being easily distinguished by their miserable appearance.[56] According to Dyak beliefs, they go to a special place, where those who have drowned themselves must thenceforth live up to their waists in water, and those who have poisoned themselves must live in houses built of poisonous woods and surrounded by noxious plants, the exhalations of which are painful to the spirits.[57] In other instances we are simply told that the souls of suicides, together with those of persons who have been killed in war,[58] or who have died a violent death,[59] are not permitted to live with the rest of the souls, to whom their presence would cause uneasiness. Among the Hidatsa Indians some people say that the ghosts of men {238} who have made away with themselves occupy a separate part of the village of the dead, but that their condition in no other wise differs from that of the other ghosts.[60]

[Footnote 51: La Flesche, 'Death and Funeral Customs among the Omahas,' in Jour. of American Folk-Lore, ii. 11.]

[Footnote 52: Teit, 'Thompson Indians of British Columbia,' in Memoirs of the American Museum of Natural History, Anthropology, i. 358 sq.]

[Footnote 53: Sumner, in Jour. Anthr. Inst. xxxi. 101.]

[Footnote 54: Bradbury, Travels in the Interior of America, p. 89. Cf. Keating, op. cit. i. 394.]

[Footnote 55: Dalton, Descriptive Ethnology of Bengal, p. 268. Cf. Sherwill, 'Tour through the Rájmahal Hills,' in Jour. Asiatic Soc. Bengal, xx. 556.]

[Footnote 56: Hose, 'Journey up the Baram River to Mount Dulit and the Highlands of Borneo,' in Geographical Journal, i. 199.]

[Footnote 57: Wilken, Het animisme bij de volken van den Indischen Archipel, i. 44.]

[Footnote 58: Brebeuf, 'Relation de ce qui s'est passé dans le pays des Hurons,' in Relations des Jésuites, 1636, p. 104 sq. Hewitt, 'The Iroquoian Concept of the Soul,' in Jour. of American Folk-Lore, viii. 109.]

[Footnote 59: Steinmetz, in American Anthropologist, vii. 58 (Niase).]

[Footnote 60: Matthews, Ethnography and Philology of the Hidatsa Indians, p. 49.]

It is, however, hard to believe that the fate of the self-murderer, whether it be annihilation, a vagrant existence on earth, or separation in the other world, was originally meant as a punishment; for a similar lot is assigned to the souls of persons who have been drowned,[61] or who have died by accident or violence.[62] It seems that the suicide's future state is in the first place supposed to depend upon the treatment of his corpse. Frequently he is denied burial, or at least the ordinary funeral rites,[63] and this may give rise to the notion that his soul never comes to rest or, possibly, even ceases to exist. Or he is buried by himself, apart from the other dead,[64] in which case his soul must naturally remain equally isolated. Among the Alabama Indians, for instance, "when a man kills himself, either in despair or in a sickness, he is deprived of burial, and thrown into the river."[65] In Dahomey "the body of any person committing suicide is not allowed to be buried, but thrown out into the fields to be devoured by wild beasts."[66] Among the Fantis of the Gold Coast "il y a des places réservées aux suicides et à ceux qui sont morts de la petite vérole. Ils sont enterrés à l'écart loin de toute {239} habitation et de tout chemin public."[67] In the Pelew Islands a self-murderer is buried not with his own deceased relatives, but in the place where he ended his life, as are also the corpses of those who fall in war.[68] Among the Bannavs of Cambodia "anyone who perishes by his own hand is buried in a corner of the forest far from the graves of his brethren."[69] Among the Sea Dyaks "those who commit suicide are buried in different places from others, as it is supposed that they will not be allowed to mix in the seven-storied heaven with such of their fellow-country men as come by their death in a natural manner or from the influence of the spirits."[70] The motive for thus treating self-murderers' bodies is superstitious fear. Their ghosts, as the ghosts of persons who have died by any other violent means or by accident, are supposed to be particularly malevolent,[71] owing to their unnatural mode of death[72] or to the desperate or angry state of mind in which they left this life. If they are not buried at all, or if they are buried in the spot where they died or in a separate place, that is either because nobody dares to interfere with them, or in order to prevent them from mixing with the other dead. So also murdered persons are sometimes left unburied,[73] and people who are supposed to have been killed by evil spirits are buried apart;[74] whilst those struck with lightning are either denied interment,[75] or buried where they fell and in the position in which they died.[76] We sometimes hear of a connection between the way in which a suicide's body is treated and the moral opinion as regards his deed. Among the Alabama Indians his corpse {240} is said to be thrown into the river "because he is looked upon as a coward";[77] and of the Ossetes M. Kovalewsky states that they bury suicides far away from other dead persons because they regard their act as sinful.[78] But we may be sure that moral condemnation is not the original cause of these practices.

[Footnote 61: Teit, loc. cit. p. 359 (Thompson Indians).]

[Footnote 62: Soppitt, Kuki-Lushai Tribes, p. 12. Anderson, Mandalay to Momien, p. 146 (Kakhyens). Müller, Geschichte der Amerikanischen Urreligionen, p. 287 (Brazilian Indians). Supra, ii. 237. The Central Eskimo believe that all who die by accident or by violence, and women who die in childbirth, are taken to the upper, happier world (Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 590). According to the belief of the Behring Strait Eskimo, the shades of shamans, or persons who die by accident, violence, or starvation, go to a land of plenty in the sky, where there is light, food, and water in abundance, whereas the shades of people who die from natural causes go to the underground land of the dead (Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 423).]

[Footnote 63: See Lasch, 'Die Behandlung der Leiche des Selbstmorders,' in Globus, lxxvi. 63 sqq.]

[Footnote 64: Ibid. p. 65.]

[Footnote 65: Bossu, Travels through Louisiana, i. 258.]

[Footnote 66: M'Leod, Voyage to Africa, p. 48 sq. I am indebted to Mr. N. W. Thomas for drawing my attention to this and a few other statements in the present chapter.]

[Footnote 67: Gallaud, 'A la Côte d'Or,' in Les missions catholiques, xxv. 347.]

[Footnote 68: Kubary, in Original-Mittheil. aus der ethnol. Abtheil. d. königl. Museen zu Berlin, i. 78.]

[Footnote 69: Comte, quoted by Mouhot, op. cit. ii. 28. See also 'Das Volk der Bannar,' in Mittheil. d. Geogr. Ges. zu Jena, iii. 9.]

[Footnote 70: St. John, Life in the Forests of the Far East, i. 69.]

[Footnote 71: Lasch, in Globus, lxxvi. 65. Cf. Liebrecht, Zur Volkskunde, p. 414 sq.]

[Footnote 72: Lippert, Der Seelencult, p. 11. Kubary, in Original-Mittheil. aus der ethnol. Abtheil. d. königl. Museen zu Berlin, i. 78.]

[Footnote 73: Rosenberg, Der malayische Archipel, p. 461 (Papuans of Dorey).]

[Footnote 74: Hodson, 'Native Tribes of Manipur,' in Jour. Anthr. Inst. xxxi. 305 sq.]

[Footnote 75: Burton, Mission to Gelele, ii. 142 sq. (Dahomans).]

[Footnote 76: La Flesche, in Jour. American Folk-Lore, ii. 11 (Omahas).]

[Footnote 77: Bossu, op. cit. i. 258.]

[Footnote 78: Kovalewsky, Coutume contemporaine et loi ancienne, p. 327.]

It is comparatively seldom that savages are reported to attach any stigma to suicide. To the instances mentioned above a few others may be added. The Waganda, we are told, greatly condemn the act.[79] Among the Bogos "a man never despairs, never gives himself up, and considers suicide as the greatest indignity."[80] The Karens of Burma deem it an act of cowardice; but at the same time they have no command against it, they "seem to see little or no guilt in it," and "we are nowhere told that it is displeasing to the God of heaven and earth."[81] The Dacotahs said of a girl who had destroyed herself because her parents had turned her beloved from the wigwam, and would force her to marry a man she hated, that her spirit did not watch over her earthly remains, being offended when she brought trouble upon her aged mother and father.[82] In Dahomey "it is criminal to attempt to commit suicide, because every man is the property of the king. The bodies of suicides are exposed to public execration, and the head is always struck off and sent to Agbomi; at the expense of the family if the suicide were a free man, at that of his master if he were a slave."[83] On the other hand, it is expressly stated of various savages that they do not punish attempts to commit suicide.[84] The negroes of Accra see nothing wrong in the act. "Why," they would ask, "should a person not be {241} allowed to die, when he no longer desires to live?" But they inflict cruel punishments upon slaves who try to put an end to themselves, in order to deter other slaves from doing the same.[85] Among the Pelew Islanders suicide "is neither praised nor blamed."[86] The Eskimo around Northumberland Inlet and Davis Strait believe that any one who has been killed by accident, or who has taken his own life, certainly goes to the happy place after death.[87] The Chippewas hold suicide "to be a foolish, not a reprehensible action," and do not believe it to entail any punishment in the other world.[88] In his sketches of the manners and customs of the North American Indians, Buchanan writes:--"Suicide is not considered by the Indians either as an act of heroism or of cowardice, nor is it with them a subject of praise or blame. They view this desperate act as the consequence of mental derangement, and the person who destroys himself is to them an object of pity."[89]

[Footnote 79: Felkin, in Proceed. Roy. Soc. Edinburgh, xiii. 723.]

[Footnote 80: Munzinger, Die Sitten und das Recht der Bogos, p. 93.]

[Footnote 81: Mason, in Jour. Asiatic Soc. Bengal, xxxvii. pt. ii. 141.]

[Footnote 82: Eastman, op. cit. p. 169.]

[Footnote 83: Ellis, E[(w]e-speaking Peoples, p. 224.]

[Footnote 84: Leuschner, in Steinmetz, Rechtsverhältnisse, p. 24 (Bakwiri). Nicole, ibid. p. 135 (Diakité-Sarracolese). Lang, ibid. p. 262 (Washambala). Rautanen, ibid. p. 343 (Ondonga). Sorge, ibid. p. 421 (Nissan Islanders). Senfft, ibid. p. 452 (Marshall Islanders).]

[Footnote 85: Monrad, op. cit. pp. 23, 25.]

[Footnote 86: Kubary, in Original-Mittheil. aus der ethnol. Abtheil. d. königl. Museen zu Berlin, i. 78.]

[Footnote 87: Hall, Arctic Researches, p. 572. Cf. supra, ii. 238, n. 3.]

[Footnote 88: Keating, op. cit. ii. 172.]

[Footnote 89: Buchanan, Sketches of the History, &c. of the North American Indians, p. 184.]

From the opinions on suicide held by uncivilised races we shall pass to those prevalent among peoples of a higher culture. In China suicide is extremely common among all classes and among persons of all ages.[90] For those who have been impelled to this course by a sense of honour the gates of heaven open wide, and tablets bearing their names are erected in the temples in honour of virtuous men or women. As honourable self-murderers are regarded servants or officers of state who choose not to survive a defeat in battle or an insult offered to the sovereign of their country; young men who, when an insult has been paid to their parents which they are unable to avenge, prefer not to survive it; and women who kill {242} themselves on the death of their husbands or fiancés.[91] In spite of imperial prohibitions, sutteeism of widowed wives and brides has continued to flourish in China down to this day, and meets with the same public applause as ever;[92] whilst those widowed wives and brides who have lost their lives in preserving their chastity, are entitled both to an honorary gate and to a place in a temple of the State as an object of worship.[93] Another common form of suicide which is admired as heroic in China is that committed for the purpose of taking revenge upon an enemy who is otherwise out of reach--according to Chinese ideas a most effective mode of revenge, not only because the law throws the responsibility of the deed on him who occasioned it, but also because the disembodied soul is supposed to be better able than the living man to persecute the enemy.[94] The Chinese have a firm belief in the wandering spirits of persons who have died by violence; thus self-murderers are supposed to haunt the places where they committed the fatal deed and endeavour to persuade others to follow their example, at times even attempting to play executioner by strangling those who reject their advances.[95] "Violent deaths," says Mr. Giles, "are regarded with horror by the Chinese";[96] and suicides committed from meaner motives are reprobated.[97] It is said in the Yü Li, or "Divine Panorama"--a Taouist work which is very popular all over the Chinese Empire--that whilst persons who kill themselves out of loyalty, filial piety, chastity, or friendship, will go to heaven, those who do so "in a trivial burst of rage, or fearing the consequences of a crime which would not amount to death, or in the hope of falsely injuring a {243} fellow-creature," will be severely punished in the infernal regions.[98] No pardon will be granted them; they are not, like other sinners, allowed to claim their good works as a set-off against evil, whereby they might partly escape the agonies of hell and receive some reward for their virtuous deeds.[99] Sometimes suicide is classified by the Chinese as an offence against religion,

on the ground that a person owes his being to Heaven, and is therefore responsible to Heaven for due care of the gift.[100]

[Footnote 90: Gray, China, i. 329. Huc, The Chinese Empire, p. 181. Matignon, 'Le suicide en Chine,' in Archives d'anthropologie criminelle, xii. 367 sqq. Cathonay, 'Aux environs de Foutchéon,' in Les missions catholiques, xxxi. 341 sq. Ball, Things Chinese, p. 564 sqq.]

[Footnote 91: Gray, op. cit. i. 337 sqq.]

[Footnote 92: de Groot, Religious System of China, (vol. ii. book) i. 748. Ball, op. cit. p. 565. Cathonay, in Les missions catholiques, xxxi. 341.]

[Footnote 93: de Groot, op. cit. (vol. ii. book) i. 792.]

[Footnote 94: Huc, op. cit. p. 181. Matignon, in Archives d'anthropologie criminelle, xii. 371 sqq. de Groot, op. cit. (vol. iv. book) ii. 450 sq. Cathonay, in Les missions catholiques, xxxi. 341 sq. Ball, op. cit. p. 566 sq.]

[Footnote 95: Davis, China, ii. 94. Dennys, Folk-Lore of China, p. 74 sq.]

[Footnote 96: Giles, Strange Stories from a Chinese Studio, ii. 363, n. 9.]

[Footnote 97: Gray, op. cit. i. 337.]

[Footnote 98: Giles, op. cit. ii. 365.]

[Footnote 99: Ibid. ii. 363.]

[Footnote 100: Alabaster, Notes and Commentaries on Chinese Criminal Law, p. 304.]

"The Japanese calendar of saints," says Mr. Griffis, "is not filled with reformers, alms-givers, and founders of hospitals or orphanages, but is overcrowded with canonised suicides and committers of harakiri. Even to-day, no man more . . . surely draws homage to his tomb, securing even apotheosis, than the suicide, though he may have committed a crime."[101] There were two kinds of harakiri, or "belly-cutting," one obligatory and the other voluntary. The former was a boon granted by government, who graciously permitted criminals of the Samurai, or military, class thus to destroy themselves instead of being handed over to the common executioner; but this custom is now quite extinct. Voluntary harakiri, again, was practised out of loyalty to a dead superior, or in order to protest, when other protests might be unavailing, against the erroneous conduct of a living superior, or to avoid beheading by the enemy in a lost battle, or to restore injured honour if revenge was impossible. Under any circumstances harakiri cleansed from every stain, and ensured an honourable interment and a respected memory.[102] It is said in a Japanese manuscript, "To slay his enemy against whom he has cause of hatred, and then to kill himself, is the part of a noble Samurai, and it is sheer nonsense to look upon the place where he has disembowelled {244} himself as polluted."[103] In old days the ceremony used to be performed in a temple.[104]

[Footnote 101: Griffis, Religions of Japan, p. 112.]

[Footnote 102: Chamberlain, Things Japanese, p. 219 sqq. Rein, Japan, p. 328. Kühne, in Globus, lxxiv. 166 sq. A very full account of the ceremony of harakiri is given in Mitford's Tales of Old Japan, ii. 193 sqq., from a rare Japanese manuscript.]

[Footnote 103: Mitford, op. cit. ii. 201.]

[Footnote 104: Ibid. ii. 196.]

Among the Hindus we meet with the practice of self-immolation of widows--until recently very prevalent in many parts of India[105]--and various forms of self-destruction for religious purposes. Suicide has always been considered by the Hindus to be one of the most acceptable rites that can be offered to their deities. According to the Ayen Akbery, there were five kinds of suicide held to be meritorious in the Hindu, namely:--starving; covering himself with cow-dung and setting it on fire and consuming himself therein; burying himself in snow; immersing himself in the water at the extremity of

Bengal, where the Ganges discharges itself into the sea through a thousand channels, enumerating his sins, and praying till the alligators come and devour him; cutting his throat at Allahabad, at the confluence of the Ganges and Jumna.[106] To these might be added drowning at Hurdwar, Allahabad, and Saugor; perishing in the cold of the Himalayas; the practice of dying under the wheels of Juggurnath's car;[107] and the custom of men throwing themselves down from certain rocks to fulfil the vows of their mothers, or to receive forgiveness for sins, or to be re-born rajas in their next state of transmigration.[108] It is also common for persons who are afflicted with leprosy or any other incurable disease to bury or drown themselves with due ceremonies, by which they are considered acceptable sacrifices to the deity,[109] or to roll themselves into fires with the notion that thus purified they will receive a happy transmigration into a healthy body.[110] Suicide was further {245} resorted to by Brâhmans for the purpose of avenging an injury, as it was believed that the ghost of the deceased would persecute the offender, and, presumably, also because of the great efficacy which was attributed to the curse of a dying Brâhman.[111] When one of the Rajput rajas once levied a war-subsidy on the Brâhmans, some of the wealthiest, having expostulated in vain, poniarded themselves in his presence, pouring maledictions on his head with their last breath; and thus cursed, the raja laboured under a ban of excommunication even amongst his personal friends.[112] We are told of a Brâhman girl who, having been seduced by a certain raja, burned herself to death, and in dying imprecated the most fearful curses on the raja's kindred, after which they were visited with such a succession of disasters that they abandoned their family settlement at Baliya, where the woman's tomb is worshipped to this day.[113] Once when a raja ordered the house of a Brâhman to be demolished and resumed the lands which had been conferred upon him, the latter fasted till he died at the palace gate, and became thus a Brahm, or malignant Brâhman ghost, who avenged the injury he had suffered by destroying the raja and his house.[114] At Azimghur, in 1835, a Brâhman "threw himself down a well, that his ghost might haunt his neighbour."[115] The same idea undoubtedly underlies the custom of "sitting dharna" which was practised by creditors who sat down before the doors of their debtors threatening to starve themselves to death if their claims were not paid;[116] and the sin attached to causing the death of a Brâhman would further increase the efficacy of the creditor's threats.[117] At the same time religious suicide is said to be a crime in a Brâhman.[118] And in the sacred books we read that for him who destroys {246} himself by means of wood, water, clods of earth, stones, weapons, poison, or a rope, no funeral rites shall be performed by his relatives;[119] that he who resolves to die by his own hand shall fast for three days; and that he who attempts suicide, but remains alive, shall perform severe penance.[120] The Buddhists allow a man under certain circumstances to take his own life, but maintain that generally dire miseries are in store for the self-murderer, and look upon him as one who must have sinned deeply in a former state of existence.[121] It should be added that in India, as elsewhere, the souls of those who have killed themselves or met death by any other violent means are regarded as particularly malevolent and troublesome.[122]

[Footnote 105: Malcolm, Memoir of Central India, ii. 206 sqq. Chevers, Manual of Medical Jurisprudence for India, p. 665. Cf. supra, i. 473 sq. Sir John Malcolm observes (op. cit. ii. 206, n. [double dagger]) that the practice of suttee was not always confined to widows, but that sometimes mothers burned themselves on the death of their only sons.]

[Footnote 106: Chevers, op. cit. p. 664. Cf. Laws of Manu, vi. 31.]

[Footnote 107: Ibid. p. 664. Ward, View of the History, &c. of the Hindoos, ii. 115 sqq. Rájendralála Mitra, Indo-Aryans, ii. 70.]

[Footnote 108: Sleeman, Rambles and Recollections of an Indian Official, i. 132 sq. Malcolm, Memoir of Central India, ii. 209 sqq. Forsyth, Highlands of Central India, p. 172 sq.]

[Footnote 109: Sleeman, op. cit. ii. 344 sq.]

[Footnote 110: Ward, op. cit. ii. 119.]

[Footnote 111: Chevers, op. cit. p. 659 sqq. Crooke, Popular Religion and Folk-Lore of Northern India, i. 191 sqq. van Mökern, Ostindien, i. 319 sqq.]

[Footnote 112: Tod, quoted by Chevers, op. cit. p. 659 sq.]

[Footnote 113: Crooke, op. cit. i. 193.]

[Footnote 114: Ibid. i. 191 sq.]

[Footnote 115: Chevers, op. cit. p. 663.]

[Footnote 116: Cf. Steinmetz, 'Gli antichi scongiuri giuridici contro i creditori,' in Rivista italiana di sociologia, ii. 58. For the practice of dharna see ibid. p. 37 sqq.; Balfour, Cyclopædia of India, i. 934 sq.; van Mökern, op. cit. i. 322 sq.]

[Footnote 117: Cf. Jones, quoted by Balfour, op. cit. i. 935.]

[Footnote 118: Ward, op. cit. ii. 115. Forsyth, op. cit. p. 173.]

[Footnote 119: Vasishtha, xxiii. 14 sq.]

[Footnote 120: Ibid. xxiii. 18 sqq.]

[Footnote 121: Hardy, Manual of Budhism, p. 479.]

[Footnote 122: Crooke, Popular Religion and Folk-Lore of Northern India, i. 269. Fawcett, 'Nâyars of Malabar,' in the Madras Government Museum's Bulletin, iii. 253.]

The Old Testament mentions a few cases of suicide.[123] In none of them is any censure passed on the perpetrator of the deed, nor is there any text which expressly forbids a man to die by his own hand; and of Ahithophel it is said that he was buried in the sepulchre of his father.[124] It seems, however, that according to Jewish custom persons who had killed themselves should be left unburied till sunset,[125] perhaps for fear lest the spirit of the deceased otherwise might find its way back to the old home.[126] Josephus, who mentions this custom, denounces suicide as an act of cowardice, as a crime most remote from the common nature of all animals, as impiety against the Creator; and he maintains that the souls of those who have thus acted madly against themselves will go to the darkest place in Hades.[127] The Talmud considers suicide justifiable, if not meritorious, in the case of the chief of a vanquished army who is sure of disgrace and death at the hands of the exulting conqueror,[128] or when a person has {247} reason to fear being forced to renounce his religion.[129] In all other circumstances the Rabbis consider it criminal for a person to shorten his own life, even when he is undergoing tortures which must soon end his earthly career;[130] and they forbid all marks of mourning for a self-murderer, such as wearing sombre apparel and eulogising him.[131] Islam prohibits suicide, as an act which interferes with the decrees of God.[132] Muhammedans say that it is a greater sin for a person to kill himself than to kill a fellow-man;[133] and, as a matter of fact, suicide is very rare in the Moslem world.[134]

[Footnote 123: 1 Samuel, xxxi. 4 sq. 2 Samuel, xvii. 23. 1 Kings, xvi. 18. 2 Maccabees, xiv. 4 sqq.]

[Footnote 124: 2 Samuel, xvii. 23.]

[Footnote 125: Josephus, De bello Judaico, iii. 8. 5.]

[Footnote 126: Cf. Frazer, 'Burial Customs as illustrative of the Primitive Theory of the Soul,' in Jour. Anthr. Inst. xv. 72.]

[Footnote 127: Josephus, op. cit. iii. 8. 5.]

[Footnote 128: Cf. 1 Samuel, xxxi. 4.]

[Footnote 129: Guittin, 57 B, quoted by Mendelsohn, Criminal Jurisprudence of the Ancient Hebrews, p. 77, n. 163. Cf. 2 Maccabees, xiv. 37 sqq.]

[Footnote 130: Ab Zara, 18 A, quoted by Mendelsohn, op. cit. p. 78, n. 163.]

[Footnote 131: Mendelsohn, op. cit. p. 77.]

[Footnote 132: Koran, iv. 33.]

[Footnote 133: I have often heard this myself. Cf. Westcott, Suicide, p. 12.]

[Footnote 134: Lisle, Du suicide, pp. 305, 345 sq. Legoyt, Le suicide ancien et moderne, p. 7. Morselli, Il suicidio, p. 33. Westcott, op. cit. p. 12.]

Ancient Greece had its honourable suicides. The Milesian and Corinthian women, who by a voluntary death escaped from falling into the hands of the enemy, were praised in epigrams.[135] The story that Themistocles preferred death to bearing arms against his native country was circulated with a view to doing honour to his memory.[136] The tragedians frequently give expression to the idea that suicide is in certain circumstances becoming to a noble mind.[137] Hecuba blames Helena for not putting an end to her life by a rope or a sword.[138] Phaedra[139] and Leda[140] kill themselves out of shame, Haemon from violent remorse.[141] Ajax decides to die after having in vain attempted to kill the Atreidae, maintaining that "one of generous strain should nobly live, or forthwith nobly die."[142] Instances are, moreover, mentioned of women killing themselves on the death of their husbands;[143] and in Cheos it was the custom to prevent {248} the decrepitude of old age by a voluntary death.[144] At Athens the right hand of a person who had taken his own life was struck off and buried apart from the rest of the body,[145] evidently in order to make him harmless after death.[146] Plato says in his 'Laws,' probably in agreement with Attic custom, that those who inflict death upon themselves "from sloth or want of manliness," shall be buried alone in such places as are uncultivated and nameless, and that no column or inscription shall mark the spot where they are interred.[147] At Thebes self-murderers were deprived of the accustomed funeral ceremonies,[148] and in Cyprus they were left unburied.[149] The objections which philosophers raised against the commission of suicide were no doubt to some extent shared by popular sentiments. Pythagoras is represented as saying that we should not abandon our station in life without the orders of our commander, that is, God.[150] According to the Platonic Socrates, the gods are our guardians and we are a possession of theirs, hence "there may be reason in saying that a man should wait, and not take his own life until God summons him."[151] Aristotle, again, maintains that he who from rage kills himself commits a wrong against the State, and that therefore the State punishes him and civil infamy is attached to him.[152] The religious argument could not be foreign to a people who regarded it as impious interference in the order of nature to make a bridge over the Hellespont and to separate a landscape from the continent;[153] and the idea that suicide is a matter of public concern evidently prevailed in Massilia, where no man was allowed to make away with himself unless the magistrates had given him permission to do so.[154] But the {249} opinions of the philosophers were anything but unanimous.[155] Plato himself, in his 'Laws,' has no word of censure for him who deprives himself by violence of his appointed share of life under the compulsion of some painful and inevitable misfortune, or out of irremediable and intolerable shame.[156] Hegesias, surnamed the "death-persuader," who belonged to the Cyrenaic school, tried to prove the utter worthlessness and unprofitableness of life.[157] According to Epicurus we ought to consider "whether it be better that death should come to us, or we go to him."[158] The Stoics, especially, advocated suicide as

a relief from all kinds of misery.[159] Seneca remarks that it is a man's own fault if he suffers, as, by putting an end to himself, he can put an end to his misery:--"As I would choose a ship to sail in, or a house to live in, so would I choose the most tolerable death when about to die. . . . Human affairs are in such a happy situation, that no one need be wretched but by choice. Do you like to be wretched? Live. Do you like it not? It is in your power to return from whence you came."[160] The Stoics did not deny that it is wrong to commit suicide in cases where the act would be an injury to society;[161] Seneca himself points out that Socrates lived thirty days in prison in expectation of death, so as to submit to the laws of his country, and to give his friends the enjoyment of his conversation to the last.[162] Epictetus opposes indiscriminate suicide on religious grounds:--"Friends, wait for God; when he shall give the signal and release you from this service, then go to him; but for the present endure to dwell in the place where he has put you."[163] Such a signal, however, is given often enough: it may consist in incurable disease, intolerable pain, or misery of any kind. "Remember this: the door is open; be not more timid {250} than little children, but as they say, when the thing does not please them, 'I will play no longer,' so do you, when things seem to you of such a kind, say I will no longer play, and be gone: but if you stay, do not complain."[164] Pliny says that the power of dying when you please is the best thing that God has given to man amidst all the sufferings of life.[165]

[Footnote 135: Schmidt, Die Ethik der alten Griechen, ii. 443.]

[Footnote 136: Diodorus Siculus, Bibliotheca historica, xi. 58. 2 sq.]

[Footnote 137: See Schmidt, op. cit. ii. 442 sqq.]

[Footnote 138: Euripides, Troades, 1012 sqq.]

[Footnote 139: Idem, Hippolytus, 715 sqq.]

[Footnote 140: Idem, Helena, 134 sqq.]

[Footnote 141: Sophocles, Antigone, 1234 sqq.]

[Footnote 142: Idem, Ajax, 470 sqq. Cf. ibid. 654 sqq.]

[Footnote 143: Euripides, Supplices, 1000 sqq. Pausanias, iv. 2. 7.]

[Footnote 144: Strabo, Geographica, x. 5. 6, p. 486. Aelian, Varia historia, iii. 37. Cf. Boeckh, Gesammelte kleine Schriften, vii. 345 sqq.; Welcker, Kleine Schriften, ii. 502 sq.]

[Footnote 145: Aeschines, In Ctesiphontem, 244.]

[Footnote 146: Some Australian natives cut off the thumb of the right hand of a dead foe in order to make his spirit unable to throw the spear efficiently (Oldfield, in Trans. Ethn. Soc. N.S. iii. 287).]

[Footnote 147: Plato, Leges, ix. 873.]

[Footnote 148: Schmidt, op. cit. ii. 104.]

[Footnote 149: Dio Chrysostom, Orationes, lxiv. 3.]

[Footnote 150: Cicero, Cato Major, 20 (73).]

[Footnote 151: Plato, **Phædo, p. 62.]

[Footnote 152: Aristotle, Ethica Nicomachea, v. 11. 3.]

[Footnote 153: See Schmidt, op. cit. ii. 83, 441; Rohde, Psyche, p. 202, n. 1.]

[Footnote 154: Valerius Maximus, Factorum dictorumque memorabilia, ii. 6. 7.]

[Footnote 155: See Geiger, Der Selbstmord im klassischen Altertum, p. 5 sqq.]

[Footnote 156: Plato, Leges, ix. 873.]

[Footnote 157: Cicero, Tusculanæ quæstiones, i. 34 (83 sq.). Valerius Maximus, viii. 9. Externa 3.]

[Footnote 158: Epicurus, quoted by Seneca, Epistulæ, 26.]

[Footnote 159: See Geiger, op. cit. p. 15 sqq.]

[Footnote 160: Seneca, Epistulæ, 70. See also Idem, De ira, iii. 15; Idem, Consolatia ad Marciam, 20.]

[Footnote 161: Lecky, History of European Morals, i. 214, n. 1.]

[Footnote 162: Seneca, Epistulæ, 70.]

[Footnote 163: Epictetus, Dissertationes, i. 9. 16.]

[Footnote 164: Ibid. i. 24. 20; i. 25. 20 sq.; ii. 16. 37 sqq.; iii. 13. 14; iii. 24. 95 sqq.]

[Footnote 165: Pliny, Historia naturalis, ii. 5 (7).]

It seems that the Roman people, before the influence of Christianity made itself felt, regarded suicide with considerable moral indifference. According to Servius, it was provided by the Pontifical laws that whoever hanged himself should be cast out unburied;[166] but from what has been said before it is probable that this practice only owed its origin to fear of the dead man's ghost. Vergil enumerates self-murderers not among the guilty, but among the unfortunate, confounding them with infants who have died prematurely and persons who have been condemned to die on a false charge.[167] Throughout the whole history of pagan Rome there was no statute declaring it to be a crime for an ordinary citizen to take his own life. The self-murderer's rights were in no way affected by his deed, his memory was no less honoured than if he had died a natural death, his will was recognised by law, and the regular order of succession was not interfered with.[168] In Roman law there are only two noteworthy exceptions to the rule that suicide is a matter with which the State has nothing to do: it was prohibited in the case of soldiers,[169] and the enactment was made that the suicide of an accused person should entail the same consequences as his condemnation; but in the latter instance the deed was admitted as a confession of guilt.[170] On the other {251} hand, it seems to have been the general opinion in Rome that suicide under certain circumstances is an heroic and praiseworthy act.[171] Even Cicero, who professed the doctrine of Pythagoras,[172] approved of the death of Cato.[173]

[Footnote 166: Servius, Commentarii in Virgilii Æneidos, xii. 603.]

[Footnote 167: Vergil, Æneis, vi. 426 sqq.]

[Footnote 168: Bourquelot, 'Recherches sur les opinions et la législation en matière de mort volontaire pendant le moyen age,' in Bibliothèque de l'École des Chartes, iii. 544. Geiger, op. cit. p. 64 sqq. Bynkershoek, Observationes Juris Romani, iv. 4, p. 350.]

[Footnote 169: Digesta, xlix. 16. 6. 7.]

[Footnote 170: Ibid. xlviii. 21. 3 pr. Cf. Bourquelot, op. cit. iii. 543 sq.; Gibbon, Decline and Fall of the Roman Empire, v. 326; Lecky, History of European Morals, i. 219.]

[Footnote 171: Stäudlin, Geschichte der Vorstellungen und Lehren vom Selbstmorde, p. 62 sq.]

[Footnote 172: Cicero, Cato Major, 20 (72 sq.).]

[Footnote 173: Idem, De officiis, i. 31 (112).]

In no question of morality was there a greater difference between classical and Christian doctrines than in regard to suicide. The earlier Fathers of the Church still allowed, or even approved of, suicide in certain cases, namely, when committed in order to procure martyrdom,[174] or to avoid apostacy, or to retain the crown of virginity. To bring death upon ourselves voluntarily, says Lactantius, is a wicked and impious deed; "but when urged to the alternative, either of forsaking God and relinquishing faith, or of expecting all torture and death, then it is that undaunted in spirit we defy that death with all its previous threats and terrors which others fear."[175] Eusebius and other ecclesiastical writers mention several instances of Christian women putting an end to their lives when their chastity was in danger, and their acts are spoken of with tenderness, if not approbation; indeed, some of them were admitted into the calendar

of saints.[176] This admission was due to the extreme honour in which virginity was held by the Fathers; St. Jerome, who denied that it was lawful in times of persecution to die by one's own hands, made an exception for cases in which a person's chastity was at stake.[177] But even this exception was abolished by St. Augustine. He allows that the virgins who laid violent hands upon themselves are worthy of compassion, but declares that there was no necessity for their doing so, since chastity is a virtue of {252} the mind which is not lost by the body being in captivity to the will and superior force of another. He argues that there is no passage in the canonical Scriptures which permits us to destroy ourselves either with a view to obtaining immortality or to avoiding calamity. On the contrary, suicide is prohibited in the commandment, "Thou shalt not kill," namely, "neither thyself nor another"; for he who kills himself kills no other but a man.[178] This doctrine, which assimilates suicide with murder, was adopted by the Church.[179] Nay, self-murder was declared to be the worst form of murder, "the most grievous thing of all";[180] already St. Chrysostom had declared that "if it is base to destroy others, much more is it to destroy one's self."[181] The self-murderer was deprived of rights which were granted to all other criminals. In the sixth century a Council at Orleans enjoined that "the oblations of those who were killed in the commission of any crime may be received, except of such as laid violent hands on themselves";[182] and a subsequent Council denied self-murderers the usual rites of Christian burial.[183] It was even said that Judas committed a greater sin in killing himself than in betraying his master Christ to a certain death.[184]

[Footnote 174: See Barbeyrac, Traité de la morale des Pères de l'Église, pp. 18, 122 sq.; Buonafede, Istoria critica e filosofica del suicidio, p. 135 sqq.; Lecky, op. cit. ii. 45 sq.]

[Footnote 175: Lactantius, Divines Institutiones, vi. ('De vero cultu') 17 (Migne, Patrologiæ cursus, vi. 697).]

[Footnote 176: Eusebius, Historia ecclesiastica, viii. 12 (Migne, op. cit. Ser. Graeca, xx. 769 sqq.), 14 (ibid. col. 785 sqq.). St. Ambrose, De virginibus, xiii. 7 (Migne, op. cit. xvi. 229 sqq.). St. Chrysostom, Homilia encomiastica in S. Martyrem Pelagiam (Migne, op. cit. Ser. Graeca, l. 579 sqq.).]

[Footnote 177: St. Jerome, Commentarii in Jonam, i. 12 (Migne, op. cit. xxv. 1129).]

[Footnote 178: St. Augustine, De Civitate Dei, i. 16 sqq.]

[Footnote 179: Gratian, Decretum, ii. 23. 5. 9. 3.]

[Footnote 180: Thomas Aquinas, Summa theologica, ii.-ii. 64. 5. 3.]

[Footnote 181: St. Chrysostom, In Epistolam ad Galatas commentarius, i. 4 (Migne, op. cit. Ser. Graeca, lxi. 618 sq.).]

[Footnote 182: Concilium Aurelianense II. A.D. 533, can. 15 (Labbe-Mansi, Sacrorum Conciliorum collectio, viii. 837). See also Concilium Autisiodorense, A.D. 578, can. 17 (Labbe-Mansi, ix. 913).]

[Footnote 183: Concilium Bracarense II. A.D. 563, cap. 16 (Labbe-Mansi, op. cit. ix. 779).]

[Footnote 184: Damhouder, Praxis rerum criminalium, lviii. 2 sq., p. 258. See Gratian, op. cit. ii. 33. 3. 3. 38. At the trial of the Marquise de Brinvilliers in 1676, the presiding judge said to the prisoner that "the greatest of all her crimes, horrible as they were, was, not the poisoning of her father and brothers, but her attempt to poison herself" (Ives, Classification of Crimes, p. 36).]

According to the Christian doctrine, as formulated by Thomas Aquinas, suicide is utterly unlawful for three reasons. First, everything naturally loves itself and preserves itself in being; suicide is against a natural inclination and contrary to the charity which a man ought to bear towards himself, and consequently a mortal sin. {253} Secondly,

by killing himself a person does an injury to the community of which he is a part. Thirdly, "life is a gift divinely bestowed on man, and subject to His power who 'killeth and maketh alive'; and therefore he who takes his own life sins against God, as he who kills another man's slave sins against the master to whom the slave belongs, and as he sins who usurps the office of judge on a point not referred to him; for to God alone belongs judgment of life and death."[185] The second of these arguments is borrowed from Aristotle, and is entirely foreign to the spirit of early Christianity. The notion of patriotism being a moral duty was habitually discouraged by it, and, as Mr. Lecky observes, "it was impossible to urge the civic argument against suicide without at the same time condemning the hermit life, which in the third century became the ideal of the Church."[186] But the other arguments are deeply rooted in some of the fundamental doctrines of Christianity--in the sacredness of human life, in the duty of absolute submission to God's will, and in the extreme importance attached to the moment of death. The earthly life is a preparation for eternity; sufferings which are sent by God are not to be evaded, but to be endured.[187] The man who deliberately takes away the life which was given him by the Creator displays the utmost disregard for the will and authority of his Master; and, worst of all, he does so in the very last minute of his life, when his doom is sealed for ever. His deed, as Thomas Aquinas says, is "the most dangerous thing of all, because no time is left to expiate it by repentance."[188] He who kills a fellow-creature does not in the same degree renounce the protection of God; he kills only the body, whereas the self-murderer kills both the body and the soul.[189] By denying the latter the right of Christian {254} burial the Church recognises that he has placed himself outside her pale.

[Footnote 185: Thomas Aquinas, op. cit. ii.-ii. 64. 5.]

[Footnote 186: Lecky, History of European Morals, ii. 44.]

[Footnote 187: Cf. St. Augustine, De Civitate Dei, i. 23.]

[Footnote 188: Thomas Aquinas, op. cit. ii.-ii. 64. 5. 3. Cf. St. Augustine, De Civitate Dei, i. 25.]

[Footnote 189: Damhouder, op. cit. lxxxviii. 1 sq., p. 258.]

The condemnation of the Church influenced the secular legislation. The provisions of the Councils were introduced into the law-books. In France Louis IX. enforced the penalty of confiscating the self-murderer's property,[190] and laws to the same effect were passed in other European countries.[191] Louis XIV. assimilated the crime of suicide to that of lèze majesté.[192] According to the law of Scotland, "self-murder is as highly criminal as the killing our neighbour."[193] In England suicide is still regarded by the law as murder committed by a man on himself;[194] and, unless declared insane, the self-murderer forfeited his property as late as the year 1870, when forfeitures for felony were abolished.[195] In Russia, to this day, the testamentary dispositions of a suicide are deemed void by the law.[196]

[Footnote 190: Les Établissements de Saint Louis, i. 92, vol. ii. 150.]

[Footnote 191: Bourquelot, op. cit. iv. 263. Morselli, op. cit. p. 196 sq.]

[Footnote 192: Louis XIV., 'Ordonnance criminelle,' A.D. 1670, xxii. 1, in Isambert, Decrusy, and Taillandier, Recueil général des anciennes lois françaises, xviii. 414.]

[Footnote 193: Erskine-Rankine, Principles of the Law of Scotland, p. 559.]

[Footnote 194: Stephen, History of the Criminal Law of England, iii. 104. For earlier times see Bracton, De Legibus et Consuetudinibus Angliæ, fol. 150, vol. ii. 504 sq.]

[Footnote 195: Stephen, op. cit. iii. 105.]

[Footnote 196: Foinitzki, in von Liszt, La législation pénale comparée, p. 548.]

The horror of suicide also found a vent in outrages committed on the dead body. Of a woman who drowned herself in Edinburgh in 1598, we are told that her body was "harled through the town backwards, and thereafter hanged on the gallows."[197] In France, as late as the middle of the eighteenth century, self-murderers were dragged upon a hurdle through the streets with the face turned to the ground; they were then hanged up with the head downwards, and finally thrown into the common sewer.[198] However, in most cases the treatment to which suicides bodies were subject was not originally meant as a punishment, but was intended to prevent their spirits {255} from causing mischief. All over Europe wandering tendencies have been ascribed to their ghosts.[199] In some countries the corpse of a suicide is supposed to make barren the earth with which it comes in contact,[200] or to produce hailstorms or tempests[201] or drought.[202] At Lochbroom, in the North-West of Scotland, the people believe that if the remains of a self-murderer be taken to any burying-ground which is within sight of the sea or of cultivated land, this would prove disastrous both to fishing and agriculture, or, in the words of the people, would cause "famine (or dearth) on sea and land"; hence the custom has been to inter suicides in out-of-the-way places among the lonely solitudes of the mountains.[203] The practice of burying them apart from other dead has been very wide-spread in Europe, and in many cases there are obvious indications that it arose from fear.[204] In the North-East of Scotland a suicide was buried outside a churchyard, close beneath the wall, and the grave was marked by a single large stone, or by a small cairn, to which the passing traveller was bound to cast a stone; and afterwards, when the suicide's body was allowed to rest in the churchyard, it was laid below the wall in such a position that no one could walk over the grave, as the people believed that if a woman enceinte stepped over such a {256} grave, her child would quit this earth by its own act.[205] In England persons against whom a coroner's jury had found a verdict of felo de se were buried at cross-roads, with a stake driven through the body so as to prevent their ghosts from walking.[206] For the same purpose the bodies of {257} suicides were in many cases burned.[207] And when removed from the house where the act had been committed, they were commonly carried out, not by the door, but by a window,[208] or through a perforation specially made for the occasion in the door,[209] or through a hole under the threshold,[210] in order that the ghost should not find its way back into the house, or perhaps with a view to keeping the entrance of the house free from dangerous infection.[211]

[Footnote 197: Ross, 'Superstitions as to burying Suicides in the Highlands,' in Celtic Magazine, xii. 354.]

[Footnote 198: Serpillon, Code Criminel, ii. 223. Cf. Louis XIV., 'Ordonnance criminelle,' A.D. 1670, xxii. 1, in Isambert, Decrusy, and Taillandier, op. cit. xviii. 414.]

[Footnote 199: Ross, in Celtic Magazine, xii. 352 (Highlanders of Scotland). Atkinson, Forty Years in a Moorland Parish, p. 217. Hyltén-Cavallius, Wärend och Wirdarne, i. 472 sq. (Swedes). Allardt, 'Nyländska folkseder och bruk,' in Nyland, iv. 114 (Swedish Finlanders). Wuttke, Der deutsche Volksaberglaube der Gegenwart, §756, p. 474 sq. Schiffer, 'Totenfetische bei den Polen,' in Am Ur-Quell, iii. 50 (Polanders), 52 (Lithuanians). Volkov, 'Der Selbstmörder in Lithauen,' ibid. v. 87. von Wlislocki, 'Tod und Totenfetische im Volkglauben der Siebenbürger Sachsen,' ibid. iv. 53. Lippert, Christenthum, Volksglaube und Volksbrauch, p. 391. Dyer, The Ghost World, pp. 53, 151. Gaidoz, 'Le suicide,' in Mélusine, iv. 12.]

[Footnote 200: Schiffer, in Am Ur-Quell, iii. 52 (Lithuanians).]

[Footnote 201: Ibid. pp. 50 (Polanders), 53 (Lithuanians). von Wlislocki, Volksglaube und religiöser Brauch der Magyaren, p. 61. Strausz, Die Bulgaren, p. 455. Prexl, 'Geburts- und Todtengebräuche der Rumänen in Siebenbürgen,' in Globus, lvii. 30.]

[Footnote 202: Strausz, op. cit. p. 455 (Bulgarians).]

[Footnote 203: Ross, in Celtic Magazine, xii. 350 sq.]

[Footnote 204: Gaidoz, in Mélusine, iv. 12. Frank, System einer vollständigen medicinischen Polizey, iv. 499. Moore, op. cit. i. 310 (Danes). Schiffer, in Am Ur-Quell, iii. 50 (Polanders), 53 (Lithuanians). Volkov, ibid. v. 87 (Lithuanians). Strausz, op. cit. p. 455 (Bulgarians).]

[Footnote 205: Gregor, Folk-Lore of the North-East of Scotland, p. 213 sq.]

[Footnote 206: Stephen, History of the Criminal Law of England, iii. 105. Atkinson, op. cit. p. 217. This custom was formally abolished in 1823 by 4 Geo. IV. c. 52 (Stephen, op. cit. iii. 105). Why were suicides buried at cross-roads? Possibly because the cross was supposed to disperse the evil energy ascribed to their bodies. Both in Europe and India the cross-road has, since ancient times, been a favourite place to divest oneself of diseases or other influences (Wuttke, Der deutsche Volksaberglaube der Gegenwart, §§ 483, 484, 492, 508, 514, 522, 545, pp. 325, 326, 331, 341, 345, 349, 361. Hymns of the Atharva-Veda, pp. 272, 473, 519. Oldenberg, Die Religion des Veda, pp. 267, 268 n. 1). In the sacred books of India it is said that "a student who has broken the vow of chastity shall offer an ass to Nirriti on a cross-road" (Gautama, xxiii. 17), and that a person who has previously undergone certain other purification ceremonies "is freed from all crimes, even mortal sins, after looking on a cross-road at a pot filled with water, and reciting the text, 'Simhe me manyuh'" (Baudhâyana, iv. 7. 7). In the hills of Northern India and as far as Madras, an approved charm for getting rid of a disease of demoniacal origin is to plant a stake where four roads meet, and to bury grains underneath, which crows disinter and eat (North Indian Notes and Queries, i. § 652, p. 100; Madden, 'The Turaee and Outer Mountains of Kumaoon,' in Jour. Asiatic Soc. Bengal, xvii. pt. i. 583; Crooke, Popular Religion and Folk-Lore of Northern India, i. 290). In the Province of Bih[=a]r, "in cases of sickness various articles are exposed in a saucer at a cross-road" (Grierson, Bih[=a]r Peasant Life, p. 407). According to a Bulgarian tale, Lot was enjoined by the priest to plant on a cross-road three charred twigs in order to free himself from his sin (Strausz, op. cit. p. 115). The Gypsies of Servia believe that a thief may divert from himself all suspicions by painting with blood a cross and a dot above it on the spot where he committed the theft (von Wlislocki, 'Menschenblut im Glauben der Zigeuner,' in Am Ur-Quell, iii. 64 sq.). In Morocco the cross is used as a charm against the evil eye, and the chief reason for this is, I believe, that it is regarded as a conductor of the baneful energy emanating from the eye, dispersing it in all the quarters of the wind and thus preventing it from injuring the person or object looked at (Westermarck, 'Magic Origin of Moorish Designs,' in Jour. Anthr. Inst. xxxiv. 214). In Japan, if a criminal belonging to one of the lower classes commits suicide, his body is crucified (Globus, xviii. 197). When, under Tarquinius Priscus (or Tarquinius Superbus), many Romans preferred voluntary death to compulsory labour in the cloaca, or artificial canals by which the sewage was carried into the Tiber, the king ordered that their bodies should be crucified and abandoned to birds and beasts of prey (Pliny, Historia naturalis, xxxvi. 24; Servius, Commentarii in Virgilii Æneidos, xii. 603). The reason for thus crucifying the bodies of self-murderers is not stated; but it is interesting to notice, in this connection, the idea expressed by some Christian writers that the cross of the Saviour symbolised the distribution of his benign influence in all directions (d'Ancona, Origini del teatro italiano, i. 646; Tauler, quoted by Peltzer, Deutsche Mystik

und deutsche Kunst, p. 191. I am indebted to my friend Dr. Yrjö Hirn for drawing my attention to this idea). With reference to persons who had killed a father, mother, brother, or child, Plato says in his 'Laws' (ix. 873):--"If he be convicted, the servants of the judges and the magistrates shall slay him at an appointed place without the city where three ways meet, and there expose his body naked, and each of the magistrates on behalf of the whole city shall take a stone and cast it upon the head of the dead man, and so deliver the city from pollution; after that, they shall bear him to the borders of the land, and cast him forth unburied, according to law." The duels by which the ancient Swedes were legally compelled to repair their wounded honour were to be fought on a place where three roads met (Leffler, Om den fornsvenska hednalagen, p. 40 sq.; supra, i. 502). In various countries it has been the custom to bury the dead at cross-roads (Grimm, 'Ueber das Verbrennen der Leichen,' in Kleinere Schriften, ii. 288 (Bohemians). Lippert, Die Religionen der europäischen Culturvölker, p. 310 (Slavonians); Winternitz, Das altindische Hochzeitsrituell, p. 68; Oldenberg, Die Religion des Veda, pp. 267, 268, 562 n. 3)--a custom which may have given rise to the idea that cross-roads are haunted (Winternitz, op. cit. p. 68; Oldenberg, op. cit. p. 267 sq.; cf. Wuttke, op. cit. § 108, p. 89 sq.).]

[Footnote 207: Bourquelot, loc. cit. iv. 263. Hyltén-Cavallius, op. cit. i. 459; Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 331 (Swedes), von Wlislocki, 'Tod und Totenfetische im Volkglauben der Siebenbürger Sachsen,' in Am Ur-Quell, iv. 53.]

[Footnote 208: Wuttke, op. cit. § 756, p. 474; Frank, op. cit. iv. 498 sq.; Lippert, Der Seelencult, p. 11 (people in various parts of Germany). Schiffer, in Am Ur-Quell, iii. 50 (Polanders).]

[Footnote 209: Bourquelot, loc. cit. iv. 264 (at Abbeville).]

[Footnote 210: Grimm, Deutsche Rechtsalterthümer, p. 726 sqq. Hyltén-Cavallius, op. cit. i. 472 sq. (Swedes).]

[Footnote 211: See infra, on Regard for the Dead. Contact with a self-murderer's body is considered polluting (Prexl, 'Geburts- und Todtengebräuche der Rumänen in Siebenbürgen,' in Globus, lvii. 30; Hyltén-Cavallius, Wärend och Wirdarne, i. 459, 460, and ii. 412). We are told that in the eighteenth century people did not dare to cut down a person who had hanged himself, though he was found still alive (Frank, op. cit. iv. 499). Among the Bannavs of Cambodia **everybody who takes part in the burial of a self-murderer is obliged to undergo a certain ceremony of purification, whereas no such ceremony is prescribed in the case of other burials (Mittheil. d. Geogr. Ges. zu Jena, iii. 9).]

However, side by side with the extreme seventy with which suicide is viewed by the Christian Church, we find, even in the Middle Ages, instances of more humane feelings towards its perpetrator. In mediæval tales and ballads true lovers die together and are buried in the same grave; two roses spring through the turf and twine lovingly together.[212] In the later Middle Ages, says M. {258} Bourquelot, "on voit qu'à mesure qu'on avance, l'antagonisme devient plus prononcé entre l'esprit religieux et les idées mondaines relativement à la mort volontaire. Le clergé continue à suivre la route qui a été tracée par Saint Augustin et à déclarer le suicide criminel et impie; mais la tristesse et le désespoir n'entendent pas sa voix, ne se souviennent pas de ses prescriptions."[213] The revival of classical learning, accompanied as it was by admiration for antiquity and a desire to imitate its great men, not only increased the number of suicides, but influenced popular sentiments on the subject.[214] Even the Catholic casuists, and later on philosophers of the school of Grotius and others, began to distinguish certain cases

of legitimate suicide, such as that committed to avoid dishonour or probable sin, or that of a condemned person saving himself from torture by anticipating an inevitable death, or that of a man offering himself to death for the sake of his friend.[215] Sir Thomas More, in his Utopia, permits a person who is suffering from an incurable and painful disease to take his own life, provided that he does so with the agreement of the priests and magistrates; nay, he even maintains that these should exhort such a man to put an end to a life which is only a burden to himself and others.[216] Donne, the well-known Dean of St. Paul's, wrote in his younger days a book in defence of suicide, "a Declaration," as he called it, "of that paradoxe, or thesis, that Self-homicide is not so naturally sin, that it may never be otherwise." He there pointed out the fact--which ought never to be overlooked by those who derive their arguments from "nature"--that some things may be natural to the species, and yet not natural to every individual member of it.[217] In one of his essays Montaigne pictures classical cases of suicide with colours of unmistakable sympathy. "La plus volontaire mort," he {259} observes, "c'est la plus belle. La vie despend de la volonté d'aultruy; la mort, de la nostre."[218] The rationalism of the eighteenth century led to numerous attacks both upon the views of the Church and upon the laws of the State concerning suicide. Montesquieu advocated its legitimacy:--"La société est fondée sur un avantage mutuel; mais lorsqu'elle me devient onéreuse, qui m'empêche d'y renoncer? La vie m'a été donnée comme une faveur; je puis donc la rendre lorsqu'elle ne l'est plus: la cause cesse, l'effet doit donc cesser aussi."[219] Voltaire strongly opposed the cruel laws which subjected a suicide's body to outrage and deprived his children of their heritage.[220] If his act is a wrong against society, what is to be said of the voluntary homicides committed in war, which are permitted by the laws of all countries? Are they not much more harmful to the human race than self-murder, which nature prevents from ever being practised by any large number of men?[221] Beccaria pointed out that the State is more wronged by the emigrant than by the suicide, since the former takes his property with him, whereas the latter leaves his behind.[222] According to Holbach, he who kills himself is guilty of no outrage on nature or its author; on the contrary, he follows an indication given by nature when he parts from his sufferings through the only door which has been left open. Nor has his country or his family any right to complain of a member whom it has no means of rendering happy, and from whom it consequently has nothing more to hope.[223] Others eulogised suicide when committed for a noble end,[224] or recommended it on certain occasions. "Suppose," says Hume, "that it is no longer in my {260} power to promote the interest of society; suppose that I am a burthen to it; suppose that my life hinders some person from being much more useful to society. In such cases my resignation of life must not only be innocent but laudable."[225] Hume also attacks the doctrine that suicide is a transgression of our duty to God. "If it would be no crime in me to divert the Nile from its course, were I able to do so, how could it be a crime to turn a few ounces of blood from their natural channel? Were the disposal of human life so much reserved as the peculiar province of the Almighty that it were an encroachment on his right for men to dispose of their own lives, would it not be equally wrong of them to lengthen out their lives beyond the period which by the general laws of nature he had assigned to it? My death, however voluntary, does not happen without the consent of Providence; when I fall upon my own sword, I receive my death equally from the hands of the Deity as if it had proceeded from a lion, a precipice, or a fever."[226]

[Footnote 212: See Bourquelot, loc. cit. iv. 248; Gummere, Germanic Origins, p. 322.]

[Footnote 213: Bourquelot, loc. cit. iv. 253.]

[Footnote 214: Ibid. iv. 464. Morselli, op. cit. p. 35.]

[Footnote 215: Buonafede, op. cit. p. 148 sqq. Lecky, op. cit. ii. 55.]

[Footnote 216: More, Utopia, p. 122.]

[Footnote 217: Donne, Biathanatos, p. 45. Donne's book was first committed to the press in 1644, by his son.]

[Footnote 218: Montaigne, Essais, ii. 3 ([OE]uvres, p. 187).]

[Footnote 219: Montesquieu, Lettres Persanes, 76 ([OE]uvres, p. 53).]

[Footnote 220: Voltaire, Commentaire sur le livre Des délits et des peines, 19 ([OE]uvres complètes, v. 416). Idem, Prix de la justice et de l'humanité, 5 (ibid. v. 424).]

[Footnote 221: Idem, Note to Olympie acte v. scène 7 ([OE]uvres complètes, i. 826, n. b). Idem, Dictionnaire Philosophique, art. Suicide (ibid. viii. 236).]

[Footnote 222: Beccaria, Dei delitti e delle pene, § 35 (Opere, i. 101).]

[Footnote 223: Holbach, Système de la nature, i. 369.]

[Footnote 224: In the early part of the nineteenth century this was done by Fries, Neue oder anthropologische Kritik der Vernunft, iii. 197.]

[Footnote 225: Hume, 'Suicide,'in Philosophical Works, iv. 413.]

[Footnote 226: Ibid. p. 407 sqq.]

Thus the main arguments against suicide which had been set forth by pagan philosophers and Christian theologians were scrutinised and found unsatisfactory or at least insufficient to justify that severe and wholesale censure which was passed on it by the Church and the State. But a doctrine which has for ages been inculcated by the leading authorities on morals is not easily overthrown; and when the old arguments are found fault with new ones are invented. Kant maintained that a person who disposes of his own life degrades the humanity subsisting in his person and entrusted to him to the end that he might uphold it.[227] Fichte argued that it is our duty to preserve our life and to will to live, not for the sake of life, but because our life is the exclusive condition of the realisation of the moral law through us.[228] According to Hegel it is a contradiction to speak of a person's right over his life, since this would {261} imply a right of a person over himself, and no one can stand above and execute himself.[229] Paley, again, feared that if religion and morality allowed us to kill ourselves in any case, mankind would have to live in continual alarm for the fate of their friends and dearest relations[230]--just as if there were a very strong temptation for men to shorten their lives. But common sense is neither a metaphysician nor a sophist. When not restrained by the yoke of a narrow theology, it is inclined in most cases to regard the self-murderer as a proper object of compassion rather than of condemnation, and in some instances to admire him as a hero. The legislation on the subject therefore changed as soon as the religious influence was weakened. The laws against suicide were abolished in France by the Revolution,[231] and afterwards in various other continental countries;[232] whilst in England it became the custom of jurymen to presume absence of a sound mind in the self-murderer--perjury, as Bentham said, being the penance which prevented an outrage on humanity.[233] These measures undoubtedly indicate not only a greater regard for the innocent relatives of the self-murderer, but also a change in the moral ideas concerning the act itself**.

[Footnote 227: Kant, Metaphysische Anfangungsgründe der Tugendlehre, p. 73.]

[Footnote 228: Fichte, Das System der Sittenlehre, p. 339 sqq. See also ibid. pp. 360, 391.]

[Footnote 229: Hegel, Grundlinien der Philosophie des Rechts, § 70, Zusatz, p. 72.]

[Footnote 230: Paley, Principles of Moral and Political Philosophy, iv. 3 (Complete Works, ii. 230).]

[Footnote 231: Legoyt, op. cit. p. 109.]

[Footnote 232: Bourquelot, loc. cit. iv. 475.]

[Footnote 233: Bentham, Principles of Penal Law, ii. 4. 4 (Works, i. 479 sq.).]

As appears from this survey of facts, the moral valuation of suicide varies to an extreme degree. It depends partly on the circumstances in which the act is committed, partly on the point of view from which it is regarded and the notions held about the future life. When a person sacrifices his life for the benefit of a fellow-man or for the sake of his country or to gratify the supposed desire of a god, his deed may be an object of the highest praise. It may, further, call forth approval or admiration as indicating a keen sense of honour or as a test of courage; in Japan, says Professor Chamberlain, "the courage to take {262} life--be it one's own or that of others--ranks extraordinarily high in public esteem."[234] In other cases suicide is regarded with indifference as an act which concerns the agent alone. But for various reasons it is also apt to give rise to moral disapproval. The injury which the person committing it inflicts upon himself may excite sympathetic resentment towards him; he may be looked upon as injurer and injured at the same time. Plato asks in his 'Laws':--"What ought he to suffer who murders his nearest and so-called dearest friend? I mean, he who kills himself."[235] And the same point of view is conspicuous in St. Augustine's argument, that the more innocent the self-murderer was before he committed his deed the greater is his guilt in taking his life[236]--an argument of particular force in connection with a theology which condemns suicides to everlasting torments and which regards it as a man's first duty to save his soul. The condemnation of killing others may by an association of ideas lead to a condemnation of killing one's self,[237] as is suggested by the Christian doctrine that suicide is prohibited in the commandment, "Thou shalt not kill." The horror which the act inspires, the fear of the malignant ghost, and the defiling effect attributed to the shedding of blood, also tend to make suicide an object of moral reprobation or to increase the disapproval of it;[238] and the same is the case with the exceptional treatment to which the self-murderer's body is subject and his supposed annihilation or miserable existence after death, which easily come to be looked upon in the light of a punishment.[239] Suicide is, moreover, blamed as an act of moral cowardice,[240] and, especially, as an injury inflicted upon other persons, to whom the agent {263} owed duties from which he withdrew by shortening his life.[241] Even among savages we meet with the notion that a person is not entitled to treat himself just as he pleases. Among the Goajiro Indians of Colombia, if anybody accidentally cuts himself, say with his own knife, or breaks a limb, or otherwise does himself an injury, his family on the mother's side immediately demands blood-money, since, being of their blood, he is not allowed to spill it without paying for it; the father's relatives demand tear-money, and friends present claim compensation to repay their sorrow at seeing a friend in pain.[242] That a similar view is sometimes taken by savages with regard to suicide appears from a few statements quoted above.[243] The opinion that suicide is an offence against society at large is particularly likely to prevail in communities where the interests of the individual are considered entirely subordinate to the interests of the State. The religious argument, again, that suicide is a sin against the Creator, an illegitimate interference with his work and decrees, comes to prominence in proportion as the moral consciousness is influenced by theological considerations. In Europe this influence is certainly becoming less and less. And considering that the religious view of suicide has been the chief cause of the extreme severity with which it has been treated in Christian countries, I am unable to subscribe to the opinion expressed by Professor Durkheim, that the more lenient judgment passed on it by the public conscience of the present time is merely accidental and transient. The argument adduced in support of

this opinion leaves out of account the real causes to which the valuation of suicide is due: it is said that the moral evolution is not likely to be retrogressive in this particular point after it has followed {264} a certain course for centuries.[244] It is true that moral progress has a tendency to increase our sense of duty towards our fellow-men. But at the same time it also makes us more considerate as regards the motives of conduct; and--not to speak of suicides committed for the benefit of others--the despair of the self-murderer will largely serve as a palliation of the wrong which he may possibly inflict upon his neighbour.

[Footnote 234: Chamberlain, Things Japanese, p. 221.]

[Footnote 235: Plato, Leges, ix. 873.]

[Footnote 236: St. Augustine, De Civitate Dei, i. 17.]

[Footnote 237: See Simmel, Einleitung in die Moralwissenschaft, i. 187.]

[Footnote 238: Cf. supra, i. 377.]

[Footnote 239: See supra, ii. 237 sqq.; Josephus, De bello Judaico, iii. 8. 5; Plato, Leges, ix. 873; Aristotle, Ethica Nicomachea, v. 11. 2 sq.]

[Footnote 240: Hegel, Grundlinien der Philosophie des Rechts, § 70, Zusatz, p. 72; Fowler, Progressive Morality, p. 151; &c.]

[Footnote 241: English lawyers have represented suicide as an offence both against God and against the sovereign, who "has an interest in the preservation of all his subjects" (Plowden, Commentaries, i. 261; Blackstone, Commentaries on the Laws of England, iv. 190. Cf. Ives, op. cit. p. 40 sq.).]

[Footnote 242: Simons, 'Exploration of the Goajira Peninsula,' in Proceed. Roy. Geo. Soc. N. Ser. vii. 790.]

[Footnote 243: Supra, ii. 240 sq.]

[Footnote 244: Durkheim, Le suicide, p. 377.]

Chapter XXXVI — Self-regarding Duties and Virtues--industry--rest

ACCORDING to current ideas men owe to themselves a variety of duties similar in kind to those which they owe to their fellow-creatures. They are not only forbidden to take their own lives, but are also in some measure considered to be under an obligation to support their existence, to take care of their bodies, to preserve a certain amount of personal freedom, not to waste their property, to exhibit self-respect, and, in general, to promote their own happiness. And closely related to these self-regarding duties there are self-regarding virtues, such as diligence, thrift, temperance. In all these cases, however, the moral judgment is greatly influenced by the question whether the act, forbearance, or omission, which increases the person's own welfare, conflicts or not with the interests of other people. If it does conflict, opinions vary as to the degree of selfishness which is recognised as allowable. But judgments containing moral praise or the inculcation of duty are most commonly passed upon conduct which involves some degree of self-sacrifice, not on such as involves self-indulgence.

Moreover, the duties which we owe to ourselves are generally much less emphasised than those which we owe to others. "Nature," says Butler, "has not given us so sensible a disapprobation of imprudence and folly, either in ourselves or others, as of falsehood, injustice, and {266} cruelty."[1] Nor does a prudential virtue receive the same praise as one springing from a desire to promote the happiness of a fellow-man. Many moralists

even maintain that, properly speaking, there are no self-regarding duties and virtues at all; that useful action which is useful to ourselves alone is not matter for moral notice; that in every case duties towards one's self may be reduced into duties towards others; that intemperance and extravagant luxury, for instance, are blamable only because they tend to the public detriment, and that prudence is a virtue only in so far as it is employed in promoting public interest.[2] But this opinion is hardly in agreement with the ordinary moral consciousness.

[Footnote 1: Butler, 'Dissertation on the Nature of Virtue,' in Analogy of Religion, &c. p. 339.]

[Footnote 2: Hutcheson, Inquiry into the Original of our Ideas of Beauty and Virtue, pp. 133, 201. Grote, Treatise on the Moral Ideals, p. 77 sqq. Clifford, Lectures and Essays, pp. 298, 335. von Jhering, Der Zweck im Recht, ii. 225.]

It is undoubtedly true that no mode of conduct is exclusively self-regarding. No man is an entirely isolated being, hence anything which immediately affects a person's own welfare affects at the same time, in some degree, the welfare of other individuals. It is also true that the moral ideas concerning such conduct as is called self-regarding are more or less influenced by considerations as to its bearing upon others. But this is certainly not the only factor which determines the judgment passed on it. In the education of children various modes of self-regarding conduct are strenuously insisted upon by parents and teachers. What they censure or punish is regarded as wrong, what they praise or reward is regarded as good; for, as we have noticed above, men have a tendency to sympathise with the retributive emotions of persons for whom they feel regard.[3] Moreover, as in the case of suicide,[4] so also in other instances of self-inflicted harm, the injury committed may excite sympathetic resentment towards the agent, although the victim of it is his own self. Disinterested likes or dislikes often give rise to moral {267} approval or disapproval of conduct which is essentially self-regarding.[5] It has also been argued that no man has a right to trifle with his own well-being even where other persons interests are not visibly affected by it, for the reason that he is not entitled wantonly to waste "what is not at his unconditional disposal."[6] And in various other ways--as will be seen directly--religious, as well as magical, ideas have influenced moral opinions relating to self-regarding conduct. But at the same time it is not difficult to see why self-regarding duties and virtues only occupy a subordinate place in our moral consciousness. The influence they exercise upon other persons' welfare is generally too remote to attract much attention. In education there is no need to emphasise any other self-regarding duties and virtues but those which, for the sake of the individual's general welfare, require some sacrifice of his immediate comfort or happiness. The compassion which we are apt to feel for the victim of an injury is naturally lessened by the fact that it is self-inflicted. And, on the other hand, indignation against the offender is disarmed by pity, imprudence commonly carrying its own punishment along with it.[7]

[Footnote 3: Supra, i. 114 sq.]

[Footnote 4: Supra, ii. 262.]

[Footnote 5: Cf. supra, i. 116 sq.]

[Footnote 6: Martineau, Types of Ethical Theory, ii. 126.]

[Footnote 7: Cf. Butler, op. cit. p. 339 sq.; Dugald Stewart, Philosophy of the Active and Moral Powers of Man, ii. 346 sq.]

Being so little noticed by custom and public opinion, and still less by law, most self-regarding duties hardly admit of a detailed treatment. In a general way it may be said that progress in intellectual culture has, in some respects, been favourable to their

evolution; Darwin even maintains that, with a few exceptions, self-regarding virtues are not esteemed by savages.[8] The less developed the intellect, the less apt it is to recognise the remoter consequences of men's behaviour; hence more reflection than that exercised by the savage may be needed to see that modes of conduct which immediately concern a person's own welfare at the same time affect the well-being {268} of his neighbours or the whole community of which he is a member. So also, owing to his want of foresight, the savage would often fail to notice how important it may be to subject one's self to some temporary deprivation or discomfort in order to attain greater happiness in the future. We have noticed above that many savages hardly ever correct their children,[9] and this means that one of the chief sources from which the notions of self-regarding duties spring is almost absent among them. But on the other hand it must also be remembered that disinterested antipathies, another cause of such notions, exercise more influence upon the unreflecting than upon the reflecting moral consciousness, and that many magical and religious ideas which at the lower stages of civilisation give rise to duties of a self-regarding character are no longer held by people more advanced in culture.

[Footnote 8: Darwin, Descent of Man, p. 118 sq.]

[Footnote 9: Supra, i. 513 sq.]

These general statements referring to the nature and origin of self-regarding duties and virtues I shall now illustrate by a short survey of moral ideas concerning some representative modes of self-regarding conduct:--industry and rest; temperance, fasting, and abstinence from certain kinds of food and drink; cleanliness and uncleanliness; and ascetic practices generally.

* * * * *

Man is naturally inclined to idleness, not because he is averse from muscular activity as such, but because he dislikes the monotony of regular labour and the mental exertion it implies.[10] In general he is induced to work only by some special motive which makes him think the trouble worth his while. Among savages, who have little care for the morrow,[11] who have few comforts of life to provide for, and whose property is often of such a kind as to prevent any great accumulation of it, almost the sole inducement to industry is either necessity or compulsion. Men are lazy or industrious according as the necessaries of life are easy {269} or difficult to procure, and they prefer being idle if they can compel other persons to work for them as their servants or slaves.

[Footnote 10: Cf. Ferrero, 'Les formes primitives du travail,' in Revue scientifique, ser. iv. vol. v. 331 sqq.]

[Footnote 11: Buecher, Die Entstehung der Volkswirtschaft, p. 21 sqq.]

Australian natives "can exert themselves vigorously when hunting or fishing or fighting or dancing, or at any time when there is a prospect of an immediate reward; but prolonged labour with the object of securing ultimate gain is distasteful to them."[12] With reference to the Polynesians Mr. Hale observes that in those islands which are situated nearest the equator, where the heat with little or no aid from human labour calls into existence fruits serving to support human life, the inhabitants are an indolent and listless race; whilst "a severer clime and ruder soil are favourable to industry, foresight, and a hardy temperament. These opposite effects are manifested in the Samoans, Nukahivans, and Tahitians, on the one side, and the Sandwich Islanders and New Zealanders on the other."[13] Mr. Yate likewise contrasts the industry of the Maoris with the proverbial idleness of the Tonga Islanders: the former "are obliged to work, if they would eat," whereas "in the luxurious climate of the Friendly Islands, there is scarcely any need of labour, to obtain the necessaries, and even many of the luxuries, of

life."[14] The Malays are described as fond of a life of slothful ease, because "persevering toil is unnecessary, or would bring them no additional enjoyments."[15] The natives of Sumatra, says Marsden, "are careless and improvident of the future, because their wants are few; for though poor {270} they are not necessitous, nature supplying, with extraordinary facility, whatever she has made requisite for their existence."[16] The Toda of the Neilgherry Hills will not "work one iota more than circumstances compel him to do";[17] and indolence seems to be a characteristic of most peoples of India,[18] though there are exceptions to the rule.[19] Burckhardt observes that it is not the southern sun, as Montesquieu imagined, but the luxuriance of the southern soil and the abundance of provisions that relax the exertions of the inhabitants and cause apathy:--"By the fertility of Egypt, Mesopotamia, and India, which yield their produce almost spontaneously, the people are lulled into indolence; while in neighbouring countries, of a temperature equally warm, as among the mountains of Yemen and Syria, where hard labour is necessary to ensure a good harvest, we find a race as superior in industry to the former as the inhabitants of Northern Europe are to those of Spain or Italy."[20] Indolence is a common,[21] though not universal,[22] trait of the African character. Of the Negroes on the Gold Coast Bosman says that "nothing {271} but the utmost necessity can force them to labour."[23] The Waganda are represented as excessively indolent, in consequence of the ease with which they can obtain all the necessaries of life.[24] Of the Namaquas we are told that "they may be seen basking in the sun for days together, in listless inactivity, frequently almost perishing from thirst or hunger, when with very little exertion they may have it in their power to satisfy the cravings of nature. If urged to work, they have been heard to say: 'Why should we resemble the worms of the ground?'"[25] Most of the American Indians are said to have a slothful disposition, because they can procure a livelihood with but little labour.[26] But the case is different with the Greenlanders and other Eskimo, who have to struggle hard for their existence.[27]

[Footnote 12: Brough Smyth, Aborigines of Victoria, i. 29 sq. See also ibid. ii. 248; Collins, English Colony in New South Wales, i. 601; Fison and Howitt, Kamilaroi and Kurnai, p. 259 sq.]

[Footnote 13: Hale, U.S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 17. See also Williams, Missionary Enterprises in the South Sea Islands, p. 534 (Samoans); Ellis, Polynesian Researches, i. 130 sq. (Tahitians); Brenchley, Cruise of H.M.S. Curaçoa among the South Sea Islands, p. 58 (natives of Tutuila); Melville, Typee, p. 287 (some Marquesas Islanders); Anderson, Notes of Travel in Fiji and New Caledonia, p. 236 (New Caledonians); Penny, Ten Years in Melanesia, p. 74 (Solomon Islanders).]

[Footnote 14: Yate, Account of New Zealand, p. 105 sq.]

[Footnote 15: McNair, Perak and the Malays, p. 201. Bock, Head-Hunters of Borneo, p. 275. Raffles, History of Java, i. 251. St. John, Life in the Forests of the Far East, ii. 323.]

[Footnote 16: Marsden, History of Sumatra, p. 209. See also Glimpses of the Eastern Archipelago, pp. 76, 87 (Bataks).]

[Footnote 17: Marshall, A Phrenologist amongst the Todas, p. 88. See also ibid. p. 86; Shortt, 'Hill Tribes of the Neilgherries,' in Trans. Ethn. Soc. N.S. vii. 241; Mantegazza, 'Studii sull' etnologia dell' India,' in Archivio per l'antropologia e la etnologia, xiii. 406.]

[Footnote 18: Cooper, Mishmee Hills, p. 100 (Assamese). Tickell, 'Memoir on the Hodésum,' in Jour. Asiatic Soc. Bengal, ix. 808 (Hos). Dalton, Ethnology of Bengal, pp. 57 (Jyntias and Kasias), 101 (Lepchas). Burton, Sindh, p. 284. Moorcroft and Trebeck, Travels in the Himalayan Provinces of Hindustan, i. 321 (Ladakhis). Caldwell, Tinnevelly Shanars, p. 58.]

[Footnote 19: Man, Sonthalia, p. 19. Hodgson, Miscellaneous Essays, i. 152 (Bódo and Dhimáls). Macpherson, Memorials of Service in India, p. 81 (Kandhs).]

[Footnote 20: Burckhardt, Arabic Proverbs, p. 219.]

[Footnote 21: Beltrame, Il Sénnaar, i. 166. Tuckey, Expedition to Explore the River Zaire, p. 369. Johnston, The River Congo, p. 402 (Bakongo). Casati, Ten Years in Equatoria, i. 85 (Abaka Negroes). Wilson and Felkin, Uganda, ii. 310 (Gowane people). Burton, Zanzibar, ii. 96 (Wanika). Bonfanti, 'L'incivilimento dei negri nell' Africa intertropicale,' in Archivio per l'antropologia e la etnologia, xv. 133 (Bantu). Andersson, Lake Ngami, p. 231 (Herero). Magyar, Reisen in Süd-Afrika, p. 290 (Kimbunda). Kropf, Das Volk der Xosa-Kaffern, p. 89. Tyler, Forty Years among the Zulus, p. 194. Ellis, History of Madagascar, i. 140. Shaw, 'Betsileo Country and People,' in Antananarivo Annual, iii. 81.]

[Footnote 22: Baker, Ismailïa, p. 56 (Shilluk). Baumann, Usambara, p. 244 (Wapare). Bosman, Description of the Coast of Guinea, p. 318 (Negroes of Fida). Andersson, Notes on Travel in South Africa, p. 235 (Ovambo). See also infra, p. 272.]

[Footnote 23: Bosman, op. cit. p. 101.]

[Footnote 24: Wilson and Felkin, op. cit. i. 225.]

[Footnote 25: Andersson, Lake Ngami, p. 335. See also Kolben, Present State of the Cape of Good-Hope, i. 46, 324; Barrow, Travels into the Interior of Southern Africa, i. 152; Fritsch, Die Eingeborenen Süd-Afrika's, p. 324 (Hottentots).]

[Footnote 26: Bridges, 'Manners and Customs of the Firelanders,' in A Voice for South America, xiii. 203 (Fuegians). Dobrizhoffer, Account of the Abipones, ii. 151; but he praises the Abiponian women for their unwearied industry (ibid. ii. 151 sq.). Brett, Indian Tribes of Guiana, p. 343; Kirke, Twenty-five Years in British Guiana, p. 150. Domenech, Seven Years' Residence in the Great Deserts of North America, ii. 190. Burton, City of the Saints, p. 126 (Sioux). Harmon, Voyages and Travels in the Interior of North America, p. 285 (Tacullies). Meares, Voyages to the North-West Coast of America, p. 265 (Nootkas).]

[Footnote 27: Cranz, History of Greenland, i. 126. Armstrong, Narrative of the Discovery of the North-West Passage, p. 196 (Western Eskimo).]

We have seen that savages consider it a duty for a married man to support his family, [28] and this in most cases implies that he is under an obligation to do a certain amount of work. We have also seen that the various occupations of life are divided between the sexes according to rules fixed by custom,[29] and this means that absolute idleness is not generally tolerated in either men or women, though the drudgeries of life are often imposed upon the latter. Of some uncivilised peoples we are directly told that they enjoin work as a duty or regard industry as a virtue. The Greenlanders esteem addiction to labour as the chief of virtues and believe that the industrious man {272} will have a very happy existence after death.[30] The Atkha Aleuts prohibited laziness.[31] Mr. Batchelor relates an Ainu fable which encourages diligence and discourages idleness in young people.[32] The Karens of Burma have a traditional precept which runs, "Be not idle, but labour diligently, that you may not become slaves."[33] The Maoris say, "Let industry be rewarded, lest idleness gets the advantage."[34] The Malagasy likewise inculcate industry in many of their proverbs.[35] The Basutos have a saying that "perseverance always triumphs."[36] Among the Bachapins, a Bechuana tribe conspicuous for its activity, "a man's merit is estimated principally by his industry, and the words mún[]o]n[]a] usináach[]a] (an industrious man) are an expression of high approbation and praise; while he who is seldom seen to hunt, to prepare skins for clothing, or to sew koboes, is accounted a worthless and disgraceful member of society."[37] Among the Beni M'zab in the Sahara--an industrious people inhabiting a sterile country--boys

are already at the age of six years compelled by law to begin to work, either in driving a camel or ass, or in drawing water for the gardens.[38] We may expect to find industry especially insisted upon by uncivilised peoples who are habitually addicted to it, partly because it is a necessity among them, partly owing to the influence of habit.

[Footnote 28: Supra, i. 526 sqq.]

[Footnote 29: Supra, i. 634 sqq.]

[Footnote 30: Cranz, op. cit. i. 186.]

[Footnote 31: Yakof, quoted by Petroff, Report on Alaska, p. 158.]

[Footnote 32: Batchelor, Ainu of Japan, p. 111.]

[Footnote 33: Smeaton, Loyal Karens of Burma, p. 255.]

[Footnote 34: Taylor, Te Ika a Maui, p. 293. See also Johnston, Maoria, p. 43.]

[Footnote 35: Clemes, 'Malagasy Proverbs,' in Antananarivo Annual, iv. 29.]

[Footnote 36: Casalis, Basutos, p. 310.]

[Footnote 37: Burchell, Travels in the Interior of Southern Africa, ii. 557.]

[Footnote 38: Tristram, The Great Sahara, p. 207 sq.]

But instead of being regarded as a duty, industrial activity is not infrequently looked down upon as disreputable for a free man. This is especially the case among warlike nations, nomadic tribes, and peoples who have many slaves. In Uganda, for instance, the prevalence of slavery "causes all manual labour to be looked upon as derogatory to the dignity of a free man."[39] The {273} Masai[40] and Matabele[41] consider that the only occupation which becomes a man is warfare. The Arabs of the desert hold labour humiliating to anybody but a slave.[42] Speaking of the Turkomans, Vámbéry observes that "in his domestic circle, the nomad presents us a picture of the most absolute indolence. In his eyes it is the greatest shame for a man to apply his hand to any domestic occupation."[43] The Chippewas "have ever looked upon agricultural and mechanical labours as degrading," and "have regarded the use of the bow and arrow, the war-club and spear, as the noblest employments of man."[44] Among the Iroquois "the warrior despised the toil of husbandry, and held all labour beneath him."[45] Though an industrious race, the Maoris considered it more honourable, as well as more desirable, to acquire property by war and plunder than by labour.[46] Among the Line Islanders it is undignified for a landholder to do work of any kind, except to make weapons, hence he employs persons of the lower class to work for him.[47] In Nukahiva the people of distinction "suffer the nails on the fingers to grow very long, that it may be evident they are not accustomed to hard labour."[48] This contempt for industrial activity is easy to explain. A man who earns his livelihood by labour is considered to be lacking in those qualities which are alone admired--courage and strength;--or work is associated with the idea of servile subjection. It is also universally held degrading for a man to engage in any occupation which belongs to the women.[49] Thus among hunting and pastoral peoples it would be quite out of place for him to supply the household with vegetable food.[50] On the other hand, when agriculture became an {274} indispensable means to maintenance of life it at the same time became respectable. But trade was scorned, probably, as Mr. Spencer suggests, because it was carried on chiefly by unsettled persons, who were detached, untrustworthy members of a community in which most men had fixed positions.[51] The Kandhs "consider it beneath their dignity to barter or traffic, and . . . . regard as base and plebeian all who are not either warriors or tillers of the soil."[52] The Javans "have a contempt for trade, and those of higher rank esteem it disgraceful to be engaged in it; but the common people are ever ready to engage in the labours of agriculture, and the chiefs to honour and encourage agricultural industry."[53]

[Footnote 39: Wilson and Felkin, op. cit. i. 186.]

[Footnote 40: Merker, Die Masai, p. 117.]

[Footnote 41: Holub, 'Die Ma-Atabele,' in Zeitschr. f. Ethnol. xxv. 198.]

[Footnote 42: Burton, Pilgrimage to Al-Madinah & Meccah, ii. 10.]

[Footnote 43: Vámbéry, Travels in Central Asia, p. 320.]

[Footnote 44: Schoolcraft, Archives of Aboriginal Knowledge, v. 150.]

[Footnote 45: Morgan, League of the Iroquois, p. 329.]

[Footnote 46: Travers, 'Life and Times of Te Rauparaha,' in Trans. New Zealand Inst. v. 29.]

[Footnote 47: Tutuila, 'Line Islanders,' in Jour. Polynesian Soc. i. 266.]

[Footnote 48: von Langsdorf, Voyages and Travels, i. 174.]

[Footnote 49: Supra, i. 636 sq.]

[Footnote 50: Supra, i. 634.]

[Footnote 51: Spencer, Principles of Ethics, i. 429.]

[Footnote 52: Campbell, Wild Tribes of Khondistan, p. 50.]

[Footnote 53: Raffles, op. cit. i. 246 sq.]

Progress in civilisation implies an increase of industry. Both the necessities and the comforts of life grow more numerous; hence more labour is required to provide for them, and at the same time there is more inducement to accumulate wealth. The advantages, both private and public, accruing from diligence are more clearly recognised, and the government, in particular, is anxious that the people should work so as to be able to pay their taxes. All this leads to condemnation of idleness and approbation of industry; and the influence of habit must operate in the same direction among a nation whose industrial propensities have been the cause of its civilisation. But in the archaic State war is still regarded as a nobler occupation than labour; and whilst agriculture is held in honour, trade and handicraft are frequently despised.

In the kingdom of the Peruvian Incas there was a law that no one should be idle. "Children of five years old were employed at very light work, suitable to their age. Even the blind and lame, if they had no other infirmity, were provided with certain kinds of work. The rest of the people, while they were healthy, were occupied each at his own labour, and it was a most infamous and degrading {275} thing among these people to be chastised in public for idleness."[54] If any of them was slothful, or slept in the day, he was whipped or had to carry the stone.[55] The reason for these measures was that the whole duty of defraying the expenses of the government belonged to the people, and that, without money and with little property, they paid their taxes in labour; hence to be idle was, in a manner, to rob the exchequer.[56]

[Footnote 54: Blas Valera, quoted by Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, ii. 34. See also ibid. ii. 14; Acosta, Natural and Moral History of the Indies, ii. 413.]

[Footnote 55: Herrera, General History of the West Indies, iv. 339.]

[Footnote 56: Prescott, History of the Conquest of Peru, i. 57.]

One of the characteristics of Zoroastrianism is its appreciation of labour.[57] The faithful man must be vigilant, alert, and active; sleep itself is merely a concession to the demons, and should therefore be kept within the limits of necessity.[58] The lazy man is the most unworthy of men, because he eats his food through impropriety and injustice.[59] And of all kinds of labour the most necessary is husbandry.[60] Man has been placed upon earth to preserve Ahura Mazda's good creation, and this can only be done by careful tilling of the soil, eradication of thorns and weeds, and reclamation of the tracks over which Angra Mainyu has spread the curse of barrenness. Zoroaster

asked, "What is the food that fills the Religion of Mazda?" and Ahura Mazda answered, "It is sowing corn again and again, O Spitama Zarathustra! He who sows corn sows righteousness."[61] According to Xenophon, the king of the Persians considered the art of agriculture and that of war to be the most honourable and necessary occupations, and paid the greatest attention to both.[62] He appointed officers to overlook the tillers of the ground, as well as to collect tribute from them; for "those who {276} cultivate the ground inefficiently will neither maintain the garrisons, nor be able to pay their tribute."[63]

[Footnote 57: See Darmesteter, in Sacred Books of the East, iv. p. lxvii.; Geiger, Civilization of the Eastern Ir[=a]nians, i. 70; Rawlinson, Religions of the Ancient World, p. 108; Dînâ-î Maînôg-î Khirad, ii. 29, xxxvi. 15, xxxvii. 14, &c.]

[Footnote 58: Vendîdâd, xviii. 16.]

[Footnote 59: Dînâ-î Maînôg-î Khirad, xxi. 27.]

[Footnote 60: See Vendîdâd, iii. 23 sqq.]

[Footnote 61: Ibid. iii. 30 sq.]

[Footnote 62: Xenophon, [OE]conomicus, iv. 4, 8 sqq.]

[Footnote 63: Xenophon, [OE]conomicus, iv. 9, 11.]

In his description of ancient Egypt Herodotus tells us that one of its kings made a law to the effect that every Egyptian should annually declare to the governor of his district by what means he maintained himself, and that, if he failed to do this, or did not show that he lived by honest means, he should be punished with death.[64] Whether this statement be correct or not,[65] it seems certain that the Egyptians were anxious to encourage industry.[66] An ostracon which has often been quoted contains the maxim, "Do not spare thy body whilst thou art young, for food cometh by the arms and provisions by the legs."[67]

[Footnote 64: Herodotus, ii. 177. Cf. Diodorus Siculus, Bibliotheca historica, i. 77. 5.]

[Footnote 65: Cf. Wiedemann, Herodots zweites Buch, p. 605.]

[Footnote 66: See Amélineau, Essai sur l'évolution des idées morales dans l'Égypte Ancienne, p. 329.]

[Footnote 67: Gardiner, 'Egyptian Ethics,' in Hastings' Encyclopædia of Religion and Ethics, v. 484.]

A law against idleness resembling that which is reported to have existed in Egypt was established at Athens, according to some writers by Draco or Pisistratus,[68] according to others by Solon, who is said to have borrowed it from the Egyptians.[69] Plutarch states that, as the city was filled with persons who assembled from all parts on account of the great security which prevailed in Attica and the country withal was poor and barren, Solon turned the attention of the citizens to manufactures. For this purpose he ordered that trades should be accounted honourable, that the council of the Areopagus should examine into every man's means of subsisting and chastise the idle, and that no son should be obliged to maintain his father if the father had not taught him a trade.[70] Thucydides puts the following words in the mouth of Pericles:--"To avow poverty with us is no disgrace; the true disgrace is in doing nothing to avoid it. An Athenian citizen does not neglect the State because he takes care of his own household;{277} and even those of us who are engaged in business have a very fair idea of politics."[71] In Xenophon's 'Memorabilia' Socrates recommends industry as a means of supporting life, of maintaining the health and strength of the body, of promoting temperance and honesty.[72] According to Plato idleness is the mother of wantonness, whereas by labour the aliment of passion is diverted into other parts of the body.[73] Agriculture was highly praised. It is the best of all the occupations and arts

by which men procure the means of living.[74] Where it flourishes all other pursuits are in full vigour, but when the ground is allowed to lie barren other occupations are almost stopped.[75] It is an exercise for the body, and strengthens it for discharging the duties that become a man of honourable birth.[76] It requires people to accustom themselves to endure the colds of winter and the heats of summer.[77] It renders them fit for running, throwing, leaping.[78] It gives them the greatest gratification for their labour, it is the most attractive of all employments.[79] It receives strangers with the richest hospitality.[80] It offers the most pleasing first-fruits to the gods, and the richest banquets on festival days.[81] It teaches men justice, for it is those who treat the earth best that she recompenses with the most numerous benefits.[82] It instructs people to assist one another, for it cannot be conducted without the aid of other men.[83] It does not give such constant occupation to a person's mind as to prevent him from attending to the interests of his friends or his native land.[84] The possession of an estate stimulates men to defend their country in arms.[85] In short, agriculture renders citizens most useful, most virtuous, and best affected towards the commonwealth.[86]

[Footnote 68: Pollux, Onomasticum, viii. 42. Diogenes Laertius, Vitæ philosophorum, i. 55. Plutarch, Solon, xxxi. 6.]

[Footnote 69: Herodotus, ii. 177. Diodorus Siculus, i. 77. 5.]

[Footnote 70: Plutarch, Solon, xxii. 1, 3 sq.]

[Footnote 71: Thucydides, Historia belli Peloponnesiaci, ii. 40. 1 sq.]

[Footnote 72: Xenophon, Memorabilia, ii. 7. 7 sq.]

[Footnote 73: Plato, Leges, viii. 835, 841.]

[Footnote 74: Xenophon, [OE]conomicus, vi. 8.]

[Footnote 75: Ibid. v. 17.]

[Footnote 76: Ibid. v. 1; vi. 9.]

[Footnote 77: Ibid. v. 4.]

[Footnote 78: Ibid. v. 8.]

[Footnote 79: Ibid. v. 8, 11.]

[Footnote 80: Ibid. v. 8.]

[Footnote 81: Ibid. v. 10.]

[Footnote 82: Ibid. v. 12.]

[Footnote 83: Ibid. v. 14.]

[Footnote 84: Ibid. vi. 9.]

[Footnote 85: Ibid. v. 7.]

[Footnote 86: Ibid. vi. 10.]

{278} The argumentative manner in which these views were expressed by the philosophers indicates, however, that industrial occupations were deficient in public appreciation.[87] Herodotus says that not only among most barbarians but also throughout Greece those who are given wholly to war are honoured above others.[88] This was especially the case at Sparta, where a freeman was forbidden to engage in any industrial occupation.[89] Contrasting Lycurgus' legislation with that of Solon, Plutarch observes that in a state where the earth was sufficient to support twice the number of inhabitants and where there were a multitude of Helots to be worn out by servitude, it was right to set the citizens free from laborious and mechanic arts and to employ them in arms as the only art fit for them to learn and exercise.[90] At Thebes there was a law that no man could hold office who had not retired from business for ten years, because it was looked upon as a mean employment.[91] Even at Athens, in spite of its democratic institutions and its laws against idleness, trade and handicrafts were despised, both by the general public and by the philosophers. Xenophon's Socrates said

that the industrial arts are objectionable and justly held in little repute in communities, because they weaken the bodies of those who work at them by compelling them to sit and to live indoors and in some cases to pass whole days by the fire; for when the body becomes effeminate the mind loses its strength.[92] Moreover, mechanical occupations leave those who practise them no leisure to attend to the interests of their friends or the commonwealth, hence men of that class seem unsuited alike to be of advantage to their connections and to be defenders of their country.[93] Plato maintains that manual arts are a reproach because they "imply a natural weakness of the higher principle";[94] by {279} their meanness they maim and disfigure the souls as well as the bodies of those who are employed in them.[95] When Hesiod said that "work is no disgrace,"[96] he could certainly not have meant that there was no disgrace for example in the manufacture of shoes or in selling pickles.[97] And in his 'Laws' Plato lays down the regulation that no citizen or servant of a citizen should be occupied in handicraft arts; "for he who is to secure and preserve the public order of the State has an art which requires much study and many kinds of knowledge, and does not admit of being made a secondary occupation."[98] Aristotle, again, observes that in a community which has an aristocratic form of government the mechanic and the labourer will not be citizens, because honours are there given according to virtue and merit, and "no man can practise virtue who is living the life of a mechanic or labourer."[99] Corinth was the place in Greece where the mechanic's occupation was least despised[100]--no doubt because its situation naturally led to extensive trade and thence to that splendour of living by which the useful and ornamental arts are most encouraged.[101]

[Footnote 87: Cf. Schmidt, Die Ethik der alten Griechen, ii. 435 sqq.]

[Footnote 88: Herodotus, ii. 167.]

[Footnote 89: Ibid. ii. 167. Xenophon, Lacedæmoniorum respublica, vii. 2. Plutarch, Lycurgus, xxiv. 2. Idem, Agesilaus, xxvi. 6. Aelian, Varia historia, vi. 6.]

[Footnote 90: Plutarch, Solon, xxii. 2.]

[Footnote 91: Aristotle, Politica, iii. 5. 7, p. 1278 a; vi. 7. 4, p. 1321 a.]

[Footnote 92: Xenophon, [OE]conomicus, iv. 2.]

[Footnote 93: Ibid. iv. 3.]

[Footnote 94: Plato, Respublica, ix. 590.]

[Footnote 95: Ibid. vi. 495.]

[Footnote 96: Hesiod, Opera et dies, 311.]

[Footnote 97: Plato, Charmides, p. 163.]

[Footnote 98: Idem, Leges, viii. 846.]

[Footnote 99: Aristotle, Politica, iii. 5. 5, p. 1278 a. See also ibid. vi. 4. 12, p. 1319 a; vii. 8. 3, p. 1328 b; viii. 2. 4 sq. p. 1337 b.]

[Footnote 100: Herodotus, ii. 167.]

[Footnote 101: See Rawlinson's note in his translation of Herodotus, ii. 252, n. 7.]

The Roman views on the subject were very similar to those of the Greeks. With regard to what arts and means of acquiring wealth are to be regarded as worthy and what disreputable, says Cicero, we have been taught as follows. In the first place, those sources of emolument which incur public hatred, such as those of tax-gatherers and usurers, are condemned. We are likewise to account as mean the gains of hired workmen, whose source of profit is not their art but their labour; for their very wages are the consideration of their servitude. We are further to despise all who retail from merchants goods for prompt sale; for they never can succeed unless they lie most abominably, {280} and nothing is more disgraceful than insincerity. All mechanical labourers are by their profession mean; for a workshop can contain nothing befitting a gentleman.

Least of all are those trades to be approved that serve the purposes of sensuality, such as the occupations of butchers, cooks, and fishermen. But those professions that involve a higher degree of intelligence or a greater amount of utility, such as medicine, architecture, and the teaching of the liberal arts, are honourable in those to whose rank in life they are suited. As to merchandising, if on a small scale it is mean, but if it is extensive and rich, if it brings numerous commodities from all parts of the world, and gives bread to a multitude of people without fraud, it is not so despicable. However, if a merchant, satisfied with his profits, steps from the harbour into an estate, such a man seems most justly deserving of praise. For of all gainful professions nothing is better, nothing is more pleasing and more delightful, nothing is more befitting a well-bred man than agriculture.[102]

[Footnote 102: Cicero, De officiis, i. 42. See also Idem, Cato Major, ch. 15 sqq.]

The contempt in which manual labour was held by the ancient pagans could hardly be shared by early Christianity. Christ had been born in a carpenter's family, his apostles belonged to the working class, and so did originally most of his followers. Origen accepts with pride the reproach of Celsus, when he accuses Christians of worshipping the son of a poor workwoman, who had earned her bread by spinning,[103] and contrasts with the wisdom of Plato that of Paul, the tent-maker, of Peter, the fisherman, of John, who had abandoned his father's nets.[104] St. Paul presses on the Thessalonians the duty of personal industry; "if any one would not work, neither should he eat."[105] But at the same time the spirit of Christianity was not consistent with much anxiety about earthly matters. The aim of a true disciple of Christ was not to prosper in the world but {281} to seek the kingdom of God, not to lay up for himself treasures upon earth but to lay up for himself treasures in heaven.[106] Poverty became an ideal, in conformity with both the example and teachings of Christ. It was associated with godliness, whilst wealth was associated with godlessness.[107] "The love of money," says St. Paul, "is the root of all evil";[108] and the same idea was over and again expressed by Christian moralists.[109] In the original sinless state of mankind property was unknown, and so was labour. It was to punish man for his disobedience that God caused him to eat daily bread in the sweat of his face.[110] Since then work is a necessity; but the contemplative life is better than the active life.[111] Bonaventura points out that Jesus preferred the meditating Mary to the busy Martha,[112] and that he himself seems to have done no work till his thirtieth year.[113] Work is of no value by itself; its highest object is to further contemplation, to macerate the body, to curb concupiscence.[114] For this purpose, indeed, it was strongly insisted upon by several founders of religious orders. According to St. Benedict, "idleness is an enemy to the soul; and hence at certain seasons the brethren ought to occupy themselves in the labour of their hands, and at others in holy reading."[115] St. Bernard writes:--"The handmaid of Christ ought always to pray, to read, to work, lest haply the spirit of uncleanness should lead astray the slothful mind. The delight of the flesh is overcome by labour. . . . The body tired by work is less delighted with vice."[116] But the active life must not be pursued to such an extent as to hinder what it is intended to promote; {282} for it is impossible for any man to be at once occupied with exterior actions and at the same time apply himself to divine contemplation.[117] And whilst he who has nothing else to live upon is bound to work, it is a sin to try to acquire riches beyond the limit which necessity has fixed.[118]

[Footnote 103: Origen, Contra Celsum, i. 28 sq. (Migne, Patrologiæ cursus, Ser. Graeca, xi. 714 sq.).]

[Footnote 104: Ibid. vi. 7 (Migne, Ser. Gr. xi. 1298 sq.).]

[Footnote 105: 1 Thessalonians, iv. 11; 2 <Thessalonians, iii. 10.]

[Footnote 106: St. Luke, xii. 22 sqq. St. Matthew, vi. 19 sq.]

[Footnote 107: St. Luke, xvi. 19 sqq. St. Matthew, xix. 24.]

[Footnote 108: 1 Timothy, vi. 10.]

[Footnote 109: von Eicken, Geschichte der mittelalterlichen Weltanschauung, p. 498 sqq. Thomas Aquinas, Summa theologica, ii.-ii. 186. 3.]

[Footnote 110: Genesis, iii. 19.]

[Footnote 111: Thomas Aquinas, op. cit. ii.-ii. 182. 1 sq. von Eicken, op. cit. p. 488 sqq.]

[Footnote 112: Bonaventura, Meditationes vitæ Christi, ch. 45 (Opera, xii. 452).]

[Footnote 113: Ibid. ch. 15 (Opera, xii. 405).]

[Footnote 114: Guigo, Epistola ad Fratres de Monte-Dei, i. 8 (in St. Bernard, Opera omnia, ii. 214):--"Non spiritualia exercitia sunt propter corporalia, sed corporalia propter spiritualia." von Eicken, op. cit. p. 491 sqq.]

[Footnote 115: St. Benedict, Regula Monachorum, 48.]

[Footnote 116: St. Bernard, De modo bene vivendi, ch. 51 (Opera omnia, ii. 883 sq.).]

[Footnote 117: Speculum Monachorum, in St. Bernard, Opera omnia, ii. 818. von Eicken, op. cit. p. 494 sq. Cf. Thomas Aquinas, op. cit. ii.-ii. 182. 3.]

[Footnote 118: Thomas Aquinas, op. cit. ii.-ii. 187. 3; 118. 1.]

This doctrine was more or less realised in the monastic life, but was hardly held applicable to laymen. The mediæval baron and knight resembled the Teutonic warrior described by Tacitus, who regarded it as "a dull and stupid thing to accumulate painfully by the sweat of the brow what might be won by a little blood."[119] In England, after the Conquest, the aristocracy in general lived a life of idleness but indulged eagerly in hunting, and its members continually sallied forth in parties to plunder.[120] For a long time the lower classes, constituting the mass of society, existed only for the benefit of the upper class. It was considered honourable to live in sloth supported by the exertions of others, it was held degrading to depend on the gains of industry. The degradation really attached to the gains of labour rather than labour itself; for labour ceased to be degrading if not prosecuted for gain. "Louis XVI. may make locks, the ladies of his court may make butter and cheese, provided it is only for amusement. Lord Rosse may build a telescope as an amateur in the interest of science, and still be noble. But if the locks, the butter, or the telescope are sold, the makers are degraded to the level of the tradesman."[121] However, as Mr. Spencer observes, trade, while at first relatively unessential (since essential things were mostly made at home) and consequently lacking the sanction of necessity and of ancestral custom, ceased to be despised when it grew in importance.[122] Among ourselves the respect in which a certain occupation is held is {283} largely determined by the degree of mental power implied in it; hence manual labour, and especially unskilled labour, is still in some degree looked down upon. But we do not regard as dishonourable any kind of work which is not opposed to the ordinary rules of morality. We distinguish more clearly than the ancients did between social and moral inferiority. Our moral judgments are less influenced by class antipathies. We recognise that a high standard of duty is compatible even with the humblest station in life. And when we duly reflect upon the matter, we admit that the moral value of industry depends, not on the occupation in which it is displayed, but on the purpose of the labourer.

[Footnote 119: Tacitus, Germania, 14.]

[Footnote 120: Wright, Domestic Manners and Sentiments in England during the Middle Ages, p. 102.]

[Footnote 121: Harris, 'The Christian Doctrine of Labor,' in New Englander, xxiv. 245.]

[Footnote 122: Spencer, Principles of Ethics, i. 429.]

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But though industry is applauded or insisted on, rest is also in certain circumstances regarded as a duty. By doing too much work a person may injure himself and indirectly other persons as well. In early society there is little inducement to overwork, but the case is very different in modern civilisation. This accounts for the persistence and general popularity of an institution which originally sprang from quite different sources, namely, the Sunday rest.

Among various peoples it is the custom to abstain from work, or from some special kind of work, on certain occasions or days which are regarded as defiling or inauspicious. Work is often suspended after a death, partly perhaps because inactivity is a natural accompaniment of sorrow,[123] or because a mourner is supposed to be in a delicate state requiring rest,[124] but chiefly, I presume, from fear lest the work done should be contaminated by the pollution of death. Among the Arabs of Morocco no work must be performed in the village till the dead is buried. In Greenland everyone who had lived in the same house with the deceased was obliged to be idle for a certain period, according to the directions of the priests or wizards.[125] Among the Eskimo of Behring Strait none of the relatives of the dead must do any work during the time in which the shade is {284} believed to remain with the body, that is, for four or five days.[126] Among the Seminole Indians of Florida the relatives remained at home and refrained from work during the day of the burial and for three days thereafter, when the dead was supposed to stay in his grave.[127] The Kar Nicobarese abstain from work as a sign of mourning.[128] In Samoa all labour was suspended in the settlement on the death of a chief.[129] So also the Basutos do no work on the day when an influential person dies. They, moreover, refrain from going to their fields, or hasten to leave them, at the approach of clouds which give promise of rain, "in order quietly to await the desired benediction, fearing to disturb Nature in her operations. This idea is carried to such an extent, that most of the natives believe that, if they obstinately persist in their labour at such a moment, the clouds are irritated and retire, or send hail instead of rain. Days of sacrifice, or great purification, are also holidays. Hence it is that the law relative to the repose of the seventh day, so far from finding any objection in the minds of the natives, appears to them very natural, and perhaps even more fundamental, than it seems to certain Christians."[130]

[Footnote 123: Cf. infra, p. 308.]

[Footnote 124: Cf. infra, p. 307.]

[Footnote 125: Egede, Description of Greenland, p. 149 sq.]

[Footnote 126: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 319.]

[Footnote 127: Maccauley, 'Seminole Indians of Florida,' in Ann. Rep. Bur. Ethn. v. 52.]

[Footnote 128: Kloss, In the Andamans and Nicobars, p. 305.]

[Footnote 129: Turner, Nineteen Years in Polynesia, p. 229. Idem, Samoa, p. 146.]

[Footnote 130: Casalis, Basutos, p. 260 sq.]

Changes in the moon are frequently considered unfavourable for work. Among the Bechuanas, "when the new moon appears, all must cease from work, and keep what is called in England a holiday."[131] The people of Thermia, in the Cyclades, maintain that all work, so far as possible, should be suspended on the days immediately preceding the full moon.[132] In the Vishnu Purana it is said that one who attends to secular affairs on the days of the full or new moon goes to the Rudhirándha hell, whose wells are blood.[133] In Northern India it is considered bad to undertake any business of importance at

the new moon {285} or at an eclipse.[134] According to the 'Laws of Manu,' a Brâhmana is not allowed to study "on the new-moon day, nor on the fourteenth and the eighth days of each half-month, nor on the full-moon day." It is said that "the new-moon day destroys the teacher, the fourteenth day the pupil, the eighth and the full-moon days destroy all remembrance of the Veda; let him therefore avoid reading on those days."[135] The Buddhists have their Sabbath, or Uposatha, which occurs four times in the month, namely, on the day of full moon, on the day when there is no moon, and on the two days which are eighth from the full and new moon. On these days selling and buying, work and business, hunting and fishing, are forbidden, and all schools and law-courts are closed.[136] In Ashantee and neighbouring districts, where the people reckon time by moons, there is a weekly "fetish-day" or sabbath, which seems to be of native origin. "In all the countries along the coast, the regular fetish-day is Tuesday, the day which is observed by the king of Ashantee. Other days in the week are held sacred in the bush. On this weekly sabbath, or fetish-day, the people generally dress themselves in white garments, and mark their faces, and sometimes their arms, with white clay. They also rest from labour. The fishermen would expect, that were they to go out on that day, the fetish would be angry, and spoil their fishing."[137] The natives of Coomassie, on the Gold Coast, have a law according to which no agricultural work may be done on a Thursday.[138] In Hawaii, where each month contained thirty nights and the different days and nights derived their names from the varying aspects of the moon according to her age, there were during every month four periods lasting from two to four nights in which the nights were consecrated or made taboo. So also there were tabooed seasons on certain other {286} occasions, as when a high chief was ill, or preparations were made for war, or on the approach of important religious ceremonies. These taboos were either "common" or "strict." In the case of the former men were only required to abstain from their common pursuits and to attend prayers morning and evening, whereas when the season of strict taboo was in force a general gloom and silence pervaded the whole district or island. "Not a fire or light was to be seen, or canoe launched; none bathed; the mouths of dogs were tied up, and fowls put under calabashes, or their heads enveloped in cloth; for no noise of man or animal must be heard. No persons, excepting those who officiated at the temple, were allowed to leave the shelter of their roofs. Were but one of these rules broken, the taboo would fail and the gods be displeased."[139]

[Footnote 131: Campbell, Second Journey in the Interior of South Africa, ii. 205.]

[Footnote 132: Bent, Cyclades, p. 438.]

[Footnote 133: Vish['n]u Purá['n]a, p. 209.]

[Footnote 134: Crooke, Popular Religion of Northern India, i. 23.]

[Footnote 135: Laws of Manu, iv. 113 sq.]

[Footnote 136: Childers, Dictionary of the Pali Language, p. 535. Kern, Der Buddhismus, ii. 258.]

[Footnote 137: Beecham, Ashantee, p. 185 sq. Cf. Bosman, op. cit. p. 131 (Gold Coast natives).]

[Footnote 138: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 304.]

[Footnote 139: Jarves, History of the Hawaiian Islands, pp. 40, 28. The word tapua'i means "to abstain from all work, games, &c." (Tregear, Maori-Polynesian Dictionary, p. 472).]

The peoples of Semitic stock or with Semitic culture also have their tabooed days. In Morocco work, or certain kinds of work, are avoided on holy days or in holy periods, as being unsuccessful or, in some cases, even dangerous to him who performs it; there

is a saying that "work at a feast are like the stab of a dagger." Nobody likes to start on a journey on a Friday before the midday prayer has been said, and it is considered bad to commence any work on that day.[140] I was also told that clothes will not remain clean if they are washed on a Saturday. Among the modern Egyptians Saturday is held to be the most unfortunate of days, and particularly unfavourable for shaving, cutting the nails, and starting on a journey.[141] At Kheybar, in Arabia, again, Sunday is considered an unlucky day for beginning any kind of work.[142] There can be little doubt that the Jewish Sabbath originated in the belief that it was inauspicious or dangerous to work on the seventh day, and that the reason for this belief was the mystic connection which in {287} the opinion of the ancient Hebrews, as of so many other peoples, existed between human activity and the changes in the moon.[143] It has been sufficiently demonstrated that the Sabbath originally depended upon the new moon, and this carries with it the assumption that the Hebrews must at one time have observed a Sabbath at intervals of seven days corresponding with the moon's phases.[144] In the Old Testament the new moon and Sabbath are repeatedly mentioned side by side;[145] thus the oppressors of the poor are represented as saying, "When will the new moon be gone, that we may sell corn? and the Sabbath, that we may set forth wheat?"[146] Among modern Jews, at the feast of the New Moon, which is held every month on the first or on the first and second days of the month, the women are obliged to suspend all servile work, though the men are not required to interrupt their secular employments.[147] That the superstitious fear of doing work on the seventh day developed into a religious prohibition, is only another instance of a tendency which we have noticed often before--the tendency of magic forces to be transformed into divine volitions.[148] Like the ancient Hebrews, the Assyrians and Babylonians looked upon the seventh day as an "evil day"; and though they do not seem generally to have abstained from work on that day, there were various royal taboos connected with it. The {288} King was not to show himself in his chariot, not to hold court, not to bring sacrifices, not to change his clothes, not to eat a good dinner, and not even to curse his enemies.[149]

[Footnote 140: See Westermarck, The Moorish Conception of Holiness (Baraka), p. 140 sqq.]

[Footnote 141: Lane, Modern Egyptians, p. 272.]

[Footnote 142: Doughty, Arabia Deserta, ii. 197 sq.]

[Footnote 143: See Jastrow, 'Original Character of the Hebrew Sabbath,' in American Journal of Theology, ii. 321 sqq.]

[Footnote 144: Wellhausen, Prolegomena to the History of Israel, p. 112 sqq. Jastrow, loc. cit. pp. 314, 327.]

[Footnote 145: 2 Kings, iv. 23. Isaiah, i. 13. Hosea, ii. 11.]

[Footnote 146: Amos, viii. 5.]

[Footnote 147: Allen, Modern Judaism, p. 390 sq.]

[Footnote 148: Prof. Jastrow seems to have failed to see this when he says (loc. cit. p. 323) that "if the Sabbath was originally an 'unfavourable' day on which one must avoid showing one's self before Yahwe, it would naturally be regarded as dangerous to provoke his anger by endeavouring to secure on that day personal benefits through the usual forms of activity." Wellhausen, again, suggests (op. cit. p. 114) that the rest on the Sabbath was originally the consequence of that day being the festal and sacrificial day of the week, and only gradually became its essential attribute on account of the regularity with which it every eighth day interrupted the round of everyday work. He argues that the Sabbath as a day of rest cannot be very primitive, because such a day "presupposes agriculture and a tolerably hard-pressed working-day life." But this

argument appears very futile when we consider how commonly changes in the moon are believed to exercise an unfavourable influence upon work of any kind. See infra, Additional Notes.]

[Footnote 149: Schrader, Die Keilinschriften und das Alte Testament, p. 592 sq. Hirschfeld, 'Remarks on the Etymology of [vS]abb[)a]th,' in Jour. Roy. Asiatic Soc. 1896, p. 358. Jastrow, loc. cit. pp. 320, 328.]

The Jewish Sabbath was abolished by Christ. "The Sabbath was made for man, and not man for the Sabbath";[150] "My father worketh [on it] hitherto, and I work."[151] Jewish converts no doubt continued to observe the Sabbath, but this met with disapproval. In one of the Epistles of Ignatius we find the exhortation not to "sabbatise," which was expanded by the subsequent paraphraser of these compositions into a warning against keeping the Sabbath, after the manner of the Jews, "as if delighting in idleness."[152] And in the fourth century a Council of the Church enacted "that the Christians ought not to judaise, and rest on the Sabbath, but ought to work on that day."[153] On the other hand, it was from early times a recognised custom among the Christians to celebrate the first day of the week in memory of Christ's resurrection, by holding a form of religious service; but there was no sabbatic regard for it, and it was chiefly looked upon as a day of rejoicing.[154] Tertullian is the first writer who speaks of abstinence from secular care and labour on Sunday as a duty incumbent upon Christians, lest they should "give place to the devil."[155] But it is extremely doubtful whether the earliest Sunday law really had a Christian origin. In 321 the Emperor Constantine issued an edict to the effect that all judges and all city people and tradesmen should rest on "the venerable Day of the Sun," whereas those living in the country should have full liberty to attend to the culture of their fields, "since it frequently happens {289} that no other day is so fit for the sowing of grain or the planting of vines."[156] In this rescript nothing is said of any relation to Christianity, nor do we know that it in any way was due to Christian influence.[157] It seems that Constantine, in his capacity of Pontifex Maximus, only added the day of the sun--whose worship was the characteristic of the new paganism--to those inauspicious days, religiosi dies, which the Romans of old regarded as unsuitable for worldly business and especially for judicial proceedings.[158] But though the obligatory Sunday rest in no case was a continuance of the Jewish Sabbath, it gradually was confounded with it, owing to the recognition of the decalogue, with its injunction of a weekly day of rest, as the code of divine morality. From the sixth century upwards vexatious restrictions were made by civil rulers, councils, and ecclesiastical writers;[159] until in Puritanism the Christian Sunday became a perfect image of the pharisaic Sabbath, or even excelled it in the rigour with which abstinence from every kind of worldly activity was insisted upon. The theory that the keeping holy of one day out of seven is the essence of the Fourth Commandment reconciled people to the fact that the Jewish Sabbath was the seventh day and Sunday the first. In England, in the seventeenth century, persons were punished for carrying coal on Sunday, for hanging out clothes to dry, for travelling on horseback, for rural strolls and walking about.[160] And Scotch clergymen taught their congregations that on that day it was sinful to save a vessel in distress, and that it was proof of religion to leave ship and crew to perish.[161]

[Footnote 150: St. Mark, ii. 27.]

[Footnote 151: St. John, v. 17.]

[Footnote 152: Ignatius, Epistola ad Magnesios, 9 (Migne, op. cit. Ser. Graeca, v. 768). Neale, Feasts and Fasts, p. 89.]

[Footnote 153: Concilium Laodicenum, can. 29 (Labbe-Mansi, Sacrorum Conciliorum collectio, ii. 580).]

[Footnote 154: Justin Martyr, Apologia I. pro Christianis, 67 (Migne, op. cit. Ser. Graeca, vi. 429). Schaff, History of the Christian Church, 'Ante-Nicene Christianity,' p. 202 sqq. Hessey, Sunday, p. 29 sqq.]

[Footnote 155: Tertullian, De oratione, 23 (Migne, op. cit. i. 1191).]

[Footnote 156: Codex Justinianus, iii. 12. 2 (3).]

[Footnote 157: Cf. Lewis, Critical History of Sunday Legislation, p. 18 sqq.; Milman, History of Christianity, ii. 291 sq.]

[Footnote 158: Gellius, Noctes Atticæ, iv. 9. 5; vi. 9. 10. Varro, De lingua Latina, vi. 30. Neale, op. cit. pp. 5, 6, 86, 87, 206. Fowler, Roman Festivals of the Period of the Republic, p. 8 sq. The Greeks, also, had "unblest and inauspicious" days, when no court or assembly was to be held, and work was to be abstained from (Plato, Leges, vii. 800; Karsten, Studies in Primitive Greek Religion, p. 90).]

[Footnote 159: Hessey, op. cit. p. 87 sqq.]

[Footnote 160: Roberts, Social History of the People of the Southern Counties of England, p. 244 sqq.]

[Footnote 161: Buckle, History of Civilization in England, iii. 76.]

Chapter XXXVII — Restrictions in Diet

TRAVELLERS have often noticed with astonishment the immense quantities of food which uncivilised people are able to consume. Sir George Grey has described the orgies which follow the stranding of a whale in Australia, when the natives remain by the carcase for many days, fairly eating their way into it.[1] The Rocky Mountain Indians, though they often subsist for a great length of time on a very little food, will at their feasts "gorge down an incredible quantity."[2] A Mongol "will eat more than ten pounds of meat at one sitting, but some have been known to devour an average-sized sheep in the course of twenty-four hours."[3] The Waganda in Central Africa "sometimes gorge themselves to such an extent that they are unable to move, and appear just as if intoxicated."[4] It has been justly observed that what would among ourselves be condemned as disgusting gluttony is, under the conditions to which certain races of men are exposed, quite normal and in fact necessary. As Mr. Spencer observes, "where the habitat is such as at one time to supply very little food and at another time food in great abundance, survival depends on the ability to consume immense quantities when the opportunities occur."[5] When this is the case gluttony can hardly be {291} stigmatised as a vice; and I find no direct evidence that it is so even among savages who are described as generally moderate in their diet. The lack of foresight, which is a characteristic of uncivilised peoples, must prevent them from attaching much moral value to temperance. On the other hand, gluttony is sometimes said to be regarded with admiration. Mr. Torday informs me that the Bambala in South-Western Congo, when praising a man for his strength, are in the habit of saying, "He eats a whole goat with its skin."

[Footnote 1: Grey, Journals of Expeditions in North-West and Western Australia, ii. 277 sqq.]

[Footnote 2: Harmon, Journal of Voyages in the Interior of North America, p. 329.]

[Footnote 3: Prejevalsky, Mongolia, i. 55.]

[Footnote 4: Wilson and Felkin, Uganda, i. 185.]

[Footnote 5: Spencer, Principles of Ethics, i. 436.]

At higher stages of culture intemperance is often subject to censure--because it is detrimental to health or prosperity, or because it calls forth an instinctive feeling of disgust, or because indulgence in sensual pleasures is considered degrading, or, generally, because it is inconsistent with an ascetic ideal of life. It is said in the Proverbs that "the glutton shall come to poverty."[6] According to the Laws of Manu, "excessive eating is prejudicial to health, to fame, and to bliss in heaven; it prevents the acquisition of spiritual merit, and is odious among men; one ought, for these reasons, to avoid it carefully."[7] Aristotle maintains that the pleasure with which intemperance is concerned is justly held in disgrace, "since it belongs to us in that we are animals, not in that we are men."[8] Cicero observes that, as mere corporeal pleasure is unworthy the excellency of man's nature, the nourishment of our bodies "should be with a view not to our pleasure, but to our health and our strength."[9] The same opinion is at least nominally shared by many among ourselves; whereas others, though denying that the gratification of appetite is to be sought for its own sake, admit as legitimate ends for it not only the maintenance of health and strength but also "cheerfulness and the cultivation of the social affections."[10] But most of us are undoubtedly less exacting, if not in theory at least in practice, and really find nothing blamable in pleasures of the {292} table which neither impair health, nor involve a perceptible loss of some greater gratification, nor interfere with duties towards neighbours.[11]

[Footnote 6: Proverbs, xxiii. 21.]

[Footnote 7: Laws of Manu, ii. 57.]

[Footnote 8: Aristotle, Ethica Nicomachea, iii. 10. 10.]

[Footnote 9: Cicero, De officiis, i. 30.]

[Footnote 10: Whewell, Elements of Morality, p. 124 sq.]

[Footnote 11: See Sidgwick, Methods of Ethics, p. 328 sq.]

Sometimes temperance has been inculcated on grounds which in other cases lead to the duty of fasting, that is, abstinence from all food and drink, or at least (in a looser sense of the word) from certain kinds of food, for a determined period. The custom of fasting is wide-spread, and deserves special attention in a study of moral ideas.

Fasting is practised or enjoined for a variety of purposes. It is frequently adopted as a means of having supernatural converse, or acquiring supernatural powers.[12] He who fasts sees in dreams or visions things that no ordinary eye can see. The Hudson Bay Eskimo "discovered that a period of fasting and abstinence from contact with other people endowed a person with supernatural powers and enabled him to learn the secrets of Tung ak [the great spirit]. This is accomplished by repairing to some lonely spot, where, for a greater or less period, the hermit abstains from food or water until the imagination is so worked upon that he believes himself imbued with the power to heal the sick and control all the destinies of life. Tung ak is supposed to stand near and reveal those things while the person is undergoing the test."[13] The Naudowessies totally abstain from every kind of either victuals or drink before a hunting expedition, because they think that "it enables them freely to dream, in which dreams they are informed where they shall find the greatest plenty of game."[14] The Tsimshian of British Columbia, if a special object is to be attained, {293} believe they can compel the deity to grant it by a rigid fasting.[15] The Amazulu have a saying that "the continually stuffed body cannot see secret things," and, in accordance with this belief, put no faith in a fat diviner.[16] A Tungus shaman, who is summoned to treat a sick person, will for several days abstain from food and maintain silence till he becomes inspired.[17]

Among the Santals the person or persons who have to offer sacrifices at their feasts prepare themselves for this duty by fasting and prayer and by placing themselves for some time in a position of apparent mental absorption.[18] The savage, as Sir E. B. Tylor remarks, has many a time, for days and weeks together, to try involuntarily the effects of fasting, accompanied with other privations and with prolonged solitary contemplation in the desert or the forest. Under these circumstances he soon comes to see and talk with phantoms, which are to him visible personal spirits, and, having thus learnt the secret of spiritual intercourse, he thenceforth reproduces the cause in order to renew the effects.[19] The Hindus believe that a fasting person will ascend to the heaven of that god in whose name he observes the fast.[20] The Hebrews associated fasting with divine revelations.[21] St. Chrysostom says that fasting "makes the soul brighter, and gives it wings to mount up and soar on high."[22]

[Footnote 12: Tylor, Primitive Culture, ii. 410 sqq. Spencer, Principles of Sociology, i. 261. Avebury, Origin of Civilisation, p. 266 sqq. Landtman, Origin of Priesthood, pp. 118-123, 158 sqq. Müller, Geschichte der Amerikanischen Urreligionen, pp. 285, 651. Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 390. Mooney, 'Myths of the Cherokee,' ibid. xix. 480. Herrera, General History of the West Indies, 1. 165 (ancient natives of Hispaniola). Niebuhr, Travels through Arabia, ii. 282.]

[Footnote 13: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 195.]

[Footnote 14: Carver, Travels through the Interior Parts of North America, p. 285.]

[Footnote 15: Boas, in Fifth Report on the North-Western Tribes of Canada, p. 50.]

[Footnote 16: Callaway, Religious System of the Amazulu, p. 387, n. 41.]

[Footnote 17: Krivoshapkin, quoted by Landtman, op. cit. p. 159.]

[Footnote 18: Dalton, Ethnology of Bengal, p. 213. See also Rowney, Wild Tribes of India, p. 77.]

[Footnote 19: Tylor, Primitive Culture, ii. 410.]

[Footnote 20: Ward, View of the History, &c. of the Hindoos, ii. 77.]

[Footnote 21: Exodus, xxxiv. 28. Deuteronomy, ix. 9. Daniel, ix. 3.]

[Footnote 22: St. Chrysostom, In Cap. I. Genes. Homil. X. (Migne, Patrologiæ cursus, Ser. Graeca, liii. 83). Cf. Tertullian, De jejuniis, 6 sqq. (Migne, ii. 960, 961, 963); Haug, Alterthümmer der Christen, pp. 476, 482.]

Ideas of this kind partly underlie the common practice of abstaining from food before or in connection with the performance of a magical or religious ceremony;[23] but there {294} is yet another ground for this practice. The effect attributed to fasting is not merely psychical, but it also prevents pollution. Food may cause defilement, and, like other polluting matter, be detrimental to sanctity. Among the Maoris "no food is permitted to touch the head or hair of a chief, which is sacred; and if food is mentioned in connection with anything sacred (or 'tapu') it is considered as an insult, and revenged as such."[24] So also a full stomach may be polluting.[25] This is obviously the reason why in Morocco and elsewhere[26] certain magical practices, in order to be efficacious, have to be performed before breakfast. The Masai use strong purges before they venture to eat holy meat.[27] The Caribs purified their bodies by purging, bloodletting, and fasting; and the natives of the Antilles, at certain religious festivals, cleansed themselves by vomiting before they approached the sanctuary.[28] The true object of fasting often appears from the fact that it is practised hand in hand with other ceremonies of a purificatory character. A Lappish noaide, or wizard, prepares himself for the offering of a sacrifice by abstinence from food and ablutions.[29] Herodotus tells us that the ancient Egyptians fasted before making a sacrifice to Isis, and beat their bodies while the victims

were burnt.[30] When a Hindu resolves to visit a sacred place, he has his head shaved two days preceding the commencement of his journey, and fasts the next day; on the last day of his journey he fasts again, and on his {295} arrival at the sacred spot he has his whole body shaved, after which he bathes.[31] In Christianity we likewise meet with fasting as a rite of purification. At least as early as the time of Tertullian it was usual for communicants to prepare themselves by fasting for receiving the Eucharist;[32] and to this day Roman Catholicism regards it as unlawful to consecrate or partake of it after food or drink.[33] The Lent fast itself was partly interpreted as a purifying preparation for the holy table.[34] And in the early Church catechumens were accustomed to fast before baptism.[35]

[Footnote 23: Bossu, Travels through Louisiana, i. 38 (Natchez). Clavigero, History of Mexico, i. 285 sq.; Bancroft, Native Races of the Pacific States, iii. 440 sq. (ancient Mexicans). Landa, Relacion de las cosas de Yucatan, p. 156. Junghuhn, Die Battaländer auf Sumatra, ii. 311 sq. (natives of Tjumba). Beauchamp, in the Madras Government Museum's Bulletin, iv. 56 (Hindus of Southern India). Ward, op. cit. ii. 76 sq. (Hindus). Wassiljew, quoted by Haberland, 'Gebräuche und Aberglauben beim Essen,' in Zeitschrift für Völkerpsychologie, xviii. 30 (Buddhists). Porphyry, De abstinentia ab esu animalium, ii. 44; Wachsmuth, Hellenische Alterthumskunde, ii. 560, 576; Hermann-Stark, Lehrbuch der gottesdienstlichen Alterthümer der Griechen, p. 381; Anrich, Das antike Mysterienwesen, p. 25; Diels, 'Ein orphischer Demeterhymnus,' in Festschrift Theodor Gomperz dargebracht, p. 6 sqq. Chwolsohn, Die Ssabier und der Ssabismus, ii. 23, 74.]

[Footnote 24: Angas, Polynesia, p. 149.]

[Footnote 25: See Robertson Smith, Religion of the Semites, p. 434 sq.; Westermarck, The Moorish Conception of Holiness, p. 127.]

[Footnote 26: Wuttke, Der deutsche Volksaberglaube der gegenwart, § 219, p. 161.]

[Footnote 27: Thomson, Masai Land, p. 430.]

[Footnote 28: Waitz, Anthropologie der Naturvölker, iv. 330; iii. 384.]

[Footnote 29: von Düben, Lappland, p. 256. Friis, Lappisk Mythologi, p. 145 sq.]

[Footnote 30: Herodotus, ii. 40.]

[Footnote 31: Ward, op. cit. ii. 130 sq. Cf. Institutes of Vishnu, xlvi. 17, 24 sq.]

[Footnote 32: Tertullian, De oratione, 19 (Migne, op. cit. i. 1182).]

[Footnote 33: Catechism of the Council of Trent, ii. 4. 6.]

[Footnote 34: St. Jerome, In Jonam, 3 (Migne, op. cit. xxv. 1140).]

[Footnote 35: Justin Martyr, Apologia I. pro Christianis, 61 (Migne, op. cit. Ser. Graeca, vi. 420). St. Augustine, De fide et operibus, vi. 8 (Migne, xl. 202).]

In the case of a sacrifice it is considered necessary not only that he who offers it, but that the victim also, should be free from pollution. In ancient Egypt a sacrificial animal had to be perfectly clean.[36] According to Hindu notions the gods enjoy pure sacrifices only.[37] In the Kalika-Purana, a work supposed to have been written under the direction of Siva, it is said that if a man is offered he must be free from corporal defect and unstained with great crimes, and that if an animal is offered it must have exceeded its third year and be without blemish or disease; and in no case must the victim be a woman or a she animal, because, as it seems, females are regarded as naturally unclean.[38] According to the religious law of the Hebrews, no leaven or honey should be used in connection with vegetable offerings, on the ground that these articles have the effect of producing fermentation and tend to acidify and spoil anything with which they are mixed;[39] and the animal which was intended for sacrifice should be absolutely free from blemish[40] and at least eight days old,[41] that is, untainted with the impurity

of birth. Quite in harmony with these prescriptions is the notion that human or {296} animal victims have to abstain from food for some time before they are offered up. Among the Kandhs the man who was destined to be sacrificed was kept fasting from the preceding evening, but on the day of the sacrifice he was refreshed with a little milk and palm-sago; and before he was led forth from the village in solemn procession he was carefully washed and dressed in a new garment.[42] In Morocco it is not only considered meritorious for the people to fast on the day previous to the celebration of the yearly sacrificial feast, l-[(][)a]îd l-kbîr, but in several parts of the country the sheep which is going to be sacrificed has to fast on that day or at least on the following morning, till some food is given it immediately before it is slaughtered. The Jewish custom which compels the firstborn to fast on the eve of Passover[43] may also perhaps be a survival from a time when all the firstborn belonged to the Lord.[44]

[Footnote 36: Herodotus, ii. 38.]

[Footnote 37: Baudhâyana, i. 6. 13. 1 sq.]

[Footnote 38: Dubois, Description of the Character, &c. of the People of India, p. 491.]

[Footnote 39: Keil, Manual of Biblical Archæology, i. 262.]

[Footnote 40: Leviticus, xxii. 19 sqq.]

[Footnote 41: Ibid. xxii. 27.]

[Footnote 42: Macpherson, Memorials of Service in India, p. 118.]

[Footnote 43: Greenstone, 'Fasting,' in Jewish Encyclopedia, v. 348. Allen, Modern Judaism, p. 394.]

[Footnote 44: Supra, i. 459.]

In some cases the custom of fasting before the performance of a sacrifice may be due to the idea that it is dangerous or improper for the worshipper to partake of food before the god has had his share.[45] In India a regular performance of two half-monthly sacrifices is enjoined on the Brahmanical householder for a period of thirty years from the time when he has set up a fire of his own--according to some authorities even for the rest of his life. The ceremony usually occupies two consecutive days, the first of which is chiefly taken up with preparatory rites and the vow of abstinence (vrata) by the sacrificer and his wife, whilst the second day is reserved for the main performance of the sacrifice. The vrata includes the abstention from certain kinds of food, especially meat, which will be offered to the gods on the following day, as also from other carnal pleasures. The Satapatha-Brâhmana gives the following explanation of it:--"The gods see through the mind of man; they know that, when {297} he enters on this vow, he means to sacrifice to them the next morning. Therefore all the gods betake themselves to his house, and abide by him or the fires (upa-vas) in his house; whence this day is called upa-vasatha. Now, as it would even be unbecoming for him to take food before men who are staying with him as his guests have eaten; how much more would it be so, if he were to take food before the gods who are staying with him have eaten: let him therefore take no food at all."[46] It is hardly probable, however, that this is the original meaning of the abstinence in question. It occurs about the time of new moon and full moon; according to some native authorities the abstinence and sacrifice take place on the last two days of each half of the lunar month, whilst the generality of ritualistic writers consider the first day of the half-month that is, the first and sixteenth days of the month to be the proper time for the sacrifice.[47] We shall presently see how frequently fasting is observed on these occasions, presumably for fear of eating food which is supposed to have been polluted by the moon; hence it seems to me by no means improbable that the vrata has a similar origin, instead of being merely a rite preparatory to the sacrifice which follows it. But at the same time the idea that spirits

or gods should have the first share of a meal is certainly very ancient, and may lead to actual fasting in case the offering for some reason or other is to be delayed. A Polynesian legend tells us that a man by name Maui once caught an immense fish. Then he left his brothers, saying to them:--"After I am gone, be courageous and patient; do not eat food until I return, and do not let our fish be cut up, but rather leave it until I have carried an offering to the gods from this great haul of fish, and until I have found a priest, that fitting prayers and sacrifices may be offered to the god, and the necessary rites be completed in order. We shall thus all be purified. I will then {298} return, and we can cut up this fish in safety, and it shall be fairly portioned out to this one, and to that one, and to that other." But as soon as Maui had gone, his brothers began at once to eat food, and to cut up the fish. Had Maui previously reached the sacred place, the heart of the deity would have been appeased with the offering of a portion of the fish which had been caught by his disciples, and all the male and female deities would have partaken of their portions of the sacrifice. But now the gods turned with wrath upon them, on account of the fish which they had thus cut up without having made a fitting sacrifice.[48]

[Footnote 45: Cf. Oldenberg, Die Religion des Veda, p. 414.]

[Footnote 46: Satapatha-Brâhmana, i. 1. 1. 7 sq. Eggeling, in Sacred Books of the East, xii. 1 sq. Oldenberg, op. cit. p. 413, n. 1.]

[Footnote 47: Eggeling, in Sacred Books of the East, xii. 1.]

[Footnote 48: Grey, Polynesian Mythology, p. 26 sq.]

Among many peoples custom prescribes fasting after a death. Lucian says that at the funeral feast the parents of the deceased are prevailed upon by their relatives to take food, being almost prostrated by a three days' fast.[49] We are told that among the Hindus children fast three days after the death of a parent, and a wife the same period after the death of her husband;[50] but according to a more recent statement, to be quoted presently, they do not altogether abstain from food. In one of the sacred books of India it is said that mourners shall fast during three days, and that, if they are unable to do so, they shall subsist on food bought in the market or given unasked.[51] Among the Nay[=a]dis of Malabar "from the time of death until the funeral is over, all the relations must fast."[52] Among the Irulas of the Neilgherries "the relatives of the deceased fast during the first day, that is, if . . . . the death occur after the morning meal, they refrain from the evening one, and eat nothing till the next morning. If it occur during the night, or before the morning meal, they refrain from all food till the evening. Similar fasting is observed on every return of the same day of the week, till the obsequies take place."[53] Among {299} the Bogos of Eastern Africa a son must fast three days after the death of his father.[54] On the Gold Coast it is the custom for the near relatives of the deceased to perform a long and painful fast, and sometimes they can only with difficulty be induced to have recourse to food again.[55] So also in Dahomey they must fast during the "corpse time," or mourning.[56] Among the Brazilian Paressí the relatives of a dead person remain for six days at his grave, carefully refraining from taking food.[57] Among the aborigines of the Antilles children used to fast after the death of a parent, a husband after the death of his wife, and a wife after the death of her husband.[58] In some Indian tribes of North America it is the custom for the relatives of the deceased to fast till the funeral is over.[59] Among the Snanaimuq, a tribe of the Coast Salish, after the death of a husband or wife the surviving partner must not eat anything for three or four days.[60] In one of the interior divisions of the Salish of British Columbia, the Stlatlumh, the next four days after a funeral feast are spent by the members of the household of the deceased person in fasting, lamenting and ceremonial

ablutions.[61] Among the Upper Thompson Indians in British Columbia, again, those who handled the dead body and who dug the grave had to fast until the corpse was buried.[62]

[Footnote 49: Lucian, De luctu, 24.]

[Footnote 50: Ward, View of the History, &c. of the Hindoos, ii. 76 sq.]

[Footnote 51: Vasishtha, iv. 14 sq. Cf. Institutes of Vishnu, xix. 14.]

[Footnote 52: Thurston, in the Madras Government Museum's Bulletin, iv. 76.]

[Footnote 53: Harkness, Description of a Singular Race inhabiting the Neilgherry Hills, p. 97.]

[Footnote 54: Munzinger, Die Sitten und das Recht der Bogos, p. 29.]

[Footnote 55: Cruickshank, Eighteen Years on the Gold Coast, ii. 218.]

[Footnote 56: Burton, Mission to Gelele, ii. 163.]

[Footnote 57: von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 435. Cf. ibid. p. 339 (Bakaïri).]

[Footnote 58: Du Tertre, Histoire générale des Antilles, ii. 371.]

[Footnote 59: Charlevoix, Voyage to North-America, ii. 187.]

[Footnote 60: Boas, in Fifth Report on the North-Western Tribes of Canada, p. 45.]

[Footnote 61: Tout, 'Ethnology of the Stlatlumh of British Columbia,' in Jour. Anthr. Inst. xxxv. 138.]

[Footnote 62: Teit, 'Thompson Indians of British Columbia,' in Memoirs of the American Museum of Natural History, Anthropology, i. 331.]

In several instances fasting after a death is observed only in the daytime.

David and his people fasted for Saul and Jonathan until even on the day when the news of their death arrived.[63] Among the Arabs of Morocco it is the custom that if a death takes place in the morning everyone in the village refrains from food until {300} the deceased is buried in the afternoon or evening; but if a person dies so late that he cannot be buried till the next morning the people eat at night. In the Pelew Islands, as long as the dead is unburied, fasting is observed in the daytime but not in the evening.[64] In Fiji after a burial the kana-bogi, or fasting till evening, is practised for ten or twenty days.[65] In Samoa it was common for those who attended the deceased to eat nothing during the day, but to have a meal at night.[66] In the Tuhoe tribe of the Maoris, "when a chief of distinction died his widow and children would remain for some time within the whare potae [that is, mourning house], eating food during the night time only, never during the day."[67] The Sacs and Foxes in Nebraska formerly required that children should fast for three months after the death of a parent, except that they every day about sunset were allowed to partake of a meal made entirely of hominy.[68] Among the Kansas a man who loses his wife must fast from sunrise to sunset for a year and a half, and a woman who loses her husband must observe a similar fast for a year.[69] In some tribes of British Columbia and among the Thlinkets, until the dead body is buried the relatives of the deceased may eat a little at night but have to fast during the day.[70] Among the Upper Thompson Indians a different custom prevailed: "nobody was allowed to eat, drink, or smoke in the open air after sunset (others say after dusk) before the burial, else the ghost would harm them."[71]

[Footnote 63: 2 Samuel, i. 12. Cf. ibid. iii. 35.]

[Footnote 64: Waitz, op. cit. v. 153.]

[Footnote 65: Williams and Calvert, Fiji, p. 169.]

[Footnote 66: Turner, Nineteen Years in Polynesia, p. 228. Idem, Samoa, p. 145.]

[Footnote 67: Best, 'Tuhoe Land,' in Trans. and Proceed. of the New Zealand Institute, xxx. 38.]

[Footnote 68: Yarrow, 'Mortuary Customs of the North American Indians,' in Ann. Rep. Bur. Ethn. i. 95.]

[Footnote 69: Dorsey, 'Mourning and War Customs of the Kansas,' in American Naturalist, xix. 679 sq.]

[Footnote 70: Boas, loc. cit. p. 41.]

[Footnote 71: Teit, loc. cit. p. 328.]

Very frequently mourners have to abstain from certain victuals only, especially flesh or fish, or some other staple or favourite food.

In Greenland everybody who had lived in the same house with the dead, or who had touched his corpse, was for some time forbidden to partake of certain kinds of food.[72] Among the Upper Thompson Indians "parents bereft of a child did not eat fresh meat for several months."[73] Among the Stlatlumh of {301} British Columbia a widow might eat no fresh food for a whole year, whilst the other members of the deceased person's family abstained from such food for a period of from four days to as many months. A widower was likewise forbidden to eat fresh meats for a certain period, the length of which varied with the age of the person--the younger the man, the longer his abstention.[74] In some of the Goajiro clans of Colombia a person is prohibited from eating flesh during the mourning time, which lasts nine days.[75] Among the Abipones, when a chief died, the whole tribe abstained for a month from eating fish, their principal dainty.[76] While in mourning, the Northern Queensland aborigines carefully avoid certain victuals, believing that the forbidden food, if eaten, would burn up their bowels.[77] In Easter Island the nearest relatives of the dead are for a year or even longer obliged to abstain from eating potatoes, their chief article of food, or some other victuals of which they are particularly fond.[78] Certain Papuans and various tribes in the Malay Archipelago prohibit persons in mourning from eating rice or sago.[79] In the Andaman Islands mourners refuse to partake of their favourite viands.[80] After the death of a relative the Tipperahs abstain from flesh for a week.[81] The same is the case with the Arakh, a tribe in Oudh, during the fifteen days in the month of Kuâr which are sacred to the worship of the dead.[82] Among the Nay[=a]dis of Malabar the relatives of the deceased are not allowed to eat meat for ten days after his death.[83] According to Toda custom the near relatives must not eat rice, milk, honey, or gram until the funeral is over.[84] Among the Hindus described by Mr. Chunder Bose a widow is restricted to one scanty meal a day, and this is of the coarsest description and always devoid of fish, the most esteemed article of food in a Hindu lady's bill of fare. The son, again, from {302} the hour of his father's death to the conclusion of the funeral ceremony, is allowed to take only a meal consisting of atab rice, a sort of inferior pulse, milk, ghee, sugar, and a few fruits, and at night a little milk, sugar, and fruits--a régime which lasts ten days in the case of a Brahmin and thirty-one days in the case of a Sûdra.[85] In some of the sacred books of India it is said that, during the period of impurity, all the mourners shall abstain from eating meat.[86] In China "meat, must, and spirits were forbidden even in the last month of the deepest mourning, when other sorts of food had long been allowed already."[87]

[Footnote 72: Egede, Description of Greenland, p. 149 sq. Cranz, History of Greenland, i. 218.]

[Footnote 73: Teit, loc. cit. p. 332.]

[Footnote 74: Tout, in Jour. Anthr. Inst. xxxv. 138 sq.]

[Footnote 75: Candelier, Rio-Hacha, p. 220.]

[Footnote 76: Charlevoix, History of Paraguay, i. 405.]

[Footnote 77: Lumholtz, Among Cannibals, p. 203.]

[Footnote 78: Geiseler, Die Oster-Insel, pp. 28, 30.]

[Footnote 79: Wilken, 'Ueber das Haaropfer, und einige andere Trauergebräuche bei den Völkern Indonesien's,' in Revue coloniale internationale, iv. 348 sq.]

[Footnote 80: Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 142**, 353.]

[Footnote 81: Browne, quoted by Dalton, op. cit. p. 110.]

[Footnote 82: Crooke, Tribes and Castes of the North-Western Provinces and Oudh, i. 84.]

[Footnote 83: Thurston, in the Madras Government Museum's Bulletin, iv. 76.]

[Footnote 84: Idem, ibid. i. 174. Dr. Rivers says (Todas, p. 370) that, among the Todas, a widower is not allowed to eat rice nor drink milk, and that on every return of the day of the week on which his wife died he takes no food in the morning but only has his evening meal. The same holds good for a widow.]

[Footnote 85: Bose, The Hindoos as they are, pp. 244, 254 sq.]

[Footnote 86: Gautama, xiv. 39. Institutes of Vishnu, xix. 15.]

[Footnote 87: de Groot, Religious System of China, (vol. ii. book) i. 651.]

The custom of fasting after a death has been ascribed to different causes by different writers. Mr. Spencer believes that it has resulted from the habit of making excessive provision for the dead.[88] But although among some peoples the funeral offerings no doubt are so extensive as to reduce the survivors to poverty and starvation,[89] I have met with no statement to the effect that they are anxious to give to the deceased all the eatables which they possess, or that the mourning fast is a matter of actual necessity. It is always restricted to some fixed period, often to a few days only, and it prevails among many peoples who have never been known to be profuse in their sacrifices to the dead. With reference to the Chinese, Dr. de Groot maintains that the mourners originally fasted with a view to being able to sacrifice so much the more at the tomb; and he bases this conclusion on the fact that the articles of food which were forbidden till the end of the deepest mourning were the very same as those which in ancient China played the principal part at every burial sacrifice.[90] But this prohibition may also perhaps be due to a belief that the offering of certain victuals to the dead pollutes all food belonging to the same species.

[Footnote 88: Spencer, Principles of Sociology, i. 261 sqq.]

[Footnote 89: Ibid. i. 262.]

[Footnote 90: de Groot, op. cit., (vol. ii. book) i. 652.]

Professor Wilken, again, suggests that the mourners abstain from food till they have given the dead his due, in {303} order to show that they do not wish to keep him waiting longer than is necessary and thus make him kindly disposed towards them.[91] This explanation presupposes that the fast is immediately followed by offerings or a feast for the dead. In some instances this is expressly said to be the case;[92] the ancient Chinese, for instance, observed a special fast as an introductory rite to the sacrifices which they offered to the manes at regular periods after the demise and even after the close of the mourning.[93] But generally there is no indication of the mourning fast being an essential preliminary to a sacrifice to the dead, and in an instance mentioned above the funeral feast regularly precedes it.[94]

[Footnote 91: Wilken, in Revue colonials internationale, iv. 347, 348, 350 sq. n. 32.]

[Footnote 92: Selenka, Sonnige Welten, p. 90 (Dyaks). Black, 'Fasting,' in Encyclopædia Britannica, ix. 44.]

[Footnote 93: de Groot, op. cit. (vol. ii. book) i. 656.]

[Footnote 94: Supra, ii. 299.]

It seems that Sir J. G. Frazer comes much nearer the truth when he observes that people originally fasted after a death "just in those circumstances in which they considered that they might possibly in eating devour a ghost."[95] Yet I think it would generally be more correct to say that they were afraid of swallowing, not the ghost, but food polluted with the contagion of death. The dead body is regarded as a seat of infection, which defiles anything in its immediate neighbourhood, and this infection is of course considered particularly dangerous if it is allowed to enter into the bowels. In certain cases the length of the mourning fast is obviously determined by the belief in the polluting presence of the ghost. The six days' fast of the Paressí coincides with the period after which the dead is supposed to have arrived in heaven no longer to return; and they say that anybody who should fail to observe this fast would "eat the mouth of the dead" and die himself.[96] Frequently the fasting lasts till the corpse is buried; and burial is a common safeguard against the return of the ghost.[97] The custom {304} of restricting the fast to the daytime probably springs from the idea that a ghost cannot see in the dark, and is consequently unable to come and pollute the food at night. That the object of the fast is to prevent pollution is also suggested by its resemblance to some other practices, which are evidently intended to serve this purpose. The Maoris were not allowed to eat on or near any spot where a dead body had been buried, or to take a meal in a canoe while passing opposite to such a place.[98] In Samoa, while a dead body is in the house, no food is eaten under the same roof; hence the family have their meals outside, or in another house.[99] The Todas, who fast on the day when a death has taken place, have on the following day their meals served in another hut.[100] In one of the sacred books of India it is said that a Brâhmana "shall not eat in the house of a relation within six degrees where a person has died, before the ten days of impurity have elapsed"; in a house "where a lying-in woman has not yet come out of the lying-in chamber"; nor in a house where a corpse lies;[101] and in connection with this last injunction we are told that, when a person who is not a relation has died, it is customary to place at the distance of "one hundred bows" a lamp and water-vessel, and to eat beyond that distance.[102] In one of the Zoroastrian books Ormuzd is represented as saying, "In a house when a person shall die, until three nights are completed . . . nothing whatever of meat is to be eaten by his relations";[103] and the obvious reason for this rule was the belief that the soul of the dead was hovering about the body for the first three nights after death.[104] Closely related to this custom is that of the modern Parsis, which forbids for three days all cooking under a roof where a death has occurred, but allows the inmates to obtain food from their neighbours {305} and friends.[105] Among the Agariya, a Dravidian tribe in the hilly parts of Mirzápur, no fire is lit and no cooking is done in the house of a dead person on the day when he is cremated, the food being cooked in the house of the brother-in-law of the deceased.[106] In Mykonos, one of the Cyclades, it is considered wrong to cook in the house of mourning; hence friends and relatives come laden with food, and lay the "bitter table."[107] Among the Albanians there is no cooking in the house for three days after a death, and the family are fed by friends.[108] So also the Maronites of Syria "dress no victuals for some time in the house of the deceased, but their relations and friends supply them."[109] When a Jew dies all the water in the same and adjoining houses is instantly thrown away;[110] nobody may eat in the same room with the corpse, unless there is only one room in the house, in which case the inhabitants may take food in it if they interpose a screen, so that in eating they do not see the corpse; they must abstain from flesh and wine so long as the dead body is in the house;[111] and on the evening of mourning the members of the family may not eat their own food, but are supplied with food by their friends.[112]

Among the Arabs of Morocco, if a person has died in the morning, no fire is made in the whole village until he is buried, and in some parts of the country the inmates of a house or tent where a death has occurred, abstain from making fire for two or three days. In Algeria "dès que quelqu'un est mort, on ne doit pas allumer de feu dans la maison pendant trois jours, et il est défendu de toucher à de la viande rôtie, grillée ou bouillie, à moins qu'elle ne vienne de quelqu'un de dehors."[113] In China, for seven days after a death "no food is cooked in the house, and friends {306} and neighbours are trusted to supply the common necessaries of life."[114] There is no sufficient reason to assume that this practice of abstaining from cooking food after a death is a survival of a previous mourning fast, but the two customs seem partly to have a similar origin. The cooking may contaminate the food if done in a polluted house, or by a polluted individual. The relatives of the dead, or persons who have handled the corpse, are regarded as defiled; hence they have to abstain from cooking food, as they have to abstain from any kind of work,[115] and from sexual intercourse.[116] Hence, also, they are often prohibited from touching food; and this may in some cases have led to fasting, whilst in other instances they have to be fed by their neighbours.[117]

[Footnote 95: Frazer, 'Certain Burial Customs as illustrative of the Primitive Theory of the Soul,' in Jour. Anthr. Inst. xv. 94. See also Oldenberg, Die Religion des Veda, pp. 270, 590.]

[Footnote 96: von den Steinen, op. cit. p. 434 sq.]

[Footnote 97: Infra, on Regard for the Dead.]

[Footnote 98: Polack, Manners ani Customs of the New Zealanders, i. 239.]

[Footnote 99: Turner, Nineteen Years in Polynesia, p. 228. Idem, Samoa, p. 145.]

[Footnote 100: Thurston, in the Madras Government Museum's Bulletin, i. 174.]

[Footnote 101: Âpastamba, i. 5. 16. 18 sqq.]

[Footnote 102: Haradatta, quoted by Bühler, in Sacred Books of the East, ii. 59, n. 20.]

[Footnote 103: Shâyast Lâ-Shâyast, xvii. 2.]

[Footnote 104: West, in Sacred Books of the East, v. 382, n. 3.]

[Footnote 105: West, ibid. v. 382, n. 2.]

[Footnote 106: Crooke, Tribes and Castes of the North-Western Provinces, i. 7.]

[Footnote 107: Bent, Cyclades, p. 221.]

[Footnote 108: von Hahn, Albanesische Studien, p. 151.]

[Footnote 109: Dandini, 'Voyage to Mount Libanus,' in Pinkerton, Collection of Voyages, x. 290.]

[Footnote 110: Allen, Modern Judaism, p. 435.]

[Footnote 111: Bodenschatz, Kirchliche Verfassung der heutigen Juden, iv. 177.]

[Footnote 112: Buxtorf, Synagoga Judaica, p. 707.]

[Footnote 113: Certeux and Carnoy, L'Algérie traditionelle, p. 220.]

[Footnote 114: Gray, China, i. 287 sq.]

[Footnote 115: Supra, ii. 283 sq.]

[Footnote 116: Teit, loc. cit. p. 331 (Upper Thompson Indians). Tout, in Jour. Anthr. Inst. xxxv. 139 (Stlatlumh of British Columbia). Oldenberg, Die Religion des Veda, pp. 578, 590; Caland, Die Altindischen Todten- und Bestattungsgebräuche, p. 81. de Groot, op. cit. (vol. ii. book) i. 609 (Chinese). Wilken, in Revue internationale coloniale, iv. 352, n. 41.]

[Footnote 117: Turner, Samoa, p. 145; Idem, Nineteen Years in Polynesia, p. 228 (Samoans). Ellis, Polynesian Researches, i. 403 (Tahitians). Frazer, Golden Bough, i. 323 (Maoris). Williams and Calvert, Fiji, p. 169. Among the Upper Thompson Indians the

persons who handled the dead body would not touch the food with their hands, but must put it into their mouths with sharp-pointed sticks (Teit, loc. cit. p. 331).]

However, an unclean individual may be supposed to pollute a piece of food not only by touching it with his hand, but in some cases by eating it; and, in accordance with the principle of pars pro toto, the pollution may then spread to all victuals belonging to the same species. Ideas of this kind are sometimes conspicuous in connection with the restrictions in diet after a death. Thus the Siciatl of British Columbia believe that a dead body, or anything connected with the dead, is inimical to the salmon, and therefore the relatives of a deceased person must abstain from eating salmon in the early stages of the run, as also from entering a creek where salmon are found.[118] Among the Stlatlumh, a neighbouring people, not even elderly widowers, for whom the period of abstention is comparatively {307} short, are allowed to eat fresh salmon till the first of the run is over and the fish have arrived in such numbers that there is no danger of their being driven away.[119] It is not unlikely that if the motives for the restrictions in diet after a death were sufficiently known in each case, a similar fear lest the unclean mourner should pollute the whole species by polluting some individual member of it would be found to be a common cause of those rules which prohibit the eating of staple or favourite food.[120] But it would seem that such rules also may spring from the idea that this kind of food is particularly sought for by the dead and therefore defiled.

[Footnote 118: Tout, 'Ethnology of the Siciatl of British Columbia,' in Jour. Anthr. Inst. xxxiv. 33.]

[Footnote 119: Tout, in Jour. Anthr. Inst. xxxv. 139.]

[Footnote 120: In the Arunta tribe, Central Australia, no menstruous woman is allowed to gather the Irriakura bulbs, which form a staple article of diet for both men and women, the idea being that any infringement of the restriction would result in the failure of the supply of the bulb (Spencer and Gillen, Northern Tribes of Central Australia, p. 615).]

Moreover, unclean individuals are not only a danger to others, but are themselves in danger. As Sir J. G. Frazer has shown, they are supposed to be in a delicate condition, which imposes upon them various precautions;[121] and one of these may be restrictions in their diet. Among the Thlinkets and some peoples in British Columbia the relatives of the deceased not only fast till the body is buried, but have their faces blackened, cover their heads with ragged mats, and must speak but little, confining themselves to answering questions, as it is believed that they would else become chatterboxes.[122] According to early ideas, mourners are in a state very similar to that of girls at puberty, who also, among various peoples, are obliged to fast or abstain from certain kinds of food on account of their uncleanness.[123] Among the Stlatlumh, for instance, {308} when a girl reaches puberty, she fasts for the first four days and abstains from fresh meats of any kind throughout the whole period of her seclusion. "There was a two-fold object in this abstention. First, the girl, it was thought, would be harmed by the fresh meat in her peculiar condition; and second, the game animals would take offence if she partook of their meat in these circumstances," and would not permit her father to kill them.[124]

[Footnote 121: Frazer, Golden Bough, i. 343, &c.]

[Footnote 122: Boas, loc. cit. p. 41.]

[Footnote 123: Boas, loc. cit. p. 40 sqq. (various tribes in British Columbia). Tout, in Jour. Anthr. Inst. xxxiv. 33 (Siciatl). Sproat, Scenes and Studies of Savage Life, p. 93 sq. (Ahts). Bourke, 'Medicine-Men of the Apache,' in Ann. Rep. Bur. Ethn. ix. 501. Du Tertre, Histoire générale des Antilles, ii. 371. Schomburgk, 'Natives of Guiana,' in Jour.

Ethn. Soc. London, i. 269 sq. von Martius, Beiträge zur Ethnographie Amerika's, i. 644 (Macusis). Seligmann, in Reports of the Cambridge Expedition to Torres Straits, v. 200 sqq. (Western Islanders). Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 94. See Frazer, op. cit. iii. 205 sqq.]

[Footnote 124: Tout, in Jour. Anthr. Inst. xxxv. 136.]

It should finally be noticed that, though the custom of fasting after a death in the main has a superstitious origin, there may at the same time be a physiological motive for it.[125] Even the rudest savage feels afflicted at the death of a friend, and grief is accompanied by a loss of appetite. This natural disinclination to partake of food may, combined with superstitious fear, have given rise to prohibitory rules, nay, may even in the first instance have suggested the idea that there is danger in taking food. The mourning observances so commonly coincide with the natural expressions of sorrow, that we are almost bound to assume the existence of some connection between them, even though in their developed forms the superstitious motive be the most prominent.

[Footnote 125: Cf. Mallery, 'Manners and Meals,' in American Anthropologist, i. 202; Brinton, Religions of Primitive Peoples, p. 213; Schurtz, Urgeschichte der Kultur, p. 587.]

An important survival of the mourning fast is the Lent fast. It originally lasted for forty hours only, that is, the time when Christ lay in the grave.[126] Irenaeus speaks of the fast of forty hours before Easter,[127] and Tertullian, when a Montanist disputing against the Catholics, says that the only legitimate days for Christian fasting were those in which the Bridegroom was taken away.[128] Subsequently, however, the forty hours were extended to forty {309} days, in imitation of the forty days' fasts of Moses, Elijah, and Christ.[129]

[Footnote 126: Cf. St. Matthew, ix. 15; St. Mark, ii. 20; St. Luke, v. 35.]

[Footnote 127: Irenaeus, quoted by Eusebius, Historia ecclesiastica, v. 24 (Migne, Patrologiæ cursus, Ser. Graeca, xx. 501). Cf. Funk, 'Die Entwicklung des Osterfastens,' in Theologische Quartalschrift, lxxv. 181 sqq.; Duchesne, Christian Worship, p. 241.]

[Footnote 128: Tertullian, De jejuniis, 2 (Migne, op. cit. ii. 956).]

[Footnote 129: St. Jerome, Commentarii in Jonam, 3 (Migne, op. cit. xxv. 1140). St. Augustine, Epistola LV (alias CXIX), 'Ad inquisitiones Januarii,' 15 (Migne, xxxiii. 217 sq.). Funk, loc. cit. p. 209.]

Not only on a death, but on certain other occasions, food is supposed to pollute or injure him who partakes of it, and is therefore to be avoided. In Pfalz the people maintain that no food should be taken at an eclipse of the sun;[130] and all over Germany there is a popular belief that anybody who eats during a thunderstorm will be struck by the lightning.[131] When the Todas know that there is going to be an eclipse of the sun or the moon, they abstain from food.[132] Among the Hindus, while an eclipse is going on, "drinking water, eating food, and all household business, as well as the worship of the gods, are all prohibited"; high-caste Hindus do not even eat food which has remained in the house during an eclipse, but give it away, and all earthen vessels in use in their houses at the time must be broken.[133] Among the rules laid down for Snâtakas, that is, Brâhmanas who have completed their studentship, there is one which forbids them to eat, travel, and sleep during the twilight;[134] and in one of the Zoroastrian Pahlavi texts it is said that "in the dark it is not allowable to eat food, for the demons and fiends seize upon one-third of the wisdom and glory of him who eats food in the dark."[135] Many Hindus who revere the sun do not break their fast in the morning till they catch a clear view of it, and do not eat at all on days when it is obscured by clouds[136]--a custom to which there is a parallel among some North American sun-worshippers, the Snanaimuq Indians belonging to the Coast Salish, who

must not partake of any food until the sun is well up in the sky.[137] Brahmins {310} fast at the equinoxes, solstices, conjunctions of planets, and on the days of the new and full moon.[138] The Buddhist Sabbath, or Uposatha, which, as we have noticed above, occurs on the day of full moon, on the day when there is no moon, and on the two days which are eighth from the full and new moon, is not only a day of rest, but has also from ancient times been a fast-day. He who keeps the Sabbath rigorously abstains from all food between sunrise and sunset, and, as no cooking must be done during the Uposatha, he prepares his evening meal in the early morning before the rise of the sun.[139]

[Footnote 130: Schönwerth, Aus der Oberpfalz, iii. 55.]

[Footnote 131: Haberland, in Zeitschr. f. Völkerpsychologie, xviii. 258.]

[Footnote 132: Rivers, op. cit. p. 592 sq.]

[Footnote 133: Crooke, Popular Religion of Northern India, i. 21 sq.]

[Footnote 134: Laws of Manu, iv. 55.]

[Footnote 135: Shâyast Lâ-Shâyast, ix. 8.]

[Footnote 136: Wilson, Works, i. 266. Hunter, Annals of Rural Bengal, ii. 285. Crooke, Things Indian, p. 214.]

[Footnote 137: Boas, loc. cit. p. 51.]

[Footnote 138: Dubois, Description of the People of India, p. 160. See also supra, ii. 297.]

[Footnote 139: Childers, Dictionary of the Pali Language, p. 535. Kern, Der Buddhismus, ii. 258.]

Among the Jews there are many who abstain from food on the day of an eclipse of the moon, which they regard as an evil omen.[140] We have also reason to believe that the Jews were once in the habit of observing the new moons and Sabbaths not only as days of rest, but as fast-days; and the Hebrew Sabbath, as we have seen, in all probability owes its origin to superstitious fear of the changes in the moon.[141] Or how shall we explain the curious rule which forbids fasting on a new moon and on the seventh day,[142] if not as a protest against a fast once in vogue among the Jews on these occasions, but afterwards regarded as an illegitimate rite?[143] This theory is not new, for Hooker in his 'Ecclesiastical Polity' observes that "it may be a question, whether in some sort they did not always fast on the Sabbath." He refers to a statement of Josephus, according to which the sixth hour "was wont on the Sabbath always to call them home unto meat," and to certain pagan writers who upbraided them with fasting on that day.[144] In Nehemiah there is an indication that it was a custom to fast on the first day of the seventh month,[145] {311} which is "holy unto the Lord";[146] and on the tenth day of the same month there was the great fast of atonement, combined with abstinence from every kind of work.[147] I venture to think that all these fasts may be ultimately traced to a belief that the changes in the moon not only are unfavourable for work, but also make it dangerous to partake of food. The fact of the seventh day being a day of rest established the number seven as a sabbatical number. In the seventh month there are several days, besides Saturdays, which are to be observed as days of rest,[148] and in the seventh year there shall be "a sabbath of rest unto the land."[149] In these Sabbatarian regulations the day of atonement plays a particularly prominent part. The severest punishment is prescribed for him who does not rest and fast on that day "from even unto even";[150] and it is on the same day that, after the lapse of seven times seven years, the trumpet of the jubilee shall be caused to sound throughout the land.[151] Most of the rules concerning the day of atonement are undoubtedly post-exilic. But the fact that no other regular days of fasting but those mentioned by Zechariah are referred to by the prophets or in earlier books, hardly justifies the conclusion drawn by many

scholars that no such fast existed. It is extremely probable that the fast of the tenth day of the seventh month as a fast of atonement is of a comparatively modern date; but it is perhaps not too bold to suggest that the idea of atonement is a later interpretation of a previously existing fast, which was originally observed for fear of the dangerous quality attributed to the number seven. Why this fast was enjoined on the tenth day of the seventh month remains obscure; but it seems that the order of the month was considered more important than that of the day. Nehemiah speaks of a fast which {312} was kept on the twenty-fourth day of the seventh month.[152]

[Footnote 140: Buxtorf, op. cit. p. 477.]

[Footnote 141: Supra, ii. 286 sq.]

[Footnote 142: Judith, viii. 6. Schulchan Aruch, i. 91, 117.]

[Footnote 143: See Jastrow, 'Original Character of the Hebrew Sabbath,' in American Journal of Theology, ii. 325.]

[Footnote 144: Hooker, Ecclesiastical Polity, v. 72, vol. ii. 338.]

[Footnote 145: Nehemiah, viii. 2, 10:--"Then he said unto them, Go your way, eat the fat, and drink the sweet, and send portions unto them for whom nothing is prepared."]

[Footnote 146: Nehemiah, viii. 9 sqq. See also Leviticus, xxiii. 24 sq.; Numbers, xxix. 1. Among the Babylonians, too, the seventh month had a sacred character (]astrow, Religion of Babylonia and Assyria, pp. 681, 683, 686).]

[Footnote 147: Leviticus, xvi. 29, 31; xxiii. 27 sqq. Numbers, xxix. 7.]

[Footnote 148: Leviticus, xxiii. 24, 25, 35, 36, 39. Numbers, xxix. 1, 12, 35.]

[Footnote 149: Leviticus, xxv. 4. See also Exodus, xxiii. 10 sq.]

[Footnote 150: Leviticus, xxiii. 29 sq.]

[Footnote 151: Ibid. xxv. 9.]

[Footnote 152: Nehemiah, ix. 1.]

In other Semitic religions we meet with various fasts which are in some way or other connected with astronomical changes. According to En-Nedîm, the Harranians, or "Sabians," observed a thirty days' fast in honour of the moon, commencing on the eighth day after the new moon of Adsâr (March); a nine days' fast in honour of "the Lord of Good Luck" (probably Jupiter),[153] commencing on the ninth day before the new moon of the first Kânûn (December); and a seven days' fast in honour of the sun, commencing on the eighth or ninth day after the new moon of Shobâth (February).[154] The thirty days' fast seems to have implied abstinence from every kind of food and drink between sunrise and sunset,[155] whereas the seven days' fast is expressly said to have consisted in abstinence from fat and wine.[156] In Manichæism--which is essentially based upon the ancient nature religion of Babylonia, though modified by Christian and Persian elements and elevated into a gnosis[157]--we meet with a great number of fasts. There is a continuous fast for two days when the sun is in Sagittarius (which it enters about the 22nd November) and the moon has its full light; another fast when the sun has entered Capricornus (which it does about the 21st December) and the moon first becomes visible; and a thirty days' fast between sunrise and sunset commencing on the day "when the new moon begins to shine, the sun is in Aquarius (where it is from about the 20th January), and eight days of the month have passed," which seems to imply that the fast cannot begin until eight days after the sun has entered Aquarius and that consequently, if the new moon {313} appears during that period, the commencement of the fast has to be postponed till the following new moon. The Manichaeans also fasted for two days at every new moon; and our chief authority on the subject, En-Nedîm, states that they had seven fast-days in each month. They fasted on Sundays, and some of them, the electi or "perfect ones," on Mondays also.[158]

We are told by Leo the Great that they observed these weekly fasts in honour of the sun and the moon;[159] but according to the Armenian Bishop Ebedjesu their abstinence on Sunday was occasioned by their belief that the destruction of the world was going to take place on that day.[160] There can be little doubt that the Harranian and Manichæan fasts were originally due, not to reverence, but to fear of evil influences; reverence can never be the primitive motive for a customary rite of fasting. The thirty days' fast which the Harranians observed in the month of Adsâr finds perhaps its explanation in the fact that, according to Babylonian beliefs, the month Adar was presided over by the seven evil spirits, who knew neither compassion nor mercy, who heard no prayer or supplication, and to whose baneful influence the popular faith attributed the eclipse of the moon.[161] But it may also be worth noticing that the Harranian fast took place about the vernal equinox--a time at which, as we have seen, the Brahmins of India are wont to fast, though only for a day or two.

[Footnote 153: Chwolsohn, Die Ssabier, ii. 226, n. 247.]

[Footnote 154: En-Nedîm, Fihrist, (book ix. ch. i.) i. 4; v. 8, 11 sq. (Chwolsohn, op. cit. ii. 6, 7, 32, 35 sq.). See also Chwolsohn, i. 533 sqq.; ii. 75 sq.]

[Footnote 155: Chwolsohn, op. cit. ii. 71 sq. Cf. Abûlfedâ, 6 (ibid. ii. 500).]

[Footnote 156: En-Nedîm, op. cit. v. 11 (Chwolsohn, op. cit. ii. 36).]

[Footnote 157: Kessler, 'Mani, Manichäer,' in Herzog-Hauck, Realencyclopädie f. protestantische Theologie, xii. 198 sq. Harnack, History of Dogma, iii. 330. Idem, 'Manichæism,' in Encyclopædia Britannica, xv. 485.]

[Footnote 158: En-Nedîm, Fihrist, in Flügel, Mani, pp. 95, 97. Flügel, p. 311 sqq. Kessler, loc. cit. p. 212 sq.]

[Footnote 159: Leo the Great, Sermo XLII. (al. XLI.) 5 (Migne, op. cit. liv. 279).]

[Footnote 160: Flügel, op. cit. p. 312 sq.]

[Footnote 161: Jastrow, Religion of Babylonia and Assyria, pp. 263, 276, 463.]

It is highly probable that the thirty days' fast of the Harranians and Manichæans is the prototype of the Muhammedan fast of Rama[d.]ân. During the whole ninth month of the Muhammedan year the complete abstinence from food, drink and cohabitation from sunrise till sunset is enjoined upon every Moslem, with the exception of young children and idiots, as also sick persons and travellers, who are allowed to postpone the {314} fast to another time.[162] This fast is said to be a fourth part of Faith, the other cardinal duties of religious practice being prayer, almsgiving, and pilgrimage. But, as a matter of fact, modern Muhammedans regard the fast of Rama[d.]ân as of more importance than any other religious observance;[163] many of them neglect their prayers, but anybody who should openly disregard the rule of fasting would be subject to a very severe punishment.[164] Even the privilege granted to travellers and sick persons is not readily taken advantage of. During their marches in the middle of summer nothing but the apprehension of death can induce the Aeneze to interrupt the fast;[165] and when Burton, in the disguise of a Muhammedan doctor, was in Cairo making preparations for his pilgrimage to Mecca, he found among all those who suffered severely from such total abstinence only one patient who would eat even to save his life.[166] There is no evidence that the fast of Rama[d.]ân was an ancient, pre-Muhammedan custom.[167] On the other hand, its similarity with the Harranian and Manichæan fasts is so striking that we are almost compelled to regard them all as fundamentally the same institution; and if this assumption is correct, Muhammed must have borrowed his fast from the Harranians or Manichæans or both. {315} Indeed, Dr. Jacob has shown that in the year 623, when this fast seems to have been instituted, Rama[d.]ân exactly coincided with the Harranian fast-month.[168] In its Muhammedan form the fast extending over a

whole month is looked upon as a means of expiation. It is said that by the observance of it a person will be pardoned all his past venial sins, and that only those who keep it will be allowed to enter through the gate of heaven called Rayyân.[169] But this is only another instance of the common fact that customs often for an incalculable period survive the motives from which they sprang.

[Footnote 162: Koran, ii. 180, 181, 183.]

[Footnote 163: Cf. Lane, Modern Egyptians, p. 106.]

[Footnote 164: von Kremer, Culturgeschichte des Orients, i. 460.]

[Footnote 165: Burckhardt, Bedouins and Wahábys, p. 57.]

[Footnote 166: Burton, Pilgrimage to Al-Madinah and Meccah, i. 74.]

[Footnote 167: We can hardly regard as such the passage in the Koran (ii. 179) where it is said, "O ye who believe! There is prescribed for you the fast as it was prescribed for those before you; haply ye may fear." The traditionists say that Muhammed was in the habit of spending the month of Rama[d.]ân every year in the cave at Hirâ, meditating and feeding all the poor who resorted to him, and that he did so in accordance with a religious practice which the Koreish used to perform in the days of their heathenism. Others add that [(]Abd al-Mu[t.][t.]alib commenced the practice, saying "that it was the worship of God which that patriarch used to begin with the new moon of Rama[d.]ân, and continue during the whole of the month" (Muir, Life of Mahomet, ii. 56, n.* Sell, Faith of Islám, p. 316). But, as Muir remarks (op. cit. ii. 56, n.*), it is the tendency of the traditionists to foreshadow the customs and precepts of Islam as if some of them had existed prior to Muhammed, and constituted part of "the religion of Abraham." See Jacob, 'Der muslimische Fastenmonat Rama[d.]ân,' in VI. Jahresbericht der Geographischen Gesellsch. zu Greifswald, pt. i. 1893-96, p. 2, sqq.]

[Footnote 168: Jacob, loc. cit. p. 5.]

[Footnote 169: Sell, op. cit. p. 317.]

In various religions we meet with fasting as a form of penance, as a means of appeasing an angry or indignant God, as an expiation for sin.[170] The voluntary suffering involved in it is regarded as an expression of sorrow and repentance pleasing to God, as a substitute for the punishment which He otherwise would inflict upon the sinner; and at the same time it may be thought to excite His compassion, an idea noticeable in many Jewish fasts.[171] Among the Jews individuals fasted in cases of private distress or danger: Ahab, for instance, when Elijah predicted his downfall,[172] Ezra and his companions before their journey to Palestine,[173] the pious Israelite when his friends were sick.[174] Moreover, fasts were instituted for the whole community when it believed itself to be under divine displeasure, when danger threatened, when a great calamity befell the land, when pestilence raged or drought set in, or there was a reverse in war.[175] Four {316} regular fast-days were established in commemoration of various sad events that had befallen Israel during the captivity;[176] and in the course of time many other fasts were added, in memory of certain national troubles, though they were not regarded as obligatory.[177] The law itself enjoined fasting for the great day of atonement only.

[Footnote 170: Wasserschleben, Die Bussordnungen der abendländischen Kirche, passim (Christianity). Koran, ii. 192; iv. 94; v. 91, 96; lviii. 5. Jolly, 'Recht und Sitte,' in Bühler, Grundriss der indo-arischen Philologie, p. 117; Dubois, Description of the Character, &c. of the People of India, p. 160 (Brahmanism). Clavigero, History of Mexico, i. 285. On the occasion of any public calamity the Mexican high-priest retired to a wood, where he constructed a hut for himself, and shut up in this hut he passed nine or ten

months in constant prayer and frequent effusions of blood, eating only raw maize and water (Torquemada, Monarchia Indiana, ix. 25, vol. ii. 212 sq.).]

[Footnote 171: Cf. Benzinger, 'Fasting,' in Encyclopædia Biblica, ii. 1508; Schwally, Das Leben nach dem Tode nach den Vorstellungen des alten Israel, p. 26.]

[Footnote 172: 1 Kings, xxi. 27.]

[Footnote 173: Ezra, viii. 21.]

[Footnote 174: Psalms, xxxv. 13.]

[Footnote 175: Judges, xx. 26. 1 Samuel, vii. 6. 2 Chronicles, xx. 3. Nehemiah, ix. 1. Jeremiah, xxxvi. 9. Joel, i. 14; ii. 12.]

[Footnote 176: Zechariah, viii. 19.]

[Footnote 177: Greenstone, in Jewish Encyclopedia, v. 347.]

It may be asked why this particular kind of self-mortification became such a frequent and popular form of penance as it did both in Judaism and in several other religions. One reason is, no doubt, that fasting is a natural expression of contrition, owing to the depressing effect which sorrow has upon the appetite. Another reason is that the idea of penitence, as we have just observed, may be a later interpretation put upon a fast which originally sprang from fear of contamination. Nay, even when fasting is resorted to as a cure in the case of distress or danger, as also when it is practised in commemoration of a calamity, there may be a vague belief that the food is polluted and should therefore be avoided. But in several cases fasting is distinctly a survival of an expiatory sacrifice. The sacrifice of food offered to the deity was changed into the "sacrifice" involved in the abstinence from food on the part of the worshipper. We find that among the Jews the decay of sacrifice was accompanied by a greater frequency of fasts. It was only in the period immediately before the exile that fasting began to acquire special importance; and the popular estimation of it went on increasing during and after the exile, partly at least from a feeling of the need of religious exercises to take the place of the suspended temple services.[178] Like sacrifice, fasting was a regular appendage to prayer, as a means of giving special efficacy to the supplication;[179] fasting and praying became in fact a constant combination of words.[180] And equally close is the {317} connection between fasting and almsgiving--a circumstance which deserves special notice where almsgiving is regarded as a form of sacrifice or has taken the place of it.[181] In the penitential regulations of Brahmanism we repeatedly meet with the combination "sacrifice, fasting, giving gifts";[182] or also fasting and giving gifts, without mention being made of sacrifice.[183] Among the Jews each fast-day was virtually an occasion for almsgiving,[184] in accordance with the rabbinic saying that "the reward of the fast-day is in the amount of charity distributed";[185] but fasting was sometimes declared to be even more meritorious than charity, because the former affects the body and the latter the purse only.[186] And from Judaism this combination of fasting and almsgiving passed over into Christianity and Muhammedanism. According to Islam, it is a religious duty to give alms after a fast;[187] if a person through the infirmity of old age is not able to keep the fast, he must feed a poor person;[188] and the violation of an inconsiderate oath may be expiated either by once feeding or clothing ten poor men, or liberating a Muhammedan slave or captive, or fasting three days.[189] In the Christian Church fasting was not only looked upon as a necessary accompaniment of prayer, but whatever a person saved by means of it was to be given to the poor.[190] St. Augustine says that man's righteousness in this life consists in fasting, alms, and prayer, that alms and fasting are the two wings which enable his prayer to fly upward to God.[191] But fasting without almsgiving "is not {318} so much as counted for fasting";[192] that which is gained by the fast at dinner ought not to be turned into a

feast at supper, but should be expended on the bellies of the poor.[193] And if a person was too weak to fast without injuring his health he was admonished to give the more plentiful alms.[194] Tertullian expressly calls fastings "sacrifices which are acceptable to God."[195] They assumed the character of reverence offerings, they were said to be works of reverence towards God.[196] But fasting, as well as temperance, has also from early times been advocated by Christian writers on the ground that it is "the beginning of chastity,"[197] whereas "through love of eating love of impurity finds passage."[198]

[Footnote 178: Benzinger, in Encyclopædia Biblica, ii. 1508. Nowack, Lehrbuch der hebräischen Archäologie, ii. 271.]

[Footnote 179: Löw, Gesammelte Schriften, i. 108. Nowack, op. cit. ii. 271. Benzinger, in Encyclopædia Biblica, ii. 1507.]

[Footnote 180: Judith, iv. 9, 11. Tobit, xii. 8. Ecclesiasticus, xxxiv. 26. St. Luke, ii. 37.]

[Footnote 181: Supra, i. 565 sqq.]

[Footnote 182: Gautama, xix. 11. Vasishtha, xxii. 8. Baudhâyana, iii. 10. 9.]

[Footnote 183: Vasishtha, xx. 47.]

[Footnote 184: Kohler, 'Alms,' in Jewish Encyclopedia, i. 435. Löw, op. cit. i. 108. Cf. Tobit, xii. 8; Katz, Der wahre Talmudjude, p. 43.]

[Footnote 185: Ibid. fol. 6 b, quoted by Greenstone, in Jewish Encyclopedia, v. 349.]

[Footnote 186: Berakhoth, fol. 32 b, quoted by Hershon, Treasures of the Talmud, p. 124.]

[Footnote 187: Sell, op. cit. p. 251.]

[Footnote 188: Ibid. p. 281. This opinion is based on a sentence in the Koran (ii. 180) which has caused a great deal of dispute. It is said there that "those who are fit to fast may redeem it by feeding a poor man." But the expression "those who are fit to fast" has been understood to mean those who can do so only with great difficulty.]

[Footnote 189: Koran, v. 91. Lane, Modern Egyptians, p. 313 sq. See also Koran, ii. 192; iv. 94; v. 96; lviii. 5.]

[Footnote 190: Harnack, History of Dogma, i. 205, n. 5. Löw, op. cit. i. 108.]

[Footnote 191: St. Augustine, Enarratio in Psalmum XLII. 8 (Migne, Patrologiæ cursus, xxxvi. 482).]

[Footnote 192: St. Chrysostom, In Matthæum Homil. LXXVII. (al. LXXVIII.) 6 (Migne, op. cit. Ser. Graeca, lviii. 710). St. Augustine, Sermones supposititii, cxlii. 2, 6 (Migne, xxxix. 2023 sq.).]

[Footnote 193: St. Augustine, Sermones supposititii, cxli. 4 (Migne, op. cit. xxxix. 2021). See also Canons enacted under King Edgar, 'Of Powerful Men,' 3 (Ancient Laws of England, p. 415); Ecclesiastical Institutes, 38 (ibid. p. 486).]

[Footnote 194: St. Chrysostom, In Cap. I. Genes. Homil. X. 2 (Migne, op. cit. Ser. Graeca, liii. 83). St. Augustine, Sermones supposititii, cxlii. 1 (Migne, xxxix. 2022 sq.).]

[Footnote 195: Tertullian, De resurrectione carnis, 8 (Migne, op. cit. ii. 806).]

[Footnote 196: Hooker, Ecclesiastical Polity, v. 72, vol. ii. 334.]

[Footnote 197: St. Chrysostom, In Epist. II. ad Thessal. Cap. I. Homil. I. 2 (Migne, op. cit. Ser. Gr. lxii. 470).]

[Footnote 198: Tertullian, De jejuniis, 1 (Migne, op. cit. ii. 953). See also Manzoni, Osservazioni sulla morale cattolica, p. 175.]

Chapter XXXVIII

RESTRICTIONS IN DIET (concluded)

BESIDES the occasional abstinence from certain victuals, which was noticed in the last chapter, there are restrictions in diet of a more durable character.

Thus among the Australian aborigines the younger members of a tribe are, as it seems universally, subject to a variety of such restrictions, from which they are only gradually released as they grow older.[1] In the Wotjobaluk tribe in South-Eastern Australia, for instance, boys are forbidden to eat of the kangaroo and the padi-melon, being told that if they transgress these rules they will fall sick, break out all over with eruptions, and perhaps die. If a man under forty eats the tail part of the emu or bustard, he will turn grey, and if he eats the freshwater turtle he will be killed by lightning. If young men or women of the Wakelbura tribe eat emu, black-headed snake, or porcupine, they will become sick and probably die, uttering the sounds peculiar to the creature in question, the spirit of which is believed to have entered into their bodies.[2] In the Warramunga tribe in Central Australia a man is usually well in the middle age before he {320} is allowed to eat wild turkey, rabbit-bandicoot, and emu.[3] According to certain writers, the object of these restrictions is to reserve the best things for the use of the elders, and, more especially, of the older men;[4] but, on the other hand, it has been remarked that, in looking over the list of animals prohibited, one fails to see any good reasons for the selection, unless they may be assumed to have chiefly sprung from superstitious beliefs.[5] Among the Land Dyaks the young men and warriors are debarred from venison for fear it should render them as timid as the hind.[6] The Moors believe that if a young person before the age of puberty eats wolf's flesh he will have troubles afterwards.

[Footnote 1: Curr, The Australian Race, i. 81. Fraser, Aborigines of New South Wales, p. 53. Howitt, Native Tribes of South-East Australia, p. 769 sq. Brough Smyth, Aborigines of Victoria, i. p. xxxv. Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, p. 137. Jung, 'Die Mündungsgegend des Murray und ihre Bewohner,' in Mittheil. d. Vereins f. Erdkunde zu Halle, 1877, p. 32. Spencer and Gillen, Native Tribes of Central Australia, p. 470 sqq. Iidem, Northern Tribes of Central Australia, p. 611 sq. Eyre, Expeditions of Discovery into Central Australia, ii. 293.]

[Footnote 2: Howitt, op. cit. p. 769.]

[Footnote 3: Spencer and Gillen, Northern Tribes of Central Australia, p. 612.]

[Footnote 4: Iidem, Native Tribes of Central Australia, p. 470 sq. Iidem, Northern Tribes of Central Australia, p. 613. Jung, in Mittheil. d. Vereins f. Erdkunde zu Halle, 1877, p. 32.]

[Footnote 5: Brough Smyth, op. cit. i. 234.]

[Footnote 6: St. John, Life in the Forests of the Far East, i. 186.]

There are, further, numerous instances of certain kinds of food being permanently forbidden to certain individuals. In Unyamwezi, south of Victoria Nyanza, women are not permitted to eat fowl, a food which is reserved for the men.[7] Among the Mandingoes of Teesee no woman is allowed to eat an egg, and this prohibition is so rigidly adhered to that "nothing will more affront a woman of Teesee than to offer her an egg"; the men, on the other hand, eat eggs without scruple, even in the presence of their wives.[8] Among the Bayaka, a Bantu people in the Congo Free State, both fowls and eggs are forbidden to women; "if a woman eats an egg she is supposed to become mad,

tear off her clothes and run away into the bush."[9] The Bahima of Enkole, in the Uganda Protectorate, allow men to eat beef and the meat of certain antelopes and of buffalo, whereas women are generally allowed to eat beef only.[10] The people of Darfur, in Central Africa, prohibit their women from eating an animal's liver, because they think {321} that a person may increase his soul by partaking of it, and women are believed to have no souls.[11] The Miris of Northern India prize tiger's flesh as food for men, but consider it unsuitable for women, as "it would make them too strong-minded."[12] In the Australian tribes some articles of food are entirely interdicted to females.[13] The natives inhabiting the neighbourhood of Cape York forbid women to eat various kinds of fish, including some of the best, "on the pretence of causing disease in women, although not injurious to the men."[14] In the Sandwich Islands, again, women were not allowed to eat hog's flesh, turtle, and certain kinds of fruit, as cocoa and banana.[15] Many of these prohibitions have been represented as signs of the low condition of the female sex; but a more intimate knowledge of the facts connected with them would perhaps show that they have some other foundation than the mere selfishness of the men. For sometimes the latter also are subject to very similar restrictions. Among the Bahuana, in the Congo Free State, "women are forbidden to eat owls or other birds of prey, but are permitted to eat frogs, from which men are obliged to abstain under penalty of becoming ill."[16] With reference to the natives of New Britain, Mr. Powell states that, whilst in one place the women are prohibited from eating pigs or tortoises, the men are, in another place, prohibited from eating anything but human flesh, fowls, or fish.[17] In the Caroline Islands the men are forbidden to eat a common blackbird, Lamprothornis--which is a favourite food of the women--because it is believed that anyone who did so, and afterwards climbed a cocoa-tree, would fall down and perish.[18] In some Dyak tribes on the Western branch {322} of the river of Sarawak, goats, fowls, and the fine kind of fern (paku), which forms an excellent vegetable, are forbidden food to the men, though the women and boys are allowed to partake of them.[19]

[Footnote 7: Reichard, 'Die Wanjamuesi,' in Zeitschr. d. Gesellsch. f. Erdkunde zu Berlin, xxiv. 321.]

[Footnote 8: Park, Travels in the Interior of Africa, i. 114.]

[Footnote 9: Torday and Joyce, 'Ethnography of the Ba-Yaka,' in Jour. Anthr. Inst. xxxvi. 41, 42, 51.]

[Footnote 10: Roscoe, 'Bahima,' in Jour. Anthr. Inst. xxxvii. 101.]

[Footnote 11: Felkin, 'Notes on the For Tribe,' in Proceed. Roy. Soc. Edinburgh, xiii. 218.]

[Footnote 12: Dalton, Ethnology of Bengal, p. 33.]

[Footnote 13: Curr, The Australian Race, i. 81. Brough Smyth, op. cit. i. xxxv.]

[Footnote 14: Macgillivray, Voyage of Rattlesnake, ii. 10.]

[Footnote 15: von Kotzebue, Voyage of Discovery into the South Sea, iii. 249, note. Cook, quoted by Buckle, Miscellaneous and Posthumous Works, iii. 355.]

[Footnote 16: Torday and Joyce, 'Ethnography of the Ba-Huana,' in Jour. Anthr. Inst. xxxvi. 279.]

[Footnote 17: Powell, Wanderings in a Wild Country, p. 173.]

[Footnote 18: von Kittlitz, Reise nach dem russischen Amerika, &c. ii. 103 sq.]

[Footnote 19: Low, Sarawak, p. 266.]

Among various peoples certain foods are forbidden to priests or magicians. The priests of the ancient Egyptians were not allowed to eat fish,[20] nor to meddle with the esculent or potable substances which were produced out of Egypt;[21] and, according to Plutarch, they so greatly disliked the nature of excrementitious things that they

not only rejected most kinds of pulse, but also the flesh of sheep and swine, because it produced much superfluity of nutriment.[22] The lamas of Mongolia will touch no meat of goats, horses, or camels.[23] Among the Semang of the Malay Peninsula the medicine-men will not eat goat or buffalo flesh and but rarely that of fowl.[24] The dairymen of the Todas may drink milk from certain buffaloes only, and are altogether forbidden to eat chillies.[25] These and similar restraints laid upon priests or wizards are probably connected with the idea that holiness is a delicate quality which calls for special precautions.[26] Schomburgk states that the conjurers of the British Guiana Indians partake but seldom of the native hog, because they consider the eating of it injurious to the efficacy of their skill.[27] And the Ulád Bu [()Azîz in Morocco believe that if a scribe or a saint eats wolf's flesh the charms he writes will have no effect, and the saliva of the saint will lose its curative power.

[Footnote 20: Herodotus, ii. 37. Plutarch, De Iside et Osiride, 7. Porphyry, De abstinentia ab esu animalium, iv. 7.]

[Footnote 21: Porphyry, op. cit. iv. 7.]

[Footnote 22: Plutarch, De Iside et Osiride, 5.]

[Footnote 23: Prejevalsky, Mongolia, i. 56.]

[Footnote 24: Skeat and Blagden, Pagan Races of the Malay Peninsula, ii. 226.]

[Footnote 25: Rivers, Todas, p. 102 sq. For some other instances see Landtman, Origin of Priesthood, p. 161 sq.]

[Footnote 26: Cf. Frazer, Golden Bough, i. 391.]

[Footnote 27: Schomburgk, 'Expedition to the Upper Corentyne,' in Jour. Roy. Geograph. Soc. London, xv. 30.]

There are still other cases in which certain persons are permanently required to abstain from certain kinds of food. Thus in the Andaman Islands every man and woman "is prohibited all through life from eating some {323} one (or more) fish or animal: in most cases the forbidden dainty is one which in childhood was observed (or imagined) by the mother to occasion some functional derangement; when of an age to understand it the circumstance is explained, and cause and effect being clearly demonstrated, the individual, in question thence forth considers that particular meat his yât-t[=u]b, and avoids it carefully. In cases where no evil consequences have resulted from partaking of any kind of food, the fortunate person is privileged to select his own yât-t[=u]b, and is, of course, shrewd enough to decide upon some fish, such as shark or skate, which is little relished, and to abstain from which consequently entails no exercise of self-denial." It is believed that the god P[=u]luga would punish severely any person who might be guilty of eating his yât-t[=u]b, either by causing his skin to peel off, or by turning his hair white, and flaying him alive.[28] In Samoa each man had generally his god in the shape of some species of animal; and if he ate one of these divine animals it was supposed that the god avenged the insult by taking up his abode in the eater's body and there generating an animal of the same kind until it caused his death.[29] The members of a totem clan are usually forbidden to eat the particular animal or plant whose name they bear.[30] Thus among the Omaha Indians men whose totem is the elk believe that if they ate the flesh of the male elk they would break out in boils and white spots in different parts of their bodies; and men whose totem is the red corn think that if they ate red corn they would have running sores all round their mouths.[31] Yet, however general, prohibitions of this kind cannot be said to be a universal characteristic of totemism.[32] Sir J. G. Frazer even suggests that the original custom was perhaps to eat the totem and the {324} latter custom to abstain from it.[33] But this is hardly more than a guess.

[Footnote 28: Man, 'Aboriginal Inhabitants of the Andaman Islands.' in Jour. Anthr. Inst. xii. 354.]

[Footnote 29: Turner, Samoa, p. 17 sq.]

[Footnote 30: Frazer, Totemism, p. 7 sqq. Idem, Totemism and Exogamy, iv. 6.]

[Footnote 31: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 225, 231. Idem, 'Siouan Folk-Lore,' in American Antiquarian, vii. 107.]

[Footnote 32: Frazer, Totemism, p. 19. Idem, Totemism and Exogamy, iv. 6. sq.]

[Footnote 33: Frazer, Totemism and Exogamy, iv. 6 sq.]

There are, finally, restrictions in eating which refer to the whole people or tribe. In early society certain things which might serve as food are often not only universally abstained from, but actually prohibited by custom or law. The majority of these prohibitions have reference to animals or animal products, which are naturally more apt to cause disgust than is vegetable food--probably because our ancestors in early days, by instinct, subsisted chiefly on a vegetable diet, and only subsequently acquired a more general taste for animal nourishment.[34] Certain animals excite a feeling of disgust by their very appearance, and are therefore abstained from. This I take to be a reason for the aversion to eating reptiles. It is said that snakes are avoided as food because their flesh is supposed to be as poisonous as their bite;[35] but this explanation is hardly relevant to harmless reptiles, which are likewise in some cases forbidden food.[36] The abstinence from fish seems generally to have a similar origin, though some peoples say that they refuse to eat certain species because the soul of a relative might be in the fish.[37] The Navahoes of New Mexico "must never touch fish, and nothing will induce them to taste one."[38] The Mongols consider them unclean animals.[39] The South Siberian Kachinzes are said to refrain from them because they believe that "the evil principle lives in the water and eats fish."[40] The Káfirs on the North-Western frontier of India "detest fish, though their rivers abound in them."[41] The same aversion is common in the South {325} African tribes[42] and among most Hamitic peoples of East Africa;[43] when asked for an explanation of it, they say that fish are akin to snakes. Fish, or at least certain species of fish, were forbidden to the ancient Syrians;[44] and the Hebrews were prohibited from eating all fish that have not fins and scales.[45] It is curious to note that various peoples who detest fish also abstain from fowl.[46] The Navahoes are strictly forbidden to eat the wild turkey with which their forests abound;[47] and the Mongols dislike of fowl is so great that one of Prejevalsky's guides nearly turned sick on seeing him eat boiled duck.[48] Some peoples have a great aversion to eggs,[49] which are said to be excrements, and therefore unfit for food.[50] There may be a similar reason for the abstinence from milk among peoples who have domesticated animals able to supply them with it.[51] The Dravidian aborigines of the hills of {326} Central India, who never use milk, are expressly said to regard it as an excrement.[52] The ancient Caribs had a horror of eggs and never drank milk.[53] The Ashantees are "forbidden eggs by the fetish, and cannot be persuaded to taste milk."[54] The Kimbunda in South-Western Africa detest milk, and consider it inconceivable how a grown-up person can enjoy it; they believe that the Kilulu, or spirit, would punish him who partook of it.[55] The Dyaks of Borneo, the Javanese, and the Malays abstain from milk.[56] To the Chinese milk and butter are insupportably odious.[57]

[Footnote 34: Cf. Schurtz, Die Speiseverbote, p. 17.]

[Footnote 35: Skeat and Blagden, Pagan Races of the Malay Peninsula, i. 130 (Berembun). Schurtz, op. cit. p. 22.]

[Footnote 36: Leviticus, xi. 29 sq. Sayce, Hibbert Lectures on the Religion of the Ancient Babylonians, p. 83.]

[Footnote 37: Frazer, Golden Bough, ii. 430, 432.]

[Footnote 38: Stephen, 'Navajo,' in American Anthropologist, vi. 357.]

[Footnote 39: Prejevalsky, op. cit. i. 56.]

[Footnote 40: von Strümpell, 'Der Volksstamm der Katschinzen,' in Mittheil. d. Vereins f. Erdkunde zu Leipzig, 1875, p. 23.]

[Footnote 41: Fosberry, 'Some of the Mountain Tribes of the N.W. Frontier of India,' in Jour. Ethn. Soc. London, N.S. i. 192.]

[Footnote 42: Fritsch, Drei Jahre in Süd-Afrika, p. 338. Shooter, Kafirs of Natal and the Zulu Country, p. 215 (Zulus). Kropf, Das Volk der Xosa-Kaffern, p. 102. Campbell, Second Journey in the Interior of South Africa, ii. 203 (Bechuanas). The Hottentots, however, eat fish (Fritsch, p. 339).]

[Footnote 43: Hildebrandt, 'Wakamba und ihre Nachbarn,' in Zeitschr. f. Ethnol. x. 378. Paulitschke, Ethnographie Nordost-Afrikas, i. 155 (Somals, Gallas). Schurtz, op. cit. p. 23.]

[Footnote 44: Porphyry, op. cit. iv. 15. Plutarch, De superstitione, 10.]

[Footnote 45: Leviticus, xi. 10 sqq.]

[Footnote 46: Hildebrandt, in Zeitschr. f. Ethnol. x. 378 (Gallas, Wadshagga, Waikuyu, &c.). Paulitschke, op. cit. i. 153 sqq. (Gallas, Somals). Burton, Two Trips to Gorilla Land, i. 95 (Somals). Meldon, 'Bahima of Ankole,' in Jour. African Soc. vi. 146; Ashe, Two Kings of Uganda, p. 303 (Bahima). Kropf, Das Volk der Xosa-Kaffern, p. 102. Among the Zulus domestic fowls are eaten by none except young persons and old (Shooter, op. cit. p. 215). For other peoples who abstain from fowl, see Bastian, Die deutsche Expedition an der Loango-Küste, i. 185; Casati, Ten Years in Equatoria, i. 165 (Monbuttu); Salt, Voyage to Abyssinia, p. 179 (Danakil); Skeat and Blagden, Pagan Races of the Malay Peninsula, i. 135 (Sabimba), 136 (Orang Muka Kuning); Globus, l. 330 (inhabitants of Hainan); Ehrenreich, quoted by Schurtz, op. cit. p. 20 (Karaya of Goyaz); von den Steinen, Durch Central-Brasilien, p. 262 (Yuruna); Cæsar, De bello Gallico, v. 12 (ancient Britons).]

[Footnote 47: Stephen, in American Anthropologist, vi. 357.]

[Footnote 48: Prejevalsky, op. cit. i. 56.]

[Footnote 49: The Kafirs formerly abstained from eggs (Kropf, op. cit. p. 102). Among the Zulus eggs are eaten by young and old persons only (Shooter, op. cit. p. 215). The Bahima refuse this kind of food (Ashe, op. cit. p. 303), and so do generally the Waganda, especially the women (Felkin, 'Notes on the Waganda Tribe,' in Proceed. Roy. Soc. Edinburgh, xiii. 716; Ashe, p. 303). See also Andree, Ethnographische Parallelen, p. 126 sq.; Schurtz, op. cit. p. 23 sq.]

[Footnote 50: Reichard, 'Die Wanjamuesi,' in Zeitschr. d. Gesellsch. f. Erdkunde zu Berlin, xxiv. 321. Hildebrandt, 'Wakamba und ihre Nachbarn,' in Zeitschr. f. Ethnol. x. 378.]

[Footnote 51: See Westermarck, History of Human Marriage, p. 484.]

[Footnote 52: Crooke, Things Indian, p. 92.]

[Footnote 53: Du Tertre, Histoire générale des Antilles, ii. 389.]

[Footnote 54: Bowdich, Mission to Ashantee, p. 319.]

[Footnote 55: Magyar, Reisen in Süd-Afrika, i. 303, 321.]

[Footnote 56: Low, op. cit. p. 267.]

[Footnote 57: Huc, Travels in Tartary, i. 281. Westermarck, op. cit. p. 484.]

The meat of certain animals may also be regarded with disgust on account of their filthy habits or the nasty food on which they live. In the Warramunga tribe, in Central Australia, there is a general restriction applying to eagle-hawks, and the reason assigned for it is that this bird feeds on the bodies of dead natives.[58] It seems

that the abstinence from swine's flesh, at least in part, belongs to the same group of facts. Various tribes in South Africa hold it in abomination.[59] In some districts of Madagascar, according to Drury, the eating of pork was accounted a very contemptible thing.[60] It is, or was, abstained from by the Jakuts of Siberia, the Votyaks of the Government of Vologda,[61] and the Lapps.[62] The disgust for pork has likewise been met with in many American tribes. The Koniagas will eat almost any digestible substance except pork.[63] The Navahoes of New Mexico abominate it "as if they were the devoutest of Hebrews";[64] it is not forbidden by their religion, but "they say they will not eat the flesh of the hog simply because the animal is filthy in {327} its habits, because it is the scavenger of the town."[65] In his description of the Indians of the South-Eastern States Adair writes:--"They reckon all those animals to be unclean that are either carnivorous, or live on nasty food, as hogs, wolves, panthers, foxes, cats, mice, rats. . . . When swine were first brought among them, they deemed it such a horrid abomination in any of their people to eat that filthy and impure food, that they excluded the criminal from all religious communion in their circular town-house. . . . They still affix vicious and contemptible ideas to the eating of swine's flesh; insomuch that Shúkàpa, 'swine eater,' is the most opprobrious epithet that they can use to brand us with; they commonly subjoin Akang-gàpa, 'eater of dunghill fowls.' Both together signify 'filthy, helpless animals.'"[66] So also those Indians in British Guiana who have kept aloof from intercourse with the colonists reject pork with the greatest loathing. Schomburgk tells us that an old Indian permitted his children to accompany him on a journey only on the condition that they were never to eat any viands prepared by his cook, for fear lest pork should have been used in their preparation. But this objection does not extend to the native hog, which, though generally abstained from by wizards, is eaten by the laity indiscriminately, with the exception of women who are pregnant or who have just given birth to a child.[67] This suggests that the aversion to the domestic pig partly springs from the fact that it is a foreign animal. Indeed, the Guiana Indians refuse to eat the flesh of all animals that are not indigenous to their country, but were introduced from abroad, such as oxen, sheep, and fowls, apparently on the principle "that any strange and abnormal object is especially likely to be possessed of a harmful spirit."[68] The Kafirs, also, abstain {328} from the domestic swine, though they eat the wild hog.[69] Some writers maintain that pork has been prohibited on the ground that it is prejudicial to health in hot countries;[70] but, as we have seen, this prohibition is found among various northern peoples as well, and it seems besides that the unwholesomeness of pork in good condition has been rather assumed than proved. Sir J. G. Frazer, again, believes that the ancient Egyptians, Semites, and some of the Greeks abstained from this food not because the pig was looked upon simply as a filthy and disgusting creature, but because it was considered to be endowed with high supernatural powers.[71] In Greece the pig was used in purificatory ceremonies.[72] Lucian says that the worshippers of the Syrian goddess abstained from eating pigs, some because they held them in abomination, others because they thought them holy.[73] The heathen Harranians sacrificed the swine and ate swine's flesh once a year.[74] According to Greek writers, the Egyptians abhorred the pig as a foul and loathsome animal, and to drink its milk was believed to cause leprosy and itchy eruptions;[75] but once a year they sacrificed pigs to the moon and to Osiris and ate of the flesh of the victims, though at any other time they would not so much as taste pork.[76]

[Footnote 58: Spencer and Gillen, Northern Tribes of Central Australia, p. 612.]

[Footnote 59: Fritsch, Drei Jahre in Süd-Afrika, p. 339. Kropf, op. cit. p. 102 (Kafirs).]

[Footnote 60: Drury, Madagascar, p. 143.]

[Footnote 61: Latham, Descriptive Ethnology, i. 363.]

[Footnote 62: Leem, Beskrivelse over Finmarkens Lapper, p. 501.]

[Footnote 63: Bancroft, Native Races of the Pacific States, i. 75.]

[Footnote 64: Stephen, in American Anthropologist, vi. 357.]

[Footnote 65: Matthews, 'Study of Ethics among the Lower Races,' in Jour. American Folk-Lore, xii. 5.]

[Footnote 66: Adair, History of the American Indians, p. 132 sqq.]

[Footnote 67: Schomburgk, in Jour. Roy. Geograph. Soc. London, xv. 29 sq.]

[Footnote 68: Im Thurn, Indians of Guiana, p. 368. Dr. Schurtz suggests (op. cit. p. 19 sqq.) that some other peoples, as the Indians of Brazil, abstain from fowls because they are not indigenous to their country.]

[Footnote 69: Müller, Allgemeine Ethnographie, p. 189.]

[Footnote 70: Ramsay, Historical Geography of Asia Minor, p. 32. Wiener, 'Die alttestamentarischen Speiseverbote,' in Zeitschr. f. Ethnol. viii. 103. See also Buckle, Miscellaneous and Posthumous Works, iii. 354 sq.]

[Footnote 71: Frazer, Golden Bough, ii. 304 sqq. Idem, Pausanias's Description of Greece, iv. 137 sq.]

[Footnote 72: Ramsay, op. cit. p. 31 sq. Frazer, Pausanias's Description of Greece, iii. 277, 593.]

[Footnote 73: Lucian, De dea Syria, 54.]

[Footnote 74: Robertson Smith, Religion of the Semites, p. 290. Cf. Isaiah, lxv. 4, and lxvi. 3, 17, where this sacrifice is alluded to as a heathen abomination.]

[Footnote 75: Herodotus, ii. 47. Plutarch, De Iside et Osiride, 8. Aelian, De natura animalium, x. 16.]

[Footnote 76: Herodotus, ii. 47. Plutarch, De Iside et Osiride, 8.]

Of the abhorrence of cannibalism I shall speak in a separate chapter, but in this connection it is worth noticing that the eating of certain animals is regarded with horror or disgust either because they are supposed to be metamorphosed ancestors[77] or on account of their resemblance to men. Various peoples refrain from {329} monkey's flesh; [78] and European travellers mention their own instinctive repugnance to it and their aversion to shooting monkeys.[79] The Indians of Lower California will eat any animal, except men and monkeys, "the latter because they so much resemble the former."[80] According to an ancient writer quoted by Porphyry, the Egyptian priests rejected those animals which "verged to a similitude to the human form."[81] The Kafirs say that elephants are forbidden food because their intelligence resembles that of men.[82]

[Footnote 77: Frazer, Golden Bough, ii. 430 sqq. St. John, op. cit. i. 186 (Land Dyaks).]

[Footnote 78: Shooter, op. cit. p. 215 (Zulus). Schurtz, op. cit. p. 28 (Abyssinians). Skeat and Blagden, op. cit. i. 134 (Orang Sletar). In the Institutes of Vishnu (li. 3) the eating of apes is particularly stigmatised.]

[Footnote 79: Schurtz, op. cit. p. 28. Infra, on Regard for the Lower Animals.]

[Footnote 80: Bancroft, op. cit. i. 560.]

[Footnote 81: Porphyry, op. cit. iv. 7.]

[Footnote 82: Müller, Ethnographie, p. 189.]

Moreover, intimacy with an animal easily takes away the appetite for its flesh. Among ourselves, as Mandeville observes, "some people are not to be persuaded to taste of any creatures they have daily seen and been acquainted with, whilst they were alive; others extend their scruple no further than to their own poultry, and refuse to eat what they fed and took care of themselves; yet all of them will feed heartily and without remorse on beef, mutton, and fowls, when they are bought in the market."[83] Among

other races we meet with feelings no less refined. Mencius, the Chinese moralist, said:--"So is the superior man affected towards animals, that, having seen them alive, he cannot bear to see them die; having heard their dying cries, he cannot bear to eat their flesh. Therefore he keeps away from his slaughter house and cook-room."[84] The abstinence from domestic fowls and their eggs, as also from the tame pig, may occasionally have sprung from sympathy. Dr. von den Steinen states that the Brazilian Yuruna cannot be induced to eat any animal which they have bred themselves, and that they apparently considered it very immoral when he and his party ate hen-eggs.[85] In the {330} sacred books of India it is represented as a particularly bad action to eat certain domestic animals, including village pigs and tame cocks; a twice-born man who does so knowingly will become an outcast.[86] Among the Bechuanas in South Africa dogs and tame cats are not eaten, though wild cats are.[87] The Arabs of Dukkâla in Morocco eat their neighbours' cats but not their own. Among the Dinka only such cows as die naturally or by an accident are used for food; but a dead cow is never eaten by the bereaved owner himself, who is too much afflicted at the loss to be able to touch a morsel of the carcase of his departed beast.[88] Herodotus says that the Libyans would not taste the flesh of the cow, though they ate oxen;[89] and the same rule prevailed among the Egyptians and Ph[oe]nicians, who would sooner have partaken of human flesh than of the meat of a cow.[90] The eating of cow's flesh is prohibited by the law of Brahmanism.[91] According to Dr. Rájendralála Mitra, the idea of beef as an article of food "is so shocking to the Hindus, that thousands over thousands of the more orthodox among them never repeat the counterpart of the word in their vernaculars, and many and dire have been the sanguinary conflicts which the shedding of the blood of cows has caused."[92] In China "the slaughter of buffaloes for food is unlawful, according to the assertions of the people, and the abstaining from the eating of beef is regarded as very meritorious."[93] It is said in the 'Divine Panorama' that he who partakes of beef or dog's flesh will be punished by the deity.[94] In Japan neither cattle nor sheep were in former days killed for food;[95] and in the rural districts many people still think it wrong to eat beef.[96] In Rome the slaughter of {331} a labouring ox was in olden days punished with excommunication;[97] and at Athens and in Peloponnesus it was prohibited even on penalty of death.[98] Indeed, the ancient idea has survived up to modern times in Greece, where it has been held as a maxim that the animal which tills the ground ought not to be used for food.[99] These prohibitions are no doubt to some extent expressions of kindly feelings towards the animals to which they refer.[100] A Dinka is said to be fonder of his cattle than of his wife and children;[101] and according to classical writers, the ploughing ox is not allowed to be slaughtered because he is himself an agriculturist, the servant of Ceres, and a companion to the labourer in his work.[102] But at the same time the restrictions in question are very largely due to prudential motives. Peoples who live chiefly on the products of their cattle show a strong disinclination to reduce their herds, especially by killing cows or calves;[103] and agricultural races are naturally anxious to preserve the animal which is used for work on the field. With reference to the Egyptian and Ph[oe]nician custom of eating bulls but abstaining from cows, Porphyry observes that "for the sake of utility in one and the same species of animals distinction is made between that which is pious and that which is impious," cows being spared on account of their progeny.[104] Until quite recently in Egypt no one was allowed to kill a calf, and permission from the government was required for the slaughter of a bull.[105] Moreover, domestic animals are frequently regarded as sacred in consequence of their utility, and for that reason also abstained from. The Dinka pay a {332} kind of reverence to their cattle.[106] In Egypt, according

to Herodotus, the cow was sacred to Isis.[107] In India she has been the object of a special worship.[108]

[Footnote 83: Mandeville, Fable of the Bees, p. 188.]

[Footnote 84: Mencius, i. 1. 7. 8.]

[Footnote 85: von den Steinen, Durch Central-Brasilien, p. 262. See also Juan and Ulloa, Voyage to South America, i. 426 (Indians of Quito).]

[Footnote 86: Institutes of Vishnu, li. 3. Laws of Manu, v. 19.]

[Footnote 87: Campbell, Second Journey in the Interior of South Africa, ii. 203.]

[Footnote 88: Schweinfurth, Heart of Africa, i. 163 sq.]

[Footnote 89: Herodotus, iv. 186.]

[Footnote 90: Ibid. ii. 41. Porphyry, op. cit. ii. 11.]

[Footnote 91: Institutes of Vishnu, li. 3.]

[Footnote 92: Rájendralála Mitra, Indo-Aryans, i. 354.]

[Footnote 93: Doolittle, Social Life of the Chinese, ii. 187.]

[Footnote 94: Giles, Strange Stories from a Chinese Studio, ii. 376.]

[Footnote 95: Reed, Japan, i. 61.]

[Footnote 96: Griffis, Mikado's Empire, p. 472.]

[Footnote 97: Pliny, Historia naturalis, viii. 70.]

[Footnote 98: Varro, De re rustica, ii. 5. 3. sq. Aelian, Varia historia, v. 14.]

[Footnote 99: Mariti, Travels through Cyprus, i. 35.]

[Footnote 100: See infra, on Regard for the Lower Animals.]

[Footnote 101: Schweinfurth, op. cit. i. 164.]

[Footnote 102: Aelian, Varia historia, v. 14. Varro, De re rustica, ii. 5. 3.]

[Footnote 103: Fritsch, Die Eingeborenen Süd-Afrika's, p. 86; Kropf, op. cit. p. 102 (Kafirs). Merker, Die Masai, p. 169. Paulitschke, Ethnographie Nordost-Afrikas, i. 153. Ratzel, History of Mankind, ii. 411 (pastoral races of Africa). Erman, Reise um die Erde, i. 515 (Kirghiz). Andree, Ethnographische Parallelen, p. 122 sq. Robertson Smith, Religion of the Semites, p. 297. Schurtz, op. cit. p. 30 sq.]

[Footnote 104: Porphyry, op. cit. ii. 11.]

[Footnote 105: Wilkinson, in Rawlinson's translation of Herodotus, ii. 72 sq. n. 7.]

[Footnote 106: Schweinfurth, op. cit. i. 163.]

[Footnote 107: Herodotus, ii. 41.]

[Footnote 108: Barth, Religions of India, p. 264.]

Certain foods, then, are generally abjured, not merely because they excite disgust, or as the case may be, because they have a disagreeable taste, but also from utilitarian considerations. To the instances just mentioned may be added the custom prevalent among the Tonga Islanders of setting a temporary prohibition or taboo on certain eatables in order to prevent them from growing scarce.[109] But the most important prudential motive underlying the general restrictions in diet is no doubt fear lest the food should have an injurious effect upon him who partakes of it. The harm caused by it may only be imaginary; indeed, forbidden food is commonly regarded as unwholesome, whatever be the original ground on which it was prohibited.[110] The Negroes of the Loango Coast say that they abstain from goat-flesh because otherwise their skin would scale off, and from fowl so as not to lose their hair.[111] Some tribes of the Malay Peninsula refuse to eat the flesh of elephants under the pretext that it would occasion sickness.[112] The tribes inhabiting the hills of Assam think that "the penalty for eating the flesh of a cat is loss of speech, while those who infringe a special rule forbidding the flesh of a dog are believed to die of boils."[113] The worshippers of the Syrian goddess maintained that the eating of sprats or anchovies would fill the body with ulcers and

wither up the liver.[114] In Russia veal is considered by many to be very unwholesome food, and is entirely rejected by pious people.[115] It is not probable that these ideas are in the first instance derived from experience; but there can be no doubt that fear of evil consequences is in many cases a {333} primary motive for the abstinence from a certain kind of food. Mr. Im Thurn supposes that the Guiana Indian avoids eating the flesh of various animals because he thinks they are particularly malignant.[116] Animals that present some unusual or uncanny peculiarity are rejected because they are objects of superstitious fear. The Egyptian priests, we are told, did not eat oxen which were twins or which were speckled, nor animals that had only one eye.[117] The North American Indians of the South-Eastern States abstained from all birds of night, believing that if they ate them they would fall ill.[118] Another cause of rejecting the flesh of certain animals is the idea that anybody who partook of it would at the same time acquire some undesirable quality inherent in the animal.[119] The Záparo Indians of Ecuador "will, unless from necessity, in most cases not eat any heavy meats such as tapir and peccary, but confine themselves to birds, monkeys, deer, fish, &c., principally because they argue that the heavier meats make them also unwieldy, like the animals who supply the flesh, impeding their agility and unfitting them for the chase."[120] For a similar reason the ancient Caribs are said to have refrained from turtles;[121] and some North American Indians state that in former days their greatest chieftains "seldom ate of any animal of gross quality, or heavy motion of body, fancying it conveyed a dullness through the whole system, and disabled them from exerting themselves with proper vigour in their martial, civil, and religious duties."[122] The Namaquas of South Africa, again, pretend not to eat the flesh of the hare, because they think it would make them as faint-hearted as that animal.[123] Among the Kafirs only children may eat hares, whereas the men partake of the flesh of the {334} leopard in order to get its strength.[124] Among some other peoples the hare is forbidden food,[125] possibly owing to a similar superstition. The blood of an animal is avoided because it is believed to contain its life or soul. We meet with this custom in several North American tribes,[126] as well as in the Old Testament;[127] and from the Jews it passed into early Christianity.[128]

[Footnote 109: Mariner, Natives of the Tonga Islands, ii. 233.]

[Footnote 110: Cf. Schurtz, op. cit. p. 23.]

[Footnote 111: Bastian, Die deutsche Expedition an der Loango-Küste, i. 185.]

[Footnote 112: Skeat and Blagden, op. cit. i. 132.]

[Footnote 113: Hodson, 'The "Genna" amongst the Tribes of Assam,' in Jour. Anthr. Inst. xxxvi. 98.]

[Footnote 114: Plutarch, De superstitione, 10.]

[Footnote 115: Erman, Reise um die Erde, i. 515.]

[Footnote 116: Im Thurn, op. cit. p. 368.]

[Footnote 117: Porphyry, op. cit. iv. 7.]

[Footnote 118: Adair, op. cit. p. 130 sq.]

[Footnote 119: See Frazer, Golden Bough, ii. 353 sqq.]

[Footnote 120: Simson, Travels in the Wilds of Ecuador, p. 168.]

[Footnote 121: Waitz, Anthropologie der Naturvölker, iii. 384.]

[Footnote 122: Adair, op. cit. p. 133.]

[Footnote 123: Hahn, Supreme Being of the Khoi-Khoi, p. 106.]

[Footnote 124: Kropf, op. cit. p. 102.]

[Footnote 125: Leviticus, xi. 6, 8. Cæsar, De bello Gallico, v. 12 (ancient Britons). The Chinese have a deep-rooted prejudice against eating the flesh of the hare, which they have always regarded as an animal endowed with mysterious properties (Dennis,

Folk-Lore of China, p. 64). With reference to the Biblical prohibition of eating camel's flesh, old exegetes observed that the camel is a very revengeful animal, and that its vindictiveness would be transferred to him who partook of its meat (Wiener, in Zeitschr. f. Ethnol. viii. 104); but whether the prohibition in question originated in such a belief is open to doubt.]

[Footnote 126: Adair, op. cit. p. 134. Frazer, Golden Bough, i. 353.]

[Footnote 127: Leviticus, iii. 17; vii. 25 sqq.; xvii. 10 sqq.; xix. 26. Deuteronomy, xii. 16, 23 sqq.; xv. 23.]

[Footnote 128: Haberland, 'Gebräuche und Aberglauben beim Essen,' in Zeitschr. f. Völkerpsychologie, xvii. 363 sq.]

The general abstinence from certain kinds of food has thus sprung from a great variety of causes. Of these I have been able to point out only some of the more general and obvious. As Sir J. G. Frazer justly remarks, to explain the ultimate reason why any particular food is prohibited to a whole tribe or to certain of its members would commonly require a far more intimate knowledge of the history and beliefs of the tribe than we possess.[129] Even explanations given by the natives themselves may be misleading, since the original motive for a custom may have been forgotten, while the custom itself is still preserved. But I think that, broadly speaking, the general avoidance of a certain food may be traced to one or several of the following sources: its disagreeable taste; disgust caused, in the case of animal food, either by the external appearance of the animal, or by its unclean habits, or by sympathy, or by associations of some kind or other, or even by the mere fact that it is commonly abstained from; the disinclination to kill an animal for food, or, generally, to reduce the supply of a certain kind of victuals; the idea, whether correct or false, that the food would injure {335} him who partook of it. From what has been said in previous chapters it is obvious that any of these factors, if influencing the manners of a whole community and especially when supported by the force of habit, may lead not only to actual abstinence but to prohibitory rules the transgression of which is apt to call forth moral disapproval. This is particularly the case at the earlier stages of culture, where a people's tastes and habits are most uniform, where the sway of custom is most powerful, where instinctive aversion most readily develops into moral indignation, and where man in almost every branch of action thinks he has to be on his guard against supernatural dangers. And in this, as in other cases of moral concern, the prohibition may easily be sanctioned by religion, especially when the abstinence is due to fear of some mysterious force or quality in the thing avoided. The religious aspect assumed particular prominence in Hebrewism and Brahmanism. It is said in the 'Institutes of Vishnu' that the eating of pure food is more essential than all external means of purification; "he who eats pure food only is truly pure, not he who is only purified with earth and water."[130] The Koran forbids the eating of "what is dead, and blood, and flesh of swine, and whatsoever has been consecrated to other than God."[131] Mediæval Christianity prohibited the eating of various animals, especially horses, which were not used as food in the South of Europe, but which the pagan Teutons sacrificed and ate at their religious feasts.[132] The idea that it is "unchristian" to eat horseflesh has survived even to the present day, and has, together with the aversion to feeding on a pet animal, been responsible for the loss of enormous quantities of nourishing food. Among ourselves the only eatable thing the partaking of which is generally condemned as immoral is human flesh. But there are a considerable number of people who think {336} that we ought to abstain from all animal meat, not only for sanitary reasons, but because man is held to have no

right to subject any living being to suffering and death for the purpose of gratifying his appetite.

[Footnote 129: Frazer, Golden Bough, i. 391 sq.]

[Footnote 130: Institutes of Vishnu, xxii. 89.]

[Footnote 131: Koran, ii. 168.]

[Footnote 132: Langkavel, 'Pferde und Naturvölker,' in Internationales Archiv für Ethnographie, i. 53. Schurtz, op. cit. p. 32 sq. Maurer, Die Bekehrung des Norwegischen Stammes zum Christenthume, ii. 198.]

On similar grounds vegetarianism has been advocated as a moral duty among Eastern races, as also in classical antiquity. The regard for life in general, which is characteristic of Taouism, Buddhism, Jainism, and Brahmanism,[133] led to the condemnation of the use of animals as food. It is a very common feeling among the Chinese of all classes that the eating of flesh is sensual and sinful, or at least quite incompatible with the highest degree of sincerity and purity.[134] In Japan many persons abstain from meat, owing to Buddhistic influence.[135] In India animal food was not avoided in early times; the epic characters shoot deer and eat cows.[136] Even in the sacred law-books the eating of meat is permitted in certain circumstances:--"On offering the honey-mixture to a guest, at a sacrifice and at the rites in honour of the manes, but on these occasions only, may an animal be slain."[137] Nay, some particular animals are expressly declared eatable.[138] The total abstinence from meat is in fact represented as something meritorious rather than as a strict duty;[139] it is said that "by avoiding the use of flesh one gains a greater reward than by subsisting on pure fruit and roots, and by eating food fit for ascetics in the forest."[140] But on the other hand we also read that "there is no greater sinner than that man who, though not worshipping the gods or the manes, seeks to increase the bulk of his own flesh by the flesh of other beings."[141] As a matter of fact, meat is nowadays commonly, though by no means universally, abstained from by high caste Hindus, whereas {337} most low caste natives are only vegetarian when flesh food is not within their reach;[142] and we are told that the views which many Hindus entertain of people who indulge in such food are not very unlike the opinions which Europeans have about cannibals.[143] The immediate origin of these restrictions seems obvious enough. They were not introduced--as has been supposed--either as mere sumptuary measures,[144] or because meat was found to be an aliment too rich and heavy in a warm climate,[145] but they were the natural outcome of a system which enjoins regard for life in general and kindness towards all living beings. In the 'Laws of Manu' it is expressly said that the use of meat should be shunned for the reason that "meat can never be obtained without injury to living creatures, and injury to sentient beings is detrimental to the attainment of heavenly bliss."[146] That the prohibition of eating animals resulted from the prohibition of killing them is also suggested by other facts. If Hindu Pariahs eat the flesh of animals which have died naturally, it "is not visited upon them as a crime, but they are considered to be wretches as filthy and disgusting as their food is revolting."[147] Buddhism allows the eating of fish and meat if it is pure in three respects, to wit--if one has not seen, nor heard, nor suspected that it has been procured for the purpose;[148] and among the Buddhists of Burma even the most strictly religious have no scruples in eating the flesh of an animal killed by another person, "as then, they consider, the sin of its destruction does not rest upon them, but on the person who actually caused it."[149]

[Footnote 133: See infra, on Regard for the Lower Animals.]

[Footnote 134: Doolittle, op. cit. ii. 183.]

[Footnote 135: Chamberlain, Things Japanese, p. 175 sq.]

[Footnote 136: Hopkins, Religions of India, p. 200.]

[Footnote 137: Laws of Manu, v. 41. See also Vasishtha, iv. 5.]

[Footnote 138: Institutes of Vishnu, li. 6. Laws of Manu, v. 18.]

[Footnote 139: See Jolly, 'Recht und Sitte,' in Bühler, Grundriss der indo-arischen Philologie, ii. 157.]

[Footnote 140: Laws of Manu, v. 54. See also ibid. v. 53, 56.]

[Footnote 141: Ibid. v. 52.]

[Footnote 142: Kipling, Beast and Man in India, p. 6. Crooke, Things Indian, p. 228.]

[Footnote 143: Percival, Land of the Veda, p. 272.]

[Footnote 144: Hopkins, op. cit. p. 200.]

[Footnote 145: Dubois, Description of the Character, &c. of the People of India, p. 120.]

[Footnote 146: Laws of Manu, v. 48. See also ibid. v. 45, 49.]

[Footnote 147: Dubois, op. cit. p. 121.]

[Footnote 148: Kern, Manual of Indian Buddhism, p. 71, n. 5.]

[Footnote 149: Fytche, Burma Past and Present, ii. 78.]

Vegetarianism is, further, said to have been practised by the first and most learned class of the Persian Magi, who, according to Eubulus, neither slew nor ate anything {338} animated;[150] and many of the Egyptian priests are reported to have abstained entirely from animal food.[151] In ancient legends we are told that the earliest men, who were pure and free from sin, killed no animal but lived exclusively on the fruits of the earth.[152] In Greece the Pythagoreans opposed the killing and eating of animals, "as having a right to live in common with mankind,"[153] or in consequence of their theory that the souls of men after death transmigrate into animals.[154] According to Porphyry, a fleshless diet not only contributes to the health of the body and to the preservation of the power and purity of the mind, but is required by justice. Animals, he said, are allied to men, and he must be considered an impious person who does not abstain from acting unjustly towards his kindred.[155]

[Footnote 150: Porphyry, op. cit. iv. 16.]

[Footnote 151: Ibid. iv. 7.]

[Footnote 152: Genesis, i. 29. Bundahis, xv. 6 sqq.; cf. Windischmann, Zoroastrische Studien, p. 212. Hesiod, Opera et dies, 109 sqq. Plato, Politicus, p. 272. Porphyry, op. cit. iv. 2.]

[Footnote 153: Diogenes Laertius, Vitæ philosophorum, viii. 1. 12 (13). Plutarch, De carnium esu oratio I. 1.]

[Footnote 154: Seneca, Epistulæ, cviii. 19.]

[Footnote 155: Porphyry, op. cit. i. 2; iii. 26 sq.]

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There still remains a group of restrictions in diet which call for our consideration, namely, such as refer to the use of intoxicating drinks, either only prohibiting immoderation or also demanding total abstinence.

Among a large number of peoples drunkenness is so common that it can hardly be looked upon as a vice by the community; on the contrary, it is sometimes an object of pride, or is regarded almost as a religious duty. An old traveller on the West African Gold Coast says that the natives teach their children drunkenness at the age of three or four years, "as if it were a virtue."[156] The Negroes of Accra, according to Monrad, take a pride in getting drunk, and praise the happiness of a person who is so intoxicated that he can hardly walk.[157] In ancient Yucatan he who dropped down senseless from drink in a banquet was allowed to remain where he fell, {339}

and was regarded by his companions with feelings of envy.[158] Among the Pueblo Indians in New Mexico, who are otherwise a sober people, drunkenness forms a part of their religious festivals.[159] So also in the hill tribes of the Central Provinces of India a large quantity of liquor is an essential element in their religious rites, and their acts of worship invariably end in intoxication.[160] Of the Ainu in Japan we are told that "to drink for the god" is their chief act of worship; the more saké they drink the more devout they are, whereas the gods will be angry with a person who abstains from the intoxicating drink.[161] The ancient Scandinavians regularly concluded their religious ceremonies with filling and emptying stoops in honour of their gods; and even after their conversion to Christianity they were allowed to continue this practice at the end of their services, with the difference that they were now required in their toast-drinking to substitute for the names of their false deities those of the true God and his saints. [162] Of the Germans Tacitus states that "to pass an entire day and night in drinking disgraces no one";[163] and this habit of intoxication the Anglo-Saxons brought with them to England, where it was nourished by a damp climate and a marshy soil. In the seventh and eighth centuries some efforts were made to check drunkenness on the initiative of Theodore, archbishop of Canterbury, and Egbert, archbishop of York, and these exertions were supported by the kings from a political desire to prevent riots and bloodshed.[164] The Penitentials tell us the tale of universal intemperance more effectively than any description of it could do. A bishop who was so drunk as to vomit while administering the holy sacrament was condemned to eighty or ninety days penance, a presbyter to {340} seventy, a deacon or monk to sixty, a clerk to forty; [165] and if a person was so intoxicated that, pending the rite, he dropped the sacred elements into the fire or into a river, he was required to chant a hundred psalms.[166] A bishop or priest who persevered in the habit of drunkenness was to be degraded from his office;[167] whilst single cases of intoxication, if accompanied by vomiting, incurred penance for a certain number of days--forty for a presbyter or deacon,[168] thirty for a monk,[169] fifteen for a layman.[170] However, these rules admitted of exceptions: if anybody in joy and glory of our Saviour's natal day, or of Easter, or in honour of any saint, vomited through being drunk, and in so doing had taken no more than he was ordered by his elders, it mattered nothing; and if a bishop had commanded him to be drunk he was likewise innocent, unless indeed the bishop was in the same state himself.[171] If these attempts to encourage soberness produced any change for the better, it could only have been temporary; for some time afterwards intemperance was carried to its greatest excess through the practice and example of the Danes.[172] Under the influence of the Normans, who were a more temperate race, drunkenness, for a time decreased in England; but after a few reigns the Saxons seem rather to have corrupted their conquerors than to have been benefited by their example.[173] As late as the eighteenth century drunkenness was universal among all classes in England. It was then as uncommon for a party to separate while any member of it remained sober {341} as it is now for any one in such a party to degrade himself through intoxication. No loss of character was incurred by habitual excess. Men in the position of gentlemen congratulated each other upon the number of bottles emptied; and it would have been considered a very frivolous objection to a citizen who aspired to the dignity of Alderman or Mayor that he was an habitual drunkard.[174]

[Footnote 156: Bosman, Description of the Coast of Guinea, p. 107.]

[Footnote 157: Monrad, Skildring af Guinea-Kysten, p. 242.]

[Footnote 158: Bancroft, op. cit. ii. 725.]

[Footnote 159: Ibid. i. 555.]

[Footnote 160: Hislop, Aboriginal Tribes of the Central Provinces, p. 1. Campbell, Wild Tribes of Khondistan, p. 164 sq. (Kandhs).]

[Footnote 161: Bird, Unbeaten Tracks in Japan, ii. 68, 96. Cf. Batchelor, Ainu of Japan, p. 31.]

[Footnote 162: Maurer, op. cit. ii. 200. Bartholinus, Antiquitates Danicæ, i. 8, p. 128 sqq. Mallet, Northern Antiquities, p. 196.]

[Footnote 163: Tacitus, Germania, 22.]

[Footnote 164: Laws of Hlothhære and Eadric, 12 sq. Thrupp, The Anglo-Saxon Home, p. 297.]

[Footnote 165: P[oe]nitentiale Pseudo-Theodori, xxvi. 4 (Wasserschleben, Die Bussordnungen der abendländischen Kirche, p. 594). P[oe]nitentiale Egberti, xi. 7 (Wasserschleben, p. 242).]

[Footnote 166: P[oe]nitentiale Pseudo-Theodori, xxvi. 5 (Wasserschleben, op. cit. p. 594). P[oe]nitentiale Egberti, xi. 9 (Wasserschleben, p. 242).]

[Footnote 167: P[oe]nitentiale Theodori, i. 1. 1 (Wasserschleben, op. cit. p. 184). P[oe]nitentiale Egberti, xi. 1 (Wasserschleben, p. 242).]

[Footnote 168: P[oe]nitentiale Theodori, i. 1. 3 (Wasserschleben, op. cit. p. 184). P[oe]nitentiale Egberti, xi. 3 (Wasserschleben, p. 242).]

[Footnote 169: P[oe]nitentiale Theodori, i. 1. 2 (Wasserschleben, op. cit. p. 184). P[oe]nitentiale Egberti, xi. 2 (Wasserschleben, p. 242).]

[Footnote 170: P[oe]nitentiale Theodori, i. 1. 5 (Wasserschleben, op. cit. p. 184).]

[Footnote 171: P[oe]nitentiale Theodori, i. 1. 4 (Wasserschleben, op. cit. p. 184).]

[Footnote 172: Thrupp, op. cit. p. 299 sqq.]

[Footnote 173: Ibid. p. 301 sq.]

[Footnote 174: Porter, Progress of the Nation, p. 239. Pike, History of Crime in England, ii. 587. Massey, History of England during the Reign of George III. ii. 60.]

Though of late years drunkenness has been decreasing among those European nations who have been most addicted to it, and is nowadays generally recognised as a vice, our civilisation is still, as it has always been, the great source from which the poison of intoxication is pouring over the earth in all directions, infecting or killing races who previously knew nothing of alcohol or looked upon it with abhorrence. Eastern religions have emphatically insisted upon sobriety or even total abstinence from intoxicating liquors. In the sacred law-books of Brahmanism thirteen different kinds of alcoholic drinks are mentioned, all of which are forbidden to Brâhmanas and three to Kshatriyas and Vaisyas;[175] yet, though there be no sin in drinking spirituous liquor, "abstention brings greater reward."[176] A twice-born man who drinks the liquor called Surâ commits a mortal sin, which will be punished both in this life and in the life to come;[177] the most proper penalty for such a person is to drink that liquor boiling-hot, and only when his body has been completely scalded by it is he freed from his guilt.[178] Among the modern Hindus drunkenness is said to be detested by all but the very lowest castes in the agricultural districts and some high caste people residing in the great towns, who have learned it from Europeans; it is supposed to be destructive of caste purity; hence a notorious drunkard is, or at least {342} used to be, expelled from his caste.[179] Buddhism interdicts altogether the use of alcohol;[180] "of the five crimes, the taking of life, theft, adultery, lying, and drinking, the last is the worst."[181] Taouism condemns the love of wine.[182] In Zoroastrianism the holy Sraosha is represented as fighting against the demon of drunkenness,[183] and it is said that the sacred beings are not pleased with him who drinks wine more than moderately;[184] but it seems that the ancient Persians nevertheless were much addicted to intoxication.[185]

According to classical writers, some of the Egyptian priests abstained entirely from wine, whilst others drank very little of it;[186] and before the reign of Psammetichus the kings neither drank wine, nor made libation of it as a thing acceptable to the gods.[187] The use of wine and other inebriating drinks is forbidden by Islam,[188] and was punished by Muhammed with flogging.[189] It may also be said of his followers that they for the most part have obeyed this command, at least in country districts,[190] and that the exceptions to the rule are directly or indirectly attributable to the influence of Christians.

[Footnote 175: Institutes of Vishnu, xxii. 82, 84. Gautama, ii. 20. Laws of Manu, xi. 94 sq.]

[Footnote 176: Laws of Manu, v. 56.]

[Footnote 177: Ibid. ix. 235, 237; xi. 49, 55; xii. 56.]

[Footnote 178: Ibid. xi. 91.]

[Footnote 179: Caldwell, Tinnevelly Shanars, p. 38. Dubois, op. cit. p. 116. Samuelson, History of Drink, p. 46.]

[Footnote 180: Oldenberg, Buddha, p. 290. Monier-Williams, Buddhism, p. 126.]

[Footnote 181: Hardy, Manual of Budhism, p. 491.]

[Footnote 182: Douglas, Confucianism and Taouism, p. 266.]

[Footnote 183: Vendîdâd, xix. 41.]

[Footnote 184: Dînâ-î Maînôg-î Khirad, xvi. 62.]

[Footnote 185: Herodotus, i. 133.]

[Footnote 186: Porphyry, op. cit. iv. 6. Plutarch, De Iside et Osiride, 6.]

[Footnote 187: Plutarch, De Iside et Osiride, 6.]

[Footnote 188: Koran, ii. 216.]

[Footnote 189: Lane, Modern Egyptians, p. 122.]

[Footnote 190: Burton, Pilgrimage to Al-Madinah and Meccah, ii. 118. Blunt, Bedouin Tribes of the Euphrates, ii. 213. Polak, Persien, ii. 268. Lane, Modern Egyptians, p. 298 sq. Pool, Studies in Mohammedanism, p. 283.]

The condemnation of drunkenness is, of course, in the first place due to its injurious consequences. The Basutos of South Africa say that "there is blood in the dregs"--that is, intoxication ends in bloody quarrels.[191] The Omaha Indians made drunkenness a crime punishable with flogging and loss of property, because it often led to murders.[192] Sahagun tells us of a Mexican king who severely admonished his people to abstain from intoxication, as being the cause of troubles and disorders in villages and {343} kingdoms, of misery, sorrow, and poverty.[193] Of him who drinks immoderately it is said in one of the Pahlavi texts that infamy comes to his body and wickedness to his soul.[194] According to Ecclesiasticus, "drunkenness increaseth the rage of a fool till he offend: it diminisheth strength and maketh wounds."[195] We read in the Talmud, "Drink not, and you will not sin."[196] Muhammed said that in wine there is both sin and profit, but that the sin is greater than the profit.[197] Buddhism stigmatises drinking as the worst of crimes because it leads to all other sins; from the continued use of intoxicating drink six evil consequences are said to follow--namely, the loss of wealth; the arising of disputes that lead to blows and battles; the production of various diseases, as soreness of the eyes and others; the bringing of disgrace, from the rebuke of parents and superiors; the exposure to shame, from going hither and thither unclothed; the loss of the judgment required for the carrying on of the affairs of the world.[198] That drunkenness, in spite of the evils resulting from it, nevertheless so frequently escapes censure, is due partly to the pleasures connected with it, partly to lack of foresight,[199] and in a large measure to the influence of intemperate habits. Why such

habits should have grown up in one country and not in another we are often unable to tell. The climate has no doubt something to do with it, although it is impossible to agree with the statement made by Montesquieu that the prevalence of intoxication in different parts of the earth is proportionate to the coldness and humidity of the air.[200] A gloomy temperament and a cheerless life are apt to induce people to resort to the artificial pleasures produced by drink. The dreariness of the Puritan Sunday has much to answer for; the evidence given by a spirit merchant before the Commission on the Forbes Mackenzie Act was "that there is a great {344} demand for drink on Sunday," and that "this demand must be supplied."[201] Ennui was probably a cause of the prevailing inebriety in Europe in former days, when there was difficulty in passing the time not occupied in fighting or hunting;[202] and the monotony of life in the lower ranks of an industrial community still tends to produce a similar effect. Other causes of drunkenness are miserable homes and wretched cooking. Mr. Lecky is of opinion that if the wives of the poor in Great Britain and Ireland could cook as they can cook in France and in Holland, a much smaller proportion of the husbands would seek a refuge in the public-house.[203]

[Footnote 191: Casalis, Basutos, p. 307.]

[Footnote 192: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 370.]

[Footnote 193: Sahagun, Historia general de las cosas de Nueva España, ii. 94 sqq.]

[Footnote 194: Dînâ-î Maînôg-î Khirad, xvi. 63.]

[Footnote 195: Ecclesiasticus, xxxi. 30.]

[Footnote 196: Deutsch, Literary Remains, p. 58.]

[Footnote 197: Koran, ii. 216.]

[Footnote 198: Hardy, op. cit. p. 491 sq.]

[Footnote 199: Cf. supra, i. 281, 309 sq.]

[Footnote 200: Montesquieu, De l'esprit des lois, xiv. 10 ([OE]uvres, p. 303 sq.).]

[Footnote 201: Hessey, Sunday, p. 378.]

[Footnote 202: Cf. Spencer, Principles of Ethics, i. 445.]

[Footnote 203: Lecky, Democracy and Liberty, ii. 138.]

The evil consequences of intoxication have led not only to the condemnation of an immoderate use of alcoholic drink, but also to the demand for total abstinence, in consideration of the difficulty many people have in avoiding excess. But this hardly accounts in full for the religious prohibition of drink which we meet with in the East. Wine or spirituous liquor inspires mysterious fear. The abnormal mental state which it produces suggests the idea that there is something supernatural in it, that it contains a spirit, or is perhaps itself a spirit.[204] Moreover, the juice of the grape is conceived as the blood of the vine[205]--in Ecclesiasticus the wine which was poured out at the foot of the altar is even called "the blood of the grape";[206] and in the blood is the soul. The law of Brahmanism not only prohibits the drinking of wine, but also commands that "one should carefully avoid red exudations from trees and juices flowing from incisions."[207] That spirituous liquor is believed to contain baneful mysterious energy is obvious from the statement that if the Brahman (the Veda) which dwells in the body of a Brâhmana is even once deluged with it, his Brahmanhood forsakes him, and he becomes a Sûdra;[208] holy persons are, of {345} course, most easily affected by the mysterious drink, owing to the delicate nature of holiness. Muhammedans likewise regard wine as "unclean" and polluting;[209] some of them dread it so much that if a single drop were to fall upon a clean garment it would be rendered unfit to wear until washed.[210] In Morocco it is said that by drinking alcohol a Muhammedan loses the baraka, or holiness, of "the faith" and a scribe the memory of the Koran, and that if

a person who drinks alcohol has a charm on him, its baraka is spoiled. The fact that wine was forbidden by the Prophet might perhaps by itself be a sufficient reason for the notion that it is unclean. But already in pre-Muhammedan times it seems to have been scrupulously avoided by some of the Arabs,[211] though among others it was much in use and was highly praised by their poets.[212]

[Footnote 204: See supra, i. 278, 281; infra, on the Belief in Supernatural Beings; Frazer, Golden Bough, i. 359.]

[Footnote 205: Frazer, op. cit. i. 358 sq.]

[Footnote 206: Ecclesiasticus, l. 15.]

[Footnote 207: Laws of Manu, v. 6.]

[Footnote 208: Ibid. xi. 98.]

[Footnote 209: Lane, Modern Egyptians, p. 299.]

[Footnote 210: Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 72.]

[Footnote 211: Diodorus Siculus, Bibliotheca historica, xix. 94. 3. Zöckler, Askese und Mönchtum, i. 93.]

[Footnote 212: Goldziher, Muhammedanische Studien, i. 21 sqq.]

As for the Muhammedan prohibition of wine, the suggestion has been made by Palgrave that it mainly arose from the Prophet's antipathy to Christianity and his desire to broaden the line of demarcation between his followers and those of Christ. Wine was raised by the founder of Christianity to a dignity of the highest religious import. It became well-nigh typical of Christianity and in a manner its badge. To declare it "unclean," an "abomination," and "the work of the devil," was to set up for the Faithful a counter-badge.[213] This view derives much probability from the fact that there are several unequivocal indications of the same bent of policy in Muhammed's system, showing a distinct tendency to oppose Islam to other religions. But at the same time both a desire to prevent intoxication and the notion that wine is polluting may very well have been co-operating motives for the prohibition.

[Footnote 213: Palgrave, Journey through Central and Eastern Arabia, i. 428 sqq.]

Chapter XXXIX — Cleanliness and Uncleanliness--asceticism in General

IT seems that man, like many other animals, is naturally endowed with a certain tendency to cleanliness or aversion to filth. Of Caspar Hauser--the boy who had been kept in a dungeon separated from all communication with the world from early childhood to about the age of seventeen--Feuerbach tells us that "uncleanliness, or whatever he considered as such, whether in his own person or in others, was an abomination to him."[1] And the savage boy of Aveyron, though filthy at first, soon became so scrupulously clean in his habits that "he constantly threw away, in a pet, the contents of his plate, if any particle of dirt or dust had fallen upon it; and, after he had broken his walnuts under his feet, he took pains to clean them in the nicest and most delicate manner."[2]

[Footnote 1: Feuerbach, Caspar Hauser, p. 62.]

[Footnote 2: Itard, Account of the Discovery and Education of a Savage Man, p. 58.]

Many savages are praised for their cleanliness.[3] The Veddahs of Ceylon wash their bodies every few days, as opportunity occurs.[4] Among the South Sea Islanders {347}

bathing is a very common practice; the Tahitians bathe in fresh water once or twice a day,[5] and the natives of Ni-afu, in the Tonga Islands, are said to spend half their life in the water.[6] So, also, many Indian tribes both in North, Central, and South America are very fond of bathing.[7] The Omahas generally bathe every day in warm weather, early in the morning and at night, and some of them also at noon.[8] Among the Guiana Indians it is a custom for men and women to troop down together to the nearest water early in the morning and many times during the day.[9] The Tehuelches of Patagonia not only make morning ablutions and, when encamped near a river, enjoy bathing for hours, but are also scrupulously careful as to the cleanliness of their houses and utensils, and will, if they can obtain soap, wash up everything they may be possessed of.[10] The Moquis and Pueblos of New Mexico are remarkable both for their personal cleanliness and the neatness of their dwellings.[11] Cleanliness is a common characteristic of many natives of Africa.[12] The Negroes of the Gold Coast wash their whole persons once, if not oftener, during the day.[13] The Megé, a people subject to the Monbuttu, wash two or three times a day, and when engaged in work constantly adjourn to a neighbouring stream to cleanse themselves.[14] The Marutse-Mabundas, rather than lose their bath, are always ready {348} to run the risk of being snapped up by crocodiles, and they are in the habit of keeping their materials in well-washed wooden or earthenware bowls or in suitable baskets or calabashes.[15] The cleanliness of the Dinka in every thing that concerns the preparation of food is said to be absolutely exemplary.[16] Among the Bari tribes the dwellings "are the perfection of cleanliness."[17] So also the Bachapins, a Bechuana tribe, are remarkable for the cleanliness of their dwellings, showing the greatest carefulness to remove all rubbish and everything unsightly; but at the same time they are lacking in personal cleanliness.[18]

[Footnote 3: Colquhoun, Amongst the Shans, p. 298 sq. Man, Sonthalia and the Sonthals, p. 84. Foreman, Philippine Islands, p. 189 (domesticated natives). Boyle, Dyaks of Borneo, p. 242. Erskine, Cruise among the Islands of the Western Pacific, pp. 110 (Samoans; cf. Turner, Nineteen Years in Polynesia, p. 205), 262, 264 (Fijians). Percy Smith, 'Futuna,' in Jour. Polynesian Soc. i. 35. Markham, Cruise of the "Rosario," p. 136 (Polynesians).]

[Footnote 4: Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 187.]

[Footnote 5: Ellis, Polynesian Researches (ed. 1829), ii. 113 sq.]

[Footnote 6: Romilly, Western Pacific, p. 145.]

[Footnote 7: Bancroft, Native Races of the Pacific States, i. 83, 696, 722, 760. Domenech, Seven Years Residence in the Great Deserts of North America, ii. 337. von Humboldt, Personal Narrative of Travels to the Equinoctial Regions of the New Continent, iii. 237 (Chaymas). von Martius, Beiträge zur Ethnographie Amerika's, i. 600 (Uaupés), 643 (Macusís). Molina, History of Chili, ii. 118; Smith, Araucanians, p. 184. Dobrizhoffer, Account of the Abipones, ii. 53.]

[Footnote 8: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 269.]

[Footnote 9: Im Thurn, Among the Indians of Guiana, p. 191.]

[Footnote 10: Musters, At Home with the Patagonians, p. 173.]

[Footnote 11: Bancroft, op. cit. i. 540. See also ibid. i. 267 (some Inland Columbians).]

[Footnote 12: Waitz, Anthropologie der Naturvölker, ii. 86 (Negroes of Accra, Krus), 464 (Western Fulahs). Torday and Joyce, 'Ethnography of the Ba-Huana,' in Jour. Anthr. Inst. xxxvi. 292. Rowley, Africa Unveiled, p. 153. Ashe, Two Kings of Uganda, p. 305; Wilson and Felkin, Uganda, i. 184. Casati, Ten Years in Equatoria, i. 122 (Monbuttu). Holub, Seven Years in South Africa, ii. 208 (Manansas).]

[Footnote 13: Cruickshank, Eighteen Years on the Gold Coast, ii. 283 sq.]

[Footnote 14: Burrows, Land of the Pigmies, p. 119.]

[Footnote 15: Holub, op. cit. ii. 309.]

[Footnote 16: Casati, op. cit. i. 44.]

[Footnote 17: Baker, Albert N'yanza, i. 89.]

[Footnote 18: Burchell, Travels in the Interior of Southern Africa, ii. 521, 553.]

We commonly find that savages who are clean in certain respects are dirty in others. The Wanyoro bathe frequently and always wash their hands before and after eating, but their dwellings are very filthy and swarm with vermin.[19] The Nagas of India[20] and the natives of the interior of Sumatra,[21] though cleanly in their persons, are very dirty in their apparel. The Mayas of Central America make frequent use of cold water, but neither in their persons nor in their dwellings do they present an appearance of cleanliness.[22] So also the Californian Indians, whilst exceedingly fond of bathing, are unclean about their lodges and clothing.[23] The Aleuts, though they wash daily, allow dirt to be piled up close to their dwellings, prepare their food very carelessly, and never wash their household utensils.[24] The New Zealander, again, whilst not over-clean in his person, is very particular respecting his food and also keeps his dwelling in as much order as possible.[25] On the other hand there are very many uncivilised peoples who are described as generally filthy in their habits--for instance, the Fuegians,[26] many {349} Indian tribes in the Pacific States,[27] several Eskimo tribes,[28] various Siberian peoples,[29] the Ainu of Japan,[30] most hill tribes in India,[31] many Australian tribes, [32] the Bushmans,[33] and, generally, the dwarf races of Africa.[34] But although these peoples never or hardly ever wash their bodies, or do not change their dress until it is worn to pieces, or eat out of the same vessels as their dogs without cleaning them, or feed on disgusting substances, or regard vermin as a delicacy--we may assume that their toleration of filth is not absolutely boundless.

[Footnote 19: Wilson and Felkin, op. cit. ii. 46. Baker, Albert N'yanza, ii. 58.]

[Footnote 20: Stewart, 'Northern Cachar,' in Jour. Asiatic Soc. Bengal, xxiv. 616.]

[Footnote 21: Marsden, History of Sumatra, p. 209**.]

[Footnote 22: Bancroft, op. cit. i. 654.]

[Footnote 23: Powers, Tribes of California, p. 403. Bancroft, op. cit. i. 377, 407.]

[Footnote 24: Veniaminof, quoted by Dall, Alaska, p. 398. See also Bancroft, op. cit. i. 267 (Flatheads).]

[Footnote 25: Dieffenbach, Travels in New Zealand, ii. 58.]

[Footnote 26: Snow, Two Years' Cruise off Tierra del Fuego, i. 345.]

[Footnote 27: Bancroft, op. cit. i. 83, 102, 184, 231, 492, 626.]

[Footnote 28: Ibid. i. 51. Seemann, Voyage of "Herald," ii. 61 sq. (Western Eskimo). Kane, Arctic Explorations, ii. 116 (Eskimo of Etah). Cranz, History of Greenland, i. 155.]

[Footnote 29: Sarytschew, 'Voyage of Discovery to the North-East of Siberia,' in Collection of Modern and Contemporary Voyages, v. 67 (Kamchadales). Krasheninnikoff, History of Kamschatka, pp. 176 (Kamchadales), 226 (Koriaks). Sauer, Expedition to the Northern Parts of Russia performed by Billings, p. 125 (Jakuts). Georgi, Russia, ii. 398 (Jakuts); iii. 59 (Kotoftzes), 112 (Tunguses); iv. 37 (Kalmucks), 134 (Burats). Liadov, in Jour. Anthr. Inst. i. 401; Bergmann, Nomadische Streifereien unter den Kalmüken, ii. 102, 123 sq.; Pallas, quoted in Spencer's Descriptive Sociology, 'Asiatic Races,' p. 29 (Kalmucks).]

[Footnote 30: Batchelor, Ainu of Japan, p. 24 sqq. Mac Ritchie, Ainos, p. 12 sq.]

[Footnote 31: Spencer, Descriptive Sociology, 'Asiatic Races,' p. 29. Grange, 'Expedition into the Naga Hills,' in Jour. Asiatic Soc. Bengal, ix. 962. Stewart, ibid. xxiv. 637 (Kukis). Mason, 'Physical Character of the Karens,' ibid. xxxv. pt. ii. 25. Butler, Travels

in Assam, p. 98. Anderson, Mandalay to Momien, p. 131 (Kakhyens). Moorcroft and Trebeck, Travels in the Himalayan Provinces, i. 321 (Ladakhis).]

[Footnote 32: Breton, Excursions in New South Wales, p. 197. Barrington, History of New South Wales, p. 19 (natives of Botany Bay). Angas, Savage Life in Australia, i. 80 (South Australian aborigines). Chauncy, in Brough Smyth, Aborigines of Victoria, ii. 284 (West Australian aborigines).]

[Footnote 33: Moffat, Missionary Labours in Southern Africa, p. 15. Barrow, Travels into the Interior of Southern Africa, i. 288.]

[Footnote 34: Stuhlmann, Mit Emin Pascha ins Herz von Afrika, p. 451. For other instances of uncleanliness in savages see Crawfurd, History of the Indian Archipelago, i. 39; St. John, Life in the Forests of the Far East, i. 147 (some of the Land Dyaks); Andersson, Lake Ngami, pp. 50 (Herero), 470 (Bechuanas).]

The prevalence of cleanly or dirty habits among a certain people may depend on a variety of circumstances: the occupations of life, sufficiency or want of water, climatic conditions, industry or laziness, wealth or poverty, religious or superstitious beliefs. Castrén observes that filthiness is a characteristic of fishing peoples; among the Ostyaks only those who live by fishing are conspicuous for their uncleanliness, whereas the nomads and owners of {350} reindeer are not.[35] It has been observed that the inland negro is clean when he dwells in the neighbourhood of rivers.[36] In West Australia those tribes only which live by large rivers or near the sea are said to have an idea of cleanliness.[37] Concerning the filthy habits of the Kukis and other hill peoples in India, Major Butler remarks that they may probably be accounted for by the scarcity of water in the neighbourhood of the villages, as also by the coldness of the climate.[38] Dr. Kane believes that the indifference of many Eskimo to dirt or filth is largely due to the extreme cold, which by rapid freezing resists putrefaction and thus prevents the household, with its numerous dogs, from being intolerable.[39] Their well-known habit of washing themselves with freshly passed urine arises partly from scarcity of water and the difficulty of heating it, but partly also from the fact that the ammonia of the urine is an excellent substitute for soap in removing the grease with which the skin necessarily becomes soiled.[40] A cold climate, moreover, leads to uncleanliness because it makes garments necessary;[41] and among some savages the practice of greasing their bodies to protect the skin from the effects of a parching air produces a similar result.[42] Lord Kames maintains that the greatest promoter of cleanliness is industry, whereas its greatest antagonist is indolence. In Holland, he observes, the people were cleaner than all their neighbours because they were more industrious, at a time when in England industry was as great a stranger as cleanliness.[43] Kolben says that the general laziness of the Hottentots accounts for the fact that "they are in the matter of diet {351} the filthiest people in the world."[44] Of the Siberian Burats Georgi writes that "from their laziness they are as dirty as swine";[45] and the Kamchadales are described as a "dirty, lazy race."[46] Poverty, also, is for obvious reasons a cause of uncleanliness;[47] "a starving vulture neglects to polish his feathers, and a famished dog has a ragged coat."[48] Very commonly cleanliness is a class distinction.[49] Thus among the Point Barrow Eskimo the poorer people are often careless about their clothes and persons, whereas most of the wealthier individuals appear to take pride in being well clad, and, except when actually engaged in some dirty work, always have their faces and hands scrupulously clean and their hair neatly combed.[50] Dr. Schweinfurth maintains that domestic cleanliness and care in the preparation of food are everywhere signs of a higher grade of external culture and answer to a certain degree of intellectual superiority.[51] But already Lord Kames pointed out the fact indicated above, that

"cleanness is remarkable in several nations which have made little progress in the arts of life."[52]

[Footnote 35: Castrén, Nordiska resor och forskningar, i. 319 sq.]

[Footnote 36: Bastian, Der Mensch in der Geschichte, iii. 75. Mr. Torday, who speaks from extensive experience, tells me the same.]

[Footnote 37: Chauncy, quoted by Brough Smyth, op. cit. ii. 284.]

[Footnote 38: Butler, Travels in Assam, p. 98 sq. Cf. Stewart, in Jour. Asiatic Soc. Bengal, xxiv. 616.]

[Footnote 39: Kane, Arctic Explorations, ii. 116.]

[Footnote 40: Murdoch, 'Ethnol. Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 421. Dall, op. cit. p. 20.]

[Footnote 41: Cf. von Humboldt, op. cit. iii. 237.]

[Footnote 42: Burchell, op. cit. ii. 553 (Bachapins of Litakun).]

[Footnote 43: Kames, Sketches of the History of Man, i. 323, 327 sqq.]

[Footnote 44: Kolben, Present State of the Cape of Good Hope, i. 47.]

[Footnote 45: Georgi, op. cit. iv. 134.]

[Footnote 46: Ibid. iii. 152. See also Sarytschew, in Collection of Modern and Contemporary Voyages, v. 67.]

[Footnote 47: See Marshall, A Phrenologist amongst the Todas, p. 50; Veniaminof, quoted by Dall, op. cit. p. 398 (Aleuts).]

[Footnote 48: St. John, Village Life in Egypt, i. 187.]

[Footnote 49: Tickell, 'Memoir on the Hodésum,' in Jour. Asiatic Soc. Bengal, ix. 808 (Hos). Rowlatt, 'Expedition into the Mishmee Hills,' ibid. xiv. 489. Williams and Calvert, Fiji, p. 117. Waitz, op. cit. ii. 86 (Ashantees). Arnot, Garenganze, p. 76 (Barotse). Lane, Modern Egyptians, p. 299.]

[Footnote 50: Murdoch, in Ann. Rep. Bur. Ethn. ix. 421.]

[Footnote 51: Schweinfurth, Heart of Africa, i. 156.]

[Footnote 52: Kames, op. cit. i. 321.]

The factors which determine the cleanliness of a people also naturally influence the moral valuation of it. Aversion to dirt not only leads to cleanly habits, but makes a filthy person an object of disgust and disapprobation; indeed, this aversion is generally stronger with reference to other individuals than with reference to one's own person. But where for some reason or other dirtiness becomes habitual, it at the same time ceases to be disgusting; and it is often astonishing how soon {352} people get used to filthy surroundings. Thus, when cleanliness is insisted upon it is so in the first instance because dirt is directly disagreeable to other persons, and when uncleanness is tolerated it is so because it gives no offence to the senses of the public. But at the higher stages of civilisation, at least, cleanliness is besides inculcated on hygienic grounds.

In many cases cleanliness, either temporary or habitual, is also practised and enjoined from religious or superstitious motives. A Lappish noaide, or wizard, had to wash all his body before he offered a sacrifice.[53] The Siberian shamans have compulsory water purifications once a year, sometimes every month, as also on special occasions when they feel themselves defiled by contact with unclean things.[54] The Shinto priests in Japan bathed and put on clean garments before making the sacred offerings or chanting the liturgies.[55] Herodotus speaks of the cleanliness observed by the Egyptian priests when engaged in the service of the gods.[56] As a preliminary to an act of worship the ancient Greeks washed their hands or bathed and put on clean clothes.[57] One of the legal maxims of the Romans required that men should approach the deity in a state of purity.[58] According to Zoroastrianism it is the great business

of life to avoid impurity, and, when it is involuntarily contracted, to remove it in the correct manner as quickly as possible; and by impurity is then understood not an inward state of the soul, but mainly a physical state of the body, everything going out of the human body being considered polluting.[59] For a Brahmin bathing is the chief part of the minute ceremonial of daily worship, whilst further washings and aspersions enter into more solemn religious acts;[60] and not only Brahmins but most Hindus regard {353} it as a religious duty to bathe daily if this is at all convenient.[61] Lamaism enjoins personal ablution as a sacerdotal rite preparatory to worship, though the ceremony seldom extends to more than dipping the tips of the fingers in water.[62] Jewish Rabbis are compelled to wash their hands before they begin to pray.[63] Tertullian mentions that a similar ablution was practised by the Christians before prayer.[64] According to Islam, the clothes and person of the worshipper should be clean, and so also the ground, mat, carpet, or whatever else it be, upon which he prays; and every act of worship must be preceded by an ablution, though, where water cannot be got, sand may be used as a substitute.[65] But a polluting influence is not ascribed to everything which we regard as dirt. For instance, Muhammedans consider the excrements of men and dogs defiling, but not the dung of cows and sheep; cow-dung is even used as a means of purification.

[Footnote 53: Friis, Lappisk Mythologie, p. 145 sq. von Düben, Lappland, p. 256.]

[Footnote 54: Jour. Anthr. Inst. xxiv. 88.]

[Footnote 55: Griffis, Religions of Japan, p. 85.]

[Footnote 56: Herodotus, ii. 37. Cf. Wiedemann, Herodots zweites Buch, p. 154.]

[Footnote 57: Iliad, i. 449; iii. 270; vi. 266; ix. 171, 174; xvi. 229 sq.; xxiii. 41; xxiv. 302 sqq. Odyssey, ii. 261; iv. 750; xvii. 58. Keller, Homeric Society, p. 141. Stengel, Die griechischen Kultusaltertümer, p. 106.]

[Footnote 58: Cicero, De legibus, ii. 10.]

[Footnote 59: Darmesteter, in Sacred Books of the East, iv. p. lxxii. sqq.]

[Footnote 60: Ward, View of the History, &c. of the Hindoos, ii. 61 sq. Colebrooke, Miscellaneous Essays, ii. 142 sqq. Dubois, People of India, p. 113 sq.]

[Footnote 61: Wilkins, Modern Hinduism, p. 201.]

[Footnote 62: Waddell, Buddhism of Tibet, p. 423.]

[Footnote 63: Chwolsohn, Die Ssabier, ii. 71.]

[Footnote 64: Tertullian, De Oratione, 13 (Migne, Patrologiæ cursus, ii. 1167 sq.).]

[Footnote 65: Sell, Faith of Islam, p. 252 sqq. Lane, Modern Egyptians, i. 84 sqq.]

These practices and rules spring from the idea that the contact of a polluting substance with anything holy is followed by injurious consequences--an idea which will be more fully discussed in connection with sexual abstinences. Such contact is supposed to deprive a deity or holy being of its holiness, or otherwise be detrimental to it, and therefore to excite its anger against him who causes the defilement. So also a sacred act is believed to lose its sacredness by being performed by an unclean individual. Moreover, as a polluting substance is itself held to contain mysterious energy of a baneful kind, it is looked upon as a direct danger even to persons who are not engaged in religious worship. We have previously noticed the rites of purification which a manslayer has to undergo in order to get rid of the blood-pollution.[66] We have also seen that ablutions and other purificatory ceremonies {354} are performed for the purpose of removing sins and misfortunes.[67] And bathing or sprinkling with water is a common method of clearing mourners or persons who have come in contact with a corpse from the contagion of death.[68]

[Footnote 66: Supra, i. 375 sqq.]

[Footnote 67: Supra, i. 54 sqq.]

[Footnote 68: Teit, 'Thompson Indians of British Columbia,' in Memoirs of the American Museum of Natural History, 'Anthropology,' i. 331. Cruickshank, op. cit. ii. 218 (Negroes of the Gold Coast). Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 160. Turner, Samoa, p. 145; Idem, Nineteen Years in Polynesia, p. 228 (Samoans). Ellis, Polynesian Researches, i. 403 (Society Islanders). Kloss, In the Andamans and Nicobars, p. 305 (Kar Nicobarese). Joinville, 'Religion and Manners of the People of Ceylon,' in Asiatick Researches, vii. 437 (Sinhalese). Iyer, 'Nay[=a]dis of Malabar,' in the Madras Government Museum's Bulletin, iv. 71; Thurston, ibid. iv. 76 sq. (Nay[=a]dis). Crooke, Tribes and Castes of the North-Western Provinces and Oudh, i. 83 (Arakh, a tribe in Oudh). Ward, View of the History, &c. of the Hindoos, ii. 147, iii. 275; Dubois, Manners and Customs of the People of India, p. 108 sq.; Bose, Hindoos as they are, p. 257. Caland, Die Altindischen Todten- und Bestattungsgebräuche, p. 79 sq.]

But whilst religious or superstitious beliefs have thus led to ablutions and cleanliness, they have in other instances had the very opposite effect. Among Arabs young children are often left dirty and ill-dressed purposely, to preserve them from the evil eye.[69] The Obbo natives in Central Africa declare that if they do not wash their hands with cow's urine before milking, the cow will lose her milk; and with the same fluid they wash the milk-bowl, and even mix some of it with the milk.[70] The Jakuts "never wash any of their eating or drinking utensils; but, as soon as a dish is emptied, they clean it with the fore and middle finger; for they think it a great sin to wash away any part of their food, and apprehend that the consequence will be a scarcity."[71] A similar custom prevails among the Kirghiz[72] and Kalmucks. The latter "are forbidden by the laws of their faith" to wash their vessels in river-water, and therefore "do no more than wipe them with a piece of an old sheep-skin shube, which they use also for cleaning their hands upon when dirty."[73] They, moreover, abstain from washing their {355} clothes; and so did the Huns and Mongols.[74] The ancient Turks never washed themselves, because they believed that their gods punished ablutions with thunder and lightning; and the same belief still prevails among kindred peoples in Central Asia.[75] Among the Bahima of Enkole, in the Uganda Protectorate, a man may smear his body with butter or clay as often as he wishes, but "to wash with water is bad for him, and is a sure way of bringing sickness into his family and amongst his cattle."[76] The dread of water may be due partly to ill effects experienced after using it, partly to superstition. The Moors dare not wash their bodies with cold water in the afternoon and evening after the [(]â[s.]ar, because all such water is then supposed to be haunted by jnûn, or evil spirits. In various religions the odour of sanctity is associated with filth. Muhammedan dervishes are recognised by their appearance of untidiness and uncleanness. Among the rules laid down for Buddhist monks there is one which prescribes that their dress shall be made of rags taken from a dust or refuse heap.[77] In the early days of Christian monasticism "the cleanliness of the body was regarded as a pollution of the soul." The saints who were most admired were those who had become one hideous mass of clotted filth. St. Athanasius relates with enthusiasm how St. Antony, the patriarch of monachism, had never, to extreme old age, been guilty of washing his feet. A famous virgin, though bodily sickness was a consequence of her habits, resolutely refused, on religious principles, to wash any part of her body except her fingers. And St. Simeon Stylites, who was generally pronounced to be the highest model of a Christian saint, bound a rope round himself so that it became imbedded in his flesh and caused putrefaction; and it is said that "a horrible stench, intolerable {356} to the bystanders, exhaled from his body, and worms dropped from him whenever he moved, and they filled his bed."[78] In mediæval Christianity abstinence from every species of cleanliness was also

enjoined as a penance, the penitent being required to go with foul mouth, filthy hands and neck, undressed hair and beard, unpared nails, and clothes as dirty as his person. In these cases uncleanliness is a form of asceticism, a subject which we have already touched upon in dealing with industry and fasting, but the principles of which still call for our consideration.

[Footnote 69: Blunt, Bedouin Tribes of the Euphrates, ii. 214. Klunzinger, Upper Egypt, p. 391.]

[Footnote 70: Baker, Albert N'yanza, i. 381.]

[Footnote 71: Sauer, op. cit. p. 125.]

[Footnote 72: Valikhanof, &c., Russians in Central Asia, p. 80.]

[Footnote 73: Georgi, op. cit. iv. 37. Bergmann, op. cit. ii. 123.]

[Footnote 74: Neumann, Die Völker des südlichen Russlands, p. 27. For the excessive dirtiness of the present Mongols, see Prejevalsky, Mongolia, i. 51 sq.]

[Footnote 75: Castrén, op. cit. iv. 61.]

[Footnote 76: Roscoe, 'Bahima,' in Jour. Anthr. Inst. xxxvii. 111.]

[Footnote 77: Kern, Manual of Indian Buddhism, p. 75.]

[Footnote 78: Lecky, History of European Morals, ii. 109 sqq.]

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In various religions we meet with the idea that a person appeases or gives pleasure to the deity by subjecting himself to suffering or deprivation. This belief finds expression in all sorts of ascetic practices. We read of Christian ascetics who lived in deserted dens of wild beasts, or in dried-up wells, or in tombs; who disdained all clothes, and crawled abroad like animals covered only by their matted hair; who ate nothing but corn which had become rotten by remaining for a month in water; who spent forty days and nights in the middle of thorn-bushes, and for forty years never lay down.[79] Hindu ascetics remain in immovable attitudes with their faces or their arms raised to heaven, until the sinews shrink and the posture assumed stiffens into rigidity; or they expose themselves to the inclemency of the weather in a state of absolute nudity, or tear their bodies with knives, or feed on carrion and excrement.[80] Among the Muhammedans of India there are fakirs who have been seen dragging heavy chains or cannon balls, or crawling upon their hands and knees for years; others have been found lying upon iron spikes for a bed; and others, again, have been swinging for months before a slow fire with a {357} tropical sun blazing overhead.[81] Among modern Jews some of the more sanctimonious members of the synagogue have been known to undergo the penance of voluntary flagellation before the commencement of the fast of atonement, two persons successively inflicting upon each other thirty-nine stripes or thirteen lashes with a triple scourge.[82] According to the Zoroastrian Yasts, thirty strokes with the Sraoshô-karana is an expiation which purges people from their sins, and makes them fit for offering a sacrifice.[83] Herodotus tells us that the ancient Egyptians beat themselves while the things offered by them as sacrifices were being burned, and that the Carian dwellers in Egypt on such occasions cut their faces with knives.[84] Among the ancient Mexicans blood-drawing was a favourite and most common mode of expiating sin and showing devotion. "It makes one shudder," says Clavigero, "to read the austerities which they exercised upon themselves, either in atonement of their transgressions or in preparation for their festivals. They mangled their flesh as if it had been insensible, and let their blood run in such profusion, that it appeared to be a superfluous fluid of the body."[85] Self-mortification also formed part of the religious cult in many uncivilised tribes in North America.[86] "The Indian," Colonel Dodge observes, "believes, with many Christians, that self-torture is an act most acceptable to God, and the extent of

pleasure that he can give his god is exactly measured by the amount of suffering that he can bear without flinching."[87]

[Footnote 79: Ibid. ii. 108 sq.]

[Footnote 80: Barth, Religions of India, p. 214 sq. Hopkins, Religions of India, p. 352. Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 395.]

[Footnote 81: Pool, Studies in Mohammedanism, p. 305. For similar practices among the modern Egyptians, see Lane, Modern Egyptians, p. 244.]

[Footnote 82: Allen, Modern Judaism, p. 407.]

[Footnote 83: Yasts, x. 122. Darmesteter, in Sacred Books of the East, xxiii. 151, n. 3.]

[Footnote 84: Herodotus, ii. 40, 61.]

[Footnote 85: Clavigero, History of Mexico, i. 284. See also Bancroft, op. cit. iii. 441 sq.; Réville, Hibbert Lectures on the Native Religions of Mexico and Peru, p. 100.]

[Footnote 86: Domenech, Seven Years Residence in the Great Deserts of North America, ii. 380. Catlin, North American Indians, ii. 243. James, Expedition to the Rocky Mountains, i. 276 sqq. (Omahas). McGee, 'Siouan Indians,' in Ann. Rep. Bur. Ethn. xv. 184.]

[Footnote 87: Dodge, Our Wild Indians, p. 149.]

The idea underlying religious asceticism has no doubt {358} been derived from several different sources. It should first be noticed that certain ascetic practices have originally been performed for another purpose, and only afterwards come to be regarded as means of propitiating or pleasing the deity through the suffering involved in them. This, as we have seen, is the case with certain fasts, and also with sexual asceticism.[88] When an act is supposed to be connected with supernatural danger, the evil (real or imaginary) resulting from it is readily interpreted as a sign of divine anger and the act itself is regarded as being forbidden by a god. If then the abstinence from it implies suffering, as is in some degree the case with fasting and sexual continence, the conclusion is drawn that the god delights in such suffering. The same inference is, moreover, made from the fact that such abstinences are enjoined in connection with religious worship, though the primary motive for this injunction was fear of pollution. Beating or scourging, again, was in certain cases originally a mode of purification, intended to wipe off and drive away a dangerous contagion either personified as demoniacal or otherwise of a magical character. And although the pain inflicted on the person beaten was at first not the object of the act but only incidental to it, it became subsequently the chief purpose of the ceremony, which was now regarded as a mortification well pleasing to the god.[89] This change of ideas seems likewise to be due both to the tendency of the supernatural contagion to develop into a divine punishment in case it is not removed by the painful rite, and also to the circumstance that purification is held to be a necessary accompaniment of acts of religious worship. The Egyptian sacrifice described by Herodotus was combined with purificatory fasting as well as beating.[90] Among the Jews, before the commencement of the fast of atonement, whilst a few very religious persons undergo the penance of flagellation, "some purify themselves by {359} ablutions."[91] And that the original object of the scourging mentioned in the Yasts was to purify the worshipper is suggested by the fact that he on the same occasion had to wash his body three days and three nights.[92] But it should also be remembered that religious exaltation, when it has reached its highest stage, may express itself in self-laceration;[93] and the deity is naturally supposed to be pleased with the outward expression of such an emotion in his devotees.

[Footnote 88: See infra, p. 420 sq.]

[Footnote 89: Frazer, Golden Bough, iii. 217 sq.]

[Footnote 90: Herodotus, ii. 40.]

[Footnote 91: Allen, op. cit. p. 407.]

[Footnote 92: Yasts, x. 122.]

[Footnote 93: See Hirn, Origins of Art, p. 64.]

An ascetic practice may also be the survival of an earlier sacrifice. We have seen that this is frequently the case with fasting and almsgiving, and the same may hold true of other forms of asceticism.[94] The essence of the act then no longer lies in the benefit which the god derives from it, but in the self-denial or self-mortification which it costs the worshipper. In the sacred books of India "austerity" is mentioned as a means of expiation side by side with sacrifice, fasting, and giving gifts.[95]

[Footnote 94: Cf. Tertullian, De resurrectione carnis, 8 (Migne, op. cit. ii. 806).]

[Footnote 95: Gautama, xix. 11. Vasishtha, xx. 47; xxii. 8. Baudháyana, iii. 10. 9.]

When an ascetic practice develops out of a previous custom of a different origin, it may be combined with an idea which by itself has been a frequent source of self-inflicted pain, to wit, the belief that such pain is an expiation for sin, that it may serve as a substitute for a punishment which would otherwise be inflicted by the offended god; and almost inseparably connected with this belief there may be that desire to suffer which is so often, vaguely or distinctly, involved in genuine repentance.[96] The idea of expiation very largely underlies the penitential discipline of the Christian Church and the asceticism of its saints. From the days of Tertullian and Cyprian the Latins were familiar with the notion that the Christian has to propitiate God, that cries of pain, sufferings, and deprivations are means of appeasing his anger, that God takes strict account of the quantity of {360} the atonement, and that, where there is no guilt to have blotted out, those very means are regarded as merits.[97] According to the doctrine of the Church, penance should in all grave cases be preceded by sorrow for the sin and also by confession, either public or private; repentance, as we have noticed above, is the only ground on which pardon can be given by a scrupulous judge.[98] But the notion was only too often adopted that the penitential practice itself was a compensation for sin, that a man was at liberty to do whatever he pleased provided he was prepared to do penance afterwards, and that a person who, conscious of his frailty, had laid in a large stock of vicarious penance in anticipation of future necessity, had a right "to work it out," and spend it in sins.[99] The idea that sins may be expiated by certain acts of self-mortification is familiar both to Muhammedans[100] and Jews.[101] According to Zoroastrian beliefs, it is possible to wipe out by peculiarly severe atonements not only the special sin on account of which the atonement is performed, but also other offences committed in former times or unconsciously.[102] In the sacred books of the Hindus we meet with a strong conviction that pain suffered in this life will redeem the sufferer from punishment in a future existence. It is said that "men who have committed crimes and have been punished by the king go to heaven, being pure like those who performed meritorious deeds";[103] and the same idea is at the bottom of their penitential system.[104] But in Brahmanism, as in Catholicism, the effect of ascetic practices is supposed to go beyond mere expiation. They are regarded as means of accumulating religious merit or attaining superhuman powers. Brahmanical poems tell of marvellous self-mortifications {361} by which sages of the past obtained influence over the gods themselves; nay, even the power wielded by certain archdemons over men and gods is supposed to have been acquired by the practice of religious austerities.[105] How largely ascetic practices are due to the idea of expiation is indicated by the fact that they hardly occur among nations who have no vivid sense of sin, like the Chinese before the introduction of Taouism and Buddhism,[106] and the ancient Greeks, Romans, and Scandinavians.

In Greece, however, people sometimes voluntarily sacrificed a part of their happiness in order to avoid the envy of the gods, who would not allow to man more than a moderate share of good fortune.[107]

[Footnote 96: See supra, i. 105 sq.]

[Footnote 97: Tertullian, De jejuniis, 7 (Migne, op. cit. ii. 962). Idem, De resurrectione carnis, 8 (Migne, ii. 806 sq.). Harnack, History of Dogma, ii. 110, 132; iii. 311.]

[Footnote 98: Supra, i. 85.]

[Footnote 99: See Thrupp, The Anglo-Saxon Home, p. 259.]

[Footnote 100: Supra, ii. 315, 317. Pool, op. cit. p. 264.]

[Footnote 101: Supra, ii. 315 sqq. Allen, op. cit. p. 130.]

[Footnote 102: Geiger, Civilization of the Eastern Ir[=a]nians, i. 163.]

[Footnote 103: Laws of Manu, viii. 318.]

[Footnote 104: Ibid. xi. 228.]

[Footnote 105: Monier-Williams, Br[=a]hmanism and Hind[=u]ism, pp. 231, 427. Oldenberg, Buddha, p. 302.]

[Footnote 106: Réville, La religion Chinoise, p. 221.]

[Footnote 107: Aeschylus, Agamemnon, 1008 sqq. Schmidt, Die Ethik der alten Griechen, i. 82.]

Self-mortification is also sometimes resorted to not so much to appease the anger of a god as rather to excite his compassion. In some of the Jewish fasts, as we have seen before, these two objects are closely interwoven.[108] The Jewish custom of fasting in the case of a drought is in a way parallel to the Moorish practice of tying holy men and throwing them into a pond in order that their pitiful condition may induce God to send rain. Mr. Williams tells us of a Fijian priest who, "after supplicating his god for rain in the usual way without success, slept for several successive nights exposed on the top of a rock, without mat or pillow, hoping thus to move the obdurate deity to send a shower."[109]

[Footnote 108: Supra, ii. 315.]

[Footnote 109: Williams and Calvert, Fiji, p. 196.]

Not only is suffering voluntarily sought as a means of wiping off sins committed, but it is also endured with a view to preventing the commission of sin. This is the second or, in importance, the first great idea upon which Christian asceticism rests. The gratification of every worldly desire is sinful, the flesh should be the abject slave of the spirit intent upon unearthly things. Man was created for a life in spiritual communion with God, {362} but he yielded to the seduction of evil demons, who availed themselves of the sensuous side of his nature to draw him away from the contemplation of the divine and lead him to the earthly. Moral goodness, therefore, consists in renouncing all sensuous pleasures, in separating from the world, in living solely after the spirit, in imitating the perfection and purity of God. The contrast between good and evil is the contrast between God and the world, and the conception of the world includes not only the objects of bodily appetites but all human institutions, as well as science and art.[110] And still more than any theoretical doctrine, the personal example of Christ led to the glorification of spiritual joy and bodily suffering.

[Footnote 110: Harnack, op. cit. ii. 214 sqq., iii. 258 sqq. von Eicken, Geschichte der mittelalterlichen Weltanschauung, p. 313 sqq.]

The antithesis of spirit and body was not peculiar to Christianity. It was an old Platonic conception, which was regarded by the Fathers of the Church as the contrast between that which was precious and that which was to be mortified. The doctrine that bodily enjoyments are low and degrading was taught by many pagan philosophers;

even a man like Cicero says that all corporeal pleasure is opposed to virtue and ought to be rejected.[111] And in the Neo-Platonic and Neo-Pythagorean schools of Alexandria an ascetic ideal of life was the natural outcome of their theory that God alone is pure and good, and matter impure and evil. Renunciation of the world was taught and practised by the Jewish sects of the Essenes and Therapeutæ. In India, Professor Kern observes, "climate, institutions, the contemplative bent of the native mind, all tended to facilitate the growth of a persuasion that the highest aims of human life and real felicity cannot be obtained but by the seclusion from the busy world, by undisturbed pious exercises, and by a certain amount of mortification."[112] We read in the Hitopadesa, "Subjection to the senses has been called the road to ruin, and {363} their subjugation the path to fortune."[113] The Jain regards pleasure in itself as sinful:--"What is discontent, and what is pleasure? One should live subject to neither. Giving up all gaiety, circumspect, restrained, one should lead a religious life."[114] According to Buddhism, there are two causes of the misery with which life is inseparably bound up--lust and ignorance; and so there are two cures--the suppression of lust and desire and the removal of ignorance.[115] It is said in the Dhammapada, "There is no satisfying lusts, even by a shower of gold pieces; he who knows that lusts have a short taste and cause pain, he is wise."[116] Penances, as they were practised among the ascetics of India, were discarded by Buddha as vexatious, unworthy, unprofitable. "Not nakedness, not platted hair, not dirt, not fasting, or lying on the earth, not rubbing with dust, not sitting motionless, can purify a mortal who has not overcome desires."[117] Where all contact with the earthly ceases, there, and there only, are deliverance and freedom.

[Footnote 111: Cicero, De officiis, i. 30; iii. 33.]

[Footnote 112: Kern, Manual of Indian Buddhism, p. 73.]

[Footnote 113: Hitopadesa, quoted by Monier-Williams, Indian Wisdom, p. 538.]

[Footnote 114: Hopkins, op. cit. p. 291.]

[Footnote 115: Oldenberg, op. cit. p. 212 sq. Monier-Williams, Buddhism, p. 99.]

[Footnote 116: Dhammapada, 186 sq.]

[Footnote 117: Ibid. 141. See also Oldenberg, op. cit. p. 301 sq.]

The idea that man ought to liberate himself from the bondage of earthly desires is the conclusion of a contemplative mind reflecting upon the short duration and emptiness of all bodily pleasures and the allurements by which they lead men into misery and sin. And separation from the material world is the ideal of the religious enthusiast whose highest aspiration is union with God conceived as an immaterial being, as pure spirit.

Chapter XL — Marriage

MAN'S sexual nature gives rise to various modes of conduct on which moral judgments are passed. We shall first consider such relations between the sexes as are comprised under the heading Marriage.

In a previous work I have endeavoured to show that in all probability there has been no stage in the social history of mankind where marriage has not existed, human marriage apparently being an inheritance from some ape-like progenitor.[1] I then defined marriage as a more or less durable connection between male and female, lasting beyond the mere act of propagation till after the birth of the offspring. This is marriage in the natural history sense of the term. As a social institution, on the other hand, it has a somewhat different meaning: it is a union regulated by custom or law.[2] Society lays

down rules relating to the selection of partners, to the mode of contracting marriage, to its form, and to its duration. These rules are essentially expressions of moral feelings.

[Footnote 1: Westermarck, History of Human Marriage, ch. iii. sqq.]

[Footnote 2: The best definition of marriage as a social institution which I have met with is the following one given by Dr. Friedrichs ('Einzeluntersuchungen zur vergleichenden Rechtswissenschaft,' in Zeitschr. f. vergl. Rechtswiss. x. 255):--"Eine von der Rechtsordnung anerkannte und privilegirte Vereinigung geschlechtsdifferenter Personen, entweder zur Führung eines gemeinsamen Hausstandes und zum Geschlechtsverkehr, oder zum ausschliesslichen Geschlechtsverkehr."]

There is, first, a circle of persons within which marriage is prohibited. It seems that the horror of incest is well-nigh universal in the human race, and that the few cases in which this feeling is said to be absent can only be regarded {365} as abnormalities. But the degrees of kinship within which marriage is forbidden are by no means the same everywhere. It is most, and almost universally, abominated between parents and children. It is also held in general abhorrence between brothers and sisters who are children of the same mother as well as of the same father. Most of the exceptions to this rule refer to royal persons, for whom it is considered improper to contract marriage with individuals of less exalted birth; but among a few peoples incestuous unions are practised on a larger scale on account of extreme isolation or as a result of vitiated instincts.[3] It seems, however, that habitual marriages between brothers and sisters have been imputed to certain peoples without sufficient reason.[4] This is obviously true of the Veddahs of Ceylon, who have long been supposed to regard the marriage of a man with his younger sister as the proper marriage.[5] "Such incest," says Mr. Nevill, "never was allowed, and never could be, while the Vaedda {366} customs lingered. Incest is regarded as worse than murder. So positive is this feeling, that the Tamils have based a legend upon the instant murder of his sister by a Vaedda to whom she had made undue advances. The mistake arose from gross ignorance of Vaedda usages. The title of a cousin with whom marriage ought to be contracted, that is, mother's brother's daughter, or father's sister's daughter, is nagâ or nangî. This, in Sinhalese, is applied to a younger sister. Hence if you ask a Vaedda, 'Do you marry your sisters?' the Sinhalese interpreter is apt to say, 'Do you marry your nagâ?' The reply is (I have often tested it), 'Yes--we always did formerly, but now it is not always observed.' You say then, 'What? marry your own-sister-nagâ?' and the reply is an angry and insulted denial, the very question appearing a gross insult." The same writer adds:--"In no case did a person marry one of the same family, even though the relationship was lost in remote antiquity. Such a marriage is incest. The penalty for incest was death."[6]

[Footnote 3: Westermarck, op. cit. ch. xiv. sq.]

[Footnote 4: This is apparently the case with various peoples mentioned by Sir J. G. Frazer (Pausanias's Description of Greece, ii. 84 sq.) as being addicted to incestuous unions. Mr. Turner's short statement (Samoa, p. 341) that among the New Caledonians no laws of consanguinity were observed in their marriages, and that even the nearest relatives united, radically differs from M. de Rochas' description of the same people. "Les Néo-Calédoniens," he says (Nouvelle Calédonie, p. 232), "ne se marient pas entre proches parents du côté paternel; mais du côté maternel, ils se marient à tous les degrés de cousinage." Brothers and sisters, after they have reached years of maturity, are no longer permitted to entertain any social intercourse with each other; they are prohibited from keeping each other company even in the presence of a third person; and if they casually meet they must instantly go out of the way or, if that is impossible, the sister must throw herself on the ground with her face downwards. "Cet éloignement," M. de

Rochas adds (ibid. p. 239), "qui n'est certes l'effet ni du mépris ni de l'inimitié, me parait né d'une exagération déraisonnable d'un sentiment naturel, l'horreur de l'inceste." Sir J. G. Frazer says that, according to Mr. Thomson, the marriage of brothers with sisters has been practised among the Masai; but a later and, as it seems, better informed authority tells us that "the Masai do not marry their near relations" and that "incest is unknown among them" (Hinde, The Last of the Masai, p. 76). Again, the statement that among the Obongos, a dwarf race in West Africa, sisters marry with brothers, is only based on information derived from another people, the Ashangos, who have a strong antipathy to them (Du Chaillu, Journey to Ashango-Land, p. 320). Liebich's assertion (Die Zigeuner, p. 49) that the Gypsies allow a brother to marry his sister is certainly not true of the Gypsies of Finland, who greatly abhor incest (Thesleff, 'Zigenarlif i Finland,' in Nya Pressen, 1897, no. 331 B).]

[Footnote 5: Bailey, 'Wild Tribes of the Veddahs of Ceylon,' in Trans. Ethn. Soc. N.S. ii. 294 sq.]

[Footnote 6: Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 178.]

As a rule, the prohibited degrees are more numerous among peoples unaffected by modern civilisation than they are in more advanced communities, the prohibitions in a great many cases referring even to all the members of the tribe or clan; and the violation of these rules is regarded as a most heinous crime.[7]

[Footnote 7: Westermarck, op. cit. p. 297 sqq.]

The Algonquins speak of cases where men have been put to death by their nearest kinsfolk for marrying women of their own clan.[8] Among the Asiniboin, a Siouan tribe, a chief can commit murder with impunity if the murdered person be without friends, but if he married within his gens he would be dismissed, on account of the general disgust which such a union would arouse.[9] The Hottentots used to punish alliances between first or second cousins with death.[10] A Bantu of the coast region considers similar unions to be "something horrible, something unutterably disgraceful."[11] The Busoga of the Uganda {367} Protectorate held in great abhorrence anything like incest even amongst domestic animals.[12] Among the Kandhs of India "intermarriage between persons of the same tribe, however large or scattered, is considered incestuous and punishable with death."[13] In the Malay Archipelago submersion is a common punishment for incest,[14] but among certain tribes the guilty parties are killed and eaten[15] or buried alive.[16] In Efate, of the New Hebrides, it would be a crime punishable with death for a man or woman to marry a person belonging to his or her mother's clan;[17] and the Mortlock Islanders are said to inflict the same punishment upon anybody who has sexual intercourse with a relative belonging to his own "tribe."[18] Nowhere has marriage been bound by more severe laws than among the Australian aborigines. Their tribes are grouped in exogamous subdivisions, the number of which varies; and at least before the occupation of the country by the whites the regular punishment for marriage or sexual intercourse with a person belonging to a forbidden division was death.[19]

[Footnote 8: Frazer, Totemism, p. 59.]

[Footnote 9: Dorsey, 'Siouan Sociology,' in Ann. Rep. Bur. Ethn. xv. 224.]

[Footnote 10: Kolben, Present State of the Cape of Good Hope, i. 155 sq.]

[Footnote 11: Theal, History of the Boers in South Africa, p. 16.]

[Footnote 12: Johnston, Uganda Protectorate, ii. 719.]

[Footnote 13: Macpherson, quoted by Percival, Land of the Veda, p. 345. Cf. Hunter, Annals of Rural Bengal, iii. 81.]

[Footnote 14: Wilken, Huwelijken tusschen bloedverwanten, p. 26 sq. Riedel, De sluik- en kroesharige rassen tusschen Selebes en Papua, p. 460.]

[Footnote 15: Wilken, Over de verwantschap en het huwelijks- en erfrecht bij de volken van het maleische ras, p. 18.]

[Footnote 16: Glimpses of the Eastern Archipelago, p. 105.]

[Footnote 17: Macdonald, Oceania, p. 181 sq.]

[Footnote 18: Kubary, 'Die Bewohner der Mortlock Inseln,' in Mittheil. d. Geogr. Gesellsch. in Hamburg, 1878-9, p. 251.]

[Footnote 19: Westermarck, op. cit. p. 299 sq. See, besides the authorities quoted there, Roth, Ethnol. Studies among the North-West-Central Queensland Aborigines, p. 182; Spencer and Gillen, Native Tribes of Central Australia, p. 15.]

Not less intense is the horror of incest among nations that have passed beyond savagery and barbarism. Among the Chinese incest with a grand-uncle, a father's first cousin, a brother, or a nephew, is punishable by death, and a man who marries his mother's sister is strangled; nay, punishment is inflicted even on him who marries a person with the same surname as his own, sixty blows being the penalty.[20] So also incest was held in the utmost horror by the so-called Aryan peoples in ancient times. [21] In the 'Institutes of Vishnu' it is said that sexual intercourse {368} with one's mother or daughter or daughter-in-law is a crime of the highest degree, for which there is no other atonement than to proceed into the flames.[22]

[Footnote 20: Medhurst, 'Marriage, Affinity, and Inheritance in China,' in Trans. Roy. Asiatic Soc. China Branch, iv. 21 sqq.]

[Footnote 21: Leist, Alt-arisches Jus Gentium, p. 394 sq.]

[Footnote 22: Institutes of Vishnu, xxxiv. 1 sq.]

Various theories have been set forth to account for the prohibition of marriage between near kin. I criticised some of them in my book on the 'History of Human Marriage,' and ventured at the same time on an explanation of my own.[23] I pointed out that there is an innate aversion to sexual intercourse between persons living very closely together from early youth, and that, as such persons are in most cases related by blood, this feeling would naturally display itself in custom and law as a horror of intercourse between near kin. Indeed, an abundance of ethnographical facts seem to indicate that it is not in the first place by the degree of consanguinity, but by the close living together, that prohibitory laws against intermarriage are determined. Thus many peoples have a rule of "exogamy" which does not depend on kinship at all, but on purely local considerations, all the members of a horde or village, though not related by blood, being forbidden to intermarry.[24] The prohibited degrees are very differently defined in the customs or laws of different nations, and it appears that the extent to which relatives are prohibited from intermarrying is nearly connected with their close living together. Very often the prohibitions against incest are more or less one-sided, applying more extensively either to the relatives on the father's side or to those on the mother's, according as descent is reckoned through men or women. Now, since {369} the line of descent is largely connected with local relationships, we may reasonably infer that the same local relationships exercise a considerable influence on the table of prohibited degrees. However, in a large number of cases prohibitions of intermarriage are only indirectly influenced by the close living together.[25] Aversion to the intermarriage of persons who live in intimate connection with one another has called forth prohibitions of the intermarriage of relations; and, as kinship is traced by means of a system of names, the name comes to be considered identical with relationship. This system is necessarily one-sided. Though it will keep up the record of descent either on the male

or female side, it cannot do both at once;[26] and the line which has not been kept up by such means of record, even where it is recognised as a line of relationship, is naturally more or less neglected and soon forgotten. Hence the prohibited degrees frequently extend very far on the one side--to the whole clan--but not on the other. It should also be remembered that, according to primitive ideas, the name itself constitutes a mystic link between those who have it in common. "In Greenland, as everywhere else," says Dr. Nansen, "the name is of great importance; it is believed that there is a spiritual affinity between two people of the same name."[27] Generally speaking, the feeling that two persons are intimately connected in some way or other may, through an association of ideas, give rise to the notion that marriage or sexual intercourse between them is incestuous. Hence the prohibitions of marriage between relations by alliance and by adoption. Hence, too, the prohibitions of the Roman and Greek Churches on the ground of what is called "spiritual relationship."

[Footnote 23: Westermarck, op. cit. p. 310 sqq.]

[Footnote 24: Herr Cunow (Die Verwandtschafts-Organisationen der Australneger, p. 187) finds this argument "rather peculiar," and offers himself a different explanation of the rule in question. He writes:--"In der Wirklichkeit erklärt sich das Verbot einfach daraus, dass sehr oft die Lokalgruppe mit dem Geschlechtsverband beziehungsweise dem Totemverband kongruirt, und demnach das was für die Gens gilt, zugleich auch für die Lokalgruppe Geltung hat." This, however, is only Herr Cunow's own inference. And it may be asked why it is more "peculiar" to suppose that the prohibition of marriage between near kin has sprung from aversion to sexual intercourse between persons living closely together, than to assume that the rule which forbids marriage between unrelated persons living in the same community has sprung from the prohibition of marriage between kindred.]

[Footnote 25: I do not understand how any reader of my book can, like Herr Cunow (op. cit. p. 186 sqq.), attribute to me the statement that the group within which intermarriage is prohibited is identical with the group of people who live closely together. If he had read a little more carefully what I have said, he might have saved himself the trouble he has taken to prove my great ignorance of early social organisations.]

[Footnote 26: Cf. Tylor, Early History of Mankind, p. 285 sq.]

[Footnote 27: Nansen, Eskimo Life, p. 230.]

{370} The question arises:--How has this instinctive aversion to marriage and sexual intercourse in general between persons living closely together from early youth originated? I have suggested that it may be the result of natural selection. Darwin's careful studies of the effects of cross- and self-fertilisation in the vegetable kingdom, the consensus of opinion among eminent breeders, and experiments made with rats, rabbits, and other animals, seem to have proved that self-fertilisation of plants and close interbreeding of animals are more or less injurious to the species; and it is probable that the evil chiefly results from the fact that the uniting sexual elements were not sufficiently differentiated. Now it is impossible to believe that a physiological law which holds good of the rest of the animal kingdom, as also of plants, would not apply to man as well. But it is difficult to adduce direct evidence for the evil effects of consanguineous marriages. We cannot expect very conspicuous results from other alliances than those between the nearest relatives--between brothers and sisters, parents and children,--and the injurious results even of such unions would not necessarily appear at once. The closest kind of intermarriage which we have opportunities of studying is that between first cousins. Unfortunately, the observations hitherto made on the subject are far from decisive. Yet it is noteworthy that of all the writers who have discussed it the majority, and certainly

not the least able of them, have expressed their belief in marriages between first cousins being more or less unfavourable to the offspring; and no evidence which can stand the test of scientific investigation has hitherto been adduced against this view. Moreover, we have reason to believe that consanguineous marriages are much more injurious in savage regions, where the struggle for existence is often very severe, than they have proved to be in civilised societies, especially as it is among the well-to-do classes that such marriages occur most frequently.

Taking all these facts into consideration, I am inclined to think that consanguineous marriages are in some way or {371} other detrimental to the species. And here I find a quite sufficient explanation of the horror of incest; not because man at an early stage recognised the injurious influence of close intermarriage, but because the law of natural selection must inevitably have operated. Among the ancestors of man, as among other animals, there was no doubt a time, when blood-relationship was no bar to sexual intercourse. But variations, here as elsewhere, would naturally present themselves--we know how extremely liable to variations the sexual instinct is; and those of our ancestors who avoided in-and-in breeding would survive, while the others would gradually decay and ultimately perish. Thus a sentiment would be developed which would be powerful enough, as a rule, to prevent injurious unions. Of course it would display itself, not as an innate aversion to sexual connections with near relatives as such, but as an aversion on the part of individuals to union with others with whom they lived; but these, as a matter of fact, would be blood-relations, so that the result would be the survival of the fittest. Whether man inherited this sentiment from the predecessors from whom he sprang, or whether it was developed after the evolution of distinctly human qualities, we cannot know. It must have arisen at a stage when family ties became comparatively strong, and children remained with their parents until the age of puberty or even longer. And exogamy, resulting from a natural extension of this sentiment to a larger group, would arise when single families united into hordes.

This attempt to explain the prohibition of marriage between kindred and exogamy has not lacked sympathetic support,[28] but more commonly, I think, it has been rejected. Yet after a careful consideration of the various objections raised against it I find no reason to alter my opinion. Some of my opponents have evidently failed to grasp the {372} argument on which the theory is based. Thus Professor Robertson Smith argued that it begins by presupposing the very custom which it professes to explain, the custom of exogamy; that "it postulates the existence of groups which through many generations (for the survival of the fittest implies this) avoided wiving within the group."[29] But what my theory postulates is not the existence of exogamous groups, but the spontaneous appearance of individual sentiments of aversion. And if, as Mr. Andrew Lang maintains, my whole argument is a "vicious circle,"[30] then the theory of natural selection itself is a vicious circle, since there never could be a selection of qualities that did not exist before.

[Footnote 28: A. R. Wallace, in his 'Introductory Note' to my History of Human Marriage, p. vi. Giddings, Principles of Sociology, p. 267. Howard, History of Matrimonial Institutions, i. 125 sqq. Sir E. B. Tylor (in Academy, xl. 289) says with regard to my theory that, at any rate, I am "well on the track." See also Crooke, Tribes and Castes of the North-Western Provinces and Oudh, i. pp. clxxix, clxxx, ccii.]

[Footnote 29: Robertson Smith, in Nature, xliv. 271.]

[Footnote 30: Lang, Social Origins, p. 33.]

It has been argued that if close living together calls forth aversion to sexual intercourse, such aversion ought to display itself between husband and wife as well as

between near relatives.[31] But these cases are certainly not identical. The feeling of which I have spoken is aversion associated with the idea of sexual intercourse between persons who have lived in a long-continued intimate relationship from a period of life when the action of sexual desire is naturally out of the question.[32] On the other hand, when a man marries a woman his feeling towards her is of a very different kind, and his love impulse may remain, nay increase, during the conjugal union; though even in this case long living together has undoubtedly a tendency to lead to sexual indifference and sometimes to positive aversion. The opinion that the home is kept free from incestuous intercourse only by law, custom, and education,[33]{373} shows lack of discrimination. Law may forbid a son to marry his mother, a brother to marry his sister, but it could not prevent him from desiring such a union. Have the most draconic codes ever been able to suppress, say, homosexual love? As Plato observed, an unwritten law defends as sufficiently as possible parents from incestuous intercourse with their children, brothers from intercourse with their sisters; "nor does the thought of such a thing ever enter at all into the minds of most of them."[34] Considering the extreme variability to which the sexual impulse is subject, it is not astonishing that cases of what we consider incestuous intercourse sometimes do occur. It seems to me more remarkable that the abhorrence of incest should be so general, and the exceptions to the rule so few.

[Footnote 31: Durkheim, 'La prohibition de l'inceste et ses origines,' in L'année sociologique, i. 64. Professor Durkheim refers in this connection to an article by Dr. Simmel, 'Die Verwandtenehe,' in Vossische Zeitung, June 3rd and 10th, 1894. But I cannot find that Dr. Simmel is really opposed to my view. He only says, "Das intime Beisammenleben wirkt keineswegs nur abstumpfend, sondern in vielen Fällen gerade anreizend, sonst würde die alte Erfahrung nicht gelten, dass die Liebe, wo sie beim Eingehen der Ehe fehlte, oft im Laufe derselben entsteht."]

[Footnote 32: Cf. Bentham, Theory of Legislation, p. 220:--"Individuals accustomed to see each other and to know each other, from an age which is neither capable of conceiving the desire nor of inspiring it, will see each other with the same eyes to the end of life."]

[Footnote 33: For advocates of such a view see Westermarck, op. cit. p. 310 sqq. More recently it has been expressed by Krauss, in Am Ur-Quell, iv. 151, and Finck, Primitive Love, p. 49.]

[Footnote 34: Plato, Leges, viii. 838. Among the Maoris of New Zealand, according to Mr. Colenso (Maori Races, p. 47 sq.), adult brothers and sisters slept together, as they had always done from their birth, "not only without sin, but without thought of it."]

Dr. Havelock Ellis, again, objects that my theory assumes the existence of a kind of instinct which can with difficulty be accepted. "An innate tendency," he says, "at once so specific and so merely negative, involving at the same time deliberate intellectual processes, can only with a certain force be introduced into the accepted class of instincts. It is as awkward and artificial an instinct as would be, let us say, an instinct to avoid eating the apples that grew in one's own orchard. The explanation of the abhorrence of incest is really, however, exceedingly simple. . . . The normal failure of the pairing instinct to manifest itself in the case of brothers and sisters, or of boys and girls brought up together from infancy, is a merely negative phenomenon due to the inevitable absence under those circumstances of the conditions which evoke the pairing impulse. . . . Between those who have been brought up together from childhood all the sensory stimuli of vision, hearing, and touch have been dulled by use, trained to the calm level of affection, and deprived of their potency to {374} arouse the erethistic excitement which produces sexual tumescence."[35] I think that Dr. Ellis has consider-

ably exaggerated the difference between my theory and his own. The "instinct" of which I have spoken is simply aversion to sexual intercourse with certain persons, and this is a no more complicated mental phenomenon than, for instance, an animal's aversion to eating certain kinds of substances. Indeed, Dr. Ellis himself, in his excellent 'Studies in the Psychology of Sex,' gives us many instances not only of sexual indifference, but of sexual aversion, quite instinctive in character.[36] Thus the largest proportion of male inverts described by him experience what is called horror feminæ, that is to say, "woman as an object of sexual desire is disgusting" (not merely indifferent) to them. [37] And Dr. Ellis also repeatedly speaks of the "abhorrence" of incest.

[Footnote 35: Havelock Ellis, Studies in the Psychology of Sex, 'Sexual Selection in Man,' p. 205 sq.]

[Footnote 36: I have been blamed for making an illegitimate use of the word "instinct" (Crawley, The Mystic Rose p. 446). But if, as Dr. Ellis says, "an instinct is fundamentally a more or less complicated series of reflexes set in action by a definite stimulus," or as Mr. Crawley puts it (op. cit. p. 446), instinct "has nothing in its content except response of function to environment," then the aversion I speak of may certainly be called an instinct.]

[Footnote 37: Havelock Ellis, op. cit. p. 164.]

The objection has been raised that, if my explanation of the prohibition of incest were correct, connections between unrelated persons who have been brought up together should be as repulsive as connections between near kin; whereas, as a matter of fact, the two cases are regarded in a very different light, the latter, only, being held incestuous.[38] Much, of course, depends on the closeness of the union, and Dr. Steinmetz's argument that "the very sensual Frenchmen often seem to marry the lady friends of their earliest youth,"[39] is certainly not to the point. I believe that sexual love between a man and his foster-daughter is almost as great an abnormality as sexual love between a father and his daughter; and among some peoples marriages between persons who have been brought up together in the same family or who {375} belong to the same local group, without being related to each other by blood, are held blamable or are actually prohibited.[40] Even between lads and girls who have been educated in the same school there is a remarkable absence of erotic feelings, as appears from an interesting communication by a person who has for many years been the head-mistress of such a school in Finland. One youth assured her that neither he nor any of his friends would ever think of marrying a girl who had been their school fellow;[41] and I heard of a lad who made a great distinction between girls of his own school and other, "real," girls, as he called them. Yet however objectionable and unnatural unions between foster-parents and foster-children or between foster-brothers and foster-sisters may appear to us, I do not deny that unions between the nearest blood-relatives inspire a horror of their own; and it seems natural that they should do so considering that from earliest times the aversion to sexual intercourse between persons living closely together has been expressed in prohibitions against unions between kindred. Such unions have been stigmatised by custom, law, and religion, whilst much less notice has been taken of intercourse between unrelated persons who may occasionally have grown up in the same household. The belief in the supernatural, especially, has played a very important part in the ideas referring to incest, as in other points of sexual morality, owing to the mystery which surrounds everything connected with the function of reproduction.[42] The Aleuts in early times believed that incest, which they considered the gravest crime, was always followed by the birth of monsters with walrus tusks, beards, and other disfigurations.[43] The Kafirs {376} likewise maintain that the offspring of an incestuous

union will be a monster, as "a punishment inflicted by the ancestral spirit."[44] The Bataks of Sumatra regard a long drought as a decisive proof that two cousins have had criminal intercourse with each other.[45] The Galelarese think that incest calls forth alarming natural phenomena, such as earthquakes, the eruption of a volcano, or torrents of rain.[46] So also the higher religions have branded incest as a heinous sin. As for Christianity's views on the subject, it is sufficient to notice that the prohibited degrees were extended by the Church,[47] and that the jurisdiction over incest, as over all sexual offences, was exercised by the ecclesiastical courts.[48]

[Footnote 38: Steinmetz, 'Die neueren Forschungen zur Geschichte der menschlichen Familie,' in Zeitschr. f. Socialwiss. ii. 818 sq.]

[Footnote 39: Ibid. ii. 818.]

[Footnote 40: Westermarck, op. cit. p. 321 sqq. Among the Western Islanders of Torres Straits marriage was forbidden, "with a remarkable delicacy of feeling, to the sister of a man's particular friend" (Haddon, 'Ethnology of the Western Tribe of Torres Straits,' in Jour. Anthr. Inst. xix. 315).]

[Footnote 41: Lucina Hagman, 'Från samskolan,' in Humanitas, ii. 188 sq.]

[Footnote 42: For the connection between religious feelings and the sexual impulse, see Vallon and Marie, 'Des psychoses religieuses,' in Archives de Neurologie, ser. ii. vol. iii. 184 sq.; Gadelius, Om tvångstankar, p. 120 sq.; Starbuck, Psychology of Religion, p. 401 sqq.]

[Footnote 43: Veniammof, quoted by Petroff, Report on Alaska, p. 155.]

[Footnote 44: Shooter, Kafirs of Natal, p. 45.]

[Footnote 45: von Brenner, Besuch bei den Kannibalen Sumatras, p. 212.]

[Footnote 46: van Baarda, 'Fabelen, verhalen en overleveringen der Galelareezen,' in Bijdragen tot de taal-, land- en volkenkunde van Nederlandsch-Indië, xlv. (ser. vi. vol. 1.) p. 514. See also Frazer, Golden Bough, ii. 212 sq.]

[Footnote 47: Westermarck, op. cit. p. 308. Katz, Grundriss des kanonischen Strafrechts, p. 116 sq.]

[Footnote 48: Stephen, History of the Criminal Law of England, ii. 411.]

It has, finally, been argued that my theory utterly fails to explain the fact that prohibitions of intermarriage frequently refer to all the members of a clan, even those who live in different localities.[49] In addition to what I have previously observed on this point, I desire to emphasise that every hypothesis pretending to give a full explanation of prohibitions of incest must assume the operation of the very same mental law--that of association--which in my opinion accounts for clan-exogamy. Thus Professor Durkheim, while maintaining that my theory as regards the horror of incest could not apply to exogamy because the members of the same totem do not live together, is himself quite ready to resort to analogy to explain prohibitions extending outside the totem clan. He tries to show that clan-exogamy is the source of all other prohibitions against incest, and that clan-exogamy itself springs from totemism.[50] According {377} to him the rule of clan-exogamy has been extended to near relatives belonging to different clans, because they are in no less intimate contact with each other than are the members of the same clan. According to my own theory, again, the prohibition of marriage between near relatives living closely together has been extended to all the members of the clan on account of the notion of intimacy connected with the idea of a common descent and with a common name. If I consider Professor Durkheim's hypothesis extremely unsatisfactory,[51] it is certainly not because he has called in the law of association to explain the rules against incest. How could anybody deny the operation of this law for instance in the Roman Catholic prohibition of marriage

between co-sponsors, or in the rule prevalent in Eastern Europe according to which the groomsman at the wedding is forbidden to intermarry with the family of the bride, [52] or in laws prohibiting marriage between relatives by alliance? And why might not the {378} same law be applied to other relationships also, such as those constituted by a common descent or a common name?

[Footnote 49: Cunow, op. cit. p. 185. Durkheim, in L'année sociologique, i. 39, n. 2. Steinmetz, in Zeitschr. f. Socialwiss. ii. 819.]

[Footnote 50: Prof. Durkheim says (L'année sociologique, i. 50):--"Le sang est tabou d'une manière générale et il taboue tout ce qui entre en rapports avec lui. . . . La femme est, d'une manière chronique, le théâtre de manifestations sanglantes. . . . La femme est donc, elle aussi, et d'une manière également chronique, tabou pour les autres membres du clan." However, the taboo is not restricted to the members of the clan, but refers also to near relatives belonging to different clans, and this has to be explained. M. Durkheim writes (ibid. p. 19):--"Quand on a pris l'habitude de regarder comme incestueux et abominables les rapports conjugaux de sujets qui sont nominalement du même clan, les rapports similaires d'individus qui, tout en ressortissant verbalement à des clans différents, sont pourtant en contact aussi ou plus intime que les précédents, ne peuvent manquer de prendre le même caractère." And further (ibid. p. 58):--"Quand le totémisme disparaît, et avec lui la parenté spéciale au clan, l'exogamie devient solidaire des nouveaux types de famille qui se constituent et qui reposent sur d'autres bases, et comme ces families sont plus restreintes que n'était le clan, elle se circonscrit, elle aussi, dans un cercle moins étendu; le nombre des individus entre lesquels le mariage est prohibé diminue. C'est ainsi que, par une évolution graduelle, elle en est arrivée à l'état actuel où les mariages entre ascendants et descendants, entre frères et s[oe]urs, sont à peu près les seuls qui soient radicalement interdits."]

[Footnote 51: Professor Durkheim tries to explain a phenomenon of universal prevalence through an institution which has been proved to exist among certain peoples only. How does Professor Durkheim know that totem clans once prevailed among all peoples who now prohibit the intermarriage of near relatives? If the rules which prevent parents from marrying their children and brothers from marrying their sisters are survivals of ancient totemism, how shall we explain the normal aversion to such unions? Ancient totemism can certainly not account for this. But then the coincidence between these two facts--the legal prohibition of incest and the psychical aversion to it--is merely accidental; and this seems to me a preposterous supposition. See infra, Additional Notes.]

[Footnote 52: Maine, Dissertations, p. 257 sq.]

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There is not only an inner circle within which no marriage is allowed, but also an outer circle outside of which marriage is either prohibited or at least disapproved of. Like the inner circle, the outer one varies greatly in extent.[53] Probably every people considers it a disgrace, if not a crime, for its men, and even more so for its women, to marry within a race very different from its own, especially if it be an inferior race. The Romans were prohibited from marrying barbarians--the emperor Valentinian inflicted the penalty of death for such unions;[54] and a modern European girl who married an Australian native would no doubt be regarded as an outcast by her own society. Among many peoples marriage very seldom or never takes place outside the limits of the tribe or community. In India there are several instances of this. The Tipperahs and Abors view with abhorrence the idea of their girls marrying out of their clan;[55] and Colonel Dalton was gravely assured that, "when one of the daughters of Pádam so demeans

herself, the sun and moon refuse to shine, and there is such a strife in the elements that all labour is necessarily suspended, till by sacrifice and oblation the stain is washed away."[56] In ancient Peru it was not lawful for the natives of one province or village to intermarry with those of another.[57] Marriage with foreign women was unlawful at Sparta and Athens.[58] At Rome any marriage of a citizen with a woman who was not herself a Roman citizen, or did not belong to a community possessing the privilege of connubium with Rome, was invalid, and no legitimate children could be born of such a union.[59]

[Footnote 53: Westermarck, op. cit. p. 363 sqq.]

[Footnote 54: Rossbach, Römische Ehe, p. 465.]

[Footnote 55: Lewin, Wild Races of South-Eastern India, p. 201.]

[Footnote 56: Dalton, Ethnology of Bengal, p. 28.]

[Footnote 57: Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, i. 308.]

[Footnote 58: Müller, History of the Doric Race, ii. 302. Hearn, The Aryan Household, p. 156 sq.]

[Footnote 59: Gaius, Institutiones, i. 56.]

{379} Prohibitions of intermarriage also very often relate to persons belonging to different classes or castes of the same community.[60] To mention a few instances. The wild tribes of Brazil consider alliances between slaves and freemen highly disgraceful.[61] In Tahiti, if a woman of condition chose an inferior person as her husband, the children he had by her were killed.[62] In the Malay Archipelago marriages between persons of different rank are, as a rule, disapproved of, and in some places prohibited.[63] In India intermarriage between different castes, though formerly permissible, is now altogether prohibited.[64] In Rome plebeians and patricians could not intermarry till the year 445 B.C., nor were marriages allowed between patricians and clients; and Cicero himself disapproved of intermarriages of ingenui and freedmen.[65] Among the Teutonic peoples in ancient times any freeman who married a slave became a slave himself.[66] As late as the thirteenth century a German woman who had intercourse with a serf lost her liberty;[67] and both in Germany and Scandinavia, when the nobility emerged as a distinct order from the class of freemen, marriages between persons of noble birth and persons who, although free, were not noble came to be considered misalliances.[68] Even in modern Europe there survive traces of the former class endogamy. According to German Civil Law, the marriage of a man belonging to the high nobility with a woman of inferior birth is still regarded as a disparagium, and the woman is not entitled to the rank of her husband, nor is the full right of inheritance possessed by her or her children.[69] Although in no way prevented by law, marriages out of {380} the class are generally avoided by custom. As Sir Henry Maine observes, "the outer or endogamous limit, within which a man or woman must marry, has been mostly taken under the shelter of fashion or prejudice. It is but faintly traced in England, though not wholly obscured. It is (or perhaps was) rather more distinctly marked in the United States, through prejudices against the blending of white and coloured blood. But in Germany certain hereditary dignities are still forfeited by a marriage beyond the forbidden limits; and in France, in spite of all formal institutions, marriages between a person belonging to the noblesse and a person belonging to the bourgeoisie (distinguished roughly from one another by the particle 'de') are wonderfully rare, though they are not unknown."[70]

[Footnote 60: Westermarck, op. cit. p. 368 sqq.]

[Footnote 61: von Martius, Beiträge zur Ethnographie Amerika's, i. 71. von Spix and von Martius, Travels in Brazil, ii. 74.]

[Footnote 62: Ellis, Polynesian Researches, i. 256. Cook, Voyage to the Pacific Ocean, ii. 171 sq.]

[Footnote 63: Westermarck, op. cit. p. 371.]

[Footnote 64: Monier-Williams, Hinduism, p. 155.]

[Footnote 65: Mommsen, History of Rome, i. 371. Rossbach, op. cit. pp. 249, 456 sq.]

[Footnote 66: Winroth, Äktenskapshindren, p. 227.]

[Footnote 67: Ibid. p. 230 sq. Weinhold, Deutsche Frauen in dem Mittelalter, i. 349, 353 sq.]

[Footnote 68: Weinhold, op. cit. i. 349 sq.]

[Footnote 69: Behrend, in von Holtzendorff, Encyclopädie der Rechtswissenschaft, i. 478.]

[Footnote 70: Maine, Dissertations on Early Law and Custom, p. 224 sq.]

Religion, also, has formed a great bar to intermarriage. Among Muhammedans a marriage between a Christian man and a Muhammedan woman is not permitted under any circumstances, whereas it is held lawful for a Muhammedan to marry a Christian or a Jewish, but not a heathen, woman, if induced to do so by excessive love of her, or if he cannot obtain a wife of his own religion.[71] The Jewish law does not recognise marriage with a person of another belief;[72] and during the Middle Ages marriage between Jews and Christians was prohibited by the Christians also.[73] St. Paul indicates that a Christian was not allowed to marry a heathen.[74] Tertullian calls such an alliance fornication;[75] and in the fourth century the Council of Elvira forbade Christian parents to give their daughters in marriage to heathens.[76] Even the adherents of different Christian confessions have been prohibited from intermarrying. In {381} the Roman Catholic Church the prohibition of marriage with heathens and Jews was soon followed by the prohibition of "mixed marriages," and Protestants likewise forbade such unions.[77] Mixed marriages are not now contrary to the civil law either among Roman Catholic or Protestant nations, but in countries belonging to the Orthodox Greek Church ecclesiastical restrictions have been adopted, and are still recognised, by the State.[78]

[Footnote 71: Lane, Manners and Customs of the Modern Egyptians, i. 123. d'Escayrac de Lauture, Die afrikanische Wüste, p. 68.]

[Footnote 72: Frankel, Grundlinien des mosaisch-talmudischen Eherechts, p. xx. Ritter, Philo und die Halacha, p. 71.]

[Footnote 73: Andree, Zur Volkskunde der Juden, p. 48. Neubauer, 'Notes on the Race-Types of the Jews,' in Jour. Anthr. Inst. xv. 19.]

[Footnote 74: 1 Corinthians, vii. 39.]

[Footnote 75: Tertullian, Ad uxorem, ii. 3 (Migne, Patrologiæ cursus, i. 1292 sq.).]

[Footnote 76: Concilium Eliberitanum, cap. 15 sq. (Labbe-Mansi, Sacrorum Conciliorum collectio, ii. 8). See also Müller, Das sexuelle Leben der christlichen Kulturvölker, p. 54.]

[Footnote 77: Winroth, op. cit. p. 213 sqq.]

[Footnote 78: Ibid. p. 220 sq.]

The endogamous rules are in the first place due to the proud antipathy people feel to races, nations, classes, or religions different from their own. He who breaks such a rule is regarded as an offender against the circle to which he belongs. He hurts its feelings, he disgraces it at the same time as he disgraces himself. Irregular connections outside the endogamous circle are often looked upon with less intolerance than marriage, which

places the parties on a more equal footing. A traveller relates that at Djidda, where sexual morality is held in little respect, a Bedouin woman may yield herself for money to a Turk or European, but would think herself for ever dishonoured if she were joined to him in lawful wedlock.[79] In Rome contubernium, but not marriage, could take place between freemen and slaves.[80] And among ourselves public opinion regards it as a much more lenient offence if a royal person keeps a woman of inferior rank as his concubine than if he marries her.

[Footnote 79: de Gobineau, Moral and Intellectual Diversity of Races, p. 174, n. 1. Cf. d'Escayrac de Lauture, op. cit. p. 155.]

[Footnote 80: Westermarck, op. cit. p. 372.]

Modern civilisation tends more or less to pull down the barriers which separate races, nations, the various classes of society, and the adherents of different religions. The endogamous rules have thus become less stringent and less restricted. Whilst civilisation has narrowed the inner limit within which a man or woman must not marry, it has widened the outer limit within which a man or woman may marry, and generally marries. The latter of these processes has been one of vast importance in man's history. {382} Originating in race- or class-pride, or in religious intolerance, the endogamous rules have in their turn helped to keep up and to strengthen these feelings. Frequent intermarriages, on the other hand, must have the very opposite effect.

Like the rules referring to the choice of partners, so the modes of contracting marriage and the ideas as to what in this respect is right and proper have undergone successive changes. The practice of capturing wives prevails in certain parts of the world, and traces of it are met with in the marriage ceremonies of several peoples, indicating that it occurred more frequently in past ages.[81] This practice, as it seems to me, has chiefly sprung from the aversion to close intermarriage, together with the difficulty a savage man may have in procuring a wife in a friendly manner, without giving compensation for the loss he inflicts on her family. We may imagine that it chiefly occurred at a stage of social growth where family ties had become stronger, and man lived in small groups of nearly related persons, but where the idea of barter had scarcely presented itself to his mind. Yet there is no reason to think that capture was at any period the exclusive form of contracting marriage; its prevalence seems to have been much exaggerated by McLennan and his school.[82] It is impossible to believe that there ever was a time when friendly negotiations between families who could intermarry were altogether unknown. The custom prevalent among many savage tribes of a husband taking up his abode in his wife's family seems to have arisen very early in man's history.

[Footnote 81: Westermarck, op. cit. ch. xvii.]

[Footnote 82: Dr. Grosse (Die Formen der Familie, p. 105) goes so far as to believe that marriage by capture has never been a form of marriage recognised by custom or law, but only an occasional and punishable act of violence. But, as Dr. Havelock Ellis justly observes (Studies in the Psychology of Sex, 'Analysis of the Sexual Impulse,' p. 62, n. 2), this position is too extreme.]

Among most uncivilised peoples now existing a man has, in some way or other, to give compensation for his bride.[83] The simplest way of purchasing a wife is to give a kinswoman in exchange for her--a practice prevalent among {383} Australian tribes. Much more common is the custom of obtaining a wife by services rendered to her father, the man taking up his abode with the family of the girl for a certain time, during which he works as a servant. But the ordinary compensation for a girl is property paid to her father, or in some cases to her uncle, or to some other relatives as well as to the father.

Marriage by exchange or purchase is not only general among existing lower races; it occurs, or formerly occurred, among semi-civilised nations of a higher culture as well--in Central America and Peru, in China and Japan, in the various branches of the Semitic race, in the past history of all so-called Aryan peoples. We have no evidence that it is a stage through which every race has passed; we notice its absence among some of the rudest races with whom we are acquainted. Yet with much more reason than marriage by capture, purchase of wives may be said to form a general stage in the social history of mankind. Although the two practices may occur simultaneously, the former seems more often to have succeeded the latter, as barter in general has followed upon robbery. It has been suggested that the transition from marriage by capture to marriage by purchase was brought about in the following way: abduction, in spite of parents, was the primary form; then there came the offering of compensation to escape vengeance; and this grew eventually into the making of presents or paying a sum beforehand.[84] The price was a compensation for the loss sustained in the giving up of the girl and a remuneration for the expenses incurred in her maintenance till the time of her marriage. The girl was regarded more or less in the light of property, to take her away from her owner without his consent was theft. To claim a compensation for her was his right, or even his duty. The Indians in Columbia consider it in the highest degree disgraceful to the girl's family if she is given away without a price;[85] and in certain tribes of California {384}"the children of a woman for whom no money was paid are accounted no better than bastards, and the whole family are condemned."[86]

[Footnote 83: Westermarck, op. cit. p. 390 sqq.]

[Footnote 84: Koenigswarter, Études historiques sur le developpement de la société humaine, p. 53. Spencer, Principles of Sociology, i. 625.]

[Footnote 85: Bancroft, Native Races of the Pacific States, i. 277. Cf. von Weber, Vier Jahre in Afrika, ii. 215 sq. (Kafirs).]

[Footnote 86: Powers, Tribes of California, pp. 22, 56.]

With progressing civilisation, however, the practice of purchasing wives has been gradually abandoned, and come to be looked upon as infamous. The wealthier classes took the first step, and poorer and ruder persons subsequently followed their examples. Thus in India, in ancient times, the Âsura form, or marriage by purchase, was lawful for all the four castes. Afterwards it fell into disrepute, and was prohibited among the Brâhmanas and Kshatriyas, whereas it was still approved of in the case of a Vaisya and a Sûdra. But in the 'Laws of Manu' it is forbidden altogether.[87] It is said there, "No father who knows the law must take even the smallest gratuity for his daughter; for a man who, through avarice, takes a gratuity, is a seller of his offspring."[88] The Greeks of the historical age had ceased to buy their wives. In Rome confarreatio, which suggested no idea of purchase, was in the very earliest known time the form of marriage in force among the patricians; and among clients and plebeians, also, the purchase of wives came to an end in remote antiquity, surviving as a mere symbol in their coëmptio.[89] Among the Germans marriage by purchase was abolished only after their conversion to Christianity.[90] In the Talmudic law the purchase of wives appears as merely symbolical, the bride-price being fixed at a nominal amount.[91] In China, although marriage presents correspond exactly to purchase-money in a contract of sale, the people will not hear of their being called a "price";[92] which shows that here, too, some feeling of shame is attached to the idea of selling a daughter.

[Footnote 87: Laws of Manu, iii. 23 sqq.]

[Footnote 88: Ibid. iii. 51. Cf. ibid. ix. 93, 98.]

[Footnote 89: Rossbach, op. cit. pp. 92, 146, 248, 250, &c.]

[Footnote 90: Grimm, Deutsche Rechtsalterthümer, p. 424.]

[Footnote 91: Gans, Erbrecht, i. 138.]

[Footnote 92: Jamieson, 'Marriage Laws,' in China Review, x. 78 n.*]

We may discern two different ways in which this {385} gradual disappearance of marriage by purchase has taken place. On the one hand, the purchase became a symbol, appearing as a sham sale in the marriage ceremonies or as an exchange of presents; on the other hand, the purchase sum was transformed into the morning gift and the dotal portion, a part--afterwards the whole--being given to the bride either directly by the bridegroom or by her father. These transformations of marriage by purchase have taken place not only in the history of the civilised nations, but among several peoples who are still in a savage or semi-civilised state; and of a few of them it is expressly stated that they consider marriage by purchase a disgraceful practice.[93]

[Footnote 93: Westermarck, op. cit. p. 405 sqq.]

From marriage by purchase we have thus come to the practice of dower, which is apparently the very reverse of it. But whilst the marriage portion partly derives its origin from the purchase of wives, it does not do so in every case. It serves different ends, often indissolubly mixed up together. It may have the meaning of a return gift. It may imply that the wife as well as the husband is expected to contribute to the expenses of the joint household. It is also very often intended to be a settlement for the wife in case the marriage be dissolved through the husband's death or otherwise.[94] In the social history of the civilised races the marriage portion has played so prominent a part, that, as we have spoken of a stage of marriage by purchase, we may speak of another and later stage where fathers are bound by custom or law to portion their daughters. The Jews[95] and Muhammedans[96] consider it a religious duty for a man to give a dower to his daughter. In Greece the dowry came to be thought almost necessary to make the distinction between a wife and a concubine.[97] Isaeus says that no decent man would give his legitimate daughter less than a tenth of his {386} property;[98] indeed, so great were the dowers given that in the time of Aristotle nearly two fifths of the whole territory of Sparta were supposed to belong to women.[99] In Rome, even more than in Greece, the marriage portion became a mark of distinction for a legitimate wife;[100] and though later on Justinian in several of his constitutions declares that dos is obligatory for persons of high rank only,[101] the old custom did not fall into desuetude.[102] The Prussian 'Landrecht' still prescribes that the father, or eventually the mother, shall arrange about the wedding and fit up the house of the newly-married couple.[103] According to the 'Code Napoléon,' on the other hand, parents are not bound to give a dower to their daughters,[104] and the same principle is generally adopted by modern legislation. It is true that especially in the so-called Latin countries there is still a strong tendency to dotation,[105] but another feeling, in some measure opposed to it, is gaining ground everywhere. In a society where monogamy is prescribed by law, where the adult women outnumber the adult men, where many men never marry, and where married women too often lead an indolent life--in such a society the marriage portion in many cases becomes a purchase-sum by means of which a father buys a husband for his daughter, as formerly a man bought a wife from her father. But, as Mr. Sutherland observes, "that pecuniary interests, either on one side or on the other, should conspicuously enter into the motives which lead to marriage, becomes repulsive to the increasing delicacy of feeling; and so we find that in cultured communities the dowry dies out, just as the purchase-money declined in the civilised stages."[106]

[Footnote 94: Ibid. p. 411 sqq.]

[Footnote 95: Mayer, Rechte der Israeliten, ii. 344.]

[Footnote 96: Koran, iv. 3.]

[Footnote 97: Cauvet, 'L'organisation de la famille à Athènes,' in Revue de législation et de jurisprudence, xxiv. 152. Potter, Archæologia Græca, ii. 268. Cf. Meier and Schömann, Der attische Process, p. 513 sq.]

[Footnote 98: Isaeus, Oratio de Pyrrhi hereditate, 51, p. 43.]

[Footnote 99: Aristotle, Politica, ii. 9, p. 1270 a.]

[Footnote 100: Laboulaye, Recherches sur la condition civile et politique des femmes, p. 38 sq. Ginoulhiac, Histoire du régime dotal, p. 66. Meier and Schömann, op. cit. p. 513 sq.]

[Footnote 101: Ginoulhiac, op. cit. p. 103.]

[Footnote 102: For dos necessaria in Germany during the Middle Ages, see Mittermaier, Grundsätze des gemeinen deutschen Privatrechts, ii. 3.]

[Footnote 103: Eccius, in von Holtzendorff, Encyclopädie der Rechtswissenschaft, ii. 414.]

[Footnote 104: Code Napoléon, art. 204.]

[Footnote 105: See Maine, Early History of Institutions, p. 339.]

[Footnote 106: Sutherland, Origin and Growth of the Moral Instinct, i. 243.]

{387} Whilst most of the lower animal species are by instinct either monogamous or polygynous, with man every possible form of marriage occurs. There are marriages of one man with one woman (monogamy), of one man with many women (polygyny), of many men with one woman (polyandry), and, in a few exceptional cases, of many men with many women.[107]

[Footnote 107: Westermarck, op. cit. ch. xx.]

Among the causes by which the forms of marriage are influenced the numerical proportion between the sexes plays an important part. Polyandry seems to be due chiefly to a surplus of men, though it prevails only where the circumstances are otherwise in favour of it.[108] It presupposes an abnormally feeble disposition to jealousy, and has probably at all times been exceptional in the human race. There is no solid evidence for the theory set forth by McLennan that it was the rule in early times.[109] On the contrary, this form of marriage seems to require a certain degree of civilisation; we have no trustworthy account of its occurrence among the lowest savages. In polyandrous families the husbands are most frequently brothers, and the eldest brother, at least in many cases, has the superiority. It seems a fair conclusion that in such instances polyandry was originally an expression of fraternal benevolence on the part of the eldest brother, or of urgent demands on the part of the younger ones, who otherwise, on account of the scarcity of women, would have to live unmarried. If additional wives were afterwards acquired, they would naturally be considered the common property of all the brothers; and in this way the group marriage of the Toda type seems to have evolved.[110] Polygyny, also, is to some extent dependent upon the proportion between the sexes. It has been observed in India that polyandry occurs in those parts of the country where the males outnumber the females, polygyny in those {388} where the reverse is the case.[111] Indeed, in countries unaffected by European civilisation polygyny is likely to prevail wherever there is a majority of women. But the proportion between the sexes is only one cause out of many to which polygyny is due.

[Footnote 108: Ibid. p. 482.]

[Footnote 109: McLennan, 'The Levirate and Polyandry,' in Fortnightly Review, N.S. xxi. 703 sqq. Idem, Studies in Ancient History, p. 112 sq.]

[Footnote 110: Westermarck, op. cit. p. 510 sqq. See also Rivers, Todas, pp. 515, 519, 521.]

[Footnote 111: Goehlert, 'Die Geschlechtsverschiedenheit der Kinder in den Ehen,' in Zeitschr. f. Ethnologie, xiii. 127.]

There are several reasons why a man may desire to possess more than one wife.[112] Monogamy requires from him periodical continence, not only for a certain time every month, but among many peoples during the pregnancy of his wife, and as long as she suckles her child. One of the chief causes of polygyny is the attraction which female youth and beauty exercise upon a man; and at the lower stages of civilisation women generally become old much sooner than in more advanced communities. The liking of men for variety is also a potent factor; the Negroes of Angola asserted that they "were not able to eat always of the same dish."[113] We must further take into account men's desire for offspring, wealth, and authority. The barrenness of a wife is a very common reason for the choice of a new partner; the polygyny of the ancient Hindus seems to have been due chiefly to the fact that men dreaded the idea of dying childless, and even now in the East the desire for offspring is one of the principal causes of polygyny.[114] The more wives, the more children; and the more children, the greater power. In early civilisation a man's relations and connections are often his only friends; and where slavery does not prevail, next to a man's wives the real servant, the only to be counted upon, is the child. Moreover, a man's fortune is increased by a multitude of wives not only through their children, but through their work. Manual labour among savages is undertaken largely by women; and when neither slaves nor persons who will work for hire can be procured, {389} it becomes necessary for any man who requires many servants to have many wives.

[Footnote 112: Westermarck, op. cit. p. 483 sqq.]

[Footnote 113: Merolla da Sorrento, 'Voyage to Congo,' in Pinkerton, Collection of Voyages, xvi. 299.]

[Footnote 114: Wallin, Reseanteckningar från Orienten, iii. 267. Le Bon, La civilisation des Arabes, p. 424. Gray, China, i. 184.]

Nevertheless, however desirable polygyny may be from the man's point of view, it is altogether prohibited among many peoples, and in countries where it is an established institution it is practised--as a rule to which there are few exceptions--only by a comparatively small class.[115] The proportion between the sexes partly accounts for this, but there are other causes of no less importance.[116] Where the amount of female labour is limited and no accumulated property exists, it may be very difficult for a man to keep a plurality of wives. Again, where female labour is of considerable value, the necessity of paying the purchase-sum for a wife is a hindrance to polygyny which can be overcome only by the wealthier men. There are, moreover, certain factors of a psychical character which are unfavourable to polygyny. When love depends on external attractions only, it is necessarily fickle; but when it implies sympathy arising from mental qualities, there is a tie between husband and wife which lasts long after youth and beauty are gone. As another obstacle to polygyny we have to note the true monogamous sentiment, the absorbing passion for one, which is not unknown even among savage races. Polygyny is finally checked by the respect in which women are held by men. Jealousy is not exclusively a masculine passion, and it is the ambition of every wife to be the mistress of her husband's house. Hence where women have succeeded in obtaining some power over their husbands, or where the altruistic feelings of men have become refined enough to lead them to respect the feelings of those weaker than themselves, monogamy is frequently the result.

[Footnote 115: Westermarck, op. cit. p. 435 sqq.]

[Footnote 116: Ibid. p. 493 sqq.]

It is certain that polygyny has been less prevalent at the lowest stages of civilisation--where wars do not seriously disturb the proportion of the sexes, where life is chiefly supported by hunting and female labour is consequently of slight value, and where there is no accumulation of wealth {390} and no distinction of class--than it is at somewhat higher stages.[117] The more advanced savages and barbarians seem to indulge in this practice to a greater extent than the lower ones, many, or most, of whom are either little addicted to polygyny or strictly monogamous. Various forest tribes in Brazil are monogamous,[118] and so are several of the Californian tribes--"a humble and a lowly race, . . . one of the lowest on earth."[119] Thus the Karok do not allow bigamy even to a chief; and though a man may own as many women for slaves as he can purchase, he brings obloquy on himself if he cohabits with more than one.[120] Among the Veddahs[121] and Andaman Islanders[122] monogamy is as rigidly insisted upon as any where in Europe. The natives of Kar Nicobar "have but one wife, and look upon unchastity as a very deadly sin."[123] Among the Koch and Old Kukis polygyny and concubinage are forbidden;[124] whilst among some other aboriginal tribes in India a man, though not expressly forbidden to have many wives, is blamed if he has more than one.[125] Among the Karens of Burma[126] and certain tribes of Indo-China, the Malay Peninsula, and the Indian Archipelago, polygyny is said either to be prohibited or unknown.[127] The Hill Dyaks marry but one wife, and a chief who once broke through this custom lost all his influence.[128] In Australia there are said to be some truly monogamous tribes;[129] in the Birria tribe, for instance, "the possession of more than one wife is absolutely forbidden, or was so before the coming of the whites."[130] {391} Monogamy is all the more likely to have been the general rule among our earliest human ancestors as it seems to be so among the man-like apes. Darwin certainly mentions the gorilla as a polygamist;[131] but the majority of statements we have regarding this animal are to the opposite effect. Relying on the most trustworthy authorities, Professor Hartmann says, "The gorilla lives in a society consisting of male and female and their young of varying ages."[132]

[Footnote 117: Westermarck, op. cit. p. 505 sqq.]

[Footnote 118: von Martius, op. cit. i. 274, 298. Wallace, Travels on the Amazon, pp. 509, 515 sqq. Waitz, Anthropologie der Naturvölker, iii. 472.]

[Footnote 119: Powers, op. cit. pp. 5, 56, 406. Wilkes, U. S. Exploring Expedition, v. 188.]

[Footnote 120: Powers, op. cit. p. 22.]

[Footnote 121: Bailey, in Trans. Ethn. Soc. N.S. ii. 291 sq. Hartshorne, in Indian Antiquary, viii. 320.]

[Footnote 122: Man, in Jour. Anthr. Inst. xii. 135.]

[Footnote 123: Distant, ibid. iii. 4.]

[Footnote 124: Dalton, op. cit. p. 91. Stewart, 'Notes on Northern Cachar,' in Jour. As. Soc. Bengal, xxiv. 621.]

[Footnote 125: Dalton, op. cit. pp. 28, 54. Jellinghaus, 'Munda-Kolhs in Chota Nagpore,' in Zeitschr. f. Ethnol. iii. 370.]

[Footnote 126: Smeaton, Loyal Karens of Burma, p. 81.]

[Footnote 127: Westermarck, op. cit. p. 436 sq.]

[Footnote 128: Low, Sarawak, p. 300.]

[Footnote 129: Curr, Australian Race, i. 402; ii. 371.]

[Footnote 130: Ibid. ii. 378.]

[Footnote 131: Darwin, Descent of Man, pp. 217, 590 sq.]

[Footnote 132: Hartmann, Die menschenähnlichen Affen, p. 214.]

Whilst civilisation is thus up to a certain point favourable to polygyny, it leads in its higher forms to monogamy. Owing to the decrease of wars, the death-rate of the men becomes less, and the considerable disproportion between the sexes which among many warlike peoples makes polygyny almost a law of nature no longer exists among the most advanced nations. No superstitious belief keeps the civilised man apart from his wife during her pregnancy and while she suckles her child; and the suckling time has become much shorter since the introduction of domesticated animals and the use of milk. To a cultivated mind youth and beauty are by no means the only attractions of a woman; and civilisation has made female beauty more durable. The desire for offspring becomes less intense. A large family, instead of being a help in the struggle for existence, is often considered an insufferable burden. A man's kinsfolk are no longer his only friends, and his wealth and power do not depend upon the number of his wives and children. A wife ceases to be a mere labourer, and manual labour is to a large extent replaced by the work of domesticated animals and the use of implements and machines. Moreover, the sentiment of love becomes more refined, the passion for one more absorbing. The feelings of the weaker sex are frequently held in higher regard. And the better education bestowed on women enables them to live comfortably without the support of a husband.

{392} As for the moral valuation of the various forms of marriage, it should be noticed that even among polygynous and polyandrous peoples monogamy is permitted by custom or law, although in some instances it is associated with poverty and considered mean, whereas polygyny, as associated with greatness, is thought praiseworthy.[133] Again, the notion that monogamy is the only proper form of marriage, and that any other form is immoral, is due either to the mere force of habit; or, possibly, to the notion that it is wrong of some men to appropriate a plurality of wives when others in consequence can get none; or to the feeling that polygyny is an offence against the female sex; or to the condemnation of lust. As regards the obligatory monogamy of Christian nations, we have to remember that monogamy was the only recognised form of marriage in the societies on which Christianity was first engrafted, and that it was the only form that could be tolerated by a religion which regarded every gratification of the sexual impulse with suspicion and incontinence as the gravest sin. In its early days the Church showed little respect for women but its horror of sensuality was immense.

[Footnote 133: Spencer, Principles of Sociology, i. 657.]

A few words still remain to be said of a form of marriage which has of late been the subject of much discussion in connection with Australian ethnology. Many years ago attention was drawn to the fact that the Kamilaroi tribes in South Australia are divided into four classes, in which brothers and sisters are respectively Ipai and Ip[=a]tha, K[)u]bi and Kub[)i]tha, M[)u]ri and M[=a]tha, Kumbu and B[=u]tha; and that the members of one class are forbidden to marry among themselves, but bound to marry into a certain other class. Thus Ipai may only marry Kub[)i]tha; K[)u]bi, Ip[=a]tha; Kumbu, M[=a]tha; and M[)u]ri, B[=u]tha. In a certain sense, we were told, every Ipai is regarded as married, not by any individual contract, but by organic law, to every Kub[)i]tha; every K[)u]bi to every Ip[=a]tha, and so forth. If, for instance, a K[)u]bi meet a stranger Ip[=a]tha, they address {393} each other as "spouse"; and "a K[)u]bi thus meeting an Ip[=a]tha, though she were of another tribe, would treat her as his wife, and his right to do so would be recognised by her tribe."[134] The institution according to which the men of one division have as wives the women of another division, the Rev. L. Fison called "group marriage." He contends that among the natives of South Australia it has given way in later times, in some measure, to individual marriage. But theoretically,

he says, marriage is still communal: "it is based upon the marriage of all the males in one division of a tribe to all the females of the same generation in another division." The chief argument advanced by Mr. Fison in support of his theory is grounded on the terms of relationship in use in the tribes. These terms belong to the "classificatory system" of Mr. Morgan;[135] but he admits that he is not aware of any tribe in which the actual practice is to its full extent what the terms of relationship imply. "Present usage," he says, "is everywhere in advance of the system so implied, and the terms are survivals of an ancient right, not precise indications of custom as it is."[136] The same is granted by Mr. Howitt.[137] Yet I have pointed out, in my criticism of the classificatory system, to what absurd results we must be led if, guided by such terms, we begin to speculate upon early marriage.[138] Moreover, as I have said, "if a K[)u]bi and an Ip[=a]tha address each other as spouse, this does not imply that in former times every K[)u]bi was married to every Ip[=a]tha indiscriminately. On the contrary, the application of such a familiar term might be explained from the fact that the women who may be a man's wives, and those who cannot possibly be so, stand in a widely different relation to him."[139] This suggestion derives support from the following statement made by Dr. Codrington with reference to the Melanesians:--"Speaking {394} generally, it may be said that to a Melanesian man all women, of his own generation at least, are either sisters or wives, to the Melanesian woman all men are either brothers or husbands. . . . It must not be understood that a Melanesian regards all women who are not of his own division as, in fact, his wives, or conceives himself to have rights which he may exercise in regard to those women of them who are unmarried; but the women who may be his wives by marriage and those who cannot possibly be so, stand in a widely different relation to him."[140]

[Footnote 134: Ridley, Kámilarói, p. 161 sq. (edit. 1866, p. 35 sqq.). Fison and Howitt, Kamilaroi and Kurnai, pp. 36, 51, 53.]

[Footnote 135: Fison and Howitt, op. cit. p. 60.]

[Footnote 136: Ibid. p. 159 sq.]

[Footnote 137: Howitt, 'Australian Group Relations,' in Smithsonian Report, 1883, p. 817.]

[Footnote 138: Westermarck, op. cit. ch. v.]

[Footnote 139: Ibid. p. 56.]

[Footnote 140: Codrington, Melanesians, p. 22 sq.]

More recently Messrs. Spencer and Gillen have shown that a marriage system essentially similar to that of the South Australian natives prevails in Central Australia; and they, also, regard it as a later modification of genuine group marriage. Nowadays, they say, the system of individual wives prevails--"modified, however, by the practice of customs according to which, at certain times, much wider marital relations are allowed." But to this rule there is one exception:--"In the Urabunna tribe group marriage actually exists at the present day, a group of men of a certain designation having, not merely nominally but in actual reality, and under normal conditions, marital relations with a group of women of another special designation"; here "individual marriage does not exist either in name or in practice."[141] But, after all, it appears that even among the Urabunna every woman is the special Nupa of one man, and that certain other men, her Piraungaru only have a secondary right to her. Thus, if the Nupa man (the real, or at all events the chief, husband) be present, the Piraungaru (accessory husbands) are allowed to have intercourse with her only in case the Nupa man consents.[142] Is this modification of the Urabunna group marriage a later development from a previous system according to which all the men of a certain group had an equal right to all the

{395} women of another group? Here we are on dangerous ground; nothing is more difficult than to decide whether certain customs are survivals or not. We find modifications resembling those connected with the group marriage of the Urabunna both in polyandry and in polygyny; the first husband in a polyandrous family is usually the chief husband, and the first wife in a polygynous family is very frequently the chief wife. We must certainly not conclude that these restrictions have been preceded by an earlier custom which gave equal rights to all the husbands or all the wives; on the contrary, it is more likely that the higher position granted to the first husband or to the first wife is due to the fact that monogamy was the usual form of marriage.[143] Similarly the Urabunna custom may very well have developed out of ordinary individual marriage,[144] and the cause of it may perhaps be, as Mr. N. W. Thomas has suggested,[145] the difficulties which an Australian native often experiences in getting a wife.[146] As for other facts which have been adduced as evidence of Australian group marriage in the past, such as the jus primæ noctis, &c., I only desire to emphasise the circumstance that extra-matrimonial intercourse is practised by the Australian natives in a variety of cases the real meaning of which seems obscure. In some instances at least, a magic significance appears to be attributed to it;[147] and that it is a survival of group marriage, in the strict sense of the term, is again only a conjecture.

[Footnote 141: Spencer and Gillen, Northern Tribes of Central Australia, p. 140. Iidem, Native Tribes of Central Australia, p. 62 sq.]

[Footnote 142: Iidem, Native Tribes, p. 110.]

[Footnote 143: Westermarck, op. cit. pp. 443-448, 457, 458, 508.]

[Footnote 144: Cf. Crawley, op. cit. p. 482; Lang, Social Origins, p. 105 sq.]

[Footnote 145: Thomas, in a paper read before the Anthropological Institute in 1905. Cf. Idem, Kinship and Marriage in Australia, p. 138.]

[Footnote 146: See Westermarck, op. cit. p. 132 sq.; infra, p. 460.]

[Footnote 147: See, e.g., Spencer and Gillen, Northern Tribes, p. 137 sq.]

I must admit, therefore, that the facts produced by Messrs. Spencer and Gillen, and the severe criticism which they have passed on my sceptical attitude towards Mr. Fison's group marriage theory have not been able to convince me that among the Australian aborigines individual marriage has evolved out of a previous system of marriage between groups of men and women. Nor has Mr. Howitt, {396} in his recent work on the 'Native Tribes of South-East Australia,' in my opinion, sufficiently proved that such an evolution has taken place.[148] He blames certain "ethnologists of the study" for not being willing "to take the opinion of men who have first-hand knowledge of the natives";[149] but I think we do well in distinguishing between statements based on direct observation and the observer's interpretation of the stated facts. Even suppose, however, that group marriage really was once common in Australia, would that prove that it was once common among mankind at large? Mr. Hewitt's supposition that the practice of group marriage "will be ultimately accepted as one of the primitive conditions of mankind"[150] is no doubt shared by a host of anthropologists. The group marriage theory will probably for some time to come remain the residuary legatee of the old theory of promiscuity; the important works which have lately been published on the Australian aborigines have made people inclined to view the early history of mankind through Australian spectacles. But even the most ardent advocate of Australian group marriage should remember that the existence of kangurus in Australia does not prove that there were once kangurus in England.

[Footnote 148: Mr. Thomas has come to the same result in his book on 'Kinship and Marriage in Australia,' which appeared when the present chapter was already in

type. A detailed examination of the facts which have been adduced as evidence of Australian group marriage (p. 127 sqq.) has led him to the conclusion (p. 147) that prevailing customs in Australia, far from proving the present or former existence of group marriage in that continent, do not even render it probable, and that on the terms of relationship no argument of any sort can be founded which assumes them to refer to consanguinity, kinship, or affinity. "It is therefore not rash to say that the case for group marriage, so far as Australia is concerned, falls to the ground." See infra, Addit. Notes.]

[Footnote 149: Howitt, 'Native Tribes of South-East Australia,' in Folk-Lore, xvii. 185.]

[Footnote 150: Idem, Native Tribes of South-East Australia, p. 281.]

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The time during which marriage lasts varies extremely in the human race.[151] There are unions which, though legally recognised as marriages, do not endure long enough to deserve to be so called in the natural history sense of the term; there are others which are dissolved only by {397} death. As has already been pointed out, it is probable that among primitive men the union of the sexes lasted till after the birth of the offspring, and we have perhaps some reason to believe that the connection lasted for years. On the whole, progress in civilisation has tended to make marriage more durable. It is evident that at the early stage of development at which women first became valuable as labourers, a wife was united with her husband by a new bond more lasting than youth and beauty. The tie was strengthened by the bride-price and the marriage portion. And a higher development of the paternal feeling, better forethought for the children's welfare, in some instances greater consideration for women, and a more refined love passion have gradually made it stronger, until it has become in many cases indissoluble. Yet we must not conclude that divorce will in the future be less frequent and more restricted by law than it is now in European countries. It should be remembered that the laws of divorce in Christian Europe owe their origin to an idealistic religious commandment which, interpreted in its literal sense, gave rise to legal prescriptions far from harmonising with the mental and social life of the mass of the people. The powerful authority of the Roman Church was necessary to enforce the dogma that marriage is indissoluble. The Reformation introduced somewhat greater liberty in this respect, and modern legislation has gone further in the same direction. In those Christian states of Europe where absolute divorce is permitted the grounds on which it may be sued for are nearly the same for the man and the woman, except in England, where the husband must be accused of one or other of several offences besides adultery. In Italy, Spain, and Portugal, a judicial separation may always be decreed on the ground of the adultery of the wife, but, on the ground of the adultery of the husband, only if it has been committed under certain aggravating circumstances.[152] These laws imply that marriage is not yet a contract on the footing of perfect equality between the sexes; but there is {398} a growing opinion that, where it is not, it ought to be so. Again, when both husband and wife desire to separate, it seems to many enlightened minds that the State has no right to prevent them from dissolving the marriage contract, provided the children are properly cared for; and that for the children, also, it is better to have the supervision of one parent only than of two who cannot agree.

[Footnote 151: Westermarck, op. cit. ch. xxiii.]

[Footnote 152: Glasson, Le mariage civil et le divorce, pp. 291, 298, 304.]

Chapter XLI — Celibacy

AMONG savage and barbarous races of men nearly every individual endeavours to marry as soon as he, or she, reaches the age of puberty.[1] Marriage seems to them indispensable, and a person who abstains from it is looked upon as an unnatural being and is disdained. Among the Santals a man who remains single "is at once despised by both sexes, and is classed next to a thief, or a witch: they term the unhappy wretch 'No man.'"[2] Among the Kafirs a bachelor has no voice in the kraal.[3] In the Tupi tribes of Brazil no man was suffered to partake in the drinking-feast while he remained single.[4] The natives of Futuna in the Western Pacific maintained that it was necessary to be married in order to hold a part in the happy future life, and that the celibates, both men and women, had to submit to a chastisement of their own before entering the fale-mate, or "home of the dead."[5] According to Fijian beliefs, he who died wifeless was stopped by the god Nangganangga on the road to Paradise, and smashed to atoms.[6]

[Footnote 1: Westermarck, History of Human Marriage, p. 134 sqq.]

[Footnote 2: Man, Sonthalia, p. 101.]

[Footnote 3: von Weber, Vier Jahre in Afrika, ii. 215.]

[Footnote 4: Southey, History of Brazil, i. 240.]

[Footnote 5: Percy Smith, 'Futuna.' in Jour. Polynesian Soc. i. 39 sq.]

[Footnote 6: Pritchard, Polynesian Reminiscences, pp. 368, 372. Seemann, Viti, p. 399 sq. Fison, 'Fijian Burial Customs,' in Jour. Anthr. Inst. x. 139. Williams and Calvert, Fiji, p. 206. For other instances see Westermarck, op. cit. p. 136, n. 10.]

Among peoples of archaic culture celibacy is likewise a great exception and marriage regarded as a duty. In {400} ancient Peru marriage was compulsory at a certain age.[7] Among the Aztecs no young man lived single till his twenty-second year, unless he intended to become a priest, and for girls the customary marrying-age was from eleven to eighteen. In Tlascala, we are told, the unmarried state was so despised that a grown-up man who would not marry had his hair cut off for shame.[8]

[Footnote 7: Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, i. 306 sq.]

[Footnote 8: Klemm, Allgemeine Cultur-Geschichte der Menschheit, v. 46 sq. Bancroft, Native Races of the Pacific States, ii. 251 sq.]

"Almost all Chinese," says Dr. Gray, "robust or infirm, well-formed or deformed, are called upon by their parents to marry as soon as they have attained the age of puberty. Were a grown-up son or daughter to die unmarried, the parents would regard it as most deplorable." Hence a young man of marriageable age, whom consumption or any other lingering disease had marked for its own, would be compelled by his parents or guardians to marry at once.[9] So indispensable is marriage considered by the Chinese, that even the dead are married, the spirits of all males who die in infancy or in boyhood being in due time married to the spirits of females who have been cut off at a like early age.[10] There is a maxim by Mencius, re-echoed by the whole nation, that it is a heavy sin to have no sons, as this would doom father, mother, and the whole ancestry in the Nether-world to a pitiable existence without descendants enough to serve them properly, to worship at the ancestral tombs, to take care of the ancestral tablets, and duly to perform all rites and ceremonies connected with the departed dead. For a man whose wife has reached her fortieth year without bringing him a son, it is an imperative duty to take a concubine.[11] In Corea "the male human being who is unmarried is

never called a man, whatever his age, but goes by the name of 'yatow,' a name given by the Chinese to unmarriageable young girls; and the man of thirteen or fourteen has a {401} perfect right to strike, abuse, order about the 'yatow' of thirty, who dares not as much as open his lips to complain."[12]

[Footnote 9: Gray, China, i. 186.]

[Footnote 10: Ibid. i. 216 sq.]

[Footnote 11: Giles, Strange Stories from a Chinese Studio, i. 64, n. 10. de Groot, Religious System of China, (vol. ii. book) i. 617. Indo-Chinese Gleaner, iii. 58.]

[Footnote 12: Ross, History of Corea, p. 313.]

Among the Semites, also, we meet with the idea that a dead man who has no children will miss something in Sh[)e]ol through not receiving that kind of worship which ancestors in early times appear to have received.[13] The Hebrews looked upon marriage as a religious duty.[14] According to the Shulchan Aruch, he who abstains from marrying is guilty of bloodshed, diminishes the image of God, and causes the divine presence to withdraw from Israel; hence a single man past twenty may be compelled by the court to take a wife.[15] Muhammedanism likewise regards marriage as a duty for men and women; to neglect it without a sufficient excuse subjects a man to severe reproach.[16] "When a servant [of God] marries," said the Prophet, "verily he perfects half his religion."[17]

[Footnote 13: Cheyne, 'Harlot,' in Cheyne and Black, Encyclopædia Biblica, ii. 1964.]

[Footnote 14: Mayer, Rechte der Israeliten, pp. 286, 353. Lichtschein, Ehe nach mosaisch-talmudischer Auffassung, p. 5 sqq. Klugmann, Die Frau im Talmud, p. 39 sq.]

[Footnote 15: Schulchan Aruch, iv. ('Eben haezer') i. 1, 3. See also Yebamoth, fol. 63 b sq., quoted by Margolis, 'Celibacy,' in Jewish Encyclopedia, iii. 636.]

[Footnote 16: Lane, Manners and Customs of the Modern Egyptians, i. 197.]

[Footnote 17: Idem, Arabian Society in the Middle Ages, p. 221.]

The so-called Aryan nations in ancient times, as M. Fustel de Coulanges and others have pointed out, regarded celibacy as an impiety and a misfortune: "an impiety, because one who did not marry put the happiness of the manes of the family in peril; a misfortune, because he himself would receive no worship after his death." A man's happiness in the next world depended upon his having a continuous line of male descendants, whose duty it would be to make the periodical offerings for the repose of his soul.[18] According to the 'Laws of Manu,' marriage is the twelfth Sansk[=a]ra, and as such a religious duty incumbent upon all.[19] Among the Hindus of the present day a {402} man who is not married is generally considered to be almost a useless member of the community, and is indeed looked upon as beyond the pale of nature;[20] and the spirits of young men who have died without becoming fathers are believed to wander about in a restless miserable manner, like people burdened with an enormous debt which they are quite unable to discharge.[21] Similar views are expressed in Zoroastrianism. Ahura Mazda said to Zoroaster:--"The man who has a wife is far above him who lives in continence; he who keeps a house is far above him who has none; he who has children is far above the childless man."[22] The greatest misfortune which could befall an ancient Persian was to be childless.[23] To him who has no child the bridge of Paradise shall be barred; the first question the angels there will ask him is, whether he has left in this world a substitute for himself, and if the answer be "No" they will pass by and he will stay at the head of the bridge, full of grief. The primitive meaning of this is plain: the man without a son cannot enter Paradise because there is nobody to pay him the family worship.[24] Ashi Vanguhi, a feminine impersonification of piety, and the source of all the good and riches that are connected with piety, rejects the offerings of

barren people--old men, courtesans, and children.[25] It is said in the Yasts, "This is the worst deed that men and tyrants do, namely, when they deprive maids that have been barren for a long time of marrying and bringing forth children."[26] And in the eyes of all good Parsis of the present day, as in the time of king Darius and the contemporaries of Herodotus, the two greatest merits of a citizen are the begetting and rearing of a numerous family, and the fruitful tilling of the soil.[27]

[Footnote 18: Fustel de Coulanges, La cité antique, p. 54 sq. Hearn, The Aryan Household, pp. 69, 71. Mayne, Treatise on Hindu Law and Usage, p. 68 sq.]

[Footnote 19: Laws of Manu, ii. 66 sq. Monier-Williams, Indian Wisdom, p. 246. Cf. Mayne, op. cit. p. 69.]

[Footnote 20: Dubois, Description of the Character, &c. of the People of India, p. 132.]

[Footnote 21: Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 243 sq.]

[Footnote 22: Vendîdâd, iv. 47.]

[Footnote 23: Rawlinson, in his translation of Herodotus, i. 262, n. 1. Cf. Herodotus, i. 133, 136; Dînâ-î Maînôg-î Khirad, xxxv. 19.]

[Footnote 24: Darmesteter, in Sacred Books of the East, iv. 47. Cf. Idem, Ormazd et Ahriman, p. 294.]

[Footnote 25: Yasts, xvii. 54.]

[Footnote 26: Ibid. xvii. 59.]

[Footnote 27: Darmesteter, in Sacred Books of the East, iv. p. lxii. Cf. Ploss-Bartels, Das Weib, i. 173.]

{403} The ancient Greeks regarded marriage as a matter both of public and private importance.[28] In various places criminal proceedings might be taken against celibates.[29] Plato remarks that every individual is bound to provide for a continuance of representatives to succeed himself as ministers of the Divinity;[30] and Isaeus says, "All those who think their end approaching look forward with a prudent care that their houses may not become desolate, but that there may be some person to attend to their funeral rites and to perform the legal ceremonies at their tombs."[31] So also the conviction that the founding of a house and the begetting of children constituted a moral necessity and a public duty had a deep hold of the Roman mind in early times.[32] Cicero's treatise 'De Legibus'--which generally reproduces in a philosophical form the ancient laws of Rome--contains a law according to which the Censors had to impose a tax upon unmarried men.[33] But in later periods, when sexual morality reached a very low ebb in Rome, celibacy--as to which grave complaints were made as early as 520 B.C.--naturally increased in proportion, especially among the upper classes. Among these marriage came to be regarded as a burden which people took upon themselves at the best in the public interest. Indeed, how it fared with marriage and the rearing of children is shown by the Gracchan agrarian laws, which first placed a premium thereon;[34] and later the Lex Julia et Papia Poppaea imposed various penalties on those who lived in a state of celibacy after a certain age,[35] though with little or no result.[36]

[Footnote 28: Müller, History and Antiquities of the Doric Race, ii. 300 sq. Fustel de Coulanges, op. cit. p. 55. Hearn, op. cit. p. 72. Döllinger, The Gentile and the Jew, ii. 234 sq.]

[Footnote 29: Pollux, Onomasticum, iii. 48.]

[Footnote 30: Plato, Leges, vi. 773.]

[Footnote 31: Isaeus, Oratio de Apollodori hereditate, 30, p. 66. Rohde observes (Psyche, p. 228), however, that such a belief did not exist in the Homeric age, when the departed souls in Hades were supposed to be in no way dependent upon the survivors.]

[Footnote 32: Mommsen, History of Rome, i. 74.]

[Footnote 33: Cicero, De legibus, iii. 3. Fustel de Coulanges, op. cit. p. 55.]

[Footnote 34: Mommsen, op. cit. iii. 121; iv. 186 sq.]

[Footnote 35: Rossbach, Römische Ehe, p. 418.]

[Footnote 36: Mackenzie, Studies in Roman Law, p. 104.]

Celibacy is thus disapproved of for various reasons. It {404} appears unnatural. It is taken as an indication of licentious habits. Where ancestors are worshipped after their death it inspires religious horror: the man who leaves himself without offspring shows reckless indifference to the religion of his people, to his own fate after death, and to the duties he owes the dead, whose spirits depend upon the offerings of their descendants for their comfort. The last point of view, as we have seen, is particularly prominent among peoples of archaic culture, but it is not unknown at a lower stage of civilisation. Thus the Eskimo about Behring Strait "appear to have great dread of dying without being assured that their shades will be remembered during the festivals, fearing if neglected that they would thereby suffer destitution in the future life"; hence a pair of childless Eskimo frequently adopt a child, so that when they die there will be some one left whose duty it will be to make the customary feast and offerings to their shades at the festival of the dead.[37] Finally, in communities with a keen public spirit, especially in ambitious states frequently engaged in war, celibacy is regarded as a wrong committed against the State.

[Footnote 37: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 290.]

Modern civilisation looks upon celibacy in a different light. The religious motive for marriage has ceased to exist, the lot of the dead being no longer supposed to depend upon the devotion of the living. It is said, in a general way, that marriage is a duty to the nation or the race, but this argument is hardly applied to individual cases. According to modern ideas the union between man and woman is too much a matter of sentiment to be properly classified among civic duties. Nor does the unmarried state strike us as particularly unnatural. The proportion of unmarried people is gradually growing larger and the age at which people marry is rising.[38] The chief causes of this increasing celibacy are the difficulty of supporting a family under present conditions of life, and the luxurious {405} habits of living in the upper classes of society. Another reason is that the domestic circle does not fill so large a place in life as it did formerly; the married state has in some measure lost its advantage over the single state, and there are many more pleasures now that can be enjoyed as well or even better in celibacy. Moreover, by the diffusion of a finer culture throughout the community, men and women can less easily find any one whom they are willing to take as a partner for life; their requirements are more exacting, they have a livelier sense of the serious character of the marriage union, and they are less willing to contract it from any lower motives.[39]

[Footnote 38: Westermarck, op. cit. p. 146.]

[Footnote 39: Ibid. p. 147 sqq. 'Why is Single Life becoming more General?' in The Nation, vi. 190 sq.]

Nay, far from enjoining marriage as a duty incumbent upon all, enlightened opinion seems to agree that it is a duty for many people never to marry. In some European countries the marriages of persons in receipt of poor-law relief have been legally prohibited, and in certain cases the legislators have gone further still and prohibited all marriages until the contracting parties can prove that they possess the means of supporting a family.[40] The opinion has also been expressed that the State ought to forbid the unions of persons suffering from certain kinds of disease, which in all probability would be transmitted to the offspring. People are beginning to feel that it entails a heavy responsibility to bring a new being into existence, and that many persons are

wholly unfit for such a task.[41] Future generations will probably with a kind of horror look back at a period when the most important, and in its consequences the most far-reaching, function which has fallen to the lot of man was entirely left to individual caprice and lust.

[Footnote 40: Lecky, Democracy and Liberty, ii. 181.]

[Footnote 41: See Mr. Galton's papers on "Eugenics" and the discussions of the subject in Sociological Papers, vols. i. and ii.]

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Side by side with the opinion that marriage is a duty for all ordinary men and women we find among many peoples {406} the notion that persons whose function it is to perform religious or magical rites must be celibates.[42] The Thlinkets believe that if a shaman does not observe continuous chastity his own guardian spirits will kill him.[43] In Patagonia the male wizards were not allowed to marry.[44] In some tribes of the Guaranies of Paraguay "the female Payes were bound to chastity, or they no longer obtained credit."[45] Celibacy was compulsory on the priests of the Chibchas in Bogota.[46] The Tohil priests in Guatemala were vowed to perpetual continence.[47] In Ichcatlan the high-priest was obliged to live constantly within the temple, and to abstain from commerce with any woman whatsoever; and if he failed in this duty he was cut in pieces, and the bloody limbs were given as a warning to his successor.[48] Of the women who held positions in the temples of ancient Mexico we are told that their chastity was most zealously guarded; during the performance of their duties they were required to keep at a proper distance from the male assistants, at whom they did not even dare to glance. The punishment to be inflicted upon those who violated their vow of chastity was death; whilst, if their trespass remained entirely secret, they endeavoured to appease the anger of the gods by fasting and austerity of life, dreading that in punishment of their crime their flesh would rot.[49] In Yucatan there was, connected with the worship of the sun, an order of vestals the members of which generally enrolled themselves for a certain time, but were afterwards allowed to leave and enter the married state. Some of them, however, remained for ever in the service of the temple and were apotheosised. Their duty was to attend to the sacred fire, and to keep strictly chaste, {407} those who broke their vows being shot to death with arrows.[50] In Peru there were likewise virgins dedicated to the sun, who lived in perpetual seclusion to the end of their lives, who preserved their virginity and were forbidden to converse or have sexual intercourse with or to see any man, or even any woman who was not one of themselves.[51] And besides the virgins who thus professed perpetual virginity in the monasteries, there were other women, of the blood royal, who led the same life in their own houses, having taken a vow of continence. These women "were held in great veneration for their chastity and purity, and, as a mark of worship and respect, they were called Ocllo, which was a name held sacred in their idolatry"; but if they lost their virtue, they were burnt alive or cast into "the lake of lions."[52]

[Footnote 42: Some instances of this are stated by Landtman, Origin of Priesthood, p. 156 sq.]

[Footnote 43: Veniaminof, quoted by Landtman, op. cit. p. 156.]

[Footnote 44: Falkner, Description of Patagonia, p. 117.]

[Footnote 45: Southey, History of Brazil, ii. 371.]

[Footnote 46: Simon, quoted by Dorman, Origin of Primitive Superstitions, p. 384.]

[Footnote 47: Bancroft, op. cit. iii. 489.]

[Footnote 48: Clavigero, History of Mexico, i. 274.]

[Footnote 49: Ibid. i. 275 sq. Torquemada, Monarchia Indiana, ii. 188 sqq. Bancroft, op. cit. iii. 435 sq. Cf. Acosta, History of the Indies, ii. 333 sq.]

[Footnote 50: Bancroft, op. cit. iii. 473. Lopez Cogolludo, Historia de Yucathan, p. 198.]

[Footnote 51: Garcilasso de la Vega, op. cit. i. 291 sqq.]

[Footnote 52: Ibid. i. 305.]

Among the Guanches of the Canary Islands there were virgins, called Magades or Harimagades, who presided over the cult under the direction of the high-priest, and there were other virgins, highly respected, whose function was to pour water over the heads of newborn children, and who could abandon their office and marry whenever they pleased.[53] The priestesses of the Tshi- and E[(w]e-speaking peoples on the West Coast of Africa are forbidden to marry.[54] In a wood near Cape Padron, in Lower Guinea, lives a priestly king who is allowed neither to leave his house nor to touch a woman.[55]

[Footnote 53: Bory de St. Vincent, Essais sur les Isles Fortunées, p. 96 sq.]

[Footnote 54: Ellis, Tshi-speaking Peoples, p. 121. Idem, E[(w]e-speaking Peoples, p. 142.]

[Footnote 55: Bastian, Die deutsche Expedition an der Loango-Küste, i. 287 sq.]

In ancient Persia there were sun priestesses who were obliged to refrain from intercourse with men.[56] The nine priestesses of the oracle of a Gallic deity in Sena were devoted to perpetual virginity.[57] The Romans had their Vestal virgins, whose office, according to tradition, was instituted by Numa. They were compelled to continue {408} unmarried during thirty years, which time they employed in offering sacrifices and performing other rites ordained by the law; and if they suffered themselves to be debauched they were delivered up to the most miserable death, being placed in a subterraneous cell, in their funeral attire, without any sepulchral column, funeral rites, or other customary solemnities.[58] After the expiration of the term of thirty years they might marry on quitting the ensigns of their priesthood; but we are told that very few did this, as those who did suffered calamities which were regarded as ominous by the rest, and induced them to remain virgins in the temple of the goddess till their death.[59] In Greece priestesses were not infrequently required to be virgins, if not for their whole life, at any rate for the duration of their priesthood.[60] Tertullian writes:--"To the Achaean Juno, at the town Aegium, a virgin is allotted; and the priestesses who rave at Delphi know not marriage. We know that widows minister to the African Ceres; they not only withdraw from their still living husbands, but they even introduce other wives to them in their own room, all contact with males, even as far as the kiss of their sons, being forbidden them. . . . We have heard, too, of continent men, and among others the priests of the famous Egyptian bull."[61] There were eunuch priests connected with the cults of the Ephesian Artemis,[62] the Phrygian Cybele,[63] and the Syrian Astarte.[64]

[Footnote 56: Justin, quoted by Justi, 'Die Weltgeschichte des Tabari,' in Das Ausland, 1875, p. 307.]

[Footnote 57: Pomponius Mela, De situ orbis, iii. 6.]

[Footnote 58: Dionysius of Halicarnassus, Antiquitates Romanæ, ii. 64 sqq. Plutarch, Numa, x. 7 sqq.]

[Footnote 59: Dionysius of Halicarnassus, ii. 67.]

[Footnote 60: Strabo, xiv. i. 23. Müller, Das sexuelle Leben der alten Kulturvölker, p. 44 sqq. Blümner, Home Life of the Ancient Greeks, p. 325. Götte, Das Delphische Orakel, p. 78 sq.]

[Footnote 61: Tertullian, Ad uxorem, i. 6 (Migne, Patrologiæ cursus, i. 1284). Idem, De exhortatione castitatis, 13 (Migne, ii. 928 sq.). Cf. Idem, De monogamia, 17 (Migne, ii. 953).]

[Footnote 62: Strabo, xiv. 1. 23.]

[Footnote 63: Arnobius, Adversus gentes, v. 7 (Migne, op. cit. v. 1095 sqq.). Farnell, 'Sociological Hypotheses concerning the Position of Women in Ancient Religion,' in Archiv f. Religionswiss. vii. 78.]

[Footnote 64: Lucian, De dea Syria, 15, 27, 50 sqq.]

Among the Todas of the Neilgherry Hills the "dairy man" or priest is bound to a celibate existence;[65] and {409} among the Hindus, in spite of the great honour in which marriage is held, celibacy has always commanded respect in instances of extraordinary sanctity.[66] Those of the Sanny[=a]sis who are known to lead their lives in perfect celibacy receive on that account marks of distinguished honour and respect.[67] Already the time-honoured Indian institution of the four [=A]['s]ramas contained the germ of monastic celibacy, the Brahmac[=a]rin, or student, being obliged to observe absolute chastity during the whole course of his study.[68] The idea was further developed in Jainism and Buddhism. The Jain monk was to renounce all sexual pleasures, "either with gods, or men, or animals"; not to give way to sensuality; not to discuss topics relating to women; not to contemplate the forms of women.[69] Buddhism regards sensuality as altogether incompatible with wisdom and holiness; it is said that "a wise man should avoid married life as if it were a burning pit of live coals."[70] According to the legend, Buddha's mother, who was the best and purest of the daughters of men, had no other sons, and her conception was due to supernatural causes.[71] One of the fundamental duties of monastic life, by an infringement of which the guilty person brings about his inevitable expulsion from Buddha's order, is that "an ordained monk may not have sexual intercourse, not even with an animal."[72] In Tibet some sects of the Lamas are allowed to marry, but those who do not are considered more holy; and in every sect the nuns must take a vow of absolute continence.[73] The Buddhist priests of Ceylon are totally debarred from women.[74] Chinese law enjoins celibacy on all priests, Buddhist or Taouist.[75] And among the immortals of {410} Taouism there are some women also, who have led an extraordinarily ascetic life.[76]

[Footnote 65: Thurston, 'Anthropology of the Todas and Kotas,' in the Madras Government Museum's Bulletin, i. 169, 170, 193. Rivers, Todas, pp. 80, 99, 236.]

[Footnote 66: Monier-Williams, Buddhism, p. 88.]

[Footnote 67: Dubois, op. cit. p. 133. Cf. Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 261.]

[Footnote 68: Kern, Manual of Indian Buddhism, p. 73.]

[Footnote 69: Hopkins, Religions of India, p. 294.]

[Footnote 70: Dhammika-Sutta, 21, quoted by Monier-Williams, Buddhism, p. 88.]

[Footnote 71: Rhys Davids, Hibbert Lectures on Buddhism, p. 148.]

[Footnote 72: Oldenberg, Buddha, p. 350 sq.]

[Footnote 73: Wilson, Abode of Snow, p. 213.]

[Footnote 74: Percival, Account of the Island of Ceylon, p. 202.]

[Footnote 75: Ta Tsing Leu Lee, sec. cxiv. p. 118. Medhurst, 'Marriage in China,' in Trans. Roy. Asiatic Soc. China Branch, iv. 18. Davis, China, ii. 53.]

[Footnote 76: Réville, La Religion Chinoise, p. 451 sq.]

A small class of Hebrews held the idea that marriage is impure. The Essenes, says Josephus, "reject pleasure as an evil, but esteem continence and the conquest over our passions to be virtue. They neglect wedlock."[77] This doctrine exercised no influence

on Judaism, but probably much upon Christianity. St. Paul considered celibacy to be preferable to marriage. "He that giveth her (his virgin) in marriage doeth well; but he that giveth her not in marriage doeth better."[78] "It is good for a man not to touch a woman. Nevertheless, to avoid fornication, let each man have his own wife, and let each woman have her own husband."[79] If the unmarried and widows cannot contain let them marry, "for it is better to marry than to burn."[80] These and other passages[81] in the New Testament inspired a general enthusiasm for virginity. Commenting on the words of the Apostle, Tertullian points out that what is better is not necessarily good. It is better to lose one eye than two, but neither is good; so also, though it is better to marry than to burn, it is far better neither to marry nor to burn.[82] Marriage "consists of that which is the essence of fornication";[83] whereas continence "is a means whereby a man will traffic in a mighty substance of sanctity."[84] The body which our Lord wore and in which He carried on the conflict of life in this world He put on from a holy virgin; and John the Baptist, Paul, and all the others "whose names are in the book of life"[85] cherished and loved virginity.[86] Virginity works miracles: Mary, the sister of Moses, leading the female band, passed on {411} foot over the straits of the sea, and by the same grace Thecla was reverenced even by lions, so that the unfed beasts, lying at the feet of their prey, underwent a holy fast, neither with wanton look nor sharp claw venturing to harm the virgin.[87] Virginity is like a spring flower, always softly exhaling immortality from its white petals.[88] The Lord himself opens the kingdoms of the heavens to eunuchs.[89] If Adam had preserved his obedience to the Creator he would have lived for ever in a state of virgin purity, and some harmless mode of vegetation would have peopled paradise with a race of innocent and immortal beings.[90] It is true that, though virginity is the shortest way to the camp of the faithful, the way of matrimony also arrives there, by a longer circuit.[91] Tertullian himself opposed the Marcionites, who prohibited marriage among themselves and compelled those who were married to separate before they were received by baptism into the community.[92] And in the earlier part of the fourth century the Council of Gangra expressly condemned anyone who maintained that marriage prevented a Christian from entering the kingdom of God.[93] But, at the end of the same century, a council also excommunicated the monk Jovinian because he denied that virginity was more meritorious than marriage.[94] The use of marriage was permitted to man only as a necessary expedient for the continuance of the human species, and as a restraint, {412} however imperfect, on the natural licentiousness of desire.[95] The procreation of children is the measure of a Christian's indulgence in appetite, just as the husbandman throwing the seed into the ground awaits the harvest, not sowing more upon it.[96]

[Footnote 77: Josephus, De bello Judaico, ii. 8. 2. See also Solinus, Collectanea rerum memorabilium, xxxv. 9 sq.]

[Footnote 78: 1 Corinthians, vii. 38.]

[Footnote 79: Ibid. vii. 1 sq.]

[Footnote 80: Ibid. vii. 9.]

[Footnote 81: St. Matthew, xix. 12. Revelation, xiv. 4; &c.]

[Footnote 82: Tertullian, Ad uxorem, i. 3 (Migne, op. cit. i. 1278 sq.). Idem, De monogamia, 3 (Migne, ii. 932 sq.).]

[Footnote 83: Idem, De exhortatione castitatis, 9 (Migne, op. cit. ii. 925).]

[Footnote 84: Idem, De exhortatione castitatis, 10 (Migne, op. cit. ii. 925).]

[Footnote 85: Philippians, iv. 3.]

[Footnote 86: St. Clement of Rome, Epistola I. ad virgines, 6 (Migne, op. cit. Ser. Græca, i. 392).]

[Footnote 87: St. Ambrose, Epistola LXIII. 34 (Migne, op. cit. xvi. 1198 sq.).]

[Footnote 88: Methodius, Convivium decem virginum, vii. 1 (Migne, op. cit. Ser. Græca, xviii. 125).]

[Footnote 89: Tertullian, De monogamia, 3 (Migne, op. cit. ii. 932).]

[Footnote 90: This opinion was held by Gregory of Nyssa and, in a later time, by John of Damascus. It was opposed by Thomas Aquinas, who maintained that the human race was from the beginning propagated by means of sexual intercourse, but that such intercourse was originally free from all carnal desire (von Eicken, Geschichte der mittelalterlichen Weltanschauung, p. 437 sq.; see also Gibbon, History of the Decline and Fall of the Roman Empire, ii. 186).]

[Footnote 91: St. Ambrose, Epistola LXIII. 40 (Migne, op. cit. xvi. 1200).]

[Footnote 92: Tertullian, Adversus Marcionem, i. 1, 29; iv. 11; &c. (Migne, op. cit. ii. 247, 280 sqq., 382). Idem, De monogamia, 1, 15 (Migne, ii. 931, 950). Cf. Irenaeus, Contra Hæreses, i. 28. 1 (Migne, op. cit. Ser. Græca, vii. 690 sq.); Clement of Alexandria, Stromata, iii. 3 (Migne, op. cit. Ser. Græca, viii. 1113 sqq.).]

[Footnote 93: Concilium Gangrense, can. 1 (Labbe-Mansi, Sacrorum Conciliorum collectio, ii. 1106).]

[Footnote 94: Concilium Mediolanense, A.D. 390 (Labbe-Mansi, op. cit. iii. 689 sq.).]

[Footnote 95: St. Justin, Apologia I. pro Christianis, 29 (Migne, op. cit. Ser. Græca, vi. 373). Clement of Alexandria, Stromata, ii. 23 (Migne, op. cit. Ser. Græca, viii. 1089). Gibbon, op. cit. ii. 186.]

[Footnote 96: Athenagoras, Legatio pro Christianis, 33 (Migne, op. cit. Ser. Græca, vi. 966).]

These opinions led by degrees to the obligatory celibacy of the secular and regular clergy. The conviction that a second marriage of a priest, or the marriage of a priest with a widow, is unlawful, seems to have existed from the earliest period of the Church; [97] and as early as the beginning of the fourth century a synod held in Elvira in Spain insisted on the absolute continence of the higher ecclesiastics.[98] The celibacy of the clergy in general was prescribed by Gregory VII., who "looked with abhorrence on the contamination of the holy sacerdotal character, even in its lowest degree, by any sexual connection." But in many countries this prescription was so strenuously resisted, that it could not be carried through till late in the thirteenth century.[99]

[Footnote 97: Lea, Sacerdotal Celibacy in the Christian Church, p. 37. Lecky, History of European Morals, ii. 328 sq.]

[Footnote 98: Concilium Eliberitanum, A.D. 305, ch. 33 (Labbe-Mansi, op. cit. ii. 11):--"Placuit in totum prohiberi episcopis, presbyteris, et diaconibus, vel omnibus clericis positis in ministerio, abstinere se a conjugibus suis, et non generare filios: quicumque vero fecerit, ab honore clericatus exterminetur."]

[Footnote 99: Gieseler, Text-Book of Ecclesiastical History, ii. 275. Milman, History of Latin Christianity, ii. 150.]

The practice of religious celibacy may be traced to several sources. In many cases the priestess is obviously regarded as married to the god whom she is serving, and is therefore forbidden to marry anybody else. In ancient Peru the Sun was the husband of the virgins dedicated to him.[100] They were obliged to be of the same blood as their consort, that is to say, daughters of the Incas. "For though they imagined that the Sun had children, they considered that they ought not to be bastards, with mixed divine and human blood. So the {413} virgins were of necessity legitimate and of the blood royal, which was the same as being of the family of the Sun."[101] And the crime of violating the virgins dedicated to the Sun was the same and punished in the same severe manner

as the crime of violating the women of the Inca.[102] Concerning the priestesses of the Tshi-speaking peoples of the Gold Coast, Major Ellis remarks that the reason for their celibacy appears to be that "a priestess belongs to the god she serves, and therefore cannot become the property of a man, as would be the case if she married one."[103] So also the E[(w]e-speaking peoples of the Slave Coast regard the women dedicated to a god as his wives.[104] In the great temple of Jupiter Belus, we are told, a single woman used to sleep, whom the god had chosen for himself out of all the women of the land; and it was believed that he came down in person to sleep with her. "This," Herodotus says, "is like the story told by the Egyptians of what takes place in their city of Thebes, where a woman always passes the night in the temple of the Theban Jupiter. In each case the woman is said to be debarred all intercourse with men."[105] In the Egyptian texts there are frequent references to "the divine consort," neter [h.]emt, a position which was generally occupied by the ruling queen, and the king was believed to be the offspring of such a union.[106] As Plutarch states, the Egyptians thought it quite possible for a woman to be impregnated by the approach of some divine spirit, though they denied that a man could have corporeal intercourse with a goddess.[107] Nor was the idea of a nuptial relation between a woman and the deity foreign to the early Christians. St. Cyprian speaks of women who had no husband and lord but Christ, with whom they lived in a spiritual matrimony--who had "dedicated themselves to Christ, and, retiring from carnal {414} lust, vowed themselves to God in flesh and spirit."[108] In the following words he condemns the cohabitation of such virgins with unmarried ecclesiastics, under the pretence of a purely spiritual connection:--"If a husband come and see his wife lying with another man, is he not indignant and maddened, and does he not in the violence of his jealousy perhaps even seize the sword? What? How indignant and angered then must Christ our Lord and Judge be, when He sees a virgin, dedicated to Himself, and consecrated to His holiness, lying with a man! and what punishments does He threaten against such impure connections. . . . She who has been guilty of this crime is an adulteress, not against a husband, but Christ."[109] According to the gospel of Pseudo-Matthew, the Virgin Mary had in a similar manner dedicated herself as a virgin to God.[110] The idea that the deity is jealous of the chastity of his or her servants may also perhaps be at the bottom of the Greek custom according to which the hierophant and the other priests of Demeter were restrained from conjugal intercourse and washed their bodies with hemlock-juice in order to kill their passions,[111] as also of the rule which required the priests of certain goddesses to be eunuchs.[112]

[Footnote 100: Garcilasso de la Vega, op. cit. i. 297.]

[Footnote 101: Ibid. i. 292.]

[Footnote 102: Ibid. i. 300.]

[Footnote 103: Ellis, Tshi-speaking Peoples, p. 121.]

[Footnote 104: Idem, E[(w]e-speaking Peoples, pp. 140, 142.]

[Footnote 105: Herodotus, i. 181 sq.]

[Footnote 106: Wiedemann, Herodots zweites Buch, p. 268. Cf. Erman, Life in Ancient Egypt, p. 295 sq.]

[Footnote 107: Plutarch, Numa, iv. 5. Idem, Symposiaca problemata, viii. 1. 6 sq.]

[Footnote 108: St. Cyprian, De habitu virginum, 4, 22 (Migne, op. cit. iv. 443, 462). Cf. Methodius, Convivium decent virginum, vii. 1 (Migne, op. cit. Ser. Græca, xviii. 125).]

[Footnote 109: St. Cyprian, Epistola LXII., ad Pomponium de virginibus, 3 sq. (Migne, op. cit. iv. 368 sqq.). See also Neander, General History of the Christian Religion and Church, i. 378. The Council of Elvira decreed that such fallen virgins, if they refused to

return back to their former condition, should be denied communion even at the moment of death (Concilium Eliberitanum, A.D. 305, ch. 13 [Labbe-Mansi, op. cit. ii. 8]).]

[Footnote 110: Gospel of Pseudo-Matthew, 8 (Ante-Nicene Christian Library, xvi. 25). See also Gospel of the Nativity of Mary, 7 (ibid. xvi. 57 sq.).]

[Footnote 111: Wachsmuth, Hellenische Alterthumskunde, ii. 560.]

[Footnote 112: Cf. Lactantius, Divinæ Institutiones, i. 17 (Migne, op. cit. vi. 206):--"Deum mater et amavit formosum adolescentem, et eumdem cum pellice deprehensum exsectis virilibus semivirum reddidit; et ideo nunc sacra ejus a Gallis sacerdotibus celebrantur."]

Religious celibacy is further connected with the idea that sexual intercourse is defiling. In Efate, of the New Hebrides, it is regarded as something unclean.[113] The Tahitians believed that if a man refrained from all connections with women some months before death, he passed {415} immediately into his eternal mansion without any purification.[114] Herodotus writes:--"As often as a Babylonian has had intercourse with his wife, he sits down before a censer of burning incense, and the woman sits opposite to him. At dawn of day they wash; for till they are washed they will not touch any of their common vessels. This practice is also observed by the Arabs."[115] Among the Hebrews both the man and woman had to bathe themselves in water, and were "unclean until the even."[116] The idea that sexual intercourse is unclean implies that some degree of supernatural danger is connected with it;[117] and, as Mr. Crawley has pointed out, the notion of danger may develop into that of sinfulness.[118] Where woman is regarded as an unclean being[119] it is obvious that intercourse with her should be considered polluting, but this is not a sufficient explanation of the idea of sexual uncleanness. A polluting effect is ascribed to any discharge of sexual matter[120]--originally no doubt on account of its mysterious propensities and the veil of mystery which surrounds the whole sexual nature of man.

[Footnote 113: Macdonald, Oceania, p. 181.]

[Footnote 114: Cook, Voyage to the Pacific Ocean, ii. 164.]

[Footnote 115: Herodotus, i. 198.]

[Footnote 116: Leviticus, xv. 18.]

[Footnote 117: The danger attributed to sexual intercourse has been much emphasised by Mr. Crawley in The Mystic Rose. See also Westermarck, Marriage Ceremonies in Morocco.]

[Footnote 118: Crawley, op. cit. p. 214.]

[Footnote 119: See supra, i. 663 sqq.]

[Footnote 120: Gregory III., Judicia congrua p[oe]nitentibus, ch. 24 (Labbe-Mansi, op. cit. xii. 293):--"In somno peccans, si ex cogitatione pollutus, viginti duos psalmos cantet: si in somno peccans sine cogitatione, duodecim psalmos cantet." P[oe]nitentiale Pseudo-Theodori, xxviii. 25 (Wasserschleben, Bussordnungen der abendländischen Kirche, p. 600):--"Qui in somno, non voluntate, pollutus sit, surgat, cantetque vii. psalmos p[oe]nitentiales." Cf. ibid. xxviii. 6, 33 (Wasserschleben, p. 559 sq.).]

The idea of sexual defilement is particularly conspicuous in connection with religious observances. It is a common rule that he who performs a sacred act or enters a holy place must be ceremonially clean,[121] and no kind of uncleanness is to be avoided more carefully than sexual pollution. Among the Chippewyans, "if a chief is anxious to know the disposition of his people towards him, or if he wishes to settle any difference between them, he announces his intention of opening his medicine-bag and smoking in his {416} sacred stem. . . . No one can avoid attending on these occasions; but a person may attend and be excused from assisting at the ceremonies,

by acknowledging that he has not undergone the necessary purification. The having cohabited with his wife, or any other woman, within twenty-four hours preceding the ceremony, renders him unclean, and, consequently, disqualifies him from performing any part of it."[122] Herodotus tells us that the Egyptians, like the Greeks, "made it a point of religion to have no converse with women in the sacred places, and not to enter them without washing, after such converse."[123] This statement is corroborated by a passage in the 'Book of the Dead.'[124] In Greece[125] and India[126] those who took part in certain religious festivals were obliged to be continent for some time previously. Before entering the sanctuary of Mên Tyrannos, whose worship was extended over the whole of Asia Minor, the worshipper had to abstain from garlic, pork, and women, and had to wash his head.[127] Among the Hebrews it was a duty incumbent upon all to be ritually clean before entering the temple--to be free from sexual defilement,[128] leprosy,[129] and the pollution produced by the association with corpses of human beings, of all animals not permitted for food, and of those permitted animals which had died a natural death or been killed by wild beasts;[130] and eating of the consecrated bread was interdicted to persons who had not been continent for some time previously.[131] A Muhammedan would remove any defiled garment before he commences his prayer, or otherwise abstain from praying altogether; he would not dare to approach the sanctuary of a saint in a state of sexual uncleanness; and sexual intercourse is forbidden for those who make the pilgrimage to Mecca.[132] {417} The Christians prescribed strict continence as a preparation for baptism[133] and the partaking of the Eucharist.[134] They further enjoined that no married persons should participate in any of the great festivals of the Church if the night before they had lain together;[135] and in the 'Vision' of Alberic, dating from the twelfth century, a special place of torture, consisting of a lake of mingled lead, pitch, and resin, is represented as existing in hell for the punishment of married people who have had intercourse on Sundays, church festivals, or fast-days.[136] They abstained from the marriage-bed at other times also, when they were disposed more freely to give themselves to prayer.[137] Newly married couples were admonished to practise continence during the wedding day and the night following, out of reverence for the sacrament; and in some instances their abstinence lasted even for two or three days.[138]

[Footnote 121: See supra, ii. 294, 295, 352 sq.]

[Footnote 122: Mackenzie, Voyages to the Frozen and Pacific Oceans, p. cii. sq.]

[Footnote 123: Herodotus, ii. 64.]

[Footnote 124: Wiedemann, Herodots zweites Buch, p. 269 sq.]

[Footnote 125: Wachsmuth, op. cit. ii. 560.]

[Footnote 126: Oldenberg, Die Religion des Veda, p. 411.]

[Footnote 127: Foucart, Des associations religieuses chez les Grecs, pp. 119, 123 sq.]

[Footnote 128: Leviticus, chs. xii., xv.]

[Footnote 129: Ibid. ch. xiii. sq.]

[Footnote 130: Ibid. xi. 24 sqq.; xvii. 15. Numbers, xix. 14 sqq. Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 476.]

[Footnote 131: 1 Samuel, xxi. 4 sq.]

[Footnote 132: Koran, ii. 193.]

[Footnote 133: St. Augustine, De fide et operibus, vi. 8 (Migne, op. cit. xl. 202).]

[Footnote 134: St. Jerome, Epistola XLVIII. 15 (Migne, op. cit. xxii. 505 sq.).]

[Footnote 135: Lecky, History of European Morals, ii. 324. St. Gregory the Great, Dialogi, i. 10 (Migne, op. cit. lxxvii. 200 sq.).]

[Footnote 136: Albericus, Visio, ch. 5, p. 17. Delepierre, L'enfer décrit par ceux qui l'ont vu, p. 57 sq. On this subject see also Müller, Das sexuelle Leben der christlichen Kulturvölker, pp. 52, 53, 120 sq.]

[Footnote 137: St. Jerome, Epistola XLVIII. 15 (Migne, op. cit. xxii. 505). Fleury, Manners and Behaviour of the Christians, p. 75.]

[Footnote 138: Muratori, Dissertazioni sopra le antichità italiane, 20, vol. i. 347.]

Holiness is a delicate quality which is easily destroyed if anything polluting is brought into contact with the holy object or person. The Moors believe that if anybody who is sexually unclean enters a granary the grain will lose its baraka, or holiness. A similar idea probably underlies the belief prevalent among various peoples that incontinence, and especially illicit love, injures the harvest.[139] In Efate, namim, or uncleanness, supposed to be contracted in various emergencies, was especially avoided {418} by the sacred men, because it was believed to destroy their sacredness.[140] The priestly taboos, of which Sir J. G. Frazer has given such an exhaustive account in 'The Golden Bough,' have undoubtedly in a large measure a similar origin. Nay, it seems that pollution not only deprives the holy person of his holiness, but is also supposed to injure him in a more positive way. When the supreme pontiff in the kingdom of Congo left his residence to visit other places within his jurisdiction, all married people had to observe strict continence the whole time he was out, as it was believed that any act of incontinence would prove fatal to him.[141] In self-defence, therefore, gods and holy persons try to prevent polluted individuals from approaching them, and their worshippers are naturally anxious to do the same. But apart from the resentment which the sacred being would feel against the defiler, it appears that holiness is supposed to react quite mechanically against pollution, to the destruction or discomfort of the polluted individual. All Moors are convinced that anyone who in a state of sexual uncleanness dared to visit a saint's tomb would be struck by the saint; but the Arabs of Dukkâla, in Southern Morocco, also believe that if an unclean person rides a horse some accident will happen to him on account of the baraka with which the horse is endowed. It should further be noticed that, owing to the injurious effect of pollution upon holiness, an act generally regarded as sacred would, if performed by an unclean individual, lack that magic efficacy which otherwise would be ascribed to it. Muhammed represented ceremonial cleanliness as "one-half of the faith and the key of prayer."[142] The Moors say that a scribe is afraid of evil spirits only when he is sexually unclean, because then his reciting of passages of the Koran--the most powerful weapon against such spirits--would be of no avail. The Syrian philosopher Jamblichus {419} speaks of the belief that "the gods do not hear him who invokes them, if he is impure from venereal connections."[143] A similar notion prevailed among the early Christians; with reference to a passage in the First Epistle of the Corinthians,[144] Tertullian remarks that the Apostle added the recommendation of a temporary abstinence for the sake of adding an efficacy to prayers.[145] To the same class of beliefs belongs the notion that a sacrificial victim should be clean and without blemish.[146] The Chibchas of Bogota considered that the most valuable sacrifice they could offer was that of a youth who had never had intercourse with a woman.[147]

[Footnote 139: Frazer, Golden Bough, ii. 209 sqq. This is in my opinion a more natural explanation than the one suggested by Sir J. G. Frazer, namely, that uncivilised man imagines "that the vigour which he refuses to expend in reproducing his own kind, will form as it were a store of energy whereby other creatures, whether vegetable or animal, will somehow benefit in propagating their species." This theory entirely fails to account for the fact that illicit love, by preference, is supposed to mar the fertility of the earth

and to blight the crops--a belief which is in full accordance with my own explanation, in so far as such love is considered particularly polluting.]

[Footnote 140: Macdonald, Oceania, p. 181.]

[Footnote 141: Labat, Relation historique de l'Ethiopie occidentale, i. 259 sq.]

[Footnote 142: Pool, Studies in Mohammedanism, p. 27.]

[Footnote 143: Jamblichus, De mysteriis, iv. 11.]

[Footnote 144: 1 Corinthians, vii. 5.]

[Footnote 145: Tertullian, De exhortatione castitatis, 10 (Migne, op. cit. ii. 926).]

[Footnote 146: See supra, ii. 295 sq.]

[Footnote 147: Simon, quoted by Waitz, Anthropologie der Naturvölker, iv. 363. See infra, Additional Notes.]

If ceremonial cleanliness is required even of the ordinary worshipper it is all the more indispensable in the case of a priest;[148] and of all kinds of uncleanness none is to be more carefully avoided than sexual pollution. Sometimes admission into the priesthood is to be preceded by a period of continence.[149] In the Marquesas Islands no one could become a priest without having lived chastely for several years previously.[150] Among the Tshi-speaking peoples of the Gold Coast men and women, in order to become members of the priesthood, have to pass through a long novitiate, generally from two to three years, during which they live in retirement and are instructed by the priests in the secrets of the craft; and "the people believe that, during this period of retirement and study, the novices must keep their bodies pure, and refrain from all commerce with the other sex."[151] The Huichols of Mexico, again, are of opinion that a man who wishes to become a shaman must be faithful to his wife for five years, and that, if he violates this rule, he is sure to be taken ill and will lose the power of healing.[152] In ancient Mexico the priests, all {420} the time that they were employed in the service of the temple, abstained from all other women but their wives, and "even affected so much modesty and reserve, that when they met a woman they fixed their eyes on the ground that they might not see her. Any incontinence amongst the priests was severely punished. The priest who, at Teohuacan, was convicted of having violated his chastity, was delivered up by the priests to the people, who at night killed him by the bastinado."[153] Among the Kotas of the Neilgherry Hills the priests--who, unlike the "dairymen" of their Toda neighbours are not celibates--are at the great festival in honour of K[=a]matar[=a]ya forbidden to live or hold intercourse with their wives for fear of pollution, and are then even obliged to cook their meals themselves.[154] It seems that, according to the Anatolian religion, married hieroi had to separate from their wives during the period they were serving at the temple.[155] The Hebrew priest should avoid all unchastity; he was not allowed to marry a harlot, or a profane, or a divorced wife,[156] and the high-priest was also forbidden to marry a widow.[157] Nay, even in a priest's daughter unchastity was punished with excessive severity, because she had profaned her father; she was to be burned.[158]

[Footnote 148: Cf. supra, ii. 352 sq.]

[Footnote 149: Cf. Landtman, op. cit. p. 118 sqq.]

[Footnote 150: Waitz-Gerland, Anthropologie der Naturvölker, vi. 387.]

[Footnote 151: Ellis, Tshi-speaking Peoples, p. 120.]

[Footnote 152: Lumholtz, Unknown Mexico, ii. 236.]

[Footnote 153: Clavigero, op. cit. i. 274.]

[Footnote 154: Thurston, in the Madras Government Museum's Bulletin, i. 193.]

[Footnote 155: Ramsay, Cities and Bishoprics of Phrygia, i. 136, 137, 150 sq.]

[Footnote 156: Leviticus, xxi. 7.]

[Footnote 157: Ibid. xxi. 14.]

[Footnote 158: Ibid. xxi. 9.]

Carried further, the idea underlying all these rules and practices led to the notions that celibacy is more pleasing to God than marriage,[159] and that it is a religious duty for those members of the community whose special office is to attend to the sacred cult. For a nation like the Jews, whose ambition was to live and to multiply, celibacy could never become an ideal; whereas the Christians, who professed the most perfect indifference to all earthly matters, found no difficulty in glorifying a state which, however opposed it was to the interests of the race and the nation, made men pre-eminently fit to approach their god. Indeed, {421} far from being a benefit to the kingdom of God by propagating the species, sexual intercourse was on the contrary detrimental to it by being the great transmitter of the sin of our first parents. This argument, however, was of a comparatively late origin. Pelagius himself almost rivalled St. Augustine in his praise of virginity, which he considered the great test of that strength of free-will which he asserted to be at most only weakened by the fall of Adam.[160]

[Footnote 159: Cf. supra, ii. 358.]

[Footnote 160: Milman, op. cit. i. 151, 153.]

Religious celibacy is, moreover, enjoined or commended as a means of self-mortification supposed to appease an angry god, or with a view to raising the spiritual nature of man by suppressing one of the strongest of all sensual appetites. Thus we find in various religions celibacy side by side with other ascetic observances practised for similar purposes. Among the early Christians those young women who took a vow of chastity "did not look upon virginity as any thing if it were not attended with great mortification, with silence, retirement, poverty, labour, fastings, watchings, and continual praying. They were not esteemed as virgins who would not deny themselves the common diversions of the world, even the most innocent."[161] Tertullian enumerates virginity, widowhood, and the modest restraint in secret on the marriage-bed among those fragrant offerings acceptable to God which the flesh performs to its own especial suffering.[162] Finally, it was argued that marriage prevents a person from serving God perfectly, because it induces him to occupy himself too much with worldly things.[163] Though not contrary to the act of charity or the love of God, says Thomas Aquinas, it is nevertheless an obstacle to it.[164] This was one, but certainly not the only, cause of the obligatory celibacy which the Christian Church imposed upon her clergy.

[Footnote 161: Fleury, op. cit. p. 128 sq.]

[Footnote 162: Tertullian, De resurrectione carnis, 8 (Migne, op. cit. ii. 806).]

[Footnote 163: Vincentius Bellovacensis, Speculum naturale, xxx. 43. See also von Eicken, op. cit. p. 445.]

[Footnote 164: Thomas Aquinas, Summa theologica, ii.-ii. 184. 3.]

Chapter XLII — Free Love--adultery

HARDLY less variable than the moral ideas relating to marriage are those concerning sexual relations of a non-matrimonial character.

Among many uncivilised peoples both sexes enjoy perfect freedom previous to marriage, and in some cases it is considered almost dishonourable for a girl to have no lover.

The East African Barea and Kunáma do not regard it as in the least disreputable for a girl to become pregnant, nor do they punish nor censure the seducer.[1] Among the Wanyoro "it constantly happens that young girls spend the night with their lovers, only returning to their father's house in the morning, and this is not considered scandalous.**"[2] The Wadigo regard it as disgraceful, or at least as ridiculous, for a girl to enter into marriage as a virgin.[3] Among the Bakongo, "womanly chastity is unknown, and a woman's honour is measured by the price she costs."[4] Over nearly the whole of British Central Africa, says Sir H. Johnston, "before a girl is become a woman (that is to say before she is able to conceive) it is a matter of absolute indifference what she does, and scarcely any girl remains a virgin after about five years of age."[5] Among the Baronga "l'opinion publique se moque des gens continents plus qu'elle ne les admire."[6] According to Mr. Warner, "seduction of virgins, and cohabiting with unmarried women and {423} widows, are not punishable by Kafir law, neither does any disgrace attach to either sex by committing such acts."[7] In Madagascar "continence is not supposed to exist in either sex before marriage, . . . and its absence is not regarded as a vice."[8] Among the Maoris of New Zealand "girls were at perfect liberty to act as they pleased until married," and chastity in single women was held of little account.[9] In the Tonga Islands unmarried women might bestow their favours upon whomsoever they pleased without any opprobrium, although it was thought shameful for a woman frequently to change her lover.[10] In the Solomon Islands "female chastity is a virtue that would sound strangely in the ear of the native"; and in St. Christoval and the adjacent islands, "for two or three years after a girl has become eligible for marriage she distributes her favours amongst all the young men of the village."[11] In the Malay Archipelago intercourse between unmarried people is very commonly considered neither a crime nor a disgrace;[12] and the same is perhaps even more generally the case among the uncivilised races of India and Indo-China.[13] Among the Angami Nagas, for instance, "girls consider short hair, the symbol of virginity, a disgrace, and are anxious to become entitled to wear it long; men are desirous before marriage to have proof that their wives will not be barren. . . . Chastity begins with marriage."[14] The Jakuts see nothing immoral in free love, provided only that nobody suffers material loss by it.[15] Among the Votyaks it is disgraceful for a girl to be little sought after by the young men, and it is honourable for her to have children; she then gets a wealthier husband, and a higher price is paid for her to her father.[16] The Kamchadales set no great value on the virginity of their brides.[17] Of the Point Barrow Eskimo Mr. Murdoch writes:--"As to the relations between the sexes there seems to be the most complete absence of what we consider moral feelings. Promiscuous sexual {424} intercourse between married or unmarried people, or even among children, appears to be looked upon simply as a matter for amusement. As far as we could learn, unchastity in a girl was considered nothing against her. The immorality of these people among themselves, as we witnessed it, seems too purely animal and natural to be of recent growth or the result of foreign influence. Moreover, a similar state of affairs has been observed among Eskimo elsewhere."[18]

[Footnote 1: Munzinger, Ostafrikanische Studien, p. 524.]

[Footnote 2: Emin Pasha in Central Africa, p. 82. Cf. ibid. p. 208 (Monbuttu).]

[Footnote 3: Baumann, Usambara, p. 152.]

[Footnote 4: Johnston, British Central Africa, p. 405.]

[Footnote 5: Ibid. p. 409, note.]

[Footnote 6: Junod, Les Ba-Ronga, p. 29.]

[Footnote 7: Warner, in Maclean, Compendium of Kafir Laws, p. 63.]

[Footnote 8: Ellis, History of Madagascar, i. 137 sq.]

[Footnote 9: Taylor, Te Ika a Maui, p. 33. Gisborne, Colony of New Zealand, p. 27.]

[Footnote 10: Mariner, Natives of the Tonga Islands, ii. 174.]

[Footnote 11: Guppy, Solomon Islands, p. 43.]

[Footnote 12: Wilken, 'Plechtigheden en gebruiken bij verlovingen en huwelijken bij de volken van den Indischen Archipel,' in Bijdragen tot de taal- land- en volkenkunde van Nederlandsch-Indië, ser. v. vol. iv. 434 sqq.]

[Footnote 13: Westermarck, History of Human Marriage, p. 71. Crooke, Tribes and Castes of the North-Western Provinces and Oudh, i. p. clxxxiv.]

[Footnote 14: Prain, 'Angami Nagas,' in Revue coloniale internationale, v. 491 sq.]

[Footnote 15: Sumner, in Jour. Anthr. Inst. xxxi. 96.]

[Footnote 16: Buch, 'Die Wotjäken,' in Acta Soc. Scientiarum Fennicæ, xii. 509.]

[Footnote 17: Georgi, Russia, iii. 156.]

[Footnote 18: Murdoch, 'Ethnological Results of the Point Barrow Expedition,' in Ann. Rep. Bur. Ethn. ix. 419 sq. See also Turner, 'Ethnology of the the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 189 (Koksoagmyut); Parry, Second Voyage for the Discovery of a North-West Passage, p. 529 (Eskimo of Igloolik and Winter Island).]

Yet however commonly chastity is disregarded in the savage world, we must not suppose that such disregard is anything like a universal characteristic of the lower races. In a previous work I have given a list of numerous savage and barbarous peoples among whom unchastity before marriage is looked upon as a disgrace or a crime for a woman, sometimes punishable with banishment from the community or even with death;[19] and it is noteworthy that to this group of peoples belong savages of so low a type as the Veddahs of Ceylon,[20] the Igorrotes of Luzon,[21] and certain Australian tribes.[22] I have also called attention to facts which seem to prove that in several cases the wantonness of savages is largely due to foreign influence. The pioneers of a "higher civilisation" are very frequently unmarried men who go out to make their living in uncivilised lands, and, though unwilling to contract regular marriages with native women, they have no objection to corrupting their morals.[23] Moreover, in many tribes the {425} free intercourse which prevails between unmarried people is not of a promiscuous nature, and leads necessarily to marriage should the girl prove with child.[24] Nay, among various uncivilised races not only the girl, but the man who seduces her is subject to punishment or censure.

[Footnote 19: Westermarck, op. cit. p. 61 sqq.]

[Footnote 20: Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 178.]

[Footnote 21: Meyer, 'Igorrotes von Luzon,' in Verhandl. Berliner Gesellsch. f. Anthrop. 1883, p. 384 sq. Blumentritt, Ethnographie der Philippinen, p. 27.]

[Footnote 22: Westermarck, op. cit. p. 64 sq. Holden, in Taplin, Folklore of the South Australian Aborigines, p. 19.]

[Footnote 23: It is strange to hear from a modern student of anthropology, and especially from an Australian writer, that in sexual licence the savage has never anything to learn and that "all that the lower fringe of civilised men can do to harm the uncivilised is to stoop to the level of the latter instead of teaching them a better way" (Sutherland, Origin and Growth of the Moral Instinct, i. 186). Mr. Edward Stephens ('Aborigines of Australia,' in Jour. & Proceed. Royal Soc. N. S. Wales, xxiii. 480) has a very different story to tell with reference to the tribes which once inhabited the Adelaide Plains in South Australia and whose acquaintance he made more than half a century ago.]

[Footnote 24: Westermarck, op. cit. pp. 23, 24, 71.]

Among the East African Takue a seducer may have to pay the same sum as if he had killed the girl, although the fine is generally reduced to fifty cows.[25] Among the Beni Amer and Marea he is killed, together with the girl and the child.[26] In Tessaua a fine of 100,000 kurdi is imposed on the father of a bastard child.[27] Among the Beni Mzab a man who seduces a girl has to pay two hundred francs and is banished for four years.[28] Among the Tedâ he is exposed to the revenge of her father.[29] The Baziba look upon illegitimate intercourse between the sexes as the most serious offence, though no action is taken until the birth of a child; "then the man and woman are bound hand and foot and thrown into Lake Victoria."[30] Among the Bakoki, whilst the girl was driven from home and remained for ever after an outcast, the man was fined three cows to her father and one to the chief.[31] Certain West African savages described by Mr. Winwood Reade, who banish from the clan a girl guilty of wantonness, inflict severe flogging on the seducer.[32] In Dahomey a man who seduces a girl is compelled by law to marry her and to pay eighty cowries to the parent or master.[33] Among some Kafir tribes the father or guardian of a woman who becomes pregnant can demand a fine of one head of cattle from the father of the child;[34] whilst in the Gaika tribe the mere seduction of a virgin incurs the fine of three or four head of cattle.[35] Casalis mentions an interesting custom prevalent among the Basutos, which on the one hand illustrates the belief that sexual intercourse in certain circumstances exposes a person to supernatural danger, and on the other hand indicates that unchastity in unmarried men is not looked upon with perfect indifference:--Immediately after the birth of a child the fire of the dwelling was kindled afresh. "For this purpose it was necessary that a young man of chaste habits should rub two {426} pieces of wood quickly one against another, until a flame sprung up, pure as himself. It was firmly believed that a premature death awaited him who should dare to take upon himself this office, after having lost his innocence. As soon, therefore, as a birth was proclaimed in the village, the fathers took their sons to undergo the ordeal. Those who felt themselves guilty confessed their crime, and submitted to be scourged rather than expose themselves to the consequences of a fatal temerity."[36] Livingstone, speaking of the good name which was given to him by the Bakwains, observes:--"No one ever gains much influence in this country without purity and uprightness. The acts of a stranger are keenly scrutinised by both young and old, and seldom is the judgment pronounced, even by the heathen, unfair or uncharitable. I have heard women speaking in admiration of a white man, because he was pure, and never was guilty of any secret immorality. Had he been, they would have known it, and, untutored heathen though they be, would have despised him in consequence."[37]

[Footnote 25: Munzinger, Ostafrikanische Studien, p. 208.]
[Footnote 26: Ibid. p. 322.]
[Footnote 27: Barth, Reisen in Nord- und Central-Afrika, ii. 18.]
[Footnote 28: Chavanne, Die Sahara, p. 315.]
[Footnote 29: Nachtigal, Sahara und Sudan, i. 449.]
[Footnote 30: Cunningham, Uganda, p. 290.]
[Footnote 31: Ibid. p. 102.]
[Footnote 32: Reade, Savage Africa, p. 261.]
[Footnote 33: Forbes, Dahomey, i. 26.]
[Footnote 34: Warner, in Maclean, op. cit. p. 64.]
[Footnote 35: Brownlee, ibid. p. 112.]
[Footnote 36: Casalis, Basutos, p. 267 sq.]
[Footnote 37: Livingstone, Missionary Travels, p. 513.]

Of the Australian Maroura tribe, Lower Darling, we are told that before the advent of the whites "their laws were strict, especially those regarding young men and young women. It was almost death to a young lad or man who had sexual intercourse till married."[38] Among various tribes in Western Victoria "illegitimacy is rare, and is looked upon with such abhorrence that the mother is always severely beaten by her relatives, and sometimes put to death and burned. Her child is occasionally killed and burned with her. The father of the child is also punished with the greatest severity, and occasionally killed."[39]

[Footnote 38: Holden, in Taplin, Folklore of the South Australian Aborigines, p. 19.]

[Footnote 39: Dawson, Australian Aborigines, p. 28.]

In Nias the pregnancy of an unmarried girl is punished with death, inflicted not only upon her but upon the seducer as well.[40] Among the Bódo and Dhimáls of India chastity is prized in man and woman, married and unmarried.[41] Among the Tunguses "in irregular amours only the men are punished," the seducer being obliged either to purchase the girl at a certain price or, if he refuses, to submit to corporal punishment.[42] Among the Thlinkets, "if unmarried women prove frail the partner of their guilt, if discovered, is bound to make reparation to the parents, soothing their wounded honour with handsome {427} presents."[43] In certain North American tribes the seducer is said to be viewed with even more contempt than the girl whom he has dishonoured.[44]

[Footnote 40: Wilken, in Bijdragen tot de taal- land- en volkenkunde van Nederlandsch-Indië, ser. v. vol. iv. 444.]

[Footnote 41: Hodgson, Miscellaneous Essays, i. 123.]

[Footnote 42: Georgi, op. cit. iii. 84.]

[Footnote 43: Douglas, quoted by Petroff, Report on Alaska, p. 177.]

[Footnote 44: Westermarck, op. cit. p. 66.]

Passing to more advanced races, we find that chastity is regarded as a duty for unmarried women, whilst a different standard of morality is generally applied to men. "Confucianism," says Mr. Griffis, "virtually admits two standards of morality, one for man, another for woman. . . . Chastity is a female virtue, it is a part of womanly duty, it has little or no relation to man personally."[45] Yet it is held up as an ideal even to men. It is said that in youth, when the physical powers are not yet settled, the superior man guards against lust.[46] Though licentious in their habits, the Chinese exalt and dignify chastity as a means of bringing the soul and body nearer to the highest excellence;[47] one of their proverbs even maintains that "of the myriad vices, lust is the worst."[48] Chastity for its own sake, when defended by a woman at the expense of her life, meets with a reward at the hands of the Government. "If a woman"--so the Ordinances run--"be compelled by her husband to prostitute herself for money, and takes her own life in order to preserve her chastity, or if an unmarried virgin loses her life in defending herself against violation, an honorary gate shall be erected in each case near the door of the paternal dwelling."[49] According to the Chinese Penal Code, "criminal intercourse by mutual consent with an unmarried woman shall be punished with seventy blows," whilst the punishment for such intercourse with a married woman is eighty blows.[50]

[Footnote 45: Griffis, Religions of Japan, p. 149.]

[Footnote 46: Lun Yü, xvi. 7.]

[Footnote 47: Wells Williams, Middle Kingdom, ii. 193.]

[Footnote 48: Smith, Proverbs of the Chinese, p. 256.]

[Footnote 49: de Groot, Religious System of China, (vol. ii. book) i. 752 sq.]

[Footnote 50: Ta Tsing Leu Lee, sec. ccclxvi. p. 404.]

Among the ancient Hebrews fornication was forbidden to women[51] but not to men. The action of Judah towards the supposed harlot on the way to Timnath is mentioned {428} as the most natural thing in the world,[52] even though the perpetrator was a man of wealth and position, a man whom his brethren "shall praise" and before whom his "father's children shall bow down."[53] Throughout the Muhammedan world chastity is regarded as an essential duty for a woman.[54] In Persia an unmarried girl who gave birth to a child would surely be killed.[55] Among the Fellaheen of Egypt a father or brother in most instances punishes an unmarried daughter or sister who has been guilty of incontinence by throwing her into the Nile with a stone tied to her neck, or cutting her to pieces, and then throwing her remains into the river.[56] Among the Jbâla and Rif Berbers of Morocco she is also frequently killed. For unmarried men, on the other hand, chastity is by Muhammedans at most looked upon as an ideal, almost out of reach. The Caliph Ali said that "with a man who is modest and chaste nobody should find fault."[57] We are told that the Muhammedans of India consider it inconceivable that a Moslem should have illicit intercourse with a free Muhammedan woman;[58] but connections with slave girls are regarded in a different light.

[Footnote 51: Leviticus, xix. 29. Deuteronomy, xxiii. 18.]

[Footnote 52: Genesis, xxxviii. 15 sqq.]

[Footnote 53: Ibid. xlix. 8.]

[Footnote 54: Burton, Sindh, p. 295.]

[Footnote 55: Polak, Persien, i. 217.]

[Footnote 56: Lane, Manners and Customs of the Modern Egyptians, p. 209.]

[Footnote 57: Ameer Ali, Ethics of Islâm, p. 30.]

[Footnote 58: Lane-Poole, Studies in a Mosque, p. 106.]

Among the Hindus sexual impurity is scarcely considered a sin in the men, but "in females nothing is held more execrable or abominable. The unhappy inhabitants of houses of ill fame are looked upon as the most degraded of the human species."[59] In one of the Pahlavi texts continence is recommended from the point of view of prudence:--"Commit no lustfulness, so that harm and regret may not reach thee from thine own actions."[60] But in Zoroastrianism, also, chastity is chiefly a female duty. It is written in the Avesta, "Any woman that has given up her body to two men in one day is sooner to be killed than a wolf, a lion, or a snake."[61]

[Footnote 59: Calcutta Review, ii. 23. Dubois, Description of the Character, &c. of the People of India, p. 193. Cf. Laws of Manu, ix. 51 sq.]

[Footnote 60: Dînâ-î Maînôg-î Khirad, ii. 23 sq.]

[Footnote 61: Darmesteter, in Sacred Books of the East, iv. 206, n. 1.]

{429} Among the ancient Teutons an unmarried woman who belonged to an honourable family was severely punished for going wrong, and the seducer was exposed to the revenge of her family, or had to pay compensation for his deed.[62] The yet un-Romanised Saxons, down to the days of St. Boniface, compelled a maiden who had dishonoured her father's house, as well as an adulteress, to hang herself, after which her body was burned and her paramour hung over the blazing pile; or she was scourged or cut with knives by all the women of the village till she was dead.[63]

[Footnote 62: Brunner, Deutsche Rechtsgeschichte, ii. 659 sqq. Wilda, Strafrecht der Germanen, p. 799 sqq. Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 67. Maurer, Bekehrung des Norwegischen Stammes, ii. 154.]

[Footnote 63: Milman, History of Latin Christianity, ii. 54.]

In Greece the chastity of an unmarried girl was anxiously guarded.[64] According to Athenian law, the relatives of a maiden who had lost her virtue could with impunity kill

the seducer on the spot.[65] Virginity was an object of worship. Chastity was the pre-eminent attribute of sanctity ascribed to Athene and Artemis, and the Parthenon, or virgin's temple, was the noblest religious edifice of Athens.[66] It is true that a certain class of courtesans occupied a remarkably high position in the social life of Greece, being admired and sought after even by the principal men. But they did so on account of their extraordinary beauty or their intellectual superiority; to the Greek mind the moral standard was by no means the only standard of excellence. The Romans, on the other hand, regarded the courtesan class with much contempt.[67] In A.D. 19 the profligacy of women was checked by stringent enactments, and it was provided that no woman whose grandfather, father, or husband had been a Roman knight should get money by prostitution. [68] The names of prostitutes had to be published on the aedile's list, as Tacitus says, "according to a recognised custom {430} of our ancestors, who considered it a sufficient punishment on unchaste women to have to profess their shame."[69] But both in Rome and Greece pre-nuptial unchastity in men, when it was not excessive[70] or did not take some especially offensive form, was hardly censured by public opinion. [71] The elder Cato expressly justified it.[72] Cicero says:--"If there be any one who thinks that youth is to be wholly interdicted from amours with courtesans, he certainly is very strict indeed. I cannot deny what he says; but still he is at variance not only with the licence of the present age, but even with the habits of our ancestors, and with what they used to consider allowable. For when was the time that men were not used to act in this manner? When was such conduct found fault with? When was it not permitted? When, in short, was the time when that which is lawful was not lawful?"[73] Epictetus only went a little step further. He said to his disciples:--"Concerning sexual pleasures, it is right to be pure before marriage, as much as in you lies. But if you indulge in them, let it be according to what is lawful. But do not in any case make yourself disagreeable to those who use such pleasures, nor be fond of reproving them, nor of putting yourself forward as not using them."[74] Here chastity in men is at all events recognised as an ideal. But even in pagan antiquity there were a few who enjoined it as a duty.[75] Musonius Rufus emphatically asserted that no union of the sexes other than marriage was permissible,[76] and Dio Chrysostom desired prostitution to be suppressed by law.[77] Similar opinions grew up in connection with the Neo-Platonic and Neo-Pythagorean philosophies, and may be traced back to the ancient masters themselves. We are told that Pythagoras inculcated the virtue of {431} chastity so successfully that when ten of his disciples, being attacked, might have escaped by crossing a bean-field, they died to a man rather than tread down the beans, which were supposed to have a mystic affinity with the seat of impure desires.[78] Plato, again, is in favour of a law to the effect that "no one shall venture to touch any person of the freeborn or noble class except his wedded wife, or sow the unconsecrated and bastard seed among harlots, or in barren and unnatural lusts." Our citizens, he says, ought not to be worse than birds and beasts, which live without intercourse, pure and chaste, until the age for procreation, and afterwards, when they have arrived at that period and the male has paired with the female and the female with the male, "live the rest of their lives in holiness and innocence, abiding firmly in their original compact."[79]

[Footnote 64: See Denis, Histoire des théories et des idées morales dans l'antiquité, i. 69 sq.]

[Footnote 65: Schmidt, Die Ethik der alten Griechen, ii. 193.]

[Footnote 66: See Lecky, History of European Morals, i. 105.]

[Footnote 67: Ibid. ii. 300.]

[Footnote 68: Tacitus, Annales, ii. 85.]

[Footnote 69: Tacitus, Annales, ii. 85.]

[Footnote 70: Valerius Maximus (Facta dictaque memorabilia, ii. 5. 6) praises "frugalitas" as "immoderato Veneris usu aversa."]

[Footnote 71: Lecky, op. cit. ii. 314.]

[Footnote 72: Horace, Satiræ, i. 2. 31 sq.]

[Footnote 73: Cicero, Pro C[oe]lio, 20 (48).]

[Footnote 74: Epictetus, Enchiridion, xxxiii. 8.]

[Footnote 75: Denis, op. cit. ii. 133 sqq.]

[Footnote 76: Musonius Rufus, quoted by Stobæus, Florilegium, vi. 61.]

[Footnote 77: Denis, op. cit. ii. 149 sqq.]

[Footnote 78: Jamblichus, De Pythagorica vita, 31 (191). Cf. Jevons, in Plutarch's Romane Questions, p. lxxxviii. sq.]

[Footnote 79: Plato, Leges, viii. 840 sq. Cf. Xenophon, Memorabilia, i. 3. 8.]

Much stronger was the censure which Christianity passed on pre-nuptial connections. While looking with suspicion even on the life-long union of one man with one woman, the Church pronounced all other forms of sexual intercourse to be mortal sins. In its Penitentials sins of unchastity were the favourite topic; and its horror of them finds an echo in the secular legislation of the first Christian emperors. Panders were condemned to have molten lead poured down their throats.[80] In the case of forcible seduction both the man and woman, if she consented to the act, were put to death.[81] Even the innocent offspring of illicit intercourse were punished for their parents' sins with ignominy and loss of certain rights which belonged to other, more respectable, members of the Church and the State.[82] Persons of different sex {432} who were not united in wedlock were forbidden by the Church to kiss each other; nay, the sexual desire itself, though unaccompanied by any external act, was regarded as sinful in the unmarried.[83] In this standard of purity no difference of sex was recognised, the same obligations being imposed upon man and woman.[84]

[Footnote 80: Lecky, op. cit. ii. 316.]

[Footnote 81: Codex Theodosianus, ix. 24. 1.]

[Footnote 82: Concilium Claromontanum, A.D. 1095, can. 11 (Labbe-Mansi, Sacrorum Conciliorum collectio, xx. 817):--"Ut nulli filii concubinarum ad ordines vel aliquos honores ecclesiasticos promoveantur, nisi monchaliter vel canonice vixerint in ecclesia." See also supra, i. 47.]

[Footnote 83: "Perit ergo et ipsa mente virginitas." Katz, Grundriss des kanonischen Strafrechts, p. 114 sq. For the subject of kissing see also Thomas Aquinas, Summa theologica, ii.-ii. 154. 4.]

[Footnote 84: Laurent, Études sur l'histoire de l'Humanité, iv. 114.]

In this, as in so many other points of morals, however, there is a considerable discrepancy between Christian doctrine and public opinion in Christian countries. The gross and open immorality of the Middle Ages indicates how little the idea of sexual purity entered into the manners and opinions of the people. The influence of the ascetic doctrine of the Church was in fact quite contrary to its aspirations. The institution of clerical celibacy lowered the estimation of virtue by promoting vice. During the Middle Ages unchastity was regarded as an object of ridicule rather than censure, and in the comic literature of that period the clergy are universally represented as the great corrupters of domestic virtue.[85] Whether the tenet of chastity laid down by the code of Chivalry was taken more seriously may be fairly doubted. A knight, it was said, should be abstinent and chaste;[86] he should love only the virtues, talents, and graces of his lady;[87] and love was defined as the "chaste union of two hearts by virtue

wrought."[88] But whilst the knight had certain claims as regards the virtue of his lady, whilst he probably was inclined to draw his sword only for a woman of fair reputation, and whilst he himself professed to aspire only to her lip or hand, we have reason to believe that the amours in which he indulged with her were of a far less delicate kind. Sainte-Palaye observes, "Jamais {433} on ne vit les m[oe]urs plus corrompues que du temps de nos Chevaliers, et jamais le règne de la débauche ne fut plus universel."[89] For a mediæval knight the chief object of life was love. He who did not understand how to win a lady was but half a man; and the difference between a lover and a seducer was apparently slight. The character of the seducer, as Mr. Lecky remarks, and especially of the passionless seducer who pursues his career simply as a kind of sport, and under the influence of no stronger motive than vanity or a spirit of adventure, has for many centuries been glorified and idealised in the popular literature of Christendom in a manner to which there is no parallel in antiquity.[90]

[Footnote 85: Wright, Essays on Archæological Subjects, ii. 238. Cf. Idem, History of Domestic Manners and Sentiments in England during the Middle Ages, pp. 54, 281, 420.]

[Footnote 86: Book of the Ordre of Chyualry, fol. 40.]

[Footnote 87: Sainte-Palaye, Mémoires sur l'ancienne Chevalerie, ii. 17.]

[Footnote 88: Mills, History of Chivalry, i. 214 sq.]

[Footnote 89: Sainte-Palaye, op. cit. ii. 19. Cf. Walter Scott, 'Essay on Chivalry,' in Miscellaneous Prose Works, vi. 48 sq.]

[Footnote 90: Lecky, op. cit. ii. 346. Cf. Delécluze, Roland ou la Chevalerie, i. 356.]

The Reformation brought about some change for the better, if in no other respect at least by making marriage lawful for a large class of people to whom illicit love had previously been the only means of gratifying a natural desire, and by abolishing the monasteries. In fits of religious enthusiasm even the secular legislators busied themselves with acts of incontinence in which two unmarried adults of different sex were consenting parties. In the days of the Commonwealth, according to an act of 1650, in cases of less serious breach of chastity than adultery and incest, each man or woman was for each offence to be committed to the common gaol for three months, and to find sureties for good behaviour during a whole year afterwards.[91] In Scotland, after the Reformation, fornication was punished with a severity nearly equal to that which attended the infraction of the marriage vow.[92] But the fate of these and similar laws has been either to be repealed or to become inactive.[93] For ordinary acts of incontinence public opinion is, practically at least, the only judge. In the case of female unchastity its sentence is {434} severe enough among the upper ranks of society, whilst, so far as the lower classes are concerned, it varies considerably even in different parts of the same country, and is in many cases regarded as venial. As to similar acts committed by unmarried men, the words which Cicero uttered on behalf of C[oe]lius might be repeated by any modern advocate who, in defending his client, ventured frankly to express the popular opinion on the subject. It seems to me that with regard to sexual relations between unmarried men and women Christianity has done little more than establish a standard which, though accepted perhaps in theory, is hardly recognised by the feelings of the large majority of people--or at least of men--in Christian communities, and has introduced the vice of hypocrisy, which apparently was little known in sexual matters by pagan antiquity.

[Footnote 91: Pike, History of Crime in England, ii. 182.]

[Footnote 92: Rogers, Social Life in Scotland, ii. 242.]

[Footnote 93: See Pike, op. cit. ii. 582; Hume, Commentaries on the Law of Scotland, ii. 333.]

Why has sexual intercourse between unmarried people, if both parties consent, come to be regarded as wrong? Why are the moral opinions relating to it subject to so great variations? Why is the standard commonly so different for man and woman? We shall now try to find an answer to these questions.

If marriage, as I am inclined to suppose, is based on an instinct derived from some ape-like progenitor, it would from the beginning be regarded as the natural form of sexual intercourse in the human race, whilst other more transitory connections would appear abnormal and consequently be disapproved of. I am not certain whether some feeling of this sort, however vague, is not still very general in the race. But it has been more or less or almost totally suppressed by social conditions which make it in most cases impossible for men to marry at the first outbreak of the sexual passion. We have thus to seek for some other explanation of the severe censure passed on pre-nuptial connections.

It seems to me obvious that this censure is chiefly due to the preference which a man gives to a virgin bride. As I have shown in another place, such a preference is a {435} fact of very common occurrence.[94] It partly springs from a feeling akin to jealousy towards women who have had previous connections with other men, partly from the warm response a man expects from a woman whose appetites he is the first to gratify, and largely from an instinctive appreciation of female coyness. Each sex is attracted by the distinctive characteristics of the opposite sex, and coyness is a female quality. In mankind, as among other mammals, the female requires to be courted, often endeavouring for a long time to escape from the male. Not only in civilised countries may courtship mean a prolonged making of love to the woman. Mariner's words with reference to the women of Tonga hold true of a great many, if not all, savage and barbarous races of men. "It must not be supposed," he says, "that these women are always easily won; the greatest attentions and most fervent solicitations are sometimes requisite, even though there be no other lover in the way."[95] The marriage ceremonies of many peoples bear testimony to the same fact. One origin of the form of capture is the resistance of the pursued woman, due to coyness, partly real and partly assumed.[96] On the East Coast of Greenland, for instance, the only method of contracting a marriage is for a man to go to the girl's tent, catch her by her hair or anything else which offers a hold, and drag her off to his dwelling without further ado; violent scenes are often the result, as single women always affect the utmost bashfulness and aversion to any proposal of marriage, lest they should lose their reputation for modesty.[97] It is certainly not the woman who most readily yields to the desires of a man that is most attractive to him; as an ancient writer puts it, all men love seasoned dishes, not plain meats, or plainly dressed {436} fish, and it is modesty that gives the bloom to beauty.[98] Conspicuous eagerness in a woman appears to a man unwomanly, repulsive, contemptible. His ideal is the virgin; the libertine he despises.

[Footnote 94: Westermarck, op. cit. p. 123 sq.]

[Footnote 95: Mariner, op. cit. ii. 174. Cf. Fritsch, Die Eingeborenen Süd-Afrika's, p. 445 (Bushmans).]

[Footnote 96: Cf. Spencer, Principles of Sociology, i. 623 sq.; Idem, in Fortnightly Review, xxi. 897 sq.; Westermarck, op. cit. p. 388; Grosse, Die Formen der Familie, p. 107; Crawley, The Mystic Rose, p. 305 sq.]

[Footnote 97: Nansen, First Crossing of Greenland, i. 316 sqq.]

[Footnote 98: Athenæus, Deipnosophistæ, xiii. 16.]

Where marriage is the customary form of sexual intercourse pre-nuptial incontinence in a woman, as suggesting lack of coyness and modesty, is therefore apt to

disgrace her. At the same time it is a disgrace to, and consequently an offence against, her family, especially where the ties of kinship are strong. Moreover, where wives are purchased the unchaste girl, by lowering her market value, deprives her father or parents of part of their property. Among the Tshi-speaking peoples of the Gold Coast, says Major Ellis, "chastity per se is not understood. An unmarried girl is expected to be chaste because virginity possesses a marketable value, and were she to be unchaste her parents would receive little and perhaps no head-money for her."[99] Among the Rendile of Eastern Africa, we are told, the unchastity of unmarried girls meets with severe retribution, the girl invariably being driven out from her home, for the sole and simple reason that her market value to her parents has been decreased.[100] The same commercial point of view is expressed in the Mosaic rule:--"If a man entice a maid that is not betrothed, and lie with her, he shall surely endow her to be his wife. If her father utterly refuse to give her unto him, he shall pay money according to the dowry of virgins."[101] But the girl is not the only offender. Whilst the disgrace of incontinence falls on her alone, the offence against her relatives is divided between her and the seducer. Speaking of the presents which, among the Thlinkets, a man is bound to give to the parents of the girl whom he has seduced, Sir James Douglas observes, "The offender is simply regarded as a robber, who has committed depredation on their merchandise, their only anxiety being to make the {437} damages exacted as heavy as possible."[102] Marriage by purchase has thus raised the standard of female chastity, and also, to some extent, checked the incontinence of the men. But it can certainly not be regarded as the sole cause of the duty of chastity where such a duty is recognised by savages. Among the Veddahs, who do not make their daughters objects of traffic,[103] the unmarried girls are nevertheless protected by their natural guardians "with the keenest sense of honour."[104] In many of the instances quoted above where a seduction is followed by more or less serious consequences for the seducer, the penalty he has to pay is evidently something else than the mere market value of the girl.

[Footnote 99: Ellis, Tshi-speaking Peoples, p. 286.]

[Footnote 100: Chanler, Through Jungle and Desert, p. 317.]

[Footnote 101: Exodus, xxii. 16 sq.]

[Footnote 102: Douglas, quoted by Petroff, op. cit. p. 177.]

[Footnote 103: Le Mesurier, 'Veddás of Ceylon,' in Jour. Roy. Asiatic Soc. Ceylon Branch, ix. 340. Hartshorne, 'Weddas,' in Indian Antiquary, viii. 320.]

[Footnote 104: Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 178.]

Thus the men, by demanding that the women whom they marry shall be virgins, indirectly give rise to the demand that they themselves shall abstain from certain forms of incontinence. From my collection of facts relating to savages I find that in the majority of cases where chastity is required of unmarried girls the seducer also is considered guilty of a crime. But, as was just pointed out, his act is judged from a more limited point of view. It is chiefly, if not exclusively, regarded as an offence against the parents or family of the girl; chastity per se is hardly required of savage men. Where prostitution exists they may without censure gratify their passions among its victims. Now, to anybody who duly reflects upon the matter it is clear that the seducer does a wrong to the woman also; but I find no indication that this idea occurs at all to the savage mind. Where the seducer is censured the girl also is censured, being regarded not as the injured party but as an injurer. Even in the case of rape the harm done to the girl herself is little thought of. Among the Tonga Islanders "rape, providing it be not upon a married woman or one to whom respect is due on the score of {438} superior rank from the perpetrator, is considered not as a crime but as a matter of indifference."[105]

The same is the case in the Pelew Islands.[106] In the laws of the Rejangs of Sumatra referring to this offence, "there is hardly anything considered but the value of the girl's person to her relations, as a mere vendible commodity."[107] Among the Asiniboin, a Siouan tribe, the punishment for rape is based on the principle that the price of the woman has been depreciated, that the chances of marriage have been lessened, and that the act is an insult to her kindred, as implying contempt of their feelings and their power of protection.[108] Even the Teutons in early days hardly severed rape from abduction, the kinsmen of the woman feeling themselves equally wronged in either case.[109] If the girl's feelings are thus disregarded when she is an unwilling victim of violence, it can hardly be expected that she should be an object of pity when she is a consenting partner. Does not public opinion in the midst of civilisation turn against the dishonoured rather than the dishonourer?

[Footnote 105: Mariner, op. cit. ii. 107.]

[Footnote 106: Kubary, 'Die Verbrechen und das Strafverfahren auf den Pelau-Inseln,' in Original-Mittheil. aus der ethnol. Abtheil. der königl. Museen Berlin, i. 78.]

[Footnote 107: Crawfurd, History of the Indian Archipelago, iii. 130.]

[Footnote 108: Dorsey, 'Siouan Sociology,' in Ann. Rep. Bur. Ethn. xv. 226.]

[Footnote 109: Brunner, Deutsche Rechtsgeschichte ii. 666. Pollock and Maitland, History of English Law before the Time of Edward I. ii. 490. According to Salic law, the fine for the rape of an ingenua puella was 62½ solidi, or only a little higher than the fine for a connection with her to which she herself consented (Lex Salica, Herold's text, xiv. 4; xv. 3); whereas the fine for adultery with a free woman was 200 solidi (ibid. xv. 1).]

There is yet another party to be considered, namely, the offspring. One would imagine that to every thinking mind, not altogether destitute of sympathetic feelings, the question what is likely to happen to the child if the woman becomes pregnant should present itself as one of the greatest gravity. But in judging of matters relating to sexual morality men have generally made little use of their reason and been guilty of much thoughtless cruelty. Although marriage has come into existence solely for the sake of the offspring, it rarely happens that in sexual relations much unselfish thought is bestowed upon unborn {439} individuals. Legal provisions in favour of illegitimate children have made men somewhat more careful, for their own sake, but they have also nourished the idea that the responsibility of fatherhood may be bought off by the small sum the man has to pay for the support of his natural child. Custom or law may exempt him even from this duty. We are told that in Tahiti the father might kill a bastard child, but that, if he suffered it to live, he was eo ipso considered to be married to its mother.[110] This custom, it would seem, is hardly more inhuman than the famous law according to which "la recherche de la paternité est interdite."[111]

[Footnote 110: Cook, Voyage to the Pacific Ocean, ii. 157.]

[Footnote 111: Code Napoléon, § 340.]

The great authority on the ethics of Roman Catholicism tries to prove that simple fornication is a mortal sin chiefly because it "tends to the hurt of the life of the child who is to be born of such intercourse," or more generally, because "it is contrary to the good of the offspring."[112] But this tender care for the welfare of illegitimate children seems strange when we consider the manner in which such children have been treated by the Roman Catholic Church herself. It is obvious that the extreme horror of fornication which is expressed in the Christian doctrine is in the main a result of the same ascetic principle which declared celibacy superior to marriage and tolerated marriage only because it could not be suppressed.

[Footnote 112: Thomas Aquinas, Summa theologica, ii.-ii. 154. 2.]

Moral ideas concerning unchastity have also been influenced by the close association which exists in a refined mind between the sexual impulse and a sentiment of affection which lasts long after the gratification of the bodily desire. We find the germ of this feeling in the abhorrence with which prostitution is regarded by savage tribes who have no objection to ordinary sexual intercourse previous to marriage,[113] and in the distinction which among ourselves is drawn between the prostitute and the woman {440} who yields to temptation because she loves. To indulge in mere sexual pleasure, unaccompanied by higher feelings, appears brutal and disgusting in the case of a man, and still more so in the case of a woman. After all, love is generally only an episode in a man's life, whereas for a woman it is the whole of her life.[114] The Greek orator said that in the moment when a woman loses her chastity her mind is changed.[115] On the other hand, when a man and a woman, tied to each other by deep and genuine affection, decide to live together as husband and wife, though not joined in legal wedlock, the censure which public opinion passes upon their conduct seems to an unprejudiced mind justifiable at most only in so far as it may be considered to have been their duty to comply with the laws of their country and to submit to a rule of some social importance.

[Footnote 113: E.g., the Chittagong Hill tribes (Lewin, Wild Races of South-Eastern India, p. 348). Cf. Westermarck, op. cit. p. 70 sq.]

[Footnote 114: Cf. Simmel, Einleitung in die Moralwissenschaft, i. 201; Paulsen, System der Ethik, ii. 274.]

[Footnote 115: Lysias, quoted by Schmidt, Die Ethik der alten Griechen, i. 273.]

Sexual intercourse between unmarried persons of opposite sex is thus regarded as wrong from different points of view under different conditions, social or psychical, and all of these conditions are not in any considerable degree combined at any special stage of civilisation. Sometimes the opinions on the subject are greatly influenced by the institution of marriage by purchase, sometimes they are influenced by the refinement of love; and between such causes there can be no co-operation. This is one reason for the singular complexity which characterises the evolution of the duty of chastity; but there is another reason perhaps even more important. The causes to which this duty may be traced are frequently checked by circumstances operating in an opposite direction. Thus the preference which a man is naturally disposed to give to a virgin bride may be overcome by his desire for offspring, inducing him to marry a woman who has proved capable of gratifying this desire.[116] It may also be ineffective for the simple reason that no virgin bride is to be found. Nothing has more generally prevented chastity {441} from being recognised as a duty than social conditions promoting licentious habits. Even in savage society, where almost every man and every woman marry and most of them marry early in life, there are always a great number of unmarried people of both sexes above the age of puberty; and, generally speaking, the number of the unmarried increases along with the progress of civilisation. This state of things easily leads to incontinence in men and women, and where such incontinence becomes habitual it can hardly incur much censure. Again, where the general standard of female chastity is high, the standard of male chastity may nevertheless be the lowest possible. This is the case where there is a class of women who can no longer be dishonoured, because they have already been dishonoured, whose virtue is of no value either to themselves or their families because they have lost their virtue, and who make incontinence their livelihood. Prostitution, being a safeguard of female chastity, has facilitated the enforcement of the rule which enjoins it as a duty, but at the same time it has increased the inequality of obligations imposed on men and women. It has begun to exercise this influence already at the lower stages of culture. Prostitution is by no means unknown in

the savage world.[117] It is a recognised institution in many of the Melanesian islands; "at Santa Cruz," says Dr. Codrington, "where the separation of the sexes is so carefully maintained, there are certainly public courtesans."[118] Prostitution prevails in many or most Negro countries;[119] and so favourably, we are told, is this institution sometimes regarded, that rich Negro ladies on their death-beds buy female slaves and present them to the public, "in the same manner as in England they would have left a legacy to some public charity."[120] The Wanyoro even have a {442} definite system of prostitution, governed by stringent laws which seem to be very old.[121] In Greenland, where it was "reckoned the greatest of infamies" for an unmarried woman to become pregnant, [122] there were professional harlots already in early times;[123] and the same was the case among many of the North American Indians.[124] Thus among the Omahas extra-matrimonial intercourse is, as a rule, practised only with public women, called minckeda; and "so strict are the Omahas about these matters, that a young girl or even a married woman walking or riding alone, would be ruined in character, being liable to be taken for a minckeda, and addressed as such."[125] Public prostitution was tolerated, if not encouraged, among all the Maya nations, whilst intercourse with other unmarried women was punished with a fine or, if the affronted relatives insisted, with death. [126] "In order to avoid greater evils," the Incas of Peru permitted public prostitutes, who were treated with extreme contempt;[127] but, with this exception, "to be lewd with single women was capital."[128] Among all the civilised nations of the Old World prostitution has existed, and still exists, as a tolerated institution, even where legislators have endeavoured to suppress it.[129] Its prevalence in our modern society greatly increases the perplexity of public opinion in regard to sexual morality. Its victims are degraded and despised beyond description. At the same time their male customers {443} are tacitly allowed to support the trade. That the demand for a merchandise increases the production of it is in this case seldom thought of. But secrecy must be observed. In sexual matters openness is indecent, and the chief crime is to be found out.

[Footnote 116: See supra, ii. 423.]

[Footnote 117: See, e.g., Tutuila, 'Line Islanders,' in Jour. Polynesian Soc. i. 270; Powell, Wanderings in a Wild Country, p. 261 (natives of New Britain); Davis, El Gringo, p. 221 (Indians of New Mexico); Ploss-Bartels, Das Weib, i. 536, 540 sqq.]

[Footnote 118: Codrington, Melanesians, p. 234 sqq.]

[Footnote 119: Emin Pasha in Central Africa, p. 88.]

[Footnote 120: Reade, Savage Africa, p. 547 sq.]

[Footnote 121: Emin Pasha in Central Africa, p. 87. Wilson and Felkin, Uganda, ii. 49.]

[Footnote 122: Egede, Description of Greenland, p. 141.]

[Footnote 123: Cranz, History of Greenland, i. 176.]

[Footnote 124: Carver, Travels through the Interior Parts of North America, p. 375.]

[Footnote 125: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 365.]

[Footnote 126: Bancroft, Native Races of the Pacific States, ii. 676, 659.]

[Footnote 127: Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, i. 321 sq.]

[Footnote 128: Herrera, General History of the West Indies, iv. 340.]

[Footnote 129: Dufour, Histoire de la prostitution, passim. Doolittle, Social Life of the Chinese, i. 348. Wilkins, Modern Hinduism, p. 412. Polak, 'Die Prostitution in Persien,' in Wiener Medizinische Wochenschrift, xi. 516, 517, 563 sqq. Lane, Modern Egyptians, i. 150. Weinhold, Altnordisches Leben, p. 259 (ancient Scandinavians). Desmaze, Les pénalités anciennes, p. 61 sq. n. 4; Mackintosh, History of Civilisation in Scotland, i. 428 (Middle Ages); &c. Since the thirteenth century even the Church tolerated the

establishment of brothels in the larger cities (Müller, Das sexuelle Leben der christlichen Kulturvölker, p. 149).]

There is, moreover, a form of religious prostitution, just as there is religious celibacy. In fact, the two customs are sometimes very closely connected with one another. Among the E[(w]e-speaking peoples of the Slave Coast the chief business of the female kosi, or wife of the god to whom she is dedicated, is prostitution. "In every town there is at least one institution in which the best-looking girls, between ten and twelve years of age, are received. Here they remain for three years, learning the chants and dances peculiar to the worship of the gods, and prostituting themselves to the priests and the inmates of the male seminaries; and at the termination of their novitiate they become public prostitutes. This condition, however, is not regarded as one for reproach; they are considered to be married to the god, and their excesses are supposed to be caused and directed by him. Properly speaking, their libertinage should be confined to the male worshippers at the temple of the god, but practically it is indiscriminate. Children who are born from such unions belong to the god."[130] So also the priestesses on the Gold Coast, though not allowed to marry, are by no means debarred from sexual intercourse. They "are ordinarily most licentious, and custom allows them to gratify their passions with any man who may chance to take their fancy. A priestess who is favourably impressed by a man sends for him to her house, and this command he is sure to obey, through fear of the consequences of exciting her anger. She then tells him that the god she serves has directed her to love him, and the man thereupon lives with her until she grows tired of him, or a new object takes her fancy. Some priestesses have as many as half a dozen men in their train at one time, and may on great occasions be seen walking {444} in state, followed by them. Their life is one continual record of debauchery and sensuality, and when excited by the dance they frequently abandon themselves to the wildest excesses."[131] It seems that the "wife" of the Egyptian god at Thebes also in time became a libertine; Strabo tells us that the beautiful woman who was dedicated to him had sexual intercourse with any man she chose "till the natural purification of her body took place," after which she was given to a man.[132] In India every Hindu temple of any importance has its dancing girls, whose position is inferior only to that of the sacrificers.[133] Thus at J[)u]g[)u]nnat'h[)u]-ksh[)u]tr[)u] in Orissa a number of women of infamous character are employed to dance and sing before the god. They live in separate houses, not at the temple. The Brahmins who officiate there continually have adulterous connections with them, and these women also prostitute themselves to visitors.[134] In the Canaanitish cults there were women, called [k.]ed[=e]sh[=o]th, who were consecrated to the deity with whose temple they were associated, and who at the same time acted as prostitutes.[135] At the local shrines of North Israel the worship of Yahveh itself was deeply affected by these practices;[136] but they were forbidden in the Deuteronomic code.[137] Perhaps this temple prostitution may be accounted for by a belief that it bestowed blessings upon the worshippers. According to notions which prevail to this day in countries with Semitic culture, sexual intercourse with a holy person is regarded as beneficial to him or her who indulges in it.[138]

[Footnote 130: Ellis, E[(w]e-speaking Peoples, p. 141.]

[Footnote 131: Ellis, Tshi-speaking Peoples, p. 121 sq.]

[Footnote 132: Strabo, Geographica, xvii. i. 46. Cf. Wiedemann, Herodots zweites Buch, p. 269.]

[Footnote 133: Warneck, quoted by Ploss-Bartels, op. cit. i. 534.]

[Footnote 134: Ward, View of the History, &c. of the Hindoos, ii. 134.]

[Footnote 135: Driver, Commentary on Deuteronomy, p. 264. Cheyne, 'Harlot,' in Cheyne and Black, Encyclopædia Biblica, ii. 1965.]

[Footnote 136: Hosea, iv. 14. Cf. Cheyne, in Encyclopædia Biblica, ii. 1965.]

[Footnote 137: Deuteronomy, xxiii. 17 sq.]

[Footnote 138: See Westermarck, The Moorish Conception of Holiness (Baraka), p. 85.]

Of a somewhat different character was the religious prostitution which prevailed in ancient Babylonia, in connection with the worship of Ishtar. Herodotus says that every woman born in that country was obliged once in her {445} life to go and sit down in the precinct of Aphrodite, and there consort with a stranger. A woman who had once taken her seat was not allowed to return home till one of the strangers threw a silver coin into her lap, and took her with him beyond the holy ground. The silver coin could not be refused because, since once thrown, it was sacred. The woman went with the first man who threw her money, rejecting no one. When she had gone with him, and so satisfied the goddess, she returned home, and from that time forth no gift, however great, would prevail with her.[139] Several allusions in cuneiform literature to the sacred prostitution carried on at Babylonian temples confirm Herodotus' statement in general.[140] A cult very similar to this was also found in certain parts of the island of Cyprus,[141] at Heliopolis in Syria,[142] and at Byblus.[143] In the worship of Anaitis the Armenians even of the highest families prostituted their own daughters at least once in their lives, nor was this regarded as any bar to an honourable marriage afterwards.[144] Although such practices were generally excluded from the ordinary Greek worships of Aphrodite, unchastity in the temple cult of that goddess is reported to have occurred at Corinth[145] and in the city of the Locri Epizephyrii, who, according to the story, vowed to consecrate their daughters to this service in order to gain the goddess's aid in a war.[146]

[Footnote 139: Herodotus, i. 199.]

[Footnote 140: Jeremias, Izdubar-Nimrod, p. 59 sq. Jastrow, Religion of Babylonia and Assyria, p. 475 sq. Mürdter-Delitzsch, Geschichte Babyloniens, p. 41.]

[Footnote 141: Herodotus, i. 199. Athenæus, Deipnosophistæ, xii. 11, p. 516 a.]

[Footnote 142: Socrates, Historia ecclesiastica, 18 (Migne, op. cit. Ser. Græca, lxvii. 123). Sozomen, Historia ecclesiastica, v. 10 (Migne, Ser. Græca, lxvii. 1243). Eusebius, Vita Constantini, iii. 58 (Migne, Ser. Græca, xx. 1124).]

[Footnote 143: Lucian, De Syria Dea, 6.]

[Footnote 144: Strabo, xi. 14. 16.]

[Footnote 145: Ibid. viii. 6. 20.]

[Footnote 146: Farnell, Cults of the Greek States, ii. 636. Athenæus, xii. 11, p. 516 a.]

Various theories have been set forth to explain the religious prostitution of the Babylonian type. It has been interpreted as an expiation for individual marriage, as a temporary recognition of pre-existing communal rights at a time when "communal marriage" in the full sense of the term had already ceased to exist.[147] It {446} has been supposed to be nothing but ordinary immorality practised under the cloak of religion.[148] It has been represented as a form of sacrifice, either as a first-fruit offering[149] or as an act by which a worshipper sacrifices her most precious possession to the deity.[150] To Dr. Farnell it seems to be "a special modification of a wide-spread custom, the custom of destroying virginity before marriage so that the bridegroom's intercourse should be safe from a peril that is much dreaded by men in a certain stage of culture; and here, as in other ritual," he adds, "it is the stranger that takes the peril upon himself."[151] But why should the stranger have been more willing than the bridegroom to expose

himself to this danger? Considering that the act was performed at the temple of the goddess of fecundity, I think its object most probably was to ensure fertility in the woman; this, in fact, is directly indicated by the words which the stranger, according to Herodotus, uttered when he threw the silver coin into her lap:--"The goddess Mylitta prosper thee!"[152] And from what has been said in a previous chapter about the semi-supernatural character ascribed to strangers, about the efficacy of their blessings and the benefits expected from their love,[153] we can see why a stranger was appointed to confer the blessing upon the girl.[154]

[Footnote 147: Avebury, Origin of Civilisation, p. 559.]

[Footnote 148: Jeremias, Izdubar-Nimrod, p. 60.]

[Footnote 149: Wiedemann, Herodots zweites Buch, p. 267 sq.]

[Footnote 150: Curtiss, Primitive Semitic Religion To-day, p. 155.]

[Footnote 151: Farnell, 'Sociological Hypotheses concerning the Position of Women in Ancient Religion,' in Archiv f. Religionswiss. vii. 88.]

[Footnote 152: Herodotus, i. 199.]

[Footnote 153: Supra, i. ch. xxiv.]

[Footnote 154: Since the present chapter was in type, some fresh attempts have been made to explain this religious prostitution. Sir J. G. Frazer (Adonis Attis Osiris, p. 23 sq.) regards it as a rite intended to ensure the fruitfulness of the ground and the increase of man and beast on the principle of hom[oe]opathic magic. A very similar opinion has been expressed by Dr. Havelock Ellis ('Ursprung und Entwicklung der Prostitution,' in Mutterschutz, iii. fasc. 1 sq.). According to Mr. Hartland, again ('Concerning the Rite at the Temple of Mylitta,' in Anthropological Essays presented to E. B. Tylor, p. 189 sqq.), it was a puberty rite involving a sacrifice of virginity to which every woman was subjected. [My own theory has subsequently been accepted by van Gennep, Les rites de passage, p. 242 sq.]]

Among ourselves an act of incontinence assumes a {447} different aspect if one of the parties, either the man or the woman, is married. Involving a breach of faith, adultery is an offence against him or her to whom faith is due, and at the same time the seducer commits an offence against the husband of the adulteress. But here again our own views are not universally shared.

Although it is hard to understand that the seducer could ever be regarded as guiltless, we are told that among a few peoples adultery is not held to be wrong;[155] and Mr. Morgan states that among the Iroquois "punishment was inflicted upon the woman alone, who was supposed to be the only offender."[156] But these cases are certainly quite exceptional. In a savage tribe a seducer may be thankful if he escapes by paying to the injured husband the value of the bride or some other fine, or if the penalty is reduced to a flogging, to his head being shaved, his ears cut off, one of his eyes destroyed, or his legs speared. Very commonly he has to pay with his life. We have seen that even among many peoples who generally prohibit self-redress an adulterer may be put to death by the aggrieved husband, especially if he be caught flagrante delicto;[157] and in other cases he may be subject to capital punishment, in the proper sense of the word.[158] In Albania, even in our days, custom not only allows, but compels, the injured husband to kill the adulterer.[159] Hebrew law enjoined the man who committed adultery with another man's wife to be put to death;[160] and Christian legislators followed the example. Constantine celebrated his new zeal for the sacramental idea of marriage by establishing the punishment of death for the seducer;[161] adultery was in point of {448} heinousness assimilated to murder, idolatry, and sorcery.[162] Various mediæval law-books punished the seducer with death;[163] whilst in Scotland notorious and manifest

adultery was made capital as late as 1563.[164] This extreme severity, however, has been followed by extreme leniency. In Scotland, though adultery kept its place in the statute-book as a heinous and in some cases a capital crime, prosecution for it had ceased for many years before the time of Baron Hume;[165] and in England it is no crime at all in the eyes of the law, only an ecclesiastical offence.

[Footnote 155: Davis, El Gringo, p. 221 sq. (Indians of New Mexico). Adair, History of the American Indians, p. 146 (Cherokees). Krasheninnikoff, History of Kamschatka, p. 204. Prejevalsky, Mongolia, i. 70 (Mongols). Colquhoun, Amongst the Shans, p. 75 (Yendalines, one of the Karen tribes). Chanler, op. cit. p. 317 (Rendile in Eastern Africa). Lichtenstein, Travels in Southern Africa, ii. 48 (Bushmans).]

[Footnote 156: Morgan, League of the Iroquois, p. 331.]

[Footnote 157: Supra, i. 290 sqq.]

[Footnote 158: Supra, i. 189.]

[Footnote 159: Hahn, Albanesische Studien, i. 177.]

[Footnote 160: Leviticus, xx. 10. Deuteronomy, xxii. 22.]

[Footnote 161: Codex Justinianus, ix. 9. 29. 4.]

[Footnote 162: Codex Theodosianus, xi. 36. i. St. Basil, quoted by Bingham, Works, vi. 432 sq.]

[Footnote 163: Du Boys, Histoire du droit criminel des peuples modernes, ii. 606. Idem, Histoire du droit criminel de l'Espagne, p. 391.]

[Footnote 164: Erskine-Rankine, Principles of the Law of Scotland, p. 563.]

[Footnote 165: Hume, Commentaries on the Law of Scotland, ii. 302.]

The punishment of the seducer often varies according to his rank, or according to that of the husband, or according to the relative rank of both, or according to the rank of the adulteress. Among the Monbuttu, if the guilty woman belongs to the royal household, the adulterer is put to death, whereas otherwise he is only compelled to pay an indemnity to the offended husband.[166] Among the E[(w]e-speaking peoples of the Slave Coast the fine imposed for adultery depends on the rank of the injured husband;[167] and the same principle is found in Anglo-Saxon law.[168] Among the Bakongo, again, the penalties for adultery "vary from capital punishment to a trifling fine, according to the station of the offender or the district he lives in."[169] Drury tells us that in the country of Anterndroea in Madagascar, "if a man lies with another man's wife who is superior to him, he forfeits thirty head of cattle besides beads and shovels a great number," whereas "if the men are of an equal rank, then twenty beasts are the fine."[170] According to the Chinese Penal Code, a slave who is guilty of criminal intercourse with the wife or daughter of a freeman, shall be punished at the least one degree more {449} severely than a freeman would have been under the same circumstances.[171] In India a man of one of the first three castes who committed adultery with a Sûdra woman was banished, but a Sûdra who committed adultery with a woman of one of the first three castes suffered capital punishment;[172] and an opinion is also quoted that for a Brâhmana who once was guilty of adultery with a married woman of equal class, the penance was one-fourth of that prescribed for an outcast.[173] In ancient Peru "an adulterer was punish'd with death, if the woman was of note, or else with the rack."[174]

[Footnote 166: Casati, Ten Years in Equatoria, i. 163.]

[Footnote 167: Ellis, E[(w]e-speaking Peoples, p. 202.]

[Footnote 168: Laws of Alfred, ii. 10.]

[Footnote 169: Johnston, River Congo, p. 404.]

[Footnote 170: Drury, Journal, p. 183.]

[Footnote 171: Ta Tsing Leu Lee, sec. ccclxxiii. p. 409.]

[Footnote 172: Âpastamba, ii. 10. 27. 8 sq.]

[Footnote 173: Ibid. ii. 10. 27. 11.]

[Footnote 174: Herrera, op. cit. iv. 338.]

We find no difficulty in explaining all these facts. In early civilisation a husband has often extreme rights over his wife. The seducer encroaches upon a right of which he is most jealous, and with regard to which his passions are most easily inflamed. Adultery is regarded as an illegitimate appropriation of the exclusive claims which the husband has acquired by the purchase of his wife, as an offence against property.[175] It is said in the 'Laws of Manu' that "seed must not be sown by any man on that which belongs to another."[176] How closely the seducer is associated with a thief is illustrated by the fact that among some peoples he is punished as such, having his hands, or one of them, cut off.[177] Yet even among savages the offence is something more than a mere infringement of the right of ownership. The Kurile Islanders, says Krasheninnikoff, have an extraordinary way of punishing adultery: the husband of the adulteress challenges the adulterer to a combat. The result is generally the death of both the combatants; but it is held to be "as great dishonour to refuse this combat as to refuse an invitation to a duel among the people of Europe."[178] The passion of jealousy, the feeling of ownership, and the sense of honour, {450} thus combine to make the seducer's act an offence, and often a heinous offence, in the eyes of custom or law; and for the same reasons as in other offences the magnitude of guilt is here also influenced by the rank of the parties concerned. Modern legislation, on the other hand, does not to the same extent as early law and custom allow a man to give free vent to his angry passion; it regards the dishonour of the aggrieved husband as a matter of too private a character to be publicly avenged; and the faithfulness which a wife owes her husband is no longer connected with any idea of ownership. Moreover, the severity of earlier European laws against adultery was closely connected with Christianity's abhorrence of all kinds of irregular sexual intercourse; and secular legislation has more and more freed itself from the bondage of religious doctrine.

[Footnote 175: See, e.g., Casalis, Basutos, p. 225; Burton, Two Trips to Gorilla Land, i. 77; Monrad, Skildring af Guinea-Kysten, p. 5; Letourneau, L'évolution de la morale, p. 154 sq.]

[Footnote 176: Laws of Manu, ix. 42.]

[Footnote 177: Westermarck, History of Human Marriage, p. 130.]

[Footnote 178: Krasheninnikoff, History of Kamschatka, p. 238.]

Among some savage peoples it is the seducer only who suffers, whilst the unfaithful wife escapes without punishment.[179] Jealousy, in the first place, turns against the rival, and the seducer is the dishonourer and the thief. But, as a general rule, the unfaithful wife is also looked upon as an offender, and the punishment falls on both. She is discarded, beaten, or ill-treated in some way or other, and not infrequently she is killed. Often, too, she is disfigured by her enraged husband, so that no man may fall in love with her ever after.[180] Indeed, so strong is the idea that a wife belongs exclusively to her husband, that among several peoples she has to die with him;[181] and frequently a widow is prohibited from remarrying either for ever or for a certain period after the husband's death.[182] In ancient Peru widows generally continued to live single, as "this virtue was much commended in their laws and ordinances."[183] Nor is it in China considered proper {451} for a woman to contract a second marriage after her husband's death, and a lady of rank, by doing so, exposes herself to a penalty of eighty blows.[184] "As a faithful minister does not serve two lords, neither may a

faithful woman marry a second husband"--this is to the Chinese a principle of life, a maxim generally received as gospel.[185] Among so-called Aryan peoples the ancient custom which ordained sacrifice of widows survived in the prohibitions issued against their marrying a second time.[186] Even now the bare mention of a second marriage for a Hindu woman would be considered the greatest of insults, and, if she married again, "she would be hunted out of society, and no decent person would venture at any time to have the slightest intercourse with her."[187] In Greece[188] and Rome[189] a widow's remarriage was regarded as an insult to her former husband; and so it is still regarded among the Southern Slavs.[190] The early Christians, especially the Montanists and Novatians, strongly disapproved of second marriages by persons of either sex;[191] a second marriage was described by them as a "kind of fornication,"[192] or as a "specious adultery."[193] It was looked upon as a manifest sign of incontinence, and also as inconsistent with the doctrine that marriage is an emblem of the union of Christ with the Church.[194]

[Footnote 179: Westermarck, op. cit. p. 122. Macpherson, Memorials of Service in India, p. 133 (Kandhs). Batchelor, Ainu of Japan, p. 189 sq. Scaramucci and Giglioli, 'Notizie sui Danakil,' in Archivio per l'antropologia e la etnologia, xiv. 26.]

[Footnote 180: Westermarck, op. cit. p. 122.]

[Footnote 181: Ibid. p. 125 sq. Supra, i. 472 sqq.]

[Footnote 182: Westermarck, History of Human Marriage, p. 127 sqq.]

[Footnote 183: Garcilasso de la Vega, op. cit. i. 305.]

[Footnote 184: Gray, China, i. 215.]

[Footnote 185: de Groot, Religious System of China, (vol. ii. book) i. 745.]

[Footnote 186: Schrader, Prehistoric Antiquities of the Aryan Peoples, p. 391.]

[Footnote 187: Dubois, People of India, p. 132.]

[Footnote 188: Pausanias, ii. 21. 7.]

[Footnote 189: Rossbach, Römische Ehe, p. 262.]

[Footnote 190: Krauss, Sitte und Brauch der Südslaven, p. 578. Cf. Ralston, Songs of the Russian People, p. 115 (Bulgarians).]

[Footnote 191: Mayer, Die Rechte der Israeliten, Athener und Römer, ii. 290. Bingham, op. cit. vi. 427 sq.; viii. 13 sq.]

[Footnote 192: Tertullian, De exhortatione castitatis, 9 (Migne, Patrologiæ cursus, ii. 924).]

[Footnote 193: Athenagoras, Legatio pro Christianis, 33 (Migne, op. cit. Ser. Graeca, vi. 967).]

[Footnote 194: Gibbon, History of the Decline and Fall of the Roman Empire, ii. 187. Lecky, History of European Morals, ii. 326.]

Conjugal fidelity, whilst considered a stringent duty in the wife, is not generally considered so in the husband. This is obviously the rule among savage and barbarous tribes; but there are interesting exceptions to the rule. The Igorrotes of Luzon are so strictly monogamous that {452} in case of adultery the guilty party can be compelled to leave the hut and the family for ever,[195] and among various other monogamous savages adultery is said to be unknown.[196] The Dyak husband "preserves his vow of fidelity with a rectitude which makes jealousy a farce."[197] The Toungtha, who marry only one wife, do not consider it right for a master to take advantage of his position even with regard to the female slaves in his house.[198] Nay, the duty of fidelity in the husband has been recognised even by some savage peoples who allow polygamy. The Abipones, we are told, thought it both wicked and disgraceful to have any illicit intercourse with other women than their wives; hence adultery was almost unheard

of among them.[199] Among the Omaha Indians, "if a woman's husband be guilty of adultery with another woman she may strike him or the guilty female in her anger," though she cannot claim damages.[200] In several tribes of Western Victoria a wife whose husband has been unfaithful to her "may make a complaint to the chief, who can punish the man by sending him away from his tribe for two or three moons";[201] and among some aborigines in New South Wales similar complaints may be made to the elders of the tribe, with the result that the adulterous husband may have to suffer for his conduct.[202] The Kandhs of India deny the married man certain prerogatives which are granted to his wife: whilst constancy to her husband is so far from being required in a wife, "that her pretensions do not, at least, suffer diminution in the eyes of either sex when fines are levied on her convicted lovers," infidelity in a married man is held to be highly dishonourable, and {453} is often punished with deprivation of many social privileges.[203]

[Footnote 195: Meyer, in Verhandl. Berliner Gesellsch. f. Anthrop. 1883, p. 385.]

[Footnote 196: Bailey, in Trans. Ethn. Soc. N. S. ii. 291 sq. Hartshorne, in Indian Antiquary, viii. 320 (Veddahs). Finsch, Neu-Guinea, p. 101; Earl, Papuans, p. 81 (Papuans of Dorey).]

[Footnote 197: Boyle, Adventures among the Dyaks of Borneo, p. 236. See also Low, Sarawak, p. 300 (Hill Dyaks).]

[Footnote 198: Lewin, Wild Races of South-Eastern India, p. 193 sq.]

[Footnote 199: Dobrizhoffer, Account of the Abipones, ii. 138.]

[Footnote 200: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 364.]

[Footnote 201: Dawson, Australian Aborigines, p. 33.]

[Footnote 202: Nieboer, Slavery as an Industrial System, p. 18.]

[Footnote 203: Macpherson, Memorials of Service in India, p. 133.]

The duty which savages thus in certain instances have imposed on the husband is hardly at all recognised in the archaic State. The Mexicans "did not consider, nor did they punish, as adultery the trespass of a husband with any woman who was free, or not joined in matrimony; wherefore the husband was not bound to so much fidelity as was exacted from the wife," adultery in her being inevitably punished with death.[204] In China, where adultery in a woman is branded as one of the vilest crimes and the guilty wife is oftentimes "cut into small pieces," concubinage is a recognised institution of the country.[205] In Corea "conjugal fidelity--obligatory on the woman--is not required of the husband. . . . Among the nobles, the young bridegroom spends three or four days with his bride, and then absents himself from her for a considerable time, to prove that he does not esteem her too highly. Etiquette dooms her to a species of widowhood, while he spends his hours of relaxation in the society of his concubines. To act otherwise would be considered in very bad taste, and highly unfashionable."[206] In Japan, "while the man is allowed a loose foot, the woman is expected not only to be absolutely spotless, but also never to show any jealousy, however wide the husband may roam, or however numerous may be the concubines in his family."[207] According to Hebrew law adultery was a capital offence, but it presupposed that the guilty woman was another man's wife.[208] The "Aryan" nations in early times generally saw nothing objectionable in the unfaithfulness of a married man, whereas an adulterous wife was subject to the severest penalties.[209] Until some time after the introduction of Christianity among the Teutons their {454} law-books made no mention of the infidelity of husbands, because it was permitted by custom.[210] The Romans defined adultery as sexual intercourse with another man's wife; on the other hand, the intercourse of a married man with an unmarried woman was not regarded as adultery.[211] The ordi-

nary Greek feeling on the subject is expressed in the oration against Neæra, ascribed to Demosthenes, where the licence accorded to husbands is spoken of as a matter of course:--"We keep mistresses for our pleasures, concubines for constant attendance, and wives to bear us legitimate children and to be our faithful house-keepers."[212]

[Footnote 204: Clavigero, History of Mexico, i. 356.]

[Footnote 205: Doolittle, op. cit. i. 339. Griffis, Religions of Japan, p. 149.]

[Footnote 206: Griffis, Corea, p. 251 sq.]

[Footnote 207: Idem, Religions of Japan, p. 320.]

[Footnote 208: Leviticus, xx. 10. Deuteronomy, xxii. 22.]

[Footnote 209: Schrader, Prehistoric Antiquities of the Aryan Peoples, p. 388.]

[Footnote 210: Wilda, Strafrecht der Germanen, p. 821. Nordström, op. cit. ii. 67 sq. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, pp. 324, 633. Keyser, Efterladte Skrifter, vol. ii. pt. ii. 32 sq. Brunner, Deutsche Rechtsgeschichte, ii. 662.]

[Footnote 211: Vinnius, In quatuor libros institutionum imperialium commentarius, iv. 18. 4, p. 993. Cf. Digesta, l. 16. 101. 1; Mommsen, Römisches Strafrecht, p. 688 sq.]

[Footnote 212: Oratio in Neæram, p. 1386. Cf. Schmidt, Die Ethik der alten Griechen, ii. 196 sq.]

At the same time the idea that fidelity in marriage ought to be reciprocal was not altogether unknown in classical antiquity.[213] In a lost chapter of his 'Economics,' which has come to us only through a Latin translation, Aristotle points out that it for various reasons is prudent for a man to be faithful to his wife, but that nothing is so peculiarly the property of a wife as a chaste and hallowed intercourse.[214] Plutarch condemns the man who, lustful and dissolute, goes astray with a courtesan or maid-servant; though at the same time he admonishes the wife not to be vexed or impatient, considering that "it is out of respect to her that he bestows upon another all his wanton depravity."[215] Plautus argues that it is unjust of a husband to exact a fidelity which he does not keep himself.[216]

[Footnote 213: Lecky, op. cit. ii. 312 sq. Schmidt, op. cit. ii. 195 sq.]

[Footnote 214: Aristotle, [OE]conomica, p. 341, vol. ii. 679. Cf. Isocrates, Nicocles sive Cyprii, 40.]

[Footnote 215: Plutarch, Conjugalia præcepta, 16.]

[Footnote 216: Plautus, Mercator, iv. 5.]

In its condemnation of adultery Christianity made no distinction between husband and wife.[217] If continence is a stringent duty for unmarried persons independently of {455} their sex, the observance of the sacred marriage vow must be so in a still higher degree. But here again there is a considerable discrepancy between the actual feelings of Christian peoples and the standard of their religion. Even in the laws of various European countries relating to divorce or judicial separation we find an echo of the popular notion that adultery is a smaller offence in a husband than in a wife.[218]

[Footnote 217: Laurent, op. cit. iv. 114. Gratian, Decretum, ii. 35. 5. 23.]

[Footnote 218: See supra, ii. 397.]

The judgment pronounced upon an unfaithful husband is of course influenced by the opinion about extra-matrimonial connections in general. Where it is considered wrong for a man to have intercourse with either an unmarried woman or another man's wife, adultery in a husband is eo ipso condemned. But whether, or how far, infidelity on his part is stigmatised as an offence against his wife, chiefly depends upon the degree of regard which is paid to the feelings of women. That a married man generally enjoys more liberty than a married woman is largely due to the same causes as make him the more privileged partner in other respects; but there are also special reasons for this

inequality between the sexes. It was a doctrine of the Roman jurists that adultery is a crime in the wife, and in the wife only, on account of the danger of introducing strange children to the husband.[219] Moreover, the temptation to infidelity and the facility in indulging in it are commonly greater in the case of the husband than in that of the wife; and, as we have often noticed before, actual practice is always apt to influence moral opinion. And a still more important reason for the inequality in question is undoubtedly the general notion that unchastity of any kind is more discreditable for a woman than for a man.

[Footnote 219: Hunter, Exposition of Roman Law, p. 1071.]

Chapter XLIII — Homosexual Love

OUR review of the moral ideas concerning sexual relations has not yet come to an end. The gratification of the sexual instinct assumes forms which fall outside the ordinary pale of nature. Of these there is one which, on account of the rôle which it has played in the moral history of mankind, cannot be passed over in silence, namely, intercourse between individuals of the same sex, what is nowadays commonly called homosexual love.

It is frequently met with among the lower animals.[1] It probably occurs, at least sporadically, among every race of mankind.[2] And among some peoples it has assumed such proportions as to form a true national habit.

[Footnote 1: Karsch, 'Päderastie und Tribadie bei den Tieren,' in Jahrbuch für sexuelle Zwischenstufen, ii. 126 sqq. Havelock Ellis, Studies in the Psychology of Sex, 'Sexual Inversion,' p. 2 sqq.]

[Footnote 2: Ives, Classification of Crimes, p. 49. The statement that it is unknown among a certain people cannot reasonably mean that it may not be practised in secret.]

In America homosexual customs have been observed among a great number of the native tribes. In nearly every part of the continent there seem to have been, since ancient times, men dressing themselves in the clothes and performing the functions of women, and living with other men as their concubines or wives.[3] Moreover, between {457} young men who are comrades in arms there are liaisons d'amitié, which, according to Lafitau, "ne laissent aucun soupçon de vice apparent, quoiqu'il y ait, ou qu'il puisse y avoir, beaucoup de vice réel."[4]

[Footnote 3: von Spix and von Martius, Travels in Brazil, ii. 246; von Martius, Von dem Rechtszustande unter den Ureinwohnern Brasiliens, p. 27 sq.; Lomonaco, 'Sulle razze indigene del Brasile,' in Archivio per l'antropologia e la etnologia, xix. 46; Burton, Arabian Nights, x. 246 (Brazilian Indians). Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, ii. 441 sqq.; Cieza de Leon, 'La crónica del Perú [primera parte],' ch. 49, in Biblioteca de autores españoles, xxvi. 403 (Peruvian Indians at the time of the Spanish conquest). Oviedo y Valdés, 'Sumario de la natural historia de las Indias,' ch. 81, in Biblioteca de autores españoles, xxii. 508 (Isthmians). Bancroft, Native Races of the Pacific States, i. 585 (Indians of New Mexico); ii. 467 sq. (ancient Mexicans). Diaz del Castillo, 'Conquista de Nueva-España,' ch. 208, in Biblioteca de autores españoles, xxvi. 309 (ancient Mexicans). Landa, Relacion de las cosas de Yucatan, p. 178 (ancient Yucatans). Nuñez Cabeza de Vaca, 'Naufragios y relacion de la jornada que hizo a la Florida,' ch. 26, in Biblioteca de autores españoles, xxii. 538; Coreal, Voyages aux Indes Occidentales, i. 33 sq. (Indians of Florida). Perrin du Lac, Voyage dans les deux

Louisianes et chez les nations sauvages du Missouri, p. 352; Bossu, Travels through Louisiana, i. 303. Hennepin, Nouvelle Découverte d'un très Grand Pays Situé dans l'Amerique, p. 219 sq.; 'La Salle's Last Expedition and Discoveries in North America,' in Collections of the New-York Historical Society, ii. 237 sq.; de Lahontan, Mémoires de l'Amérique septentrionale, p. 142 (Illinois). Marquette, Recit des voyages, p. 52 sq. (Illinois and Naudowessies). Wied-Neuwied, Travels in the Interior of North America, p. 351 (Manitaries, Mandans, &c.). McCoy, History of Baptist Indian Missions, p. 360 sq. (Osages). Heriot, Travels through the Canadas, p. 278; Catlin, North American Indians, ii. 214 sq. (Sioux). Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 365; James, Expedition from Pittsburgh to the Rocky Mountains, i. 267 (Omahas). Loskiel, History of the Mission of the United Brethren among the Indians, 1.14 (Iroquois). Richardson, Arctic Searching Expedition, ii. 42 (Crees). Oswald, quoted by Bastian, Der Mensch in der Geschichte, iii. 314 (Indians of California). Holder, in New York Medical Journal, December 7th, 1889, quoted by Havelock Ellis, op. cit. p. 9 sq. (Indians of Washington and other tribes in the North-Western United States). See also Karsch, 'Uranismus oder Päderastie und Tribadie bei den Naturvölkern,' in Jahrbuch für sexuelle Zwischenstufen, iii. 112 sqq.]

[Footnote 4: Lafitau, Moeurs des sauvages ameriquains, i. 603, 607 sqq.]

Homosexual practices are, or have been, very prominent among the peoples in the neighbourhood of Behring Sea.[5] In Kadiak it was the custom for parents who had a girl-like son to dress and rear him as a girl, teaching him only domestic duties, keeping him at woman's work, and letting him associate only with women and girls. Arriving at the age of ten or fifteen years, he was married to some wealthy man and was then called an achnuchik or shoopan.[6] Dr. Bogoraz gives the following account of a {458} similar practice prevalent among the Chukchi:--"It happens frequently that, under the supernatural influence of one of their shamans, or priests, a Chukchi lad at sixteen years of age will suddenly relinquish his sex and imagine himself to be a woman. He adopts a woman's attire, lets his hair grow, and devotes himself altogether to female occupation. Furthermore, this disowner of his sex takes a husband into the yurt and does all the work which is usually incumbent on the wife in most unnatural and voluntary subjection. Thus it frequently happens in a yurt that the husband is a woman, while the wife is a man! These abnormal changes of sex imply the most abject immorality in the community, and appear to be strongly encouraged by the shamans, who interpret such cases as an injunction of their individual deity." The change of sex was usually accompanied by future shamanship; indeed, nearly all the shamans were former delinquents of their sex.[7] Among the Chukchi male shamans who are clothed in woman's attire and are believed to be transformed physically into women are still quite common; and traces of the change of a shaman's sex into that of a woman may be found among many other Siberian tribes.[8] In some cases at least there can be no doubt that these transformations were connected with homosexual practices. In his description of the Koriaks, Krasheninnikoff makes mention of the ke'yev, that is, men occupying the position of concubines; and he compares them with the Kamchadale koe'k[vc]u[vc], as he calls them, that is, men transformed into women. Every koe'k[vc]u[vc], he says, is regarded as a magician and interpreter of dreams; but from his confused description Mr. Jochelson thinks it may be inferred that the most important feature of the institution of the koe'k[vc]u[vc] lay, not in their shamanistic power, but in their position with regard to the satisfaction of the {459} unnatural inclinations of the Kamchadales. The koe'k[vc]u[vc] wore women's clothes, did women's work, and were in the position of wives or concubines.[9]

[Footnote 5: Dall, Alaska, p. 402; Bancroft, op. cit. i. 92; Waitz, Anthropologie der Naturvölker, iii. 314 (Aleuts), von Langsdorf, Voyages and Travels, ii. 48 (natives of Oonalaska). Steller, Kamtschatka, p. 289, n. a; Georgi, Russia, iii. 132 sq. (Kamchadales).]

[Footnote 6: Davydow, quoted by Holmberg, 'Ethnographische Skizzen über die Völker des russischen Amerika,' in Acta Soc. Scientiarum Fennicæ, iv. 400 sq. Lisiansky, Voyage Round the World, p. 199. von Langsdorf**, op. cit. ii. 64. Sauer, Billing's Expedition to the Northern Parts of Russia, p. 176. Sarytschew, 'Voyage of Discovery to the North-East of Siberia,' in Collection of Modern and Contemporary Voyages, vi. 16.]

[Footnote 7: Bogoraz, quoted by Demidoff, Shooting Trip to Kamchatka, p. 74 sq.]

[Footnote 8: Jochelson, Koryak Religion and Myth, pp. 52, 53 n. 3.]

[Footnote 9: Jochelson, op. cit. p. 52 sq.]

In the Malay Archipelago homosexual love is common,[10] though not in all of the islands.[11] It is widely spread among the Bataks of Sumatra.[12] In Bali it is practised openly, and there are persons who make it a profession.[13] The basir of the Dyaks are men who make their living by witchcraft and debauchery. They "are dressed as women, they are made use of at idolatrous feasts and for sodomitic abominations, and many of them are formally married to other men."[14] Dr. Haddon says that he never heard of any unnatural offences in Torres Straits;[15] but in the Rigo district of British New Guinea several instances of pederasty have been met with,[16] and at Mowat in Daudai it is regularly indulged in.[17] Homosexual love is reported as common among the Marshall Islanders[18] and in Hawaii.[19] From Tahiti we hear of a set of men called by the natives mahoos, who "assume the dress, attitude, and manners, of women, and affect all the fantastic oddities and coquetries of the vainest of females. They mostly associate with the women, who court their acquaintance. With the manners of the women, they adopt their peculiar employments. . . . The encouragement of this abomination is almost solely {460} confined to the chiefs."[20] Of the New Caledonians M. Foley writes:--"La plus grande fraternité n'est pas chez eux la fraternité uterine, mais la fraternité des armes. Il en est ainsi surtout au village de Poepo. Il est vrai que cette fraternité des armes est compliquée de pédérastie."[21]

[Footnote 10: Wilken, 'Plechtigheden en gebruiken bij verlovingen en huwelijken bij de volken van den Indischen Archipel,' in Bijdragen tot de taal- land- en volkenkunde van Nederlandsch-Indië, xxxiii. (ser. v. vol. iv.) p. 457 sqq.]

[Footnote 11: Crawfurd, History of the Indian Archipelago, iii. 139. Marsden, History of Sumatra, p. 261.]

[Footnote 12: Junghuhn, Die Battaländer auf Sumatra, ii. 157, n.*]

[Footnote 13: Jacobs, Eenigen tijd onder de Baliërs, pp. 14, 134 sq.]

[Footnote 14: Hardeland, Dajacksch-deutsches Wörterbuch, p. 53 sq. Schwaner, Borneo, i. 186. Perelaer, Ethnographische beschrijving der Dajaks, p. 32.]

[Footnote 15: Haddon, 'Ethnography of the Western Tribe of Torres Straits,' in Jour. Anthr. Inst. xix. 315.]

[Footnote 16: Seligmann, 'Sexual Inversion among Primitive Races,' in The Alienist and Neurologist, xxiii. 3 sqq.]

[Footnote 17: Beardmore, 'Natives of Mowat, Daudai, New Guinea,' in Jour. Anthr. Inst. xix. 464. Haddon, ibid. xix. 315.]

[Footnote 18: Hernsheim, Beitrag zur Sprache der Marshall-Inseln, p. 40. A different opinion is expressed by Senfft, in Steinmetz, Rechtsverhältnisse von eingeborenen Völkern in Afrika und Ozeanien, p. 437.]

[Footnote 19: Remy, Ka Mooolelo Hawaii, p. xliii.]

[Footnote 20: Turnbull, Voyage Round the World, p. 382. See also Wilson, Missionary Voyage to the Southern Pacific, pp. 333, 361; Ellis, Polynesian Researches, i. 246, 258.]

[Footnote 21: Foley, 'Sur les habitations et les m[oe]urs des Néo-Calédoniens,' in Bull. Soc. d'Anthrop. Paris, ser. iii. vol. ii. 606. See also de Rochas, Nouvelle Calédonie, p. 235.]

Among the natives of the Kimberley District in West Australia, if a young man on reaching a marriageable age can find no wife, he is presented with a boy-wife, known as chookadoo. In this case, also, the ordinary exogamic rules are observed, and the "husband" has to avoid his "mother-in-law," just as if he were married to a woman. The chookadoo is a boy of five years to about ten, when he is initiated. "The relations which exist between him and his protecting billalu" says Mr. Hardman, "are somewhat doubtful. There is no doubt they have connection, but the natives repudiate with horror and disgust the idea of sodomy."[22] Such marriages are evidently exceedingly common. As the women are generally monopolised by the older and more influential men of the tribe, it is rare to find a man under thirty or forty who has a wife; hence it is the rule that, when a boy becomes five years old, he is given as a boy-wife to one of the young men.[23] According to Mr. Purcell's description of the natives of the same district, "every useless member of the tribe" gets a boy, about five or seven years old; and these boys, who are called mullawongahs, are used for sexual purposes.[24] Among the Chingalee of South Australia, Northern Territory, old men are often noticed with no wives but accompanied by one or two boys, whom they jealously guard and with whom they have sodomitic intercourse.[25] {461} That homosexual practices are not unknown among other Australian tribes may be inferred from Mr. Hewitt's statement relating to South-Eastern natives, that unnatural offences are forbidden to the novices by the old men and guardians after leaving the initiation camp.[26]

[Footnote 22: Hardman, 'Notes on some Habits and Customs of the Natives of the Kimberley District,' in Proceed. Roy. Irish Academy, ser. iii. vol. i. 74.]

[Footnote 23: Ibid. pp. 71, 73.]

[Footnote 24: Purcell, 'Rites and Customs of Australian Aborigines,' in Verhandl. Berliner Gesellsch. Anthrop. 1893, p. 287.]

[Footnote 25: Ravenscroft, 'Some Habits and Customs of the Chingalee Tribe,' in Trans. Roy. Soc. South Australia, xv. 122. I am indebted to Mr. N. W. Thomas for drawing my attention to these statements.]

[Footnote 26: Howitt, 'Some Australian Ceremonies of Initiation,' in Jour. Anthr. Inst. xiii. 450.]

In Madagascar there are certain boys who live like women and have intercourse with men, paying those men who please them.[27] In an old account of that island, dating from the seventeenth century, it is said: "Il y a . . . quelques hommes qu'ils appellent Tsecats, qui sont hommes effeminez et impuissans, qui recherchent les garçons, et font mine d'en estre amoureux, en contrefaisans les filles et se vestans ainsi qu'elles leurs font des presents pour dormir auec eux, et mesmes se donnent des noms de filles, en faisant les honteuses et les modestes. . . . Ils haïssent les femmes et ne les veulent point hanter."[28] Men behaving like women have also been observed among the Ondonga in German South-West Africa[29] and the Diakité-Sarracolese in the French Soudan,[30] but as regards their sexual habits details are wanting. Homosexual practices are common among the Banaka and Bapuku in the Cameroons.[31] But among the natives of Africa generally such practices seem to be comparatively rare,[32] except among Arabic-speaking {462} peoples and in countries like Zanzibar,[33] where there has been a strong Arab influence. In North Africa they are not restricted to the inhabitants of towns; they are frequent among the peasants of Egypt[34] and universal among the

Jbâla inhabiting the Northern mountains of Morocco. On the other hand, they are much less common or even rare among the Berbers and the nomadic Bedouins,[35] and it is reported that the Bedouins of Arabia are quite exempt from them.[36]

[Footnote 27: Lasnet, in Annales d'hygiène et de médecine coloniales, 1899, p. 494, quoted by Havelock Ellis, op. cit. p. 10. Cf. Rencurel, in Annales d'hygiène, 1900, p. 562, quoted ibid. p. 11 sq. See also Leguével de Lacombe, Voyage à Madagascar, i. 97 sq. Pederasty prevails to some extent in the island of Nossi-Bé, close to Madagascar, and is very common at Ankisimane, opposite to it, on Jassandava Bay (Walter, in Steinmetz, Rechtsverhältnisse, p. 376).]

[Footnote 28: de Flacourt, Histoire de la grande isle Madagascar, p. 86.]

[Footnote 29: Rautanen, in Steinmetz, Rechtsverhältnisse, p. 333.]

[Footnote 30: Nicole, ibid. p. 111.]

[Footnote 31: Ibid. p. 38.]

[Footnote 32: Munzinger, Ostafrikanische Studien, p. 525 (Barea and Kunáma). Baumann, 'Conträre Sexual-Erscheinungen bei der Neger-Bevölkerung Zanzibars,' in Verhandl. der Berliner Gesellsch. für Anthropologie, 1899, p. 668. Felkin, 'Notes on the Waganda Tribe of Central Africa,' in Proceed. Roy. Soc. Edinburgh, xiii. 723. Johnston, British Central Africa, p. 404 (Bakongo). Monrad, Skildring af Guinea-Kysten, p. 57 (Negroes of Accra). Torday and Joyce, 'Ethnography of the Ba-Mbala,' in Jour. Anthr. Inst. xxxv. 410. Nicole, in Steinmetz, Rechtsverhältnisse, p. 111 (Muhammedan Negroes). Tellier, ibid. p. 159 (Kreis Kita in the French Soudan). Beverley, ibid. p. 210 (Wagogo). Kraft, ibid. p. 288 (Wapokomo).]

[Footnote 33: Baumann, in Verhandl. Berliner Gesellsch. Anthrop. 1899, p. 668 sq.]

[Footnote 34: Burckhardt, Travels in Nubia, p. 135.]

[Footnote 35: d'Escayrac de Lauture, Afrikanische Wüste, p. 93.]

[Footnote 36: Burckhardt, Travels in Arabia, i. 364. See also von Kremer, Culturgeschichte des Orients, ii. 269.]

Homosexual love is spread over Asia Minor and Mesopotamia.[37] It is very prevalent among the Tartars and Karatchai of the Caucasus,[38] the Persians,[39] Sikhs,[40] and Afghans; in Kaubul a bazaar or street is set apart for it.[41] Old travellers make reference to its enormous frequency among the Muhammedans of India,[42] and in this respect time seems to have produced no change.[43] In China, where it is also extremely common, there are special houses devoted to male prostitution, and boys are sold by their parents about the age of four, to be trained for this occupation.[44] In Japan pederasty is said by some to have prevailed from the most ancient times, whereas others are of opinion that it was introduced by Buddhism about the sixth century of our era. The monks used to live with handsome youths, to whom they were often passionately devoted; and in feudal times nearly every knight had as {463} his favourite a young man with whom he entertained relations of the most intimate kind, and on behalf of whom he was always ready to fight a duel when occasion occurred. Tea-houses with male gheishas were found in Japan till the middle of the nineteenth century. Nowadays pederasty seems to be more prevalent in the Southern than in the Northern provinces of the country, but there are also districts where it is hardly known.[45]

[Footnote 37: Burton, Arabian Nights, x. 232.]

[Footnote 38: Kovalewsky, Coutume contemporaine, p. 340.]

[Footnote 39: Polak, 'Die Prostitution in Persien,' in Wiener Medizinische Wochenschrift, xi. 627 sqq. Idem, Persien, i. 237. Burton, Arabian Nights, x. 233 sq. Wilson, Persian Life and Customs, p. 229.]

[Footnote 40: Malcolm, Sketch of the Sikhs, p. 140. Havelock Ellis, op. cit. p. 5, n. 2. Burton, Arabian Nights, x. 236.]

[Footnote 41: Wilson, Abode of Snow, p. 420. Burton, Arabian Nights, x. 236.]

[Footnote 42: Stavorinus, Voyages to the East-Indies, i. 456. Fryer, New Account of East-India, p. 97. Chevers, Manual of Medical Jurisprudence for India, p. 705.]

[Footnote 43: Chevers, op. cit. p. 708.]

[Footnote 44: Indo-Chinese Gleaner, iii. 193. Wells Williams, The Middle Kingdom, i. 836. Matignon, 'Deux mots sur la pédérastie en Chine,' in Archives d'anthropologie criminelle, xiv. 38 sqq. Karsch, Das gleichgeschlechtliche Leben der Ostasiaten, p. 6 sqq.]

[Footnote 45: Jwaya, 'Nan sho k,' in Jahrbuch für sexuelle Zwischenstufen, iv. 266, 268, 270. Karsch, op. cit. p. 71 sqq.]

No reference is made to pederasty either in the Homeric poems or by Hesiod, but later on we meet with it almost as a national institution in Greece. It was known in Rome and other parts of Italy at an early period;[46] but here also it became much more frequent in the course of time. At the close of the sixth century, Polybius tells us, many Romans paid a talent for the possession of a beautiful youth.[47] During the Empire "il était d'usage, dans les families patriciennes, de donner au jeune homme pubère un esclave du même âge comme compagnon de lit, afin qu'il pût satisfaire . . . 'ses premiers élans' génésiques";[48] and formal marriages between men were introduced with all the solemnities of ordinary nuptials.[49] Homosexual practices occurred among the Celts, [50] and were by no means unknown to the ancient Scandinavians, who had a whole nomenclature on the subject.[51]

[Footnote 46: Dionysius of Halicarnassus, Antiquitates Romanæ, vii. 2. Athenæus, Deipnosophistæ, xii. 14, p. 518 (Etruscans). Rein, Criminalrecht der Römer, p. 863.]

[Footnote 47: Polybius, Historiæ, xxxii. 11. 5.]

[Footnote 48: Buret, La syphilis aujourd'hui et chez les anciens, p. 197 sqq. Catullus, Carmina, lxi. ('In Nuptias Juliæ et Manlii'), 128 sqq. Cf. Martial, Epigrammata, viii. 44. 16 sq.]

[Footnote 49: Juvenal, Satiræ, ii. 117 sqq. Martial, op. cit. xii. 42.]

[Footnote 50: Diodorus Siculus, Bibliotheca historica, v. 32. 7. Aristotle, Politica, ii. 9, p. 1269 b.]

[Footnote 51: 'Spuren von Konträrsexualität bei den alten Skandinaviern,' in Jahrbuch für sexuelle Zwischenstufen, iv. 244 sqq.]

Of late years a voluminous and constantly increasing literature on homosexuality[52] has revealed its frequency in modern Europe. No country and no class of society is free from it. In certain parts of Albania it even exists as a popular custom, the young men from the age of sixteen {464} upwards regularly having boy favourites of between twelve and seventeen.[53]

[Footnote 52: See infra, Additional Notes.]

[Footnote 53: Hahn, Albanesische Studien, i. 168.]

The above statements chiefly refer to homosexual practices between men, but similar practices also occur between women.[54] Among the American aborigines there are not only men who behave like women, but women who behave like men. Thus in certain Brazilian tribes women are found who abstain from every womanly occupation and imitate the men in everything, who wear their hair in a masculine fashion, who go to war with a bow and arrows, who hunt together with the men, and who would rather allow themselves to be killed than have sexual intercourse with a man. "Each of these women has a woman who serves her and with whom she says she is married; they live together as husband and wife."[55] So also there are among the Eastern Eskimo

some women who refuse to accept husbands, preferring to adopt masculine manners, following the deer on the mountains, trapping and fishing for themselves.[56] Homosexual practices are said to be common among Hottentot[57] and Herero[58] women. In Zanzibar there are women who wear men's clothes in private, show a preference for masculine occupations, and seek sexual satisfaction among women who have the same inclination, or else among normal women who are won over by presents or other means.[59] In Egyptian harems every woman is said to have a "friend."[60] In Bali homosexuality is almost as common among women as among men, though it is exercised more secretly;[61] and the same seems to be the case in India.[62] From Greek antiquity we {465} hear of "Lesbian" love. The fact that homosexuality has been much more frequently noticed in men than in women does not imply that the latter are less addicted to it. For various reasons the sexual abnormalities of women have attracted much less attention,[63] and moral opinion has generally taken little notice of them.

[Footnote 54: Karsch, in Jahrbuch für sexuelle Zwischenstufen, iii. 85 sqq. Ploss-Bartels, Das Weib, i. 517 sqq. von Krafft-Ebing, Psychopathia sexualis, p. 278 sqq. Moll, Die Conträre Sexualempfindung, p. 247 sqq. Havelock Ellis, op. cit. p. 118 sqq.]

[Footnote 55: Magalhanes de Gandavo, Histoire de la Province de Sancta-Cruz, p. 116 sq.]

[Footnote 56: Dall, op. cit. p. 139.]

[Footnote 57: Fritsch, quoted by Karsch, in Jahrbuch für sexuelle Zwischenstufen, iii. 87 sq.]

[Footnote 58: Fritsch, Die Eingeborenen Süd-Afrika's, p. 227. Cf. Schinz, Deutsch-Südwest-Afrika, pp. 173, 177.]

[Footnote 59: Baumann, in Verhandl. Berliner Gesellsch. Anthrop. 1899, p. 668 sq.]

[Footnote 60: Havelock Ellis, op. cit. p. 123.]

[Footnote 61: Jacobs, Eenigen tijd onder de Baliërs, p. 134 sq.]

[Footnote 62: Havelock Ellis, op. cit. p. 124 sq.]

[Footnote 63: See ibid. p. 121 sq.]

Homosexual practices are due sometimes to instinctive preference, sometimes to external conditions unfavourable to normal intercourse.[64] A frequent cause is congenital sexual inversion, that is, "sexual instinct turned by inborn constitutional abnormality toward persons of the same sex."[65] It seems likely that the feminine men and the masculine women referred to above are, at least in many instances, sexual inverts; though, in the case of shamans, the change of sex may also result from the belief that such transformed shamans, like their female colleagues, are particularly powerful.[66] Dr. Holder affirms the existence of congenital inversion among the North-Western tribes of the United States,[67] Dr. Baumann among the people of Zanzibar;[68] and in Morocco, also, I believe it is common enough. But as regards its prevalence among non-European peoples we have mostly to resort to mere conjectures; our real knowledge of congenital inversion is derived from the voluntary confessions of inverts. The large majority of travellers are totally ignorant of the psychological side of the subject, and even to an expert it must very often be impossible to decide whether a certain case of inversion is congenital or acquired. Indeed, acquired inversion itself presupposes an innate disposition which under certain circumstances develops into actual inversion.[69] Even between inversion and normal sexuality {466} there seem to be all shades of variation. Professor James thinks that inversion is "a kind of sexual appetite, of which very likely most men possess the germinal possibility."[70] This is certainly the case in early puberty.[71]

[Footnote 64: Another reason for such practices is given by Mr. Beardmore (in Jour. Anthr. Inst. xix. 464), with reference to the Papuans of Mowat. He says that they indulge in sodomy because too great increase of population is undesired amongst the younger portion of the married people. Cf. infra, p. 484 sqq.]

[Footnote 65: Havelock Ellis, op. cit. p. 1.]

[Footnote 66: Jochelson, op. cit. p. 52 sq.]

[Footnote 67: Holder, quoted by Havelock Ellis, op. cit. p. 9 sq.]

[Footnote 68: Baumann, in Verhandl. Berliner Gesellsch. Anthrop. 1899, p. 668 sq.]

[Footnote 69: Féré, L'instinct sexuel, quoted by Havelock Ellis, op. cit. p. 41.]

[Footnote 70: James, Principles of Psychology, ii. 439. See also Ives, op. cit. p. 56 sqq.]

[Footnote 71: Dr. Dessoir ('Zur Psychologie der Vita sexualis,' in Allgemeine Zeitschrift für Psychiatrie, l. 942) even goes so far as to conclude that "an undifferentiated sexual feeling is normal, on the average, during the first years of puberty." But this is certainly an exaggeration (cf. Havelock Ellis, op. cit. p. 47 sq.).]

A very important cause of homosexual practices is absence of the other sex. There are many instances of this among the lower animals.[72] Buffon long ago observed that, if male or female birds of various species were shut up together, they would soon begin to have sexual relations among themselves, the males sooner than the females.[73] The West Australian boy-marriage is a substitute for ordinary marriage in cases when women are not obtainable. Among the Bororó of Brazil homosexual intercourse is said to occur in their men-houses only when the scarcity of accessible girls is unusually great.[74] Its prevalence in Tahiti may perhaps be connected with the fact that there was only one woman to four or five men, owing to the habit of female infanticide.[75] Among the Chinese in certain regions, for instance Java, the lack of accessible women is the principal cause of homosexual practices.[76] According to some writers such practices are the results of polygamy.[77] In Muhammedan countries they are no doubt largely due to the seclusion of women, preventing free intercourse between the sexes and compelling the unmarried people to associate almost exclusively with members of their own sex. Among the mountaineers of Northern Morocco the excessive indulgence in pederasty thus goes hand in hand with great isolation of the women {467} and a very high standard of female chastity, whereas among the Arabs of the plains, who are little addicted to boy-love, the unmarried girls enjoy considerable freedom. Both in Asia[78] and Europe[79] the obligatory celibacy of the monks and priests has been a cause of homosexual practices, though it must not be forgotten that a profession which imposes abstinence from marriage is likely to attract a comparatively large number of congenital inverts. The temporary separation of the sexes involved in a military mode of life no doubt accounts for the extreme prevalence of homosexual love among warlike races,[80] like the Sikhs, Afghans, Dorians, and Normans.[81] In Persia[82] and Morocco it is particularly common among soldiers. In Japan it was an incident of knighthood, in New Caledonia and North America of brotherhood in arms. At least in some of the North American tribes men who were dressed as women accompanied the other men as servants in war and the chase.[83] Among the Banaka and Bapuku in the Cameroons pederasty is practised especially by men who are long absent from their wives.[84] In Morocco I have heard it advocated on account of the convenience it affords to persons who are travelling.

[Footnote 72: Karsch, in Jahrbuch für sexuelle Zwischenstufen, ii. 126 sqq. Havelock Ellis, op. cit. p. 2 sq.]

[Footnote 73: Havelock Ellis, op. cit. p. 2.]

[Footnote 74: von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 502.]

[Footnote 75: Ellis, Polynesian Researches, i. 257 sq.]

[Footnote 76: Matignon, in Archives d'anthropologie criminelle, xiv. 42. Karsch, op. cit. p. 32 sqq.]

[Footnote 77: Waitz, Anthropologie der Naturvölker, iii. 113. Bastian, Der Mensch in der Geschichte, iii. 305 (Dahomans).]

[Footnote 78: Supra, ii. 462. Karsch. op. cit. pp. 7. (China), 76 sqq. (Japan), 132 (Corea).]

[Footnote 79: See Voltaire, Dictionnaire philosophique, 'Amour Socratique' ([OE]uvres, vii. 82); Buret, Syphilis in the Middle Ages and in Modern Times, p. 88 sq.]

[Footnote 80: Cf. Havelock Ellis, op. cit. p. 5.]

[Footnote 81: Freeman, Reign of William Rufus, i. 159.]

[Footnote 82: Polak, in Wiener Medizinische Wochenschrift, xi. 628.]

[Footnote 83: Marquette, op. cit. p. 53 (Illinois). Perrin du Lac, Voyage dans les deux Louisianes et chez les nations sauvages du Missouri, p. 352. Cf. Nuñez Cabeza de Vaca, loc. cit. p. 538 (concerning the Indians of Florida):--" . . . tiran arco y llevan muy gran carga."]

[Footnote 84: Steinmetz, Rechtsverhältnisse, p. 38.]

Dr. Havelock Ellis justly observes that when homosexual attraction is due simply to the absence of the other sex we are not concerned with sexual inversion, but merely with the accidental turning of the sexual instinct into an abnormal channel, the instinct being called out by an approximate substitute, or even by diffused emotional excitement, in the absence of the normal object.[85] But it seems to me probable that in such cases the homosexual {468} attraction in the course of time quite easily develops into genuine inversion. I cannot but think that our chief authorities on homosexuality have underestimated the modifying influence which habit may exercise on the sexual instinct. Professor Krafft-Ebing[86] and Dr. Moll[87] deny the existence of acquired inversion except in occasional instances; and Dr. Havelock Ellis takes a similar view, if putting aside those cases of a more or less morbid character in which old men with failing sexual powers, or younger men exhausted by heterosexual debauchery, are attracted to members of their own sex.[88] But how is it that in some parts of Morocco such a very large proportion of the men are distinctly sexual inverts, in the sense in which this word is used by Dr. Havelock Ellis,[89] that is, persons who for the gratification of their sexual desire prefer their own sex to the opposite one? It may be that in Morocco and in Oriental countries generally, where almost every individual marries, congenital inversion, through the influence of heredity, is more frequent than in Europe, where inverts so commonly abstain from marrying. But that this could not be an adequate explanation of the fact in question becomes at once apparent when we consider the extremely unequal distribution of inverts among different neighbouring tribes of the same stock, some of which are very little or hardly at all addicted to pederasty. I take the case to be, that homosexual practices in early youth have had a lasting effect on the sexual instinct, which at its first appearance, being somewhat indefinite, is easily turned into a homosexual direction.[90] In Morocco inversion is most prevalent among the scribes, who from childhood have lived in very close association with their fellow-students. Of course, influences of this kind "require a favourable organic predisposition to act on";[91] but this predisposition is probably no abnormality at all, only a {469} feature in the ordinary sexual constitution of man.[92] It should be noticed that the most common form of inversion, at least in Muhammedan countries, is love of boys or youths not yet in the age of puberty, that is, of male individuals who are physically

very like girls. Voltaire observes:--"Souvent un jeune garçon, par la fraîcheur de son teint, par l'éclat de ses couleurs, et par la douceur de ses yeux, ressemble pendant deux ou trois ans à une belle fille; si on l'aime, c'est parce que la nature se méprend."[93] Moreover, in normal cases sexual attraction depends not only on sex, but on a youthful appearance as well; and there are persons so constituted that to them the latter factor is of chief importance, whilst the question of sex is almost a matter of indifference.

[Footnote 85: Havelock Ellis, op. cit. p. 3.]

[Footnote 86: Krafft-Ebing, op. cit. p. 211 sq.]

[Footnote 87: Moll, op. cit. p. 157 sqq.]

[Footnote 88: Havelock Ellis, op. cit. p. 50 sq. Cf. ibid. p. 181 sqq.]

[Footnote 89: Ibid. p. 3.]

[Footnote 90: Cf. Norman, 'Sexual Perversion,' in Tuke's Dictionary of Psychological Medicine, ii. 1156.]

[Footnote 91: Havelock Ellis, op. cit. p. 191.]

[Footnote 92: Dr. Havelock Ellis also admits (op. cit. p. 190) that, if in early life the sexual instincts are less definitely determined than when adolescence is complete, "it is conceivable, though unproved, that a very strong impression, acting even on a normal organism, may cause arrest of sexual development on the psychic side. It is a question," he adds, "I am not in a position to settle."]

[Footnote 93: Voltaire, Dictionnaire Philosophique, art. 'Amour Socratique,' ([OE]uvres, vii. 81). Cf. Ovid, Metamorphoses, x. 84 sq.]

In ancient Greece, also, not only homosexual intercourse but actual inversion, seems to have been very common; and although this, like every form of love, must have contained a congenital element, there can be little doubt, I think, that it was largely due to external circumstances of a social character. It may, in the first place, be traced to the methods of training the youth. In Sparta it seems to have been the practice for every youth of good character to have his lover, or "inspirator,"[94] and for every well-educated man to be the lover of some youth.[95] The relations between the "inspirator" and the "listener" were extremely intimate: at home the youth was constantly under the eyes of his lover, who was supposed to be to him a model and pattern of life;[96] in battle they stood near one another and their fidelity and affection were often shown till death;[97] if his relatives were absent, the youth {470} might be represented in the public assembly by his lover;[98] and for many faults, particularly want of ambition, the lover could be punished instead of the "listener."[99] This ancient custom prevailed with still greater force in Crete, which island was hence by many persons considered to be the place of its birth.[100] Whatever may have been the case originally, there can be no doubt that in later times the relations between the youth and his lover implied unchaste intercourse.[101] And in other Greek states the education of the youth was accompanied by similar consequences. At an early age the boy was taken away from his mother, and spent thenceforth all his time in the company of men, until he reached the age when marriage became for him a civic duty.[102] According to Plato, the gymnasia and common meals among the youth "seem always to have had a tendency to degrade the ancient and natural custom of love below the level, not only of man, but of the beasts."[103] Plato also mentions the effect which these habits had on the sexual instincts of the men: when they reached manhood they were lovers of youths and not naturally inclined to marry or beget children, but, if at all, they did so only in obedience to the law.[104] Is not this, in all probability, an instance of acquired inversion? But besides the influence of education there was another factor which, co-operating with it, favoured the development of homosexual tendencies, namely, the great gulf which

mentally separated the sexes. Nowhere else has the difference in culture between men and women been so immense as in the fully developed Greek civilisation. The lot of a wife in Greece was retirement and ignorance. She lived in almost absolute seclusion, in a separate part of the house, together with her female slaves, deprived of all the educating influence of male society, and having no place at those public spectacles {471} which were the chief means of culture.[105] In such circumstances it is not difficult to understand that men so highly intellectual as those of Athens regarded the love of women as the offspring of the common Aphrodite, who "is of the body rather than of the soul."[106] They had reached a stage of mental culture at which the sexual instinct normally has a craving for refinement, at which the gratification of mere physical lust appears brutal. In the eyes of the most refined among them those who were inspired by the heavenly Aphrodite loved neither women nor boys, but intelligent beings whose reason was beginning to be developed, much about the time at which their beards began to grow.[107] In present China we meet with a parallel case. Dr. Matignon observes:--"Il y a tout lieu de supposer que certains Chinois, raffinés au point de vue intellectuel, recherchent dans la pédérastie la satisfaction des sens et de l'esprit. La femme chinoise est peu cultivée, ignorante même, quelle que soit sa condition, honnête femme ou prostituée. Or le Chinois a souvent l'âme poétique: il aime les vers, la musique, les belles sentences des philosophes, autant de choses qu'il ne peut trouver chez le beau sexe de l'Empire du Milieu."[108] So also it seems that the ignorance and dullness of Muhammedan women, which is a result of their total lack of education and their secluded life, is a cause of homosexual practices; Moors are sometimes heard to defend pederasty on the plea that the company of boys, who have always news to tell, is so much more entertaining than the company of women.

[Footnote 94: Servius, In Vergilii Æneidos, x. 325. For the whole subject of pederasty among the Dorians see Mueller, History and Antiquities of the Doric Race, ii. 307 sq.]

[Footnote 95: Aelian, Varia historia, iii. 10.]

[Footnote 96: Mueller, op. cit. ii. 308.]

[Footnote 97: Xenophon, Historia Græca, iv. 8. 39.]

[Footnote 98: Plutarch, Lycurgus, xxv. 1.]

[Footnote 99: Ibid. xviii. 8. Aelian, op. cit. iii. 10.]

[Footnote 100: Aelian, op. cit. iii. 9. Athenaeus, Deipnosophistæ, xiii. 77, p. 601.]

[Footnote 101: Cf. Symonds, 'Die Homosexualität in Griechenland,' in Havelock Ellis and Symonds, Das konträre Geschlechtsgefühl, p. 55.]

[Footnote 102: Ibid. p. 116. Döllinger, The Gentile and the Jew, ii. 244.]

[Footnote 103: Plato, Leges, i. 636. Cf. Plutarch, Amatorius, v. 9.]

[Footnote 104: Plato, Symposium, p. 192.]

[Footnote 105: 'State of Female Society in Greece,' in Quarterly Review, xxii. 172 sqq. Lecky, History of European Morals, ii. 287. Döllinger, op. cit. ii. 234.]

[Footnote 106: Plato, Symposium, p. 181. That the low state of the Greek women was instrumental to pederasty has been pointed out by Döllinger (op. cit. ii. 244) and Symonds (loc. cit. pp. 77, 100, 101, 116 sqq.).]

[Footnote 107: Plato, Symposium, p. 181.]

[Footnote 108: Matignon, in Archives d'anthropologie criminelle, xiv. 41.]

We have hitherto dealt with homosexual love as a fact; we shall now pass to the moral valuation to which it is subject. Where it occurs as a national habit we may assume that no censure, or no severe censure, is passed on it. Among the Bataks of Sumatra there is no punishment {472} for it.[109] Of the bazirs among the Ngajus of Pula Patak, in Borneo, Dr. Schwaner says that "in spite of their loathsome calling they escape well-

merited contempt."[110] The Society Islanders had for their homosexual practices "not only the sanction of their priests, but the direct example of their respective deities."[111] The tsekats of Madagascar maintained that they were serving the deity by leading a feminine life;[112] but we are told that at Ankisimane and in Nossi-Bé, opposite to it, pederasts are objects of public contempt.[113] Father Veniaminof says of the Atkha Aleuts that "sodomy and too early cohabitation with a betrothed or intended wife are called among them grave sins";[114] but apart from the fact that his account of these natives in general gives the impression of being somewhat eulogistic, the details stated by him only show that the acts in question were considered to require a simple ceremony of purification.[115] There is no indication that the North American aborigines attached any opprobrium to men who had intercourse with those members of their own sex who had assumed the dress and habits of women. In Kadiak such a companion was on the contrary regarded as a great acquisition; and the effeminate men themselves, far from being despised, were held in repute by the people, most of them being wizards.[116] We have previously noticed the connection between homosexual practices and shamanism among various Siberian peoples; and it is said that such shamans as had changed their sex were greatly feared by the people, being regarded as very powerful.[117] Among the Illinois and Naudowessies the {473} effeminate men assist in all the juggleries and the solemn dance in honour of the calumet, or sacred tobacco pipe, for which the Indians have such a deference that one may call it "the god of peace and war, and the arbiter of life and death"; but they are not permitted either to dance or sing. They are called into the councils of the Indians, and nothing can be decided upon without their advice; for because of their extraordinary manner of living they are looked upon as manitous, or supernatural beings, and persons of consequence.[118] The Sioux, Sacs, and Fox Indians give once a year, or oftener if they choose, a feast to the Berdashe, or I-coo-coo-a, who is a man dressed in woman's clothes, as he has been all his life. "For extraordinary privileges which he is known to possess, he is driven to the most servile and degrading duties, which he is not allowed to escape; and he being the only one of the tribe submitting to this disgraceful degradation, is looked upon as 'medicine' and sacred, and a feast is given to him annually; and initiatory to it, a dance by those few young men of the tribe who can . . . . dance forward and publicly make their boast (without the denial of the Berdashe) . . . . Such, and such only, are allowed to enter the dance and partake of the feast."[119] Among some American tribes, however, these effeminate men are said to be despised, especially by the women.[120] In ancient Peru, also, homosexual practices seem to have entered in the religious cult. In some particular places, says Cieza de Leon, boys were kept as priests in the temples, with whom it was rumoured that the lords joined in company on days of festivity. They did not meditate, he adds, the committing of such sin, but only the offering of sacrifice to the demon. If the Incas by chance had some knowledge of such proceedings in the temple, they might have {474} ignored them out of religious tolerance.[121] But the Incas themselves were not only free from such practices in their own persons, they would not even permit any one who was guilty of them to remain in the royal houses or palaces. And Cieza heard it related that, if it came to their knowledge that somebody had committed an offence of that kind, they punished it with such a severity that it was known to all.[122] Las Casas tells us that in several of the more remote provinces of Mexico sodomy was tolerated, if not actually permitted, because the people believed that their gods were addicted to it; and it is not improbable that in earlier times the same was the case in the entire empire.[123] But in a later age severe measures were adopted by legislators in order to suppress the practice. In Mexico people found guilty of it were killed.[124] In

Nicaragua it was punished capitally by stoning,[125] and none of the Maya nations was without strict laws against it.[126] Among the Chibchas of Bogota the punishment for it was the infliction of a painful death.[127] However, it should be remembered that the ancient culture nations of America were generally extravagant in their punishments, and that their penal codes in the first place expressed rather the will of their rulers than the feelings of the people at large.[128]

[Footnote 109: Junghuhn, op. cit. ii. 157, n.]

[Footnote 110: Schwaner, op. cit. i. 186.]

[Footnote 111: Ellis, Polynesian Researches, i. 258. Cf. Moerenhout, Voyages aux îles du Grand Océan, ii. 167 sq.]

[Footnote 112: de Flacourt, op. cit. p. 86.]

[Footnote 113: Walter, in Steinmetz, Rechtsverhältnisse, p. 376.]

[Footnote 114: Veniaminof, quoted by Petroff, Report on Alaska, p. 158.]

[Footnote 115: Ibid. p. 158:--"The offender desirous of unburdening himself selected a time when the sun was clear and unobscured; he picked up certain weeds and carried them about his person; then deposited them and threw his sin upon them, calling the sun as a witness, and, when he had eased his heart of all that had weighed upon it, he threw the grass or weeds into the fire, and after that considered himself cleansed of his sin."]

[Footnote 116: Davydow, quoted by Holmberg, loc. cit. p. 400 sq. Lisianski, op. cit. p. 199.]

[Footnote 117: Bogoraz, quoted by Demidoff, op. cit. p. 75. Jochelson, op. cit. p. 52 sq.]

[Footnote 118: Marquette, op. cit. p. 53 sq.]

[Footnote 119: Catlin, North American Indians, ii. 214 sq.]

[Footnote 120: 'La Salle's Last Expedition in North America,' in Collections of the New-York Historical Society, ii. 238 (Illinois). Perrin du Lac, Voyage dans les deux Louisianes et chez les nations sauvages du Missouri, p. 352. Bossu, op. cit. i. 303 (Chactaws). Oviedo y Valdés, loc. cit. p. 508 (Isthmians). von Martius, Von dem Rechtszustande unter den Ureinwohnern Brasiliens, p. 28 (Guaycurús).]

[Footnote 121: Cieza de Leon, Segunda parte de Crónica del Perú, ch. 25, p. 99. See also Idem, Crónica del Perú [primera parte], ch. 64 (Biblioteca de autores españoles, xxvi. 416 sq.).]

[Footnote 122: Idem, Segunda parte de Crónica del Perú, ch. 25, p. 98. See also Garcilasso de la Vega, op. cit. ii. 132.]

[Footnote 123: Las Casas, quoted by Bancroft, op. cit. ii. 467 sq. Cf. ibid. ii. 677.]

[Footnote 124: Clavigero, History of Mexico, i. 357.]

[Footnote 125: Squier, 'Archæology and Ethnology of Nicaragua,' in Trans. American Ethn. Soc. iii. pt. i. 128.]

[Footnote 126: Bancroft, op. cit. ii. 677.]

[Footnote 127: Piedrahita, Historia general de las conquistas del nuevo reyno de Granada, p. 46.]

[Footnote 128: See supra, i. 186, 195.]

Homosexual practices are said to be taken little notice of even by some uncivilised peoples who are not addicted to them. In the Pelew Islands, where such practices occur only sporadically, they are not punished, although, if I understand Herr Kubary rightly, the persons committing them may be put to shame.[129] The Ossetes of the Caucasus, {475} among whom pederasty is very rare, do not generally prosecute persons for committing it, but ignore the act.[130] The East African Masai do not punish sodomy.[131] But we also meet with statements of a contrary nature. In a Kafir tribe Mr. Warner

heard of a case of it--the only one during a residence of twenty-five years--which was punished with a fine of some cattle claimed by the chief.[132] Among the Ondonga pederasts are hated, and the men who behave like women are detested, most of them being wizards.[133] The Washambala consider pederasty a grave moral aberration and subject it to severe punishment.[134] Among the Waganda homosexual practices, which have been introduced by the Arabs and are of rare occurrence, "are intensely abhorred," the stake being the punishment.[135] The Negroes of Accra, who are not addicted to such practices, are said to detest them.[136] In Nubia pederasty is held in abhorrence, except by the Kashefs and their relations, who endeavour to imitate the Mamelukes in everything.[137]

[Footnote 129: Kubary, 'Die Verbrechen und das Strafverfahren auf den Pelau-Inseln,' in Original-Mittheilungen aus der ethnologischen Abtheilung der königlichen Museen zu Berlin, i. 84.]

[Footnote 130: Kovalewsky, Coutume contemporaine, p. 340.]

[Footnote 131: Merker, Die Masai, p. 208. The Masai, however, slaughter at once any bullock or he-goat which is noticed to practise unnatural intercourse, for fear lest otherwise their herds should be visited by a plague as a divine punishment (ibid. p. 159).]

[Footnote 132: Warner, in Maclean, Compendium of Kafir Laws, p. 62.]

[Footnote 133: Rautanen, in Steinmetz, Rechtsverhältnisse, p. 333 sq.]

[Footnote 134: Lang, ibid. p. 232.]

[Footnote 135: Felkin, in Proceed. Roy. Soc. Edinburgh, xiii. 723.]

[Footnote 136: Monrad, op. cit. p. 57.]

[Footnote 137: Burckhardt, Travels in Nubia, p. 135.]

Muhammed forbade sodomy,[138] and the general opinion of his followers is that it should be punished like fornication--for which the punishment is, theoretically, severe enough[139]--unless the offenders make a public act of penitence. In order to convict, however, the law requires that four reliable persons shall swear to have been eye-witnesses,[140] and this alone would make the law a dead letter, even if it had the support of popular feelings; but such support is certainly wanting. In Morocco active {476} pederasty is regarded with almost complete indifference, whilst the passive sodomite, if a grown-up individual, is spoken of with scorn. Dr. Polak says the same of the Persians.[141] In Zanzibar a clear distinction is made between male congenital inverts and male prostitutes; the latter are looked upon with contempt, whereas the former, as being what they are "by the will of God," are tolerated.[142] The Muhammedans of India and other Asiatic countries regard pederasty, at most, as a mere peccadillo.[143] Among the Hindus it is said to be held in abhorrence,[144] but their sacred books deal with it leniently. According to the 'Laws of Manu,' "a twice-born man who commits an unnatural offence with a male, or has intercourse with a female in a cart drawn by oxen, in water, or in the day-time, shall bathe, dressed in his clothes"; and all these are reckoned as minor offences.[145]

[Footnote 138: Koran, iv. 20.]

[Footnote 139: Sachau, Muhammedanisches Recht nach Schafiitischer Lehre, pp. 809, 818:--"Sodomita si mu[h.][s.]an (that is, a married person in possession of full civic rights) est punitur lapidatione, si non est mu[h.][s.]an punitur et flagellatione et exsilio."]

[Footnote 140: Burton, Arabian Nights, x. 224.]

[Footnote 141: Polak, in Wiener Medizinische Wochenschrift, xi. 628 sq.]

[Footnote 142: Baumann, in Verhandl. Berliner Gesellsch. Anthrop. 1899, p. 669.]

[Footnote 143: Chevers, op. cit. p. 708. Burton, Arabian Nights, x. 222 sqq.]

[Footnote 144: Burton, Arabian Nights, x. 237.]

[Footnote 145: Laws of Manu, xi. 175. Cf. Institutes of Vishnu, liii. 4; Âpastamba, i. 9. 26. 7; Gautama, xxv. 7.]

Chinese law makes little distinction between unnatural and other sexual offences. An unnatural offence is variously considered according to the age of the patient, and whether or not consent was given. If the patient be an adult, or a boy over the age of twelve, and consent, the case is treated as a slightly aggravated form of fornication, both parties being punished with a hundred blows and one month's cangue, whilst ordinary fornication is punished with eighty blows. If the adult or boy over twelve resist, the offence is considered as rape; and if the boy be under twelve, the offence is rape irrespective of consent or resistance, unless the boy has previously gone astray.[146] But, as a matter of fact, unnatural offences are regarded as less hurtful to the community than ordinary immorality,[147] and pederasty is not looked down upon. "L'opinion publique reste tout à fait indifférente à ce genre de distraction et la {477} morale ne s'en émeut en rien: puisque cela plaît à l'opérateur et que l'opéré est consentant, tout est pour le mieux; la loi chinoise n'aime guère à s'occuper des affaires trop intimes. La pédérastie est même considérée comme une chose de bon ton, une fantaisie dispendieuse et partout un plaisir élégant. . . . La pédérastie a une consécration officielle en Chine. Il existe, en effet, des pédérés pour l'Empereur."[148] Indeed, the only objection which Dr. Matignon has heard to be raised to pederasty by public opinion in China is that it has a bad influence on the eyesight.[149] In Japan there was no law against homosexual intercourse till the revolution of 1868.[150] In the period of Japanese chivalry it was considered more heroic if a man loved a person of his own sex than if he loved a woman; and nowadays people are heard to say that in those provinces of the country where pederasty is widely spread the men are more manly and robust than in those where it does not prevail.[151]

[Footnote 146: Alabaster, Notes and Commentaries on Chinese Criminal Law, p. 367 sqq. Ta Tsing Leu Lee, Appendix, no. xxxii. p. 570.]

[Footnote 147: Alabaster, op. cit. p. 369.]

[Footnote 148: Matignon, in Archives d'anthropologie criminelle, xiv. 42, 43, 52.]

[Footnote 149: Ibid. p. 44.]

[Footnote 150: Karsch, op. cit. p. 99.]

[Footnote 151: Jwaya, in Jahrbuch für sexuelle Zwischenstufen, iv. 266, 270 sq.]

The laws of the ancient Scandinavians ignored homosexual practices; but passive pederasts were much despised by them. They were identified with cowards and regarded as sorcerers. The epithets applied to them--argr, ragr, blandr, and others assumed the meaning of "poltroon" in general, and there are instances of the word arg being used in the sense of "practising witchcraft." This connection between pederasty and sorcery, as a Norwegian scholar justly points out, helps us to understand Tacitus' statement that among the ancient Teutons individuals whom he describes as corpore infames were buried alive in a morass.[152] Considering that drowning was a common penalty for sorcery, it seems probable that this punishment was inflicted upon them not, in the first place, on account of their sexual practices, but in their capacity of wizards. It is certain that the opprobrium which the pagan Scandinavians attached to homosexual love was chiefly restricted to him who played the woman's part. In one of the poems {478} the hero even boasts of being the father of offspring borne by another man.[153]

[Footnote 152: Tacitus, Germania, 12.]

[Footnote 153: 'Spuren von Konträrsexualität bei den alten Skandinaviern (Mitteilungen eines norwegischen Gelehrten),' in Jahrbuch für sexuelle Zwischenstufen, iv. 245, 256 sqq.]

In Greece pederasty in its baser forms was censured, though generally, it seems, with no great severity, and in some states it was legally prohibited.[154] According to an Athenian law, a youth who prostituted himself for money lost his rights as a free citizen and was liable to the punishment of death if he took part in a public feast or entered the agora.[155] In Sparta it was necessary that the "listener" should accept the "inspirator" from real affection; he who did so out of pecuniary considerations was punished by the ephors.[156] We are even told that among the Spartans the relations between the lover and his friend were truly innocent, and that if anything unlawful happened both must forsake either their country or their lives.[157] But the universal rule in Greece seems to have been that when decorum was observed in the friendship between a man and a youth, no inquiries were made into the details of the relationship.[158] And this attachment was not only regarded as permissible, but was praised as the highest and purest form of love, as the offspring of the heavenly Aphrodite, as a path leading to virtue, as a weapon against tyranny, as a safeguard of civic liberty, as a source of national greatness and glory. Phaedrus said that he knew no greater blessing to a young man who is beginning life than a virtuous lover, or to the lover than a beloved youth; for the principle which ought to be the guide of men who would lead a noble life cannot be implanted by any other motive so well as by love.[159] The Platonic Pausanias argued that if love of youths is held in ill repute it is so only because it is inimical to tyranny; "the interests of rulers require that their subjects should {479} be poor in spirit, and that there should be no strong bond of friendship or society among them, which love, above all other motives, is likely to inspire."[160] The power of the Athenian tyrants was broken by the love of Aristogeiton and the constancy of Harmodius; at Agrigentum in Sicily the mutual love of Chariton and Melanippus produced a similar result; and the greatness of Thebes was due to the Sacred Band established by Epaminondas. For "in the presence of his favourite, a man would choose to do anything rather than to get the character of a coward."[161] It was pointed out that the greatest heroes and the most warlike nations were those who were most addicted to the love of youths;[162] and it was said that an army consisting of lovers and their beloved ones, fighting at each other's side, although a mere handful, would overcome the whole world.[163]

[Footnote 154: Xenophon, Lacedæmoniorum respublica, ii. 13. Maximus Tyrius, Dissertationes, xxv. 4; xxvi. 9.]

[Footnote 155: Aeschines, Contra Timarchum, 21.]

[Footnote 156: Aelian, Varia historia, iii. 10. Cf. Plato, Leges, viii. 910.]

[Footnote 157: Aelian, op. cit. iii. 12. Cf. Maximus Tyrius, op. cit. xxvi. 8.]

[Footnote 158: Cf. Symonds, loc. cit. p. 92 sqq.]

[Footnote 159: Plato, Symposium, p. 178.]

[Footnote 160: Plato, Symposium, p. 182.]

[Footnote 161: Hieronymus, the Peripatetic, referred to by Athenaeus, op. cit. xiii. 78, p. 602. See also Maximus Tyrius, op. cit. xxiv. 2.]

[Footnote 162: Plutarch, Amatorius, xvii. 14.]

[Footnote 163: Plato, Symposium, p. 178.]

Herodotus asserts that the love of boys was introduced from Greece into Persia.[164] Whether his statement be correct or not, such love could certainly not have been a habit of the Mazda worshippers.[165] In the Zoroastrian books "unnatural sin" is treated with a severity to which there is a parallel only in Hebrewism and Christianity. According to the Vendîdâd, there is no atonement for it.[166] It is punished with torments in the other world, and is capital here below.[167] Even he who committed it involuntarily, by force, is subject to corporal punishment.[168] Indeed, it is a more heinous sin than the

slaying of a righteous man.[169] "There is no worse sin than this in the good religion, and it is proper to call those who commit it worthy of death in reality. If any one comes forth to them, and shall see {480} them in the act, and is working with an axe, it is requisite for him to cut off the heads or to rip up the bellies of both, and it is no sin for him. But it is not proper to kill any person without the authority of high-priests and kings, except on account of committing or permitting unnatural intercourse."[170]

[Footnote 164: Herodotus, i. 135.]

[Footnote 165: Ammianus Marcellinus says (xxiii. 76) that the inhabitants of Persia were free from pederasty. But see also Sextus Empiricus, Pyrrhoniæ hypotyposes, i. 152.]

[Footnote 166: Vendîdâd, i. 12; viii. 27.]

[Footnote 167: Darmesteter, in Sacred Books of the East, iv. p. lxxxvi.]

[Footnote 168: Vendîdâd, viii. 26.]

[Footnote 169: Dînâ-î Maînôg-î Khirad, xxxvi. 1 sqq.]

[Footnote 170: Sad Dar, ix. 2, sqq.]

Nor are unnatural sins allowed to defile the land of the Lord. Whosoever shall commit such abominations, be he Israelite or stranger dwelling among the Israelites, shall be put to death, the souls that do them shall be cut off from their people. By unnatural sins of lust the Canaanites polluted their land, so that God visited their guilt, and the land spued out its inhabitants.[171]

[Footnote 171: Leviticus, xviii. 22, 24 sqq.; xx. 13.]

This horror of homosexual practices was shared by Christianity. According to St. Paul, they form the climax of the moral corruption to which God gave over the heathen because of their apostasy from him.[172] Tertullian says that they are banished "not only from the threshold, but from all shelter of the church, because they are not sins, but monstrosities."[173] St. Basil maintains that they deserve the same punishment as murder, idolatry, and witchcraft.[174] According to a decree of the Council of Elvira, those who abuse boys to satisfy their lusts are denied communion even at their last hour.[175] In no other point of morals was the contrast between the teachings of Christianity and the habits and opinions of the world over which it spread more radical than in this. In Rome there was an old law of unknown date, called Lex Scantinia (or Scatinia), which imposed a mulct on him who committed pederasty with a free person;[176] but this law, of which {481} very little is known, had lain dormant for ages, and the subject of ordinary homosexual intercourse had never afterwards attracted the attention of the pagan legislators.[177] But when Christianity became the religion of the Roman Empire, a veritable crusade was opened against it. Constantius and Constans made it a capital crime, punishable with the sword.[178] Valentinian went further still and ordered that those who were found guilty of it should be burned alive in the presence of all the people.[179] Justinian, terrified by certain famines, earthquakes, and pestilences, issued an edict which again condemned persons guilty of unnatural offences to the sword, "lest, as the result of these impious acts, whole cities should perish together with their inhabitants," as we are taught by Holy Scripture that through such acts cities have perished with the men in them.[180] "A sentence of death and infamy," says Gibbon, "was often founded on the slight and suspicious evidence of a child or a servant, . . . and pederasty became the crime of those to whom no crime could be imputed."[181]

[Footnote 172: Romans, i. 26 sq.]

[Footnote 173: Tertullian, De pudicitia, 4 (Migne, Patrologiæ cursus, ii. 987).]

[Footnote 174: St. Basil, quoted by Bingham, Works, vi. 432 sq.]

[Footnote 175: Concilium Eliberitanum, ch. 71 (Labbe-Mansi, Sacrorum Conciliorum collectio, ii. 17).]

[Footnote 176: Juvenal, Satiræ, ii. 43 sq. Valerius Maximus, Facta dictaque memorabilia, vi. 1. 7. Quintilian, Institutio oratoria, iv. 2. 69:--"Decem milia, quae poena stupratori constituta est, dabit." Christ, Hist. Legis Scatiniæ, quoted by Döllinger, op. cit. ii. 274. Rein, Criminalrecht der Römer, p. 865 sq. Bingham, op. cit. vi. 433 sqq. Mommsen, Römisches Strafrecht, p. 703 sq.]

[Footnote 177: Mommsen, op. cit. p. 704. Rein, op. cit. p. 866. The passage in Digesta, xlviii. 5. 35. 1, refers to stuprum independently of the sex of the victim.]

[Footnote 178: Codex Theodosianus, ix. 7. 3. Codex Justinianus, ix. 9. 30.]

[Footnote 179: Codex Theodosianus, ix. 7. 6.]

[Footnote 180: Novellæ, 77. See also ibid. 141, and Institutiones, iv. 18. 4.]

[Footnote 181: Gibbon, History of the Decline and Fall of the Roman Empire, v. 323.]

This attitude towards homosexual practices had a profound and lasting influence on European legislation. Throughout the Middle Ages and later, Christian lawgivers thought that nothing but a painful death in the flames could atone for the sinful act. [182] In England Fleta {482} speaks of the offender being buried alive;[183] but we are elsewhere told that burning was the due punishment.[184] As unnatural intercourse, however, was a subject for ecclesiastical cognizance, capital punishment could not be inflicted on the criminal unless the Church relinquished him to the secular arm; and it seems very doubtful whether she did relinquish him. Sir Frederick Pollock and Professor Maitland consider that the statute of 1533, which makes sodomy felony, affords an almost sufficient proof that the temporal courts had not punished it, and that no one had been put to death for it for a very long time past.[185] It was said that the punishment for this crime--which the English law, in its very indictments, treats as a crime not fit to be named[186]--was determined to be capital by "the voice of nature and of reason, and the express law of God";[187] and it remained so till 1861,[188] although in practice the extreme punishment was not inflicted.[189] In France persons were actually burned for this crime in the middle and latter part of the eighteenth century.[190] But in this, as in so many other respects, the rationalistic movement of that age brought about a change. [191] To punish sodomy with death, it was said, is atrocious; when unconnected with violence, the law ought to take no notice of it at all. It does not violate any other person's right, its influence on society is merely indirect, like that of drunkenness and free love; it is a disgusting vice, but its only proper punishment is contempt.[192] This view was adopted by the French 'Code pénal,' according to which homosexual practices in private, between two consenting adult parties, whether men or women, are absolutely {483} unpunished. The homosexual act is treated as a crime only when it implies an outrage on public decency, or when there is violence or absence of consent, or when one of the parties is under age or unable to give valid consent.[193] This method of dealing with homosexuality has been followed by the legislators of various European countries, [194] and in those where the law still treats the act in question per se as a penal offence, notably in Germany, a propaganda in favour of its alteration is carried on with the support of many men of scientific eminence. This changed attitude of the law towards homosexual intercourse undoubtedly indicates a change of moral opinions. Though it is impossible to measure exactly the degree of moral condemnation, I suppose that few persons nowadays attach to it the same enormity of guilt as did our forefathers. And the question has even been put whether morality has anything at all to do with a sexual act, committed by the mutual consent of two adult individuals, which is productive of

no offspring, and which on the whole concerns the welfare of nobody but the parties themselves.[195]

[Footnote 182: Du Boys, Histoire du droit criminel de l'Espagne, pp. 93, 403. Les Établissements de Saint Louis, i. 90, vol. ii. 147. Beaumanoir, Coutumes du Beauvoisis, xxx. 11, vol. i. 413. Montesquieu, De l'esprit des lois, xii. 6 ([OE]uvres, p. 283). Hume, Commentaries on the Law of Scotland, ii. 335; Pitcairn, Criminal Trials in Scotland, ii. 491, n. 2. Clarus, Practica criminalis, book v. § Sodomia, 4 (Opera omnia, ii. 151). Jarcke, Handbuch des gemeinen deutschen Strafrechts, iii. 172 sqq. Charles V.'s Peinliche Gerichtsordnung, art. 116. Henke, Geschichte des deutschen peinlichen Rechts, i. 289. Numa Praetorius, 'Die strafrechtlichen Bestimmungen gegen den gleichgeschlechtlichen Verkehr,' in Jahrbuch für sexuelle Zwischenstufen, i. 124 sqq. In the beginning of the nineteenth century sodomy was still nominally subject to capital punishment by burning in Bavaria (von Feuerbach, Kritik des Kleinschrodischen Entwurfs zu einem peinlichen Gesetzbuche für die Chur-Pfalz-Bayrischen Staaten, ii. 13), and in Spain as late as 1843 (Du Boys, op. cit. p. 721).]

[Footnote 183: Fleta, i. 37. 3, p. 84.]

[Footnote 184: Britton, i. 10, vol. i. 42.]

[Footnote 185: Pollock and Maitland, History of English Law before the Time of Edward I. ii. 556 sq.]

[Footnote 186: Coke, Third Part of the Institutes of the Laws of England, p. 58 sq. Blackstone, Commentaries on the Laws of England, iv. 218.]

[Footnote 187: Blackstone, op. cit. iv. 218.]

[Footnote 188: Stephen, History of the Criminal Law of England, i. 475.]

[Footnote 189: Blackstone, op. cit. iv. 218.]

[Footnote 190: Desmaze, Pénalités anciennes, p. 211. Havelock Ellis, op. cit. p. 207.]

[Footnote 191: Numa Praetorius, loc. cit. p. 121 sqq.]

[Footnote 192: Note of the editors of Kehl's edition of Voltaire's 'Prix de la justice et de l'humanité,' in [OE]uvres complètes, v. 437, n. 2.]

[Footnote 193: Code pénal, 330 sqq. Cf. Chevalier, L'inversion sexuelle, p. 431 sqq.; Havelock Ellis, op. cit. p. 207 sq.]

[Footnote 194: Numa Praetorius, loc. cit. pp. 131-133, 143 sqq.]

[Footnote 195: See, e.g., Bax, Ethics of Socialism, p. 126.]

From this review of the moral ideas on the subject, incomplete though it be, it appears that homosexual practices are very frequently subject to some degree of censure, though the degree varies extremely. This censure is no doubt, in the first place, due to that feeling of aversion or disgust which the idea of homosexual intercourse tends to call forth in normally constituted adult individuals whose sexual instincts have developed under normal conditions. I presume that nobody will deny the general prevalence of such a tendency. It corresponds to that instinctive repugnance to sexual connections with women which is so frequently found in congenital inverts; whilst that particular form of it with which legislators have chiefly busied themselves evokes, in addition, a physical disgust of its own. And in a society where the {484} large majority of people are endowed with normal sexual desires their aversion to homosexuality easily develops into moral censure and finds a lasting expression in custom, law, or religious tenets. On the other hand, where special circumstances have given rise to widely spread homosexual practices, there will be no general feeling of disgust even in the adults, and the moral opinion of the society will be modified accordingly. The act may still be condemned, in consequence of a moral doctrine formed under different conditions, or of the vain attempts of legislators to check sexual irregularities, or out of utilitarian

considerations; but such a condemnation would in most people be rather theoretical than genuine. At the same time the baser forms of homosexual love may be strongly disapproved of for the same reasons as the baser forms of intercourse between men and women; and the passive pederast may be an object of contempt on account of the feminine practices to which he lends himself, as also an object of hatred on account of his reputation for sorcery. We have seen that the effeminate men are frequently believed to be versed in magic;[196] their abnormalities readily suggest that they are endowed with supernatural power, and they may resort to witchcraft as a substitute for their lack of manliness and physical strength. But the supernatural qualities or skill in magic ascribed to men who behave like women may also, instead of causing hatred, make them honoured or reverenced.

[Footnote 196: See also Bastian, in Zeitschr. f. Ethnol. i. 88 sq. Speaking of the witches of Fez, Leo Africanus says (History and Description of Africa, ii. 458) that "they haue a damnable custome to commit vnlawfull Venerie among themselues." Among the Patagonians, according to Falkner (Description of Patagonia, p. 117), the male wizards are chosen for their office when they are children, and "a preference is always shown to those who at that early time of life discover an effeminate disposition." They are obliged, as it were, to leave their sex, and to dress themselves in female apparel.]

It has been suggested that the popular attitude towards homosexuality was originally an aspect of economics, a question of under- or over-population, and that it was forbidden or allowed accordingly. Dr. Havelock Ellis thinks it probable that there is a certain relationship {485} between the social reaction against homosexuality and against infanticide:--"Where the one is regarded leniently and favourably, there generally the other is also; where the one is stamped out, the other is usually stamped out."[197] But our defective knowledge of the opinions of the various savage races concerning homosexuality hardly warrants such a conclusion; and if a connection really does exist between homosexual practices and infanticide it may be simply due to the numerical disproportion between the sexes resulting from the destruction of a multitude of female infants.[198] On the other hand we are acquainted with several facts which are quite at variance with Dr. Ellis's suggestion. Among many Hindu castes female infanticide has for ages been a genuine custom,[199] and yet pederasty is remarkably rare among the Hindus. The ancient Arabs were addicted to infanticide,[200] but not to homosexual love,[201] whereas among modern Arabs the case is exactly the reverse. And if the early Christians deemed infanticide and pederasty equally heinous sins, they did so certainly not because they were anxious that the population should increase; if this had been their motive they would hardly have glorified celibacy. It is true that in a few cases the unproductiveness of homosexual love has been given by indigenous writers as a reason for its encouragement or condemnation. It was said that the Cretan law on the subject had in view to check the growth of population; but, like Döllinger,[202] I do not believe that this assertion touches the real root of the matter. More importance may be attached to the following passage in one of the Pahlavi texts:--"He who is wasting seed makes a practice of causing the death of progeny; when the custom is completely continuous, which produces an evil stoppage of the progress of the race, the creatures have become annihilated; and certainly, that action, from which, when it is universally proceeding, the depopulation {486} of the world must arise, has become and furthered the greatest wish of Aharman."[203] I am, however, of opinion that considerations of this kind have generally played only a subordinate, if any, part in the formation of the moral opinions concerning homosexual practices. And it can certainly not be admitted that the severe Jewish law against sodomy was simply due to the fact that the enlargement of the

population was a strongly felt social need among the Jews.[204] However much they condemned celibacy, they did not put it on a par with the abominations of Sodom. The excessive sinfulness which was attached to homosexual love by Zoroastrianism, Hebrewism, and Christianity, had quite a special foundation. It cannot be sufficiently accounted for either by utilitarian considerations or instinctive disgust. The abhorrence of incest is generally a much stronger feeling than the aversion to homosexuality. Yet in the very same chapter of Genesis which describes the destruction of Sodom and Gomorrah we read of the incest committed by the daughters of Lot with their father; [205] and, according to the Roman Catholic doctrine, unnatural intercourse is an even more heinous sin than incest and adultery.[206] The fact is that homosexual practices were intimately associated with the gravest of all sins: unbelief, idolatry, or heresy.

[Footnote 197: Havelock Ellis, op. cit. p. 206. See Additional Notes.]

[Footnote 198: Cf. supra, ii. 466 (Tahitians).]

[Footnote 199: Supra, i. 407.]

[Footnote 200: Supra, i. 406 sq.]

[Footnote 201: von Kremer, Culturgeschichte des Orients, ii. 129.]

[Footnote 202: Döllinger, op. cit. ii. 239.]

[Footnote 203: Dâdistân-î Dînîk, lxxvii. 11.]

[Footnote 204: Havelock Ellis, op. cit. p. 206.]

[Footnote 205: Genesis, xix. 31 sqq.]

[Footnote 206: Thomas Aquinas, Summa theologica, ii.-ii. 154. 12. Katz, Grundriss des kanonischen Strafrechts, pp. 104, 118, 120. Clarus, Practica criminalis, book v. § Sodomia, Additiones, 1 (Opera omnia, ii. 152):--"Hoc vitium est majus, quam si quis propriam matrem cognosceret."]

According to Zoroastrianism, unnatural sin had been created by Angra Mainyu. [207] "Aharman, the wicked, miscreated the demons and fiends, and also the remaining corrupted ones, by his own unnatural intercourse."[208] Such intercourse is on a par with Afrâsiyâb, a Turanian king who conquered the Iranians for twelve years;[209] with Dahâk, a king or dynasty who is said to have conquered Yim and reigned for a thousand years;[210] with Tûr-i Brâdar-vakhsh, {487} a heterodox wizard by whom the best men were put to death.[211] He who commits unnatural sin is "in his whole being a Daêva";[212] and a Daêva-worshipper is not a bad Zoroastrian, but a man who does not belong to the Zoroastrian system, a foreigner, a non-Aryan.[213] In the Vendîdâd, after the statement that the voluntary commission of unnatural sin is a trespass for which there is no atonement for ever and ever, the question is put, When is it so? And the answer given is:--If the sinner be a professor of the religion of Mazda, or one who has been taught in it. If not, his sin is taken from him, in case he makes confession of the religion of Mazda and resolves never to commit again such forbidden deeds.[214] This is to say, the sin is inexpiable if it involves a downright defiance of the true religion, it is forgiven if it is committed in ignorance of it and is followed by submission. From all this it appears that Zoroastrianism stigmatised unnatural intercourse as a practice of infidels, as a sign of unbelief. And I think that certain facts referred to above help us to understand why it did so. Not only have homosexual practices been commonly associated with sorcery, but such an association has formed, and partly still forms, an incident of the shamanistic system prevalent among the Asiatic peoples of Turanian stock, and that it did so already in remote antiquity is made extremely probable by statements which I have just quoted from Zoroastrian texts. To this system Zoroastrianism was naturally furiously opposed, and the "change of sex" therefore appeared to the Mazda worshipper as a devilish abomination.

[Footnote 207: Vendîdâd, i. 12.]

[Footnote 208: Dînâ-î Maînôg-î Khirad, viii. 10.]

[Footnote 209: Sad Dar, ix. 5. West's note to Dînâ-î Maînôg-î Khirad, viii. 29 (**Sacred Books of the East, xxiv. 35, n. 4.)]

[Footnote 210: Sad Dar, ix. 5. West's note to Dînâ-î Maînôg-î Khirad, viii. 29 (Sacred Books of the East, xxiv. 35, n. 3).]

[Footnote 211: Sad Dar, ix. 5. West's note to Dâdistân-î Dînîk, lxxii. 8 (Sacred Books of the East, xviii. 218).]

[Footnote 212: Vendîdâd, viii. 32.]

[Footnote 213: Darmesteter, in Sacred Books of the East, iv. p. li.]

[Footnote 214: Vendîdâd, viii. 27 sq.]

So also the Hebrews abhorrence of sodomy was largely due to their hatred of a foreign cult. According to Genesis, unnatural vice was the sin of a people who were not the Lord's people, and the Levitical legislation represents Canaanitish abominations as the chief reason {488} why the Canaanites were exterminated.[215] Now we know that sodomy entered as an element in their religion. Besides [k.]ed[=e]sh[=o]th, or female prostitutes, there were [k.]ed[=e]sh[=i]m, or male prostitutes, attached to their temples.[216] The word [k.]ad[=e]sh, translated "sodomite," properly denotes a man dedicated to a deity;[217] and it appears that such men were consecrated to the mother of the gods, the famous Dea Syria, whose priests or devotees they were considered to be.[218] The male devotees of this and other goddesses were probably in a position analogous to that occupied by the female devotees of certain gods, who also, as we have seen, have developed into libertines; and the sodomitic acts committed with these temple prostitutes may, like the connections with priestesses, have had in view to transfer blessings to the worshippers.[219] In Morocco supernatural benefits are expected not only from heterosexual, but also from homosexual intercourse with a holy person.[220] The [k.]ed[=e]sh[=i]m are frequently alluded to in the Old Testament, especially in the period of the monarchy, when rites of foreign origin made their way into both Israel and Judah.[221] And it is natural that the Yahveh worshipper should regard their practices with the utmost horror as forming part of an idolatrous cult.

[Footnote 215: Leviticus, xx. 23.]

[Footnote 216: Deuteronomy, xxiii. 17. Driver, Commentary on Deuteronomy, p. 264.]

[Footnote 217: Driver, op. cit. p. 264 sq. Selbie, 'Sodomite,' in Hastings, Dictionary of the Bible, iv. 559.]

[Footnote 218: St. Jerome, In Osee, i. 4. 14 (Migne, op. cit. xxv. 851). Cook's note to 1 Kings, xiv. 24, in his edition of The Holy Bible, ii. 571. See also Lucian, Lucius, 38.]

[Footnote 219: Rosenbaum suggests (Geschichte der Lustseuche im Alterthume, p. 120) that the eunuch priests connected with the cult of the Ephesian Artemis and the Phrygian worship of Cybele likewise were sodomites.]

[Footnote 220: See Westermarck, The Moorish Conception of Holiness, p. 85.]

[Footnote 221: 1 Kings, xiv. 24; xv. 12; xxii. 46. 2 Kings, xxiii. 7. Job, xxxvi. 14. Driver, op. cit. p. 265.]

The Hebrew conception of homosexual love to some extent affected Muhammedanism, and passed into Christianity. The notion that it is a form of sacrilege was here strengthened by the habits of the gentiles. St. Paul found the abominations of Sodom prevalent among nations who had "changed the truth of God into a lie, and worshipped and served the creature more than the {489} Creator."[222] During the Middle Ages heretics were accused of unnatural vice as a matter of course.[223]

Indeed, so closely was sodomy associated with heresy that the same name was applied to both. In 'La Coutume de Touraine-Anjou' the word herite, which is the ancient form of hérétique,[224] seems to be used in the sense of "sodomite";[225] and the French bougre (from the Latin Bulgarus, Bulgarian), as also its English synonym, was originally a name given to a sect of heretics who came from Bulgaria in the eleventh century, and was afterwards applied to other heretics, but at the same time it became the regular expression for a person guilty of unnatural intercourse.[226] In mediæval laws sodomy was also repeatedly mentioned together with heresy, and the punishment was the same for both.[227] It thus remained a religious offence of the first order. It was not only a "vitium nefandum et super omnia detestandum,"[228] but it was one of the four "clamantia peccata," or crying sins,[229] a "crime de Majestie, vers le Roy celestre."[230] Very naturally, therefore, it has come to be regarded with somewhat greater leniency by law and public opinion in proportion as they have emancipated themselves from theological doctrines. And the fresh light which the scientific study of the sexual impulse has lately thrown upon the subject of homosexuality must also necessarily influence the moral ideas relating to it, in so far as no scrutinising judge can fail to take into account the pressure which a powerful non-volitional desire exercises upon an agent's will.

[Footnote 222: Romans, i. 25 sqq.]

[Footnote 223: Littré, Dictionnaire de la langue française, i. 386, 'Bougre.' Haynes, Religious Persecution, p. 54.]

[Footnote 224: Littré, op. cit. i. 2010, 'Hérétique.']

[Footnote 225: Les Établissements de Saint Louis, i. 90, vol. ii. 147. Viollet, in his Introduction to the same work, i. 254.]

[Footnote 226: Littré, op. cit. i. 386, 'Bougre.' Murray, New English Dictionary, i. 1160, 'Bugger.' Lea, History of the Inquisition of the Middle Ages, i. 115, note.]

[Footnote 227: Beaumanoir, Coutumes du Beauvoisis, xxx. 11, vol. i. 413:--"Qui erre contre le foi, comme en mescreance, de le quele il ne veut venir à voie de verité, ou qui fet sodomiterie, il doit estre ars, et forfet tout le sien en le maniere dessus." Britton, i. 10, vol. i. 42. Montesquieu, De l'esprit des lois, xii. 6 ([OE]uvres, p. 283). Du Boys, Histoire du droit criminel de l'Espagne, pp. 486, 721.]

[Footnote 228: Clarus, Practica criminalis, book v. § Sodomia, 1 (Opera omnia, ii. 151).]

[Footnote 229: Coke, Third Part of the Institutes of the Laws of England, p. 59.]

[Footnote 230: Mirror, quoted ibid. p. 58.]

Chapter XLIV — Regard For the Lower Animals

MEN'S conduct towards the lower animals is frequently a subject of moral valuation.

Totem animals must be treated with deference by those who bear their names, and animals generally regarded as divine must be respected by all; of this more will be said in a subsequent chapter.[1] Among various peoples the members of certain animal species must not be killed, because they are considered to be receptacles for the souls of departed men,[2] or because the species is believed to have originated through a transformation of men into animals.[3] The Dyaks of Borneo have a superstitious dread of killing orang-utans, being of opinion that these apes are men who went to live in the forest and abstain from speaking merely in order to be exempt from paying taxes.[4]

The Moors consider it wrong to kill a monkey, because the monkey was once a man whom God changed into his present shape as a punishment for the sin he committed by performing his ablutions with milk; and they would never do harm to a stork, because, as they say, the stork was originally a judge, who passed unjust sentences upon his fellow creatures and therefore became what he is. They also account it a sin to kill a swallow or a pigeon, a white spider or a bee, because they regard them as holy. Other creatures, again, are spared by the Moors because they {491} appear uncanny or are suspected of being evil spirits in disguise. It is believed that anybody who kills a raven easily goes mad and that he who kills a toad will get fever or die; and no Moor would dare to hit a cat or a dog in the dark, since it seems very doubtful what kind of being it really is. Superstitions of this sort are world-wide.]

[Footnote 1: Infra, on Duties to Gods.]

[Footnote 2: Infra, p. 516 sq.]

[Footnote 3: See Meiners, Allgemeine Geschichte der Religionen, i. 213 sqq.]

[Footnote 4: Selenka, Sonnige Welten, p. 57.]

It is a common belief among uncultured peoples that a person who slays an animal is exposed to the vengeance either of its disembodied spirit or of all the other creatures belonging to the same species.[5] Hence, as Sir J. G. Frazer has shown, the savage often makes it a rule to spare the lives of those animals which he has no pressing motive for killing, at least such fierce and dangerous ones as are likely to exact a bloody revenge for the slaughter of any of their kind; and when, for some reason or other, he overcomes his superstitious scruples and takes the life of the beast, he is anxious to appease the victim and its kindred by testifying his respect for them, or making apologies, or trying to conceal his share in procuring the death of the animal, or promising that its remains will be honourably treated.[6] The Stiêns of Cambodia, for instance, who believe that animals have souls which wander about after death, ask pardon when they have killed one, lest its soul should visit and torment them; and they also offer it sacrifices proportioned to the strength and size of the animal.[7] When a party of Koriaks have killed a bear or a wolf, they skin the beast, dress one of their family in the skin, and dance round the skin-clad man, saying that it was not they who killed the animal but someone else, by preference a Russian.[8] The Eskimo about Behring Strait maintain that the dead bodies of various animals must be treated very carefully by the hunter who obtains them, so that their shades may not be offended and bring bad luck or even death upon him or his people.[9]

[Footnote 5: Supra, i. 258.]

[Footnote 6: Frazer, Golden Bough, ii. 389 sqq.]

[Footnote 7: Mouhot, Travels in the Central Parts of Indo-China, i. 252.]

[Footnote 8: Bastian, Der Mensch in der Geschichte, iii. 26.]

[Footnote 9: Nelson, 'Eskimo about Bering Strait,' in Ann. Rep. Bur. Ethn. xviii. 438.]

{492} The savage, moreover, desires to keep on good terms with animals which, without being feared, are either eaten or valued for their skins. Hence, when he captures one, he shows such deference for it as may be necessary for inducing its fellows to come and be killed also.[10] Alaskan hunters preserve the bones of sables and beavers out of reach of the dogs for a year and then bury them carefully, lest the spirits which look after these species should consider that "they are regarded with contempt and hence no more should be killed or trapped."[11] The Thompson River Indians of British Columbia said that when a deer was killed its fellows would be well pleased if the hunters butchered the animal nicely and cleanly.[12] The Hurons refrained from throwing fish bones into the fire, lest the souls of the fish should go and warn the other fish not to let themselves

be caught, since, if they were, their own bones would also be burned.[13] Some savages respect the bones of the animals which they eat because they believe that the bones, if preserved, will, in the course of time, be reclothed with flesh and the animal thus come to life again.[14]

[Footnote 10: Frazer, op. cit. ii. 403 sqq.]

[Footnote 11: Dall, Alaska, p. 89.]

[Footnote 12: Teit, 'Thompson Indians of British Columbia,' in Memoirs of the American Museum of Natural History, 'Anthropology,' i. 346.]

[Footnote 13: Sagard, Le grand voyage du pays des Hurons, p. 255.]

[Footnote 14: Frazer, op. cit. ii. 415 sqq.]

Besides the creatures which primitive man treats with respect because he dreads their strength and ferocity or on account of the benefits he expects from them, there is yet a third class of animate beings which he sometimes deems it necessary to conciliate, namely, vermin that infest the crops.[15] Among the Saxons of Transylvania, in order to keep sparrows from the corn, the sower begins by throwing the first handful of seed backwards over his head, saying, "That is for you, sparrows."[16] And of the Drâvidian tribes of Mirzapur we are told that, when locusts threaten to eat up the fruits of the earth, the people catch one, decorate its head with a spot of red {493} lead, salaam to it, and let it go; after which civilities the whole flight immediately departs.[17]

[Footnote 15: Ibid. ii. 422 sqq.]

[Footnote 16: Heinrich, quoted ibid. ii. 423.]

[Footnote 17: Crooke, Popular Religion and Folk-lore of Northern India, ii. 303.]

Domestic animals are frequently objects of superstitious reverence.[18] They are expected to reward masters who treat them well, whereas those who harm them are believed to expose themselves to their revenge. Among the Eskimo about Behring Strait dogs are never beaten for biting people, lest the inua or shade of the dog should become angry and prevent the wound from healing.[19] Butchers are often regarded as unclean, and the original reason for this was in all probability the idea that they were haunted by the spirits of the animals they had slain. Among the Guanches of the Canary Islands it was unlawful for anybody but professional butchers to kill cattle, and a butcher was forbidden to enter other persons' houses, to touch their property, and to keep company with any one not of his own trade.[20] In Morocco a butcher, like a manslayer, is thought to be haunted by jnûn (jinn), and it seems that in this case also the notion of haunting jnûn has replaced an earlier belief in troublesome ghosts.[21] So, too, the ancient Troglodytes of East Africa, who derived their whole sustenance from their flocks and herds, are said to have looked upon butchers as unclean.[22] In the rural districts of Japan it is believed that a butcher will have a cripple among his descendants.[23]

[Footnote 18: See Robertson Smith, Religion of the Semites, p. 296 sqq.]

[Footnote 19: Nelson, in Ann. Rep. Bur. Ethn. xviii. 435.]

[Footnote 20: Abreu de Galindo, History of the Discovery and Conquest of the Canary Islands, p. 71 sq. Bory de St. Vincent, Essais sur les Isles Fortunées, p. 103 sq.]

[Footnote 21: Cf. supra, i. 378.]

[Footnote 22: Robertson Smith, op. cit. p. 296 sq.]

[Footnote 23: Griffis, Mikado's Empire, p. 472.]

How far ideas of this sort may account for the great disinclination of many peoples to kill their cattle, it is impossible to say; but they certainly do not constitute the only motive. We have noticed above that pastoral tribes are unwilling to reduce their herds and agricultural peoples to kill the ploughing ox, because this would imply {494} loss of

valuable property.[24] And apart from economic considerations, we may assume that feelings of genuine sympathy also induce them to treat their animals with kindness. The altruistic sentiment has not necessarily reference to members of the same species only; of this we find instances even among animals in confinement and domesticated animals, which frequently become attached to individuals of a different species with whom they live together.[25] And the savage feels himself much more closely related to the animal world than does his civilised fellow creature; indeed, as we have seen, he habitually obliterates the boundaries between man and beast and regards all animals as practically on a footing of equality with himself.[26] Among the pastoral races of Africa the men delight in attending their cattle, and spend much time in ornamenting and adorning them; the herdsman knows every beast in his herd, calls it by its name, and affectionately observes all its peculiarities.[27] Of the Bahima, a cow tribe in Uganda, the Rev. J. Roscoe tells us that the men form warm attachments for their cattle; some of them love the animals like children, pet and coax them, talk to them, and weep over their ailments, and should a favourite die their grief is so extreme that it sometimes leads to suicide.[28] The mythical founder of the kingdom of Uganda, Kintu, is said to have been so humane and averse from the sight of blood, that "even cattle killed for necessary food were slaughtered at some distance from his dwelling."[29] But cattle are not the only dumb creatures that excite tender feelings in the bosom of a savage. The For tribe of Central Africa regard it as a characteristic of a good man to be kind to animals in general, and consider it wicked to be otherwise.[30] Concerning the Eastern Central Africans Mr. {495} Macdonald writes that if they appear destitute of pity, say, for their fowls in their methods of carrying them, it is because they do not reflect that it gives them pain--"all would admit that it was a cruel thing to pain the fowl"; and they have fables in their language which show a desire to enter minutely into the feelings of dumb creatures, representing, for instance, fowls as reasoning on their hard fate in being killed for their master's supper.[31] Among the Indians of the province of Quito, according to Juan and Ulloa, the women are so fond of their fowls that they will not sell them, much less kill them with their own hands; "so that if a stranger, who is obliged to pass the night in one of their cottages, offers ever so much money for a fowl, they refuse to part with it, and he finds himself under a necessity of killing the fowl himself. At this his landlady shrieks, dissolves in tears, and wrings her hands, as if it had been an only son; till seeing the mischief past remedy she wipes her eyes, and quietly takes what the traveller offers her."[32] North American Indians, again, are very fond of their hunting dogs. Those on the west side of the Rocky Mountains "appear to have the same affection for them that they have for their children; and they will discourse with them, as if they were rational beings. They frequently call them their sons or daughters; and when describing an Indian, they will speak of him as father of a particular dog which belongs to him. When these dogs die, it is not unusual to see their masters or mistresses place them on a pile of wood, and burn them in the same manner as they do the dead bodies of their relations; and they appear to lament their deaths, by crying and howling, fully as much as if they were their kindred."[33] So also the natives of Australia often display much affection for their dogs; Mr. Gason has seen women crying over a dog when bitten by a snake as if it had been one of their own children, and if a puppy has lost its mother the {496} women suckle and nurse it.[34] Of the Maoris of New Zealand we read that their extreme love of offspring "was also carried out to excess towards the young of brutes--especially of their dogs, and, afterwards, of cats and pigs introduced. Hence it was by no means an unusual sight to see a woman carrying her child at her back, and a pet dog, or pig, in her bosom."[35] The Chukchi of North-Eastern Siberia believe that

if a person is cruel to brutes his soul will after his death migrate into some domestic animal--a dog, a horse, or a reindeer.[36] Even the miserable Veddahs of Ceylon are said to be indignant at the needless killing of a beast.[37]

[Footnote 24: Supra, ii. 331.]

[Footnote 25: See supra, i. 112.]

[Footnote 26: Supra, i. 258.]

[Footnote 27: Ratzel, History of Mankind, ii. 415.]

[Footnote 28: Roscoe, 'Bahima,' in Jour. Anthr. Inst. xxxvii. 94 sq.]

[Footnote 29: Felkin, 'Notes on the Waganda Tribe,' in Proceed. Roy. Soc. Edinburgh, xiii. 764.]

[Footnote 30: Felkin, 'Notes on the For Tribe,' in Proceed. Roy. Soc. Edinburgh, xiii. 232 sq.]

[Footnote 31: Macdonald, Africana, i. 10 sq.]

[Footnote 32: Juan and Ulloa, Voyage to South America, i. 426 sq.]

[Footnote 33: Harmon, Journal of Voyages in the Interior of North America, p. 335 sq.]

[Footnote 34: Gason, 'Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 259. Fraser, Aborigines of New South Wales, p. 5. Williams, 'Yircla Meening Tribe,' in Curr, The Australian Race, i. 402.]

[Footnote 35: Colenso, Maori Races of New Zealand, p. 43.]

[Footnote 36: Ratzel, op. cit. ii. 231.]

[Footnote 37: Sarasin, Ergebnisse naturwissenschaftlicher Forschungen auf Ceylon, iii. 539.]

On the other hand we also hear of savages who are greatly lacking in sympathy for the brute creation. Darwin says that humanity to the lower animals is apparently unfelt by savages, except towards their pets.[38] Mr. Atkinson charges the New Caledonians with great cruelty to animals.[39] The Tasmanians appeared much to enjoy the tortures of a wounded bird or beast.[40] It is not to be expected that people whose kindly feelings towards men hardly extend beyond the borders of their own communities should be compassionate to wild animals. They may also appear wantonly cruel because they do not realise the pain which they inflict. And, like children, they may enjoy the agony of a suffering beast or bird because it excites their curiosity.

[Footnote 38: Darwin, Descent of Man, p. 123.]

[Footnote 39: Atkinson, 'Natives of New Caledonia,' in Folk-lore, xiv. 248.]

[Footnote 40: Davies, quoted by Ling Roth, Tasmanians, p. 66.]

It is obvious from what has been said above that already at the savage stage men's conduct towards the lower animals must in some cases be a matter of moral concern. For hand in hand with the altruistic sentiment we always find the feeling of sympathetic resentment whenever there is an occasion for its outburst. Moreover, {497} acts which are, or are believed to be, injurious to the agent, by exposing him to an animal's revenge or otherwise, are prohibited because they are imprudent; and, as we have often noticed, such prohibitions are apt to assume a moral character. Finally, if a certain mode of conduct is considered to be productive of public harm, as is the case with any act or omission which reduces, or is supposed to reduce, the supply of food or animal clothing, it is naturally looked upon as a wrong against the community.

Similar facts have, among peoples of a higher culture, led to moral rules inculcating regard for animals--rules which have often assumed a definite shape in their laws or religious books.

According to Brahmanism tenderness towards all creatures is a duty incumbent upon the four castes. It is said that "he who injures innoxious beings from a wish to give himself pleasure, never finds happiness, neither living nor dead."[41] If a blow is struck against animals in order to give them pain, the judge shall inflict a fine in proportion to the amount of pain caused, just as if the blow had been struck against a man.[42] The killing of various creatures, including fish and snakes, reduces the offender to a mixed caste;[43] and, according to 'Vishnu Purana,' fishermen go after death to the same hell as awaits prisoners, incendiaries, and treacherous friends.[44] To kill a cow is a great crime;[45] whereas he who unhesitatingly abandons life for the sake of a cow is freed even from the guilt of the murder of a Brâhmana, and so is he who saves the life of a cow.[46] Among many of the Hindus the slaughter of a cow excites more horror than the killing of a man, and is punished with great severity, even with death.[47]

[Footnote 41: Laws of Manu, v. 45.]

[Footnote 42: Ibid. viii. 286.]

[Footnote 43: Ibid. xi. 69.]

[Footnote 44: Vish['n]u Purá['n]a, p. 208 sq.]

[Footnote 45: Institutes of Vishnu, l. 16 sqq. Gautama, xxii. 18. Âpastamba, i. 26. 1. Laws of Manu, xi. 109 sqq.]

[Footnote 46: Laws of Manu, xi. 80.]

[Footnote 47: Barth, Religions of India, p. 264. Kipling, Beast and Man in India, p. 118 sq. Crooke, Things Indian, p. 91.]

In Buddhism, Jainism, and Taouism the respect for animal life is extreme. A disciple of Buddha may not {498} knowingly deprive any creature of life, not even a worm or an ant. He may not drink water in which animal life of any kind whatever is contained, and must not even pour it out on grass or clay.[48] And the doctrine which forbids the killing of animate beings is not only professed, but in a large measure followed, by the great majority of people in Buddhistic countries. In Siam the tameness of many living creatures which in Europe fly from the presence of man is very striking. Instances have been known in which natives have quitted the service of Europeans on account of their unwillingness to destroy reptiles and vermin, and it is a not uncommon practice for rich Siamese to buy live fish to have the merit of restoring them to the sea.[49] In Burma, though fish is one of the staple foods of the people, the fisherman is despised; not so much, perhaps, as if he killed other living things, but he is still an outcast from decent society, and "will have to suffer great and terrible punishment before he can be cleansed from the sins that he daily commits."[50] The Buddhists of Ceylon are more forbearing: they excuse the fisherman by saying that he does not kill the fish, but only removes it from the water.[51] In Tibet all dumb creatures are treated with humanity, and the taking of animal life is rather strictly prohibited, except in the case of yaks and sheep needed for food. Owing to the coldness of the climate, flesh forms an essential staple of diet; but the butchers are regarded as professional sinners and are therefore the most despised of all classes in Tibet. Wild animals and even small birds and fish are seldom or never killed, on account of the religious penalties attached to this crime.[52]

[Footnote 48: Oldenberg, Buddha, pp. 290 **n. *, 351.]

[Footnote 49: Bowring, Siam, i. 107.]

[Footnote 50: Fielding Hall, The Soul of a People, p. 230.]

[Footnote 51: Schmidt, Ceylon, p. 316 sq.]

[Footnote 52: Waddell, Buddhism of Tibet, p. 567 sq.]

The Jain is stricter still in his regard for animal life. He sweeps the ground before him as he goes, lest animate things be destroyed; he walks veiled, lest he inhale a living

organism; he considers that the evening and night are {499} not times for eating, since one might then swallow a live thing by mistake; and he rejects not only meat but even honey, together with various fruits that are supposed to contain worms, not because of his distaste for worms but because of his regard for life.[53] Some towns in Western India in which Jains are found have their beast hospitals, where animals are kept and fed. At Surat there was quite recently an establishment of this sort with a house where a host of noxious and offensive vermin, dense as the sands on the sea-shore, were bred and nurtured; and at Anjár, in Kutch, about five thousand rats were kept in a certain temple and daily fed with flour, which was procured by a tax on the inhabitants of the town.[54]

[Footnote 53: Hopkins, Religions of India, p. 288. Barth, op. cit. p. 145. Kipling, op. cit. p. 10 sq.]

[Footnote 54: Burnes, 'Notice of a remarkable Hospital for Animals at Surat,' in Jour. Roy. Asiatic Soc. i. 96 sq.]

According to 'Thâi-Shang,' one of the books of Taouism, a good man will feel kindly towards all creatures, and refrain from hurting even the insect tribes, grass, and trees; and he is a bad man who "shoots birds and hunts beasts, unearths the burrowing insects and frightens roosting birds, blocks up the dens of animals and overturns nests, hurts the pregnant womb and breaks eggs."[55] In the book called 'Merits and Errors Scrutinised,' which enjoys great popularity in China, it is said to be meritorious to save animals from death--even insects if the number amounts to a hundred,--to relieve a brute that is greatly wearied with work, to purchase and set at liberty animals intended to be slaughtered. On the other hand, to confine birds in a cage, to kill ten insects, to be unsparing of the strength of tired animals, to disturb insects in their holes, to destroy the nests of birds, without great reason to kill and dress animals for food, are all errors of various degrees. And "to be the foremost to encourage the slaughter of animals, or to hinder persons from setting them at liberty," is regarded as an error of the same magnitude as the crime of devising a person's death or of drowning or murdering a child.[56] Kindness {500} to animals is conspicuous in the writings of Confucius and Mencius;[57] the Master angled but did not use a net, he shot but not at birds perching.[58] Throughout Japan, according to Sir Edward Reed, "the life of animals has always been held more or less sacred. . . ., neither Shintoism nor Buddhism requiring or justifying the taking of the life of any creature for sacrifice."[59]

[Footnote 55: Thâi-Shang, 3 sq.]

[Footnote 56: Indo-Chinese Gleaner, iii. 164, 205 sq.]

[Footnote 57: Mencius, i. 1. 7.]

[Footnote 58: Lun Yü, vii. 26.]

[Footnote 59: Reed, Japan, i. 61.]

The regard for the lower animals which is shown by these Eastern religions and their adherents is to some extent due to superstitious ideas, similar to those which we found prevalent among many savages. Dr. de Groot observes that in China the virtues of benevolence and humanity are extended to animals because these, also, have souls which may work vengeance or bring reward.[60] The conduct of Orientals towards the brute creation has further been explained by their belief in the transmigration of souls. But it seems that the connection between their theory of metempsychosis and their rules relating to the treatment of animals is not exclusively, nor even chiefly, one of cause and effect, but rather one of a common origin. This theory itself may in some measure be regarded as a result of that intimacy which prevails in the East between animals and men. Buddhism recognises no fundamental distinction between them, only

an accidental or phenomenal difference;[61] and the step is not long from this attitude to the doctrine of metempsychosis. Captain Forbes maintains that the humanity with which the Burmans treat dumb animals comes "more from the innate good nature and easiness of their dispositions than from any effect over them of this peculiar doctrine";[62] and they laugh at the suggestion made by Europeans that Buddhists abstain from taking life because they believe in the transmigration of souls, having never heard of it before. Their motive, says Mr. Fielding Hall, is compassion and noblesse oblige.[63] But by its punishments {501} and rewards, religion has greatly increased the natural regard for animal life and welfare, and introduced a new motive for conduct which originally sprang in the main from kindly feeling.

[Footnote 60: de Groot, Religious System of China, (vol. iv. book) ii. 450.]

[Footnote 61: Rhys Davids, Hibbert Lectures on Buddhism, p. 214.]

[Footnote 62: Forbes, British Burma, p. 321.]

[Footnote 63: Fielding Hall, op. cit. p. 237 sq.]

In Zoroastrianism we meet with a different attitude towards the lower animal world. A fundamental distinction is made between the animals of Ormuzd and those of Ahriman. To kill one of the former is a heinous sin, to kill one of the latter is a pious deed.[64] Sacred above all other animals is the dog. The ill-feeding and maltreatment of dogs are prosecuted as criminal, and extreme penalties are inflicted on those who venture to kill them.[65] Nay, if there be in the house of a worshipper of Mazda a mad dog who has no scent, the worshippers of Mazda "shall attend him to heal him, in the same manner as they would do for one of the faithful."[66] In the eyes of the Parsis, animals are enlisted under the standards of either Ormuzd or Ahriman according as they are useful or hurtful to man; but M. Darmesteter is of opinion that they originally belonged to the one or the other not on account of any such qualities, but according as they chanced to have lent their forms to either the god or the fiend in the storm tales. "It was not animal psychology," he says, "that disguised gods and fiends as dogs, otters, hedge-hogs, and cocks, or as snakes, tortoises, frogs, and ants, but the accidents of physical qualities and the caprice of popular fancy, as both the god and the fiend might be compared with, and transformed into, any object, the idea of which was suggested by the uproar of the storm, the blazing of the lightning, the streaming of the water, or the hue and shape of the clouds."[67] This hypothesis, however, seems to attach undue importance to mythical fancies, and it presupposes an almost unbounded and capricious allegorism, for which there is apparently little foundation {502} in facts. The suggestion that the animals are referred to either the one or the other category according as they are useful or obnoxious to man, is at all events borne out by a few salient features, although in many details the matter remains obscure.

[Footnote 64: Darmesteter, Ormazd et Ahriman, p. 283.]

[Footnote 65: Vendîdâd, xiii. sq. Geiger, Civilization of the Eastern Iranians, ii. 36.]

[Footnote 66: Vendîdâd, xiii. 35.]

[Footnote 67: Darmesteter, in Sacred Books of the East, iv. (1st edit.) p. lxxii. sq. See also Idem, Ormazd et Ahriman, p. 283 sqq.]

It appears that among the Zoroastrians, also, the respect for the life of animals is partly due to superstitious ideas about their souls and fear of their revenge. According to the 'Yasts,' "the souls of the wild beasts and of the tame" are objects of worship;[68] and in one of the Pahlavi texts it is said that people should abstain from unlawfully slaughtering any species of animals, since otherwise, in punishment for such an act, each hair of the animal killed becomes like a sharp dagger, and he who is unlawfully a slaughterer is slain.[69] But here again we may assume the co-operating influence

of the feeling of sympathy. Various passages in the Zoroastrian 'Gathas' which enjoin kindness to domestic animals[70] suggest as their motives not only considerations of utility but genuine tenderness. In a later age Firdausi sang, "Ah! spare yon emmet rich in hoarded grain: He lives with pleasure, and he dies with pain."[71] And of the modern Persian Dr. Polak says that, "naturally not cruel, he treats animals with more consideration than men."[72] His present religion, too, enjoins kindness to animals as a duty.

[Footnote 68: Yasts, xiii. 154.]

[Footnote 69: Shâyast Lâ-Shâyast, x. 8.]

[Footnote 70: Darmesteter, in Le Zend-Avesta, i. p. cvi.]

[Footnote 71: Firdausi, quoted by Jones, 'Tenth Anniversary Discourse,' in Asiatick Researches, iv. 12.]

[Footnote 72: Polak, Persien, i. 12.]

According to Muhammedanism, beasts, birds, fish, insects, are all, like man, the slaves of God, the tools of His will. There is no intrinsic distinction between them and the human species, except what accidental diversity God may have been pleased to make.[73] Muhammed said to his followers:--"There is not a beast upon the earth nor a bird that flies with both its wings, but is a nation like to you; . . . to their Lord shall they be gathered."[74] Muhammedan law prescribes that domestic animals shall {503} be treated with consideration and not be overworked;[75] and in various Muhammedan countries this law has also been habitually put into practice. The Moslems of India are kind to animals.[76] In his earlier intercourse with the people of Egypt, Mr. Lane noticed much humanity to beasts.[77] Montaigne said that the Turks gave alms to brutes and had hospitals for them;[78] and Mr. Bosworth Smith is of opinion that beasts of burden and domestic animals are nowhere in Christendom with the one exception, perhaps, of Norway treated with such unvarying kindness and consideration as they are in Turkey. "In the East," he adds, "so far as it has not been hardened by the West, there is a real sympathy between man and the domestic animals; they understand one another."[79]

[Footnote 73: Cf. Palgrave, Journey through Central and Eastern Arabia, i. 368.]

[Footnote 74: Koran, vi. 38.]

[Footnote 75: Sachau, Muhammedanisches Recht, pp. 18, 103.]

[Footnote 76: Pool, Studies in Mohammedanism, pp. 176, 177, 247. Cf. Heber, Journey through the Upper Provinces of India, ii. 131.]

[Footnote 77: Lane, Modern Egyptians, p. 293.]

[Footnote 78: Montaigne, Essais, ii. 11.]

[Footnote 79: Bosworth Smith, Mohammed and Mohammedanism, pp. 180, 217.]

So also the ancient Greeks were on familiar terms with the animal world. This appears from the frequency with which their poets illustrate human qualities by metaphors drawn from it. And as men were compared with animals, so animals were believed to possess human peculiarities. When a beast was going to be sacrificed it had to give its consent to the act by a nod of the head before it was killed.[80] Animals were held in some measure responsible for their deeds; they were tried for manslaughter, sentenced, and executed.[81] On the other hand, honours were bestowed upon beasts which had rendered signal services to their masters. The graves of Cimon's mares with which he three times conquered at the Olympic games were still in the days of Plutarch to be seen near his own tomb;[82] and a certain Xanthippus honoured his dog by burying it on a promontory, since then called "the dog's grave," because when the Athenians were compelled to abandon their city it swam by the side of his galley to Salamis.[83] According to Xenocrates, there were in existence {504} at Eleusis three

laws which had been made by an ancient legislator, namely:--"Honour your parents; Sacrifice to the gods from the fruits of the earth; Injure not animals."[84] At Athens a man was punished for flaying a living ram.[85] The Areopagites once condemned a boy to death because he had picked out the eyes of some quails.[86] As we have noticed before, the life of the ploughing ox was sacred;[87] and young animals in particular were believed to be under the protection of the gods.[88] An ancient proverb says that "there are Erinyes even for dogs."[89] This seems to indicate that the Greeks, also, were influenced by the common notion that the soul of an animal may take revenge upon him who killed it, the Erinys of the slain animal being originally its persecuting ghost. Among the Pythagoreans, again, the rule that animals which are not obnoxious to the human race should be neither injured nor killed[90] was connected with their theory of metempsychosis;[91] and in some cases the prohibition of slaying useful animals may be traced to utilitarian motives.[92] But both in Greece and Rome kindness to brutes was also inculcated for their own sake, on purely humanitarian grounds. Porphyry says that, as justice pertains to rational beings and animals have been proved to be possessed of reason, it is necessary that we should act justly towards them.[93] He adds that "he who does not restrict harmless conduct to man alone, but extends it to other animals, most closely approaches to divinity; and if it were possible to extend it to plants, he would preserve this image in a still greater degree."[94] According to Plutarch kindness and beneficence to creatures of every species flow from the breast of a well-natured man as {505} streams that issue from the living fountain. We ought to take care of our dogs and horses not only when they are young, but when they are old and past service.[95] We ought not to violate or kill anything whatsoever that has life, unless it hurt us first.[96] And if we cannot live unblamably we should at least sin with discretion: when we kill an animal in order to satisfy our hunger we should do so with sorrow and pity, without abusing and tormenting it.[97] Cicero says it is a crime to injure an animal.[98] And Marcus Aurelius enjoins man to make use of brutes with a generous and liberal spirit, since he has reason and they have not.[99]

[Footnote 80: Schmidt, Die Ethik der alten Griechen, ii. 96 sq.]

[Footnote 81: Supra, i. 254.]

[Footnote 82: Plutarch, Cato Major, v. 6.]

[Footnote 83: Ibid. v. 7.]

[Footnote 84: Porphyry, De abstinentia ab esu animalium, iv. 22.]

[Footnote 85: Plutarch, De carnium esu oratio I. vii. 2.]

[Footnote 86: Quintilian, De institutione oratoria, v. 9. 13.]

[Footnote 87: Supra, ii. 331.]

[Footnote 88: Aeschylus, Agamemnon, 48 sqq. Xenophon, Cynegeticus, v. 14.]

[Footnote 89: Schmidt, op. cit. ii. 96.]

[Footnote 90: Jamblichus, De Pythagorica vita, 21 (98).]

[Footnote 91: Diogenes Laertius, Vitæ philosophorum, viii. 2. 12 (77). Aristotle, Rhetorica, i. 13. 2, p. 1373 b. Schmidt, op. cit. ii. 94.]

[Footnote 92: Porphyry, op. cit. iv. 22. Supra, ii. 331.]

[Footnote 93: Porphyry, op. cit. iii. 18.]

[Footnote 94: Ibid. iii. 28.]

[Footnote 95: Plutarch, Cato Major, v. 3 sq.]

[Footnote 96: Idem, Questiones Romanæ, 75.]

[Footnote 97: Idem, De carnium esu oratio II. i. 3.]

[Footnote 98: Cicero, De republica, iii. 11.]

[Footnote 99: Marcus Aurelius, Commentarii, vi. 23.]

In the Old Testament we meet with several instances of kindly feeling towards animals.[100] God watches over and controls the sustenance of their life. He sends springs into the valleys which will give drink to every beast of the field. He gives nests to the birds of the heaven, which sing among the branches. He causes grass to grow for the cattle; and the young lions, roaring after their prey, seek their food from God.[101] Whilst the Jews, as Professor Toy observes, found it hard to conceive of the God of Israel as thinking kindly of its enemies, they had no such feeling of hostility towards beasts and birds.[102] But at the same time man is the centre of the creation, a being set apart from all other sentient creatures as God's special favourite, for whose sake everything else was brought into existence. The sun, the moon, and the stars were placed in the firmament of the heaven to give light upon the estate of man.[103] For his sustenance the fruits of the earth were made to grow, and to him was given dominion over the fish of the sea, {506} and over the fowl of the air, and over every living thing that moves upon the earth.[104] And when the earth is to be replenished after the deluge, the same privileges are again granted to him. The fear of man and the dread of man shall be upon all living creatures, into his hand are they all delivered, they shall all be meat for him.[105] And they are given over to his supreme and irresponsible control without the slightest injunction of kindness or the faintest suggestion of any duties towards them. They are to be regarded by him simply as food.[106]

[Footnote 100: See Bertholet, Die Stellung der Israeliten zu den Fremden, p. 14. Various passages, however, which are often quoted as instances of tenderness towards animals allow of another and more natural interpretation. This is especially the case with the Sabbatarian injunctions referring to domestic animals.]

[Footnote 101: Psalms, civ. 10-12, 14, 17, 21.]

[Footnote 102: Toy, Judaism and Christianity, p. 81.]

[Footnote 103: Genesis, i. 16 sq.]

[Footnote 104: Genesis, i. 28.]

[Footnote 105: Ibid. ix. 2 sq.]

[Footnote 106: Cf. Evans, 'Ethical Relations between Man and Beast,' in Popular Science Monthly, xlv. 637 sq.]

Among the Hebrews the harshness of this anthropocentric doctrine was somewhat mitigated by the sympathy which a simple pastoral and agricultural people naturally feels for its domestic animals. In Christianity, on the other hand, it was further strengthened by the exclusive importance which was attached to the spiritual salvation of man. He was now more than ever separated from the rest of sentient beings. Even his own animal nature was regarded with contempt, the immortality of his soul being the only object of religious interest. "It would seem," says Dr. Arnold, "as if the primitive Christian, by laying so much stress upon a future life in contradistinction to this life, and placing the lower creatures out of the pale of hope, placed them at the same time out of the pale of sympathy, and thus laid the foundation for this utter disregard of animals in the light of our fellow-creatures."[107] St. Paul asks with scorn, "Doth God take care for oxen?"[108] No creed in Christendom teaches kindness to animals as a dogma of religion.[109] In the Middle Ages various councils of the Church declared hunting unlawful for the clergy;[110] but the obvious reason for this prohibition was its horror of bloodshed,[111] not any consideration {507} for the animals. Mr. Mauleverer in Sir Arthur Helps' 'Talk about Animals and their Masters,' says, "Upon a moderate calculation, I think I have heard, in my time, 1320 sermons; and I do not recollect that in any one of them I ever heard the slightest allusion made to the conduct of men towards animals."[112] Nor is there any such allusion in most treatises on Ethics which

base their teachings upon distinctly Christian tenets. The kindest words, I think, which from a Christian point of view have been said about animals have generally come from Protestant sectarians, Quakers and Methodists,[113] whereas Roman Catholic writers--with a few exceptions[114]--when they deal with the subject at all, chiefly take pains to show that animals are entirely destitute of rights. Brute beasts, says Father Rickaby, cannot have any rights for the reason that they have no understanding and therefore are not persons. We have no duties of any kind to them, as neither to stocks and stones; we only have duties about them. We must not harm them when they are our neighbour's property, we must not vex and annoy them for sport, because it disposes him who does so to inhumanity towards his own species. But there is no shadow of evil resting on the practice of causing pain to brutes in sport, where the pain is not the sport itself, but an incidental concomitant of it. Much more in all that conduces to the sustenance of man may we give pain to animals, and we are not "bound to any anxious care to make this pain as little as may be. Brutes are as things in our regard: so far as they are useful to us, they exist for us, not for themselves; and we do right in using them unsparingly for our need and convenience, though not for our wantonness."[115] According to another {508} modern Catholic writer the infliction of suffering upon an animal is not only justifiable, but a duty, "when it confers a certain, a solid good, however small, on the spiritual nature of man."[116] Pope Pius IX. refused a request for permission to form in Rome a Society for Prevention of Cruelty to Animals on the professed ground that it was a theological error to suppose that man owes any duty to an animal.[117]

[Footnote 107: Arnold, quoted by Evans, in Popular Science Monthly, xlv. 639.]

[Footnote 108: 1 Corinthians, ix. 9.]

[Footnote 109: The Manichæans prohibited all killing of animals (Baur, Das Manichäische Religionssystem, p. 252 sqq.); but Manichæism did not originate on Christian ground (Harnack, 'Manichæism,' in Encyclopædia Britannica, xv. 485; supra, ii. 312).]

[Footnote 110: Le Grand d'Aussy, Histoire de la vie privée des François, i. 394 sq.]

[Footnote 111: Supra, i. 381 sq.]

[Footnote 112: Helps, Some Talk about Animals and their Masters, p. 20. Cf. Mrs. Jameson, Common-Place Book of Thoughts, p. 212.]

[Footnote 113: See Gurney, Views and Practices of the Society of Friends, p. 392 sq. n. 8; Richmond, 'Sermon on the Sin of Cruelty to the Brute Creation,' in Methodist Magazine (London), xxx. 490 sqq.; Chalmers, 'Cruelty to Animals,' in Methodist Magazine (New York), ix. 259 sqq.]

[Footnote 114: See de la Roche-Fontenelles, L'Église et la pitié envers animaux, passim.]

[Footnote 115: Rickaby, Moral Philosophy, p. 248 sqq. See also Addis and Arnold, Catholic Dictionary, p. 33; Clarke, 'Cruelty to Animals,' in The Month and Catholic Review, xxv. 401 sqq.; Hedley, 'Dr. Mivart on Faith and Science,' in Dublin Review, ser. iii. vol. xviii. 418.]

[Footnote 116: Clarke, in The Month and Catholic Review, xxv. 406.]

[Footnote 117: Cobbe, Modern Rack, p. 6.]

It is not only theological moralists that maintain that animals can have no rights and that abstinence from wanton cruelty is a duty not to the animal but to man. This view has been shared by Kant[118] and by many later philosophers.[119] So also the legal protection of animals has often been vindicated merely on the ground that cruelty to animals might breed cruelty to men or shows a cruel disposition of mind,[120] or that it wounds the sensibilities of other people.[121] In 'Parliamentary History and Review' for

1825-1826 it is stated that no reason can be assigned for the interference of the legislator in the protection of animals unless their protection be connected, either directly or remotely, with some advantage to man.[122] The Bill for the abolition of bear-baiting and other cruel practices was expressly propounded on the ground that nothing was more conducive to crime than such sports, that they led the lower orders to gambling, that they educated them for thieves, that they gradually trained them up to bloodshed and murder.[123] The criminal code of the German Empire, again, imposes a fine upon any person "who spitefully tortures or cruelly ill-treats beasts, {509} either publicly or in a manner to create scandal"[124]--in other words, he is punished, not because he puts the animal to pain, but because his conduct is offensive to his fellow men.

[Footnote 118: Kant, Metaphysische Anfangungsgründe der Tugendlehre, § 16 sq., pp. 106, 108.]

[Footnote 119: E.g., Alexander, Moral Order and Progress, p. 281; Ritchie, Natural Rights, p. 110 sq.]

[Footnote 120: Hommel, quoted by von Hippel, Die Thielquälerei in der Strafgesetzgebung, p. 110. Tissot, Le droit pénal, i. 17. Lasson, System der Rechtsphilosophie, p. 548 sq.]

[Footnote 121: Lasson, op. cit. p. 548. von Hippel, op. cit. p. 125.]

[Footnote 122: Parliamentary History and Review, 1825-6, p. 761.]

[Footnote 123: Ibid. p. 546.]

[Footnote 124: Strafgesetzbuch, § 360 (13).]

Indifference to animal suffering has been a characteristic of public opinion in European countries up to quite modern times. Only a little more than a hundred years ago Thomas Young declared in his 'Essay on Humanity to Animals' that he was sensible of laying himself open to no small portion of ridicule in offering to the public a book on such a subject.[125] Till the end of the eighteenth century and even later cock-fighting was a very general amusement among the English and Scotch, entering into the occupations of both the old and young. Travellers agreed with coachmen that they were to wait a night if there was a cock-fight in any town through which they passed. Schools had their cock-fights; on Shrove Tuesday every youth took to the village schoolroom a cock reared for his special use, and the schoolmaster presided at the conflict.[126] Those who felt that the practice required some excuse found it in the idea that the race was to suffer this annual barbarity by way of punishment for St. Peter's crime;[127] but the number of people who had any scruples about the game cannot have been great considering that even such a strong advocate of humanity to animals as Lawrence had no decided antipathy to it.[128] Other pastimes indulged in were dog-fighting, bull-baiting and badger-baiting; and in the middle of the eighteenth century the bear-garden was described by Lord Kames as one of the chief entertainments of the English, though it was held in abhorrence by the French and "other polite nations," being too savage an amusement to be relished {510} by those of a refined taste.[129] As late as 1824 Sir Robert (then Mr.) Peel argued strongly against the legal prohibition of bull-baiting.[130]

[Footnote 125: Young, Essay on Humanity to Animals, p. 1.]

[Footnote 126: Roberts, Social History of the People of the Southern Counties of England, p. 421 sqq. Rogers, Social Life in Scotland, ii. 340. In 1856, when Roberts wrote his book, cock-penance was still paid in some English grammar schools to the master as a perquisite on Shrove Tuesday (Roberts, p. 423).]

[Footnote 127: Roberts, op. cit. p. 422.]

[Footnote 128: Lawrence, Philosophical and Practical Treatise on Horses, ii. 12.]

[Footnote 129: Kames, Essays on the Principles of Morality, p. 7.]

[Footnote 130: Hansard, Parliamentary Debates, New Series, x. 491 sqq.]

About two years previously, however, humanity to animals had, for the first time, become a subject of English legislation by the Act which prevented cruel and improper treatment of cattle.[131] This Act was afterwards followed by others which prohibited bear-baiting, cock-fighting, and similar pastimes, as also cruelty to domestic animals in general. In 1876 vivisection for medical or scientific purposes was subjected to a variety of restrictions, and since 1900 cases of ill-treatment of wild animals in captivity may be dealt with under the Wild Animals in Captivity Protection Act.[132] On the Continent cruelty to animals was first prohibited by criminal law in Saxony, in 1838,[133] and subsequently in most other European states. But in the South of Europe there are still countries in which the law is entirely silent on the subject.[134]

[Footnote 131: Statutes of Great Britain and Ireland, lxii. 403 sqq.]

[Footnote 132: Stephen, New Commentaries on the Laws of England, iv. 213 sqq.]

[Footnote 133: von Hippel, op. cit. p. 1.]

[Footnote 134: Ibid. p. 90 sq.]

Whatever be the professed motives of legislators for preventing cruelty to animals, there can be no doubt that the laws against it are chiefly due to a keener and more generally felt sympathy with their sufferings. The actual feelings of men have commonly been somewhat more tender than the theories of law, philosophy, and religion. The anthropocentric exclusiveness of Christianity was from ancient times to some extent counterbalanced by popular sentiments and beliefs. In the folk-tales of Europe man is not placed in an isolated and unique position in the universe. He lives in intimate and friendly intercourse with the animals round him, attributes to them human qualities, and regards them with mercy.[135] Tender feelings towards the brute creation are also displayed in many legends of saints.[136] St. Francis of Assisi {511} talked with the birds and called them "brother birds" or "little sister swallows," and was seen employed in removing worms from the road that they might not be trampled by travellers.[137] John Moschus speaks of a certain abbot who early in the morning not only used to give food to all the dogs in the monastery, but would bring corn to the ants and to the birds on the roof.[138] In the 'Revelations of St. Bridget' we read, "Let a man fear, above all, me, his God, and so much the gentler will he become towards my creatures and animals, on whom, on account of me, their Creator, he ought to have compassion."[139] Many kind words about animals have come from poets and thinkers. Montaigne says that he has never been able to see without affliction an innocent beast, which is without defence and from which we receive no offence, pursued and killed.[140] Shakespeare points out that "the poor beetle that we tread upon, in corporal sufferance finds a pang as great as when a giant dies."[141] Mandeville thinks that if it was not for that tyranny which custom usurps over us, no men of any tolerable good-nature could ever be reconciled to the killing of so many animals for their daily food, as long as the bountiful earth so plentifully provides them with varieties of vegetable dainties.[142] Towards the end of the eighteenth century Bentham wrote:--"Men must be permitted to kill animals; but they should be forbidden to torment them. Artificial death may be rendered less painful than natural death by simple processes, well worth the trouble of being studied, and of becoming an object of police. Why should the law refuse its protection to any sensitive being? A time will come when humanity will spread its mantle over everything that breathes. The lot of slaves has begun to {512} excite pity; we shall end by softening the lot of the animals which labour for us and supply our wants."[143] Some years later Thomas Young pronounced hunting, shooting, and fishing for sport to be "unlawful, cruel, and sinful."[144] And in the course of the nineteenth century humanity to

animals, from being conspicuous in a few individuals only, became the keynote of a movement gradually increasing in strength. Humanitarians, says Mr. Salt, "insist that the difference between human and non-human is one of degree only and not of kind, and that we owe duties, the same in kind though not in degree, to all our sentient fellow-beings."[145] Some people maintain that it is wrong to kill animals for food or in sport; but the most vigorous attacks concerning the treatment of the brute creation are at present directed against the practice of vivisection. The claim is made that this practice should be, not merely restricted, but entirely prohibited by law. And while the antivivisectionists generally endeavour to deny or minimise the scientific importance of experiments on living animals, their cry for the abolition of such experiments is mainly based on the argument that humanity at large has no right to purchase relief from its own suffering by torturing helpless brutes.

[Footnote 135: Supra, i. 259. Schwarz, Prähistorisch-anthropologische Studien, p. 203.]

[Footnote 136: Lecky, History of European Morals, ii. 168 sqq. Joyce, Social History of Ancient Ireland, ii. 517 sq.]

[Footnote 137: Sabatier, Life of St. Francis of Assisi, p. 176 sq. Digby, Mores Catholici, ii. 291.]

[Footnote 138: Moschus, Pratum spirituale, 184 (Migne, Patrologiæ cursus, Ser. Græca, lxxxvii. 3056).]

[Footnote 139: St. Bridget, quoted by Helps, op. cit. p. 124.]

[Footnote 140: Montaigne, Essais, ii. 11.]

[Footnote 141: Shakespeare, Measure for Measure, iii. 1.]

[Footnote 142: Mandeville, Fable of the Bees, p. 187.]

[Footnote 143: Bentham, Theory of Legislation, p. 428 sq.]

[Footnote 144: Young, op. cit. p. 75 sq.]

[Footnote 145: Salt, Animals' Rights, p. v.]

This rapidly increasing sympathy with animal suffering is no doubt to a considerable extent due to the decline of the anthropocentric doctrine and the influence of another theory, which regards man, not as an image of the deity separated from the lower animals by a special act of creation, but as a being generally akin to them, and only representing a higher stage in the scale of mental evolution. Through this doctrine the orthodox contempt for dumb creatures was succeeded by feelings of affinity and kindly interest. But apart from any theory as regards human origins, growing reflection has also taught men to be more considerate in their treatment of animals by producing a more vivid idea of their sufferings. Human thoughtlessness {513} has been responsible for much needless pain to which they have been made subject. In spite of some improvement it is so still; whilst, at the same time, the movement advocating greater humanity to animals is itself not altogether free from inconsistencies and a certain lack of discrimination.

It has been observed that the Neapolitan would not act so cruelly as he does to almost all animals except the cat if he could bring himself to conceive their capacity for joy and pain.[146] So also we ourselves should often behave differently if we realised the tortures we thoughtlessly cause to creatures whose sufferings escape our notice from want of obvious outward expression. While the practice of whipping young pigs to death to make them tender, which occurred in England not much more than a century ago,[147] would nowadays be regarded with general horror, cruelties inflicted for gastronomic purposes upon creatures of a lower type are little thought of. Cray-fish, oysters, and fish in general, as Mandeville observed, excite hardly any compassion

at all, because "they express themselves unintelligibly to us; they are mute, and their inward formation, as well as outward figure, vastly different from ours."[148] On the other hand, even passionate sportsmen describe the hunting of monkeys as repulsive on account of their resemblance to man; Rajah Brooke thought it almost barbarous to kill an orang-utan, unless for the sake of scientific research.[149] Buddhism itself declares that "he who takes away the life of a large animal will have greater demerit than he who takes away the life of a small one. . . . The crime is not great when an ant is killed; its magnitude increases in this progression--a lizard, a guana, a hare, a deer, a bull, a horse, and an elephant."[150] How little the feelings which underlie men's opinions concerning conduct {514} towards the lower animals are influenced by reflection is also apparent in the present crusade against vivisection, when compared with the public indifference to the sufferings inflicted on wild animals in sport. The vivisector who in cold blood torments his helpless victim in the interest of science and for the benefit of mankind is called a coward, and is a much more common object of hatred than the sportsman who causes agonies to the creature he pursues for sheer amusement. The pursued animal, it is argued, has "free chances of escape."[151] This is an excellent argument--provided we share the North American Indian's conviction that an animal can never be killed without its own permission.

[Footnote 146: 'Cruelty to Animals in Naples,' in Saturday Review, lix. 854.]

[Footnote 147: The World, 1756, nr. 190, p. 1142. Young, op. cit. p. 129.]

[Footnote 148: Mandeville, op. cit. p. 187.]

[Footnote 149: Brooke, Ten Years in Saráwak, i. 100. Cf. Rengger, Naturgeschichte in der Säugethiere von Paraguay, p. 26.]

[Footnote 150: Hardy, Manual of Budhism, pp. 478, 480.]

[Footnote 151: Cobbe, op. cit. p. 10.]

At present there is among ourselves no topic of moral concern which presents a greater variety of opinion than the question how far the happiness of the lower animals may be justly sacrificed for the benefit of man. The extreme views on this subject might, no doubt, be somewhat modified, on the one hand by a more vivid representation of animal suffering, on the other hand by the recognition of certain facts, often overlooked, which make it unreasonable to regard conduct towards dumb creatures in exactly the same light as conduct towards men. It should especially be remembered that the former have none of those long-protracted anticipations of future misery or death which we have.[152] If they are destined to serve as meat they are not aware of it; whereas many domestic animals would never have come into existence, and been able to enjoy what appears a very happy life, but for the purpose of being used as food. But though greater intellectual discrimination may somewhat lessen the divergencies of moral opinion on the subject, nothing like unanimity can be expected, for the simple reason that moral judgments are ultimately based upon emotions, and sympathy with the animal world is a feeling which varies extremely in different individuals.

[Footnote 152: Cf. Bentham, Introduction to the Principles of Morals and Legislation, p. 311, n.]

Chapter XLV — Regard For the Dead

MORALITY takes notice not only of men's conduct towards the living but of their conduct towards the dead.

There is a general tendency in the human mind to assume that what has existed still exists and will exist. When a person dies it is difficult for those around him to conceive that he is really dead, and when the cold motionless body bears sad testimony to the change which has taken place, there is a natural inclination to believe that the soul has only changed its abode. In the savage the tendency to assume the continued existence of the soul after death is strongly supported by dreams and visions of his deceased friends. What else could these mean but visits of their souls?

There are, it is true, some savages who are reported to believe in the annihilation of the soul at the moment of death, or to have no notion whatever of a future state.[1] But the accuracy of these statements is hardly beyond suspicion. We sometimes hear that the very people who are said to deny any belief in an after-life are afraid of ghosts.[2] A native of Madagascar will almost in the same {516} breath declare that when he dies he ceases altogether to exist and yet confess the fact that he is in the habit of praying to his dead ancestors.[3] Of the Masai in Eastern Africa some writers state that they believe in annihilation,[4] others that they attribute a future existence to their chiefs, medicine men, or influential people.[5] The ideas on this subject are often exceedingly vague, and inconsistencies are only to be expected.

[Footnote 1: Powers, Tribes of California, p. 348 sq. (Miwok). Brinton, Myths of the New World, p. 233 sq. (some Oregon Indians). Lumholtz, Among Cannibals, p. 101 (natives of the Herbert River, Northern Queensland). Martin, Reisen in den Molukken, p. 155 (Alfura). Worcester, Philippine Islands, p. 412 (Mangyans). Colquhoun, Amongst the Shans, p. 76 (Lethtas). Dalton, Ethnology of Bengal, p. 257 (Oráons). Petherick, Travels in Central Africa, i. 321 (Nouaer tribes). Du Chaillu, Explorations in Equatorial Africa, p. 385.]

[Footnote 2: New, Life in Eastern Africa, p. 105.]

[Footnote 3: Ellis, History of Madagascar, 393.]

[Footnote 4: Thomson, Through Masai Land, p. 259. Hinde, The Last of the Masai, p. 99.]

[Footnote 5: Johnston, Uganda, ii. 832. Hollis, Masai, pp. 304, 305, 307. Eliot, ibid. p. xx.]

The disembodied soul is commonly supposed to have the shape of a small unsubstantial human image, and to be in its nature a sort of vapour, film, or shadow.[6] It is believed to have the same bodily wants and to possess the same mental capacities as its owner possessed during his lifetime. It is not regarded as invulnerable or immortal--it may be hurt and killed. It feels hunger and thirst, heat and cold. It can see and hear and think, it has human passions and a human will, and it has the power to influence the living for evil or for good. These notions as regards the disembodied soul determine the relations between the living and the dead.

[Footnote 6: Tylor, Primitive Culture, i. 429.]

The dead are supposed to have rights very similar to those they had whilst alive. The soul must not be killed or injured. The South Australian Dieyerie, for instance, show great reverence for certain trees, which are believed to be their fathers transformed; they will not cut them down and protest against the settlers doing so.[7] So also some of the Philippine Islanders maintain that the souls of their forefathers are in trees, which they therefore spare.[8] The North American Powhatans refrained from doing harm to some small wood-birds, which were supposed to receive the souls of their chiefs.[9] In Lifu, {517} when a father was about to die, surrounded by members of his family, he might say what animal he would be, for instance a butterfly or some kind of bird, and that creature would be sacred to his family, who would neither injure nor

kill it.[10] The Rejangs of Sumatra imagine that tigers in general contain the spirits of departed men, and "no consideration will prevail on a countryman to catch or to wound one, but in self-defence, or immediately after the act of destroying a friend or relation."[11] Among other peoples monkeys, crocodiles, or snakes, being thought men in metempsychosis, are held sacred and must not be hurt.[12] Some Congo Negroes, again, abstain for a whole year after a death from sweeping the house, lest the dust should injure the delicate substance of the ghost.[13] In China, for seven days after a man's death his widow and children avoid the use of knives and needles, and even of chopsticks, eating their food with their fingers, so as not to wound the ghost.[14] And to this day it remains a German peasants' belief that it is wrong to slam a door, lest one should pinch a soul in it.[15]

[Footnote 7: Gason, 'Dieyerie Tribe,' in Woods' Native Tribes of South Australia, p. 280.]

[Footnote 8: Blumentritt, 'Der Ahnencultus der Malaien des Philippinen-Archipels,' in Mittheil. d. kais. u. kön. Geograph. Gesellsch. in Wien, xxv. 164 sqq.]

[Footnote 9: Brinton, Myths of the New World, p. 102.]

[Footnote 10: Codrington, quoted by Tylor, 'Remarks on Totemism,' in Jour. Anthr. Inst. xxviii. 147.]

[Footnote 11: Marsden, History of Sumatra, p. 292. The same belief prevails among the natives of the Malay Peninsula (Newbold, British Settlements in the Straits of Malacca, ii. 192).]

[Footnote 12: Meiners, Geschichte der Religionen, i. 212. Tylor, Primitive Culture, ii. 8.]

[Footnote 13: Bastian, Der Mensch in der Geschichte, ii. 323.]

[Footnote 14: Gray, China, i. 288.]

[Footnote 15: Wuttke, Der deutsche Volksaberglaube der Gegenwart, § 609, p. 396 sq.]

But the survivors must not only avoid doing anything which might hurt the soul, they must also positively contribute to its comfort and subsistence. They often provide it with a dwelling, either burying the deceased in his own house, or erecting a tent or hut on his grave. Some Australian natives kindle a fire at a few yards' distance from the tomb, and repeat this until the soul is supposed to have gone somewhere else;[16] others, again, are in the habit of wrapping the body up in a rug, professedly for the purpose of keeping it warm.[17] In the Saxon district of Voigtland people have been known to {518} put into the coffin an umbrella and a pair of galoshes.[18] An extremely prevalent custom is to place provisions in or upon the grave, and very commonly feasts are given for the dead.[19] Weapons, implements, and other movables are deposited in the tomb; domestic animals are buried or slaughtered at the funeral;[20] and, as we have seen before, even human beings are sacrificed to the dead to serve them as companions or attendants, or to vivify their spirits with their blood, or to gratify their craving for revenge.[21]

[Footnote 16: Roth, North-West-Central Queensland Aborigines, p. 165.]

[Footnote 17: Fraser, Aborigines of New South Wales, p. 79 sq.]

[Footnote 18: Kohler, Volksbrauch im Voigtlande, p. 441.]

[Footnote 19: See Tylor. op. cit. ch. xi. sq.; Spencer, Principles of Sociology, i. 155 sqq., 257 sqq.; Frazer, Adonis Attis Osiris, p. 242 sqq.]

[Footnote 20: See Spencer, op. cit. i. 184 sqq.]

[Footnote 21: Supra, i. 472 sqq.]

The offerings made to the dead may be gifts presented to them by the survivors, but the regular funeral sacrifice consists of the deceased person's own individual property. Among savages the whole, or a large part, of it is often consigned to the grave or destroyed.[22] The right of ownership does not cease with death where the belief prevails that the dead stand in need of earthly chattels. The recognition of this right is also apparent in the severe condemnation of robbery or violation committed at a tomb. Among various North American tribes such an act was regarded as an offence of the first magnitude and provoked cruel revenge.[23] Of the Chippewa Indians it is said that however bad a person may be or however much inclined to steal, the things left at a grave, valuable or not, are never touched, being sacred to the spirit of the {519} dead.[24] Among the Maoris "the least violation of any portion of the precincts of the dead is accounted the greatest crime that a human being can commit, and is visited with the direst revenge of a surviving tribe."[25] The laws of Athens[26] and Rome[27] and the ancient Teutonic law-books[28] punished with great severity the plunder of a corpse or a tomb. In Rome the punishment was death if the offence was committed by force, otherwise condemnation to the mines.

[Footnote 22: Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 580. Murdoch, 'Ethn. Results of the Point Barrow Expedition,' ibid. ix. 424 sq. (Point Barrow Eskimo). Powell, ibid. iii. p. lvii. (North American Indians). Yarrow, 'Mortuary Customs of the North American Indians,' ibid. i. 98 (Pimas), 100 (Comanches). McGee, 'Siouan Indians,' ibid. xv. 178. Roth, op. cit. p. 164 (certain Queensland tribes). Colenso, Maori Races of New Zealand, p. 57. Kolff, Voyages of the Dourga, p. 166 sq. (Arru Islanders). Kloss, In the Andamans and Nicobars, p. 304 (Kar Nicobarese). Batchelor, Ainu and their Folk-Lore, p. 560 sq. Georgi, Russia, iv. 152 (Burats). Caillié, Travels through Central Africa, i. 164 (Bagos). Burrows, Land of the Pigmies, p. 107 (Monbuttu). Decle, Three Years in Savage Africa, p. 79 (Barotse). Strabo, xi. 4. 8 (Albanians of the Eastern Caucasus). See also Spencer, Principles of Sociology, i. 185 sq.; Post, Entwicklungsgeschichte des Familienrechts, p. 295 sq.; Idem, Grundriss der ethnologischen Jurisprudenz, ii. 173 sq.; infra, p. 514 sq.]

[Footnote 23: Sagard, Voyage du Pays des Hurons, p. 288. Gibbs, 'Tribes of Western Washington and North-western Oregon,' in Contributions to North American Ethnology, i. 204.]

[Footnote 24: Reid, 'Religious Belief of the Ojibois,' in Jour. Anthr. Inst. iii. 112.]

[Footnote 25: Polack, Manners and Customs of the New Zealanders, i. 111 sq.]

[Footnote 26: Cicero, De legibus, ii. 26. See also Schmidt, Die Ethik der alten Griechen, ii. 105 sq.]

[Footnote 27: Digesta, xlvii. 12, 'De sepulchro violato.']

[Footnote 28: Wilda, Das Strafrecht der Germanen, p. 975 sqq.]

Like living men the dead are sensitive to insults and fond of praise; hence respect must be shown for their honour and self-regarding pride. De mortuis nil nisi bonum; [Greek: ou) ga\r e)sthla\ katthanou=si kertomei=n e)p' a)ndra/sin].[29] In Greece custom required that at the funeral meal the virtues of the deceased should be enumerated and extolled,[30] and calumny against a dead person was punished by law.[31] The same was the case in ancient Egypt.[32] In Greenland, after the interment, the nearest male relative of the dead commemorated in a loud plaintive voice all the excellent qualities of the departed.[33] Among the Iroquois the near relatives and friends approached the body in turn and addressed it in a laudatory speech.[34]

[Footnote 29: Archilochus, Reliquiæ, 40.]

[Footnote 30: Schmidt, Die Ethik der alten Griechen, ii. 122 sq.]

[Footnote 31: Rohde, Psyche, p. 224.]

[Footnote 32: Diodorus Siculus, i. 92. 5. Erman, Life in Ancient Egypt, p. 322.]

[Footnote 33: Cranz, History of Greenland, i. 218.]

[Footnote 34: Morgan, League of the Iroquois, p. 175, n. 2.]

The dead also demand obedience and are anxious that the rules they laid down while alive should be followed by the survivors. Hence the sacredness which is attached to a will;[35] hence also, in a large measure, the rigidity of ancestral custom. The greatest dread of the natives of South-Eastern Africa "is to offend their ancestors and the only way to avoid this is to do everything according to {520} traditional usage."[36] Among the Basutos "the anger of the deified generations could not be more directly provoked than by a departure from the precepts and examples they have left behind them."[37] The E[(w]e-speaking peoples of the Slave Coast have a proverb which runs:--"Follow the customs of your father. What he did not do, avoid doing, or you will harm yourself."[38] Among the Aleuts the old men always impress upon the native youth the great importance of strictly observing the customs of their forefathers in conducting the chase and other matters, as any neglect in this respect would be sure to bring upon them disaster and punishment.[39] The Kamchadales, says Steller, consider it a sin to do anything which is contrary to the precepts of their ancestors.[40] The Papuans of the Motu district, in New Guinea, believe that when men and women are bad--adulterers, thieves, quarrellers, and the like--the spirits of the dead are angry with them.[41] One of the most powerful sentiments in the mind of a Chinese is his reverence for ancestral custom; and in a large sense Japan also is still a country governed by the voices that are hushed.[42] The life of the ancient Roman was beset with a society of departed kinsmen whose displeasure he provoked if he varied from the practice handed down from his fathers. The expression mos majorum, "the custom of the elders," was used by him as a charm against innovation.[43]

[Footnote 35: Ellis, Polynesian Researches, iii. 116 (Tahitians). Shortland, Traditions and Superstitions of the New Zealanders, p. 257. Sarbah, Fanti Customary Laws, p. 82. Schmidt, Die Ethik der alten Griechen, ii. 124 sq.]

[Footnote 36: Macdonald, Light in Africa, p. 192.]

[Footnote 37: Casalis, Basutos, p. 254.]

[Footnote 38: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 263.]

[Footnote 39: Elliott, Alaska and the Seal Islands, p. 170. Veniaminof, quoted by Petroff, Report on the Population, &c. of Alaska, p. 156.]

[Footnote 40: Steller, Beschreibung von Kamtschatka, p. 274.]

[Footnote 41: Chalmers, Pioneering in New Guinea, p. 169.]

[Footnote 42: Griffis, Religions of Japan, p. 308. Hozumi, Ancestor-Worship and Japanese Law, p. 1, &c.]

[Footnote 43: Granger, 'Moral Life of the Early Romans,' in Internal. Jour. of Ethics, vii. 287. Idem, Worship of the Romans, pp. 65, 66, 138.]

Besides such duties to the dead as are similar in nature to those which men owe to their living fellow men or superiors, there are obligations of a different character arising from the fact of death itself. The funeral, the rites connected with it, and the mourning customs are largely regarded as duties to the dead.

{521} The grave is represented as a place where the deceased finds his desired rest, and if denied proper burial he is believed not only to walk but to suffer. The Iroquois considered that unless the rites of burial were performed, the spirits of the dead had to wander for a time upon the earth in a state of great unhappiness; hence their extreme solicitude to recover the bodies of their slain in battle.[44] The Abipones regard it as

the greatest misfortune for the dead to be left to rot in the open air, and they therefore inter even the smallest bone of a departed friend.[45] In Ashantee the spirits of those who for some reason or other have been deprived of the customary funeral rites are doomed, in the imagination of the people, to haunt the gloom of the forest, stealing occasionally to their former abodes in rare but lingering visits, troubling and bewitching their neglectful relatives.[46] The Negroes of Accra believe that happiness in a future life depends not only upon courage, power, and wealth in this world, but also upon a proper burial.[47] In some Australian tribes the souls of those whose bodies have been left to lie unburied are supposed to have to prowl on the face of the earth and about the place of death, with no gratification but to harm the living;[48] or there is said to be no future existence for them, as their bodies will be devoured by crows and native dogs.[49] Among the Bataks of Sumatra nothing is considered to be a greater disgrace to a person than to be denied a grave; for by not being held worthy of burial he is declared to be spiritually dead.[50] The Samoans believed that the souls of unburied friends, for instance such as had been drowned or had fallen in war, haunted them everywhere, crying out in a pitiful tone, "Oh, how cold! Oh, how cold!"[51] According to Karen ideas the {522} spirits of those who die a natural death and are decently buried go to a beautiful country and renew their earthly life, whereas the ghosts of persons who by accident are left uninterred will wander about the earth, occasionally showing themselves to mankind.[52] Confucius connected the disposal of the dead immediately with the great virtue of submission and devotion to superiors.[53] No act is in China recognised more worthy a virtuous man than that of interring stray bones and covering up exposed coffins,[54] and to bury a person who is without friends is considered to be as great a merit as to save life.[55] It is also held highly important to provide the proper place for a grave; the Taouists maintain that "if a coffin be interred in an improper spot, the spirit of the dead is made unhappy, and avenges itself by causing sickness and other calamities to the relatives who have not taken sufficient care for its repose."[56] The ancient Chaldeans believed that the spirits of the unburied dead, having neither place of repose nor means of subsistence, wandered through the town and country, occupied with no other thought than that of attacking and robbing the living.[57] In classical antiquity it was the most sacred of duties to give the body its funeral rites,[58] and the Greeks referred the right of sepulture to the gods as its authors.[59]

[Footnote 44: Morgan, League of the Iroquois, p. 175.]

[Footnote 45: Dobrizhoffer, Account of the Abipones, ii. 284.]

[Footnote 46: Bowdich, Mission to Ashantee, p. 262 sq.]

[Footnote 47: Monrad, Skildring af Guinea-Kysten, p. 4.]

[Footnote 48: Oldfield, 'Aborigines of Australia,' in Trans. Ethn. Soc. N.S. iii. 228, 236 sq.]

[Footnote 49: Chauncy, in Brough Smyth, Aborigines of Victoria, ii. 280.]

[Footnote 50: Buning, in Glimpses of the Eastern Archipelago, p. 75.]

[Footnote 51: Turner, Nineteen Years in Polynesia, p. 233. Hood, Cruise in H.M.S. "Fawn" in the Western Pacific, p. 142.]

[Footnote 52: Cross, quoted by Mac Mahon, Far Cathay, p. 202 sq. Mason, 'Religion, &c. among the Karens,' in Jour. Asiatic Soc. Bengal, xxxiv. pt. ii. 203.]

[Footnote 53: de Groot, Religious System of China, (vol. ii. book) i. 659.]

[Footnote 54: Giles, Strange Stories from a Chinese Studio, ii. 147, n. 11.]

[Footnote 55: Indo-Chinese Gleaner, iii. 161.]

[Footnote 56: Legge, Religions of China, p. 200.]

[Footnote 57: Maspero, Dawn of Civilization, p. 689. Jeremias, Die babylonisch-assyrischen Vorstellungen vom Leben nach dem Tode, p. 54 sqq. Halévy, Mélanges de critique et d'histoire relatifs aux peuples sémitiques, p. 368.]

[Footnote 58: See Schmidt, Die Ethik der alten Griechen, ii. 97 sqq.; Granger, Worship of the Romans, p. 37 sqq.; Aust, Die Religion der Römer, p. 226 sq.]

[Footnote 59: Sophocles, Antigone, 454 sq. Euripides, Supplices, 563.]

So also among peoples who practise cremation the dead themselves are considered to be benefited by being burned. The Nâyars of Malabar are of opinion that no time should be lost in setting about the funeral, as the disposal of a corpse either by cremation or burial as soon {523} as possible after death is conducive to the happiness of the spirit of the departed; they say that "the collection and careful disposal of the ashes of the dead gives peace to his spirit."[60] The Thlinkets maintain that those whose bodies are burned will be warm and comfortable in the other world, whereas others will have to suffer from cold. "Burn my body! Burn me!" pleaded a dying Thlinket; "I fear the cold. Why should I go shivering through all the ages and the distances of the next world?"[61] The ancient Persians, on the other hand, considered both cremation and burial to be sins for which there was no atonement, and exposed their dead on the summits of mountains, thinking it a great misfortune if neither birds nor beasts devoured their carcases.[62] So also the Samoyedes and Mongols held it to be good for the deceased if his corpse was soon devoured by beasts,[63] and the Kamchadales regarded it as a great blessing to be eaten by a beautiful dog.[64] The East African Masai, who likewise, as a rule, expose their dead to the wild beasts, say that if the corpse is eaten by the hyænas the first night, the deceased must have been a good man, as the hyænas are supposed to act by the command of 'Ng ais, or God.[65]

[Footnote 60: Fawcett, 'Nâyars of Malabar,' in the Madras Government Museum's Bulletin, iii. 245, 251.]

[Footnote 61: Dall, Alaska, p. 423. Petroff, op. cit. p. 175. McNair Wright, Among the Alaskans, p. 333.]

[Footnote 62: Vendîdâd, i. 13, 17; vi. 45 sqq.; viii. 10. Darmesteter, in Sacred Books of the East, iv. p. lxxv. sqq. Agathias, Historiæ, ii. 22 sq. (Migne, Patrologiæ cursus, Ser. Graeca, lxxxviii. 1377). Herodotus, i. 140; iii. 16.]

[Footnote 63: Preuss, Die Begräbnisarten der Amerikaner und Nordostasiaten, p. 272. Cf. Yarrow, in Ann. Rep. Bur. Ethn. i. 103 (Caddoes or Timber Indians).]

[Footnote 64: Steller, op. cit. p. 273.]

[Footnote 65: Merker, Die Masai, p. 193.]

Certain ceremonies are professedly performed for the purpose of preventing evil spirits from doing harm to the dead.[66] This is sometimes the case with cremation; we are told that among some Siberian peoples the dead are burned so as to be "effectually removed from the machinations of spirits."[67] The Teleutes believe that the {524} spirits of the earth do much mischief to the departed; hence their shamans drive them off at the funeral by striking the air several times with an axe.[68] In Christian countries the passing-bell has likewise been supposed to repel evil spirits.[69]

[Footnote 66: See Frazer, 'Certain Burial Customs as illustrative of the Primitive Theory of the Soul,' in Jour. Anthr. Inst. xv. 87 sq.; Hertz, 'La représentation collective de la mort,' in L'année sociologique, x., 1905-1906, p. 56 sq.]

[Footnote 67: Georgi, op. cit. iii. 264.]

[Footnote 68: Georgi, op. cit. iii. 264.]

[Footnote 69: Frazer, in Jour. Anthr. Inst. xv. 87.]

Fasting after a death is regarded as a dutiful tribute to the dead; the Chinese say that it is "a means of raising the mind up to the soul, a means to enable the sacrificer to perform in a more perfect way the acts of worship incumbent upon him, by bringing about a closer contact between himself and the soul."[70] The self-mutilations performed by the relatives of the dead are supposed to be pleasing to him as tokens of affliction;[71] and the same is of course the case with the lamentations at funerals. In some Central Australian tribes the custom of painting the body of a mourner is said to have as its object "to render him or her more conspicuous, and so to allow the spirit to see that it is being properly mourned for."[72] The mourning dress is a sign of regard for the dead. Nay, even the custom of not mentioning his name is looked upon in the same light. Some peoples maintain that to name him would be to disturb his rest,[73] or that he would take it as an indication that his relatives are not properly mourning for him, and would feel it as an insult.[74]

[Footnote 70: de Groot, op. cit. (vol. ii. book) i. 657.]

[Footnote 71: Dorman, Origin of Primitive Superstitions, p. 216 sqq.]

[Footnote 72: Spencer and Gillen, Native Tribes of Central Australia, p. 511.]

[Footnote 73: Nansen, Eskimo Life, p. 233 (Greenlanders). Tout, 'Ethnology of the Stlatlumh of British Columbia,' in Jour. Anthr. Inst. xxxv. 138. Georgi, op. cit. iii. 27 (Samoyedes).]

[Footnote 74: Spencer and Gillen, Native Tribes of Central Australia, p. 498.]

As the duties to the living, so the duties to the dead are greatly influenced by the relationship between the parties. Everywhere the obligation to satisfy the wants of the deceased is incumbent upon those who were nearest to him whilst alive. In the archaic State, as we have seen, it is considered the greatest misfortune which can befall a person to die without descendants, since in such a case there would be nobody to attend to his soul.[75] Confucius {525} said, "For a man to sacrifice to a spirit which does not belong to him is flattery."[76] The distinction between a tribesman or fellow countryman and a stranger also applies to the dead. In Greenland a stranger without relatives or friends was generally suffered to lie unburied.[77] Among North American Indians it is permitted to scalp warriors of a hostile tribe, whereas "there is no example of an Indian having taken the scalp of a man of his own tribe, or of one belonging to a nation in alliance with his own, and whom he may have killed in a quarrel or a fit of anger";[78] and an Indian who would never think of desecrating the grave of a tribesman may have "no such scruple in regard to the graves of another tribe."[79] Yet already from early times we hear of the recognition of certain duties even to strangers and enemies. The Greeks of the post-Homeric age made it a rule to deliver up a slain enemy so that he should receive the proper funeral rites.[80] It was considered a disgraceful act of Lysander not to accord burial to Philocles, the Athenian general at Aegospotami, together with about four thousand prisoners whom he put to the sword; [81] and the Athenians themselves boasted that their ancestors had with their own hands buried the Persians who had fallen in the battle of Marathon, holding it to be "a sacred and imperative duty to cover with earth a human corpse."[82] According to the Chinese penal code, "destroying, mutilating, or throwing into the water the unenclosed and unburied corpse of a stranger," though a much less serious crime than the same injury inflicted upon the corpse of a relative, is yet an offence punishable with 100 blows, and perpetual banishment to the distance of 3,000 lee.[83]

[Footnote 75: Supra, ii. 400 sqq.]

[Footnote 76: Lun Yü, ii. 24. 1.]

[Footnote 77: Cranz, op. cit. i. 218.]

[Footnote 78: Domenech, Seven Years' Residence in the Great Deserts of North America, ii. 357.]

[Footnote 79: Dodge, Our Wild Indians, p. 162.]

[Footnote 80: Schmidt, Die Ethik der alten Griechen, ii. 100 sqq. Rohde, op. cit. p. 200 sq.]

[Footnote 81: Pausanias, ix. 32. 9.]

[Footnote 82: Ibid. i. 32. 5; ix. 32. 9.]

[Footnote 83: Ta Tsing Leu Lee, sec. cclxxvi. p. 295.]

The duties to the dead also vary according to the age, {526} sex, and social position of the departed. Among the natives of Australia children and women are interred with but scant ceremony.[84] In the tribes of North-West-Central Queensland nobody paints his body in mourning for a young child.[85] In Eastern Central Africa the spirit of a child which dies when about four or five days of age gets nothing of the attention usually bestowed on the dead.[86] Among the Wadshagga married persons are buried in their huts, whilst the bodies of unmarried ones and especially children are put in some hidden place, where they are left to rot or be devoured by beasts.[87] Some Siberian tribes were formerly accustomed to inhume adults only, whereas the corpses of children were exposed on trees.[88] The natives of Port Jackson, in New South Wales, consigned their young people to the grave, but burned those who had passed middle age.[89] The Kondayamkottai Maravars, a Dravidian tribe of Tinnevelly in Southern India, bury the corpses of unmarried persons, whilst those of married ones are cremated.[90] In some other tribes in India burial is practised in the case of young children only,[91] and this has long been a rule of Brahmanism.[92] Among the Andaman Islanders, again, infants are buried within the encampment, whereas all other dead are carried to some distant and secluded spot in the jungle.[93] We meet with a kindred custom in the neighbourhood of Victoria Nyanza in Central Africa: in Karagwe and Nkole "children are buried in the huts themselves, grown-up people outside, generally in cultivated fields, or in such as are going to be cultivated."[94] The bodies of women are sometimes disposed of in a {527} different way from those of men. Thus among the Blackfeet Indians the latter were fastened in the branches of trees so high as to be beyond the reach of wolves, and then left to waste in the dry winds; whilst the body of a woman or child was thrown into the underbush or jungle, where it soon became the prey of the wild animals.[95] Among the Tuski (Chukchi), who cremate or rather boil the bodies of good men, women are not usually burned, on account of the scarcity of wood.[96]

[Footnote 84: Curr, The Australian Race, i. 89.]

[Footnote 85: Roth, op. cit. p. 164.]

[Footnote 86: Macdonald, Africana, i. 59.]

[Footnote 87: Volkens, Der Kilimandscharo, p. 253.]

[Footnote 88: Georgi, op. cit. iii. 31 (Koibales).]

[Footnote 89: Collins, English Colony of New South Wales, i. 601.]

[Footnote 90: Fawcett, 'Kondayamkottai Maravars,' in Jour. Anthr. Inst. xxiii. 64.]

[Footnote 91: Thurston, in the Madras Government Museum's Bulletin, i. 198 (Kotas). Fawcett, 'Nâyars of Malabar,' ibid. iii. 245.]

[Footnote 92: Hopkins, Religions of India, p. 273.]

[Footnote 93: Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 144.]

[Footnote 94: Kollmann, Victoria Nyanza, p. 63 sq.]

[Footnote 95: Yarrow, Introduction to the Study of Mortuary Customs among the North American Indians, p. 67.]

[Footnote 96: Dall, op. cit. p. 382.]

Class distinctions likewise influence the disposal of the dead. In some American tribes cremation seems to be reserved for persons of higher rank.[97] Among the pagans of Obubura Hill district in Southern Nigeria "the bodies of ordinary people are buried in the bush, sometimes being merely thrown on the ground, but those of chiefs and important men and women are buried in their huts or in the adjoining verandah."[98] The Masai throw away the corpses of ordinary persons to be eaten by hyænas, whereas medicine-men and influential people are buried.[99] The Nandi do not bury their dead unless they have been very important persons.[100] Among the Waganda, when a chief dies, he is buried in a wooden coffin, whilst the bodies of slaves are thrown into the jungle.[101] Some other African peoples throw the corpses of slaves into a morass or the nearest pool of water.[102] The Thlinkets committed them to the tender mercies of the sea.[103] Among the Maoris a slave would not be greatly bewailed after death, nor have his bones ceremonially scraped.[104] The Roman 'Law of the Twelve Tables' prohibited the bodies of slaves from being embalmed.[105] Moral distinctions, also, are noticeable in {528} the treatment of the dead. In some parts of Central America the bodies of men of high standing who had committed a crime were, like those of the common people, exposed to be devoured by wild beasts.[106] Among the Tuski the corpses of bad men were simply left to rot.[107] In Greenland the body of a dead malefactor was dismembered, and the separate limbs were thrown apart.[108] To the same class of facts belong the punishments which were inflicted upon the corpses of criminals in classical antiquity and formerly in Christian Europe.[109]

[Footnote 97: Preuss, op. cit. p. 301.]

[Footnote 98: Partridge, Cross River Natives, p. 237.]

[Footnote 99: Hollis, op. cit. pp. 304, 305, 307; Eliot, ibid. p. xx.]

[Footnote 100: Johnston, Uganda, ii. 880.]

[Footnote 101: Wilson and Felkin, Uganda, i. 188.]

[Footnote 102: Denham and Clapperton, Travels in Northern and Central Africa, ii. 64 (natives of Kano). Pogge, Im Reiche des Muata Jamwo, p. 243 (Kalunda).]

[Footnote 103: Holmberg, 'Ethnographische Skizzen über die Völker des russischen Amerika,' in Acta Soc. Scient. Fennicæ, iv. 323. Dall, op. cit. pp. 417, 420.]

[Footnote 104: Colenso, op. cit. p. 30.]

[Footnote 105: Lex Duodecim Tabularum, x. 6.]

[Footnote 106: Preuss, op. cit. p. 301.]

[Footnote 107: Dall, op. cit. p. 382.]

[Footnote 108: Rink, Tales and Traditions of the Eskimo, p. 64.]

[Footnote 109: Ayrault, Des procez faicts au cadaver, p. 5 sqq. Trummer, Vorträge über Tortur, &c. i. 455 sqq. Supra, ii. 254.]

From this survey of facts we shall now pass to a consideration of the causes from which the duties to the dead have sprung. In the first place, there can be no doubt that these duties to a considerable extent are based upon the feeling of sympathetic resentment, in the same way as is the case with duties to living persons. Death does not entirely extinguish the affection which was felt for a person whilst he was alive. The rites and customs connected with a death are very largely similar to or identical with natural expressions of grief, and in spite of their ceremonial character it is impossible to believe that they are altogether counterfeit. We are told by trustworthy eye-witnesses that, although the self-inflicted pain and the loud lamentations which form part of a funeral among the Australian blacks are not to be taken as a measure of the grief actually felt, this expression of despair "is not all artificial or professional";[110] and Mr.

Man believes that among the Andaman Islanders "in the majority of cases the display of grief is thoroughly sincere."[111] But the dead also inspire other feelings than sympathy and sorrow, and the duties towards them have consequently a complex origin.

[Footnote 110: Fraser, Aborigines of New South Wales, p. 44. Spencer and Gillen, Native Tribes of Central Australia, p. 510 sq.]

[Footnote 111: Man, in Jour. Anthr. Inst. xii. 145.]

The souls of the dead are not generally supposed to lead a merely passive existence. They are conceived as {529} capable of acting upon the living, of conferring upon them benefits, or at all events of inflicting upon them harm. Death has in some respects enhanced their powers. They know what is going on upon earth, what those whom they have left behind are doing. Their power of acting, also, is greater than that which they possessed when they were tied to the flesh. They are raised to a higher sphere of influence; magic properties are ascribed even to their corpses. Their character may remain on the whole unchanged, and so, too, their affection for their surviving friends. Hence they often become guardians of their descendants. Among the Amazulu the head of each house is worshipped by his children; remembering his kindness to them while he was living, they say, "He will still treat us in the same way now he is dead."[112] The Herero invoke the blessings of their deceased friends or relatives, praying for success against their enemies, an abundance of cattle, numerous wives, and prosperity in their undertakings.[113] On the West African Slave Coast the head of a family, after death, often becomes its protector, and is sometimes regarded as the guardian of a whole community or village.[114] The Mpongwe teach the child "to look up to the parent not only as its earthly protector, but as a friend in the spirit-land."[115] The Gournditch-mara in Australia believed that "the spirit of the deceased father or grandfather occasionally visited the male descendant in dreams, and imparted to him charms (songs) against disease or against witchcraft."[116] The Veddah of Ceylon invokes the spirits of his departed relatives "as sympathetic and kindred, though higher powers than man, to direct him to a life pleasing to the gods, through which he may gain their protection or favour."[117] The Nay[=a]dis of Malabar, on certain ceremonial occasions, offer solemn prayers that the souls of the {530} departed may protect them from the ravages of wild beasts and snakes.[118] The Vedic people called upon the aid of their dead:--"O Fathers, may the sky-people grant us life; may we follow the course of the living."[119] So also the Zoroastrian Fravashis, who corresponded to the Vedic "Fathers," helped their own kindred, borough, town, or country.[120] Aeschylus, in his 'Eumenides,' represents Orestes as saying, "My father will send me aid from the tomb."[121] The Lar Familiaris, the spirit guardian of the Roman family, was undoubtedly the spirit of a deceased ancestor.[122] The old Slavonians believed that the souls of fathers watched over their children and their children's children. In Galicia the people still think that their hearths are haunted by the souls of the dead, who make themselves useful to the family; and among the Czechs, it is a common belief that departed ancestors look after the fields and herds of their descendants and assist them in hunting and fishing.[123]

[Footnote 112: Callaway, Religious System of the Amazulu, p. 144 sq.]

[Footnote 113: Andersson, Lake Ngami, p. 222.]

[Footnote 114: Ellis, E[(w]e-speaking Peoples, p. 104. See also ibid. p. 24 (Slave and Gold Coast natives).]

[Footnote 115: Wilson, Western Africa, p. 394.]

[Footnote 116: Fison and Howitt, Kamilaroi and Kurnai, p. 278.]

[Footnote 117: Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 194.]

[Footnote 118: Iyer, 'Nay[=a]dis of Malabar,' in the Madras Government Museum's Bulletin, iv. 72.]

[Footnote 119: Rig-Veda, x. 57. 5. Cf. Hopkins, op. cit. p. 143 sq.]

[Footnote 120: Yasts, xiii. 66 sqq.; &c.]

[Footnote 121: Aeschylus, Eumenides, 598.]

[Footnote 122: Jevons, in Plutarch's Romane Questions, p. xli. Rohde, op. cit. p. 232.]

[Footnote 123: Ralston, Songs of the Russian People, pp. 119, 121. For other instances of a similar kind see Shooter, Kafirs of Natal, p. 161; Arbousset and Daumas, Tour to the North-East of the Colony of the Cape of Good Hope, p. 340 (Bechuanas); Casalis, Basutos, p. 248; Wilken, Het animisme bij de volken van den Indischen Archipel, p. 194 sqq.; Nansen, Eskimo Life, p. 290 (Greenlanders); Jessen, Afhandling over de Norske Finners og Lappers Hedenske Religion, p. 27; Friis, Lappisk Mythologi, p. 115 sq.; von Düben, Lappland, p. 249; Abercromby, Pre- and Proto-historic Finns, i. 178 (Mordvins); von Wlislocki, Volksglaube der Zigeuner, p. 43 sqq. (Gypsies).]

But the ancestral guardian spirit does not bestow his favours for nothing. He must be properly attended to,[124] and if neglected he easily becomes positively dangerous to his living relatives. The same Africans who invoke the dead in adversity think them "capable of wreaking their vengeance on those who do not liberally minister to their wants and enjoyments."[125] The Chaldeans believed that {531} the departed who otherwise carefully watched over the welfare of his children, if abandoned and forgotten, avenged himself for their neglect by returning to torment them in their homes, by letting sickness attack them, and by ruining them with his imprecations.[126] The Vedic poet prays to the Fathers, "May ye not injure us for whatever impiety we have as men committed."[127] The Fravashis come to the help of those only who treat them well, and are "dreadful unto those who vex them."[128] In Rome, according to Ovid, once upon a time when the great festival of the dead was not observed, and the manes failed to receive the customary gifts, the injured spirits revenged themselves on the living, and the city "became heated by the suburban funeral pyres."[129] So also, according to Slavonic beliefs, the dead "might be induced, if proper respect was not paid to them, to revenge themselves on their forgetful survivors."[130]

[Footnote 124: Wilken, op. cit. p. 194 sq. (peoples in the Malay Archipelago). Abercromby, op. cit. i. 178 (Mordvins). Jessen, op. cit. p. 27; Friis, op. cit. p. 116 sq. (Laplanders).]

[Footnote 125: Rowley, Religion of the Africans, p. 90.]

[Footnote 126: Halevy, op. cit. p. 368.]

[Footnote 127: Rig-Veda, x. 15. 6.]

[Footnote 128: Yasts, xiii. 31, 42, 51, 70, &c.]

[Footnote 129: Ovid, Fasti, ii. 549 sqq.]

[Footnote 130: Ralston, op. cit. p. 335.]

Moreover, we must not conclude that wherever the spirits of deceased ancestors are invoked as guardians they are necessarily looked upon as essentially benevolent to their descendants.[131] Concerning the ancient Babylonians and Assyrians Professor Jastrow writes:--"In general the dead were not favorably disposed towards the living, and they were inclined to use what power they had to work evil rather than for good. In this respect they resembled the demons, and it is noticeable that an important class of demons was known by the name ekimmu, which is one of the common terms for the shades of the dead."[132] The Greeks were much afraid of their dead, and regarded their "heroes" as extremely irritable, in later times as exclusively malicious.[133] It appears from Ovid's 'Fasti' that fear was the predominant feeling of the Romans with reference

to the spirits of the departed, who were supposed {532} to wander about by night, causing men to pine away or bewitching them into madness.[134] Even in China, where the souls of the dead are supposed effectually to control the destiny of the living,[135] malevolent rather than benevolent inclinations are ascribed to them by the popular belief, as appears from the fact that the words for "ghost" and "devil" are the same and form a portion of the objectionable epithets applied to foreigners.[136] Generally speaking, my collection of facts has led me to the conclusion that the dead are more commonly regarded as enemies than friends,[137] and that Professor Jevons[138] and Mr. Grant Allen[139] are mistaken in their assertion that, according to early beliefs, the malevolence of the dead is for the most part directed against strangers only, whereas they exercise a fatherly care over the lives and fortunes of their descendants and fellow clansmen.

[Footnote 131: Cf. Karsten, Origin of Worship, p. 122 sqq.]

[Footnote 132: Jastrow, op. cit. p. 581.]

[Footnote 133: Rohde, op. cit. pp. 177 sqq., 225 n. 4. Schmidt, Die Ethik der alten Griechen, ii. 130.]

[Footnote 134: Ovid, Fasti, v. 429 sqq. Granger, Worship of the Romans, p. 67.]

[Footnote 135: de Groot, op. cit. (vol. v. book) ii. 464.]

[Footnote 136: Dennys, Folk-Lore of China, p. 73. See also Legge, Religions of China, pp. 13, 201.]

[Footnote 137: Dr. Steinmetz (Ethnol. Studien zur ersten Entwicklung der Strafe, i. 283) has arrived at the same conclusion. See also Meiners, Geschichte der Religionen, i. 301 sqq.; Karsten, op. cit. p. 115 sqq.]

[Footnote 138: Jevons, Introduction to the History of Religion, p. 53 sq.]

[Footnote 139: Grant Allen, Evolution of the Idea of God, p. 347 sq.]

Thus the Bondeis in East Africa apparently make little difference between a devil and a departed ancestor.[140] Among the Fjort of Loango the good people who have left this life "are generally considered the enemies of mankind."[141] Other Africans maintain that the spirits of the dead hover in the air, "watching the destiny of friends, haunting houses, killing children, injuring cattle, and causing disease and destruction," all being malevolent to the living.[142] Of the Savage Islanders in Polynesia we are told that "no effort of the missionary can avail to break them of their belief in the malevolence of ghosts, even of those who loved them best in life; the spirits of the dead seem compelled to work ill to the living without their own volition."[143] In Tahiti the spirits of parents and children, sisters and brothers, "seemed to have been regarded as a sort of {533} demons."[144] Among the Maoris "the nearest and most beloved relatives were supposed to have their natures changed by death, and to become malignant, even towards those they formerly loved."[145] The natives of Erromanga, in the New Hebrides, maintained that all the spirits of their departed ancestors were evil, and roamed the earth doing harm to men.[146] In the tribes inhabiting the mouth of the Wanigela River, in New Guinea, all dead ancestors are supposed to be constantly on the watch to deal out sickness or death to anyone who may displease them; hence the natives are most particular to do nothing that should raise their anger.[147] Australian natives believe that a deceased person is malevolent for a long time after death, and the more nearly related the more he is feared.[148] The anitos or ghosts, of the Tagales in the Philippine Islands are likewise perpetually anxious to do harm to their descendants, trying to kill people, especially shortly after death, and being the causes of nearly all diseases.[149] The Saora of the Madras Presidency only know the existence of the departed souls by the mischief they do, and think that all ills are occasioned either

by ancestral spirits or gods.[150] In the North-Western Provinces of India the díwárs, or genii loci, are oftentimes "the spirits of good men, Brahmans, or village heroes, who manage, when they become objects of worship, to be generally considered very malicious devils";[151] and the ghosts of all low caste natives are notoriously malignant.[152] The Tibetans are of opinion that a ghost is always malicious, and that it returns and gives troubles either on account of its malevolence or its desire to see how its former property is being disposed of.[153] The Finns and other peoples of the same stock believed that the souls of the dead were generally intent to do harm to the living, their nearest relatives included.[154] Thus, according to Votyak ideas, even a mother may become {534} the enemy of her own child from the moment of her death.[155] Among the Ainu of Japan, "if a man is at a loss for the authorship of any particular calamity, which has befallen him, he is very apt to refer it to the ghost of a dead wife, mother, grandmother, or, still more certainly, to that of a dead mother-in-law";[156] an Ainu who accompanied Mr. Batchelor would on no account come within twenty-five or thirty yards of the spot where his own mother was burned.[157] The Koniagas believe that after death every man becomes a devil.[158] According to ideas prevalent among the Central Eskimo, the dead are at first malevolent spirits who frequently roam around the villages, causing sickness and mischief and killing men by their touch; but subsequently they are supposed to attain to rest and are no longer feared.[159] The Tarahumares of Mexico are afraid of their dead; a mother asks her deceased infant to go away and not to come back, and the weeping widow implores her husband not to carry off, or do harm to, his own sons or daughters.[160] Mr. Bridges informs us that the Fuegian word for a ghost, cúshpich, is also an adjective signifying "frightful, dreadful, awful."[161]

[Footnote 140: Dale, 'Natives inhabiting the Bondei Country,' in Jour. Anthr. Inst. xxv. 233.]

[Footnote 141: Dennett, Folklore of the Fjort, p. 11 sq.]

[Footnote 142: Burton, Lake Regions of Central Africa, ii. 344.]

[Footnote 143: Thomson, Savage Island, p. 94.]

[Footnote 144: Ellis, Polynesian Researches, i. 334 sq.]

[Footnote 145: Taylor, Te Ika a Maui, p. 18. See also ibid. pp. 137, 221; Polack, op. cit. i. 242.]

[Footnote 146: Robertson, Erromanga, p. 389.]

[Footnote 147: Guise, 'Tribes inhabiting the Mouth of the Wanigela River,' in Jour. Anthr. Inst. xxviii. 216.]

[Footnote 148: Fraser, Aborigines of New South Wales, p. 80. Curr, The Australian Race, i. 87.]

[Footnote 149: Blumentritt, in Mittheil. d. kais. u. kön. Geograph. Gesellsch. in Wien, p. 166 sqq. de Mas, Informe sobre el estado de las Islas Filipinas en 1842, 'Orijen de los habitantes de la Oceania,' p. 15; 'Poblacion,' p. 29. Cf. ibid. 'Poblacion,' p. 17; Blumentritt, p. 168 (Igorrotes).]

[Footnote 150: Fawcett, Saoras, pp. 43, 51.]

[Footnote 151: Elliot, Races of the North Western Provinces of India, p. 243.]

[Footnote 152: Crooke, Popular Religion of Northern India, i. 269.]

[Footnote 153: Waddell, Buddhism of Tibet, p. 498.]

[Footnote 154: Castrén, Nordiska resor och forskningar, iii. 121 sqq. Waronen, Vainajainpalvelus muinaisilla Suomalaisilla, p. 23.]

[Footnote 155: Buch, 'Die Wotjäken,' in Acta Soc. Scient. Fennicæ, xii. 607.]

[Footnote 156: Howard, Life with Trans-Siberian Savages, p. 196.]

[Footnote 157: Batchelor, Ainu of Japan, p. 220 sq.]

[Footnote 158: Holmberg, in Acta Soc. Scient. Fennicæ, iv. 402.]

[Footnote 159: Boas, in Ann. Rep. Bur. Ethn. vi. 591.]

[Footnote 160: Lumholtz, Unknown Mexico, i. 380, 382.]

[Footnote 161: Bridges, 'Manners and Customs of the Firelanders,' in A Voice for South America, xiii. 211.]

The belief in the irritable or malevolent character of the dead is easily explained. As Bishop Butler observed, we presume that a thing will remain as it is except when we have some reason to think that it will be altered.[162] And in the case of the souls of departed friends men may have reason to suppose that they undergo a change. Death is commonly regarded as the gravest of all misfortunes; hence the dead are believed to be exceedingly dissatisfied with their fate. According to primitive ideas a person only dies if he is killed--by magic if not by force,--and such a death naturally tends to make the soul revengeful and ill-tempered. It is envious of the living and is longing for the company of its old friends; no wonder, then, that it sends them diseases to cause their {535} death. The Basutos maintain that their dead ancestors are continually endeavouring to draw them to themselves, and therefore attribute to them every disease;[163] and the Tarahumares in Mexico suppose that the dead make their relatives ill from a feeling of loneliness, that they, too, may die and join the departed.[164] But the notion that the disembodied soul is on the whole a malicious being constantly watching for an opportunity to do harm to the living is also, no doubt, intimately connected with the instinctive fear of the dead, which is in its turn the outcome of the fear of death.

[Footnote 162: Butler, Analogy of Religion, i. 1, p. 82.]

[Footnote 163: Casalis, op. cit. p. 249.]

[Footnote 164: Lumholtz, Unknown Mexico, i. 380.]

We are told, it is true, that many savages meet death with much indifference, or regard it as no great evil, but merely as a change to a life very similar to this.[165] But it is a fact often noticed among ourselves, that a person on the verge of death may resign himself to his fate with the greatest calmness, although he has been afraid to die throughout his life. Moreover, the fear of death may be disguised by thoughtlessness, checked by excitement, or mitigated by dying in company. There are peoples who are conspicuous for their bravery, and yet have a great dread of death.[166] Nobody is entirely free from this feeling, though it varies greatly in strength among different races and in different individuals. In many savages it is so strongly developed, that they cannot bear to hear death mentioned.[167] And inseparably mingled with {536} this fear of death is the fear of the dead. The place in which a death occurs is abandoned,[168] or the hut is destroyed,[169] or the corpse is carried out from it as speedily as possible.[170] The survivors endeavour to frighten away the ghost by firing off guns,[171] or shooting into the grave,[172] or throwing sticks and stones behind themselves after they have interred the corpse.[173] To prevent the return of the ghost the body is buried face downwards,[174] or its limbs are firmly tied,[175] or, in extreme cases, it is fixed in the ground with a stake driven through it.[176] We may assume that these and many other funeral ceremonies are very closely connected with the fear of the pollution of death; for even when their immediate object is to keep the ghost at {537} a distance, it is likely that they are largely due to dread of its presence for the reason that it is conceived as a seat of deadly contagion.[177] It seems to me that certain anthropologists, in their explanations of funeral ceremonies, have too much accentuated the volitional activity of ghosts. To take an instance. The common custom of carrying the dead body away through some aperture other than the door,[178] has generally been interpreted as a

means of preventing the ghost from finding its way back to the old home; but various facts indicate that it also may have sprung from a desire to keep the ordinary exit free from pollution. According to the Vendîdâd a spirit of death is breathing all along the way which a corpse has passed; hence no man, no flock, no being whatever that belongs to the world of Ahura Mazda is allowed to go that way until the deadly breath has been blown away to hell.[179] In the capital of Corea there is a small gate in the city-wall known as the "Gate of the Dead," through which alone a dead body can be carried out, and no one is ever allowed to enter through that passage-way.[180] In China even a messenger who delivers tidings of death strictly abstains from passing the threshold of the houses at which he knocks, unless urgently requested by the inmates to walk in.[181] Among the Kwakiutl Indians of British Columbia a mourner, who is regarded as unclean, "must not use the house door, but a separate door is cut for his use"; girls at puberty, whilst in a state of uncleanness, may leave {538} and enter their room only through a hole made in the floor;[182] and men who have polluted themselves by partaking of human flesh are for four months allowed to go out only by the secret door in the rear of the house.[183] Even the water and fire ceremonies performed in connection with a death have been represented as methods of preventing the ghost from attacking the living by placing a physical barrier of water or fire between them.[184] But I see no reason whatever to assume, with Sir J. G. Frazer, that "the conceptions of pollution and purification are merely the fictions of a later age, invented to explain the purpose of a ceremony of which the original intention was forgotten."[185]

[Footnote 165: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 192 (Hudson Bay Eskimo), 269 sq. (Hudson Bay Indians). de Brebeuf, 'Relation de ce qui s'est passé dans le pays des Hurons,' in Relations des Jésuites, i. 1636, p. 129. Roth, North-West-Central Queensland Aborigines, p. 161. Tregear, 'Niue,' in Jour. Polynesian Soc. ii. 14 (Savage Islanders). Williams and Calvert, Fiji, p. 204 sq. Romilly, From my Verandah in New Guinea, p. 45 (Solomon Islanders). Georgi, op. cit. iii. 266 (Siberian shamans). Monrad, op. cit. p. 23 (Negroes of Accra). Brinton, Religions of Primitive Peoples, p. 72.]

[Footnote 166: E.g., the Kalmucks (Bergmann, Nomadische Streifereien unter den Kalmüken, ii. 318 sqq.) and the ancient Caribs (Müller, Geschichte der Amerikanischen Urreligionen, p. 215).]

[Footnote 167: Dunbar, 'Pawnee Indians,' in Magazine of American History, viii. 742. Batchelor, Ainu of Japan, p. 203. Bergmann, op. cit. ii. 318. Bosman, Description of the Coast of Guinea, p. 327 (Negroes of Fida). Du Chaillu, Explorations in Equatorial Africa, p. 338. Kropf, Das Volk der Xosa-Kaffern, p. 155. For other instances of savages' great fear of death, see Bridges, in A Voice for South America, xiii. 211 (Fuegians); Müller, Geschichte der Amerikanischen Urreligionen, p. 215 (Caribs); Dunbar, in Magazine of American History, v. 334 (various North American tribes); Brinton, Myths of the New World, p. 238; Georgi, op. cit. ii. 400 (Jakuts); Bosman, op. cit. p. 130 (Gold Coast natives).]

[Footnote 168: Dorman, op. cit. p. 22 (North American Indians). von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 502 (Bororó). Hyades and Deniker, Mission scientifique du Cap Horn, vii. 379 (Fuegians). Curr, The Australian Race, i. 44. Fraser, Aborigines of New South Wales, p. 82. Spencer and Gillen, Native Tribes of Central Australia, p. 498. Worcester, Philippine Islands, p. 496 (Tagbanuas of Busuanga). Bailey, 'Veddahs of Ceylon,' in Trans. Ethn. Soc. N. S. ii. 296; Deschamps, Carnet d'un voyageur, p. 383 (Veddahs). Decle, op. cit. p. 79 (Barotse). von Düben, Lappland, pp. 241, 249.]

[Footnote 169: Hyades and Deniker, op. cit. vii. 379 (Fuegians). Batchelor, Ainu of Japan, p. 222 sq. Worcester, op. cit. p. 108 sq. (Tagbanuas of Palawan). Butler, Travels in Assam, p. 228. Fawcett, Saoras, p. 50 sq. Cunningham, Uganda, p. 130 (Bavuma).]

[Footnote 170: Howard, op. cit. p. 197 (Ainu). Selenka, Sonnige Welten, p. 89 (Dyaks). The rapid pace of the funeral procession among the Bataks (von Brenner, Besuch bei den Kannibalen Sumatras, p. 235) probably belongs to the same class of facts.]

[Footnote 171: von Brenner, op. cit. p. 235 (Bataks). Fawcett, Saoras, p. 46 sq.]

[Footnote 172: von Brenner, op. cit. p. 235 (Bataks). von Wlislocki, Volksglaube der Magyaren, p. 134.]

[Footnote 173: Crooke, Tribes and Castes of the North-Western Provinces, i. 45 (Aheriya, in Duâb), 287 (Bhangi, the sweeper tribe of Hindustan). Ralston, op. cit. p. 320 (ancient Bohemians).]

[Footnote 174: Dorsey, in Ann. Rep. Bur. Ethn. xi. 420 (Omahas). Crooke, op. cit. i. 44 (Aheriya, in Duâb).]

[Footnote 175: Zimmer, Altindisches Leben, p. 402 (Vedic people). Turner, in Ann. Rep. Bur. Ethn. xi. 191 (Hudson Bay Eskimo). Yarrow, ibid. i. 98 (Pimas of Arizona). Southey, History of Brazil, i. 248 (Tupinambas). Of the trussing and tying of the dead body which is practised in various Australian tribes the blacks themselves say that it is done "to prevent the spirit of the deceased from wandering in the night from its bed, and disturbing the living and doing them harm" (Fraser, Aborigines of New South Wales, p. 79 sq.; see also Curr, The Australian Race, i. 44, 87).]

[Footnote 176: Supra, ii. 256. Hyltén-Cavallius, Wärend och Wirdarne, i. 472 (Middle Ages).]

[Footnote 177: Cf. supra, ii. 303. For the contagion of death see also Crawley, The Mystic Rose, p. 95 sqq.]

[Footnote 178: Tylor, Primitive Culture, ii. 26 sq. Frazer, in Jour. Anthr. Inst. xv. 69 sq. Trumbull, Threshold Covenant, p. 23 sqq. Liebrecht, Zur Volkskunde, pp. 372, 373, 414 sq. Lippert, Christenthum, Volksglaube und Volksbrauch, p. 391 sq. Egede, Description of Greenland, p. 152 sq.; Nansen, Eskimo Life, p. 245 sq. (Greenlanders). Turner, in Ann. Rep. Bur. Ethn. xi. 191 (Hudson Bay Eskimo). McNair Wright, Among the Alaskans, p. 313. Jochelson, 'Koryak Religion', in Jesup North Pacific Expedition, vi. 110 sq. Georgi, op. cit. iii. 26 sq.; Jackson, in Jour. Anthr. Inst. xxiv. 406 (Samoyedes). Ramseyer and Kühne, Four Years in Ashantee, p. 50. Kålund, 'Skandinavische Verhältnisse,' in Paul, Grundriss der germanischen Philologie, ii. pt. ii. 227 (ancient Scandinavians).]

[Footnote 179: Vendîdâd, viii. 14 sqq. Darmesteter, in Sacred Books of the East, iv. p. lxxiv. sq.]

[Footnote 180: Trumbull, op. cit. p. 24.]

[Footnote 181: de Groot, op. cit. (vol. ii. book) i. 644.]

[Footnote 182: Boas, in Fifth Report on the North-Western Tribes of Canada, p. 42 sqq.]

[Footnote 183: Idem, quoted by Frazer, Golden Bough, i. 341 sq. Among the Bhuiyâr, a Dravidian tribe in South Mirzapur, each house has two doors, one of which is only used by menstruous women; and when such a woman has to quit the house "she is obliged to creep out on her hands and knees so as to avoid polluting the house thatch by her touch" (Crooke, Tribes and Castes of the North-Western Provinces, ii. 87). Among the Thompson River Indians of British Columbia meat was only taken into the hunting lodge through a hole in the back of the structure, because the common door was used by women and women were regarded as unclean (Teit, 'Thompson Indians,' in Memoirs of the American Museum of Natural History, 'Anthropology,' i. 347). In other instances

ordinary people are prohibited from using a door through which a sacred person has passed, obviously because contact with his sanctity is looked upon as dangerous. In some of the South Sea Islands, where the first-born, whether male or female, was especially sacred, no one else was allowed to pass by the door through which he or she entered the paternal dwelling (Gill, Life in the Southern Isles, p. 46). "In some parts of the Pacific, the door through which the king or queen passed in opening a temple was shut up, and ever after made sacred" (Turner, Nineteen Years in Polynesia, p. 328). Ezekiel (xliv. 2 sq.) represents the Lord as saying:--"This gate shall be shut, it shall not be opened, and no man shall enter in by it; because the Lord, the God of Israel, hath entered in by it, therefore it shall be shut. It is for the prince; . . . he shall enter by the way of the porch of that gate, and shall go out by the way of the same." Among the Arabs in olden days those who returned from a pilgrimage to Mecca entered their houses not by the door but by a hole made in the back wall (Palmer, in Sacred Books of the East, vi. 27, n. 1). This practice was forbidden by Muhammed (Koran, ii. 185).]

[Footnote 184: Frazer, in Jour. Anthr. Inst. xv. 76 sqq.]

[Footnote 185: It should be added, however, that. Sir J. G. Frazer's important essay on 'Burial Customs' was published many years ago and therefore perhaps does not exactly represent the author's present views on the subject.]

It is obvious that the beliefs held as regards the character, activity, and polluting influence of the dead greatly affect the conduct of the survivors. They are {539} naturally anxious to gain the favour of the disembodied soul, to avert its ill-will, to keep it at a distance, and to avoid the defilement of death. Self-interest is often a conspicuous motive for acts and omissions which are regarded as duties to the dead, and prudence also has a very large share in their being enjoined as obligatory. This is obviously true of the offerings made to the dead. The Thompson River Indians of British Columbia threw some food on the ground near the grave of the deceased, "that he might not visit the house in search of food, causing sickness to the people."[186] Among the Iroquois, "on the death of a nursing child two pieces of cloth are saturated with the mother's milk and placed in the hands of the dead child so that its spirit may not return to haunt the bereaved mother."[187] The Negroes of Accra, when asked why they slaughtered animals at the tombs of their departed friends, answered that they did so in order to prevent the ghosts from walking.[188] The Monbuttu place some oil and other victuals in the little hut which is erected for the dead in the forest, so that his spirit shall not return to his old home in search of food.[189] For the same reason the Bataks of Sumatra put various things into the graves of their deceased friends, ask the dead to be quiet and not to long for the company of the living, and finish their address with the words, "Here you have still some sirih and tobacco, and every year, at harvest time, we shall give you some rice."[190] Among the Chuvashes the son says to his departed father, "We remember you with a feast, here are bread and different kinds of food for you, everything you have before you, do not come to us."[191] It is considered particularly dangerous to keep back and make use of articles which belonged to the dead. The Gypsies burn on the grave all those chattels which the deceased was in the habit of using during his lifetime, "because his soul would otherwise {540} return to torment his relatives and claim back his property."[192] A Saora gave the following reason for the custom of burning all the belongings of a dead person:--"If we do not burn these things with the body, the Kulba (soul) will come and ask us for them and trouble us."[193] The Kafirs believe that, after his death, "a man's personality haunts his possessions."[194] Among the Brazilian Tupinambas "whoever happened to have any thing which had belonged to the dead produced it, that it might be buried with him, lest he should come

and claim it."[195] When a Navaho Indian dies within a house the rafters are pulled down over the remains and the place is usually set on fire; after that nothing would induce a Navaho to touch a piece of the wood or even approach the immediate vicinity of the place, the shades of the dead being regarded "as inclined to resent any intrusion or the taking of any liberties with them or their belongings."[196] The Greenlanders, as soon as a man is dead, "throw out every thing which has belonged to him; otherwise they would be polluted, and their lives rendered unfortunate. The house is cleared of all its movables till evening, when the smell of the corpse has passed away."[197]

[Footnote 186: Teit, loc. cit. p. 329.]

[Footnote 187: Smith, Myths of the Iroquois, in Ann. Rep. Bur. Ethn. ii. 69.]

[Footnote 188: Monrad, op. cit. p. 26.]

[Footnote 189: Burrows, op. cit. p. 103.]

[Footnote 190: von Brenner, op. cit. p. 234 sqq.]

[Footnote 191: Castrén, op. cit. iii. 123 sq.]

[Footnote 192: von Wlislocki, Volksglaube der Zigeuner, p. 100.]

[Footnote 193: Fawcett, op. cit. p. 47.]

[Footnote 194: Kidd, The Essential Kafir, p. 83.]

[Footnote 195: Southey, op. cit. i. 248. Cf. von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 502 (Bororó).]

[Footnote 196: Mindeleff, 'Navaho Houses,' in Ann. Rep. Bur. Ethn. xvii. 487.]

[Footnote 197: Cranz, op. cit. i. 217.]

The fear of the dead has also taught men to abstain from robbing or violating their tombs. The Omahas believe that, if anybody touched an article of food exposed at a grave, "the ghost would snatch away the food and paralyse the mouth of the thief, and twist his face out of shape for the rest of his life; or else he would be pursued by the ghost, and food would lose its taste, and hunger ever after haunt the offender."[198] The Brazilian Coroados "avoid disturbing the repository of the dead, for fear they should appear to them and torment them."[199] {541} The Maoris suppose that the violation of a burial place would bring disease and death on the criminal.[200] The extreme dislike of the Chinese to disturbing a grave is based on the supposition that the spirit of the person buried will haunt and cause ill-luck or death to the disturber.[201] According to the popular beliefs of the Magyars, he who seizes upon anything belonging to a tomb, even if it were only a flower, will be unhappy for the rest of his life.[202] The Rumanians of Transylvania think that a person who picks a flower which grows on a grave will die in consequence, and that he who smells at such a flower will lose his sense of smell.[203]

[Footnote 198: La Flesche, 'Death and Funeral Customs among the Omahas,' in Jour. American Folk-Lore, ii. 11. Cf. Reid, in Jour. Anthr. Inst. iii. 112 (Chippewas).]

[Footnote 199: von Spix and von Martius, Travels in Brazil, ii. 251.]

[Footnote 200: Polack, op. cit. i. 112.]

[Footnote 201: Dennys, op. cit. p. 26. de Groot, op. cit. (vol. iv. book) ii. 446 sq.]

[Footnote 202: von Wlislocki, Volksglaube der Magyaren, p. 135. Cf. Idem, Volksglaube der Zigeuner, p. 96 sq.]

[Footnote 203: Prexl, 'Geburts- und Todtengebräuche der Rumänen in Siebenbürgen,' in Globus, lvii. 30.]

The transgression of ancestral custom, as we have already seen, is supposed to be punished by the spirits of the dead; and the sacredness of a will largely springs from superstitious fear. The South Slavonian belief that, if a son does not fulfil the last will of his father the soul of the father will curse him from the grave,[204] has its counterpart

in the denunciatory clause in Anglo-Saxon landbooks, which usually curses all and singular who attack the donee's title.[205]

[Footnote 204: Supra, i. 624.]

[Footnote 205: Pollock and Maitland, History of English Law before the Time of Edward I. ii. 251 sq.]

The custom of praising the dead, again, is mainly flattery, and the lamentations over them are not altogether sincere.[206] By their excessive demonstrations of grief the Andaman Islanders hope to conciliate the spirits of the departed, and to be preserved from many misfortunes which might otherwise befall them.[207] The Central Australian native fears "that, unless a sufficient amount of grief be displayed, he will be harmed by the offended Ulthana or spirit of the dead man."[208] The Angmagsaliks {542} on the East Coast of Greenland say that they cry and groan and perform other mourning rites "in order to prevent the dead from getting angry."[209] But the loud wailing of mourners may also, like the shouting after a death,[210] be intended to drive away the ghost, or perhaps death itself.

[Footnote 206: See Gibbs, loc. cit. p. 205 (tribes of Western Washington and North-western Oregon); Wied-Neuwied, Reise nach Brasilien, ii. 56 (Botocudos).]

[Footnote 207: Man, in Jour. Anthr. Inst. xii. 145.]

[Footnote 208: Spencer and Gillen, Native Tribes of Central Australia, p. 510.]

[Footnote 209: Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grønland, x. 107.]

[Footnote 210: Spencer and Gillen, op. cit. p. 506. Cf. Robertson Smith, Religion of the Semites, p. 432, n. 2.]

Fear is certainly a very common motive for funeral and mourning rites which have been interpreted as duties to the dead. This is the case with the various methods of disposing of the corpse. Thus the custom of leaving it as food for beasts of prey[211] is, in some instances at least, deliberately practised for the purpose of preventing the ghost from walking. The Herero who accompanied Chapman said of two of their sick comrades who formed part of the company, "You must throw them away, and let the wolves eat them; then they won't come and bother us."[212] Cremation, also, has frequently been resorted to as a means of protecting the living from unwelcome visits of the dead, or, as the case may be, of effectually getting rid of the contagion of death.[213] The Vedic people, while burning the corpses of their dead, cried aloud, "Away, go away, O Death! injure not our sons and our men."[214] In Northern India the corpses of all low caste people are either cremated or buried face downwards, in order to prevent the evil spirit from escaping and troubling its neighbours.[215] The Nâyars of Malabar not only believe that the collection and careful disposal of the ashes of the dead man gives peace to his spirit, but, "what is more important, the pacified spirit will not thereafter injure the living members of the Taravâd (house or family), cause miscarriage {543} to the women, possess the men, as with an evil spirit, and so on."[216] In Tibet a ghost which makes its presence felt in dreams or by causing deliriousness or temporary insanity is disposed of by cremation.[217] In his description of the Savage Islanders, Mr. Thomson tells us of a mother who destroyed her own daughter's grave by fire in order to burn the spirit which was afflicting her.[218] Among the ancient Scandinavians the bodies of persons who were believed to walk after death were dug up from their graves and burned.[219] And exactly the same is done in Albania to this day.[220]

[Footnote 211: For this custom see also Murdoch, in Ann. Rep. Bur. Ethn. ix. 424 sq. (Point Barrow Eskimo); Nordenskiöld, Vegas färd kring Asien och Europa, ii. 93 (Chukchi); Andersson, Notes on Travel in South Africa, p. 234 (Ovambo).]

[Footnote 212: Chapman, Travels in the Interior of South Africa, ii. 282.]

[Footnote 213: Cf. Rohde, op. cit. p. 28 sqq. (ancient Greeks); Preuss, op. cit. p. 294.]

[Footnote 214: Rig-Veda, x. 18. 1.]

[Footnote 215: Crooke, Popular Religion of Northern India, i. 269.]

[Footnote 216: Fawcett, in the Madras Government Museum's Bulletin, iii. 251. See also Iyer, 'Nay[=a]dis of Malabar,'ibid. iv. 71.]

[Footnote 217: Waddell, op. cit. p. 498.]

[Footnote 218: Thomson, Savage Island, p. 134.]

[Footnote 219: Kålund, loc. cit. p. 227.]

[Footnote 220: von Hahn, Albanesische Studien, i. 163.]

Burial itself has served a similar purpose.[221] According to the Danish traveller Monrad, the Negroes of Accra expressly believe that by covering the body of a dead person with earth they keep the ghost from walking and causing trouble to the survivors; and he adds that exactly the same superstition prevails in Jutland in Denmark.[222] This belief is also preserved in the Swedish word for committing a corpse to the earth, jordfästa, which literally means "to fasten to the earth." In Gothland, in Sweden, there was an old tradition of a man called Takstein who in his lifetime was overbearing and cruel and after his death haunted the living, in consequence of which "a wizard finally earth-fastened him in such a manner that he afterwards lay quiet."[223] But burial has often been supplemented by other precautions against the return of the ghost. Högström says that the Laplanders carefully wrapped up their dead in cloth so as to prevent the soul from slipping away.[224] The practice of placing logs or stones immediately over the corpse may have a similar origin; in some Queensland tribes, when an individual has been killed by the whole tribe in punishment for some {544} serious crime, boomerangs are substituted for the ordinary logs, evidently for fear of the ghost.[225] The Chuvashes, again, put two stakes across the coffin of a dead man for the purpose of preventing him from lifting up the cover.[226] Graves are often provided with mounds, tombstones, or enclosures in order to keep the dead from walking.[227] The Omahas raise no mound over a man who has been killed by lightning, but bury him face downwards and with the soles of his feet split, in the belief that he will then go to the spirit-land without giving further trouble to the living.[228] The Savage Islanders pile heavy stones upon the grave to keep the ghost down.[229] The Cheremises believe that the ghosts cannot step over the fence-poles with which they surround the graves.[230] When ceremonies like that of striking the air at a funeral or the ringing of bells are represented as means of keeping off evil spirits from the dead, we have reason to suspect that their original object was to keep off the ghost from the living. At Central Australian funerals women beat the air with the palms of their hands for the express purpose of driving the spirit away from the old camp which it is supposed to haunt, and the men beat the air with their spear-throwers.[231] The Bondeis of East Africa frighten the ghosts by beating drums.[232] And at Port Moresby, in New Guinea, when the church bell was first used, the natives thanked the missionaries for having driven off numerous bands of ghosts.[233]

[Footnote 221: Cf. Frazer, in Jour. Anthr. Inst. xv. 64 sq.; Preuss, op. cit. p. 292 sq.]

[Footnote 222: Monrad, op. cit. p. 13.]

[Footnote 223: Läffler, Den gottländska Taksteinar-sägnen, p. 5.]

[Footnote 224: Högström, Beskrifning öfver de til Sveriges Krona lydande Lapmarker, p. 207.]

[Footnote 225: Roth, op. cit. p. 165.]

[Footnote 226: Castrén, op. cit. iii. 121.]

[Footnote 227: Cf. Frazer, in Jour. Anthr. Inst. xv. 65 sq.; Preuss, op. cit. p. 293.]

[Footnote 228: Dorsey, in Ann. Rep. Bur. Ethn. xi. 420. La Flesche, in Jour. American Folk-Lore, ii. 11.]

[Footnote 229: Thomson, Savage Island, p. 52.]

[Footnote 230: Castrén, op. cit. iii. 122.]

[Footnote 231: Spencer and Gillen, Native Tribes of Central Australia, p. 506.]

[Footnote 232: Dale, in Jour. Anthr. Inst. xxv. 238.]

[Footnote 233: Chalmers and Gill, Work and Adventure in New Guinea, p. 260.]

That the mourning fast is essentially a precaution taken by the survivors, and not a tribute to the dead, is obvious from what has been said in a previous chapter.[234] When mourners mutilate, cut, or beat themselves, the original object of their doing so seems often to be to ward off the {545} contagion of death.[235] Among the Bedouins of Morocco women at funerals not only scratch their faces, but also rub the wounds with cow-dung, and cow-dung is regarded as a means of purification. The mourning customs of painting the body and of assuming a special costume have been explained as attempts on the part of the survivors to disguise themselves;[236] but the latter custom may also have originated in the idea that a mourner is more or less polluted for a certain period and that therefore a dress worn by him then, being a seat of contagion, could not be used afterwards. Egede writes of the Greenlanders, "If they have happened to touch a corpse, they immediately cast away the clothes they have then on; and for this reason they always put on their old clothes when they go to a burying, in which they agree with the Jews."[237] There can, finally, be no doubt that the widespread prohibition of mentioning the name of a dead person[238] does not in the first instance arise from respect for the departed, but from fear. To name him is to summon him; the Indians of Washington Territory even change their own names when a relative dies, because "they think the spirits of the dead will come back if they hear the same name called that they were accustomed to hear {546} before death."[239] But apart from this, a dead man's name itself is probably felt to be defiling, or at all events produces an uncanny association of thought, which even among ourselves makes many people reluctant to mention it.[240] And to do so may also be a wrong to other persons who would be endangered thereby. Among the Goajiro Indians of Colombia, to mention a dead man before his relatives is a dreadful offence, which is often punished even with death.[241]

[Footnote 234: Supra, ii. 302 sqq.]

[Footnote 235: Cf. Frazer, Golden Bough, i. 302.]

[Footnote 236: Frazer, in Jour. Anthr. Inst. 73. Idem, 'Folk-Lore in the Old Testament,' in Anthropological Essays presented to E. B. Tylor, p. 110.]

[Footnote 237: Egede, op. cit. p. 197.]

[Footnote 238: Tylor, Researches into the Early History of Mankind, p. 144. Nyrop, 'Navnets magt,' in Mindre afhandlinger udgivne af det philologisk-historiske samfund, pp. 147-151, 190 sq. and passim. Frazer, Golden Bough, i. 421 sqq. Clodd, Tom Tit Tot, p. 166 sqq. Nansen, Eskimo Life, p. 230 sq. (Greenlanders). Müller, Geschichte der Amerikanischen Urreligionen, p. 84 (North American Indians). Bourke, 'Medicine-Men of the Apache,' in Ann. Rep. Bur. Ethn. ix. 462. Batchelor, Ainu and their Folk-Lore, p. 242. Georgi, op. cit. iii. 27, 28, 262 sq. (Samoyedes and shamanistic peoples in Siberia). Jackson, in Jour. Anthr. Inst. xxiv. 406 (Samoyedes). Rivers, Todas, p. 625 sqq. Crooke, Tribes and Castes of the North-Western Provinces, i. 11 (Agariya, a Dravidian tribe), von Wlislocki, Volksglaube der Zigeuner, p. 96 (Gypsies). Yseldijk, in Glimpses of the Eastern Archipelago, p. 42. (Kotting, in the island of Flores). Roth, North-West-Central Queensland Aborigines, p. 164. Spencer and Gillen, Native Tribes of Central Australia,

p. 498. Fraser, Aborigines of New South Wales, p. 82. Thornton, in Hill and Thornton, Aborigines of New South Wales, p. 7. Fison and Howitt, op. cit. p. 249 (Kurnai). Curr, Squatting in Victoria, p. 272 (Bangerang). Hinde, op. cit. p. 50 (Masai). Duveyrier, Exploration du Sahara, p. 415 (Touareg). Werner, 'Custom of "Hlonipa,"' in Jour. African Soc. 1905, April, p. 346 (Zulus).]

[Footnote 239: Swan, Residence in Washington Territory, p. 189.]

[Footnote 240: I had much difficulty in inducing my teacher in Shel[h.]a, a Berber from the Great Atlas Mountains, to tell me the equivalent for "illness" in his own language; and when he finally did so, he spat immediately afterwards. Among the Central Australian Arunta the older men will not look at the photograph of a deceased person (Gillen, 'Aborigines of the McDonnell Ranges,' in Report of the Horn Expedition, iv. 'Anthropology,' p. 168).]

[Footnote 241: Simons, 'Exploration of the Goajira Peninsula,' in Proceed. Roy. Geograph. Soc. N. S. vii. 791.]

By all this I certainly do not mean to assert that the funeral and mourning customs to which I have just referred have exclusively or in every case originated in fear of the dead or of the pollution of death. Burial may also be genuinely intended to protect the body from beasts or birds; and the same may be the case with mounds, tombstones, and enclosures.[242] Some savages are reported to burn the dead in order to prevent their bodies from falling into the hands of enemies,[243] which might be bad both for the dead and for their friends, as charms might be made from the corpses.[244] Moreover, cremation does away with the slow process of transformation to which a dead body is naturally subject, and this process is regarded not only as a danger to the living but also as painful to the deceased himself.[245] The same object may be achieved by exposing the corpse to wild animals. And we should also remember that the putrefactive process {547} itself, whether accompanied by any superstitious ideas or not, is a sufficient motive for disposing of the dead body in some way or other--either by burial or cremation or exposure; and if one method is held objectionable another will be resorted to. Among the Masai the custom of throwing away corpses is said to spring from the notion that to bury them would be to poison the soil;[246] and the Zoroastrian law enjoining the exposure of the dead was closely connected with the sacredness ascribed to fire and earth and the consequent dread of polluting them.

[Footnote 242: Cranz, op. cit. i. 217 (Greenlanders). Turner, in Ann. Rep. Bur. Ethn. xi. 192 (Hudson Bay Eskimo). Yarrow, ibid. i. 102 (Wichita Indians). Dunbar, in Magazine of American History, viii. 734 (Pawnee Indians). Curr, The Australian Race, i. 87.]

[Footnote 243: Hyades and Deniker, op. cit. vii. 379 (Fuegians). Preuss, op. cit. p. 310 (Seminole Indians of Florida).]

[Footnote 244: Ralph, quoted by Hartland, Legend of Perseus, ii. 437 (Haidahs of British Columbia).]

[Footnote 245: See Hertz, loc. cit. p. 71.]

[Footnote 246: Thomson, Through Masai Land, p. 259.]

Again, as for the mutilations and self-inflicted wounds which accompany funerals, I have suggested in a previous chapter that they may be partly practised for the purpose of refreshing the departed soul with human blood;[247] or, as Dr. Hirn observes, they may be instinctive efforts to procure that relief from overpowering feelings which is afforded by pain and the subsequent exhaustion.[248] The reluctance to name the dead may, in some measure, be traced to a natural unwillingness in his old friends to revive past sorrows.[249] And with reference to the mourning apparel, Dr. de Groot believes--if rightly or wrongly I am not in a position to decide--that, so far as China is concerned,

it originated in the custom of sacrificing to the dead the clothes on one's own back. He thinks that this explanation is confirmed by the fact that in the age of Confucius it was customary for the mourners to throw off their clothes as far as decency allowed when the corpse was being dressed.[250]

[Footnote 247: Supra, i. 476.]

[Footnote 248: Hirn, Origins of Art, p. 66 sq.]

[Footnote 249: Fison and Howitt, op. cit. p. 249 (Kurnai). Frazer, Golden Bough, i. 422.]

[Footnote 250: de Groot, op. cit. (vol. ii. book) i. 475 sq.]

There are several reasons why practices connected with death which originally sprang from self-regarding motives have come to be enjoined as duties. We have first to remember the various factors mentioned above[251] which tend to make self-regarding conduct a matter of moral concern. {548} But in this case the transition from the prudential to the obligatory has been much facilitated by the circumstance that all the acts which a person's self-interest induces him to perform or to abstain from have direct reference to another individual, and, indeed, to an individual who is supposed to reward benefits bestowed upon him or at all events to resent injuries and neglect. These punishments and rewards sent by the departed soul are all the more readily recognised to be well deserved, as the claims of the dead are similar in nature to those of the living and are at the same time in some degree supported by sympathetic feelings in the survivors. Nor is it difficult to explain why even such practices as are not originally supposed to comfort the dead have assumed the character of duties towards them. The dead are not only beings whom it is dangerous to offend and useful to please, but they are also very easily duped. No wonder therefore that the living are anxious to put the most amiable interpretation upon their conduct, trying to persuade the ghost, as also one another, that they do what they do for his benefit, not for their own. It is better for him to have rest in his grave than to wander about on earth unhappy and homeless. It is better for him to enjoy the heat of the flames than to suffer from the cold of an arctic climate. It is better for him to be eaten by an animal--say, a beautiful dog or a hyæna sent by God--than to lie and rot in the open air. And all the mourning customs, what are they if not tokens of grief? Moreover, if the corpse is not properly disposed of or any funeral or mourning rite calculated to keep off the ghost is not observed, the dead man will easily do harm to the survivors. And does not this indicate that they have been neglectful of their duties to him?

[Footnote 251: Supra, ii. 266 sq.]

The mixture of sympathy and fear which is at the bottom of the duties to the dead accounts for the fact that these duties are rarely extended to strangers. A departed stranger is not generally an object of either pity or fear. He expects attention from his own people only, he haunts his own home. But he may of course be dangerous to {549} anybody who directly offends him, for instance by inflicting an injury upon his body, or to people who live in the vicinity of his grave. We are told that the Angami Nagas bestow as much care on the tombs of foes who have fallen near their villages as on those of their own warriors.[252] So also the differences in the treatment of the dead which depend upon age, sex, and social position are no doubt closely connected with variations in the feelings of sympathy, respect, or fear,[253] although in many cases we are unable to explain those differences in detail. Among the Australian natives women and children are said to be interred with little ceremony because they are held to be very inferior to men while alive and consequently are not much feared after death; [254] and if in Eastern Central Africa the attention usually bestowed upon the dead

is not extended to children which die when four or five days old, the reason seems to be that such children are hardly supposed to possess a soul.[255] We may assume that the special treatment to which the bodies of criminals are subject is due not only to indignation but, in some instances at least, to fear of their ghosts. And we have noticed above that suicides, murdered persons, and those struck with lightning are sometimes left unburied because no one dares to interfere with their bodies, or perhaps in order to prevent them from mixing with the other dead.[256]

[Footnote 252: Prain, 'Angami Nagas,' in Revue coloniale internationale, v. 493.]

[Footnote 253: Cf. Hertz, loc. cit. pp. 122, 132 sqq.]

[Footnote 254: Curr, The Australian Race, i. 89.]

[Footnote 255: Macdonald, Africana, i. 68.]

[Footnote 256: Supra, ii. 238 sq.]

It should finally be noticed that the duties to the departed become less stringent as time goes on. As Dr. Hertz has recently shown, the fear of the dead is greatest as long as the process of decomposition lasts and till the second funeral is performed, and this ceremony brings the period of mourning to an end.[257] Moreover, the dead are gradually less and less thought of, they appear less frequently in dreams and visions, the affection for them fades away, and, being forgotten, they are no longer feared. The Chinese say that ghosts are much more {550} liable to appear very shortly after death, than at any other period.[258] The natives of Australia are only afraid of the spirits of men who have lately died.[259] In the course of time savages also become more willing to speak of their dead.[260] But whilst the large bulk of disembodied souls sooner or later lose their individuality and dwindle into insignificance or sink into the limbo of All Souls, it may be that some of them escape this fate, and, instead of being ignored, are raised to the rank of gods.

[Footnote 257: Hertz, loc. cit. passim.]

[Footnote 258: Dennys, op. cit. p. 76.]

[Footnote 259: Curr, The Australian Race, i. 44, 87. Lumholtz, Among Cannibals, p. 279 (Northern Queensland aborigines).]

[Footnote 260: Tout, 'Ethnology of the Stlatlumh of British Columbia,' in Jour. Anthr. Inst. xxxv. 138. Bourke, 'Medicine-Men of the Apache,' in Ann. Rep. Bur. Ethn. ix. 462. Frazer, Golden Bough, i. 431 sqq.]

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Progress in intellectual culture has a tendency to affect the notions of death. The change involved in it appears greater. The soul, if still thought to survive the death of the body, is more distinctly separated from it; it is rid of all sensuous desires, as also of all earthly interests. Duties to the dead which arose from the old ideas may still be maintained, but their meaning is changed.

Thus the funeral sacrifice may be continued as a mark of respect or affection. In Melanesia, for instance, at the death-meals which follow upon funerals or begin before them, and which still form one of the principal institutions of the natives, a piece of food is put aside for the dead. "It is readily denied now," says Dr. Codrington, "that the dead . . . are thought to come and eat the food, which they say is given as a friendly remembrance only, and in the way of associating together those whom death has separated."[261] In many cases the offerings made to the dead have become alms given to the poor, just as has been the case with sacrifices offered to gods;[262] and this almsgiving is undoubtedly looked upon as a duty to the dead. Among the Omahas goods are collected from the kindred of the dead between the death and the funeral, and when the body has been deposited in the grave they {551} are brought forth and

equally divided among the poor who are assembled on the spot.[263] At a Hindu funeral in Sindh, on the road to the burning place, the relatives of the dead throw dry dates into the air over the corpse; these are considered as a kind of alms and are left to the poor.[264] Among some peoples of Malabar, at the çráddha, or yearly anniversary of a death, not less than three Brahmins are well fed and presented with money and cloth; [265] and according to Brahmanism the çráddha is "a debt which is transferred from one generation to another, and on the payment of which depends the happiness of the dead in the next life."[266] Among Muhammedans alms, generally consisting of food, are distributed in connection with a death in order to confer merits upon the deceased. [267] Thus in Morocco bread or dried fruits are given to the poor who are assembled at the grave-side on the day of the funeral, as also on the third and sometimes on the fortieth day after it, on the tenth day of Mu[h.]arram, and in many parts of the country on other feast-days as well, when the graves are visited by relatives of the dead. These alms are obviously survivals of offerings to the dead themselves. While residing among the Bedouins of Dukkâla, I was told that if the funeral meal were omitted the dead man's mouth would be filled with earth; and it is a common custom among the Moors that, if a dead person appears in a dream complaining of hunger or thirst, food or drink is at once given to some poor people. Among the Christians, in former days, alms were distributed in the church when, soon after a death or on the anniversary of a death, the sacrifice of the mass was offered; and alms were also given at funerals and at graves, in the hope that their merit might be of advantage to the deceased.[268] At Mykonos, in the Cyclades, on some fixed days after the {552} burial a dish consisting of boiled wheat adorned with sugar plums or other delicacy is put on the tomb, and finally distributed to the poor at the church door;[269] and in some parts of Russia the people still believe that if the usual alms are not given at a funeral the dead man's soul will reveal itself to his relatives in the form of a moth flying about the flame of a candle.[270] The supposed conferring of merits upon the dead and the prayers on their behalf, so common both in Christianity and Muhammedanism, are the last remains of a series of customs by means of which the living have endeavoured to benefit their departed friends.

[Footnote 261: Codrington, Melanesians, p. 271 sq. Cf. ibid. p. 128.]

[Footnote 262: Supra, i. 565 sqq.]

[Footnote 263: La Flesche, in Jour. American Folk-Lore, ii. 8 sqq.]

[Footnote 264: Burton, Sindh, p. 350.]

[Footnote 265: Fawcett, 'Notes on some of the People of Malabar,' in the Madras Government Museum's Bulletin, iii. 71.]

[Footnote 266: Barth, Religions of India, p. 52.]

[Footnote 267: Garnett, Women of Turkey, ii. 496. Lane, Modern Egyptians, p. 530. Certeux and Carnoy, L'Algérie traditionelle, p. 220.]

[Footnote 268: Uhlhorn, Die christliche Liebesthätigkeit, i. 281.]

[Footnote 269: Bent, Cyclades, p. 221 sq.]

[Footnote 270: Ralston, op. cit. p. 117.]

But even when the dead are no longer believed to be in need of human care, nay, though death be thought to put an end to existence, there are still duties, if not to the dead, at all events to those who were once alive. A person may be wronged by an act which he can no longer feel. There are rights that are in force not only during his lifetime but after his death. A given promise is not buried with him to whom it was made. A dead man's will is binding. His memory is protected against calumny. These rights have the same foundation as all other rights: the feelings of the person himself and the claims of others that his feelings shall be respected. We have wishes with regard

to the future when we live no more. We take an interest in persons and things that survive us. We desire to leave behind a spotless name. And the sympathy felt for us by our fellow men will last when we ourselves are gone.

Chapter XLVI — Cannibalism

BEFORE we take leave of the dead we have still to consider the practice of eating them.

Habitual cannibalism, permitted or in some cases enjoined by custom, has been met with in a large number of savage tribes and, as a religious or magical rite, among several peoples of culture. It is, or has been, particularly prevalent in the South Sea Islands, Australia, Central Africa, and South and Central America. But it has also been found among various North American Indians, in certain tribes of the Malay Archipelago, and among a few peoples on the Asiatic continent. And it is proved to have occurred in many parts of Europe.[1]

[Footnote 1: For the prevalence and extenson of cannibalism**, see Andree, Die Anthropophagie, p. 1 sqq.; Bergemann, Die Verbreitung der Anthropophagie, p. 5 sqq.; Steinmetz, Endokannibalismus, p. 2 sqq.; Schneider, Die Naturvölker, i. 121 sqq.; Letourneau, L'évolution de la morale, p. 82 sqq.; Ritson, Abstinence from Animal Food, p. 125 sqq.; Hartland, Legend of Perseus, ii. 279 sqq.; Schaafhausen, 'Die Menschenfresserei und das Menschenopfer,' in Archiv f. Anthropologie, iv. 248 sqq.; Henkenius, 'Verbreitung der Anthropophagie,' in Deutsche Rundschau f. Geographie u. Statistik, xv. 348 sqq.; de Nadaillac, 'L'Anthropophagie et les sacrifices humains,' in Revue des Deux Mondes, lxvi. 406 sqq.; Idem, in Bulletins de la Soc. d'Anthrop. de Paris, 1888, p. 27 sqq.; Dorman, Origin of Primitive Superstitions, p. 145 sqq. (American aborigines); Koch, 'Die Anthropophagie der südamerikanischen Indianer,' in Internationales Archiv f. Ethnographie, xii. 84 sqq.; Preuss, Die Begräbnisarten der Amerikaner und Nordostasiaten, p. 217 sqq.; Vos, 'Die Verbreitung der Anthropophagie auf dem asiatischen Festlande,' in Intern. Archiv f. Ethnogr. iii. 69 sqq.; de Groot, Religious System of China, (vol. iv. book) ii. 363 sqq.; Hübbe-Schleiden, Ethiopien, p. 209 sqq.; Matiegka, 'Anthropophagie in der prähistorischen Ansiedlung bei Knovize und in der prähistorischen Zeit überhaupt,' in Mittheil. d. Anthrop. Gesellsch. in Wien, xxvi. 129 sqq.; Wood-Martin, Traces of the Elder Faiths of Ireland, ii. 286 sqq.]

{554} Sometimes the whole body is eaten, with the exception of the bones, sometimes only a part of it, as the liver or the heart. Frequently the victim is an enemy or a member of a foreign tribe, but he may also be a relative or fellow tribesman. Among various savages exo- and endo-anthropophagy prevail simultaneously; but many cannibals restrict themselves to eating strangers, slain enemies, or captives taken in war, whereas others eat their own people in preference to strangers, or are exclusively endo-anthropophagous. Thus the Birhors of the Central Provinces of India are said to eat their aged relatives, but to abhor any other form of cannibalism;[2] and in certain Australian tribes it is not the dead bodies of slain enemies that are eaten, but the bodies of friends, the former being left where they fell.[3] Sometimes people feed on the corpses of such kinsmen as have happened to die, sometimes they kill and eat their old folks, sometimes parents eat their children, sometimes criminals are eaten by the other members of their own community. The Australian Dieyerie have a fixed order in which they partake of their dead relatives:--"The mother eats of her children. The children eat of their mother. Brothers-in-law and sisters-in-law eat of each other. Uncles, aunts, nephews, nieces,

grandchildren, grandfathers, and grandmothers eat of each other. But the father does not eat of his offspring, or the offspring of the sire."[4] Among some peoples cannibalism is an exclusively masculine custom, the women being forbidden to eat human flesh, except perhaps in quite exceptional circumstances.[5]

[Footnote 2: Dalton, Ethnology of Bengal, p. 220 sq.]

[Footnote 3: Palmer, 'Some Australian Tribes,' in Jour. Anthr. Inst. xiii. 283; Fraser, Aborigines of New South Wales, p. 56; Howitt, Native Tribes of South-East Australia, p. 753 (Queensland aborigines). Dawson, Australian Aborigines, p. 67 (tribes of Western Victoria).]

[Footnote 4: Gason, 'Dieyerie Tribe,' in Woods, Native Tribes of South Australia, p. 274.]

[Footnote 5: Coquilhat, Sur le Haut-Congo, p. 274 (Bangala). Torday and Joyce, 'Ethnography of the Ba-Mbala,' in Jour. Anthr. Inst. xxxv. 403 sq. Iidem, 'Ethnography of the Ba-Huana,' ibid. xxxvi. 279. Reade, Savage Africa, p. 158 (West Equatorial Africans). Thomson, Story of New Zealand, i. 145; Best, 'Art of War, as conducted by the Maori,' in Jour. Polynesian Soc. xi. 71 (some of the Maoris). von Langsdorf, op. cit. i. 134 (Nukahivans). Erskine, Cruise among the Islands of Western Pacific, p. 260 (Fijians). Spencer and Gillen, Northern Tribes of Central Australia, p. 548. With reference to the natives of Australia Mr. Curr says (The Australian Race, i. 77) that "human flesh seems to have been entirely forbidden to females"; but this certainly does not hold true of all the Australian tribes.]

{555} The practice of cannibalism may be traced to many different sources. **It often springs from scarcity or lack of animal food.[6] In the South Sea Islands, according to Ellis, "the cravings of nature, and the pangs of famine, often led to this unnatural crime."[7] The Nukahivans, who were in the habit of eating their enemies slain in battle, also killed and ate their wives and children in times of scarcity, but not unless forced to it by the utmost necessity.[8] Hunger has been represented as the motive for cannibalism in some North and West Australian tribes, parents sometimes consuming even their own children when food is scarce.[9] The Indians north of Lake Superior often resorted to the eating of human flesh when hard pressed by their enemies or during a famine.[10] Among the Hudson Bay Eskimo "instances are reported where, in times of great scarcity, families have been driven to cannibalism after eating their dogs and the clothing and other articles made of skins."[11]

[Footnote 6: Bergemann, op. cit. p. 48. de Nadaillac, in Bull. Soc. d'Anthr. 1888, p. 27 sqq. Idem, in Revue des Deux Mondes, lxvi. 428 sq. Steinmetz, Endokannibalismus, p. 25 sqq. Lippert, Kulturgeschichte der Menschheit, ii. 281 sqq. Henkenius, loc. cit. p. 348 sq. Letourneau, L'évolution de la Morale, p. 97. Matiegka, loc. cit. p. 136. Hübbe-Schleiden, Ethiopien, p. 216 sq. Rochas, La Nouvelle Calédonie, p. 304 sq.]

[Footnote 7: Ellis, Polynesian Researches, i. 359.]

[Footnote 8: von Langsdorf, op. cit. i. 144.]

[Footnote 9: Lumholtz, Among Cannibals, p. 134. Nisbet, A Colonial Tramp, ii. 143. Oldfield, 'Aborigines of Australia,' in Trans. Ethn. Soc. N.S. iii. 285. In hard summers the new-born babies were all eaten by the Kaura tribe in the neighbourhood of Adelaide (Howitt, op. cit. p. 749).]

[Footnote 10: Warren, in Schoolcraft, Indian Tribes of the United States, ii. 146.]

[Footnote 11: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 187.]

But whilst among some peoples starvation is the only inducement to cannibalism, there are others who can plead no such motive for their anthropophagous habits. The

Fijians, until lately some of the greatest man-eaters on earth, inhabit a country where food of every kind abounds.[12] The Brazilian cannibals generally have a great {556} plenty of game or fish.[13] In Africa cannibalism prevails in many countries which are well supplied with food.[14] Thus the Bangala of the Upper Congo have been known to make frequent warlike expeditions against adjoining tribes seemingly for the sole object of obtaining human flesh to eat, although their land is well provided with a variety of vegetable food and domestic animals, to say nothing of the incredible abundance of fish in its lakes and rivers.[15] Of the cave-cannibals in the Trans-Gariep Country, in South Africa, a traveller remarks with some surprise:--"They were inhabiting a fine agricultural tract of country, which also abounded in game. Notwithstanding this, they were not contented with hunting and feeding upon their enemies, but preyed much upon each other also, for many of their captures were made from amongst the people of their own tribe."[16] Far from being an article of food resorted to in emergency only, human flesh is not seldom sought for as a delicacy.[17] The highest praise which the Fijians could bestow on a dainty was to say that it was "tender as a dead man."[18] In various other islands of the South Seas human flesh is spoken of as a delicious food, far superior to pork.[19] The {557} Australian Kurnai said that it tasted better than beef.[20] In some tribes in Australia a plump child is considered "a sweet mouthful, and, in the absence of the mother, clubs in the hands of a few wilful men will soon lay it low."[21] Of certain natives of Northern Queensland we are told that the greatest incentive to taking life is their appetite for human flesh, as they know no greater luxury than the flesh of a black man.[22]

[Footnote 12: Williams and Calvert, Fiji, p. 182. Erskine. op. cit. p. 262.]

[Footnote 13: von Martius, Beiträge zur Ethnographie Amerika's, i. 538. Koch, loc. cit. p. 87. de Nadaillac, in Bull. Soc. d'Anthr. 1888, p. 30 sq.]

[Footnote 14: Johnston, 'Ethics of Cannibalism,' in Fortnightly Review, N.S. xlv. 20 sqq. Hübbe-Schleiden, Ethiopien, p. 212. de Nadaillac, in Bull. Soc. d'Anthr. 1888, p. 32 sq.]

[Footnote 15: Coquilhat, op. cit. pp. 271, 273. Johnston, in Fortnightly Review, N.S. xlv. 20.]

[Footnote 16: Layland, quoted by Burton, Two Trips to Gorilla Land, i. 216.]

[Footnote 17: Bergemann, op. cit. p. 49 sq. von Langsdorf, op. cit. i. 141. Hübbe-Schleiden, Ethiopien, p. 218. Johnston, in Fortnightly Review, N.S. xlv. 20 sqq. (various African peoples). Kingsley, Travels in West Africa, p. 330 (Fans). Reade, op. cit. p. 158 (West Equatorial Africans). Coquilhat, op. cit. p. 271 (Bangala). Torday and Joyce, 'Ba-Mbala,' in Jour. Anthr. Inst. xxxv. 404. Iidem, 'Ba-Huana,' ibid. xxxvi. 279.]

[Footnote 18: Wilkes, U. S. Exploring Expedition, iii. 101. Cf. Williams and Calvert, op. cit. pp. 175, 178, 195.]

[Footnote 19: Romilly, Western Pacific, p. 59 (New Irelanders). Idem, From my Verandah in New Guinea, p. 65. Brenchley, Cruise of H.M.S. Curaçoa, p. 209; Turner, Samoa, p. 313 (natives of Tana, in the New Hebrides). Cf. ibid. p. 344 (New Caledonians); Hale, U. S. Exploring Expedition. Vol. VI. Ethnography and Philology, p. 39 (Polynesians). The Bataks of Sumatra likewise consider human flesh even better than pork (Junghuhn, Die Battaländer auf Sumatra, ii. 160 sq.). For the high appreciation of its taste see also Marco Polo, Book concerning the Kingdoms and Marvels of the East, ii. 179 (hill people in Fokien), 209 (Islanders in the Seas of China); Schaafhausen, loc. cit. p. 247 sq.; Matiegka, loc. cit. p. 136, n. 3.]

[Footnote 20: Howitt, op. cit. p. 752.]

[Footnote 21: Fraser, Aborigines of New South Wales, pp. 3, 57.]

[Footnote 22: Lumholtz, op. cit. pp. 101, 271.]

However, bodily appetites, whether hunger or gourmandise, are by no means the sole motives for cannibalism. Very frequently it is described as an act of revenge.[23] The Typees of the Marquesas Islands, according to Melville, are cannibals only when they seek to gratify the passion of revenge upon their foes.[24] The cannibalism of the Solomon Islanders seems mainly to have been an expression of the deepest humiliation to which they could make a person subject.[25] The Samoans affirmed that, when in some of their wars a body was occasionally cooked, "it was always some one of the enemy who had been notorious for provocation or cruelty, and that eating a part of his body was considered the climax of hatred and revenge, and was not occasioned by the mere relish for human flesh." To speak of roasting {558} him is the very worst language that can be addressed to a Samoan, and if applied to a chief of importance, he may raise war to avenge the insult.[26] Among the Maoris human flesh was frequently eaten from motives of revenge and hatred, to cast disgrace on the person eaten, and to strike terror. "It was such a disgrace for a New Zealander to have his body eaten, that if crews of Englishmen and New Zealanders, all friends, were dying of starvation in separate ships, the English might resort to cannibalism, but the New Zealanders never would."[27] Even in Fiji, where cannibalism was largely indulged in for the mere pleasure of eating human flesh as food, revenge is said to have been the chief motive for it.[28] Thus, "in any transaction where the national honour had to be avenged, it was incumbent upon the king and principal chiefs--in fact, a duty they owed to their exalted station--to avenge the insult offered to the country by eating the perpetrators of it."[29]

[Footnote 23: Ellis, Polynesian Researches, i. 310 (Tahitians). von Langsdorf, op. cit. i. 149 (Nukahivans). Forster, Voyage round the World, ii. 315 (natives of Tana and generally). Powell, Wanderings in a Wild Country, p. 248 (natives of New Britain and New Ireland). Howitt, Natives of South-East Australia, pp. 247, 751. Marsden, History of Sumatra, p. 391; Buning, in Glimpses of the Eastern Archipelago, p. 74 sq.; Junghuhn. op. cit. ii. 156, 160 (Bataks). de Groot, op. cit. (vol. iv. book) ii. 369 sqq. (ancient Chinese). Schneider, Die Religion der afrikanischen Naturvölker, p. 208 sq. (Negroes). Burton, Two Trips to Gorilla Land, i. 216 (natives of Bonny and New Calabar). Müller, Geschichte der Amerikanischen Urreligionen, p. 145 sq. Carver, Travels through the Interior Parts of North America, p. 303 sq. (Naudowessies). Keating, Expedition to the Source of St. Peter's River, i. 104 (Potawatomis). Koch, loc. cit. pp. 87, 89 sqq. (South American tribes). von Humboldt, Travels to the Equinoctial Regions of the New Continent, v. 421 (Indians of Guyana). Wied-Neuwied, Reise nach Brasilien, ii. 50 (Botocudos and some other Brazilian tribes). Lomonaco, 'Sulle razze indigene del Brasile,' in Archivio per l'antropologia e la etnologia, xix. 58 (Tupis). Andree, op. cit. p. 102 sq. and passim.]

[Footnote 24: Melville, Typee, p. 181.]

[Footnote 25: Parkinson, Zur Ethnographie der nordwestlichen Salomo Inseln, p. 14.]

[Footnote 26: Turner, Nineteen Years in Polynesia, p. 194. Cf. Pritchard, Polynesian Reminiscences, p. 125 sq.]

[Footnote 27: Thomson, Story of New Zealand, i. 141 sqq. Yate, Account of New Zealand, p. 129. Dieffenbach, Travels in New Zealand, ii. 128. Taylor, Te Ika a Maui, p. 353. Best, in Jour. Polynesian Soc. xi. 71 sq.]

[Footnote 28: Wilkes, op. cit. iii. 101. Williams and Calvert, op. cit. p. 178.]

[Footnote 29: Seemann, Viti, p. 181.]

The practice of eating criminals, which is quite a common form of cannibalism, seems to be largely due to revenge or indignation.[30] In Lepers' Island, in the New

Hebrides, the victims of it were not generally enemies who had been killed in fighting, but "it was a murderer or particularly detested enemy who was eaten, in anger and to treat him ill."[31] Among the Bataks of Sumatra offenders condemned for certain capital crimes, such as atrocious murder, treason, and adultery, were usually eaten by the injured persons and their friends with all the signs of angry passion.[32] But this form of cannibalism may also have another foundation.[33] If for any reason there is a desire to eat human flesh, an unsympathetic being like a criminal is apt to be chosen as a victim. {559} It is said that some of the Line Islanders in the South Seas began their cannibalism by eating thieves and slaves.[34] In Melanesia, where human sacrifices were combined with the eating of bits of the victim, "advantage was taken of a crime, or imputed crime, to take a life and offer the man to some tindalo."[35]

[Footnote 30: Cf. Matiegka, loc. cit. p. 137.]

[Footnote 31: Codrington, Melanesians, p. 344.]

[Footnote 32: Marsden, op. cit. p. 391. Junghuhn, op. cit. ii. 156 sq.]

[Footnote 33: See Steinmetz, op. cit. p. 55 sq.]

[Footnote 34: Tutuila, 'Line Islanders,' in Jour. Polynesian Soc. i. 270.]

[Footnote 35: Codrington, op. cit. p. 135.]

It has been questioned whether cannibalism can be a direct expression of hatred;[36] but for no good reason. To eat a person is, according to primitive ideas, to annihilate him as an individual,[37] and we can readily imagine the triumphant feelings of a savage who has his enemy between his jaws. The Fijian eats in revenge even the vermin which bite him, and when a thorn pricks him he picks it out of his flesh and eats it.[38] The Cochin-Chinese express their deepest hatred of a person by saying, "I wish I could eat his liver or his flesh."[39] Other people want to "drink the blood" of their enemies.

[Footnote 36: Steinmetz, op. cit. p. 33.]

[Footnote 37: Dieffenbach, op. cit. ii. 118 (Maoris). Johnston, in Fortnightly Review, N. S. xlv. 27 (Negroes of the Niger Delta). Koch, loc. cit. pp. 87, 109. Lippert, Der Seelencult, p. 69. Idem, Kulturgeschichte der Menschheit, ii. 282 sq.]

[Footnote 38: Pritchard, op. cit. p. 371.]

[Footnote 39: von Langsdorf, op. cit. i. 148.]

The idea that a person is annihilated or loses his individuality by being eaten has led to cannibalism not only in revenge but as an act of protection, as a method of making a dangerous individual harmless after death.[40] Among the Botocudos warriors devoured the bodies of their fallen enemies in the belief that they would thus be safe from the revengeful hatred of the dead.[41] In Ashantee "several of the hearts of the enemy are cut out by the fetish men who follow the army, and the blood and small pieces being mixed (with much ceremony and incantation) with various consecrated herbs, all those who have never killed an enemy before eat a portion, for it is believed that if they did not, their vigour and courage would be secretly wasted by the haunting spirit of the {560} deceased."[42] In Greenland "a slain man is said to have the power to avenge himself upon the murderer by rushing into him, which can only be prevented by eating a piece of his liver."[43] Many cannibals are in the habit of consuming that part of a slain enemy which is supposed to contain his soul or courage or strength, and one reason for this practice may be the wish to render him incapable of doing further harm. Queensland natives eat the kidneys of the persons whom they have killed, believing that "the kidneys are the centre of life."[44] Among the Maoris a chief was often satisfied with the left eye of his enemy, which they considered to be the seat of the soul; or they drank the blood from a corresponding belief;[45] or in the case of a blood feud the heart of the enemy, representing the vital essence of him, was eaten "to fix or make firm the

victory and the courage of the victor."[46] Other peoples likewise eat the hearts or suck the brains of their foes.

[Footnote 40: Cf. Lippert, Kulturgeschichte der Menschheit, ii. 282; Koch, loc. cit. pp. 87, 109.]

[Footnote 41: Featherman, Social History of Mankind, 'Chiapo- and Guarano-Maranonians,' p. 355.]

[Footnote 42: Bowdich, Mission to Ashantee, p. 300.]

[Footnote 43: Rink, Tales and Traditions of the Eskimo, p. 45.]

[Footnote 44: Lumholtz, op. cit. p. 272.]

[Footnote 45: Dieffenbach, op. cit. ii. 128 sq.]

[Footnote 46: Best, in Jour. Polynesian Soc. xii. 83, 147.]

Moreover, by eating the supposed seat of a certain quality in his enemy the cannibal thinks not only that he deprives his victim of that quality, but also that he incorporates it with his own system.[47] In many cases this is the chief or the only reason for the practice of cannibalism. The Shoshone Indians supposed that they became animated by the heroic spirit of a fallen foe if they partook of his flesh.[48] Among the Hurons, if an enemy had shown courage, his heart, roasted and cut into small pieces, {561} was given to the young men and boys to eat.[49] The E[(w]e-speaking peoples of the Slave Coast used to eat the hearts of foes remarkable for sagacity, holding that the heart is the seat of the intellect as well as of courage.[50] Among the Kimbunda of South-Western Africa, when a new king succeeds to the throne, a brave prisoner of war is killed in order that the king and nobles may eat his flesh, and so acquire his strength and courage.[51] The idea of transference very largely underlies Australian cannibalism.[52] In some tribes enemies are consumed with a view to acquiring some part of their qualities and courage.[53] The Dieyerie devour the fatty portions of their foes because they think it will impart strength to them.[54] And similar motives are often given for the practice of eating relatives or friends. When a man is killed in one of the ceremonial fights in the tribes about Maryborough, in Queensland, his friends skin and eat him in the hope that his virtues as a warrior may go into those who partake of him.[55] Among the natives of the River Darling, in New South Wales, a piece of flesh is cut from the dead body and taken to the camp, and after being sun-dried is cut up into small pieces, which are distributed among the relatives and friends of the deceased. Some of them use the piece in making a charm, or throw it into the river to bring a flood and fish, but others suck it to get strength and courage.[56] In certain Central Australian tribes, when a party starts on an avenging expedition, every man of it drinks some blood and also has some spurted over his body, so as to make him lithe and active; the elder men {562} indicate from whom the blood is to be drawn, and the persons thus selected must not decline.[57] In certain South Australian tribes cannibalism is only practised by old men and women, who eat a baby in order to get the youngster's strength.[58] Among other natives of the same continent, as we have noticed above, a mother used to kill and eat her first child, as this was believed to strengthen her for later births.[59] And in various Australian tribes it is, or has been, the custom when a child is weak or sickly to kill its infant brother or sister and feed it with the flesh to make it strong.[60] Many of the Brazilian Indians are in the habit of burning the bones of their departed relatives, and mix the ashes with a drink of which they partake for the purpose of absorbing their spirits or virtues.[61] Dr. Couto de Magalhães was informed that the savage Chavantes "eat their children who die, in the hope of gathering again to their body the soul of the child."[62]

[Footnote 47: Blumentritt, 'Der Ahnencultus der Malaien des Philippinen-Archipels,' in Mittheil. d. kais. u. könig. Geograph. Gesellsch. in Wien, xxv. 154 (Italones). Lewin, Wild Races of South-Eastern India, p. 269 (Kukis). de Groot, op. cit. (vol. iv. book) ii. 373 sqq. (ancient Chinese). Schneider, Die Religion der afrikanischen Naturvölker, p. 209 sq. (Negroes). Dorman, op. cit. p. 145 sq. (North American Indians). Keating, op. cit. i. 104 (Potawatomis). Koch, loc. cit. pp. 87, 89 sqq., 109 (South American Indians). Andree, op. cit. p. 101 sq. and passim. Lippert, Der Seelencult, p. 70 sqq. Idem, Kulturgeschichte, ii. 282. Trumbull, Blood Covenant, p. 128 sqq. Frazer, Golden Bough, ii. 357 sqq. Gomme, Ethnology in Folklore, p. 151 sqq. Crawley, Mystic Rose, p. 101 sqq.]

[Footnote 48: Featherman, op. cit. 'Aoneo-Maranonians,' p. 206.]

[Footnote 49: Parkman, Jesuits in North America, p. xxxix.]

[Footnote 50: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 100.]

[Footnote 51: Magyar, Reisen in Süd-Afrika, p. 273.]

[Footnote 52: Fraser, Aborigines of New South Wales, pp. 56, 81. Brough Smyth, Aborigines of Victoria, i. p. xxxviii. Howitt, 'Australian Medicine Men,' in Jour. Anthr. Inst. xvi. 30. Langloh Parker, Euahlayi Tribe, p. 38. Gason, 'Dieyerie Tribe,' in Curr, op. cit. ii. 52.]

[Footnote 53: Howitt, Native Tribes of South-East Australia, p. 752.]

[Footnote 54: Gason, in Jour. Anthr. Inst. xxiv. 172.]

[Footnote 55: Howitt, op. cit. p. 753. McDonald,'Mode of Preparing the Dead among the Natives of the Upper Mary River, Queensland,' in Jour. Anthr. Inst. ii. 179.]

[Footnote 56: Bonney, 'Aborigines of the River Darling,' in Jour. Anthr. Inst. xiii. 135.]

[Footnote 57: Spencer and Gillen, Native Tribes of Central Australia, p. 461.]

[Footnote 58: Crauford, in Jour. Anthr. Inst. xxiv. 182.]

[Footnote 59: Supra, i. 458.]

[Footnote 60: Howitt, Native Tribes of South-East Australia, p. 749 sq. (all the tribes of the Wotjo nation, and the Tatathi and other tribes on the Murray River frontage). Stanbridge, 'Tribes in the Central Part of Victoria,' in Trans. Ethn. Soc. London, N.S. i. 289. Spencer and Gillen, Native Tribes of Central Australia, pp. 52, 475 (Luritcha tribe).]

[Footnote 61: Wallace, Travels on the Amazon, p. 498 (Tariánas, Tucános, and some other tribes of the Uaupés). Coudreau, La France équinoxiale, ii. 173 (Cobbéos, of the Uaupés). Monteiro, quoted by von Spix and von Martius, Reise in Brasilien, iii. 1207, n. * (Jumánas). Koch, loc. cit. p. 83 sq. Dorman, op. cit. p. 151.]

[Footnote 62: Couto de Magalhães, Trabalho preparatorio para aproveitamento do selvagem e do solo por elle occupado no Brazil--O selvagem, p. 132. Cf. de Castelnau, Expédition dans les parties centrales de l'Amérique du Sud, iv. 382 (Camacas).]

The belief in the principle of transference has also led to cannibalism in connection with human sacrifice and to the eating of man-gods. At Florida, in the Solomon Islands, human flesh was eaten in sacrifice only.[63] In Hawaii, "après le sacrifice, le peuple, qui d'ailleurs ne fut jamais anthropophage, pratiquait une sorte de communion en mangeant certaines parties de la victime."[64] In West Equatorial Africa, according to Mr. Winwood Reade, there are two kinds of cannibalism--the one is simply an {563} act of gourmandise, the other is sacrificial and is performed by the priests, whose office it is to eat a portion of the victims, whether men, goats, or fowls.[65] And this sacrificial cannibalism is not restricted to the priests. In British Nigeria "no great human sacrifice offered for the purpose of appeasing the gods and averting sickness or misfortune is considered to be complete unless either the priests or the people eat the bodies of the victims";[66] and among the Aro people in Southern Nigeria the human victims offered to the god were eaten by all the people, the flesh being distributed throughout their

country.[67] The inhabitants of the province of Caranque, in ancient Peru, likewise consumed the flesh of those whom they sacrificed to their gods.[68] The Aztecs ate parts of the human bodies whose blood had been poured out on the altar of sacrifice,[69] and so did the Mayas.[70] In Nicaragua the high-priests received the heart, the king the feet and hands, he who captured the victim took the thighs, the entrails were given to the trumpeters, and the rest was divided among the people.[71] In ancient India it was a prevalent opinion that he who offered a human victim in sacrifice should partake of its flesh; though, in opposition to this view, it was also said that a man cannot be allowed, much less required, to eat human flesh.[72] The sacrificial form of cannibalism obviously springs from the idea that a victim offered to a supernatural being participates in his sanctity[73] and from the wish of the worshipper to transfer to himself something of its benign virtue. So also the divine qualities of a man-god are supposed to be assimilated by the person {564} who eats his flesh or drinks his blood.[74] This was the idea of the early Christians concerning the Eucharist. In the holy food they assumed a real bestowal of heavenly gifts, a bodily self-communication of Christ, a miraculous implanting of divine life. The partaking of the consecrated elements had no special relation to the forgiveness of sins; but it strengthened faith and knowledge, and, especially, it was the guarantee of eternal life, because the body of Christ was eternal. The holy food was described as the "medicine of immortality."[75]

[Footnote 63: Codrington, op. cit. p. 343. See also Geiseler, Die Oster-Insel, p. 30 sq. (Easter Islanders).]

[Footnote 64: Remy, Ka Mooolelo Hawaii, p. xl.]

[Footnote 65: Reade, op. cit. p. 158. See also Schneider, Die Religion der afrikanischen Naturvölker, p. 209 sq.]

[Footnote 66: Mockler-Ferryman, British Nigeria, p. 261.]

[Footnote 67: Partridge, Cross River Natives, p. 59.]

[Footnote 68: Ranking, Researches on the Conquest of Peru, p. 89.]

[Footnote 69: Prescott, History of the Conquest of Mexico, p. 41. Réville, Hibbert Lectures on the Religions of Mexico and Peru, p. 89. Bancroft, Native Races of the Pacific States, ii. 176; iii. 443 sq.]

[Footnote 70: Bancroft, op. cit. ii. 725.]

[Footnote 71: Ibid. ii. 725.]

[Footnote 72: Weber, 'Ueber Menschenopfer bei den Indern der vedischen Zeit,' in Indische Streifen, i. 72 sq.]

[Footnote 73: See supra, i. 445 sq.]

[Footnote 74: See Frazer, Golden Bough, ii. 352, 353. 366.]

[Footnote 75: Harnack, History of Dogma, i. 211; ii. 144 sqq.; iv. 286, 291, 294, 296, 297, 299 sq.]

In various other instances human flesh or blood is supposed to have a supernatural or medicinal effect upon him who partakes of it. The Banks Islanders in Melanesia believe that a man or woman may obtain a power like that of Vampires by stealing and eating a morsel of a corpse; the ghost of the dead man would then "join in a close friendship with the person who had eaten, and would gratify him by afflicting any one against whom his ghostly power might be directed."[76] Australian sorcerers are said to acquire their magic influence by eating human flesh.[77] The Egyptian natives who accompanied Baker on one of his expeditions imagined that the rite of consuming an enemy's liver would give a fatal direction to a random bullet.[78] Among the aborigines of Tasmania a man's blood was often administered as a healing draught.[79] In China the heart, the liver, the gall, and the blood of executed criminals are used for life-strengthening

purposes;[80] thus at Peking, when a person has been executed by the sword, certain large pith balls are steeped in the blood and, under the name of "blood-bread," sold as a medicine for consumption.[81] Tertullian speaks of those "who at the gladiatorial shows, for the cure of epilepsy, {565} quaff with greedy thirst the blood of criminals slain in the arena, as it flows fresh from the wound."[82] So also in Christian Europe the blood of criminals has been drunk as a remedy against epilepsy, fever, and other diseases.[83] In these cases the ascription of a healing effect to the blood of the dead may perhaps have been derived from a belief in the transference of some quality which they possessed in their lifetime; the blood or life of a sound and strong individual might impart health to the sickly. But the mystery of death would also give to the corpse a miraculous power of its own, especially when combined with the horror or awe inspired by an executed felon.

[Footnote 76: Codrington, op. cit. p. 221 sq.]

[Footnote 77: Eyre, Expeditions of Discovery into Central Australia, ii. 255.]

[Footnote 78: Baker, Ismailïa, p. 393.]

[Footnote 79: Bonwick, Daily Life and Origin of the Tasmanians, p. 89.]

[Footnote 80: de Groot, op. cit. (vol. iv. book) ii. 377.]

[Footnote 81: Rennie, quoted by Yule, in his translation of Marco Polo, i. 275, n. 7.]

[Footnote 82: Tertullian, Apologeticus, 9 (Migne, Patrologiæ cursus, i. 321 sq.).]

[Footnote 83: Strack, Der Blutaberglaube in der Menschheit, p. 27 sqq. Wuttke, Der deutsche Volksaberglaube der Gegenwart, § 189 sqq., p. 137 sq. Jahn, 'Ueber den Zauber mit Menschenblut,' in Verhandl. d. Berliner Gesellsch. f. Anthrop. 1888, p. 134 sqq. Havelock Ellis, The Criminal, p. 284. Peacock, 'Executed Criminals and Folk-Medicine,' in Folk-Lore, vii. 270 sq.]

In other instances, again, the belief in the wonderful effects of cannibal practices may have originated in the notion that, if a person or the essential part of him is eaten, he ceases to exist even as a spirit, or at all events loses his power of doing mischief. Among the Indians of British Guiana, when a man is pointed out as the secret murderer of a relative who has died, the avenger will shoot him through the back; and if he happens to fall dead to the ground, his corpse is dragged aside and buried in a shallow grave. The third night the avenger goes to the grave and presses a pointed stick through the corpse; and if on withdrawing the stick he finds blood on the end of it, he tastes the blood in order to ward off any evil effects that might follow from the murder, returning home appeased and apparently at ease. But if it happens that the wounded individual is able to escape, he charges his relatives to bury him after his death in some place where he cannot be found. This is to punish the murderer for his deed, "inasmuch as the belief prevails that if he taste not the blood he must perish by madness."[84] In Prussia it was a popular superstition that {566} if a murderer cut off, roasted, and ate a piece of his victim's body, he would never after think of his deed.[85] But by eating a part of the corpse a homicide may also protect himself against the vengeance of the survivors, presumably because he has now absorbed their relative into his own system.[86] The natives of New Britain eat their enemies and fix the leg and arm bones of the victims at the butt end of their spears, believing that this not only gives them the strength of the man whose bones they carry but also makes them invulnerable by his relatives.[87] The Botocudos thought that by devouring their fallen enemies they both protected themselves from the hatred of the dead and at the same time prevented the arrows of the hostile tribe from hitting them.[88] In Greenland the relatives of a murdered person, when highly enraged, will cut to pieces the body of the murderer and devour part of the heart or liver, "thinking thereby to disarm his relatives of all courage to attack

them."[89] In the South of Italy there is a popular belief that a murderer will not be able to escape unless he taste or bedaub himself with his victim's blood.[90] Sometimes, we are told, cannibalism is even supposed to have a positively injurious effect upon the victim's relatives, in accordance, as it seems, with the principle of sympathetic magic. Among the Chukchi, in the case of revenge for blood, the slayers eat a little bit of the enemy's heart or liver, supposing that they in this way cause the hearts of his kinsfolk to sicken.[91]

[Footnote 84: Bernau, Missionary Labours in British Guiana, p. 57 sq.]

[Footnote 85: von Tettau and Temme, Die Volkssagen Ostpreussens, p. 267.]

[Footnote 86: Cf. Hartland, op. cit. ii. 245 sq.]

[Footnote 87: Powell, Wanderings in a Wild Country, p. 92.]

[Footnote 88: Castelnau, Expédition dans les parties centrales de l'Amérique du Sud, iv. 382.]

[Footnote 89: Cranz, History of Greenland, i. 178.]

[Footnote 90: Pasquarelli, quoted by Hartland, op. cit. ii. 246.]

[Footnote 91: Ratzel, History of Mankind, ii. 212.]

Human flesh or blood is not only believed to impart certain qualities or beneficial magic energy to him who partakes of it, but also serves as a means of transferring conditional curses from one person to another. This I take to be the explanation of cannibalism as a covenant rite; in a previous chapter I have tried to show that the {567} main principle underlying the blood-covenant is the idea that the transference of blood conveys to the person who drinks it, or is inoculated with it, a conditional curse which will injure or destroy him should he break his promise.[92] The drinking of human blood, or of wine mixed with such blood, has been a form of covenant among various ancient and mediæval peoples, as well as among certain savages.[93] In some South Slavonic districts compacts between different clans are even now made by their representatives sucking blood from each other's right hands and swearing fidelity till the grave.[94] In certain parts of Africa, again, the partaking of human flesh, generally prepared in a kind of paste mixed with condiments and kept in a quaintly-carved wooden box and eaten with round spoons of human bone, constitutes a bond of union between strangers who are suspicious of one another or between former enemies, or accompanies the making of a solemn declaration or the taking of an oath.[95] Among the Bambala, a Bantu tribe in the Kasai, south of the River Congo, cannibalism accompanies the ceremony by which a kind of alliance is established between chiefs of the same region. The most powerful chief will invite the other chiefs of the neighbourhood to a meeting held on his territory, in order to make a compact against bloodshed. "A slave is fattened for the occasion and killed by the host, and the invited chiefs and their followers partake of the flesh. Participation in this banquet is taken as a pledge to prevent murder. Supposing that a chief, after attending an assembly of this kind, kills a slave, every village which took part in the bond has the right to claim compensation, and the murderer is sure to be completely ruined."[96]

[Footnote 92: Supra, ii. 208.]

[Footnote 93: Strack, op. cit. p. 9 sqq. Rühs, Handbuch der Geschichte des Mittelalters, p. 323. Supra, ii. 207 sqq.]

[Footnote 94: Krauss, 'Sühnung der Blutrache im Herzögischen,' in Am Ur-Quell, N.F. i. 196.]

[Footnote 95: Johnston, in Fortnightly Review, N.S. xlv. 28.]

[Footnote 96: Torday and Joyce, in Jour. Anthr. Inst. xxxv. 404, 409.]

For the practice of eating relatives or friends, finally, some special reasons are given besides those already mentioned.{568} It is represented as a mark of affection or respect for the dead,[97] as an act which benefits not only the person who eats but also him who is eaten. The reason which the Australian Dieyerie assign for their endo-anthropophagy is, that should they not eat their relatives they would be perpetually crying and become a nuisance to the camp.[98] The natives of the Boulia district, Queensland, among whom children that die suddenly are partly eaten by the parents and their blood brothers and sisters, say that "putting them along hole" would make them think too much about their beloved little ones.[99] In the Turrbal tribe in Southern Queensland a man who happened to be killed in one of the ceremonial combats which followed the initiation rites was eaten by those members of the tribe who were present; and the motive stated is that they ate him because "they knew him and were fond of him, and they now knew where he was, and his flesh would not stink."[100] The Bataks of Sumatra declared that they frequently ate their own relatives when aged and infirm, "not so much to gratify their appetite, as to perform a pious ceremony."[101] Among the Samoyedes old and decrepit persons who were no longer able to work let their children kill and eat them in the hope that they thereby might fare better after death.[102] The Indian of Hayti "would think he was wanting to the memory of a relation, if he had not thrown into his drink a small portion of the body of the deceased, after having dried it . . . and reduced it to powder."[103] Among the Botocudos old men who were unable to keep up in the march were at their own request eaten up by their sons so that their {569} enemies should be prevented from digging up and injuring their bodies; [104] whilst mothers not infrequently consumed their dead children out of love.[105] The Mayorunas considered it more desirable for the departed to be eaten by relatives than by worms;[106] and the Cocomas, a tribe of the Marañon and Lower Huallaga, said it was better to be inside a friend than to be swallowed up by the cold earth.[107] It is impossible to decide how far these statements represent original motives for the custom of eating dead relatives. They may be later interpretations of a habit which in the first place sprang from selfishness rather than love.

[Footnote 97: Dawson, op. cit. p. 67 (tribes of Western Victoria). McDonald, in Jour. Anthr. Inst. ii. 179 (natives of the Upper Mary River, Queensland). Featherman, op. cit. 'Oceano-Melanesians,' p. 243 (Hawaiians). Southey, History of Brazil, i. 379 (Tapuyas). Marcgravius de Liebstad, Historia rerum naturalium Brasiliæ, viii. 12, p. 282 (ancient Tupis).]

[Footnote 98: Gason, in Jour. Anthr. Inst. xxiv. 172. Idem, in Woods, op. cit. p. 274.]

[Footnote 99: Roth, North-West-Central Queensland Aborigines, p. 166.]

[Footnote 100: Howitt, op. cit. p. 753.]

[Footnote 101: Leyden, 'Languages and Literature of the Indo-Chinese Nations,' in Asiatick Researches, x. 202.]

[Footnote 102: Preuss, op. cit. p. 218.]

[Footnote 103: Bembo, quoted by von Humboldt, op. cit. v. 248.]

[Footnote 104: Voss, in Verhandl. Berliner Geellsch. Anthr. 1891, p. 26.]

[Footnote 105: Waitz, Anthropologie der Naturvölker, iii. 446.]

[Footnote 106: von Schütz-Holzhausen, Der Amazonas, p. 209.]

[Footnote 107: Markham, 'List of the Tribes in the Valley of the Amazon,' in Jour. Anthr. Inst. xxiv. 253.]

The cannibalism of modern savages has often been represented as the survival of an ancient practice which was once universal in the human race.[108] The advocates of this theory, however, have not generally made any serious attempts to prove it. I have

in another place put the question how ethnographical facts can give us information regarding the early history of mankind, and my answer was:--We have first to find out the causes of the social phenomena; we may then from the prevalence of the causes infer the prevalence of the phenomena themselves, if the former must be assumed to have operated without being checked by other causes.[109] This seems a very obvious method; but, so far as I know, Dr. Steinmetz is the only one who has strictly applied it to the question of cannibalism. He has arrived at the conclusion that primitive man most probably was in the habit of eating the bodies of his dead kinsmen as also of slain enemies. His argument is briefly as follows:--{570} The chief impulse of primitive man was his desire for food. He fed not only on fruits and vegetables, but on flesh. His taste for animal food was not limited by any sufficient esthetic horror of human corpses. Nor was he kept back from eating them by fear of exposing himself to the revenge of the disembodied soul of his victim, nor by any fantastic sympathy for the dead body. Consequently, he was an habitual cannibal.[110] If I cannot accept Dr. Steinmetz's conclusion it is certainly not because I find fault with his method, but because I consider his chief premise exceedingly doubtful.

[Footnote 108: Andree, op. cit. p. 98 sq. Lippert, Kulturgeschichte der Menschheit, ii. 279. Schurtz, Speiseverbote, p. 25. Réville, Hibbert Lectures on the Religions of Mexico and Peru, p. 87. Johnston, in Fortnightly Review, N.S. xlv. 28. M. Letourneau (L'évolution de la morale, p. 76) calls cannibalism "le péché originel de toutes les races humaines."]

[Footnote 109: Westermarck, History of Human Marriage, p. 3 sq.]

[Footnote 110: Steinmetz, Endokannibalismus, p. 34 sqq.]

It is quite likely that early man preferred cannibalism to death from starvation, and that he occasionally practised it from the same motive as has induced many shipwrecked men even among civilised peoples to have recourse to the bodies of their comrades in order to save their lives. But we are here concerned with habitual cannibalism only. Although I consider it highly probable that man was originally in the main frugivorous, there can be no doubt that he has from very early times fed largely on animal food. We may further take for granted that he has habitually eaten the flesh of whatever animals he could get for which he had a taste and from the eating of which no superstitious or sentimental motive held him back. But that he at first had no aversion to human flesh seems to me a very precarious assumption.

A large number of savage tribes have never been known to be addicted to cannibalism, but are, on the contrary, said to feel the greatest dislike of it. In times of scarcity the Eskimo will eat their clothing sooner than touch human flesh. The Fuegians have been reported to devour their old women in cases of extreme distress;[111] but Mr. Bridges, who has spent most part of his life among them, emphatically affirms that cannibalism is unknown amongst the natives of Cape Horn and that {571} they abhor it.[112] Concerning the natives of South Andaman Mr. Man observes:--"Not a trace could be discovered of the existence of such a practice in their midst, even in far-off times. . . . They express the greatest horror of the custom, and indignantly deny that it ever held a place among their institutions."[113] We meet with similar statements with reference to many African tribes. The editor of Livingstone's 'Last Journals' says that it was common on the River Shiré to hear Manganja and Ajawa people speak of tribes far away to the north who eat human bodies, and that on every occasion the fact was related with the utmost abhorrence and disgust.[114] Amongst the Dinka the accounts of the cannibalism of the Niam-Niam excites as much horror as amongst ourselves.[115] The Bakongo "shudder with repugnance at the mere mention of eating human flesh."[116] Among the Bayaka, in the Congo Free State, "cannibalism is never found,

and is regarded as something quite abhorrent."[117] No intermarriage takes place between the Fans and their non-cannibal neighbours, as "their peculiar practices are held in too great abhorrence."[118] According to Burton, cannibalism "is execrated by the Efiks of Old Calabar, who punish any attempts of the kind with extreme severity."[119] Even amongst the South Sea Islanders there are tribes which have been known to view cannibalism with great repugnance.[120]

[Footnote 111: Darwin, Journal of Researches, p. 214. King and Fitzroy, Voyages of the "Adventure" and "Beagle," ii. 183, 189.]

[Footnote 112: Bridges, 'Manners and Customs of the Firelanders,' in A Voice for South America, xiii. 207. Idem, quoted by Hyades and Deniker, Mission scientifique du Cap Horn, vii. 259.]

[Footnote 113: Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 113.]

[Footnote 114: Livingstone, Last Journals, ii. 39.]

[Footnote 115: Schweinfurth, Heart of Africa, i. 158.]

[Footnote 116: Ward, Five Years with the Congo Cannibals, p. 37.]

[Footnote 117: Torday and Joyce, 'Ethnography of the Ba-Yaka,' in Jour. Anthr. Inst. xxxvi. 42.]

[Footnote 118: Du Chaillu, Explorations in Equatorial Africa, p. 97.]

[Footnote 119: Burton, Two Trips to Gorilla Land, i. 216 sq.]

[Footnote 120: Nisbet, op. cit. ii. 136. Turner, Samoa, p. 305 (Savage Islanders). Angas, Polynesia, p. 385 (natives of Bornabi, in the Caroline Islands). Powell, Wanderings in a Wild Country, p. 247 (some of the tribes in New Guinea). Calder, 'Native Tribes of Tasmania,' in Jour. Anthr. Inst. iii. 23; Ling Roth, Aborigines of Tasmania, p. 111.]

It is true that the information which a traveller visiting a savage tribe receives as regards its attitude towards {572} cannibalism is often apt to be misleading. There is nothing as to which many savages are so reticent or the practice of which they will deny so readily as cannibalism, though at the same time they are much inclined to accuse other peoples of it.[121] The reason why they are so anxious to conceal its prevalence among themselves is of course their knowledge of the detestation in which it is held by the visiting stranger; but not infrequently they really seem to feel that it is something to be ashamed of. It has been said of some Australian natives that, "unlike many other offences with which they are justly charged, . . . this one in general they knew to be wrong," their behaviour when they were questioned on the subject showing that "they erred knowingly and wilfully."[122] At all events the reproaches of the whites have been taken to heart with remarkable readiness. Even among peoples who have been extremely addicted to it, cannibalism has disappeared with a rapidity to which, I think, there is hardly any parallel in the history of morals. Erskine wrote in the middle of the last century:--"Our experience in New Zealand has proved that this unnatural propensity can be eradicated from the habits of a whole savage nation, in the course of a single generation. I have heard it asserted that there did not exist in 1845 many New Zealand males of twenty years of age who had not, in their childhood, tasted of human flesh; yet it is perfectly well known that at the present time the occurrence of a single case of cannibalism, in any part of those islands, would attract as much notice as in any country of Europe; and that, when a native can be induced to talk on the subject, his information is given reluctantly, and with an unmistakable consciousness of degradation, and a feeling of shame that he and his {573} countrymen should ever have been liable to such a reproach."[123] Of the Bataks it was said some time ago that the rising generation began to refrain from cannibalism, and that those of them who had

submitted to European rule thought with horror of the wild times when they or their ancestors were addicted to it.[124] Cieza de Leon remarks with some astonishment that, as soon as the Peruvian Incas began to put a stop to this practice among all the peoples with whom they came in contact, it was in a short time forgotten throughout their empire even by those who had previously held it in high estimation.[125] Moreover, the extinction of cannibalism has not always been due to the intervention of superior races.[126]

[Footnote 121: Curr, The Australian Race, i. 77; Brough Smyth, Aborigines of Victoria, i. p. xxxvii. sq.; Fraser, Aborigines of New South Wales, p. 56. Romilly, Western Pacific, p. 59 sqq. Idem, From my Verandah in New Guinea, p. 68. Powell, op. cit. pp. 52, 59 (natives of the Duke of York Group). Erskine, op. cit. p. 190 sq. (Fijians). Melville, op. cit. p. 341 (Polynesians). Reade, op. cit. p. 159; Kingsley, Travels in West Africa, p. 330 (Fans). At the same time there are many cannibals who make no attempts to conceal the practice.]

[Footnote 122: Brough Smyth, op. cit. i. p. xxxviii.]

[Footnote 123: Erskine, op. cit. p. 275 sq.]

[Footnote 124: Buning, in Glimpses of the Eastern Archipelago, p. 74.]

[Footnote 125: Cieza de Leon, Segunda parte de la Crónica del Perú, ch. 25, p. 100.]

[Footnote 126: Waitz-Gerland, Anthropologie der Naturvölker, vi. 158 sqq. (Polynesians). Casalis, Basutos, p. 303. Ribot, Psychology of the Emotions, p. 295 sq. Schurtz, Speiseverbote, p. 26. Cf. Spencer and Gillen, Native Tribes of Central Australia, p. 324.]

Even among peoples very notorious for cannibalism there are individuals who abhor the practice. Dr. Schweinfurth asserts that some of the Niam-Niam "turn with such aversion from any consumption of human flesh that they would peremptorily refuse to eat out of the same dish with any one who was a cannibal."[127] With reference to Fijian cannibalism Dr. Seemann observes:--"It would be a mistake to suppose that all Fijians, not converted to Christianity, are cannibals. There were whole towns, as for instance Nakelo, on the Rewa river, which made a bold stand against this practice, declaring that it was tabu forbidden to them by their gods, to indulge in it. The common people throughout the group, as well as women of all classes, were by custom debarred from it. Cannibalism was thus restricted to the chiefs and gentry, and again amongst them there is a number . . . who never eat human flesh, nor go near the biers when any dead bodies have been brought in, and who abominate the practice as much as any white man does."[128] {574} It should also be remembered that many cannibals eat human flesh not as ordinary food, but only in special circumstances, and that their cannibalism is often restricted to the devouring of some small part of the victim's body.

[Footnote 127: Schweinfurth, op. cit. ii. 18 sq.]

[Footnote 128: Seemann, Viti, p. 179 sq. Cf. Williams and Calvert, op. cit. p. 179.]

The dislike of cannibalism may be a complex feeling. In many instances sympathy for the dead is undoubtedly one of its ingredients. It is true that endo-anthropophagy is frequently described as a mark of affection, but on the other hand there are many cannibals who never eat their dead friends though they eat strangers or foes. Some cannibals exchange their own dead for those of another tribe so as to avoid feeding on their kinsmen;[129] the natives of Tana, in the New Hebrides, are said to do so "when they happen to have a particular regard for the deceased."[130] But neither affection nor regard can be the reason why savages abstain from eating their enemies. I think that aversion to cannibalism is most likely, in the first instance, an instinctive feeling akin to those feelings which regulate the diet of the various animal species. Although our knowledge of their habits in this respect is defective, there can be little doubt that

carnivorous animals as a rule refuse to eat members of their own species; and this reluctance is easy to understand considering its race-preserving tendency.

[Footnote 129: Arbousset and Daumas, Exploratory Tour to the Cape of Good Hope, p. 123. Steinmetz, Endokannibalismus, pp. 22, 47.]

[Footnote 130: Brenchley, op. cit. p. 209.]

Moreover, the eating of human flesh is regarded with some degree of superstitious dread. This is not seldom the case even among peoples who are themselves cannibals. In Lepers' Island, in the New Hebrides, where cannibalism still prevails, the natives say that "to eat human flesh is a dreadful thing," and that a man-eater is a person who is afraid of nothing; hence "men will buy flesh when some one has been killed, that they may get the name of valiant men by eating it."[131] In those parts of Fiji where cannibalism was a national institution, only the select few, the taboo-class, the priests, chiefs, and higher orders, were deemed fit to indulge in it; and {575} whilst every other kind of food was eaten with the fingers, human flesh was eaten with forks, which were handed down as heirlooms from generation to generation, and with which the natives would not part even for a handsome equivalent.[132] The Fijians of Nakelo, again, who did not practise cannibalism, attributed to it those fearful skin diseases with which children are so often visited in Fiji.[133] The New Caledonians, who are exo-anthropophagous, believe that if a man eats a tribes-fellow he will break out into sores and die.[134] Among the Maoris no men but sacred chiefs could partake of human flesh without becoming tapu, in which state they could not return to their usual occupations without having the tapu removed from their bodies.[135] So also among the Kwakiutl Indians of British Columbia a man who has eaten human flesh as a ceremonial rite is for a long time afterwards subject to a variety of restrictions, being considered unclean. For sixteen days he must not eat any warm food. For four months he is not allowed to blow hot food in order to cool it. For the same period he uses a spoon, dish, and kettle of his own, which are thrown away after the lapse of the prescribed time. He must stay alone in his bedroom, and is not allowed to go out of the house door but must use the secret door in the rear of the house. And for a whole year he must not touch his wife, nor is he allowed to gamble or to work.[136] Among the West African Fans, before a cannibal meal, the corpse is carried to a hut built on the outskirts of the settlement. There "it is eaten secretly by the warriors, women and children not being allowed to be present, or even to look upon man's flesh; and the cooking pots used for the banquet must all be broken. A joint of 'black brother' is never seen in the villages."[137] So also {576} among the Bambala, south of the River Congo, vessels in which human flesh has been cooked are broken and the pieces thrown away.[138] In Eastern Central Africa the person who eats a human being is believed to run a great risk; Mr. Macdonald knew a headman whose success in war was attributed to the fact that he had eaten the whole body of a strong young man, but it was supposed that if he had not been protected by powerful charms, such cannibalism might have been dangerous to him.[139]

[Footnote 131: Codrington, op. cit. p. 344.]

[Footnote 132: Seemann, Viti, pp. 179, 181 sq.]

[Footnote 133: Ibid. p. 179 sq.]

[Footnote 134: Atkinson, 'Natives of New Caledonia,' in Folk-Lore, xiv. 253.]

[Footnote 135: Thomson, op. cit. i. 147 sq.]

[Footnote 136: Boas, 'Social Organization of the Kwakiutl Indians,' in Report of the U.S. National Museum, 1895, p. 537 sq. Cf. Woldt, Kaptein Jacobsens Reiser til Nordamerikas Nordvestkyst, p. 44 sqq.; Mayne, Four Years in British Columbia, p. 256 sq.]

[Footnote 137: Burton, Two Trips to Gorilla Land, i. 212.]

[Footnote 138: Torday and Joyce, in Jour. Anthr. Inst. xxxv. 404.]

[Footnote 139: Macdonald, Africana, i. 170.]

One reason for this superstitious dread of cannibalism is undoubtedly fear of the dead man's spirit, which is then supposed not to be annihilated by the act, but to become a danger to him who partakes of the corpse. The Fijian cannibals avowed "that they were always frightened at night lest the spirit of the man they had eaten should haunt them."[140] In the Luritcha tribe in Central Australia care is invariably taken to destroy the bones of those enemies who have been eaten, "as the natives believe that unless this is done the victims will arise from the coming together of the bones, and will follow and harm those who have killed and eaten them."[141] And among the Kwakiutl Indians the taboos imposed upon a cannibal are more obligatory when he has devoured a corpse than when he has contented himself with taking bites out of a living man.[142] But it may also be that the superstitious fear of cannibalism is to some extent an outcome of the natural reluctance to partake of human flesh, just as the aversion to eating certain animals may give rise to the idea that their meat is unwholesome food,[143] and as the supernatural dangers attributed to incest spring from the instinctive horror of it.[144]

[Footnote 140: Pritchard, op. cit. p. 372.]

[Footnote 141: Spencer and Gillen, Native Tribes of Central Australia, p. 475.]

[Footnote 142: Boas, loc. cit. p. 537 sq. Cf. Frazer, Golden Bough, i. 342.]

[Footnote 143: Supra, ii. 332.]

[Footnote 144: Supra, ii. 375 sq.]

The fact that so many peoples partake or are known to have partaken of human flesh without repugnance, or even with the greatest eagerness, by no means proves {577} that there was no original aversion to it in the human race. It is easy to imagine that the feeling of reluctance may have been overcome by other motives, such as hunger, revenge, the desire to acquire another person's courage or strength, the hope of making an enemy harmless, or of gaining supernatural benefits. And everybody knows that men and even many animals, when once induced to taste a certain food which they have previously avoided, often conceive a great liking for it. There is evidence that this also applies to cannibalism. In 1200 Egypt was afflicted with a terrible famine, in consequence of which the poor fed even upon human corpses and fell to devouring children. An eyewitness, the Arabian physician [(]Abd-Allatif, writes that, when the poor began to eat human flesh, the wonder and horror excited were such, that these crimes were in every mouth, and people were never weary of the extraordinary topic. But by degrees custom operated, and produced even a taste for such detestable repasts. Many men made children their ordinary food, eating them from pure gluttony and laying up stores of their flesh. Various modes of cooking and seasoning this kind of food were invented; and the practice soon spread through the provinces, so that there was not a single district in which cannibalism became not common. By this time it caused no longer either surprise or horror, and the matter was discussed with indifference. Diverse rich people, who could have procured other food, seemed to become infatuated, and practised cannibalism as a luxury, using murderers as their purveyors and inviting their friends to dinner, without taking too much trouble to conceal the truth.[145] There is a similar story from Polynesia. Cannibalism, we are told, was introduced into Futuna by king Veliteki in consequence of a great tempest which brought on a disastrous famine; but in time it became a dreadful scourge, which threatened to depopulate the island. The desire to eat human flesh arrived at such a point that wars no longer sufficed to {578} furnish victims in sufficient numbers, hence the people took to hunting down members

of their own tribes.[146] It has been suggested that in other islands of the South Seas cannibalism likewise arose in times of great famine, and that the inhabitants, becoming used to it, acquired a taste for human flesh.[147] In Western Equatorial Africa, again, gastronomic cannibalism has been supposed to be a practical extension of the sacrificial ceremony, neither the women nor the young men being allowed to touch the dainty.[148] That such a practice may easily grow up when the beginning has been made, is well illustrated by the words of a cannibal chief who declared that he who has once indulged in a repast of human flesh will find it very difficult to abstain from it in the future.[149]

[Footnote 145: [(]Abd-Allatif, Relation de l'Égypte, p. 360 sqq.]

[Footnote 146: Percy Smith, 'Futuna,' in Jour. Polynesian Soc. i. 37.]

[Footnote 147: Macdonald, Oceania, p. 196 sq. Powell, Wanderings in a Wild Country, p. 248.]

[Footnote 148: Reade, op. cit. p. 158.]

[Footnote 149: Powell, op. cit. p. 248.]

The question whether early man was in the habit of eating human flesh may thus, I think, be resolved into the question whether his natural shrinking from it may be assumed to have been subdued by any of those factors which in certain circumstances have induced men to become habitual cannibals. For such an assumption I find no sufficient grounds. On the contrary, I maintain that it is made highly improbable by the fact that cannibalism is much less prevalent among the lowest savages than among races somewhat more advanced in culture.[150] In America, instead of being confined to savage peoples, it was practised "to a greater extent and with more horrible rites among the most civilised. Its religious inception," Mr. Dorman adds, "was the cause of this."[151] Humboldt observed long ago:--"The nations who hold it a point of honour to devour their prisoners are not always the rudest and most ferocious . . . . The Cabres, the Guipunavis, and the Caribees, have {579} always been more powerful and more civilised than the other hordes of the Oroonoko; and yet the former are as much addicted to anthropophagy, as the last are repugnant to it."[152] In Brazil, Martius found the cannibalism of the Central Tupis to form a strange contrast to their relatively high state of culture.[153] Cannibals like the Fijians and Maoris were on the verge of semi-civilisation, and the Bataks of Sumatra were already in early times so advanced as to frame an alphabet of their own, though after the Indian model. Among the African Niam-Niam and Monbuttu a great predilection for human flesh coexists with a remarkable degree of culture; whereas in the dwarf tribes of Central Africa, which are of a very low type, Mr. Burrows never heard of a single case of cannibalism.[154]

[Footnote 150: See Peschel, Races of Man, p. 162 sq.; Schneider, Die Naturvölker, i. 186; Bergemann, op. cit. p. 53; Ratzel, op. cit. ii. 352; Sutherland, Origin and Growth of the Moral Instinct, i. 372.]

[Footnote 151: Dorman, op. cit. p. 152.]

[Footnote 152: von Humboldt, op. cit. v. 424 sq.]

[Footnote 153: von Martius, op. cit. i. 199 sq.]

[Footnote 154: Burrows, Land of the Pigmies, p. 149.]

It would be very instructive to follow the history of cannibalism among those peoples who are, or have lately been, addicted to it, if we were able to do so; but the subject is mostly obscure. The most common change which we have had an opportunity to notice is the decline and final disappearance of the practice under European influence; but we must not assume that every change has been in the direction towards extinction. Among the East African Wadoe and Wabembe cannibalism is, according to

their own account, of modern origin.[155] Mr. Torday informs me that among some of the Congo natives it is spreading in the present day. In the Solomon Islands it has recently extended itself; it is asserted by the elder natives of Florida that man's flesh was formerly never eaten except in sacrifice, and that human sacrifice is an innovation introduced from further west.[156] Erskine maintains that in Fiji cannibalism, though a very ancient custom, did not prevail in earlier times to the same extent as it did more recently;[157] and Mr. Fornander has arrived {580} at the conclusion that among the Polynesians this practice was not an original heirloom brought with them from their primitive homes in the Far West, but was adopted subsequently by a few of the tribes under conditions and circumstances now unknown.[158] For various reasons, then, it is an illegitimate supposition to regard the cannibalism of modern savages as a survival from the first infancy of mankind, or, more generally, from a stage through which the whole human race has passed.

[Footnote 155: Burton, Two Trips to Gorilla Land, i. 214.]

[Footnote 156: Codrington, op. cit. p. 343.]

[Footnote 157: Erskine, op. cit. p. 272.]

[Footnote 158: Fornander, Account of the Polynesian Race, i. 132.]

As for the moral opinions about cannibalism, we may assume that peoples who abstain from it also generally disapprove of it, or would do so if they were aware of its being practised. Aversion, as we have often noticed, leads to moral indignation, especially where the moral judgment is little influenced by reflection. Another source of the condemnation of cannibalism may be sympathetic resentment resulting from the idea that the dead is annihilated or otherwise injured by the act, or from the feeling that it is an insult to him to use his body as an article of food; but this could certainly not be the origin of savages disapproval of eating their foes. Among civilised races, as well as among non-anthropophagous savages, horror or disgust is undoubtedly the chief reason why cannibalism is condemned as wrong. This emotion is often so intense that the same people whose moral feelings are little affected by a conquest, with all its horrors, made for the purpose of gain, shudder at the stories of wars waged by famished savages for the purpose of procuring human flesh for food. On the other hand, where the natural aversion to such food is for some reason or other overcome, the disapproval of cannibalism is in consequence no longer felt. But an attitude of moral indifference towards this practice has also been advocated on a totally different ground, by persons whose moral emotions are too much tempered by thought to allow them to pronounce an act as wrong simply because it creates in them {581} disgust. Thus, Montaigne argued that it is more barbarous to torture a man to death under colour of piety and religion than to roast and eat him after he is dead.[159] And he quotes with apparent agreement the opinion of some Stoic philosophers that there is no harm in feeding upon human carcases to avoid starvation.[160]

[Footnote 159: Montaigne, Essais, i. 30.]

[Footnote 160: Diogenes Laertius, Vitæ philosophorum, vii. 1. 64 (121); vii. 7. 12 (188). Zeller, Stoics, p. 307.]

Chapter XLVII — The Belief in Supernatural Beings

WE now come to the last of those six groups of moral ideas into which we have divided our subject--ideas concerning conduct towards beings, real or imaginary, that are

regarded as supernatural. But before we enter upon a discussion of human behaviour in relation to such beings, it is necessary to say some words about man's belief in their existence and the general qualities attributed to them.

Men distinguish between two classes of phenomena--"natural" and "supernatural,"[1] between phenomena which they are familiar with and, in consequence, ascribe to "natural causes," and other phenomena which seem to them unfamiliar, mysterious, and are therefore supposed to spring from causes of a "supernatural" character. We meet with this distinction at the lowest stages of culture known to us, as well as at higher stages. It may be that in the mind of a savage the natural and supernatural are often confused, and that no definite limit can be drawn between the phenomena which he refers to the one class and those which he refers to the other; but he certainly sees a difference between events of everyday occurrence or ordinary objects of nature and other events or objects which fill him with mysterious awe. The germ of such a {583} distinction is found even in the lower animal world. The horse fears the whip but it does not make him shy; on the other hand, he may shy when he sees an umbrella opened before him or a paper moving on the ground. The whip is well known to the horse, whereas the moving paper or umbrella is strange and uncanny. Dogs and cats are alarmed by an unusual noise or appearance, and remain uneasy till they have by examination satisfied themselves of the nature of its cause.[2] Professor Romanes frightened a dog by attaching a fine thread to a bone and surreptitiously drawing it from the animal, giving to the bone the appearance of self-movement; and the same dog was frightened by soap-bubbles.[3] Even a lion is scared by an unexpected noise or the sight of an unfamiliar object; a horse, the lion's favourite prey, has been known to wander for days in the vicinity of a troop of these animals and be left unmolested simply because it was blanketed and knee-haltered.[4] And we are told of a tiger which stood trembling and roaring in an ecstasy of fear when a mouse tied by a string to a stick had been inserted into its cage.[5] Little children are apt to be terrified by the strange and irregular behaviour of a feather as it glides along the floor or lifts itself into the air.[6]

[Footnote 1: I do not share the objections raised by various writers to the term "supernatural." It has the sanction of common usage; and I consider it preferable to the word "superhuman," when applied to inanimate things or animals which are objects of worship.]

[Footnote 2: Morgan, Animal Life and Intelligence, p. 339.]

[Footnote 3: Romanes, Animal Intelligence, 455 sq.]

[Footnote 4: Gillmore, quoted by King, The Supernatural, p. 80.]

[Footnote 5: Basil Hall, quoted ibid. p. 81. See also ibid. p. 78 sqq.; Vignioli, Myth and Science, p. 58 sqq.]

[Footnote 6: Sully, Studies of Childhood, p. 205 sq.]

But the primitive mind not only distinguishes between the natural and the supernatural, it makes, practically, yet a further distinction. The supernatural, like the natural, may be looked upon in the light of mechanical energy, which discharges itself without the aid of any volitional activity. This is, for instance, the case with the supernatural force inherent in a tabooed object; mere contact with such an object communicates the taboo infection. So also the baneful energy in a curse is originally conceived as a kind of supernatural miasma, which injures or destroys anybody to whom it cleaves; in fact, to {584} taboo a certain thing commonly consists in charging it with a curse. On the other hand, supernatural qualities may also be attributed to the mental constitution of animate beings, especially to their will. Such an attribution makes them supernatural

beings, as distinct from any ordinary individuals who, without being endowed with special miraculous gifts, may make use of supernatural mechanical energy in magical practices. This distinction is in many cases vague; a wizard may be looked upon as a god and a god as a wizard. But it is nevertheless essential, and is at the bottom of the difference between religion and magic. Religion may be defined as a belief in and a regardful[7] attitude towards a supernatural being on whom man feels himself dependent and to whose will he makes an appeal in his worship. Supernatural mechanical power, on the other hand, is applied in magic. He who performs a purely magical act utilises such power without making any appeal at all to the will of a supernatural being.[8]

[Footnote 7: Though somewhat indefinite, the epithet "regardful" seems a necessary attribute of a religious act. We do not call it religion when a savage flogs his fetish to make it submissive.]

[Footnote 8: See infra, Additional Notes.]

This, I think, is what we generally understand by religion and magic. But in the Latin word religio there seems to be no indication of such a distinction. Religio is probably related to religare, which means "to tie." It is commonly assumed that the relationship between these words implies that in religion man was supposed to be tied by his god. But I venture to believe that the connection between them allows of another and more natural interpretation--that it was not the man who was tied by the god, but the god who was tied by the man. This interpretation was suggested to me by certain ideas and practices prevalent in Morocco. The Moors are in the habit of tying rags to objects belonging to a síyid, that is, a place where a saint has, or is supposed to have, his grave, or where such a person is said to have sat or camped. In very many cases, at least, this tying of rags is [(]âr upon the {585} saint, and l-[(]âr implies the transference of a conditional curse.[9] Thus, in the Great Atlas Mountains I found a large number of rags tied to a pole which was stuck in a cairn dedicated to the great saint Mûlai [(]Abd-[)u]l-[k.]âder, and when I asked for an explanation the answer was that petitioners generally fasten a strip of their clothes to the pole muttering some words like these:--"O saint, behold! I promised thee an offering, and I will not release (literally 'open') thee until thou attendest to my business." If the petitioner's wish is fulfilled he goes back to the place, offers the sacrifice which he promised, and unties the knot which he made. A Berber servant of mine from Aglu in Sûs told me that once when in prison he invoked Lälla R[)a][h.]ma Yusf, a great female saint whose tomb is in a neighbouring district, and tied his turban, saying, "I am tying thee, Lälla R[)a][h.]ma Yusf, and I am not going to open the knot till thou hast helped me." Or a person in distress will go to her grave and knot the leaves of some palmetto growing in its vicinity, with the words, "I tied thee here, O saint, and I shall not release thee unless thou releasest me from the toils in which I am at present." All this is what we should call magic, but the Romans would probably have called it religio. They were much more addicted to magic than to true religion; they wanted to compel the gods rather than to be compelled by them. Their religio was probably nearly akin to the Greek [Greek: kata/desmos], which meant not only an ordinary tie, but also a magic tie or knot or a bewitching thereby.[10] Plato speaks of persons who with magical arts and incantations bound the gods, as they said, to execute their will.[11] That religio, however, from having originally a magical significance, {586} has come to be used in the sense which we attribute to the term "religion," is not difficult to explain. Men make use of magic not only in relation to their fellow men, but in relation to their gods. Magical and religious elements are often almost inseparably intermingled in one and the same act; and, as we shall soon see, the

magical means of constraining a god are often externally very similar to the chief forms of religious worship, prayer and sacrifice.

[Footnote 9: See Westermarck, 'L-[(]âr, or the Transference of Conditional Curses in Morocco,' in Anthropological Essays presented to E. B. Tylor, p. 361 sqq.]

[Footnote 10: I am indebted to my friend Mr. R. R. Marett for drawing my attention to this meaning of the word [Greek: kata/desmos]. So also the verb [Greek: katade/ô] means not only "to tie" but "to bind by magic knots" (Athenaeus, Deipnosophistæ, xv. 9, p. 670; Dio Cassius, Historia Romana, l. 5), and [Greek: kata/desis] is used to denote "a binding by magic knots" (Plato, Leges, xi. 933). See Liddell-Scott, Greek-English Lexicon, p. 754; Harrison, Prolegomena to the Study of Greek Religion, p. 138 sqq.]

[Footnote 11: Plato, Respublica, ii. 364.]

That mystery is the essential characteristic of supernatural beings is proved by innumerable facts. It is testified by language. The most prominent belief in the religion of the North American Indians was their theory of manitou, that is, of "a spiritual and mysterious power thought to reside in some material form." The word is Algonkin, but all the tribes had some equivalent for it.[12] Thus the Dacotahs express the essential attribute of their deities by the term wakan, which signifies anything which they cannot comprehend, "whatever is wonderful, mysterious, superhuman, or supernatural."[13] The Navaho word d[)i]g[)i]'n likewise means "sacred, divine, mysterious, or holy";[14] and so does the Hidatsa term mahopa.[15] In Fiji "the native word expressive of divinity is kalou, which, while used to denote the people's highest notion of a god, is also constantly heard as a qualification of anything great or marvellous."[16] The Maoris of New Zealand applied the word atua, which is generally translated as "god," not only to spirits of every description, but to various phenomena not understood, such as menstruation and foreign marvels, a compass for instance, or a barometer.[17] The natives of Madagascar, {587} says Ellis, designate by the term ndriamanitra, or god, everything that exceeds the capacity of their understanding. "Whatever is new and useful and extraordinary, is called god. . . . Rice, money, thunder and lightning, and earthquakes, are all called god. . . . Taratasy, or book, they call god, from its wonderful capacity of speaking by merely looking at it."[18] The Monbuttu use the word kilima for anything they do not understand--the thunder, a shadow, the reflection in water, as well as the supreme being in which they vaguely believe.[19] The Masai conception of the deity (ng[)a]i), says Dr. Thomson, "seems to be marvellously vague. I was Ng[)a]i. My language was Ng[)a]i. Ng[)a]i was in the steaming holes. . . . In fact, whatever struck them as strange or incomprehensible, that they at once assumed had some connection with Ng[)a]i."[20] Mr. and Mrs. Hinde use "the Unknown" as their equivalent of the word ng[)a]i.[21]

[Footnote 12: Dorman, Origin of Primitive Superstitions, p. 226. Parkman, Jesuits in North America, p. lxxix. Brinton, Religions of Primitive Peoples, p. 102. Hoffman, 'Menomini Indians,' in Ann. Rep. Bur. Ethn. xiv. 39, n. 1.]

[Footnote 13: Schoolcraft, Archives of Aboriginal Knowledge, iv. 642. Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 366. McGee, 'Siouan Indians,' ibid. xv. 182 sq.]

[Footnote 14: Matthews, Navaho Legends, p. 37.]

[Footnote 15: Idem, Hidatsa Indians, p. 47 sq.]

[Footnote 16: Williams and Calvert, Fiji, p. 183.]

[Footnote 17: Best, 'Lore of the Whare-Kohanga,' in Jour. Polynesian Soc. xiv. 210. Dieffenbach, Travels in New Zealand, ii. 116, 118. The word tupua (or tipua) is used in a very similar way (Tregear, Maori-Polynesian Comparative Dictionary, p. 557).]

[Footnote 18: Ellis, History of Madagascar, i. 390 sqq.]

[Footnote 19: Burrows, Land of the Pigmies, p. 100.]

[Footnote 20: Thomson, Through Masai Land, p. 260.]

[Footnote 21: Hinde, Last of the Masai, p. 99.]

The testimony of language is corroborated by kindred facts referring to the nature of those objects which are most commonly worshipped.[22] Among all the American tribes, says Mr. Dorman, "any remarkable features in natural scenery or dangerous places became objects of superstitious dread and veneration, because they were supposed to be abodes of gods."[23] A great cataract, a difficult and dangerous ford in a river, a spring bubbling up from the ground, a volcano, a high mountain, an isolated rock, a curious or unusually large tree, the bones of the mastodon or of some other immense animal--all were looked upon by the Indians with superstitious respect {588} or were propitiated by offerings.[24] In Fiji "every object that is specially fearful, or vicious, or injurious, or novel," is eligible for admission to the native Pantheon.[25] It is said that when the Aëtas of the Philippines saw the first locomotive passing through their country "they all fell upon their knees in abject terror, worshipping the strange monster as some new and powerful deity."[26] Of the shamanistic peoples in Siberia Georgi writes, "All the celestial bodies, and all terrestrial objects of a considerable magnitude, all the phenomena of nature that can do good or harm, every appearance capable of conveying terror into a weak and superstitious mind, are so many gods to whom they direct a particular adoration."[27] Among the Samoyedes "a curiously twisted tree, a stone with an uncommon shape would receive, and in some quarters still receives, not only veneration but actual ceremonial worship."[28] Castrén states that the Ostyaks worshipped no other objects of nature but such as were very unusual and peculiar either in shape or quality.[29] The Lapps made offerings not only to large and strange-looking objects, but to places which were difficult to pass, or where some accident had occurred, or where they had been either exceptionally unlucky or exceptionally lucky in fishing or the chase.[30] The Ainu of Japan deify all objects and phenomena which seem to them extraordinary or dreadful.[31] In China "a steep mountain, or any mountain at all remarkable, is supposed to have a special local spirit, who acts as guardian."[32] The average middle-class Hindu, according to Sir Alfred Lyall, worships stocks or stones which are unusual or grotesque in size, shape, or position; or inanimate things which are gifted with mysterious {589} motion; or animals which he fears; or visible things, animate or inanimate, which are directly or indirectly useful and profitable or which possess any incomprehensible function or property.[33] From all parts of Africa we hear of similar cults.[34] The Negroes of Sierra Leone dedicate to their spirits places which "inspire the spectator with awe, or are remarkable for their appearance, as immensely large trees rendered venerable by age, rocks appearing in the midst of rivers, and having something peculiar in their form, in short, whatever appears to them strange or uncommon."[35] When Tshi-speaking natives of the Gold Coast take up their abode near any remarkable natural feature or object, they worship and seek to propitiate its indwelling spirit; whereas they do not worship any of the heavenly bodies, the regularity of whose appearance makes little impression upon their minds.[36] Throughout East Africa the people seem to attach religious sanctity to anything of extraordinary size; in the island of Zanzibar, where the hills are low, they reverence the baobab tree, which is the largest growing there, and in all parts of the country where hills are not found they worship some great stone or tall tree.[37] In Morocco places of striking appearance are generally supposed to be haunted by jnûn (jinn) or are associated with some dead saint.[38] As I have elsewhere tried to show, the Arabic jinn were probably "beings invented to explain what seems to fall outside the ordinary pale of nature, the

wonderful and unexpected, the superstitious imaginations of men who fear";[39] and the saint was in many cases only the successor of the jinn. Indeed, the superstitious dread of unusual objects is not altogether dead even among ourselves.{590} It survives in England to this day in the habit of ascribing grotesque and striking landmarks or puzzling antiquities to the Devil, who became the residuary legatee of obsolete pagan superstitions in Christian countries.[40]

[Footnote 22: See, besides the instances referred to below, Karsten, Origin of Worship, p. 14 sqq.; von Brenner, Besuch bei den Kannibalen Sumatras, p. 220 (Bataks); Mitteil. d. Geograph. Gesellsch. zu Jena, iii. 14 (Bannavs, between Siam and Annam). In Lord Kames's Essays on the Principles of Morality and Religion there is (p. 309 sqq.) an interesting discussion on the dread of unknown objects.]

[Footnote 23: Dorman, op. cit. p. 300. See also Müller, Geschichte der Amerikanischen Urreligionen, i. 52; Harmon, Voyages and Travels in the Interior of North America, p. 363 sq.; Smith, 'Myths of the Iroquois,' in Ann. Rep. Bur. Ethn. ii. 51.]

[Footnote 24: Dorman, op. cit. pp. 279, 290, 291, 302, 303, 308, 313-315, 319. Chamberlain, in Jour. American Folk-Lore, i. 157 (Mississagua Indians). Georgi, Russia, iii. 237 sq. (Aleuts.)]

[Footnote 25: Williams and Calvert, op. cit. p. 183.]

[Footnote 26: Lala, Philippine Islands, p. 96.]

[Footnote 27: Georgi, op. cit. iii. 256.]

[Footnote 28: Jackson, in Jour. Anthr. Inst. xxiv. 398. Cf. Castrén, Nordiska resor och forskningar, iii. 230.]

[Footnote 29: Castrén, op. cit. iii. 227.]

[Footnote 30: Ibid. iii. 210. Högström, Beskrifning öfver de til Sveriges Krona lydande Lapmarker, p. 182. Leem, Beskrivelse over Finmarkens Lapper, p. 442 sq. Friis, Lappish Mythologi, p. 133 sq.]

[Footnote 31: Sugamata, quoted in L'Anthropologie, x. 98.]

[Footnote 32: Edkins, Religion in China, p. 221.]

[Footnote 33: Lyall, Asiatic Studies, p. 7.]

[Footnote 34: Wilson, Western Africa, p. 388 (Mpongwe). Mockler-Ferryman, British Nigeria, p. 255. Fritsch, Die Eingeborenen Süd-Afrika's, p. 340 (Hottentots).]

[Footnote 35: Winterbottom, Native Africans of Sierra Leone, i. 223.]

[Footnote 36: Ellis, Yoruba-speaking Peoples of the Slave Coast, p. 282. Idem, Tshi-speaking Peoples of the Gold Coast, p. 21.]

[Footnote 37: Chanler, Through Jungle and Desert, p. 188.]

[Footnote 38: See Westermarck, The Moorish Conception of Holiness (Baraka), passim.]

[Footnote 39: Idem, 'Nature of the Arab [vG]inn,' in Jour. Anthr. Inst. xxix. 268.]

[Footnote 40: Lyall, op. cit. p. 9.]

The common prevalence of animal worship is no doubt due to the mysteriousness of the animal world; the most uncanny of all creatures, the serpent, is also the one most generally worshipped. Throughout India we meet with the veneration of animals which by their appearance or habits startle human beings.[41] In the Indian tribes of North America animals of an unusual size were objects of some kind of adoration.[42] In certain parts of Africa a cock crowing in the evening or a crane alighting on a house-top is regarded as supernatural.[43] White men have often been taken for spirits by red, yellow, or black savages, when seen by them for the first time.[44] Religious veneration is among various races bestowed on persons suffering from some abnormality, such as deformity, albinoism, or madness.[45] Some South American Indians "regard as

divinities all phenomenal children, principally such as are born with a larger number of fingers or toes than is natural."[46] The Hindus venerate persons remarkable for any extraordinary qualities great valour, virtue, or even vice.[47] By performing miracles men directly prove that they are supernatural beings. The Muhammedan saints, like the Christian in olden days, are believed to perform all kinds of wonders, such as flying in the air, passing unhurt {591} through fire, walking upon water, transporting themselves in a moment of time to immense distances, or supporting themselves and others with food in desert places.[48] When Muhammed first claimed to be the Prophet of Allah, he was urged to give proof of his calling by working some miracle; and though he uniformly denied that he possessed such power, it was nevertheless ascribed to him even by his contemporaries.[49]

[Footnote 41: Ibid. p. 13.]

[Footnote 42: Dorman, op. cit. p. 258. Harmon, op. cit. p. 364.]

[Footnote 43: Macdonald, Religion and Myth, p. 39.]

[Footnote 44: Avebury, Origin of Civilisation, pp. 272, 273, 375. Goblet d'Alviella, Hibbert Lectures on the Origin and Growth of the Conception of God, p. 67. Schultze, Fetischismus, p. 224. In Australia and elsewhere white people were taken for ghosts by the natives (Fison and Howitt, Kamilaroi and Kurnai, p. 248; Brough Smyth, Aborigines of Victoria, ii. 269 sq.; Tylor, Primitive Culture, ii. 5 sq.; Spencer, Principles of Sociology, i. 170 sq.).]

[Footnote 45: Schultze, op. cit. p. 222. Supra, i. 270 sq. "Among many savage or barbarous peoples of the world albinos have been reserved for the priestly office" (Bourke, 'Medicine-Men of the Apache,' in Ann. Rep. Bur. Ethn. ix. 460).]

[Footnote 46: Guinnard, Three Years' Slavery among the Patagonians, p. 144.]

[Footnote 47: Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 350. For criminal-worship in Sicily, see Peacock, 'Executed Criminals and Folk-Medicine,' in Folk-Lore, vii. 275.]

[Footnote 48: Lane, Arabian Society in the Middle Ages, p. 49. Westermarck, 'Sul culto del santi nel Marocco,' in Actes du XII. Congrès International des Orientalistes, iii. 153 sqq. Idem, The Moorish Conception of Holiness, p. 77 sqq.]

[Footnote 49: Muir, Life of Mahomet, i. p. lxv. sq. Bosworth Smith, Mohammed and Mohammedanism, p. 19. Sell, Faith of Islám, p. 218.]

The dead are objects of worship much more commonly than are the living. Whilst the human individual consisting of body and soul is as a rule well-known, the disembodied soul, seen only in dreams or visions, is a mysterious being which inspires the survivors with awe. Mr. Spencer and Mr. Grant Allen even regard the worship of the dead as "the root of every religion."[50] But this is to carry the ghost theory to an extreme for which there is no justification in facts. The spirits of the dead are worshipped because they are held capable of influencing, in a mysterious manner, the welfare of the living; but there is no reason to assume that they were originally conceived as the only supernatural agents existing. We have noticed that even the lower animals show signs of the same feeling as underlies the belief in supernatural beings; and we can hardly suppose that they are believers in ghosts.

[Footnote 50: Spencer, Principles of Sociology, i. 411. Grant Allen, The Evolution of the Idea of God, pp. 91, 433, 438, &c.]

On account of their wonderful effects medicines, intoxicants, and stimulants, are frequently objects of veneration. Most of the plants for which the American Indians had superstitious feelings were such as have medical qualities;[51] tobacco was generally

held sacred by them,[52] and so was cocoa in Peru.[53] The Vedic deification {592} of the drink soma was due to its exhilarating and invigorating effects.[54]

[Footnote 51: Dorman, op. cit. p. 298 sq. Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 428.]

[Footnote 52: Mooney, 'Myths of the Cherokee,' in Ann. Rep. Bur. Ethn. xix. 439. Dorman, op. cit. p. 295.]

[Footnote 53: Dorman, op. cit. p. 295.]

[Footnote 54: Whitney, 'Vedic Researches in Germany,' in Jour. American Oriental Soc. iii. 299. Macdonell, Vedic Mythology, p. 108.]

Among all the phenomena of nature none is more wonderful, impressive, awe-inspiring than thunder, and none seems more generally to have given rise to religious veneration. But with growing reflection man finds a mystery even in events of daily occurrence. The Vedic poet, when he sees the sun moving freely through the heavens, asks how it comes that it does not fall downward, although "unpropped beneath, not fastened firm, and downward turned";[55] and it seems to him a miracle that the sparkling waters of all rivers flow into one ocean without ever filling it.[56] "Verily," says the Koran, "in the creation of the heavens and the earth, and in the succession of night and day, are signs to those possessed of minds."[57]

[Footnote 55: Rig-Veda, iv. 13. 5.]

[Footnote 56: Ibid. v. 85. 6.]

[Footnote 57: Koran, iii. 87.]

The attribution of miraculous power to a certain object or being may be due to direct experience of some effect produced by it, as in the case of a medical plant, or a poisonous snake, or a miracle-working spring, or a Christian or Muhammedan saint. Or it may be based on the inference that objects with a strange and mysterious appearance also possess strange and mysterious powers. This inference, too, is in a way supported by facts. The unusual appearance of the object makes an impression on the person who sees it, and predisposes him to the belief that the object is endowed with secret powers. If then anything unusual actually happens in its neighbourhood or shortly after it has been seen, the strange event is attributed to the influence of the strange object. Thus a Siberian tribe came to regard the camel as the small-pox demon because, just when the animal had appeared among them for the first time with a passing caravan, the small-pox broke out.[58] Of the British Guiana Indian we are {593} told by Sir E. F. Im Thurn that if his eye falls upon a rock in any way abnormal or curious, and if shortly after any evil happens to him, he regards rock and evil as cause and effect, and perceives a spirit in the rock.[59] With the lapse of time the data of experience readily increase. If a certain object has gained the reputation of being supernatural, it is looked upon as the cause of all kinds of unusual events which may possibly be associated with it. When I visited the large cave Imi-nta[k.][k.]ándut in the Great Atlas Mountains, the interior of which is said to contain a whole spirit city, my horse happened to stumble on my way back to my camp, and fell upon one of my servants who was carrying a gun. The gun was broken and the man became lame for some days. I was told that the accident was caused by the cave spirits, because they were displeased at my visit. When the following day I again passed the cave with my little caravan, heavy rain began to fall; and now the rain was attributed to the ill-temper of the spirits.

[Footnote 58: Tiele, Elements of the Science of Religion, i. 70.]

[Footnote 59: Im Thurn, Indians of Guiana, p. 354.]

Startling events are ascribed to the activity not only of visible, but of invisible supernatural agents. Thus sudden or strange diseases are, at the lower stages of civili-

sation, commonly supposed to be occasioned by a supernatural being, which has taken up its abode in the sick person's body, or otherwise sent the disease.[60] Among the Maoris, for instance, "each disease was supposed to be occasioned by a different god, who resided in the part affected."[61] The Australian Kurnai maintain that phthisis, pneumonia, bowel complaints, and insanity are produced by an evil spirit, "who is like the wind."[62] According to Moorish beliefs convulsions, epileptic or paralytic fits, rheumatic or neuralgic pains, and certain rare and violent epidemics, like the cholera, are caused by spirits, which either strike their victim, or enter his body, or sometimes, in the case of an epidemic, shoot at the {594} people with poisonous arrows. Indeed, unexpected events of every kind are readily ascribed to supernatural influence, in Morocco and elsewhere. Among the North American Indians "the storms and tempests were generally thought to be produced by aërial spirits from hostile lands."[63] Among the Hudson Bay Indians "everything not understood is attributed to the working of one of the numerous spirits."[64] "Dans toute l'Afrique," says M. Duveyrier in his description of the Touareg, "il n'y a pas un individu, éclairé ou ignare, instruit ou illettré, qui n'attribue aux génies tout ce qui arrive d'extraordinaire sur la terre."[65] Of the South African natives Livingstone writes, "Everything not to be accounted for by common causes, whether of good or evil, is ascribed to the Deity."[66] With the progress of science the chain of natural causes is extended, and, as Livy puts it, it is left to superstition alone to see the interference of the deity in trifling matters. Among ourselves the ordinary truths of science are so generally recognised that in this domain God is seldom supposed to interfere. On the other hand, with regard to social events, the causes of which are often hidden, the idea of Providence is still constantly needed to fill up the gap of human ignorance.

[Footnote 60: Tylor, Primitive Culture, ii. 146 sqq. Schneider, Die Naturvölker, i. 217. Bartels, Die Medicin der Naturvölker, p. 27 sqq. Höfler, 'Krankheits-Dämonen,' in Archiv für Religionswissenschaft, ii. 86 sqq. Karsten, op. cit. p. 27 sqq.]

[Footnote 61: Taylor, Te Ika a Maui, p. 137.]

[Footnote 62: Fison and Howitt, op. cit. p. 250.]

[Footnote 63: Dorman, op. cit. p. 350.]

[Footnote 64: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 272.]

[Footnote 65: Duveyrier, Exploration du Sahara, p. 418. See also Schneider, Religion der afrikanischen Naturvölker, p. 103.]

[Footnote 66: Livingstone, Expedition to the Zambesi, p. 521 sq.]

Man's belief in supernatural agents, then, is an attempt to explain strange and mysterious phenomena which suggest a volitional cause.[67] The assumed cause is the will of a supernatural being. Such beings are thus, in the first place, conceived as volitional. But a being which has a will must have a mind, with emotions, desires, and a certain amount of intelligence. Neither the savage nor ourselves can imagine a volitional being {595} which has nothing but a will. If an object of nature, therefore, is looked upon as a supernatural agent, mentality and life are at the same time attributed to it as a matter of course. This I take to be the real origin of animism. It is not correct to say that "as the objects of the visible world are conceived as animated, volitional, and emotional, they may be deemed the originators of those misfortunes of which the true cause is unknown."[68] This is to reverse the actual order of ideas. Inanimate things are conceived as volitional, emotional, and animate, because they are deemed the originators of startling events. The savage does not speculate upon the nature of things unless he has an interest in doing so. He is not generally inquisitive as to causes.

[69] The natives of West Australia, says Eyre, "are not naturally a reasoning people, and by no means given to the investigation of causes or their effects."[70] In matters not concerning the common wants of life the mind of the Brazilian Indian is a blank.[71] When Mungo Park asked some negroes, what became of the sun during the night? they considered his question a very childish one; "they had never indulged a conjecture, nor formed any hypothesis, about the matter."[72] I often found the Beduins of Morocco extremely curious, but their curiosity consisted in the question, What? rather than in the question, Why?

[Footnote 67: Already Hobbes (Leviathan, i. 12, p. 79) traced, in part, the origin of religion to the fact that when man cannot assure himself of the true causes of things, he supposes causes of them. See also Meiners, Geschichte der Religionen, i. 16.]

[Footnote 68: Peschel, Races of Man, p. 245.]

[Footnote 69: Cf. Spencer, Principles of Sociology, i. 86 sq.; Karsten, op. cit. p. 43 sq.]

[Footnote 70: Eyre, Expeditions of Discovery into Central Australia, ii. 355.]

[Footnote 71: Bates, The Naturalist on the River Amazons, ii. 163.]

[Footnote 72: Mungo Park, Travels in the Interior of Africa, i. 413.]

Whilst belief in supernatural agents endowed with a will made the savage an animist, the idea that a mind presupposes a body, when thought out, led to anthropomorphism. Impossible as it is to imagine a will without a mind, it is hardly less impossible to imagine a mind without a body. The immaterial soul is an abstraction to which has been attributed a metaphysical reality, but of which no clear conception can be formed. As Hobbes observed, the opinion that spirits are incorporeal or immaterial, "could {596} never enter into the mind of any man by nature; because, though men may put together words . . . . as Spirit and Incorporeall; yet they can never have the imagination of anything answering to them."[73] Descartes himself frankly confessed, "What the soul itself was I either did not stay to consider, or, if I did, I imagined that it was something extremely rare and subtile, like wind, or flame, or ether, spread through my grosser parts."[74] The supernatural agents were consequently of necessity considered to possess a more or less material constitution. The disembodied human soul which the savage saw in dreams or visions, in the shadow or the reflection, was only the least material being which he could imagine; and when raised to the dignity of an ancestor-god, it by no means lost its materiality, but, on the contrary, tended to acquire a more substantial body.

[Footnote 73: Hobbes, op. cit. i. 12, p. 80.]

[Footnote 74: Descartes, Meditationes, 2, p. 10.]

Of a grosser substantiality and very unlike the human shape are the inanimate objects of nature which receive divine veneration. It has been said of savages that they do not worship the thing itself, only the spirit dwelling in it. But such a distinction cannot be primitive. The natural object is worshipped because it is believed to possess supernatural power, but it is nevertheless the object itself that is worshipped.[75] Castrén, who combined great personal experience with unusual acuteness of judgment, states that the Samoyedes do not know of any spirits attached to objects of nature, but worship the objects as such; "in other words, they do not separate the spirit from the matter, but adore the thing in its totality as a divine being."[76] Of the deification of the Nerbudda river Sir W. H. Sleeman likewise observes, "As in the case of the Ganges, it is the river itself to whom they address themselves, and not to any deity residing in it, or presiding over it--the stream itself is the deity which fills their imaginations, and receives their {597} homage."[77] The animist who endows an inanimate object with a soul regards the visible thing itself as its body.[78] How a being with such a body,

like a tree or a stone, can hear the words of men, can see their doings, and can partake of the food they offer, might be difficult to explain--if it had to be explained. But, as I have said, the inquisitiveness of savage curiosity does not go to the roots of things, and religion is in its essence mystery.

[Footnote 75: Cf. Tiele, Max Müller und Fritz Schultze über ein Problem der Religionswissenschaft, p. 35; Parkman, op. cit. p. lxvii. (North American Indians).]

[Footnote 76: Castrén, op. cit. iii. 192. Cf. ibid. iii. 161, 200 sq.]

[Footnote 77: Sleeman, Rambles and Recollections of an Indian Official, i. 20.]

[Footnote 78: Castrén, op. cit. iii. 164 sq.]

However, in proportion as a supernatural being comes more and more to occupy the thoughts of its worshippers and to stir their imagination, a more distinct personality is attributed to it; and at length neither the ethereal or vaporous materiality of a departed human soul, nor the crude substantiality of an inanimate object is considered a satisfactory body for such a being. It is humanised also with regard to its essential shape. The Koriaks of Siberia believe "that objects and phenomena of nature conceal an anthropomorphic substance underneath their outer forms"; but they also show the first signs of a belief in spiritual owners or masters ruling over certain classes of things or over large objects.[79] The supernatural being which is originally embodied in a natural phenomenon is gradually placed behind it. In the Vedic hymns we may study this anthropomorphism as a process in growth. The true gods of the Veda are almost without exception the deified representatives of the phenomena or forces of nature, [80] which are personified, though in varying degrees. When the name of the god is the same as that of his natural basis, the personification has not yet advanced beyond the rudimentary stage; names like Dyaus ("heaven"), P[r.]thiv[=i] ("earth"), S[=u]rya ("sun"), U[s.]as ("dawn"), represent the double character of natural phenomena and of the personalities presiding over them. Speaking of the nature of the gods, the ancient Vedic interpreter Y[=a]ska remarks that "what is seen of the gods is certainly not {598} anthropomorphic, for example the sun, the earth, and so forth."[81] Again, when the name of the god is different from that of the physical substance he is supposed to inhabit, the anthropomorphism is more developed, though never very distinct. The Vedic people always recognised behind its gods the natural forces of which they were the expression, and their physical appearance often only represents aspects of their natural bases figuratively described to illustrate their activities. The sun is spoken of as the eye with which Varuna observes mankind;[82] or it is said that the all-seeing sun, rising from his abode, goes to the dwellings of Mitra and Varuna to report the deeds of men.[83] Even to this day the Hindu, to whatever sect he may belong, does homage to the rising sun every morning of his life by repeating a text of the Veda.[84] The god does not very readily change his old solid body for another which, though more respectable, has the disadvantage of being invisible. The simple unreflecting mind finds it easier to worship a material thing which may be seen, than a hidden god, however perfect in shape. To the common Japanese the sun is still the god to whom he prays morning and evening.[85] Whilst Chinese scholars declare that the sacrifice offered to Heaven "is assuredly not addressed to the material and sensible heaven, which our eyes see, but to the Master of heaven, earth, and all things,"[86] the people are less metaphysical; and the Russian peasant to this day makes an appeal to the Svarog of the old religion when crying, "Dost thou hear, O Sky? dost thou see, O Sky?"[87] That the worship of animals survives at comparatively late stages of civilisation is probably due to the double advantage of their bodies being both visible and animate.

[Footnote 79: Jochelson, 'Koryak Religion and Myth,' in Jesup North Pacific Expedition, vi. 115, 118.]

[Footnote 80: Oldenberg, Religion des Veda, p. 591 sqq.]

[Footnote 81: Nirukta, vii. 4, quoted by Hopkins, Religions of India, p. 209.]

[Footnote 82: Rig-Veda, i. 50. 6. Hopkins, op. cit. p. 67. Cf. Rig-Veda, i. 25. 10 sq.; i. 136. 2.]

[Footnote 83: Rig-Veda, vii. 60. 1 sq. See Macdonell, op. cit. pp. 2, 15, 17, 23; Muir, Original Sanskrit Texts, v. 6; Barth, Religions of India, p. 178; Oldenberg, Religion des Veda, p. 591 sqq.]

[Footnote 84: Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 342.]

[Footnote 85: Griffis, Religions of Japan, p. 87.]

[Footnote 86: Legge, Notions of the Chinese concerning God and Spirits, p. 38.]

[Footnote 87: Ralston, Songs of the Russian People, p. 362.]

{599} But though man created his gods in his own image and likeness, endowing them with a mind and a body modelled after his own, he never lost sight of the difference between him and them. He always ascribed to them a superior power of action; otherwise they would have been no gods at all. In many cases, at least, he also attributed to them a superior knowledge. The Bechuanas maintain that their gods are much wiser than they are themselves.[88] In the admonitions of an Aztek mother to her daughter reference is made to a god who "sees every secret fault."[89] The gods of the Greeks and Romans were possessed of superhuman wisdom,[90] and so was Yahveh. It is true that the anthropomorphic god acquires knowledge of the affairs of men through his senses. When hearing the cry of Sodom and Gomorrah, Yahveh said, "I will go down now, and see whether they have done altogether according to the cry of it, which is come unto me; and if not, I will know."[91] But the senses of a god are generally superior to those of a man. "A god," says Orestes, "can hear even from a distance."[92] Varuna has an all-seeing eye, and the Zoroastrian Mithra has a thousand ears and ten thousand eyes. [93] In other respects, also, the bodies of gods excel the bodies of men. Sometimes they are more beautiful, sometimes they have a gigantic shape. When Ares is felled to the ground by the stone flung by Athene, his body covers seven roods of land. [94] When Here takes a solemn oath, she grasps the earth with one hand and the sea with the other.[95] In three steps Poseidon goes an immense distance;[96] in three paces Vishnu traverses earth, air, and sky.[97]

[Footnote 88: Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of the Cape of Good Hope, p. 341.]

[Footnote 89: Sahagun, Historia general de las cosas de Nueva España, vi. 19, vol. ii. 131.]

[Footnote 90: Cf. Westcott, Essays in the History of Religious Thought, p. 101.]

[Footnote 91: Genesis, xviii. 20 sq.]

[Footnote 92: Aeschylus, Eumenides, 297.]

[Footnote 93: Yasts, x. 7.]

[Footnote 94: Iliad, xxi. 407.]

[Footnote 95: Ibid. xiv. 272 sq.]

[Footnote 96: Ibid. xiii. 20.]

[Footnote 97: Grimm, Teutonic Mythology, i. 325.]

However, the tendency to make gods more and more {600} perfect--of which I shall say more in a following chapter--gradually led to the notion that materiality is a quality which is not becoming to a god; hence men endeavoured, to the best of their ability, to grasp the idea of a purely spiritual being, endowed with a will and even with

human emotions, but without a material body. Like Xenophanes in Greece, the Inca Yupangui in Peru protested against the prevailing anthropomorphism, declaring that purely spiritual service was befitting the almighty creator, not tributes or sacrifices.[98] In the Bible we notice a successive transformation of the nature of the deity, from crude sensuousness to pure spirituality. According to the oldest traditions, Yahveh works and rests, he plants the garden of Eden, he walks in it in the cool of the day, and Adam and Eve hear his voice. In a great part of the Old Testament he is expressly bound by conditions of time and space. He is attached in an especial manner to the Jerusalem temple or some other shrine, and his favour is gained by definite modes of sacrifice. At the time of the Prophets the cruder anthropomorphisms of the earlier religion have been overcome; Yahveh is no longer seen in person, and by a prophet like Isaiah his residence in Zion is almost wholly dematerialised. Yet, as Professor Robertson Smith observes, not even Isaiah has risen to the full height of the New Testament conception that God, who is spirit and who is to be worshipped spiritually, makes no distinction of spot with regard to worship, and is equally near to receive men's prayers in every place.[99] Moslem theologians take pains to point out that God neither is begotten nor begets, and that he is without figure, form, colour, and parts. He hears all sounds, whether low or loud; but he hears without an ear. He sees all things, even the steps of a black ant on a black stone in a dark night; {601} but he has no eyes, as men have. He speaks; but not with a tongue, as men do.[100] He is endowed with knowledge, feelings, and a will.[101] Thus the dematerialised god still retains a mental constitution modelled upon the human soul, with all its bodily desires and imperfections removed, with its higher qualities indefinitely increased, and, above all, endowed with a supernatural power of action.

[Footnote 98: Brinton, American Hero-Myths, p. 236.]

[Footnote 99: Goblet d'Alviella, op. cit. p. 216. Toy, Judaism and Christianity, p. 87. Montefiore, op. cit. p. 424. Robertson Smith, Religion of the Semites, p. 117.]

[Footnote 100: Risálah-i-Berkevi, quoted by Sell, op. cit. p. 166 sq.]

[Footnote 101: Sell, op. cit. p. 185.]

In following chapters we shall see how the moral ideas of men have been influenced by the attributes they ascribe to supernatural beings.

Chapter XLVIII — Duties to Gods

MEN not only believe in the existence of supernatural beings, but enter into frequent relations with them. In every religion we may distinguish between two elements: a belief, and a regardful attitude towards the object of this belief. At the same time the assumption that supernatural beings exist is not necessarily connected with religious veneration of them. Relations may be established with some of them to the exclusion of others. If the relations between man and a certain supernatural being are of a more or less permanent character, the latter is generally called his god.

As man attributes to his gods a variety of human qualities, his conduct towards them is in many respects determined by considerations similar to those which regulate his conduct towards his fellow men. He endows them with rights quite after human fashion, and imposes on himself corresponding duties.

Gods have the rights to life and bodily integrity. They are not necessarily either invulnerable or immortal.[1] According to ancient Egyptian beliefs, the life of a god is

indeed longer than that of a man, but death puts an end to the one as well as to the other.[2] The Vedic gods were mortal at first; immortality was only bestowed upon them by Savitr or by Agni, or they obtained it by drinking {603} soma, or by practising continence and austerity, or by the performance of certain ceremonies.[3] Nor were the Greek gods eternal by nature; they secured immortality by feasting on nectar and ambrosia.[4] The Scandinavian gods had in Idun's apples a means of preserving perpetual freshness and youth; but for all that they were subject to the encroachments of age, and their death is spoken of without disguise.[5]

[Footnote 1: See Frazer, Golden Bough, ii. 1 sqq.]

[Footnote 2: Wiedemann, Religion of the Ancient Egyptians, p. 173. Cf. Maspero, Dawn of Civilization, p. 111; Erman, Life in Ancient Egypt, p. 265.]

[Footnote 3: Macdonell, Vedic Mythology, p. 17. Oldenberg, Religion des Veda, p. 176.]

[Footnote 4: Iliad, v. 339 sqq. Odyssey, v. 199. Cf. Grimm, Teutonic Mythology, i. 317 sq.]

[Footnote 5: Grimm, op. cit. i. 318 sqq.]

Though liable to death, the invisible anthropomorphic gods generally run little risk of being killed by men. But the case is different with such supernatural beings as live on earth in a visible and destructible shape. They may be, and occasionally are, slain by human hands, although in this case killing hardly means absolute destruction, the soul surviving the death of the body. But to kill such a being is in ordinary circumstances looked upon as a dangerous act. We have noticed above that people are often reluctant to slay animals of certain species for fear lest either the disembodied spirit of the slain animal or others of its kind should avenge the injury;[6] and the danger is naturally increased when the victim and its whole species are regarded as divine. Savages as a rule avoid killing animals of their own totem, and various statements imply that the act is disapproved of.[7]

[Footnote 6: Supra, ii. 491.]

[Footnote 7: Frazer, Totemism, p. 7 sqq.; Idem, Totemism and Exogamy, iv. 6 sq.]

It has been suggested that this regard for the life of a totemic animal is due to the notion that a man is akin to his totem.[8] But the various taboos imposed upon him with reference to it, and the nature of the penalties incurred by the taboo-breaker,[9] indicate that the relation between a human individual and the animal members of his totem are after all somewhat different from that between cousins. It seems that the totemic animal is in {604} the first place looked upon as a supernatural being, and that a person's attitude towards it depends on the degree of dread or veneration which he feels for it. Such sacred animals as are not conceived to be of one stock with their devotees are equally tabooed; in ancient Egypt, we are told, offences against holy animals were punished even with death.[10] On the other hand, so little respect is not seldom felt for the totem that it is treated in a way to which there is no parallel in the treatment of human relatives. Speaking of the native tribes of Central Australia, Messrs. Spencer and Gillen observe, "That the totemic animal or plant is not regarded exactly as a close relative, whom it would be wrong to kill, or to assist any one else to kill, is very evident; on the contrary, the members of one totem not only, as it were, give their permission to those who are not of the totem to kill and eat the totemic animal or plant, but . . . they will actually help in the destruction of their totems."[11] The South Australian Narrinyeri kill their totemic animals if they are good for food.[12] A Bechuana will kill his totem if it be a hurtful animal, for instance a lion; the slayer then only makes an apology to the beast and goes through a form of purification for the sacrilege.

[13] Among the Menomini Indians a man belonging to the Bear clan may kill a bear, although he must first address himself to his victim and apologise for depriving it of life.[14] The Indian tribes in the South-Eastern States had no respect for their totems and would kill them when they got the chance.[15] Among the Thlinkets a Wolf man will hunt wolves without hesitation, although he calls them his relatives when praying them not to hurt him.[16]

[Footnote 8: Robertson Smith, Religion of the Semites, p. 285. Cf. Frazer, Totemism, p. 7.]

[Footnote 9: See Frazer, Totemism, p. 11 sqq.; Spencer and Gillen, Northern Tribes of Central Australia, pp. 322, 324 sq.]

[Footnote 10: Wiedemann, Herodots zweites Buch, p. 279.]

[Footnote 11: Spencer and Gillen, Native Tribes of Central Australia, p. 207.]

[Footnote 12: Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, p. 63.]

[Footnote 13: Casalis, Basutos, p. 211.]

[Footnote 14: Hoffman, 'Menomini Indians,' in Ann. Rep. Bur. Ethn. xiv. 44.]

[Footnote 15: Adair, History of the American Indians, p. 16.]

[Footnote 16: Boas, in Fifth Report on the North-Western Tribes of Canada, p. 23. For some other instances see Frazer, Totemism, p. 19.]

In certain cases divine animals are killed as a religious {605} or magical ceremony. Several instances of this have been pointed out by Sir J. G. Frazer.[17] Sometimes, when the revered animal is habitually spared, it is nevertheless killed on rare and solemn occasions. In other cases, when the revered animal is habitually killed, there is a special annual atonement, at which a select individual of the species is slain with extraordinary marks of respect and devotion. Frazer has offered ingenious explanations of both customs. As regards the former one he argues that the savage apparently thinks that a species left to itself will grow old and die like an individual, and that the only means he can think of to avert the catastrophe is to kill a member of the species in whose veins the tide of life is still running strong and has not yet stagnated among the fens of old age; "the life thus diverted from one channel will flow, he fancies, more freshly and freely in a new one."[18] The latter custom, again, is explained by Frazer as a kind of atonement; by showing marked deference to a few chosen individuals of a species the savage thinks himself entitled to exterminate with impunity all the remainder upon which he can lay hands.[19] These explanations, as Frazer himself is the first to admit, are only hypothetical, but, so far as I know, they are the only ones yet offered. However, it is worth noticing that certain acts accompanying the slaughter of divine animals sometimes clearly indicate a desire in the worshippers to transfer to themselves supernatural benefits--as when they eat the flesh of the animal, or sprinkle themselves with its blood, or by other means place themselves in contact with it; and it may be that in such cases the animal is killed for the express purpose of communicating to the people the sanctity, or beneficial magic energy, with which it is endowed. The Madi or Moru tribe of Central Africa furnish an instructive example. Once a year, as it seems, a very choice lamb is killed by a man belonging to a kind of priestly order, who {606} sprinkles some of the blood four times over the assembled people and then smears each individual with the same fluid. But this ceremony is also observed on a small scale at other times--if a family is in any great trouble, through illness or bereavement, their friends and neighbours come together and a lamb is killed with a view to averting further evil.[20] Among the Arunta and some other tribes in Central Australia, as we have noticed above, at the time of Intichiuma, totemic animals are killed with the object of being eaten. But here the sacramental meal is a magical ceremony intended to multiply the

species, so as to increase the food supply for other totemic groups; the fundamental idea being that the members of each totemic group are responsible for providing other individuals with a supply of their totem.[21]

[Footnote 17: Frazer, Golden Bough, ii. 366 sqq.]

[Footnote 18: Ibid. ii. 368.]

[Footnote 19: Ibid. ii. 435.]

[Footnote 20: Felkin, 'Madi or Moru Tribe of Central Africa,' in Proceed. Roy. Soc. Edinburgh, xii. 336 sq.]

[Footnote 21: Supra, ii. 210 sq. Spencer and Gillen, Native Tribes of Central Australia, ch. vi. Iidem, Northern Tribes of Central Australia, ch. ix. sq.]

Frazer has also called attention to various instances in which a man-god or divine king is put to death by his worshippers, and has suggested the following explanation of this custom:--Primitive people sometimes believe that their own safety and even that of the world is bound up with the life of one of these god-men or human incarnations of the divinity. They therefore take the utmost care of his life, out of a regard for their own. But no amount of care and precaution will prevent the divine king from growing old and feeble and at last dying. And in order to avert the catastrophes which may be expected from the enfeeblement of his powers and their final extinction in death, they kill him as soon as he shows symptoms of weakness, and his soul is transferred to a vigorous successor before it has been seriously impaired by the threatened decay. But some peoples appear to have thought it unsafe to wait for even the slightest symptom of decay and have preferred to kill the divine king while he is still in the full vigour of life. Accordingly, they have fixed a term beyond which he {607} may not reign, and at the close of which he must die, the term fixed upon being short enough to exclude the probability of his degenerating physically in the interval. Thus it appears that in some places the people could not trust the king to remain in full bodily and mental vigour for more than a year; whilst in Ngoio, a province of the ancient kingdom of Congo, the rule obtains that the chief who assumes the cap of sovereignty one day shall be put to death on the next.[22]

[Footnote 22: Frazer, Golden Bough, ii. 5 sqq.]

Every reader of The Golden Bough must admire the ingenuity, skill, and learning with which its author has worked out his theory, even though he may fail to find the argument in every point convincing. It is obvious that the supernatural power of divine kings is frequently supposed to be influenced by the condition of their bodies. In some cases it is also obvious that they are killed on account of some illness, corporal defect, or symptom of old age, and that the ultimate reason for this lies in the supposed connection between physical deterioration and waning divinity. But, as Frazer himself observes, in the chain of his evidence a link is wanting: he can produce no direct proof of the idea that the soul of the slain man-god is transmitted to his royal successor.[23] In the absence of such evidence I venture to suggest a some what different explanation, which seems to me more in accordance with known facts--to wit, that the new king is supposed to inherit, not the predecessor's soul, but his divinity or holiness, which is looked upon in the light of a mysterious entity, temporarily seated in the ruling sovereign, but separable from him and transferable to another individual.

[Footnote 23: Ibid. ii. 56.]

This modification of Frazer's theory is suggested by certain beliefs prevalent among the Moors. The Sultan of Morocco, who is regarded by the people as "the vicegerent of God," appoints before his death some member of his family--by preference one of his sons--as his successor, and this implies that his baraka, or holiness, will {608} be trans-

ferred to the new sovereign. But his holiness may also be appropriated by a pretender during his lifetime, which proves that it is regarded as something quite distinct from his soul. Thus the people told me that the pretender Bu[h.]amâra had come into possession of the Sultan's baraka, and that he would subsequently hand it over to one of the Sultan's brothers, who was then denied his liberty. Like the sultans of Morocco, the divine Kafir kings of Sofala, who were put to death if afflicted with some disease, nominated their successors.[24] In ancient Bengal, again, whoever killed the king and succeeded in placing himself on the royal throne, was immediately acknowledged as king; the people said, "We are faithful to the throne, whoever fills the throne we are obedient and true to it."[25] In the kingdom of Passier, on the northern coast of Sumatra, whose sacred monarch was not allowed by his subjects to live long, "the man who struck the fatal blow was of the royal lineage, and as soon as he had done the deed of blood and seated himself on the throne he was regarded as the legitimate king, provided that he contrived to maintain his seat peaceably for a single day."[26] In these cases, it seems, the sanctity was considered to be inherent in the throne and to be partly communicated to persons who came into close contact with it.[27]

[Footnote 24: Frazer, Golden Bough, ii. 10.]

[Footnote 25: Ibid. ii. 16.]

[Footnote 26: Ibid. ii. 16.]

[Footnote 27: Since the above was written, Sir J. G. Frazer himself has kindly drawn my attention to some statements in his Lectures on the Early History of the Kingship (p. 121 sqq.) from which it appears that in some parts of the Malay region the regalia are regarded as wonder-working talismans or fetishes, the possession of which carries with it the right to the throne. Among the Yorubas of West Africa, a miraculous virtue seems to be attributed to the royal crown, and the king sometimes sacrifices sheep to it (ibid. p. 124, n. 1). See infra, Additional Notes.]

Now, as we have noticed before, holiness is generally held to be exceedingly susceptible to any polluting influence,[28] and this would naturally suggest the idea that, in order to remain unimpaired, it has to be removed from a body which is defiled by disease or blemish. Such an idea may be supposed to underlie those cases in which {609} even the slightest bodily defect is a sufficient motive for putting the divine king to death. It is of the greatest importance for the community that the holiness on which its welfare depends should not be attached to an individual whose organism is no longer a fit receptacle for it, and who is consequently unable to fulfil the duties incumbent upon a divine monarch; and it may be thought that the only way of removing the holiness from him is to kill him. The same explanation would seem to apply to the killing of kings or magicians who have actually proved incapable of bringing about the benefits expected from them, such as rain or good crops,[29] although in these instances the murderous act may also be a precaution against the revenge they might otherwise take for being deposed, or it may be a punishment for their failure,[30] or have the character of a sacrifice to a god.[31] Moreover, the disease, weakness, or physical deterioration of the king might cause his death; and, owing to the extremely polluting effect ascribed to natural death, this would be the greatest catastrophe which could happen to the holiness seated in him. The people of Congo believed that if their pontiff, the Chitomé, were to die a natural death, the world would perish, and the earth, which he alone sustained by his power and merit, would immediately be annihilated; hence, when he fell ill and seemed likely to die, the man who was destined to be his successor entered the pontiff's house with a rope or a club and strangled or clubbed him to death.[32] Similar motives may also have induced people to kill their divine king after a certain

period, as everybody is sooner or later liable to fall ill or grow weak and die. But I can also imagine another possible reason for this custom. Supernatural {610} energy is sometimes considered so sensitive to external influences that it appears to wear away almost by itself in the course of time. I have heard from Arabs in Morocco that a pretender's holiness usually lasts only for half a year. And it may be that some of the divine kings mentioned by Frazer were exposed to a similar fatality and therefore had to be slain in time.

[Footnote 28: See especially supra, ii. 294-296, 352, 353, 415 sqq.]

[Footnote 29: Frazer, Golden Bough, i. 158 sq. Landtman, Origin of Priesthood, p. 144 sqq.]

[Footnote 30: Landtman, op. cit. p. 144. Divine animals are sometimes treated in a similar way. In ancient Egypt, if the sacred beasts could not, or would not, help in emergency, they were beaten; and if this measure failed to prove efficacious, then the creatures were punished with death (Wiedemann, Religion of the Ancient Egyptians, p. 178; Idem, Herodots zweites Buch, p. 428 sq.).]

[Footnote 31: Supra, i. 443.]

[Footnote 32: Frazer, Golden Bough, ii. 8.]

As the right to life, generally granted to gods, is thus in certain circumstances abrogated for the benefit of their worshippers, so their right to bodily integrity may be suspended if their behaviour does not answer the expectations of their devotees. Men punish their gods as they punish their fellow men. Among the Amazulu, when it thunders or, as they say, "the heaven is coming badly," the doctors go out and scold it; "they take a stick and say they are going to beat the lightning of heaven."[33] The negro cudgels his fetish unmercifully to make it submissive.[34] The Samoyede flogs his idol or throws it away if he does not succeed in his doings.[35] The idols of the Typees, in the Marquesas Islands, "received more hard knocks than supplications."[36] When his guardian spirit proves stubborn, the Hudson Bay Eskimo deprives it of food, or strips it of its garments.[37]

[Footnote 33: Callaway, Religious System of the Amazulu, p. 404.]

[Footnote 34: Bastian, Afrikanische Reisen, p. 61.]

[Footnote 35: von Struve, in Ausland, 1880 p. 795.]

[Footnote 36: Melville, Typee, p. 261.]

[Footnote 37: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 194.]

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In normal circumstances men regard it as a duty, not only to refrain from killing or injuring their gods, but positively to promote their existence and comfort. According to early beliefs, supernatural beings are subject to human needs. The gods of the heathen Siberians laboured for their subsistence, engaged in hunting and fishing, and laid up provisions of roots against times of dearth.[38] When the heavens appear checkered with white clouds on a blue surface, the Maoris of New Zealand say that the god is planting his potatoes and {611} other divine edibles.[39] The Fijian gods are described as enormous eaters.[40] The Vedic gods wore clothes, were great drunkards, and suffered from constant hunger;[41] I need only refer to the numerous passages in the Rig-Veda where mention is made of the appetite or thirst of Indra and the pleasure he has in filling his belly.[42] An Egyptian god cannot be conceived without his house in which he lives, in which his festivals are solemnised, and which he never leaves except on professional days. His dwelling has to be cleaned, and he is assisted at his toilet by his attendants; the priest has to dress and serve his god, and places every day on his table offerings

of food and drink.[43] So also the Chaldean gods had to be nourished, clothed, and amused; and the stone or wooden statues erected to them in the sanctuaries furnished them with bodies which they animated with their breath.[44]

[Footnote 38: Georgi, Russia, iii. 259.]

[Footnote 39: Polack, Manners and Customs of the New Zealanders, i. 244.]

[Footnote 40: Williams and Calvert, Fiji, pp. 184, 195.]

[Footnote 41: Oldenberg, Religion des Veda, pp. 304, 366 sqq. Barth, Religions of India, p. 36, n. 2.]

[Footnote 42: Rig-Veda, ii. 11. 11; viii. 4. 10; viii. 17. 4; viii. 78. 7; x. 86. 13 sqq.]

[Footnote 43: Erman, op. cit. pp. 273, 275, 279. Maspero, op. cit. p. 110.]

[Footnote 44: Ball, 'Glimpses of Babylonian Religion,' in Proceed. Soc. Biblical Archæology, xiv. 153 sqq. Maspero, op. cit. p. 679.]

The idea that supernatural beings have human appetites and human wants leads to the practice of sacrifice. Whatever means they may have of earning their livelihood, they are certainly not indifferent to gifts offered by men. If such offerings fail them they may even suffer want and become feeble and powerless. The Egyptian gods, says M. Maspero, "were dependent upon the gifts of mortals, and the resources of each individual deity, and consequently his power, depended on the wealth and number of his worshippers."[45] We meet with the same idea at every step in the Vedic hymns.[46] Should sacrifices cease for an instant to be offered, the gods would cease to send rain, {612} to bring back at the appointed hour Aurora and the sun, to raise and ripen harvests--not only because they would be unwilling, but because they would be unable to do so.[47] It was by sacrifice that the gods delivered the world from chaos, and it is by sacrifice that man prevents it from lapsing back into the same state;[48] in the 'Laws of Manu' it is said that sacrifices support "both the movable and the immovable creation."[49] The Zoroastrian books likewise represent the sacrifice as an act of assistance to the gods, by which they become victorious in their combats with the demons.[50] When not strengthened by offerings they fly helpless before their foes. Overcome by the demon Apaosha, the bright and glorious Tistrya cries out in distress:--"Woe is me, O Ahura Mazda! . . . Men do not worship me with a sacrifice in which I am invoked by my own name. . . . If men had worshipped me with a sacrifice in which I had been invoked by my own name, as they worship the other Yazatas with sacrifices in which they are invoked by their own names, I should have taken to me the strength of ten horses, the strength of ten camels, the strength of ten bulls, the strength of ten mountains, the strength of ten rivers."[51]

[Footnote 45: Maspero, op. cit. p. 302. Cf. Wiedemann, Ancient Egyptian Doctrine of the Immortality of the Soul, p. 19.]

[Footnote 46: Rig-Veda, ii. 15. 2; x. 52. 5 sq.; x. 121. 7. Cf. Atharva-Veda, xi. 7. 14 sq.; Hopkins, Religions of India, p. 149; Kaegi, Rigveda, p. 31; Darmesteter, Ormazd et Ahriman, p. 329.]

[Footnote 47: Barth, op. cit. p. 36.]

[Footnote 48: Rig-Veda, x. 130. Barth, op. cit. p. 37.]

[Footnote 49: Laws of Manu, iii. 75 sqq.]

[Footnote 50: See Darmesteter, Ormazd et Ahriman, p. 327; Idem, in Sacred Books of the East (1st edit.), iv. p. lxviii.]

[Footnote 51: Yasts, viii. 23 sq.]

Men are induced by various motives to offer sacrificial gifts to supernatural beings. In early religion the most common motive is undoubtedly a desire to avert evils; and we have reason to believe that such a desire was the first source of religious worship.

In spite of recent assertions to the contrary, the old saying holds true that religion was born of fear. Those who maintain that the savage is little susceptible to this emotion,[52] and that he for the most part takes his gods joyously,[53] show ignorance {613} of facts. One of his characteristics is great nervous susceptibility,[54] and he lives in constant apprehension of danger from supernatural powers. We are told of the Samoyedes that a sudden blow on the outside of a tent will sometimes throw the occupants into spasms. "The Indian," says Parkman, "lived in perpetual fear. The turning of a leaf, the crawling of an insect, the cry of a bird, the creaking of a bough, might be to him the mystic signal of weal or woe."[55] From all quarters of the uncivilised world we hear that terror or fear is the predominant element in the religious sentiment, that savages are more inclined to ascribe evil than good to the influence of supernatural agents, that their sacrifices and other acts of worship more frequently have in view to avert misfortunes than to procure positive benefits, or that, even though benevolent deities are believed in, much more attention is paid to malignant ones.[56] And even among peoples who have passed beyond the stage of {614} savagery fear still remains a prominent factor in their religion. The great bulk of Homeric cult-operations lay in propitiatory rites in avoidance of evil.[57] "No one," says Sir Monier-Williams, "who has ever been brought into close contact with the Hind[=u]s in their own country can doubt the fact that the worship of at least ninety per cent. of the people of India in the present day is a worship of fear."[58] In one of the Pahlavi texts we read that "he is not to be considered as faithful who has no fear of the sacred beings."[59] The Egyptian Amon Râ, who is praised as "the beautiful and beloved god, who giveth life by all manner of warmth, by all manner of fair cattle," is at the same time styled "Lord of fear, great one of terror."[60] The Psalmist says that "the fear of the Lord is the beginning of wisdom,"[61] and, as Nöldeke points out, "the fear of God" was used in its literal sense.[62] Although the Koran has much to tell about the loving kindness of God, the god of Islam evokes much more fear than love. Faith is said by Muhammedan theologians to "stand midway between hope and fear."[63]

[Footnote 52: Gruppe, Die griechischen Culte und Mythen, p. 244 sq.]

[Footnote 53: Grant Allen, Evolution of the Idea of God, p. 347.]

[Footnote 54: See Brinton, Religions of Primitive Peoples, p. 14.]

[Footnote 55: Parkman, Jesuits in North America, p. lxxxiv.]

[Footnote 56: Dorman, Origin of Primitive Superstitions, p. 391 (American Indians generally). Müller, Geschichte der Amerikanischen Urreligionen, pp. 84, 171, 214, 260. von Spix and von Martius, Travels in Brazil, ii. 243 (Coroados). Brett, Indian Tribes of Guiana, p. 361 sq.; Im Thurn, Among the Indians of Guiana, p. 367 sq. Dunbar, 'Pawnee Indians,' in Magazine of American History, viii. 736. McGee, 'Siouan Indians,' in Ann. Rep. Bur. Ethn. xv. 184. Murdoch, 'Ethn. Results of the Point Barrow Expedition,' ibid. ix. 432 (Point Barrow Eskimo). Ross, 'Eastern Tinneh,' in Smithsonian Report, 1866, p. 306. Radloff, Schamanenthum, p. 15 (Turkish tribes of the Altai). Fawcett, Saoras, p. 57. Campbell, Wild Tribes of Khondistan, p. 163 sq. Hunter, Annals of Rural Bengal, i. 181 sq. (Santals). Mouhot, Travels in the Central Parts of Indo-China, ii. 29 (Bannavs of Cambodia). Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 157. Wilken, Het animisme bij de volken van den Indischen Archipel, p. 207 sq. St. John, Life in the Forests of the Far East, i. 69, 70, 178; Low, Sarawak, p. 253; Selenka, Sonnige Welten, p. in (Dyaks). von Brenner, Besuch bei den Kannibalen Sumatras, p. 216. Kubary, 'Die Palau-Inseln,' in Jour. des Museum Godeffroy, iv. 44 (Pelew Islanders). Williams and Calvert, Fiji, p. 189. Percy Smith, 'Uea,' in Jour. Polynesian Soc. i. 114. Turner, Samoa, p. 21. Ellis, Polynesian Researches, i. 336 (Tahitians). Taylor, Te Ika a Maui, pp. 104, 148; Yate, Account of New Zealand, p. 141; Polack, op. cit. i. 244

(Maoris). Fritsch, Die Eingeborenen Süd-Afrika's, pp. 338, 339, 341 (Hottentots). Decle, Three Years in Savage Africa, p. 153 (Matabele). Livingstone, Missionary Travels, p. 435 (peoples inhabiting the country north of the Zambesi). Monrad, Skildring af Guinea-Kysten, p. 2 (Negroes of Accra). See also Karsten, Origin of Worship, p. 44 sqq.; infra, p. 665 sqq.]

[Footnote 57: Cf. Keller, Homeric Society, p. 115 sq.]

[Footnote 58: Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 230.]

[Footnote 59: Dînâ-î Maînôg-î Khirad, xxxix. 33.]

[Footnote 60: Wiedemann, Religion of the Ancient Egyptians, p. 111 sq.]

[Footnote 61: Psalms, cxi. 10.]

[Footnote 62: Nöldeke, in Archiv für Religionswissenschaft, i. 362.]

[Footnote 63: Sell, Faith of Islám, p. 165.]

Hope, indeed, forms an element in every religion, even the lowest. The assumed authors of painful or alarming events became objects of worship because they were conceived, not as mechanical causes, but as personal agencies which might be influenced by the regardful attitude of the worshipper. The savage is not so irrational as to make offerings to beings from whom he expects no benefits in return. And in proportion as the deities grew more benignant and their sphere of action was extended, their worshippers became more confident, expecting from them not only mercy but positive assistance.

We may suppose that already at an early stage of {615} culture man, occasionally, was struck by some unexpected fortunate event and ascribed it to the influence of a friendly spirit with which he was anxious to keep on amicable terms. Among the Tshi-speaking peoples of the Gold Coast worship is the result not only of fear, but also of the hope of obtaining some direct advantage or protection.[64] The pagans of Siberia accompanied their sacrifices with words like these:--"Behold what I bring you to eat; bring me then in return children, cattle, and a long life."[65] The Point Barrow Eskimo, when he arrives at a river, throws into the air a small piece of tobacco, crying out, "Spirits, spirits, I give you tobacco, give me plenty of fish!"[66] Of the Sia Indians (Pueblos) Mrs. Stevenson writes that their religion is not mainly one of propitiation, but rather of supplication for favours and payment for the same--they "do the will of and thereby please the beings to whom they pray."[67] We even hear of savages making thank-offerings to their gods. In Fiji, after successful fishing for turtle, or remarkable deliverance from danger in war or at sea, or recovery from sickness, a kind of thank-offering was sometimes presented to the deities.[68] When certain natives of Eastern Central Africa, after they have prayed for a successful hunting expedition, return home laden with venison or ivory, they know that they are indebted to "their old relative" for their good fortune, and give him a thank-offering.[69] We are told that in Northern Guinea, when a person has been repeatedly fortunate through the agency of a fetish, "he contracts a feeling of attachment and gratitude to it."[70] Yet we have reason to suspect that the gratitude of the sacrificer is commonly {616} of the kind which La Rochefoucauld defined as "a secret desire to receive greater benefits in the future."[71] Sometimes the thank-offering, if it may be called so, is expressly preceded by a vow. Among the Kansas the warrior, when going to war says, facing the East, "I wish to pass along the road to the foe! O Wakanda! I promise you a blanket if I succeed"; and turning to the West, "O Wakanda! I promise you a feast if I succeed."[72] Even in religions of a higher type the offering of sacrificial gifts is mainly a sort of bargain with the god to whom they are offered. In the Vedic hymns the gods are addressed by phrases like these, "If you give me this, I shall give you that," or, "As you have given me this, I shall give you that."[73] The

singer naïvely confesses, "I looked forth in spirit, seeking good, O Indra and Agni, to relations and kinsmen; but I have no other helper than you; therefore I have made you a powerful song."[74] The Greeks expressed the idea connected with their sacrifices in the proverbial saying, [Greek: dô=ra theou\s pei/thei].[75] The ancient Hebrew view on the subject is illustrated by the vow of Jacob:--"If God will be with me, and will keep me in this way that I go, and will give me bread to eat, and raiment to put on, so that I come again to my father's house in peace; then shall the Lord be my God: And this stone, which I have set for a pillar, shall be God's house: and of all that thou shalt give me I will surely give the tenth unto thee."[76]

[Footnote 64: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 17. Cf. Idem, Yoruba-speaking Peoples of the Slave Coast, p. 277.]

[Footnote 65: Georgi, Russia, iii. 284.]

[Footnote 66: Murdoch, in Ann. Rep. Bur. Ethn. ix. 433.]

[Footnote 67: Stevenson, 'Sia,' in Ann. Rep. Bur. Ethn. xi. 67.]

[Footnote 68: Williams and Calvert, op. cit. p. 195.]

[Footnote 69: Macdonald, Africana, i. 61. For other instances of thank-offerings see Shooter, Kafirs of Natal, p. 165; Smith, 'Myths of the Iroquois,' in Ann. Rep. Bur. Ethn. ii. 51. Jochelson, 'Koryak Religion and Myth,' in Jesup North Pacific Expedition, vi. 25, 92. Leem, Beskrivelse over Finmarkens Lapper, p. 431 (Lapps).]

[Footnote 70: Wilson, Western Africa, p. 212.]

[Footnote 71: La Rochefoucauld, Maximes, 298.]

[Footnote 72: Dorsey, 'Mourning and War Customs of the Kansas,' in American Naturalist, xix. 678.]

[Footnote 73: Müller, Physical Religion, p. 100. Oldenberg, Religion des Veda, pp. 302-326, 430 sqq.]

[Footnote 74: Rig-Veda, i. 109. 1. Cf. ibid. i. 71. 7.]

[Footnote 75: Plato, Respublica, iii. 390.]

[Footnote 76: Genesis, xxviii. 20 sqq.]

In many cases the sacrificial victims are intended to serve as substitutes for other individuals, whose lives are in danger. We have previously noticed that the practice of human sacrifice is mainly based on the idea of substitution.[77] We have also seen that a growing reluctance to this practice often led to the offering of animals instead of {617} men.[78] But we have no right to assume that the sacrifice of an animal for the purpose of saving the life of a man is in every case a later modification of a previous human sacrifice. The idea that spirits which threaten the lives of men are appeased by other than human blood may in some instances be primary though in others it is derivative. The Moors invariably sacrifice an animal at the foundation of a new building; and though this is said to be [(]âr upon the spirit owners of the place some idea of substitution seems also to be connected with the act, as they maintain that if no animal were killed the inmates of the house would die or remain childless. A similar practice prevails in Syria, where the people believe that "every house must have its death, either man, woman, child, or animal."[79] Among the Jews it is or has been the custom for the master of each house to kill a cock on the eve of the fast of atonement. Before doing so he strikes his head with the cock three times, saying at each stroke, "Let this cock be a commutation for me, let him be substituted for me"; and when he strangles his victim by compressing the neck with his hand, he at the same time reflects that he himself deserves to be strangled.[80] These customs can certainly not be regarded as survivals of an earlier practice of killing a human being. Moreover an animal is sometimes sacrificed for the purpose of saving the lives of other animals.

Thus in a place in Scotland, in 1767, a young heifer was offered in the holy fire during a cattle-plague.[81] And in Great Benin, in West Africa, on the anniversary of the death of Adolo, king Overami's father, not only twelve men, but twelve cows, twelve goats, twelve sheep, and twelve fowls were offered, and Overami, addressing his father, asked him to look after the "cows, goats, and fowls, and everything in the farms," as well as the people.[82] Sacrifices which are {618} substitutional in character may or may not be intended to satisfy the material needs of supernatural beings. In some cases, as we have seen, their object is to appease a resentful god by the mere death of the victim.[83]

[Footnote 77: Supra, ch. xix.]

[Footnote 78: Supra, i. 469 sq.]

[Footnote 79: Curtiss, Primitive Semitic Religion To-day, p. 224 sq.]

[Footnote 80: Allen, Modern Judaism, p. 406.]

[Footnote 81: Grimm, Teutonic Mythology, ii. 608.]

[Footnote 82: Moor and Roupell, quoted by Read and Dalton, Antiquities from the City of Benin, p. 6, and by Ling Roth, Great Benin, p. 70 sq.]

[Footnote 83: Supra, i. 438 sqq.]

We have further noticed that, in the case of human sacrifice, the victim is occasionally regarded as a messenger between the worshippers and their god even though the primary object of the rite be a different one.[84] The same is sometimes true of other offerings as well.[85] The Iroquois sacrifice of the white dog[86] was, according to Mr. Morgan, intended "to send up the spirit of the dog as a messenger to the Great Spirit, to announce their continued fidelity to his service, and, also, to convey to him their united thanks for the blessings of the year"; and in their thanksgiving addresses they were in the habit of throwing leaves of tobacco into the fire from time to time that their words might ascend to the dwelling of the Great Spirit in the smoke of their offerings.[87] The Huichols of Mexico often use the arrows which they sacrifice to their gods as carriers of special prayers.[88]

[Footnote 84: Supra, i. 465 sq.]

[Footnote 85: Cf. Hubert and Mauss, 'Essai sur la nature et la fonction du sacrifice,' in L'année sociologique, ii. 106, n. **1.]

[Footnote 86: See supra, i. 53, 64.]

[Footnote 87: Morgan, League of the Iroquois, p. 216 sqq.]

[Footnote 88: Lumholtz, Unknown Mexico, ii. 205.]

Not only are sacrifices used as bearers of prayers, but they are also frequently offered for the purpose of transferring curses. In Morocco every síyid[89] of any importance is constantly visited by persons who desire to invoke the saint to whom it is dedicated with a view to being cured of some illness, or being blessed with children, or getting a suitable husband or wife, or receiving help against an enemy, or deriving some other benefit from the saint. To secure his assistance the visitor makes [(]âr upon him; and the Moorish [(]âr, of which I have spoken above,[90] implies the transference of a conditional curse, whether it be made upon an ordinary man or a saint, living or dead. The [(]âr put upon a saint may consist in throwing stones upon a cairn connected with his sanctuary, or making a pile of {619} stones to him, or tying a piece of cloth at the síyid, or knotting the leaves of some palmetto or the stalks of white broom growing in its vicinity, or offering an animal sacrifice to the saint.[91] This making of [(]âr is accompanied by a promise to reward the saint if he grants the request; but the sacrifice offered in fulfilment of such a promise (l-wâ[(]da) is totally distinct from that offered as [(]âr. It is a genuine gift, whereas the [(]âr-sacrifice is a means of constraining the saint. When an animal is killed as [(]âr the usual phrase bismillâh, "In the name of God,"

is not used, and the animal may not be eaten, except by poor people.[92] On the other hand, the animal which is sacrificed as wâ[(]da is always killed "in the name of God," and is offered for the very purpose of being eaten by the saint's earthly representatives. Nothing can better show than the Moorish distinction between l-[(]âr and l-wâ[(]da how futile it would be to try to explain every kind of sacrifice by one and the same principle. The distinction between them is fundamental: the former is a threat, the latter is a promised reward.[93] But at the same time it is not improbable that the idea of transferring curses to a supernatural being by means of a sacrifice was originally suggested by the previous existence of sacrifice as a religious act, combined with the ascription of mysterious propensities to blood, and especially to sacrificial blood, which, according to primitive ideas, made it a most efficient conductor of curses.

[Footnote 89: For the meaning of this word see supra, ii. 584.]

[Footnote 90: Supra, i. 586 sq.; ii. 584 sq.]

[Footnote 91: Westermarck, 'L-[(]âr, or the Transference of Conditional Curses in Morocco,' in Anthropological Essays presented to E. B. Tylor, p. 368 sqq. Idem, The Moorish Conception of Holiness (Baraka), p. 90 sqq.]

[Footnote 92: However, if the síyid has a m[K.]áddem, or regular attendant, the petitioner often hands the animal over to him alive, so that he may himself kill it "in the name of God," and thus make it eatable. Then the descendants of the saint, if he has any, and the m[K.]áddem himself, have no hesitation in eating the animal, bismillâh being a holy word which removes the curse or evil energy inherent in l-[(]âr.]

[Footnote 93: When I have asked how it is that a saint, although invoked with l-[(]âr, does not always grant the request made to him, the answer has been that he can, but that he is not all-powerful and the failure is due to the fact that God does not listen to his prayer. But it also occurs that a person who has in vain made [(]âr upon a saint goes to another síyid to complain of him. There is a general belief that saints do not help unless [(]âr is made on them--an idea which is not very flattering to their character.]

{620} There are obvious indications that the [(]âr-sacrifice of the Moors is not unique of its kind, but has its counterpart among certain other peoples. In ancient religions sacrifice is often supposed to exercise a constraining influence on the god to whom it is offered. We meet with this idea in Zoroastrianism,[94] in many of the Vedic hymns, [95] and especially in Brahmanism. "Here," says Barth, "the rites of religion are the real deities, or at any rate they constitute together a sort of independent and superior power, before which the divine personalities disappear, and which almost holds the place allotted to destiny in other systems. The ancient belief, which is already prominent in the Hymns, that sacrifice conditionates the regular course of things, is met with here in the rank of a commonplace, and is at times accompanied with incredible details."[96] Now, there can be little doubt that this ascription of a magic power to the sacrifice, by means of which it could control the actions of the gods, was due to the idea that it served as a conductor of imprecations; for it was invariably accompanied by a formula which was considered to possess irresistible force. In the invocation lies the hidden energy which gives the efficacy to the sacrifice; without Brahma[n.]aspati, the lord of prayer, sacrifice does not succeed.[97] The Greeks actually offered anathemata, or curses, to their gods.[98] The ancient Arabs, again, after killing the sacrificial animal, threw its hair on a holy tree as a curse.[99] But so little has the true import of such sacrifices been understood even by eminent scholars, that they have been represented as votive offerings or gifts to the deity.[100]

[Footnote 94: Darmesteter, Ormazd et Ahriman, p. 330.]

[Footnote 95: Rig-Veda, iii. 45. 1; iv. 15. 5; vi. 51. 8; viii. 2. 6. Oldenberg, Religion des Veda, p. 311 sq.]

[Footnote 96: Barth, Religions of India, p. 47 sq.]

[Footnote 97: Rig-Veda, i. 18. 7.]

[Footnote 98: Rouse, Greek Votive Offerings, p. 337 sqq.]

[Footnote 99: Wellhausen, Reste arabischen Heidentums, p. 124.]

[Footnote 100: Rouse, op. cit. p. 337. Wellhausen, op. cit. p. 124.]

Considering that the idea of sacrifice being a conductor of imprecations has hitherto almost entirely escaped the notice of students of early religion, it is impossible to say {621} how widely it prevails and whether it also occurs in the savage world. We know that the practice of cursing a god not only was familiar to the ancient nations of culture, including the Egyptians,[101] Hebrews, and other Semites,[102] but is common among peoples like the South African Bechuanas[103] and the Nagas of India.[104] And that the shedding of blood is frequently applied as a means of transferring curses is suggested by various cases in which, however, the object of the imprecation is not a god but a man. We have previously noticed the reception sacrifices offered to visiting strangers, presumably for the purpose of transmitting to them conditional curses;[105] and a very similar idea seems to underlie certain cases of oath-taking. Sometimes the oath is taken in connection with a sacrifice made to a god, and then the sanctity of the sacrificial animal naturally increases the efficacy of the self-imprecation. In other instances the oath is taken on the blood of an animal which is killed for the purpose, apparently without being sacrificed to a god. But in either case, I believe, the blood of the animal is thought not only to add supernatural energy to the oath, but to transfer, as it were, the self-imprecation to the very person who pronounces it. The Mrús, a Chittagong hill tribe, "will swear by one of their gods, to whom, at the same time, a sacrifice must be offered."[106] Among the ancient Norsemen both the accused and the accuser grasped the holy ring kept for that purpose on the altar, stained with the blood of a sacrificial bull, and made oath by invoking Freyr, Niordr, and the almighty among the Asas.[107] At Athens a person who charged another with murder made an oath with imprecations upon himself and his family and his house, standing upon the entrails of a boar, a ram, and a bull, {622} which had been sacrificed by special persons on the appointed days.[108] Tyndareus "sacrificed a horse and swore the suitors of Helen, making them stand on the pieces of the horse," the oath being to defend Helen and him who might be chosen to marry her if ever they should be wronged.[109] One of the three binding forms of oath prevalent among the Sânsiya in India is to "kill a cock and pouring its blood on the ground swear over it."[110] When the Annamese swear by heaven and earth, they often kill a buffalo or he-goat and drink its blood.[111] Among the ancient Arabs comrades in arms swore fidelity to each other by dipping their hands in the blood of a camel killed for the purpose.[112]

[Footnote 101: Book of the Dead, ch. 125.]

[Footnote 102: Exodus, xxii. 28. 1 Samuel, xvii. 43. Isaiah, viii. 21.]

[Footnote 103: Chapman, Travels in the Interior of South Africa, i. 45 sq.]

[Footnote 104: Woodthorpe, 'Wild Tribes inhabiting the so-called Naga Hills,' in Jour. Anthr. Inst. xi. 70.]

[Footnote 105: Supra, i. 590 sq.]

[Footnote 106: Lewin, Wild Races of South-Eastern India, p. 233. Cf. ibid. p. 244 (Pankhos and Bunjogees).]

[Footnote 107: Landnámabók, iv. 7 (Islendínga Sögur, i. 258). Lea, Superstition and Force, p. 27. Keyser, Efterladte Skrifter, ii. pt. i. 388. Gummere, Germanic Origins, p. 301.]

[Footnote 108: Demosthenes, Oratio (xxiii.) contra Aristocratem, 67 sq., p. 642.]

[Footnote 109: Pausanias, iii. 20. 9. For Homeric oath sacrifices see Iliad, iii. 260 sqq.; xix. 250 sqq.; Keller, Homeric Society, p. 176 sqq.]

[Footnote 110: Crooke, Tribes and Castes of the North-Western Provinces, iv. 281.]

[Footnote 111: Kohler, Rechtsvergleichende Studien, p. 208.]

[Footnote 112: Wellhausen, Reste arabischen Heidentums, p. 128.]

The last mentioned case, which implies shedding of blood as a means of sealing a compact, leads us to a special class of sacrifices offered to gods, namely, the covenant sacrifice, known to us from Semitic antiquity. The Hebrews, as Professor Robertson Smith observes,[113] thought of the national religion as constituted by a formal covenant sacrifice at Mount Sinai, where half of the blood of the sacrificed oxen was sprinkled on the altar and the other half on the people,[114] or even by a still earlier covenant rite in which the parties were Yahve and Abraham;[115] and the idea of sacrifice establishing a covenant between God and man is also apparent in the Psalms.[116] In various cases recorded in the Old Testament sacrifice is accompanied by a sacrificial meal;[117] "the god and his worshippers are wont to eat and drink together, and by this token their fellowship is declared {623} and sealed."[118] Robertson Smith and his followers have represented this as an act of communion, as a sacrament in which the whole kin--the god with his clansmen--unite, and in partaking of which each member renews his union with the god and with the rest of the clan. At first, we are told, the god--that is, the totem god--himself was eaten, whilst at a later stage the practice of eating the god was superseded by the practice of eating with the god. Communion still remains the core of sacrifice; and it is said that only subsequently the practice of offering gifts to the deity develops out of the sacrificial union between the worshippers and their god.[119] But I venture to think that the whole of this theory is based upon a misunderstanding of the Semitic evidence, and that existing beliefs in Morocco throw new light upon the covenant sacrifice.

[Footnote 113: Robertson Smith, Religion of the Semites, p. 318 sq.]

[Footnote 114: Exodus, xxiv. 4 sqq.]

[Footnote 115: Genesis, xv. 8 sqq.]

[Footnote 116: Psalms, l. 5.]

[Footnote 117: Genesis, xxxi. 54. Exodus, xxiv. 11. 1 Samuel, xi. 15. Wellhausen says (Prolegomena to the History of Israel, p. 71) that, according to the practice of the older period, a meal was nearly always connected with a sacrifice.]

[Footnote 118: Robertson Smith, op. cit. p. 271.]

[Footnote 119: Ibid. lec. ix. sqq. Hartland, Legend of Perseus, ii. 236. Jevons, Introduction to the History of Religion, p. 225.]

The Moorish covenant (l-[()ahd) is closely connected with the Moorish [()âr. Whilst l-[()âr is one-sided, l-[()ahd is mutual, both parties transferring conditional curses to one another. And here again the transference requires a material conductor. Among the Arabs of the plains and the Berbers of Central Morocco chiefs, in times of rebellion, exchange their cloaks or turbans, and it is believed that if any of them should break the covenant he would be punished with some grave misfortune. Among the Ulád Bu [()Azîz, in the province of Dukkâla, it is a common custom for persons who wish to be reconciled after a quarrel to go to a holy man and in his presence join their right hands so that the fingers of the one go between the fingers of the other, after which the saint throws his cloak over the united hands, saying, "This is [()ahd between you." Or they may in a similar manner join their hands at a saint's tomb over the head of the box under which the saint is buried, or they may perform the same ceremony simply

in the presence of some friends. In either case the joining of hands is usually {624} accompanied by a common meal, and frequently the hands are joined over the dish after eating. If a person who has thus made a compact with another is afterwards guilty of a breach of faith, it is said that "God and the food will repay him"; in other words, the conditional curse embodied in the food which he ate will be realised. All over Morocco the usual method of sealing a compact of friendship is by eating together, especially at the tomb of some saint. As we have noticed above,[120] the sacredness of the place adds to the efficacy of the imprecation, but its vehicle, the real punisher, is the eaten food, because it contains a conditional curse.

[Footnote 120: Supra, i. 587.]

The [(]ahd of the Moors helps us to understand the covenant sacrifice of the ancient Semites. The only difference between them is that the former is a method of establishing a compact between men and men, whilst the latter established a compact between men and their god. The idea of a mutual transference of conditional curses undoubtedly underlies both. It should be noticed that in the Old Testament also, as among the Moors, we meet with human covenants made by the parties eating together.[121] Thus the Israelites entered into alliance with the Gibeonites by taking of their victuals, without consulting Yahve, and the meal was expressly followed by an oath.[122] In other instances, again, the common dish consisted of sacrificial food, either because the sacredness of such food was supposed to make the conditional curse embodied in it more efficacious, or because the deity was included as a third party to the covenant.

[Footnote 121: Genesis, xxvi. 30; xxxi. 46. 2 Samuel, iii. 20 sq. Robertson Smith, op. cit. p. 271. Nowack, Lehrbuch der hebräischen Archäologie, i. 359.]

[Footnote 122: Joshua, ix. 14 sq.]

Whilst in some cases the object of a sacrifice is to transfer conditional curses either to the god to whom it is made, or to both the god and the worshipper, the victim or article offered may in other instances be used as a vehicle for transferring benign virtue to him who offered it or to other persons. As we have noticed {625} above, a sacrifice is very frequently believed to be endowed with beneficial magic energy in consequence of its contact or communion with the supernatural being to which it is offered, and this energy is then supposed to have a salutary effect upon the person who comes in touch with it. I have said before that in Morocco magic virtue is ascribed to various parts of the sheep which is sacrificed at the "Great Feast," and that every offering to a holy person, especially a dead saint, is considered to participate to some extent in his sanctity.[123] The Vedic people regarded sacrificial food as a kind of medicine.[124] The Siberian Kachinzes blessed their huts with sacrificial milk.[125] The Lapps strewed the ashes of their burnt-offerings upon their heads.[125] It is quite possible that in some instances a desire to receive the benefit of the supernatural energy with which the sacrifice is endowed is by itself a sufficient motive for offering it to a god.

[Footnote 123: Supra, i. 445 sq. See also Westermarck, 'The Popular Ritual of the Great Feast in Morocco,' in Folk-Lore, xxii. 145 sqq.; Hubert and Mauss, loc. cit. p. 133.]

[Footnote 124: Oldenberg, Die Religion des Veda, p. 328 sqq.]

[Footnote 125: Georgi, op. cit. iii. 275.]

[Footnote 126: von Düben, Lappland och Lapparne, p. 258.]

As is the case with other rites, sacrifices also have a strong tendency to survive the ideas from which they sprang. Thus when the materialistic conception of the nature of gods faded away, offerings continued to be made to them, though their meaning was changed. As Sir E. B. Tylor observes, "the idea of practical acceptableness of the food or valuables presented to the deity, begins early to shade into the sentiment of

divine gratification or propitiation by a reverent offering, though in itself of not much account to so mighty a divine personage,"[127] Sacrifice then becomes mainly, or exclusively, a symbol of humility and reverence. Even in the Rig-Veda, in spite of its crude materialism, we meet with indications of the idea that the value of a sacrifice lies in the feelings of the worshipper; if unable to offer an ox or cow, the singer hopes that a small gift from the heart, a fagot, a libation, a bundle of grass, offered with reverence, {626} will be more acceptable to the god than butter or honey.[128] In Greece, though the sacrificial ritual remained unchanged till the end of paganism, we frequently come upon the advanced reflection that righteousness is the best sacrifice, that the poor man's slight offering avails more with the deity than hecatombs of oxen.[129] According to Porphyry, the gods have no need of banquets and magnificent sacrifices, but we should with the greatest alacrity make a moderate oblation to them of our own property, as "the honours which we pay to the gods should be accompanied by the same promptitude as that with which we give the first seat to worthy men."[130] It is said in the Talmud that "he who offers humility unto God and man, shall be rewarded with a reward as if he had offered all the sacrifices in the world."[131]

[Footnote 127: Tylor, Primitive Culture, ii. 394.]

[Footnote 128: Rig-Veda, viii. 19. 5. Kaegi, op. cit. p. 30.]

[Footnote 129: Farnell, Cults of the Greek States, i. 101. Schmidt, Die Ethik der alten Griechen, ii. 43. Westcott, Essays in the History of Religious Thought, p. 116.]

[Footnote 130: Porphyry, De abstinentia ab esu animalium, ii. 60.]

[Footnote 131: Deutsch, Literary Remains, p. 55.]

I have here spoken of the practice of sacrifice and the ideas on which it is based. But sacrifice has also a moral value attached to it. Though no doubt in many cases optional, it is under various circumstances regarded as a stringent duty. This is particularly the case with the offerings regularly made by the community at large on special occasions fixed by custom.

* * * * *

As supernatural beings have material needs like men, they also possess property like men, and this must not be interfered with. The Fjort of West Africa believe that the spirits of the rivers kill those who drink their waters and sometimes punish those who fish in them for greediness, by making them deaf and dumb.[132] When their chief god "played" by thundering, the Amazulu said to him who was frightened, "Why do you start, because the lord plays? What have you taken which belongs to him?"[133] The Fijians speak of a deluge {627} the cause of which was the killing of a favourite bird belonging to the god Ndengei by two mischievous lads, his grandsons.[134] In Efate, of the New Hebrides, to steal cocoanuts which are consecrated to the worship of the gods at some forthcoming festival "would be regarded as a much greater offence than common stealing."[135] So, too, the pillaging of a temple has commonly been looked upon as the worst kind of robbery.[136] Among the Hebrews any trespass upon ground which was hallowed by the localised presence of Yahveh was visited with extreme punishment.[137] In Arabia people were forbidden to cut fodder, fell trees, or hunt game within the precincts of a sacred place.[138] The Moors believe that a person would incur a very great risk indeed by cutting the branch of a tree or shooting a bird in the [h.]orm of a síyid, or dead saint. The [h.]orm is the homestead and domain of the saint, and he is the owner of everything within its borders. But the offence is not exclusively one against property, and it may be doubted whether originally any clear idea of ownership at all was connected with it. In a holy place all objects are endowed with supernatural energy, and may therefore themselves, as it were, avenge injuries committed against

them. This is true of the [h.]orm of a saint, as well as of any other sanctuary, all his belongings being considered to partake of his sanctity. But, as a matter of fact, the so-called tomb of a saint is frequently a place which was at first regarded as holy by itself, on account of its natural appearance, and was only afterwards traditionally associated with a holy person, when the need was felt of giving an anthropomorphous interpretation of its holiness.[139] According to early ideas a {628} sacred object cannot with impunity be appropriated for ordinary purposes;[140] but, on the other hand, visitors are allowed to take a handful of earth from the tomb of the saint or in certain cases to cut a small piece of wood from some tree growing in his [h.]orm, to be used as a charm.[141] It also deserves notice that the saint protects not only his own property, but any goods left in his care; hence the country Arabs of Morocco often have their granaries in the [h.]ór[)u]mat of saints.

[Footnote 132: Dennett, Folklore of the Fjort, p. 5 sq.]

[Footnote 133: Callaway, Religious System of the Amazulu, p. 57.]

[Footnote 134: Williams and Calvert, op. cit.p. 212.]

[Footnote 135: Macdonald, Oceania, p. 208.]

[Footnote 136: Schmidt, Ethik der alten Griechen, ii. 19 sq. Cicero, De legibus, ii. 9, 16; Mommsen, Römisches Strafrecht, p. 458. Wilda, Strafrecht der Germanen, p. 950; Dahn, Bausteine, ii. 106 (Teutons). Du Boys, Histoire du droit criminel des peuples modernes, ii. 605 sq. Filangieri, La scienza della legislazione, iv. 205 (laws of Christian countries).]

[Footnote 137: Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 38.]

[Footnote 138: Wellhausen, Reste arabischen Heidentums, p. 106.]

[Footnote 139: Westermarck, 'Sul culto dei santi nel Marocco,' in Actes du XII. Congrès International des Orientalistes, iii. 175. Cf. Goldziher, Muhammedanische Studien, ii. 344 sqq.]

[Footnote 140: See Robertson Smith, op. cit. lec. iv. and Additional Note B.]

[Footnote 141: Westermarck, in Actes du XII. Congrès des Orientalistes, iii. 167 sq.]

Moreover, anybody who takes refuge at a síyid is for the moment safe. The right of sanctuary is regarded as very sacred in Morocco, especially in those parts of the country where the Sultan's government has no power. To violate it is an outrage which the saint is sure to punish. I saw a madman whose insanity was attributed to the fact that he once had forcibly removed a fugitive from a saint's tomb; and of a late Grand-Vizier it is said that he was killed by two powerful saints of Dukkâla, on whose refugees he had laid violent hands. Even the descendants of the saint or his manager (m[k.]áddem) can only by persuasion and by promising to mediate between the suppliant and his pursuer induce the former to leave the place.[142] As is well known, this is not a custom restricted to Morocco. Among many peoples, at different stages of civilisation, sacred places give shelter to refugees.[143]

[Footnote 142: See Westermarck, The Moorish Conception of Holiness, p. 116 sqq.]

[Footnote 143: See Andree, 'Die Asyle,' in Globus, xxxviii. 301 sq.; Frazer, 'Origin of Totemism,' in Fortnightly Review, N. S. lxv. 650 sqq.; Hellwig, Das Asylrecht, passim; Bulmerincq, Das Asylrecht, passim. Fuld, 'Das Asylrecht im Alterthum und Mittelalter,' in Zeitschr. f. vergl. Rechtswiss. vii. p. 103 sqq.]

Among the Central Australian Arunta there is in each local totem centre a spot called ertnatulunga, in the immediate neighbourhood of which everything is sacred and must on no account be hurt. The plants growing there are never interfered with in any way; animals which come there are safe {629} from the spear of the hunter; and a man who was being pursued by others would not be touched so long as he remained at this

spot.[144] In Upolu, one of the Samoan Islands, a certain god, Vave, had his residence in an old tree, which served as an asylum for murderers and other great offenders; if that tree was reached by the criminal he was safe, and the avenger could pursue no farther, but had to wait for investigation and trial.[145] In the island of Hawaii there were two puhonuas, or cities of refuge, which afforded an inviolable sanctuary even to the vilest criminal who entered their precincts, and during war offered safe retreat to all the non-combatants of the neighbouring districts who flocked into them, as well as to the vanquished. As soon as the fugitive had entered, he repaired to the presence of the idol and made a short ejaculatory address, expressive of his obligations to him in reaching the place with security. The priests and their adherents would immediately put to death anyone who should have the temerity to follow or molest those who were once within the pale of the pahu tabu, and, as they put it, under the shade or protection of the spirit of Keave, the tutelary deity of the place. After a short period, probably not more than two or three days, the refugee was permitted to return unmolested to his home, the divine protection being supposed still to abide with him.[146] In Tahiti the morais, or holy places, likewise gave shelter to criminals of every kind.[147] At Maiva, in the South-Eastern part of New Guinea, "should a man be pursued by an enemy and take refuge in the dubu [or temple], he is perfectly safe inside. Any one smiting another inside the dubu would have his arms and legs shrivelled up, and he could do nothing but wish to die."[148]

[Footnote 144: Spencer and Gillen, Native Tribes of Central Australia, p. 133 sqq.]

[Footnote 145: Turner, Samoa, p. 64 sq.]

[Footnote 146: Ellis, Tour through Hawaii, p. 155 sqq. Jarves, History of the Hawaiian Islands, p. 28 sq.]

[Footnote 147: Turnbull, Voyage round the World, p. 366. Wilson, Missionary Voyage to the Southern Pacific Ocean, p. 351.]

[Footnote 148: Chalmers and Gill, Work and Adventure in New Guinea, p. 186.]

In many North American tribes certain sacred places or whole villages served as asylums, in which those who were pursued by the tribe or even an enemy were safe as soon as they had obtained admission.[149] Among the Acagchemem Indians, in the valley and neighbourhood of San Juan Capistrano in California, a criminal who had fled to a vanquech, or place of worship, was secure not only as long as he remained there, but {630} also after he had left the sanctuary. It was not even lawful to mention his crime, but all that the avenger could do to him was to point at him and deride him, saying, "Lo, a coward, who has been forced to flee to Chinigchinich!" This flight, however, turned the punishment from the head of the criminal upon that of some of his relatives.[150]

[Footnote 149: Adair, History of the American Indians, pp. 158, 159, 416. Bradbury, Travels in the Interior of America, p. 165 sq. (Aricaras of the Missouri). Bourke, 'Medicine-Men of the Apache,' in Ann. Rep. Bur. Ethn. ix. 453. Kohl, Kitchi-Gami, p. 271 (Chippewas).]

[Footnote 150: Bancroft, Native Races of the Pacific States, iii. 167. Boscana, in [Robinson,] Life in California, p. 262 sq.]

The South-Central African Barotse have a city of refuge. "Anyone incurring the king's wrath, or committing a crime, may find safety by fleeing to this town. The man in charge of it is expected to plead for him before the chief, and he can then return to his house in peace."[151] Among the same people the tombs of chiefs are sanctuaries or places of refuge,[152] and this is also the case among the Kafirs.[153] So, too, in the monarchical states of the Gallas homicides enjoy a legal right of asylum if they have succeeded in taking refuge in a hut near the burial-place of the king.[154] Among the

Ovambo in South-Western Africa the village of a great chief is abandoned at his death, except by the members of a certain family, who remain there to prevent it from falling into utter decay. Condemned criminals who contrive to escape to one of these deserted villages are safe, at least for a time; for not even the chief himself may pursue a fugitive into the sacred place.[155] In Congo Français there are several sanctuaries:--"The great one in the Calabar district is at Omon. Thither mothers of twins, widows, thieves, and slaves fly, and if they reach it are safe."[156] In Ashantee a slave who flies to a temple and dashes himself against the fetish cannot easily be brought back to his master.[157] Among the Negroes of Accra criminals used to "seat themselves upon the fetish," that is, place themselves under its protection; but murderers who sought refuge with the fetish were always liable to be delivered up to their pursuers.[158] A traveller in the seventeenth century tells us that in Fetu, on the Gold Coast, a criminal who deserved death was pardoned by taking refuge in the hut of the high-priest.[159] Among the Krumen of the Grain Coast the house of the high-priest (bodio) "is a sanctum to which culprits {631} may betake themselves without the danger of being removed by anyone except by the bodio himself."[160] In Usambara a murderer cannot be arrested at any of the four places where the great wizards of the country reside.[161]

[Footnote 151: Arnot, Garenganze, p. 77.]

[Footnote 152: Decle, Three Years in Savage Africa, p. 75.]

[Footnote 153: Rehme, 'Das Recht der Amaxosa,' in Zeitschr. f. vergl. Rechtswiss. x. 51.]

[Footnote 154: Paulitschke, Ethnographie Nordost-Afrikas, Die geistige Cultur der Danâkil, &c. p. 157.]

[Footnote 155: Schinz, Deutsch-Südwest-Afrika, p. 312.]

[Footnote 156: Kingsley, Travels in West Africa, p. 466.]

[Footnote 157: Bowdich, Mission to Ashantee, p. 265. Cf. Monrad, op. cit. p. 42.]

[Footnote 158: Monrad, op. cit. p. 89.]

[Footnote 159: Müller, Die Africanische Landschafft Fetu, p. 75.]

[Footnote 160: Wilson, Western Africa, p. 129.]

[Footnote 161: Krapf, Reisen in Ost-Afrika, ii. 132.]

In other Muhammedan countries besides Morocco the tombs of saints, as also the mosques, are or have been places of refuge.[162] In Persia the great number of such asylums proved so injurious to public safety, that about the middle of the nineteenth century only three mosques were left which were recognised by the government as affording protection to criminals of every description.[163] Among the Hebrews the right of asylum originally belonged to all altars,[164] but on the abolition of the local altars it was limited to certain cities of refuge.[165] According to the Old Testament manslayers could find shelter there only in the case of involuntary homicide; but this was undoubtedly a narrowing of the ancient custom. Many heathen sanctuaries of the Ph[oe]nicians and Syrians retained even in Roman times what seems to have been an unlimited right of asylum;[166] and at certain Arabian shrines the god likewise gave shelter to all fugitives without distinction, and even stray or stolen cattle that reached the holy ground could not be reclaimed by their owners.[167]

[Footnote 162: Goldziher, Muhammedanische Studien, i. 237 sq. Quatremère, 'Mémoire sur les asiles chez les Arabes,' in Mémoires de l'Institut de France, Académie des Inscriptions et Belles-Lettres, xv. pt. ii. 313 sq.]

[Footnote 163: Polak, Persien, ii. 83 sqq. Brugsch, Im Lande der Sonne, p. 246.]

[Footnote 164: Exodus, xxi. 13 sq. Cf. Robertson Smith, Religion of the Semites, p. 148, n. 1.]

[Footnote 165: Numbers, xxxv. 11 sqq. Deuteronomy, iv. 41 sqq.; xix. 2 sqq.]

[Footnote 166: Robertson Smith, op. cit. p. 148.]

[Footnote 167: Ibid. p. 148 sq.]

On the Coast of Malabar a certain temple situated to the south-east of Calicut affords protection to thieves and adulterous women belonging to the Brahmin caste, but this privilege is reckoned among the sixty-four anatcharams, or "abuses," which were introduced by Brahmanism.[168] Among the Káfirs of the Hindu-Kush there are several "cities of refuge," the largest being the village of Mergrom, which is almost entirely peopled by chiles, or descendants of persons who have slain some fellow tribesman. [169] In the Caucasus holy groves offer refuge to criminals, as also to animals, which cannot be shot there.[170]

[Footnote 168: Graul, Reise nach Ostindien, iii. 332, 335.]

[Footnote 169: Scott Robertson, Káfirs of the Hindu-Kush, p. 441.]

[Footnote 170: Hahn, Kaukasische Reisen, p. 122.]

In Greece many sanctuaries possessed the right of asylum down to the end of paganism, and any violation of this right {632} was supposed to be severely punished by the deity.[171] According to an old tradition, Romulus established a sanctuary, dedicated to some unknown god or spirit, on the slope of the Capitoline Hill, proclaiming that all who resorted to it, whether bond or free, should be safe.[172] This tradition, and also some other statements made by Latin writers,[173] seem to indicate that from ancient times certain sacred places in Rome gave shelter to refugees; but it was only in a comparatively late period of Roman history that the right of sanctuary, under Greek influence, became a recognised institution of some importance.[174] This right was expressly conferred upon the temple which in the year 42 B.C. was built in honour of Cæsar;[175] and other imperial temples, as also the statues of emperors, laid claim to the same privilege.[176] When Christianity became the religion of the State a similar claim was made by the churches; but a legal right of asylum was only granted to them by Honorius in the West and Theodosius in the East.[177] Subsequently it was restricted by Justinian, who decreed that all manslayers, adulterers, and kidnappers of women who fled to a church should be taken out of it.[178]

[Footnote 171: Tacitus, Annales, iii. 60 sqq. Farnell, op. cit. i. 73. Westcott, op. cit. p. 115. Schmidt, Die Ethik der alten Griechen, ii. 285. Bulmerincq, op. cit. p. 35 sqq. Fuld, loc. cit. p. 118 sqq.]

[Footnote 172: Dionysius of Halicarnassus, Antiquitates Romanæ, ii. 15. Livy, i. 8. 5 sq. Plutarch, Romulus, ix. 5. Strabo, v. 3. 2, p. 230.]

[Footnote 173: Valerius Maximus, Facta dictaque memorabilia, viii. 9. 1. Dionysius of Halicarnassus, Antiquitates Romanæ, vi. 45. Cicero, De lege agraria oratio secunda, 14 (36). See also Hartung, Die Religion der Römer, ii. 58 sq.]

[Footnote 174: See Tacitus, Annales, iii. 36; Plautus, Rudens, 723; Dio Cassius, Historia Romana, xlvii. 19; Bulmerincq, op. cit. p. 58 sqq.; Mommsen, Römisches Strafrecht, p. 458 sq.]

[Footnote 175: Dio Cassius, xlvii. 19.]

[Footnote 176: Tacitus, Annales, iv. 67. Suetonius, Tiberius, 53. Mommsen, op. cit. p. 460.]

[Footnote 177: Mommsen, op. cit. p. 461 sq.]

[Footnote 178: Novellæ, xvii. 7.]

The right of sanctuary existed among the pagan Slavs, or some of them,[179] and probably also among the ancient Teutons.[180] After their conversion to Christianity the privilege of asylum within the church was recognised in most of their codes. In

the Middle Ages and later, persons who fled to a church or to certain boundaries surrounding it were, for a time at least, safe from all persecution, it being considered treason against God, an offence beyond compensation, to force even the most flagrant criminal from His altar. The ordinary of the sacred place, or {633} his official, was the only one who could try to induce him to leave it, but if he failed, the utmost that could be done was to deny the refugee victuals so that he might go forth voluntarily.[181] In the 'Lex Baiuwariorum' it is asserted in the strongest terms that there is no crime which may not be pardoned from the fear of God and reverence for the saints.[182] But the right of sanctuary was gradually subjected to various restrictions both by secular legislation and by the Church.[183] Innocentius III. enjoined that refuge should not be given to a highway robber or to anybody who devastated cultivated fields at night;[184] and according to Beaumanoir's 'Coutumes du Beauvoisis,' dating from the thirteenth century, it was also denied to persons guilty of sacrilege or arson.[185] The Parliament of Scotland enacted that whoever took the protection of the Church for homicide should be required to come out and undergo an assize, that it might be found whether it was committed of "forethought felony" or in "chaudemelle"; and only in the latter case was he to be restored to the sanctuary, the sheriff being directed to give him security to that effect before requiring him to leave it.[186] In England, in the reign of Henry VIII., there were certain places which were allowed to be "places of tuition and privilege," in addition to churches and their precincts. They were in fact cities of permanent refuge for persons who should, according to ancient usage, have abjured the realm, after they had fled in the ordinary way to a church. There was a governor in each of these privileged places, charged with the duty of mustering every day his men, who were not to exceed twenty in each town and who had to wear a badge whenever they appeared out of doors. But when these regulations were made, the protection of sanctuary was taken away from persons guilty of murder, rape, burglary, highway robbery, or arson. The law of sanctuary was then left unchanged till the reign of James I., when, in theory, the privilege in question was altogether denied to criminals.[187] Yet {634} as a matter of fact, asylums continued to exist in England so late as the reign of George I., when that of St. Peter's at Westminster was demolished.[188] In the legislation of Sweden the last reference to the privilege of sanctuary is found in an enactment of 1528.[189] In France it was abolished by an ordonnance of 1539.[190] In Spain it existed even in the nineteenth century.[191] Not long ago the most important churches in Abyssinia,[192] the monastery of Affaf Woira in the same country,[193] and the quarter in Gondar where the head of the Abyssinian clergy has his residence,[194] were reported to be asylums for criminals. And the same is the case with the old Christian churches among the Suanetians of the Caucasus.[195]

[Footnote 179: Helmold, Chronik der Slaven, i. 83, p. 170.]

[Footnote 180: Wilda, Das Strafrecht der Germanen, p. 248 sq. Stemann, Den danske Retshistorie indtil Christian V.'s Lov, p. 578. Brunner, Deutsche Rechtsgeschichte, ii. 610. Fuld, loc. cit. p. 138 sq. Frauenstädt, Blutrache und Todtschlagsühne im Deutschen Mittelalter, p. 51.]

[Footnote 181: Milman, History of Latin Christianity, ii. 59. Bulmerincq, op. cit. p. 73 sqq. Fuld, loc. cit. p. 136 sqq. Bracton, De legibus et consuetudinibus Angliæ, fol. 136 b, vol. ii. 392 sq. Réville, 'L'abjuratio regni,' in Revue historique, l. 14 sqq. Pollock and Maitland, History of English Law before the Time of Edward I. ii. 590 sq. Innes, Scotland in the Middle Ages, p. 195 sq.]

[Footnote 182: Lex Baiuwariorum, i. 7.]

[Footnote 183: Brunner, op. cit. ii. 611 sq. Bulmerincq, op. cit. p. 91 sqq. Fuld, loc. cit. p. 140 sq.]

[Footnote 184: Gregory IX. Decretales, iii. 49. 6.]

[Footnote 185: Beaumanoir, Coutumes du Beauvoisis, xi. 15 sqq., vol. i. 164 sq.]

[Footnote 186: Innes, op. cit. p. 198.]

[Footnote 187: Pike, History of Crime in England, ii. 253. Blackstone, Commentaries on the Laws of England, iv. 347, n. a.]

[Footnote 188: Jusserand, English Wayfaring Life in the Middle Ages, p. 166.]

[Footnote 189: Nordström, Bidrag till den svenska samhälls-författningens historia, ii. 405.]

[Footnote 190: Du Boys, Histoire du droit criminel des peuples modernes, ii. 246.]

[Footnote 191: Idem, Histoire du droit criminel de l'Espagne, p. 227 sq.]

[Footnote 192: Hellwig, op. cit. p. 52.]

[Footnote 193: Harris, Highlands of Æthiopia, ii. 93.]

[Footnote 194: Rüppell, Reise in Abyssinien, ii. 74, 81. von Heuglin, Reise nach Abessinien, p. 213.]

[Footnote 195: von Haxthausen, Transcaucasia, p. 160, n. *]

The right of sanctuary has been ascribed to various causes. Obviously erroneous is the suggestion that places of refuge were established with a view to protecting unintentional offenders from punishment or revenge.[196] The restriction of the privilege of sanctuary to cases of accidental injuries is not at all general, and where it occurs it is undoubtedly an innovation due to moral or social considerations. Very frequently this privilege has been attributed to a desire to give time for the first heat of resentment to pass over before the injured party could seek redress.[197] But although I admit that such a desire may have helped to preserve the right of asylum where it has once come into existence, I do not believe that it could account for the origin of this right. We should remember that the privilege of sanctuary not only affords {635} temporary protection to the refugee, but in many cases altogether exempts him from punishment or retaliation, and that shelter is given even to animals which have fled to a sacred place. And, if the theory referred to were correct, how could we explain the fact that the right of asylum is particularly attached to sanctuaries?

[Footnote 196: Hegel, Grundlinien der Philosophie des Rechts, § 117, p. 108. Powell, 'Outlines of Sociology,' in Saturday Lectures, p. 82.]

[Footnote 197: Meiners, Geschichte der Menschheit, p. 189. Nordström, op. cit. ii. 401. Pardessus, Loi Salique, p. 656. Bulmerincq, op. cit. pp. 34, 47. Fuld, loc. cit. pp. 102, 118, 119, 294 sqq. Kohler, Shakespeare vor dem Forum der Jurisprudenz, p. 185. Quatremère, loc. cit. p. 314. Mr. Mallery (Israelite and Indian, p. 33 sq.), also, thinks that the original object of the right of sanctuary was to restrict vengeance and maintain peace, and that this right only subsequently appeared as a prerogative of religion.]

It has been said that the right of sanctuary bears testimony to the power of certain places to transmit their virtues to those who entered them.[198] But we have no evidence that the fugitive is supposed to partake of the sanctity of the place which shelters him. In Morocco persons who are permanently attached to mosques or the shrines of saints are generally regarded as more or less holy, but this is never the case with casual visitors or suppliants; hence it is hardly for fear of the refugee that his pursuer refrains from laying hands on him. Professor Robertson Smith has stated part of the truth in saying that "the assertion of a man's undoubted rights as against a fugitive at the sanctuary is regarded as an encroachment on its holiness."[199] There is an almost instinctive fear not only of shedding blood,[200] but of disturbing the peace in a holy

place; and if it is improper to commit any act of violence in the house of another man, [201] it is naturally considered equally offensive, and also infinitely more dangerous, to do so in the homestead of a supernatural being. In the Tonga Islands, for instance, "it is forbidden {636} to quarrel or fight upon consecrated ground."[202] But this is only one aspect of the matter; another, equally important, still calls for an explanation. Why should the gods or saints themselves be so anxious to protect criminals who have sought refuge in their sanctuaries? Why do they not deliver them up to justice through their earthly representatives?

[Footnote 198: Granger, Worship of the Romans, p. 223 sq.]

[Footnote 199: Robertson Smith, Religion of the Semites, p. 148.]

[Footnote 200: Supra, i. 380.]

[Footnote 201: Among the Barea and Kunáma in Eastern Africa a murderer who finds time to flee into another person's house cannot be seized, and it is considered a point of honour for the community to help him to escape abroad (Munzinger, Ostafrikanische Studien, p. 503). In the Pelew Islands "no enemy may be killed in a house, especially in the presence of the host" (Kubary, 'Die Palau-Inseln in der Südsee,' in Jour. d. Museum Godeffroy, iv. 25). In Europe the privilege of asylum went hand in hand with the sanctity of the homestead (Wilda, op. cit. pp. 242, 243, 538, 543; Nordström, op. cit. ii. 435; Fuld, loc. cit. p. 152; Frauenstädt, op. cit. p. 63 sqq.); and the breach of a man's peace was proportionate to his rank. Whilst every man was entitled to peace in his own house, the great man's peace was of more importance than the common man's, the king's peace of more importance than the baron's, and in the spiritual order the peace of the Church commanded yet greater reverence (Pollock, 'The King's Peace,' in Law Quarterly Review, i. 40 sq.).]

[Footnote 202: Mariner, Natives of the Tonga Islands, ii. 232. Cf. ibid. i. 227.]

The answer lies in certain ideas which refer to human as well as divine protectors of refugees. The god or saint is in exactly the same position as a man to whose house a person has fled for shelter. Among various peoples the domicile of the chief or king is an asylum for criminals;[203] nobody dares to attack a man who is sheltered by so mighty a personage, and from what has been said above, in connection with the rules of hospitality, it is also evident why the chief or king feels himself compelled to protect him. By being in close contact with his host, the suppliant is able to transfer to him a dangerous curse. Sometimes a criminal can in a similar way be a danger to the king even from a distance, or by meeting him, and must in consequence be pardoned. In Madagascar an offender escaped punishment if he could obtain sight of the sovereign, whether before or after conviction; hence criminals at work on the highroad were ordered to withdraw when the sovereign was known to be coming by.[204] Among the Bambaras "une fois la sentence prononcée, si le condamné parvient à cracher sur un {637} prince, non-seulement sa personne est sacrée, mais elle est nourrie, logée, etc., par le grand seigneur qui a eu l'imprudence de se tenir à portée de cet étrange projectile."[205] In Usambara even a murderer is safe as soon as he has touched the person of the king.[206] Among the Marutse and neighbouring tribes a person who is accused of any crime receives pardon if he lays a cupa--the fossilised base of a conical shell, which is the most highly valued of all their instruments--at the feet of his chief; and a miscreant likewise escapes punishment if he reaches and throws himself on the king's drums.[207] On the Slave Coast "criminals who are doomed to death are always gagged, because if a man should speak to the king he must be pardoned."[208] In Ashantee, if an offender should succeed in swearing on the king's life, he must be pardoned, because such an oath is believed to involve danger to the king; hence knives are driven through the cheeks from opposite

sides, over the tongue, to prevent him from speaking.[209] So also among the Romans, according to an old Jewish writer, a person condemned to death was gagged to prevent him from cursing the king.[210] Fear of the curses pronounced by a dissatisfied refugee likewise, in all probability, underlay certain other customs which prevailed in Rome. A servant or slave who came and fell down at the feet of Jupiter's high-priest, taking hold of his knees, was for that day freed from the whip; and if a prisoner with irons and bolts at his feet succeeded in approaching the high-priest in his house, he was let loose and his fetters were thrown into the road, not through the door, but from the roof. [211] Moreover, if a criminal who had been sentenced to death accidentally met a Vestal virgin on his way to the place of execution, his {638} life was saved.[212] So sensitive to imprecations were both Jupiter's high-priest and the priestesses of Vesta, that the Praetor was never allowed to compel them to take an oath.[213] Now, as a refugee may by his curse force a king or a priest or any other man with whom he establishes some kind of contact to protect him, so he may in a similar manner constrain a god or saint as soon as he has entered his sanctuary. According to the Moorish expression he is then in the [(]âr of the saint, and the saint is bound to protect him, just as a host is bound to protect his guest. It is not only men that have to fear the curses of dissatisfied refugees. Let us once more remember the words which Aeschylus puts into the mouth of Apollo, when he declares his intention to assist his suppliant, Orestes:--"Terrible both among men and gods is the wrath of a refugee, when one abandons him with intent."[214]

[Footnote 203: Harmon, Voyages and Travels in the Interior of North America, p. 297 (Tacullies). Lewin, Hill Tracts of Chittagong, p. 100 (Kukis). Junghuhn, Die Battaländer auf Sumatra, (Macassars and Bugis of Celebes). Tromp, 'Uit de Salasila van Koetei,' in Bijdragen tot de taal- land- en volkenkunde van Nederlandsch-Indië, xxxvii. 84 (natives of Koetei, a district of Borneo). Jung, quoted by Kohler, 'Recht der Marschallinsulaner,' in Zeitschr. f. vergl. Rechtswiss. xiv. 447 (natives of Nauru in the Marshall Group). Turner, Nineteen Years in Polynesia, p. 334 (Samoans). Rautanen, in Steinmetz, Rechtsverhältnisse, p. 342 (Ondonga). Schinz, op. cit. p. 312 (Ovambo). Rehme, 'Das Recht der Amaxosa,' in Zeitschr. f. vergl. Rechtswiss. x. 50. Merker, quoted by Kohler, 'Banturecht in Ostafrika,' ibid. xv. 55 (Wadshagga). Merker, Die Masai, p. 206. Among the Barotse the residences of the Queen and the Prime Minister are places of refuge (Decle, op. cit. p. 75).]

[Footnote 204: Ellis, History of Madagascar, i. 376.]

[Footnote 205: Raffenel, Nouveau voyage dans le pays des nègres, i. 385.]

[Footnote 206: Krapf, Reisen in Ost-Afrika, ii. 132, n. * See also Schinz, op. cit. p. 312 (Ovambo).]

[Footnote 207: Gibbons, Exploration in Central Africa, p. 129. I am indebted to Mr. N. W. Thomas for drawing my attention to this statement.]

[Footnote 208: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 224.]

[Footnote 209: Ibid. p. 224.]

[Footnote 210: Quoted by Levias, 'Cursing,' in Jewish Encyclopedia, iv. 390.]

[Footnote 211: Plutarch, Questiones Romanæ, 111. Aulus Gellius, Noctes Atticæ, x. 15. 8, 10.]

[Footnote 212: Plutarch, Numa, x. 5.]

[Footnote 213: Aulus Gellius, op. cit. x. 15. 31.]

[Footnote 214: Aeschylus, Eumenides, 232 sqq.]

Chapter XLIX

DUTIES TO GODS (concluded)

SUPERNATURAL beings are widely believed to have a feeling of their worth and dignity. They are sensitive to insults and disrespect, they demand submissiveness and homage.

"The gods of the Gold Coast," says Major Ellis, "are jealous gods, jealous of their dignity, jealous of the adulation and offerings paid to them; and there is nothing they resent so much as any slight, whether intentional or accidental, which may be offered them. . . . There is nothing that offends them so deeply as to ignore them, or question their power, or laugh at them."[1] The wrath of Yahveh burst forth with vehemence whenever his honour or sanctity was in the least violated, however unintentionally.[2] Many peoples consider it insulting and dangerous merely to point at one of the celestial bodies;[3] and among the North American Indians it is a widespread belief that, if anybody points at the rainbow, the finger will wither or become misshapen.[4]

[Footnote 1: Ellis, Tshi-speaking Peoples of the Gold Coast, p. 11.]

[Footnote 2: Cf. Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, pp. 38, 102.]

[Footnote 3: Liebrecht, Zur Volkskunde, p. 341, Dorman, Origin of Primitive Superstitions, p. 344 (Chippewas). Wuttke, Der deutsche Volksaberglaube der Gegenwart, § 11, p. 13 sq.]

[Footnote 4: Mooney, 'Myths of the Cherokee,' in Ann. Rep. Bur. Ethn. xix. 257, 442.]

Nor is it to supernatural danger only that a person exposes himself by irreverence to a god, but in many cases he is also punished by his fellow men. On the Slave Coast insults to a god "are always resented and punished by the {640} priests and worshippers of that god, it being their duty to guard his honour."[5] Among the ancient Peruvians[6] and Hebrews,[7] as also among Christian nations up to comparatively recent times, blasphemy was a capital offence. In England, in the reign of Henry VIII., a boy of fifteen was burned because he had spoken, much after the fashion of a parrot, some idle words affecting the sacrament of the altar, which he had chanced to hear but of which he could not have understood the meaning.[8] According to Muhammedan law a person guilty of blasphemy is to be put to death without delay, even though he profess himself repentant, as adequate repentance for such a sin is deemed impossible.[9] These and similar laws are rooted in the idea that the god is personally offended by the insult. It was the Lord himself who made the law that he who blasphemed His name should be stoned to death by all the congregation.[10] "Blasphemy," says Thomas Aquinas, "as being an offence directly against God, outweighs murder, which is an offence against our neighbour . . . . The blasphemer intends to wound the honour of God."[11] That blasphemy is, or should be, punished not as a sin against the deity but as an offence against the religious feelings of men, is an idea of quite modern origin.

[Footnote 5: Ellis, E[(w]e-speaking Peoples of the Slave Coast, p. 81.]

[Footnote 6: Prescott, History of the Conquest of Peru, i. 42.]

[Footnote 7: Leviticus, xxiv. 14 sqq.]

[Footnote 8: Pike, History of Crime in England, ii. 56.]

[Footnote 9: Lane, Manners and Customs of the Modern Egyptians, p. 123.]

[Footnote 10: Leviticus, xxiv. 16.]

[Footnote 11: Thomas Aquinas, Summa theologica, ii.-ii. 13. 3. 1.]

In many cases it is considered offensive to a supernatural being merely to mention his name. Sometimes the name is tabooed on certain occasions only or in ordinary conversation, sometimes it is not to be pronounced at all.

In Morocco the jnûn (jinn) must not be referred to by name in the afternoon and evening after the [(]â[s.]ar. If speaking of them at all, the people then make use of some circumlocution; the Berbers of Southern Morocco call them w[=i]d-iá[d.]nin, "those others," or w[=i]d-ur[d.]-h[)e]r'nin, "those unseen," or w[=i]d-tntl-tísnt, "those who shun salt." The Greenlanders dare not pronounce the name of a glacier {641} as they row past it, for fear lest it should be offended and throw off an iceberg.[12] Some North American Indians believe that if, when travelling, they mention the names of rocks or islands or rivers, they will have much rain or be wrecked or be devoured by some monster in the river.[13] The Omahas, again, "are very careful not to use names which they regard as sacred on ordinary occasions; and no one dares to sing sacred songs except the chiefs and old men at the proper times."[14] Some other Indians considered it a profanation to mention the name of their highest divinity.[15] Among certain Australian natives the elders of the tribe impart to the youth, on his initiation, the name of the god Tharam[=u]l[)u]n; but there is such a disinclination to pronounce his name that, in speaking of him, they generally use elliptical expressions, such as "He," "the man," or "the name I told you of," and the women only know him by the name of Papang (father).[16] The Marutse and allied tribes along the Zambesi shrink from mentioning the real name of their chief god Nyambe and therefore substitute for it the word molemo, which has a very comprehensive meaning, denoting, besides God, all kinds of good and evil spirits, medicines, poisons, and amulets.[17] According to Cicero, there was a god, a son of Nilus, whose name the Egyptians considered it a crime to pronounce;[18] and Herodotus is unwilling to mention the name of Osiris on two occasions when he is speaking of him.[19] The divine name of Indra was secret, the real name of Agni was unknown.[20] The gods of Brahmanism have mystic names, which nobody dares to speak.[21] The real name of Confucius is so sacred that it is a statutable offence in China to {642} pronounce it; and the name of the supreme god of the Chinese is equally tabooed. "Tien," they say, "means properly only the material heaven, but it also means Shang-Te (supreme ruler, God); for, as it is not lawful to use his name lightly, we name him by his residence, which is in tien."[22] The "great name" of Allah is a secret name, known only to prophets, and possibly to some great saints.[23] Yahveh said, "Thou shalt not take the name of the Lord thy God in vain; for the Lord will not hold him guiltless that taketh his name in vain";[24] and orthodox Jews avoid mentioning the word Yahveh altogether.[25] Among Christian nations, as Professor Nyrop observes, there is a common disinclination to use the word "God" or its equivalents in everyday speech. The English say good instead of God ("good gracious," "my goodness," "thank goodness"); the Germans, Potz instead of Gotts ("Potz Welt," "Potz Wetter," "Potz Blitz"); the French, bleu instead of Dieu ("corbleu," "morbleu," "sambleu"); the Spaniards, brios or diez instead of Dios ("voto á brios," "juro á brios," "par diez").[26]

[Footnote 12: Nansen, Eskimo Life, p. 233.]

[Footnote 13: Nyrop, 'Navnets magt,' in Mindre Afhandlinger udgivne af det philologisk-historiske Samfund, 1887, p. 28.]

[Footnote 14: Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 370.]

[Footnote 15: Adair, History of the American Indians, p. 54.]

[Footnote 16: Howitt, 'Some Australian Beliefs,' in Jour. Anthr. Inst. xiii. 192. See also Idem, Native Tribes of South-East Australia, pp. 489, 495.]

[Footnote 17: Holub, Seven Years in South Africa, ii. 301.]

[Footnote 18: Cicero, De natura deorum, iii. 22 (56).]

[Footnote 19: Herodotus, ii. 132, 171.]

[Footnote 20: Hopkins, Religions of India, pp. 93, 111.]

[Footnote 21: Ibid. p. 184.]

[Footnote 22: Friend, 'Euphemism and Tabu in China,' in Folk-Lore Record, iv. 76. Cf. Edkins, Religion in China, p. 72.]

[Footnote 23: Sell, Faith of Islám, p. 185. Lane, Modern Egyptians, p. 273.]

[Footnote 24: Exodus, xx. 7.]

[Footnote 25: Herzog-Plitt, Real-Encyklopädie für protestantische Theologie, vi. 501 sq.]

[Footnote 26: Nyrop, loc. cit. p. 155 sqq.]

These taboos have sprung from fear. There is, first, something uncanny in mentioning the name of a supernatural being, even apart from any definite ideas connected with the act. But to do so is also supposed to summon him or to attract his attention, and this may be considered dangerous, especially if he is looked upon as malevolent or irritable, as is generally the case with the Moorish jnûn. The uncanny feeling or the notion of danger readily leads to the belief that the supernatural being feels offended if his name is pronounced; we have noticed a similar association of thought in connection with the names of the dead. But a god may also have good reason for wishing that his name should not be used lightly or taken in vain. According {643} to primitive ideas a person's name is a part of his personality, hence the holiness of a god may be polluted by his name being mentioned in profane conversation. Moreover, it may be of great importance for him to prevent his name from being divulged, as magic may be wrought on a person through his name just as easily as through any part of his body. In early civilisation there is a common tendency to keep the real name of a human individual secret so that sorcerers may not make an evil use of it;[27] and it is similarly believed that gods must conceal their true names lest other gods or men should be able to conjure with them.[28] The great Egyptian god Râ declared that the name which his father and mother had given him remained hidden in his body since his birth, so that no magician might have magic power over him.[29] The list of divine names possessed by the Roman pontiffs in their indigitamenta was a magical instrument which laid at their mercy all the forces of the spirit world;[30] and we are told that the Romans kept the name of their tutelary god secret in order to prevent their enemies from drawing him away by pronouncing it.[31] There is a Muhammedan tradition that whosoever calls upon Allah by his "great name" will obtain all his desires, being able merely by mentioning it to raise the dead to life, to kill the living, in fact to perform any miracle he pleases.[32]

[Footnote 27: Tylor, Early History of Mankind, p. 139 sqq. Andree, Ethnographische Parallelen, p. 179 sqq. Frazer, Golden Bough, i. 403 sqq. Clodd, Tom Tit Tot, pp. 53-55, 81 sqq. Haddon, Magic and Fetishism, p. 22 sq.]

[Footnote 28: Tylor, op. cit. p. 124 sq. Frazer, op. cit. i. 443. Clodd, op. cit. p. 173. Haddon, op. cit. p. 23 sqq.]

[Footnote 29: Frazer, op. cit. i. 444.]

[Footnote 30: Granger, Worship of the Romans, pp. 212, 277. Cf. Jevons, in Plutarch's Romane Questions, p. lvii.]

[Footnote 31: Plutarch, Questiones Romanæ, 61. Pliny, Historia naturalis, xxviii. 4. Macrobius, Saturnalia, iii. 9.]

[Footnote 32: Sell, op. cit. p. 185. Lane, Modern Egyptians, p. 273.]

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One of the greatest insults which can be offered a god is to deny his existence. Plutarch was astonished at people's saying that atheism is impiety, while at the same time they attribute to gods all kinds of less creditable qualities. "I for my part," he adds, "would much rather have men to say of me that there never was a {644} Plutarch, at all, nor is now, than to say that Plutarch is a man inconstant, fickle, easily moved to anger, revengeful for trifling provocations, vexed at small things."[33] But Plutarch seems to have forgotten that a person is always most sensitive on his weak points, and that the weakest point in a god is his existence. Religious intolerance is in a large measure the result of that feeling of uncertainty which can hardly be eradicated even by the strongest will to believe. It is a means of self-persuasion in a case where such persuasion is sorely needed. Moreover, a god who is not believed to exist can be no object of worship, and to be worshipped is commonly held to be the chief ambition of a god. But atheism is a sin of civilisation. Uncultured people are ready to believe that all supernatural beings they hear of also exist.

[Footnote 33: Plutarch, De superstitione, 10.]

Some gods are extremely ungenerous towards all those who do not recognise them, and only them, as their gods. To believe in Ahura Mazda was the first duty which Zoroastrianism required of a man; it was Angra Mainyu, the evil spirit, that had countercreated the sin of unbelief.[34] Doubt destroyed even the effects of good actions; [35] indeed, only the true believer was to be regarded as a man.[36] The faithful were summoned to a war to the death against the opposing spirits, the Daevas, and their followers.[37] And to judge from ancient writers, the Persians, when they came into contact with nations of another religion, also carried into practice the intolerant spirit of their own.[38] Yahveh said:--"Thou shalt have no other gods before me. . . . Thou shalt not bow down thyself to them, nor serve them: for I the Lord thy God am a jealous God."[39] In the pre-prophetic period the existence of other gods was recognised,[40] but they were not {645} to be worshipped by Yahveh's people. Nor was any mercy to be shown to their followers, for Yahveh was "a man of war."[41] The God of Christianity inherited his jealousy. In the name of Christ wars were waged, not, it is true, for the purpose of exterminating unbelievers, but with a view to converting them to a faith which alone could save their souls from eternal perdition. So far as the aim of the persecution is concerned we can thus notice a distinct progress in humanity. But whilst the punishment which Yahveh inflicted upon the devotees of other gods was merely temporal and restricted to a comparatively small number of people--he took notice of such foreign nations only which came within his sphere of interests,--Christianity was a proselytising religion on a large scale, anxious to save but equally ready to condemn to everlasting torments all those who refused to accept it, nay even the milliards of men who had never heard of it. In this point Christianity was even more intolerant than the Koran itself, which does not absolutely confine salvation to the believers in Allah and his Prophet, but leaves some hope of it to Jews, Christians, and Sabæans, though all other infidels are hopelessly lost.[42]

[Footnote 34: Vendîdâd, i. 8. 16.]

[Footnote 35: Darmesteter, Ormazd et Ahriman, p. 330, n. 4.]

[Footnote 36: Dînâ-î Maînôg-î Khirad, xlii. 6 sqq.]

[Footnote 37: See Darmesteter, in Sacred Books of the East, iv. p. lii.; Spiegel, Erânische Alterthumskunde, iii. 692.]

[Footnote 38: Spiegel, op. cit. iii. 708.]

[Footnote 39: Exodus, xx. 3, 5.]

[Footnote 40: Kuenen, Hibbert Lectures on National Religions and Universal Religions, p. 119. Baudissin, Studien zur semitischen Religionsgeschichte, i. 49 sqq.]

[Footnote 41: Exodus, xv. 3.]

[Footnote 42: Koran, v. 73.]

That Muhammedanism has in course of time become the most fanatical of existing religions is due to political rather than religious causes. For a thousand years the Christian and Muhammedan world were engaged in a deadly contest, in which the former came off victorious. Most nations confessing Islam have either lost their independence or are on the verge of losing it. The memory of past defeats and cruelties, the present state of subjection or national weakness, the fear of the future--are all factors which must be taken into account when we judge of Moslem fanaticism. In its younger days Islam was undoubtedly, not only in theory but in practice, less intolerant than its great rival, Christian subjects of Muhammedan rulers being on the whole treated with {646} consideration.[43] Earlier travellers in Arabia also speak favourably of the tolerance of its inhabitants. Niebuhr was able to write:--"I never saw that the Arabs have any hatred for those of a different religion. They, however, regard them with much the same contempt with which Christians look upon the Jews in Europe . . . . The Mahometans in India appear to be even more tolerant than those of Arabia . . . . The Mussulmans in general do not persecute men of other religions, when they have nothing to fear from them, unless in the case of an intercourse of gallantry with a Mahometan woman."[44] In China the Muhammedans live amicably with the infidel, regarding their Buddhist neighbours "with a kindly feeling which it would be hard to find in a mixed community of Catholics and Evangelicals."[45] Muhammedanism looks upon the founder of Christianity with profound reverence, as one of the apostles of God, as the only man without sin. Christian writers, on the other hand, till the middle of the eighteenth century universally treated Muhammed as a false prophet and rank impostor. Luther called him "a devil, and a first-born child of Satan," whilst Melanchthon was inclined to see in him both Gog and Magog.[46]

[Footnote 43: See von Kremer, Culturgeschichte des Orients, ii. 166 sq.]

[Footnote 44: Niebuhr, Travels through Arabia, ii. 192, 189 sq. Cf. d'Arvieux, Travels in Arabia the Desart, p. 123; Wallin, Notes taken during a Journey through Northern Arabia, p. 21.]

[Footnote 45: Lane-Poole, Studies in a Mosque, p. 298 sq.]

[Footnote 46: [Deutsch,] 'Islam,' in Quarterly Review, cxxvii. 295 sq. Bosworth Smith, Mohammed and Mohammedanism, pp. 67, 69. Pool, Studies in Mohammedanism, p. 406.]

Equal in enormity with the sin of not believing in a certain god is sometimes the sin of having a false belief about him. It seems strange that a god should be so easily offended as to punish with the utmost severity those who hold erroneous notions regarding some attribute of his which in no way affects his honour or glory, or regarding some detail of ritual. Thomas Aquinas himself admits that the heretic intends to take the word of Christ, although he fails "in the election of articles whereon to take that word." But it is in this election that his sin consists. {647} Instead of choosing those articles which are truly taught by Christ, he chooses those which his own mind suggests to him. Thus he perverts the doctrines of Christ, and in consequence deserves not only to be separated from the Church by excommunication, but to be banished from the world by death.[47] Moreover, the heretic is an apostate, a traitor who may be forced to pay the vow which he has once taken.[48] The extreme rigour of this sophistical argumentation can only be understood in connection with its historical surroundings. It presupposes

a Church which not only regards itself as the sole possessor of divine truth, but whose cohesion and power depend upon a strict adherence to its doctrines.[49] Nor was it a religious motive only that induced Christian sovereigns to persecute heretics. Certain heresies, as Manichæism and Donatism, were expressly declared to affect the common welfare;[50] and the Frankish kings treated heretics not only as rebels against the Church, but as traitors to the State, as confederates of hostile Visigoths or Burgundians or Lombards.[51]

[Footnote 47: Thomas Aquinas, op. cit. ii.-ii. 11. 1, 3.]

[Footnote 48: Ibid. ii.-ii. 10. 8.]

[Footnote 49: Cf. Ritchie, Natural Rights, p. 183.]

[Footnote 50: Milman, History of Latin Christianity, ii. 33.]

[Footnote 51: Ibid. ii. 61.]

Whilst intolerance is a characteristic of all monotheistic religions which attribute human passions and emotions to their godhead, polytheism is by nature tolerant. A god who is always used to share with other gods the worship of his believers cannot be a very jealous god. The pious Hennepin was struck by the fact that Red Indians were "incapable of taking away any person's life out of hatred to his religion."[52] Among the natives of the African Gold and Slave Coasts, though a man must show outward respect for the gods so as not to provoke calamities, he may worship many gods or none, just as he pleases. "There is perfect liberty of thought in matters of religion. . . . At this stage, man tolerates any form of religion that tolerates others; and as he thinks it perfectly {648} natural that different people should worship different gods, he does not attempt to force his own personal opinions upon anyone, or to establish conformity of ideas."[53] On the Slave Coast even a sacrilege committed by a European is usually regarded with indifference, as the gods of a country are supposed to be concerned about the actions of the people of that country only.[54] "The characteristics of Natural Religion," says Sir Alfred Lyall, "the conditions of its existence as we see it in India, are complete liberty and material tolerance; there is no monopoly either of divine powers or even of sacerdotal privilege."[55] In China the hatred of foreigners has not its root in religion. The Catholics residing there were left undisturbed until they began to meddle with the civil and social institutions of the country;[56] and the difficulty in persuading the Chinese to embrace Christianity is said by a missionary to be due to their notion that one religion is as good as another provided that it has a good moral code.[57] Among the early Greeks and Romans it was a principle that the religion of the State should be the religion of the people, as its welfare was supposed to depend upon a strict observance of the established cult; but the gods cared for external worship rather than for the beliefs of their worshippers, and evidently took little notice even of expressed opinions. Philosophers openly despised the very rites which they both defended and practised; and religion was more a pretext than a real motive for the persecutions of men like Anaxagoras, Protagoras, Socrates, and Aristotle.[58] So also the measures by which the Romans in earlier times repressed the introduction of new religions were largely suggested by worldly considerations; "they grew out of that intense national spirit which sacrificed every {649} other interest to the State, and resisted every form of innovation, whether secular or religious, that could impair the unity of the national type, and dissolve the discipline which the predominance of the military spirit and the stern government of the Republic had formed."[59] It has also been sufficiently proved that the persecutions of the Christians during the pagan Empire sprang from motives quite different from religious intolerance. Liberty of worship was a general principle of the Imperial rule. That it was denied the Christians was due to their own aggressive-

ness, as also to political suspicion. They grossly insulted the pagan cult, denouncing it as the worship of demons, and every calamity which fell upon the Empire was in consequence regarded by the populace as the righteous vengeance of the offended gods. Their proselytism disturbed the peace of families and towns. Their secret meetings aroused suspicion of political danger; and this suspicion was increased by the doctrines they professed. They considered the Roman Empire a manifestation of Antichrist, they looked forward with longing to its destruction, and many of them refused to take part in its defence. The greatest and best among the pagans spoke of the Christians as "enemies," or "haters of the human race."[60]

[Footnote 52: Hennepin, New Discovery of a Vast Country in America, ii. 70.]

[Footnote 53: Ellis, Yoruba-speaking Peoples of the Slave Coast, p. 295. See also Idem, E[(w]e-speaking Peoples of the Slave Coast, p. 81; Monrad, Skildring af Guinea-Kysten, p. 28; Kubary, 'Die Verbrechen und das Strafverfahren auf den Pelau-Inseln,' in Original-Mittheil. aus d. ethnol. Abtheil. d. königl. Museen zu Berlin, i. 90.]

[Footnote 54: Ellis, E[(w]e-speaking Peoples, p. 81.]

[Footnote 55: Lyall, Natural Religion in India, p. 52.]

[Footnote 56: Davis, China, ii. 7. Cf. Edkins, op. cit. p. 178.]

[Footnote 57: Edkins, op. cit. p. 75.]

[Footnote 58: See Schmidt, Die Ethik der alten Griechen, ii. 24 sqq.]

[Footnote 59: Lecky, History of European Morals, i. 493. Cf. Dio Cassius, Historia Romana, lii. 36.]

[Footnote 60: Lecky, op. cit. i. 408 sqq. Ramsay, The Church in the Roman Empire, p. 346 sqq. See also supra, i. 345 sq.; ii. 178 sq.]

The same difference in toleration between monotheistic and polytheistic religions shows itself in their different attitudes towards witchcraft. A monotheistic religion is not necessarily averse from magic; its god may be supposed to have created magical as well as natural energy, and also to have given mankind permission to utilise it in a proper manner. Both Christianity in its earlier phases and Muhammedanism are full of magical practices expressly sanctioned by their theology--for instance, the use made of sacred words and of the relics of saints. But besides this sort of magic there is another kind--witchcraft, in the narrow sense of the term,--which is ascribed to the {650} assistance of exorcised spirits, regarded not as the willing agents but as the adversaries of God; and this practice is naturally looked upon as highly offensive to His feelings. In Christianity witchcraft was esteemed the most horrible form of impiety.[61] The religious law of the Hebrews--which generally prohibited all practices that savoured of idolatry, such as soothsaying and oracles--punished witches and wizards with death.[62] Islam disapproves of all magic which is practised with the assistance of evil spirits, or jinn, although such magic is very prevalent and popularly tolerated in Muhammedan countries.[63] Among polytheistic peoples, again, witchcraft is certainly in many cases treated with great severity; a large number of uncivilised races punish it with death,[64] and among some of them it is the only offence which is capital.[65] But then witchcraft is punished because it is considered destructive to human life or welfare.[66] "In Africa," says Mr. Rowley, "there is what is regarded as lawful as well as unlawful witchcraft, the lawful being practised professedly for the welfare of mankind, and in opposition to the unlawful, which is resorted to for man's injury." But "the purposes of witchcraft {651} are now generally wicked; its processes generally involve moral guilt; the spirits invoked are, for the most part, avowedly evil and maleficent."[67] Among the Gaika tribe of the Kafirs "witchcraft is supposed to be an influence for evil, possessed by one individual over another, or others."[68] Among the Bondeis "the meaning of witchcraft is simply

murder."[69] That witchcraft, as a malicious practice, must be a grave and at the same time frequent offence among savages, is obvious from the common belief that death, disease, and misfortunes of every description are caused by it. From a similar point of view it is condemned by polytheistic nations of a higher type. Among the Aztecs of ancient Mexico anybody who employed sorcery or incantations for the purpose of doing harm to the community or to individuals was sacrificed to the gods.[70] The Chinese Penal Code punishes with death those who have been convicted of writing and editing books of sorcery, or of employing spells and incantations, "in order to agitate and influence the minds of the people."[71] But, according to Mr. Dennys, the hatred of witches and wizards cherished in the West does not seem to exist in China; "those reputed to possess magic powers are regarded with dread, but it is rare to hear of any of them coming to untimely end by mob violence."[72] The Laws of [Hv]ammurabi, the ancient Babylonian legislator, enjoin that "if a man weave a spell and put a ban upon a man, and has not justified himself, he that wove the spell upon him shall be put to death."[73] It is said in 'Vishnu Purâna' that he who practises magical rites "for the harm of others" is punished in the hell called Krimîsa.[74] Among the ancient Teutons not every kind of magic but only such as was considered of injurious nature was criminal.[75] {652} In Rome, also, what was deemed harmless magic was left undisturbed, whereas, according to the 'Law of the Twelve Tables,' "he who affects another by magical arts or with poisonous drugs" is to be put to death;[76] and during the Empire persons were severely persecuted for political astrology or divination practised with a view to discovering the successors to the throne.[77] Plato, writes in his 'Laws':--"He who seems to be the sort of man who injures others by magic knots or enchantments or incantations or any of the like practices, if he be a prophet or divine, let him die; and, if not being a prophet, he be convicted of witchcraft, as in the previous case, let the court fix what he ought to pay or suffer."[78] As Mr. Lecky justly remarks, both in Greece and Rome the measures taken against witchcraft seem to have been almost entirely free from religious fanaticism, the magician being punished because he injured man and not because he offended God.[79] Sometimes we find even among a polytheistic people that sorcery is particularly opposed by its priesthood;[80] but the reason for this is no doubt hatred of rivals rather than religious zeal. Miss Kingsley, however, does not think that the dislike of witchcraft in West Africa at large has originally anything to do with the priesthood.[81]

[Footnote 61: Lea, History of the Inquisition, iii. 422, 453. Pollock and Maitland, History of English Law before the Time of Edward I. ii. 552 sqq. Milman, op. cit. ix. 69. Lecky, Rise and Influence of Rationalism in Europe, i. 26. Keary, Outlines of Primitive Belief among the Indo-European Races, p. 511 sqq. Rogers, Social Life in Scotland, iii. 265, 268. Ralston, Songs of the Russian People, pp. 386, 416 sq.]

[Footnote 62: Exodus, xxii. 18. Leviticus, xix. 26, 31; xx. 6, 27. Deuteronomy, xviii. 10 sqq.]

[Footnote 63: Polak, Persien, i. 348. Lane, Modern Egyptians, i. 333.]

[Footnote 64: Supra, i. 189 sq. Cruickshank, Eighteen Years on the Gold Coast, ii. 179. Bowdich, Mission to Ashantee, p. 260. Johnston, British Central Africa, p. 403 (Bakongo). Cunningham, Uganda, pp. 35 (Banyoro), 140 (Bavuma), 305 (Basukuma), Arnot, Garenganze, p. 75. Decle, Three Years in Savage Africa, p. 76 (Barotse). Casalis, Basutos, p. 229. Kidd, The Essential Kafir, p. 148 sq. Sibree, The Great African Island, p. 292 (Malagasy). Swettenham, Malay Sketches, p. 196 (Malays of Perak). Dalton, Ethnology of Bengal, (Oraons). Egede, Description of Greenland, p. 123 sq. Krause, Die Tlinkit-Indianer, p. 293 sq. Jones, quoted by Kohler, 'Die Rechte der Urvölker Nordamerikas,' in

Zeitschr. f. vergl. Rechtswiss. xii. 412 (Chippewas). Morgan, League of the Iroquois, p. 330; Seaver, Life of Mrs. Jemison, p. 167 (Iroquois). Powell, 'Wyandot Government,' in Ann. Rep. Bur. Ethn. i. 67. Stevenson, 'Sia,' ibid. xi. 19. Lumholtz, Unknown Mexico, i. 325 (Tarahumares). Forbes, 'Aymara Indians of Bolivia and Peru,' in Jour. Ethn. Soc. N. S. ii. 236, n. *]

[Footnote 65: Supra, i. 189.]

[Footnote 66: Cf. Dorsey, 'Omaha Sociology,' in Ann. Rep. Bur. Ethn. iii. 364.]

[Footnote 67: Rowley, Religion of the Africans, p. 125 sq. See also Kidd, The Essential Kafir, p. 148.]

[Footnote 68: Maclean, Compendium of Kafir Laws, p. 123.]

[Footnote 69: Dale, in Jour. Anthr. Inst. xxv. 223.]

[Footnote 70: Bancroft, Native Races of the Pacific States, ii. 462.]

[Footnote 71: Ta Tsing Leu Lee, sec. cclvi. p. 273.]

[Footnote 72: Dennys, Folk-Lore of China, p. 80.]

[Footnote 73: Laws of [Hv]ammurabi, 1.]

[Footnote 74: Vish['n]u Purá['n]a, p. 208.]

[Footnote 75: Brunner, Deutsche Rechtsgeschichte, ii. 678.]

[Footnote 76: Lex Duodecim Tabularum, viii. 25.]

[Footnote 77: Lecky, History of European Morals, i. 420.]

[Footnote 78: Plato, Leges, xi. 933.]

[Footnote 79: Lecky, Rationalism in Europe, i. 18.]

[Footnote 80: Kingsley, West African Studies, p. 137. Rink, Greenland, p. 201.]

[Footnote 81: Kingsley, West African Studies, p. 135 sq.]

The religious intolerance which has accompanied the rise of monotheism is, as we have just observed, the result of the nature attributed to its godhead. But the evolution of religion does not end with the triumph of a jealous and irritable heavenly despot. There is a later stage where men believe in a god or supernatural power which is absolutely free from all human weakness, and in such a religion intolerance has no place. It has been said that the tolerant spirit of Buddhism[82] is due to religious {653} indifference,[83] but the original cause of it seems to be the absence of a personal god; and the increasing tolerance of modern Christianity is undoubtedly connected with the more ethical view it takes of the Deity when compared with the opinions of earlier ages. It should be remembered, however, that religious toleration does not mean passive indifference with regard to dissenting religious ideas. The tolerant man may be a great propagandist. He may do his utmost to eradicate, by means of persuasion, what he considers to be a false belief. He may even resort to stronger measures against those who do mischief in the name of their religion. But he does not persecute anybody for the sake of his faith; nor does he believe in an intolerant and persecuting god.

[Footnote 82: Hardy, Eastern Monachism, p. 412. Monier-Williams, Buddhism, p. 126. Waddell, Buddhism of Tibet, p. 568. Edkins, Religion in China, p. 127. Gutzlaff, Sketch of Chinese History, i. 70. Forbes, British Burma, p. 322 sq.]

[Footnote 83: Forbes, op. cit. p. 322. Cf. Kuenen, Hibbert Lectures on National and Universal Religions, p. 290.]

* * * * *

Supernatural beings, according to the belief of many races, desire to be worshipped not only because they depend upon human care for their subsistence or comfort, but because worship is an act of homage. We have seen that sacrifice, after losing its original significance, still survives as a reverent offering. So also prayer is frequently a tribute to the self-regarding pride of the god to whom it is addressed. A supplication is an act

of humility, more or less flattering to the person appealed to and especially gratifying where, as in the case of a god, the granting of the request entails no deprivation or loss, but on the contrary is rewarded by the worshipper. Moreover, the request is very commonly accompanied by reverential epithets or words of eulogy; and praise, nay even flattery, is just as pleasant to superhuman as to human ears. Gods are addressed as great or mighty, as lords or kings, as fathers or grandfathers.[84] A prayer of the ancient Peruvians began with the following words:--"O conquering Viracocha! Ever present Viracocha! Thou art in the ends of the earth without equal!"[85] {654} The ancient Egyptians flattered their gods,[86] the Vedic and Zoroastrian hymns are full of praise. Muhammedans invoke Allah by sentences such as, "God is great," "God is merciful," "God is he who seeth and heareth." Words of praise, as well as words of thanks, addressed to a god, may certainly be the expressions of unreflecting admiration or gratitude, free from all thought of pleasing him; but where laudation is demanded by the god as a price for good services, it is simply a tribute to his vanity. There is a Chinese story which amusingly illustrates this little weakness of so many gods:--At the hottest season of the year there was a heavy fall of snow at Soochow. The people, in their consternation, went to the temple of the Great Prince to pray. Then the spirit moved one of them to say, "You now address me as Your Honour. Make it Your Excellency, and, though I am but a lesser deity, it may be well worth your while to do so." Thereupon the people began to use the latter term, and the snow stopped at once.[87] The Hindus say that by praise a person may obtain from the gods whatever he desires.[88]

[Footnote 84: See Brinton, Religions of Primitive Peoples, p. 105.]

[Footnote 85: de Molina, 'Fables and Rites of the Yncas,' in Narratives of the Rites and Laws of the Yncas, p. 33.]

[Footnote 86: Amélineau, L'évolution des idées morales dans l'Égypte ancienne, p. 214.]

[Footnote 87: Giles, Strange Stories from a Chinese Studio, ii. 294.]

[Footnote 88: Ward, View of the History, Literature, and Religion of the Hindoos, ii. 69.]

We have different means of gratifying a person's self-regarding pride: one is to praise him, another is to humiliate ourselves. Both have been adopted by men with reference to their gods. Besides hymns of praise there are hymns of penitence, the object of which is largely to appease the angry feelings of offended gods. Prayers for remission of sins form a whole literature among peoples like that of the Vedic age, the Chaldeans,[89] and the Hebrews, who commonly regarded calamities to which men were subject not as the result of an inexorable fate nor as the machinations of evil spirits, but as divine punishments. According to early ideas, as we have seen, sin is a substance charged with injurious {655} energy, from which the infected person tries to rid himself by mechanical means.[90] But at the same time the effect of sin is conceived as a divine punishment, and this suggests atonement. In the Rig-Veda we not only hear of the removal of sins by magical operations, but the gods are requested to free the sufferer from his sin.[91]

[Footnote 89: Zimmern, Babylonische Busspsalmen, passim. Mürdter-Delitzsch, Geschichte Babyloniens und Assyriens, p. 38 sq. Delitzsch, Wo lag das Paradies? p. 86. Hommel, Die semitischen Völker und Sprachen, p. 315 sqq. Meyer, Geschichte des Alterthums, i. 178.]

[Footnote 90: Supra, i. 52 sqq.]

[Footnote 91: See Oldenberg, Die Religion des Veda, pp. 292, 296, 317 sq.]

Gods are fond of prayers not only as expressions of humility or repentance but for other reasons as well. In early religion a prayer is commonly connected with an

offering, since the god is not supposed to bestow his favours gratuitously.[92] By the call contained in it he is invited to partake of the offering, or his attention is drawn to it.[93] "Compassionate father!" says the Tanna priest when he offers first-fruits to a deified ancestor; "here is some food for you, eat it, and be kind to us on account of it!"[94] In one of the Pahlavi texts it is said that when the guardian spirits of the righteous are invited they accept the sacrifice, whereas if they are not invited "they go up the height of a spear and will remain."[95] Throughout the Yasts we hear of the claims of deities to be worshipped with sacrifices in which they are invoked by their own names and with the proper words.[96] Mithra complains, "If men would worship me with a sacrifice in which I were invoked by my own name, as they worship the other Yazatas with sacrifices in which they are invoked by their own names, then I would come to the faithful at the appointed time."[97] {656} According to Vedic and Zoroastrian texts the gods were purified, strengthened, and encouraged not only by offerings but by prayers, although it is difficult in this respect to distinguish between two elements in one and the same rite which are so closely interwoven with each other.[98] By his invocations man assists the gods in their combats with evil demons, he sends his prayer between the earth and the heavens there to smite the fiends.[99] In a Vedic hymn the people are exhorted to "sing to Indra a song very destructive to the demons."[100] By pronouncing the praise of Asha, Zarathustra brings the Daevas to naught;[101] by mentioning the name of Ahura Mazda their malice is most effectually destroyed.[102] Thus prayer may be a religious duty also on account of the magic efficacy ascribed to it, and the same is the case with incantations directed against evil spirits.

[Footnote 92: Tylor, Primitive Culture, ii. 364 sqq. Georgi, Russia, iii. 272 (shamanistic peoples of Siberia). Maspero, Études de mythologie et d'archéologie égyptiennes, i. 163; Idem, Dawn of Civilization, p. 124, n. 5 (ancient Egyptians). Darmesteter, in Sacred Books of the East, iv. (1st ed.) p. lxix. (Zoroastrians). Oldenberg, op. cit. p. 430 sqq.; Barth, Religions of India, p. 34 (Vedic people). Donaldson, 'Expiatory and Substitutionary Sacrifices of the Greeks,' in Trans. Roy. Soc. Edinburgh, xxvii. 430. Grimm, Teutonic Mythology, i. 29. Among the Kafirs of Natal "a soldier wounded in battle would only pray if his hurt were slight; but if it were serious, he would vow a sacrifice on his return, naming perhaps the particular beast" (Shooter, Kafirs of Natal, p. 164).]

[Footnote 93: Cf. Brinton, Religions of Primitive Peoples, p. 104.]

[Footnote 94: Turner, Nineteen Years in Polynesia, p. 88.]

[Footnote 95: Shâyast Lâ-Shâyast, ix. 12.]

[Footnote 96: Yasts, viii. 23 sqq.; x. 30.]

[Footnote 97: Ibid. x. 55. Cf. ibid. x. 74.]

[Footnote 98: See Bergaigne, La religion védique, ii. 237, 250, 273 sqq.; Zimmer, Altindisches Leben, p. 337 sqq.; Oldenberg, Religion des Veda, p. 437; Macdonell, Vedic Mythology, p. 60; Meyer, Geschichte des Alterthums, i. 534 sq. (Zoroastrianism).]

[Footnote 99: Yasna, xxviii. 7. Yasts, iii. 5. Vendîdâd, xix. 1, 2, 8 sqq. Darmesteter, Ormazd et Ahriman, pp. 101, 119, 131, 193. Idem, in Sacred Books of the East, iv. (1st ed.) p. lxix.]

[Footnote 100: Rig-Veda, viii. 78. 1.]

[Footnote 101: Yasts, xiii. 89. Cf. ibid. xiii. 90.]

[Footnote 102: Ibid. i. 3, 4, 10, 11, 19.]

In earlier chapters we have often noticed how curses gradually develop into genuine prayers, and vice versa may a prayer develop into a curse or spell. Dr. Rivers observes that the formulæ used in Toda magic have the form of prayers.[103] So also Assyrian incantations are often dressed in the robe of supplication, and end with the formula,

"Do so and so, and I shall gladden thine heart and worship thee in humility."[104] Vedic texts which were not originally meant as charms became so afterwards. Incantations are comparatively rare in the Rig-Veda, and seem even to be looked upon as objectionable, but towards the end of the Vedic period the reign of Brahma, the power of prayer, as the supreme god in the Indian Pantheon began to dawn.[105] {657}Brahma is a force by which the gods act, by which they are born, and by which the world has been formed; [106] but it is also the prayer which ascends from the altar to heaven and by means of which man wrests from the gods the boon he demands[107]--"the prayer governs them."[108] This omnipresent force is personified in Brahma[n.]aspati, the lord of prayer, who resides in the highest heaven but of whom not only every separate god but the priest himself becomes a manifestation at the moment he pronounces the mantras or sacred texts.[109] It is a current saying in India that the whole universe is subject to the gods, that the gods are subject to the mantras, that the mantras are subject to the Brahmans, and that therefore the Brahmans are the real gods.[110] In Zoroastrianism prayers are not made efficacious by devotion and fervency, but to the words themselves belongs a mysterious power and the mere recitation of them, if correct and faultless, brings that power into action;[111] in the Yasts prayer is regarded as a goddess, as the daughter of Ahura Mazda.[112] In ancient Egypt, M. Maspero observes, "la prière n'était pas comme chez nous une petition que l'homme présente au dieu, et que le dieu est libre d'accepter ou de refuser à son gré: c'était une formule dont les terms ont une valeur impérative, et dont l'énonciation exacte oblige le dieu à concéder ce qu'on lui demande."[113] Greek literature supplies other instances of men conjuring their gods by incantations;[114] the word [Greek: a)ra/] means both prayer and curse.[115] And "in the Roman, as in the majority of the old Italian cults, prayer is a magic formula, producing its effect by its own inherent quality."[116]

[Footnote 103: Rivers, Todas, pp. 450, 453.]

[Footnote 104: Tallqvist, 'Die assyrische Beschwörungsserie Maqlû,' in Acta Soc. Scient. Fennicæ, xx. 22.]

[Footnote 105: Oldenberg, op. cit. p. 311 sqq. Hopkins, op. cit. p. 149. Roth, 'Brahma und die Brahmanen,' in Zeitschr. d. Deutschen Morgenländischen Gesellsch. i. 67, 71. Darmesteter, Essais orientaux, p. 132.]

[Footnote 106: Atharva-Veda, xi. 5. 5. Barth, op. cit. p. 38.]

[Footnote 107: Roth, loc. cit. p. 66 sqq. Barth, op. cit. p. 38. Darmesteter, Ormazd et Ahriman, p. 101.]

[Footnote 108: Rig-Veda, vi. 51. 8.]

[Footnote 109: Barth, op. cit. p. 15 sq. Roth, loc. cit. p. 71.]

[Footnote 110: Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 201 sq.]

[Footnote 111: See Geiger, Civilization of the Eastern Ir[=a]nians, i. 71.]

[Footnote 112: Yasts, xiii. 92; xvii. 16.]

[Footnote 113: Maspero, Études de mythologie et archéologie égyptiennes, i. 163.]

[Footnote 114: See Usener, Götternamen, p. 335 sq.]

[Footnote 115: Cf. von Lasaulx, Der Fluch bei Griechen und Römern, p. 6. So also the Manx word gwee means both prayer and curse (Rhys, Celtic Folklore, i. 349).]

[Footnote 116: Renan, Hibbert Lectures on the Influence of the Institutions, &c. of Rome on Christianity, p. 10 sq. Cf. Jevons, in Plutarch's Romane Questions, p. xxviii.; Granger, Worship of the Romans, p. 158.]

{658} Whilst an ordinary curse readily develops into a prayer when the name of a god is brought in for the purpose of giving magic efficacy to the curse, a prayer may contrariwise assume a magic character by being addressed to a god--just as a sacrifice

becomes endowed with magic energy in consequence of its contact or communion with the supernatural being to which it is offered; and the constraining force in the prayer or sacrifice may then be directed even against the god himself. But there can be little doubt that the extreme importance which the magic element in the cult attained among the nations of ancient civilisation was chiefly due to the prevalence of a powerful priesthood or class of persons well versed in sacred texts. A successful incantation presupposes a certain knowledge in him who utters it. The words of the formulæ are fixed and may not suffer the slightest modification under penalty of losing their potency. Right intonation is equally important.[117] The Brahmanic mantras "must be pronounced according to certain mystic forms and with absolute accuracy, or their efficacy is destroyed"; nay, if in the repetition of a mantra the slightest mistake is made, either by omission of a syllable or defective pronunciation, the calamity which it was intended to bring down on an enemy will inevitably recoil on the head of the repeater.[118] The potency of the incantation largely lies in the voice, which is the magical instrument par excellence.[119] A Buddhist priest who was asked what advantage he could expect to derive from merely repeating a number of words with the sense of which he was entirely unacquainted, gave the answer that the advantage of often repeating the sounds was incalculable, infinite;[120] and a Muhammedan writer argues that prayers which are offered in any other language than {659} Arabic are profane and useless, because "the sounds of this language"--whether understood or not--"illuminate the darkness of men" and "purify the hearts of the faithful."[121] Ideas of this sort are of course most strongly advocated by those who derive the greatest profit from them--priests or scribes. And it is easy to understand that with their increasing influence among a superstitious and credulous people the magic significance which is so readily ascribed to a religious act also has a tendency to grow in importance.

[Footnote 117: Maspero, Études, i. 109; Idem, Dawn of Civilization, pp. 146, 213 (ancient Egyptians). Sayce, Hibbert Lectures on the Religion of the Andent Babylonians, p. 319. Darmesteter, Ormazd et Ahriman, p. 9. Sell, Faith of Islám, pp. 53, 79, 334, 341.]

[Footnote 118: Monier-Williams, Br[=a]hmanism and Hind[=u]ism, p. 199.]

[Footnote 119: Yasts, iv. 5. Maspero, Études, ii. 373 sq.; Idem, Dawn of Civilization, p. 146 (ancient Egyptians). Sell, op. cit. p. 318 (Muhammedans).]

[Footnote 120: Indo-Chinese Gleaner, iii. 145.]

[Footnote 121: Indo-Chinese Gleaner, iii. 146.]

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Among all sins there is none which gods resent more severely than disobedience to their commandments. Mr. Macdonald says of the Efatese, in the New Hebrides, that no people under the sun is more obedient to what they regard as divine mandates than these savages, who believe that an offence against a spiritual being means calamity and death.[122] The Chaldeans had a lively sense of the risks entailed upon the sinner by disobedience to the gods.[123] According to the Bible disobedience was the first sin committed by man, and death was introduced into the world as its punishment. "Rebellion is as the sin of witchcraft, and stubbornness is as iniquity and idolatry."[124] On the history of morals this demand of obedience has exercised considerable influence. It gives emphasis to moral rules which are looked upon as divine injunctions, and it helps to preserve such rules after the conditions from which they sprang have ceased to exist. The fact that they have become meaningless does not render them less binding; on the contrary, the mystery surrounding them often increases their sanctity. The commandments of a god must be obeyed independently of their contents, simply because disobedience to him is a sin. Acts totally different in character, crimes of the

worst description and {660} practices by themselves perfectly harmless, are grouped together as almost equally offensive to the deity because they have been forbidden by him.[125] And moral progress is hampered by a number of precepts which, though rooted in obsolete superstitions or antiquated ideas about right and wrong, have an obstinate tendency to persist on account of their supposed divine origin.[126]

[Footnote 122: Macdonald, Oceania, p. 201.]

[Footnote 123: Maspero, Dawn of Civilization, p. 682. Delitzsch, Wo lag das Paradies? p. 86.]

[Footnote 124: 1 Samuel, xv. 23. Schultz, Old Testament Theology, ii. 286. For other instances see Rig-Veda, vii. 89. 5; Geiger, Civilization of the Eastern Ir[=a]nians, i. p. li.; Schmidt, Die Ethik der alten Griechen, ii. 51 sq.]

[Footnote 125: Cf. supra, i. 193 sqq.]

[Footnote 126: Cf. Pollock, Essays on Jurisprudence and Ethics, p. 306 sq.]

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Duties to gods are in the first place based on prudential considerations. Supernatural beings, even when on the whole of a benevolent disposition, are no less resentful than men, and, owing to their superhuman power, much more dangerous. On the other hand, they may also bestow wonderful benefits upon those who please them. The general rule that prudence readily assumes a moral value holds particularly true of religious matters, where great individual interests are at stake. Waterland says in his Sermon on Self-love:--"The wisest course for any man to take is to secure an interest in the life to come. . . . He may love himself, in this instance, as highly and as tenderly as he pleases. There can be no excess of fondness, or self-indulgence, in respect of eternal happiness. This is loving himself in the best manner, and to the best purposes. All virtue and piety are thus resolvable into a principle of self-love. . . . It is with reference to ourselves, and for our own sakes, that we love even God himself."[127]

[Footnote 127: Waterland, 'On Self-Love,' in The English Preacher, i. 101 sq. Cf. Paley's definition of virtue in his Principles of Moral and Political Philosophy, i. 7 (Complete Works, ii. 38; supra, i. 300).]

At the same time it may be not only in people's own interests, but in the interests of their fellow men as well, for them to be on friendly terms with supernatural beings. These beings often visit the iniquity of fathers or forefathers upon children or descendants, or punish the community for the sins of one of its members;[128] and, on the other hand, they reward the whole family or group for the virtues of a single individual.[129] So also, when the {661} members of a community join in common acts of worship, each worshipper promotes not only his own welfare, but the welfare of his people. In early religion it is of the utmost importance for the tribe or nation that the established cult should be strictly observed. This is a fact which cannot be too much emphasised when we have to explain how conduct which is pleasing to a god has come to be regarded as a moral duty; for, if the latest stages of religious development be excepted, the relations between men and their gods are communal rather than individual in character. Ahura Mazda said, "If men sacrifice unto Verethraghna, made by Ahura, if the due sacrifice and prayer is offered unto him just as it ought to be performed in the perfection of holiness, never will a hostile horde enter the Aryan countries, nor any plague, nor leprosy, nor venomous plants, nor the chariot of a foe, nor the uplifted spear of a foe!"[130] Thus the duties to gods are at the same time social duties of the first order, owing to the intensely social character of religious relationships.

[Footnote 128: Supra, i. 48 sqq.]

[Footnote 129: Supra, i. 96 sqq.]

[Footnote 130: Yasts, xiv. 48.]

Another circumstance which has contributed to the moral condemnation of offences against gods is that people are anxious to punish such offences in order to prevent the divine wrath from turning against themselves;[131] for punishment, as we have seen, easily leads to moral disapproval. But although prudential considerations of some kind or other be the chief cause of the obligatory character attached to men's conduct towards their gods, they are not the only cause. We must also remember that gods are regarded with genuine reverence by their worshippers; and where this is the case offences against religion naturally excite sympathetic resentment in the latter, whilst great piety calls forth sympathetic approval and is praised as a virtue.

[Footnote 131: Supra, i. 194.]

I have here spoken of duties which men consider they owe to their gods, not of duties to supernatural beings in general. This distinction, though not always easy to {662} follow in detail, is yet of vital importance. People may no doubt be afraid to offend and even anxious to please other spirits besides their gods, but religious duties chiefly arise where there are established relationships between men and supernatural beings; indeed, it may even be a duty to refrain from worshipping or actually to persecute other spirits, as is the case in monotheistic religions. Men depend for their welfare on their gods more than on any other members of the spiritual world. They select as their gods those supernatural beings from whom they think they have most to fear or most to hope. Hence it is generally in the relations to them only that those factors, prudential and reverential, are to be found which lead to the establishment of religious duties.

Chapter L — Gods As Guardians of Morality

AS men are concerned about the conduct of their fellow men towards their gods, so gods are in many cases concerned about men's conduct towards one another--disapproving of vice and punishing the wicked, approving of virtue and rewarding the good. But this is by no means a universal characteristic of gods. It is a quality attributed to certain deities only and, as it seems, in most instances slowly acquired.

We are told by competent observers that the supernatural beings of savage belief frequently display the utmost indifference to all questions of worldly morality. According to Messrs. Spencer and Gillen, the Central Australian natives, though they assume the existence of both friendly and mischievous spirits, "have not the vaguest idea of a personal individual other than an actual living member of the tribe who approves or disapproves of their conduct, so far as anything like what we call morality is concerned."[1] The Society Islanders maintained that "the only crimes that were visited by the displeasure of their deities were the neglect of some rite or ceremony."[2] The religious belief of the Gonds of Central India is said to be wholly unconnected with any idea of morality; a moral deity demanding righteous conduct from his creatures, our informant adds, is a religious {664} conception far beyond the present capacity either of the Indian savage or the ordinary Hindu.[3] Of the E[(w]e-, Yoruba-, and Tshi-speaking peoples of the West African Slave and Gold Coasts Major Ellis writes:--"Religion, at the stage of growth in which we find it among these three groups of tribes, has no connection with morals, or the relations of men to one another. It consists solely of ceremonial worship, and the gods are only offended when some rite or ceremony has been neglected or omitted. . . . Murder, theft, and all offences against the person or

against property, are matters in which the gods have no immediate concern, and in which they take no interest, except in the case when, bribed by a valuable offering, they take up the quarrel in the interests of some faithful worshipper."[4] So also among the Bambala, a Bantu tribe in the Kasai, south of the River Congo, "there is no belief that the gods or spirits punish wrong-doing by afflicting the criminal or his family, nor are the acts of a man supposed to affect his condition after death."[5] The Indians of Guiana, says Sir E. F. Im Thurn, observe an admirable code of morality, which exists side by side with a simple animistic form of religion, but the two have absolutely no connection with one another.[6] With reference to the Tarahumares of Mexico Dr. Lumholtz states that the only wrong towards the gods of which an Indian may consider himself guilty is that he does not dance enough. "For this offence he asks pardon. Whatever bad thoughts or actions toward man he may have on his conscience are settled between himself and the person offended."[7] In the primitive Indian's conception of a god," Mr. Parkman observes, "the idea of moral good {665} has no part. His deity does not dispense justice for this world or the next."[8]

[Footnote 1: Spencer and Gillen, Northern Tribes of Central Australia, p. 491.]

[Footnote 2: Ellis, Polynesian Researches, i. 397.]

[Footnote 3: Forsyth, Highlands of Central India, p. 145. See also Hodgson, Miscellaneous Essays, i. 124 (Bódo and Dhimáls); Caldwell, Tinnevelly Shanars, p. 36; Lyall, Asiatic Studies, p. 45; Radloff, Das Schamanenthum, p. 13 (Turkish tribes of the Altai).]

[Footnote 4: Ellis, Yoruba-speaking Peoples of the Slave Coast, p. 293. Idem, Tshi-speaking Peoples of the Gold Coast, p. 10. The E[(w]e god Mawu is represented as an exception to this rule (infra, p. 686).]

[Footnote 5: Torday and Joyce, 'Ethnography of the Ba-Mbala,' in Jour. Anthr. Inst. xxxv. 415.]

[Footnote 6: Im Thurn, Indians of Guiana, p. 342.]

[Footnote 7: Lumholtz, Unknown Mexico, i. 332.] [Footnote 8: Parkman, Jesuits in North America, p. lxxviii. See also Eastman, Dacotah, p. xx.; Schoolcraft, Indian Tribes of the United States, ii. 195 (Dacotahs).]

That many savage gods are so thoroughly selfish as to care about nothing else than what concerns their own interests, may also be inferred from the character attributed to them. We have seen that the altruistic sentiment is the chief source from which moral emotions spring, and of the gods of various uncivilised peoples we hear not only that they are totally destitute of benevolent feelings, but that they are of a malicious nature and mostly intent on doing harm to mankind.[9]

[Footnote 9: See Meiners, Geschichte der Religionen, i. 405; Tylor, Primitive Culture, ii. 329; Avebury, Origin of Civilisation, p. 232 sqq.; Roskoff, Geschichte des Teufels, i. 20 sq.; Frazer, Golden Bough, iii. 40 sqq.; Karsten, Origin of Worship, p. 46 sqq.]

The Maoris of New Zealand regarded their deities as the causes of pain, misery, and death, as mighty enemies from whom nobody ever thought of getting any aid or good, but who were to be rendered harmless by means of charms or spells or by sacrifices offered to appease their wrath.[10] The Tahitians "supposed their gods were powerful spiritual beings, in some degree acquainted with the events of this world, and generally governing its affairs; never exercising any thing like benevolence towards even their most devoted followers, but requiring homage and obedience, with constant offerings; denouncing their anger, and dispensing destruction on all who either refused or hesitated to comply."[11] The Fijians "formed no idea of any voluntary kindness on the part of their gods, except the planting of wild yams, and the wrecking of strange canoes and foreign vessels on their coast";[12] and that some of these beings were

conceived as positively wicked is indicated by the names given them--"the adulterer," "the rioter," "the murderer," and so forth.[13] The people of Aneiteum, in the New Hebrides, maintained that "earth and air and ocean were filled with natmasses, spiritual beings, but all malignant, who ruled over everything that affected the human race. . . . Their deities, like themselves, were {666} all selfish and malignant; they breathed no spirit of benevolence."[14]

[Footnote 10: Taylor, Te Ika a Maui, pp. 104, 148. Colenso, Maori Races of New Zealand, p. 62. Cf. Dieffenbach, Travels in New Zealand, ii. 118.]

[Footnote 11: Ellis, Polynesian Researches, i. 336.]

[Footnote 12: Williams and Calvert, Fiji, p. 195.]

[Footnote 13: Ibid. p. 185.]

[Footnote 14: Inglis, In the New Hebrides, pp. 30, 32.]

The Santal of India believes in no god from whose benignity he may expect favour, but in "a multitude of demons and evil spirits, whose spite he endeavours by supplications to avert." Even his family god "represents the secret principle of evil, which no bolts can shut out, and which dwells in unseen but eternally malignant presence beside every hearth."[15] The Kamchadales do not seem to have hoped for anything good from their deities; Kutka himself, the creator of the universe and the greatest of the gods, was once caught in adultery and castrated.[16]

[Footnote 15: Hunter, Annals of Rural Bengal, i. 181 sq.]

[Footnote 16: Klemm, Cultur-Geschichte der Menschheit, ii. 318 sq. Steller, Beschreibung von Kamtschatka, p. 264.]

According to the beliefs of the Koksoagmyut, or Hudson Bay Eskimo, all the minor spirits are under the control of the great spirit whose name is Tung ak, and this being "is nothing more or less than death, which ever seeks to torment and harass the lives of people that their spirits may go to dwell with him."[17] Nay, even the special guardian spirit by which each person is supposed to be attended is malignant in character and ever ready to seize upon the least occasion to work harm upon the individual whom it accompanies; its good offices can be obtained by propitiation only.[18] Among the Nenenot, or Indians of Hudson Bay, "the rule seems to be that all spirits are by nature bad, and must be propitiated to secure their favour."[19] Of various Brazilian tribes we are likewise told that they do not believe in the existence of any benevolent spirits. Thus the Coroado Indian acknowledges only an evil principle, which sometimes meets him in the form of a lizard or a crocodile or an ounce or a man with the feet of a stag, sometimes transforms itself into a swamp, and leads him astray, vexes him, brings him into difficulty and danger, and even kills him.[20] The Mundrucus of the Cuparí have no notion of a good supreme being, but believe in an evil spirit, regarded merely as a kind of hobgoblin, who is at the bottom of all their little failures and gives them troubles in fishing, hunting, and so forth.[21] The Uaupés, says Mr. Wallace, "appear to have no definite idea of a God. . . . They have much more definite ideas of a bad spirit, 'Juruparí,' or Devil, whom they fear and {667} endeavour through their pagés [or medicine men] to propitiate. When it thunders, they say the 'Juruparí' is angry, and their idea of natural death is that the 'Juruparí' kills them."[22]

[Footnote 17: Turner, 'Ethnology of the Ungava District,' in Ann. Rep. Bur. Ethn. xi. 272.]

[Footnote 18: Ibid. p. 194.]

[Footnote 19: Ibid. p. 193 sq.]

[Footnote 20: von Spix and von Martius, Travels in Brazil, ii. 243.]

[Footnote 21: Bates, The Naturalist on the River Amazons, ii. 137.]

[Footnote 22: Wallace, Travels on the Amazon, p. 500.]

In Eastern Africa, according to Burton, "the sentiment generally elicited by a discourse upon the subject of the existence of a Deity is a desire to see him, in order to revenge upon him the deaths of relatives, friends, and cattle."[23] The only quality of a moral character which the Wanika are said to ascribe to the supreme being, Mulungu, is that of vindictiveness and cruelty.[24] To the Matabele the idea of a benevolent deity is utterly foreign, but they have a vague notion of a number of evil spirits always ready to do harm, and the chief among these are the spirits of their ancestors.[25] All the good the Bechuanas enjoy they ascribe to rainmakers, but "all the evil that comes they attribute to a supernatural being";[26] of their principal god, Morimo, Mr. Moffat never once, in the course of twenty-five years spent in missionary labour, heard that he did good or was capable of doing so.[27] Among various other African peoples, travellers assure us, supernatural beings are supposed to exercise a potent influence for evil rather than for good, or beneficent spirits are, at any rate, almost unknown.[28] On the Gold Coast, according to Major Ellis, the majority of spirits are malignant, and every misfortune is ascribed to their action. "I believe," he adds, "that originally all were conceived as malignant, and that the indifference, or the beneficence (when propitiated by sacrifice and flattery), which are now believed to be characteristics of some of these beings, are later modifications of the original idea."[29]

[Footnote 23: Burton, Lake Regions of Central Africa, ii. 348.]

[Footnote 24: New, Life, Wanderings, and Labours in Eastern Africa, p. 103 sq.]

[Footnote 25: Decle, Three Years in Savage Africa, p. 153.]

[Footnote 26: Campbell, Second Journey in the Interior of South Africa, ii. 204.]

[Footnote 27: Moffat, Missionary Labours in Southern Africa (ed. 1842), p. 262.]

[Footnote 28: Rowley, Religion of the Africans, p. 55. Kingsley, Travels in West Africa, p. 443. Mockler-Ferryman, British Nigeria, p. 255 sq.]

[Footnote 29: Ellis, Tshi-speaking Peoples, pp. 12, 18, 20. Cf. Cruickshank, Eighteen Years on the Gold Coast, ii. 134.]

Of many savages it is reported that they have notions of good, as well as of evil spirits, but that they chiefly or exclusively worship the evil ones, since the others are supposed to be so good that they require no offerings or homage.[30] But adoration of supernatural beings which are {668} considered at least occasionally beneficent is also very prevalent among uncivilised peoples.[31] The gods of the pagan Lapps were all good, although they took revenge upon those who offended them.[32] Among the Navaho Indians of New Mexico "the gods who are supposed to love and help men the most receive the greatest honour"; whereas the evil spirits are not worshipped except, rumour says, by the witches.[33] The belief in guardian or tutelary spirits of tribes, clans, villages, families, or individuals, is extremely widespread.[34] These spirits may be exacting enough--they are often greatly feared by their own worshippers, and sometimes described as distinctly malignant {669} by nature;[35] but their general function is nevertheless to afford assistance to the person or persons with whom they are associated. At the same time it should be noticed that the goodness of many savage gods only consists in their readiness to help those who please them by offerings or adoration; and in no case does their benevolence prove that they take an active interest in morality at large. A friendly supernatural being is not necessarily a guardian of men's behaviour towards their fellow men. In Morocco the patron saint of a town, village, or tribe is not in the least concerned about any kind of conduct which has not immediate reference to himself.[36] It is believed that even the robber may, by invoking a dead saint, secure his assistance in an unlawful enterprise.

[Footnote 30: Wilken, Het Animisme bij de volken van den Indischen Archipel, p. 207 sq. Perham, 'Sea Dyak Religion,' in Jour. Straits Branch Roy. Asiatic Soc. no. 10, p. 220; St. John, Life in the Forests of the Far East, i. 69 sq. (Sea Dyaks). Blumentritt, 'Der Ahnencultus und die religiösen Anschauungen der Malaien des Philippinen-Archipels,' in Mittheil. d. kais. u. kön. Geograph. Gesellsch. in Wien, xxv. 166 sqq. Prain, 'Angami Nagas,' in Revue coloniale internationale, v. 489. Forsyth, op. cit. pp. 141, 143 (Gonds). Hooker, Himalayan Journals, i. 126 (Lepchas). Robertson, History of America, i. 383; Müller, Geschichte der Amerikanischen Urreligionen, pp. 150, 151, 232, 260; Dorman, Origin of Primitive Superstition, p. 30 (American Indians). Sproat, Scenes and Studies of Savage Life, p. 212 (Ahts). Falkner, Description of Patagonia, p. 116; Prichard, Through the Heart of Patagonia, p. 97.]

[Footnote 31: See supra, ii. 615 sq.]

[Footnote 32: von Düben, Lappland, pp. 227, 285. Friis, Lappisk Mythologi, p. 106. Jessen, Norske Finners og Lappers Hedenske Religion, p. 33.]

[Footnote 33: Matthews, Navaho Legends, p. 40. See also ibid. p. 33.]

[Footnote 34: Ellis, Tshi-speaking Peoples of the Gold Coast, pp. 17, 18, 77, 92. Idem, E[(w]e-speaking Peoples of the Slave Coast, p. 75. Wilson, Western Africa, p. 387 (Mpongwe). Tuckey, River Zaire, p. 375. Ellis, History of Madagascar, i. 395 sq. Ratzel, History of Mankind, i. 321 (various South Sea Islanders). Turner, Samoa, p. 17 sq. Williams and Calvert, Fiji, p. 185 sq. Inglis, op. cit. p. 30 (people of Aneiteum). Christian, Caroline Islands, p. 75. Wilken, Het Animisme, pp. 231 sqq. (Minahassers, Macassars, and Bugis of Celebes), 243 (Javanese). Selenka, Sonnige Welten, p. 103 sq. (Dyaks). Forbes, Insulinde, p. 203 (natives of Tenimber). von Brenner, Besuch bei den Kannibalen Sumatras, p. 221 (Bataks). Mason, 'Religion, &c. among the Karens,' in Jour. Asiatic Soc. Bengal, xxxiv. 196. Hunter, Annals of Rural Bengal, i. 182, 186 sq. (Santals). Hodgson, Miscellaneous Essays, i. 128 (Bódo and Dhimáls). Bailey, 'Veddahs of Ceylon,' in Trans. Ethn. Soc. N.S. ii. 301; Nevill, 'Vaeddas of Ceylon,' in Taprobanian, i. 194. Schmidt, Ceylon, p. 291 sq. (Tamils). Bergmann, Nomadische Streifereien unter den Kalmüken, iii. 182 sq. Abercromby, Pre- and Proto-historic Finns, i. 160 (Ostiaks). Buch, 'Die Wotjaken,' in Acta Soc. Scient. Fennicæ, xii. 595 sq. Castrén, Nordiska resor och forskningar, iii. 106, 107, 174 sq. (Finnish tribes). Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 591. Turner, ibid. xi. 193 sq. (Hudson Bay Eskimo), 272 (Hudson Bay Indians). Hoffman, 'Menomini Indians,' ibid. xiv. 65. McGee, 'Siouan Indians,' ibid. xv. 179; Parkman, op. cit. p. lxx; Dorman, op. cit. p. 227 (North American Indians). Müller, Geschichte der Amerikanischen Urreligionen, pp. 72 (North American Indians), 171 (Indians of the Great Antilles). Couto de Magalhães, Trabalho preparatorio para aproveitamento do selvagem no Brazil--O selvagem, p. 128 sqq. Tylor, op. cit. ii. 199 sqq.]

[Footnote 35: Schmidt, Ceylon, p. 291 sq. (Tamils). Turner, in Ann. Rep. Bur. Ethn. xi. 193 sq. (Hudson Bay Eskimo), 272 (Hudson Bay Indians). McGee, ibid. xv. 179; Müller, op. cit. p. 72 (North American Indians).]

[Footnote 36: For a singular exception to this rule see supra, ii. 67 sq.]

On the other hand, instances are not wanting in which savage gods are supposed to punish the transgression of rules relating to worldly morality. Occasionally, as we have noticed above, such gods are represented as avengers of some special kind of wrong-doing--murder,[37] theft,[38] niggardliness,[39] want of hospitality,[40] or lying.[41] Of certain Negro tribes we are told that, "when a man is about to commit a crime, or do that which his conscience tells him he ought not to do, he lays aside his fetiche, and covers up his deity, that he may not be privy to the deed."[42] The Tonga Islanders "firmly believe that the gods approve of virtue, and are displeased with vice; that every

man has his tutelar deity, who will protect him as long as he conducts himself as he ought to do; but, if he does not, will leave him to the approaches of misfortune, disease, and death. . . . All rewards for virtue or punishments for vice happen to men in this world only, {670} and come immediately from the gods."[43] The Ainu of Japan are heard to say, "We could not go contrary to the customs of our ancestors without bringing down upon us the wrath of the gods."[44] And of various savages we are told that they believe in the existence of a supreme being who is a moral lawgiver or judge.

[Footnote 37: Supra, i. 378 sq.]

[Footnote 38: Supra, ii. 59 sq.]

[Footnote 39: Supra, i. 561 sq.]

[Footnote 40: Supra, i. 578.]

[Footnote 41: Supra, ii. 114 sq.]

[Footnote 42: Tuckey, op. cit. p. 377. Cf. Monrad, Skildring af Guinea-Kysten, p. 27, n. *]

[Footnote 43: Mariner, Natives of the Tonga Islands, ii. 149, 107.]

[Footnote 44: Batchelor, Ainu of Japan, p. 243 sq.]

In Australia, especially in New South Wales and Victoria but also in other parts of the continent, many of the native tribes have the notion of an "All-father," called Baiame, Daramulun, Mungan-ngalla, Bunjil, Nurelli, Nurundere, or by some other name.[45] He is represented as an anthropomorphic, supernatural being and as the father of the race or the maker of everything, who at one time dwelt on the earth but afterwards ascended to a land beyond the sky, where he still remains. He is of a kindly disposition, and requires no worship; in a very few cases only we meet with some faint traces of a cult offered him.[46] {671} He is frequently believed to have instituted the initiation ceremonies,[47] and to have given the people their laws.[48] Thus Nurundere is said to have taught the Narrinyeri all the rites and ceremonies whether connected with life or death; on inquiry why they adhere to any custom, the reply is that Nurundere commanded it.[49] At the boorah, or initiation, of the Euahlayi tribe, Byamee is proclaimed as "Father of All, whose laws the tribes are now obeying"; and in one of their myths he is described as the original source of all the totems and of the law that persons of the same totem may not intermarry.[50] Bunjil taught the Kulin the arts of life, and told them to divide themselves into two intermarrying classes so as to prevent marriages between kindred.[51] Daramulun instructed the Yuin what to do and gave them laws which the old people have handed down from father to son to the present time.[52] And in several instances the Australian "All-father" is represented as a guardian of morality who punishes the wicked and rewards the good. Bunjil "very frequently sent his sons to destroy bad men and bad women . . . who had killed and eaten blacks."[53] Daramulun, or Tharamulun, who from his residence in the sky watches the actions of men, "is very angry when they do things that they ought not to do, as when they eat forbidden food."[54] The natives of the Herbert River, in Queensland, believe that anybody who takes a wife from the prohibited sub-class, or who does not wear the morning necklace for the prescribed period, or who eats forbidden food, will sooner or later die in consequence, since his behaviour is offensive to Kohin, a supernatural being who is supposed to have his dwelling in the Milky Way but to roam about at night on earth as a gigantic warrior killing those whom he meets.[55] Most commonly, however, the retribution is said to come after death. {672} The tribes about Maryborough, in Queensland, maintain that the ghosts of those who are good or those who have a high degree of excellence in any particular line--fishing, hunting, fighting, dancing, and so forth--are directed by Birral to an island in the Far North, where he resides.[56] Among the Cape River

tribes, "when a Blackfellow dies whose actions during life have been what they hold to be good, he is said to ascend to Boorala (i.e., to the Creator, literally 'good'), where he lives much as he did on earth, less the usual terrestrial discomforts"; whereas to the man who has led a bad life death is thought to be simple annihilation.[57] The Kulin said that when they die they will be subjected to a sort of trial by Binbeal, "the good being rewarded in a better land, the bad driven away, but where they seemed to have no idea."[58] According to another account, again, Binbeal, after he has subjected the spirits of the deceased to an ordeal of fire to try whether they are good or bad, liberates the good at once, whereas the bad are confined and punished.[59] The Illawarra, who lived from thirty to a hundred miles south of Sidney, believed that when people die they are brought up to a large tree where Mirirul, the supreme ruler, examines and judges them. The good he takes up to the sky, the bad he sends to another place to be punished. The women said to their children when they were naughty, "Mirirul will not allow it."[60] Among the Wathiwathi, in New South Wales, the belief prevails that if the spirit of a bad man escapes the traps which are set for it on its course in the sky, it is sure to fall into the hell of fire. The good spirit, on the other hand, is received by two old women who take care of it till it becomes accustomed to its new abode; and after a time the great God, Tha-tha-puli, comes with a host of spirits to see the newcomer and try his strength.[61] According to a report written by Archdeacon Günther in 1839, Baiame is supposed to like the blacks who are good; and "there is also an idea entertained by the more thoughtful that good natives will go to Baiame when they die."[62] Later authorities state that Baiame is believed not only to reward the good after death, but also to punish the wicked--that is, persons who tell lies or kill men by striking them secretly or who are unkind towards the old and sick or, generally, who break his laws.[63] A very elaborate {673} theory of retribution is communicated by Mr. Manning, whose notes date from 1844 or 1845. Boyma (Baiame) is said to be seated far away in the north-east on an immense throne made of transparent crystal and standing in a great lake. He has a son, Grogoragally, equal with him in omniscience, who acts as mediator for the souls to the Great God. His office is to watch over the actions of mankind and to bring to life the dead to appear before the judgment-seat of his Father, who alone pronounces the judgment of eternal happiness in heaven or eternal misery in a hell of everlasting fire. Women and boys dying before the initiation, however, do not go to heaven; the men have a vague idea that another world is reserved for them. There is also a third person, half human, half divine, called Moodgeegally, who makes Boyma's will known to mankind and is the avowed enemy of all wicked people, transmitting their misdeeds to Grogoragally.[64]

[Footnote 45: Henderson, Colonies of New South Wales, p. 147. de Strzelecki, New South Wales, p. 339. Manning, 'Aborigines of New Holland,' in Jour. and Proceed. Roy. Soc. N.S. Wales, xvi. 157 sqq. Ridley, Kámilaróoi, p. 135 sqq. Cameron, 'Some Tribes of New South Wales,' in Jour. Anthr. Inst. xiv. 364 sq. Langloh Parker, Euahlayi Tribe, p. 4 sqq. Threlkeld, An Australian Language as spoken by the Awabakal, p. 47. Mathews, Aboriginal Tribes of New South Wales and Victoria, p. 138 sqq. Mathew, Eagle-hawk and Crow, p. 146 sqq. Fountain and Ward, Rambles of an Australian Naturalist, p. 296. Missions-Blatt aus der Brüdergemeine, xvi. 101, 143; Parker, Aborigines of Australia, p. 24; Dawson, Australian Aborigines, p. 49 (tribes in Victoria). Brough Smyth, Aborigines of Victoria, i. 423 sqq. Taplin, 'Narrinyeri,' in Woods, Native Tribes of South Australia, p. 55 sqq. Howitt, Native Tribes of South-East Australia, p. 489 sqq. Spencer and Gillen, Northern Tribes of Central Australia, p. 498 sq. (Kaitish). Strehlow, quoted by Thomas, 'Religious Ideas of the Arunta,' in Folk-Lore, xvi. 429 sq. Idem, quoted by von Leonhardi,

'Religiöse und totemistische Vorstellungen der Aranda und Loritja in Zentralaustralien,' in Globus, xci. 286 sq. Curr, The Australian Race, i. 253 (Larrak[=i]a); ii. 465, 475 (some Cape River natives). Lang, Cooksland, p. 459 sq.; Idem, Queensland, p. 379 sq. Roth, Ethnol. Studies among the North-West-Central Queensland Aborigines, pp. 16, 153. 158. Salvado, Mémoires historiques sur l'Australie, p. 258 (natives of West Australia).]

[Footnote 46: When the natives of Cooksland, in North-Eastern Australia, rob a wild bees' hive they generally leave a little of the honey for Buddai, the supernatural ancestor of their race (Lang, Cooksland, p. 460; Idem, Queensland, p. 380). Mrs. Langloh Parker (op. cit. pp. 8, 9, 79, 89) was told that in the Euahlayi tribe prayers are addressed to Byamee at funerals for the souls of the dead, and that at some initiatory rites the oldest medicine-man present addresses a prayer to him asking him to give the people long life as they have kept his law; but they do not profess to pray or to have prayed to Byamee on any other occasions (cf. Manning, loc. cit. p. 164). The natives inhabiting the neighbourhood of Lake Boga in Victoria have to placate Pei-a-mei by dances (Missions-Blatt aus der Brüdergemeine, xvi. 143). Of the South-Eastern Australian Daramulun Mr. Howitt says (op. cit. p. 507 sq.) that, although there is no worship of him, "the dances round the figure of clay and the invocating of his name by the medicine-men certainly might have led up to it."]

[Footnote 47: Manning, loc. cit. p. 165; Ridley, op. cit. pp. 141, 155; Langloh Parker, op. cit. p. 7 (Boyma, Baiame, Byamee). Howitt, op. cit. p. 495 (Daramulun). M'Kinlay, quoted ibid. p. 496. Mr. Threlkeld says (op. cit. p. 47) that Koin, an imaginary male being who has the appearance of a black, is supposed to precede the coming of the natives from distant parts when they assemble to celebrate certain of their ceremonies.]

[Footnote 48: Howitt, op. cit. p. 489 (Nurelli of the Wiimbaio). M'Kinlay, quoted ibid. p. 496.]

[Footnote 49: Taplin, in Woods, op. cit. p. 55.]

[Footnote 50: Langloh Parker, op. cit. p. 7 sq.]

[Footnote 51: Howitt, op. cit. p. 491.]

[Footnote 52: Ibid. p. 495.]

[Footnote 53: Brough Smyth, op. cit. i. 423.]

[Footnote 54: Howitt, op. cit. p. 495.]

[Footnote 55: Ibid. p. 499.]

[Footnote 56: Howitt, op. cit. p. 498.]

[Footnote 57: Curr, op. cit. ii. 475.]

[Footnote 58: Parker, Aborigines of Australia, p. 24.]

[Footnote 59: Ridley, op. cit. p. 137.]

[Footnote 60: Ibid. p. 137.]

[Footnote 61: Cameron, in Jour. Anthr. Inst. xiv. 364 sq.]

[Footnote 62: Günther, quoted by Thomas, in Man, 1905, p. 51.]

[Footnote 63: Ridley, op. cit. pp. 135, 136, 140. Langloh Parker, op. cit. p. 70.]

[Footnote 64: Manning, loc. cit. p. 159 sqq.]

It seems probable that these statements represent a mixture of Christian ideas and genuine aboriginal beliefs. There is reason to believe that the Australian notion of an "All-father" is not in the first instance due to missionary influence;[65] we have records of it from a comparatively early date, it is spread over a wide area, it has been found among natives who live in a state of great isolation, and the multitude of different names by which the "All-father" is called in different tribes does not suggest a recent origin from a common source. He may very well be a mythical ancestor. Mr. Howitt observes that the master in the sky-country represents the Australian idea of a headman--"a

man who is skilful in the use of weapons of offence and defence, all-powerful in magic, but generous and liberal to his people, who does no injury or violence to any one, yet treats with severity any breaches of custom or morality."[66] But he may also be a personification of supernatural force in general, or a being who has been invented to account for all kinds of marvellous phenomena. The word altjira, by which the Arunta call their great god, is apparently not a proper name; according to Kempe, it is applied to five gods, whose names he gives, as also to the sun, moon, and remarkable things generally.[67] And Mulkari, who figures in the beliefs of some Queensland tribes, is described not only as "a benevolent, omnipresent, supernatural being," but as "anything incomprehensible," as {674} the supernatural power who makes everything which the blacks cannot otherwise account for.[68] On the other hand, it is hardly possible to doubt that in various instances Christian conceptions have been infused into the aboriginal belief either by the natives themselves or by our informants.[69] Biblical traits are conspicuous in some of the legends. Bishop Salvado tells us that, according to West Australian beliefs, the Creator, Motogon, "employa ces paroles: 'Terre, parais dehors': et il souffla, et la terre fut créée. 'Eau, parais dehors'; et il souffla, et l'eau fut créée."[70] The believers in Nourelle give the following account of the origin of death:--The first created man and woman were told not to go near a certain tree in which a bat was living, as the bat was not to be disturbed. But one day the woman, while gathering firewood, went near the forbidden tree; the bat flew away and after that came death.[71] And the same natives also believe that Nourelle created a great serpent, to which he gave power over all created things.[72] So also the doctrine of a hell with everlasting fire has almost certainly a foreign origin; and in some other points the genuineness of the Australian theories of retribution is at least open to doubt, even though the function of a judge cannot be regarded as incompatible with the notion of a mythical headman in the sky. Messrs. Spencer and Gillen observe that it would be a very easy matter indeed to form, as the result of a general statement such as might be made by any individual native in reply to a question, a perfectly wrong impression with regard to the native's idea as to the existence of anything like a supreme being inculcating moral rules.[73] Of the Central Australian aborigines they say:--"Any such idea as that of a future life of happiness or the reverse, as a reward for meritorious or as a punishment for blameworthy conduct, is quite foreign to them. . . . We know of no tribe in which there is a belief of any kind in a supreme being who rewards or punishes the individual according to his moral behaviour, using the word moral in the native sense."[74] So far as the Arunta are concerned, this statement is confirmed by Mr. Strehlow. He writes that their god Altjira, who lives in the sky and shows himself to man in the lightning, is a {675} good god who never inflicts any punishments on human beings.[75]

[Footnote 65: See especially Howitt, op. cit. p. 504 sqq.; Lang, Magic and Religion, p. 25 sqq.; Thomas, in Man, p. 50 sqq.; von Leonhardi, in Globus, xci. 287.]

[Footnote 66: Howitt, op. cit. p. 507. See also ibid. p. 501.]

[Footnote 67: Thomas, in Folk-Lore, xvi. 431.]

[Footnote 68: Roth, op. cit. pp. 36, 153.]

[Footnote 69: Mr. J. D. Lang (Queensland, p. 379 sq.; Cooksland, p. 459 sq.) even suspects Asiatic influence in the case of Buddai, or Budjah, the mythical ancestor of certain Queensland aborigines. Not only does his name remind of Buddha, but a story told of him is remarkably similar to an Eastern legend.]

[Footnote 70: Salvado, op. cit. p. 258.]

[Footnote 71: Brough Smyth, op. cit. i. 428.]

[Footnote 72: Ibid. i. 423.]

[Footnote 73: Spencer and Gillen, Northern Tribes of Central Australia, p. 492 sqq.]

[Footnote 74: Ibid. p. 491.]

[Footnote 75: Strehlow, quoted by Thomas, in Folk-Lore, xvi. 429 sq. Idem, quoted by von Leonhardi, in Globus, xci. 287.]

From various Polynesian and Melanesian islands we hear of a supreme being--called Io by the Maoris,[76] Tangaroa by the Samoans,[77] Taaroa by the Society Islanders,[78] and so forth[79]--who has made everything, but who is too remote and indistinct to be an object of worship and takes no interest in the morals of men. In some instances at least he seems to be a very shadowy deification of the forces of nature. Thus Io is described as "the great originator, the All-Father, who pervades space, has no residence, and cannot be localised"; and the conception of Tangaroa is equally abstract.[80] Mr. Guppy learned that the natives of Treasury Island and the Shortlands, in the Solomon Group, believe in a Good Spirit who lives in a pleasant land, whither all men who have led good lives go after death; whereas all bad people are transported to the crater of Bagana, the burning volcano of Bougainville, which is the home of the Evil Spirit and his companion spirits.[81] But this belief savours too much of a Christian hell to be accepted as genuine without further evidence.

[Footnote 76: Gudgeon, 'Maori Religion,' in Jour. Polynesian Soc. xiv. 108 sq.]

[Footnote 77: Ibid. p. 108 sq.]

[Footnote 78: Ellis, Polynesian Researches, i. 323 sqq.]

[Footnote 79: Tylor, op. cit. ii. 344 sqq. Hoffmann, La notion de l'Être suprême chez les peuples non civilisés, p. 70 sqq.]

[Footnote 80: Gudgeon, in Jour. Polynesian Soc. xiv. 108.]

[Footnote 81: Guppy, Solomon Islands, p. 53.]

The Sea Dyaks of Borneo have a great good god called Batara, or Petara, who created the world and rules over it, and is the cause of every blessing. He is not susceptible to human influence, and therefore receives no worship. But he approves of industry, honesty, purity of speech, and skill in word and work. He punishes theft, injustice, disrespect for old persons, and adultery; and immorality among the unmarried is supposed to bring a plague of rain upon the earth as a punishment inflicted by Petara. In general, says Mr. Perham, he is against man's sin; but over and above moral offences many sins have been invented which are simply the infringement of pemate, or tabu.[82] Like many other great gods of savages, Petara is lacking in individuality. He is at all events not now supposed to be one supreme god, but the general belief is that there are many Petaras--in fact as many Petaras as men. Each man, the people say, has his own peculiar Petara, his own tutelary deity, and if a {676} person is miserable it is because his Petara is miserable.[83] This account, however, loses much of its interest when we find that the name Batara or Petara has obviously been borrowed from Sanscrit, where the word bha[t.][t.]âra means "lord" or "master."[84] The great gods of some other peoples in the Malay Archipelago, again, have names which are derived from Arabic--Lahatala, Latala, or Hatalla, from Allah ta[(]âla. Hence when the Alfura of Bura are heard to say that their highest god, Opo-geba-snulat or Lahatala, writes down in a book the actions of men so as to be able to reward the virtuous and punish the wicked as they deserve, there is every reason to think of influence from Muhammedanism.[85]

[Footnote 82: Perham, 'Petara,' in Jour. Straits Branch Roy. Asiatic Soc. no. 8, p. 149 sq. St. John, Life in the Forests of the Far East, i. 69 sq. Selenka, op. cit. p. 97 sqq.]

[Footnote 83: Perham, in Jour. Straits Branch Roy. Asiatic Soc. no. 8, p. 134 sq.]

[Footnote 84: Ibid. p. 133. Wilken, Het Animisme, p. 162.]

[Footnote 85: Wilken, op. cit. pp. 162, 240 sq.]

The Andaman Islanders are reported to believe in a supreme being, P[=u]luga, who was never born and is immortal, who has created the world and all its objects, who is omniscient when it is day, knowing even the thoughts of their hearts. Whilst pitiful to those in distress, he is angered by the commission of certain sins--falsehood, theft, grave assault, murder, adultery, and burning wax. He is the judge from whom each soul receives its sentence after death. The "spirits" of the departed are sent by him to a place comprising the whole area under the earth, to await the resurrection. The "souls" of the departed, again, pass either into paradise or to another place which might be described as purgatory, a place of punishment for those who have been guilty of heinous sins, such as murder. At the resurrection the soul (from which evil emanates) and the spirit (from which all good emanates) will be reunited and will henceforth live permanently on the new earth, since the souls of the wicked will then have been reformed by the punishments inflicted on them during their residence in the "purgatory."[86] Mr. Man, who has given us this account, thinks it is extremely improbable that the legends about P[=u]luga, about the powers of good and evil, and about a world beyond the grave, are the result of the teaching of missionaries or others.[87] But his assumption that they are indigenous seems hardly justified by the very scanty knowledge we possess of the past history of these islanders. Considering their low state of culture, the metaphysical subtlety in some of the notions recorded by Mr. Man would certainly be more astonishing if India were not so near.

[Footnote 86: Man, 'Aboriginal Inhabitants of the Andaman Islands,' in Jour. Anthr. Inst. xii. 112, 157, 158, 161 sq.]

[Footnote 87: Ibid. p. 156.]

{677}Among the Karens of Burma the belief is held that Hades has a king or judge who stands at the door to admit or reject those who apply for admission into his kingdom. He decides the future of each. Those who have performed meritorious works are sent to the regions of happiness above; those who have done wickedness, such as striking father or mother, are delivered over to the king of hell who is in waiting; whilst those who have neither performed deeds of merit nor are guilty of great crimes are allotted a place in Hades.[88] At the same time the Karens' ideas of a future state are described as confused, indefinite, and contradictory. Mr. Mason writes:--"They seem to be a melee of different systems. That which appears to me indigenous Karen . . . represents the future world as a counterpart of this, located under the earth, where the inhabitants are employed precisely as they are here."[89] The Pahárias of the Rájmahal Hills believe that the souls of those who have been disobedient to the commands of Bedo Gosain will be condemned either to inhabit some portion of the vegetable kingdom for a certain number of years, or to be cast into a pit of fire, where the offender will suffer eternal punishment or be regenerated in the shape of a dog or a cat. Those who have led a good life, on the other hand, will be rewarded, first by enjoying a short but happy residence with Bedo Gosain in heaven, and subsequently by being born a second time on earth of women and being exalted to posts of great honour, as also by possessing an abundance of worldly goods.[90] In these notions our chief informant, Lieutenant Shaw, sees traces of Hinduism.[91] Lack of detailed information makes it impossible to decide whether the belief in a creator and heavenly judge which has been found in some other uncivilised tribes in India might be traced to a similar influence. The Munda Kols in Central Bengal maintain that the good and almighty Singbonga, who lives in the sky and is connected with the sun, has made everything. Being so far away he occupies himself very little with earthly matters, and is only in exceptional cases an object of worship; but he sees everything which happens, and is said to punish theft

and insincerity.[92] So also the Kukis recognise a benevolent and all-powerful god {678} and creator, called Puthén, who is the judge of all mortals and awards punishments to the wicked both in this world and in the next.[93]

[Footnote 88: Mason, in Jour. Asiatic Soc. Bengal, xxxiv. 196.]

[Footnote 89: Ibid. p. 195.]

[Footnote 90: Shaw, 'Inhabitants of the Hills near Rájamahall,' in Asiatick Researches, iv. 48 sqq. Sherwill, 'Tour through the Rájmahal Hills,' in Jour. Asiatic Soc. Bengal, xx. 556.]

[Footnote 91: Shaw, in Asiatick Researches, iv. 46.]

[Footnote 92: Jellinghaus, 'Sagen, Sitten und Gebräuche der Munda-Kolhs in Chota Nagpore,' in Zeitschr. f. Ethnologie, iii. 330 sq.]

[Footnote 93: Stewart, 'Northern Cachar,' in Jour. Asiatic Soc. Bengal, xxiv. 628.]

The Ainu of Japan believe in a great god or creator who bestows blessings upon the good and visits the bad with disease, unless they repent. They also say that good people go after death to the "island of the Great Spirit," or to the "kingdom of God," to lead a happy life; whereas bad people go to the "bad island," or to the "wet underground world," in which they suffer discomfort or, according to some, are burned in everlasting fires.[94] Of the pagan Samoyedes we are told that they regard the great Num as the creator of the universe, as an all-powerful and omniscient being, who protects the innocent, rewards the virtuous, and punishes the wicked.[95] But the primitive Num, who was simply the sky, was too far removed from the nomads who wandered across the frozen plain, to interfere to prevent catastrophe or accomplish their well-being; and in the provident actions and overseeing which some of the Samoyedes now ascribe to him, "we can clearly enough trace the influence of the missionary and the suggestion of the Christian faith."[96]

[Footnote 94: von Siebold, Die Aino auf der Insel Yesso, p. 24. Batchelor, Ainu of Japan, pp. 199, 235 sqq. Howard, Life with Trans-Siberian Savages, p. 193.]

[Footnote 95: Castrén, op. cit. iii. 14.]

[Footnote 96: Jackson, in Jour. Anthr. Inst. xxiv. 398. See also Castrén, op. cit. iii. 14-16, 182 sqq.]

Dr. Rink asserts that the Greenlanders considered Tornarsuk as the supreme being on whom they were dependent for any supernatural aid, and in whose abodes in the depth of the earth all such persons as had striven and suffered for the benefit of their fellow men should find a happy existence after death.[97] Dr. Nansen, however, is of opinion that Tornarsuk owes a great deal to missionary influence.[98] That he was not so superior a being as is commonly stated is evident from Captain Holm's description of the Angmagsaliks in Eastern Greenland, where he is represented as a monster living in the sea, of about the same length as a big seal, but thicker.[99] And to judge from Egede's description dating from the earlier part of the eighteenth century, Tornarsuk's notions of justice, if he had any, must in olden times have been very limited, as he took to his subterranean paradise only women that died in labour and men that perished at sea.[100]

[Footnote 97: Rink, Greenland, p. 141.]

[Footnote 98: Nansen, Eskimo Life, p. 242.]

[Footnote 99: Holm, 'Ethnologisk Skizze af Angmagsalikerne,' in Meddelelser om Grönland, x. 115.]

[Footnote 100: Egede, Description of Greenland, p. 197.]

{679} The "Great Spirit" so often referred to in accounts of North American Indians, is described as a being too elevated and remote to take much interest in the destinies and

actions of men and too benevolent by nature to require propitiation or worship. Schoolcraft asserts that in their oral traditions there is no attempt "to make man accountable to him, here or hereafter, for aberrations from virtue, good will, truth, or any form of moral right. With benevolence and pity as prime attributes the Great Transcendental Spirit of the Indian does not take upon himself a righteous administration of the world's affairs, but, on the contrary, leaves it to be filled, and its affairs, in reality, governed, by demons and fiends in human form."[101] Yet there are instances in which he is represented in a different light. The most essential moral precepts of the Iroquois "were taught as the will of the Great Spirit, and obedience to their requirements as acceptable in his sight";[102] but whilst highly gratified with their virtues, he detested their vices, and punished them for their bad conduct not only in this world but in a future state of existence.[103] The Potawatomis considered that rape was visited by the anger of the Great Spirit.[104] Ti-ra'-wa, the supreme being of the Pawnees, applauds valour, abhors theft, and punishes the wicked by annihilation, whilst the good dwell with him in his heavenly home.[105] The Indians of Alabama told Bossu that those who behave themselves foolishly and disregard the supreme being will after death go to a barren land full of thorns and briars, with no hunting and no wives, whereas those who neither rob nor kill nor take other men's wives will occupy a very fertile country and live there a happy life.[106] Keating states that, according to the beliefs of the Dacotahs, men go to the residence of the Great Spirit if they have been good and peaceable, or if they died by the hand of their enemy, but that their souls are doomed to the residence of the Evil Spirit if they perish in a broil with their own countrymen.[107] This statement, however, is not supported by other authorities. Prescott writes of the same Indians:--"They have very little notion of punishment for crime hereafter in eternity: indeed, they know very little about whether the Great Spirit has anything to do with their affairs, present or future."[108] {680} And among the Omaha and Ponka, who are branches of the same people, the old men used to say to their fellow tribesmen, "If you are good, you will go to the good ghosts; if you are bad you will go to the bad ghosts." But nothing was ever said of going to dwell with Wakanda, or with demons.[109] As regards the origin of the North American notion of the Great Spirit different opinions have been expressed. On the one hand we are told that it is essentially only "the Indian's conception of the white man's god," which belongs not to the untutored but to the tutored mind of the savage.[110] On the other hand it is argued that the belief in the Great Spirit must be a native product, since it is reported to have occurred already before the arrival of the earliest Jesuit missionaries.[111] Unfortunately, however, we cannot be sure that our informants have accurately interpreted the beliefs of the Indians. Mr. Dorsey has pointed out that a fruitful source of error has been a misunderstanding of their terms and phrases.[112] The Dacotah word wakanda, which has been rendered into "Great Spirit," simply means "mystery," or "mysterious," and signifies rather a quality than a definite entity. Among many tribes the sun is wakanda, among the same tribes the moon is wakanda, and so are thunder, lightning, the stars, the winds, as also various animals, trees, and inanimate objects or places of a striking character; even a man, especially a medicine-man, may be considered wakanda.[113] So, too, the Menomini term mashä' ma' nid[=o], or "great unknown," is not to be understood as implying a belief in one supreme being; there are several manidos, each supreme in his own realm, as well as many lesser mysteries, or deities, or spirits.[114] Mr. Dorsey also observes that in many cases Indians have been quick to adopt the phrases of civilisation in communicating with white people, whilst in speaking to one another they use their own terms.[115] At the same time it seems to me that if the notion of a Great Spirit had altogether a Christian origin we might expect

to find an idea of moral retribution more commonly associated with it than the {681} statements imply. It may be that among the North American Indians also, as among some other peoples, a vague conception of something like a supreme being has arisen through a personification of the mysteries in nature.[116] But if this be the case the interest which the Great Spirit in rare instances takes in human conduct may all the same be due to missionary influence. It is certainly not an original characteristic of his nature. Among the Iroquois and Pawnees, who attribute to their great god the function of a moral judge, he also receives offerings--[117] a circumstance which indicates that he cannot be regarded as a typical representative of his class.

[Footnote 101: Schoolcraft, op. cit. i. 35.]

[Footnote 102: Morgan, League of the Iroquois, p. 172.]

[Footnote 103: Seaver, Narrative of the Life of Mrs. Jemison, p. 155.]

[Footnote 104: Keating, Expedition to the Source of St. Peter's River, i. 127.]

[Footnote 105: Grinnell, Pawnee Hero Stories, p. 355. Lang, Making of Religion, p. 257.]

[Footnote 106: Bossu, Travels through Louisiana, i. 256 sq.]

[Footnote 107: Keating, op. cit. i. 393 sq.]

[Footnote 108: Schoolcraft, op. cit. ii. 195. Cf. ibid. iii. 229.]

[Footnote 109: Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 419.]

[Footnote 110: Smith, 'Myths of the Iroquois,' in Ann. Rep. Bur. Ethn. ii. 112. Tylor, 'Limits of Savage Religion,' in Jour. Anthr. Inst. xxi. 284. Boyle, 'Paganism of the Civilised Iroquois,' ibid. xxx. 266.]

[Footnote 111: Lang, Making of Religion, p. 251 sqq. Idem, Magic and Religion, p. 19 sqq. Hoffmann, op. cit. p. 86 sq.]

[Footnote 112: Dorsey, in Ann. Rep. Bur. Ethn. xi. 365 sq.]

[Footnote 113: Ibid. p. 366. McGee, in Ann. Rep. Bur. Ethn. xv. 181 sqq. Cf. James, Expedition to the Rocky Mountains, i. 268; Tylor, op. cit. ii. 343.]

[Footnote 114: Hoffman, 'Menomini Indians,' in Ann. Rep. Bur. Ethn. xiv. 39, n. 1. Cf. Parkman, Jesuits in North America, p. lxxix.]

[Footnote 115: Dorsey, in Ann. Rep. Bur. Ethn. xi. 365. See also Smith, ibid. ii. 112.]

[Footnote 116: The Great Spirit is represented by Schoolcraft (op. cit. i. 15) as a "Soul of the Universe which inhabits and animates every thing," and is supposed to exist under every possible form in the world, animate and inanimate. Of Ti-ra'-wa it is said that he "is in and of everything" (supra, i. 448).]

[Footnote 117: Seaver, op. cit. p. 155. Supra i. 448.]

In South America, too, several tribes have been found to believe in a benevolent Great Spirit, who is indifferent to men's behaviour and is not worshipped by them.[118] Of the Passés, however, we are told by a Portuguese official who travelled in Brazil in 1774-75 that they have the idea of a creator who rewards good people by allowing their souls to stay with him and punishes the wicked by turning their souls into evil spirits.[119] But according to Mr. Bates "these notions are so far in advance of the ideas of all other tribes of Indians . . . that we must suppose them to have been derived by the docile Passés from some early missionary or traveller."[120] Of the Fuegians, again, Admiral Fitzroy writes:--"A great black man is supposed to be always wandering about the woods and mountains, who is certain of knowing every word and every action; who cannot be escaped, and who influences the weather according to men's conduct." Of this influence our informant gives the following instance. A native related a story of his brother who once killed a man--one of those very wild men who wander about in the woods supporting themselves by theft--because he stole from him a bird. Afterwards he

was very sorry for what he had done, particularly when it began to blow hard. In telling the story, the brother said:--"Rain come down--snow come down--hail come down--wind blow--blow--very much blow. Very bad to kill man. Big man in woods no like it, he very angry." The same native also reproached the surgeon {682} of the Beagle for shooting some young ducks with the old bird:--"Very bad to shoot little duck--come wind--come rain--blow--very much blow."[121] In the latter case, however, no mention was made of the black man in the woods. From Admiral Fitzroy's account Mr. Andrew Lang draws the conclusion that the Fuegians have evolved the idea of a high deity, an ethical judge, who "makes for righteousness," who searches the heart, who almost literally "marks the sparrow's fall," and whose morality is so much above the ordinary savage standard that he regards the slaying of a stranger and an enemy, caught redhanded in robbery, as a sin.[122] This statement may serve as a specimen of the spirit in which its author deals with the subject of supreme beings in savage beliefs. There is after all some difference between a high moral god and a mythical weather doctor who lives in the woods and sends bad weather if a wild man, who also lives in the woods, is killed. Mr. Bridges, our most trustworthy authority on the Fuegians, says nothing of the black man, but states that nearly all the old men among the Fuegians are medicine-men, and that these wizards make frequent incantations in which they seem to address themselves to a mysterious being called Aïapakal. And they also believe in another spirit, named Hoakils, from whom they pretend to obtain a supernatural power over life and death.[123]

[Footnote 118: Bernau, Missionary Labours in British Guiana, p. 49. Hoffmann, op. cit. p. 90 sqq.]

[Footnote 119: Ribeiro de Sampaio, Diario da viagem, p. 79.]

[Footnote 120: Bates, The Naturalist on the River Amazons, ii. 244. Cf. ibid. ii. 162; Dobrizhofter, Account of the Abipones, ii. 57 sq.; Müller, Geschichte der Amerikanischen Urreligionen, p. 289.]

[Footnote 121: King and Fitzroy, Voyages of the "Adventure" and "Beagle," ii. 180.]

[Footnote 122: Lang, Making of Religion, pp. 188, 198. The same description of the Fuegian black man is repeated by M. Hoffmann (op. cit. p. 40).]

[Footnote 123: Bridges, quoted by Hyades and Deniker, Mission scientifique du Cap Horn, vii. 256.]

The South African Bushmans, another very backward people, are likewise represented by Mr. Lang and M. Hoffmann as believers in a supreme being.[124] A native said to Mr. Orpen that Cagn made all things, and that the people prayed to him:--"O Cagn! O Cagn! are we not your children, do you not see our hunger? Give us food." And he gave them what they asked for both hands full. But although he was at first very good and nice, he afterwards "got spoilt through fighting so many things."[125] However, according to another statement, made by a person who from childhood had much intercourse with Bushmans and knew their language, they did not believe in a God or the great father of men, but in a devil who made everything with his left hand.[126] The Hottentots spoke of Tsui-goab as "the giver of all blessings, the Father on high, All-father, the {683} avenger, who fought daily the battle for his people." They thus identified him with the ancestor of the tribe, but Tsui-goab was also the name by which they called the Infinite.[127] Among the pagans of Africa there is, in fact, a very widespread belief in a benevolent supreme deity, a creator or maker of things, who lives in or above the sky, who generally takes no concern whatever in the affairs of mankind, who mostly receives no worship, and is, as a rule, totally indifferent to good or evil.[128] In some rare instances only he is described as a judge of human

conduct. Thus some of the Bechuanas believe that a being who is vaguely called by the name of Lord and Master of things, Mongalinto, punishes thieves by striking them with the lightning.[129] According to an old writer, Father Santos, the natives of Sofala in South-Eastern Africa acknowledge a god, called Molungo, "who both in this and the world to come they fancy measures retribution for the good and evil done in this." They believe in the existence of twenty-seven paradises, where everyone enjoys a pleasure proportionate to the merits of his life; while those who have passed their lives in wickedness are supposed to be condemned to a privation from the sight of the holy presence of Molungo, and to suffer torments in one of the thirteen hells they assume to exist, each according to the evil he has done.[130] The Baluba, a Bantu people of Equatorial Africa, have the notion of a creator, named Fidi-Mukullu, who punishes the souls of the wicked before they are reborn on earth, whereas the good return to life again, in the shape of chiefs or other important persons, immediately after they have died.[131] The Awemba, {684} another Bantu people, who inhabit the stretch of country lying between Lake Tanganyika and Lake Bangweolo, acknowledge a supreme being, Leza, who "is the Judge of the dead, and condemns thieves, adulterers and murderers to the state of Vibanda, or Viwa (evil spirits), exalting the good to the rank of mipashi, or benevolent spirits."[132] Other natives in the neighbourhood of Lake Tanganyika recognise a creator called Kabesa, who lives in the sky and admits to his abode the souls of good people after death, but turns away the souls of the wicked.[133] The Akikuyu of British East Africa recognise three gods all of whom are called Ngai. One of them, however, is considered the supreme deity. "If a man is good this Ngai can give him much property. If he does wrong the same power can strike him down with disease and cause his livestock to dwindle away. . . . The sudden death of a man, for instance by lightning, is ascribed to some evil act of his life being punished by Ngai."[134] Proyart tells us that the Negroes of Loango believed in a supreme being, Zambi, who had created all that is good in the world, who was himself good and loved justice in others, and who severely punished fraud and perjury.[135] It is of course impossible to say exactly how far the statements referring to African supreme beings represent unadulterated native beliefs. In criticising Kolb's account of the supreme and perfect god of the Hottentots, Bishop Callaway observes, "Nothing is more easy than to enquire of heathen savages the character of their creed, and during the conversation to impart to them . . . ideas which they never heard before, and presently to have these come back again as articles of their own original faith, when in reality they are but the echoes of one's own thoughts."[136] With reference to the West African native Miss Kingsley likewise remarks that he has a wonderful power of assimilating foreign forms of belief, and that when he once has got hold of a new idea it remains in his mind long after the missionaries who put it there have passed away.[137] And besides the teaching of missionaries there are in Africa several factors which for centuries have tended to introduce foreign conceptions, namely, intercourse with European settlers, the operations of the slave trade, and the influence of Muhammedanism.[138] But at the same {685} time it seems exceedingly probable that the African belief in a supreme being has a native substratum. In many cases he is apparently the heaven god;[139] but he may also be a mythical ancestor, as the Hottentot god Tsui-goab and the Zulu god Unkulunkulu; or a personification of the supernatural, as is suggested by such names as the Masai Ng[)a]i, the Monbuttu Kilima, and the Malagasy Andriamanitra;[140] or the assumed cause of anything which particularly fills the savage mind with wonder or awe. Among the natives of Northern Guinea, according to Mr. Wilson, "every thing which transpires in the natural world beyond the power of man, or of spirits, who are supposed to occupy a place somewhat

higher than man, is at once and spontaneously ascribed to the agency of God."[141] Nay, for reasons which will be stated immediately, I am even of opinion that the function of a moral judge, occasionally attributed to the great god of African pagans, has in some instances an independent origin.

[Footnote 124: Lang, Making of Religion, p. 210. Hoffmann, op. cit. p. 40 sq.]

[Footnote 125: Orpen, 'Glimpse into the Mythology of the Maluti Bushmen,' in The Cape Monthly Magazine, N.S. ix. 2.]

[Footnote 126: Campbell, Second Journey in the Interior of South Africa, i. 29.]

[Footnote 127: Hahn, The Supreme Being of the Khoi-Khoi, pp. 122, 126 sq.]

[Footnote 128: Livingstone, Missionary Travels, p. 641 (tribes of the Zambesi). Rattray, Stories and Songs in Chinyanja, p. 198 (natives of Central Angoniland). Stigand, 'Natives of Nyassaland,' in Jour. Roy. Anthr. Inst. xxxvii. 130. Roscoe, 'Bahima,' ibid. xxxvii. 108 sq. Wilson and Felkin, Uganda, i. 206. Beltrame, Il Fiume Bianco e i Dénka, pp. 191, 192, 276 sq. Kingsley, 'Fetish View of the Human Soul,' in Folk-Lore, viii. 142 sq.; Idem, Travels in West Africa, pp. 442, 508. Parkinson, 'Asaba People of the Niger,' in Jour. Anthr. Inst. xxxvi. 312. Bosman, Description of the Coast of Guinea, pp. 121 sq. (Gold Coast natives), 348 (Slave Coast natives). Cruickshank, Eighteen Years on the Gold Coast, ii. 126 sq. Ellis, Tshi-speaking Peoples of the Gold Coast, p. 26 sqq. Idem, E[(w]e-speaking Peoples of the Slave Coast, p. 33 sq. Winterbottom, Native Africans in the Neighbourhood of Sierra Leone, i. 222. Wilson, Western Africa, p. 209 (natives of Northern Guinea). Rowley, Religion of the Africans, pp. 15, 16, 54. Tylor, op. cit. ii. 347 sqq. Lang, Making of Religion, p. 230 sqq. Hoffmann, op. cit. p. 45 sqq.]

[Footnote 129: Arbousset and Daumas, Exploratory Tour to the North-East of the Colony of Good Hope, p. 322 sq.]

[Footnote 130: Santos, 'History of Eastern Ethiopia,' in Pinkerton, Collection of Voyages and Travels, xvi. 687.]

[Footnote 131: Wissmann, Wolf, &c., Im Innern Afrikas, p. 158. Wissmann, Quer durch Afrika, p. 379.]

[Footnote 132: Sheane, 'Awemba Religion,' in Jour. Anthr. Inst. xxxvi. 150 sq.]

[Footnote 133: Schneider, Die Religion der afrikanischen Naturvölker, p. 84.]

[Footnote 134: Tate, 'Kikuyu Tribe,' in Jour. Anthr. Inst. xxxiv. 263.]

[Footnote 135: Proyart, 'History of Loango,' in Pinkerton, Collection of Voyages and Travels, xvi. 594.]

[Footnote 136: Callaway, Religious System of the Amazulu, p. 105 sq.]

[Footnote 137: Kingsley, in Folk-Lore, viii. 150.]

[Footnote 138: Cf. Rowley, Religion of the Africans, pp. 28, 90; Wilson, Western Africa, p. 229 sq.; Cruickshank, op. cit. ii. 126.]

[Footnote 139: See Tylor, op. cit. ii. 347 sqq.]

[Footnote 140: See supra, ii. 586 sq.]

[Footnote 141: Wilson, op. cit. p. 209. See also Livingstone, Expedition to the Zambesi, p. 521 sq., quoted supra, ii. 594.]

Generally speaking, then, it seems that the All-father, supreme being, or high god of savage belief may be traced to several different sources. When not a "loan-god" of foreign extraction, he may be a mythical ancestor or headman; or a deification of the sky or some large and remote object of nature, like the sun; or a personification or personified cause of the mysteries or forces of nature. The argument that the belief in such a being is "irreducible" because it prevails among savages who worship neither ancestors nor nature,[142] can carry no weight in consideration of the fact that he himself, as a general rule, is no object of worship. In various instances we have reason

to suppose that even though the notion of a supreme being is fundamentally of native origin, foreign conceptions have been engrafted upon it; and to these belongs in particular the idea of a heavenly judge who in the after-life punishes the wicked and rewards the good. But we are not entitled to assume that the idea of moral retribution as a function of the great god has in every case been adopted {686} from people of a higher culture. A mythical ancestor or headman may of his own accord approve of virtue and disapprove of vice; and, besides, justice readily becomes the attribute of a god who is habitually appealed to in curses or oaths. That the supreme being of savages is thus invoked, is in some cases directly stated by our authorities. In making solemn treatises, the Hurons called on Oki, the heaven god.[143] The Negroes of Loango, who believed that Zambi, the supreme being, punished fraud and perjury, took his name in testimony of the truth.[144] Among the Awemba the supreme god Leza, who is believed to reward the good and to punish thieves, adulterers, and murderers, is invoked both in blessings and curses, the injured man praying that Leza will send a lion to devour the evildoer.[145] In the E[(w]e-speaking Ho tribe on the Slave Coast the great god Mawu, who is said to inflict punishment on the wicked, is frequently appealed to in law-cases, by the judge as well as by the plaintiff and the accused.[146] In Northern Guinea the name of the supreme being is solemnly called on three times at the ratification of an important treaty, or when a person is condemned to undergo the "red-water ordeal."[147] Of the Mpongwe we are told that "when a covenant is about to be formed among the different tribes, Mwetyi [the supreme being] is always invoked as a witness, and is commissioned with the duty of visiting vengeance upon the party who shall violate the engagement. Without this their national treaties would have little or no force. When a law is passed which the people wish to be especially binding, they invoke the vengeance of Mwetyi upon every transgressor, and this, as a general thing, is ample guarantee for its observance."[148] Among the East African Wakamba, when the supposed criminal is to undergo the ordeal of the hatchet, a magician makes him repeat the following words:--"If I have stolen the property of so and so, or committed this crime, let {687} Mulungu respond for me; but if I have not stolen, nor done this wickedness, may he save me." The magician then passes the red-hot iron four times over the flat hand of the accused; and the people believe that if he is guilty, his hand will be burned, but that, if innocent, he will suffer no injury.[149] Among the Masai a person who is accused of cattle-lifting and on that account subjected to the ordeal of drinking a mixture of blood and milk, has first to swear, "O God, I drink this blood, if I have stolen the cattle this blood will kill me." Should he not die within a fortnight he is considered innocent.[150] The Madi of Central Africa have various means of trial by ordeal, through which it is believed that the guilt of a suspected individual can be detected; and "before any of these trials the men look up and solemnly invoke some invisible being to punish him if guilty, or help him if innocent."[151] Of the natives of the Zambesi, all of whom have an idea of a supreme being, Livingstone states that, when undergoing an ordeal, "they hold up their hands to the Ruler of Heaven, as if appealing to him to assert their innocence."[152]

[Footnote 142: Lang, Magic and Religion, p. 42. Hoffmann, op. cit. pp. 122, 126, 131.]

[Footnote 143: Tylor, op. cit. ii. 342.]

[Footnote 144: Proyart, loc. cit. p. 594.]

[Footnote 145: Sheane, in Jour. Anthr. Inst. xxxvi. 151.]

[Footnote 146: Spieth, Die E[(w]e-Stämme, p. 415.]

[Footnote 147: Wilson, Western Africa, p. 210.]

[Footnote 148: Ibid. p. 392.]

[Footnote 149: Krapf, Travels in Eastern Africa, p. 173.]

[Footnote 150: Marker, Die Masai, p. 211.]

[Footnote 151: Felkin, 'Notes on the Madi,' in Proceed. Roy. Soc. Edinburgh, xii. 334.]

[Footnote 152: Livingstone, Missionary Travels, p. 641 sq.]

It has often been said that the oath and ordeal involve a belief in the gods as vindicators of truth and justice, that they are "appeals to the moral nature of the Divinity."[153] If this were true, moral retribution would certainly be an exceedingly common function of savage gods. But, as we have noticed before,[154] the efficacy ascribed to an oath is originally of a magic character, and if it contains an appeal to a god he is, according to primitive notions, a mere tool in the hand of the person invoking him. So also the ordeal is essentially a magical ceremony. In many cases at least, it contains a curse or an oath which has reference to the guilt or innocence of a suspected person, and the {688} proper object of the ordeal is then to give reality to the imprecation for the purpose of establishing the validity or invalidity of the suspicion.

[Footnote 153: Tiele, Elements of the Science of Religion, i. 86. Réville, Les religions des peuples non-civilisés, i. 103. Brinton, Religions of Primitive Peoples, p. 225. Schneider, Religion der afrikanischen Naturvölker, p. 255. Hodgson, Miscellaneous Essays, i. 126. Dahn, Bausteine, ii. 21, 24. Gummere, Germanic Origins, p. 183.]

[Footnote 154: Supra, ii. 118 sqq.]

Thus in West Africa the common ordeal which consists in drinking a certain draught or "eating the fetish" is regularly accompanied by an oath or a curse.[155] In the Calabar the accused person, before swallowing the ju-ju drink mbiam, which is made of filth and blood, recites an oath beginning with the words, "If I have been guilty of this crime," and ending with the words, "Then, Mbiam, Thou deal with me!" And whenever this ordeal is used the greatest care is taken that the oath shall be recited in full.[156] Of the Negroes of the Gold Coast Bosman states that "if any person is suspected of thievery, and the indictment is not clearly made out, he is obliged to clear himself by drinking the oath-draught, and to use the imprecation, that the Fetiche may kill him if he be guilty of thievery."[157] In Ashantee, "when any one denies a theft, an aggry bead is placed in a small vessel, with some water, the person holding it puts his right foot against the right foot of the accused, who invokes the power of the bead to kill him if he is guilty, and then takes it into his mouth with a little of the water."[158] Among the Negroes of Northern Guinea, in the case of the "red-water ordeal," the accused "invokes the name of God three times, and imprecates his wrath in case he is guilty of the particular crime laid to his charge." He then steps forward and drinks freely of the "red water"--that is, a decoction made from the inner bark of a tree of the mimosa family. If it nauseates and makes him vomit freely, he is at once pronounced innocent, whereas, if it causes vertigo and he loses self-control, it is regarded as evidence of guilt.[159] According to an old account, the Negroes of Sierra Leone have a "water of cursing," boiled of barks and herbs. The witch-doctor puts his divining-staff into the pot and drops or presses the water out of it upon the arm or leg of the suspected person, muttering over it these words:--"Is he guilty of this, or hath he done this or that; if yea, then let it scald or burn him, till the very skin come off." If the person remains unhurt they hold him innocent, and proceed to {689} the trial of another, till the guilty is discovered.[160] Among the Wadshagga of Eastern Africa the medicine-man gives to the accused a poisonous draught with the words, "If you fall down, you have committed the crime and told a lie, if you remain standing we recognise that you have spoken the truth."[161]

[Footnote 155: See, besides the references below, Monrad, Skildring af Guinea-Kysten, p. 35 sq. (Negroes of Accra); Beecham, Ashantee, p. 215 sqq.; Ratzel, op. cit. iii. 130.]

[Footnote 156: Kingsley, Travels in West Africa, p. 465.]

[Footnote 157: Bosman, op. cit. p. 125.]

[Footnote 158: Bowdich, Mission to Ashantee, p. 267.]

[Footnote 159: Wilson, Western Africa, p. 225 sq.]

[Footnote 160: Dapper, Africa, p. 405.]

[Footnote 161: Volkens, Der Kilimandscharo, p. 249.]

Among the Hawaiians, in the ordeal called wai haalulu, "prayer was offered by the priest" while a large dish of water was placed before the culprit, who was required to hold his hands over the fluid; and if it shook, his fate was sealed.[162] Among the Tinguianes in the district of El Abra in Luzon, if a man is accused of a crime and denies it, the headman of the village, who is also the judge, causes a handful of straw to be burned in his presence. The accused then holds up an earthern pot and says, "May my belly be changed to a pot like this if I am guilty of the crime of which I am accused." If he remains unchanged in body, the judge declares him innocent.[163] The following ordeal is in use among the Tunguses of Siberia. A fire is made and a scaffold erected near the hut of the accused. A dog's throat is then cut and the blood received in a vessel. The body is put on the wood of the fire, but in such a position that it does not burn. The accused passes over the fire, and drinks two mouthfuls of the blood, the rest whereof is thrown into the fire; and the body of the dog is placed on the scaffold. Then the accused says:--"As the dog's blood burns in the fire, so may what I have drunk burn in my body; and as the dog put on the scaffold will be consumed, so may I be consumed at the same time if I be guilty."[164]

[Footnote 162: Jarves, History of the Hawaiian Islands, p. 20.]

[Footnote 163: Lala, Philippine Islands, p. 100.]

[Footnote 164: Hartland, Legend of Perseus, ii. 85 sq.]

The "trial of jealousy" mentioned in the Old Testament involved a curse pronounced by the priest to the effect that the holy water which the woman suspected of adultery had to drink should cause her belly to swell and her thigh to rot.[165] In India the ordeal was expressly regarded as a form of the oath, the same word, [s.]apatha, being used to denote both.[166] We have seen above that in the Middle Ages every judicial combat was necessarily preceded by an oath, which essentially decided the issue of the fight and the question of guilt.[167] So also at the moment when the hot iron was raised and the accused took {690} it into his hand, the Deity was invoked to manifest the truth.[168] The ordeal of the Eucharist involved the following formula recited by the victim:--"Et si aliter est quam dixi et juravi, tunc hoc Domini nostri Jesu Christi corpus non pertranseat gutur meum, sed hæreat in faucibus meis, strangulet me suffocet me ac interficiat me statim in momento."[169]

[Footnote 165: Numbers, v. 20 sqq.]

[Footnote 166: Jolly, 'Beiträge zur indischen Rechtsgeschichte,' in Zeitschr. d. Deutschen Morgenländischen Gesellsch. xliv. 346. Oldenberg, Die Religion des Veda, p. 510, n. 1. See also Patetta, Le ordalie, p. 14.]

[Footnote 167: Supra, i. 505.]

[Footnote 168: Beames, in his Translation of Glanville, p. 351 sq.]

[Footnote 169: Dahn, op. cit. ii. 16.]

To the list of ordeals which contain an oath or a curse as their governing element many other instances might probably be added in which no imprecation has been

expressly mentioned by our authorities in their short descriptions of the ceremonies. This is all the more likely to be the case as magical practices often imply imprecations which are not formally expressed.[170] But there may also be ordeals which have a different origin. Thus the custom of swimming witches seems to have arisen from the notion that everything unholy is repelled by water and unable to sink into its depths; [171] and the ordeal of touching the corpse of a murdered person no doubt originated in the belief that the soul of such a person lingered about the body until appeased by the shedding of the murderer's blood and that "by the murderer's approach, and especially by his polluted touch, the soul was excited to an instant manifestation of its indignation, by appearing in the form in which it was supposed to subsist, viz. in that of blood."[172] However, even though all ordeals have not the same foundation, it seems highly improbable that any people, in the first instance, resorted to this method of discovering innocence and guilt from a belief in a god who is by his nature a guardian of truth and justice.

[Footnote 170: See, for instance, Westermarck, 'L-[(]âr, or the Transference of Conditional Curses in Morocco,' in Anthropological Essays presented to E. B. Tylor, p. 361 sqq.]

[Footnote 171: Binsfeldius, Tractatus de confessionibus maleficorum et sagarum, p. 315. In the North-East of Scotland it was believed that, if a person committed suicide by drowning, the body did not sink, but floated on the surface (Gregor, Folk-Lore of the North-East of Scotland, p. 208).]

[Footnote 172: Pitcairn, Criminal Trials in Scotland, iii. 187.]

Nor must we make any inference as to the moral character of gods from the mere prevalence of a belief in {691} a future world where men are in some way or other punished or rewarded for their conduct during their life. Such a belief is said to be fairly common among uncivilised races;[173] and, although in several cases it is undoubtedly due to Christian or other foreign influence,[174] I agree with Dr. Steinmetz that we are not entitled to {692} assume that it is so in all.[175] It seems that the savage mind may by itself, in various ways, come to the idea of some kind of moral retribution after death. First, the condition of the dead man is often supposed to depend upon the attentions bestowed on him by the survivors. Mr. Turner was told that, in the belief of the St. Augustine Islanders in Polynesia, the souls of the departed "if good" went to a land of brightness and clear weather in the heavens, but "if bad" were sent to mud and darkness; and the answer to his next question informed him that in this case "goodness" meant that the friends of the deceased had given him a good funeral feast, and that "badness" meant that his stingy friends had provided nothing at all.[176] Although Mr. Turner sees no moral distinction in these terms, there may be one nevertheless. Speaking of the Efatese, in the New Hebrides, Mr. Macdonald observes:--"A man's condition in the future would be, to some extent, happy or miserable according to his life here. Supposing he were a worthless fellow, very scanty worship would be rendered to him at his death and few animals slain to accompany him to the spirit world; and thus he would occupy an inferior position there corresponding to his social worthlessness here. This belief," our informant adds, "has undoubtedly great influence in making men strive to live so as to obtain the good opinion of their fellows, and leave an honourable memory behind them at death."[177] The Bushmans, who maintain that the dead will ultimately go to a land abounding in excellent food, put a spear by the side of a departed friend in order that, when he arises, he may have something to defend himself with and procure a living; but, if they hate the person, they deposit no spear, so that on his resurrection he may either be murdered or starved.[178] The dead may also have to suffer from the

curses of those whom they injured while alive. At Motlav, in the {693} Banks Islands, relatives "watch the grave of a man whose life was bad, lest some man wronged by him should come at night and beat with a stone upon the grave, cursing him."[179] At Gaua, in the same group, "when a great man died his friends would not make it known, lest those whom he had oppressed should come and spit at him after his death, or govgov him, stand bickering at him with crooked fingers and drawing in the lips, by way of curse."[180] The Maoris were careful to prevent the bones of their dead relatives from falling into the hands of their enemies, "who would dreadfully desecrate and ill-use them, with many bitter jeers and curses."[181] A person may, moreover, himself during his lifetime directly provide for his comfort in the life to come, and if the act by which he does so is apt to call forth approval its result is easily interpreted as its reward. Thus the Kukis of India believe that all enemies whom a person has killed will in his future abode be in attendance on him as slaves;[182] and this belief probably accounts for their opinion that nothing more certainly ensures future happiness than destroying a number of enemies.[183] We have further to notice the common idea that a person's character after his death remains more or less as it was during his life. Hence the souls of bad people are supposed to reappear in the shape of obnoxious animals[184] or become evil spirits,[185] and this may lead to the notion that they have to do so as a punishment for their wickedness.[186] And as the revengeful feelings of men likewise are believed to last beyond death, offenders may in the {694} other world have to suffer from the hands of those whom they injured in this.[187] Some of the Nagas of Central India maintain that "a murdered man's soul receives that of his murderer in the spirit world and makes him his slave."[188] The Chippewas think that in the land of the dead "the souls of bad men are haunted by the phantoms of the persons or things they have injured."[189] In Aurora, in the New Hebrides, the belief prevails that the ghosts of those whom a man has wronged in this world take a full revenge upon him after death.[190] According to the Banks Islanders, if a person has killed a good man without cause, the good man's ghost withstands his murderer, when the latter after death wants to enter into Panoi, the good place; but if one man has killed another in fair fight he will not be withstood by the person whom he slew.[191] And not only the offended party but the other dead as well may, from dislike or fear, be anxious to refuse the souls of bad people admittance to their company. In the belief of the Pentecost Islanders, when the soul of a murdered man comes to the land of ghosts with the instrument of death upon him, he tells who killed him, and when the murderer arrives the ghostly people will not receive him, but he has to stay apart with other murderers.[192] The Iroquois allot separate villages even to the souls of those who have died in war and of those who have committed suicide, because the other dead are afraid of their presence.[193] Among the Negroes of Northern Guinea, according to Mr. Wilson, "the only idea of a future state of retribution is implied in the use of a separate burial-place for those who have died 'by the red-water ordeal' or who have been guilty of grossly wicked deeds";[194] and if a person's body is buried apart, his soul will naturally remain equally isolated.[195] That the frequent idea of the bad being separated {695} from the good after death is largely due to the assumed unwillingness of the latter to associate with dangerous or disreputable souls, seems probable from the fact that, in the beliefs of the lower races, paradise generally plays a much more prominent part than hell, the lot of the wicked being to suffer want rather than to be subjected to torments.[196] But, finally, it must also be remembered that the other world is a creation of men's fancy, and may therefore be formed in accordance with their hopes and wishes. Beyond the gloom of death they imagine a paradise where life is much happier than here on earth.[197] Why, then,

might not their moral feelings, only too often ungratified in the reality of the present, occasionally seek satisfaction in the dreams of the future?

[Footnote 173: Thomson, Savage Island, p. 94. Percy Smith, 'Futuna,' in Jour. Polynesian Soc. i. 39. Seemann, Viti, p. 400; Williams and Calvert, Fiji, p. 208. Codrington, Melanesians, p. 274 sq. (Banks' Islanders). Inglis, New Hebrides, p. 31; Turner, Samoa, p. 326 (people of Aneiteum). Campbell, A Year in the New Hebrides, p. 169 (people of Tana). Schwaner, Borneo, i. 183 (natives of the Barito district). Selenka, op. cit. pp. 88, 94, 112 (Dyaks). von Brenner, op. cit. p. 240 (Bataks of Sumatra), de Mas, Informe sobre el estado de las Islas Filipinas, 'Orijen, &c.' p. 14. Best, 'Prehistoric Civilisation in the Philippines,' in Jour. Polynesian Soc. i. 200 (Tagalo-Bisaya tribes). Worcester, Philippine Islands, p. 110 (Tagbanuas of Palawan). Smeaton, Loyal Karens of Burma, p. 186 sq. Anderson, Mandalay to Momien, p. 146 (Kakhyens). Lewin, Wild Races of South-Eastern India, p. 243 sq. (Pankhos and Bunjogees). Hunter, Rural Bengal, i. 210 (Santals). Macrae, 'Account of the Kookies,' in Asiatick Researches, vii. 195; Butler, Travels in Assam, p. 88 (Kukis). Stewart, 'Notes on Northern Cachar,' in Jour. Asiatic Soc. Bengal, xxiv. 620 (Old Kukis), 632 (Nagas). Macpherson, Memorials of Service in India, p. 92 sqq. (Kandhs). Thurston, 'Todas of the Nilgiris,' in the Madras Government Museum's Bulletin, i. 166 sq. Breeks, Tribes and Monuments of the N[=i]lagiris, p. 28 (Todas and Badagas). Radloff, op. cit. p. 11 sq. (Turkish tribes of the Altai). Georgi, Russia, i. 106 (Chuvashes). Cranz, History of Greenland, i. 186. Hall, Arctic Researches among the Esquimaux, p. 571 sq. Lyon, Private Journal, p. 372 sqq. (Eskimo of Igloolik). Boas, 'Central Eskimo,' in Ann. Rep. Bur. Ethn. vi. 590. Nelson, 'Eskimo about Bering Strait,' ibid. xviii. 423. Douglas, quoted by Petroff, Report on Alaska, p. 177 (Thlinkets). Harrison, 'Religion and Family among the Haidas,' in Jour. Anthr. Inst. xxi. 17 sqq. Duncan, quoted by Mayne, Four Years in British Columbia, p. 293 sq. (Coast Indians of British Columbia). Mackenzie, Voyages to the Frozen and Pacific Oceans, p. cxix. (Chippewyans). Morgan, League of the Iroquois, p. 168 sqq. Harmon, Journal of Voyages in the Interior of North America, p. 364 sq. (Indians on the East side of the Rocky Mountains). Keating, op. cit. i. 110 sq. (Potawatomis); ii. 158 sq. (Chippewas). Say, quoted by Dorsey, 'Siouan Cults,' in Ann. Rep. Bur. Ethn. xi. 422 (Kansas). Stevenson, 'Sia,' ibid. xi. 145 sq. Bartram, in Trans. American Ethn. Soc. iii. pt. i. 27 (Creek and Cherokee Indians). Powers, Tribes of California, pp. 34, 58, 59, 91, 110, 144, 155, 161. Buchanan, North American Indians, p. 235 sqq.; Heriot, Travels through the Canadas, pp. 362, 536; Catlin, North American Indians, i. 156, and ii. 243; Domenech, Great Deserts of North America, ii. 380 (various Indian tribes of North America), von Martius, Beiträge zur Ethnographie Amerika's, i. 247 (Guatós). von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 435 (Paressi). de Azara, Voyages dans l'Amérique méridionale, ii. 138 (Payaguás). Bosman, op. cit. p. 424 (people of Benin). Wilson, Western Africa, p. 217 (Negroes of Northern Guinea). Reade, Savage Africa, p. 539 (Ibos). Mungo Park, Travels in the Interior of Africa, p. 250 (Mandingoes). Tylor, op. cit. ii. 83 sqq. Marillier, La survivance de l'âme et l'idée de justice chez les peuples non civilisés, p. 33 sqq. Steinmetz, Ethnologische Studien zur ersten Entwicklung der Strafe, ii. 368 sqq.]

[Footnote 174: Cf. Tylor, op. cit. ii. 84, 91 sqq.; Marillier, loc. cit. p. 32 sq.]

[Footnote 175: Steinmetz, Studien, ii. 366 sqq. Idem, 'Continuität oder Lohn und Strafe im Jenseits der Wilden,' in Archiv f. Anthropologie, xxiv. 577 sqq.]

[Footnote 176: Turner, Samoa, p. 292 sq.]

[Footnote 177: Macdonald, Oceania, p. 209.]

[Footnote 178: Campbell, Second Journey in the Interior of South Africa, i. 29.]

[Footnote 179: Codrington, op. cit. p. 269.]

[Footnote 180: Ibid. p. 269.]

[Footnote 181: Colenso, Maori Races, p. 28.]

[Footnote 182: Dalton, Ethnology of Bengal, p. 46.]

[Footnote 183: Macrae, 'Account of the Kookies,' in Asiatick Researches, vii. 195.]

[Footnote 184: Hill and Thornton, Aborigines of New South Wales, p. 4. Ratzel, op. cit. i. 317 (Solomon Islanders). Junghuhn, Die Battaländer auf Sumatra, ii. 338 (natives of Bali and Lombok). Cross, quoted by Mac Mahon, Far Cathay and Farther India, p. 203 (Karens). Waitz, Anthropologie der Naturvölker, ii. 419 (Maravi). Southey, History of Brazil, iii. 392 (Guaycurus). Powers, Tribes of California, pp. 144 (Tatu), 155 (Kato Pomo).]

[Footnote 185: Bailey, 'Wild Tribes of the Veddahs,' in Trans. Ethn. Soc. N.S. ii. 302, n. [double dagger] (Sinhalese), von den Steinen, Unter den Naturvölkern Zentral-Brasiliens, p. 349 (Bakaïri).]

[Footnote 186: See Steinmetz, Studien, ii. 376; Idem, in Archiv für Anthropologie, xxiv. 603 sq.]

[Footnote 187: Cf. Marillier, loc. cit. p. 44 sq.]

[Footnote 188: Fytche, Burma, i. 354.]

[Footnote 189: Keating, op. cit. ii. 158 sq.]

[Footnote 190: Codrington, op. cit. p. 279 sq.]

[Footnote 191: Ibid. p. 274.]

[Footnote 192: Ibid. p. 288.]

[Footnote 193: Brebeuf, 'Relation de ce qui s'est passé dans le pays des Hurons,' in Relations des Jésuites, 1636, p. 104 sq. Hewitt, 'The Iroquoian Concept of the Soul,' in Jour. of American Folk-Lore, viii. 109.]

[Footnote 194: Wilson, Western Africa, p. 210.]

[Footnote 195: See supra, ii. 236 sqq.]

[Footnote 196: This is especially the case among the Indians of North America (cf. Brinton, Myths of the New World, p. 242 sq.; Dorman, op. cit. p. 33; Steinmetz, in Archiv f. Anthrop. xxiv. 591). See also Codrington, op. cit. p. 274 sq. (Banks' Islanders).]

[Footnote 197: Dove, 'Aborigines of Tasmania.' in Tasmanian Jour. Natural Science, i. 253. Polack, Manners and Customs (of the New Zealanders, i. 254; Dieffenbach, Travels in New Zealand, ii. 118. Percy Smith, 'Futuna,' in Jour. Polynesian Soc. i. 39. Batchelor, Ainu of Japan, p. 225. Steller, op. cit. p. 269 (Kamchadales). Cranz, op. cit. i. 186 (Greenlanders). Robertson, History of America, ii. 202. Arbousset and Daumas, op. cit. p. 343 (Bechuanas).]

The belief in a moral retribution after death may thus originate in various ways, quite independently of any notion of a god who acts as a judge of human conduct. When such a belief is said to prevail among a savage people it is by no means the rule that the rewards or punishments are associated with the activity of a divine being. And when, as is sometimes the case, the fate of the dead is supposed to depend upon the will of a high god, the notions held about the other world, and especially about the place reserved for the wicked, in several instances suggest influence from a more advanced religion. But on the other hand it is not an idea which seems incompatible with genuine savage thought that, in cases where the souls of men are believed to go to live with gods, the latter select their companions and, like the human inhabitants of the other world, refuse admittance to undesirable individuals.

Religious ideas have no doubt already at the savage {696} stage begun to influence the moral consciousness even in points which have no direct bearing upon the personal interests of gods; but this influence is not known to have been so great as it has often

been represented to be. I can find no solid foundation for the statements made by recent writers, that "the historical beginning of all morality is to be found in religion";[198] that even in the earliest period of human history "religion and morality are necessary correlates of each other";[199] that "all moral commandments originally have the character of religious commandments";[200] that in ancient society "all morality--as morality was then understood--was consecrated and enforced by religious motives and sanctions";[201] that the clan-god was the guardian of the tribal morality.[202] From various facts stated in this and earlier chapters I have been led to the conclusion that among uncivilised races the moral ideas relating to men's conduct towards one another have been much more influenced by the belief in magic forces which may be utilised by man, than by the belief in the free activity of gods.

[Footnote 198: Pfleiderer, Philosophy and Development of Religion, iv. 230.]

[Footnote 199: Caird, Evolution of Religion, i. 237.]

[Footnote 200: Wundt, Ethik, p. 99.]

[Footnote 201: Robertson Smith, Religion of the Semites, p. 267. Cf. ibid. p. 53.]

[Footnote 202: Jevons, Introduction to the History of Religion, pp. 112. 177.]

Chapter Li

GODS AS GUARDIANS OF MORALITY (continued)

FROM the gods of savage races we shall now pass to consider the attitudes of more civilised gods towards matters of worldly morality.

The deities of ancient Mexico were generally clothed with terror, and delighted in vengeance and human sacrifices. But there was also the god Quetzalcoatl, generous of gifts, mild and gentle, and so averse from such sacrifices that he shut his ears with both hands when they were mentioned.[1] The god Tezcatlipoca, again, was looked upon as the austere guardian of law and morals; but, as Sir E. B. Tylor observes, the remarkable Aztec formulas collected by Sahagun, in which this deity is so prominent a figure, show traces of Christian admixture in their material, as well as of Christian influence in their style.[2] It seems that the Mexicans had reached no fixed or systematic conclusions as to the relation of the moral to the religious life.[3] They held that departed souls attained different degrees of felicity or of wretchedness according to their different modes of death. Warriors who died on the battle-field or in the hands of the enemy's priests, and merchants who died on their journey, went to the house of the sun; those who were killed by lightning, who were drowned, {698} or who died from some incurable disease went to a terrestrial paradise; and those who died of old age or any ordinary disease went to a land of darkness and desolation, where they after a time sunk in a sleep which knew no waking.[4]

[Footnote 1: Brinton, Myths of the New World, p. 294 sq. Bancroft, Native Races of the Pacific States, iii. 259.]

[Footnote 2: Tylor, Primitive Culture, ii. 344.]

[Footnote 3: Réville, Hibbert Lectures on the Native Religions of Mexico and Peru, p. 104 sq.]

[Footnote 4: Bancroft, op. cit. iii. 532 sqq. Clavigero, History of Mexico, i. 242 sq.]

Among the ancient Peruvians morality obtained a religious sanction through the divinity ascribed to their rulers. "They considered every mere order of the king to be a divine decree," says Garcilasso de la Vega; "how much more would they venerate the

special laws instituted for the common good. They said that the sun had ordered these laws to be made, and had revealed them to his child the Ynca; and hence a man who broke them was held to be guilty of sacrilege."[5] According to the beliefs of the higher classes the Incas were after death transported to the mansion of the Sun, their father, where they still lived together as his family. The nobles would either follow them there or would live beneath the earth under the sceptre of Supay, the god of the dead. There was no idea of positive suffering inflicted on the wicked under his direction, but the subterranean abode was gloomy and dismal. Exceptional considerations of birth, rank, or valour in war determined the passage of chosen souls to heaven, where their lot would be far happier than that of the souls who remained in the regions below. The common people, on the other hand, thought of the future life as a continuation, pure and simple, of the present existence.[6]

[Footnote 5: Garcilasso de la Vega, Royal Commentaries of the Yncas, i. 148.]

[Footnote 6: Réville, op. cit. p. 236 sqq.]

The great gods of ancient Egypt were mostly conceived as friendly beings.[7] Amon Râ, "the king of the gods," was, in his character of the sun god, the creator, preserver, and supporter of all living things. He it is who makes pasture for the herds and fruit trees for men, on his account the Nile comes and mankind lives. He is verily {699} of kindly heart: "when men call to him he delivers the fearful from the insolent." He is "the vizier of the poor, who takes no bribes," and who does not corrupt witnesses; and to him officials pray for promotion.[8] Thoth, the moon god, was also the god of all wisdom and learning, who gave men "speech and writing," who discovered the written characters, and by his arithmetic enabled gods and men to keep account of their possessions.[9] Osiris ruled over the whole of Egypt as king, and instructed its inhabitants in all that was good--in agriculture as well as in the true religion--and gave them laws.[10] After a long and blessed reign, however, he fell a prey to the machinations of his brother Set, and, having been slain, was constrained to descend into the Underworld, where he evermore lived and reigned as judge and king of the dead. But the wicked god Set was also an object of worship; for he was strong and mighty, a terror to gods and men, and kings were anxious to secure his favour.[11] We have noticed above that certain Egyptian gods were believed to be guardians of truth;[12] and closely connected with this function was their love of justice. Thoth, who was called to witness by him who wished to give assurance of his honesty and good faith,[13] was styled "the judge in heaven";[14] while his wife Ma[=a], or Maat, was the goddess of both truth and justice, and her priests were the supreme judges.[15] But it seems that the Egyptian gods after all chiefly took notice of such acts as concerned their own wellbeing. {700} This is true even of Osiris, "the great god, the lord of justice,"[16] in whose presence the judgment of the dead was given which decided upon their admission into his kingdom. In thousands upon thousands of funerary inscriptions we read words like these:--"May a royal offering be given to Osiris, that he may grant all manner of good things, food and drink to the soul of the deceased."[17] And whilst the living paid him his dues in sacrifices repeated from year to year at regular intervals, the dead were not allowed to receive directly the sepulchral meals or offerings of kindred on feast-days, but all that was addressed to them must first pass through the hands of the god.[18] In the "Negative Confession," which the worshippers of Osiris taught to their dead, great importance was attached to religious offences, such as to snare the birds of the gods, to catch the fish in their lakes, to injure the herds in the temple domains, to diminish the food in the temples, to revile the god. At the same time the list of offences which excluded the dead from Osiris' kingdom contained very many of a social character--murder, oppression,

stealing, robbing minors, fraud, lying, slander, reviling, adultery.[19] But the meaning of this seems to have been not so much that the god was animated by a righteous desire to punish the wicked and reward the good, as, rather, that he did not like to have any rascals among his vassals. As to the fate of the non-justified dead very little is said, and the punishment devised for them seems to have been a comparatively modern invention.[20] Nay, the virtuous dead themselves depended for their welfare {701} upon their knowledge of magic words and formulas, upon amulets laid in their tombs, and upon the offerings made to them by their kindred. Ignorant souls, or those ill prepared for the struggle, were overcome by hunger and thirst, were attacked by demons and poisonous animals in traversing the regions of the Underworld, and, when in Osiris' kingdom, had to work and till the land and earn their own living if the offerings ceased.[21] The Book of the Dead is itself essentially a collection of spells intended to secure to the dead victory over evil demons and protection from the gods; and the "Negative Confession" is a later addition, which shows that originally the conduct of earthly life was not considered at all.[22] So also in the book of Am Dûat the whole doctrine of a future life is based upon a belief in the power of magic, with the single exception that nobody can look forward to possessing fields in Dûat who in life has been an enemy of the god Râ.[23]

[Footnote 7: On Egyptian gods as guardians of morality see, generally, Gardiner, 'Egyptian Ethics and Morality,' in Hastings, Encyclopædia of Religion and Ethics, v. 479 sq.]

[Footnote 8: Erman, Handbook of Egyptian Religion, pp. 58-60, 83. Wiedemann, Religion of the Ancient Egyptians, p. 114.]

[Footnote 9: Erman, op. cit. p. 11. Maspero, Dawn of Civilization, p. 220.]

[Footnote 10: Erman, op. cit. p. 32. Idem, Life in Ancient Egypt, p. 270. Maspero, op. cit. p. 174. Plutarch, De Iside et Osiride, 13. Diodorus Siculus, Bibliotheca historica, i. 14, 15, 25. Kaibel, Epigrammata Græca, p. xxi.]

[Footnote 11: It is probable that Set originally was the divine protector of the kings of Upper Egypt, while Osiris' son Horus, who defeated him, was the protector of the kings of Lower Egypt (Erman, Egyptian Religion, p. 19 sq.).]

[Footnote 12: Supra, ii. 115.]

[Footnote 13: Supra, ii. 121.]

[Footnote 14: Erman, Egyptian Religion, p. 11.]

[Footnote 15: Supra, ii. 115. Wiedemann, op. cit. p. 142. Amélineau, L'évolution des idées morales dans l'Égypte ancienne, pp. 182, 187. Erman, Egyptian Religion, p. 21.]

[Footnote 16: Erman, Egyptian Religion, p. 101.]

[Footnote 17: Wiedemann, op. cit. p. 217.]

[Footnote 18: Maspero, op. cit. p. 117.]

[Footnote 19: Erman, Egyptian Religion, p. 103 sqq.]

[Footnote 20: Wiedemann, op. cit. p. 95 sq. Idem, Egyptian Doctrine of the Immortality of the Soul, p. 55. Erman, Egyptian Religion, p. 105. In the Pyramid texts we read that, if among the deceased there is one of whom it can be said, "There is no evil which he hath done," the saying penetrates to the sun god, and he receives him kindly in heaven. The deceased also profits with regard to his reception there if he has never spoken evil of the king nor slighted the gods. But, as a rule, it is rather bodily cleanliness which the gods demand of their new companion in heaven, and they themselves help to purify him (Erman, p. 94).]

[Footnote 21: Erman, Life in Ancient Egypt, p. 315 sqq. Idem, Egyptian Religion, p. 99 sq. Maspero, op. cit. p. 185 sq. Idem, Études de mythologie et d'archéologie égyptiennes,

i. 347. Wiedemann, Religion of the Ancient Egyptians, pp. 279, 296. Idem, Egyptian Doctrine of the Immortality of the Soul, p. 60 sq.]

[Footnote 22: Maspero, Études, i. 348. Amélineau, op. cit. p. 243. Renouf, in Book of the Dead, p. 220. Erman, Egyptian Religion, p. 101.]

[Footnote 23: Wiedemann, Religion of the Ancient Egyptians, p. 94 sq. Maspero, Études, ii. 163.]

The religion of the Chaldeans was a religion of dread. Everywhere they felt themselves surrounded by hostile demons; feared above all were the seven evil spirits, who were everywhere and yet invisible, who slipped through bolts and doorposts and sockets, and who had power even to bewitch the gods.[24] In their incessant warfare against these fiends men were assisted by the more propitious among the deities: by Marduk, the "merciful" god, the god of the youthful sun of spring and early morning; [25] {702} by Ea, the "good" god, the god of the waters of the deep and the source of wisdom;[26] by Gibil-Nusku, the lord of fire, who put to flight the demons of night when the fire was kindled on the household hearth, and who in the flame carried to the other gods the sacrifices offered them;[27] as also by the tutelary deities of each individual, household, and city.[28] The gods were on the whole favourably disposed towards man. But they helped only those who piously observed the prescribed rites, who recited the conventional prayers and offered them sacrifices; on such persons they bestowed a happy old age and a numerous posterity. On the other hand, he who did not fear his god would be cut down like a reed; and by neglecting the slightest ceremonial detail the king excited the anger of the deities against himself and his subjects.[29] During the whole of their lives the Chaldeans were haunted by the dread of offending their gods, and they continually implored pardon for their sins.[30] But the sinner became conscious of his guilt only as a conclusion drawn from the fact that he was suffering from some misfortune, which he interpreted as a punishment sent by an offended god. It mattered little what had called forth the wrath of the god or whether the deity was acting in accordance with just ideas;[31] and in none of the penitential psalms known to us is there any indication that the notion of sin comprised offences against fellow men. It is true that in the incantation series 'Shurpu' not only offences against gods and ceremonial transgressions, but a large number of wrongs of a social character, are included in the list of possible causes of the suffering which the incantation is intended to remove. On behalf of the afflicted individual the exorciser asks:--"Has he sinned against a god, Is his {703} guilt against a goddess, Is it a wrongful deed against his master, Hatred towards his elder brother, Has he despised father or mother, Insulted his elder sister, Has he given too little,[32] Has he withheld too much, For 'no' said 'yes,' For 'yes' said 'no'? . . . Has he fixed a false boundary, Not fixed a just boundary, Has he removed a boundary, a limit, or a territory, Has he possessed himself of his neighbour's house, Has he approached his neighbour's wife, Has he shed the blood of his neighbour, Robbed his neighbour's dress?" and so forth.[33] But I fail to see any legitimate ground for the conclusion which Schrader and Zimmern have drawn from these passages, to wit, that the gods were believed to be angry with persons guilty of any of the offences enumerated.[34] It seems to me quite obvious that the evils which were hypothetically associated with injuries inflicted upon fellow men were ascribed, not to the avenging activity of a god, but to the curses of the injured party. The gods are expressly invoked to relieve the unhappy individual from the curses under which he is suffering, whether he has been cursed by his father, mother, elder brother, elder sister, friend, master, king, or god, or has approached an accursed person, or slept in such a person's bed, or sat on his chair, or eaten from his dish or drunk from his cup.[35] In these incantations there

is no plea for forgiveness; the possible causes for the suffering are enumerated simply because the mention of the real cause is supposed to go a long way towards expelling the evil.[36] Some of the gods, however, are invoked as judges. This is frequently the case with Shamash, the sun god, "the supreme judge of heaven and earth," who, seated on a throne in the chamber of judgment, receives the supplications of men.[37] Of the moon god Sin it is said in a hymn {704} dedicated to him that his "word produces truth and justice, so that men speak the truth."[38] And the lord of fire is addressed as a judge, who burns the evildoers and annihilates the bad,[39] and is exhorted by the conjurer to help him to his right;[40] but this probably means little more than the invocation, "Eat my enemies, destroy those who have done harm to me."[41] Of a moral retribution after death there is no trace in the Chaldean religion. Those who have obtained the goodwill of the gods receive their reward in this world, by a life of happiness and of good health, but the moment that death ensues the control of the gods comes to an end. All mankind, kings and subjects, virtuous and wicked, go to Aralû, the gloomy subterranean realm presided over by Allatu and her consort Nergal, where the dead are doomed to everlasting sojourn or imprisonment in a state of joyless inactivity. A kind of judgment is spoken of, but nothing indicates that it is based on moral considerations.[42] According to the Gilgamesh epic, however, the fortunes awaiting those who die are not all alike. Those who fall in battle seem to enjoy special privileges, provided that they are properly buried and there is someone to make them comfortable in their last hour and to look after them when dead. But he whose corpse remains in the field has no rest in the earth, and he whose spirit is not cared for by any one is consumed by gnawing hunger.[43]

[Footnote 24: Jastrow, Religion of Babylonia and Assyria, p. 260 sqq. Smith, Chaldean Account of Genesis, pp. 87, 88, 106 sq. Idem, Chaldäische Genesis, edited by Delitzsch, pp. 83, 306 sq.]

[Footnote 25: Mürdter-Delitzsch, Geschichte Babyloniens und Assyriens, p. 31. Sayce, Hibbert Lectures on the Religion of the Ancient Babylonians, p. 98. King, Babylonian Magic and Sorcery, p. 52 sqq. Jensen, Die Kosmologie der Babylonier, pp. 87, 88, 249 sq. Schrader-Zimmern, Die Keilinschriften und das Alte Testament, p. 372 sq.]

[Footnote 26: Hommel, Die semitischen Völker und Sprachen, i. 374 sqq. Mürdter-Delitzsch, op. cit. p. 27. Sayce, op. cit. pp. 131, 140.]

[Footnote 27: Tallqvist, 'Die assyrische Beschwörungsserie Maqlû,' in Acta Soc. Scient. Fennicæ, xx. 25, 28 sq.]

[Footnote 28: Mürdter-Delitzsch, op. cit. p. 37 sq. Maspero, Dawn of Civilization, pp. 643, 674, 682 sq.]

[Footnote 29: Jeremias, Die babylonisch-assyrischen Vorstellungen vom Leben nach dem Tode, p. 46 sq. Maspero, Dawn of Civilization, pp. 697, 705.]

[Footnote 30: See Zimmern, Babylonische Busspsalmen, passim.]

[Footnote 31: Cf. Jastrow, op. cit. p. 313 sqq.]

[Footnote 32: In mercantile transactions (Jastrow, op. cit. p. 291, n. 2).]

[Footnote 33: Zimmern, Beiträge zur Kenntnis der babylonischen Religion, 'Die Beschwörungstafeln [vS]urpu,' p. 3 sqq.]

[Footnote 34: Idem, in Schrader, Die Keilinschriften und das Alte Testament, p. 612.]

[Footnote 35: Zimmern, Die Beschwörungstafeln [vS]urpu, ii. 89-93, 99-104, pp. 7, 23.]

[Footnote 36: See Jastrow, op. cit. p. 292.]

[Footnote 37: Tallqvist, Maqlû, ii. 94. Zimmern, [vS]urpu, ii. 130, p. 9. Idem, Babylonische Hymnen und Gebete, p. 13. Mürdter-Delitzsch, op. cit. p. 28. Schrader-Zimmern, op. cit. p. 368. Jastrow, op. cit. pp. 71, 120, 209 sqq.]

[Footnote 38: Zimmern, Babylonische Hymnen und Gebete, p. 12.]

[Footnote 39: Tallqvist, Maqlû, i. 95; ii. 70, 89, 116, 130, 131, 184.]

[Footnote 40: Ibid. i. 114.]

[Footnote 41: Ibid. i. 116; ii. 120.]

[Footnote 42: Jeremias, op. cit. passim. Schrader-Zimmern, op. cit. p. 636 sq. Jastrow, op. cit. p. 565 sqq. Jensen, op. cit. p. 217 sqq.]

[Footnote 43: Haupt, 'Die zwölfte Tafel des babylonischen Nimrod-Epos,' in Beiträge zur Assyriologie, i. 69 sq. Jensen, 'Das Gilgamí[vs] (Nimrod)-Epos,' xii. 6, in Assyrisch-Babylonische Mythen und Epen, p. 265.]

In a still higher degree than the Chaldean religion Zoroastrianism represents an incessant struggle against evil spirits. Here everything in heaven and on earth is engaged in the conflict; it is a war between two mighty sovereigns, Ahura Mazda and Angra Mainyu, and their respective forces.[44] Whatever works for the good of man comes from {705} and strives for Ahura Mazda, whatever works for the harm of man comes from and strives for Angra Mainyu. There can be no doubt that the powers of goodness will absolutely triumph in the end; but though Angra Mainyu and his band have been defeated, the battle is still raging. Ahura Mazda, being the originator of everything good in the world, is also the founder of the order of the universe, "the creator of the righteous order."[45] In the Vendîdâd he is asked about the rules of life, and he is pleased to answer;[46] M. Darmesteter observes that the Avesta and the Pentateuch are the only two religious books known in which legislation descends from the heavens to the earth in a series of conversations between the lawgiver and his god.[47] The sacred law of Zoroastrianism enjoins charity[48] and industry,[49] it condemns the murder of a believer,[50] abortion,[51] theft,[52] non-payment of debts,[53] and, with special emphasis, falsehood and breach of faith,[54] and unnatural intercourse.[55] But the "good thoughts, words, and deeds" most urgently insisted upon are orthodoxy, prayer, and sacrifice; whilst the greatest sins are apostasy, transgressions of the rules of ceremonial cleanliness, and offences against sacred beings. It is less criminal to kill a man than to serve bad food to a shepherd's dog; for the manslayer gets off with ninety stripes, whereas the bad master will receive two hundred.[56] And the killing of a water dog is punished with ten thousand stripes.[57] Offenders will be liable to penalties not only here below, but in the next world as well, where Ahura Mazda, "the discerning arbiter,"[58] establishes "evil for the evil, and happy blessings for the good."[59] The views accepted in regard to the future life, {706} whilst incomplete in the Gathas, are expanded in the Younger Avesta, and fully given in the Pahlavi books.[60] The man who has lived for Ahura Mazda will have a seat near him in heaven, and there he remains undecaying and immortal, unalarmed and undistressed, full of glory and delight; whereas the wicked soul will be tormented in the darkness of hell, "the dwelling of the demons."[61] The good deeds of the virtuous and the bad deeds of the wicked, in the form of maidens, come to meet them on their roads to paradise or hell.[62] But the fate of the dead is not merely influenced by their conduct towards their fellow men while alive. It is said that "he who wishes to seize the heavenly reward, will seize it by giving gifts to him who holds up the Law."[63] And the soul of him who recites the prayer Ahuna Vairya in the manner prescribed crosses over the bridge which separates this world from the next, and reaches the highest paradise.[64]

[Footnote 44: According to the Vendîdâd (i. 3 sqq.) Angra Mainyu constantly countercreated the creations of Ahura Mazda. But this idea is not yet to be found in the Gathas, where the wickedness of Ako Mainyu is only represented as an attempt to destroy the good creation (see Lehmann, Zarathustra, ii. 75, 165).]

[Footnote 45: Yasna, xxxi. 7. Darmesteter, Ormazd et Ahriman, pp. 19, 24, 88, &c.]

[Footnote 46: Vendîdâd, xviii. 13 sqq.]

[Footnote 47: Darmesteter, in Sacred Books of the East, iv. (2nd edit.) p. lviii.]

[Footnote 48: Supra, i. 551.]

[Footnote 49: Supra, ii. 275.]

[Footnote 50: Vendîdâd, iii. 41; v. 14.]

[Footnote 51: Ibid. xv. 9 sqq.]

[Footnote 52: Supra, ii. 60. Yasna, xi. 3.]

[Footnote 53: Vendîdâd, iv. 1.]

[Footnote 54: Supra, ii. 93.]

[Footnote 55: Supra, ii. 479 sq.]

[Footnote 56: Vendîdâd, iv. 40; xiii. 24; xv. 3.]

[Footnote 57: Ibid. xiv. 1 sq.]

[Footnote 58: Yasna, xxix. 4.]

[Footnote 59: Ibid. xliii. 5.]

[Footnote 60: Cf. Jackson, Avesta Grammar, i. p. xxviii.]

[Footnote 61: Vendîdâd, xix. 28 sqq. Yasts, xxii. Bundahis, ch. xxx. Dînâ-î Maînôg-î Khirad ii. 123 sqq. ch. vii. Ardâ Vîrâf, ch. xvii. Cf. Geiger, Civilization of the Eastern Ir[=a]nians, i. 101.]

[Footnote 62: Dînâ-î Maînôg-î Khirad, ii. 125, 167 sqq.]

[Footnote 63: Yasts, xxiv. 30.]

[Footnote 64: Geiger, op. cit. i. 73. See also Yasts, xii. 335; xxiv. 39, 47 sq.; Darmesteter, Ormazd et Ahriman, p. 28.]

In Vedic religion we likewise meet with a conflict between gods and demons, but the struggle is too unequal to result in anything like the Zoroastrian dualism.[65] Various misfortunes are attributed to the ill-will of evil spirits, but their power is comparatively slight, and the greater demons, like V[r.]tra, are represented as defeated or destroyed by the gods.[66] On the other hand there is among the great gods themselves one who has a distinctly malevolent character, namely Rudra, a god of storm,[67] "terrible like a wild beast";[68] but though the hymns {707} addressed to him chiefly express fear of his dreadful shafts and deprecations of his wrath, he is also sometimes supplicated to confer blessings upon man and beast.[69] With this exception the great gods are all beneficent beings,[70] though of course liable to punish those who offend them. Varuna has established heaven and earth,[71] has made the celestial bodies to shine[72] and the rivers to flow.[73] He rules over nature by laws which are fixed and immutable, and which must be followed by the gods themselves.[74] He sees and knows everything, because he is the infinite light and the sun is his eye;[75] and in connection with Mithra he is said to dispel and punish falsehood.[76] Varuna has even been represented as "the supreme moral ruler," but it seems to me that scholars have generally credited him with a somewhat more comprehensive sense of justice than the hymns imply.[77] Every hymn to Varuna contains a prayer for forgiveness, but there is no indication that the sins which excite his wrath include ordinary moral wrongdoing. That sin and moral guilt are not identical conceptions in the Rig-Veda is fairly obvious from the fact that forgiveness of sin is also sought from Indra,[78] whose favour is only won by those who contribute to his wellbeing or who destroy persons neglectful of his worship.[79]

The Vedic religion is pre-emiently ritualistic. The pious man par préférence is he who makes the soma flow in abundance and whose hands are always full of butter, the reprobate man is he who is penurious towards the gods;[80] and just like the other gods, {708} Varuna visits with disease those who neglect him,[81] and is appeased by sacrifices and prayers.[82] After death the souls of those who have practised rigorous penance,[83] of those who have risked their lives in battle,[84] and above all of those who have bestowed liberal sacrificial gifts,[85] go with the smoke arising from the funeral pile to the heavenly world, where the Fathers dwell with Yama--the first man who died[86]--and Varuna, the two kings who reign in bliss.[87] There they enjoy an endless felicity among the gods, clothed in glorious bodies and drinking the celestial soma, which renders them immortal.[88] Yet there are different degrees of happiness in this heavenly mansion. The performance of rites in honour of the manes causes the souls to ascend from a lower to a higher state; indeed, if no such offerings are made they do not go to heaven at all.[89] Another source of happiness for the dead is their own pious conduct during their lifetime; for in the abode of bliss they are united with what they have sacrificed and given, especially reaping the reward of their gifts to priests.[90] Unworthy souls, on the other hand, are kept out of this abode by Yama's dogs, which guard the road to his kingdom.[91] As to the destiny in store for those who are not admitted to heaven, the hymns have little to tell. Zimmer and others erroneously argue that a race who believe in future rewards for the good must logically believe in future punishments for the wicked.[92] So far as I can see, all the traces of such a belief which are to be found in the Vedic literature are requests made to gods, {709} or simply curses, to the effect that evil-doers may be thrown into deep and dismal pits under the earth.[93] They do not imply that gods of their own accord punish wicked people after death.

[Footnote 65: Cf. Barth, Religions of India, p. 13.]

[Footnote 66: Oldenberg, Die Religion des Veda, p. 281. Macdonell, Vedic Mythology, p. 18.]

[Footnote 67: Muir, Original Sanskrit Texts, v. 147. Barth, op. cit. p. 14. Macdonell, op. cit. p. 77.]

[Footnote 68: Oldenberg, op. cit. pp. 63, 281, 284. Macdonell, op. cit. p. 18. Bergaigne, La religion védique, iii. 152 sqq.]

[Footnote 69: Macdonell, op. cit. p. 75 sq.]

[Footnote 70: Oldenberg, op. cit. pp. 60, 281. Macdonell, op. cit. p. 18.]

[Footnote 71: Rig-Veda, viii. 42. 1.]

[Footnote 72: Ibid. i. 24. 10; vii. 87. 5.]

[Footnote 73: Ibid. ii. 28. 4.]

[Footnote 74: Ibid. viii. 41. 7. Macdonell, op. cit. p. 26. Bohnenberger, Der altindische Gott Varu[n.]a, p. 38 sqq.]

[Footnote 75: Supra, ii. 598. Darmesteter, Essais orientaux, p. 126.]

[Footnote 76: Macdonell, op. cit. p. 26.]

[Footnote 77: Macdonell, op. cit. pp. 20, 26. Whitney, 'On the main Results of the later Vedic Researches in Germany,' in Jour. American Oriental Soc. iii. 326. Roth, 'On the Morality of the Veda,' ibid. iii. 340 sq. Bergaigne, op. cit. iii. 156. Darmesteter, Essais orientaux, p. 111. Bohnenberger, op. cit. p. 49 sqq.]

[Footnote 78: Oldenberg, op. cit. p. 299.]

[Footnote 79: Ibid. pp. 282, 283, 300.]

[Footnote 80: Rig-Veda, viii. 31. See Barth, op. cit. p. 34; Kaegi, Rigveda, p. 29; Muir, op. cit. v. 20; Macdonell, op. cit. p. 18.]

[Footnote 81: Rig-Veda, i. 122. 9.]

[Footnote 82: Ibid. i. 24. 14.]

[Footnote 83: Ibid. x. 154. 2.]

[Footnote 84: Ibid. x. 154. 3.]

[Footnote 85: Ibid. i. 125. 5 sq.; x. 107. 2; x. 154. 3. Muir, op. cit. v. 285. Oldenberg, op. cit. p. 536. Macdonell, op. cit. p. 167.]

[Footnote 86: Muir, op. cit. v. 301.]

[Footnote 87: Rig-Veda, x. 14. 7 sq. Barth, op. cit. p. 22 sq. Macdonell, op. cit. p. 165 sqq.]

[Footnote 88: Zimmer, Altindisches Leben, p. 410 sqq. Barth, op. cit. p. 23. Macdonell, op. cit. p. 167 sq.]

[Footnote 89: Hopkins, Religions of India, p. 155. Oldenberg, op. cit. p. 535.]

[Footnote 90: Rig-Veda, x. 14. 8; x. 154. 3. Oldenberg, op. cit. p. 535. Macdonell, op. cit. p. 168.]

[Footnote 91: Rig-Veda, x. 14. 10 sqq. Cf. Zimmer, op. cit. p. 421; Hopkins, op. cit. p. 147.]

[Footnote 92: Zimmer, op. cit. p. 418. Scherman, Indische Visionslitteratur, p. 123. Idem, 'Eine Art visionärer Höllenschilderung aus dem indischen Mittelalter,' in Romanische Forschungen, v. 569. Oldenberg, op. cit. p. 537.]

[Footnote 93: Rig-Veda, iv. 5. 5; vii. 104. 3, 11, 17. Atharva-Veda, v. 19. 3, 12 sqq.; xii. 4. 3, 36.]

In post-Vedic times ritualism grew more important still. Sometimes the gods are represented as beings indifferent to every moral distinction, and the most indelicate stories are unscrupulously related of them.[94] In the Taittirîya Samhitâ of the Yajur Veda we are told that if anybody wishes to injure another, he need only say to Sûrya, one of the most important among the solar deities,[95] "Smite such a one, and I will give you an offering," and Sûrya, to get the offering, will smite him.[96] Çiva, who is connected with the Vedic god Rudra, is in the Mahabharata clothed in terrible "forms," being armed with the trident and wearing a necklace of skulls; he exacts a bloody cultus, and is the chief of the mischievous spirits and vampires that frequent places of execution and burial grounds.[97] Vishnu, the other great god of Hinduism, though less fierce than Çiva, is nevertheless, on one side of his character, an inexorable god;[98] and Krishna, as accepted by Vishnuism, is a crafty hero of a singularly doubtful moral character.[99] In Brahmanism religion is largely replaced by magic, the rites themselves are raised to the rank of divinities, the priests become the gods of gods.[100] And the point of view from which these man-gods look upon human conduct is expressed in the Satapatha Brâhmana, where it is said that fees paid to priests are like sacrifices offered to other gods--those who gratify them are placed in a state of bliss.[101] Ritual observances are essential for a man's wellbeing both in this life and in the life to come, where paradise, hell, or transmigration {710} awaits the dead. In the Brâhmanas immortality, or at least longevity, is promised to those who rightly understand and practise the rites of sacrifice, whilst those who are deficient in this respect depart before their natural term of life to the next world, where they are weighed in a balance and receive good or evil according to their deeds.[102] To repeat sacred texts a certain number of times is also laid down as a condition of salvation,[103] and the doctrine is gradually developed that a single invocation of the divine name cancels a whole life of iniquity and crime. Hence the importance attached--as early as the Bhagavad Gîtâ--to the last thought before death, and the idea of attaining complete possession of this thought by an act of suicide.[104] According to the Purânas it is sufficient even in the case of the vilest criminal, when at the point of death, to pronounce by chance some syllables of the names Vishnu or Çiva

in order to obtain salvation;[105] and in the preface to the Prem Sâgar, which displays the religion of the Hindus at the present day, it is said that those who even ignorantly sing the praises of the greatness of Krishn Chand are rewarded with final beatitude, just as a person would acquire eternal life by partaking of the drink of immortality though he did not know what he was drinking.[106] On the other hand, "according to the Hindu Scriptures, whatever a man's life may have been, if he do not die near some holy stream, if his body is not burned on its banks, or at any rate near some water as a representative of the stream; or where this is impracticable, if some portion of his body be not thrown into it--his spirit must wander in misery, unable to obtain the bliss for which he has done and suffered so much in life."[107] At the same time we also find a great variety of social duties {711} inculcated in the sacred books of India--humanity even to enemies[108] and slaves,[109] filial piety,[110] charity,[111] hospitality,[112] veracity;[113] and in the Sûtras the doctrine appears that in order to obtain the chief fruit of sacrifice it is necessary to practise the moral virtues in addition to the rite.[114] But this doctrine is singularly free from any reference to the justice of gods. In the Upanishads and Buddhistic books it is distinctly formulated in the idea of karma, according to which each act of the soul, good or bad, inevitably and naturally works out its full effect to the sweet or bitter end without the intervention of any deity to apportion the reward or punishment.[115]

[Footnote 94: Barth, op. cit. p. 46 sq. Macdonell, op. cit. p. 76.]

[Footnote 95: Barth, op. cit. p. 20.]

[Footnote 96: Taittirîya Samhitâ, vi. 4 sqq., quoted by Goblet d'Alviella, Hibbert Lectures on the Origin and Growth of the Conception of God, p. 85.]

[Footnote 97: Barth, op. cit. pp. 159, 164.]

[Footnote 98: Ibid. p. 174.]

[Footnote 99: Ibid. p. 172.]

[Footnote 100: Supra, ii. 657.]

[Footnote 101: Satapatha Brâhmana, ii. 2. 2. 6.]

[Footnote 102: Weber, 'Eine Legende des Çatapatha-Brâhma[n.]a über die strafende Vergeltung nach dem Tode,' in Zeitschr. d. Deutschen Morgenländischen Gesellsch. ix. 238 sq. See also Macdonell, op. cit. p. 168; Hopkins, op. cit. pp. 190, 193; Vish['n]u Purá['n]a, p. 44.]

[Footnote 103: Aitareya Brahmanam, ii. 17.]

[Footnote 104: Bhagavad Gîtâ, ch. 8. Barth, op. cit. p. 228.]

[Footnote 105: Barth, op. cit. p. 228.]

[Footnote 106: Prem Ságar, p. 56. Cf. Wilson, in Vish['n]u Purá['n]a, p. 210, n. 13; Idem, 'Religious Sects of the Hindus,' in Asiatic Researches, xvi. 115.]

[Footnote 107: Wilkins, Modern Hinduism, p. 439 sq.]

[Footnote 108: Supra, i. 342.]

[Footnote 109: Supra, i. 689.]

[Footnote 110: Supra, i. 612.]

[Footnote 111: Supra, i. 550 sq.]

[Footnote 112: Supra, i. 578 sq.]

[Footnote 113: Supra, ii. 91.]

[Footnote 114: Barth, op. cit. p. 49. See, e.g., Âpastamba, i. 7. 20. 1 sqq.; i. 8. 23. 6.]

[Footnote 115: Barth, op. cit. pp. 77, 78, 115 sq. Müller, Anthropological Religion, p. 301. Dhammapada, i. 1 sq. Rhys Davids, Hibbert Lectures on the History of Buddhism, p. 85. Oldenberg, Buddha, p. 289. Hopkins, op. cit. p. 319 sq.]

Buddha did not base his system on any belief in gods, hence there is no place in it for a ritual nor for sin in the sense of offending a supernatural being. He that is pure in heart is the true priest, not he that knows the Vedas; the Vedas are nothing, the priests are of no account, save as they be morally of repute.[116] If the genuine Buddhist can be said to worship any higher power, it is the moral order which never fails to assert itself in the law of cause and effect. But Buddha's followers were less metaphysical, and "the clouds returned after the rain." The old gods of Brahmanism came back, Buddha himself was deified as an omniscient and everlasting god, and Buddhism incorporated most of the local deities and demons of those nations it sought to convert.[117] From being originally a metaphysical and ethical doctrine, it was thus transformed into a religion full of ritualism, and, it should be added, profusely mixed with magic. In Lamaism, especially, {712} ritual is elevated to the front rank of importance; we find there pompous services closely resembling those of the Church of Rome, litanies and chants, offerings and sacrifice.[118] And the muttering of certain mystic formulas and short prayers is alleged to be far more efficacious than mere moral virtue as a means of gaining the glorious heaven of eternal bliss, the paradise of the fabulous Buddha of boundless light.[119] So also in China the teachers of Buddhism "were by no means rigorous in enforcing the obligations of men to morality. To expiate sins, offerings to the idols and to the priests were sufficient. A temple built in honour of F[)o], and richly endowed, would suffice to blot out every stain of guilt, and serve as a portal to the blessed mansions of Buddha."[120]

[Footnote 116: Hopkins, op. cit. p. 319.]

[Footnote 117: Waddell, Buddhism in Tibet, pp. 126, 325 sq. Griffis, Religions of Japan, pp. 187, 207. Davis, China, ii. 51.]

[Footnote 118: Waddell, op. cit. 421, 476.]

[Footnote 119: Ibid. pp. 142, 148, 573.]

[Footnote 120: Gutzlaff, quoted by Davis, op. cit. ii. 51. Cf. Edkins, Religion in China, p. 150.]

In the national religion of China the heaven god, Shang-te, is the supreme being, the creator and sovereign ruler of the universe, whose power knows no bounds, and whose sight equally comprehends the past, the present, and the future, penetrating even to the remotest recesses of the heart.[121] He is the author and upholder not only of the physical but of the moral order of the world, watching over the conduct of men, rewarding the good, and punishing the wicked.[122] Sometimes he appears to array himself in terrors, as in the case of public calamities and the irregularity of the seasons; but these are only salutary warnings intended to call men to repentance.[123] The cult which is offered Shang-te is frigid and ceremonial. The rules of ceremony have their origin in heaven, and the movement of them {713} reaches to earth; their abandonment leads to "the ruin of states, the destruction of families, and the perishing of individuals."[124] The Chinese are inclined to place ritualism on an equality with social morality. Confucius himself humbly submitted to the rules of ceremony, although he denounced hypocrisy. But to him morality was infinitely more important than religion. He altogether avoided the personal term God, and made only use of the abstract term Heaven. He admitted that spiritual beings exist, and even sacrificed to them,[125] but when questioned about matters relating to religion he was systematically silent.[126] Religious duties occupy a very insignificant place in his system. "To give one's self earnestly to the duties due to men, and, while respecting spiritual beings, to keep aloof from them, may be called wisdom."[127] Prayer is unnecessary because Heaven does not actively interfere with the soul of man; it has endowed him at his birth with

goodness, which, if he will, may become his nature, and the reward or punishment is only the natural or providential result of his conduct.[128] Of punishments in a future life Confucius says nothing, though he maintains that there are rewards and dignity for the good after death.[129] The belief of the Chinese in post mortem punishments comes from Buddhism.[130]

[Footnote 121: Legge, Notions of the Chinese concerning God, pp. 33, 34, 100 sq. Idem, Chinese Classics, i. 98. Staunton, Inquiry into the proper Mode of rendering the Word "God" in translating the Sacred Scriptures into the Chinese Language, p. 8 sq. Douglas, Confucianism and Taouism, pp. 77, 82.]

[Footnote 122: Doolittle, Social Life of the Chinese, ii. 272. Legge, Chinese Classics, i. 98; iii. 46. Smith, Proverbs of the Chinese, p. 40. Boone, Essay on the proper rendering of the Words Elohim and [Greek: The/os] into the Chinese Language, p. 55. Indo-Chinese Gleaner, i. 162. Davis, op. cit. ii. 26, 34. Douglas, op. cit. pp. 77, 78, 83.]

[Footnote 123: Staunton, op. cit. p. 9. Legge, Chinese Classics, iii. 46 sq.]

[Footnote 124: Lî Kî, vii. 4. 5 sq.]

[Footnote 125: Lun Yü, iii. 12. 1; x. 8. 10.]

[Footnote 126: Ibid. vii. 20. Cf. Réville, La religion chinoise, p. 326.]

[Footnote 127: Lun Yü, vi. 20.]

[Footnote 128: Douglas, op. cit. p. 78. Legge, Religions of China, p. 300. Réville, op. cit. p. 645.]

[Footnote 129: Legge, Religions of China, pp. 115, 299 sq. Réville, op. cit. p. 345.]

[Footnote 130: Indo-Chinese Gleaner, iii. 288. Edkins, op. cit. pp. 83, 87 sqq. Smith, Proverbs of the Chinese, p. 227.]

The gods of ancient Greece were on the whole beneficent beings, who conferred blessings upon those who secured their goodwill. Zeus protects the life of the family, city, and nation; he is a god of victory and victorious peace, who gathers the hosts against Troy, and saves Greece from Persia; he brings the ships to land; he is "the warder off of evil."[131] But neither he nor the other gods bestow their {714} favours for nothing; Xenophon says that they assist with good advice those who worship them regularly,[132] but take revenge on those who neglect them.[133] They punish severely even offences committed against them accidentally,[134] and not infrequently they display actual malevolence towards men by seducing them into sin[135] or inflicting harm upon them out of sheer envy.[136] In other respects, also, they are by no means models of morality; but this does not prevent them from acting as administrators of justice any more than, among men, a judge is supposed to lose all regard for justice because he himself transgresses the rules of morality in some particular of private life.[137] "For great crimes," says Herodotus, "great punishments at the hands of the gods are in store."[138] Dike, or Justice, the terrible virgin "who breathes against her enemies a destructive wrath,"[139] is represented sometimes as the daughter, sometimes as the companion of the all-seeing Zeus;[140] and, as Welcker observes, Zeus was not only a god among other gods, but also the deity solely and abstractedly.[141] We have noticed above that from ancient times the murder of a kinsman was an offence against Zeus and under the ban of the Erinyes, and that later on all bloodshed, if the victim had any rights at all within the city, became a sin which needed purification.[142] Zeus protected guests and suppliants,[143] he punished children who reproached their aged parents,[144] he was a guardian of the family property,[145] he protected boundaries,[146] he was no friend of falsehood,[147] he punished perjury.[148] According to earlier beliefs retribution was exclusively restricted {715} to this earthly existence, and if the guilty person himself escaped the punishment for his deed it fell on some of his descendants.

[149] The transference of Menelaus to the Elysian plain, spoken of in the Odyssey, [150] was not a reward for his virtue--indeed, he was not particularly conspicuous for any of the Homeric virtues--but a privilege resulting from his being married to Zeus' daughter Helena;[151] and if the perjurer was tortured in Hades[152] the simple reason was that he had called down upon himself such torture in his oath.[153] In later times we meet with the doctrine of retribution after death, not only in the speculations of isolated philosophers, but as a popular belief;[154] but this belief seems to have been quite unconnected with any notion of Olympian justice.[155] The souls in the world beyond the grave are sentenced by special judges;[156] Aeschylus expressly says that it is another Zeus that administers justice there.[157] For him Hades with the powers by which it is governed exists only as a place where the guilty are punished, whereas for the virtuous he has no word of true hope;[158] and other writers also have much more to tell about future punishments than about future rewards.[159] Particularly prominent among the offences which are punished in Hades are, besides perjury,[160] injuries to parents[161] and guests,[162] that is, offences which in this world are visited with the most powerful curses.[163] According to Aeschylus, the retribution which the Erinyes--personifications of curses--have begun on earth is completed in the nether world, and according to Pythagoras unpurified souls are kept chained there by the Erinyes without any hope of escape.[164] We are, moreover, told that painters used to represent "allegorical figures of curses in connection with their {716} images of wicked dead.[165] From all these facts I conclude that the notion of punishments in Hades did not arise from a belief in the justice of gods, but from the idea that the efficacy of a curse may extend beyond the grave--an idea which we have already met with both in Vedic texts and among certain savages, and of which the supposed punishment of perjury in Hades is only a particular instance.[166] As for the gods it should be added that the vulgar opinion of their character was not shared by all. Euripides affirms that the legends about them which tend to confuse human ideas as to right and wrong are not literally true.[167] "I think," he says, "that none of the gods is bad";[168] "if the gods do aught that is base, they are not gods."[169] Plato opposes the popular views that the deity induces men to commit crimes,[170] that he is capable of feeling envy,[171] and that evil-doers may avert divine punishments by sacrifices offered to the gods as bribes.[172] God is good, he is never the author of evil to any one, and if the wicked are miserable the reason is that they require to be punished and are benefited by receiving punishment from God.[173] Plutarch likewise asserts in the strongest terms that God is perfectly good and least of all wanting in justice and love, "the most beautiful of virtues and the best befitting the Godhead."[174]

[Footnote 131: Farnell, Cults of the Greek States, i. 59-61, 83, 107. Vischer, Kleine Schriften, ii. 352 sq. Preller, Griechische Mythologie, i. 146 sqq.]

[Footnote 132: Xenophon, Hipparchicus, ix. 9. Idem, Cyropædia, i. 6. 46.]

[Footnote 133: Idem, Anabasis, v. 3. 13; vii. 8. 4.]

[Footnote 134: Nägelsbach, Die nachhomerische Theologie des griechischen Volksglaubens, p. 331 sqq.]

[Footnote 135: Schmidt, Die Ethik der alten Griechen, i. 231 sqq.]

[Footnote 136: Ibid. i. 79 sqq.]

[Footnote 137: Cf. Nägelsbach, Homerische Theologie, pp. 288, 317 sqq.; Schmidt, op. cit. i. 48 sqq.; Maury, Histoire des religions de la Grèce antique, i. 342; Gladstone, Studies on Homer, ii. 384.]

[Footnote 138: Herodotus, ii. 120.]

[Footnote 139: Aeschylus, Choephor[oe], 949 sqq.]

[Footnote 140: Ibid. 949. Hesiod, Opera et dies, 256 (254). Usener, Götternamen, p. 197. Farnell, op. cit. i. 71, Darmesteter, Essais orientaux, p. 106 sq.]

[Footnote 141: Welcker, Griechische Götterlehre, i. 181.]

[Footnote 142: Supra, i. 379.]

[Footnote 143: Supra, i. 579, 585.]

[Footnote 144: Supra, i. 624.]

[Footnote 145: Supra, ii. 60.]

[Footnote 146: Supra, ii. 61.]

[Footnote 147: Supra, ii. 116.]

[Footnote 148: Supra, ii. 121.]

[Footnote 149: Supra, i. 49 sq.]

[Footnote 150: Odyssey, iv. 561 sqq.]

[Footnote 151: Cf. Rohde, Psyche, p. 74.]

[Footnote 152: Iliad, iii. 278 sq.; xix. 259 sq.]

[Footnote 153: Cf. Rohde, op. cit. p. 60.]

[Footnote 154: Schmidt, op. cit. i. 99 sqq. Nägelsbach, Nachhomerische Theologie, p. 35 sq.]

[Footnote 155: Cf. Schmidt, op. cit. i. 104.]

[Footnote 156: Ibid. i. 101.]

[Footnote 157: Aeschylus, Supplices, 230 sq.]

[Footnote 158: Cf. Westcott, Essays in the History of Religious Thought, p. 87.]

[Footnote 159: Schmidt, op. cit. i. 101 sq.]

[Footnote 160: Aristophanes, Ranæ, 150, 275.]

[Footnote 161: Aeschylus, Eumenides, 175, 267 sqq., 335 sqq. Pausanias, x. 28. 4 sq. Aristophanes, Ranæ, 147-150, 274.]

[Footnote 162: Aeschylus, Eumenides, 269 sq. Aristophanes, Ranæ, 147 sq.]

[Footnote 163: See supra, i. 584 sqq., 621 sqq.]

[Footnote 164: Diogenes Laertius, De vitis philosophorum, viii. 1. 31.]

[Footnote 165: Demosthenes (?), Contra Aristogitonem oratio I. 52.]

[Footnote 166: The Arabs of the Ulád Bu [(]Azîz in Southern Morocco maintain that there are three classes of persons who are infallibly doomed to hell, namely, those who have been cursed by their parents, those who have been guilty of unlawful homicide, and those who have burned corn. They say that every grain curses him who burns it.]

[Footnote 167: Cf. Westcott, op. cit. p. 104.]

[Footnote 168: Euripides, Iphigenia in Tauris, 391.]

[Footnote 169: Idem, Bellerophon, 17 (Fragmenta, 300).]

[Footnote 170: Plato, Respublica, ii. 379 sq.]

[Footnote 171: Idem, Phædrus, p. 247. Idem, Timæus, p. 29.]

[Footnote 172: Idem, Respublica, ii. 364 sqq. Idem, Leges, x. 905 sqq.; xii. 948.]

[Footnote 173: Idem, Respublica, ii. 379 sq. Cf. Aeschylus, Agamemnon, 176 sqq.]

[Footnote 174: Plutarch, De defectu oraculorum, See also Idem, De adulatore et amico, 22.]

The gods of the Romans were on the whole unsympathetic and lifeless beings, some of them even actually pernicious, as the god of Fever, who had a temple on the Palatine hill, and the god of Ill-Fortune, who had an altar on the Esquiline hill.[175] The relations between the gods {717} and their worshippers were cold, ceremonial, legal. The chief thing was not to break "the peace of the gods," or, when it was broken, to restore it.[176] They were rendered propitious by "sanctity" and "piety."[177] But sanctity was defined as "the knowledge of how we ought to worship them," and piety was only "justice

towards the gods," the return for benefits received; Cicero asks, "What piety is due to a being from whom you receive nothing?"[178] The divine law, fas, was distinguished from the human law, jus. To the former belonged not only the religious rites but the duties to the dead, as also the duties to certain living individuals.[179] Offences against parents were avenged by the divi parentum;[180] the duty of hospitality was enforced by the dii hospitales and Jupiter;[181] boundaries were protected by Jupiter Terminalis and Terminus;[182] and Jupiter, Dius Fidius, and Fides, were the guardians of sworn faith.[183]

[Footnote 175: Cicero, De natura deorum, iii. 25.]

[Footnote 176: Leist, Græco-italische Rechtsgeschichte, p. 219 sqq. Granger, Worship of the Romans, p. 217.]

[Footnote 177: Cicero, De officiis, ii. 3.]

[Footnote 178: Idem, De natura deorum, i. 41.]

[Footnote 179: On the distinction between fas and jus see von Jhering, Geist des römischen Rechts, i. 258.]

[Footnote 180: Supra, i. 624.]

[Footnote 181: Supra, i. 580.]

[Footnote 182: Supra, ii. 61.]

[Footnote 183: Supra, ii. 96, 121 sq. Wissowa, Religion und Kultus der Römer, pp. 48, 103, 104, 123 sq.]

The god of Israel was a powerful protector of his chosen people, but he was a severe master who inspired more fear than love. In the pre-prophetic period at least, he was no model of goodness. He had unaccountable moods, his wrath often resembled "rather the insensate violence of angered nature, than the reasonable indignation of a moralised personality"[184]--as appears, for instance, from the suggestion of David that Saul's undeserved enmity might be due to the incitement of God.[185] At the same time his severity was also a guardian of human relationships. It turned against children who were disrespectful to their parents, against murderers, adulterers, thieves, false witnesses--indeed, the whole criminal law was a revelation of the Lord. He was moreover a protector of {718} the poor and needy,[186] and a preserver of strangers.[187] But offences against God were, in the Ten Commandments, mentioned before offences against man; religious rites were put on the same level with the rules of social morality; neglect of circumcision, or disregard of the precepts of ceremonial cleanliness, or sabbath-breaking, was punished with the same severity as the greatest crimes.[188] "To the ordinary man," says Wellhausen, "it was not moral but liturgical acts that seemed to be truly religious."[189] A different opinion, however, was expressed by the Prophets. They opposed the vice of the heart to the outward service of the ritual.[190] God was said by them to desire not sacrifice but mercy,[191] and to hate the hypocritical service of Israel with its feast-days and solemn assemblies;[192] and the true fast was declared to consist in moral welldoing.[193] To them righteousness was the fundamental virtue of Yahveh, and if he punished Israel his anger was no longer a merely fitful outburst, unrelated to Israel's own wrongdoing, but an essential element of his righteousness.[194] However, as M. Halévy observes, the truly national conceptions of the Hebrews were not those which the Prophets maintained, but those which they opposed.[195] The importance of ritual was more than ever emphasised in the post-prophetic priestly code.

[Footnote 184: Montefiore, Hibbert Lectures on the Religion of the Ancient Hebrews, p. 38.]

[Footnote 185: 1 Samuel, xxvi. 19.]

[Footnote 186: Supra, i. 552, 565.]

[Footnote 187: Supra, i. 580.]

[Footnote 188: Montefiore, op. cit. pp. 327, 470. Kuenen, Religion of Israel, ii. 276.]

[Footnote 189: Wellhausen, Prolegomena to the History of Israel, p. 468.]

[Footnote 190: Cf. Caird, Evolution of Religion, ii. 119.]

[Footnote 191: Hosea, vi. 6.]

[Footnote 192: Amos, v. 21 sqq.]

[Footnote 193: Isaiah, lviii. 6 sqq.]

[Footnote 194: Cf. Montefiore, op. cit. p. 122 sq.]

[Footnote 195: Halévy, Mélanges de critique et d'histoire relatifs aux peuples sémitiques, p. 371.]

The opposition against ritualism which was started by the Prophets reached its height in Christ. Men are defiled not by external uncleanness, but by evil thoughts and evil deeds.[196] "It is lawful to do well on the sabbath days."[197] Those whose righteousness does not exceed that of the scribes and Pharisees shall not enter into the kingdom of heaven.[198] The first and great commandment is that which {719} enjoins love to God, but the second, according to which a man shall love his neighbour as himself, "is like unto it."[199] At the same time there are in the New Testament passages in which God's judgment of men seems to be represented as determined by theological dogma.[200] The only sin which can never be forgiven either in this world or in the world to come, is blasphemy against the Holy Ghost;[201] and the belief in Jesus is laid down as indispensable for salvation.[202] According to St. Paul, a man is justified by faith alone, without the deeds of the law.[203] This doctrine, which makes man's salvation dependent upon his acceptance of the Messiahship of Jesus, has had a lasting influence upon Christian theology, and has, together with certain other dogmas, led to that singular discrepancy between the notions of divine and human justice which has up to the present day characterised the chief branches of the Christian Church.

[Footnote 196: St. Matthew, xv. 19 sq. St. Mark, vii. 6 sqq.]

[Footnote 197: St. Matthew, xii. 12.]

[Footnote 198: Ibid. v. 20.]

[Footnote 199: St. Matthew, xxii. 37 sqq.]

[Footnote 200: Toy, Judaism and Christianity, p. 82 sq.]

[Footnote 201: St. Matthew, xii. 31 sq. St. Mark, iii. 28 sq.]

[Footnote 202: St. Mark, xvi. 16. St. John, iii. 18, 36; viii. 24.]

[Footnote 203: Romans, iii. 28.]

Some of the early Fathers maintained that the interference and suffering of Christ, in itself, unconditionally saved all souls and emptied hell for ever;[204] but this theory never became popular. According to St. Augustine and, subsequently, Calvinian theology, the benefits of the atonement are limited to those whom God, of his sovereign pleasure, has from eternity arbitrarily elected, the effect of faith and conversion being not to save the soul, but simply to convince the soul that it is saved. A third theory--that of Pelagius, Armenius, and Luther--attributes to the sufferings of Christ a conditional efficacy, depending upon personal faith in his vicarious atonement, whereas those who for some reason or other do not possess such faith are excluded from salvation. A fourth doctrine, which early began to be constructed by the Fathers and was adopted by the Roman Catholic and the consistent portion of the Episcopalian Church, declares that by Christ's vicarious {720} suffering power is given to the Church, a priestly hierarchy, to save those who confess her authority and observe her rites, whilst all others are lost. Certain sectarians, like the Unitarians, or those "liberal Christians" who do not feel themselves tied by the dogmas of any special creed, are the only ones among whom we

meet with the opinion that a free soul, who by the immutable laws which the Creator has established may choose between good and evil, is saved or lost just so far and so long as it partakes of either the former or the latter.[205]

[Footnote 204: Alger, History of the Doctrine of a Future Life, pp. 550-552, 563. Farrar, Mercy and Judgment, p. 58 sq.]

[Footnote 205: Alger, op. cit. p. 553 sqq.]

According to the leading doctrines of Christianity, then, the fates of men beyond the grave are determined by quite other circumstances than what the moral consciousness by itself recognises as virtue or vice. They are all doomed to death and hell in consequence of Adam's sin, and their salvation, if not absolutely predestined, can only be effected by sincere faith in the atonement of Christ or by valid reception of sacramental grace at the hands of a priest. Persons who on intellectual or moral grounds are unable to accept the dogma of atonement or to acknowledge the authority of an exacting hierarchy, are subject to the most awful penalties for a sin committed by their earliest ancestor, and so are the countless millions of heathen who never even had an opportunity to embrace the Christian religion. Luther was considered to have shown an exceptional boldness when he expressed the hope that "our dear God would be merciful to Cicero, and to others like him."[206] In the Westminster Confession of Faith the Divines declared the opinion that men not professing Christianity may be saved to be "very pernicious, and to be detested";[207] and in their Larger Catechism they expressly said that "they who, having never heard the gospel, know not Jesus Christ, and believe not in him, cannot be saved, be they never so diligent to frame their lives according to the light of nature, or the laws of that religion which they profess."[208] This doctrine has had many {721} adherents up to the present time,[209] although a more liberal view in favour of virtuous heathen has obviously been gaining ground.[210] Even in the case of Christians errors in belief on such subjects as church government, the Trinity, transubstantiation, original sin, and predestination, have been declared to expose the guilty to eternal damnation.[211] In the seventeenth century it was a common theme of certain Roman Catholic writers that "Protestancy unrepented destroys salvation,"[212] while the Protestants on their part taxed Du Moulin with culpable laxity for admitting that some Roman Catholics might escape the torments of hell.[213] Nathanael Emmons, the sage of Franklin, tells us that "it is absolutely necessary to approve of the doctrine of reprobation in order to be saved."[214]

[Footnote 206: Farrar, op. cit. p. 146.]

[Footnote 207: Confession of Faith, x. 4.]

[Footnote 208: Larger Catechism, Answer to Question 60.]

[Footnote 209: Farrar, op. cit. p. 146 sq.]

[Footnote 210: Prentiss, 'Infant Salvation,' in Presbyterian Review, iv. 576. For earlier instances of this opinion see Abbot, 'Literature of the Doctrine of a Future Life,' forming an Appendix to Alger's History of the Doctrine of a Future Life, pp. 859, 863, 865.]

[Footnote 211: Abbot, loc. cit. p. 863.]

[Footnote 212: Wilson, Charity Mistaken, with the Want whereof Catholickes are unjustly charged, for affirming . . . that Protestancy unrepented destroys Salvation.]

[Footnote 213: Abbot, loc. cit. p. 860.]

[Footnote 214: Emmons, Works, iv. 336.]

Besides the heathen there is another large class of people whom Christian theology has condemned to hell for no fault of theirs, namely, infants who have died unbaptised. From a very early age the water of baptism was believed by the Christians to possess a magic power to wipe away sin,[215] and since the days of St. Augustine it was deemed

so indispensable for salvation that any child dying without "the bath of regeneration" was regarded as lost for ever.[216] St. Augustine admitted that the punishment of such children was of the mildest sort,[217] but other writers were more severe; St. Fulgentius condemned to "everlasting punishment in eternal fire" even infants who died in their mother's womb.[218] However, {722} the notion that unbaptised children will be tormented, gradually gave way to a more humane opinion. In the middle of the twelfth century Peter Lombard determined that the proper punishment of original sin, when no actual sin is added to it, is "the punishment of loss," that is, loss of heaven and the sight of God, but not "the punishment of sense," that is, positive torment. This doctrine was confirmed by Innocentius III. and shared by the large majority of the schoolmen, who assumed the existence of a place called limbus, or infernus puerorum, where unbaptised infants will dwell without being subject to torture.[219] But the older view was again set up by the Protestants, who generally maintained that the due punishment of original sin is, in strictness, damnation in hell, although many of them were inclined to think that if a child dies by misfortune before it is baptised the parents' sincere intention of baptising it, together with their prayers, will be accepted with God for the deed.[220] In the Confession of Augsburg the Anabaptistic doctrine is emphatically condemned; [221] and although Zwingli rejected the dogma that infants dying without baptism are lost, and Calvin, in harmony with his theory of election, refused to tie the salvation of infants to an outward rite, the necessity of baptism as the ordinary channel of receiving grace appears to have been a general belief in the Reformed churches throughout the sixteenth and seventeenth centuries.[222] The damnation of infants was in fact an acknowledged doctrine of Calvinism,[223] though an exception was made for the children of pious parents.[224] But in the latter part of the eighteenth century Toplady, who was a vehement Calvinist, avowed {723} his belief in the universal salvation of all departed infants, whether baptised or unbaptised.[225] And a hundred years later Dr. Hodge thought he was justified in stating that the common opinion of evangelical Protestants was that "all who die in infancy are saved."[226] The accuracy of this statement, however, seems somewhat doubtful. In 1883 Mr. Prentiss wrote of the doctrine of infant salvation independently of baptism:--"My own impression is that, had it been taught as unequivocally in the Presbyterian Church even a third of a century ago, by a theologian less eminent than Dr. Hodge for orthodoxy, piety, and weight of character, it would have called forth an immediate protest from some of the more conservative, old-fashioned Calvinists."[227]

[Footnote 215: Tertullian, De baptismo, 1 sqq. (Migne, Patrologiæ cursus, i. 1197 sqq.). Harnack, History of Dogma, i. 206 sq.; ii. 227. Stanley, Christian Institutions, p. 16. Lewis, Paganism surviving in Christianity, pp. 72, 73, 129, 144 sq.]

[Footnote 216: Bingham, Works, iii. 488 sqq. Prentiss, loc. cit. p. 549.]

[Footnote 217: St. Augustine, De peccatorum meritis et remissione, i. 16 (Migne, op. cit. xliv. 16).]

[Footnote 218: St. Fulgentius, De fide, 27 (Migne, op. cit. lxv. 701).]

[Footnote 219: Wall, History of Infant-Baptism, i. 460 sq.]

[Footnote 220: Ibid. i. 462, 468. Luther and his followers, however, speak more doubtfully about the efficacy of the parents' unrealised intention, and lay much stress on actual baptism (ibid. i. 469).]

[Footnote 221: Augsburg Confession, i. 9.]

[Footnote 222: Prentiss, loc. cit. p. 550.]

[Footnote 223: Calvin, Institutio Christiana religionis, iv. 15. 10, vol. ii. 371. Norton, Tracts concerning Christianity, p. 179 sqq.]

[Footnote 224: Calvin, op. cit. iv. 16. 9, vol. ii. 383 sq. Wall, op. cit. i. 469. Anderson, 'Introductory Essay,' to Logan's Words of Comfort for Parents bereaved of Little Children, p. xxi.]

[Footnote 225: Toplady, Works, p. 645 sq.]

[Footnote 226: Hodge, Systematic Theology, i. 26 sq.]

[Footnote 227: Prentiss, loc. cit. p. 559. See also Anderson, loc. cit. p. xxiii.]

In order fully to realise the true import of the dogma of damnation it is necessary to consider the punishment in store for the condemned. The immense bulk of the Christians have always regarded hell and its agonies as material facts.[228] Origen, who was a Platonist and an heretic on many points, was severely censured for saying that the fire of hell was inward and of the conscience rather than outward and of the body;[229] and in the later Middle Ages Scotus Erigena showed unusual audacity in questioning the locality of hell and the material tortures of the condemned.[230] The punishment is burning--a penalty which even in the most barbaric codes is reserved for the very gravest crimes; and some great divines, like Jeremy Taylor and Jonathan Edwards, have been anxious to point out that the fire of hell is infinitely more painful than any fire on earth, being "fierce enough to melt the very rocks and elements."[231] This awful punishment also exceeds in dreadfulness anything which even the most vivid imagination can conceive, because it will last not for a passing moment, {724} nor for a year or a hundred, thousand, million, or milliard years, but for ever and ever. In case any doubt should arise as regards the physical capacity of the damned to withstand the heat, we are assured by some modern theologians that their bodies will be annealed like glass or asbestos-like or of the nature of salamanders.[232] This, then, is the future state of the large majority of men, quite independently of any fault of their own, or of the degree of their "guilt."[233] It would seem that even the felicity of the few who are saved must be seriously impaired by their contemplation of this endless and undescribable misery, but we are told that the case is just the reverse. They become as merciless as their god. Thomas Aquinas says that a perfect sight of the punishment of the damned is granted to them that they "may enjoy their beatitude and the grace of God more richly."[234] And the Puritans, especially, have revelled in the idea that "the sight of hell torments will exalt the happiness of the saints for ever," as a sense of the opposite misery always increases the relish of any pleasure.[235]

[Footnote 228: Alger, op. cit. p. 516.]

[Footnote 229: Ibid. p. 516.]

[Footnote 230: Milman, History of Latin Christianity, ix. 88, n. k.]

[Footnote 231: Alger, op. cit. p. 516 sq.]

[Footnote 232: Alger, op. cit. pp. 518, 520. Cf. St. Augustine, De Civitate Dei, xxi. 2 sqq.]

[Footnote 233: For the numbers of souls supposed to be lost see Alger, op. cit. p. 530 sqq. St. Chrysostom (In Acta Apostolorum Homil. XXIV. 4 (Migne, op. cit. Ser. Graeca, lx. 189]) doubted whether out of the many thousands of souls constituting the Christian population of Antioch in his day one hundred would be saved. And at the end of the seventeenth century a History Professor at Oxford published a book to prove "that not one in a hundred thousand (nay probably not one in a million) from Adam down to our times, shall be saved" (Du-Moulin, Moral Reflections upon the Number of the Elect, title page).]

[Footnote 234: Thomas Aquinas, Summa theologica, iii. Supplementum, qu. xciv. 1. 2 (Migne, op. cit. Ser. Secunda, iv. 1393).]

[Footnote 235: Jonathan Edwards, Works, vii. 480. Alger, op. cit. p. 541.]

In the present times there is a distinct tendency among Christian theologians to humanise somewhat the doctrines of the future life.[236] But if Christianity is to be judged from the dogmas which almost from its beginning until quite recent times have been recognised by the immense majority of its adherents, it must be admitted that its {725} conception of a heavenly Father and Judge has been utterly inconsistent with all ordinary notions of goodness and justice. Calvin himself avowed that the decree according to which the fall of Adam involved, without remedy, in eternal death so many nations together with their infant children, was a "horrible" one. "But," he adds, "no one can deny that God foreknew the future final fate of man before he created him, and that he did foreknow it because it was appointed by his own decree."[237]

[Footnote 236: Thus the doctrine of endless torments is opposed by a considerable number of theologians (Alger, op. cit. p. 546), and, "if held, is not practically taught by the vast majority of the English clergy" (Stanley, op. cit. p. 94).]

[Footnote 237: Calvin, op. cit. iii. 23. 7, vol. ii. 151.]

Like Christianity, Muhammedanism adorns its godhead with the highest moral attributes and at the same time ascribes to him decrees and actions which flatly contradict even the most elementary notions of human justice. The god of Islam is addressed as the compassionate and merciful; but his love is restricted to "those who fear,"[238] and his mercy can only be gained by that submissiveness or self-surrender which is indicated by the very name of Islam. He demands a righteous life, he punishes the wrongdoer and rewards the charitable.[239] Through his Prophet he has revealed to mankind both the rules of morality and the elements of a social system containing minute regulations for a man's conduct in various circumstances of life, with due rewards or penalties according to his fulfilment of these regulations.[240] The whole constitution of the State has on it a divine stamp; as an Arab proverb says, "country and religion are twins."[241] But foremost among duties is to believe in God and his Prophet. "God," it is said, "does not pardon polytheism and infidelity, but He can, if He willeth, pardon other crimes."[242] And the "pillars of religion" are the five duties of reciting the Kalimah or creed, of performing the five stated daily prayers, of fasting--especially in the month of Rama[d.]ân,--of giving the legal alms, and of making the pilgrimage to Mecca.[243] These duties are based on clear {726} sentences of the Koran, but the traditions have raised the most trivial ceremonial observances into duties of the greatest importance. It is true that hypocrisy and formalism without devotion were strongly condemned by Muhammed. "Righteousness," he said, "is not that ye turn your faces towards the East or the West, but righteousness is, one who believes in God, and the last day, and the angels, and the Book, and the prophets, and who gives wealth for His love to kindred, and orphans, and the poor, and the son of the road, and beggars, and those in captivity; and who is steadfast in prayer, and gives alms; and those who are sure of their covenant when they make a covenant; and the patient in poverty, and distress, and in time of violence; these are they who are true, and these are those who fear."[244] Yet in Muhammedanism, as in other ritualistic religions, the chief importance is practically attached to the punctual performance of outward ceremonies, and the virtue of prayer is made dependent upon an ablution.[245] In the future life the felicity or suffering of each person will be proportionate to his merits or demerits,[246] but the admittance into paradise depends in the first place on faith. "Those who believe, and act righteously, and are steadfast in prayer, and give alms, theirs is their hire with their Lord."[247] Those who have acknowledged the faith of Islam and yet acted wickedly will be punished in hell for a certain period, but will finally enter paradise.[248] As regards the future state of certain infidels the Koran contains contradictory statements. In one

place it is said, "Verily, whether it be of those who believe, or those who are Jews or Christians or Sabaeans, whosoever believe in God and {727} the last day and act aright, they have their reward at their Lord's hand, and there is no fear for them, nor shall they grieve."[249] But this passage is considered to have been abrogated by another where it is stated that whoso desires any other religion than Islam shall in the next world be among the lost.[250] The punishments inflicted upon unbelievers are no less horrible than the torments of the Christian hell. Yet in one point the Muhammedan doctrine of the future life is more merciful than the dogmas of Christianity. The children of believers will all go to paradise, and the children of unbelievers are generally supposed to escape hell. Some think they will be in A[(]ráf, a place situated between heaven and hell; whilst others maintain that they will be servants to the true believers in paradise.[251]

[Footnote 238: Koran, iii. 70.]

[Footnote 239: Supra, i. 553.]

[Footnote 240: Cf. Muir, Life of Mahomet, iii. 295 sq.; Lane-Poole, Studies in a Mosque, p. 101.]

[Footnote 241: Sell, Faith of Islám, pp. 19, 39.]

[Footnote 242: Ibid. p. 241.]

[Footnote 243: Ibid. p. 251.]

[Footnote 244: Koran, ii. 172.]

[Footnote 245: Cf. Polak, Persien, i. 9; Wallin, Reseanteckningar från Orienten, iv. 284 sq.; Sell, op. cit. p. 256.]

[Footnote 246: Lane, Manners and Customs of the Modern Egyptians, i. 95 sq. Sell, op. cit. p. 231. Lane-Poole, Studies in a Mosque, p. 319.]

[Footnote 247: Koran, ii. 277.]

[Footnote 248: Lane, op. cit. i. 95. Sell, op. cit. p. 228. The Mu[(]tazilas, however, teach that the Muslim who enters hell will remain there for ever. They maintain that the person who, having committed great sins, dies unrepentant, though not an infidel, ceases to be a believer, and hence suffers as the infidels do, though the punishment is lighter than that which an infidel receives (Sell, op. cit. pp. 229, 241).]

[Footnote 249: Koran, ii. 59.]

[Footnote 250: Ibid. iii. 79. Sell, op. cit. p. 359 sq.]

[Footnote 251: Sell, op. cit. p. 204 sq.]

The formalism of Muhammedan orthodoxy has from time to time called forth protests from minds with deeper aspirations. The earlier Muhammedan mystics sought to impart life to the rigid ritual;[252] and in the nineteenth century Bábíism revolted against orthodox Islam, opposing bigotry and enjoining friendly intercourse with persons of all religions.[253] At present there are some liberal Muhammedans who set aside the scholastic tradition, maintain the right of private interpretation of the Koran, and warmly uphold the adaptability of Islam to the most advanced ideas of civilisation.[254] To them Muhammed's mission was chiefly that of a moral reformer. "In Islam," says Syed Ameer Ali, "the service of man and the good of humanity constitute pre-eminently the service and worship of God."[255]

[Footnote 252: Ibid. p. 110.]

[Footnote 253: Ibid. p. 136 sqq.]

[Footnote 254: Ameer Ali, Life and Teachings of Mohammed, passim. Idem, Ethics of Islâm, passim. Cf. Lane-Poole, Studies in a Mosque, p. 324; Sell, op. cit. p. 198 sq.]

[Footnote 255: Ameer Ali, Ethics of Islâm, p. 3 sq. Idem, Life and Teachings of Mohammed, p. 274.]

In the next chapter I shall try to explain the chief facts now set forth relating to gods as guardians of **worldly morality.

Chapter LII

GODS AS GUARDIANS OF MORALITY (concluded)

WE have seen that the gods of uncivilised races are to a very large extent of a malevolent character, that they as a rule take little interest in any kind of human conduct which does not affect their own welfare, and that, if they show any signs of moral feelings, they may be guardians either of tribal customs in general or only of some special branch of morality. Among peoples of a higher culture, again, the gods are on the whole benevolent to mankind, when duly propitiated. They by preference resent offences committed against themselves personally; but they also avenge social wrongs of various kinds, they are superintendents of human justice, and are even represented as the originators and sustainers of the whole moral order of the world. The gods have thus experienced a gradual change for the better; until at last they are described as ideals of moral perfection, even though, when more closely scrutinised, their goodness and notions of justice are found to differ materially from what is deemed good and just in the case of men.

The malevolence of savage gods is in accordance with the theory that religion is born of fear. The assumed originators of misfortunes were naturally regarded as enemies to be propitiated, whilst fortunate events, if attracting sufficient attention and appearing sufficiently marvellous to suggest a supernatural cause, were commonly ascribed to beings who were too good to require {729} worship. But growing reflection has a tendency to attribute more amiable qualities to the gods. The religious consciousness of men becomes less exclusively occupied with the hurts they suffer, and comes more and more to reflect upon the benefits they enjoy. The activity of a god which displays itself in a certain phenomenon, or group of phenomena, appears to them on some occasions as a source of evil, but on other occasions as a source of good; hence the god is regarded as partly malevolent, partly benevolent, and in all circumstances as a being who must not be neglected. Moreover, a god who is by nature harmless or good may by proper worship be induced to assist man in his struggle against evil spirits.[1] This protective function of gods becomes particularly important when the god is more or less disassociated from the natural phenomenon in which he originally manifested himself. Nothing, indeed, seems to have contributed more towards the improvement of nature gods than the expansion of their sphere of activity. When supernatural beings can exert their power in the various departments of life, men naturally choose for their gods those among them who with great power combine the greatest benevolence. Men have selected their gods according to their usefulness. Among the Maoris "a mere trifle, or natural casualty, will induce a native (or a whole tribe) to change his Atua."[2] The negro, when disappointed in some of his speculations, or overtaken by some sad calamity, throws away his fetish, and selects a new one.[3] When hard-pressed, the Samoyede, after invoking his own deities in vain, addresses himself to the Russian god, promising to become his worshipper if he relieves him from his distress; and in most cases he is said to be faithful to his promise, though he may still try to keep on good terms with his former gods by occasionally {730} offering them a sacrifice in secret.[4] North American Indians attribute all their good or bad luck to their Manitou, and "if the

Manitou has not been favourable to them, they quit him without any ceremony, and take another."[5] Among many of the ancient Indians of Central America there was a regular and systematical selection of gods. Father Blas Valera says that their gods had annual rotations and were changed each year in accordance with the superstitions of the people. "The old gods were forsaken as infamous, or because they had been of no use, and other gods and demons were elected. . . . Sons when they inherited, either accepted or repudiated the gods of their fathers, for they were not allowed to hold their pre-eminence against the will of the heir. Old men worshipped other greater deities, but they likewise dethroned them, and set up others in their places when the year was over, or the age of the world, as the Indians had it. Such were the gods which all the nations of Mexico, Chiapa, and Guatemala worshipped, as well as those of Vera Paz, and many other Indians. They thought that the gods selected by themselves were the greatest and most powerful of all the gods."[6] These are crude instances of a process which in some form or other must have been an important motive force in religious evolution by making the gods better suited to meet the wants of their believers.

[Footnote 1: von Rosenberg, Der malayische Archipel, p. 162 (Niase). Howard, Life with Trans-Siberian Savages, p. 192 (Ainu). Georgi, Russia, iii. 273 sq. (shamanistic peoples of Siberia). Buch, 'Die Wotjaken,' in Acta Soc. Scient. Fennicæ, xii. 633. Supra, ii. 701, 702, 704 sq.]

[Footnote 2: Polack, Manners and Customs of the New Zealanders, i. 233.]

[Footnote 3: Wilson, Western Africa, p. 212.]

[Footnote 4: Ahlqvist, 'Unter Wogulen und Ostjaken,' in Acta Soc. Scient. Fennicæ, xiv. 240.]

[Footnote 5: Bossu, Travels through Louisiana, p. 103. Frazer, Totemism, p. 55.]

[Footnote 6: Blas Valera, quoted by Garcilasso de la Vega, First Part of the Royal Commentaries of the Yncas, i. 124 sq.]

But men not only select as their gods such supernatural beings as may be most useful to them in their struggle for life, they also magnify their good qualities in worshipping them. Praise and exaggerating eulogy are common in the mouth of a devout worshipper. In ancient Egypt the god of each petty state was within it held to be the ruler of the gods, the creator of the world, and the giver of all good things.[7] So also in Chaldea the god of {731} a town was addressed by its inhabitants with the most exalted epithets, as the master or king of all the gods.[8] The Vedic poets were engrossed in the praise of the particular deity they happened to be invoking, exaggerating his attributes to the point of inconsistency.[9] "Every virtue, every excellence," says Hume, "must be ascribed to the divinity, and no exaggeration will be deemed sufficient to reach those perfections with which he is endowed."[10] The tendency of the worshipper to extol his god beyond all measure is largely due to the idea that the god is fond of praise,[11] but it may also be rooted in a sincere will to believe or in genuine admiration. That nations of a higher culture have especially a strong faith in the power and benevolence of their gods is easy to understand when we consider that these are exactly the peoples who have been most successful in their national endeavours.[12] As the Greeks attributed their victory over the Persians to the assistance of Zeus,[13] so the Romans maintained that the grandeur of their city was the work of the gods whom they had propitiated by sacrifices.[14]

[Footnote 7: Wiedemann, Religion of the Ancient Egyptians, p. 11.]

[Footnote 8: Mürdter-Delitzsch, Geschichte Babyloniens und Assyriens, p. 24.]

[Footnote 9: Macdonell, Vedic Mythology, p. 16 sq. Barth, Religions of India, p. 26. Hopkins, Religions of India, p. 139.]

[Footnote 10: Hume, Philosophical Works, iv. 353.]

[Footnote 11: See supra, ii. 653 sq.]

[Footnote 12: Cf. Oldenberg, Die Religion des Veda, p. 281; Macdonell, op. cit. p. 18.]

[Footnote 13: Supra, ii. 713.]

[Footnote 14: Cicero, De natura deorum, iii. 2.]

The benevolence of a god, however, does not imply that he acts as a moral judge. A friendly god is not generally supposed to bestow his favours gratuitously; it is hardly probable, then, that he should meddle with matters of social morality out of sheer kindliness and of his own accord. But by an invocation he may be induced to reward virtue and punish vice. We have often noticed how closely the retributive activity of gods is connected with the blessings and curses of men. In order to give efficacy to their good or evil wishes men appeal to some god, or simply bring in his name when they pronounce a blessing or a curse; and if this is regularly done in connection with some particular kind of conduct, the idea may grow up that the god rewards or punishes it even independently of {732} any human invocation. Moreover, powerful curses, as those uttered by parents or strangers, may be personified as supernatural beings, like the Greek Erinyes; or the magic energy inherent in a blessing or a curse may become an attribute of the chief god, owing to the tendency of such a god to attract supernatural forces which are in harmony with his general nature.[15] So also, the notion of a persecuting ghost may be changed into the notion of an avenging god.[16] Various departments of social morality have thus come to be placed under the supervision of gods: the rights of life[17] and property,[18] charity[19] and hospitality,[20] the submissiveness of children,[21] truthspeaking and fidelity to a given promise.[22] That gods are so frequently looked upon as guardians of truth and good faith is, as we have seen, mainly a result of the common practice of confirming a statement or promise by an oath; and where the oath is an essential element in the judicial proceedings, as was the case in the archaic State,[23] the consequence is that the guardianship of gods is extended to the whole sphere of justice. Truth and justice are repeatedly mentioned hand in hand as matters of divine concern. We have seen how frequently the same gods as are appealed to in oaths or ordeals are described as judges of human conduct.[24] "En Égypte," says M. Amélineau, "la vérité et la justice n'avaient qu'un seul et même nom, Mât, qui veut aussi bien dire vérité que justice, et justice que vérité."[25] Zeus presided over assemblies and trials;[26] according to a law of Solon, the judges of Athens had to swear by him.[27] And the Erinyes, the personifications of oaths and curses, are sometimes represented by poets and philosophers as guardians of right in general.[28]

[Footnote 15: See supra, ii. 68.]

[Footnote 16: Supra, i. 378 sq.]

[Footnote 17: Supra, i. 379 sqq.]

[Footnote 18: Supra, ii. 59 sqq.]

[Footnote 19: Supra, i. 561 sqq.]

[Footnote 20: Supra, i. 578 sqq.]

[Footnote 21: Supra, i. 621 sqq.]

[Footnote 22: Supra, ii. 114 sqq.]

[Footnote 23: Leist, Græco-italische Rechtsgeschichte, p. 228.]

[Footnote 24: Supra, ii. 115, 116, 121, 122, 686, 687, 699.]

[Footnote 25: Amélineau, L'évolution des idées morales dans l'Égypte ancienne, p. 187. See also supra, ii. 115, 699.]

[Footnote 26: Farnell, Cults of the Greek States, i. 58.]

[Footnote 27: Pollux, Onomasticum, viii. 12. 142.]

[Footnote 28: Rohde, Psyche, p. 246.]

{733} It has been said that when men ascribe to their gods a mental constitution similar to their own they also eo ipso consider them to approve of virtue and disapprove of vice.[29] But this conclusion is certainly not true in general. Malevolent gods cannot be supposed to feel emotions which essentially presuppose altruistic sentiments; and, as we have just noticed, an invocation is frequently required to induce benevolent gods to interfere with the worldly affairs of men. Moreover, where the system of private retaliation prevails, not even the extension of human analogies to the world of supernatural beings would lead to the idea of a god who of his own accord punishes social wrongs. But it is quite probable that such analogies have in some cases made gods guardians of morality at large, especially ancestor gods who may readily be supposed not only to preserve their old feelings with regard to virtue and vice but also to take a more active interest in the morals of the living, and who are notoriously opposed to any deviation from ancient custom.[30] I also admit that the conception of a great or supreme god may perhaps, independently of his origin, involve retributive justice as a natural consequence of his power and benevolence towards his people. Yet it is obvious that even a god like Zeus was more influenced by the invocation of a suppliant than by his sense of justice. Dr. Farnell points out that the epithets which designate him as the god to whom those stricken with guilt can appeal are far more in vogue in actual Greek cult than those which attribute to him the function of vengeance and retribution.[31] Hermes was addressed by thieves as their patron.[32] According to the Talmud "the thief invokes God while he breaks into the house."[33] And the Italian bandit begs the Virgin herself to bless his endeavours.

[Footnote 29: Adam Smith, Theory of Moral Sentiments, p. 232 sq. Darwin, Descent of Man, p. 95. Tiele, Elements of the Science of Religion, i. 92 sq.]

[Footnote 30: See supra, ii. 519 sq. Cf. Tylor, Anthropology, p. 369; Macdonald, Religion and Myth, p. 229.]

[Footnote 31: Farnell, op. cit. i. 66 sq.]

[Footnote 32: Schmidt, Die Ethik der alten Griechen, i. 136.]

[Footnote 33: Deutsch, Literary Remains, p. 57.]

At the same time we must again remember that men {734} ascribe to their gods not only ordinary human qualities but excellences of various kinds, and among these may also be a strong desire to punish wickedness and to reward virtue. The gods of monotheistic religions in particular have such a multitude of the most elevated attributes that it would be highly astonishing if they had remained unconcerned about the morals of mankind. If flattery and admiration make the deity all-wise, all-powerful, all-good, they also make him the supreme judge of human conduct. And there is yet another reason for investing him with the moral government of the world. The claims of justice are not fully satisfied on this earth, where it only too often happens that virtue is left unrewarded and vice escapes unpunished, that right succumbs and wrong triumphs; hence persons with deep moral feelings and a religious or philosophical bent of mind are apt to look for a future adjustment through the intervention of the deity, who alone can repair the evils and injustices of the present. This demand of final retribution is sometimes so strongly developed that it even leads to the belief in a deity when no other proof of his existence is found convincing. Kant maintained that we must postulate a future life in which everybody's happiness is proportionate to his virtue, and that such a postulate involves the belief in a God of infinite power, wisdom, and goodness who governs the moral as well as the physical world. Not even Voltaire could rid himself of the notion of a rewarding and avenging deity, whom, if he did not exist, "it would be necessary to invent."

The belief in a god who acts as a guardian of **worldly morality undoubtedly gives emphasis to its rules. To the social and legal sanctions a new one is added, which derives particular strength from the supernatural power and knowledge of the deity. The divine avenger can punish those who are beyond the reach of human justice and those whose secret wrongs even escape the censure of their fellow men. But on the other hand there are also certain circumstances which considerably detract from the {735} influence of the religious sanction when compared with other sanctions of morality. The supposed punishments and rewards of the future life have the disadvantage of being conceived as very remote; and fear and hope decrease in inverse ratio to the distance of their objects. Men commonly live in the happy illusion that death is far off, even though it in reality is very near, hence also the retribution after death appears distant and unreal and is comparatively little thought of by the majority of people who believe in it. Moreover, there seems always to be time left for penance and repentance. Manzoni himself admitted, in his defence of Roman Catholicism, that many people think it an easy matter to procure that feeling of contrition by which, according to the doctrine of the Church, sins may be cancelled, and therefore encourage themselves in the commission of crime through the facility of pardon. The frequent assumption that the moral law would hardly command obedience without the belief in retribution beyond the grave is contradicted by an overwhelming array of facts. We hear from trustworthy witnesses that unadulterated savages follow their own rules of morality no less strictly, or perhaps more strictly, than civilised people follow theirs. Nay, it is a common experience that contact with a higher civilisation exercises a deteriorating influence upon the conduct of uncultured races, although we may be sure that Christian missionaries do not fail to impart the doctrine of hell to their savage converts.

It has also been noticed that a high degree of religious devotion is frequently accompanied by great laxity of morals. Of the Bedouins Mr. Blunt writes that, with one or two exceptions, "the practice of religion may be taken as the sure index of low morality in a tribe."[34] Wallin, who had an intimate and extensive knowledge of Muhammedan peoples, often found that those Muslims who attended to their prayers most regularly were the greatest scoundrels.[35] "One of the most remarkable traits {736} in the character of the Copts," says Lane, "is their bigotry"; and at the same time they are represented as "deceitful, faithless, and abandoned to the pursuit of worldly gain, and to indulgence in sensual pleasure."[36] Among two hundred Italian murderers Ferri did not find one who was irreligious; and Naples, which has the worst record of any European city for crimes against the person, is also the most religious city in Europe.[37] On the other hand, according to Dr. Havelock Ellis, "it seems extremely rare to find intelligently irreligious men in prison";[38] and Laing, who himself was anything but sceptical, observed that there was no country in Europe where there was so much morality and so little religion as Switzerland.[39] Most religions contain an element which constitutes a real peril to the morality of their votaries. They have introduced a new kind of duties--duties towards gods;--and, as we have noticed above, even where religion has entered into close union with worldly morality, much greater importance has been attached to ceremonies or worship or the niceties of belief than to good behaviour towards fellow men. People think that they may make up for lack of the latter by orthodoxy or pious performances. A Christian bishop of the seventh century, who was canonised by the Church of Rome, described a good Christian as a man "who comes frequently to church; who presents the oblation which is offered to God upon the altar; who doth not taste of the fruits of his own industry until he has consecrated a part of them to God; who, when the holy festivals approach, lives

chastely even with his own wife during several days, that with a safe conscience he may draw near the altar of God; and who, in the last place, can repeat the Creed and the Lord's Prayer."[40] A scrupulous observance of external ceremonies--that is all which in this description is required {737} of a good Christian. And since then popular ideas on the subject have undergone but little change. Smollett observes in his 'Travels into Italy' that it is held more infamous to transgress the slightest ceremonial institution of the Church of Rome than to transgress any moral duty; that a murderer or adulterer will be easily absolved by the Church, and even maintain his character in society; but that a man who eats a pigeon on a Saturday is abhorred as a monster of reprobation.[41] In the nineteenth century Simonde de Sismondi could write:--"Plus chaque homme vicieux a été régulier à observer les commandemens de l'Église, plus il se sent dans son c[oe]ur dispensé de l'observation de cette morale céleste, à laquelle il faudroit sacrifier ses penchans dépravés."[42] And how many a Protestant does not imagine that by going to church on Sundays he can sin more freely on the six days between.

[Footnote 34: Mr. Blunt, in Lady Anne Blunt's Bedouin Tribes of the Euphrates, ii. 217.]

[Footnote 35: Wallin, Reseanteckningar från Orienten, iii. 166.]

[Footnote 36: Lane, Manners and Customs of the Modern Egyptians, p. 551.]

[Footnote 37: Havelock Ellis, The Criminal, p. 156.]

[Footnote 38: Ibid. p. 159.]

[Footnote 39: Laing, Notes of a Traveller, pp. 323, 324, 333.]

[Footnote 40: Robertson, History of the Reign of the Emperor Charles V. i. 282 sq.]

[Footnote 41: Smollett, quoted by Kames, Sketches of the History of Man, iv. 380.]

[Footnote 42: Simonde de Sismondi, Histoire des républiques italiennes du moyen-âge, xvi. 419.]

It should also be remembered that the religious sanction of moral rules only too often leads to an external observance of these rules from purely selfish motives. Christianity itself has, essentially, been regarded as a means of gaining a blessed hereafter. As for its influence upon the moral life of its adherents I agree with Professor Hobhouse that its chief strength lies not in its abstract doctrines but in the simple personal following of Christ.[43] In moral education example plays a more important part than precept. But even in this respect Christianity has unfortunately little reason to boast of its achievements.

[Footnote 43: Hobhouse, Morals in Evolution, ii. 159.]

Chapter LIII — Conclusion

WE have completed our task. Only a few words will be added to emphasise the leading features of our theory of the moral consciousness and to point out some general conclusions which may be drawn as regards its evolution.

Our study of the origin and development of the moral ideas was divided into three main sections. As moral ideas are expressed in moral judgments, we had to examine the general nature of both the predicates and the subjects of such judgments, as well as the moral valuation of the chief branches of conduct with which the moral consciousness of mankind concerns itself. And in each case our aim was not only to describe or analyse but also to explain the phenomena which came under our observation.

The theory was laid down that the moral concepts, which form the predicates of moral judgments, are ultimately based on moral emotions, that they are essentially generalisations of tendencies in certain phenomena to call forth either indignation or approval. It was therefore necessary for us to investigate the nature and origin of these emotions, and subsequently to consider their relations to the various moral concepts.

We found that the moral emotions belong to a wider class of emotions, which may be described as retributive; that moral disapproval is a kind of resentment, akin to {739} anger and revenge, and that moral approval is a kind of retributive kindly emotion, akin to gratitude. At the same time they differ from kindred non-moral emotions by their disinterestedness, apparent impartiality, and flavour of generality. As for the origin of the retributive emotions, we may assume that they have been acquired by means of natural selection in the struggle for existence; both resentment and retributive kindly emotion are states of mind which have a tendency to promote the interests of the individuals who feel them. This explanation also applies to the moral emotions in so far as they are retributive: it accounts for the hostile attitude of moral disapproval towards the cause of pain, and for the friendly attitude of moral approval towards the cause of pleasure. Our retributive emotions are always reactions against pain or pleasure felt by ourselves; this holds true of the moral emotions as well as of revenge and gratitude. But how shall we explain those elements in the moral emotions by which they are distinguished from other, non-moral retributive emotions? First, why should we, quite disinterestedly, feel pain evoking indignation because our neighbour is hurt, and pleasure calling forth approval because he is benefited?

There are thus various ways in which disinterested retributive emotions may originate. But how shall we explain the fact that disinterestedness together with apparent impartiality and the flavour of generality have become characteristics by which the so-called moral emotions are distinguished from other retributive emotions? To this question the following answer was given:--Society is the birthplace of the moral consciousness. The first moral judgments expressed not the private emotions of isolated individuals but emotions which were felt by the community at large. Public indignation is the prototype of moral disapproval and public approval the prototype of moral approbation. And these public emotions are characterised by generality, individual disinterestedness, and apparent impartiality.

The moral emotions give rise to a variety of moral concepts, which are in different ways connected with the emotions from which they were derived. Thus moral disapproval is at the bottom of the concepts bad, vice, and wrong, ought and duty, right and rights, justice and injustice; whilst moral approval has led to the concepts good, virtue, and merit. It has, in particular, been of fundamental importance for the whole of our investigation to recognise the true contents of the notions of ought and duty. If these concepts were unanalysable, as they have often been represented to be, any attempt to explain the origin and development of the moral ideas would, in my opinion, be a hopeless failure.

From the predicates of moral judgments we proceeded to consider their subjects. Generally speaking, such judgments are passed on conduct or character, and {741} allowance is made for the various elements of which conduct and character are composed in proportion as the moral judgment is scrutinising and enlightened. It is only owing to ignorance or lack of due reflection if, as is often the case, moral estimates are influenced by external events which are entirely independent of the agent's will; if individuals who are incapable of recognising any act of theirs as right or wrong are treated as responsible beings; if motives are completely or partially disregarded; if little cognisance is taken

of forbearances in comparison with acts; if want of foresight or want of self-restraint is overlooked when the effect produced by it is sufficiently remote. We were also able to explain why moral judgments are passed on conduct and character. This is due to the facts that moral judgments spring from moral emotions; that the moral emotions are retributive emotions; that a retributive emotion is a reactive attitude of mind, either kindly or hostile, towards a living being (or something looked upon in the light of a living being), regarded as a cause of pleasure or as a cause of pain; and that a living being is regarded as a true cause of pleasure or pain only in so far as this feeling is assumed to be caused by its will. It is a circumstance of the greatest importance that not only moral emotions but non-moral retributive emotions are felt with reference to phenomena exactly similar in their general nature to those on which moral judgments are passed. How could we account for this remarkable coincidence unless the moral judgments were based on emotions and the moral emotions were retributive emotions akin to gratitude and revenge?

Our theory as to the nature of the moral concepts and emotions is further supported by another and very comprehensive set of facts. In our discussion of the particular modes of conduct which are subject to moral valuation and of the judgments passed on them by different peoples and in different ages, this theory has constantly been called in to explain the data before us. It is noteworthy that the very acts, forbearances, and omissions {742} which are condemned as wrong are also apt to call forth anger and revenge, and that the acts and forbearances which are praised as morally good are apt to call forth gratitude. This coincidence, again, undoubtedly bears testimony both to the emotional basis of the moral concepts and to the retributive character of the moral emotions. Thus the conclusions arrived at in the first section of the work, while helping to explain the facts mentioned in the two other sections, are at the same time greatly strengthened by these facts. Any attempt to discover the nature and origin of the moral consciousness must necessarily take into account the moral ideas of mankind at large. And though painfully conscious of the incompleteness of the present treatise, I think I may confidently ask, with reference to its fundamental thesis, whether any other theory of the moral consciousness has ever been subjected to an equally comprehensive test.

The general uniformity of human nature accounts for the great similarities which characterise the moral ideas of mankind. But at the same time these ideas also present radical differences. A mode of conduct which among one people is condemned as wrong is among another people viewed with indifference or regarded as praiseworthy or enjoined as a duty. One reason for these variations lies in different external conditions. Hardships of life may lead to the killing of infants or abandoning of aged parents or eating of human bodies; and necessity and the force of habit may deprive these actions of the stigma which would otherwise be attached to them. Economic conditions have influenced moral ideas relating, for instance, to slavery, labour, and cleanliness; whilst the form of marriage and the opinions concerning it have been largely determined by such a factor as the numerical proportion between the sexes. But the most common differences of moral estimates have undoubtedly a psychical origin.

When we examine the moral rules of uncivilised races we find that they in a very large measure resemble those prevalent among nations of culture. In every savage {743} community homicide is prohibited by custom, and so is theft. Savages also regard charity as a duty and praise generosity as a virtue--indeed, their customs concerning mutual aid are often much more stringent than our own; and many uncivilised peoples are conspicuous for their aversion to telling lies. But at the same time there is a considerable difference between the regard for life, property, truth, and the general

wellbeing of a neighbour, which displays itself in primitive rules of morality and that which is found among ourselves. Savages' prohibitions of murder, theft, and deceit, as also their injunctions of charity and kind behaviour, have, broadly speaking, reference only to members of the same community or tribe. They carefully distinguish between an act of homicide committed among their own people and one where the victim is a stranger; whilst the former is in ordinary circumstances disapproved of, the latter is in most cases allowed and often considered worthy of praise. And the same thing holds true of theft and lying and other injuries. Apart from the privileges which are granted to guests, and which are always of very short duration, a stranger is in early society devoid of all rights. This is the case not only among savages but among nations of archaic culture as well. When we from the lower races pass to peoples more advanced in civilisation we find that the social unit has grown larger, that the nation has taken the place of the tribe, and that the circle of persons within which the infliction of injuries is prohibited has extended accordingly. But the old distinction between offences against compatriots and harm done to foreigners remains. Nay, it survives to some extent even among ourselves, as appears from the prevailing attitude towards war and the readiness with which wars are waged. But although the difference between a fellow countryman and a foreigner has not ceased to affect the moral feelings of men even in the midst of modern civilisation, its influence has certainly been decreasing. The doctrine has been set forth, and has been gradually gaining ground, that our duties towards our {744} fellow men are universal duties, not restricted by the limits of country or race. Those who recognise the emotional origin of the rules of duty find no difficulty in explaining all these facts. The expansion of the commandments relating to neighbours coincides with the expansion of the altruistic sentiment. And the cause of this coincidence at once becomes clear when we consider that such commandments mainly spring from the emotion of sympathetic resentment, and that sympathetic resentment is rooted in the altruistic sentiment.

Besides the extension of duties towards neighbours so as to embrace wider and wider circles of men, there is another point in which the moral ideas of mankind have undergone an important change on the upward path from savagery and barbarism to civilisation. They have become more enlightened. Though moral ideas are based upon emotions, though all moral concepts are essentially generalisations of tendencies in certain phenomena to call forth moral approval or disapproval, the influence of intellectual considerations upon moral judgments is naturally very great. All higher emotions are determined by cognitions--sensations or ideas; they therefore vary according as the cognitions vary, and the nature of a cognition may very largely depend upon reflection or insight. If a person tells us an untruth we are apt to feel indignant; but if, on due reflection, we find that his motive was benevolent, for instance a desire to save the life of the person to whom the untruth was told, our indignation ceases, and may even be succeeded by approval. The change of cognitions, or ideas, has thus produced a change of emotions. Now, the evolution of the moral consciousness partly consists in its development from the unreflecting to the reflecting stage, from the unenlightened to the enlightened. This appears from the decreasing influence of external events upon moral judgments and from the growing discrimination with reference to motives, negligence, and other factors in conduct which are carefully considered by a scrupulous judge. More penetrating reflection has also reduced {745} the part played by disinterested likes and dislikes in the formation of moral ideas. When we clearly realise that a certain act is productive of no real harm but is condemned simply because it causes aversion or disgust, we can hardly look upon it as a proper object of moral censure--unless, indeed,

its commission is considered to imply a blamable disregard for other persons' sensibilities. Deliberate resentment, whether moral or non-moral, is too much concerned with the will of the agent to be felt towards a person who obviously neither intends to offend anybody nor is guilty of culpable oversight. Nay, even when the agent knows that his behaviour is repulsive to others, he may be considered justified in acting as he does. Some degree of reflection easily leads to the notion that sentimental antipathies are no sufficient ground for interfering with other individuals' liberty of action either by punishing them or by subjecting them to moral censure, provided of course that they do not in an indelicate manner shock their neighbours' feelings. Hence many persons have recourse to utilitarian pretexts to support moral opinions or legal enactments which have originated in mere aversions; thus making futile attempts to reconcile old ideas with the requirements of a moral consciousness which is duly influenced by reflection.

In innumerable cases the variations of moral estimates are due to differences of beliefs. Almost every chapter of this work has borne witness to the enormous influence which the belief in supernatural forces or beings or in a future state has exercised upon the moral ideas of mankind, and has at the same time shown how exceedingly varied this influence has been. Religion, or superstition (as the case may be), has on the one hand stigmatised murder and suicide, on the other hand it has commended human sacrifice and certain cases of voluntary self-destruction. It has inculcated humanity and charity, but has also led to cruel persecutions of persons embracing another creed. It has emphasised the duty of truthspeaking, and has itself been a cause of pious fraud. It has promoted {746} both cleanly habits and filthiness. It has enjoined labour and abstinence from labour, sobriety and drunkenness, marriage and celibacy, chastity and temple prostitution. It has introduced a great variety of new duties and virtues, quite different from those which are recognised by the moral consciousness when left to itself, but nevertheless in many cases considered more important than any other duties or virtues. It seems that the moral ideas of uncivilised men are more affected by magic than by religion, and that the religious influence has reached its greatest extension at certain stages of culture which, though comparatively advanced, do not include the highest stage. Increasing knowledge lessens the sphere of the supernatural, and the ascription of a perfectly ethical character to the godhead does away with moral estimates which have sprung from less elevated religious conceptions.

I have here pointed out only the most general changes to which the moral ideas have been subject in the course of progressive civilisation; the details have been dealt with each in their separate place. There can be no doubt that changes also will take place in the future, and that similar causes will produce similar effects. We have every reason to believe that the altruistic sentiment will continue to expand, and that those moral commandments which are based on it will undergo a corresponding expansion; that the influence of reflection upon moral judgments will steadily increase; that the influence of sentimental antipathies and likings will diminish; and that in its relation to morality religion will be increasingly restricted to emphasising ordinary moral rules, and less preoccupied with inculcating special duties to the deity.

Additional Notes to Vol. II

P. 287, n. 6.--The connection between the Hebrew Sabbath and the moon has been fully discussed by Professor Webster in his recent book, Rest Days, ch. viii.

P. 377, n. 1.--In his book, Totemism and Exogamy, Sir J. G. Frazer has definitely separated exogamy from totemism and thereby, it is to be hoped, saved us from further speculations about the totemic origin of the exogamous rules. Like myself, Frazer thinks

(iv. 105 sqq.) that these rules have sprung from an aversion to the marriages of near kin. But whilst my own belief is that the aversion to such marriages through an association of ideas led to the prohibitions of marriage between members of the same clan on account of the notion of intimacy connected with a common descent and a common name, Frazer is of opinion that exogamy was deliberately instituted for the purpose of preventing the sexual unions of near kin. To me it seems almost inconceivable that the extensive, cumbersome, and sometimes very complicated institution of exogamy should have been invented simply as a precaution against unions between the nearest relatives.

Granting the prevalence of an aversion to the marriages of near kin, Frazer is confronted with the question how it has originated. His answer is, "We do not know and it is difficult even to guess." Yet he makes a cautious attempt to solve the riddle. He observes (iv. 156 sqq.) that the great severity with which incest is generally punished by savages seems to show that they believe it to be a crime which endangers the whole community. It may have been thought to render the women of the tribe sterile and to prevent animals and plants from multiplying; such beliefs, Frazer remarks, appear in point of fact to have been held by many races in different parts of the world. But he admits himself that all the peoples who are known to hold them seem to be agricultural, and that incest is in particular supposed to have a sterilising effect on the crops. It is indeed a poor argument to conjecture that a careful search among the most primitive exogamous peoples now surviving, especially among the Australian aborigines, might still reveal the existence of a belief in the sterilising or injurious effects of incest "upon women generally and particularly upon edible animals and plants." It may also be asked if it really is reasonable to presume that an aversion which had originated in the superstition mentioned could have remained unimpaired among all the civilised nations of the world. Moreover, if this superstition were the root of the aversion to incest, we should still have to explain the origin of the superstition itself, and this Frazer has not even attempted to do. If, on the other hand, the abhorrence of incest has originated in the way I have suggested, the superstition which he is inclined to regard as the cause of that feeling is a very natural result of it or of the prohibition to which it gave rise. That this is the case is all the more probable because the same injurious effects as are attributed to incest are supposed to result from other sexual irregularities as well, such as adultery and fornication (cf. supra, ii. 417).

Sir J. G. Frazer also subjects my theory to a detailed criticism (iv. 96 sqq.). He admits that there seems to be some ground for believing in the existence of "a natural aversion to, or at least a want of inclination for, sexual intercourse between persons who have been brought up closely together {748} from early youth"; but he finds it difficult to understand how this could have been changed into an aversion to sexual intercourse with persons near of kin, and maintains that, till I explain this satisfactorily, the chain of reasoning by which I support my theory breaks down entirely at the crucial point. For my own part I think that the transition which Frazer finds so difficult to understand is not only possible and natural, but well-nigh proved by an exactly analogous case of equally world-wide occurrence and of still greater social importance, namely, the process which has led to the association of all kinds of social rights and duties with kinship. As I have pointed out above (ch. xxxiv.), the maternal and paternal sentiments, which largely are at the bottom of parental duties and rights, cannot in their simplest forms be based on a knowledge of blood relationship, but respond to stimuli derived from other circumstances, notably the proximity of the helpless young, that is, the external relationship in which the offspring from the beginning stand to the parents.

Nor is the so-called filial love in the first instance rooted in considerations of kinship; it is essentially retributive, the agreeable feeling produced by benefits received making the individual look with pleasure and kindliness upon the giver. Here again the affection is ultimately due to close living together, and is further strengthened by it, as appears from the cooling effect of long separation of children from their parents. So also fraternal love and the duties and rights which have sprung from it depend in the first place on other circumstances than the idea of a common blood; and the same may be said of the tie which binds together relatives more remotely allied. Its social force is ultimately derived from near relatives' habit of living together. "Men became gregarious by remaining in the circle where they were born; if, instead of keeping together with their kindred, they had preferred to isolate themselves or to unite with strangers, there would certainly be no blood-bond at all. The mutual attachment and the social rights and duties which resulted from this gregarious condition were associated with the relation in which members of the group stood to one another--the relation of kinship as expressed by a common name--and these associations might last even after the local tie was broken," being kept up by the common name (supra, ii. 203).

Here we have an immense group of facts which, though ultimately depending upon close living together, have been interpreted in terms of kinship. Why, then, could not the same have been the case with the aversion to incest and the prohibitory rules resulting from it? They really present a most striking analogy to the instances just mentioned. They have been associated with kinship because near relatives normally live together. They have come to include relatives more remotely allied who do not live together, owing to an association of ideas, especially through the influence of a common name; clan exogamy has its counterpart, for instance, in the blood feud as a duty incumbent on the whole clan. But there are also cases in which marriages between unrelated persons who have been brought up together in the same family, or who belong to the same local group, are held blamable or are actually prohibited; and so there are, even in early society, social rights and duties which are associated not with a common descent but with close living together. Frazer asks: "If the root of the whole matter is a horror of marriage between persons who have always lived with each other, how comes it that at the present day that horror has been weakened into a mere general preference for marriage with persons whose attractions have not been blunted by long familiarity? . . . Why should the marriage of a brother with a sister, or of a mother with a son, excite the deepest detestation, . . . while the origin of it all, the marriage between housemates, should excite at most a mild surprise too slight probably to suggest even a subject for a farce, and should be as legitimate in the eye of the law among all civilised nations as any other marriage?" For my own part, I believe that marriage between a man and his foster-daughter or between a foster-brother {749} and a foster-sister, in case the social relations between them have been exactly similar to those of blood-relatives of corresponding degrees, would cause more than a mild surprise, and appear unnatural and objectionable. As I have said above (ii. 375), I do not deny that unions between the nearest blood-relatives inspire a horror of their own, but it seems quite natural that they should do so considering that from earliest times the aversion to sexual intercourse between persons living closely together has been expressed in prohibitions against unions between kindred. Nor can it be a matter of surprise that the prohibitory rules so commonly refer to marriages of kindred alone. Law only takes into account general and well-defined cases, and hence relationships of some kind or other between persons who are nearly always kindred are defined in terms of blood-relationship. This is true

not only of the prohibitions of incest, but of many duties and rights inside the family circle.

Sir J. G. Frazer raises another objection to my theory. He argues that, if exogamy resulted from a natural instinct, there would be no need to reinforce that instinct by legal pains and penalties; the law only forbids men to do what their instincts incline them to do, and hence we may always safely assume that crimes forbidden by law are crimes which many men have a natural propensity to commit. I must confess that this argument greatly surprises me. Of course, where there is no transgression there is no law. But Frazer cannot be ignorant of the variability of instincts and of the great variability of the sexual instinct; nor should he forget that there are circumstances in which a natural sentiment may be blunted and overcome. Would he maintain that there can be no deep natural aversion to bestiality because bestiality is forbidden by law, and that the exceptional severity with which parricide is treated by many law books proves that a large number of men have a natural propensity to kill their parents? The law expresses the feelings of the majority and punishes acts that shock them.

Sir J. G. Frazer accuses me of having extended Darwin's methods to subjects which only partially admit of such treatment, because my theory of the origin of exogamy attempts to explain the growth of a human institution "too exclusively from physical and biological causes without taking into account the factors of intelligence, deliberation, and will." This, he adds, is "not science, but a bastard imitation of it." What have I done to incur so severe an accusation? I have suggested that the instinctive aversion to sexual intercourse between persons who have been living very closely together from early youth may be the result of natural selection. I am inclined to think--and so is Frazer--that consanguineous marriages are in some way or other detrimental to the species. This fact would lead to the development of a sentiment which would be powerful enough, as a rule, to prevent injurious unions--a sentiment which would not, of course, show itself as an innate aversion to sexual connections with near relatives as such, but as an aversion on the part of individuals to union with others with whom they lived closely together from early childhood. These, as a matter of fact, would be blood-relations, and the result would consequently be the survival of the fittest. All that I have done, then, is to appeal to natural selection to explain the origin of a primeval instinctive sentiment; and I can never believe that this is to transgress the legitimate boundaries of Darwinism.

Sir J. G. Frazer himself thinks that "we may safely conclude that infertility is an inevitable consequence of inbreeding continued through many generations in the same place and under the same conditions," and in support of this view he quotes the valuable opinions of Mr. Walter Heape and Mr. F. H. A. Marshall. He thus finds that the principles of exogamy present "a curious resemblance" to the principles of scientific breeding, but he rightly assumes that this analogy cannot be due to any exact knowledge or farseeing care on the part of its savage founders. How then shall we explain this analogy? Frazer's answer is that "it must be an accidental {750} result of a superstition, an unconscious mimicry of science." In prohibiting incest the poor savages "blindly obeyed the impulse of the great evolutionary forces which in the physical world are constantly educing higher out of lower forms of existence and in the moral world civilisation out of savagery. If that is so, exogamy has been an instrument in the hands of that unknown power, the masked wizard of history, who by some mysterious process, some subtle alchemy, so often transmutes in the crucible of suffering the dross of folly and evil into the fine gold of wisdom and good." I hope it will not be considered uncalled-for

impertinence on my part to ask if this reasoning is a specimen of what Frazer regards as science proper in contradistinction to my own "bastard imitation of it"?

In any attempt to explain the origin of exogamy there are, in my opinion, three parallel groups of facts of general occurrence which necessarily must be taken into consideration:--Firstly, the prohibitions of incest and rules of exogamy themselves; secondly, the aversion to sexual intercourse between persons living together from early youth; thirdly, the injurious consequences of inbreeding. As for the facts of the first group, Frazer and I agree that they all have the same root, exogamy being in some way or other derived from an aversion to the marriages of near kin. As for the facts of the second group, Frazer at all events admits that "there seems to be some ground" for believing in them. As for the facts of the third group, there is complete agreement between us. I ask: Is it reasonable to think that there is no causal connection between these three groups of facts? Is it right to ignore the second group altogether, as does Frazer, and to look upon the coincidence of the first and the third as accidental? I gratefully acknowledge that Frazer's chapter on the Origin of Exogamy has only strengthened my belief in my own theory.

Other objections to my theory have recently been made by Messrs. Hose and McDougall in their work on The Pagan Tribes of Borneo, vol. ii., p. 197, note. They observe that intercourse between a youth and his sister-by-adoption is not regarded as incest in these tribes, and that they know at least one instance of marriage between two young Kenyahs brought up together as adopted brother and sister. "This occurrence of incest between couples brought up in the same household," they say, "is, of course, difficult to reconcile with Professor Westermarck's well-known theory of the ground of the almost universal feeling against incest, namely, that it depends upon sexual aversion or indifference engendered by close proximity during childhood." They moreover maintain that "the occurrence of incest between brothers and sisters, and the strong feeling of the Sea Dyaks against incest between nephew and aunt (who often are members of distinct communities)," are facts which are fatal to this theory.

In my attempt to explain the rules against incest I certainly did not overlook the fact that these rules very frequently have reference to persons who are, or may be, members of different communities, and I found no difficulty in accounting for it (see supra, ii. 369; History of Human Marriage, p. 330 sq.). Curiously enough Messrs. Hose and McDougall's own attempt to solve the problem is, if I understand them rightly, based on the supposition that the prohibitions of intermarriage originally referred to persons who belonged to the same community. They write:--"If we accept some such view of the constitution of primitive society as has been suggested by Messrs. Atkinson and Lang (Primal Law), namely, that the social group consisted of a single patriarch and a group of wives and daughters, over all of whom he exercised unrestricted power or rights; we shall see that the first step towards the constitution of a higher form of society must have been the strict limitation of his rights over certain of the women, in order that younger males might be incorporated in the society and enjoy the undisputed possession of them. The patriarch, having accepted this limitation of his rights over his daughters for the sake of the greater security and strength of the band given by the inclusion of a {751} certain number of young males, would enforce all the more strictly upon them his prohibition against any tampering with the females of the senior generation. Thus very strict prohibitions and severe penalties against the consorting of the patriarch with the younger generation of females, i.e. his daughters, and against intercourse between the young males admitted to membership of the group and the wives of the patriarch, would be the essential conditions of advance of

social organisation. The enforcement of these penalties would engender a traditional sentiment against such unions, and these would be the unions primitively regarded as incestuous. The persistency of the tendency of the patriarch's jealousy to drive his sons out of the family group as they attained puberty would render the extension of this sentiment to brother-and-sister unions easy and almost inevitable. For the young male admitted to the group would be one who came with a price in his hand to offer in return for the bride he sought. Such a price could only be exacted by the patriarch on the condition that he maintained an absolute prohibition on sexual relations between his offspring so long as the young sons remained under his roof." I should like to know how Messrs. Hose and McDougall, on the basis of this theory, would explain "the strong feeling of the Sea Dyaks against incest between nephew and aunt (who often are members of distinct communities)," and, generally speaking, the rules prohibiting the intermarriage of persons belonging to different local groups. For the rest, I must confess that the assumptions on which their whole theory rests seem to me extremely arbitrary. Brothers are prohibited from marrying their sisters because the old patriarch drove away his grown-up sons out of jealousy; but his jealousy was not strong enough to prevent other young males from joining the band. On the contrary, he allowed them to be incorporated in it, because they added to its strength; nay, he gave them his own daughters in marriage, and refrained henceforth himself from intercourse with these young women so rigorously that ever since a father has been prohibited from marrying his daughter. But the young men had to pay a price for their wives. It may be asked: Why did not the old patriarch accept a price from his own sons or let them work for him, instead of mercilessly turning them out of their old home, although they would have been just as good protectors of it as anybody else? And why did he give the young men his daughters? He might have kept the young women for himself and let the young men have the old ones. This is what is done by the old men in Australia, where the young girls are, as a rule, allotted to old men, and the boys, whenever they are allowed to marry, get old lubras as wives (Malinowski, The Family among the Australian Aborigines, p. 259 sqq.). Yet, in spite of this custom, there is no country where incest has been more strictly prohibited than in Australia.

Messrs. Hose and McDougall maintain that the occurrence of incest between brothers and sisters and the feeling of the Sea Dyaks against incest between nephew and aunt are facts which seem "to point strongly to the view that the sentiment has a purely conventional or customary source." I ask: Is it reasonable to suppose that, if this were the case, the feeling against sexual intercourse between the nearest relatives could have so long survived the conditions from which it sprang without showing any signs of decay? As I have pointed out above, the prohibited degrees are very differently defined in the customs or laws of different peoples, generally being more numerous among peoples unaffected by modern civilisation than they are in more advanced communities; and it appears that the extent to which relatives are prohibited from intermarrying is closely connected with the intimacy of their social relations. Whilst among ourselves cousins are allowed to intermarry, there is still a strong sentiment against intercourse between parents and children and between brothers and sisters, who in normal cases belong to the same family circle. Why should the feeling against incest have survived in this case but not in others, if it had a purely conventional origin? And how could any law {752} based on convention alone account for the normal absence of erotic feelings in the relation between parents and children and brothers and sisters? It is true that cases of intercourse between the nearest relatives do occur, but they are certainly quite exceptional. Messrs. Hose and McDougall say themselves (p. 198) that "incest of any

form is very infrequent" among the tribes of Borneo, and they seem to know of only one instance of marriage between young Kenyahs brought up together as adopted brother and sister, although such marriages are allowed. To maintain that cases of this kind are fatal to my theory seems to me as illogical as it would be to assume that the occurrence of a horror feminæ in many men disproves the general prevalence of a feeling of love between the sexes.

P. 396, n. 1.--In his recent work, The Family among the Australian Aborigines, Dr. Malinowski has come to the same conclusion. He observes that the individual family plays a foremost part in the social life of those aborigines; it has a very firm basis in their customs and ideas, and "by no means bears the features of anything like recent innovation, or a subordinate form subservient to the idea of group marriage." The Australian husband had generally a definite sexual "over-right" over his wife, which secured to him the privilege of disposing of her, or at least of exercising a certain control over her conduct in sexual matters, even though this "over-right" did not, as a rule, amount to an exclusive right. There were customs like wife-lending, exchange of wives, ceremonial defloration of girls by old men, the different forms of licence practised at large tribal gatherings, and especially the Pirrauru relationship found in several of the southern central tribes. But all this does not constitute group marriage, the complete content of which does not consist in sexual relations alone. Dr. Malinowski emphasises the fact that marriage cannot be detached from family life; "it is defined in all its aspects by the problems of the economic unity of the family, of the bonds created by common life in one wurley, through the common rearing of, and affection towards, the offspring." In nearly all these respects even the Pirrauru relationship essentially differs from marriage, and cannot, therefore, seriously encroach upon the individual family. Nor can we regard this relationship as a survival of previous group marriage. Dr. Malinowski also points out (p. 89 sq.) how highly objectionable it is that "our best informants (especially Howitt and Spencer and Gillen) describe the facts of sexual life of to-day in terms of their hypothetical assumptions."

P. 419, n. 5.--For Moorish beliefs relating to contact between sexual uncleanness and holiness see my essays, The Moorish Conception of Holiness (Baraka), p. 123 sqq., and Ceremonies and Beliefs connected with Agriculture, certain Dates of the Solar Year, and the Weather in Morocco, pp. 17, 22, 23, 28, 46, 47, 54.

P. 463, n. 8.--During the years that have passed since the first edition of this book was issued, the study of homosexuality has been carried on with remarkable activity. The following books are exclusively devoted to this subject:--Das gleichgeschlechtliche Leben der Naturvölker, by F. Karsch-Haack (1911), Intermediate Types among Primitive Folk, by Edward Carpenter (1914), and Die Homosexualität des Mannes und des Weibes, by Magnus Hirschfeld (1914). Carpenter's book chiefly deals with the invert in early religion and in warfare. Hirschfeld's work is a veritable encyclopædia of homosexuality--according to Dr. Havelock Ellis, "not only the largest but the most precise, detailed, and comprehensive--even the most condensed--work which has yet appeared on the subject." In 1915 Dr. Havelock Ellis issued a third, revised and enlarged, edition of his Sexual Inversion.

P. 485, n. 1.--This passage and, generally, the suggestion that there is a certain relationship between the social reaction against homosexuality {753} and against infanticide, have been excluded from the last edition of Dr. Havelock Ellis's book.

P. 584, n. 1.--There is hardly any subject which during the last four or five years has been more eagerly discussed by students of social anthropology than the relation between religion and magic. It has been dealt with, e.g., by Sir J. G. Frazer in The

Magic Art, by Professor Durkheim in Les formes élémentaires de la vie religieuse, by Dr. Marett in The Threshold of Religion and other writings, by Dr. Irving King in The Development of Religion, by Professor Leuba in A Psychological Study of Religion, by Mr. Sidney Hartland in Ritual and Belief, and by the present Archbishop of Sweden, Nathan Söderblom, in his book Gudstrons uppkomst. According to the French school of sociologists, religion is social in its aims and magic antisocial; and this distinction has lately been accepted by Dr. Marett, who writes (Anthropology, p. 209 sq.): "Magic I take to include all bad ways, and religion all good ways, of dealing with the super-normal--bad and good, of course, not as we may happen to judge them, but as the society concerned judges them." But this use of the terms is neither in agreement with traditional usage nor, in my opinion, suitable for the purpose of scientific classification. Besides black magic, or witchcraft, there is also white magic; even a medieval theologian like Albertus Magnus asserts that "magical science is not evil, since through knowledge of it evil can be avoided and good attained." The French distinction between magic and religion implies that a prayer to a god for the destruction of an enemy must be classified as religion if it is offered in a cause which is considered just by the community, but as magic if it is disapproved of. If a man makes a girl drink a love-potion in order to gain her favour, it is religion if their union is desirable from the society's point of view, but if he gives the same drink to another man's wife it is magic. The best part of what has been hitherto called imitative or hom[oe]opathic magic no longer remains magic at all; if water is poured out for the purpose of producing rain it is hom[oe]opathic magic only in case rain is not wanted by the community, but if it is done during a drought it is religion. Thus the very same practices are qualified as religious or magical according as they have social or antisocial ends; and, as Mr. Hartland rightly asks (Ritual and Belief, p. 76): "How shall we define these ends?"

It should be added, however, that the definition of religion which I have given in the text has reference only to religion in the abstract, not to the various religions. In the popular sense of the word, a religion may include many practices which are what I have called magical. As I have said above (p. 649), "both Christianity in its earlier phases and Muhammedanism are full of magical practices expressly sanctioned by their theology." Although the magical and the strictly religious attitude differ from each other, they are not irreconcilable, and may therefore very well form parts of one and the same religion; there is no such thing as a magic being opposed to a religion. By a religion is generally understood a system of beliefs and rules of behaviour which have reference to men's relations to one or several supernatural beings whom they call their god or gods, that is, supernatural beings who are the objects of a regular cult and between whom and their worshippers there are established and permanent relationships. If it be admitted that the word religion may be thus legitimately used in two different senses, I think there is little ground left for further controversy on the subject. After all, sociologists may more profitably occupy their time than by continuous quarrelling about the meaning of terms.

P. 608, n. 4.--In The Dying God, p. 204, n. 1, Sir J. G. Frazer writes: "There is a good deal to be said in favour of Dr. Westermarck's theory, which is supported in particular by the sanctity attributed to the regalia. But on the whole I see no sufficient reason to abandon the view adopted {754} in the text, and I am confirmed in it by the Shilluk evidence, which was unknown to Dr. Westermarck when he propounded his theory."

According to Professor C. G. Seligman to whom Frazer is indebted for detailed information on the subject (op. cit. p. 17 sqq.) it is a fundamental article of the Shilluk creed that the spirit of Nyakang, the divine or semi-divine hero who settled the Shilluk

in their present territory and founded the dynasty of their kings, is incarnate in the reigning king, who is accordingly himself invested to some extent with the character of a divinity. But while the Shilluk hold their kings in high, indeed religious, reverence and take every precaution against their accidental death, nevertheless they cherish the conviction that the king must not be allowed to become ill or senile, lest with his diminishing vigour the cattle should sicken and fail to bear their increase, the crops should rot in the fields, and man, stricken with disease, should die in ever-increasing numbers. To prevent these calamities it used to be the regular custom with the Shilluk to put the king to death whenever he showed signs of ill-health or failing strength. Nay, from Dr. Seligman's enquiries it appears that even while the king was yet in the prime of health and strength he might at any time be attacked by a rival and have to defend his crown in a combat to the death. According to the common Shilluk tradition any son of a king had the right thus to fight the king in possession and, if he succeeded in killing him, to reign in his stead. Now "an important part of the solemnities attending the accession of a Shilluk king appears to be intended to convey to the new monarch the divine spirit of Nyakang, which has been transmitted from the founder of the dynasty to all his successors on the throne. For this purpose a sacred four-legged stool and a mysterious object which bears the name of Nyakang himself are brought with much solemnity from the shrine of Nyakang at Akurwa to the small village of Kwom near Fashoda, where the king elect and the chiefs await their arrival. The thing called Nyakang is said to be of cylindrical shape, some two or three feet long by six inches broad. The chief of Akurwa informed Dr. Seligman that the object in question is a rude wooden figure of a man, which was fashioned long ago at the command of Nyakang in person. We may suppose that it represents the divine king himself and that it is, or was formerly, supposed to house his spirit, though the chief of Akurwa denied to Dr. Seligman that it does so now. . . . The image of Nyakang is placed on the stool; the king elect holds one leg of the stool and an important chief holds another. . . . A bullock is killed and its flesh eaten by the men of certain families called ororo, who are said to be descended from the third of the Shilluk kings. Then the Akurwa men carry the image of Nyakang into the shrine, and the ororo men place the king elect on the sacred stool, where he remains seated for some time, apparently till sunset. When he rises, the Akurwa men carry the stool back into the shrine, and the king is escorted to three new huts, where he stays in seclusion for three days. On the fourth night he is conducted quietly, almost stealthily, to his royal residence at Fashoda, and next day he shows himself publicly to his subjects."

As regards this so-called evidence it should, first, be noticed that it is only Dr. Seligman's own conjecture that the mysterious object called Nyakang is or has been supposed to contain the spirit of the holy founder of the dynasty, and that this conjecture is expressly said to be opposed to the present beliefs of the natives. On the other hand it is obvious that the object in question is regarded as a holy object, and that its holiness, or a particle of it, is supposed to be transmitted to the new king through material contact--an idea which well agrees with my own theory. But even if the Shilluk had once believed that their king was a reincarnation of the spirit of Nyakang, that belief could hardly be regarded as a direct proof of the idea that the soul of the slain man-god is transmitted to his royal successor. The Shilluk believe that Nyakang, unlike his royal descendants of more recent times, did not die but simply disappeared.

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